SUPPLEMENT NO. 3
VOLUMES I AND II
March 2021

THE GENERAL CODE

of the

City of

BIRMINGHAM, ALABAMA

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 20-107, enacted June 29, 2020.

See the Code Comparative Table—Ordinances for further information.

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SUPPLEMENT NO. 2
VOLUMES I AND II
July 2020

THE GENERAL CODE

of the

City of

BIRMINGHAM, ALABAMA

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 17-68, enacted June 13, 2017.

See the Code Comparative Table—Ordinances for further information.

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SUPPLEMENT NO. 1
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September 2017

THE GENERAL CODE

OF THE CITY OF

BIRMINGHAM, ALABAMA

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 17-63, enacted June 6, 2017.

See the Code Comparative Table—Ordinances for further information.

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O.C. Revision 3
Volumes I and II
February 2017

THE GENERAL CODE

OF THE CITY OF

BIRMINGHAM, ALABAMA

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O.C. REVISION
Volumes I and II
October 2014

THE GENERAL CODE

OF THE

CITY OF

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O.C. Correction
Volumes I and II
December 2013

THE GENERAL CODE

OF THE

CITY OF

BIRMINGHAM, ALABAMA

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THE GENERAL CODE

OF THE CITY OF

BIRMINGHAM, ALABAMA

VOLUME I

Published in 2017 by Order of the City Council
Adopted by council: May 30, 2017
Approved by Mayor: June 6, 2017

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CITY OF

BIRMINGHAM, ALABAMA

AT THE TIME OF THIS RECODIFICATION

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Mayor

Johnathan F. Austin, District 5, Council President
Stephen W. Hoyt, District 8, Council President Pro Tempore
Lashunda Roberts-Scales, District 1
Kimberly S. Rafferty, District 2
Valerie A. Abbott, District 3
William Parker, District 4
Sheila Tyson, District 6
James "Jay" Roberson, Jr., District 7
Marcus Lundy, Jr., District 9
City Council

Thomas Bentley, III
Acting City Attorney

Lee Frazier
City Clerk

PREFACE

This Code constitutes a recodification of the general and permanent ordinances of the City of Birmingham, Alabama.

Source materials used in the preparation of the Code were the 1980 Code, as updated through April 1, 2014, and ordinances subsequently adopted by the city council. The source of each section is included in the history note appearing in parentheses at the end thereof. The absence of such a note indicates that the section is new and was adopted for the first time with the adoption of the Code. By use of the comparative tables appearing in the back of this Code, the reader can locate any section of the 1980 Code, as updated, and any subsequent ordinance included herein.

The various sections within each title have been catchlined to facilitate usage. Notes which tie related sections of the Code together and which refer to relevant state law have been included. A table listing the state law citations and setting forth their location within the Code is included at the back of this Code.

Title, Chapter and Section Numbering System

The title, chapter and section numbering system used in this Code is the same system used in many state and local government codes. Each section number consists of three parts separated by a hyphen. The figure before the first hyphen refers to the title number, the figure after the first hyphen refers to the chapter number, and the figure after the second hyphen refers to the position of the section within the title and chapter. Thus, the first section of chapter 1 in title 1 is numbered 1-1-1, and the second section of chapter 1 in title 1 is 1-1-2. Under this system, each section is identified with its title and chapter, and at the same time new sections can be inserted in their proper place by using decimals for amendments. For example, if new material consisting of one section that would logically come between sections 1-1-1 and 1-1-2 is desired to be added, such new section would be numbered 1-1-1.1. New articles and new divisions may be included in the same way or, in the case of articles, may be placed at the end of the chapter embracing the subject, and, in the case of divisions, may be placed at the end of the article embracing the subject. The next successive number shall be assigned to the new article or division. New titles may be included by using one of the reserved title numbers.

Page Numbering System

The page numbering system used in this Code is a prefix system. The letters to the left of the colon are an abbreviation which represents a certain portion of the volume. The number to the right of the colon represents the number of the page in that portion. In the case of a title of the Code, the number to the left of the colon indicates the number of the title. In the case of an appendix to the Code, the letter immediately to the left of the colon

indicates the letter of the appendix. The following are typical parts of codes of ordinances, which may or may not appear in this Code at this time, and their corresponding prefixes:

MAYOR-COUNCIL ACT	MCA:1
MAYOR-COUNCIL ACT COMPARATIVE TABLE	MCACT:1
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CODE COMPARATIVE TABLES	CCT:1
STATE LAW REFERENCE TABLE	SLT:1
MAYOR-COUNCIL ACT INDEX	MCAi:1
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Indexes

The indexes have been prepared with the greatest of care. Each particular item has been placed under several headings, some of which are couched in lay phraseology, others in legal terminology, and still others in language generally used by local government officials and employees. There are numerous cross references within the indexes themselves which stand as guideposts to direct the user to the particular item in which the user is interested.

Looseleaf Supplements

A special feature of this publication is the looseleaf system of binding and supplemental servicing of the publication. With this system, the publication will be kept up to date. Subsequent amendatory legislation will be properly edited, and the affected page or pages will be reprinted. These new pages will be distributed to holders of copies of the publication, with instructions for the manner of inserting the new pages and deleting the obsolete pages.

Keeping this publication up to date at all times will depend largely upon the holder of the publication. As revised pages are received, it will then become the responsibility of the holder to have the amendments inserted according to the attached instructions. It is strongly recommended by the publisher that all such amendments be inserted immediately upon receipt to avoid misplacing them and, in addition, that all deleted pages be saved and filed for historical reference purposes.

Acknowledgments

This publication was under the direct supervision of Jim Jenkins, Senior Code Attorney, and Beth Tattershall, Editor, of the Municipal Code Corporation, Tallahassee, Florida. Credit is gratefully given to the other members of the publisher's staff for their sincere interest and able assistance throughout the project.

The publisher is most grateful to Mr. Thomas Bentley, III, Acting City Attorney, Ms. Julie Barnard, Assistant City Attorney, and Mr. Sonny Bass, former Assistant City Attorney, for their cooperation and assistance during the progress of the work on this publication. It is hoped that their efforts and those of the publisher have resulted in a Code of Ordinances which will make the active law of the city readily accessible to all citizens and which will be a valuable tool in the day-to-day administration of the city's affairs.

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MAXINE HERRING PARKER
1944 - 2013



In November 2005, Maxine Herring Parker was elected to serve as the Birmingham City Council representative for District 4. During the election, Councilwoman Parker's platform focused on bettering the quality of life for citizens in her District. In August 2013, she was re-elected to a third term, and by a unanimous vote, her colleagues selected her President of the 2013-2017 City Council. Throughout her tenure on the Council, she promoted economic and community development as well as championed environmental issues, which led to passage of a Vehicular/Pedestrian Bridge on F.L. Shuttlesworth Drive and Environmental Protection Agency investigations into hazards plaguing District 4 residents.

Parker retired as a 41-year employee of Talladega College, Alabama's oldest historically Black College; it was founded in 1867. She served as the Executive Assistant for the President and was delighted to have served for 27 years as Secretary to the Talladega College Board of Trustees. Her 41-year tenure at Talladega afforded her the opportunity to serve under the administration of six Presidents and six Board of Trustee Chairpersons.

She was a lifelong member of Oak Street Baptist Church where she actively engaged in all facets of the church. She served as the Clerk-Secretary, was a member of the Flora Herring Mission and Women's Sunday School Bible Class. Her life's goal was epitomized by the words, "If I can help somebody as I pass along, then my living shall not be in vain."

Councilor Maxine Herring Parker transitioned from this life on Tuesday, November 12, 2013.

MIRIAM DENISE WITHERSPOON
1960 - 2009



In November 2005, Miriam Denise Witherspoon was elected to serve as the Birmingham City Council representative for District 7. During the election, Councilwoman Witherspoon's platform focused on the elderly, physically challenged and children.

Ms. Witherspoon, a Mobile native, made history when she became Birmingham's first wheelchair-bound person to win a seat on the Council. Her leadership was immediately evident as she was voted President Pro Tempore by her colleagues.

Injured near the end of her junior year in law school in a car accident while on a school break, her spinal cord was severed in the accident, leaving her paralyzed but not defeated. Witherspoon was an honors graduate who majored in Political Science and History at Alabama A&M University.

She graduated Magna Cum Laude and second in her class from Miles Law School. She passed the bar after the first test and practiced law beginning in 1990. She was named Miss Wheelchair Alabama 1989-1990.

Council President Pro Tempore Witherspoon transitioned from this life on Tuesday, April 21, 2009.

RECOMMENDED BY: THE COMMITTEE OF THE WHOLE
SUBMITTED BY: THE CITY ATTORNEY

ORDINANCE NO. 17-63

AN ORDINANCE ADOPTING AND ENACTING A NEW CODE FOR THE GENERAL CODE OF THE CITY OF BIRMINGHAM, ALABAMA; PROVIDING FOR THE REPEAL OF CERTAIN ORDINANCES NOT INCLUDED THEREIN; PROVIDING A PENALTY FOR THE VIOLATION THEREOF; PROVIDING FOR THE MANNER OF AMENDING SUCH CODE; AND PROVIDING WHEN SUCH CODE AND THIS ORDINANCE SHALL BECOME EFFECTIVE.

BE IT ORDAINED by the Council of the City of Birmingham as follows:

SECTION 1. The Code entitled "The General Code of the City of Birmingham, Alabama," comprised in Volume 1 and consisting of Part 1, titles 1 through 12, each inclusive, as published by Municipal Code Corporation, is hereby adopted. Volume II of "The General Code of the City of Birmingham, Alabama," as published by Municipal Code Corporation and consisting of Part 2, the Mayor Council Act, as updated in the course of the recodification process, and Part 3, consisting of Appendix A containing the Schedule of Business Licenses, as updated in the course of the recodification process; Appendix B containing Ord. No. 97-91 (Stormwater Fees), which shall remain unchanged from its original passage; Appendix C containing the Subdivision Regulations, as updated in the course of the recodification process; Appendix D containing the Zoning Ordinance, as updated in the course of the recodification process, are to be included in the publication of this code.

SECTION 2. All ordinances of a general and permanent nature enacted on or before April 1, 2014, and not included in the Code or recognized and continued in force by reference therein, are repealed. Provided, however, that the following ordinances are specifically saved from repeal: Ordinance No. 63-3; Ordinances 1155-F and 1276-F; Ordinance 94-122; and Ordinance 08-191, as amended.

SECTION 3. The repeal provided for in section 2 hereof shall not be construed to revive any ordinance or part thereof that has been repealed by a subsequent ordinance that is repealed by this ordinance.

SECTION 4. Unless another penalty is expressly provided, every person convicted of a violation of any provision of the Code or any ordinance, rule or regulation adopted or issued in pursuance thereof shall be punished by a fine not exceeding $500.00 or by imprisonment in the city jail, workhouse or house of correction or at hard labor upon the streets or public works for not exceeding six months; provided, however, that in the enforcement of the penalties prescribed in Code of Ala. 1975, § 32-5A-191, as amended, "Driving while under the influence of alcohol or controlled substances, etc.," the fine shall not exceed $5,000.00 and any sentence of imprisonment or hard labor shall not exceed one year and the maximum fine for every person convicted for misdemeanor theft crimes and certain other misdemeanor crimes based on monetary value that are enumerated in Code of Ala. 1975, § 11-45-9(d), as

amended, shall be $1,000.00 any sentence of imprisonment or hard labor for such crime shall not exceed six months. Each act of violation and each day upon which any such violation shall continue or occur shall constitute a separate offense. The penalty provided by this section, unless another penalty is expressly provided, shall apply to the amendment of any Code section, whether or not such penalty is reenacted in the amendatory ordinance. In addition to the penalty prescribed above, the City may pursue other remedies such as abatement of nuisances, injunctive relief and revocation of licenses or permits.

SECTION 5. Additions or amendments to the Code when passed in such form as to indicate the intention of the City to make the same a part of the Code shall be deemed to be incorporated in the Code, so that reference to the Code includes the additions and amendments.

SECTION 6. Ordinances adopted after April 1, 2014 that amend or refer to ordinances that have been codified in the Code shall be construed as if they amend or refer to like provisions of the Code.

SECTION 7. On or prior to the date of this ordinance, a copy of the Code shall be deposited in the Jefferson County Law Library.

SECTION 8. This ordinance shall be come effective when published as required by law.

Adopted by the Council May 30, 2017 and Approved by the Mayor June 6, 2017

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Checklist of Up-to-Date Pages

(This checklist will be updated with the printing of each Supplement)

From our experience in publishing Looseleaf Supplements on a page-for-page substitution basis, it has become evident that through usage and supplementation many pages can be inserted and removed in error.

The following listing is included in this Code as a ready guide for the user to determine whether the Code volume properly reflects the latest printing of each page.

In the first column all page numbers are listed in sequence. The second column reflects the latest printing of the pages as they should appear in an up-to-date volume. The letters "OC" indicate the pages have not been reprinted in the Supplement Service and appear as published for the original Code. When a page has been reprinted or printed in the Supplement Service, this column reflects the identification number or Supplement Number printed on the bottom of the page.

In addition to assisting existing holders of the Code, this list may be used in compiling an up-to-date copy from the original Code and subsequent Supplements.

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MCA:41, MCA:42	OC	CDA:61, CDA:62	OC
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CDA:18.5, CDA:18.6	2	CDA:87, CDA:88	1
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CDD:203, CDD:204	OC	CCT:7, CCT:8	OC Rev.
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CDi:37, CDi:38	3	CDi:99, CDi:100	3
CDi:38.1	3	CDi:100.1	3
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CDi:41, CDi:42	3	CDi:103, CDi:104	OC
CDi:43, CDi:44	3	CDi:105, CDi:106	OC
CDi:45, CDi:46	3	CDi:107, CDi:108	OC
CDi:46.1	3	CDi:109, CDi:110	1
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SUPPLEMENT HISTORY TABLE

The table below allows users of this Code to quickly and accurately determine what ordinances have been considered for codification in each supplement. Ordinances that are of a general and permanent nature are codified in the Code and are considered "Included." Ordinances that are not of a general and permanent nature are not codified in the Code and are considered "Omitted."

In addition, by adding to this table with each supplement, users of this Municipal Code will be able to gain a more complete picture of the Code's historical evolution.

Ord. No.	Adoption Date	Included/ Omitted	Supp. No.
14-111	8- 8-2014	Included	1
14-112	8- 8-2014	Included	1
14-113	8- 8-2014	Included	1
14-122	9-10-2014	Included	1
14-123	9-10-2014	Included	1
14-124	9-10-2014	Included	1
14-125	9-10-2014	Included	1
14-126	9-12-2014	Included	1
14-127	9-12-2014	Omitted	1
14-128	9-12-2014	Included	1
14-185	11-26-2014	Included	1
14-198	12-16-2014	Included	1
15-39	3-31-2015	Included	1
15-41	4-14-2015	Included	1
15-42	4-14-2015	Included	1
15-50	4-28-2015	Included	1
15-51	4-28-2015	Included	1
15-52	4-28-2015	Included	1
15-53	4-28-2015	Included	1
15-54	4-28-2015	Included	1
15-55	4-28-2015	Included	1
15-56	4-28-2015	Included	1
15-57	4-28-2015	Included	1
15-58	4-28-2015	Included	1
15-59	4-28-2015	Included	1
15-60	4-28-2015	Included	1
15-61	4-28-2015	Included	1
15-62	4-28-2015	Included	1
15-72	5-19-2015	Included	1
15-75	6- 2-2015	Included	1
15-81	6-10-2015	Omitted	1
15-86	6-24-2015	Included	1
15-94	8- 4-2015	Included	1

Ord. No.	Adoption Date	Included/ Omitted	Supp. No.
15-95	7-23-2015	Included	1
15-121	8-25-2015	Included	1
17-63	6- 6-2017	Included	1
15-35	3-18-2015	Included	2
15-122	8-25-2015	Included	2
15-145	10-13-2015	Included	2
15-164	11-30-2015	Included	2
15-175	12- 8-2015	Included	2
15-181	12-23-2015	Included	2
15-182	12-23-2015	Included	2
15-183	12-23-2015	Included	2
16-2	1-20-2016	Included	2
16-3	1-20-2016	Included	2
16-4	1-20-2016	Included	2
16-19	2-16-2016	Included	2
16-20	2-16-2016	Included	2
16-36	3-15-2016	Included	2
16-88	5-27-2016	Included	2
16-89	5-27-2016	Included	2
16-90	5-27-2016	Included	2
16-118	6-29-2016	Included	2
16-183	10-10-2016	Included	2
16-184	10-10-2016	Included	2
16-185	10-10-2016	Included	2
16-199	11- 2-2016	Included	2
16-218	11-22-2016	Included	2
16-229	12-22-2016	Included	2
16-230	12-22-2016	Included	2
16-237	1- 3-2017	Included	2
17-15	2-20-2017	Included	2
17-23	3- 7-2017	Included	2
17-24	3- 7-2017	Included	2
17-38	4- 6-2017	Included	2
17-48	5- 3-2017	Included	2
17-50	5- 3-2017	Included	2
17-68	6-13-2017	Included	2
08-191	9- 2-2008	Included	3
17-95	7-25-2017	Included	3
17-100	8-16-2017	Included	3
17-121	9-29-2017	Included	3
17-122	9-29-2017	Included	3
18-3	1- 4-2018	Included	3
18-13	1-29-2018	Included	3
18-26	2- 9-2018	Included	3
18-37	3-13-2018	Included	3
18-51	4-10-2018	Included	3

Ord. No.	Adoption Date	Included/ Omitted	Supp. No.
18-52	4-13-2018	Included	3
18-70	6- 1-2018	Included	3
18-97	6-22-2018	Included	3
18-125	8- 3-2018	Included	3
18-132	8-20-2018	Included	3
18-138	9- 7-2018	Included	3
18-142	9-14-2018	Included	3
18-188	12- 7-2018	Included	3
19-1	1-23-2019	Included	3
19-9	1-28-2019	Included	3
19-31	3-29-2019	Included	3
19-32	3-29-2019	Included	3
19-87	7-10-2019	Included	3
19-88	7-10-2019	Included	3
19-89	7-10-2019	Included	3
19-90	7-10-2019	Included	3
19-91	7-10-2019	Included	3
19-92	7-10-2019	Included	3
19-93	7-10-2019	Included	3
19-94	7-10-2019	Included	3
19-96	7-24-2019	Included	3
19-140	9-25-2019	Included	3
19-159	10-23-2019	Included	3
19-199	12-26-2019	Included	3
20-24	2-12-2020	Included	3
20-30	2-28-2020	Included	3
20-31	2-28-2020	Included	3
20-68	5- 1-2020	Included	3
20-84	6- 4-2020	Included	3
20-107	6-29-2020	Included	3

PART 1

THE CODE OF GENERAL ORDINANCES

Title 1

GENERAL PROVISIONS

Chapter 1. Use, Construction and Penalties

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CHAPTER 1. USE, CONSTRUCTION AND PENALTIES

Sec. 1-1-1. How Code designated and cited.

The ordinances embraced in this and the following titles and sections shall together constitute and be designated "The General Code of the City of Birmingham, Alabama," and may be so cited. This Code may also be cited as the "General City Code" or, for the purpose of prosecutions in the municipal court, as "GCC."
(Code 1980, § 1-1-1)

Sec. 1-1-2. Definitions and rules of construction.

In the construction of this Code and of all other city ordinances, the following definitions and rules shall be observed, unless the context clearly requires otherwise:

Acts. References to acts are to acts of the Alabama Legislature, as published in the Acts of Alabama. Acts passed after 1978 are referenced to the act number, which number includes the last two digits of the year of enactment. All other acts are referenced to act number and year of enactment. All references to acts are followed by a parenthetical reference to the page number in the Acts of Alabama upon which the act begins. The page number reference is for information purposes only. All references to acts are to such acts as amended.

Alley. The term "alley" means any roadway or public way dedicated to public use and designed for use as a means of gaining access to and securing egress from the rear of premises, and 20 feet or less in width, unless otherwise officially designated as a street.

Authorized emergency vehicle. The term "authorized emergency vehicle" means any vehicle of the fire and police departments of the city.

Avenue. The term "avenue" means a street designated by ordinance as an avenue.

Board of adjustment (zoning). The term "zoning board of adjustment" includes the board of adjustment of the city and any officer or agent of that board authorized to act for and on behalf of the board with respect to the enforcement and administration of any ordinance.

Board of health. The term "board of health" means the county board of health.

Bond. When a bond is required, an undertaking in writing shall be required.

Business district. The term "business district" means the territory contiguous to a street when 50 percent or more of the frontage thereon for a distance of 300 feet or more is occupied by buildings in use for business purposes.

City. The term "city" means the City of Birmingham in the Counties of Jefferson and Shelby in the State of Alabama.

Computation of time. The time within which an act is to be done shall be computed by excluding the first day and including the last day. However, if the last day is Sunday or a legal holiday, as defined in Code of Ala. 1975, § 1-1-4, or a day on which the office in which the act must be done is closed as permitted by any law of this state, the last day shall also be excluded, and the next succeeding secular or working day shall be counted as the last day within which the act may be done.

Conjunctions / disjunctions. The terms "conjunctions" and "disjunctions means a provision involving two or more items, conditions, provisions or events, which items, conditions, provisions or events are connected by the conjunction "and," "or" or "either . . . or" the conjunction shall be interpreted as follows:

(1) "And" indicates that all the connected terms, conditions, provisions or events apply.

(2) "Or" indicates that the connected terms, conditions, provisions or events apply singly or in any combination.

(3) "Either . . . or" indicates that the connected terms, conditions, provisions or events apply singly but not in combination.

Council, city council. The term "council" or "city council" means the Council of the City of Birmingham.

County. The term "the county" means Jefferson County or Shelby County, Alabama.

County personnel board. The term "county personnel board" means the Personnel Board of Jefferson County.

Curb. The term "curb" means the lateral boundary of the roadway of a street marked by curbstone or a substitute of concrete or other material.

Day. The term "day" means a calendar day unless otherwise specified in this Code.

Damages. The term "damages" includes all those elements of recovery as are allowed under the laws of the state in actions for torts.

Delegation of authority. Wherever a provision appears requiring the head of a department or some other city officer to do some act or perform some duty, it shall be construed to authorize the head of the department or other officer to designate, delegate, and authorize subordinates to perform the required act or perform the duty, unless the terms of the provision or section specify otherwise. Therefore, the definition of the term "city officer" or "employee" shall be construed to include the duly authorized representative of the officer or employee.

Directions.

(1) The term "generally north and south direction" means a direction deviating to either the right or left from a true north and south line 45 degrees or less.

(2) The term "generally east and west direction" means a direction deviating to either the right or left from a true east and west line less than 45 degrees.

Garbage. The term "garbage" means waste matter of animal or vegetable origin or nature.

Gender. Words used in the masculine gender shall include the feminine and neuter.

Health department, county health department or *board of health.* The term "health department," "county health department" or "board of health" includes the Jefferson County Health Department or board of health and any officer or agent of the department or board authorized to act for and on behalf of the department or board with respect to the enforcement and administration of this Code and other city ordinances. The term "health department," "county health department" or "board of health" shall also include the Shelby County Health Department and its officers or agents authorized to act for and on behalf of the department or board of health with respect to the enforcement and administration of this Code and other city ordinances.

Health officer. The term "health officer" means the county health officer or authorized assistants.

In the city or *within the city.* The term "in the city" or "within the city" means within the corporate limits of the city and the police jurisdiction thereof, except as otherwise provided.

Joint authority. All words giving joint authority to three or more persons or officers give such authority to a majority of such persons or officers, unless it is otherwise declared.

Loop area, loop or *downtown section.* The term "loop area," "loop" or "downtown section" means the portion of the city bounded on the north by the north line of 8th Avenue, North, on the east by the east line of 24th Street, on the south by the south line of Morris Avenue, and on the west by the west line of 17th Street.

May. The term "may" is permissive.

Mayor. The term "mayor" means the mayor of the City of Birmingham.

Month. The term "month" shall be a calendar month.

Number. Words used in the singular include the plural and the plural includes the singular number.

Oath. The term "oath" shall be construed to include an affirmation in all cases in which, by law, an affirmation may be substituted for an oath, and in such cases the terms "swear" and "sworn" shall be equivalent to the terms "affirm" and "affirmed."

Officer, department or agency. Designation of an officer, department, or agency, without qualifying words, shall refer to such officer or agency of the city.

Owner. The term "owner," applied to a building or land, includes any part owner, joint owner, tenant in common, joint tenant, or tenant by the entirety, of the whole or of a part of such building or land.

Person. The term "person" includes a corporation, firm, partnership, association, organization or any other group acting as a unit, as well as a human being.

Personal property. The term "personal property" includes every species of property except real property, as herein defined.

Police jurisdiction. The term "police jurisdiction" means the territory outside but within three miles of the corporate limits of the city, but this term does not include territory within the corporate limits of any other incorporated municipality.

Preceding, following. The terms "preceding" and "following" mean next before and next after, respectively.

Property. The term "property" includes real and personal property.

Real property. The term "real property" includes lands, tenements and hereditaments.

Residence district. The term "real property" means the territory contiguous to a street not comprising a business district when the frontage on that street for a distance of 300 feet or more is mainly occupied by dwellings or by dwellings and buildings in use for residential purposes.

Roadway. The term "roadway" means the portion of a street between the regularly established curblines, or that part of a street devoted to vehicular traffic.

Secular day. The term "secular day" means a day other than Sunday or Christmas Day.

Shall. The term "shall" is mandatory.

Sidewalk. The term "sidewalk" means that portion of a street between the curbline and adjacent property line.

Signature or *subscription.* The term "signature" or "subscription" includes a mark when the person cannot write.

State. The term "state" means the State of Alabama.

Street. The term "street" means and includes any public way, road, highway, street, avenue, boulevard, bridge, viaduct, trestle and the approaches to any bridge, viaduct or trestle within the city or its police jurisdiction but shall not include an alley, as defined in this section.

Time. Words used in the past or present tense include the future as well as past and present.

Traffic officer. The term "traffic officer" means any officer designated by the mayor or the chief of police to direct or control traffic upon the streets of the city, or any member of the police department.

Writing. The term "writing" or "written" shall include typewriting and printing.

Year. The term "year" means a calendar year.
(Code 1980, § 1-1-2)

State law reference—Similar provisions, Code of Ala. 1975, § 1-1-4.

Sec. 1-1-3. Applicability of Code.

Every section contained in this Code, whether expressed to apply "within the city" or "in the city," or not so expressed, shall apply and have full force and effect within the corporate limits of the city and within the police jurisdiction thereof and within the territorial limits of any property or right-of-way owned by the city, wheresoever situated; provided, that any such section shall not apply within that police jurisdiction if the violation thereof is expressly exempted from the application of section 1-1-6, or if the same cannot legally be made to apply in that police jurisdiction, or if the same cannot physically apply in that police jurisdiction, or if the same, otherwise than by use of such terms as "in the city" or "within the city," contains clear inherent evidence of intent that it shall not apply in such police jurisdiction.
(Code 1964, § 1-3; Code 1980, § 1-1-3)

Sec. 1-1-4. Effect of repeal of ordinances; revival.

(a) Neither the adoption of this Code nor the repeal hereby of any ordinance of this city shall in any manner affect the prosecution for viola-

tion of ordinances, which violations were committed prior to the date of adoption of this Code, nor be construed as a waiver of any license or penalty at the effective date due and unpaid under such ordinance, nor be construed as affecting any of the provisions of such ordinance relating to the collection of any such license or penalty or the penal provisions applicable to any violation thereof, nor to affect the validity of any bond or cash deposit in lieu thereof, required to be posted, filed or deposited pursuant to any ordinance, and all rights and obligations thereof appertaining shall continue in full force and effect.

(b) Whenever any ordinance repealing a former ordinance, clause or provision is repealed, such repeal shall not be construed as reviving such former ordinance, clause or provision, unless expressly provided therein.
(Code 1964, § 1-4; Code 1980, § 1-1-4)

Sec. 1-1-5. Severability of parts of Code.

It is hereby declared to be the intention of the council that the sections, paragraphs, sentences, clauses and phrases of this Code are severable, and if any phrase, clause, sentence, paragraph or section of this Code shall be declared unconstitutional or otherwise invalid by the valid judgment or decree of any court of competent jurisdiction, the unconstitutionality or invalidity shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections of this Code, since the same would have been enacted by the council without the incorporation in this Code of any such unconstitutional or invalid phrase, clause, sentence, paragraph or section.
(Code 1964, § 1-5; Code 1980, § 1-1-5)

Sec. 1-1-6. General penalty.

(a) Any person who shall fail or neglect to perform any duty imposed by this Code or other city ordinance or any rule, regulation or order promulgated by any officer or agency thereof by authority duly vested in said officer or agency by law or ordinance, or who shall fail or neglect to do or perform any act or series of acts required to be done or performed by this Code or any ordinance, rule, regulation or order, or who shall fail or neglect to perform any duty, act or series of acts, the neglect or failure of performance of which is declared unlawful or made punishable by this Code or any ordinance, rule, regulation or order, or who shall do or perform any act or series of acts which is prohibited or made unlawful by this Code or any other ordinance, rule, regulation or order now existing or hereafter enacted or who shall violate any provision of this Code or any such ordinance, rule, regulation or order, shall, upon conviction therefor, be punished by a fine not exceeding $500.00 or by imprisonment in the city jail, workhouse or house of correction or at hard labor upon the streets or public works for not exceeding six months, or by both such fine and imprisonment, except as otherwise provided by this section or state law.

(b) In the enforcement of the penalties prescribed in Code of Ala. 1975, § 32-5A-191, as amended, "Driving while under the influence of alcohol or controlled substances, etc.," the fine shall not exceed $5,000.00 and any sentence of imprisonment or hard labor shall not exceed one year as provided by Code of Ala. 1975, § 11-45-9, as amended.

(c) As provided by Code of Ala. 1975, § 11-45-9(d), as amended, the maximum fine for every person convicted for misdemeanor theft crimes and certain other misdemeanor crimes based on monetary value that are enumerated in that subsection, shall be $1,000.00 and any sentence of imprisonment or hard labor for such crime shall not exceed six months.

(d) In the event the fine and costs are not presently paid, the defendant may be required to work out the fine and costs under the direction of the city authorities, allowing $25.00 for each day's service. Provided, further, that the court may, in its discretion, remit fines, costs and fees, and impose any other remedial punishment as authorized by law.

(e) The penalties provided in this section shall apply in all cases other than violations for which a different penalty is specifically prescribed by this Code or by state law provided that the provisions of this section shall not apply to violations of any official duty imposed upon

officers or employees of the city as such, unless the provision imposing the duty also expressly makes the violation thereof unlawful or punishable; and provided, further, that in any case where a fine is

imposed against a defendant and the defendant represents to the court that because of indigency such defendant is unable to make immediate payment of the fine, the court may make appropriate inquiry as to the representation and if the court determines that the defendant is financially unable to make immediate payment of the fine the court may suspend the immediate payment thereof and order the defendant to pay the fine in installments of the amounts and at the times as the court determines is reasonable under the circumstances and the suspension of payment of the fine shall be conditioned upon the defendant making the installment payments, or the court may continue the case for payment as is otherwise authorized by law.

(f) If defendant fails without a reasonable excuse to make the installment payments or fails to report in person to the court as ordered, then the court may revoke the suspension as authorized by law or make any other order or disposition as the court determines to be proper under the circumstances.

(Code 1964, § 1-6; Code 1980, § 1-1-6; Ord. No. 77-239, § 1, 12-2-1977; Ord. No. 83-145, 8-16-1983; Ord. No. 08-107, § 1, 5-20-2008)

State law references—Penalty for violation of city ordinances, Code of Ala. 1975, § 11-45-9; powers of courts as to trial and disposition of cases generally, Code of Ala. 1975, § 12-14-10; fines for certain additional misdemeanors, Code of Ala. 1975, § 13A-5-12.1.

Sec. 1-1-7. Repeated or continuing violations.

In all cases where penalties or forfeitures are provided for any act or omission, they shall apply to each such act or omission and when that act or omission is of a continuing character, they shall apply to each day's continuance thereof.

(Code 1964, § 1-7; Code 1980, § 1-1-7)

Sec. 1-1-8. Election between provisions for purpose of prosecution.

In all cases where any person is charged with an act or omission which is prohibited or made punishable by different sections of this Code or by different ordinances, the court may elect on which of these ordinances or sections to proceed and all further proceedings in the case shall be in reference to and controlled by that election.

(Code 1964, § 1-8; Code 1980, § 1-1-8)

Sec. 1-1-9. Distribution of copies of Code.

Each city official shall be entitled to a copy of this Code without charge, but the city official shall carefully preserve the same and deliver it upon the official's retirement from office to the official's successor or to the city clerk and upon failure to do so, shall be liable for the value thereof at the regular price.

(Code 1964, § 1-9; Code 1980, § 1-1-9)

Sec. 1-1-10. Seal.

The lawful seal of the city shall be a circle enclosing a circular cut representing Birmingham's downtown sky line, with a representation of Vulcan impressed thereon and with lines in the bottom half of the cut radiating from the center to the circumference of the cut, and within the circle between the circumference thereof and the circumference of the cut the words "Official Seal" and "Birmingham, Alabama."

(Code 1964, § 1-10; Code 1980, § 1-1-10)

State law reference—Similar provision, Code of Ala. 1975, § 11-40-2.

Sec. 1-1-11. Official flower of city.

The "Crape Myrtle" is hereby designated as the official flower of the city.

(Code 1964, § 1-11; Code 1980, § 1-1-11)

Sec. 1-1-12. Catchlines of sections, history notes, editor's notes, etc., references to Code.

(a) The descriptive headings, captions, or catchlines of the several sections of this Code printed in boldface type are intended as mere catchwords to indicate the contents of the section and shall not be deemed or taken to be titles of such sections, or as any part of the section, nor, unless expressly so provided, shall they be so deemed when any of such sections, including the catchlines, are amended or reenacted.

(b) The history or source notes appearing in parentheses after sections in this Code are not intended to have any legal effect but are merely intended to indicate the source of matter contained in the section. Cross references, state law references and editor's notes which appear after sections or subsections of this Code or which otherwise appear in footnote form are provided for the convenience of the user of this Code and have no legal effect.

(c) All references to chapters, articles or sections are to chapters, articles or sections of this Code unless otherwise specified.
(Code 1980, § 1-1-12; Ord. No. 78-5, 1-11-1978)

Sec. 1-1-13. United States flag—Requirement to display.

It shall be the duty of the mayor for each building owned, maintained and operated by the city under the mayor's administrative control and open to the public to cause to be prominently displayed in a proper manner outside such building an official flag of the United States of America of appropriate size either on the exterior thereof or on a separate flagpole erected in close proximity thereto; provided however, that the mayor may exclude from this requirement any building on which, in the mayor's judgment, it would be impracticable and unwarranted to display a flag, or at which sufficient personnel are not available. Nothing herein shall be construed so as to prevent the display of said flags at any other places where it is presently displayed.
(Code 1980, § 1-1-13; Ord. No. 79-106, § 1, 7-17-1979)

Sec. 1-1-14. Same—Customs, manners and rules of display.

The flag shall be properly displayed at all times and places in conformance with the provisions of 36 USC 174—178.
(Code 1980, § 1-1-15; Ord. No. 79-106, § 3, 7-17-1979)

Sec. 1-1-15. Reserved.

Sec. 1-1-16. Supplementation of Code.

(a) Supplements to this Code shall be prepared and printed whenever authorized or directed by the city attorney. A supplement to the Code shall include all substantive permanent and general parts of ordinances passed by the city council or adopted by initiative and referendum during the period covered by the supplement and all changes made thereby in the Code. The pages of a supplement shall be so numbered that they will fit properly into the Code and will, where necessary, replace pages which have become obsolete or partially obsolete; and the new pages shall be so prepared that, when they have been inserted, the Code will be current through the date of the adoption of the latest ordinance included in the supplement.

(b) In preparing a supplement to this Code, all portions of the Code which have been repealed shall be excluded from the Code by the omission thereof from reprinted pages.

(c) When preparing a supplement to this Code, the codifier (meaning the person, agency or organization authorized to prepare the supplement) may make formal, nonsubstantive changes in ordinances and parts of ordinances included in the supplement, insofar as it is necessary to do so to embody them into a unified Code. For example, the codifier may:

(1) Organize the ordinance material into appropriate subdivisions;

(2) Provide appropriate catchlines, headings and titles for sections and other subdivisions of the Code printed in the supplement, and make changes in such catchlines, headings and titles;

(3) Assign appropriate numbers to sections and other subdivisions to be inserted in the Code and, where necessary to accommodate new material, change existing section or other subdivision numbers;

(4) Change the words "this ordinance" or words of the same meaning to "this chapter," "this article," "this division," etc., as the case may be, or to "sections ____ to ____" (inserting section numbers to indicate the

sections of the Code which embody the substantive sections of the ordinance incorporated into the Code); and

(5) Make other nonsubstantive changes necessary to preserve the original meaning of ordinance sections inserted into the Code; but in no case shall the codifier make any change in the meaning or effect of ordinance material included in the supplement or already embodied in this Code.

(d) Upon being approved by the city council, any such supplement shall become a part of this Code, which shall thereupon be considered modified as indicated in the supplement.
(Code 1980, § 1-1-16)

Sec. 1-1-17. Rates, charges, and fees established.

(a) Unless otherwise provided for, all rates, charges, or fees necessary for the administration and enforcement of the provisions of this Code shall be as currently established or as hereafter adopted by resolution or ordinance of the city council, from time to time. Any rates, charges, or fees established by the city pursuant to the regulations or requirements established herein may be changed from time to time by the city council, and such changes shall both be considered an amendment to this Code.

(b) Whenever any provision of this Code provides that a rate, charge or fee shall be established by the city council, from time to time, and the amount of such rate, charge or fee is not expressed in this Code in any dollar amount, then the amount of such rate, charge, or fee shall be the most recent and latest amount established, set or fixed by the city council by ordinance, resolution or motion.

Sec. 1-1-18. Provisions considered as continuation of existing ordinances.

The provisions appearing in this and the following titles, chapters and sections, so far as they are the same as those of ordinances or resolutions existing at the time of the adoption of this Code, shall be considered as a continuation thereof and not as new enactments.

Sec. 1-1-19. Certain ordinances not affected by Code.

(a) Nothing in this Code or the ordinance adopting this Code shall be construed to repeal or otherwise affect the validity of any of the following:

(1) Any offense or act committed or done or any penalty or forfeiture incurred or any contract or right established or accruing before the effective date of this Code;

(2) Any ordinance or resolution promising or guaranteeing the payment of money for the city or authorizing the issuance of any bonds of the city or any evidence of the city's indebtedness;

(3) Any contract or obligation assumed by the city;

(4) Any ordinance or resolution fixing the salary of any city officer or employee, unless superseded;

(5) Any ordinance or resolution establishing and prescribing employment and personnel policies and procedures;

(6) Any right of franchise granted by the city to any person, firm, or corporation;

(7) Any ordinance or resolution dedicating, naming, establishing, locating, relocating, closing, opening, widening, paving, widening, vacating, etc., any street or public way in the city;

(8) Any ordinance or resolution establishing and prescribing the street grades of any street in the city;

(9) Any appropriation ordinance;

(10) Any ordinance or resolution which, by its own terms, is effective for a stated or limited term;

(11) Any ordinance or resolution providing for local improvements and assessing taxes therefor;

(12) Any zoning ordinance or amendments thereto, and any ordinance establishing a board of zoning appeals or planning commission, including joint commissions;

(13) Any ordinance or resolution dedicating or accepting any subdivision plat or providing for subdivision regulations;

(14) Any ordinance or resolution describing or altering the boundaries of the city or annexing property to the city;

(15) The administrative ordinances or resolutions of the city not in conflict or inconsistent with the provisions of this Code;

(16) Any ordinance levying or imposing taxes not included in this Code;

(17) Any ordinance or regulation prescribing traffic regulations for specific locations concerning through streets, parking limitations, parking prohibitions, one-way traffic, limitations on loads of vehicles or loading zones, not in conflict or inconsistent with this Code;

(18) Any ordinance or resolution of agreement with another political subdivision; and

(19) Any other ordinance or resolution, or part thereof, which is not of a general and permanent nature; or which is referred to elsewhere in this Code as continuing in effect.

(b) Nor shall the repeal of any such ordinance or resolution be construed to revive any ordinance, resolution or part thereof that has been repealed or superseded by a subsequent ordinance or resolution which is repealed or superseded by this chapter. All such ordinances are hereby recognized as continuing in full force and effect to the same extent as if set out at length in this Code.

Title 2

GENERAL GOVERNMENT*

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Sec. 2-2-41. Effective date; advance publication at expense of grantee.
Sec. 2-2-42. Franchise to be accepted in writing; prepayment of cost of publication.

*__State law references__—Municipalities generally, Code of Ala. 1975, § 11-40-1 et seq.; establishment of city form of government by Mayor-Council Act of 1955, Acts 1955, No. 452, p. 1004.

Sec. 2-2-43. Amendments.
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Sec. 2-2-53. Membership; term of office.
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CHAPTER 1. MAYOR*

ARTICLE A. GENERAL DUTIES AND RESPONSIBILITIES

Sec. 2-1-1. General executive officer of the city.

The mayor shall be the general executive officer of the city, and shall be charged with the general supervision and direction of the city's affairs.
(Code 1964, § 2-4; Code 1980, § 2-1-1)

Sec. 2-1-2. Salaries fixed by mayor.

The mayor shall fix the salaries of any city officers and employees appointed by him or her in such manner and amounts as shall be in keeping with the state laws; subject, however, to the provisions of any civil service or merit law applicable to the city.
(Code 1964, § 2-5; Code 1980, § 2-1-2)

Sec. 2-1-3. Signing instruments.

The mayor shall sign, upon behalf of the city, all proclamations, deeds, notes, leases, contracts and bonds authorized by ordinance or resolution, except in cases otherwise provided for by statute, ordinance or resolution.
(Code 1964, § 2-6; Code 1980, § 2-1-3)

Sec. 2-1-4. Revocation, etc., of leases, etc., for use of land of city.

Whenever the city may have the right to revoke, cancel, annul or terminate any lease, permit or license executed by or upon behalf of the city for use of lands owned by the city, the mayor shall have the power and authority to revoke, cancel, annul or terminate the same in the name and upon behalf of the city and, in connection therewith, to give all notices required or deemed desirable in relation thereto.
(Code 1964, § 2-7; Code 1980, § 2-1-4)

*__State law references__—Powers and duties of mayor generally, Code of Ala. 1975, § 11-43-80 et seq.; mayor's duties and responsibilities, Acts 1955, No. 452, art. IV, p. 1004.

Sec. 2-1-5. Capital improvement budget.

The mayor, on or before April 20 of each year, shall submit to the city council a capital improvement program covering all recommended capital improvement projects for the ensuing year and for the four fiscal years thereafter, together with his or her recommendations as to the means of financing the improvements proposed for the ensuing fiscal year, which capital improvement program shall be prepared by the office of the mayor following consultations with the various department heads of the city and the city's boards, agencies and commissions.
(Code 1964, § 2-7.3; Code 1980, § 2-1-5)

Secs. 2-1-6—2-1-10. Reserved.

ARTICLE B. CHIEF ADMINISTRATIVE ASSISTANT TO THE MAYOR

Sec. 2-1-11. Office created.

There is hereby created and established an office of the city to be known as chief administrative assistant to the mayor.
(Code 1964, § 2-7.1; Code 1980, § 2-1-11)

__Editor's note__—Section 1 of Act No. 502, 1973, authorized the mayor to appoint a chief administrative assistant to the mayor. The act provided the chief administrative assistant position would not be subject to the provisions of any merit system and would have a maximum annual salary of $21,500.00. Section 1 of Act No. 484, 1982, increased the maximum salary to $39,500.00 annually, and provided that such employee should not be subject to any merit system while serving on the mayor's staff but be a member of any pension system applicable to merit system employees if application be made within 30 days of appointment.

Sec. 2-1-12. Duties generally.

The duties of the chief administrative assistant to the mayor shall be to:

(1) Perform such duties relating to the office of mayor as the mayor may from time to time delegate to him or her;

(2) Keep continuously abreast of all developments in the city governments, consolidate and interpret for the mayor such monthly and annual reports as are filed with or brought to the attention of the mayor;

(3) Make sure that policy and administrative decisions are communicated to the affected departments of city government;

(4) Keep informed of all departmental proposals and testimony before the city council and of the city council's disposition of matters relating to administration and policy;

(5) Analyze from time to time administrative procedures and make recommendations to the mayor for change where efficiency and effectiveness can be improved;

(6) Review personnel action requests prior to submission of same to the mayor; and

(7) Immediately supervise the classified personnel of the mayor's office; subject, however, to the direction of the mayor.

(Code 1964, § 2-7.2; Code 1980, § 2-1-12)

CHAPTER 2. COUNCIL*

ARTICLE A. MEETINGS, RULES, PROCEDURES AND ENACTMENT OF LEGISLATION

Sec. 2-2-1. Regular meetings.

The city council shall hold regular public meetings in the city council chamber on the third floor of the city hall on Tuesday of each calendar week, commencing at 9:30 a.m. All meetings of the city council shall be held in such council chamber except when otherwise ordered or adjourned; provided that nothing in this section shall preclude conferences between the councilmembers outside the city council chamber. If such meetings fall on a legal holiday, the meeting shall be adjourned until and held on the following day at 9:30 a.m.

(Code 1964, § 2-8; Code 1980, § 2-2-1)

Sec. 2-2-2. Special or called meetings.

The president of the city council shall call special meetings of the city council whenever, in his or her opinion, the public business may require it, or on the written request of the mayor or any three councilmembers. Notice of the call of such special meetings shall be given in writing by the city clerk to the mayor, the city attorney and to each councilmember, not less than 24 hours before such special meeting shall commence or not less than 48 hours if the notice has been properly addressed and placed in the United States mail with correct postage thereon, before such meeting shall commence. Such notice shall be spread on the minutes of the meeting, unless there is entered a waiver of notice signed by all councilmembers. A special or called meeting may be held at any time without prior notice thereof, provided seven councilmembers assent thereto and a quorum is present at the holding of such meeting, and the city clerk shall have attempted to notify any absent councilmember at the office telephone number for such councilmember on file in the office of the city clerk.

(Code 1964, § 2-9; Code 1980, § 2-2-2)

State law reference—Alabama Open Meetings Act, Code of Ala. 1975, § 36-25A-1 et seq.

Sec. 2-2-3. Agenda.

(a) All reports, communications, ordinances, resolutions, contract documents or other matters to be submitted to the city council shall be delivered to the city clerk by 5:00 p.m. Wednesday. Any such matter which is not delivered to the city clerk by such time shall not be voted on by council:

(1) Except by unanimous consent of the city council; or

(2) Unless approval has been obtained from the city council president for preparation of an addendum containing such matter at least 24 hours prior to the convening of the regularly scheduled council meeting.

(b) The city clerk shall immediately prepare a list of such matters according to the order of business and furnish each member of the city council, the mayor and the city attorney with a copy of such lists, together with copies of matters to be presented to the extent that such copies are

*State law references—Powers and duties of city council generally, Code of Ala. 1975, § 11-43-40 et seq.; council's duties and responsibilities, Acts 1955, No. 452, art. III, p. 1004

available, prior to the regular, special or called council meeting and as far in advance of the meeting as time for preparation will permit.
(Code 1980, § 2-2-3; Ord. No. 90-114, 5-1-1990)

Sec. 2-2-4. Quorum.

The quorum for the transaction of any business by the city council shall be not less than five councilmembers. All measures shall be adopted by the vote of at least four councilmembers. In the absence of a quorum, the presiding officer shall, at the instance of any two members present, compel the attendance of absent members, or shall adjourn the meeting to a stated time and date to permit the establishment of a quorum.
(Code 1964, § 2-11; Code 1980, § 2-2-4)

Sec. 2-2-5. Presiding officer.

(a) The president of the city council or, in his or her absence, the president pro tempore, shall preside over regular, special and called meetings of the city council. In the absence of the president and the president pro tempore at the hour appointed for any meeting, the city clerk or his or her assistant shall call the city council to order, whereupon a temporary chairperson shall be elected by the members of the city council present. Upon the arrival of the president or the president pro tempore, the temporary chairperson shall relinquish the chairperson upon the conclusion of the business immediately before the city council.

(b) The presiding officer shall preserve strict order and decorum at all meetings of the city council. The presiding officer of the city council shall use Robert's Rules of Order, Revised, as a guide for the conduct of all meetings of the city council. The presiding officer shall state every question given before the city council, direct the clerk to call the roll and record the vote on all matters on which the recording of yeas and nays is required by law or with respect to which any councilmember requests such recording, announce the decision of the city council on all subjects and decide on questions of order. However, any councilmember may appeal any ruling to the city council, in which event a majority vote of the city council shall govern and conclusively determine the ruling appealed. The presiding officer shall vote on all questions and, on questions upon which the vote is recorded, his or her name shall be called last.

(c) The city council president shall be authorized to approve or disapprove all travel outside of the city for which reimbursement will be sought for councilmembers and staff. All requests shall be made in writing and shall state the benefits of such travel to the city. Authorization or denial of all requests shall be in writing. Any request which is denied may be appealed to the full council at a regular meeting thereof. This subsection shall not cover funds appropriated by state law to each councilmember for in-city expenses.

(d) The city council president shall, in accord with state law, recommend to the full council for its approval the yearly expense allowances of councilmembers for the purpose of attending to the business of the city within its corporate limits and during the year any adjustments or changes thereto.

(e) The city council president shall be authorized to implement policies, procedures and methods to provide security for council offices and council chambers, provided any councilmember may appeal any such policy, procedure or method to the city council, in which event a majority vote of the city council shall govern and conclusively determine such security policy, procedure or method.
(Code 1964, § 2-12; Code 1980, § 2-2-5; Ord. No. 82-74, 5-18-1982; Ord. No. 95-118, 6-27-1995)

State law reference—Traveling expenses of county and municipal officers and employees generally, Code of Ala. 1975, § 36-7-1 et seq.

Sec. 2-2-6. Roll call.

Before proceeding with the business of the city council, the city clerk or the clerk's assistant shall call the roll of the members, and the names of those present shall be entered in the minutes.
(Code 1964, § 2-13; Code 1980, § 2-2-6)

Sec. 2-2-7. Order of business.

All meetings of the city council shall be open to the public. Promptly at the hour set by law on the day of each regular meeting, all councilmembers,

the city clerk, city attorney, and mayor shall take their regular stations in the city council chambers, and the business of the city council shall be taken up for consideration and disposition in the following order, unless the order is suspended by unanimous consent:

(1) Roll call.

(2) Approval of minutes of the previous meetings.

(3) Communications from the mayor.

(4) Announcement of boards and agencies, expirations and board nominations.

(5) Consideration of the consent agenda.

(6) Consideration of ordinances and resolutions for final passage.

(7) Introduction and first reading of ordinances and resolutions.

(8) Old business and new business.

(9) Requests from the public.

a. All persons addressing specific agenda items that are not designated public hearings shall be granted three minutes to speak following city council presentations; and

b. Persons addressing issues of general concern shall be granted three minutes to speak immediately before old and new business. Speakers must sign the speaker's list by 9:30 a.m. and cannot address the city council at two consecutive council meetings.

(10) Presentations.

(11) Adjournment.

(Code 1980, § 2-2-7; Ord. No. 02-134, § 1, 9-17-2002; Ord. No. 08-138, 6-24-2008)

Sec. 2-2-8. Reading of minutes.

Unless a reading of the minutes of a city council meeting is requested by a member, such minutes may be approved without reading. The clerk shall furnish each councilmember with a written copy of the minutes of each meeting.

(Code 1964, § 2-15; Code 1980, § 2-2-8)

Sec. 2-2-9. Motions.

(a) No motion made at any council meeting shall be debated or put to a vote unless seconded. When seconded, the proposer shall have the floor.

(b) Each resolution or ordinance introduced at a council meeting shall be in writing and read by the clerk at the time it is introduced. Motions shall be reduced to writing when required by the presiding officer of the city council or any member of the city council.

(c) When a question is under debate, the following motions shall be in order and shall have precedence over each other in the order stated:

(1) To adjourn to a day certain.

(2) To adjourn.

(3) To take a recess.

(4) To lay on the table.

(5) To previous question.

(6) To refer to a committee.

(7) To amend.

(8) To postpone to time certain.

(9) To postpone indefinitely.

Motions 1 through 5 shall be decided without debate.

(Code 1964, § 2-16; Code 1980, § 2-2-9)

Sec. 2-2-10. Rules of debate.

(a) The presiding officer of the city council may move, second and debate from the chairperson, subject only to such limitations of debate as are by this article imposed on all councilmembers, and shall not be deprived of any of the rights and privileges of a councilmember by reason of his or her acting as the presiding officer.

(b) Any councilmember desiring to speak shall address the chairperson and upon recommendation by the presiding officer shall speak to the question under debate, avoiding any references of a personal nature and the use of any indecorous language.

(c) A councilmember or official, once recognized, shall not be interrupted only if the councilmember desires to seek a point of order

from the chair. If a point of order is used, the person who is speaking shall cease until the question of order is determined.

(d) No person shall speak more than twice on any matter before the city council except by unanimous consent, and then not until every councilmember desiring to speak has had an opportunity to do so. No person shall speak more than six minutes on any subject, except by permission granted by a majority vote. However, the councilmember moving the adoption shall have the privilege of closing debate and shall not be limited on answering questions pertinent to the matter proposed.
(Code 1964, § 2-17; Code 1980, § 2-2-10; Ord. No. 02-135, § 1, 9-17-2002)

Sec. 2-2-11. Communication with city council.

(a) Interested parties and their authorized representatives may orally address the city council on any subject by signing their legal name to a speaker's request form prior to the start of the city council meeting. Such person shall be allowed to speak for three minutes provided that the total time for all such oral presentations shall not exceed 30 minutes unless further time is granted by the city council. No person shall be allowed to address the city council at two consecutive meetings unless granted by the city council.

(b) Where required by law, or by unanimous consent of the city council, public hearings on matters before the city council shall be held by the city council at which taxpayers or residents of the city or their authorized legal representatives shall be permitted to present oral statements for or against the matter made a subject of the hearing. Requests to appear at such a public hearing may be filed in writing with the city clerk, who shall refer the same to the president of the city council prior to the hearing. Persons making these requests in writing shall, together with witnesses requested to appear by the city council, be heard prior to other persons who appear at the hearing.

(c) Taxpayers or residents of the city or their authorized legal representatives shall be permitted to orally address any committee of the city council on any matter referred to that committee. Requests to appear before a committee of the city council shall be filed with the city clerk, who shall refer the same to the chairperson of the committee. The chairperson of the committee may call a meeting of the committee to hear the matters presented, or shall bring the matter before the city council to set a time and place for a public hearing.

(d) Each person addressing any public hearing shall, when called, step up in front of the rail, give his or her name and address in an audible tone of voice for the records, and, unless further time is granted by the city council, limit his or her address to three minutes. All remarks shall be addressed to the city council or the committee as a body and not to any member thereof. No person other than a councilmember or the person having the floor shall be permitted to enter into any discussion, either directly or through a member of the city council, without the permission of the presiding officer. All questions to councilmembers shall be directed through the presiding officer.
(Code 1964, § 2-18; Code 1980, § 2-2-11; Ord. No. 91-82, 4-23-1991; Ord. No. 94-89, § 1, 5-10-1994)

Sec. 2-2-12. Decorum.

(a) While a council is in session, the members shall preserve order and decorum and a member shall neither, by conversation or otherwise, delay or interrupt the proceedings or the peace of the city council nor disturb any member while speaking or refuse to obey the orders of the city council or its presiding officer, except as otherwise herein provided.

(b) Any person not a member of the city council, making personal, impertinent or slanderous remarks or who shall become boisterous while the city council is in session, shall be forthwith, by the presiding officer, barred from further audience before the city council, unless permission to continue is granted by a majority vote of the city council.

(c) The chief of police or those members of the police department as the chief may designate shall be sergeant-at-arms of the city council meetings. The chief or members of the depart-

ment shall carry out all orders and instructions given by the presiding officer for the purpose of maintaining order and decorum at the city council meeting. Upon instructions of the presiding officer, it shall be the duty of the sergeant-at-arms or any of them present to place any person who violates the order and decorum of the meeting under arrest and cause him or her to be prosecuted upon complaint to be signed by the presiding officer.
(Code 1964, § 2-19; Code 1980, § 2-2-12)

Sec. 2-2-13. Persons authorized to be within the rail.

No person, except city officials and their representatives, shall be permitted within the rail in front of the city council chamber without the express consent of the city council.
(Code 1964, § 2-20; Code 1980, § 2-2-13; Ord. No. 91-83, 4-25-1991)

Sec. 2-2-14. Committees.

(a) All standing and special committees shall be appointed by the president of the city council, subject to approval by the city council. A quorum of two members of any committee except for the committee of the city council as a whole shall be required in order to conduct business. The chairperson of each committee shall exercise complete discretion in allowing public participation in committee meetings.

(b) No action of any committee including the committee of the city council as a whole shall be considered final without a formal vote of the full council at a regular council meeting.

(c) A record shall be made of all committee proceedings which shall be made available to the public and other councilmembers.

(d) All committee meetings shall be scheduled and recorded in the city council meeting record book at least 12 hours prior to each meeting.
(Code 1980, § 2-2-14; Ord. No. 82-75, 5-18-1982)

Sec. 2-2-15. Ordinances, resolutions, motions and contracts.

(a) Any ordinance or resolution shall be prepared by the city attorney upon the written request of the president of the city council. Any ordinance or resolution not prepared by the city attorney shall be submitted to him or her for review as to form and legality prior to the entertainment by the city council of any motion to adopt that ordinance or resolution.

(b) All ordinances, resolutions and contract documents shall, upon introduction, be submitted to the mayor for his or her administrative recommendation with reference thereto.

(c) Ordinances, resolutions and other matters or subjects requiring action by the city council may be submitted by a councilmember, the mayor or city attorney. Any councilmember may assume sponsorship thereof by moving that such ordinances, resolutions, matters or subjects to be adopted; otherwise, they shall not be considered.

(1) At least four copies of any ordinance or resolution to be submitted or introduced at any meeting of the city council shall be filed with the city clerk prior to the meeting. Copies shall be distributed to each councilmember and to the mayor and to department heads and staff as directed by the mayor. Such copies may be provided by the clerk to the councilmembers, mayor and staff in electronic format. After the meeting, the city clerk shall prepare additional copies, if such be necessary, to supply to interested citizens or taxpayers requesting copies at his or her office, at a reasonable charge for such copies.

(2) Unless waived by unanimous consent, every ordinance or resolution requiring council approval shall be submitted to a committee of the council prior to submission of the item to the council. The committee shall report thereon at the next regular meeting of the council after the committee meets, unless further time is granted by majority vote of the council. When the committee to which an ordinance or resolution has been referred shall report such ordinance or resolution to the council at a subsequent meeting, the council may consider the ordinance or resolution as reported by the commit-

tee, including any amendments or substitutions proposed by the committee.

(3) No ordinance shall relate to more than one subject, which shall be expressed clearly and briefly in its title; provided a single ordinance may amend one or more sections of the code which relate to the same general subject matter as contained in a single title, chapter or article thereof.

(4) No ordinance or code section or any portion thereof shall be amended or repealed unless the new ordinance contains the title or designation of the ordinance or code section amended or repealed. When practicable, all ordinances shall be introduced as amendments to existing ordinances or code sections. Prior to adoption, the presiding officer shall refer any ordinance or resolution to the committee of the whole. An ordinance, after reference and report thereon, may be referred at any time prior to its final passage.

(5) In the event the council votes to refer an ordinance or resolution to committee, the motion to refer the matter to committee shall include a reasonable specified time not to exceed 21 calendar days or the next regularly scheduled council meeting following that committee meeting, whichever is less, unless otherwise provided by majority vote of the city council or a time period required by law, at which time the committee shall report the matter to the council for final action. Any matter which has been referred to committee shall remain in committee until the committee reports the matter out of committee at the specified time, provided, however, that council, by the affirmative vote of a majority of the council members voting, but in no event less than four affirmative votes, may discharge the committee from further consideration of the matter referred, in which event the matter shall return to the council for final action at the next regularly scheduled meeting.

(6) In the event the council votes to postpone consideration of an ordinance or resolution, such ordinance or resolution will be included on the agenda for the council meeting on the date to which the matter was postponed without having to be resubmitted in accordance with the procedure for submission set forth in this section.

(7) Unless brought before the council pursuant to a duly made motion for reconsideration, any ordinance or resolution which fails to receive approval of the council at the meeting in it is voted upon, will be required to comply with the procedure for submission of an original ordinance or resolution set forth in this section.

(Code 1980, § 2-2-15; Ord. No. 90-118, 5-1-1990; Ord. No. 16-237, § 1, 1-3-2017)

State law reference—No ordinance shall be adopted by council at the same meeting at which it is introduced, unless unanimous consent is given by those present, Code of Ala. 1975, § 11-45-2.

Sec. 2-2-16. Incontestability of duly adopted legislation.

No ordinance, resolution or action duly adopted or taken by the city council shall be held to be invalid because of failure of the city council to comply with or abide by any one or more of the provisions of this article, if the ordinance, resolution or action would otherwise be valid under the laws of this state but for the provision of this article alleged to have been violated or ignored.
(Code 1964, § 2-23; Code 1980, § 2-2-16)

Sec. 2-2-17. Written reports.

(a) All written reports to the city council shall be filed with the city clerk and entered in the minutes of the meeting at which the report was submitted.

(b) All precouncil proceedings shall be recorded and said record shall be retained and made available to the public for a period of no less than one year.
(Code 1964, § 2-24; Code 1980, § 2-2-17; Ord. No. 82-76, 5-18-1982)

Sec. 2-2-18. Terms of members of governing body of board or agency.

(a) No person appointed by the city council to the governing body of a board or agency shall be allowed to serve more than two consecutive full terms unless the city council, in extreme circumstances, expressly overrules this policy or unless state or federal law requires otherwise.

(b) Councilors are directed to solicit and encourage the submission of resumes of persons qualified and willing to serve on the governing body of a board or agency and to organize and preserve such resumes for council's use when a vacancy occurs.

(c) Councilors are directed to develop an orientation program for prospective board and agency appointees, including written materials on the specific duties of members of active boards and agencies and a general information pamphlet for all.

(d) The limit of two consecutive full terms shall not apply to members of the following listed boards and agencies:

(1) Any medical clinic board of the city.

(2) Any special care facility financing authority.

(3) Public building authority.

(4) Red Mountain Museum.

(5) Ruffner Mountain Nature Center.

(6) Southern Museum of Flight.

(7) Museum of Art.

(8) Sloss Furnace Board.

(9) Public park and recreation board of the city.

(10) Design review committee.

(11) Jefferson County Historical Commission.

(12) Electrical examining board of competency and appeals.

(13) Elevator board of appeals.

(14) Gasfitters examining board of competency and appeals.

(15) Plumbers examining board of competency and appeals.

(Code 1980, § 2-2-18; Ord. No. 90-214a, §§ 1—3, 8-21-1990; Ord. No. 90-273, §§ 1—4, 11-6-1990)

Secs. 2-2-19—2-2-30. Reserved.

ARTICLE B. COUNCIL ADMINISTRATOR

Sec. 2-2-31. Office created.

(a) There is hereby created and established an office of the city council, the staff of which shall be supervised by an officer known as the city council administrator.

(b) The city council administrator shall be appointed by the city council and shall serve at the pleasure of the city council under the authority of Act No. 495, 1973. The city council administrator shall be paid such compensation as the city council shall from time to time establish by resolution under the authority of such section.

(Code 1964, § 2-24.1; Code 1980, § 2-2-31)

Sec. 2-2-32. Duties.

The duties of council administrator shall be under the direction of the city council and the president of the city council. The city council administrator shall, among other things:

(1) Be on call of the city council to attend committee meetings and take or cause to be taken the minutes of these meetings;

(2) Supervise the preparation of minutes and reports of council committees;

(3) Supervise the personnel assigned by the mayor or employed by the city council, under the authority of Act No. 495, 1973, in the performance of their duties;

(4) Evaluate the performance of all council staff members and make recommendations to the city council of any action to be taken with regard to council staff;

(5) Answer correspondence for members of the city council related to their office

when the city council administrator has been authorized to do so by the individual councilmembers;

(6) Gather information and prepare reports for committee chairpersons;

(7) Keep councilmembers apprised of all important matters received by him or her for the city council from the public, the mayor or department heads of the city; and

(8) Perform any other duties related to the work of the city council as the president of the city council may assign.

(Code 1964, § 2-24.2; Code 1980, § 2-2-32; Ord. No. 82-77, 5-18-1982)

Secs. 2-2-33—2-2-40. Reserved.

ARTICLE C. FRANCHISES*

Sec. 2-2-41. Effective date; advance publication at expense of grantee.

No franchise to any railroad, water company, power company, electric company or to any company of like kind or character whose business contemplates a use of the public streets of the city, or is charged with a public interest, shall take effect and be enforced until 30 days after the final enactment of the same by the city council and publication of the same in full once a week for three consecutive weeks in some daily newspaper published in the city, which publication shall be at the expense of the persons applying for the grant.

All these grants shall be subject to the right of the legally qualified voters to object by petition, as provided by law.

(Code 1964, § 21-1; Code 1980, § 2-2-41)

Sec. 2-2-42. Franchise to be accepted in writing; prepayment of cost of publication.

Before any ordinance granting a franchise shall be published, the terms thereof must be accepted in writing by the applicant therefor, which acceptance shall be filed in the office of the city clerk; and the applicant shall, upon filing the acceptance, pay to the director of finance the cost of making the publication.

(Code 1964, § 21-2; Code 1980, § 2-2-42)

Sec. 2-2-43. Amendments.

All material amendments to franchises shall be subject to the same conditions as are required for the original grant.

(Code 1964, § 21-3; Code 1980, § 2-2-43)

Sec. 2-2-44. Conditions of grant.

No franchise will be granted to any person to construct and operate any waterworks, light, heating or power plant in the city except upon the payment by the applicant for the franchise into the city treasury of that sum as the city council may determine in each particular case, but, in lieu of the stated sum, the city council may require the annual payment into the city treasury of a percentage of the gross receipts arising from the operation of that utility. Permission shall not be granted to any railroad company to lay tracks on any of the streets of the city unless such company shall have complied with all the requirements of the city as to maintaining lights at crossings.

(Code 1964, § 21-4; Code 1980, § 2-2-44)

Secs. 2-2-45—2-2-50. Reserved.

ARTICLE D. SINGLE-MEMBER COUNCIL DISTRICTS

Sec. 2-2-51. Election from districts.

It is hereby established and declared that the city shall change the manner in which its nine councilmembers are elected from the city at-large election system provided for in Act No. 452 (1955), as amended (hereinafter referred to as the "Mayor-Council Act"), to the election of its councilmembers from nine single-member

*__State law reference__—Granting of franchises by city, maximum term, Const. of Ala. art. XII, § 228.

districts, as authorized by Code of Ala. § 11-43-63 (1988 supp.) (hereinafter referred to as Code of Ala. 1975, § 11-43-63).
(Code 1980, § 2-2-51; Ord. No. 89-46, § 1, 3-28-1989)

Sec. 2-2-52. Method of election.

The city shall elect all nine councilmembers at its regular general municipal election commencing on the fourth Tuesday in August. Each candidate for district councilmember who receives a majority of the total votes cast in the candidate's council district in the general election shall be elected for that district. In the event that any one candidate should fail to receive such a majority of the total votes from that district in the first election, then for such districts a second (or runoff) election shall be held on the sixth Tuesday thereafter in the same mode and manner and under the same rules and regulations as the first election. In the second election, there shall be two candidates for each council district seat to be filled in such election; and these candidates shall be the ones who received the highest number of votes in said council district, but who were not elected in the first election. The candidate receiving the higher number of votes cast in each district for which a second election is held shall be elected, so that in the first and second elections all nine councilmembers shall be elected. No voter shall vote in either election provided for in this section more than one time, nor shall any voter cast a vote in either election for more than one candidate for council. Only voters residing within a council district shall be entitled to vote for candidates seeking election as their district councilmember.
(Code 1980, § 2-2-52; Ord. No. 89-46, § 2, 3-28-1989)

Editor's note—The regular general municipal election dates appearing in § 2-2-52 were changed by § 1 of Ordinance No. 09-36, adopted February 24, 2009, to the fourth Tuesday in August 2009 and quadrennially thereafter, and, when necessary, any second or runoff election would be held on the sixth Tuesday next thereafter following the regular election. The ordinance further provided that the term of office for the councilmembers so elected would commence on the fourth Tuesday in November following their election. Section 2 of Ordinance No. 09-36 changed the regular election for mayor in 2011 to the fourth Tuesday in August and quadrennially thereafter, and, when necessary, any second or runoff election would be held on the sixth Tuesday next thereafter following the regular election. Section 2 further provided that the term of the mayor so elected would commence on or before the fourth Tuesday of November of the year of such election.

Sec. 2-2-53. Membership; term of office.

The city council shall consist of nine members who shall be known as district councilmembers. The term of office for the nine district councilmembers elected from the single-member districts shall commence on the fourth Tuesday in October following their election. District councilmembers elected under the provisions of this article shall hold office for a term of four years and until their successors are elected and qualified. Subsequent elections of councilmembers shall be held at the same time and in the same manner as provided for in section 2-2-52.
(Code 1980, § 2-2-53; Ord. No. 89-46, § 3, 3-28-1989)

Editor's note—The date for commencing the term of new councilmembers appearing in section 2-2-53 was changed by § 2 of Ala. Act No. 2012-223 to the fourth Tuesday in October.

Sec. 2-2-54. Effect of article on Mayor-Council Act.

No provision of this article shall have the purpose or effect of increasing or decreasing the number of councilmembers established by the Mayor-Council Act. Code of Ala. 1975, § 11-43-63 specifically authorizes the city to divide itself into single-member districts, not to exceed nine in number.
(Code 1980, § 2-2-54; Ord. No. 89-46, § 4, 3-28-1989)

Sec. 2-2-55. Effect of article on office of mayor.

No provision of this article shall have the purpose or effect of changing the time or manner for election to the office of mayor of the city, as specified in the Mayor-Council Act.
(Code 1980, § 2-2-55; Ord. No. 89-46, § 5, 3-28-1989)

Sec. 2-2-56. Applicability of state law.

Elections shall, except as otherwise provided herein, be governed by the general provisions of Alabama law relating to municipal elections for Class 1 cities.
(Code 1980, § 2-2-56; Ord. No. 89-46, § 6, 3-28-1989)

Sec. 2-2-57. Statement of candidacy.

Any person seeking to become a candidate in any election for the office of district councilmember may become such candidate by filing in the Office of the Judge of Probate of Jefferson County, Birmingham Division, a statement of such candidacy and an affidavit taken and certified by such judge of probate or by a notary public that such person is duly qualified to hold the office for which the person desires to be a candidate. Such statement shall be filed at least 45 days before the first day set for the general election and shall be in substantially the following form:

> "State of Alabama, _____ County. I, the undersigned, being first duly sworn, depose and say that I am a citizen of the City of Birmingham, in said State and County, and reside at _____, in said City of Birmingham, that I desire to become a candidate for the office of district councilmember for District Number _____, in said City at the election for said office to be held on the _____ day of August next and that I am duly qualified to hold said office if elected thereto and I hereby request that my name be printed upon the official ballot at said election. Signed _____, on this ____ day of _____, _____, and filed in this office for record on said day. _____, Judge of Probate."

Said statement shall be accompanied by a qualifying fee in the amount of $50.00, which fee shall be paid over by the judge of probate to the general fund of the City of Birmingham. At every such election all ballots to be used by voters shall be printed and prepared by the election commission or body or official charged by law with the duty of conducting elections, and at the expense of the City of Birmingham, and shall contain the names of all candidates, grouped by district, directly underneath the words "For Members of Council." No name shall appear upon said ballot as a candidate for election except the names of such persons who have become candidates according to provisions as above set forth; no ballot shall be used at any such election except the official ballot prepared by the election commission or other body or official charged by law with the duty of conducting elections, except that the names of candidates may be suitably placed on voting machines if such machines are used to conduct such election. No primary election shall be held for the nomination of candidates for the office of councilmember, and candidates shall be nominated and elected only as hereinabove provided.
(Code 1980, § 2-2-57; Ord. No. 89-46, § 7, 3-28-1989; Ord. No. 00-194, § 1(2-2-57), 11-28-2000)

Editor's note—The time for filing as a candidate for councilmember appearing in section 2-2-57 was changed by § 3 of Ala. Act No. 2012-223 to 45 days.

Sec. 2-2-58. Residence within district.

Except as provided in section 2-2-62, each district councilmember shall reside within the boundaries of the city council district for which the person seeks election, and shall reside within the district during such person's term of office on the city council. Further, each candidate for election to a place on the city council shall have resided within the district from which the candidate seeks election for a period 90 days immediately preceding the date of the first election of the general municipal election. In addition, councilmembers shall meet the eligibility requirements set forth in section 3.04 of the Mayor-Council Act, which said requirements are incorporated herein as a part of this article. If a councilmember shall cease to possess any of the eligibility requirements enumerated in this section or section 3.04 of the Mayor-Council Act, the councilmember's office shall immediately become vacant.
(Code 1980, § 2-2-58; Ord. No. 89-46, § 8, 3-28-1989)

Sec. 2-2-59. Council president, president pro tem.

The city council shall elect an officer of the city who shall have the title of president of the

city council and shall preside at meetings of the city council. The city council shall also elect a president pro tem, who shall act as president of the city council during the absence or disability of the president. The term of office of the president and the president pro tem shall be until the councilmembers shall qualify following the next succeeding quadrennial election. If a vacancy shall occur in the office of president of the city council, the city council shall elect a successor in said office for the completion of the unexpired term. Both the president of the city council and the president pro tem shall be elected from among the councilmembers.

(Code 1980, § 2-2-59; Ord. No. 89-46, § 9, 3-28-1989)

Editor's note—The term of council president and president pro tem were changed by Ala. Act No. 2016-277 23 to two years.

Sec. 2-2-60. Reserved.

Sec. 2-2-61. Districts.

(a) There shall be established nine council districts to be designated respectively as District Number 1, District Number 2, District Number 3, District Number 4, District Number 5, District Number 6, District Number 7, District Number 8 and District Number 9, which districts shall have as nearly as is reasonable, the same population. The designation and boundaries of the initial and subsequent council districts, a districting map depicting the nine single-member council district boundaries for each said district, district subsections and voting places for voter convenience shall be specifically described and maintained on file in the office of the city clerk and shall be available for inspection by the public at all reasonable times. A certified copy of any ordinance designating or amending boundaries of council districts, district subsections or voting places and any maps depicting such shall be filed with the judges of probate of any county which contains a portion of the corporate limits of the city.

(b) In the event there is a conflict in the city council district boundary lines set forth in the written description of district boundaries and the boundary lines as depicted on the districting map, the boundary lines depicted on the map shall govern.

(Code 1980, § 2-2-61; Ord. No. 89-46, § 11, 3-28-1989; Ord. No. 00-194, § 1(2-2-61), 11-28-2000)

Editor's note—Neither of the appendices referred to in this section are included in this article. The 2011 redistricting maps, as adopted by the city council, are on file with city clerk and available for public examination in digital data form kept by the geographic information systems division of the department of planning, engineering and permits.

State law reference—Division of municipality into single-member districts, Code of Ala. 1975, § 11-43-63.

Sec. 2-2-62. Reapportionment of districts.

Whenever there shall be a change in population in any of the nine districts heretofore established, as evidenced by a federal census of population published following the last federal census of population subsequent to the adoption of this article, there shall be a reapportionment of the city council districts in the manner hereinafter provided:

(1) The president of the city council or any member thereof shall, within six months after the publication of the last federal census of population for the city, file with the city clerk a proposed ordinance containing a recommended plan for reapportionment of the city council district boundaries to comply with the following specifications:
   a. Each district shall be formed of contiguous and, to the extent reasonably possible, compact territory, and its boundary lines shall be the center lines of streets or other well-defined boundaries.
   b. Each district shall contain as nearly as is reasonable the same population.

   The proposed ordinance shall include a map and description of the districts recommended.

(2) The city council shall consider the redistricting plan or plans filed with the city clerk as follows:
   a. The order of consideration of any plan shall be in the order of said filing with the city clerk.

b. After a proposed ordinance is filed with the city clerk and prior to its consideration for adoption, the city clerk shall place a resolution on the city council agenda within ten days which shall set a date for public hearing by the city council for consideration of such ordinance, such hearing to be set no less than 28 days nor more than 42 days from the date of passage of such resolution, and, which shall also provide that notice that a redistricting ordinance shall be considered shall be published once a week in a newspaper of general circulation in the city for the three successive weeks prior to the scheduled hearing, setting out a general description of the subject of the hearing, the date and time of the hearing and that a copy of the ordinance will be available for public inspection in the office of the city clerk during normal business hours.

c. No such ordinance shall become effective until after a public hearing in relation thereto, at which citizens shall have an opportunity to be heard. The first of such proposed ordinances which receives five affirmative votes of the city council shall be deemed the duly enacted redistricting ordinance.

(3) Such redistricting ordinance shall not apply to any regular or special municipal election held within six months after its becoming effective or until necessary approval of preclearance has been obtained pursuant to the Voting Rights Act of 1965, as amended, and the applicable procedures contained in part 51 of the Code of Federal Regulations, whichever is later. No incumbent councilmember shall be deprived of the member's unexpired term of office because of such redistricting.

(Code 1980, § 2-2-62; Ord. No. 89-46, § 12, 3-28-1989; Ord. No. 00-194, § 1(2-2-62), 11-28-2000; Ord. No. 01-91, 6-26-2001)

Editor's note—Section 2-2-62 was amended as part of Ordinance No. 00-194. In that amending ordinance section 2-2-62(a)(ii) was erroneously deleted and the wording in subsection (a)(i) was repeated as subsection (a)(ii). Amending Ordinance No. 01-91 corrected this mistake, by deleting the duplicate subsection (a)(ii) and replacing said subsection with the former subsection (a)(ii). Ordinance No. 00-194 was not

Editor's note—available at the time of this codification, and was not included in the historical citation of § 2-2-62.Ord. No. 11-109, adopted 8-23-2011, did not specifically amend the substantive text of section 2-2-62, but rather did have an effect on the reapportionment of council districts as covered by section 2-2-62. Section 1 of the ordinance stated that "the council does hereby adopt and approve the reapportionment plan encompassing the areas within the city establishing the new boundaries for the nine council districts of the city as specifically described and set forth in Appendix One and by the reapportionment map set forth in Appendix Three, and is on file in the office of the city clerk, said descriptions being attached hereto and incorporated herein in full by reference.Ord. No. 12-155, adopted 11-20-2012, did not specifically amend the substantive text of section 2-2-62, but rather amended Ord. No. 11-109 and did have an effect on the reapportionment of council districts as covered by section 2-2-62. The ordinance stated that "Ordinance No. 11-109 is hereby amended to add and incorporate the reapportionment map, technically corrected to conform to a more precise representation of the city's boundaries, by reference hereto as Appendix Four." Notwithstanding the provisions of Ordinance No. 11-109 and Appendices One and Three of that ordinance, the map depicted in Appendix Four shall govern the council district boundary lines. Nothing in this ordinance shall substantively change the council's original intent and designation of the reapportioned districts provided in Ordinance No. 11-109 and Appendix Three of that ordinance. This amending ordinance merely realigns the boundaries depicted in Appendix Three to precise parcel lines and limits of the city, providing for more accurate reference to the properties contained within the city and the respective council districts. The 2011 redistricting maps, as adopted by the city council, are on file with city clerk and available for public examination in digital data form kept by the geographic information systems division of the department of planning, engineering and permits.

CHAPTER 3. MUNICIPAL ORGANIZATION*

ARTICLE A. GENERAL PROVISIONS

Sec. 2-3-1. City departments and offices.

The following departments and offices of the city are hereby established:

(1) Arlington;

(2) Alabama State Fairground;

(3) Boutwell Auditorium;

(4) City clerk;

(5) City council;

(6) Community development;

(7) Equipment management;

(8) Finance department;

(9) Fire department;

(10) Human resources;

(11) Information management services;

(12) The Office of the City Attorney;

(13) Mayor's office;

(14) Municipal court;

(15) Museum of Art;

(16) Planning, engineering and permits;

(17) Police department;

(18) Public works;

(19) Sloss furnaces;

(20) Southern Museum of Flight;

(21) Department of transportation;

(22) Department of innovation and economic opportunity;

(23) Department of communication.

(Code 1980, § 2-3-1; Ord. No. 87-181, § 1, 12-8-1987; Ord. No. 89-297, 12-19-1989; Ord. No. 90-107, 4-24-1990; Ord. No. 92-198, 7-28-1992; Ord. No. 93-171, § 4, 7-27-1993; Ord. No. 97-76, § I, 6-24-1997; Ord. No. 00-139, § I, 8-29-2000; Ord. No. 02-102, § I, 7-2-2002; Ord. No. 09-174, 12-8-2009; Ord. No. 13-117, § 1, 10-1-2013; Ord. No. 18-97, § 1, 6-22-2018; Ord. No. 18-132, § 1, 8-20-2018; Ord. No. 18-142, § 1, 9-14-2018; Ord. No. 19-32, § 1, 3-29-2019)

*__State law reference—__Council authorized to create departments or offices and change or assign duties, Mayor-Council Act, § 3.10.

Sec. 2-3-2. Functions and duties.

Except as otherwise provided by law or this Code, the functions and duties of the departments and offices of the city shall be defined and distributed among such bureaus and divisions thereof as prescribed by executive order of the mayor and approved by the city council.
(Code 1980, § 2-3-2)

Sec. 2-3-3. City holidays.

(a) The official holidays of the city for each calendar year shall be as follows:

(1) New Year's Day (January 1);

(2) M.L. King Jr. Day (third Monday in January);

(3) Good Friday (Friday preceding Easter);

(4) Labor Day (first Monday in September);

(5) Veterans Day (November 11);

(6) Independence Day (July 4);

(7) Memorial Day (May 25);

(8) Thanksgiving Day (fourth Thursday in November) and Friday thereafter.

(b) In observance of Christmas (December 25) there shall be a two-day holiday. The dates of such observance shall be set by proclamation of the mayor.

(c) Should any of the aforesaid holidays fall on a Saturday or a Sunday, the succeeding Monday shall be observed as a holiday.
(Code 1980, § 2-3-3; Ord. No. 81-1, 1-6-1981)

__Editor's note—__By declaration of Jan. 1, 1981, the mayor also proclaimed the birthday of Martin Luther King, Jr., Jan. 15, as a city holiday.

Secs. 2-3-4—2-3-10. Reserved.

ARTICLE B. CITY CLERK*

Sec. 2-3-11. General duties and responsibilities.

The city clerk shall direct the preparation of the weekly council agenda; attend all council

*__State law reference—__Duties of city clerk, Code of Ala. 1975, § 11-43-100 et seq.

meetings; officially certify all action taken by the city council; attest as to the correctness of all city documents executed by the mayor and council; give legal notices of public hearings; publish all legal ads as required by law; mail all notices to property owners of public improvements made by the city council; screen requests of the public to appear before the city council or refer to appropriate city officials; prepare certain resolutions and notices for the city council; and maintain a permanent and official journal of the city council meeting minutes.
(Code 1980, § 2-3-11)

Sec. 2-3-12. Official custodian of records.

(a) As the lawfully designated custodian of all official city records and documents, the city clerk's office shall maintain a permanent filing system of each resolution and ordinance adopted by the city council; all contracts, agreements and franchises entered into by the city; deeds to all property acquired or sold by the city; appointment files and expiration notices for city boards and agencies; reports; plans or studies adopted by the city; and all insurance policies and bonds required by city regulations.

(b) The city clerk's office shall prepare official transcripts and certification of official minutes or other documents as required by courts of law or other city officials; provide the public with access to all public records; and assist individuals and groups seeking information about the city and its departments.
(Code 1980, § 2-3-12)

Sec. 2-3-13. Secretary to election commission.

The city clerk, as secretary to the city election commission, shall be responsible for conducting and canvassing all municipal elections.
(Code 1980, § 2-3-13)

Sec. 2-3-14. Act as secretary of boards.

The city clerk shall serve as secretary of any public board when so appointed by the board, with the approval of the city council.
(Code 1980, § 2-3-14)

Secs. 2-3-15—2-3-20. Reserved.

ARTICLE C. CITY ATTORNEY

Sec. 2-3-21. Head of department of law.

The city attorney shall be the head of the department of law of the city.
(Code 1964, § 2-58; Code 1980, § 2-3-21)

Sec. 2-3-22. Advice to council, etc.

The city attorney shall advise the city council and all officers of the city with reference to all official acts, on request, and the city attorney shall give written opinions when required to do so by the mayor.
(Code 1964, § 2-59; Code 1980, § 2-3-22)

Sec. 2-3-23. Attendance at council meetings.

The city attorney shall attend, in person or by assistant, all regular meetings of the city council and any called or special meetings as the city attorney may be requested by the city council to attend.
(Code 1964, § 2-60; Code 1980, § 2-3-23)

Sec. 2-3-24. Drafting legal instruments.

The city attorney shall draft deeds, contracts and other instruments of writing, when requested to do so by the mayor, and shall also draft, or pass upon the legal sufficiency of all official bonds of the city officers, when submitted by the mayor.
(Code 1964, § 2-61; Code 1980, § 2-3-24)

Sec. 2-3-25. Drawing ordinances, etc.

The city attorney shall draw any ordinance or resolution that the city attorney may be called upon by the mayor to prepare.
(Code 1964, § 2-62; Code 1980, § 2-3-25)

Sec. 2-3-26. Prosecuting and defending suits; expenses.

The city attorney shall prosecute or defend or cause to be prosecuted or defended by his or her assistants all suits begun during his or her term

and all unfinished suits not disposed of by his or her predecessor, to which the city council or the city may be a party or in which the city is providing representation for any officer or employee, in any court in the city, the county, the supreme court or court of appeals of the state or in any federal court in this state; provided that if the city attorney is called beyond the city limits to attend to any business of the city, his or her traveling and other incidental expenses arising legitimately from such corporate business shall be paid by the city, on presentation of an itemized bill thereof, certified by him or her to be correct. When in the opinion of the city attorney it would be in the best interest of the city to retain outside counsel to assist the legal department in the pursuit of its duties, such outside legal assistance may be retained upon the recommendation of the city attorney and the mayor upon an affirmative vote of a majority of the city council.
(Code 1964, § 2-63; Code 1980, § 2-3-26; Ord. No. 81-92, § 1, 6-2-1981; Ord. No. 99-204, 12-7-1999)

Sec. 2-3-27. Compromise of suits and claims.

(a) In any claim or suit brought against the city or against any officer or employee or against a member of a city board or agency for whom the city provides representation as herein provided in section 2-4-11, the city attorney shall have authority to compromise, settle or to consent to judgment therein without any approval other than his or her own, in an amount not exceeding $5,000.00, and with his or her approval and that of the mayor, in an amount not exceeding $10,000.00, and with the approval of the mayor and of the city council in any amount. No compromise, settlement or consent to judgment in excess of $10,000.00 shall be paid without the approval of the mayor, and of the city council by duly adopted resolution. Any compromise, settlement or consent to judgment shall be submitted to the council agenda without prior submission to a council committee. Council may convene an executive session pursuant to the Alabama Open Meetings Act to discuss the settlement proposal with the city attorney.

(b) The city attorney shall cause a proper release of the city and/or its officer, employee or member of a city board or agency to be taken or entered in every such case.

(c) Any and all settlement of claims or suits not subject to city council approval under the provisions of subsection (a) of this section shall be reported to the city council as soon as possible but not later than the 15th day following the end of each quarter of the city's fiscal year.

(d) A copy of any judgment against the city shall be provided to the city council prior to the payment of the judgment.
(Code 1964, § 2-64; Code 1980, § 2-3-27; Ord. No. 78-50, 3-27-1978; Ord. No. 81-92, § 2, 6-2-1981; Ord. No. 87-33, 3-10-1987; Ord. No. 99-205, 12-7-1999; Ord. No. 16-229, § 1, 12-22-2016)

Sec. 2-3-28. Book showing condition of suit.

The city attorney shall keep an indexed book showing the condition of all suits to which the city is a part or in which it is interested, which book shall be open at all times to the inspection of the mayor.
(Code 1964, § 2-65; Code 1980, § 2-3-28)

Sec. 2-3-29. Reports to mayor.

The city attorney shall report from time to time to the mayor, as the city attorney may be required to do, the condition of the various suits, or of the city's business in his or her hands or under his or her control.
(Code 1964, § 2-66; Code 1980, § 2-3-29)

Secs. 2-3-30—2-3-40. Reserved.

ARTICLE D. DEPARTMENT OF PLANNING, ENGINEERING AND PERMITS*

Sec. 2-3-41. Establishment.

There is hereby established the City of Birmingham Department of Planning, Engineering and Permits.
(Code 1980, § 7-3-41; Ord. No. 93-171, § 1, 7-27-1993)

*__Editor's note—__In consultation with the city, the editor included the provisions of secs. 1, 3, 4 of Ord. No. 87-181, adopted Dec. 8, 1987, as art. D, §§ 7-3-41 through 7-3-43 of the 1980 Code. These sections were repealed by section 5 of Ord. No. 93-171, adopted July 27, 1993. Sections 1 through 3 have been added as a new art. W, §§ 2-5-351 through 2-5-353.

Sec. 2-3-42. Functions.

The department of planning, engineering and permits shall exercise all functions exercised by the formerly separate departments of engineering and urban planning and such other functions as may be assigned by the mayor or city council.
(Code 1980, § 7-3-42; Ord. No. 93-171, § 2, 7-27-1993)

Sec. 2-3-43. City engineer.

The mayor shall have authority to appoint as city engineer a qualified person employed in the department of planning, engineering and permits. Such person may be but is not required to be the department head. The person so appointed as city engineer shall exercise all functions assigned by this Code, state law and a contract to the city engineer; provided that, if the city engineer so appointed is not the department head, the functions determined by the mayor to be those of the department head shall not be exercised by the city engineer and shall be exercised by the department head or the department head's designee.
(Code 1980, § 7-3-43; Ord. No. 93-171, § 3, 7-27-1993)

Sec. 2-3-44. Transfer of functions.

(a) The functions and personnel of the division of inspections of the buildings and inspection department, including plan review; building, elevator, plumbing and gas inspections; weights and measures; and condemnation and demolition are hereby transferred to the department of planning, engineering and permits.

(b) The mayor shall have authority to designate the building official or chief building official who shall have all duties of the building official and all duties related to inspections of the director of the buildings and inspection department and the chief of inspection services.

(c) The mayor is authorized to take such other administrative actions as he or she may determine necessary or desirable to accomplish the purposes of this section.
(Ord. No. 97-39, 3-25-1997)

CHAPTER 4. OFFICERS AND EMPLOYEES

ARTICLE A. GENERAL PROVISIONS

Sec. 2-4-1. Qualifications and duties in addition to those elsewhere named; enumeration of duties not exclusive.

The qualifications and duties of city officials mentioned in this article shall be in addition to those more logically and conveniently enumerated elsewhere in this Code. The duties of city officers and employees which are enumerated generally in this chapter shall not be deemed to be exclusive, but the duties of those officers and employees shall include any other related work as may be required.
(Code 1964, § 2-25; Code 1980, § 2-4-1)

Sec. 2-4-2. Interest in contracts, etc.—Generally.

No officer or employee elected or appointed in the city shall be interested, directly or indirectly, in any contract for work or material, or the profits thereof or services to be furnished or performed for the city. No such officer or employee shall be interested, directly or indirectly, in any contract

for work or materials, or the profits thereof, or services to be furnished or performed for any person, firm or corporation.
(Code 1980, § 2-4-2)

State law reference—Similar provision, Code of Ala. 1975, § 11-43-12.

Sec. 2-4-3. Same—Violation renders contract void.

Every contract, express or implied, hereafter made in violation of any of the provisions of or contained in section 2-4-2 shall be absolutely void and of no effect.
(Code 1964, § 2-27; Code 1980, § 2-4-3)

Sec. 2-4-4. Same—Penalty.

Any person soliciting, procuring, entering into, participating in or performing any express or implied contract, or any work or business, knowing that any officer or employee of the city is interested in the same in any manner hereinbefore described, or any person who shall in any other manner violate any provision contained in section 2-4-2 shall be punished for each offense as provided in section 1-1-6.
(Code 1964, § 2-28; Code 1980, § 2-4-4)

Sec. 2-4-5. Inspection of books and papers.

Every officer or agent of the city shall at all reasonable times submit his or her books and papers to the inspection of the mayor or to any person or committee appointed or authorized by the mayor to examine the same.
(Code 1964, § 2-29; Code 1980, § 2-4-5)

Sec. 2-4-6. Annual reports.

It shall be the duty of all officers of the city to make an annual report in writing promptly after the end of each fiscal year and submit the same to the mayor.
(Code 1964, § 2-30; Code 1980, § 2-4-6)

Sec. 2-4-7. Delivery of books, etc., to successor.

Every officer or agent of the city, upon termination of office for whatever cause, shall deliver over to his or her successor, or to the mayor, as the case may require, all books, papers, accounts, tools, instruments and everything pertaining to his or her office, and shall be entitled to a receipt therefor if requested.
(Code 1980, § 2-4-7)

Sec. 2-4-8. Payment of money to director of finance.

All officers and employees of the city receiving any money for the account of the city shall pay over such money to the director of finance daily, or at those intervals as the director of finance shall prescribe.
(Code 1964, § 2-32; Code 1980, § 2-4-8)

Sec. 2-4-9. Reserved.

Sec. 2-4-10. Employees in classified service engaging in other business or occupation.

No employee of the city in the classified service shall engage in any other business or occupation, or accept any other employment, while in the service or employment of the city; provided that during his or her off duty hours such an employee may accept such employment as may be permitted by the mayor upon and in compliance with such terms, conditions and limitations as the mayor may prescribe. Violation of this section shall be cause for dismissal.
(Code 1964, § 2-34; Code 1980, § 2-4-10)

Sec. 2-4-11. City representation and indemnification in civil actions arising out of performance of public duties.

(a) *Authorized.*

(1) Except as hereinafter excluded or otherwise limited, the city shall provide legal representation for its officers, members of city boards and agencies, and employees and shall indemnify such persons with regard to such civil claims as such persons may be legally obligated to pay where the incident or occurrence giving rise to such representation or payment was one arising out of and within the line and scope of their employment for or engagement on behalf of the city.

(2) The provisions of subsection (a)(1) of this section shall specifically be inapplicable to members of the following boards and agencies:

a. The city waterworks board;

b. The city board of education;

c. The city parking authority;

d. The housing authority of the Birmingham District;

e. The public building authority of the city;

f. The airport authority;

g. The public park and recreation board of the city;

h. The Birmingham Trade Mart Authority;

i. The industrial water board of the city;

j. The housing finance corporation of the city;

k. Any special care facilities financing authority of the city;

l. The city transit authority;

m. Any medical clinic board;

n. Any joint authority or board with Jefferson County or any other municipality unless the city is otherwise obligated to provide representation or indemnification by agreement or law.

(b) *Representation by city attorney.*

(1) The city attorney shall, upon request in writing by any of the persons identified and described in subsection (a)(1) of this section, undertake legal representation or defense, without charge, of any such persons with respect to any civil claim or civil cause of action arising out of and within the line and scope of the employment or engagement of such persons; provided, however, that where the city attorney shall determine that a conflict exists by reason of the legal obligation of the city attorney to represent, actually or potentially, any other party to the claim or cause of action, or where, in the judgment of the city attorney, the nature of the case or workload of the law department indicates the interest of any such persons and/or the city would be better served by the engagement of outside counsel for any such persons, the city attorney will, in consultation with such persons, seek the retention of appropriate counsel on a fee arrangement satisfactory to such counsel and the city.

(2) Every such person who is involved in an accident, occurrence or incident which has or may result in a claim for the personal injury or property damage being asserted against such person and/or the city shall report same to his or her department or board or agency head as soon as possible thereafter in writing on forms furnished for this purpose. A copy of each such report shall be forwarded immediately to the law department along with a copy of any police accident or incident report. Any claim or demand, whether written or oral, made upon any such person as a result of any such accident or incident must be reported and forwarded to the law department of the city as soon as received. Any suit papers received by or served upon any such person as the result of such accident or incident must be delivered immediately to the law department if representation as provided herein is sought by such person.

(3) The city attorney shall not provide counsel for any such person nor shall the city be financially responsible as a result of any liability incurred by such person where it appears either prior to or during litigation that:

a. The occurrence involved was willfully, maliciously, wantonly or intentionally caused by or at the direction of such person;

b. Any such person against whom a claim or suit is asserted refused to cooperate with the attorneys for the

city in investigating the claim or suit, in making a settlement, or in defending a lawsuit;

c. Such person makes an admission of liability;

d. Such person unilaterally makes an agreement to settle a claim or suit, or otherwise enters into collusion with the person or persons asserting a claim or suit against such person and/or the city;

e. Where such person was not acting in good faith nor under the reasonable belief that his or her actions were in the best interest of the city nor in the furtherance of the official practices and policies of the city;

f. Where the occurrence was not within the line and scope of the authority of the person so acting; or

g. The act involved occurred while such person was engaged in the employ of one other than the city, and such act was not performed as a part of or in the regular course of employment with or an engagement for the city.

(4) The city attorney shall determine whether or not a claim or suit filed against any such person meets the requirements specified herein for providing defense for or indemnification of such person. If a determination is made that a claim or suit does not meet the requirements specified herein, the city attorney shall so inform such person in writing; and such person may, within five days, appeal such determination to the mayor, who, after interviewing such person, shall determine whether representation and indemnification shall be provided by the city.

(c) *Indemnification.* Any such person who is held liable for the payment of any claim, settlement, judgment, expense, cost or award of attorney's fees arising out of such civil action, or who incurs attorney's fees by reason of his or her authorized retention of independent counsel in defense of any such claim, shall be entitled to indemnification, as provided herein, in all suits and claims determined by the city attorney, subject to the approval of the mayor, not to have resulted from prohibited activities as set forth above, subject to the following limitations and provisions:

(1) The city's obligation hereunder to pay on behalf of any such person claims or monies damages arising out of any one occurrence shall not exceed $25,000.00 to any one person and $50,000.00 aggregate to two or more persons for personal injury and shall not exceed $10,000.00 in property damage, unless a greater amount is approved by majority vote of the city council; and in no event shall the city's obligation exceed the maximum statutory limits of liability established for the city by state law.

(2) The city shall have the right in any such action to make such investigations and settlements of any such claim or suit against any such person as the city deems expedient.

(3) Nothing in this section shall be construed as waiving the city's defense of governmental immunity or any other legal defense where such defense exists in any action brought against the city, and/or any such persons, nor shall this section be deemed as, or construed to be, a policy of insurance.

(d) *Insurance.*

(1) City employee operators of city vehicles may obtain "Driver Other Car" riders to their individual private automobile liability insurance policies to protect them in all cases whether covered, not covered or specifically excluded herein; and the city will reimburse such employee for the premium cost of such "Other Car" insurance rider up to $15.00 per annum; and where the annual premium for such insurance exceeds $15.00, the finance director is hereby authorized, upon the employee's request, to reimburse such employee for all or part of such excess amount as the finance director may deem reasonable. In

the event such insurance coverage is so obtained, it shall be primary and the undertaking of indemnification provided by the city herein shall be limited solely to that amount by which any judgment entered against said employee exceeds the coverage provided by that insurance, subject to all limitations and exclusions contained herein.

(2) Upon application made to it by a city board or agency included in this section, or upon its own initiative, the city council may, if funds are available therefor, authorize by resolution the purchase of liability or other protective insurance for members of such city boards or agencies where the city council determines that:

a. The risks involved are such that the city would be better advised to purchase insurance coverage against such risks; and

b. The premium costs are small in relation to such risks and possible monetary exposure of the city.

(Code 1980, § 2-4-11; Ord. No. 81-981, §§ I—III, 6-2-1981; Ord. No. 84-32, 3-20-1984; Ord. No. 87-32, 3-10-1987)

State law references—City required to provide defense counsel to any employee sued for damages arising out of performance of official duties, Code of Ala. 1975, § 11-47-24(a); circumstances when municipalities are liable for damages, Code of Ala. 1975, § 11-47-190; maximum amount of damages recoverable against governmental entities, Code of Ala. 1975, § 11-93-2.

Sec. 2-4-12. Payment of employee residential moving expenses.

The city may pay the reasonable residential moving expense of new employees who, at the time of appointment, reside outside the county, when the appointment of such employee is to a position bearing the personnel board classification of S-28 or above and the payment of such expense is approved in writing by the mayor (or his or her designee) in the mayor's discretion, subject to such regulations or restrictions as the mayor, in his or her discretion, may prescribe or require.

(Code 1980, § 2-4-12; Ord. No. 86-76, 4-22-1986)

Sec. 2-4-13. Substance abuse treatment program for certain employees.

(a) There is hereby established the city substance abuse treatment program.

(b) Subject to regulations which may be established by the mayor, or his or her designee, financial assistance shall be provided to employees of the city for residential and followup care for treatment of a substance abuse problem. Such financial assistance shall be provided only to employees appointed to regular fulltime budgeted positions who request help for a substance abuse problem prior to being notified to take a drug or alcohol test and who have not been notified of potential disciplinary action related to substance abuse. Eligibility for treatment hereunder is limited to one in-patient treatment episode for each employee.

(c) Upon full compliance with this section and with any regulations established by the mayor or his or her designee, the city shall, under the terms of a reimbursement and aftercare agreement, to be executed by the employee prior to admission at a treatment facility, pay to the treatment provider only, on behalf of the employee, 50 percent of the total treatment plan costs upon successful completion by the employee of residential treatment, certification by employee assistance services that the employee has completed the program and is not currently abusing a substance, and the employee has returned to fulltime employment with the city.

(d) Upon continued full compliance with this section, the regulations and the reimbursement and aftercare agreement, the city shall, two years after returning to active employment following the conclusion of residential treatment, reimburse to the employee the balance of the treatment costs. This reimbursement shall be contingent upon continued fulltime employment with the city and proof of payment by, or on behalf of, the employee to the provider. Benefits may be assigned to the provider.

(e) In no case shall the total amount payable on behalf of any one employee exceed $8,500.00 without advance written approval by the mayor or his or her designee.

(f) Benefits under this program shall be provided to employees based upon date of request but shall not exceed amounts budgeted by the city for this program.

(g) The mayor or his or her designee, is hereby authorized to establish and change regulations for the conduct of this program, to adopt and change a reimbursement and aftercare agreement, and to make determinations of any question arising from the programs which determinations shall be appealable to the city council if such appeal is filed in writing within ten days' notice of such determination.
(Code 1980, § 2-4-13; Ord. No. 96-126, 6-18-1996)

Sec. 2-4-14. Annual "employees & family fun day" as a benefit for employees and officials.

It is hereby declared, upon approval by the mayor, to be the policy and purpose of the City of Birmingham, Alabama, to provide a de minimis fringe benefit to all city employees and officials not excluded by law or by this section. As a fringe benefit of employment with the city, the city will annually provide, during a Saturday in July of each year, an "Employees & Family Fun Day" for employees and officials of the City of Birmingham not excluded by law or by this section. As part of said "Employees & Family Fun Day" every eligible active employee and official of the city may attend the "Employees & Family Fun Day" and those eligible employees and officials in attendance may be accompanied by their spouses and dependents. The spouse or dependents of any eligible employee or official who is working for the city during the time of the event, may attend the event without being accompanied by the employee or official, provided that the spouse and/or dependents have in their possession the most recent pay stub of the employee or official.

The "Employees & Family Fun Day" shall consist of food, entertainment and activities for the employees, their spouses and dependents of the employees. The mayor is authorized to provide the event each year during a Saturday in July and may expend an amount not to exceed a sum equivalent to $25.00 per eligible employee and official of the City of Birmingham. This amount may be expended annually by the mayor for the "Employees & Family Fun Day" without further authorization from the council, subject to appropriation in the annual budget, and provided that sufficient unused funds remain in the budget. All other laws and ordinances of the city shall be complied with.

The mayor shall provide at least 21 days' notice, to employees and officials of the city, of the date, times and location of the annual "Employees & Family Fun Day."
(Ord. No. 15-86, § 1, 6-24-2015)

Sec. 2-4-15. Benefits related to use of leave time.

It is hereby declared, to be the policy and purpose of the City of Birmingham, Alabama, to provide that, in addition to earned benefits to which the employees of the Birmingham City Council are otherwise entitled, provided that there has been no break in service, said employees may begin to utilize any accrued sick leave time on the employee's 61st day of employment and may begin utilizing accrued vacation leave time on the employee's 91st day of employment, subject to approval by the employee's supervisor.
(Ord. No. 18-138, § 1, 9-7-2018)

Editor's note—Ord. No. 18-138, § 1, adopted September 7, 2018, did not specifically amend the Code. Therefore, such ordinance has been added as § 2-4-15 at the discretion of the editor.

Sec. 2-4-16. Benefit for rehired retired public safety employees.

A retired police officer or firefighter reemployed by the city pursuant to Code of Ala., § 45-37A-51.237, as amended, may receive up to 50 percent of any unused sick leave which remained and was forfeited at the time of retirement, subject to the following limitations:

(a) The rehired police officer or firefighter was not eligible for or did not utilize the Sick Leave Incentive Program (City of Birmingham Resolution No. 497-03) at the time of the individual's retirement;

(b) The rehired police officer or firefighter must be reemployed for a minimum of 60 days before the additional sick leave provided by this article may be granted;

(c) The rehired police officer or firefighter may receive one hour of sick leave for each two hours of sick leave which remained at the time of the police officer's or firefighter's retirement, up to a maximum of 288 sick leave hours;

(d) Employees who used the Sick Leave Incentive Program under Resolution No. 497-03 to convert the full amount of remaining sick leave to additional creditable service for calculating a final average salary for pension purposes are not eligible for this benefit.

(Ord. No. 20-84, § 1, 6-4-2020)

Editor's note—Ord. No. 20-84, § 1, adopted June 4, 2020, did not specifically amend the Code. Therefore, such ordinance has been added as § 2-4-16 at the discretion of the editor.

State law references—Police department, § 9-1-1 et seq.; fire and rescue service department, § 9-3-1 et seq.

Secs. 2-4-17—2-4-20. Reserved.

ARTICLE B. BONDS

Sec. 2-4-21. Officers and employees who shall give bond.

Every officer and employee of the city handling money or exercising authority over property of the city shall, before entering upon the discharge of his or her duties, give bond, with surety, to be approved by the mayor, in the penalty as the city council may prescribe, conditioned for the faithful discharge of the duties of his or her office and faithfully to account for all money received.

(Code 1964, § 2-35; Code 1980, § 2-4-21)

State law reference—Similar provision, Code of Ala. 1975, § 11-43-13.

Sec. 2-4-22. Surety company; payment of premium.

A bond, as prescribed by section 2-4-21, shall be executed by some surety, insurance or guaranty company authorized to do that business in the state, and the expense or premium of the bond shall be paid by the city.

(Code 1964, § 2-36; Code 1980, § 2-4-22)

Sec. 2-4-23. Director of finance as custodian.

The director of finance shall be the custodian of the bonds of all officers, except his or her own, which shall be delivered to the mayor and preserved by him or her.

(Code 1964, § 2-37; Code 1980, § 2-4-23)

Sec. 2-4-24. Obligation.

A bond, as prescribed by section 2-4-21, shall provide that the surety or insurer will reimburse the city for direct loss of money or property, including money or property for which the city is responsible, through any dishonest or criminal act committed during the continuance of the insurance or of the bond by, or through the connivance of the employee or officer in any position and at any location, or through failure, during continuance of the bond or of the insurance of the employee or officer to faithfully perform the duties of his or her position, in any position and at any location, or through failure of the employee or officer faithfully to account for all money and property received by him or her in any position and at any location for or on behalf of the city during continuance of the bond or of the insurance.

(Code 1964, § 2-38; Code 1980, § 2-4-24)

Sec. 2-4-25. Successive recoveries.

None of the bonds executed by the officers under the provisions of this chapter shall be discharged by one recovery thereon, but successive recoveries may be had on those bonds until the whole amount of the bond is exhausted.

(Code 1964, § 2-39; Code 1980, § 2-4-25)

Sec. 2-4-26. Increasing or requiring new bond.

Whenever, in the opinion of the mayor, the bond of any officer is insufficient in amount, or, in the opinion of the mayor, the sureties unsatisfactory, the mayor may require that officer to execute an additional bond, in a larger sum, or a

new bond with good surety, payable and conditioned as required for bonds of city officers, and if that officer fails for ten days after notice to give the additional or new bond, he or she may be removed from office and his or her successor elected.
(Code 1964, § 2-40; Code 1980, § 2-4-26)

Secs. 2-4-27—2-4-40. Reserved.

ARTICLE C. STRIKES AND PICKETING AGAINST CITY*

Sec. 2-4-41. Strikes declared unlawful; participation in strikes, etc.

Any strike of employees of the city or any concerted stoppage or slowdown of work by employees of the city is hereby declared to be unlawful. It shall be unlawful for any employee of the city to participate in any strike or concerted stoppage or slowdown of work against the city.
(Code 1964, § 2-41; Code 1980, § 2-4-41)

Sec. 2-4-42. Discharge and reemployment of person violating section 2-4-41.

(a) Any person not covered by subsection (b) of this section who violates section 2-4-41 shall be immediately discharged from his or her employment with the city as of the date of the violation and shall not be reemployed by the city for a period of six months thereafter, and then only subject to each and every one of the following conditions:

(1) No person who is discharged from his or her employment with the city for a violation of section 2-4-41 shall have any right to be reemployed by the city;

(2) The reemployment shall be only subject to the approval of the mayor;

(3) The reemployment shall be only for the purpose of filling vacancies in the city service as and when they occur;

(4) The reemployment shall be at the beginning or minimum wage or salary set for the job or position in which applicant is to be employed;

(5) Prior to reemployment the applicant shall successfully pass a thorough physical examination.

(b) Any employee of the city who has attained permanent status within the meaning of section 22 of Act No. 248 of the regular session of the Legislature of Alabama of 1945, as amended, and who violates section 2-4-41 shall be discharged in accordance with the provisions of that act and section.
(Code 1964, § 2-42; Code 1980, § 2-4-42)

Sec. 2-4-43. Picketing prohibited.

Whereas picketing of the city or any of its places of operation as a result of determinations of the city in relation to terms of employment of its employees would necessarily involve more than mere communication of thought or idea, and would cause interruption of operations of the city, it shall be unlawful for any person, group of persons, association, corporation or union to picket, or to cause, aid, abet or participate in, picketing of the city, or of the city hall or other building or place in or at which work or affairs of the city are customarily carried on or conducted, for the purpose of achieving or gaining any objective of any strike or concerted stoppage or slowdown of work declared unlawful by section 2-4-41, or for the purpose of coercing the city to grant or accede to any demand or request in respect to grievances or of wages or of employment or of hours or conditions or terms of employment of any employee or former employee of the city, or for the purpose of causing or inducing any person to cease work for the city or to refrain from working for the city, or for the purpose of notifying the public of a labor dispute or that the city or the city council or any officer thereof is unfair, or for any purpose whatsoever in relation to any employee or former employee or prospective employee of the city or in relation to terms of employment with the city.
(Code 1964, § 2-43; Code 1980, § 2-4-43)

*__State law reference—__Strikes by firefighters prohibited, Code of Ala. 1975, § 11-43-143.

Sec. 2-4-44. Abusive, etc., words; injuring, etc., persons.

It shall be unlawful for any person to address abusive or opprobrious words toward another or, by act, word, gesture or otherwise, to cause, or threaten to cause, injury, damage, harm, hurt or detriment to another, because of, or in order to prevent or discourage, the rendition of service by anyone to or for the city.
(Code 1964, § 2-44; Code 1980, § 2-4-44)

State law reference—Similar provisions, Code of Ala. 1975, §§ 13A-11-7, 13A-11-8.

Secs. 2-4-45—2-4-50. Reserved.

ARTICLE D. FAIR HIRING

Sec. 2-4-51. Policy.

In order to ensure fair hiring practices by the city, it is the policy of the city to recruit, hire and promote to all job classifications in its various departments and agencies without regard to race, color, religion, sex, national origin or physical handicap, except where sex is a bona fide occupational qualification or the physical handicap is such as to interfere materially or render impossible reasonable performance in the job to be filled. The city is committed to developing and expanding positive programs which will ensure the strengthening of this policy.
(Code 1964, § 2-44.1; Code 1980, § 2-4-51)

Sec. 2-4-52. Establishment, etc., of recruitment, etc., means.

Each head of a department or agency of the city shall be responsible for establishing and maintaining effective means of recruiting, hiring, training, transferring, retaining and promoting employees in order to prohibit any discriminatory practice, either intentional or inadvertent, with respect to race, color, religion, sex, national origin or physical handicap.
(Code 1964, § 2-44.2; Code 1980, § 2-4-52)

Sec. 2-4-53. Affirmative action plans—Submission; filing; contents; effect.

No later than January 1 of each of the succeeding five years and at any other times as may be required by the city council, the head of each department of the city shall submit to the office of the mayor, in writing, an affirmative action plan designed to increase the employment and promotions of African-Americans in the respective department, and to otherwise promote the policies of this section. A copy of this plan, with any modification as may be required by the mayor, shall be filed with the city clerk within 30 days of receipt thereof by the mayor. The plan shall set forth the affirmative steps to be taken to increase the employment and upgrading of African-Americans and any others with respect to whom there is any indication of the possibility of discrimination. It shall include specific goals for African-American manpower utilization and time tables for achievement of these goals. In determining these goals, the percentage of African-Americans in the work force in the city shall be a primary consideration. Further, the plan shall not be based on, or result in, the discharge of any employee of any department or agency of the city.
(Code 1964, § 2-44.3; Code 1980, § 2-4-53)

Sec. 2-4-54. Same—Display.

A copy of the affirmative action plan for each department, when approved by the mayor, shall be posted in a conspicuous and prominent place in the main office of each department of the city and at the office of the county personnel board. A copy thereof shall be open to reasonable public inspection in the office of the mayor during regular business hours.
(Code 1964, § 2-44.4; Code 1980, § 2-4-54)

Sec. 2-4-55. Records.

Each department of the city shall maintain records indicating the race and sex of each person employed in each job classification in the department, and the job classifications in which handicapped persons are employed. These records shall be made available for public inspection upon request at reasonable times. These records shall be embodied in semiannual and annual evaluation reports of each department's affirmative action plan as of June 30 and December 31 of each year, to be submitted by each department head to the mayor and the city council on or

before July 31 and January 31 of each calendar year. This report shall also include a review of the department's progress in achieving the specific goals of the department's affirmative action plan, noting those goals which were achieved and those not yet achieved, the reason for any failure to achieve goals and the remedial action being taken to overcome any such failure. Copies of these evaluation reports shall be maintained until approval for destruction of the records is obtained from the local government records commission.
(Code 1964, § 2-44.5; Code 1980, § 2-4-55)

Sec. 2-4-56. Promulgation of rules and regulations; minimum standards.

With regard to the formulation and execution of the affirmative action plans and programs provided for herein, the mayor shall promulgate and modify, from time to time, those rules and regulations as he or she shall deem necessary to carry out the policies of this section; provided that these rules and regulations shall include the following minimum provisions together with any other provisions as may from time to time be required:

(1) Whenever the percentage of classified city employees who are African-American is less than the percentage of African-American employees in the labor force in the city, then each department head shall, as vacancies occur, give first preference to any African-Americans certified by the county personnel board as being qualified to fill those vacancies until that time as the above stated goal has been reached.

(2) So long as any department has failed to achieve the goals established in its approved plan, the rejection of any such certified African-American applicant shall be required by these rules and regulations to be justified in writing, and a copy of this written justification shall be maintained in a separate file in the office of the mayor and subject to reasonable public inspection during regular office hours for a period of not less than two years.

(3) Each department of the city shall have, separately or in conjunction with other departments, a positive recruiting program in cooperation with community organizations, area high schools, college and universities and with local business and industry to increase the utilization of persons protected from discrimination by this section.

(4) A complaint procedure which shall be available to any applicant or employee who has reason to believe that the applicant or employee has been discriminated against in violation of the provisions of this section which procedure shall provide, on request, a fair hearing, a written decision and a right of appeal to the mayor; provided that no provision of this section or rules or regulations issued hereunder shall require the placing of any person in any job for which the person is not qualified by reason of ability, training or experience.

(Code 1964, § 2-44.6; Code 1980, § 2-4-56)

Secs. 2-4-57—2-4-60. Reserved.

ARTICLE E. HEALTH AND MEDICAL BENEFITS PLAN (RESERVED)

Secs. 2-4-61—2-4-70. Reserved.

ARTICLE F. FAIR HOUSING

Sec. 2-4-71. Policy.

(a) *Policy.* It is the policy of the city to provide, within the limits of its authority, for fair housing throughout the city.

(b) *Discrimination.* It shall be an unfair housing practice and unlawful for any person or business selling or renting residential dwellings:

(1) To refuse to sell or rent after the making of a bona fide offer, or to refuse to negotiate for the sale or rental of, or otherwise make unavailable or deny, a dwelling to any person because of race, color, religion, sex or national origin.

(2) To discriminate against any person in the terms, conditions or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection therewith, because of race, color, religion, sex or national origin.

(3) To make, print or publish, or cause to be made, printed or published, any notice, statement or advertisement with respect to the sale or rental of a dwelling that indicates any preference, limitation or discrimination based on race, color, religion, sex or national origin, or an intention to make any such preference, limitation or discrimination.

(4) To represent to any person because of race, color, religion, sex or national origin that any dwelling is not available for inspection, sale or rental when such dwelling is in fact so available.

(5) For profit, to induce or attempt to induce any person to sell or rent any dwelling by representations regarding the entry or prospective entry of a person or persons of a particular race, color, religion, sex or national origin.

(6) To discriminate in the sale or rental, or to otherwise make unavailable or deny, a dwelling to any buyer or renter because of a handicap of:

a. That buyer or renter;

b. A person residing in or intending to reside in that dwelling after it is sold, rented, or made available; or

c. Any person associated with that buyer or renter.

(7) To discriminate against a person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection with the dwelling, because of a handicap of:

a. The person;

b. A person residing in or intending to reside in that dwelling after it is sold, rented, or made available; or

c. Any person associated with that person.

(Code 1980, § 2-4-71; Ord. No. 80-165, 8-26-1980)

Sec. 2-4-72. Definitions.

Words and phrases used in this article shall have the following meanings, unless otherwise specified:

Business of selling or renting. For the purposes of section 2-4-71, a person shall be deemed to be in the business of selling or renting dwellings if the person:

(1) Has, within the preceding 12 months, participated as principal in two or more transactions involving the sale or rental of any dwelling or any interest therein;

(2) Has, within the preceding 12 months, participated as agent, other than in the sale of his or her own personal residence, in providing sales or rental facilities or sales or rental services in two or more transactions involving the sale or rental of any dwelling or any interest therein; or

(3) Is the owner of any dwelling designed or intended for occupancy by, or occupied by, two or more families.

Dwelling, for the purposes of section 2-4-71, means any building, structure or portion thereof which is occupied as or designed or intended for occupancy as, a residence by one or more families, and any vacant land which is offered for sale or lease for the construction or location thereon of any such building, structure, or portion thereof.

Person selling or renting means any individual selling or renting a dwelling in the city.

(Code 1980, § 2-4-72; Ord. No. 80-165, 8-26-1980)

Sec. 2-4-73. Violation, procedure, right to civil action unabridged.

(a) *Violation and penalty.* Any person who violates any provision of this article or who shall do any act made unlawful by this article shall upon conviction be punished by a fine not exceed-

ing $500.00 or by imprisonment in the city jail, workhouse or house of correction or at hard labor upon the streets or public works for not exceeding six months, or by both such fine and imprisonment.

(b) *Complaints.* Any person discriminated against by any violation of section 2-4-71 may file a written complaint setting forth the grievance with the city's community development department. The community development department shall make an investigation of the complaint; and if discrimination is determined to have occurred, the community development department shall seek from the city magistrate a warrant for the arrest of the person accused of unlawful discrimination.

(c) *Trial.* Cases against persons charged with unlawful discrimination in housing shall be set for trial in the municipal court.

(d) *Civil relief.* This article is not intended to supplant any right of any person to civil relief under any provision of law.
(Code 1980, § 2-4-73; Ord. No. 80-165, 8-26-1980)

Secs. 2-4-74—2-4-80. Reserved.

ARTICLE G. NONDISCRIMINATION ORDINANCE*

Sec. 2-4-81. Adoption.

(a) This article may be referenced as "The City of Birmingham Non-Discrimination Ordinance".

(b) *Purpose and intent.* It is the intent and purpose of this article to protect and safeguard the right and opportunity of all persons to be free from all forms of discrimination, including discrimination based on real or perceived race, color, religion, national origin, sex, sexual orientation, gender identity, disability, or familial status. This article is enacted to promote the public health and welfare of all persons who live and work in the City of Birmingham. It is important for the city to ensure that all persons within the city have equal access to employment, housing, and public accommodations.

(c) *Definitions.* For the purposes of this article, the following terms shall have the following meanings:

(1) *City contractor.* Any person, corporation, or entity that has a contract to do business with the City of Birmingham.

(2) *Discriminate, discrimination or discriminatory.* Any act, policy or practice that, regardless of intent, has the effect of subjecting any otherwise qualified person to differential treatment as a result of that person's real or perceived race, color, religion, national origin, sex, sexual orientation, gender identity, disability, or familial status.

(3) *Employee.* Any individual employed by or seeking employment from an employer. It does not include the following:

a. Any individual employed by his or her parents, spouse, or child or

b. An individual participating in a specialized employment training program conducted by a nonprofit sheltered workshop or rehabilitation facility.

(4) *Employer.* A person who employs one or more employees in the City of Birmingham, or any agent of such person. Employer shall include the City of Birmingham and any city contractor.

(5) *Familial status.* The state of having or about to be having one or more minor children under the age of 18 being domiciled with a parent, guardian, or other person having legal custody or who is legally responsible for the care of a child.

(6) *Gender identity.* The actual or perceived gender related identity, expression, appearance, or mannerisms or other

*__Editor's note—__Ord. No. 17-121, § 1, adopted September 29, 2017, did not specifically amend the Code. Therefore, such ordinance has been added as § 2-4-81 at the discretion of the editor.

gender related characteristics of an individual, regardless of the individual's designated sex at birth.

(7) *National origin.* An individual's or his or her ancestor's place of origin.

(8) *Place of public resort, accommodation, assemblage, or amusement.* Any place, store, or other establishment, either licensed or unlicensed, that supplies accommodations, goods, or services to the general public, or that solicits or accepts the patronage or trade of the general public, or that is supported directly or indirectly by government funds. The term does not include any of the following:

a. Any lodging establishment which contains not more than three rooms for rent and which is actually occupied by the proprietor of such establishment as a residence.

b. Any private club, bona fide membership organization, or other establishment that is not in fact open to the public.

(9) *Religion.* All aspects of religious belief, observance, and practice.

(10) *Sexual orientation.* Actual or perceived homosexuality, heterosexuality, or bisexuality.

(d) *Discrimination prohibited.* The protection of the right of an otherwise qualified person to be free from discrimination because of that person's real or perceived race, color, religion, national origin, sex, sexual orientation, gender identity, disability, or familial status is recognized as necessary to promote the public health, safety and welfare of citizens and employees within the city. No person shall discriminate against an otherwise qualified person's rights, including, but not limited to, all of the following:

(1) The right to obtain and hold employment without discrimination.

(2) The right to the full enjoyment of any of the accommodations, advantages, facilities, or privileges of any place of public resort, accommodation, assemblage, or amusement.

(3) The right to engage in property transactions, including obtaining housing for rental or sale, and including credit for obtaining housing for rental or sale, without discrimination.

(4) The right to obtain an education free from discrimination in a safe and supportive learning environment in any educational institution.

(5) The right to exercise any right granted under this article without suffering coercion or retaliation.

(e) *Exceptions.* Notwithstanding the foregoing, the following are not discriminatory practices prohibited by subsection (d)(1):

(1) A religious corporation, association, or society that employs an individual of a particular religion to perform work connected with the performance of religious activities by the corporation, association, or society.

(2) An employer who observes the conditions of a bona fide affirmative action plan or a bona fide seniority system which is not a pretext to evade the purposes of this article.

(f) *Creation of Birmingham Human Rights Commission.* The purpose of the Birmingham Human Rights Commission ("commission") shall be to promote principles of diversity, inclusion, and harmony in the City of Birmingham through education, community events, the provision of advice to the city council and mayor, and through receiving complaints made relative to this article.

(1) *Composition.* The commission shall be composed of 15 voting members who shall be broadly representative of the population of the city, including representatives of the communities enumerated in this article. Members shall be residents of the city.

a. The council shall present a slate of nine appointments for council

approval consisting of a representative resident from each council district of the city recommended by the councilor for each respective district;

b. The mayor shall appoint three representatives from recognized nonprofit organizations with missions related to human rights, civil rights or other anti-discrimination perspectives and three representatives of businesses or other employers with their principal places of business within the city;

c. In addition to the 15 voting members, the chief of police or his or her designee, the fire chief or his or her designee, the city's ADA compliance director or his or her designee and the city's human resources department director or his or her designee shall be non-voting members of the commission. The council may also designate a member from the council staff to serve as a non-voting member.

(2) *Terms.* Members shall serve a three-year term, provided, however, that five members shall serve an initial term of one year; five members shall serve an initial term of two years; and five members shall serve an initial term of three years. The non-profit and business representatives shall be distributed evenly across the staggered terms. The nine council appointees shall also be distributed evenly across the staggered terms: the Districts 1, 2 and 3 representatives shall serve an initial one year term; Districts 4, 5 and 6 representatives shall serve an initial two-year term; and Districts 7, 8 and 9 representatives shall serve an initial three-year term. Members shall be appointed for terms beginning on February 1, 2019.

(3) *Governance.* The commission shall elect a chairman, vice-chairman and secretary. The commission shall formulate its own procedures, and may create task forces or committees as it deems appropriate. These procedures are subject to review by the law department and approval of the city council.

(4) *Responsibilities.* The responsibilities of the commission include managing commission records and accounts, developing public education programs, providing training for commission members, managing citizen complaints, and any other tasks needed to help the commission perform its functions. It may use the services of attorneys, clerks, or other city government employees as necessary.

(5) *Activities.* The commission shall investigate, advise and report to the office of the mayor and each council member on matters of resolving discriminatory practices, including potential legislative or administrative actions to eliminate discriminatory practices; develop public education programs regarding compliance with this article and equal opportunity and treatment of all individuals; maintain and provide resources and contacts for appropriate local, federal and state agencies for persons complaining of violations of this article and other acts of discrimination; receive and report to the mayor and council complaints related to city operations and contracts; and present an annual report to the mayor and council, which shall include the number and types of complaints received during the year. The commission shall seek to conciliate complaints with the consent of all parties.

(g) *Enforcement.* Violations of this article are subject to the general penalty provisions in section 1-1-6 of the General Code of the City of Birmingham; provided, however, that violations shall be punishable by fine only. The maximum fine for a first violation shall be $100.00; the maximum fine for a second violation shall be $250.00; third and subsequent violations shall be subject to a maximum fine of $500.00.

(Ord. No. 17-121, § 1, 9-29-2017; Ord. No. 18-188, § 1, 12-7-2018; Ord. No. 19-9, § 1, 1-28-2019)

CHAPTER 5. BOARDS, COMMISSIONS, AND COMMITTEES

ARTICLE A. KEEP BIRMINGHAM BEAUTIFUL COMMISSION

Sec. 2-5-1. Created; powers and duties generally.

(a) There is hereby created the Keep Birmingham Beautiful Commission. This commission shall act in an advisory capacity to the mayor and council committee on public improvements in regard to the matters set out in this article. The commission shall not have the right to sue or be sued or to have or to hold property, and all money or property accruing to it shall be vested in and be the money or property of the city.

(b) The purpose of the commission shall be to initiate, direct and coordinate programs for improving the environment of the city and sustain that improvement on a continuing basis; to educate the public, business, industry, and schools about resource recovery, and encourage reuse, reduction, recycling, and utilization of recycled products; to beautify the streets, roadways, highways, city rights-of-way, parks, and other public lands within the city by encouraging the placing, planting and/or preservation of trees, flowers and shrubbery and other objects of beautification within the city; and to form a public/private partnership between the city and the community departments, boards, and like agencies of the city to enable and achieve these objectives.
(Code 1980, § 2-5-1; Ord. No. 92-128, 5-19-1992)

Sec. 2-5-2. Membership; removal from office; composition of members; term of office of members; vacancies in office; reappointment.

(a) *Membership.* The Keep Birmingham Beautiful Commission shall consist of 25 members appointed by the mayor. Each member shall be appointed for a term of three years to begin as of July 1 of the year in which appointed.

(b) *Removal from office, vacancies; reappointment.* Any member may be removed from office with or without cause by the commission by the affirmative vote of two-thirds of the entire commission. Any member may resign at any time by giving written notice to the chairperson. Such resignation will take effect on the date of receipt of such notice or at any later time specified therein. If a member fails to attend four regularly scheduled commission meetings during any fiscal year, the term of that member shall be terminated. Appointments to fill a vacancy may be made for the unexpired term at any time by the mayor.

(c) *Composition.* The commission shall consist of representatives in the following specified numbers from the following:

(1) Business and industry: nine;

(2) Community organizations: six;

(3) Education: three; and

(4) Members at large: four.

The director of streets and sanitation, or his or her authorized representative, and the then current presidents of the citizens' advisory board of the city and the city chamber of commerce shall be ex officio members of the commission with full power to vote and be counted in determination of a quorum in commission meetings. The mayor and the chairperson of the city council committee on parks and recreation shall serve as ex officio, nonvoting members of the commission.
(Code 1980, § 2-5-2; Ord. No. 92-128, 5-19-1992)

Sec. 2-5-3. Quorum; meetings; executive committee.

(a) Thirteen members of the Keep Birmingham Beautiful Commission shall constitute a quorum for any meeting.

(b) The commission shall hold regular meetings bimonthly. Special meetings may be called by the chairperson upon written notice to the members, which notice shall be sufficient if mailed, postage prepaid, addressed to each member, six days prior to such special meetings. Special meet-

ings may also be held at any time upon written waiver of notice executed by each member of the commission.

(c) The executive committee shall be composed of the officers of the commission, and the chairmen of the standing committees. The chairperson of the commission shall act as chairperson of the committee. The executive committee shall have the power to act on behalf of the commission on matters requiring action between meetings of the commission, except that it may not modify any action taken by the commission. A quorum of seven shall be necessary to conduct business.
(Code 1980, § 2-5-3; Ord. No. 92-128, 5-19-1992)

Sec. 2-5-4. Officers.

(a) *Designated.* The officers of the Keep Birmingham Beautiful Commission shall be a chairperson, a vice-chairperson and treasurer. The officers of the commission shall perform those duties prescribed by this article, by the bylaws, or by formal city council resolution or ordinance.

(b) *Chairperson.* The chairperson shall serve as the chief executive officer of the commission, shall act as public spokesman of the commission at public functions, shall prepare an annual report, shall serve as ex officio member of all committees, shall designate the duties of the executive coordinator, shall appoint the chairperson and vice-chairperson of all standing committees upon the advice and consent of the commission, shall appoint ad hoc committees upon the direction of the commission, may appoint a parliamentarian, and shall perform all other duties as the commission elects.

(c) *Vice-chairperson.* The vice-chairperson will act in the place and stead of the chairperson in the event of his or her absence or inability and shall exercise and discharge such other duties as may be required of him or her by the chairperson.

(d) *Treasurer.* The treasurer will keep accurate records of the funds, debits, expenses and donations of the commission.
(Code 1980, § 2-5-4; Ord. No. 92-128, 5-19-1992)

Sec. 2-5-5. Executive coordinator.

The executive coordinator of the Keep Birmingham Beautiful Commission shall be the nonvoting secretary of the commission. The coordinator shall be the custodian of all minutes and records of the commission and perform such other duties as the commission may deem necessary and consistent with both the responsibilities to the commission and his or her responsibilities to the city. The coordinator shall be an employee of the city and shall work under the supervision and control of the mayor or his or her designee for the purpose of implementing the purposes of the commission.
(Code 1980, § 2-5-5; Ord. No. 92-128, 5-19-1992)

Sec. 2-5-6. Nominating committee.

(a) *Constituents.* The nominating committee shall consist of the three immediate past chairmen. Prior to the annual February meeting of the commission, the nominating committee shall report its choice of not more than two persons for each office to be filled. Each name submitted must have a minimum of two years of their regular membership remaining to be considered for the office of vice-chairperson. The vice-chairperson shall be nominated to the office of chairperson at the termination of the term of the next preceding chairperson. No name shall be presented without the consent of the nominee to serve if elected.

(b) *Candidates.* The nominating committee shall report at the annual March meeting the names selected for consideration as chairperson, vice-chairperson and treasurer. Additional nominations may be made from the floor at the annual March meeting providing the consent of the nominee has been obtained. The nominations in the report of the nominating committee with the additional nominations that may be made from the floor shall constitute the official ballot for the annual election. However, if there is but one nominee for any office, this nominee shall be elected by a majority vote. From these individuals a chairperson, vice-chairperson and treasurer shall be elected by the members of the commission at the first regular meeting at which a quorum is present after March 1 each year for a term to begin July 1 of such year and terminate on June 30 of the following year. A majority ballot shall elect. A quorum must be present.

(c) *Term.* The nominating committee shall function until a new nomination committee is appointed and shall offer candidates for all vacancies which occur in elective offices with the exception of chairperson. Upon a vacancy in the office of chairperson, the vice-chairperson shall assume the office of chairperson.
(Code 1980, § 2-5-6; Ord. No. 92-128, 5-19-1992)

Sec. 2-5-7. Budget; management of funds.

(a) *Budget.* The fiscal and administrative year of the Keep Birmingham Beautiful Commission shall begin on July 1 of each year. The annual budget shall be prepared in compliance with requirements of the city finance department by the treasurer.

(b) *Management of funds.* The commission will have the power to receive and disburse funds within the limitations of appropriations, gifts and grants budgeted to it and in connection with approved projects or undertakings; and the commission will be empowered to contract with any private or public agency to the extent for its proper operation provided such actions are in accordance with and do not conflict or otherwise violate any provision of this Code or other ordinance or resolution of the city. The commission shall have no power or authority to bind or obligate the city beyond the amount appropriated by the city council for its purpose. Additionally, and in due time, the commission will present its proposed budget to become effective July 1, indicating its anticipated revenues and expenditures and the source of its anticipated revenues. The commission shall keep such records as will enable it to make such reports and accounting, and the same will be subject to verification and examination by the director of finance and/or auditors of the city. All existing Birmingham Beautification Board monetary funds remain as established; and proper action shall be taken to explicitly clarify, in writing, the necessary procedure for the expenditure and/or commitment of any Birmingham Beautification Board funds by the Keep Birmingham Beautiful Commission.
(Code 1980, § 2-5-7; Ord. No. 92-128, 5-19-1992)

Sec. 2-5-8. Compensation.

The members of the Keep Birmingham Beautiful Commission shall receive no compensation whatsoever for their services, nor shall they receive compensation or per diem for attending meetings. No travel expense or other expense incurred by a member of the commission or anyone acting therefor, while out of the city, shall be paid out of any money appropriated by the city council for the use of the commission. The executive coordinator is, however, a paid employee hired by the mayor and is therefore a compensated employee.
(Code 1980, § 2-5-8; Ord. No. 92-128, 5-19-1992)

Secs. 2-5-9, 2-5-10. Reserved.

ARTICLE B. MUSEUM BOARD*

Sec. 2-5-11. Created.

There is hereby created the museum board of the city.
(Code 1964, § 2-81; Code 1980, § 2-5-11)

Sec. 2-5-12. Membership; election and term of office of members.

The museum board shall consist of members as follows:

(1) *Fifteen regular members.*

a. The term of office of a regular member is six years, beginning on September 1 and ending August 31, six years thereafter. (The fiscal year of the Birmingham Museum of Art Board begins September 1 and ends August 31 of the following year.) Their successors shall be elected by a majority of the other regular members of the museum board then in office, together with the ex officio members of the board. In the event any member should die, resign or for any reason become unable or otherwise disqualified to serve, the remaining regular members, together with the ex officio members, may elect a successor to fill the unexpired portion of the term of that member.

*__State law reference—__Authority of cities as to museums and art galleries, Code of Ala. 1975, § 11-47-16.

b. The election of all regular members of the board is subject to confirmation by the city council of the city; provided, however, that if the city council should fail to confirm any person who has been elected by the museum board within 60 days after the election has been certified to it, the board shall elect and certify to the city council another person for its consideration, which process shall continue until a person is elected and certified to the city council who is acceptable to it and is confirmed by it.

c. No regular member may be elected for more than two consecutive terms of six years each; provided, however, if any person should be elected a regular member to fill the unexpired portion of less than three years of the term of a member who shall have died, resigned or for any reason become unable or otherwise disqualified to serve, or has been elected to serve a term of less than three years, the person elected as successor to fill the same shall be eligible to serve two consecutive terms thereafter.

(2) *Annual members.*

a. The regular members, together with ex officio members, may, in their discretion, elect not more than six annual members of the board for terms of not more than one year each, beginning on or after September 1, the first day of the fiscal year, and ending the following August 31, the last day of the same fiscal year. No annual member shall be eligible for election to succeed himself or herself for a consecutive term; provided, however, in the event an annual member should die, resign or for any reason become unable or otherwise disqualified to serve, the regular members, together with the ex officio members, may elect a successor to fill the unexpired portion of the term of that annual member. If the unexpired portion of the term of that annual member be less than six months, the person elected as successor to fill the same shall be eligible for election for the ensuing one-year term thereafter.

b. The election of all annual members is subject to confirmation by the city council of the city under the same procedure which applies to the confirmation of regular members.

(3) *Ex officio members.*

a. The director of finance of the city shall be a member of the board, ex officio; he or she shall have and be vested with authority to authorize any employee of the finance department of the city to act in his or her place and stead at any or all meetings of the board, with full power to vote and be counted in the determination of a quorum at meetings of the board.

b. See section 2-5-13 pertaining to ex officio membership of a chairperson or a secretary of the board who is not a member of the same.

(4) *Advisory members.* The regular members of the board, together with the ex officio members, may, in their discretion, elect advisory members of the board for terms of one year each who shall not have the right or power to vote and who shall not be counted the determination of a quorum for meetings of the board.

(5) *Honorary members.* The regular members of the board, together with the ex officio members, may, in their discretion, elect honorary members of the board for life, or for a lesser period of time, who shall not have the right or power to vote, and who shall not be counted in the determination of a quorum for meetings of the board.

(Code 1964, § 2-82; Code 1980, § 2-5-12; Ord. No. 84-82, 4-17-1984)

Sec. 2-5-13. Chairperson, vice-chairperson and secretary.

(a) The regular members of the board shall elect a chairperson, vice-chairperson and a secretary, either or all of which may be from among their number or a nonmember of the board.

(1) In the event the elected chairperson, vice-chairperson or secretary is a member of the board, such person shall hold office as such until the person's term of office as a member of the board shall expire.

(2) In the event the elected chairperson, vice-chairperson or secretary is not a member of the board, such person shall not hold office as such unless and until confirmed by the city council of the city, and if and when confirmed, such person shall be an ex officio member of the board with full power to vote and be counted in the determination of a quorum at meetings of the board while serving as chairperson, vice-chairperson or as secretary. The term of office of a nonmember of the board who is confirmed as chairperson, vice-chairperson or as secretary shall be six years from the date of confirmation, beginning with the effective date stated in the resolution of confirmation.

(3) The term of office of a chairperson, vice-chairperson or a secretary, whether a member or a nonmember of the board, may be terminated at any time by a two-thirds vote of all the regular members of the board.

(b) The name of each person who is elected a regular member or an annual member of the board, and the names of all elected officers who are not members of the board, shall be promptly certified to the city council by the chairperson, vice-chairperson or secretary of the board for confirmation or nonconfirmation by it.
(Code 1980, § 2-5-13)

Sec. 2-5-14. Treasurer.

The museum board shall elect from its membership a treasurer and any assistant treasurers as it deems advisable, each of whom shall give bond with corporate surety in the amount of $20,000.00, payable to the city, and conditioned upon the faithful discharge of the duties of that person. The expense or premium of these bonds shall be paid by the museum board. The treasurer elected by the museum board shall have custody of all funds of the board other than those funds appropriated by the city council, subject to the control of the museum board.
(Code 1964, § 2-84; Code 1980, § 2-5-14)

Sec. 2-5-15. Members not to be compensated.

The members of the museum board shall receive no compensation whatever for their services, nor shall they receive compensation or per diem for attending meetings. No traveling expense or other expense incurred by a member of the board or anyone acting therefor, while out of the city, shall be paid out of any money appropriated by the city council for the use of the board.
(Code 1964, § 2-85; Code 1980, § 2-5-15)

Sec. 2-5-16. Employees.

(a) The city council shall hire, subject to its merit system, those employees as it may determine to be necessary for the operation of the museum. Those employees shall be responsible to and under the direction of the museum board, and their salary shall be fixed jointly by the city council and the personnel board of the county and shall be paid out of any sum set aside and appropriated by the city for the use of the museum board. The board may hire any additional personnel as it desires to be paid out of funds other than those appropriated by the city.

(b) The museum board may designate any officer of the board, agent or employee hired by it or under contract to it or any person employed by the city council as the person who shall be responsible to the board and to the city for the care and safekeeping of all objects of art, artifacts, furniture and other property in the museum building or otherwise in the custody and control of the board, whether the property is owned by the city or is on loan to the museum. That person shall give bond with corporate surety, to be approved by the director of finance, in such amount payable to the city as the city council may prescribe, condi-

tioned upon the faithful discharge of the duties of that person. The expense or premium of the bond shall be paid by the museum board.
(Code 1964, § 2-86; Code 1980, § 2-5-16)

Sec. 2-5-17. Powers and duties generally.

The museum board shall have the power to do the acts and things necessary to carry out the objectives and purposes set forth in this article; to acquire, by purchase, gift or loan, any land, premises, money, securities, objects of art or other property for museum uses and purposes; to buy and sell and otherwise deal in property necessary to carry out its objectives; to cooperate with any public or private corporation or organization; to do any lawful act necessary or expedient to maintain and improve museum facilities for the people of the city; to provide for the exhibition, particularly to students of the public schools and in general to the population of the city, statuary and all forms of the graphic and decorative arts and other fine arts; to arouse interest, by any means deemed appropriate, in the cultivation of artistic talents and in the exhibition and recognition of artistic achievements; to provide rules and regulations for its governance and the governance of its officials, employees and personnel under contract to it and of any premises or property which may from time to time be in its custody, provided such rules and regulations are in accordance with and do not conflict with or otherwise violate any provision of this Code or other ordinance or resolution of the city. In the exercise of its powers, the museum board shall have no power or authority to bind or obligate the city beyond the amount appropriated by the city council for its purposes.
(Code 1964, § 2-87; Code 1980, § 2-5-17)

Sec. 2-5-18. Management, custody and control of objects of art; no right to sue or be sued.

(a) The management, custody and control of any sculpture, paintings and other objects of art belonging to the city which the city council may by resolution place under the control and management of the museum board shall be vested in the museum board, and the board shall exercise, subject to the control of the city council, all the powers of the city with respect to establishing maintaining and operating a museum of fine arts, which shall bear the name of "Birmingham Museum of Art."

(b) The board shall not have the right to sue or be sued, and all property and property interests accruing to it shall be vested in the city and held by it for the city.
(Code 1964, § 2-88; Code 1980, § 2-5-18)

Note—Operation of a municipal art museum by the city is within the exercise of the sovereign power of the city for the benefit of all the citizens. It is therefore a governmental function, and the city is immune from tort liability. *Parr* v. *City of Birmingham,* 264 Ala. 225, 85 So. 2d 888 (1955).

Sec. 2-5-19. Budget; appropriations; financial procedures.

(a) The museum board shall submit to the finance director at a time prescribed by the finance director a detailed budget of estimated revenues and expenditures for the upcoming fiscal year.

(b) The amount of the appropriation made from time to time by the city council for the support and maintenance of the museum shall be held by the director of finance and shall be paid out by him or her only on vouchers formally approved by the museum board, or by one of the following of its officers:

(1) The chairperson of the museum board;

(2) The vice-chairperson of the museum board; and

(3) The chairperson of the finance committee of the museum board.

In all cases where these vouchers are approved by one of such officers, their action shall be reviewed by the museum board at its next regular meeting. These vouchers shall be retained in the office of the director of finance.

(c) Funds, other than those appropriated by the city council, shall be administered by the museum board and expended by it, in its discretion, for the operation of the Birmingham Museum of Art, including the carrying out of any of the objectives or purposes set forth in this article, and all books and records pertaining thereto shall

at all times be subject to inspection and audit by the director of finance or other person designated by the city council.

(d) For the purpose of coordinating the accounting with that used in the finance department, the director of finance is hereby authorized to determine the method of accounting for all receipts and expenditures of the museum board, including the form of vouchers and general accounting records.
(Code 1980, § 2-5-19)

Sec. 2-5-20. Sale or exchange of works of art.

(a) Notwithstanding any other provision of this Code, the museum board shall have authority to approve the sale, exchange or other disposition for not less than fair value, of museum works of art, provided that the museum director and museum curator have recommended such action as in the best interest of the museum collection, and further, provided that any received written expression of the wishes of the donor of a work of art shall not be contradicted without written approval of that donor or the heirs or legal representative of such donor.

(b) The following procedures shall be followed in the sale or exchange of museum works of art:

(1) The museum board shall adopt a resolution approving the sale or exchange of any work of art. Such resolution shall identify the said work of art, shall state that the sale or exchange has been recommended by the museum director and museum curator, shall set forth the procedures to be utilized to effect the sale or exchange and shall state the apparent value of the work of art as certified by the museum director and museum curator.

(2) If the apparent value of the work of art to be sold or exchanged is so certified to be $2,000.00 or more, the museum board shall, in the case of a sale, have made an appraisal of the art by two independent art appraisers; and, in the case of an exchange, a similar appraisal of the art to be obtained in trade.

(3) At a regular meeting or a special meeting called for that purpose, the museum board shall exhibit to the purchasing agent of the city the board's resolution set forth in subsection (b)(1) of this section, together with the reports, where applicable, of independent appraisals, and upon the purchasing agent's finding of the museum board's compliance with this section, the purchasing agent will approve the sale or exchange and communicate that approval to the finance director of the city, which approval shall be the finance director's authority to thereafter execute all documents necessary to transfer title or otherwise effect the sale or exchange of works of art on behalf of the city.

(c) The proceeds from such sales or exchanges of works of art shall be received by the museum board and may be expended by it only for the acquisition of other works of art.
(Code 1980, § 2-5-20; Ord. No. 83-61, 5-3-1983)

Secs. 2-5-21—2-5-30. Reserved.

ARTICLE C. RED MOUNTAIN MUSEUM BOARD

Sec. 2-5-31. Definitions.

For the purposes of this article, the following words and phrases shall have the meanings respectively ascribed to them by this section:

Board or *museum board* means the board of the Red Mountain Museum as herein constituted.

Director of finance means the director of finance of the City of Birmingham.

Museum means the Red Mountain Museum.

Red Mountain Museum means the museum of the city established by this article.
(Code 1964, § 2-98; Code 1980, § 2-5-31)

Sec. 2-5-32. Created.

There is hereby created a museum board of this city for a museum of geology, science, industry, natural history, local history and related subjects, to be known as Red Mountain Museum, the

establishment of which has been initiated by a gift to the city from Linn-Henley Charitable Trust created by Walter E. Henley.
(Code 1964, § 2-99; Code 1980, § 2-5-32)

Sec. 2-5-33. Membership; appointment; term of office.

The museum board of the Red Mountain Museum shall consist of members as follows:

(1) *Regular members.*

a. The board shall consist of 29 regular members. A quorum shall exist when ten regular members (trustees) are present.

b. Their successors shall be elected by a majority of the other regular and ex officio members of the museum board then in office, and they shall serve for terms of three years. In the event any member should die, resign or for any reason become unable or otherwise disqualified to serve, the remaining regular and ex officio members may elect a successor to fill the unexpired portion of the term of that member.

c. The election of all regular members of the board is subject to confirmation by the city council of the city. If the city council should fail to confirm any person who has been elected by the museum board within 60 days after the election has been certified to it, the board shall elect and certify to the city council another person for its consideration, which process shall continue until a person is elected and certified to the city council who is acceptable to it and is confirmed by it.

d. No regular member may be elected for more than three consecutive terms of three years each; provided, however, that if any person should be elected a regular member to fill the unexpired portion of less than one year of the term of a member who shall have died, resigned or for any reason become unable or otherwise disqualified to serve, the person elected as successor to fill the same shall be eligible to serve three consecutive terms thereafter.

e. The nine original regular members herein named to serve for a term of one year or less are eligible to serve for three additional terms of three years each.

(2) *Annual members.*

a. The regular members, together with the ex officio members, may in their discretion elect not more than six annual members of the board for terms of not more than one year each. No annual member shall be eligible for election to succeed himself or herself for a consecutive term; provided, however, that in the event an annual member should die, resign or for any reason become unable or otherwise disqualified to serve, the regular members, together with the ex officio members, may elect a successor to fill the unexpired portion of the term of that annual member. If the unexpired portion of the term of that annual member be less than six months, the person elected as successor to fill the same shall be eligible for election for the ensuing one-year term thereafter.

b. The election of all annual members is subject to confirmation by the city council of the city under the same procedure which applies to the confirmation of regular members.

(3) *Ex officio members.*

a. The director of finance of the city shall be a member of the board, ex officio; he or she shall have and be vested with authority to authorize any employee of the finance department of the city to act in his or her place and stead at any or all meetings of the board, with full power to

vote and be counted in the determination of a quorum at meetings of the board.

b. The state geologist, subject to his or her consent, shall serve as an ex officio member of the museum board. The executive director of the Alabama Historical Commission, subject to his or her consent, shall serve as an ex officio member of the museum board.

c. The president of the Red Mountain Museum Society, a nonprofit corporation organized to aid and assist the Red Mountain Museum, subject to his or her consent, shall serve as an ex officio member of the museum board.

d. This person shall further have and be vested with authority to authorize any employee of his or her respective department or commission to act in his or her place and stead at any or all meetings of the board, with full power to vote and be counted in the determination of a quorum at meetings of the board.

(4) *Advisory members.* The regular members of the board, together with the ex officio members, may in their discretion, elect advisory members of the board for terms of one year each, who shall not have the right or power to vote, and who shall not be counted in the determination of a quorum for meetings of the board.

(5) *Honorary members.* The regular members of the board, together with the ex officio members, may in their discretion elect honorary members of the board for life, or for a lesser period of time, who shall not have the right or power to vote, and who shall not be counted in the determination of a quorum for meetings of the board.

(Code 1964, § 2-100; Code 1980, § 2-5-33; Ord. No. 83-84, § 1, 5-31-1983)

Sec. 2-5-34. Chairperson, vice-chairperson and secretary.

(a) Election.

(1) The regular members of the board shall elect a chairperson, vice-chairperson and a secretary, either of which may be from among their number or a nonmember of the board.

(2) In the event the elected chairperson, vice-chairperson or secretary is a member of the board, such person shall hold office as such until the person's term of office as a member of the board shall expire.

(3) In the event the elected chairperson, vice-chairperson or secretary is not a member of the board, such person shall not hold office as such unless and until confirmed by the city council of the city, and if and when confirmed, such person shall be an ex officio member of the board with full power to vote and be counted in the determination of a quorum at meetings of the board while serving as chairperson, vice-chairperson or as secretary. The term of office of a nonmember of the board who is confirmed as chairperson, vice-chairperson or as secretary shall be six years from the date of confirmation, beginning with the date stated in the resolution of confirmation.

(4) The term of office of a chairperson, vice-chairperson or a secretary, whether a member of a nonmember of the board, may be terminated at any time by a two-thirds vote of all the regular members of the board.

(b) The name of each person who is elected a regular member or an annual member of the board, and the names of all elected officers who are not members of the board, shall be promptly certified to the city council by the chairperson, vice-chairperson or secretary of the board for confirmation or nonconfirmation by it.

(Code 1980, § 2-5-34)

Sec. 2-5-35. Treasurer.

The director of finance shall serve as treasurer of the board.
(Code 1964, § 2-102; Code 1980, § 2-5-35)

Sec. 2-5-36. Compensation.

The members of the museum board shall receive no compensation whatever for their services, nor shall they receive compensation or per diem for attending meetings. No traveling expense or other expense incurred by a member of the board or anyone acting therefor, while out of the city, shall be paid out of any money appropriated by the city council for the use of the board.
(Code 1964, § 2-103; Code 1980, § 2-5-36)

Sec. 2-5-37. Employees.

(a) The city council may authorize the employment, subject to the merit system, of any employees as it may determine to be necessary for the operation of the museum. These employees shall be responsible to and under the direction of the museum board, and their salary shall be fixed jointly by the city and the personnel board of the county and shall be paid out of any sum set aside and appropriated by the city council for the use of the museum board.

(b) The museum board may designate any officer of the board, agent or employee hired by it or under contract to it, or any person employed by the city, as the person who shall be responsible to the board and to the city for the care and safekeeping of all objects, artifacts, furniture and other property in the museum building or otherwise in the custody and control of the board, whether the property is owned by the city or is on loan to the museum. This person shall give bond with corporate surety to be approved by the director of finance, in an amount payable to the city as the city council may prescribe, conditioned upon the faithful discharge of the duties of this person. The expense or premium of this bond shall be paid by the museum board.
(Code 1964, § 2-104; Code 1980, § 2-5-37)

Sec. 2-5-38. Powers and duties.

The museum board shall have the power to do the acts and things necessary to carry out the objectives and purposes set forth in this article; to acquire, by purchase, gift or loan, any land, premises, money, securities, objects or other property for museum uses and purposes; to buy and sell and otherwise deal in property necessary to carry out its objectives; to cooperate with any public or private corporation or organization and other governmental bodies and to do those things which will contribute to the national significance of the geological and other aspects of the Red Mountain cut; to any lawful act necessary or expedient to maintain and improve museum facilities for the people of the city; to provide for the exhibition, particularly to students of the public schools, and in general to the population of the city and others interested, objects, documents or other matters pertaining to geology, science, industry, natural history, local history and related subjects; to provide rules and regulations for its governance and the governance of its officials, employees and personnel under contract to it, and of any premises or property which may from time to time be in its custody; provided that these rules and regulations are in accordance with and do not conflict with or otherwise violate any provision of this Code or other ordinance or resolution of the city. In the exercise of its powers the museum board shall have no power or authority to bind or obligate the city beyond the amount appropriated by the city council for its purposes.
(Code 1964, § 2-105; Code 1980, § 2-5-38)

Sec. 2-5-39. Management, custody and control of objects and facilities; right to sue or be sued.

(a) The management, custody and control of any and all facilities and objects of geology, science, industry, natural history, local history and related subjects belonging to the city which the city council may by resolution place under the control and management of the museum board shall be vested in the museum board, and the board shall exercise, subject to the control of the city council, all the powers of the city with respect to establishing, maintaining and operating a museum of geology science, industry, natural history, local history and related subjects, which shall bear the name of Red Mountain Museum.

(b) The board shall not have the right to sue or be sued, and all property and property interests accruing to it shall be vested in the city and held by it for the city.
(Code 1964, § 2-106; Code 1980, § 2-5-39)

Sec. 2-5-40. Budget; appropriations; financial procedures.

(a) The museum board shall submit to the finance director at a time prescribed by him or her, a detailed budget of estimated revenues and expenditures for the upcoming fiscal year.

(b) The amount of the appropriation made from time to time by the city council for the support and maintenance of the museum shall be held by the director of finance and shall be paid out by him or her only on vouchers formally approved by the museum board, or by one of the following of its officers:

(1) The chairperson of the museum board;

(2) The vice-chairperson of the museum board; and

(3) The chairperson of the finance committee of the museum board.

In all cases where these vouchers are approved by one of these officers, their action shall be reviewed by the museum board at its next regular meeting. These vouchers shall be retained in the office of the director of finance.

(c) Funds, other than those appropriated by the city council, shall be administered by the museum board and expended by it, in its discretion, for the operation of the Red Mountain Museum, including the carrying out of any of the objectives or purposes set forth in this article, and all books and records pertaining thereto shall at all times be subject to inspection and audit by the director of finance or other person designated by the city council.

(d) For the purpose of coordinating the accounting with that used in the finance department the director of finance is hereby authorized to determine the method of accounting for all receipts and expenditures of the museum board, including the form of vouchers and general accounting records.
(Code 1980, § 2-5-40)

Secs. 2-5-41—2-5-50. Reserved.

ARTICLE D. CABLE TELEVISION COMMISSION

Sec. 2-5-51. Created.

There is hereby created an agency of the city to be known as the Birmingham Cable Television Commission.
(Code 1964, § 2-108; Code 1980, § 2-5-51)

Sec. 2-5-52. Members—Generally.

The cable television commission shall consist of seven members appointed by the city council who shall serve for four-year terms. Each member of the commission shall be 18 years of age or older and shall be a resident and qualified elector of the city at the time of appointment and throughout his or her tenure of office. Members shall not be eligible for reappointment more than once. The membership shall include at least two persons from the city's African-American community and at least one person of the female sex. In the case of a vacancy, the city council shall appoint a qualified person to fill the unexpired term. No person who is employed by or owns more than 0.01 percent of the total outstanding stock in any cable television, television, radio or newspaper business shall be eligible for appointment or to serve as a member of the commission, nor shall any person whose wife, husband, parent, brother, sister, son or daughter is employed by or owns more than 0.01 percent of the outstanding stock in any cable television, television, radio or newspaper business be eligible for appointment or to serve as a member of the commission.
(Code 1964, § 2-109; Code 1980, § 2-5-52; Ord. No. 91-190, 6-25-1991)

Sec. 2-5-53. Same—Removal; effect of vacancy on proceedings.

The city council may at any time by an affirmative vote of six thereof remove any member of the cable television commission for any cause deemed sufficient by it. The existence of a vacancy on the commission shall not invalidate any proceeding thereof if a quorum is present at the time.
(Code 1964, § 2-110; Code 1980, § 2-5-53)

Sec. 2-5-54. Same—Compensation.

Each member of the cable television commission shall be entitled to and shall be paid by the city at the rate of $15.00 per meeting but not to exceed $60.00 per month; provided that the city council reserves the right to, at any time, increase or decrease this compensation or, at any time, otherwise amend this section or this article in any respect whatsoever.
(Code 1964, § 2-111; Code 1980, § 2-5-54)

Sec. 2-5-55. Officers; minutes; quorum generally.

The cable television commission shall elect a chairperson and a vice-chairperson from its membership and a secretary who may or may not be a member of the commission. The secretary shall keep the minutes of the commission, which minutes shall be public records and available for public inspection at all reasonable times in the office of the city clerk. Four members of the commission shall constitute a quorum.
(Code 1959, § 2-112; Code 1980, § 2-5-55; Ord. No. 91-191, 6-25-1991)

Sec. 2-5-56. Bylaws; contracting for, etc., city.

The cable television commission shall at its first meeting or an adjournment thereof, adopt bylaws for the commission which may from time to time be amended as provided in the bylaws. The commission shall have no authority to contract for or otherwise bind or obligate the city.
(Code 1964, § 2-113; Code 1980, § 2-5-56)

Sec. 2-5-57. Powers and duties generally.

The powers and duties of the cable television commission shall be as follows:

(1) To adopt reasonable rules and regulations to be complied with by the holder of any cable television franchise granted by the city council; provided that no such rule or regulation shall conflict with or be inconsistent with the franchise or any valid regulation, ordinance or law of the city, the state or the United States of America or any agency thereof.

(2) To review all complaints filed with any such cable television franchise grantee that are not satisfactorily resolved by the grantee and reduce to writing any suggestion as to the disposition or solution thereof. A copy of the suggested solution shall be delivered to the cable television franchise grantee and the complaint resolved pursuant to such suggestion; provided that the franchise grantee, instead of implementing the suggestion, may request a public hearing before the commission. In this case, the commission shall provide a hearing and hear any evidence or information bearing on the complaint offered by the franchise grantee, the complaining party and any other interested party or parties. After the hearing, the commission shall render in writing its decision in regard to the complaint, a copy of which shall be furnished the franchise grantee, the complaining party and the city clerk. Either party may, within five days after the rendition of the commission's decision, appeal to the city council by filing in writing notice of the appeal with the city clerk. The city council shall, within 15 days after the filing of the notice, set the same for a public hearing before the city council and at the hearing or any adjournment thereof shall hear any material and relevant evidence offered by or on behalf of the franchise grantee, the complaining party or any other interested party and render a decision as to the way or manner in which the complaint shall be resolved. The decision of the city council in any such case shall be final.

(3) To establish regulations to be complied with by the cable television franchise grantee for the use of public channels by the public.

(4) To require reports from the cable television franchise grantee relating to any aspect of its business including, but not limited to, its construction schedule, its progress and probable completion date, its operations budget, expenditures and programming plans and schedules.

(5) To keep itself informed as to the compliance of the cable television franchise grantee with its franchise obligations and, when within its authority, to require the performance.

(6) To keep the city council advised by regular reports as to the compliance or noncompliance of the cable television franchise grantee with its franchise obligations.

(Code 1964, § 2-114; Code 1980, § 2-5-57)

Secs. 2-5-58—2-5-70. Reserved.

ARTICLE E. BIRMINGHAM LIBRARY BOARD

Sec. 2-5-71. Control of library interests.

The management and control of the Birmingham Public Library, its several branches and all other library interests of the city shall be vested in the city library board.
(Code 1964, § 30-1; Code 1980, § 2-5-71)

Sec. 2-5-72. Membership; term; election; vacancies.

The library board shall consist of nine members, to be appointed by the city council. The term of office of each of the members of such board appointed by the city council shall be five years. In addition to the members of such board appointed by the city council, the duly elected president of the Friends of Birmingham Public-Jefferson County Free Library, Inc., or any successor to such organization, shall at all times be an advisory nonvoting member of such board by virtue of his or her office. At the last regular meeting of the city council in each calendar year, successors shall be elected to the members of the library board appointed by the city council whose terms of office expire at the end of such year, such members to serve for five years or until their successors are elected and qualified, and to enter upon their duties at the first meeting of such board in January following. In the event of the death or resignation of any member of the library board appointed by the city council prior to the expiration of his or her term of service, or other vacancy among the members of such board appointed by the city council, the city council shall proceed forthwith to elect a member of the board, who, in the event of his or her election to fill a vacancy created by death or resignation, shall serve out such unexpired term, and shall enter upon his or her duties at the next regular monthly meeting of the board.
(Code 1964, § 30-2; Code 1980, § 2-5-72; Ord. No. 79-7, 1-23-1979; Ord. No. 82-21, 2-16-1982; Ord. No. 11-97, 8-2-2011; Ord. No. 18-70, § 1, 6-1-2018)

Sec. 2-5-73. Powers and duties of library board.

(a) The library board shall have power to manage and control the Birmingham Public Library and all other library property owned by or under the control of the city; to acquire for the city, by purchase or gift, land, money, securities, books or other property for library uses and purposes; to transfer in the name of the city any books or other personal property, or any lease upon land which it may have negotiated; to provide for the erection or rental of library buildings, branches, stations, reading rooms and reference rooms and to maintain the same; to provide and maintain galleries, lecture halls, museums and book distribution agencies and instrumentalities; to annually elect from its members a president and vice-president; to provide rules and regulations for its own governance, the governance of its officials and employees and the governance of the libraries, branches, stations, reading rooms, museums and lecture halls under its control; to appoint a library director, librarians, library assistants, employees, servants and agents in such number as may be necessary for the proper administration of the library system of the city.

(b) In the exercise of its powers the library board shall have no power or authority to bind or obligate the city beyond the amount appropriated by the city council for library purposes.
(Code 1964, § 30-3; Code 1980, § 2-5-73)

Sec. 2-5-74. Compensation of members.

The members of the library board shall receive no compensation whatever for their services, but in the event it is found necessary for the better performance of their duties for any member or

committee of members to make any trips for inspection of library systems or buildings or for the purchase of books, actual traveling and living expenses on these trips shall be paid; provided that full and detailed vouchers of these expenses shall be filed and preserved.
(Code 1964, § 30-4; Code 1980, § 2-5-74)

Sec. 2-5-75. Powers and duties of library director.

The chief executive officer of the library board and of the library system shall be a director, to be chosen by the board, who shall serve during the pleasure of the board, which shall fix his or her compensation. The director shall be ex officio secretary of the board, and shall carefully preserve its proceedings and be responsible for the custody and safekeeping of all of its archives, records and papers. He or she shall take an oath of office similar to that of the board members, to be entered at length upon the minutes of the meeting following entrance upon his or her term of service, and the original shall be preserved in the permanent records of the board. He or she shall execute a bond in some responsible guaranty company for the faithful performance of his or her duties and the careful preservation of the records and property which may come into his or her possession which shall be payable to the city in a sum to be fixed by the library board, not less than $3,000.00, the bond to be entered at length upon the proceedings of the board and the original to be filed with the city clerk. The director shall devote his or her full time to the work of his or her office, and in the performance of his or her duties he or she shall act under the direction of the board, but they may confer upon him or her the power of appointment or the recommendation for appointment of all librarians, library officials, assistants, employees or servants, as well as those other powers and authority as may be deemed proper. He or she shall make an annual report to the board, covering every detail and phase of the work of the library system of the city, which report, together with the report of transmittal from the board to the city council, shall be printed in pamphlet form for free distribution. He or she shall prepare, edit and publish these bulletins, book lists, catalogues or other publications as may be directed by the board, which he or she may consider desirable in connection with or for the development of the library work of the city, the cost of all such printing to be met from the appropriations for the maintenance of the board.
(Code 1964, § 30-5; Code 1980, § 2-5-75)

Sec. 2-5-76. Budget; appropriation for maintenance.

The library board shall adopt a detailed budget of estimated expenditures for the coming year, which shall be transmitted in a formal communication to the director of finance on forms prescribed by the director of finance who shall submit the library budget to the mayor. The city council shall set aside and appropriate, for the use of the board for the maintenance of the library system of the city, either all or any part of the estimated budget as may be available or deemed proper by the city council. The amount of the appropriation made from time to time by the city council for the support and maintenance of the library system shall be held by the director of finance as a special fund for library purposes, and it shall be paid out by him or her on requisitions or warrants drawn by the director of the library board and countersigned by the president, or the vice-president when acting in his or her place. No requisition or warrant shall be drawn unless in pursuance of a resolution of the library board, entered upon its minutes. All fiscal records, accounting and purchasing and financial reporting of the library board shall conform with the fiscal procedures of the city.
(Code 1980, § 2-5-76)

Sec. 2-5-77. Returning borrowed books, etc.

(a) It shall be unlawful for any person who has been issued a membership card by the Birmingham Public Library, after receiving written notice as herein provided, to fail or refuse to return or cause to be returned any book, periodical, recording or other material borrowed or withdrawn from the Birmingham Public Library or any branch or bookmobile thereof on that card to the Birmingham Public Library, together with

all overdue assessments or late charges, in compliance with the rules of the library with respect thereto.

(b) The failure of any person borrowing or withdrawing any book, periodical, recording or other material from the Birmingham Public Library or any branch or bookmobile thereof on any membership card issued by the Birmingham Public Library to return the same within the time required by the rules of the Birmingham Public Library shall be prima facie evidence of intent not to return that material to the Birmingham Public Library by the holder of the membership card to which the material is charged.

(c) Any person who is shown to be the holder of a membership card upon the records of the Birmingham Public Library shall be chargeable with all loans or withdrawals made upon that membership card, unless that person shall have, prior to that loan or withdrawal, surrendered his or her card to the Birmingham Public Library or given written notification to the Birmingham Public Library of the loss or theft of the same.

(d) Before any holder of a membership card of the Birmingham Public Library shall be charged with any violation of this section, that holder shall first be given not less than ten days' written notice that borrowed or withdrawn library material is overdue. This notice shall be conclusively presumed to have been given when the notice is deposited with the United States Postal Service and addressed to the holder at the address shown upon the membership records of the Birmingham Public Library.

(e) Any person violating any provision of this section shall, upon conviction, be punished by a fine not in excess of $100.00.
(Code 1964, § 30-7; Code 1980, § 2-5-77)

Secs. 2-5-78—2-5-80. Reserved.

ARTICLE F. MUSEUM BOARD OF THE SOUTHERN MUSEUM OF FLIGHT

Sec. 2-5-81. Definitions.

For the purposes of this article, the following words and phrases shall have the meanings respectively ascribed to them by this section:

Board or *museum board* means the Board of the Southern Museum of Flight as herein constituted.

Director of finance means the director of finance of the city.

Museum means the Southern Museum of Flight.

Southern Museum of Flight means a museum of the city established by this article.
(Code 1980, § 2-5-81; Ord. No. 78-258, § 1, 12-19-1978)

Sec. 2-5-82. Created.

There is hereby created a museum board of this city for a museum of flight, aviation, science and related subjects, to be known as Southern Museum of Flight, the establishment of which has been initiated by a gift to the city from the Southern Museum of Flight, Incorporated.
(Code 1980, § 2-5-82; Ord. No. 78-258, § 2, 12-19-1978)

Sec. 2-5-83. Membership; appointment; term of office.

The museum board of the Southern Museum of Flight shall consist of members as follows:

(1) *Regular members.*

a. There shall be 11 regular members on the board, consisting of five members who shall serve a term ending on the second Tuesday in October 2015, three members who shall serve a term ending on the second Tuesday in October 2016, and three members who shall serve a term ending on the second Tuesday in October 2017. The original members shall be elected by a majority of the current board appointed

and serving as of the effective date of this section and shall be confirmed by the council as provided herein.

b. Their successors shall be elected by a majority of the other regular and ex officio members of the museum board then in office, and they shall serve for terms of three years and until their successors have been appointed and qualified. In the event any member should die, resign or for any reason become unable or otherwise disqualified to serve, the remaining regular and ex officio members may elect a successor to fill the unexpired portion of the term of such member.

c. The election of all regular members of the board is subject to confirmation by the council of the city. If the council should fail to confirm or reject any person who has been elected by the museum board within 30 days after the person's election has been certified to it, said person shall be deemed confirmed. In the event the council rejects any person elected and certified by the board, the board shall within 60 days, elect and certify another person for council consideration, which process shall continue until a person is elected and certified to the council who is acceptable and is confirmed by the council.

d. No regular member may be elected for more than four consecutive terms of three years each; provided, however, that if any person should be elected a regular member to fill the unexpired portion of less than one year of the term of a member who shall have died, resigned or for any reason become unable or otherwise disqualified to serve, the person elected as successor to fill the same shall be eligible to serve four consecutive terms thereafter.

e. The five regular members herein elected and confirmed to serve for a term ending on the second Tuesday in October 2015 are eligible to serve for four additional terms of three years each.

(2) *Annual members.*

a. The regular members, together with the ex officio members, may in their discretion elect not more than six annual members of the board for terms of not more than one year each. No annual member shall be eligible for election to succeed himself or herself for a consecutive term; provided, however, that in the event an annual member should die, resign or for any reason become unable or otherwise disqualified to serve, the regular members, together with the ex officio members, may elect a successor to fill the unexpired portion of the term of such annual member. If the unexpired portion of the term of such annual member be less than six months, the person elected as successor to fill the same shall be eligible for election for the ensuing one-year term thereafter.

b. The election of all annual members is subject to confirmation by the city council of the city under the same procedure which applies to the confirmation of regular members.

(3) *Ex officio members.* The director of finance of the city shall be a member of the board, ex officio; he or she shall have and be vested with authority to authorize any employee of the finance department of the city to act in his or her place and stead at any or all meetings of the board, with full power to vote and be counted in the determination of a quorum at meetings of the board.

(4) *Advisory members.* The regular members of the board, together with the ex officio members, may in their discretion elect advisory members of the board for terms

of one year each, who shall not have the right or power to vote, and who shall not be counted in the determination of a quorum for meetings of the board.

(5) *Honorary members.* The regular members of the board, together with the ex officio members, may in their discretion elect honorary members of the board for life, or for a lesser period of time, who shall not have the right or power to vote, and who shall not be counted in the determination of a quorum for meetings of the board.

(Code 1980, § 2-5-83; Ord. No. 78-258, § 3, 12-19-1978; Ord. No. 80-51, 3-25-1980; Ord. No. 15-94, § 1, 8-4-2015)

Sec. 2-5-84. Chairperson and secretary.

(a) The regular members of the board shall elect a chairperson and a secretary, either or both of which may be from among their number or a nonmember of the board.

(1) In the event the elected chairperson or secretary is a member of the board, such person shall hold office as such until the person's term of office as member of the board shall expire.

(2) In the event the elected chairperson or secretary is not a member of the board, such person shall not hold office as such unless and until confirmed by the city council of the city, and if and when confirmed such person shall be an ex officio member of the board with full power to vote and be counted in the determination of a quorum at meetings of the board while serving as chairperson or as secretary. The term of office of a nonmember of the board who is confirmed as chairperson or as secretary shall be three years from the date of confirmation.

(3) The term of office of a chairperson or a secretary, whether a member or a nonmember of the board, may be terminated at any time by a two-thirds vote of all of the regular members of the board.

(b) The name of each person who is elected a regular member or an annual member of the board, and the names of all elected officers who are not members of the board, shall be promptly certified to the city council by the chairperson or secretary of the board for confirmation or nonconfirmation by it.

(Code 1980, § 2-5-84; Ord. No. 78-258, § 4, 12-19-1978)

Sec. 2-5-85. Treasurer.

The director of finance shall serve as treasurer of the board.

(Code 1980, § 2-5-85; Ord. No. 78-258, § 5, 12-19-1978)

Sec. 2-5-86. Compensation.

The members of the museum board shall receive no compensation whatever for their services, nor shall they receive compensation or per diem for attending meetings. No traveling expense or other expense incurred by a member of the board or anyone acting therefor, while out of the city, shall be paid out of any money appropriated by the city council for the use of the board.

(Code 1980, § 2-5-86; Ord. No. 78-258, § 6, 12-19-1978)

Sec. 2-5-87. Employees.

(a) The city council may authorize the employment, subject to the merit system of such employees as it may determine to be necessary for the operation of the museum. Such employees shall be responsible to and under the direction of the museum board, and their salary shall be fixed jointly by the city and the personnel board of the county and shall be paid out of any sum set aside and appropriated by the city council for the use of the museum board.

(b) The museum board may designate any officer of the board, agent or employee hired by it or under contract to it, or any person employed by the city, as the person who shall be responsible to the board and to the city for the care and safekeeping of all objects, artifacts, furniture and other property in the museum building or otherwise in the custody and control of the

board, whether such property is owned by the city or is on loan to the museum. Such person shall give bond with corporate surety to be approved by the director of finance, in such amount payable to the city as the city council may prescribe, conditioned upon the faithful discharge of the duties of such person. The expense or premium of such bond shall be paid by the museum board.
(Code 1980, § 2-5-87; Ord. No. 78-258, § 7, 12-19-1978)

Sec. 2-5-88. Powers and duties.

The museum board shall have the power to do the acts and things necessary to carry out the objectives and purposes set forth in this article; to acquire, by purchase, gift or loan, any land, premises, money, securities, objects or other property for museum uses and purposes; to buy and sell and otherwise deal in property necessary to carry out its objectives; to cooperate with any public or private corporation or organization and other governmental bodies and to do those things which will contribute to the national significance of the museum; to do any lawful act necessary or expedient to maintain and improve museum facilities for the people of the city; to provide for the exhibition, particularly to students of the public schools, and in general to the population of the city and others interested, objects, documents or other matters pertaining to aviation and flight and related subjects; to provide rules and regulations for its governance and the governance of its officials, employees and personnel under contract to it, and of any premises or property which may from time to time be in its custody; provided that such rules and regulations are in accordance with and do not conflict with or otherwise violate any provision of this Code or other ordinance or resolution of the city. In the exercise of its powers, the

museum board shall have no power or authority to bind or obligate the city beyond the amount appropriated by the city council for its purposes.
(Code 1980, § 2-5-88; Ord. No. 78-258, § 8, 12-19-1978)

Sec. 2-5-89. Management, custody and control of objects and facilities; right to sue or be sued.

(a) The management, custody and control of any and all facilities and objects of aviation, flight and related subjects, belonging to the city which the city council may by resolution place under the control and management of the museum board shall be vested in the museum board, and the board shall exercise, subject to the control of the city council, all the powers of the city with respect to establishing, maintaining and operating a museum of aviation, flight, science and related subjects, which shall bear the name of Southern Museum of Flight.

(b) The board shall not have the right to sue or be sued, and all property and property interests accruing to it shall be vested in the city and held by it for the city.
(Code 1980, § 2-5-89; Ord. No. 78-258, § 9, 12-19-1978)

Sec. 2-5-90. Budget; appropriations; financial procedures.

(a) The museum board shall submit to the mayor, on or before April 10 of each year, a detailed budget of estimated expenditures for the fiscal year commencing July 1 of that year, which shall be transmitted in a formal communication to the city council. Upon its receipt, the city council may set aside and appropriate for the use of the board, for the maintenance of the museum and for the other authorized purposes of the board, either all or such part of such estimated budget as may be available or is by the city council deemed proper.

(b) The amount of the appropriation made from time to time by the city council for the support and maintenance of the museum shall be held by the director of finance and shall be paid out by him or her only on vouchers formally approved by the museum board, or by one of the following of its officers:

(1) The chairperson of the museum board;

(2) The vice-chairperson of the museum board;

(3) The chairperson of the finance committee of the museum board.

In all cases, where such vouchers are approved by one of such officers, their action shall be reviewed by the museum board at its next regular meeting. Such vouchers shall be retained in the office of the director of finance.

(c) Funds, other than those appropriated by the city council, shall be administered by the museum board and expended by it, in its discretion, for the operation of the Southern Museum of Flight, including the carrying out of any of the objectives or purposes set forth in this article, and all books and records pertaining thereto shall at all times be subject to inspection and audit by the director of finance or other person designated by the city council.

(d) For the purpose of coordinating the accounting with that used in the finance department, the director of finance is hereby authorized to determine the method of accounting for all receipts and expenditures of the museum board, including the form of vouchers and general accounting records.
(Code 1980, § 2-5-90; Ord. No. 78-258, § 10, 12-19-1978)

Secs. 2-5-91—2-5-101. Reserved.

ARTICLE G. BIRMINGHAM ARTS AND CULTURE COMMISSION

Sec. 2-5-102. Created.

(a) There is hereby created the Birmingham Arts and Culture Commission (hereafter referred to as "BACC"), which shall operate in lieu of the Birmingham Regional Arts Commission which is hereby dissolved. The BACC shall act in an advisory capacity to the city council for the purpose of encouraging and developing a more perfect harmony between the diverse arts and cultural organizations and their public audience; ensure an

equitable disbursement of city funds to the community as a means to ensure a positive and forthright course for cultural understanding and mutual respect amongst our culturally diverse heritage, promote participation between the many arts organizations together with the city board of education in order to enhance and provide opportunities for the city's youth to learn from and share in the arts and culture of our community; develop a program that will promote an active involvement from the greater Birmingham corporate community in the arts and culture of the city; and to promote and encourage support of the development and support of public art in public and private spaces through the city.

(b) BACC shall not have the right to sue or be sued or to have or to hold property, and all property or money acquired by it shall be vested in the name of the city and be the property of the city all of which such money shall be paid into the general fund.
(Ord. No. 00-152, § 1, 9-12-2000)

Sec. 2-5-103. Powers and duties generally.

(a) BACC shall comply with the bylaws which are hereby adopted, and from time to time amended by the city council, as the same are on file in the office of the city clerk. Upon two-thirds vote of the executive committee, BACC may submit recommendations to the city council for its consideration for amendment of the bylaws.

(b) BACC shall perform the following:

(1) Ensure that the objectives set forth in section 2-5-102(a) are implemented;

(2) Create and implement a program that would involve cooperation between the arts organizations and the city schools through the city board of education, for the benefit of youth;

(3) Develop and implement a program that will ensure an equitable disbursement of funds amongst the diverse cultural communities of the city;

(4) Develop and implement a program that will encourage financial participation in the arts and culture of the city from other municipalities in the surrounding region;

(5) Develop and implement a program that will promote an active involvement from the greater Birmingham corporate community in the arts and culture of the city.

(c) BACC shall make annual reports, through its chairperson, to the city council which report shall contain detailed information and statistics as well as substantiation to show the status of progress or regress made on the objectives stated in this article. In addition, the city council may at its discretion require, through the chairperson of BACC, a report from BACC concerning the whole or any aspect of the program.
(Ord. No. 00-152, § 2, 9-12-2000)

Sec. 2-5-104. Membership.

(a) *Generally.* The BACC shall consist of a 12-member general advisory board to be comprised of the following members; all of whom shall be residents of the city:

(1) One member appointed by the Birmingham Board of Education;

(2) One member appointed by the Birmingham Citizens Advisory Board (CAB);

(3) Nine members appointed by the city council (one appointment per councilor); and

(4) The chairperson of the city council committee of the City of Birmingham whose portfolio includes the cultural arts.

(b) *Term of office.* The term of office for members of the BACC shall be for three years with membership being eligible for a subsequent appointment of three years; however, no member of the BACC shall be eligible to serve for more than six consecutive years.

(c) *Compensation.* The members of the BACC shall receive no compensation whatsoever for their services, nor shall they receive compensation or per diem for attending meetings. No traveling expense or other expense incurred by a member of the BACC or anyone acting therefor while out of the city, shall be paid by the city except as approved by the city council upon recommendation of the chairperson. The BACC shall

have no authority to act for or obligate the city or any official or agency thereof in any matters, whatsoever.

(d) *Vacancies.* In the event any member of the BACC or any standing or ad hoc committee should die, resign, or for any reason become unable or otherwise disqualified to serve, the authority making the original appointment shall appoint a successor to fill the remaining term of the original appointment. The city council may at any time, by a simple majority, remove any member from the BACC for any cause deemed sufficient.
(Ord. No. 00-152, § 3, 9-12-2000)

Sec. 2-5-105. Officers.

(a) *Duties.* The officers of the BACC shall consist of a chairperson, vice-chairperson and secretary and shall perform those duties prescribed by this article, and by the bylaws hereby adopted and attached to the ordinance from which this article is derived as addendum 1, and as may hereafter be prescribed by the city council through resolution or ordinance.

(b) *Chairperson.* The chairperson of the BACC shall be designated by the city council at the time of its appointment of members to the BACC general advisory board as provided for in section 2-5-104(a)(3), and shall be appointed to a three-year term to coincide with their term of office as members of the BACC. The chairperson shall be the chief executive officer and shall exercise supervision over the interests and duties of the BACC. The chairperson shall preside at all meetings of the BACC and shall appoint any committees and members thereto as deemed necessary except as may be expressly provided for elsewhere herein. The chairperson shall be the person responsible for all contacts between the BACC and the city council.

(c) *Vice-chairperson.* A vice-chairperson shall be elected by the members of the executive committee of BACC from among their executive committee colleagues. The vice-chairperson's term shall run parallel to the chairperson's term. The vice-chairperson shall serve as acting chairperson in the absence of the chairperson, and at such times the vice-chairperson shall have the same powers and duties as the chairperson.

(d) *Secretary.* The secretary of the BACC shall also be elected by members of the executive committee. The secretary shall write and keep the minutes of all meetings of the BACC and of the BACC executive committee in one or more books provided for that purpose and shall see that minutes of the meetings of BACC and of the executive committee are distributed promptly to the membership. The secretary, in cooperation with the chairperson, shall see that all notices are duly given in accordance with the bylaws of the BACC and as required by law. The secretary shall perform all the duties incident to the office of secretary and such other duties as may from time to time be requested by the chairperson.

(e) *Quorum and meetings.* Seven members of the BACC general advisory board shall constitute a quorum for all meetings of the board. BACC shall hold three regular meetings a year. Special meetings may be called by the chairperson of the BACC on ten days' written notice to all the members, which notice shall be deemed sufficient if mailed, postage prepaid, and addressed to the members. One-half of the members of any committee other than the executive committee shall constitute a quorum for conducting any business the committee is authorized to conduct.
(Ord. No. 00-152, § 4, 9-12-2000)

Sec. 2-5-106. Executive committee.

The executive committee shall be the governing body of the BACC, and as such, shall be responsible for the proper management and operation of the affairs of the BACC.

(1) *Membership.* The executive committee shall include the following seven members:

a. Six members to be designated by the city council from among the nine members to be appointed by the city council to the BACC. Membership on the executive committee shall coincide with the respective terms of appointment to the BACC.

b. The chairperson of the city council committee whose portfolio includes the cultural arts by authority granted under section 2-5-104(a)(4).

(2) *Chairperson of the executive committee.* The chairperson of the BACC shall also be the chairperson of the executive committee.

(3) *Meetings; quorum.* The executive committee is to meet not less than once per quarter during a fiscal year, but not later than the third Tuesday of the last month of each quarter at 11:30 a.m. at city hall. Special meetings may be called at the discretion of the chairperson. Five members of the executive committee then serving in office shall constitute a quorum for a regular or a special meeting.

(4) *Quorum for authorized business.* Five of the members of the executive committee shall constitute a quorum for conducting any business the committee is authorized to conduct.

(Ord. No. 00-152, § 5, 9-12-2000)

Sec. 2-5-107. Public art committee.

(a) There is hereby created a public art committee which shall be a standing committee of the BACC with responsibility for promoting, encouraging and coordinating support for the development of art in private and public spaces throughout the city and for providing prior review and recommendation to the city council of all public art projects to be supported with city funds. The committee shall be comprised of board representatives and department heads of the following departmental and organizational members:

(1) BACC chairperson.

(2) Director, department of planning, engineering and permits of the city.

(3) Chairperson, design review committee of the city.

(4) Metropolitan arts council (MAC).

(5) Birmingham Museum of Art.

(6) Sloss Furnaces.

(7) Space One Eleven.

(8) Academy of Fine Arts.

(9) Birmingham Art Club.

(10) Birmingham Chamber of Commerce.

(11) Central Alabama African-American Chamber of Commerce.

(12) Operation New Birmingham.

(b) At the first meeting of the committee, the committee shall establish regular dates and times for its meetings and the manner by which it will conduct reviews and make recommendations to the city council for projects to be supported with city funds.

(c) The city council, upon recommendation of the chairperson of the executive committee, the same having been requested by the majority of the members of the committee, shall consider providing appropriate staff and other support to facilitate the work of the committee.

(Ord. No. 00-152, § 6, 9-12-2000)

Sec. 2-5-108. Prior review of cultural art appropriations.

Prior review shall be conducted by the BACC for recommendation to the city council of all cultural art projects and activities to be supported with city funds to ensure the avoidance of duplication and to achieve the most efficient use of funds, except the activities of organizations and agencies provided for in the general budget for the city.

(Ord. No. 00-152, § 7, 9-12-2000)

Sec. 2-5-109. Submission and routing of recommendations.

(a) The city council's parks, recreation/cultural arts committee (PRCAC) shall upon due consideration submit recommendations to the city council for consideration. The PRCAC may, at its discretion, refer the recommendations in whole or in part, back to the BACC executive committee or to the city council's finance and administration committee (F&AC) for further review and consideration.

(b) Recommendations referred from PRCAC to either the F&AC or BACC executive committee shall be returned to the PRCAC following the respective reviews for PRCAC submission to the city council.

(Ord. No. 00-152, § 8, 9-12-2000)

Sec. 2-5-110. Reserved.

ARTICLE H. HEALTH AND MEDICAL BENEFITS BOARD

Sec. 2-5-111. Established.

There is hereby established a health and medical benefits board with the powers, duties, and terms of office as hereinafter set forth.
(Code 1980, § 2-5-111; Ord. No. 79-58, § 1, 8-24-1979)

Sec. 2-5-112. Members.

The health and medical benefits board shall consist of nine members: two members to be appointed by the city council, two members to be appointed by the mayor, four members to be elected by the city employees and one member shall be the city council's chairperson of the public safety committee or his or her designated representative. Membership on the board shall be designated by position number which shall be as follows: "Member Number One" and "Member Number Two," city council appointees; "Member Number Three" and "Member Number Four," mayoral appointees; "Member Number Five" elected by employees within the police department; "Member Number Six" elected by employee members of Laborers International Union #1317; "Member Number Seven" elected by employees within the fire department; "Member Number Eight" elected by employee members of Birmingham Association City Employees and all other employees; and "Member Number Nine," shall be the city council's chairperson of the public safety committee or a member of the city council. "Member Number Nine" shall act as the president of the board and shall vote only in the event of a tie vote among other members. The personnel director shall act as the executive secretary of the board and shall supervise all clerical services required.
(Code 1980, § 2-5-112; Ord. No. 79-58, § 2, 8-24-1979; Ord. No. 79-70, § 2, 5-15-1979; Ord. No. 12-51, § 2, 4-17-2012)

Sec. 2-5-113. Qualifications.

No member of the board, with the exception of Member Number Nine, may at any time during his or her tenure shall hold an elected position with the city. Employees of the city may serve as members of the board, but employment with the city is not a necessary qualification. Members Number One and Three shall have had ten years or more experience in an executive capacity in insurance, actuarial, investment or banking work.
(Code 1980, § 2-5-113; Ord. No. 79-70, § 3, 5-15-1979; Ord. No. 81-135, 8-4-1981; Ord. No. 12-51, § 3, 4-17-2012)

Sec. 2-5-114. Nomination.

Proposal of candidacy for positions five, six, seven and eight shall be received in the form of nominations. Nominations shall be made by submitting to the city clerk's office a petition of nomination more than ten days before the date of such election stating the numbered position for which the proposed candidate is to run, the party named as nominee and the purpose of the petition. Such petition shall require signatures of at least 25 city employees and attached thereto shall be a statement of said nominee declaring his or her willingness and ability to serve if elected.
(Code 1980, § 2-5-114; Ord. No. 79-58, § 4, 8-24-1979)

Sec. 2-5-115. Election of positions five, six, seven and eight.

The clerk of the city shall conduct the election for board member positions numbered five, six, seven and eight in conjunction with the election committee, as hereinafter provided. Notice of said election shall be given by the city clerk not less than 30 days prior to the date of said election by causing written notice thereof to be prominently posted in the city hall and distributed to the several department heads of the city. The polling places shall be as follows: "Member Number Five," at the F.O.P. Lodge; "Member Number Six," at the Laborers International Union office located at 2117 Magnolia Avenue, South; "Member Number Seven," at the Firefighters Union Hall, and "Member Number Eight," at city hall; all polling places shall be open for two days during the said election. The regular election shall be held on the last Tuesday and Wednesday of May, between the

hours of 8:30 a.m. and 4:30 p.m., and shall be held on said days between said hours each two years thereafter.
(Code 1980, § 2-5-115; Ord. No. 79-58, § 5, 8-24-1979)

Sec. 2-5-116. Terms.

The members of the health and medical benefits board shall serve for a term of four years; provided that for the purposes of the initial board, "Member Number One," "Member Number Three," "Member Number Five," and "Member Number Seven" shall serve two years, and "Member Number Two," "Member Number Four," "Member Number Six," and "Member Number Eight" shall serve for a term of four years. No member shall serve for more than two consecutive terms. "Member Number Nine" shall serve for a term of two years and may be reappointed.
(Code 1980, § 2-5-116; Ord. No. 79-58, § 6, 8-24-1979)

Sec. 2-5-117. Duties.

(a) The board as a whole shall meet monthly with representatives of the finance department, the personnel department and the plan administrator or insurer.

(b) The board as a whole shall make an annual review of the plan, its benefits, and the performance of the plan administrator or insurer and may make nonbinding recommendations based on this review to the mayor and council as to any changes or modifications in benefits offered, in the plan or policy, in the administration of the plan, or in the plan administrator or insurer. In the event the board should recommend a change in the plan administrator or insurer, the board shall at the same time submit at least two recommendations for a successor and proposals of the terms and conditions under which those recommended would agree to serve. All reports and recommendations shall be submitted to the mayor and council no later than February 15 of each year.

(c) The board shall determine the method for filling vacancies in positions five, six, seven and eight on the board. Vacancies in positions one and two shall be filled by majority vote of the city council. Vacancies in positions three and four shall be filled by appointment of the mayor.
(Code 1980, § 2-5-117; Ord. No. 79-58, § 7, 8-24-1979; Ord. No. 81-135, 8-4-1981)

Sec. 2-5-118. Compensation.

The members of the health and medical benefits board shall receive no compensation whatever for their services or expenses.
(Code 1980, § 2-5-118; Ord. No. 79-58, § 8, 8-24-1979)

Sec. 2-5-119. Committees.

(a) The board shall have the power to form committees, from time to time, consisting of no more than five members nor less than three members. Any committee so formed may act if and when a quorum of three of its members is present.

(b) The board shall form the three following committees, such committees having such duties and responsibilities as are hereinafter set out:

(1) Cost containment committee shall monitor the plan or policy. Any claims involving apparent excessive charges may be submitted to this committee by the plan administrator along with all facts pertaining to the claim and excluding the name of the employee concerned in the claim. The committee may review the charges and take such action as is deemed necessary. This committee has the authority to submit claims to the Peer Review Committee of the Medical Association of the State of Alabama when it deems such action to be necessary and proper. The committee may also recommend any changes it deems necessary in the administration of the plan, in the plan itself, or in the benefits offered under the plan or policy.

(2) Disputed claims committee shall hear and decide upon all claims appealed to the committee arising from a denial of claim coverage by any plan administrator but not from any insurer. An employee, after receiving notification that his or her claim has been denied and wishing to appeal

this denial, must give notice of appeal in writing to the plan administrator within ten days of notification of denial. The plan administrator shall then submit all facts and data to the committee excluding the name of the appellee. The employee, upon filing the appeal, may request to be heard at the committee's hearing of his or her appeal. Any information received by this committee is confidential and is not to be revealed outside the confines of the committee. The determination of the committee will be final unless changed by action of the city council.

(3) Election committee shall designate and appoint a person to be in charge of the polling places, and a sufficient number of persons to assist such person for the proper conduct of the election of members number five, six, seven and eight to the health and medical benefits board.

The election committee shall cause to be prepared and distributed to the polling places a sufficient number of paper ballots, and every ballot shall contain the names of the candidates nominated for each position to be filled, and each employee shall be entitled to vote by placing a cross mark opposite the name of his or her choice for the position to be filled. The person in charge of the polling places shall be provided by the election committee with a roll containing the names of the employees entitled to vote in each said election, and the names of such members shall be appropriately marked at the time their ballots are cast. At the close of each day's balloting, the ballot boxes shall be made secure and placed for safekeeping in the office of the director of finance. The person designated in charge of the polling places shall, on the next day after the polling places are closed, deliver to the election committee all ballots cast in an envelope securely sealed and addressed. As soon as all such ballots shall have been received by the election committee, the members of the election committee in the presence of each other shall open said envelopes, canvass and count the same and ascertain and determine the total number of ballots cast at said election and the number of ballots cast for each of the candidates for each position to be filled by said election, and shall issue certificates of election to the candidate receiving the highest number of votes for each position to be filled. In the event any two or more candidates shall have received the same number of votes, so that there would be no choice as provided above, then the election committee shall forthwith determine by lot who shall be elected from the persons receiving such equal number of votes. No election shall be set aside for want of formality in balloting by such members, or in certifying or transmitting returns of any such election by the persons in charge thereof. No member of the election committee shall be a candidate in said election.

(Code 1980, § 2-5-119; Ord. No. 79-58, § 9, 8-24-1979; Ord. No. 81-135, 8-4-1981)

Sec. 2-5-120. Clerical and legal services.

All clerical services necessary for operation of the board or any of its committees shall be furnished by the personnel department. Any legal services deemed necessary by the board or any of its committees shall be furnished upon request by the city law department.

(Code 1980, § 2-5-120; Ord. No. 79-58, § 10, 8-24-1979)

Secs. 2-5-121—2-5-130. Reserved.

ARTICLE I. WATERWORKS BOARD

Sec. 2-5-131. Interest on deposit.

(a) Except as provided in subsection (b) of this section, the board shall, on the statement for water services and, where applicable, sewer services, sent by the board to a customer each December 31, credit against the amount due for such water and sewer services interest on such customer's deposit, if any, at the rate of 6.5 percent per annum from the date of the receipt of such deposit by the board or the preceding December 31, whichever last occurs, to December 31 of such year.

(b) Upon the termination of water service to a customer, there shall be credited on the final statement rendered to such customer interest on the customer's deposit, if any, at the rate of 6.5 percent per annum from the date of the last

statement upon which interest on said deposit shall have been credited or the date of the deposit, whichever last occurs, to the date of refund, and if not so credited on the final statement, shall be paid to the customer with a refund of his or her deposit.

(c) The term "deposit" as used in this section means net deposit and does not include any part or portion of a deposit that has been applied to a customer's liability or debt to the board for water services, sewer services or other services provided by the board.
(Code 1980, § 2-5-131; Ord. No. 80-261, §§ 1—4, 11-18-1980)

Sec. 2-5-132. Collective bargaining agreements between waterworks board and its employees.

(a) The waterworks board of the city is hereby authorized voluntarily to enter into collective bargaining agreements with the International Union of Operating Engineers, AFL-CIO, and the International Chemical Workers Union, AFL-CIO, or other such qualified and designated labor organizations, upon the determination that these collective bargaining agreements are necessary and appropriate.

(b) These collective bargaining agreements shall not in any way impair the vested rights of civil service employees, bondholders, creditors or taxpayers.

(c) These collective bargaining agreements shall not include any provision which would delegate the powers of the board to any third party, including arbitration, to finally resolve or settle disputes which may arise under the collective bargaining agreement; but all the authority for settling grievances, issues and controversies shall rest finally with the waterworks board.

(d) These collective bargaining agreements shall include a no-strike clause and other appropriate provisions to ensure uninterrupted service by and operation of the properties of the waterworks board.
(Code 1964, § 2-3.1; Code 1980, § 2-5-132)

Secs. 2-5-133—2-5-140. Reserved.

ARTICLE J. SISTER CITIES COMMISSION

Sec. 2-5-141. Creation.

There is hereby created the Sister Cities Commission of the City of Birmingham, which shall consist of a maximum of 15 commissioners. They shall be appointed by the mayor with the confirmation of the city council. The commission shall serve without compensation.
(Code 1980, § 2-5-141; Ord. No. 82-65, 4-13-1982; Ord. No. 85-209, 9-24-1985)

Sec. 2-5-142. Terms of office.

Commissioners shall be appointed to serve for two years and until their successors have been appointed and qualified.
(Code 1980, § 2-5-142; Ord. No. 82-65, 4-13-1982; Ord. No. 85-209, 9-24-1985)

Sec. 2-5-143. Vacancy.

In the event of a vacancy in the office of a commissioner, the new appointee shall serve for the balance of his or her predecessor's term. The office of a commissioner shall become vacant upon the adoption by the city council of a resolution declaring such vacancy.
(Code 1980, § 2-5-143; Ord. No. 82-65, 4-13-1982; Ord. No. 85-209, 9-24-1985)

Sec. 2-5-144. Officers.

The sister cities commission shall elect its own officers.
(Code 1980, § 2-5-144; Ord. No. 82-65, 4-13-1982; Ord. No. 85-209, 9-24-1985)

Sec. 2-5-145. Appointment of secretary.

The mayor shall designate a city employee to serve as secretary to the sister cities commission and to perform such other duties as may be assigned by the mayor to coordinate and expedite the work of the commission. The secretary shall not be entitled to a vote.
(Code 1980, § 2-5-145; Ord. No. 82-65, 4-13-1982; Ord. No. 85-209, 9-24-1985)

Sec. 2-5-146. Powers and duties of commission.

The powers and duties of the sister cities commission shall be as follows:

(1) To further the economic cooperation and cultural interchange on the basis of mutual friendship and amity between the City of Birmingham and cities hereafter designated as its sister cities by the city council of the City of Birmingham.

(2) To develop, compile, coordinate and exchange information with the officials and citizens of all such designated sister cities.

(3) To plan, develop and carry out mutual economic and cultural activities with the officials and citizens of all such designated sister cities.

(4) To encourage and cultivate mutual understanding of the respective economic, social and cultural problems existing within and between the City of Birmingham and its designated sister cities.

(5) To appoint committees and subcommittees and delegate responsibility and authority thereto.

(Code 1980, § 2-5-146; Ord. No. 82-65, 4-13-1982; Ord. No. 85-209, 9-24-1985)

Secs. 2-5-147—2-5-150. Reserved.

ARTICLE K. SLOSS FURNACE BOARD

Sec. 2-5-151. Definitions.

For the purposes of this article the following words and phrases shall have the meanings respectively ascribed to them by this section:

Board means the board of the Sloss Furnace property as herein constituted.

Director of finance means the director of finance of the City of Birmingham.

Sloss Furnace Association means a nonprofit corporation organized to work for the preservation and development of the Sloss Furnace property.

Sloss Furnace Interim Advisory Board means a temporary board established by the city to serve in the interim period prior to the establishment of a permanent Sloss Furnace Board.

Sloss Furnace property means a parcel of land consisting of approximately 32 acres in the vicinity of First Avenue North and 32nd Street, and all structures or improvements to the land.

(Code 1980, § 2-5-151; Ord. No. 82-50, § 1, 3-16-1982)

Sec. 2-5-152. Created; purpose.

There is hereby created the Sloss Furnace Board, the purpose of which is the preservation and development of the Sloss Furnace property as a historic attraction featuring industry, local history and related subjects.

(Code 1980, § 2-5-152; Ord. No. 82-50, § 2, 3-16-1982)

Sec. 2-5-153. Membership; appointment; term of office.

The board of the Sloss Furnace property shall consist of members as follows:

(1) *Regular members.* The board shall consist of not less than 15 nor more than 22 regular members to serve as follows:

a. Each member shall be appointed for a term to begin on March 16 of the year in which appointed. Thereafter, all regular members of the board shall be appointed for three-year terms.

b. Successors to the board shall be elected by a majority of the regular and ex officio members of the board. The board shall then certify the names of those elected to the city council for confirmation of their appointment. If the city council should fail to confirm any person elected by the board within 30 days after the election has been certified to it, the board shall elect and submit another person for its consideration which process shall continue until all posi-

tions are filled by duly elected persons who have been confirmed by council.

c. In the event any member should die, resign or for any reason become unable or otherwise disqualified to serve, the remaining regular and ex officio members may elect a successor to fill the unexpired portion of the term of such member subject to confirmation of their appointment by council.

d. No regular member may be elected for more than three consecutive terms of three years each; provided, however, that if any person should be elected a regular member to fill the unexpired portion of less than two years of the term of a member who shall have died, resigned or for any reason become unable or otherwise disqualified to serve, the person nominated as successor to fill the same shall be eligible to serve three consecutive terms thereafter.

e. Regular members designated to serve for a term of either one or two years are hereafter eligible to serve for three consecutive terms of three years each.

f. If any regular member shall fail to attend three consecutive regularly called meetings of the board, the board may vote to terminate said member upon a majority vote of its members. Any member so terminated shall be notified of the board's decision by certified mail. The board shall then elect a successor to fill the unexpired term of said member as provided in subsection (1)c of this section.

(2) *Ex officio members.* The following shall be members of the board ex officio:

a. The director of finance of the city, or such employee of that department as he or she shall designate as his or her appointee;

b. One member of the Sloss Furnace Association so designated by the board of that body;

c. A member of the city council committee having jurisdiction over the Sloss Furnace property.

All ex officio members shall be vested with the same authority as a regular member with full power to vote and shall be counted in the determination of a quorum at meetings of the board.

(3) *Advisory members.* The regular and ex officio members of the board may in their discretion elect advisory members of the board to serve for a term of one year. There shall be no restriction as to the number of terms an advisory member may serve. Advisory members shall not have the right or power to vote and shall not be counted in the determination of a quorum for meetings of the board.

(Code 1980, § 2-5-153; Ord. No. 82-50, § 3, 3-16-1982; Ord. No. 95-184, 10-31-1995)

Sec. 2-5-154. Bylaws; meetings; quorum.

(a) The Sloss Furnace Board shall at its first meeting, or an adjournment thereof, adopt bylaws for the board which may from time to time be amended as provided in the bylaws.

(b) The board shall meet in accordance with the bylaws but in any event no less than six times a year. Seven members shall constitute a quorum for the transaction of the business of the board.

(Code 1980, § 2-5-154; Ord. No. 82-50, § 4, 3-16-1982)

Sec. 2-5-155. Officers.

(a) The members of the board shall elect a chairperson, vice-chairperson and a secretary, all of whom shall be from among the regular members. These officers shall be elected annually by a majority vote of the members of the board.

(b) The officers of the Sloss Furnace Board shall perform those duties prescribed by this article, the bylaws or by formal city council resolution or ordinance.

(c) The chairperson or secretary, after an election for regular members has been conducted, shall promptly certify to the city council the names of those elected to the board for determination of their confirmation.
(Code 1980, § 2-5-155; Ord. No. 82-50, § 5, 3-16-1982)

Sec. 2-5-156. Treasurer.

The director of finance or such employee of that department as he or she shall designate as his or her appointee shall serve as treasurer of the board.
(Code 1980, § 2-5-156; Ord. No. 82-50, § 6, 3-16-1982)

Sec. 2-5-157. Compensation.

The members of the board shall receive no compensation whatever for their services, nor shall they receive compensation or per diem for attending meetings. In the event the board finds it necessary for the better performance of its duties, it may authorize a member or committee of members to make such trips to further purposes of the board. Actual traveling and living expenses on these trips shall be paid, provided that:

(1) Full and detailed vouchers of these expenses shall be filed and preserved; and

(2) Funds are available in the yearly budget for the expenditure of such expenses.

(Code 1980, § 2-5-157; Ord. No. 82-50, § 7, 3-16-1982)

Sec. 2-5-158. Powers and duties of board.

The Sloss Furnace Board shall have the power to do the acts and things necessary to carry out the objectives and purposes set forth in this article subject to the general administrative process and procedures controlling other departments of city government; to acquire, by purchase, gift or loan, any land, premises, money, securities, objects or other property for its uses and purposes; to buy and sell and otherwise deal in property necessary to carry out its objectives; to cooperate with any public or private corporation or organization, and governmental body or organization to do the acts and things necessary to obtain private, corporate or governmental grants or funding; to do those things which will contribute to the state, regional and national significance of the Sloss Furnace; to do any lawful act necessary or expedient to maintain and improve the facilities and provide for the exhibition of objects, displays, exhibits, performances, films or other matters pertaining to industry, local history and related subjects; to establish and maintain a development program for the facility; to provide rules and regulations for its governance and the governance of its officials, employees and personnel under contract to it and of any premises or property which may from time to time be in its custody, provided such rules and regulations are in accordance with and do not conflict with or otherwise violate any provision of this Code or other ordinance or resolution of the city. In the exercise of its powers, the board shall have no power or authority to bind or obligate the city beyond the amount appropriated by the city council for its purposes.
(Code 1980, § 2-5-158; Ord. No. 82-50, § 8, 3-16-1982)

Sec. 2-5-159. Management; custody and control of objects and facilities; no right to sue or be sued.

(a) The management, custody and control of any and all facilities and objects, documents, documentaries, displays, exhibits, films and recordings concerning applied science, industry, local history, Sloss Furnace and other related subjects belonging to the city which the city council may by resolution place under the control and management of the Sloss Furnace Board shall be vested in the board and the board shall exercise, subject to the control of the city council, all the powers of the city with respect to establishing, maintaining and operating a facility pertaining to industry, local history and related subjects which shall bear the name of Sloss Furnace property.

(b) The board shall not have the right to sue or be sued, and all property and property interests acquired by or accruing to it shall be vested in the city and held by it for the city.
(Code 1980, § 2-5-159; Ord. No. 82-50, § 9, 3-16-1982)

Sec. 2-5-160. Employees.

(a) The city council may authorize the employment, subject to the merit system and personnel policies of the city, of any employees as it may determine to be necessary for the operation of the Sloss Furnace property. These employees shall be responsible to and under the direction of the Sloss Furnace Board, and their salary shall be fixed jointly by the city and the personnel board of the county and shall be paid out of any sum set aside and appropriated by the city council for the use of the board.

(b) The board may designate any officer of the board, agent or employee hired by it or under contract to it, or any person employed by the city, as the person who shall be responsible to the board and to the city for the care and safekeeping of all objects, artifacts, furniture and other property at the Sloss Furnace property or otherwise in the custody and control of the board, whether the property is owned by the city or is on loan to the board. This person shall give bond with corporate surety to be approved by the director of finance, in an amount payable to the city as the city council may prescribe, conditioned upon the faithful discharge of the duties of this person. The expense or premium of this bond shall be paid by the board.
(Code 1980, § 2-5-160; Ord. No. 82-50, § 10, 3-16-1982)

Sec. 2-5-161. Budget; appropriations; financial procedure.

(a) The Sloss Furnace Board shall submit to the mayor on dates and on forms as established by the director of finance a detailed budget of estimated revenues and expenditures for the upcoming fiscal year beginning on July 1 of that year. During the city's annual budgetary process, the mayor will recommend to the city council those funds deemed appropriate for the use of the board for maintenance of the facility and for the other authorized purposes of the board either all or such part of such estimated budget as may be available or is deemed proper.

(b) The amount of the appropriation made from time to time by the city council for the support and maintenance of the Sloss Furnace property shall be held by the director of finance and shall be paid out by him or her only on vouchers formally approved by the board, or by one of the following officers:

(1) The chairperson of the board;

(2) The vice-chairperson of the board; or

(3) The chairperson of the finance committee of the board.

(c) In all cases where these vouchers are approved by one of these officers, their action shall be reviewed by the board at its next regular meeting. These vouchers shall be retained in the office of the director of finance.

(d) For the purpose of coordinating the accounting with that used in the finance department, the director of finance is hereby authorized to determine the method of accounting for all receipts and expenditures of the board, including the form of vouchers and general accounting records.
(Code 1980, § 2-5-161; Ord. No. 82-50, § 11, 3-16-1982)

Secs. 2-5-162—2-5-170. Reserved.

ARTICLE L. CIVIL RIGHTS MUSEUM BOARD

Sec. 2-5-171. Definitions.

For the purposes of this article, the following words and phrases shall have the meanings respectively ascribed to them by this section:

Board means the board of the Civil Rights Museum as herein constituted.

Committee means the Civil Rights Museum Study Committee heretofore established by the city to study the feasibility of a plan for operating a Civil Rights Museum for the city.

Director of finance means the director of finance of the city.
(Code 1980, § 2-5-171; Ord. No. 82-73, § 1, 5-18-1982)

Sec. 2-5-172. Created; purpose.

There is hereby created the civil rights museum board which shall be an educational and research center, the purpose of which is to com-

memorate the contributions made to human relations as a result of activities that took place during the civil rights movements of the 1960s and to foster understanding of the development of civil rights for racial minorities particularly as such development relates to the city.
(Code 1980, § 2-5-172; Ord. No. 82-73, § 2, 5-18-1982)

Sec. 2-5-173. Membership; appointment; term of office.

The civil rights museum board shall consist of members as follows:

(1) *Regular members.* The original board shall consist of:

a. Nine regular members, three members who shall serve for a term of one year, beginning on July 1, 1982, and ending on June 30, 1983; three members who shall serve for a term of two years, beginning on July 1, 1982, and ending on June 30, 1984; and three members who shall serve for a term of three years, beginning on July 1, 1982, and ending on June 30, 1985. Thereafter, all regular members of the board who shall be appointed for three-year terms. The committee shall submit to the city council in writing that committee's recommendations for the original nine members to the civil rights museum board and the recommended terms of each of the nine persons so recommended. Within 30 days of its receipt of such recommendations, the city council shall either approve or disapprove the appointment of each of the nine persons as recommended. Should the city council within such 30 days fail to act on the committee recommendations or any one of them, such member or members so recommended by the committee shall be a member of the board for the term recommended by the committee. If the city council disapproves the appointment of any or all of the nine persons recommended, the committee shall submit other recommendations for council consideration until all nine positions are filled.

b. Successors to the board shall be elected by a majority of the regular and ex officio members of the board. The board shall then certify the names of those elected to the city council for confirmation of their appointment. If the city council fails to act on the confirmation of any person elected by the board within 30 days after the election has been certified to it, such person shall be deemed to have been confirmed. Should the city council vote not to confirm any persons elected by the board, the board shall elect and submit for council's confirmation the names of other persons until all vacancies on the board have been filled.

c. In the event any regular member should die, resign or for any reason become unable or otherwise disqualified to serve, the remaining regular and ex officio members shall elect a successor to fill the unexpired portion of the term of such member.

d. No regular member may be elected for more than three consecutive terms; provided, however, that if any person should be elected a regular member to fill an unexpired term of less than two years' duration, such person shall be eligible to serve three consecutive terms thereafter.

e. If any regular member shall fail to attend three consecutive regularly called meetings of the board, the board may vote to terminate said member upon a majority vote of its members. Any member so terminated shall be notified of the board's decision by certified mail. The board shall then elect a successor to fill the unexpired term of said member as provided in subsection (1)c of this section.

(2) *Ex officio members.* The following shall be members of the board ex officio:

a. The director of finance of the city, or such employee of that department as he or she shall designate as his or her appointee;

b. One member of the Birmingham Civil Rights Institute designated by the board of such institute;

c. A member of the city council designated by the president of council.

All ex officio members shall be vested with the same authority as a regular member with full power to vote and shall be counted in the determination of a quorum at meetings of the board.

(3) *Advisory members.* The regular and ex officio members of the board may in their discretion elect advisory members of the board to serve for a term of one year. There shall be no restriction as to the number of terms advisory members may serve. Advisory members shall not have the right or power to vote and shall not be counted in the determination of a quorum for meetings of the board.

(Code 1980, § 2-5-173; Ord. No. 82-73, § 3, 5-18-1982)

Sec. 2-5-174. Bylaws; meetings; quorum.

(a) The civil rights museum board shall adopt bylaws for the board which may from time to time be amended as provided in the bylaws.

(b) The board shall meet in accord with the bylaws but in any event no less than six times a year. Five members shall constitute a quorum for the transaction of the business of the board.

(Code 1980, § 2-5-174; Ord. No. 82-73, § 4, 5-18-1982)

Sec. 2-5-175. Officers.

(a) The members of the civil rights museum board shall elect from among its regular members a chairperson, vice-chairperson and a secretary. These officers shall be elected annually by a majority vote of the members of the board.

(b) The officers of the board shall perform those duties prescribed by this article, the board's bylaws, and as may be further prescribed by ordinance or resolution of the city council.

(c) The chairperson or secretary, after the election of the regular members has been conducted, shall promptly certify to the city council the names of those elected to the board for the city council's confirmation.

(Code 1980, § 2-5-175; Ord. No. 82-73, § 5, 5-18-1982)

Sec. 2-5-176. Treasurer.

The director of finance or such employee of that department as he or she shall designate as his or her appointee shall serve as treasurer of the civil rights museum board.

(Code 1980, § 2-5-176; Ord. No. 82-73, § 6, 5-18-1982)

Sec. 2-5-177. Compensation.

The members of the civil rights museum board shall receive no compensation whatever for their services, nor shall they receive compensation or per diem for attending meetings.

(Code 1980, § 2-5-177; Ord. No. 82-73, § 7, 5-18-1982)

Sec. 2-5-178. Powers and duties of board.

The civil rights museum board shall have the power to do all acts and things necessary to carry out the objectives and purposes set forth in this article subject to the general administrative process and procedures controlling other departments of city government; to acquire, by purchase, gift or loan, any land, premises, money, securities, objects or other property for its uses and purposes; to buy and sell and otherwise deal in property necessary to carry out its objectives; to cooperate with any public or private corporation or organization and governmental body or organization to do the acts and things necessary to obtain private, corporate or governmental grants or funding; to do those things which will contribute to the significance of the Civil Rights Museum; to do any lawful act necessary or expedient to maintain and improve the facilities and provide for the exhibition of objects, displays, exhibits,

performances, films or other matters pertaining to the local civil rights movements and related subjects; to establish and maintain a development program for the facility; to provide rules and regulations for its governance and the governance of its officials, employees and personnel under contract to it and of any premises or property which may from time to time be in its custody, provided such rules and regulations are in accordance with and do not conflict with or otherwise violate any provision of state law or of this Code or other ordinance or resolution of the city. In the exercise of its powers, the board shall have no power or authority to bind or obligate the city beyond the amount appropriated by the city council for its purposes.
(Code 1980, § 2-5-178; Ord. No. 82-73, § 8, 5-18-1982)

Sec. 2-5-179. Management; custody and control of objects and facilities; no right to sue or be sued.

(a) The management, custody or control of any and all facilities and objects, documents, documentaries, displays, exhibits, films and recordings concerning the civil rights movement, local history and other related subjects belonging to the city which the city council may by resolution place under the control and management of the civil rights museum board shall be vested in the board and the board shall exercise, subject to the control of the city council, all the powers of the city with respect to establishing, maintaining and operating a facility pertaining to civil rights, local history and related subjects which shall bear the name of the Civil Rights Museum.

(b) The board shall not have the right to sue or be sued, and all property and property interests acquired by or accruing to it shall be vested in the city and held by it for the city.
(Code 1980, § 2-5-179; Ord. No. 82-73, § 9, 5-18-1982)

Sec. 2-5-180. Employees.

(a) The city council may authorize the employment, subject to the merit system and personnel policies of the city, of any employees as it may determine to be necessary for the operation of the Civil Rights Museum. These employees shall be responsible to and under the direction of the Civil Rights Museum Board, and their salary shall be fixed jointly by the city and the personnel board of the county and shall be paid out of any sum set aside and appropriated by the city council for the use of the board.

(b) The board may designate any officer of the board, agent or employee hired by it or under contract to it, or any person employed by the city, as the person who shall be responsible to the board and to the city for the care and safekeeping of all objects, documents, artifacts, furniture and other property at the Civil Rights Museum or otherwise in the custody and control of the board, whether the property is owned by the city or is on loan to the board. This person shall give bond with corporate surety to be approved by the director of finance, in an amount payable to the city as the city council may prescribe, conditioned upon the faithful discharge of the duties of this person. The expense or premium of this bond shall be paid by the board.
(Code 1980, § 2-5-180; Ord. No. 82-73, § 10, 5-18-1982)

Sec. 2-5-181. Budget; appropriations; financial procedure.

(a) The Civil Rights Museum Board shall submit to the mayor on dates and on forms as established by the director of finance a detailed budget of estimated revenues and expenditures for the fiscal year beginning on July 1 of each year. During the city's annual budgetary process, the mayor will recommend to the city council those funds deemed appropriate for the use of the board for maintenance of the facility and for the other authorized purposes of the board.

(b) The amount of the appropriation made from time to time by the city council for the support and maintenance of the Civil Rights Museum shall be held by the director of finance and shall be paid out by him or her only on vouchers formally approved by the board, or by one of the following officers:

(1) The chairperson of the board;

(2) The vice-chairperson of the board; or

(3) The chairperson of the finance committee of the board.

(c) In all cases where these vouchers are approved by one of these officers, their action shall be reviewed by the board at its next regular meeting. These vouchers shall be retained in the office of the director of finance.

(d) For the purpose of coordinating the accounting with that used in the finance department, the director of finance shall determine the method of accounting for all receipts and expenditures of the board, including the form of vouchers and general accounting records.
(Code 1980, § 2-5-181; Ord. No. 82-73, § 11, 5-18-1982)

Secs. 2-5-182—2-5-190. Reserved.

ARTICLE M. HOUSING FINANCE CORPORATION

Sec. 2-5-191. Created.

There is hereby authorized the creation of an agency of the city to be known as the Birmingham Housing Finance Corporation, a not-for-profit corporation organized under the laws of the state, the stated purpose of which is to facilitate the development, acquisition and improvement of housing in the city.
(Code 1980, § 2-5-191; Ord. No. 83-87, § 1, 6-7-1983)

Sec. 2-5-192. Membership; terms; filling vacancies.

(a) The board of directors of the Birmingham Housing Finance Corporation shall consist of seven members appointed by the city council, two of whom shall be members of the city council; one of whom shall be the director, deputy director or chief accountant of the finance department of the city; one of whom shall be the director or a division head of the community development department of the city; and three shall be appointed, one from the membership of each of the following associations, agencies or industries:

(1) The Home Builders Association;

(2) The citizens advisory board; and

(3) The banking and financial services industry in the city.

(b) The board of directors shall be appointed by the city council to serve for three-year terms.

(c) Vacancies occurring in the board of directors shall be filled by the city council. A director who is selected to fill a vacancy shall hold office for the remainder of the term of the director whom he or she succeeds and shall qualify in the same category as the director whom he or she succeeds.

(d) The directors shall hold office for the period for which they are selected and qualified or otherwise as may be provided by the bylaws and in accordance with law.
(Code 1980, § 2-5-192; Ord. No. 83-87, § 2, 6-7-1983)

Sec. 2-5-193. Bylaws.

The board of directors of the Birmingham Housing Finance Corporation shall adopt bylaws of the corporation which may from time to time be amended as provided by the bylaws and which bylaws and any alterations or amendments thereto shall be first approved by the city council. The bylaws may contain any provisions for the regulation of the conduct of the affairs of the corporation and the directors not inconsistent with the Alabama Nonprofit Corporation Act or the articles of incorporation of the Birmingham Housing Finance Corporation.
(Code 1980, § 2-5-193; Ord. No. 83-87, § 3, 6-7-1983)

Sec. 2-5-194. Meetings.

Regular and special meetings of the board of directors may be held from time to time at any place within the state, as selected by the board of directors or the president of the corporation.
(Code 1980, § 2-5-194; Ord. No. 83-87, § 4, 6-7-1983)

Sec. 2-5-195. President, secretary.

The members of the board of directors shall elect from among its members a president and secretary. These officers shall perform those du-

ties described by this article, the bylaws of the corporation, or by formal city council resolution or ordinance.
(Code 1980, § 2-5-195; Ord. No. 83-87, § 5, 6-7-1983)

Sec. 2-5-196. Treasurer.

The member of the board of directors appointed from the finance department of the city as specified in section 2-5-192 shall serve as treasurer of the board of directors.
(Code 1980, § 2-5-196; Ord. No. 83-87, § 6, 6-7-1983)

Sec. 2-5-197. Compensation.

The board of directors of the corporation shall receive no compensation whatever for their services, nor shall they receive compensation or per diem for attending meetings.
(Code 1980, § 2-5-197; Ord. No. 83-87, § 7, 6-7-1983)

Sec. 2-5-198. Purpose.

The corporation is organized and shall be operated for civic, social, welfare and charitable purposes and, in furtherance of such purposes, is organized and shall be operated to facilitate the development and improvement of housing in the city, by subsidizing home mortgage loans from federal grant monies received by the city for such purposes, and performing other acts to enhance the situation of the community with regards to housing; and in addition shall have such of those powers enumerated in Code of Ala. 1975, § 10-3-120, as may be necessary or essential to the implementation and effectuation of the objects and purposes of the corporation as stated herein, and to do and carry on any and all other activities that are necessary or desirable in connection with or related to any or all of the foregoing purposes, but not for pecuniary profit or financial gain of any individual during the existence of the corporation or upon its dissolution.
(Code 1980, § 2-5-198; Ord. No. 83-87, § 8, 6-7-1983)

Sec. 2-5-199. Property held by city.

All property interests acquired by or accruing to the corporation shall be vested in the city and held by it for the city.
(Code 1980, § 2-5-199; Ord. No. 83-87, § 9, 6-7-1983)

Secs. 2-5-200—2-5-210. Reserved.

ARTICLE N. ARLINGTON ANTEBELLUM HOME AND GARDENS BOARD

Sec. 2-5-211. Definitions.

For the purposes of this article, the following words and phrases shall have the meanings respectively ascribed to them by this section:

Arlington Antebellum Home and Gardens means that certain property owned by the city and known as Arlington and all structures or improvements thereon, and all furniture, furnishings and historic collections located therein or pertaining thereto.

Arlington Historical Association means a nonprofit corporation organized to work for the preservation and development of the Arlington property.

Board means the board of Arlington Antebellum Home and Gardens as herein constituted.

Director of finance means the director of finance of the city.
(Code 1980, § 2-5-211; Ord. No. 84-48, § 1, 4-17-1984; Ord. No. 84-127, § 1, 7-31-1984)

Sec. 2-5-212. Created; purpose.

There is hereby created the Arlington Antebellum Home and Gardens Board, the purpose of which is the preservation and development of the Arlington property as a historic attraction promoting tourism, featuring local history, securing, preserving and improving the quality of the furniture, furnishings and historic collections.
(Code 1980, § 2-5-212; Ord. No. 84-48, § 2, 4-17-1984; Ord. No. 84-127, § 2, 7-31-1984)

Sec. 2-5-213. Membership; appointment; term of office.

The Arlington Antebellum Home and Gardens Board shall consist of members as follows:

(1) *Regular members.*

a. The board shall consist of eight members, appointed by the city council. All regular members of the board shall be appointed for three-year terms.

b. Successors to the board shall be elected by a majority of the regular and ex officio members of the board. The board shall then certify the names of those elected to the city council for confirmation of their appointment. If the city council should fail to confirm any person elected by the board within 30 days after the election has been certified to it, the board shall elect and submit another person for its consideration, which process shall continue until all positions are filled by duly elected persons who have been confirmed by the city council.

c. In the event any member should die, resign or for any reason become unable or otherwise disqualified to serve, the remaining regular and ex officio members may elect a successor to fill the unexpired portion of the term of such member subject to confirmation of their appointment by the city council.

d. No regular member may be elected for more than three consecutive terms of three years each; however, if any person should be elected a regular member to fill the unexpired portion of less than two years of the terms of a member who shall have died, resigned or for any reason become unable or otherwise disqualified to serve, the person nominated as successor to fill the same shall be eligible to serve three consecutive terms thereafter.

e. The regular members designated to serve for a term of either one or two years are hereafter eligible to serve for three consecutive terms of three years each.

f. If any regular member shall fail to attend three consecutive regularly called meetings of the board, the board may vote to terminate said member upon a majority vote of its members. Any member so terminated shall be notified of the board's decision by certified mail. The board shall then elect a successor to fill the unexpired term of said member as provided in subsection (1)c of this section.

(2) *Ex officio members.* The following shall be members of the board ex officio:

a. The director of finance of the city, or such employee of that department as he or she shall designate as his or her appointee;

b. Two members of the Arlington Historic Association so designated by the board of that body;

c. A member of the city council committee having jurisdiction over the park and recreation committee;

d. The mayor or his or her designee.

All ex officio members shall be vested with the same authority as a regular member with full power to vote and shall be counted in the determination of a quorum at meetings of the board.

(3) *Advisory members.* The regular and ex officio members of the board may in their discretion elect advisory members of the board to serve for a term of one year. There shall be no restriction as to the number of terms an advisory member may serve. Advisory members shall not have the right or power to vote and shall not be counted in the determination of a quorum for meetings of the board.

(Code 1980, § 2-5-213; Ord. No. 84-48, § 3, 4-17-1984; Ord. No. 84-127, § 3, 7-31-1984; Ord. No. 87-21, 2-17-1987)

Sec. 2-5-214. Bylaws; meetings; quorum.

(a) The Arlington Antebellum Home and Gardens Board shall adopt bylaws for the board which may from time to time be amended as provided in the bylaws.

(b) The board shall meet in accord with the bylaws but in any event no less than six times a year. Nine members shall constitute a quorum for the transaction of the business of the board.
(Code 1980, § 2-5-214; Ord. No. 84-48, § 4, 4-17-1984; Ord. No. 84-127, § 4, 7-31-1984; Ord. No. 87-29, 3-10-1987)

Sec. 2-5-215. Officers.

(a) The members of the Arlington Antebellum Home and Gardens Board shall elect a chairperson, vice-chairperson and a secretary, all of whom shall be from among the regular members. These officers shall be elected annually by a majority vote of the members of the board.

(b) The officers of the board shall perform those duties prescribed by this article, the bylaws or by formal city council resolution or ordinance.

(c) The chairperson or secretary, after an election for regular members has been conducted, shall promptly certify to the city council the names of those elected to the board for determination of their confirmation.
(Code 1980, § 2-5-215; Ord. No. 84-48, § 5, 4-17-1984; Ord. No. 84-127, § 5, 7-31-1984)

Sec. 2-5-216. Treasurer.

The director of finance or such employee of that department as he or she shall designate as his or her appointee shall serve as treasurer of the Arlington Antebellum Home and Gardens Board.
(Code 1980, § 2-5-216; Ord. No. 84-48, § 6, 4-17-1984; Ord. No. 84-127, § 6, 7-31-1984)

Sec. 2-5-217. Compensation.

The members of the Arlington Antebellum Home and Gardens Board shall receive no compensation whatever for their services, nor shall they receive compensation or per diem for attending meetings. In the event the board finds it necessary for the better performance of its duties, it may authorize a member or committee of members to make such trips to further the purposes of the board. Actual traveling and living expenses on these trips shall be paid; provided that:

(1) Full and detailed vouchers of these expenses shall be filed and preserved; and

(2) Funds are available in the yearly budget for the expenditure of such expenses.

(Code 1980, § 2-5-217; Ord. No. 84-48, § 7, 4-17-1984; Ord. No. 84-127, § 7, 7-31-1984)

Sec. 2-5-218. Powers and duties of the board.

The Arlington Antebellum Home and Gardens Board shall have the power to do the acts and things necessary to carry out the objectives and purposes set forth in this article, subject to the general administrative process and procedures controlling other departments of city government; to acquire, by purchase, gift or loan, any land, premises, money, securities, objects or other property for its uses and purposes; to buy and sell and otherwise deal in property necessary to carry out its objectives; to cooperate with any public or private corporation or organization, and governmental body or organization to do the acts and things necessary to obtain private, corporate or governmental grants or fundings; to do those things which will contribute to the state, regional and national significance of the Arlington Antebellum Home and Gardens; to do any lawful act necessary or expedient to maintain and improve the facilities and provide for the exhibition of objects, displays, exhibits, performances, films or other matters pertaining to industry, local history and related subjects; to establish and maintain a development program for the facility; to provide rules and regulations for its governance and the governance of its officials, employees and personnel under contract to it and of any premises or property which may from time to time be in its custody, provided such rules and regulations are in accordance with and to not conflict with or otherwise violate any provision of this Code or other ordinance or resolution of the city. In the exercise of its powers, the board shall have no power or authority to bind or obligate the city beyond the amount appropriated by the city council for its purposes. The board shall have authority to allow support organizations and other orga-

nizations or individuals to utilize the Arlington Antebellum Home and Gardens for fundraising activities and other activities subject to regulations established by the board and subject to the authority of the director of finance to audit all receipts and expenditures of funds raised or received.
(Code 1980, § 2-5-218; Ord. No. 84-48, § 8, 4-17-1984; Ord. No. 84-127, § 8, 7-31-1984)

Sec. 2-5-219. Management; custody and control of objects and facilities, no right to sue or be sued.

(a) The management, custody and control of any and all facilities and objects, documents, documentaries, displays, exhibits, films and recordings concerning local history, Arlington Antebellum Home and Gardens, and other related subjects belonging to the city which the city council may by resolution place under the control and management of the Arlington Antebellum Home and Gardens Board shall be vested in the board; and the board shall exercise, subject to the control of the city council, all the powers of the city with respect to establishing, maintaining and operating a facility pertaining to industry, local history and related subjects which shall bear the name of Arlington Antebellum Home and Gardens.

(b) The board shall not have the right to sue or be sued, and all property and property interests acquired by or accruing to it shall be vested in the city and held by it for the city.
(Code 1980, § 2-5-219; Ord. No. 84-48, § 9, 4-17-1984; Ord. No. 84-127, § 9, 7-31-1984)

Sec. 2-5-220. Employees.

(a) The city council may authorize the employment, subject to the merit system and personnel policies of the city, of any employees as it may determine to be necessary for the operation of the Arlington property. These employees shall be responsible to and under the direction of the Arlington Antebellum Home and Gardens Board, and their salary shall be fixed jointly by the city and the personnel board of the county and shall be paid out of any sum set aside and appropriated by the city council for the use of the board.

(b) The board may designate any officer of the board, agent or employee hired by it or under contract to it, or any person employed by the city, as the person who shall be responsible to the board and to the city for the care and safekeeping of all objects; artifacts, furniture and other property at the Arlington Home property or otherwise in the custody and control of the board, whether the property is owned by the city or is on loan to the board. This person shall give bond with corporate surety to be approved by the director of finance, in an amount payable to the city as the city council may prescribe, conditioned upon the faithful discharge of the duties of this person. The expense or premium of this bond shall be paid by the board.
(Code 1980, § 2-5-220; Ord. No. 84-48, § 10, 4-17-1984; Ord. No. 84-127, § 10, 7-31-1984)

Sec. 2-5-221. Budget, appropriations, financial procedure.

(a) The Arlington Antebellum Home and Gardens Board shall submit to the mayor on dates and on forms as established by the director of finance a detailed budget of estimated revenues and expenditures for the upcoming fiscal year beginning on July 1 of that year. During the city's annual budgetary process, the mayor will recommend to the city council those funds deemed appropriate for the use of the board for maintenance of the facility and for the other authorized purposes of the board either all or such part of such estimate budget as may be available or is deemed proper.

(b) The amount of the appropriation made from time to time by the city council for the support and maintenance of the Arlington Antebellum Home and Gardens shall be held by the director of finance and shall be paid out by him or her only on vouchers formally approved by the board, or by one of the following officers:

(1) The chairperson of the board;

(2) The vice-chairperson of the board; or

(3) The chairperson of the finance committee of the board.

(c) In all cases where these vouchers are approved by one of these officers, their action shall be reviewed by the board at its next regular meeting. These vouchers shall be retained in the office of the director of finance.

(d) For the purpose of coordinating the accounting with that used in the finance department, the director of finance is hereby authorized to determine the method of accounting for all receipts and expenditures of the board, including the form of vouchers and general accounting records.
(Code 1980, § 2-5-221; Ord. No. 84-48, § 11, 4-17-1984; Ord. No. 84-127, § 11, 7-31-1984)

Secs. 2-5-222—2-5-230. Reserved.

ARTICLE O. REVOLVING LOAN FUND COMMITTEE

Sec. 2-5-231. Findings of fact.

The city council has found and determined and does hereby declare as follows:

(1) The city has awarded and will continue to award urban development action grants ("UDAGs") to deserving local enterprises. These enterprises must repay the city for these UDAGs. The city is not required to remit UDAG repayments to the federal government, but instead may use the repayments for any projects that are eligible under title I of the Housing and Community Development Act of 1974, as amended. The city desires to use the UDAG repayments for economic development activities that create opportunities for entrepreneurship, increase employment and expand the city's tax base.

(2) In light of these goals, the amount of money the city anticipates receiving from UDAG repayments and the needs of the city's residents, the city desires to use certain of these UDAG repayments to make below-market-rate, working capital and fixed asset loans to small, local businesses, primarily small minority business owners and minority contractors; however, the program will not discriminate against any individual based upon race, creed or color.

(3) The city desires to establish a revolving loan fund ("the fund") into which UDAG repayments will be deposited and out of which monies will be drawn for such below-market-rate, working capital and fixed asset loans to eligible recipients. These loans may be in the form of direct loans from the city or loan guaranties in any form to lending institutions who agree to participate in the program. Payments of principal and interest on these loans by the recipients may be deposited into the fund, and thereafter loaned to other approved loan recipients. Thus the fund will be a self-perpetuating loan pool. The program has the following objectives:

a. Provide below-market-rate, short-term (less than one year) working capital and fixed asset financing for small African-American-owned businesses and African-American contractors with loans of less than $25,000.00; and

b. Provide below-market-rate financing to other economically disadvantaged groups, individuals and businesses who cannot obtain financing through other sources but are able to document the credit worthiness of their projects and are able to document that the project will have a significant economic, social or environmental impact upon the city.

These loans will in no instance exceed $75,000.00 or have a term of more than five years. The primary goal of the program, however, and the major commitment of the program funds will be to address the needs of small African-American-owned businesses and African-American contractors.

(4) The city desires that recipients of the low-interest, working capital loans be selected and the fund be administered by a

committee to be designated the revolving loan fund committee and to be made up of the following members:

a. The director of the community development department of the city, ex officio;

b. The director of the economic development office of the city, ex officio;

c. The executive secretary of the mayor, ex officio;

d. The director of contract requirements of the city, ex officio;

e. A representative of the city council;

f. A member of the minority business advisory committee (MBAC) selected by the MBAC for a term that expires after two years or upon the appointment of another MBAC member by the MBAC, whichever first occurs; and

g. A representative of a local lending institution to be appointed by the mayor and city council.

(5) The revolving loan fund committee shall set forth, in a written memorandum, the standards an applicant must meet to be deemed eligible for a loan and the application procedure and requirements.

(6) In this memorandum, the revolving loan fund committee shall also set forth parameters and guidelines to be followed in setting the terms and conditions of the low-interest, working capital loans. Within these parameters the revolving loan fund committee shall set the terms and conditions of the loans it selected on a case-by-case basis.

(Code 1980, § 2-5-231; Ord. No. 85-28, § 1, 2-26-1985; Ord. No. 86-180, 7-29-1986)

Sec. 2-5-232. Committee established.

The revolving loan fund committee is hereby established and shall be composed of the members set forth in section 2-5-231.

(Code 1980, § 2-5-232; Ord. No. 85-28, § 2, 2-26-1985)

Sec. 2-5-233. Revolving loan fund established.

The revolving loan fund is hereby established. The fund shall be funded with up to $500,000.00 of monies received by the city in repayment of UDAGs and in repayment of loans (principal and interest) granted by the revolving loan fund committee.

(Code 1980, § 2-5-233; Ord. No. 85-28, § 3, 2-26-1985; Ord. No. 85-250, 11-26-1985; Ord. No. 86-130, 6-17-1986)

Sec. 2-5-234. Committee to maintain and administer fund.

The revolving loan fund committee is hereby authorized and empowered to maintain and administer the revolving loan fund in accordance with the provisions of section 2-5-231.

(Code 1980, § 2-5-234; Ord. No. 85-28, § 4, 2-26-1985)

Sec. 2-5-235. Standards of eligibility for loan recipients.

The revolving loan fund committee is hereby authorized and empowered to set forth, in a memorandum, standards of eligibility for potential loan recipients, application procedures and requirements, and guidelines for the terms and conditions of the loans. The revolving loan fund committee is hereby further authorized to approve loan recipients and loan terms in accordance with its memorandum and to loan monies in the revolving loan fund to recipients on such selected terms. These loans may be in the form of direct loans from the city or loan guaranties in any form to lending institutions who agree to participate in the program. The mayor is hereby authorized and empowered to execute any loan agreements, security agreements and other instruments and contracts necessary to effect and secure such loans.

(Code 1980, § 2-5-235; Ord. No. 85-28, § 5, 2-26-1985; Ord. No. 86-180, 7-29-1986)

Sec. 2-5-236. Selection of financial institution.

The revolving loan fund committee is hereby authorized and empowered to select, based on the

recommendation of the finance department of the city after its solicitation and receipt of bids, a financial institution to serve as depository for the revolving loan fund and to service the fund. The mayor is hereby authorized to execute, on behalf of the city, any depository agreements, service agreements and other instruments that are required to establish a deposit account and a servicing arrangement with the selected financial institution.
(Code 1980, § 2-5-236; Ord. No. 85-28, § 6, 2-26-1985)

Sec. 2-5-237. Authority of committee to implement fund.

The revolving loan fund committee is hereby authorized and empowered to take all actions necessary to implement and effect the revolving loan fund in accordance with the terms of this article.
(Code 1980, § 2-5-237; Ord. No. 85-28, § 7, 2-26-1985)

Sec. 2-5-238. Effect of prior actions.

All actions taken by the city and its agents and employees prior to the adoption of the ordinance from which this article is derived and in furtherance of the purposes of this article and in accordance with the terms of this article are hereby authorized, selected, ratified and confirmed.
(Code 1980, § 2-5-238; Ord. No. 85-28, § 8, 2-26-1985)

Secs. 2-5-239—2-5-250. Reserved.

ARTICLE P. PLANNING COMMISSION

Sec. 2-5-251. Creation; designation; powers, duties and terms of office generally; composition; conflicts of interest.

(a) Under and pursuant to the authority of Code of Ala. 1975, §§ 11-52-1 to 11-52-54, there is hereby created a planning commission for the city, to be known and designated as the city planning commission, with the powers, duties and terms of office as set forth in those sections, as now or hereafter amended, which commission shall consist of 16 members, namely the mayor, one of the administrative officials of the city selected by the mayor, two members of the council to be selected by the council, all as members ex officio, and 12 persons who shall be selected by the council, two of whom shall be persons licensed by the state to engage in the real estate profession either as brokers or salespersons.

(b) No member of the planning commission shall cast any vote or debate on any matter pending before the commission which would benefit directly or indirectly any such member or persons in the member's immediate family, or any business with which the member is associated.
(Code 1980, § 7-3-1)

Sec. 2-5-252. Qualifications of appointed members; effect of appointed member's removal of residence.

Appointed members of the planning commission shall be voters and residents of the city. Any such member removing his or her residence from within the city shall be deemed to have offered his or her resignation from the planning commission and, upon acceptance of this resignation by the council, the vacancy thereby created shall be filled by the council.
(Code 1964, § 40-2; Code 1980, § 7-3-2)

Sec. 2-5-253. Powers as to contracts with federal, etc., government or agencies.

The planning commission shall have the power to contract with federal, state, county or municipal governments or agencies to carry out its purposes and duties, with the approval of the council, and shall have the power to receive further income and make further expenditures in accordance with the terms of any such contract made.
(Code 1964, § 40-4; Code 1980, § 7-3-3)

Sec. 2-5-254. Annual report.

Promptly after the close of each fiscal year of the city, it shall be the duty of the planning commission to prepare and submit to the council an annual report, setting out the accomplish-

ments of the planning commission during the preceding fiscal year and outlining its objectives in the coming fiscal year.
(Code 1964, § 40-5; Code 1980, § 7-3-4)

Sec. 2-5-255. Fees.

The planning commission may charge reasonable fees for the investigation of, hearing and acting upon subdivision plats, and may charge reasonable fees for the issuance of certificates of other official papers.
(Code 1964, § 40-6; Code 1980, § 7-3-5)

Sec. 2-5-256. Revisions of zoning map.

It shall be the duty of the planning commission, in cooperation with the zoning board of adjustment, to prepare and recommend to the council a comprehensive revision of the zoning map of the city, so that the zoning map may promote the purposes of this article. Thereafter, it shall be the duty of the planning commission and the board of adjustment to prepare and recommend a comprehensive revision of the zoning map within three years of the completion of each decennial federal census, taking into account the trends of population, growth and development of the city.
(Code 1964, § 40-7; Code 1980, § 7-3-6)

Sec. 2-5-257. Clerical staff of planning commission and zoning board of adjustment.

(a) The administrative and clerical staff of the planning commission shall be the planning services division of the department of planning, engineering and permits.

(b) The clerical and administrative staff of the zoning board of adjustment shall be the division of inspections services of the department of planning, engineering and permits.
(Code 1980, § 7-3-7)

Sec. 2-5-258. Public improvements program.

The mayor may request that the planning director, after due consultation with department heads, independent boards and agencies falling under the jurisdiction of the council of the city, cause to be prepared a public improvements program, providing for community needs for not less than a five-year period and including recommended project priorities and a capital expenditures budget, for consideration by the planning commission, and transmit the recommendations of the planning commission to the mayor of the city. Following adoption by the planning commission, the mayor shall provide that the planning director maintain a projected public improvements program covering a period of at least five years and advise the planning commission, the mayor or council, prior to May 31 of each year, regarding necessary revisions in priority, additions of projects or deletion of projects.
(Code 1964, § 40-8.1; Code 1980, § 7-3-8)

Secs. 2-5-259—2-5-270. Reserved.

ARTICLE Q. BIRMINGHAM EMERGENCY MANAGEMENT COMMUNICATION DISTRICT*

Sec. 2-5-271. Created.

There is hereby created the Birmingham Emergency Management Communication District, which shall encompass all of the territory lying within the corporate limits of the city.
(Code 1980, § 2-5-271; Ord. No. 86-66A, § 1, 4-15-1986)

Sec. 2-5-272. Governing body.

The Birmingham Emergency Management Communication District shall be governed by a board of commissioners consisting of the members of the city council. The city council recognizes that should other governmental entities in Jefferson County elect to become subscribers to the 911 emergency service, the geographical boundaries, the designation and the constituency of the governing body of the emergency management communication district hereinabove provided for will be appropri-

*__Editor's note—__The Birmingham Emergency Management Communication District was originally established by Ord. No. 85-239, adopted Nov. 29, 1985, as amended by Ord. No. 86-31, adopted Feb. 18, 1986, subject to referendum. The city has advised that this referendum was never held. Subsequently Ord. No. 86-66A, adopted April 15, 1986, established a new district.

ately changed as provided for in Code of Ala. 1975, § 11-98-1 et seq., providing that such action shall have prior approval by the city board of commissioners.
(Code 1980, § 2-5-272; Ord. No. 86-66A, § 2, 4-15-1986; Ord. No. 87-114, § 1, 7-14-1987; Ord. No. 09-175, 12-14-2009)

State law reference—Emergency communication districts, Code of Ala. 1975, § 11-98-2.

Sec. 2-5-273. Powers and duties.

(a) The board of commissioners of the Birmingham Emergency Management Communication District shall have the following powers and duties:

(1) Levy on all of the telephone subscribers within the emergency management communications district an emergency telephone service charge in an amount not to exceed five percent of the maximum tariff rates for any bundled service provided by any service supplier in the district as it existed on February 1, 2005, which shall be adjusted once every five years, beginning February 1, 2010, by the percentage increase in the consumer price index over the preceding five calendar years charged to these subscribers for local service by the telephone companies servicing the communication district; which shall include all wired telephone service utilized within the district, including such service provided through voice-over-internet protocol (VoIP) or other similar technology and each provider of VoIP or similar service shall have the duty to collect the fee for each ten-digit access number assigned to the user and remit such fee as provided in the Code of Ala. 1975, § 11-98-5;

(2) Obtain the personnel, lines and equipment necessary to upgrade the basic 911 emergency service in order to provide enhanced emergency service or E-911 service, as defined in Act No. 84-369 as it may be amended;

(3) Collect from local telephone companies on a quarterly basis the amount collected by these companies attributable to the emergency telephone service charge to telephone subscribers;

(4) Disburse funds collected from the emergency telephone service charge or any other source in the discharge of its responsibilities under law.

(b) Where the revenues set in subsection (a)(1) of this section prove to be in excess of the amounts needed to operate the service, the board of commissioners shall reduce the subscribers' levy accordingly.
(Code 1980, § 2-5-273; Ord. No. 86-66A, § 4, 4-15-1986; Ord. No. 90-188, 7-10-1990; Ord. No. 09-175, 12-14-2009)

Secs. 2-5-274—2-5-280. Reserved.

ARTICLE R. BIRMINGHAM CONSTRUCTION INDUSTRY AUTHORITY

Sec. 2-5-281. Created.

There is hereby created the Birmingham Construction Industry Authority (hereinafter referred to as the "authority"), which shall be an agency of the city, the purpose of which is to encourage, facilitate, and effect the full economic participation of all segments of the metropolitan Birmingham community in this economic growth, and to oversee the implementation and operation of the Birmingham Plan-Construction Industry Program (hereinafter referred to as "BP-CIP" or the "plan").
(Code 1980, § 2-5-281; Ord. No. 89-296, § 1, 12-12-1989)

Sec. 2-5-282. Board of directors.

(a) The authority shall be composed of a 19-member board of directors. These persons shall be nominated by the mayor, upon a recommendation of the below-named sponsor entities, and shall be appointed to the authority by the city council:

(1) The Associated General Contractors (AGC) Alabama Branch, two members;

(2) The Alabama Minority Contractors Association (AMC) local chapters, two members;

(3) The city, two members;

(4) The American Sub-Contractors Association (ASA), one member;

(5) The city chamber of commerce, one member;

(6) The Metropolitan Business Association, one member;

(7) The local chapter of the Associated Builders and Contractors, two members;

(8) The Birmingham Association of Urban Bankers, one member;

(9) Jefferson County, two members;

(10) The University of Alabama at Birmingham, one member;

(11) The National Association of Women in Construction, one member; and

(12) The authority shall recommend three at-large members.

(b) Each board member shall serve a term of office, which expires only when the board member's sponsoring entity formally requests the mayor and the city council that the board member be replaced with a successor on the board, or there is a vacancy created by the board member's death, resignation, or inability to perform the duties of the office due to any other good or just cause. In such event, the successor shall be nominated by the mayor, upon recommendation of the applicable sponsor, and appointed by the city council to the authority.

(c) In addition to the requirements enumerated above, to obtain and maintain membership on the authority's board of directors, each sponsoring entity must be an active participant and/or financial supporter of the authority's BP-CIP.
(Code 1980, § 2-5-282; Ord. No. 89-296, § 2, 12-12-1989; Ord. No. 90-33, 2-6-1990; Ord. No. 92-139, 6-2-1992)

Sec. 2-5-283. Bylaws; number of meetings; quorum.

(a) The authority shall at its first meeting, or in adjournment thereof, adopt bylaws for the authority, which may from time to time be amended as provided in the bylaws.

(b) The board shall meet in accord with the bylaws, but in any event no less than four times a year. A simple majority of the existing board of directors shall constitute a quorum for the transaction for the business of the authority.
(Code 1980, § 2-5-283; Ord. No. 89-296, § 3, 12-12-1989)

Sec. 2-5-284. Officers.

(a) The members of the authority shall elect from among its regular members a chairperson, vice-chairperson, and a secretary. These offices shall be elected annually by a majority vote of the members of the authority.

(b) The officers of the authority shall perform those duties prescribed by this article, the authority's bylaws, and as may be further prescribed by subsequent ordinances or resolutions of the city council.
(Code 1980, § 2-5-284; Ord. No. 89-296, § 4, 12-12-1989)

Sec. 2-5-285. Compensation.

The members of the authority shall receive no compensation whatsoever for their services, nor shall they receive compensation or per diem for attending meetings.
(Code 1980, § 2-5-285; Ord. No. 89-296, § 5, 12-12-1989)

Sec. 2-5-286. Powers and duties.

(a) The authority shall have the power to do all acts or things necessary to carry out the purposes and objectives set forth in this article, subject to the general administrative process and procedures controlling other departments of city government; to acquire, by purchase, gift or loan, any land, premises, money, securities, objects or other property for its uses and purposes; to buy and sell and otherwise deal in property necessary to carry out its objectives; to cooperate with any public or private corporation or organization, and governmental body or organization to do the acts and things necessary to obtain private, corporate, or governmental grants or funding; to do those things to contribute to the significance of the authority; to establish and maintain an administrative structure designed to administer the BP-CIP and to

accommodate public and private participation in the plan; to provide rules and regulations governing the BP-CIP, the authority, and the governance of its officials, employees, and personnel under contract to it and of any premises or property which may from time to time be in its custody, provided such rules and regulations are in accordance with and do not conflict with or otherwise violate any provision of state law or other ordinances or resolutions of the city. In the exercise of its powers, the board shall have no power or authority to bind or obligate the city beyond the amount appropriated by the city council for its purposes.

(b) As the administrative unit for the BP-CIP, the authority shall:

(1) Establish policies for the program;

(2) Provide and solicit sufficient funding for its support;

(3) Approve its budgets;

(4) Certify eligible minority business enterprises/disadvantaged business enterprises (hereinafter referred to as "MBE/DBE") firms, as described below;

(5) Establish annual and/or short-term MBE/DBE participation goals in construction projects;

(6) Resolve disputes regarding certification;

(7) Monitor the program's progress;

(8) Provide training programs and technical assistance for MBE/DBE firms; and

(9) Issue reports on the program activities, at least on an annual basis.

(Code 1980, § 2-5-286; Ord. No. 89-296, § 6, 12-12-1989)

Sec. 2-5-287. Acquisition of property.

(a) The management, custody or control of any and all property, objects and items belonging to the city which the city council may, by resolution, place under the control and management of the authority shall be vested in the authority; and the authority shall exercise, subject to the control of the city council, all the powers of the city with respect to such property, objects and items.

(b) The authority shall not have the right to sue or be sued, and all property and property interests acquired by or accruing to it shall be vested in the city and held by it for the city.

(Code 1980, § 2-5-287; Ord. No. 89-296, § 7, 12-12-1989)

Sec. 2-5-288. Contribution of city.

The city shall be one of the lead financial supporters for the BP-CIP and, along with others, shall accept a major responsibility to contribute to the BP-CIP. The city's direct annual contribution shall not exceed 50 percent of the authority's approved budget for the BP-CIP or $100,000.00, whichever is the lesser amount. The AGC shall raise funds for the BP-CIP. The AGC's annual goal for fundraising efforts will be $50,000.00.

(Code 1980, § 2-5-288; Ord. No. 89-296, § 8, 12-12-1989)

Sec. 2-5-289. Construction assistance institute.

(a) The authority shall establish and staff a construction assistance institute (hereinafter referred to as "CAI") patterned after the proposed organization for the construction assistance institute. The CAI shall make recommendations to the authority which assist the authority in fulfilling its functions and shall carry out all other activities designated to it by the authority, including but not limited to the certification of MBE/DBE firms, program evaluation, training programs, technical assistance to certified MBE/DBE firms (e.g., estimating, bid preparation, etc.), fundraising and marketing.

(b) Any firm or business which is certified as meeting MBE/DBE criteria by the U.S. Department of Transportation (DOT) or Urban Mass Transit Authority (UMTA) or has attained SBA-8A status will be considered for waiver of the certification process by the authority upon presentation of its certificate of such status to the CAI executive director. The executive director will make a final and binding decision with respect to waiving the authority's certification process. Other MBE/DBE firms may apply to the executive director for certification as a MBE/DBE firm. The criteria for certification of MBE/DBE shall contain a rebutta-

ble presumption that minority-owned and women-owned businesses are MBE/DBE firms. For the purposes of this plan, the term "MBE/DBE" means a business at least 51 percent of which is owned by African-Americans, women or other disadvantaged minorities, or in the case of a publicly owned business, at least 51 percent of the stock of said business is owned by African-Americans, women or other disadvantaged minorities. This presumption shall apply only to businesses actually owned and managed by African-Americans, women or other disadvantaged minorities for a credible period of time. The authority shall issue administrative rules and regulations which will define, among other matters, the time period necessary to constitute a credible period, within the meaning of this section. Any business entity may be certified as a MBE/DBE firm upon a showing to the authority that it has suffered discrimination or is disadvantaged in the American construction industry. There shall be, in addition to the initial certification of MBE/DBE firms, a periodic recertification, the frequency of which shall be determined by the authority. The plan shall target businesses that continue to suffer a disadvantaged status in the Birmingham area. The intended beneficiaries of this plan shall be MBE/DBE firms indigenous to the city metropolitan area at the time this article is adopted (December 12, 1989) and MBE/DBE firms which establish offices (branches) and maintain a reasonable staff presence in the Birmingham area.

(c) The authority will seek to increase minority participation in the public and private sectors. The authority, with the assistance of the CAI, shall establish goals or targets for MBE/DBE participation on an annual overall basis. In the sense that the goals may differ from year to year and project to project, they will be referred to as floating goals. Overall, however, these goals shall not be less than the historical participation of MBE/DBE in construction projects of the City of Birmingham and its agencies, based on construction activity reports prepared by the CAI staff. Initial consultant figures for 1988-89 construction activity show an approximate 20 percent minority participation. These figures are unaudited and hence unofficial and are used for demonstration purposes and for clarity of intent: for example, a progressive goal for 1990 MBE/DBE participation would be higher than what the CAI official audit showed for 1989, or in the alternative, could be a significant increase of the dollar amount awarded in 1989 for the public and private sectors combined. In any event, the authority shall strongly encourage legitimate joint ventures between general contractor and MBE/DBE firms.

(d) With the assistance of the CAI, the authority shall offer training programs designed to strengthen MBE/DBE firms. Goals and areas for these programs shall be determined by market analysis within the construction industry, MBE/DBE firms availability in the latest published U.S. Census Bureau's standard metropolitan statistical analysis (SMSA) labor market for the city, and other relevant criteria as determined by the authority.

(e) Program guidelines will be as presented in appendix B to the ordinance from which this article is derived.

(f) A fiscal manager for the BP-CIP will be designated by the authority from among an existing fiscal management program, such as that of the AGC, the city, or some similarly established fiscal management program, which will volunteer such a service.

(g) Aside from the sponsors referred to in section 2-5-282, all entities, public and private, which engage at any time in the purchase of construction services within the city metropolitan area, are encouraged by the authority to become signatories to (and participants in) the BP-CIP by signing a participation agreement, and paying an annual fee of $100.00 or by paying at the time it begins a construction project a fee agreed on by it and the authority. A signatory to the BP-CIP should honor its BP-CIP commitment and should include its BP-CIP commitment as a part of or addendum to its bid specification documents for all of its construction projects within the city metropolitan area.

(Code 1980, § 2-5-289; Ord. No. 89-296, § 9, 12-12-1989)

Sec. 2-5-290. Authority authorized to promulgate additional rules, regulations.

The authority is authorized to promulgate any additional rules and regulations as it may deter-

mine to be reasonably necessary to ensure compliance with or to promote the objectives of this article, provided that such rules and regulations are mutually acceptable to the mayor and the AGC.
(Code 1980, § 2-5-290; Ord. No. 89-296, § 10, 12-12-1989)

Secs. 2-5-291—2-5-300. Reserved.

ARTICLE S. HOUSING POLICY AND HOMELESS ADVISORY COMMITTEES

Sec. 2-5-301. Housing policy committee established; duties.

(a) There is hereby established the housing policy committee, to be comprised of nine members serving four-year terms.

(b) The committee is charged with the responsibility of developing long-range local solutions to the problem of homelessness and reporting its recommendations to the city council within one year from the date of adoption of the ordinance from which this article is derived.
(Code 1980, § 2-5-301; Ord. No. 90-22, 1-23-1990)

Sec. 2-5-302. Homeless advisory committee established; duties.

(a) There is hereby established the homeless advisory committee, to be comprised of nine members serving four-year terms.

(b) The committee is charged with the responsibility of developing short-term local solutions to the problem of homelessness and reporting its recommendations to the city council within one year from the date of adoption of the ordinance from which this article is derived.
(Code 1980, § 2-5-302; Ord. No. 90-22, 1-23-1990)

Secs. 2-5-303—2-5-305. Reserved.

ARTICLE T. REGIONAL PLANNING

Sec. 2-5-306. Advisory planning region established.

There is hereby created and established a region for advisory planning purposes, which region shall be composed of the same geographical area as that area which composes Jefferson County and shall be known as the Birmingham-Jefferson County Advisory Planning Region.
(Code 1964, § 40-13; Code 1980, § 7-3-31)

Sec. 2-5-307. Regional planning commission established.

There is hereby constituted, created and established the Birmingham-Jefferson County Regional Planning Commission to be composed of members appointed as provided in Code of Ala. 1975, § 11-85-22.
(Code 1966, § 40-14; Code 1980, § 7-3-32)

State law reference—Similar provisions, Code of Ala. 1975, §§ 11-85-20 to 11-85-23.

Sec. 2-5-308. Powers and duties of regional planning commission.

The Birmingham-Jefferson County Regional Planning Commission shall have all the power, authority and duties set out in Code of Ala. 1975, § 11-85-23, and all power and authority authorized by Code of Ala. 1975, § 11-85-23, or by any other law.
(Code 1964, § 40-15; Code 1980, § 7-3-33)

Secs. 2-5-309, 2-5-310. Reserved.

ARTICLE U. URBAN FORESTRY AND TREE COMMISSION

Sec. 2-5-311. Creation and establishment.

There is hereby established and created an urban forestry and tree commission ("commission") for the city, which shall consist of 19 members including one representative from each of the following;

(1) Birmingham beautification board;

(2) Birmingham botanical gardens;

(3) City park and recreational board;

(4) City planning commission;

(5) State urban forestry council;

(6 Department of public works;

(7) City design review committee;

(8) Department of planning, engineering and permits;

(9) Overhead line utility company;

(10) Landscape architect profession;

(11) Tree service industry;

(12) Plant and tree nursery industry;

and six persons who are active or experienced in conservation, forestry, ecology or the environment and are residents of the city. The members of the commission shall be appointed by the mayor with the confirmation of the city council. One member of the city council shall serve as an ex officio nonvoting member of the commission. The commission shall serve without compensation.
(Code 1980, § 2-5-311; Ord. No. 90-88, § 1, 4-17-1990)

Sec. 2-5-312. Purposes and objectives.

The purpose of the urban forestry and tree commission is to preserve, protect and enhance the ecological and aesthetic environments of the city. Inasmuch as trees serve to protect soil from erosion; reduce the hazards of flooding; absorb carbon dioxide and supply oxygen; reduce the effects of noise, glare, dust and other objectionable activities generated by some land uses; safeguard and enhance property values; buffer and screen adjacent properties; promote the pleasant appearance and character of neighborhoods and cities; and provide shade, it is further the purpose of this section to improve the appearance, quality and quantity of trees throughout the city and to preserve the natural beauty of the city. In pursuit of these purposes, the objectives to be met are:

(1) To conserve and protect, insofar as possible, healthy and existing trees;

(2) To replenish the local stock of trees suitable for growing in the city; and

(3) To protect and preserve the unique identity of neighborhoods as well as the city and to provide an attractive appearance to streets.

(Code 1980, § 2-5-312; Ord. No. 90-88, § 2, 4-17-1990)

Sec. 2-5-313. Term of office.

The terms of office of the urban forestry and tree commission members shall be for a term of three years. If a vacancy shall occur during the term of any member, his or her successor shall be appointed by the mayor, with the approval and consent of the city council, for the unexpired portion of the term.
(Code 1980, § 2-5-313; Ord. No. 90-88, § 3, 4-17-1990)

Sec. 2-5-314. Operation.

The urban forestry and tree commission shall choose its own officers, make its own rules and regulations, and keep a journal of its proceedings. A majority of the members shall constitute a quorum for the transaction of business. The commission shall meet as often as necessary to fulfill the duties imposed on it by this article, but in any case no less than six meetings per year.
(Code 1980, § 2-5-314; Ord. No. 90-88, § 4, 4-17-1990)

Sec. 2-5-315. Duties and responsibilities.

(a) The powers and duties of the urban forestry and tree commission shall be as follows:

(1) Produce and maintain a list of the suitable and desirable kinds, species, spacing, and locations of trees for planting;

(2) Recommend areas, conditions and timetables under which such trees should be planted;

(3) Determine public tree care policies;

(4) Make recommendations on the removal of dead, dying, diseased and infected trees;

(5) Inventory city-owned trees;

(6) Determine policies on cutting of trees on public rights-of-way;

(7) Recommend policies on tree preservation and planting in the development of private property;

(8) Recommend and/or establish educational and informational programs for the public concerning tree care, planting and maintenance;

(9) Present a comprehensive tree plan to the city council with updates periodically, but no less than five-year intervals, which upon acceptance and approval by the city council shall constitute the official comprehensive tree plan for the city; and

(10) Otherwise provide information, give advice, and make recommendations to the mayor and city council as requested.

(b) Periodically, the commission shall report its overall activities to the mayor and city council.
(Code 1980, § 2-5-315; Ord. No. 90-88, § 5, 4-17-1990)

Sec. 2-5-316. Tree and shrub species list.

A list of tree and shrub species which are suitable for planting in the city, and a list of those trees and shrubs which are not suitable for planting in the city, shall be compiled by the urban forestry and tree commission with the assistance of the city horticulturist and the department of planning, engineering and permits and placed on file in the office of the city clerk. Such lists may be amended at any time.
(Code 1980, § 2-5-316; Ord. No. 90-88, § 6, 4-17-1990)

Sec. 2-5-317. Height of trees under or over utility wires or lines.

No tree whose normal height is greater than 25 feet at maturity may be planted under or within ten lateral feet of any overhead utility wire, or over or within five lateral feet of any underground water line, sewer line, transmission line or other utility.
(Code 1980, § 2-5-317; Ord. No. 90-88, § 7, 4-17-1990)

Sec. 2-5-318. Public tree care.

The city shall have the right to plant, prune, maintain and remove trees, plants and shrubs within the boundaries of all streets, alleys, rights-of-way and all other public grounds, as may be necessary to ensure the public health, safety and welfare or to preserve or enhance the symmetry and beauty of such public grounds.
(Code 1980, § 2-5-318; Ord. No. 90-88, § 8, 4-17-1990)

Sec. 2-5-319. Tree topping; permit required.

(a) It shall be unlawful for any person, firm or corporation to trim or top any tree or shrub on public property or the public right-of-way without a permit therefor issued by the department of planning, engineering and permits.

(b) Public utilities that perform tree trimming or other operations affecting trees and shrubs on city property or the public right-of-way shall be issued an annual permit by the department of planning, engineering and permits. Any other person, firm or corporation shall apply to the department of planning, engineering and permits for a permit prior to trimming or topping any trees or shrubs on city property or the public right-of-way, which application shall describe with specificity the work to be done and the reason therefor. The department of planning, engineering and permits may decide to grant or deny such permit based on the desirability of the trimming as it relates to the overall tree plan for the city or the specific area involved.

(c) All permittees shall perform their trimming in conformance with standards and policies established by the urban forestry and tree commission and on file in the office of the city clerk. Any trimming or topping which is not done in conformance with these standards may be subject to revocation or suspension of such permit and/or other penalties as provided by law.
(Code 1980, § 2-5-319; Ord. No. 90-88, § 9, 4-17-1990)

Sec. 2-5-320. Duty to remove dead, diseased or dangerous trees.

Every owner of any tree overhanging any street or right-of-way within the city shall remove all dead, diseased or dangerous trees, or broken or decayed limbs which constitute a menace to the safety of the public.
(Code 1980, § 2-5-320; Ord. No. 90-88, § 10, 4-17-1990)

Sec. 2-5-321. Dead or diseased trees; removal on private property.

The city shall have the right to cause the removal of any dead or diseased trees on private

property within the city when such trees constitute a hazard to life and property, or harbor insects or disease which constitutes a potential threat to other trees within the city. The department of planning, engineering and permits will notify the owners of such trees in writing, requiring the removal of the dead or diseased trees by said owners at their own expense within 60 days after the date of service of notice. In the event of failure of the owners to comply with such provisions, the city shall have the authority to remove such trees and assess the cost of removal to the owner of the property.
(Code 1980, § 2-5-321; Ord. No. 90-88, § 11, 4-17-1990)

Sec. 2-5-322. Review by city council.

The city council shall have the right to review the conduct, acts and decisions of the urban forestry and tree commission. Any affected person may appeal from any ruling or order of the department of planning, engineering and permits to the city council, who may hear the matter and make final decision.
(Code 1980, § 2-5-322; Ord. No. 90-88, § 12, 4-17-1990)

Secs. 2-5-323—2-5-330. Reserved.

ARTICLE V. CAMP BIRMINGHAM ADVISORY BOARD

Sec. 2-5-331. Creation.

There is hereby created the Camp Birmingham Advisory Board ("board").
(Code 1980, § 2-5-331; Ord. No. 90-127, § 1, 5-15-1990)

Sec. 2-5-332. Purpose.

The purpose of the Camp Birmingham Advisory Board shall be to act in an advisory capacity to the city council and the city board of education in regard to the development and provision of meaningful employment opportunities and summer camp opportunities for economically disadvantaged youth and to develop and pursue fundraising for these activities.
(Code 1980, § 2-5-332; Ord. No. 90-127, § 2, 5-15-1990)

Sec. 2-5-333. Powers and duties.

(a) The Camp Birmingham Advisory Board shall have the power to do all things necessary to carry out the objectives and purposes set forth in this article, subject to the general administrative process and procedures controlling other departments of city government.

(b) The board shall, at its first meeting or an adjournment thereof, adopt bylaws which may from time to time be amended and keep a journal of its proceedings.

(c) The board shall meet as often as necessary to fulfill the duties imposed on it by this article, but in no case less than six meetings per year. A majority of the members of the board shall constitute a quorum.

(d) The board shall not have the right to sue or be sued or to have or hold property; and all money or property acquired by it shall be vested in the name of the city and shall be the property of the city, all of which money shall be put into the general fund. The board shall have no authority to act for or obligate the city in any matter whatsoever.
(Code 1980, § 2-5-333; Ord. No. 90-127, § 3, 5-15-1990)

Sec. 2-5-334. Membership.

The Camp Birmingham Advisory Board shall consist of 15 members appointed by the mayor with the confirmation of the city council. The membership shall include one representative from the mayor's office, office of the city council, and city board of education; five members at large who are residents of the city; and seven representatives of the business community. The board shall serve without compensation.
(Code 1980, § 2-5-334; Ord. No. 90-127, § 4, 5-15-1990)

Sec. 2-5-335. Terms of office.

The terms of office of the Camp Birmingham Advisory Board members shall be for three years. If a vacancy shall occur during the term of any member, the person's successor shall be appointed by the mayor with the approval and consent of the city council for the unexpired portion of the term.
(Code 1980, § 2-5-335; Ord. No. 90-127, § 5, 5-15-1990)

Sec. 2-5-336. Officers.

The board shall elect a chairperson, vice-chairperson and secretary from among its membership. The term of these officers shall be for one year; however, no person may serve in the same office for more than two consecutive terms.
(Code 1980, § 2-5-336; Ord. No. 90-127, § 6, 5-15-1990)

Secs. 2-5-337—2-5-340. Reserved.

ARTICLE W. BIRMINGHAM YOUTH ADVISORY COMMISSION

Sec. 2-5-341. Creation.

(a) There is hereby created the Birmingham Youth Advisory Commission (hereafter referred to as "BYAC"). BYAC shall act in an advisory capacity to the mayor and city council in regard to the development and encouragement of youth programs.

(b) BYAC shall not have the right to sue or be sued or to have or to hold property, and all property or money acquired by it shall be vested in the name of the city and be the property of the city of which such money shall be paid into the general fund.
(Code 1980, § 2-5-341; Ord. No. 92-279, § 1, 11-3-1992)

Sec. 2-5-342. Powers and duties generally.

(a) The BYAC shall adopt bylaws which may from time to time be amended.

(b) BYAC shall submit to the city council of the city and the mayor, on or before March 1 of each year, a plan for the refinement of youth programs. The plan shall include recommendations concerning the following:

(1) Review all programs that are youth oriented that receive or request city funding support and define ways to better coordinate these programs in order to optimize youth opportunities;

(2) Establish criteria for evaluation of youth programs as to their mission, program goals and alternative funding sources;

(3) Conduct a comprehensive needs assessment of youth programs;

(4) Review and evaluate existing programs based on established criteria as to goals, mission statement, and source of funding support;

(5) Review existing programs and identify unmet needs for youth opportunities;

(6) Establish an ongoing process to review city-supported programs and need;

(7) The implementation of a challenge grant program to encourage creative and/or innovative community youth programs.

(c) BYAC shall make quarterly reports to the mayor and city council which shall contain progress reports toward achieving program goals, other accomplishments and such information as from time to time requested by the mayor and city council. In addition, the mayor or city council may, at their discretion, request a report from BYAC concerning the whole or any aspect of the program.
(Code 1980, § 2-5-342; Ord. No. 92-279, § 2, 11-3-1992)

Sec. 2-5-343. Membership.

(a) *Generally.* BYAC shall consist of 13 members appointed by the mayor (five seats), city council (six seats) and a student representative chosen by the citizens advisory board and the president of the city high school SGA president's council. All members shall be residents of the city. Appointees are eligible for reappointment to a full

four-year appointment upon completion of the initial appointment. The school students will have annual appointments determined by the appointing bodies.

(b) *Death or resignation.* In the event any regular member should die, resign, or for any reason become unable or otherwise disqualified to serve, the appointing authority for that person shall appoint a successor. The city council may at any time by an affirmative vote of six members thereof remove any regular member from the BYAC for repeated unexcused absences from meetings or any cause deemed sufficient by it.

(c) *Ex officio.* A representative from the mayor's office and from the city council's office selected by the mayor and council respectively shall attend all meetings of the BYAC.

(d) *Compensation.* The members of the BYAC shall receive no compensation whatever for their services, nor shall they receive compensation or per diem for attending meetings. No traveling expense or other expense incurred by a member of the BYAC or anyone acting therefor while out of the city shall be paid by the city except as approved by the city council upon recommendation of the mayor. The BYAC shall have no authority to act for or obligate the city or any official or agency thereof in any matters whatsoever.
(Code 1980, § 2-5-343; Ord. No. 92-279, § 3, 11-3-1992)

Sec. 2-5-344. Officers.

(a) *Duties.* The officers of the BYAC shall perform those duties prescribed by this article, by the bylaws, or by formal city council resolution or ordinance.

(b) *Chairperson.* A chairperson shall be elected from the regular membership to serve a term of two years beginning with the date of election, and shall be eligible for reelection. The chairperson shall be the chief executive officer and shall exercise a general supervision over the interests and duties of the BYAC. The chairperson shall preside at the meetings of the BYAC and may appoint any subcommittees deemed necessary to investigate any matter before it.

(c) *Vice-chairperson.* A vice-chairperson shall be elected by the BYAC from among its regular members in the same manner and for the same term as the chairperson. He or she shall serve as acting chairperson in the absence of the chairperson, and at such other times he or she shall have the powers and duties as the chairperson.

(d) *Secretary.* The secretary shall be elected in the same manner and for the same term as the chairperson. The secretary shall perform the administrative and clerical functions of the BYAC and shall keep all records, make all reports, and handle all correspondence and notices for the BYAC with the assistance of the ex officio members.
(Code 1980, § 2-5-344; Ord. No. 92-279, § 4, 11-3-1992)

Sec. 2-5-345. Quorum; meetings.

Seven members of the BYAC shall constitute a quorum for any meeting. The BYAC shall hold regular meetings at least once every three months. Special meetings may be called by the chairperson on written notice to the members, which notice shall be sufficient if mailed, postage prepaid, addressed to each member six days prior to such special meetings. Special meetings may be held at any time upon written waiver of notice executed by each member of the board.
(Code 1980, § 2-5-345; Ord. No. 92-279, § 5, 11-3-1992)

Secs. 2-5-346—2-5-350. Reserved.

ARTICLE X. BOARDS AND AGENCIES TRAINING COMMITTEE

Sec. 2-5-351. Creation.

The city council hereby establishes the board and agencies training committee to be comprised of 15 members; 14 which will be appointed by the city council; five of which will be from the corporate community and one which will be appointed by the mayor, each serving a two-year term.
(Code 1980, § 2-5-361; Ord. No. 94-231, 10-18-1994)

Sec. 2-5-352. Powers and duties.

The committee is charged with the responsibility of developing a longterm recommendation and will submit said recommendation to the city council stating the curriculum and/or program of instruction within one year from the date of adoption of this article to accomplish the goal of acquainting future appointees of boards and agencies of the city with the information necessary for them to better serve in their capacity as board and/or agency members.
(Code 1980, § 2-5-362; Ord. No. 94-231, 10-18-1994)

Secs. 2-5-353—2-5-360. Reserved.

ARTICLE Y. BOARD OF EDUCATION

Sec. 2-5-361. Election from districts, termination of appointed board.

It is hereby established and declared that the city shall change from appointing five members to the city board of education pursuant to Code of Ala. 1975, § 16-1-1 et seq., to election of members of the board of education, one from each of the nine single-member districts, as authorized by Acts 2001-224 and 2002-22, Acts of Alabama, 2001. Upon certification of the election results as provided herein, the terms, powers, duties, responsibilities and emoluments of office of the existing appointed board members shall terminate.
(Ord. No. 02-14, § 1(2-5-361), 2-5-2002)

Sec. 2-5-362. Method of election.

(a) The city shall elect nine members of the city board of education. All members of the board shall be elected at the regular general municipal election, commencing on the second Tuesday in October of the same year and any subsequent run-off election, if necessary, as provided herein, in the same manner, assume office at the same time, and serve the same term of office as the members of the city council.

(b) Each candidate, by district, for member of the school board who receives a majority of the total votes cast in the candidate's council district shall be elected school board member for that district. In the event that any one candidate should fail to receive such a majority of the total votes from the candidate's district, the two candidates who receive the highest number of votes in said council district shall be placed in a runoff election to be held on the third Tuesday, thereafter, in the same mode and manner and under the same rules and regulations as the first election. The candidate in such runoff election who receives the majority of votes cast in the candidate's district shall be elected the school board member for that district. Subsequent elections of school board members shall be held at the same time and in the same manner as provided herein.

(c) No voter shall vote more than one time in either election provided for in this section, nor shall any voter cast a vote in either election for more than one candidate for school board member. Only voters residing within a council district shall be entitled to vote for candidates seeking election as their respective district school board member.
(Ord. No. 02-14, § 1(2-5-362), 2-5-2002)

Editor's note—The regular general municipal election dates for the elections of school board members as established by Ordinance No. 02-14, adopted February 5, 2002, and as they appeared in § 2-5-362, were readopted by § 3 of Ordinance No. 09-36, adopted February 24, 2009.

Sec. 2-5-363. Membership, term of office.

The city board of education shall consist of nine members elected, one per council district. Members shall hold office for a term of four years and until their successors are elected and qualified, commencing on the fourth Tuesday in November following their election.
(Ord. No. 02-14, § 1(2-5-363), 2-5-2002)

Sec. 2-5-364. Qualifications, forms and fees for candidates for members to city board of education.

Any person desiring to become a candidate, in any election, for each position of member of the city board of education may become such candidate by filing in the office of the judge of probate of Jefferson County, city division, a statement in writing of such candidacy and an affidavit, taken and certified by such judge of probate or by a notary public, that such person is duly qualified to

hold the office for which he or she desires to be a candidate. Such statement shall be filed at least 21 days before the date set for such election and shall be in substantially the following form:

State of Alabama, _____ County. I, the undersigned, being first duly sworn, depose and say that I am a citizen of the City of Birmingham, Alabama, and reside at _____, in said City of Birmingham, that I desire to become a candidate for the position of member of the Board of Education for the City of Birmingham for District Number ____, in said city at the election for said office to be held on the ____ day of _____, 2____, I am duly qualified to hold office if elected thereto, and I, hereby, request that my name be printed upon the official ballot at said election.

Signed _____

Subscribed and sworn to before me by said _____ on this ____ day of _____, 20____, and filed in this office for record on said day.

_____, Judge of Probate.

Such statement shall be accompanied by a qualifying fee in the amount of $100.00, which fee shall be paid over by the judge of probate to the general fund of the city. At every such election, all ballots to be used by voters shall be printed and prepared by the election commission of the city, or other body or official charged by law with the duty of conducting elections, at the expense of said city, and shall contain the names of all candidates directly underneath the words "for member of the Board of Education." No name shall appear upon such ballot as a candidate for election except the names of such persons as have become candidates according to provisions as above set forth. No ballot shall be used at any such election except the official ballot prepared by the election commission of the city, or other body or official charged by law with the duty of conducting elections, except that the names of candidates may be suitably placed on voting machines if such machines are used to conduct such election.
(Ord. No. 02-14, § 1(2-5-364), 2-5-2002)

Sec. 2-5-365. Eligibility.

A candidate for each place on the board of education shall be at least 18 years of age, a resident of the city council district which the candidate seeks to represent on the board for at least 90 consecutive days immediately preceding the deadline for qualifying as a candidate (111 days before the election), shall be a qualified elector, and shall not have a record of conviction for any crime involving moral turpitude, including any crime involving fraud or financial wrongdoing.
(Ord. No. 02-14, § 1(2-5-365), 2-5-2002)

Sec. 2-5-366. Powers.

Upon assumption of office, the initial and subsequent elected members of the board of education for the city shall have the powers, authority, duties and responsibilities, as are otherwise provided for members of city boards of education as set forth in the Code of Ala. 1975, § 16-11-1 et seq.
(Ord. No. 02-14, § 1(2-5-366), 2-5-2002)

Sec. 2-5-367. Vacancy.

(a) If a vacancy occurs on the board of education where one year or more remains in the unexpired term, an election shall be called to fill such vacancy. If a regular or special election is scheduled or required to be held more than 60 days after the occurrence of the vacancy and within 90 days after the occurrence of such vacancy, then an election to fill such vacancy shall be held at that time, otherwise a special election shall be called to fill such vacancy as provided by state law.

(b) If a vacancy on the board of education occurs when one year or less remains of the unexpired term of the vacancy, such vacancy, for the unexpired term, shall be filled, by appointment, by a majority of the remaining members of the board of education. If the vacancy is not filled by the board within 30 days, the chairperson or vice-chairperson, in the absence of the chairperson, shall notify the city council, which shall fill, by appointment, the vacancy for the unexpired term, by a majority of the members of the city council. If the vacancy is not filled by the city council within 30 days after notification of the

vacancy, the local superintendent of education shall notify the state superintendent of education who shall fill, by appointment, the vacancy for the unexpired term.

(c) A person filling a vacancy on the board of education shall reside in the district which the vacating member represented.
(Ord. No. 02-14, § 1(2-5-367), 2-5-2002)

Secs. 2-5-368—2-5-380. Reserved.

ARTICLE Z. CITY CENTER BUSINESS IMPROVEMENT DISTRICT

Sec. 2-5-381. Declaration of public policy and purposes.

(a) The designation of the geographic area described in section 2-5-384 as a self-help business improvement district contributes to the health, prosperity and welfare of the people of the city and, therefore, is an act which is in furtherance of the best interests of the city and its citizens.

(b) The ordinance from which this article is derived is adopted to:

(1) Designate, establish, and maintain the geographic area described in section 2-5-384 as a self-help business improvement district;

(2) Designate a district management corporation to provide supplemental services within the self-help business improvement district;

(3) Authorize the designated district management corporation to impose a special assessment upon the owners of the real property located within the self-help business improvement district to finance the cost of the supplemental services which will be provided by the district management corporation within the district;

(4) Provide for the submission of certain reports to the city by the district management corporation;

(5) Provide a sunset provision pursuant to which property owners within the district may object to the continuation of the district and, thereby, terminate the district; and

(6) Provide an effective date for the provisions of the ordinance from which this article is derived.

(Ord. No. 95-10, § I(1), 1-3-1995)

Sec. 2-5-382. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Basic services means the programs and services provided and maintained by the City of Birmingham within the self-help business improvement district. The term "basic services" includes the programs and services set forth in the base line services agreement described in section 2-5-391.

District management corporation means an entity created by incorporation under the Alabama Nonprofit Corporation Act (chapter 3A of title 10, Code of Alabama 1975), and designated by ordinance to manage a self-help business improvement district.

Self-help business improvement district means an area within the city designated by ordinance as an area in which a special assessment may be levied by a district management corporation on the owners of the real property located within the geographical area of the district for the purposes of providing supplemental services within the district and promoting the economic and general welfare of the district.

Special assessment means the service charge levied by the district management corporation on the owners of the real property located within the geographical area of the self-help business improvement district to finance the costs of providing supplemental services.

Supplemental services means the programs and services to be provided and maintained by the district management corporation within the self-help business improvement district. The term "supplemental services" includes not only the programs and services described in the request

for the creation of a self-help business improvement district filed with the city clerk on November 21, 1994, but also such additional programs and services as the board of directors of the district management corporation may determine to provide and maintain within the self-help business improvement district after the date of adoption of the ordinance from which this article is derived.
(Ord. No. 95-10, § I(2), 1-3-1995)

Sec. 2-5-383. Establishment of City Center Business Improvement District.

There is hereby established a self-help business improvement district known as the City Center Business Improvement District (hereinafter referred to as the "district"). The geographic boundaries of the district are set forth in section 2-5-384.
(Ord. No. 95-10, § I(3), 1-3-1995)

Sec. 2-5-384. Geographic boundaries of the City Center Business Improvement District.

According to the survey of the city as made by the Elyton Land Company (which said survey is not recorded and not available for recording), the district is composed of all lots in the following blocks:

> Blocks 5, 6, 7, 8, 9, 10, 17, 18, 19, 20, 21, 22, 23, 32, 33, 34, 35, 36, 37, 44, 45, 46, 47, 48, 49, 58, 59, 60, 61, 62, 63, 70, 71, 72, 73, 74, 75, 84, 85, 86, 87, 88, 89, 96, 97, 98, 99, 100, 101, 107C, 107D, 107E, 107F, 108 (including 108A, 108B, 108C, and 108D, as shown on the 1927 Whitson's Real Property Map of the Elyton Land Company survey), 109A, 109B, 109G, 109H, 113A, 113B, 113C, 113D, 114C, 114D, 114E, 114F, 120, 121, 122, 123, 134, 136, 137, 146, 147, 148, 149, 160, 161, 162, 163, 589, 590, 591, 592, 621, 622, 623, and 624.

References to lots and blocks in the above description are from Whitson's Real Property Map Book of Jefferson County, Alabama, prepared by Bethel W. Whitson.
(Ord. No. 95-10, § I(4), 1-3-1995)

Sec. 2-5-385. Designation of district management corporation; dissolution.

The City Center District Management Corporation (hereinafter referred to as the "corporation") is hereby designated as the district management corporation for the district, subject to right of withdrawal by the council. Upon dissolution of the corporation or a withdrawal of the corporation's designation as the district management corporation for the district, the board of directors of the corporation shall, after paying or making provision for the payment of all of the liabilities of the corporation, transfer and assign all interests in and title to funds held by or for the corporation, and property of the corporation to the successor district management corporation for the district or, if no such successor district management corporation exists, to the city for use in funding such programs as the board of directors of the corporation shall designate. The corporation is hereby authorized and empowered to provide supplemental services within the district. Notice of the date, time, and place of all regular meetings of the board of directors of the corporation shall be published in a newspaper published or having general circulation in the city at least ten days prior to the date of such meeting. No member of the board of directors of the corporation shall be entitled to receive compensation from the corporation for service in any capacity.
(Ord. No. 95-10, § I(5), 1-3-1995)

Sec. 2-5-386. Imposition of special assessment.

The corporation is hereby authorized and empowered to levy a special assessment on the owners of the real property located within the geographical area of the district. The amount of the special assessment levied by the corporation against a parcel of real property within the district will be determined based on the fair market value of that parcel. The fair market value of a parcel will be determined using the ad valorem tax records of the Jefferson County Board of Equalization or such other information as the corporation deems appropriate. The initial rate of the special assessment shall be determined by resolution of the board of directors of the corporation and shall be established at a level which is

expected to produce revenue which is sufficient to finance all costs of the supplemental services which will be provided by the corporation in the district. Such initial rate may be increased or decreased by resolution of the board of directors of the corporation. Notice of any subsequent increases in the rate of the special assessment proposed by the board of directors of the corporation shall be mailed to all known owners of the real property located within the geographical area of the district at least 60 days prior to the proposed effective date of such increase. Such notice shall be mailed to all known owners of such real property at the address listed in the ad valorem tax records of the Jefferson County Board of Equalization. In addition, a copy of such notice shall be published once a week for two consecutive weeks, beginning 60 days prior to the proposed effective date for such increase, in a newspaper published or having general circulation in the city. Such notice shall specify the amount of the proposed increase in the special assessment, together with the date, time, and place of a public hearing to be held by the board of directors of the corporation on the adoption of such proposed increase. The board of directors of the corporation may adopt the proposed increase in the special assessment only after completion of the public hearing required by the preceding sentence. In addition, a proposed increase in the rate of the special assessment which is greater than ten percent of the then-current rate of the special assessment shall not go into effect if the owners of real property which either pay one-third or more of all special assessments levied in the district during the last fiscal year for which special assessments were collected, or represent one-third or more (by number) of all parcels of real property located within the geographical area of the district file written objections to the institution of such increase with either the executive director or a member or the board of directors of the corporation prior to the proposed effective date of such increase. The corporation is hereby authorized and empowered to make such reasonable rules and regulations concerning imposition of the special assessment as the corporation deems appropriate.

(Ord. No. 95-10, § I(6), 1-3-1995)

Sec. 2-5-387. Real property subject to special assessment.

(a) According to the survey of the city as made by the Elyton Land Company (which said survey is not recorded and not available for recording), the lot and block numbers of all parcels of real property against which the special assessment authorized by section 2-5-386 may be levied by the corporation are as follows:

> All lots in Blocks 5, 6, 7, 8, 9, 10, 17, 18, 19, 20, 21, 22, 23, 32, 33, 34, 35, 36, 37, 44, 45, 46, 47, 48, 49, 58, 59, 60, 61, 62, 63, 70, 71, 72, 73, 74, 75, 84, 85, 86, 87, 88, 89, 96, 97, 98, 99, 100, 101, 107C, 107D, 107E, 107F, 108 (including 108A, 108B, 108C, and 108D, as shown on the 1927 edition of Whitson's Real Property Map Book of the Elyton Land Company survey), 109A, 109B, 109G, 109H, 113A, 113B, 113C, 113D, 114C, 114D, 114E, 114F, 120, 121, 122, 123, 134, 136, 137, 146, 147, 148, 149, 160, 161, 162, 163, 589, 590, 591, 592, 621, 622, 623, and 624.

(b) References to lots and blocks in the description set forth in subsection (a) of this section are from Whitson's Real Property Map Book of Jefferson County, Alabama, prepared by Bethel W. Whitson.

(c) The street addresses of all parcels of real property against which the special assessment authorized by section 2-5-386 may be levied by the corporation are as follows:

All odd-numbered addresses from 1801 through 2199	11th Avenue North
All addresses from 1800 through 2199	10th Avenue North
All addresses from 1800 through 2199	9th Avenue North
All addresses from 1600 through 2199	8th Avenue North
All addresses from 1600 through 2199	7th Avenue North
All addresses from 1600 through 2199	6th Avenue North

All addresses from 1600 through 2199	5th Avenue North
All addresses from 1600 through 2199	4th Avenue North
All addresses from 1600 through 2199	3rd Avenue North
All addresses from 1600 through 2199	2nd Avenue North
All addresses from 1600 through 2199	1st Avenue North
All addresses from 1600 through 2199	Morris Avenue
All addresses from 1800 through 2199	Powell Avenue
All addresses from 1800 through 2199	1st Avenue South
All addresses from 1800 through 2199	2nd Avenue South
All addresses from 1800 through 2199	3rd Avenue South
All addresses from 1800 through 2199	4th Avenue South
All even-numbered addresses from 1800 through 2198	5th Avenue South

Streets North of Railroad Tracks	
All odd-numbered addresses from 1 through 899	16th Street North
All addresses from 1 through 899	17th Street North
All even-numbered addresses from 2 through 898	18th Street North
All odd-numbered addresses from 1 through 1099	18th Street North
All odd-numbered addresses from 1 through 1099	19th Street North
All addresses from 1 through 1099	20th Street North
All addresses from 1 through 1099	21st Street North
All even-numbered addresses from 2 through 1098	22nd Street North

Streets South of Railroad Tracks	
All odd-numbered addresses from 1 through 499	18th Street South
All addresses from 1 through 499	19th Street South
All addresses from 1 through 499	20th Street South
All addresses from 1 through 499	21st Street South
All even-numbered addresses from 2 through 498	22nd Street South

(Ord. No. 95-10, § I(7), 1-3-1995)

Sec. 2-5-388. Exemptions.

All real property located within the geographical area of the district which is:

(1) Owned by an organization which is exempt from federal income tax under section 501(c)(3) of the Internal Revenue Code of 1986, as amended;

(2) Single-family, owner-occupied residential property; or

(3) Held exclusively for lease or rental as a principal single-family or multifamily residence;

shall be exempt from the special assessment levied by the corporation pursuant to the authority of section 2-5-386.
(Ord. No. 95-10, § I(8), 1-3-1995)

Sec. 2-5-389. Collection of special assessment.

(a) The special assessment levied by the corporation pursuant to the authority of section 2-5-386 shall be collected by the corporation. Upon a property owner's failure to pay the special assessment, or any subsequent increase therein, levied by the corporation pursuant to the authority of section 2-5-386, such owner or the corporation shall be entitled to receive a judicial determination in the appropriate court. Upon an adverse determination by the appropriate court against the objecting property owner, such special assessment, together with any accrued interest determined using the then current prime rate of a federally insured financial institution doing business in the state, shall constitute a lien on such property. The lien shall take precedence over all other liens, whether created prior or subsequent to the date of the special assessment, except a lien for:

(1) State, county, or municipal taxes;

(2) A prior special assessment; or

(3) A prior recorded mortgage, deed of trust, or similar security instrument.

(b) Other than foreclosures for:

(1) State, county, or municipal taxes;

(2) A prior special assessment; or

(3) A prior recorded mortgage, deed of trust, or similar security instrument;

a lien for a special assessment shall not be defeated or postponed by any private or judicial sale, or by any mortgage, deed of trust or similar security instrument which is recorded subsequent to the date of adoption of the ordinance from which this article is derived by the city council. The corporation is hereby authorized and empowered to make such reasonable rules and regulations concerning collection of the special assessment levied by the corporation pursuant to the authority of section 2-5-386 as the corporation deems appropriate; provided, however, that the corporation shall have no authority or power to impose a penalty on a property owner (other than the accrued interest specifically authorized above) for failure to pay the special assessment, or any subsequent increase therein, levied by the corporation pursuant to the authority of section 2-5-386.
(Ord. No. 95-10, § I(9), 1-3-1995)

Sec. 2-5-390. Annual reports and audits.

(a) Within 90 days after the close of the corporation's fiscal year, the corporation shall make an annual report of its activities during such year to the city council.

(b) Within 90 days after the close of the corporation's fiscal year, the corporation shall cause an annual audit of its books, accounts, and financial transactions to be made by a certified public accountant. The corporation's annual audit shall be completed and filed with the city council within four months after the close of the corporation's fiscal year. Certified copies of the audit shall also be filed with the mayor and the city finance director.
(Ord. No. 95-10, § I(10), 1-3-1995)

Sec. 2-5-391. Execution of base line services agreement.

The mayor is hereby authorized and directed to enter into an agreement with the corporation regarding the level of basic services to be maintained by the city within the district and the supplemental services which will be provided by the corporation within the district (hereinafter

referred to as the "base line services agreement"). The base line services agreement shall provide that the city shall continue the same level of basic services provided within the district as was provided prior to the date of the adoption of the ordinance from which this article is derived by the city council. The mayor is hereby authorized and empowered to include within the base line services agreement such further undertakings of the city within the district as the mayor deems appropriate.
(Ord. No. 95-10, § I(11), 1-3-1995)

Sec. 2-5-392. Amendment procedure.

The provisions of this article may be amended by the city council upon the written request of a representative group of the owners of the real property located within the geographical area of the district. Such requests must specify the desired amendment (or amendments) which should be made to the article. Such requests must also include the signatures of the owners of real property which comprises at least two-thirds of the total fair market value of all real property located in the district, determined pursuant to the provisions of section 5(a) of the enabling law. No provision of this article shall be construed in a manner which restricts or prohibits the city council from altering, amending, or repealing this article at any time.
(Ord. No. 95-10, § I(12), 1-3-1995)

Sec. 2-5-393. Municipal representatives.

Municipal representatives designated by the mayor or the city council shall be authorized to attend and participate in regular and called meetings of the board of directors of the corporation; provided, however, that such representatives shall not vote on any matters considered by such board.
(Ord. No. 95-10, § I(13), 1-3-1995)

Sec. 2-5-394. Sunset provision.

(a) Within 60 days after the adoption and approval of the fifth annual budget for the district, the board of directors of the corporation shall set a hearing to determine whether the district should be continued, modified or terminated. At least 20 days before the hearing, notice of the date, place and time of such hearing shall be posted in at least three places within the district and mailed to each real property owner who paid a special assessment to the district during the previous year as certified by an officer of the corporation.

(b) Whenever a petition is presented to the board of directors of the corporation which is signed by real property owners in the district which paid 25 percent or more of all special assessments paid in the district during the last fiscal year for which special assessments were collected, the board of directors of the corporation shall set a public hearing to determine whether the district should be continued, modified or terminated. Notice of the date, place and time of such hearing shall be provided in accordance with the provisions of subsection (a) of this section.

(c) After any hearing called pursuant to the provisions of subsection (a) or (b) of this section, the board of directors of the corporation shall adopt a resolution approving the continuation of the district, modifying the district, the supplemental services provided therein, or the special assessment levied by the corporation, or terminating the district as of the end of the fiscal year during which the hearing is held. Modification of the geographic boundaries of the district after they have been established by the city council will require approval of the city council before becoming effective.

(d) If at any hearing called pursuant to the provisions of subsection (a) or (b) of this section, the owners of real property which either:

(1) Pay one-third or more of all special assessments levied in the district during the last fiscal year for which special assessments were collected; or

(2) Represent one-third or more (by number) of all parcels of real property located within the geographical area of the district;

object to the continuation of the district, the district shall be terminated as of the end of the fiscal year during which the hearing is held.
(Ord. No. 95-10, § I(14), 1-3-1995)

Secs. 2-5-395—2-5-400. Reserved.

ARTICLE AA. BIRMINGHAM YOUTH LEADERSHIP COUNCIL

Sec. 2-5-401. Created; powers and duties generally; membership; officers.

(a) *Creation.*

(1) There is hereby created the Birmingham Youth Leadership Council (hereafter referred to as "BYLC"). BYLC shall act in an advisory capacity to the mayor and city council regarding City of Birmingham issues from a youth perspective thereby connecting youth to local government and providing a legacy of youth contributions to the advancement of the city.

(2) BYLC shall not have the right to sue or be sued or to have or to hold property, and all property or money acquired by it shall be vested in the name of the city and be the property of the city of which such money shall be paid into the general fund.

(b) *Powers and duties generally.*

(1) The BYLC shall adopt bylaws which may from time to time be amended.

(2) BYLC shall submit an annual report to the city council of the city and the mayor of findings, advice and recommendations on addressing city issues. The BYLC shall advise on proposed programs, ordinances and other measures that the city may take to solve problems and to be used for the improvement of the health, safety and welfare of the citizens of the city. These proposals may include, but are not limited to, matters such as reading programs, tutoring programs, nonviolence initiatives, urban gardening, lunch programs, improving the environment, inclusion and diversity programs and economic opportunities for youth in the city.

(3) The BYLC may review information relevant to the issues it is considering, including researching programs adopted by other jurisdictions, consult with other organizations and citizens in the city and may request information from city department heads in evaluating existing or proposed programs.

(4) The BYLC may make recommendations on funding for programs proposed by the BYLC.

(5) BYLC shall make quarterly reports to the mayor and city council regarding the issues being considered and any recommendations developed during the preceding quarter.

(6) A member or members of the BYLC may serve as youth representative(s) at the National League of Cities Youth Council or for youth-related activities of other civic engagement organizations of which the city is a member, provided that the travel is approved by the mayor and council pursuant to subsection (c)(6) of this section. Travel approval shall be subject to parental consent for minors.

(c) *Membership.*

(1) *Generally.* BYLC shall consist of 13 members. The initial BYLC shall be the members of the 2018 Birmingham City Council Internship Institute. All successor members shall be residents of the city; provided, however, attendance at a college or university outside the city shall not disqualify a student from the city from participation in the BYLC.

(2) *Term.* The term of office shall be two years. Successors shall be recommended by a majority of the members of the BYLC and appointed by the city council. If the city council should fail to appoint any person who has been recommended by the BYLC within 60 days after the recommendation has been received by it,

the board shall recommend to the city council another person for its consideration, which process shall continue until a person is recommended to the city council who is acceptable to it and is appointed by it. Appointees are eligible for reappointment to a full two-year appointment upon completion of the initial appointment.

(3) *Qualifications.* After the initial term, successor members shall be no less than 16 and no more than 25 years old. Candidates shall have completed the Birmingham City Council Internship Institute to gain an understanding of local government operations or shall have demonstrated a significant interest in local government issues.

(4) *Vacancies; removal.* In the event any vacancy shall occur more than six months before the expiration of a term, the BYLC shall submit a name to the council for a person to fill the unexpired term. If the vacancy occurs within six months of the expiration of a term, the vacancy shall be filled at the expiration of the term. The city council may at any time by an affirmative vote of six members thereof remove any regular member from the BYLC for any cause deemed sufficient by it.

(5) *Mayor and council office support.* A representative from the mayor's office and from the city council's office selected by the mayor and council respectively shall attend all meetings of the BYLC and shall be nonvoting members.

(6) *Compensation.* The members of the BYLC shall receive no compensation whatever for their services, nor shall they receive compensation or per diem for attending meetings. No traveling expense or other expense incurred by a member of the BYLC or anyone acting therefor while out of the city shall be paid by the city except for travel related to the powers and duties of the BYLC and approved by the city council upon recommendation of the mayor. The BYLC shall have no authority to act for or obligate the city or any official or agency thereof in any matters whatsoever.

(d) *Officers.*

(1) *Duties.* The officers of the BYLC shall perform those duties prescribed by this article or by formal city council resolution or ordinance.

(2) *Chairperson.* A chairperson shall be elected from the regular membership to serve a term of one year beginning with the date of election and shall be eligible for reelection. The chairperson shall preside at the meetings of the BYLC and may appoint any subcommittees deemed necessary to investigate any matter before it.

(3) *Vice-chairperson.* A vice-chairperson shall be elected by the BYLC from among its regular members in the same manner and for the same term as the chairperson. He or she shall serve as acting chairperson in the absence of the chairperson, and at such other times he or she shall have the powers and duties as the chairperson.

(4) *Secretary.* The secretary shall be elected in the same manner and for the same term as the chairperson. The secretary shall perform the administrative and clerical functions of the BYLC and shall keep all records, make all reports, and handle all correspondence and notices for the BYLC with the assistance of the ex officio members.

(e) *Quorum; meetings.* Seven members of the BYLC shall constitute a quorum for any meeting. The BYLC shall hold regular meetings at least once every three months. Special meetings may be called by the chairperson on written notice to the members, which notice shall be sufficient if mailed, postage prepaid, addressed to each member six days prior to such special meetings. Special meetings may be held at any time upon written waiver of notice executed by each member of the board. The chairperson shall coordinate with the mayor and council staff appointees to reserve the council chamber or

other suitable meeting location at city hall for any regular or special called meeting of the BYLC.
(Ord. No. 18-125, § 1, 8-3-2018)

Title 3

FINANCE AND FISCAL

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CHAPTER 1. IN GENERAL

ARTICLE A. GENERAL PROVISIONS

Sec. 3-1-1. Depositories.

The authorized depositories for the money and funds of the city shall be any federal or state bank with an office in the city that is eligible for FDIC insurance and conforms to the collateralization requirements of law with respect to the city's deposits.
(Code 1964, § 2-1; Code 1980, § 3-1-1)

Sec. 3-1-2. Destruction of paid or redeemed bonds.

(a) Upon the payment or redemption of any bonds of the city (not including purchase of bonds for sinking fund or investment purposes), and within ten days after receipt of the paid or redeemed bonds by the director of finance, the director of finance, upon approval by the local government records commission, shall cause the destruction of same and of any unmatured coupons attached thereto by burning in the presence of himself or herself and one of his or her assistants or in the presence of his or her first and another assistant, and thereupon these witnesses of destruction shall immediately sign a certificate of destruction over their respective titles in accordance with the form prescribed in this section and shall deliver this executed certificate to the city clerk, who shall present the executed certificate to the city council at the next meeting thereof and thereafter record the same in the minutes of the meeting.

(b) These certificates shall be in substantially the following form:

Certificate of Destruction of Bonds

We, the undersigned, hereby certify that on the day of the date of this certificate we witnessed burning and destruction in an incinerator in or at _____ (location of incinerator) of the following described City of Birmingham bonds: (Description of bonds by principal amount, name, identification numbers, and maturity, and description of attached coupons, if any, by date after which they nominally mature.)

Witness our hands this ____ day of _____, 20____.

_____ Title
_____ Title

(Code 1964, § 2-2; Code 1980, § 3-1-2)

Sec. 3-1-3. Record of claims.

(a) The city clerk shall keep in his or her office a public record, in a substantially bound book, of all claims for damages and all claims arising out of alleged breach of contract, and all claims for alleged personal injuries filed with him or her by claimants under the provisions of state statutes, which record shall correctly show:

(1) The name of the claimant;

(2) The date of the filing of the claim, by whom filed;

(3) The amount of the damages claimed; and

(4) A brief statement of the character of the claim.

(b) Upon the filing of any such claim it shall be the duty of the city clerk to record immediately the filing of the claim in the record book.

(c) These claims shall be filed and indexed in alphabetical order.

(d) Where any such claim is referred to the city attorney, the record shall show the date of the delivery of the claim to the city attorney.
(Code 1964, § 2-3; Code 1980, § 3-1-3)

State law reference—Similar provisions, Code of Ala. 1975, §§ 11-43-101, 36-12-2.

Sec. 3-1-4. Sale of surplus property.

(a) Except as otherwise herein provided, before any real property owned by the city is declared to be surplus and sold, published notice of the city's intent to sell such property may be advertised once each week, for three consecutive weeks in a newspaper of general circulation in the city, for the purpose of soliciting offers to purchase the property. In determining which offer shall be

accepted by the city, the council may consider the proposed land use by a prospective purchaser, and any other factors which may affect the relative advantage to the city, along with the purchase price offered. The city shall retain the right to reject any and all offers to purchase any parcel of real property offered for sale.

(b) The foregoing procedure need not be followed in instances wherein the surplus property is a remnant unsuitable for building purposes or where the property could reasonably be used only in conjunction with an adjoining property. The mayor shall determine whether surplus property constitutes such a remnant or property of such limited use.

(c) With regard to any real property previously acquired by a deed executed by the director of finance or comptroller, following the nonpayment of one or more public improvement assessment liens, or demolition liens against said property, said director of finance may investigate and consider any extenuating circumstances resulting in the conveyance of such property to the city, and may report his or her findings and may recommend to the council a repurchase by the former owner of said property, or his or her successor in interest, for a consideration that is fair and equitable under the circumstances, but in no event for an amount that is less than that of the original assessment, plus costs, fees and interest on the total thereof at six percent per annum, provided that such amount does not exceed the present reasonable market value of said property, in which event such recommended amount shall be not less than two-thirds of the amount of the reasonable market value thereof.

(d) The failure to pay to the city the full amount of any repurchase amount approved by the council, within nine days of the date of such approval, shall terminate the privilege of repurchasing any property referred to in subsection (c) of this section, by such former owner or his or her successor. Thereafter, the city may offer for sale any such property not so repurchased to any person.

(Code 1980, § 3-1-4; Ord. No. 79-201, 12-11-1979; Ord. No. 88-2, 1-5-1988)

State law reference—Disposition of unneeded real estate, Code of Ala. 1975, § 11-47-20 et seq.

Sec. 3-1-5. Reserved.

Sec. 3-1-6. Payment of fees, licenses, fines, etc., received to the department of finance.

All fees, licenses, fines or other like monies received by any officer or employee of the city shall belong to the city and shall be paid daily to the department of finance. Any such monies received after 5:00 p.m., or on weekends or city holidays shall be paid to the department of finance no later than 9:00 a.m. the following workday.

(Code 1980, § 3-1-6; Ord. No. 87-89, § 1, 6-2-1987)

Sec. 3-1-7. City council approval of expenditures.

(a) Except for emergency purchases and contracts as allowed and limited by section 3-3-8, all contracts, agreements, or documents that place any obligation or encumbrance upon the city in an amount greater than $10,000.00 per fiscal year, and any series of contracts that exceed $10,000.00 per fiscal year, specifically excepting the hiring or appointment of staff, employees or officers of the city which are provided for in the city budget, shall be approved by the city council prior to execution of said document. Alterations in any such contract, agreement, or document may be made only when authorized by the city council. The provisions of this section do not apply to competitively bid purchases as established in the Code of Ala. 1975, §§ 41-16-50 and 41-16-52.

(b) The mayor shall be authorized to execute contracts, agreements, or documents that place an obligation or encumbrance upon the city in an amount of $10,000.00 or less, or as otherwise provided by law, without prior approval of the council.

(c) Any contract, agreement, or document in existence at the time of the enactment of the ordinance from which this section is derived that would be governed by the provisions contained herein shall only be renewed or altered in accordance with this section.

(d) Any and all expenditure of funds, not subject to section 3-3-8 and section 2-3-27, and not subject to city council approval under the provisions of subsection (a) of this section shall be reported to the city council not later than the 15th day following the end of each quarter of the city's fiscal year and the mayor is mandated to provide a detailed reporting of all expenditures in a manner that details amounts paid to providers, provider's names, addresses, and the materials or services provided and copies of all such executed documents that place an obligation or encumbrance upon the city.

(e) No expenditure of city funds covered by this section shall be made except in accordance with this section or as otherwise provided by law.
(Ord. No. 00-51, 3-28-2000; Ord. No. 00-5, 1-4-2000; Ord. No. 11-155, 12-6-2011; Ord. No. 16-230, § 1, 12-22-2016)

Secs. 3-1-8—3-1-10. Reserved.

ARTICLE B. DIRECTOR OF FINANCE

Sec. 3-1-11. Ex officio treasurer.

The director of finance shall be the ex officio treasurer of the city.
(Code 1964, § 2-45; Code 1980, § 3-1-11)

Sec. 3-1-12. Bond.

The bond of the director of finance shall be conditioned for the faithful performance of his or her duties and against any fraudulent or dishonest act upon his or her part and any wrongful abstraction or willful misapplication done or participated in by him or her; provided that neither the director of finance nor his or her bond shall be liable for any act or omission specifically authorized or directed by the city council in the result of which act or omission the director of finance has no personal pecuniary interest; and provided further that neither the director of finance nor his or her bond shall be liable for any loss of funds by reason of failure of any depository in which he or she is authorized to deposit these funds by ordinance or resolution of the council.
(Code 1964, § 2-46; Code 1980, § 3-1-12)

Editor's note—The bond of the finance director is currently $100,000.00.

Sec. 3-1-13. Authority to execute bills of sale, etc., for personal property of city.

The director of finance of the city or someone designated by him or her shall be and hereby is authorized to execute on behalf of the city, bills of sale for personal property of the city when same may be required, and to make application for a certificate of title to any motor vehicle acquired by the city as may be required by and in accordance with the provisions of the Alabama Uniform Certificate of Title and Antitheft Act, Code of Ala. 1975, § 32-8-1 et seq., and to execute assignments thereof when required by that act.
(Code 1964, § 2-47.1; Code 1980, § 3-1-13)

Sec. 3-1-14. Acting as treasurer of boards.

The director of finance may act as treasurer of any public board, when so appointed by that board, with the approval of the council.
(Code 1964, § 2-49; Code 1980, § 3-1-14)

Sec. 3-1-15. Reporting delinquent officials.

Promptly after discovery, the director of finance shall report to the mayor the failure on the part of any officer, employee or agent of the city to pay over the money collected by him or her or to properly account for any property, supplies, equipment or materials of the city for which he or she is responsible.
(Code 1964, § 2-50; Code 1980, § 3-1-15)

Sec. 3-1-16. Collecting assessments for local improvements; authority to sign deeds.

The records of all assessments made by the council to pay the cost of local improvements shall be kept by the director of finance. He or she shall collect all such assessments and perform all those duties in relation thereto as may be required of him or her by the council or by the

laws of the state. Without the authority of any resolution or of any ordinance other than this section, the director of finance shall be authorized to sign deeds:

(1) Conveying to purchasers at public improvement assessment lien sales property brought by those purchasers at those sales for satisfaction of public improvement assessment liens thereon; and

(2) Conveying to statute-authorized redemptioners titles acquired by purchasers at those sales in cases in which he or she receives the statutory redemption price within the statutory period of redemption, or receives the statutory redemption price within four years subsequent to the end of the redemption period; provided that the price is determined and paid pursuant to the standard option agreement executed by the statute-authorized redemptioner within the statutory redemption period and prior to sale by the city to a third party.

(Code 1964, § 2-51; Code 1980, § 3-1-16)

Sec. 3-1-17. Deposit or investment of public funds.

(a) All public monies coming into the hands of the director of finance, other than petty cash, shall be promptly deposited by him or her in an authorized depository.

(b) The director of finance shall deposit as hereinafter provided any of the city's public funds in his or her custody and not immediately needed for expenses, other than petty cash, in authorized depositories in those accounts as he or she shall determine will produce the maximum interest income from the funds; except that deposits of sinking funds may be made only in banks on interest, or he or she shall invest the funds in obligations of the United States, its agencies or of any corporation wholly owned by the United States government or in the obligations of any United States government sponsored corporation whose obligations are or may become eligible as collateral for advances to member banks as determined by the Board of Governors of the Federal Reserve System. He or she may deposit $500,000.00 or less of the funds in general or time interest-bearing accounts without any collateral securities, and he or she may deposit more than the amount in these accounts; provided that the amount in excess of $500,000.00 is secured by collateral as hereinafter provided.

(c) The amount in any deposit account exceeding $500,000.00 shall be secured by obligations of the United States government or of agencies of the United States government created by Congress, or by obligations of the state or any agency or authority of the state, or by obligations of any political instrumentality of the city, except bonds of industrial development boards and medical clinic boards, and placed in safekeeping with the city branch of the Federal Reserve Bank of Atlanta under a collateral security agreement with the authorized depository guaranteeing payment of the amount on deposit. The fair market value of these obligations shall at all times exceed the amount of deposit in excess of $500,000.00.

(d) The director of finance shall not be liable for any loss of the funds deposited, placed on account or invested as herein provided.

(Code 1964, § 2-52; Code 1980, § 3-1-17)

Sec. 3-1-18. Collecting license or privilege tax.

It shall be the duty of the director of finance to collect from every person doing business in the city, a license or privilege tax fixed by the council upon the business so conducted. He or she shall be charged with the duty of seeing that all the provisions of the license code of the city are complied with, and that no one engages in or carries on in the city any business, occupation, trade or calling for which a license is required unless that license is paid. If that person fails to pay the license after due notice and demand from the director of finance or any deputy, he or she shall cause that person to be arrested for doing business without a license.

(Code 1964, § 2-53; Code 1980, § 3-1-18)

Sec. 3-1-19. Licenses to be signed.

All licenses issued shall be signed by the director of finance or by his or her authorized deputy.
(Code 1964, § 2-54; Code 1980, § 3-1-19)

Sec. 3-1-20. Authority to accept payment for certain claims and execute release.

(a) The director of finance is hereby authorized to accept, subject to subsection (c) of this section, for and on behalf of the city, payment of all claims which the city may now or hereafter have against third persons for damage to motor vehicles and other personal property of the city, or to signal equipment or parking meter equipment of the city, and to execute release therefor.

(b) The director of finance, subject to subsection (c) of this section, is hereby authorized to execute proof of loss for fire or other damage or loss under any policy of insurance covering city property, and to execute release or receipt therefor upon receipt for and on behalf of the city of payment therefor.

(c) The director of finance, prior to acceptance of payment on behalf of the city of any amount and executing release based on that acceptance, shall determine the amount of damage or other payment due the city in each case, and accept an amount as will fairly compensate the city for the loss under the circumstances. The director of finance shall not settle any claim under authority of this section in any case where loss to the city exceeds $1,500.00, and shall not settle any claim for any amount less than the full amount of the city's loss, except in cases of doubtful liability, in which case the director of finance may exercise his or her discretion and compromise the same for an amount not less than 60 percent of the city's loss.
(Code 1964, § 2-55; Code 1980, § 3-1-20)

Sec. 3-1-21. Receipt of rewards or rebates.

It shall be unlawful for the director of finance or purchasing agent to receive any commission, rebate or reward, directly or indirectly for his or her own use and benefit, from any person from whom he or she makes purchases, or for any person to give or offer the director of finance or purchasing agent any commission, rebate or reward to make any purchase for the city. A violation of this section shall be punishable as provided in section 1-1-6, and shall subject the sureties on the director's or purchasing agent's bond to the payment of those damages as the city may have suffered thereby.
(Code 1964, § 2-56; Code 1980, § 3-1-21)

State law reference—Prohibition against, enforcement of, and penalties for use of official position or office for personal gain, Code of Ala. 1975, §§ 36-25-5, 36-25-27.

Sec. 3-1-22. Books open to inspection.

The books of the director of finance shall at all reasonable times be open to the inspection of the council or any person appointed to examine the same, and he or she shall make reports at those times as the council may designate.
(Code 1964, § 2-57; Code 1980, § 3-1-22)

Secs. 3-1-23—3-1-30. Reserved.

ARTICLE C. BIRMINGHAM FUND

Sec. 3-1-31. Investment of monies in fund; appropriation of excess income.

(a) Except to the extent otherwise provided in sections 3-1-32 and 3-1-33, the total principal shall not be appropriated by the city council or expended or disbursed by the city for any purpose other than to acquire securities or obligations in which municipal funds are authorized to be invested pursuant to Code of Ala. 1975, § 11-81-21, as amended, or other applicable statute (herein referred to as "eligible investments") in accordance with the provisions of this article. All eligible investments acquired, in whole or in part, with monies constituting part of the initial principal or the total principal shall, to the extent of such monies, constitute part of the total principal, but one-half of any income derived therefrom (such income being herein referred to as "excess income") shall be subject to appropriation and withdrawal by the city council to the extent hereinafter provided. The city council may, in accordance with the city's appropriation procedures, at any time and from time to time,

whether before or after the actual receipt of such excess income, appropriate all or any part of such excess income for any lawful purpose other than the payment of debt service on the city's bonds, warrants or other obligations, and any excess income so appropriated may be withdrawn from the Birmingham Fund at any time after the receipt thereof; provided, however, that the right of the city council to appropriate any excess income prior to the actual receipt thereof shall not be construed to authorize the recognition and withdrawal of any monies equivalent to such excess income prior to the actual receipt thereof into the Birmingham Fund.

(b) To the extent practicable, the finance director shall keep all monies at any time held in the Birmingham Fund (including both principal and income) invested in such eligible investments as shall, in his or her judgment, be prudent under all circumstances. Each year at the same time the general fund budget is submitted to the city council, the director of finance shall submit to the mayor and the city council a financial report respecting the Birmingham Fund. Such financial report shall include a description of the eligible investments in which monies held in the Birmingham Fund are invested, as well as a general description of plans for future investment of said monies.

(Code 1980, § 2-5-354; Ord. No. 94-80, §§ 1—6, 4-19-1994)

Sec. 3-1-32. Disposition of principal heretofore appropriated.

Pursuant to Ordinance No. 94-58, the city council has heretofore appropriated certain industrial water board proceeds for projects specified in said ordinance. To the extent that any industrial water board proceeds appropriated pursuant to Ordinance No. 94-58 shall constitute initial principal, such amount of initial principal may be expended or disbursed, at any time and from time to time, by the city for the purposes and amounts specified in Ordinance No. 94-58.

(Code 1980, § 2-5-355; Ord. No. 94-80, §§ 1—6, 4-19-1994)

Sec. 3-1-33. Emergency disposition of principal.

In order to provide for emergencies, the city council may appropriate monies constituting total principal if an emergency is declared by the city pursuant to the provisions of this article. Except to the extent otherwise provided in section 3-1-32, under no circumstances shall any amount of the total principal be appropriated by the city council or expended or disbursed by the city unless the following conditions shall be satisfied:

(1) The city council, based on information and a recommendation provided by the mayor, shall have made findings in a resolution justifying a proposed declaration of financial emergency and a proposed appropriation of a specified amount of the total principal for a specified purpose;

(2) At least 14 days before the first of the public hearings referred to in subsection (3) of this section, the city shall have published in one or more newspapers of general circulation available to residents of the city a notice reasonably designed to inform residents of the city that the city council is proposing to declare a financial emergency and therefore is proposing to appropriate a specified amount of the principal of the Birmingham Fund for a specified purpose, and such notice must have stated the time and place of the public hearings referred to in subsection (3) of this section;

(3) After giving the notice required by subsection (2) of this section, public hearings shall have been held by the city council in such place, time and manner as to provide convenient and reasonable opportunities for officials and citizens of the city to oppose such proposed declaration of financial emergency and proposed appropriation from the total principal, such public hearings shall have been held at not less than two different public meetings of the city council separated by an interval of not less than 30 nor more than 90 days;

(4) After the public hearings referred to in subsection (3) of this section, the city council, by the affirmative vote of at least six members, shall have adopted a resolution declaring a financial emergency,

which resolution shall have stated specifically that the city was then experiencing a financial emergency, that the city council was therefore declaring a financial emergency under the provisions of this article, and that the proposed appropriation described in the notice required by subsection (2) of this section was approved by the city council; and

(5) Such resolution required by subsection (4) of this section shall have been approved by the mayor.

(Code 1980, § 2-5-356; Ord. No. 94-80, §§ 1—6, 4-19-1994)

Sec. 3-1-34. Findings.

The city council has found and ascertained and does hereby declare as follows:

(1) Amendment No. 623 to the Constitution of Alabama of 1901 (hereinafter referred to as the "trust fund amendment") authorizes any city in the state with a population of 150,000 or more, such as the City of Birmingham, to establish one or more trust funds for the long-term benefit of such city and its citizens, with each such trust fund to be funded and administered in accordance with the provisions of the trust fund amendment.

(2) In the general election held on November 3, 1998, in which the adoption of the trust fund amendment was approved by the voters of the state, a majority of the voters residing within the city who voted on such proposition voted in favor of the adoption of the trust fund amendment.

(3) The city has heretofore established, pursuant to Ordinance No. 94-80, adopted by the city council on April 19, 1994, and set forth in sections 3-1-31 to 3-1-33, a special fund (hereinafter referred to as the "Original Birmingham Fund"), into which the city has deposited and in which the city now holds:

a. Various investments acquired with certain proceeds received by the city from the sale of certain assets and properties previously owned by the industrial water board of the city; and

b. Certain income derived from the investment of such proceeds.

(4) The city council has determined that it is desirable and in the best interest of the city and its citizens to establish a new trust fund pursuant to the trust fund amendment and to provide for the transfer thereto and the deposit therein of the various monies, securities and other investments now held in the Original Birmingham Fund.

(Ord. No. 99-67, § 1, 5-4-1999)

Sec. 3-1-35. Creation of Birmingham Fund.

For the longterm benefit of the city and its citizens, there is hereby created, pursuant to the authority provided by the Trust Fund Amendment, a trust fund of the city named "The Birmingham Fund" (hereinafter referred to as the "Birmingham Fund") which shall be funded and administered in accordance with the provisions of this article and the provisions of the trust fund amendment. The Birmingham Fund shall be under the management and control of the director of finance of the city. Said officer shall have custody of all monies in said fund and shall invest such monies as provided in section 3-1-38.

(Ord. No. 99-67, § 2, 5-4-1999)

Sec. 3-1-36. Monies and investments to be transferred into Birmingham Fund.

(a) There shall be transferred into the Birmingham Fund, as the initial principal thereof (hereinafter referred to as the "initial trust principal") all monies, securities and other investments that are held in the Original Birmingham Fund on the date of adoption of the ordinance from which this section is derived (which monies, securities and other investments have an aggregate market value, on said date of adoption, of approximately $_____). Promptly following the effective date of the ordinance from which this section is derived, the director of

finance shall take all actions necessary to transfer the initial trust principal to the Birmingham Fund. If at the time of such transfer into the Birmingham Fund all or part of the initial trust principal consists of securities or other investments which cannot be converted into cash prior to the maturity thereof without loss of interest or other penalty or which, in the opinion of the director of finance, should not be converted into cash at such time, then the director of finance shall directly transfer such securities or other investments to the Birmingham Fund as part of the initial trust principal without first converting the same into cash. In the event that any securities or other investments shall be transferred into the Birmingham Fund, the initial trust principal shall include the income or profit from such securities or other investments that has been received by the city on or before such transfer or that constitutes accrued interest, amortized discount or other amounts which, in accordance with generally accepted accounting principles, should be considered as having been earned by the city as of the date of such transfer. To the extent that any income or profit derived from such securities or other investments is referable to any period after the transfer thereof into the Birmingham Fund, such income or profit shall constitute income and shall not constitute part of the initial trust principal except to the extent otherwise provided in this article.

(b) The total principal of the Birmingham Fund (hereinafter referred to as the "trust principal") shall consist of and include:

(1) The initial trust principal;

(2) Such other monies or assets as the city council may hereafter appropriate and transfer to the Birmingham Fund as a permanent part thereof;

(3) Such other monies or assets as may be contributed to the Birmingham Fund from any source; and

(4) Any income or profit derived from the investment or reinvestment of the monies and assets described in subsections (b)(1) through (3) of this section that, under the provisions of this article, becomes a part of the principal of the Birmingham Fund.

(Ord. No. 99-67, § 3, 5-4-1999)

Sec. 3-1-37. Adoption of investment policy.

(a) The council has reviewed the document attached to the ordinance from which this section is derived as exhibit A (which document is hereby incorporated herein by reference and is referred to herein as the "investment policy statement") and has found and determined that the investment policy statement:

(1) Sets forth the mode and manner for investing the assets of the Birmingham Fund;

(2) Establishes the benchmarks and criteria for measuring investment performance and compliance with said policy statement; and

(3) Specifies a requirement for the preparation and publication of periodic reports on investment performance and investment policy compliance.

(b) The council hereby adopts and approves the investment policy statement, as required by the Trust Fund Amendment for the Birmingham Fund as amended and as may be further amended by the council from time to time.

(Ord. No. 99-67, § 4, 5-4-1999; Ord. No. 15-75, § 1, 6-2-2015)

Sec. 3-1-38. Investment of monies in the Birmingham Fund; addition of income to trust principal.

(a) To the extent practicable, the director of finance shall keep all monies at any time held in the Birmingham Fund (including both principal and income) invested in such authorized investments (which term has the same meaning in this article as in the trust fund amendment) as shall be consistent with the investment policy statement and as shall, in his or her judgment, be prudent under all circumstances. The city council may hereafter from time to time, in response to recommendations or requests from the director of finance, adopt one or more resolutions to provide further directions and guidance respect-

ing the investment of Birmingham Fund monies, provided that any such further directions and guidance shall be consistent with the investment policy statement (unless and until such statement is amended in accordance with the provisions of the trust fund amendment). Upon the actual receipt of any investment income or profit, the monies allocable to such income or profit shall be added to and become a part of the trust principal.

(b) The director of finance shall prepare and submit to the mayor and the city council, within 45 days after each June 30 and each December 31, the semiannual reports respecting the Birmingham Fund that are provided for and described in the investment policy statement. Each such semiannual report shall include, in addition to the information specified in the investment policy statement, a statement of:

(1) The total amount of investment income received in the Birmingham Fund during the six-month period to which such report is referable;

(2) The total amount of money disbursed from the Birmingham Fund during such six-month period pursuant to regular or extraordinary appropriations provided for in this article; and

(3) The total market value of all Birmingham Fund assets as of the last day of the six-month period to which such report is referable (any such aggregate market value amount so determined being herein called a "Birmingham Fund valuation amount").

(Ord. No. 99-67, § 5, 5-4-1999)

Sec. 3-1-39. Regular appropriations from Birmingham Fund.

(a) Monies in the Birmingham Fund may be disbursed and spent from time to time, pursuant to authorization or directions from the director of finance, to pay the costs and expenses incurred with respect to the administration of the Birmingham Fund and the custody and investment of Birmingham Fund assets. In addition to the payment of such costs and expenses, monies in the Birmingham Fund may be disbursed and spent from time to time, for any lawful purpose for which monies of the city may be spent, pursuant to appropriations made in ordinances adopted by the city council in accordance with its normal procedures and the general requirements of applicable law. For each fiscal year of the city, the maximum amount of money that may be disbursed from the Birmingham Fund pursuant to the second sentence of this section (such maximum amount, for any such fiscal year, being herein called the "annual limit") shall be determined as follows:

(1) For the fiscal year of the city ending June 30, 2000, the annual limit shall be five percent of the amount of the initial trust principal;

(2) For each of the fiscal years of the city ending June 30, 2001, 2002, 2003 and 2004, respectively, the annual limit shall be five percent of the average of the amount of the initial trust principal and the respective Birmingham Fund valuation amounts as of each December 31 occurring after the date of establishment of the Birmingham Fund and prior to the beginning of the fiscal year for which such annual limit calculation is being made; and

(3) For the fiscal year of the city ending June 30, 2005, and for each fiscal year thereafter, the annual limit shall be five percent of the average of the respective Birmingham Fund valuation amounts as of the end of the five calendar years immediately preceding the beginning of the fiscal year for which such annual limit calculation is being made.

(b) No disbursements from the Birmingham Fund pursuant to subsection (a)(1) of this section shall be made prior to July 1, 1999.

(Ord. No. 99-67, § 6, 5-4-1999)

Sec. 3-1-40. Extraordinary appropriations from Birmingham Fund.

In addition to the appropriations and disbursements provided for in section 3-1-39, the city council may from time to time, in accordance with the provisions of this section, appropriate

monies from the Birmingham Fund for any lawful purpose to address extraordinary circumstances or opportunities confronted by the city. Monies may be appropriated and disbursed from the Birmingham Fund pursuant to this section if and only if the following conditions have been satisfied:

(1) The city council, by the affirmative vote of at least five members of the city council, shall have adopted an ordinance authorizing an expenditure from the Birmingham Fund of a specified amount of money for a particular purpose, in which ordinance the city council shall have made findings that the making of the authorized expenditure would clearly be in the best interest of the city and its residents and would address an extraordinary circumstance that was not foreseen or anticipated at the time of the establishment of the Birmingham Fund; and

(2) Such ordinance required by subsection (1) of this section shall have been approved by the mayor.

(Ord. No. 99-67, § 7, 5-4-1999)

Secs. 3-1-41—3-1-50. Reserved.

ARTICLE D. ECONOMIC DEVELOPMENT STIMULUS LOAN PROGRAM*

Sec. 3-1-51. Creation of loan program.

There is hereby created an economic development loan program to be known as the "City of Birmingham Economic Development Stimulus Loan Program" to provide short term, low interest, bank-guaranteed loans to qualified borrowers for eligible projects and uses which will have a positive economic impact on the City of Birmingham. Proposed loans shall be in conformance with guidelines approved by the mayor and provided to the Birmingham City Council (the "loan guidelines"). The loan guidelines shall contain detailed provisions and procedures addressing the criteria for eligible projects and eligible uses of loan funds, general loan terms, loan application requirements, loan approval and other matters necessary to the administration of the loan program which supplement the criteria set forth in this article.

(Ord. No. 08-191, § 1, 9-2-2008)

Sec. 3-1-52. Funding.

The funding source for loans made under the loan program shall be the General Fund of the City of Birmingham. The minimum amount of any loan shall be $100,000.00 and the maximum amount of any loan shall be $2,000,000.00, unless other amounts are authorized and approved by the Birmingham City Council upon recommendation of the mayor. The total amount of outstanding loans under the loan program at any time shall not exceed $5,000,000.00 or such additional amount as may be allocated to the loan program by the city council upon the recommendation of the mayor.

(Ord. No. 08-191, § 2, 9-2-2008; Ord. No. 17-95, § 1, 7-25-2017)

Sec. 3-1-53. Eligible projects and uses.

To be eligible for a loan, a borrower must engage in certain economic development activities within the City of Birmingham which are consistent with the loan guidelines. Loans may be used for acquisition of real estate or businesses, purchase of machinery and equipment, construction or renovation financing, including the construction, reconstruction, rehabilitation or conversion of buildings and site or infrastructure improvements, working capital, or other uses as may be set forth in the loan guidelines or as may be recommended by the mayor and approved by the Birmingham City Council.

(Ord. No. 08-191, § 3, 9-2-2008)

Sec. 3-1-54. Approval of loans.

No loan shall be made pursuant to the loan program without formal approval of the

*__Editor's note—__Ordinance No. 08-191, §§ 1—7, adopted September 2, 2008, did not specifically amend the Code. Therefore, such ordinance has been added as §§ 3-1-51—3-1-57 at the editor's discretion.

Birmingham City Council in accordance with the requirements of Amendment No. 772, as now in effect or as hereafter amended.
(Ord. No. 08-191, § 4, 9-2-2008)

Sec. 3-1-55. Administration of loan program.

The Council of the City of Birmingham hereby authorizes the mayor to execute, on behalf of the city, a Memorandum of Understanding ("MOU") with Birmingham Business Resource Center, Inc. ("BBRC"), Main Street Birmingham, Inc. ("Main Street"), Operation New Birmingham ("ONB"), and Urban Impact, Inc. ("Urban Impact") under which BBRC, Main Street, ONB and Urban Impact (sometimes hereinafter referred to individually as a "member" and collectively as the "members") will provide certain services to the city in connection with the administration and monitoring of the loan program, including marketing the loan program to prospective borrowers throughout the city, responding to inquiries from prospective borrowers about the loan program, reviewing and processing applications to determine if the applicant is qualified and the project and proposed uses are eligible for a loan, and presenting eligible projects for approval to the city council and city council committees. The members also will comprise a committee (the "monitoring committee") to report to the mayor and council on activity in connection with the loan program, to review and recommend pending applications, to review and evaluate the loan program and to monitor repayment of loans. The members will provide such services without compensation from the city. As provided in the MOU, an origination fee equal to one percent of the loan proceeds will be paid at closing by the borrower from the loan proceeds to the member which originates the loan to offset such member's staffing and administrative costs.
(Ord. No. 08-191, § 5, 9-2-2008)

Sec. 3-1-56. General terms.

The loan guidelines shall incorporate the following general requirements:

(a) All approved borrowers must provide an irrevocable, direct pay letter of credit from a financial institution acceptable to the city. The letter of credit shall be in a form acceptable to the city and shall guarantee full repayment of principal and interest when due.

(b) Unless otherwise approved by the Birmingham City Council upon the recommendation of the mayor, (i) the interest rate on a loan shall be a fixed rate of two and one-half percent per annum and (ii) the maximum term for any loan shall not exceed 24 months.

(c) The borrower must be current in its payment of all city, county and state taxes, and all licenses and permits for the project must be in order before any loan proceeds are disbursed.

(d) The borrower must comply with all applicable federal, state and local laws, ordinances, regulations and codes including, but not limited to, all applicable zoning regulations and all city ordinances and policies regarding participation of minority and disadvantaged business enterprises. Each borrower shall certify that it is committed to the concept of providing employment opportunities without regard to race, ethnicity, color, religion, sex, national origin, political affiliation, age, handicapped status or any other non-merit factor.

(e) A borrower under the loan program may not have pending claims or litigation against the city.

(Ord. No. 08-191, § 6, 9-2-2008)

Sec. 3-1-57. Term.

The loan program shall continue in effect until terminated by an ordinance duly adopted by the Birmingham City Council.
(Ord. No. 08-191, § 7, 9-2-2008)

CHAPTER 2. TAXATION*

ARTICLE A. GENERAL PROVISIONS

Sec. 3-2-1. Refund of tax money paid through mistake.

All payments made to the city or any officer or board thereof under mistake of law or fact, upon any irregular or illegal tax assessment, or any ordinance or resolution, or any assessment for public improvements or for any such purpose whatever shall only be recoverable if written claim is filed with the city clerk within two years from the time the payment was made. The director of finance shall investigate the legality and correctness of any such claim and determine the amount of refund, if any, to which any claimant may be entitled. After deducting any amounts which the claimant may owe to the city, the claimant may pay the amount of any such refund not in excess of $1,000.00 without approval other than the claimant's own. Nothing in this section, however, shall be construed to prohibit the council from voluntarily paying any claim filed within two years from the time the money was so erroneously collected, if, in the opinion of the council, the city has available funds which are not otherwise necessary to the proper administration of the city.
(Code 1964, § 50-1; Code 1980, § 3-2-1; Ord. No. 03-51, 5-6-2003)

State law reference—Two-year limitation period for presentation of claims against cities, Code of Ala. 1975, § 11-47-23.

Sec. 3-2-2. Exemption from taxation; compromise; release of penalties.

The council shall not have power to release any person from the payment of any lawful tax, or to exempt him or her from any burden imposed upon him or her by law, but this shall not be so construed as to prevent a compromise of any tax claim or demand, where doubt exists as to the legality of any tax or the ability of the city to enforce its collection, nor shall it prevent the city from releasing penalties that may have been imposed for the nonpayment of taxes, but all compromises and all releases from the penalties shall be adopted by the council by resolution or by ordinance.
(Code 1964, § 50-2; Code 1980, § 3-2-2)

Sec. 3-2-3. Exempt property.

All property which now is or may be hereafter declared to be exempt from taxation under the laws of the state shall be exempt from taxation by the city; but no property, whether exempt by law from taxation or not, shall be exempt from levy and sale for the payment of taxes due by the owner and the penalties, fees and charges lawfully incurred in assessing and collecting the same.
(Code 1964, § 50-3; Code 1980, § 3-2-3)

Secs. 3-2-4—3-2-10. Reserved.

ARTICLE B. OPTIONAL METHOD OF COLLECTING TAXES†

Sec. 3-2-11. Tax year; when taxes due.

The tax year for city ad valorem taxes shall commence on October 1 of each year and end on the next succeeding September 30, and taxes shall be due for the tax year in advance on October 1 of each tax year, and shall be delinquent if not paid before January 1 succeeding.
(Code 1964, § 50-4; Code 1980, § 3-2-11)

Sec. 3-2-12. Annual tax levy; copy to county tax assessor.

It shall be the duty of the city council, during the month of May of each year, by resolution or ordinance, to levy a tax on the property situated in the city for the next succeeding municipal tax year at a rate in no event in excess of the constitutional limit authorized to be levied. The levy so made by the city council shall go into force and take effect October 1 next succeeding the levy, and shall become a lien on the subjects

*__State law reference—__City taxation generally, Code of Ala. 1975, title 11, ch. 51.

†__State law reference—__Optional method of collecting municipal taxes, Code of Ala. 1975, § 11-51-40 et seq.

of taxation on October 1 next succeeding the levy, and not before. After the levy is made, it shall be the duty

of the mayor and city clerk on or before June 1 next succeeding the levy, to certify and deliver to the tax assessor of the county a copy of the resolution or ordinance passed by the council.
(Code 1964, § 50-5; Code 1980, § 3-2-12)

State law reference—Levy of taxes under optional method of collecting taxes, Code of Ala. 1975, § 11-51-42.

Sec. 3-2-13. County tax collector ex officio collector for city.

The county tax collector shall be ex officio tax collector of the city. He or she shall collect all property taxes for the city in the same manner and way and under the same laws that the state and county taxes are collected, and shall promptly turn over to the director of finance all tax money which legally belongs to the city as provided in the Code of Ala. 1975, § 11-51-52.
(Code 1964, § 50-6; Code 1980, § 3-2-13)

Sec. 3-2-14. Lien for taxes.

The city shall have a lien from, on and after October 1 of each municipal tax year upon each and every piece and parcel of property, real or personal, for the payment of city taxes for that tax year which may be assessed against the owners, or upon that property, for the use of the city, which lien shall have priority over all other liens, except for state and county taxes.
(Code 1964, § 50-7; Code 1980, § 3-2-14)

State law reference—Lien for taxes under optional method of collecting city taxes, Code of Ala. 1975, § 11-51-44.

Secs. 3-2-15—3-2-20. Reserved.

ARTICLE C. AD VALOREM TAX EXEMPTION AND PAYMENT OF CORRESPONDING ABATEMENT PROPERTY TAX

Sec. 3-2-21. Purpose.

The ordinance from which this article is derived is adopted pursuant to authority granted to the council by Act 927 of the 1975 Regular Session of the Legislature of Alabama, Acts 1975, p. 1852 (Act No. 927), as superseded by Acts 1978, p. 1012 (Act No. 704). The purpose of this article is to encourage private investment in new commercial and industrial facilities to be developed on real property within certain areas of the city. The council recognizes the beneficial result of such development in that it provides additional employment opportunities within the city and at the same time encourages redevelopment of business, commercial and industrial areas which already are served by water, sewer and/or other utilities but which either are idle or being used at less than their full potential.
(Code 1980, § 3-2-21; Ord. No. 81-88, 5-26-1981)

Editor's note—Acts 1975, p. 1852 (Act No. 927) was a population act that applied to cities having a population over 300,000. It was superseded by Acts 1978, p. 1012 (Act No. 704) which virtually reiterated the same municipal ad valorem tax exemption to owner-developers.

Sec. 3-2-22. Definitions.

For the purpose of this article, certain terms and words are hereby defined:

Adjusted basis means the value of the property minus both the land value and the accumulated depreciation as shown on the most recent federal tax return.

Certified value means the value of improvements agreed to by property owner and general contractor as expressed in the application for the building permit.

Commercial or industrial facility means any facility for a use permitted in zoning districts O-1, B-1 through B-5 and M-1 through M-3, as specified in appendix D to this Code, zoning (Ordinance No. 90-130, as amended), but shall not include facilities permitted in agricultural and residential districts as specified in said ordinance.

New commercial or industrial facility means any commercial or industrial facility to be built, or major renovation of, or addition to, an existing such facility, provided that the value of the property so improved will be substantially increased as a result of any such renovation, addition, or new facility.

Substantially increased includes either a 100 percent or more increase in the adjusted basis value of the property so improved, or a 25 percent or more increase in the annual payroll for any

existing such facility or a 20 percent or more increase in the commercial or industrial capacity of any existing such facility.
(Code 1980, § 3-2-21; Ord. No. 81-88, 5-26-1981; Ord. No. 97-75, § I, 6-24-1997)

Sec. 3-2-23. Criteria for consideration.

In order to be considered by the council, an application for the tax abatement submitted after the effective date of the ordinance from which this article is derived must minimally satisfy the following criteria:

(1) The property is in an area theretofore designated and defined by the city as a strategy area, urban renewal area, or neighborhood business revitalization area;

(2) The proposed new commercial or industrial facility will result in the retention or creation of employment opportunities in such area or will add substantially to the economic or aesthetics rehabilitation of the area; and

(3) The applicant shows to the council's satisfaction that the tax abatement is a substantial inducement to such development due to higher land or construction costs or other inner urban disadvantage.

(Code 1980, § 3-2-23; Ord. No. 81-88, 5-26-1981)

Sec. 3-2-24. Applications.

(a) An application for tax abatement may be obtained from the city's office of economic development and shall be filed with the city's director of economic development prior to beginning any construction of the proposed new commercial or industrial facility. Each application shall contain such information as the city may require, including but not limited to the following:

(1) A description of the construction and/or improvements to be made with an estimate of the cost of each item.

(2) A site plan or layout of the proposed construction and/or improvement.

(3) The assessed valuation for ad valorem tax during each of the five preceding years for the real property involved.

(4) The proposed abatement property tax to be paid during the period of exemption and an agreement to pay the tax during that period.

(5) The period for which exemption is sought.

(6) The date construction will begin if the application is approved and the estimated date of completion.

(b) Additional information may be requested by the city council prior to its approval of any application.
(Code 1980, § 3-2-24; Ord. No. 81-88, 5-26-1981; Ord. No. 97-75, § I, 6-24-1997)

Sec. 3-2-25. Procedure.

Within 30 days after each application is filed with the director of economic development as provided in section 3-2-24, said director shall forward duplicates thereof along with his or her reports and recommendations regarding each application to the mayor and the city council. Resolutions in respect to granting or denying any such applications shall be subject to the applicable procedures set forth in section 2-2-15. Said director shall comply with the provisions of any agreement of the city with the county for the granting of tax abatements by the county and the city.
(Code 1980, § 3-2-25; Ord. No. 81-88, 5-26-1981)

Sec. 3-2-26. Granting the tax abatement.

If the council approves an application for tax abatement hereunder, it may grant such abatement by adopting a resolution approving the application and agreement therein and granting as to such property an abatement of the city taxes thereon for a period not exceeding 15 years upon condition that an abatement property tax in an amount as provided in section 3-2-27 be paid annually for the benefit of the city in the manner in which ad valorem taxes levied by the city are paid.
(Code 1980, § 3-2-26; Ord. No. 81-88, 5-26-1981)

Sec. 3-2-27. Computation of abatement tax.

The abatement property tax to be paid during the period of the ad valorem tax abatement shall be computed by subtracting the certified value of

the substantial improvements from the assessed market value as determined by the tax assessor from time to time.
(Code 1980, § 3-2-27; Ord. No. 81-88, 5-26-1981; Ord. No. 97-75, § I, 6-24-1997)

Sec. 3-2-28. Joint city-county abatements.

If, pursuant to an agreement between the city and the county, a tax abatement is granted jointly by the county commission and the city council upon the condition of annual payment of an abatement property tax to be collected by the Jefferson County tax collector, or any official performing his or her duties, such abatement tax shall be shared proportionally between the city and the county on the basis of the respective city and county tax millage abated initially by each; except that such proportion may be adjusted by mutual agreement to reflect changes in the millage abated by each in later years.
(Code 1980, § 3-2-28; Ord. No. 81-88, 5-26-1981)

Sec. 3-2-29. Effectivity of abatements.

Following certification by the chief building inspector of the city, his or her deputy, or other like officer of the city, that the construction and/or improvements substantially as proposed in the application are completed, such certificate, together with a certified copy of the resolution adopted as provided in section 3-2-26, and the owner's acceptance of the terms of such resolution, duly acknowledged in the form provided by law for deeds to real property, shall be filed in the office of the judge of probate of Jefferson County and in the Jefferson County tax assessor's office. Upon such filings, the tax abatement shall then be effective for each following tax period with payment of the abatement property tax to be then due. All such property, however, must continue to be returned to the state for taxation thereon.
(Code 1980, § 3-2-29; Ord. No. 81-88, 5-26-1981)

Sec. 3-2-30. Cessation of abatement.

The abatement provided for herein and payment of the corresponding abatement property tax shall continue through the period granted in the resolution approving the application; except that if the owner fails to pay the abatement property tax on or before the delinquent tax date, the abatement so granted shall immediately cease and be of no further effect. In such event, the property for which the abatement of city taxes has been granted shall be assessed and taxed in the same manner as other property in the city.
(Code 1980, § 3-2-30; Ord. No. 81-88, 5-26-1981)

CHAPTER 3. PURCHASING AND CONTRACTING

Sec. 3-3-1. Short title.

This chapter shall be known and may be cited as the "Purchasing Ordinance of the City of Birmingham".
(Code 1964, § 43A-1; Code 1980, § 3-3-1; Ord. No. 99-19, 2-2-1999)

Sec. 3-3-2. Definitions.

For the purpose of this chapter, the following terms, phrases, words and their derivatives shall have the meanings given herein.

City purchasing agent or *agent* means the purchasing agent of the city.

Supplies include all supplies, materials, equipment, labor, services and work, but shall not include contracts for the construction, repair, or maintenance of public works.

Using agency.

(1) The term "using agency" means any department, agency, commission, bureau, office or any other unit in the city government using supplies as provided for in this chapter, including the city library board, the museum board of the city, the city beautification board and any other board under the jurisdiction of the council.

(2) The term "using agency" does not include a board, authority or commission authorized to be established as a separate entity by state law or created directly by state law and not under the jurisdiction of the council.

(Code 1980, § 3-3-2; Ord. No. 99-19, 2-2-1999)

Sec. 3-3-3. City purchasing agent.

The city purchasing agent shall be chief and have general supervision of the division of purchases. The agent shall perform all duties required of a division head by law, and shall have the powers and duties described by this chapter.

(1) *Scope of purchasing authority.* The agent shall have the power, and it shall be his or her duty:

a. To establish and enforce specifications with respect to supplies, materials, equipment and services required by the city government or any using agency thereof.

b. To have charge of those general storerooms and warehouses as the mayor may direct.

c. To transfer to or between offices, departments or agencies, or sell surplus, obsolete or unused supplies, materials and equipment.

d. To perform those other duties as may be imposed upon him or her by resolution or ordinance, or by direction of the mayor or the director of finance.

e. To purchase all supplies needed by any using agency in accordance with purchasing procedures as prescribed by this chapter, and the rules and regulations as the agent shall adopt for the internal management and operation of the division of purchases, and any other rules and regulations as shall be prescribed by the mayor or the director of finance.

1. The authority of the agent to make all purchases for all using agencies shall not be abridged by excepting any particular using agency, except as otherwise provided in this chapter.

2. Except as herein provided, no city official or officer shall order the purchase of any supplies or make any contract within the purview of this chapter other than through the division of purchases.

(2) *Other powers and duties.* In addition to the purchasing authority conferred in subsection (1) of this section, and in addition to any other powers and duties conferred by this chapter, the agent shall:

a. Act to procure for the city the highest quality in supplies at the least expense to the city.

b. Discourage uniform bidding and endeavor to obtain as full and open competition as possible on all purchases and sales.

c. Establish and amend, when necessary, all rules and regulations authorized by this chapter, and any others necessary to its operation.

d. Keep informed of current developments in the field of purchasing, prices, market conditions and new products and secure for the city the benefit of research done in the field of purchasing by other governmental jurisdictions, national technical systems, trade associations having national recognition and by private businesses and organizations.

e. Prescribe and maintain any forms as he or she shall find reasonably necessary to the operation of this chapter.

f. Exploit the possibilities of buying in bulk so as to take full advantage of discounts.

g. Act so as to procure for the city all federal and other tax exemptions to which it is entitled.

(Code 1964, § 43A-3; Code 1980, § 3-3-3; Ord. No. 99-19, 2-2-1999)

Sec. 3-3-4. Requisitions and estimates.

All using agencies, either by or with the authorization of the head of the department under which the using agency operates, shall file with the agent detailed requisitions or estimates of

their requirements for supplies and contractual services in the manner, at the times and for the future periods as the agent shall prescribe.

(1) *Unforeseen requirements.* A using agency shall not be prevented from filing in the same manner with the agent, at any time, a requisition or estimate for any supplies, the need for which was not foreseen when the detailed estimates were filed.

(2) *Revisory power in agent.* The agent shall examine each requisition or estimate and shall have the authority to revise it as to quality, quantity or estimated cost, but revision as to quality shall be in accordance with the standards and specifications established pursuant to this chapter.

(Code 1964, § 43A-4; Code 1980, § 3-3-4; Ord. No. 99-19, 2-2-1999)

Sec. 3-3-5. Encumbrance of funds.

The agent shall not issue any purchase order until the director of finance, or his or her designee, shall have determined, after pre-audit, that there is to the credit of the using agency concerned a sufficient unencumbered balance in excess of all unpaid obligations to defray the amount of the order.

(Code 1964, § 43A-5; Code 1980, § 3-3-5; Ord. No. 99-19, 2-2-1999)

Sec. 3-3-6. Competitive bidding required.

All purchases of and contracts for supplies, including leases thereof, and all sales of personal property which have become obsolete and unusable, shall, except as specifically provided herein, be based wherever possible on competitive bids.

(Code 1964, § 43A-6; Code 1980, § 3-3-6; Ord. No. 99-19, 2-2-1999)

State law reference—Requirement of competitive bidding on contracts generally, Code of Ala. 1975, § 41-16-50 et seq.

Sec. 3-3-7. Formal purchase procedure.

All supplies, except as otherwise provided herein, when the estimated cost thereof shall exceed the amount provided under state law as requiring formal bids, shall be purchased from the lowest responsive and responsible bidder after due notice inviting bids; and all sales of personal property which has become obsolete and unusable, when the estimated value shall exceed the above amount, shall be sold to the highest responsive and responsible bidder after due notice inviting bids.

(1) *Notice inviting bids or proposals.* Notice inviting bids or proposals shall be published once in at least one daily newspaper in the city, and at least five days preceding the last day set for the receipt of bids or proposals. The newspaper notice required herein shall include a general description of the articles to be purchased or sold, shall state where plans and specifications may be secured, and the time and place for opening bids or receiving proposals.

(2) *Bid or proposal invitations.*

a. The agents shall also advertise each invitation to bid or request for proposal by posting notice thereof on a bulletin board outside his or her office for not less than three days preceding the last day set for the receipt of bids or proposals. The agent shall also send notice of each such invitation to bid or request for proposal by mail to all persons, firms or corporations who have filed a request with the agent in writing that they be listed for solicitation on bids or proposals for those particular items as are set forth in the request. If any person, firm or corporation whose name is listed fails to respond to any solicitation for bids or proposals after the receipt of three such solicitations, the listing shall be canceled. The agent may also invite sealed bids or proposals from other responsible prospective providers.

b. For any contract exceeding $10,000.00, bid or proposal bonds shall be required and prescribed in the public notices inviting bids or proposals. For any contract under

$10,000.00, the agent may require bid or proposal bonds or deposits when he or she deems it necessary. Unsuccessful bidders shall be entitled to return of bond where the agent has required it. A successful bidder shall forfeit any bond required by the agent upon failure on his or her part to enter into a contract within ten days after the award, and in that case the agent may in his or her discretion invite new bids or proposals.

(3) *Bid opening procedure.*

a. Bids shall be presented sealed to the agent and shall be identified as bids on the envelope.

b. Opening. Bids shall be opened in public at the time and place stated in the public notices, except in the use of reverse auction procedures as provided in the state competitive bid law.

c. A tabulation of all bids received shall be available for public inspection, and all original bids, together with all documents pertaining to the award of the contract, shall be retained and made a part of a permanent file or records in the office of the agent and shall be open to public inspection after formal award of the contract.

(4) *Rejection of bids or proposals.* The agent shall have the authority to reject any bid or proposal if the price is deemed excessive or the quality of the product inferior.

(5) *Award of contract.*

a. *Authority in agent.* The agent shall have the authority to award all purchases and contracts within the purview of this chapter; provided that no purchase or contract in excess of such amount as may be established under the provisions of state law as the minimum amount of a contract to be bid under the state competitive bid law shall be awarded by the agent unless the council by resolution approves acceptance of the bid; provided, further, that the approval of the council shall not be required where the purchase or contract involves a contract or purchase for supplies for the city library board or the city museum board.

b. *Lowest responsive and responsible bidder.* Contracts shall be awarded to the lowest responsive and responsible bidder. In determining the lowest responsive and responsible bidder, in addition to price, the agent shall consider:

1. Qualities of the commodities proposed to be supplied;
2. Their conformity with specifications;
3. The purposes for which required;
4. The terms of delivery;
5. Transportation charges; and
6. The dates of delivery.

Prior to advertising for bids for an item of personal property the agent may establish a local preference zone consisting of either the legal boundaries of the city, or the boundaries of the county, or the boundaries of the Standard Metropolitan Statistical Area (SMSA). If no such action is taken by the purchasing agent, the boundaries of the local preference zone shall be deemed to be the same as the legal boundaries of the city. In the event a bid is received for an item of personal property to be purchased or contracted for from a person, firm, or corporation deemed to be a responsive and responsible bidder, having a place of business within the city, and the bid is no more than three percent greater than the bid of the lowest responsive and responsible bidder not having a place of business within the city, the contract may be awarded to the resident responsive and responsible bidder. The

purchasing agent shall not establish a preference zone greater than the boundaries of the city if it appears that a qualified business, firm or corporation having a place of business within the city will or may bid on the contract.

c. *Award to other than lowest bidder.* When the award is not given to the lowest bidder, a full and complete statement of the reasons for placing the order elsewhere shall be prepared by the agent and filed with the other papers relating to the transaction.

d. *Tie bids.*

1. *Local vendors.* If all bids received are for the same total amount or unit price, quality and service being equal, the contract shall be awarded to a bidder with a place of business within the city.

2. *Outside vendors.* Where subsection (5)d.1 of this section is not applicable, the agent shall award the contract to one of the tie bidders.

e. *Performance bond.* The agent shall have the authority to require a performance bond before entering a contract in the amount as he or she shall find reasonably necessary to protect the best interests of the city, when required by invitation for bids or proposals, or otherwise required by law.

(6) *Prohibition against subdivisions.* No contract or purchase shall be subdivided to avoid the requirements of this section.

(7) *Length of time of contracts.* Contracts for the purchase of personal property shall be let for periods not greater than one year, and contracts for the purchase of contractual services shall be let for periods of not greater than three years.

(Code 1964, § 43A-7; Code 1980, § 3-3-7; Ord. No. 85-181, 8-13-1985; Ord. No. 89-203, 8-22-1989; Ord. No. 94-108, 5-31-1994; Ord. No. 99-19, 2-2-1999)

Sec. 3-3-8. Emergency purchases.

When an emergency affecting the public health, safety or convenience shall be declared in writing to exist by the agent, the agent shall report in writing to the council and the mayor the nature of the danger to the public health, safety or convenience which will result from the emergency because of delay occasioned by taking bids as otherwise required by this chapter. Upon the declaration of emergency by the agent, the agent may, with the consent of the mayor or, in the mayor's absence, the council president, let or extend any contract to meet the emergency without public advertisement; provided that if the contract is for services to be rendered the city, the contract or extension shall not be for a period in excess of seven days, unless the council shall by resolution authorize the agent to extend the same for an additional period. This emergency action undertaken by the agent shall be reported to the council in writing and the report shall be spread upon the minutes of the council at its next regular or called meeting.

(Code 1964, § 43A-9; Code 1980, § 3-3-8; Ord. No. 99-19, 2-2-1999)

State law reference—Letting of emergency contracts, Code of Ala. 1975, § 41-16-53.

Sec. 3-3-9. Inspection and testing.

The agent shall inspect or cause to be inspected all deliveries of supplies or contractual services to determine their conformance with the specifications set forth in the order or contract.

(1) *Inspection by using agency.* The agent shall have the authority to authorize using agencies having the staff and facilities for adequate inspection to inspect all deliveries made to the using agencies, under rules and regulations which agent shall prescribe.

(2) *Test.* The agent shall have the authority to require chemical and physical tests of samples submitted with bids and samples of deliveries which are necessary to determine their quality and conformance with the specifications, and in the performance

of the test shall have the authority to make use of any laboratory facilities of the city, or of any outside laboratory.

(Code 1964, § 43A-10; Code 1980, § 3-3-9; Ord. No. 99-19, 2-2-1999)

Sec. 3-3-10. Surplus stock.

(a) All using agencies shall submit to the agent, at the time and in the form as he or she shall prescribe, reports showing stocks of all supplies which are no longer used, or which have become obsolete, worn out or scrapped.

(1) *Transfer.* The agent shall have the authority to transfer surplus stock to other using agencies.

(2) *Sale.* The agent shall have the authority to sell all supplies which have become unsuitable for public use, or to exchange the same for or trade in the same on new supplies.

(b) Sales under this section shall be made in one of the following ways:

(1) To the highest responsive and responsible bidder and in conformance with section 3-3-7.

(2) By auction by the purchasing agent or his or her designee, or by commercial auction for which a fee or commission may be paid to the auctioneer for services rendered.

(3) By such other method as the city council may by ordinance or resolution direct.

(Code 1964, § 43A-11; Code 1980, § 3-3-10; Ord. No. 86-83, 4-29-1986; Ord. No. 91-43, 2-26-1991; Ord. No. 99-19, 2-2-1999)

Sec. 3-3-11. Procedure on rejection of bids or proposals.

(a) In case the agent rejects all bids or proposals for the furnishing of any supplies, he or she may invite new bids or proposals, or in the event only one bidder responds to the invitation to bid the agent may reject the bid and with the specific approval of the mayor may negotiate the purchase or contract; provided that the negotiated price is lower than the bid price, except that where the bid is solicited for or on behalf of the city library board or the city museum board the approval shall be by the board for which the bid was solicited.

(b) In case the agent rejects all bids for any sale of city property he or she may invite new bids, or the agent, with the specific approval of the mayor, may negotiate with any available purchaser for the sale of the property and sell the same pursuant to the negotiated sale; provided that the sales price therefor is in excess of the highest bid received in response to the invitation to bid.

(Code 1964, § 43A-12; Code 1980, § 3-3-11; Ord. No. 99-19, 2-2-1999)

Sec. 3-3-12. Sale of property when no bid received.

If no bids are received in response to an invitation to bid on a sale of city property as provided in this chapter, then in such case the agent may, with the approval of the mayor, sell the property at the best price obtainable at any time within 60 days after the time for receipt of such bids.

(Code 1964, § 43A-13; Code 1980, § 3-3-12; Ord. No. 99-19, 2-2-1999)

Sec. 3-3-13. Exemptions.

Anything in this chapter to the contrary notwithstanding, competitive bids shall not be required for any purchase of any supplies, materials, equipment or services exempted from the state competitive bid law by Code of Ala. 1975, § 41-16-51, as amended, or otherwise exempted by state law.

(Code 1964, § 43A-14; Code 1980, § 3-3-13; Ord. No. 82-13, 1-19-1982; Ord. No. 85-182, 8-13-1985; Ord. No. 89-202, 8-22-1989; Ord. No. 99-19, 2-2-1999)

Sec. 3-3-14. Library board purchases and contracts.

Any provision of this chapter to the contrary notwithstanding, all purchases and contracts by or on behalf of the city library board for which competitive bidding is not required by state law may be made under authority of that board, and the agent shall have no authority or responsibility in regard to the purchases or contracts. All pur-

chases of and contracts for supplies for or on behalf of that board, where competitive bidding is required by such Act No. 217, as amended, shall be under the provisions of this chapter; except that no bid may be accepted without the approval of the board or the person as the board may authorize to approve the purchases or contracts.
(Code 1964, § 43A-15; Code 1980, § 3-3-14; Ord. No. 99-19, 2-2-1999)

Sec. 3-3-15. Violation of state law prohibited.

No purchase or lease of supplies shall be made in violation of any provision of state law.
(Code 1964, § 43A-16; Code 1980, § 3-3-15; Ord. No. 99-19, 2-2-1999)

Sec. 3-3-16. Reserved.

Sec. 3-3-17. Minority- and women-owned business participation in solicitations and contracts.

The city shall include written language in all solicitations for bids or proposals (RFPs) and contracts encouraging minority- and women-owned business participation. As a matter of public policy, the city agrees to make opportunities available to the maximum extent possible, to actively include historically underutilized business enterprises (HUBEs) such as architectural firms, engineering firms, investment banking firms, other professional consultant services providers and construction contractors, as part of business, economic and community revitalization programs.
(Ord. No. 07-229, 6-30-2008)

Sec. 3-3-18. Nondiscrimination provisions to be included in municipal contracts.

(a) *Definitions.* Words and terms in this section shall be as defined in the City of Birmingham Nondiscrimination Ordinance upon adoption of such ordinance.

(b) The city and all city departments and agencies shall include in every municipal contract hereafter entered into the following provisions:

"During the performance of this contract the contractor agrees as follows:

(1) The contractor will not discriminate against any employee or applicant for employment because of race, color, religion, sex, gender identity, sexual orientation, disability, familial status, or national origin. The contractor will take affirmative action to ensure that applicants are employed, and that employees are treated during employment, without regard to their race, color, religion, sex, gender identity, sexual orientation, disability, familial status, or national origin. Such action shall include but not be limited to the following: Employment, upgrading, demotion or transfer; recruitment or recruitment advertising; layoff or termination; rates of pay or other forms of compensation; and selection for training, including apprenticeship. The contractor agrees to post in conspicuous places, available to employees and applicants for employment, notices setting forth the provisions of this nondiscrimination clause.

(2) In the event of the contractor's noncompliance with the nondiscrimination clauses of this contract, this contract may be canceled, terminated or suspended in whole or in part and the contractor may be declared ineligible for further municipal contracts."

(Ord. No. 17-122, § 1, 9-29-2017)

CHAPTER 4. PENSION AND RELIEF SYSTEM

ARTICLE A. GENERAL PROVISIONS

Sec. 3-4-1. Establishment.

A pension relief system is hereby established by the city for the benefit of certain persons employed by it in its unclassified service as

hereinafter defined. This system, as from time to time amended or supplemented, shall be known as the "Birmingham Unclassified Employee's Pension Relief System."
(Code 1964, 39A-1; Code 1980, § 3-4-1)

Sec. 3-4-2. Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

Anniversary date means July 1 of each year after the effective date.

Board of managers means the administrative body of the system provided for in article G of this chapter.

Effective date means December 1, 1975.

Employee means a person whom, between them and the city or the Birmingham Airport Authority there exists the technical relationship of employer and employee, including employees of the park board, library board and Birmingham Museum of Arts, but whose employment is not governed by the term of any civil service or personnel statute now or hereafter applicable to the city or the authority, and who is not a participant in any other pension and relief or retirement and relief system established by statute of the state and applicable to the city or the authority, and its subsidiary boards; provided, however, that the term "employee" shall exclude elected officials, recorders and professional, administrative and clerical employees hired by and responsible to the mayor or the council, and anyone whose employment is subsidized in whole or in part with funds provided under the Federal Comprehensive Employment and Training Act (CETA).

Normal retirement date means the first day of the month incident with or next following the later of:

(1) The 62nd birthday of an employee; or

(2) His or her completion of ten years of service.

Participant means an employee who is currently designated on his or her personnel action form on file with the personnel board of Jefferson County as a permanent employee and shall not include any employee who is currently designated thereon as a part-time or temporary employee.

Pension means a series of monthly amounts which are payable to a person who is entitled to receive benefits under the system.

Retirement means termination of employment after an employee has fulfilled all requirements for a pension.

Year of service means any fiscal year of the city during which an employee has made 26 contributions to the system; provided, however, that all persons who were employed by the city on the effective date, and who were so employed for 26 weeks between the effective date and the first anniversary date, and who were in its employ on the first anniversary date, shall be credited with one year of service for such employment, subject to the terms and conditions for receipt of the credit hereinafter provided.
(Code 1980, § 3-4-2; Ord. No. 77-2; Ord. No. 78-8, 1-11-1978; Ord. No. 87-176, § 1, 11-17-1987; Ord. No. 88-183, § 1, 12-20-1988)

Secs. 3-4-3—3-4-10. Reserved.

ARTICLE B. CONTRIBUTIONS

Sec. 3-4-11. Amount—By employees.

Each participant in the system shall contribute $4.15 per week to the trustee under the system for each week in which he or she receives remuneration from the city; provided that, beginning with the pay period which includes October 1, 1982, and thereafter, each participant in the system shall contribute the total sum of $5.00 per week to the trustee for each week in which he or she receives remuneration from the city. All such contributions shall be made by payroll deduction unless otherwise approved by the board of managers.
(Code 1964, § 39A-3; Code 1980, § 3-4-11; Ord. No. 82-160, § 1, 9-28-1982)

Sec. 3-4-12. Same—By city.

The city shall contribute from its general fund an amount each month equal to the amount

required to maintain the system on an actuarily sound basis. The amount of the city's contribution shall be determined by reference to the actuary then retained by the board of managers for the system, and his or her determination of the annual cost each year of the cost of current benefits provided by the system, plus an amount determined by the actuary required to be paid in any given year to amortize the unfunded accrued liability of the system over a period of 30 years. From the aggregate amount thus determined by the actuary, shall be subtracted the value of the participant's contributions expected during the ensuing fiscal year. The remaining sum thus obtained shall be divided by 12 and the result shall be the amount of the city's monthly contribution.
(Code 1980, § 3-4-12; Ord. No. 77-2; Ord. No. 78-65, 4-10-1978)

Sec. 3-4-13. Excess amount returned to city.

In the event the actuary shall determine that more amounts than necessary to fund the system on an actuarially sound basis are held by the system, such amount shall be returned to the city.
(Code 1980, § 3-4-13; Ord. No. 95-194, § 3, 11-14-1995)

Secs. 3-4-14—3-4-20. Reserved.

ARTICLE C. REQUIREMENTS FOR RETIREMENT BENEFITS

Sec. 3-4-21. Normal retirement.

(a) An employee shall be eligible for a normal pension if his or her employment is terminated on or after his or her normal retirement date. Payment of a normal pension shall commence as of the first day of the month coinciding with or next following the date of retirement.

(b) An employee may continue in the employment of the city after his or her normal retirement date if agreeable both to the employee and the city, in which case payment of his or her normal pension will commence as of the first day of the month coinciding with or next following the date of termination of his or her employment.

(c) Benefits.

(1) The normal retirement benefit shall be supplemented by adding thereto an additional 0.25 percent per year of credited service to provide a normal retirement benefit of 2.25 percent of final average salary multiplied by years of credited service.

(2) Final average salary shall be defined as "the average of the three years of highest compensation," exclusive of overtime or other forms of extra compensation but including longevity pay, in the ten years immediately preceding retirement after the effective date of this plan divided by 12 months.

(3) The maximum retirement benefit payable by the system shall be supplemented by adding thereto an additional five percent of final average salary to provide a maximum retirement benefit of 75 percent of the retiree's final average salary.

(4) The increased benefits herein provided shall not apply to participants or retirees of the Jefferson County health department.

(5) In accordance with Acts 1989, p. 788 (Act No. 89-401), participants and retirees receiving benefit increases under this subsection (c) hereby notified that such benefit increases may be discontinued or reduced in the event participant and city contributions are not sufficient to pay all costs of the system. The increases herein provided may be changed if necessary or desirable to meet current or future state or federal laws or regulations. These increases may be changed or adjusted in the event the board of managers and the city council approve a revised employee pension benefit program.

(Code 1964, § 39A-5; Code 1980, § 3-4-21; Ord. No. 90-12, §§ 1—5, 1-9-1990)

Sec. 3-4-22. Early retirement.

A participant may retire at any time after attaining age 55 and completing 20 or more years of service, of which at least three years must be for service after the effective date. Upon this early retirement, the retirement benefit shall be determined by reducing the normal retirement benefit to which the employee would be entitled at age 60 by four-ninths percent for each month by which the participant is younger than age 60.
(Code 1964, § 39A-6; Code 1980, § 3-4-22)

Sec. 3-4-23. Disability retirement.

A participant who becomes totally and permanently disabled after completing 15 years or more of service credit shall be entitled to receive a monthly disability retirement benefit which shall be the normal retirement benefit amount based on his or her service credits at the time of the onset of the disability. Should the disability terminate before the participant attains the age of 60, the disability retirement payments shall cease, and the participant shall then begin receiving only those benefits as to which he or she would have been entitled under section 3-4-22, if any. In such event, when the participant reaches the age of 60, he or she shall then begin receiving those benefits as those to which he or she would be entitled under section 3-4-21 or 3-4-26, whichever is greater. The determination of whether a participant is disabled shall be made by the board of managers, following receipt of any evidence the participant in question desires to present to it of whether the participant is suffering from a physical or mental condition which permanently precludes the participant from satisfactorily performing his or her duties for the city or the duties of any other position or job, if any, the city makes available to him or her and for which the participant is qualified by reason of his or her experience, education or training.
(Code 1964, § 39A-7; Code 1980, § 3-4-23)

Sec. 3-4-24. Termination of employment.

(a) If the employment of a participant is terminated for reasons other than death, retirement or disability, or a participant ceases to be eligible for participation herein by reason of his or her employment being subsidized in whole or in part with funds provided under the Federal Comprehensive Employment and Training Act (CETA) and under any circumstances that the participant

is not entitled to the benefits described in section 3-4-26, or if the participant is eligible for the benefits described in section 3-4-26, but elects not to avail himself or herself thereof, then he or she may withdraw an amount equal to the aggregate sum contributed by him or her to the system. For purposes of this section, the amount of a participant's contributions to the system shall be determined without regard to any sums previously withdrawn by him or her due to contributions made during a period of time prior to a break in service.

(b) If a participant desires to withdraw his or her contributions under the provisions hereof, he or she shall make written application therefor to the board of managers and shall be entitled to payment of all such contributions without interest from the city, which shall be reimbursed therefor by the trustee, at the direction of the board of managers.
(Code 1980, § 3-4-24; Ord. No. 77-2; Ord. No. 78-8, 1-3-1978)

Sec. 3-4-25. Vesting of benefits.

For the purpose of sections 3-4-26 and 3-4-27 only, pension benefits shall vest as follows:

(1) After a participant shall have completed ten or more years of service, the amount of the benefits shall be 50 percent of a normal retirement benefit based upon the participant's years of service credits.

(2) After a participant has completed 15 or more years of service, the benefits shall be 75 percent of the normal retirement benefit.

(3) After a participant has completed 20 years of service, the benefits shall be 100 percent of normal retirement benefits.

(Code 1980, § 3-4-25; Ord. No. 77-2; Ord. No. 77-217, § 3, 10-28-1977)

Sec. 3-4-26. Deferred vested retirement.

(a) A participant shall be eligible for, and be paid, a deferred vested pension as herein detailed if his or her employment is terminated for reasons other than death or retirement, after vesting of pension benefits, unless he or she elects to withdraw his or her contributions under section 3-4-24. If a participant eligible for a deferred vested pension under the provisions of this section desires to withdraw his or her contributions, he or she shall notify the board of managers of his or her intent within 90 days of the time his or her employment is terminated.

(b) The deferred vested retirement benefit provided for in this section shall commence on the first day of the month following attainment by the participant of age 60.

(c) If a participant is entitled to a deferred vested pension under the provisions hereof, but dies before attaining the age of 60, and at the time of his or her death leaves as his or her designated beneficiary someone other than a surviving spouse, then the board of managers shall pay his or her contributions to which he or she would have been entitled had he or she withdrawn them to the beneficiary previously designated by the participant to the board of managers to receive the same in that event, and if no one has been so designated and there is no surviving spouse, to the next of kin of the participant as determined by the laws of intestate succession of the state.
(Code 1980, § 3-4-26; Ord. No. 77-2, § 3.5; Ord. No. 77-217, § 4, 10-28-1977)

Sec. 3-4-27. Surviving spouse benefit.

(a) If a participant dies after vesting of benefits, or elects a deferred vested pension under the provisions of section 3-4-26 but dies before his or her normal or early retirement, and at the time of his or her death leaves a surviving spouse as his or her designated beneficiary or leaves a surviving spouse and has never designated any beneficiary, then the surviving spouse shall be paid a surviving spouse benefit hereunder unless the surviving spouse elects in writing to the board of managers within 120 days of participant's date of death to withdraw the contributions of the participant. For the surviving spouse's use in determining whether to withdraw the participant's contributions or receive payment of a surviving spouse benefit, the board of managers shall, within 60 days of participant's date of death, furnish to the surviving spouse the amount of the contributions and the amount of the monthly surviving spouse

benefit. If the surviving spouse elects to withdraw the contributions of the participant, upon receipt of written notice of such desire, the board of managers shall compute the amount of the withdrawal in the same manner as though the election had been made by the participant under the terms of section 3-4-24, and shall pay the same to the surviving spouse within 30 days of the date of receipt of the written notice. The surviving spouse benefit shall commence on the first day of the month following the date on which the participant would have attained the age of 60 but for his or her death, or the first day of the month following the date of his or her death if the participant were eligible for normal retirement; shall be equal to one-half of 90 percent of the benefit to which the participant would have been entitled but for his or her death, and shall be payable monthly to the surviving spouse for life; provided, however, that if the surviving spouse if more than ten years younger than the participant at the time of the participant's death, the benefit to which the participant would have been entitled but for his or her death shall be reduced by an additional one-half percent for each year in excess of ten years the surviving spouse is junior to the participant at the time of death and the surviving spouse's benefit shall be 50 percent of the amount thus computed. If a monthly surviving spouse benefit has been paid prior to the written request to withdraw the participants' contributions, the total of the monthly surviving spouse benefits shall be subtracted from the contributions made by the participant before payment to the surviving spouse.

(b) Minimum benefit; increasing benefit.

(1) The minimum benefit payable to the spouse of a deceased participant, which spouse is otherwise entitled to a benefit, shall be $320.00 per month; provided, however, that no benefit increase shall be paid to a spouse if such spouse shall certify that the increased benefit will cause a net reduction of all benefits received.

(2) In accordance with Acts 1989, p. 788 (Act No. 89-401), participants and retirees receiving benefit increases under this section are hereby notified that such benefit increase may be discontinued or reduced in the event participant and city contributions are not sufficient to pay all costs of the system. The increases herein provided may be changed if necessary or desirable to meet current or future state or federal laws or regulations. These increases may be changed or adjusted in the event the board of managers and the city council approve a revised employee pension benefit program.

(Code 1980, § 3-4-27; Ord. No. 77-2, § 3.5.1; Ord. No. 78-8, § 3, 1-3-1978; Ord. No. 91-128, §§ 1, 2, 6-18-1991)

Sec. 3-4-28. Death of participant.

If a participant dies before vesting pursuant to section 3-4-25 while employed by the city, or after termination of his or her employment following which he or she has not withdrawn his or her contributions to the system, then the board of managers shall pay his or her contributions to which he or she would have been entitled had he or she withdrawn them to the beneficiary previously designated by the participant to the board of managers to receive the same in that event, and if no one has been so designated, to the surviving spouse or, if none, to the next of kin of the participant as determined by the laws of intestate succession of the state. If a participant dies after vesting pursuant to section 3-4-25 leaving no surviving spouse and while employed by the city, then the board of managers shall pay his or her contributions to which he or she would have been entitled had he or she withdrawn them to the beneficiary previously designated by the participant to the board of managers to receive the same in that event, and, if no one has been so designated, then to the next of kin of the participant as determined by the laws of intestate succession of the state. For purposes of this section and sections 3-4-26 and 3-4-27, a beneficiary shall be designated by each participant in a form prescribed by the board of managers. The board of managers, to satisfy the requirements of this section, may pay up to $1,000.00 directly to any minor designated as a beneficiary or determined to be the next of kin of a participant if the payment comprises the total of the participant's contributions to the system.

(Code 1980, § 3-4-28; Ord. No. 77-2, § 3.6; Ord. No. 77-217, § 6, 10-28-1977)

Secs. 3-4-29—3-4-40. Reserved.

ARTICLE D. AMOUNT OF RETIREMENT BENEFITS

Sec. 3-4-41. Normal pension.

(a) The monthly benefit shall be based upon $12.00 for each year of service credit accrued by a participant after the effective date, and $4.00 for each year of service credit accrued by a participant prior to the effective date; provided that, for active employees retiring on or after October 1, 1982, the normal monthly benefit shall be based upon $14.00 for each year of service credit accrued by such participant after December 1, 1975, and $4.00 for each year of service credit accrued by a participant prior to the effective date; provided further that, for active employees retiring on or after January 1, 1989, the normal monthly benefit shall be based upon $20.00 for each year of service credit accrued by such participant after December 1975, and $4.00 for each year of service credit accrued by a participant prior to the effective date.

(b) The minimum normal pension benefit for any participant retiring on or after November 1, 1995, shall be $500.00 per month unless reduced as described in this chapter.
(Code 1964, § 39A-11; Code 1980, § 3-4-41; Ord. No. 82-160, § 2, 9-28-1982; Ord. No. 88-184, § 1, 12-20-1988; Ord. No. 95-194, § 1, 11-14-1995)

Sec. 3-4-42. Accrual of years of service credit.

(a) A participant shall accrue a year of service credit for each year of service commencing after the effective date in which he or she makes 26 or more weekly contributions to the system. A participant shall be credited with a year of service prior to the effective date for each year of service credit prior thereto, during which the participant received pay from the city during at least 26 weekly payroll periods.

(b) The crediting of years of service to participants shall be done by the city finance department subject to review of the board of managers, and in the case of a dispute with regard to the same, the decision of the board of managers shall be final.
(Code 1980, § 3-4-42; Ord. No. 77-2, § 4.2; Ord. No. 78-8, § 4, 1-3-1978)

Sec. 3-4-43. Optional benefits.

A participant retiring under the provisions of section 3-4-21 or 3-4-22 shall have the option of selecting from among the following forms of optional benefits:

(1) *Partial lump sum option.* A participant may elect to reduce his or her monthly benefit by any even dollar amount from $5.00 to $15.00 and receive a lump sum benefit of $120.00 for each $1.00 reduction in the monthly amount.

(2) *Social security option.* A participant may elect to receive a higher amount until age 62 and a lower amount thereafter, on an actuarially equivalent basis, so that his or her total monthly income including social security will be as level as possible.

(3) *Joint and survivor option.* A participant may elect to have his or her monthly benefit reduced by ten percent in return for the guarantee that one-half of the reduced benefit will be payable to his or her surviving spouse for the spouse's lifetime. If the spouse is more than ten years younger than the participant, the ten percent reduction will be increased by 0.5 percent for each year in excess of ten years.

(Code 1964, § 39A-13; Code 1980, § 3-4-43)

Sec. 3-4-44. Duration of benefits.

Retirement benefits under sections 3-4-21 and 3-4-22 (normal and early retirement benefits) shall be payable monthly for so long as the participant is alive. Retirement benefits under section 3-4-23 (disability retirement) shall be payable for so long as the participant is disabled, and if a disabled participant attains the age of 60 having been continuously disabled during the interim between the inception of the disability and attainment of that age, he or she shall thereafter receive benefits monthly until his or

her death. Benefits under section 3-4-26 (deferred vested retirement) shall commence on the first day of the month following attainment by the participant of age 60 and shall continue thereafter until his or her death.
(Code 1964, § 39A-14; Code 1980, § 3-4-44)

Sec. 3-4-45. Monthly benefit increase.

The monthly benefit paid to a retired participant or to the surviving spouse of a retired participant shall be increased by the amount of $17.00 for each full one-year period since the date of the retirement of the participant on whose service the benefit is based.
(Code 1980, § 3-4-45; Ord. No. 95-194, § 2, 11-14-1995)

Secs. 3-4-46—3-4-50. Reserved.

ARTICLE E. PORTABILITY

Sec. 3-4-51. Options upon change in employment classification.

If a participant transfers from unclassified employment with the city to classified employment with the city, he or she shall have the following options:

(1) To freeze his or her credits in this plan as of the date of transfer.

(2) To transfer his or her credits in this system to the retirement and relief system of the city if permitted by the statute establishing that retirement and relief system, and in accordance with the provisions of law applicable to entry or transfer into the same. If this option is elected, the contributions of the participant and an amount equal to a fraction of the contributions of the city to the system during the time the contributions of the participant were made, the fraction to be established using the aggregate contributions of the participant as a numerator and the contributions of the city during that period as the denominator, shall be paid into the general pension fund and credited against the sum the participant owes to the general pension and relief system in order to receive credit for years of unclassified service in the same.

(3) To continue to participate in this system as though he or she was still employed in the unclassified service; provided that this option shall be available only if the participant has credit for not less than six years of service in this system.

(Code 1964, § 39A-15; Code 1980, § 3-4-51)

Secs. 3-4-52—3-4-60. Reserved.

ARTICLE F. BREAK IN SERVICE

Sec. 3-4-61. Eligibility for benefits—Generally.

After the effective date hereof, if a participant shall be entitled to pay in fewer than 26 weekly payroll periods during any plan year, this shall constitute a break in service. Upon incurring a break in service, a participant shall have the rights accorded him or her hereunder upon termination of employment for reasons other than death or retirement, but shall cease to be a participant hereunder unless he or she shall be eligible for and elect to avail himself or herself of a deferred vested retirement benefit under the provisions of section 3-4-26.
(Code 1964, § 39A-16; Code 1980, § 3-4-61)

Sec. 3-4-62. Same—Reemployment.

In the event of cessation of participation in the system due to a break in service, after which a former participant is reemployed and again becomes a participant hereunder, he or she may elect to be reaccredited with the years of service to which he or she was entitled prior to his or her break in service, but in order to receive the same, he or she must return any contributions previously withdrawn by him or her over that period of time and subject to the requirements and conditions, including interest, as may be required by the board of managers.
(Code 1964, § 39A-17; Code 1980, § 3-4-62)

Sec. 3-4-63. Same—Interim employment in the classified service.

If a participant leaves the unclassified service of the city and enters the classified service of the same, thereupon electing the option under section 3-4-51, and subsequently leaves the classified service to become reemployed in the unclassified service, he or she shall be reinstated as a participant in this system and shall be credited with the years of service accrued by him or her while in the classified service (determined by the rules of this system and not by the rules of the general retirement and relief system). He or she shall be required to make all payments which he or she would have made to this system had he or she remained a participant under it during the time he or she was employed in the classified service within the time and under the terms and conditions, including interest, as may be required by the board of managers; provided that, if the participant elects to continue as a participant in the general retirement and relief system pursuant to the provisions of the same, he or she may waive his or her right to be credited with years of service under the provisions hereof by filing notice with the board of managers of his or her desire to do so, in writing, in which case he or she shall not be obligated to make payments to this system for the period during which he or she was employed in the classified service.
(Code 1964, § 39A-18; Code 1980, § 3-4-63)

Secs. 3-4-64—3-4-70. Reserved.

ARTICLE G. ADMINISTRATION

Sec. 3-4-71. Board of managers; creation; term of office; salary; powers and duties generally.

Administration of the system including resolution of disputes concerning entitlement to benefits is hereby vested in the board of managers as created by statute. The board of managers shall serve for a term of three years; provided that for the purposes of the initial board of managers, the member elected by the participants in the system shall serve an initial term of three years; the member appointed by the mayor shall serve an initial term of two years; and the member selected by the other two members shall serve an initial term of one year. Each member of the board of managers shall be paid by the city for serving as such at the rate of $20.00 per month.
(Code 1964, § 39A-19; Code 1980, § 3-4-71)

Sec. 3-4-72. Trustee—Selection; responsibilities.

The board of managers shall select a banking institution within the city to be trustee of the system's fund. All contributions to the system shall be made to the trustee and the trustee shall be responsible for investment and accumulation of the same, and shall make disbursements to participants entitled to receive benefits at the direction of the board of managers. The board of managers shall direct the trustee to pay administrative expenses, except the monthly payments to the members of the board of managers, directly from the system's fund with a record of such payments to be included within the accountings provided for in section 3-4-73. The board of managers may discharge any trustee and appoint a successor trustee, which also shall be a banking institution within the city, and in that event shall require an accounting from the discharged trustee within 60 days from the date of discharge.
(Code 1980, § 3-4-72; Ord. No. 77-2, § 7.2; Ord. No. 77-217, § 7, 10-28-1977)

Sec. 3-4-73. Same—Regular accountings.

The trustee of the fund shall make an accounting thereof to the board of managers not less frequently than annually, and this accounting shall be due not later than 60 days from the close of each plan year.
(Code 1964, § 39A-21; Code 1980, § 3-4-73)

Sec. 3-4-74. Authority to administer system.

Effective November 1, 1995, the assets necessary to fund this system on an actuarially sound basis and the liabilities of this system shall be transferred to the board of managers of the city retirement and relief system, if such board of managers shall consent to such transfer. In the event such a transfer occurs, the said board of managers of the city retirement and relief system

shall have all powers of the board of managers and such other powers as it deems necessary to the proper administration of this system. All retirement or benefits in payment status or otherwise vested shall be continued as described herein and all participants shall be entitled to receive the benefits described herein on the same terms and conditions as declared or as may be declared by the city council. The board of managers of this system shall cease to exist and shall have no further power or authority. The city shall continue to make the contributions as described in section 3-4-12.

(Code 1980, § 3-4-74; Ord. No. 95-194, § 4, 11-14-1995)

Title 3A

REVENUE AND TAXATION

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CHAPTER 1. BUSINESS LICENSE CODE ENFORCEMENT PROVISIONS

ARTICLE A. GENERAL PROVISIONS

Sec. 3A-1-1. Definitions.

For the purposes of this chapter, unless the context clearly requires otherwise, the words and phrases used herein shall have the meanings ascribed to them in this section.

Amount of business, unless the contrary clearly appears, means the gross receipts of the business and shall not contemplate any deduction for any purpose not specifically provided for.

Annualization means estimation, extended for a 12-month period, based on reported gross receipts for a prior period of less than a 12-month calendar year period.

Applicant means any person who applies for a license or a license renewal under the provisions of this chapter.

Business means and includes all activities engaged in or caused to be engaged in within the city, including any commercial or industrial activity or any enterprise, trade, profession, occupation, vocation, calling, or livelihood, including lease or rental of residential or nonresidential real estate, and every other kind of activity whether or not carried on for gain or profit, and whether or not engaged in as a principal or as an independent contractor, but shall not include the services rendered by an employee to his or her employer.

Business license means an annual license issued for the privilege of doing any kind of business, trade, profession, or any other activity in the city, by whatever name called, the license is required to be conspicuously posted or displayed as evidence of a business' payment of the tax required by the provisions of this chapter, and shall herein be referred to as license, except as otherwise specified. However, municipal occupational licenses, municipal gasoline taxes, municipal tobacco taxes, or gross receipts taxes in the nature of a sales tax, or any other municipal tax now in existence or that may hereafter be adopted by a municipality pursuant to Code of Ala. 1975, § 11-51-90A, or any other provision of state law other than an annual license shall not be considered a business license.

Business license remittance form means any business license return, renewal reminder notice, or other writing on which a taxpayer calculates its business license tax liability for all or part of the license year and remits the amount so calculated with the form.

Code or *ordinance.* When used in this chapter, the terms "Code" or "ordinance" shall be used interchangeably, and shall refer to this chapter.

Code of Ala. 1975, when referred to, means such sections as are currently in effect and as it or they may be amended.

Commercial solid waste facility means a site or facility receiving solid waste, as defined herein, not generated on site, for treatment, utilization, recycling, processing, transportation or disposal of solid waste, including transfer stations, transfer facilities, incinerators, sanitary or other landfill facilities, facilities for separating and preparing solid waste for refuse, facilities for converting solid waste to energy or other facilities necessary or desirable in connection therewith, and to which a fee is paid or other consideration given for such treatment, utilization, recycling, processing, transportation or disposal.

Contractor means any person who accepts orders or contracts from the owner of real property to assume authority or control, or to supervise, manage, or direct the work of others, or who is delegated authority by the owner to do so, whether at a fixed price or on a cost-plus basis, for doing any work in any building or structure, or for doing any paving or curbing, or for excavating or grading earth, rock or other material, or for constructing any sewer, street, road, bridge, dam or railroad, or for any other type of construction or installation work, or for demolishing any building or other structure, or for moving any building or other structure from one location to another.

Department means the department of finance of the city, and includes the director of finance.

Designee, when used in this chapter, means an agent of a taxing jurisdiction authorized to administer or collect, or both, the jurisdiction's business license taxes, which may include the city or a "private auditing or collections firm" as defined in Code of Ala. 1975, § 40-2A-3.

Director of finance means the director of finance of the city or his or her duly authorized agent.

Engaged in business means the transacting and carrying on, or managing, or operating of a business whether as owner, or by means of an officer, manager, employee or lessee.

Final assessment means the final notice of value, underpayment, or nonpayment of any tax administered by the department.

Gross annual business, unless the contrary clearly appears, means the gross receipts of the business, and shall not contemplate any deductions for any purpose not specifically provided for.

Gross receipts means a measure of any and all receipts of a business from whatever source derived, to the maximum extent permitted by applicable laws and constitutional provisions, to be used in calculating the amount due for a business license, unless the contrary clearly appears, and shall also mean the total revenue, without limitation to the amount of the sale price of all sales, the total amount charged for the performance of any act or service of whatever nature it may be, for which a charge is made or credit allowed, whether or not such act or service is done as a part of or in connection with the sale of materials, goods, wares, or merchandise and shall include the entire receipts, rents, royalties, cash, credit, and property of any kind or nature, without any deduction there from on account of the cost of goods sold or expenses incurred, the cost of materials used, labor or service cost, interest paid or payable, or loss or other expenses whatsoever of the business, vocation, occupation, or profession engaged in, including all receipts from sales regardless of the place where the sale was solicited, or place where the contract of sale was consummated or the place of delivery, and shall include the amount of any federal excise tax, or any other tax imposed on sales by retailers or wholesalers, except the state sales tax levied pursuant to title 40, chapter 23, article 1, Code of Alabama 1975, and Jefferson County sales tax, levied pursuant to Act 387, 1965 Regular Legislative Session, and except city sales tax levied pursuant to chapter 3 of this title, as now or hereafter amended, and shall not contemplate any deductions for any purpose not specifically or expressly provided for herein.

(1) The term "gross receipts" does not include any of the following taxes collected by the business on behalf of any taxing jurisdiction or the federal government. All taxes which are imposed on the ultimate consumer, collected by the taxpayer and remitted by or on behalf of the taxpayer to the taxing authority, whether state, local or federal, including utility gross receipts taxes levied pursuant to article 3, chapter 21, title 40; license taxes levied pursuant to article 2, chapter 21, title 40; or reimbursements to professional employer organizations of federal, state or local payroll taxes or unemployment insurance contributions; but no other deductions or exclusions from gross receipts shall be allowed except as provided in this chapter.

(2) A different basis for calculating the business license may be used by a municipality with respect to certain categories of taxpayers as prescribed in Code of Ala. 1975, § 11-51-90.2.

(3) For a utility or other entity described in Code of Ala. 1975, § 11-51-129, gross receipts shall be limited to the gross receipts derived from the retail furnishing of utility services within a municipality during the preceding year that are taxed under article 3 of chapter 21 of title 40, except that nothing herein shall affect any existing contract or agreement between a municipality and a utility or other entity. The gross receipts derived from the furnishing of utility services shall not be subject to further business license taxation by a municipality.

(4) The term "gross receipts" does not include dividends or other distributions received by a corporation, or proceeds from borrow-

ings, the sale of a capital asset, the repayment of the principal portion of a loan, the issuance of stock or other equity investments, or capital contributions, or the undistributed earnings of subsidiary entities.

Gross sales, unless the contrary clearly appears, means the gross receipts of the business, and shall not contemplate any deductions for any purpose not specifically provided for.

License year means the calendar year which includes the 12-month period beginning on January 1 of each year and ending on December 31 of the same year.

Notice or *return.* When used in this chapter, they shall be used interchangeably.

Notice of appeal means any written notice sufficient to identify the name of the taxpayer or other party appealing, the specific matter appealed from, the basis for that appeal, and the relief sought.

Permit means a written authorization, or permission to engage in or participate in some regulated or otherwise controlled activity. Under the provisions of this chapter, a permit is not equivalent to a license and vice versa.

Person means and includes any individual, firm, foreign or domestic corporation, partnership, association, joint-stock company or joint-stock corporation, trust, business trust, cooperative nonprofit membership, joint venture, estate, receiver, syndicate, holding company, society, limited liability company, limited liability partnership, unincorporated organization, and any other group or entity, or combination acting as a unit, in the singular or plural, and shall also include the agent or employee having charge or control of a business in the absence of the principals.

Petition for refund means a written request for a refund of tax previously paid, including in the form of an amended return. Unless otherwise provided by law, such request shall include sufficient information to identify the amount of tax overpaid, the taxpayer, the period included, the reasons for the refund and sufficient documentation as required by the director of finance.

Petition for review means a written document filed with the department in response to a preliminary assessment in which the taxpayer sets forth reasonably specific objections for the preliminary assessment.

Preliminary assessment means the preliminary notice of value or underpayment of any tax administered by the department.

Private auditing or collecting firm means any person in the business of collecting, through contract or otherwise, local license fees or for the city, or auditing any taxpayer, through the examination of books and records, for the city.

Reasonable cause includes, but is not limited to, those instances in which the taxpayer has acted in good faith. The burden of proving reasonable cause shall be on the taxpayer.

Return means any report, document, or other statement required to be filed with the department for the purpose of paying, reporting, or determining the proper amount of value or tax due.

Solid waste means any garbage, rubbish, putrescible waste, offal, dead animals, demolition materials, refuse or sludge from a water treatment plant, water supply treatment plant or air pollution control facility, discarded materials, including solid, liquid, semisolid or contained gaseous material resulting from industrial, commercial, mining, medical, and agricultural operations, including hazardous, infectious and toxic materials or waste, discarded materials from community and household activities and other like matter or materials.

Solid waste facility or facility means any land, building, plant, system, facility, trucks and other motor vehicles, equipment or other property, whether real, personal, or mixed, or any combination of either thereof, used or useful or capable of future use in connection with the treatment, utilization, recycling, processing, transporting, or disposal of solid waste, including a transfer facility, or station, incinerators, sanitary or other landfill facilities, facilities for separating and preparing solid waste for refuse, facilities for converting solid waste to energy or other facilities necessary or desirable in connection therewith.

Subcontractor means and includes a contractor who is generally licensed to perform one type of work for which a contractor's license is required, and who performs such work under subcontract to a general contractor. A subcontractor, nonetheless, may be a person who performs such work as is authorized by his or her license under direct contract with the owner of property, in which capacity the subcontractor will perform in the role of a contractor, or, he or she may perform only the types of work for which a contractor's license is required or award subcontracts to other subcontractors.

Sworn statement means an affidavit sworn to before a person authorized to take oaths, or a declaration, certification, or verified affidavit made under penalty of perjury.

Tax means any amount, including applicable penalty levied or assessed against a taxpayer and which the department is required or authorized to administer under the provisions of this chapter.

Taxpayer means any person subject to or liable for taxes herein levied; any person required to file a return with respect to, or to pay or remit the tax herein levied or to report any information or value to the department, or its designee; or any person required to obtain, or holding any interest in any license issued by the department, or its designee, or any person that may be affected by any act or refusal to act by the department, or its designee, or to keep any records required by this chapter.

Taxpayer's authorized representative means any individual with written authority or power of attorney to represent a taxpayer before the department; provided, however, that nothing herein shall be construed as entitling any such individual who is not a licensed attorney to engage in the practice of law.

Taxpayers' Bill of Rights Pamphlet means a written pamphlet to be distributed by the department to all taxpayers whose books and records are being examined by the department, at or before the commencement of an examination, explaining in simple and non-technical terms, the role of the department and the rights of the taxpayer whose books and records are being examined by the department during the examination and which shall be promptly revised from time to time to reflect any changes in the applicable law or rules.

Transfer facility means a facility which receives and temporarily stores solid waste at a location other than the generation site, and which facilities the bulk transfer of accumulated solid waste to a facility for further processing or disposal. The term "transfer facility" includes land affected during the lifetime of the operations, including, but not limited to, areas where storage or transfer actually occurs, support facilities, borrowed areas, offices, equipment sheds, air and water pollution control and treatment systems, access roads, associated on-site or contiguous collection and transportation facilities, closure and post-closure care and maintenance activities, and other activities in which the natural surface has been disturbed as a result of or incidental to operation of a transfer station. A facility is a transfer facility regardless of whether it reduces the bulk or volume of waste. The term "transfer facility" does not include portable storage containers used for the collection of municipal waste other than special handling waste.
(Ord. No. 97-183, art. II, § 1, 12-23-1997; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 02-173, § 1, 12-10-2002; Ord. No. 07-233, art. II, § 1, 12-18-2007; Ord. No. 08-241, art. II, § 1, 12-22-2008)

Secs. 3A-1-2—3A-1-10. Reserved.

ARTICLE B. APPLICATION FOR AND ISSUANCE OF BUSINESS LICENSE

Sec. 3A-1-11. Application—Where to apply and contents of application.

(a) Applications for all licenses required by this chapter shall be made in writing to the finance department upon a form prescribed by the department in the absence of any provision to the contrary.

(b) Applications must include, but shall not be limited to, the following information and/or documents:

(1) The full, legal name of the applicant. (If the applicant is a corporation, provide the names and addresses of all corporate offi-

cers. If the applicant is a partnership, provide the names and addresses of all the partners.)

(2) The trade name or names under which the company will conduct business, also known as the "doing business as" (DBA) name.

(3) The mailing address to which notices and correspondence will be sent.

(4) The complete address of the physical business location. A post office box cannot be used as a physical business location address.

(5) A complete description of the business activity and resulting product or service, as well as the type of business operation (whether manufacturer, wholesaler, contractor, etc.) and the form of business organization (whether corporation, partnership, proprietorship, LLC, LLP, etc.).

(6) The date business operations began or will begin.

(7) The date the application is made.

(8) The number of employees involved in the business.

(9) A complete listing of the full legal names and titles of all partners, corporate officers, etc.

(10) Signature of applicant, whether owner, partner, corporate officer, or legal designated agent, certifying to the accuracy of the information contained therein.

(11) Federal tax identification number, and applicable state tax identification numbers for sales tax, use tax, etc.

(12) Photo identification, issued by a state, of principal applicant, whether owner, partner, or corporate officer.

(13) A copy of articles of incorporation or articles of organization, if applicable.

(14) A copy of the certificate of authority to do business in the state issued by the state secretary of state to foreign corporations, except sole proprietorships and general partnerships.

(15) Such further information as the department may deem necessary to correctly identify business owners, to properly classify the business operation, and/or to enable the department to issue the business license for which application is being made.

(c) The completion and submission of an application form does not guarantee the approval or subsequent issuance of a license to do business. Any prerequisites for a particular type and location of the business must be satisfied prior to licensing.

(d) If a business intends to maintain a physical location within the city, there are normally zoning and building code approvals required prior to the issuance of a business license.
(Ord. No. 97-183, art. II, § 2.1, 12-23-1997; Ord. No. 98-106, § 1, 6-30-1998; Ord. No. 07-233, art. II, § 2(2.1), 12-18-2007; Ord. No. 08-241, art. II, § 2(2.1), 12-22-2008)

Sec. 3A-1-12. Same—Misrepresentation.

Any willful misrepresentation of a material fact in any application required by this chapter, or to any city law enforcement officer, or to the director of finance in the performance of his or her duties pursuant hereto, is a violation of this chapter, and shall be deemed a misdemeanor, and in addition to the punishment provided herein, such willful misrepresentation shall be grounds for denial of a license or revocation if one has been issued, as provided in sections 3A-1-129 through 3A-1-133.
(Ord. No. 97-183, art. II, § 2.2, 12-23-1997; Ord. No. 07-233, art. II, § 2(2.2), 12-18-2007; Ord. No. 08-241, art. II, § 2(2.2), 12-22-2008)

Sec. 3A-1-13. Issuance of license—Sworn statements; issuance of license conditional.

(a) *Sworn statements required.* In all cases where the amount of license tax is dependent upon the amount of business done, amount of

sales, gross receipts and gross sales, value of furniture and other equipment, stock, capital invested, number of helpers or employees, amount of space occupied, or any factor or factors whatsoever either of the same kind as the foregoing enumerations or of a different kind there from, it shall be the duty of the person subject to such tax to render to the director of finance, on or prior to the date when such tax becomes due, a sworn statement showing the total business done, amount of sales, receipts, stock, value of furniture and other equipment, capital invested, number of helpers or employees, amount of space occupied, or other factor or factors hereinabove mentioned, one or several, as the case may require for the ascertainment of the classification of such person for license taxation purposes and the correct amount of license tax to which he or she is subject.

(b) *Issuance of license conditional.* Upon receipt of any license tax based upon the classifications of such person as shown by such sworn statement as required by subsection (a) of this section, the director of finance shall issue the appropriate license, but the issuance and grant thereof is expressly conditional upon the truth and accuracy of such sworn statement and the same shall be revocable by the city council as inadvertently and mistakenly granted and issued whenever it shall be made to satisfactorily appear to the city council that the said sworn statement is false or incorrect or that the holder of such license has not paid to the city the correct amount of license tax.

(c) *Regulated licenses.* Prior to issuing a business license to a taxpayer, which shall be issued to the licensee based upon the established contractor category, who is subject to the jurisdiction of a particular state licensing board, the taxing jurisdiction shall attempt to confirm from the board that the taxpayer is duly licensed by and in good standing with that board; provided that the failure of the department to receive such confirmation due to a good faith error or other reasonable cause shall absolve the department and its employees or agents from any civil liability or criminal penalty that would otherwise arise or accrue if it is determined that the taxpayer was not in good standing at the time of filing the license form. The receipt by the department of what appears to be a true and accurate copy of the taxpayer's card or certificate, issued by the particular state licensing board within 14 months of the date on which the taxpayer applies for a business license, shall constitute reasonable cause.

(Ord. No. 97-183, art. II, § 2.3, 12-23-1997; Ord. No. 07-233, art. II, § 2(2.3), 12-18-2007; Ord. No. 08-241, art. II, § 2(2.3), 12-22-2008)

Sec. 3A-1-14. Same—Payment of other licenses not excused.

Any person required to pay a license tax for conducting a business under the provisions of this chapter shall not be relieved from the payment of any license tax for the privilege of conducting such business required under any other provision of this chapter or any other ordinance or regulation of the city, and such person shall remain subject to all regulatory provisions.

(Ord. No. 97-183, art. II, § 2.4, 12-23-1997; Ord. No. 07-233, art. II, § 2(2.4), 12-18-2007; Ord. No. 08-241, art. II, § 2(2.4), 12-22-2008)

Sec. 3A-1-15. Same—Unlawful manner of operation prohibited.

The granting of a license for a business shall not be deemed a permit to conduct the same in an unlawful manner or on premises where such business is prohibited by law.

(Ord. No. 97-183, art. II, § 2.5, 12-23-1997; Ord. No. 07-233, art. II, § 2(2.5), 12-18-2007; Ord. No. 08-241, art. II, § 2(2.5), 12-22-2008)

Sec. 3A-1-16. Same—License does not permit business otherwise prohibited.

The business license issued pursuant to the provisions of this chapter constitutes a receipt for the license tax paid and shall have no other legal effect. A business license is a requirement, not a permit, to transact and carry on any business activity within this city. The business license issued is evidence only of the fact that such tax has been paid. Neither the payment of the tax nor the possession of the business license

issued authorizes, permits, or allows the doing of any act which the person holding the same would not otherwise be entitled to do; and any permit, license, variance, or other instrument of approval or evidence that any conditions exist as required

by any other section of this chapter or by any statute or code provision of the city must first be obtained or complied with before the doing of any act or thing for which it is required.
(Ord. No. 97-183, art. II, § 2.6, 12-23-1997; Ord. No. 07-233, art. II, § 2(2.6), 12-18-2007; Ord. No. 08-241, art. II, § 2(2.6), 12-22-2008)

Sec. 3A-1-17. Same—No required permits waived.

Persons required to pay a license tax for transacting and carrying on any business under this chapter shall not be relieved from the payment of any additional permit fees for the privilege of carrying on any similar or related activity under any other ordinance of the city, and shall remain subject to the regulatory provisions of other ordinances and laws.
(Ord. No. 97-183, art. II, § 2.7, 12-23-1997; Ord. No. 07-233, art. II, § 2(2.7), 12-18-2007; Ord. No. 08-241, art. II, § 2(2.7), 12-22-2008)

Sec. 3A-1-18. Same—Unpaid taxes.

No business license for any succeeding, current or unexpired tax period shall knowingly be issued to any person who, at the time of application, is indebted to the city for any unpaid tax. The total indebtedness shall include the total tax due plus penalties for failure to pay the tax when due.
(Ord. No. 97-183, art. II, § 2.8, 12-23-1997; Ord. No. 07-233, art. II, § 2(2.8), 12-18-2007; Ord. No. 08-241, art. II, § 2(2.8), 12-22-2008)

Sec. 3A-1-19. False oath to procedure license.

It shall be unlawful for any person to give, submit, exhibit or present to the city, the director of finance, or to his or her designated agent, any false, deceptive or misleading statement, affidavit, certificate, book or record entry, or other document, relating to the amount of capital invested, the value of goods, stocks, or merchandise, the amounts or volume of sales, receipts or commissions, the number of employees, the number of vehicles used, or any other data, record of information required by this chapter to determine the amount of license due.
(Ord. No. 97-183, art. II, § 2.9, 12-23-1997; Ord. No. 07-233, art. II, § 2(2.9), 12-18-2007; Ord. No. 08-241, art. II, § 2(2.9), 12-22-2008)

Sec. 3A-1-20. Use of license by unlicensed person.

No person holding a license required by this chapter shall permit any unlicensed independent contractor, transient dealer, or other person to use the license, the licensed premises or the licensee's name for the purpose of evading payment of any license fee or of evading any other provision of this chapter.
(Ord. No. 97-183, art. II, § 2.10, 12-23-1997; Ord. No. 07-233, art. II, § 2(2.10), 12-18-2007; Ord. No. 08-241, art. II, § 2(2.10), 12-22-2008)

Sec. 3A-1-21. Business license purchase.

Every taxpayer required to purchase a business license under this chapter shall:

(1) Purchase a business license for each location at which it does business within the city, except as otherwise provided by the city.

(2) Except as provided in Code of Ala. 1975, § 11-51-193, with respect to taxpayers subject to state licensing board oversight, be classified into one or more of the 2002 North American Industrial Classification System (NAICS) sectors and applicable subsectors, industry groups, industries and U.S. industries.

(Ord. No. 07-233, art. II, § 2(2.11), 12-18-2007; Ord. No. 08-241, art. II, § 2(2.11), 12-22-2008)

Sec. 3A-1-22. More than one line of business.

(a) Any taxpayer engaged at one location in more than one line of business falling within separate NAICS sector or subsectors, for which a business license is or may be required by the department in accordance with this chapter, shall take out and pay for a license for each separate NAICS sector or subsectors from which the taxpayer derived more than 35 percent of its gross receipts during the preceding license year; provided, however, that for each business license, the gross receipts which shall be taxed with regard to such license shall, except as provided in subsection (a)(2) of this section and other provisions of

this chapter, be only those gross receipts which arise within the line of business which is the subject of the license.

(1) The city may, in its discretion as evidenced by adoption of the ordinance from which this chapter is derived, increase the ten percent gross receipts threshold to no more than 35 percent.

(2) Nothing herein shall be construed to exempt the gross receipts derived from one or more additional lines of business of the taxpayer if those gross receipts do not exceed the required threshold for the purchase of a second or multiple business license. Instead, those gross receipts shall be included in the business license for the taxpayer's primary line of business.

(b) Nothing herein shall be construed to exempt the gross receipts derived from one or more additional lines of business of the taxpayer if those gross receipts do not exceed the required threshold for the purchase of a second or multiple business license. Instead, those gross receipts shall be included in the business license for the taxpayer's primary line of business.
(Ord. No. 07-233, art. II, § 2(2.12), 12-18-2007; Ord. No. 08-241, art. II, § 2(2.12), 12-22-2008)

Sec. 3A-1-23. Responsibilities for payment of city occupational taxes.

No license shall be required of any person, defined as an "employee" pursuant to section 3A-2-1, when the compensation earned is the result of engaging in or following any trade, occupation or profession, including, but not limited to, professions such as physicians, attorneys, engineers, accountants, auditors, or other so-called professionals, within the meaning of section 3A-2-1, which subjects said person to the payment of city occupational license fee.
(Ord. No. 08-241, art. II, § 2(2.13), 12-22-2008)

Secs. 3A-1-24—3A-1-30. Reserved.

ARTICLE C. EXEMPTIONS

Sec. 3A-1-31. Physicians, dentists, etc.

No license shall be required of any dentist, physician, surgeon, optometrist or veterinarian for the first two years succeeding his or her first instance of licensure or admission to the practice of his or her profession. The two-year period of exemption herein provided shall begin from the first licensure, authorization or admission to practice regardless of in what state, territory or district the said first licensure, authorization or admission occurred.

Sec. 3A-1-32. Nonprofit organizations.

Nonprofit organizations which have been granted exemptions from business license taxation by Acts of the Alabama Legislature are exempt from city license taxes. The legislative act, or a copy thereof, must be submitted to the department in order to be eligible for the grant of such exemption. Nonprofit organizations are not automatically exempt from the provisions of this chapter by virtue of having qualified for nonprofit status on the federal income tax level.
(Ord. No. 97-183, art. II, § 3, 12-23-1997; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 07-233, art. II, § 3, 12-18-2007)

Sec. 3A-1-33. Farmers.

No license shall be required of any farmer, or other individual engaged in the production of farm products for the sale or other disposition exclusively of goods or commodities produced by them.

(1) *Grower's permit required.* When any farmer or other individual shall claim to be exempt from the payment of license, he or she shall file with the director of finance annually, a valid grower's permit issued by the county agent through the authority of the state department of agriculture. Such grower's permit shall be valid only for such persons named in said permit and for such items as listed in said permit.

(2) *False statements; penalties.* Any person who shall make any false statement as to the ownership, entitlement, authorization, or authenticity of any such grower's permit provided for in subsection (1) of this section; and upon the basis of which a city business license exemption was

granted shall be guilty of a misdemeanor and upon conviction shall be fined not less than $50.00, nor more than $500.00 for each offense, and in addition may be imprisoned for a period not to exceed six months, or by both such fine and imprisonment.

(Ord. No. 97-183, art. II, § 3, 12-23-1997; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 07-233, art. II, § 3, 12-18-2007)

Sec. 3A-1-34. Unlawful to sell without grower's permit.

It shall be unlawful for any farmer or other individual engaged in the production of farm products to sell within the corporate limits of the city any goods or commodities produced by them without first having procured the grower's permit provided for by section 3A-1-33(1).

(Ord. No. 97-183, art. II, § 3, 12-23-1997; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 07-233, art. II, § 3, 12-18-2007)

Secs. 3A-1-35—3A-1-40. Reserved.

ARTICLE D. LICENSE REGULATIONS

Sec. 3A-1-41. License required to engage in business.

(a) *Unlawful to commence, engage in, or continue in business without license.* It shall be unlawful for any person, taxpayer, or agent of a person or taxpayer to commence, or engage in any business, vocation, occupation or profession in the city, who is not otherwise exempt therefrom under the provisions of this chapter, without first having procured a license therefor, or to continue in any business, vocation, occupation, or profession after the expiration of a license previously issued, without obtaining a new license.

(b) *Persons liable.* Persons engaged in a profession, vocation or occupation who have a proprietary interest, ownership interest, private practice or are sole practitioners of such profession, vocation or occupation, or who are independent contractors receiving an IRS form 1099-M, are required to obtain a business license for engaging in such activity. Any person who is compensated in wages as an employee, and is not a sole practitioner, or is not a member of a professional corporation or LLC, or a partner in an LLP, or who is not an independent contractor receiving an IRS form 1099-M, regardless of whether they engage in a profession such as attorney, physician, accountant, or engineer, shall not be subject to the business license tax herein levied, but shall, instead, be subject to the occupational tax levied pursuant to chapter 2 of this title, as amended.

(c) *Each day in violation constitutes separate offense.* Each day during which said business, vocation, occupation or profession is so engaged in shall constitute a separate offense. The engaging in a business, vocation, occupation or profession shall include any offer to sell, any soliciting of orders for sale, or any offering of services, whether or not the same shall result in a sale or the furnishing of any service. A violation of this section of the ordinance passed hereunder fixing a license shall be punishable by a fine not to exceed the sum of $500.00 for each offense, and if a willful violation, by imprisonment, not to exceed six months, or both, at the discretion of the court trying the same. Each day shall constitute a separate offense.

(d) *Maintenance of place of business prima facie evidence.* Maintenance of a place for the carrying on of a business, vocation, occupation or profession shall be prima facie evidence that the person, firm or corporation is carrying on or conducting business.

(Ord. No. 97-183, art. II, § 4, 12-23-1997; Ord. No. 07-233, art. II, § 4, 12-18-2007)

Sec. 3A-1-42. License term; minimums.

The license term and the minimum amount for a business license are as follows:

(1) *Full year.* Every person who commences business before July 1 shall be subject to and shall pay the annual license for such business in full. Unless otherwise specified in the enclosed schedules, the minimum annual license shall be $100.00.

(2) *Half-year.* Any business, trade, occupation or profession is based on a flat rate and is taken out after July 1, only one-

half of the license shall be charged and collected, except for those subjects for which daily, weekly, monthly, quarterly or semiannual licenses are provided by law.

(3) *Annual renewal.* Except as provided in subsection (3)a or b of this section, the business license shall be renewed annually on or before February 15 each year.

a. If the due date for payment of any business license falls on a weekend or a holiday recognized by the city from time to time, the due date shall automatically be extended until the next business day.

b. The department shall mail or otherwise transmit a renewal reminder notice to each taxpayer that purchased a business license during the preceding license year, via regular U.S. mail addressed to the taxpayer's last known address, on or before December 31 of the current license year. Failure to comply with the preceding sentence shall not, however, preclude the department from enforcing its business license tax laws against a taxpayer but shall preclude the department from assessing any fines or penalties otherwise due for late payment until ten days after a renewal reminder notice has been mailed to the taxpayer at its last known address as indicated in the records, or personally delivered to the taxpayer, and the taxpayer then fails or refuses to remit the business license tax due for such license year within the ten-day period. If the municipality mails a renewal reminder notice to the last known address of the taxpayer, as indicated in the records, there shall exist a presumption that the municipality has complied with the above provisions. The department shall not be precluded from assessing fines and penalties otherwise due for late payment if the taxpayer does not notify the department of a change in address within 90 days after changing such address. Taxpayers shall notify the department of a change of mailing address within 90 days after changing such address. In like manner, taxpayers shall notify the department of a change in their federal employer identification number or department of revenue taxpayer identification number within a reasonable time after such number is changed.

c. Business license renewal payments received by the department shall be applied to the current renewal only when any and other debts the licensee owes to the city are paid in full. No business license shall be issued if the current renewal payment does not meet said prior obligations and the current renewal. Failure to pay such sums shall subject the licensee and its agents to those penalties as prescribed for doing business without a license provided for in this chapter.

(Ord. No. 97-183, art. II, § 4, 12-23-1997; Ord. No. 07-233, art. II, § 4, 12-18-2007)

Secs. 3A-1-43—3A-1-50. Reserved.

ARTICLE E. FILING OF LICENSE RETURNS

Sec. 3A-1-51. Business license due dates—Generally.

(a) Except as otherwise provided herein, all licenses under this chapter shall be due and payable on January 1 of each year or from the day on which business is commenced for the remainder of the calendar year and shall be renewed annually on or before February 15. The payment for the calendar year license renewal shall be delinquent on February 16 of that year.

(b) If the due date for payment of any business license falls on a weekend or a holiday recognized by the city from time to time, the due date shall automatically be extended until the next business day.

(c) Notwithstanding subsection (a) of this section, insurance company licenses shall be renewed annually on or before March 1 in accordance with Code of Ala. 1975, § 11-51-122. Each insurance company which did any business in the city during any part of the preceding year, if a license or privilege tax is imposed by city on such insurance company, shall furnish the department a statement in writing duly certified showing the full and true amount of gross premiums received during the preceding year as provided under this chapter and shall accompany such statement with the amount of license tax due according to the licensing schedule. Failure to furnish such statement or to pay such sum shall subject the company and its agents to those penalties as prescribed for doing business without a license.
(Ord. No. 97-183, art. II, § 5, 12-23-1997; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 07-233, art. II, § 5, 12-18-2007)

Sec. 3A-1-52. Same—Specific.

(a) *Annual alcoholic beverage licenses.* All alcoholic beverage licenses shall be due and payable on the first day of each calendar year, or from the day on which business is commenced for the remainder of the calendar year. The payment for the calendar year alcoholic beverage license renewal shall be delinquent on January 16 of each year.

(b) *Monthly liquor tax.* All monthly liquor taxes imposed by this chapter shall be due and payable on the 15th day of the month next succeeding the month in which the license tax accrues.

(c) *Insurance.* All business licenses issued pursuant to schedules 136 and 137 shall be due and payable on the first day of each calendar year, or from the day on which business is commenced for the remainder of the calendar year. The payment for the license renewal shall be due January 1 and delinquent on March 1 of each year.

(d) *Schedules 598-F and 599-F.* All monthly taxes levied pursuant to schedules 598-F and 599-F shall be due and payable on the 25th day of each month following the monthly period for which the tax is due.

(e) *Vehicle immobilization services.* All licenses issued pursuant to schedule 247 shall be due and payable on the first day of each calendar year, or from the day on which business is commenced for the remainder of the calendar year.
(Ord. No. 97-183, art. II, § 5, 12-23-1997; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 07-233, art. II, § 5, 12-18-2007)

Sec. 3A-1-53. Penalties for late payment—Generally.

If said licenses are not paid before becoming delinquent, a penalty shall be assessed and collected in addition to the license tax due. Said penalty shall be an amount equal to 15 percent of the business license tax required to be paid with the license form. There shall be assessed a penalty of 30 percent of any business license tax required to be paid with the license form if the business license tax and any assessed penalties are not paid within 30 days of the due date prescribed in the preceding sentence. Such penalties shall not be cumulative. The director of finance, if reasonable cause is shown for failure to pay the license within the prescribed time, may waive or remit the penalty in whole or part.
(Ord. No. 97-183, art. II, § 5, 12-23-1997; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 07-233, art. II, § 5, 12-18-2007)

Sec. 3A-1-54. Same—Specific.

(a) *Liquor licenses.* Any annual liquor license return/notice and payment not received by the due date thereof shall be deemed untimely filed and shall be assessed a penalty for late payment in the amount of 15 percent of the amount due, such penalty to be assessed and collected as part of the license tax.

(b) *Monthly liquor tax.* Any monthly liquor tax return/notice and payment not received by the due date thereof shall be deemed untimely filed and shall be assessed a penalty for late payment in the amount of 15 percent of the amount due, such penalty to be assessed and collected as part of the license tax.

(c) *Insurance.* Any insurance license return/notice and payment not received by the due date thereof shall be deemed untimely filed and shall

be assessed a penalty and interest for late payment as follows: 15 percent of the amount of the license tax which is delinquent during the period beginning March 2 and ending April 1, a penalty of 30 percent thereafter. If the business license tax and any assessed penalties and interest are not paid within 30 days of the due date prescribed in this chapter. Such penalties shall not be cumulative.

(d) *Schedules 598-F and 599-F.* Any tax return and payment to be filed and remitted, pursuant to schedules 598-F or 599-F, and which is not received by the due date thereof shall be deemed untimely filed and shall be assessed a penalty for late payment in the amount of 20 percent of the amount due, such penalty to be assessed and collected as part of the license tax.

(e) *Vehicle immobilization services licenses.* Any annual vehicle immobilization services or operator's license return/notice and payment not received by the due date thereof shall be deemed untimely filed and shall be assessed a penalty for late payment in the amount of 25 percent of the amount due, such penalty to be assessed and collected as part of the license tax.
(Ord. No. 97-183, art. II, § 5, 12-23-1997; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 07-233, art. II, § 5, 12-18-2007)

Sec. 3A-1-55. Penalties; other.

The foregoing part of this article is to apply as to penalties except where in the judgment of the director of finance, it is necessary to check the accounts of the licensee in order to properly determine the amount of license tax due, and after having done so, it is found that the licensee has not paid the full amount due, a penalty not exceeding 30 percent of the amount originally due shall, in the judgment of the director of finance, be assessed as penalty.
(Ord. No. 97-183, art. II, § 5, 12-23-1997; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 07-233, art. II, § 5, 12-18-2007)

Sec. 3A-1-56. Duration of license.

Except as otherwise provided herein, any business license referred to in this chapter shall automatically expire on December 31 of the year of its issuance.
(Ord. No. 97-183, art. II, § 5, 12-23-1997; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 07-233, art. II, § 5, 12-18-2007)

Sec. 3A-1-57. Timely mailing treated as timely filing and paying.

The provisions outlined in this section for timely filing of any returns, payments, claims, statements, or other documents shall be administered as provided herein.

(1) *Date of delivery.* If any return, claim, statement, or other document required to be filed, or any payment required to be made, within a prescribed period or on or before a prescribed date under the authority of any provision of this chapter is, after such period or such date, delivered by United States mail to the finance department or to the department's designated depository where such return, claim, statement, or other document is required to be filed, or to which such payment is required to be made, the date of the United States postmark stamped on the cover in which such return, claim, statement, or other document, or payment is mailed shall be deemed to be the date of delivery, or the date of payment, as the case may be; provided, however:

a. *Weekends and holidays.* When the due date falls on a Saturday, Sunday, or city holiday, payment of the tax may be made without penalty on the first working day following the due date.

b. *Mailing requirements.* The return, claim, statement, or other document, or payment was, within the time prescribed in subsection (1) of this section, deposited in the mail in the United States in an envelope or other appropriate wrapper, postage prepaid, properly addressed to the

finance department or the department's designated depository where such return, claim, statement, or other document is required to be filed, or to which the payment is required to be made.

(2) *Taxpayer's responsibility when no form received.* The department is authorized, but not required, to mail license application forms, business license renewal notices, monthly liquor tax notices, and any other applicable forms to taxpayers; but, failure of the taxpayer to receive such notices or forms does not relieve the taxpayer of the responsibility of properly making application for any license, the timely renewal of licenses, the timely reporting of the information required on any return required to be filed, and/or the timely payment of any applicable license taxes or fees required under any provision of this chapter.

(3) *Delivery by method other than United States mail.* Returns, claims, statements or other documents, or payments which are required under any provision of this chapter which are delivered by any method other than by mailing shall be considered timely filed when such items are received in the finance department or the department's designated depository on the due date prescribed.

(4) *Untimely filing.* Any return, payment, claim, statement, or other document not received in accordance with the provisions of this section shall be deemed untimely filed and shall be assessed applicable penalties as prescribed by the relevant sections of this chapter.

(5) *Returns to be filed even though no tax may be due.* Where a return is required to be filed pursuant to a provision of this chapter, such returns shall be filed in accordance with the provisions outlined herein, provided that, a return should be filed for each monthly period, by the due date required, even when no tax is due.

(Ord. No. 97-183, art. II, § 5, 12-23-1997; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 07-233, art. II, § 5, 12-18-2007)

Secs. 3A-1-58—3A-1-60. Reserved.

ARTICLE F. OATHS

Sec. 3A-1-61. Oaths; sworn statements.

The reports herein required to be made are not required to be made under oath, but wherever in this chapter any report is required to be sworn to, such sworn statements to include but not be limited to those bearing on the character of the business engaged in, the amount of capital invested therein, and the dollar amount of the business transacted, the same shall be sworn to by the taxpayer or his or her agent before some officer authorized to administer oaths, and any false statement to a material fact made with the intent to defraud shall constitute perjury, and upon conviction thereof, the person so convicted shall be punished as provided in section 1-1-6, as amended and as it may be amended.

(Ord. No. 97-183, art. II, § 8, 12-23-1997; Ord. No. 07-233, art. II, § 8, 12-18-2007)

Sec. 3A-1-62. Statements not conclusive.

All information and statements provided by any such person, are subject to audit, inspection, and verification by the department.

(Ord. No. 97-183, art. II, § 8, 12-23-1997; Ord. No. 07-233, art. II, § 8, 12-18-2007)

Secs. 3A-1-63—3A-1-70. Reserved.

ARTICLE G. RECORDS

Sec. 3A-1-71. Maintenance of records; investigative powers; audit and subpoena authority.

The provisions of this article shall be administered in accordance with the procedures set forth herein.

(Ord. No. 97-183, art. II, § 9, 12-23-1997; Ord. No. 98-106, § 1, 6-30-1998; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 07-233, art. II, § 9, 12-18-2007)

Sec. 3A-1-72. Records to be kept.

In addition to all other requirements otherwise set out in this chapter, taxpayers shall keep and maintain an accurate and complete set of records, books, and other information sufficient to allow the department to determine the correct amount of value or correct amount of any license tax due, or other records or information as may be necessary for the proper administration of any matter under the provisions of this Code in such form as the department may require. Such records, books, and other information shall be open for examination by the department upon request at a reasonable time and location. It shall also be the duty of every person to keep and preserve such records, books, and other pertinent records or other information for a period of not less than five years from the due date of the return on which the underlying license tax is required to be reported, or within five years of the date the return is filed, whichever is later.

(1) *Reasonable time and reasonable location.* For the purposes of this section, the term "reasonable time" means during normal business hours of the department. The term "reasonable location" means the taxpayer's place of business or the offices of the taxpayer's authorized representative, provided such business or representative is located within a 50-mile radius of the city. Taxpayers maintaining records outside of this radius must make records available at city hall or at such other location as agreed upon by the department. The department, when conducting an audit, review, or examination for verification, may, at its election, require any taxpayer conducting business within the city to provide the records, accounts, books, papers and other documents at a reasonable time and reasonable place agreed upon by the department, as provided herein.

(2) *Taxpayer may be assessed reasonable costs.* The department may assess and collect from the taxpayer the reasonable costs, based on the then-current state government employee per diem rates incurred by, or charged to, the city in connection with performing an examination of the taxpayer's books and records if the taxpayer received notice by certified U.S. mail, return receipt requested, at least 30 days prior to the date on which the examination was to commence, and:

1. The taxpayer either failed or refused to respond or did not propose a reasonable alternative date on which the examination was to commence within 15 days of receipt of notice of the pending examination; or if
2. The taxpayer and the department agreed in writing as to an alternative date on which the examination was to commence but the taxpayer then failed or refused to permit reasonable access to its books and records on the alternative date.

(3) *Separate records to be maintained where liquor sold.* It shall be the duty of each licensee selling beer and/or spirituous and vinous liquors, and intermingling the receipts from such sales with receipts of his or her other business to keep a separate intelligible record of each the beer and/or spirituous and vinous liquor sales. Where no such records are maintained, the department may immediately enter a final assessment for the amount of such license tax due plus applicable penalties; provided that the department may at any time enter a final jeopardy assessment, pursuant to Code of Ala. 1975, § 40-29-91.

(Ord. No. 97-183, art. II, § 9, 12-23-1997; Ord. No. 98-106, § 1, 6-30-1998; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 07-233, art. II, § 9, 12-18-2007)

Sec. 3A-1-73. Investigative powers.

Each taxpayer shall give to the director of finance the means, facilities and opportunity for the making of such audit, examination, and investigation of the records, books, or other relevant information maintained by any taxpayer or other person for the purpose of computing and determining the correct amount of value or the correct amount of license tax to which such person is

subject, and determining the proper classification of such license holder for license taxation purposes, as provided for in section 3A-1-72. The director of finance is hereby authorized to examine any person under oath concerning any gross receipts which were or should have been shown in a return, and to this end, he or she may compel the production of books, papers, records and the attendance of all persons before him or her, whether as parties or as witnesses, whom he or she believes to have knowledge of such gross receipts.

(1) Any taxpayer, or officer of a corporation or association, or partner of a partnership, or fiduciary of a trust, or responsible individual of any entity under a duty to maintain books and records pursuant to this chapter, who fails or refuses to maintain or provide such records and books, or permit inspection, as required herein, shall be subject to the provisions of article I of this chapter, and shall be subject to contempt proceedings in the circuit court.

(2) Where the amount of license required to be paid for engaging in any business is graduated according to the amount of business, or the amount of gross receipts, gross purchases, gross sales, or according to the amount or value of stock on hand, and where a maximum flat sum which shall be paid as a license is provided for engaging in such business, any person engaging in such business shall be liable for the maximum license provided for engaging in such business, unless he or she has in his or her possession the records, books, papers, and reports necessary to determine the classification to which he or she belongs, and unless he or she exhibits the same for inspection as required by this section, and unless the same discloses that the person belongs in a classification lower than the classification required to pay the maximum license. In the absence of such records, it shall be the duty of the director of finance to ascertain the license tax classification of such person from the best information and data obtainable and to assess against such person the correct license tax according to the classification thus ascertained.

(3) Upon demand by the department or its designee, it shall be the duty of all licensees to:

a. Permit the designee of the city to enter the business and to inspect all portions of his or her place or places of business for the purposes of enabling said municipal designee to gain such information as may be necessary or convenient for determining the proper license classification and determining the correct amount of license tax;

b. To furnish information during reasonable business hours, at the licensee's place of business, in the city, all books of account, invoices, papers, reports and memoranda containing entries showing amount of purchases, sales receipts, inventory and other information from which the correct license tax classification of such person may be ascertained and the correct amount of license tax to which he or she is subject may be determined, including exhibition of bank deposit books, bank statements, copies of sales tax returns to the state, copies of state income tax returns and federal income tax returns.

(Ord. No. 97-183, art. II, § 9, 12-23-1997; Ord. No. 98-106, § 1, 6-30-1998; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 07-233, art. II, § 9, 12-18-2007)

Sec. 3A-1-74. Audit and subpoena authority; additional requirements.

The department is authorized to audit, to subpoena records, and to enter into contracts with private examining or collecting firms as provided herein.

(1) A taxpayer that has purchased a business license required under this chapter shall not be subject to more than one business license examination for each business license by or on behalf of the issuing taxing

jurisdiction for every three-license-year cycle unless reasonable cause is shown and notice is given to the taxpayer, consistent with Code of Ala. 1975, § 40-2A-13, or unless the taxpayer fails or refuses to provide to the taxing jurisdiction a true and correct copy of its federal income tax return for the prior two license years of portions thereof within 14 days after written request has been mailed or personally delivered to it. The following activities shall not constitute a business license examination for purposes of this section:

a. The mere contact of a taxpayer or its authorized representative or agent for the purpose of obtaining information to confirm any information provided by the taxpayer in connection with its application for or renewal of its business license, or

b. An inspection of the taxpayer's books and records consistent with one of the exceptions for sales and use tax examinations listed in Code of Ala. 1975, § 40-2A-13(c).

(2) The director of finance or any agent or employee authorized by him or her is hereby authorized to examine and audit the books, papers, records, or other information of any taxpayer or of any licensee, in order to determine the accuracy of any return made, or if no return was made, to ascertain the amount of license fees due under the terms of this chapter by such audit or examination.

(3) The department may summon any witness to appear and give testimony, and summon by subpoena duces tecum any records, books, or other information of any kind relating to any matter which the department has authority to administer. The witness may be summoned by subpoena issued by any circuit judge, any magistrate, or any district judge, in the name of the department, directed to any sheriff and returnable to the department. The subpoena may be served in like manner as subpoenas issued out of any circuit court, or the subpoena may be served by an authorized employee of the department or by certified mail, return receipt requested. If any witness has been subpoenaed to appear and testify or appear and produce records, books, or other information, and fails or refuses to appear or testify or to produce the books, records, or other information, that witness shall be subject to contempt proceedings in the circuit court.

(4) The department is authorized to enter into contracts with private examining or collecting firms; provided:

a. Said private examining or collecting firm is certified and licensed under the auspices of the Alabama Local Tax Institute of Standards and Training (ALTIST), established under Code of Ala. 1975, § 40-2A-15;

b. No contract between the city and the private examining or collecting firm entered into for the purpose of examining or collecting city taxes shall have a term in excess of three years, including any renewal or extension options;

c. The limitation on the term of a contract between the city and a private examining or collecting firm does not prohibit the negotiation of a new contract between the parties following expiration of a properly executed contract; and

d. Any contract between the city and any private examining or collecting firm shall terminate automatically, whether or not it is stated in the contract, if the private examining or collecting firm loses or forgoes its license under Code of Ala. 1975, § 40-2A-13 or 40-2A-14.

(Ord. No. 97-183, art. II, § 9, 12-23-1997; Ord. No. 98-106, § 1, 6-30-1998; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 07-233, art. II, § 9, 12-18-2007)

Secs. 3A-1-75—3A-1-80. Reserved.

ARTICLE H. REFUNDS

Sec. 3A-1-81. Petitions for refund.

Any taxpayer may file a petition for refund with the department for any overpayment of tax erroneously paid to the department. Unless otherwise provided by law, all petitions for refund shall include sufficient information to identify the type and amount of tax overpaid the taxpayer, the period included, and the reasons for the refund. Such petition shall be accompanied with sufficient supporting documentation as the department may deem necessary and proper. If a final assessment for any tax has been entered by the department, a petition for refund of all or a portion of the tax may be filed only if the final assessment plus applicable penalty has been paid in full prior to or with the filing of the petition for refund.
(Ord. No. 97-183, art. II, § 10, 12-23-1997; Ord. No. 98-106, § 1, 6-30-1998; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 02-173, § 1, 12-10-2002; Ord. No. 07-233, art. II, § 10, 12-18-2007)

Sec. 3A-1-82. Time limitations.

(a) A petition for refund shall be filed in writing with the department within:

(1) Three years from the date the return was filed;

(2) Two years from the date of payment of the tax, whichever is later; or

(3) If no form was timely filed, two years from the date of payment of the business license tax.

(b) The department shall either grant or deny a petition for refund within six months from the date the petition is filed, unless the period is extended by written agreement of the taxpayer and the department. The taxpayer shall be notified of the department's decision concerning the petition for refund by first class United States mail or by certified mail with return receipt requested, sent to the taxpayer's last known address. If the department is unable to grant a refund within the time provided herein due to the taxpayer's failure to provide adequate documentation, the petition for refund shall be deemed to be denied.

(c) If the petition is granted, or the department or a court otherwise determines that a refund is due, the overpayment shall be promptly refunded to the taxpayer by the department, together with interest to the extent provided in Code of Ala. 1975, § 11-51-192. If the department or a court determines that a refund is due, the amount of overpayment plus any interest due thereon may first be credited by the department against any outstanding final tax liabilities due and owing by the taxpayer to the department, and the balance of any overpayment shall be promptly refunded to the taxpayer. If any refund or part thereof is credited to any other tax by the department, the taxpayer shall be provided with a written detailed statement showing the amount of overpayment, the amount credited for payment to other taxes, and the amount refunded.
(Ord. No. 97-183, art. II, § 10, 12-23-1997; Ord. No. 98-106, § 1, 6-30-1998; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 02-173, § 1, 12-10-2002; Ord. No. 07-233, art. II, § 10, 12-18-2007)

Sec. 3A-1-83. Assignment of refunds.

The right of any person to a refund under this section is not assignable. A petition for a refund must be made by the person who paid the tax.
(Ord. No. 97-183, art. II, § 10, 12-23-1997; Ord. No. 98-106, § 1, 6-30-1998; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 02-173, § 1, 12-10-2002; Ord. No. 07-233, art. II, § 10, 12-18-2007)

Sec. 3A-1-84. Action for recovery of refund.

It is unlawful for any petitioner for a tax refund to make a false statement in connection with such application. If any person obtains a refund unlawfully, the director of finance is empowered and directed to bring appropriate action for recovery of such refund. A conviction for the violation of this section shall constitute prima facie evidence that all refunds received by such person pursuant to the petition which contained the false statement were obtained unlawfully. Obtaining a refund unlawfully shall be an act of fraud against the city and shall be subject to applicable penalties outlined in article J of this chapter.
(Ord. No. 97-183, art. II, § 10, 12-23-1997; Ord. No. 98-106, § 1, 6-30-1998; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 02-173, § 1, 12-10-2002; Ord. No. 07-233, art. II, § 10, 12-18-2007)

Secs. 3A-1-85—3A-1-90. Reserved.

ARTICLE I. ENFORCEMENT

Sec. 3A-1-91. Jeopardy, preliminary, final assessments and time limitations.

(a) *Jeopardy assessments.* All jeopardy assessments issued by the department shall be executed pursuant to Code of Ala. 1975, § 40-29-91(a), (b) and (c).

(1) If the director of finance finds that a taxpayer designs quickly to depart from the city or to remove his or her property therein, or to do any other act tending to prejudice or to render wholly or partly ineffectual proceedings to collect any license tax imposed by this chapter, the director of finance may issue notice of such finding to the taxpayer by personal service or mailing to his or her last known address, together with a demand for immediate payment of the license tax declared to be in jeopardy, including penalties and additions thereto and such license tax, penalty, and additions thereto shall be immediately due and payable. A final assessment of such license tax may be entered immediately and if the assessment is not paid upon such demand of the director of finance, the director of finance may forthwith issue a warrant for levy and distraint of any personal property of the taxpayer which shall be collected in the same manner and with like effect as provided under section 3A-1-158.

(2) In the case of a tax for a current period, the director may declare the taxable period of the taxpayer immediately terminated and may at his or her discretion estimate the tax liability based upon the best information obtainable. Notice of such finding and declaration shall be issued to the taxpayer in the same manner as in subsection (a)(1) of this section.

(3) When a jeopardy assessment has been made as provided in subsection (a)(1) of this section, the collection of all or any part of such assessment may be stayed by filing with the director of finance or his or her delegate an approved bond conditioned upon the payment of the assessment together with applicable penalties and costs of collection. The director shall have sole discretion to approve or disapprove the bond, but such approval shall not be unreasonably withheld.

(b) *Preliminary and final assessments.* All preliminary and final assessments issued by the department shall be executed as provided herein. The terms "preliminary assessment" and "final assessment" shall have the respective meanings ascribed by section 3A-1-1.

(1) *Entry of preliminary assessment.* If the department determines that the amount of any business license tax as reported on a return is incorrect, or if no business license remittance form or return is filed within the time prescribed, or if the information provided on the form is insufficient to allow the department to determine the proper amount of business license tax due or if the department is required to determine value, the department shall calculate the correct license tax or value based on the most accurate and complete information reasonably obtainable by the department. The department shall thereafter enter a preliminary assessment for the correct amount of business license tax or value, including any applicable penalty and interest.

(2) *Service of preliminary assessment upon taxpayer.* The preliminary assessment entered by the department, or a copy thereof, shall be promptly mailed by the department to the taxpayer's last known address by either first class U.S. mail or certified mail with return receipt requested, or, in the sole discretion of the department, the preliminary assessment may be delivered to the taxpayer by personal delivery.

a. *Issuance of a preliminary assessment.* At or before the issuance of a

preliminary assessment, the department shall provide to the taxpayer in simple and non-technical terms:

1. A written description of the basis for the assessment and any penalty asserted with respect to the assessment.
2. A written description of the method by which the taxpayer may request an administrative review of the preliminary assessment.
3. At or before the issuance of a final assessment, the department shall inform the taxpayer by a written statement of the taxpayer's right to appeal to the circuit court.
4. Except in cases involving suspected criminal violations of the tax law or other criminal activity, the department shall conduct an examination of a taxpayer during regular business hours after providing reasonable notice to the taxpayer. A taxpayer who refuses a proposed time for an examination on the grounds that the proposed examination would cause inconvenience or hardship must offer reasonable alternative times and dates for the examination.
5. At all stages of an examination or the administrative review of the examination, a taxpayer is entitled to be assisted or represented, at the taxpayer's own expense, by an authorized representative. The department shall prescribe a form by which the taxpayer may designate such a person to represent the taxpayer in the conduct of any proceedings, including collection proceedings, resulting from actions of the department. In the absence of this form the taxing jurisdiction may accept such other evidence that a person is the authorized representative of a taxpayer as it considers appropriate. This provision shall not be construed as authorizing the practice of law.
6. The taxpayer shall be allowed to make an audio recording of any in person interview with any officer or employee of the department relating to any examination or investigation by the department, provided, however, the taxpayer must give reasonable advance notice to the department of the taxpayer's intent to record and the recording shall be at the taxpayer's own expense and with the taxpayer's own equipment. The department shall also be allowed to record any interview if the taxpayer is recording the interview, or if the department gives the taxpayer reasonable advance notice of its intent to record the interview. The department shall provide the taxpayer with a copy of the recording, but only if the taxpayer provides reimbursement for the cost of the transcript and reproduction of such copy. Such cost shall be reasonable as prescribed by the department.
7. This section shall not apply to criminal investigations or investigations relating to the integrity of any officer or employee of the city.
8. Any designee of the city shall be subject to the same responsibilities and restrictions of its authority, and the ability of its employees and contractors, to act on behalf of the department under this section as are im-

posed on them under the provisions of this section and Code of Ala. 1975, §§ 40-2A-12 to 40-2A-14, inclusive.

b. *Disputed preliminary assessments.* If a taxpayer disagrees with a preliminary assessment as entered by the department, the taxpayer may file a written petition for review with the director of finance within 30 calendar days from the date of entry of the preliminary assessment, setting out the specific objections to the preliminary assessment, and show such cause why any assessment should not be made final. If a petition for review is timely filed, or if the department otherwise deems it necessary, the department shall schedule a conference with the taxpayer for the purpose of allowing the taxpayer or its representatives and the department to present their respective positions, discuss any omissions or errors, and to attempt to agree upon any changes or modifications to their respective positions.

c. *Disposition of petition.* If a written petition for appeal/review:

1. Is not timely filed; or

2. Is properly filed, and upon further review the department determines the preliminary assessment is due to be upheld in whole or in part;

the department may make the assessment final in the amount of the business license tax due as computed by the department, with applicable interest and penalty computed to the date of entry of the final assessment. The department shall, whenever practicable, complete the department's review of the taxpayer's petition for review and applicable law within 90 days following the later of the date of filing of the petition or the conference, if any.

(3) *Service of final assessment upon taxpayer.* The final assessment entered by the department, or a copy thereof, shall be mailed by the department to the taxpayer's known address by either:

a. First class U.S. mail or certified mail with return receipt requested in the case of assessments of tax of $500.00 or less; or

b. Certified mail with return receipt requested in the case of assessments of tax of more than $500.00.

In either case and at the option of the department, the final assessment, or a copy thereof, may be delivered to the taxpayer by personal delivery.

(4) *Undisputed preliminary assessments.* Where the amount of license tax or value reported on a return is undisputed by the department, or if the taxpayer consents in writing, to the department's determination of the amount of any deficiency, determination of value, or preliminary assessment as provided by this chapter, the department shall enter a final assessment for the amount of the license tax or value, plus applicable penalty and interest; provided, the department may at any time enter a final jeopardy assessment, pursuant to Code of Ala. 1975, § 40-29-91.

(c) *Time limitation for entering assessments.*

(1) Any preliminary assessment must be entered within four years from the due date of the return, or four years from the date the return is filed with the department, whichever is later, or if no return is required to be filed, within four years of the due date of the license tax, except as follows:

a. A preliminary assessment may be entered at any time if no return is filed as required, or if a false or fraudulent return is filed with the intent to evade the business license tax.

b. A preliminary assessment may be entered within six years from the

due date of the return or six years from the date the return is filed with the department, whichever is later, if the taxpayer omits from the taxable base an amount properly includable therein which is in excess of 25 percent of the amount of the taxable base stated in the return.

c. A preliminary assessment may be entered within five years from the due date of the license form, or five years from the date the form is filed, whichever is later, if the taxpayer or its authorized agent fails or refuses to execute and return to the department or its agent a written extension of the statute of limitations on issuing preliminary assessments for up to eight months, as requested by the department or its agent, within 30 days after receipt of the request for extension by the taxpayer or its authorized agent.

d. The preliminary assessment entered by the taxing jurisdiction, or a copy thereof, shall promptly upon entry be mailed by the taxing jurisdiction to the taxpayer's last known address by either first class U.S. mail or certified U.S. mail with return receipt requested, but at the option of the department, the preliminary assessment may be delivered to the taxpayer by personal delivery.

(2) Determination of taxable base; additional assessments; time period extensions.

a. For purposes of this subsection (c), the term "taxable base" means the gross proceeds from the sales, gross receipts or other amounts on which the tax paid with the return is computed.

b. In determining the amount omitted from the taxable base, there shall not be taken into account any amount which is omitted from the taxable base stated in the return if the amount is disclosed in the return, or in a statement attached to the return, in a manner adequate to apprise the department of the nature and amount of the item.

c. The department and the taxpayer may, prior to the expiration of the period for entering a preliminary assessment, agree in writing to extend the time provided for entering the assessment. The tax may be assessed at any time prior to the expiration of the period agreed upon. The period agreed upon may be extended by subsequent agreements in writing made before the expiration of the period previously agreed upon.

d. Additional tax may be assessed by the department within any applicable period allowed above, even though a preliminary or final assessment has been previously entered by the department against the same taxpayer for the same or a portion of the same tax period.

(Ord. No. 97-183, art. II, § 11, 12-23-1997; Ord. No. 98-106, § 1, 6-30-1998; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 07-233, art. II, § 11, 12-18-2007)

Sec. 3A-1-92. Appeals.

(a) *Written notice required.* Appeals from denial of refunds, jeopardy assessments, and final assessments shall be executed as provided in Code of Ala. 1975, § 6-3-11. A written notice of appeal shall be filed with department and shall contain information sufficient to:

(1) Identify the name of the taxpayer or other party filing such notice of appeal;

(2) Identify the specific matter appealed from;

(3) Outline the basis for such appeal; and

(4) Specify the relief sought.

(b) *Appeal from refund denial.*

(1) A taxpayer may appeal from the denial in whole or in part of a petition for refund by filing a written notice of appeal with the circuit court of the county in which the

department denying the petition for refund is located by filing the notice of appeal within two years from the date the petition is denied. The circuit court shall hear the appeal according to its own rules and procedures and shall determine the correct amount of refund due, if any.

(2) If an appeal is not filed with the appropriate circuit court within two years of the date the petition is denied, then the appeal shall be dismissed for lack of jurisdiction.

(c) *Appeal from jeopardy assessment.*

(1) In any court proceeding to contest the jeopardy assessment or to enforce payment of the license taxes made due and payable by virtue of the provisions of article I of this chapter, the finding of the director of finance, made as herein provided, shall be for all purposes presumptive evidence of jeopardy.

(2) A final jeopardy assessment entered hereunder may be appealed to either the director of finance or the circuit court in the same manner as provided in subsection (e) of this section for the appeal of final assessments. On appeal to the circuit court or to the director of finance, the final jeopardy assessment shall be prima facie correct, and the burden of proof shall be on the taxpayer to prove such assessment is incorrect.

(3) If an appeal is not filed with the director of finance or in the circuit court within the time provided herein for appeals of final assessments, the appeal shall be dismissed for lack of jurisdiction.

(d) *Appeal from preliminary assessment.* Refer to section 3A-1-91(b)(1) and (2).

(e) *Appeal from final assessment.*

(1) A taxpayer may appeal from any final assessment entered by the department by filing a written notice of appeal with the director of finance within 30 days from the date of entry of the final assessment, and the appeal, if timely filed, shall proceed as herein provided.

(2) In lieu of the appeal under subsection (e)(1) of this section, at the option of the taxpayer, the taxpayer may appeal from any final assessment to the circuit court by filing written notice of appeal within 30 days, from the date of entry of the final assessment with both the director of finance and the circuit court. If the appeal is to circuit court, the taxpayer shall, also within the 30-day period allowed for appeal, either:

a. Pay the tax and penalty shown on the final assessment; or

b. File a supersedeas bond with the court in double the amount of the tax and any penalty shown on the final assessment. The supersedeas bond shall be executed by a surety company licensed and authorized to do business in the state and shall be conditioned to pay the assessment plus applicable penalty and any court costs relating to the appeal. A taxpayer may appeal a final assessment to circuit court as provided herein, even though the taxpayer has paid the tax shown as due on the assessment prior to filing the appeal.

(3) The filing of the written notice of appeal with the director of finance or in the case of appeals to the circuit court, the filing of the written notice of appeal with both the director of finance and the circuit court, and also the payment of the assessment in full and applicable penalty or the filing of a bond as provided herein, are jurisdictional. If such prerequisites are not satisfied within the time provided for appeal, the appeal shall be dismissed for lack of jurisdiction. On appeal to the circuit court or to the director of finance, the final assessment shall be prima facie correct, and the burden of proof shall be on the taxpayer to prove such assessment is incorrect.

(4) If a final assessment is reduced on appeal, any overpayment shall promptly be refunded to the taxpayer by the taxing jurisdiction together with interest to the extent allowed by Code of Ala. 1975, § 11-51-192.

(5) No court shall have the power to enjoin the collection of any business license tax due on an assessment so appealed or to suspend the payment thereof.

(Ord. No. 97-183, art. II, § 12, 12-23-1997; Ord. No. 98-106, § 1, 6-30-1998; Ord. No. 07-233, art. II, § 12, 12-18-2007)

Secs. 3A-1-93—3A-1-100. Reserved.

ARTICLE J. PENALTIES AND INTEREST

Sec. 3A-1-101. Failure to timely pay license taxes.

If a taxpayer fails, neglects, or refuses to pay to the department the amount of license tax shown as due on a return required to be filed on or before the date prescribed for payment of the license tax there shall be assessed; in addition to the license tax due or the amount of tax herein required to be remitted; or for any license tax for which a monthly or quarterly return is required, a penalty 15 percent of the unpaid amount shown as business license tax required to be paid with the license form, due on the return or the amount stated in the notice and demand, assessed from the date at which the license tax herein levied became due and payable. There shall be assessed a penalty of 30 percent of any business license tax required to be paid with the license form if the business license tax and any assessed penalties are not paid within 30 days of the due date prescribed. Such penalties shall not be cumulative. (Also refer to article E of this chapter.)

(Ord. No. 97-183, art. II, § 13, 12-23-1997; Ord. No. 98-106, § 1, 6-30-1998; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 07-233, art. II, § 13, 12-18-2007)

Sec. 3A-1-102. Underpayment of license taxes.

Any taxpayer failing to pay the license taxes herein levied to the city or any amount of license tax herein required to be paid to the city, within the time required by this chapter, shall pay, in addition to the license tax or the amount of tax herein required to be remitted, a penalty not exceeding 30 percent of the amount of license tax due, assessed from the date at which the license tax herein levied or required to be paid became delinquent, that is, due and payable to the city.

(Ord. No. 97-183, art. II, § 13, 12-23-1997; Ord. No. 98-106, § 1, 6-30-1998; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 07-233, art. II, § 13, 12-18-2007)

Sec. 3A-1-103. Underpayment due to negligence.

If any part of any underpayment of license tax is due to negligence or disregard of rules or regulations, there shall be added to the license tax a penalty not exceeding 25 percent of that part of the tax attributable to negligence or disregard of rules and regulations. For the purpose of this section, the term "negligence" includes any failure to make a reasonable attempt to comply with this chapter, and the term "disregard" includes any careless, reckless or intentional disregard.

(Ord. No. 97-183, art. II, § 13, 12-23-1997; Ord. No. 98-106, § 1, 6-30-1998; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 07-233, art. II, § 13, 12-18-2007)

Sec. 3A-1-104. Underpayment due to fraud.

If any part of any underpayment of license tax required to be shown on a return is due to fraud, there shall be added to the tax an amount equal to 50 percent of that portion of the underpayment which is attributable to fraud. For purposes of this section, the term "fraud" shall have the same meaning as ascribed to the term under Code of Ala. 1975, § 40-2A-11(d).

(Ord. No. 97-183, art. II, § 13, 12-23-1997; Ord. No. 98-106, § 1, 6-30-1998; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 07-233, art. II, § 13, 12-18-2007)

Sec. 3A-1-105. Frivolous appeal penalty.

If any appeal to the director of finance or to circuit court is determined to be frivolous or

primarily for the purpose of delay or to impede collection of the license tax imposed by this chapter, a penalty of $250.00 or 25 percent of the license tax in question, whichever is greater, shall be assessed in addition to any license tax due.
(Ord. No. 97-183, art. II, § 13, 12-23-1997; Ord. No. 98-106, § 1, 6-30-1998; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 07-233, art. II, § 13, 12-18-2007)

Sec. 3A-1-106. Penalties not exclusive.

The penalties provided in this section for failure to timely file a return, failure to timely pay tax, underpayment of tax, underpayment due to negligence and fraud, or filing a frivolous appeal may be asserted against the same taxpayer for the same tax period.
(Ord. No. 97-183, art. II, § 13, 12-23-1997; Ord. No. 98-106, § 1, 6-30-1998; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 07-233, art. II, § 13, 12-18-2007)

Sec. 3A-1-107. Waiver of penalties.

Penalties may be waived, in whole or in part, by the director of finance upon a determination of reasonable cause. Reasonable cause shall include, but not be limited to, those instances in which the taxpayer has acted in good faith. The burden of proving reasonable cause shall be on the taxpayer, and a determination by the department that reasonable cause does not exist shall be reversed only if that determination was made arbitrarily and capriciously.
(Ord. No. 97-183, art. II, § 13, 12-23-1997; Ord. No. 98-106, § 1, 6-30-1998; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 07-233, art. II, § 13, 12-18-2007)

Sec. 3A-1-108. Penalties assessed as license tax.

All penalties and interest levied or assessed against a taxpayer and which are administered by the department shall be assessed and collected in the same manner as license taxes.
(Ord. No. 97-183, art. II, § 13, 12-23-1997; Ord. No. 98-106, § 1, 6-30-1998; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 07-233, art. II, § 13, 12-18-2007)

Sec. 3A-1-109. Interest.

(a) Interest shall be computed at a rate of one percent per month or fraction thereof, and shall be added as provided herein to any tax or other amount due the department which is not paid by the due date. Interest on any delinquency or underpayment shall be charged from the due date of the tax.

(b) Except as provided in this subsection, interest at the same rate shall be paid by the department on any refund of business license tax erroneously paid to the department. Interest shall be computed on any overpayment from the date of the overpayment to the department, provided that interest on any refund of business license taxes of the department shall be limited to pay interest on any refund of tax erroneously paid. References in the subsection to the term "erroneously paid taxes" on which interest shall be due to the taxpayer means and refers only to taxes erroneously paid to the department or its agent as a result of any error, omission, or inaccurate advice by or on behalf of the self-administered municipality, including in connection with a prior examination of its books and records by the self-administered municipality or its agent.
(Ord. No. 97-183, art. II, § 13, 12-23-1997; Ord. No. 98-106, § 1, 6-30-1998; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 07-233, art. II, § 13, 12-18-2007)

Sec. 3A-1-110. Abatement of penalty.

The department shall abate any penalty attributable to erroneous written advice furnished to a taxpayer by an employee of the department. However, this subsection shall apply only if the department employee provided the written advice in good faith while acting in his or her official capacity, the written advice was reasonable relied on by the taxpayer and was in response to a specific written request of the taxpayer, and the penalty did not result from the taxpayer's failure to provide adequate or accurate information.
(Ord. No. 97-183, art. II, § 13, 12-23-1997; Ord. No. 98-106, § 1, 6-30-1998; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 07-233, art. II, § 13, 12-18-2007)

Sec. 3A-1-111. Penalty for failure to perform duties.

Any person required to collect, truthfully account for, and/or pay over any tax imposed by this chapter who willfully fails to collect such tax, or truthfully account for, and/or pay over such tax, or willfully attempts in any manner to evade or defeat any such tax or the payment thereof, shall, in addition to other penalties provided by law, be liable for a penalty up to the total amount of the tax evaded, or not collected, or not accounted for and paid over.
(Ord. No. 97-183, art. II, § 13, 12-23-1997; Ord. No. 98-106, § 1, 6-30-1998; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 07-233, art. II, § 13, 12-18-2007)

Secs. 3A-1-112—3A-1-120. Reserved.

ARTICLE K. ADMINISTRATIVE

Sec. 3A-1-121. Confidentiality of tax returns.

The confidentiality provisions imposed by this chapter shall be executed as provided herein.

(1) It shall be unlawful for any person to print, publish, or divulge, without the written permission or approval of the taxpayer, the license tax return of any taxpayer or any part thereof or any information secured in arriving at the amount of license tax or value reported for any purpose other than the proper administration of any matter administered by the department, or upon order of any court, or as otherwise allowed in this section. Nothing herein shall prohibit the disclosure of the fact that a taxpayer has or has not purchased a business license or of the name and address of a taxpayer purchasing or renewing a business license from the department. Statistical information pertaining to license taxes may be disclosed at the discretion of the director of finance. The director of finance may make written or verbal disclosure upon request as to the status of compliance of the taxpayer relative to this chapter. Any person willfully violating the provisions of this section shall, for each act of disclosure, have committed a Class A misdemeanor.

(2) A good standing certificate shall be issued to a requesting person with respect to a taxpayer, if the taxpayer has filed all license tax returns due, and paid the license taxes shown as payable in accordance with those returns.

(3) The director of finance shall promulgate reasonable regulations permitting and governing the exchange of license tax returns, information, records, and other documents secured by the department, with tax officers of other agencies of the state, municipal, and county government agencies within the state, federal government agencies, any association of state government tax agencies of this state or other states, and any foreign government tax agencies; however:

   a. Any license tax returns, information, records, or other documents remain subject to the confidentiality provisions set forth in subsection (1) of this section;

   b. The department may charge a reasonable fee for providing information or documents for the benefit of the requesting agencies; and

   c. Any exchange shall be for one or more of the following purposes:

      1. Collecting license taxes due.

      2. Ascertaining the amount of license taxes due from any person.

      3. Determining whether a person is liable for, or whether there is probable cause for believing a person might be liable for the payment of any license tax.

(4) Nothing herein shall prohibit the use of license tax returns or license tax information by the department in the enforcement, collection, and assessment of any license tax levied or imposed by this chapter, or any other matters administered by

the department. The department may also divulge to a purchaser or successor of a business or stock of goods the outstanding license tax liability of the seller for which the purchaser or successor may be liable pursuant to section 3A-1-123. This section shall not preclude the inspection of returns by federal or foreign state agents pursuant to Code of Ala. 1975, § 40-18-53.

(5) Nothing herein shall prohibit the exchange of information between and among county or municipal governments subject to the same restrictions and criminal penalties imposed on the department and its personnel as described in this section.

(6) In no event shall any damages, attorney fees, or court costs be assessed against the city or against its elected officials, officers or employees under this section.

(Ord. No. 97-183, art. II, § 14, 12-23-1997; Ord. No. 98-106, § 1, 6-30-1998; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 07-233, art. II, § 14, 12-18-2007)

Sec. 3A-1-122. Regulations may be promulgated; payments due taxpayers may be withheld.

(a) *Regulations may be promulgated.*

(1) The director of finance shall from time to time promulgate rules and regulations for making returns and for ascertainment, assessment, and collection of the license tax imposed hereunder as the director may deem necessary to enforce its provisions; and upon request shall furnish any taxpayer with a copy of such rules and regulations.

(2) The director of finance may prescribe, adopt, promulgate and enforce reasonable rules and regulations not in conflict with this chapter relating to any matter or thing pertaining to the administration and enforcement of the provisions of this chapter, including but not limited to provisions for the re-examination and correction of license tax returns as to which overpayment or underpayment is claimed or found to have been made, and the rules and regulations so promulgated shall be binding upon all taxpayers.

(3) The director of finance shall prescribe printed forms for use by persons subject to the provisions of this chapter and shall make such forms available at the director's office for use by such persons.

(b) *Payments due taxpayers may be withheld.* Pursuant to the Mayor-Council Act, article VI, section 6.04(o), Act No. 452-55, Acts of Alabama, the director of finance, in order to protect the interests of the city, is authorized to withhold the payment of any claim or demand for payment of monies due from the city to any vendor, contractor, consultant or other person having unpaid or delinquent tax or license liabilities until such unpaid license tax, including applicable penalties, shall first have been settled and adjusted. The director of finance shall notify the taxpayer by certified mail with return receipt requested, sent to the taxpayer's last known address, of the director's intention to make such levy, the effect of which shall be continuous from the date such levy is first made until the liability out of which such levy arose is satisfied.

(Ord. No. 97-183, art. II, § 15, 12-23-1997; Ord. No. 07-233, art. II, § 15, 12-18-2007)

Sec. 3A-1-123. Purchaser to withhold taxes due from purchase money or be liable.

If any person liable for an amount of license tax herein levied or required to be paid to the city shall sell out his or her business or stock of goods or shall quit the business, he or she shall make a final license return reflecting any taxes due, as provided under article E of this chapter, and shall make payment of any license taxes due within 30 days after the date of selling or quitting business. His or her successor, successors or assigns, if any, shall be required to withhold sufficient of the purchase money to cover the amount of such license taxes herein required to be paid to the city or penalties due and unpaid until such time as the former owner shall produce a receipt from the department showing that they have been paid, or a certificate stating that no amount is due. If the purchaser of a business or stock of goods shall fail

to withhold purchase money as provided herein, and the license taxes remain due and unpaid after said 30-day period, he or she shall be personally liable for the payment of the amount of license taxes herein levied, and required to be paid to the city by the former owner, and penalties accrued and unpaid by any former owner, owners or assignors. If in such cases the department deems it necessary in order to collect the license taxes due the city, it may make a jeopardy assessment as provided in title 40, chapter 29 of the Code of Alabama 1975.
(Ord. No. 97-183, art. II, § 16, 12-23-1997; Ord. No. 07-233, art. II, § 16, 12-18-2007)

Sec. 3A-1-124. Disposition of funds derived from license taxes.

All monies derived from license taxes levied under the provisions of this chapter shall be paid to the city and placed to the credit of the general fund of the city, and shall be used and expended as authorized by law and ordinance.
(Ord. No. 97-183, art. II, § 17, 12-23-1997; Ord. No. 98-106, § 1, 6-30-1998; Ord. No. 07-233, art. II, § 17, 12-18-2007)

Sec. 3A-1-125. Inspection of public warehouse authorized.

(a) *Duty of director of finance.* It shall be the right and duty of the director of finance to inspect from time to time, during reasonable business hours, all records, books and other papers or documents, as well as the merchandise itself that is placed or stored in public warehouses in the city as well as all other places where merchandise is stored for or by some person, firm or corporation other than the owner or operator of the place where said merchandise is stored. The information obtained from such inspection and investigation shall be used as an aid in determining the proper classification of the owner of said merchandise for license taxation and for fixing the amount of such license tax.

(b) *Unlawful to obstruct director of finance in the performance of his or her duty.* It shall be unlawful for any person, firm or corporation to impede, hinder or obstruct the director of finance in the reasonable performance of his or her duty.
(Ord. No. 97-183, art. II, § 20, 12-23-1997; Ord. No. 07-233, art. II, § 20, 12-18-2007)

Sec. 3A-1-126. Annualization of business license; computing license based on number of workers.

(a) *Annualization of business license.* Where the amount of license is based upon the volume of receipts, sales, inventory, fixtures, rolling stock, etc., in the absence of any other specific provision therefor, the sales and receipts referred to are those of such business for the license year next preceding the current license year; provided, however, that if said business did not operate the entire next preceding year, then the license tax shall be based upon that amount which bears the same relationship to the actual amount of sales or receipts during such preceding year as the entire year bears to such time which said business was operated during such preceding year; and provided further, that if the operation of such business did not commence until after the first day of the calendar year, the operator therefor shall pay at the end of 90 days after operation started, or December 31 of the current year, whichever occurs first, an amount computed on a basis similar to that set out above.

(1) If the taxpayer employs a fiscal year for federal and state income tax purposes, the taxpayer's gross receipts may be determined, at the option of the taxpayer, from the federal income tax return of the taxpayer for the fiscal year next preceding the current license year, provided that the gross receipts reported thereon reasonably reflect the financial condition of the taxpayer as of the December 31 next preceding the current license year, and the taxpayer so notifies the city either prior to or simultaneously with the first business license remittance form using fiscal year data. The taxpayer's use of fiscal year data, as provided above, shall constitute an irrevocable election to use fiscal year data with respect to the current and subsequent business license years unless the

governing body of the city or its director of finance or other chief revenue officer or his or her designee consents otherwise.

(2) Said gross receipts shall be sworn or attested to by the taxpayer in an affidavit form to be provided by the department. Discontinuance of the business during any year subject to annualization of the gross receipts does not excuse the payment of any license fees or taxes determined to be due pursuant to the execution of the affidavit; provided, the department may initiate a civil action to recover any license taxes, applicable penalties, and administrative costs incurred in connection therewith, including filing fees, in any court of competent jurisdiction, which remedy shall be in addition to any and all other remedies which may be provided.

(b) *Computing license based on number of workers.* Where the amount of license is based upon the number of employees working in the business during the year next preceding the current license year and the operation of such business did not commence until the first day of such current year or thereafter, then the license tax for such business for such current year shall be due and payable at the end of 90 days after operation started or on December 31 of the current year, whichever date occurs first, in an amount computed upon the number of employees employed during such period as if such number of employees were to be employed throughout such year and at the end of such year the amount of license tax due therefor shall be adjusted in accordance with the number of employees actually employed during such year; provided, however, there shall be excluded from said number of employees employed in such business all part-time student employees who are regularly enrolled in a formal school or general educational institution devoted primarily to the education of its enrollees.
(Ord. No. 97-183, art. II, § 21, 12-23-1997; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 07-233, art. II, § 21, 12-18-2007)

Sec. 3A-1-127. Simplification provision.

(a) *Gross receipts simplification provision.* If a license due under this chapter is payable in whole or in part on the basis of gross receipts or gross sales, and 35 percent or more of such receipts or sales are derived from a source for which there is a single schedule in this chapter, the licensee may compute its license by applying to all gross receipts or gross sales the rate established in the schedule applicable to the 35 percent or more of said receipts or sales, except that this subsection shall not be applied in connection with the below-named schedules for which a separate license must be purchased.

(b) *Exception.* Simplification provision does not apply to the following schedules:

Schedule No.	*Description*
004	Advertising vehicle
007B	Agents, dealers, holding companies, maintaining an office
020	Automobile storing or parking
024	Automobile, drive-it-yourself cars, trucks and trailers
026	Aviation schools
032	Barbershop
038	Bootblacking
041	Bowling alleys and/or shuffleboards
067	Contractors, excavators, pavers, viaduct, underpass, sewer builders or concrete work
068	Contractors
069	Contractors
070	Contractors, house movers and/or house wreckers

Schedule No.	*Description*
071	Contractors, house painters, roofers, sign painters, cardwriting, decorations, plasterers, paper hangers, lathers, cabinet or carpenter shop, automobile painting, building siding and/or building insulation
084A	Division I, dancing
084B	Division II, dancing
084C	Division III, dancing
084D	Division IV, dancing-dancer, entertainer, model performer or exhibitionist
087A	Detective agency
092	Distribution warehouse, wholesale
096	Electricians
100	Fire, smoke or water damage sale, distressed merchandise sale, bankrupt sale, or going out of business sale
115	Gas companies, transportation of natural gas
120	Gold and silver
124	Hairdressers or beauty parlors
125	Hat cleaning
134	Infirmaries, sanitariums and/or sanatoriums
136	Insurance companies
137	Insurance companies, fire or marine
138A	Insurance agents
138B	Insurance adjusters
138C	Insurance agents (automobile rental only)
141	Jitneys
142	Junk brokers and/or scrap metal brokers
145	Junkyards, junk dealers and/or scrap metal dealers
150	Alcoholic beverages, liquor, beer and wine
166	Messenger service
170A	Motor vehicles-carrying goods, freight or other material for hire or reward
170B	Wreckers
179	Novelties
180	Oils, wholesale
182	Oils
192	Peddlers
193	Peddlers
194	Peddlers on foot
195	Peddlers
196	Pet shops
197	Photographers
201	Plumbing, gasfitters
202	Pool or billiard tables
213A	Real estate agent and/or brokers
213B	Real estate lease or rental; self storage
213C	Real estate management
215	Repair shop
238	Tobacco and snuff
239	Tobacco and snuff, wholesale
242	Tree pruning and tree surgery

Schedule No.	*Description*
245	Vending machines and/or coin-operated machines, not to include tables on which the game of pool or billiards may be played or coin-operated film machines
248	Wagon, carriage or automobile body builders
251	Watchmaker and repair
255	Janitorial service
259	Commercial and industrial finance

(Ord. No. 97-183, art. II, § 22, 12-23-1997; Ord. No. 98-106, § 1, 6-30-1998; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 07-233, art. II, § 22, 12-18-2007; Ord. No. 08-241, art. II, § 22, 12-22-2008)

Sec. 3A-1-128. Levy of license fee in police jurisdiction authorized.

Each person, firm, company, association or corporation engaging in or carrying on any business, vocation, occupation or profession hereinabove enumerated outside the corporate limits of the city but within the police jurisdiction thereof, shall take out a license and pay therefor an amount equal to one-half the amount of license tax to which he, she or it would be subject were such business, vocation, occupation or profession engaged in or carried on within the corporate limits of the city. All such persons, firms, companies, associations and corporations shall be subject to all the license tax laws of the city applicable within the corporate limits thereof except as in this section otherwise provided.
(Ord. No. 97-183, art. II, § 24, 12-23-1997; Ord. No. 07-233, art. II, § 23, 12-18-2007)

Sec. 3A-1-129. License may be changed, altered, increased, or revoked by the city council.

The adoption of this schedule of licenses shall not abridge the right of the council of the city to change, alter, increase, decrease, or revoke for cause, any of the above licenses contained in appendix A to this Code at any time. And when any increase is made, unless the same is paid within 30 days, the license shall be revoked and no further business carried on thereunder; nor shall it abridge the right of the council of the city to require a license for any business, occupation, or profession not included in appendix A to this Code schedule of business licenses.
(Ord. No. 07-233, art. II, § 24(24.1), 12-18-2007; Ord. No. 08-241, art. II, § 24(24.1), 12-22-2008)

Sec. 3A-1-130. Director of finance may petition for revocation of license.

When the classification of such person and the amount of license tax due from him or her shall have been ascertained and fixed by the director of finance, he or she shall mail to such person a notice of his or her determination, and shall demand of such person immediate payment of the amount of tax ascertained to be due from him or her, less any amount such person may have theretofore paid upon the tax due from him or her. If the amount of tax demanded is not paid within ten days of the mailing of such demand, the director of finance shall notify such person by certified mail, with return receipt requested, to the taxpayer's last known address, that at a time and place specified in said notice, he or she will apply to the council of the city for revocation of such person's business license. At the time and place so specified, such person may appear before the city council in person and by counsel, one or both, and show cause, if any, why said business license should not be revoked. Upon any such hearing, and for all other purposes, the decision and determination of the department as to classification and amount of license tax due shall be deemed correct and final, unless and until it shall be satisfactorily shown that such decision and determination is incorrect.
(Ord. No. 07-233, art. II, § 24(24.2), 12-18-2007; Ord. No. 08-241, art. II, § 24(24.2), 12-22-2008)

Sec. 3A-1-131. Revocation of license for violations of the law.

Any lawful license issued to any person, firm or corporation to conduct any business shall be subject to revocation by the council of the city for the violation by the licensee, his or her agent, servant, or employee, of any provision of this chapter or of any ordinance of the city, or any statute of the state, relating to the business for which such license is issued; and shall also be subject to revocation by the city council if the licensee, his or her agent, servant, or employee under color of such license violates or aids or abets in violating or knowingly permits or suffers to be violated any penal ordinance of the city or any criminal law of the state; and shall also be subject to revocation by the council of the city if, in connection with the issuance or renewal of any license, the licensee or his or her agent filed or caused to be filed any application, affidavit, statement or other misleading statement or omission of a material fact; and shall also be subject to revocation if the licensee, his or her agent, servant, or employee is found to be operating the business for which such license is issued in such a manner as to be detrimental to the public health, safety or welfare or so as to constitute a nuisance.
(Ord. No. 07-233, art. II, § 24(24.3), 12-18-2007; Ord. No. 08-241, art. II , § 24(24.3), 12-22-2008)

Sec. 3A-1-132. Grounds for refusal to renew a license.

The conditions hereinabove set forth as grounds for the revocation of a license shall also constitute grounds for the city council to refuse the renewal of a license.
(Ord. No. 07-233, art. II, § 24(24.4), 12-18-2007; Ord. No. 08-241, art. II, § 24(24.4), 12-22-2008)

Sec. 3A-1-133. Hearing on revocation of license.

(a) The council may consider the matter of revoking or refusing to renew any license of any business licensee on its own initiative or upon the written complaint of one or more persons alleging the grounds and the factual basis for such revocation or refusal.

(b) The council shall set a time for hearing on the matter of revoking or refusing to renew a license; and a notice of such hearing shall be given to the licensee, or the applicant for renewal, as the case may be, or an agent or officer thereof, by the city clerk at least ten days before the day set for said hearing. Said notice shall require such licensee or applicant to appear before the council at a time and place specified in the notice for the purpose of showing cause, if any, why the license of such licensee should not be revoked or refused for renewal. The notice shall specify the grounds upon which such revocation or refusal is proposed.

(c) At the hearing, the council of the city shall hear all evidence offered by any party and all evidence that may be presented bearing upon the question of revocation or the refusal of renewal, as the case may be. The licensee or applicant shall have the right to introduce witnesses and evidence in his or her behalf. The council shall hear all witnesses and evidence in support of the revocation or refusal of such license.

(d) If, after the hearing, a majority of the council shall be of the opinion that such licensee is operating or has within six months operated such business in an illegal manner or in such a manner as to be detrimental to public health, safety or welfare or as to constitute a nuisance, or that the licensee or his or her agent has filed or caused to be filed any application, affidavit, statement or other misleading statement or omission of a material fact in connection with the issuance or renewal of said license, the council shall, by resolution, forthwith revoke the license of such licensee or refuse the renewal of said license. No refund of any license fee shall be made if the license is revoked.

(e) If, after receiving written notice of such hearing, the licensee or a duly authorized representative thereof shall fail to appear before the council at the time and place fixed for the hearing or to which the hearing has been continued, the council shall hear and consider evidence in support of the proposed revocation and shall have the right to take the action authorized in subsection (d) of this section.

(f) Whenever the council shall revoke any license under this chapter, no such license so revoked shall be again issued to such licensee or to anyone for such licensee until after the expiration of six months from the date of such revocation.

(g) Notice of such final action shall be given to the licensee by the city clerk. Posting of such in the United States mail addressed to the address on file in the department of finance shall constitute completed action on the part of the city in regards to delivery of such final action to the licensee.

(h) It shall be unlawful for any person to do business within the city when the license for such has been revoked or suspended as prescribed in this article.
(Ord. No. 97-183, art. II, § 24, 12-23-1997; Ord. No. 07-233, art. II, § 24, 12-18-2007; Ord. No. 08-241, art. II, § 24(24.5), 12-22-2008)

Sec. 3A-1-134. Leased departments.

Each person, firm or corporation operating what is commonly known as leased departments in department stores, shall pay a license on each department so leased, according to a proper classification of the business so conducted, applying the provisions, schedules, conditions, and terms outlined in this chapter.
(Ord. No. 97-183, art. II, § 25, 12-23-1997; Ord. No. 07-233, art. II, § 25, 12-18-2007)

Sec. 3A-1-135. Provision for proration of license tax-new businesses.

(a) *Proration of license tax authorized; commencement of business after July 1 of the calendar year.* In the case the license of any business, trade, occupation or profession is based on a flat rate and is taken out after July 1, only one-half of the license shall be charged and collected, except for those for which daily, weekly, monthly, quarterly or semiannual licenses are provided by law.

(b) *No proration of license tax resulting from abandonment or discontinuance of business.* The amount of proration of the license due hereunder by anyone upon commencing business, shall not be affected or decreased by the subsequent abandonment or discontinuance of such business.

(c) *No proration of license where herein otherwise provided.* There shall be no proration of any license due except as otherwise provided in this chapter.
(Ord. No. 97-183, art. II, § 26, 12-23-1997; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 02-173, § 1, 12-10-2002; Ord. No. 07-233, art. II, § 26, 12-18-2007)

Sec. 3A-1-136. Transfer of license.

(a) *No transfer of license allowed except by consent of director of finance; only one transfer permitted in any event.* When the ownership of a business or privilege for which a license is issued is, under actual sale, transferred in its entirety to a new owner, or owners, a transfer of license may be effected by and through the application process outlined in article B of this chapter, subject to the provisions of this section as well as those of this chapter in the case of alcoholic beverage licenses. No license issued under the schedule of business licenses set forth in appendix A to this Code shall be transferred except by the consent of the director of finance of the city, or the city council including in the case of alcoholic beverage licenses, and no transfer shall be valid until same has been endorsed across the face of the license receipt by the director of finance, and no license shall be transferred to reflect a physical change of address of the taxpayer within the city, in any event, more than once during a license year and never from one taxpayer to another; provided that a mere change in the name or ownership of a taxpayer that is a corporation, partnership, limited liability company or other form of legal entity now or hereafter recognized by the laws of the state shall not constitute a transfer for purposes of this chapter, unless:

(1) The change requires the taxpayer to obtain a new federal employer identification number or department of revenue taxpayer identification number; or

(2) In the discretion of the department, the subject license is one for the sale of alcoholic beverages.

Nothing in this section shall prohibit the department from requiring a new business license application and approval for an alcoholic beverage license.

(b) *Application for transfer of license; location to location.* Any person to whom a business license has been issued to transact or carry on some business, calling, trade or profession at a definite location in the city may make application for the transfer of such person's business license for the same business, calling, trade or profession, as is therein mentioned, at some other definite location in the city by such person, by filing said application with the director of finance for review. No transfer of license from one location in the city to another location in the city will be granted without the consent of the director of finance or the city council, in the case of liquor establishments.

(c) *New location must have zoning approval.* Before authorization can be granted to transfer a business license from one definite location in the city to another definite location in the city, the application must be submitted to and approved by the city department of planning, engineering and permits, pursuant to the requirements of Ordinance No. 90-130, as amended (see appendix D to this Code).

(d) *Transfer of license; person to person, same physical location.* No license granted or issued under any of the provisions of this chapter shall be in any manner assignable, transferable or authorize any person other than the person named therein as the licensee to operate the business, where specifically prohibited by this chapter. A

license shall never be transferred from one taxpayer to another. Provided that a mere change in the name or ownership of a taxpayer that is a corporation, partnership, limited liability company or other form of legal entity now or hereafter recognized by the laws of the state shall not constitute a transfer for purposes of this chapter, unless:

(1) The change requires the taxpayer to obtain a new federal employer identification number or department of revenue taxpayer identification number; or

(2) In the discretion of the municipality, the subject license is one for the sale of alcoholic beverages.

Nothing in this section shall prohibit the department from requiring a new business license application and approvals for an alcoholic beverage license.

(e) *Transfer license; change of ownership; responsibilities for unpaid taxes.* No license granted or issued under any provision of this chapter may be transferred in any manner until any and all license tax returns have been filed and any license taxes due and payable by the former owner have been paid as provided in section 3A-1-123.
(Ord. No. 97-183, art. II, § 27, 12-23-1997; Ord. No. 02-173, § 1, 12-10-2002; Ord. No. 07-233, art. II, § 27, 12-18-2007)

Sec. 3A-1-137. Salaried professional employees.

When any person claims any concession on any kind of professional license provided for in this chapter because of such person being either the employer or the employee, such person shall not be exempt from payment of the license provided in this chapter, until both the employer and the employee have furnished to the director of finance, sworn affidavits or other evidence satisfactory to the director, setting out all the facts and conditions in regard to the employment with such facts and conditions being as would ordinarily substantiate the employment claim.
(Ord. No. 97-183, art. II, § 28, 12-23-1997; Ord. No. 07-233, art. II, § 28, 12-18-2007)

Sec. 3A-1-138. Place of business to be designated; zoning approval required for business location; home occupation/home office; restrictions.

(a) *Place of business to be designated; separate license required for each location.* Pursuant to Code of Ala. 1975, § 11-51-94, any person desiring to engage in any trade, business, or occupation, for which a license is required and for which a fixed place of business is required shall designate the place at which said trade or business or occupation is to be carried on, and the license to be issued thereunder, shall designate such place and such license shall authorize the carrying on of such trade, business or occupation only at such place. For each place at which said trade, business or occupation is carried on, a separate license fee and tax shall be paid.

(b) *Business location address must have zoning approval.* Each designated business location must be approved by the city department of planning, engineering and permits, pursuant to the requirements of Ordinance No. 90-130, as amended.

(c) *Home occupation / home office; restrictions.* Each applicant for a business license for a home occupation/home office location must obtain zoning approval and execute a home occupation certificate of agreement through the city department of planning, engineering, and permits. A copy of the properly executed agreement must be presented to the revenue division at the time of making application for licensing.

(1) For purposes of this section, a home occupation/home office is defined as an occupation or activity which is clearly incidental to the use of the premises for dwelling purposes and which is carried on by a member of a family residing on the premises.

(2) This use must be located within a main building or in a properly located accessory building. No equipment that is not normally used in connection with a residence may be used in conjunction with this use

(provided that equipment such as home computers, filing cabinets, desk and desk chair are allowed).

(3) No person, other than a family member residing on the premises, may be employed or perform any duties associated with the home occupation/home office. Customers, clients, or employees, are not permitted to come to the location of the home occupation/home office, and no display or storage of any materials, other than necessary office supplies limited to the use of the home occupation/home office, may be kept, placed, housed, or stored, at any time, at this location.

(4) There shall be no advertising other than an identification sign of not more than one square foot in area which is neither illuminated nor animated. There shall be no exterior identification of the home occupation/home office, nor shall the use of the property for a home occupation/home office cause the property to distract from the residential character of the premises.

(5) A home occupation/home office shall not include beauty parlors, barbershops, or doctors' or dentists' offices for the treatment of patients, or any other business activity otherwise prohibited in a residential zoning area.

(Ord. No. 97-183, art. II, § 29, 12-23-1997; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 07-233, art. II, § 29, 12-18-2007)

Sec. 3A-1-139. Each business, vocation, calling, or profession demands separate license.

(a) Any person, firm or corporation dealing or engaging in two or more of the businesses, vocations, callings or professions enumerated in appendix A to this Code, and for which a license is required of each, such person shall pay for and take out a license for:

(1) Each line of business, vocation, calling or profession; and

(2) Each separate place or location of business.

(b) License shall be location specific.

(1) For each place at which any business is carried on, a separate license shall be paid, and any person desiring to engage in any business for which a license is required shall designate the place at which business is carried on, and the license to be issued shall designate such place, and such license shall authorize the carrying on of such business only at the place designated.

(2) Every person dealing in two or more of the articles, or engaging in two or more of the businesses, vocations, occupations or professions scheduled herein, shall take out and pay for a license for each line of business.

(3) A taxpayer subject to the license authorized by this chapter that is engaged in business in more than one municipality, shall be permitted to account for its gross receipts so that the part of its gross receipts attributable to one or more branch offices will not be subject to the business license tax imposed on the principal business office required to obtain a business license. Branch office gross receipts are those receipts that are the result of business conducted at or from a qualifying branch office. In order to establish the existence of a qualifying branch office, the taxpayer shall meet all the following criteria:

a. The taxpayer must demonstrate the continuing existence of an actual physical facility located outside the city in which its principal business office is located, such as a retail store, outlet, business office, showroom, or warehouse, to which employees and/or independent contractors are assigned or located during regular normal working hours.

b. The taxpayer must maintain books and records, which reasonably indicate a segregation or allocation of the taxpayer's gross receipts to the particular facilities.

c. The taxpayer must provide proof that separate telephone listings, signs, and other indications of its separate activity are in existence.

d. Billing and/or collection activities relating to the business conducted at the branch offices are performed by an employee or other representative, of the taxpayer who has such responsibility for the branch office, whether or not the representative is physically located at the branch office.

e. All business claimed by a branch office must be conducted by and through said office.

f. The taxpayer must supply proof that all applicable business licenses with respect to the branch offices have been issued.

(4) Nothing herein shall be construed as exempting businesses from payment of a license on the basis of a lack of physical location.

(Ord. No. 97-183, art. II, § 30, 12-23-1997; Ord. No. 07-233, art. II, § 30, 12-18-2007)

Sec. 3A-1-140. Legal tender.

All business license taxes or deposits due hereunder shall be paid in advance, in lawful money of the United States, or by check, draft or other instrument in the discretion of the department.
(Ord. No. 97-183, art. II, § 31, 12-23-1997; Ord. No. 07-233, art. II, § 31, 12-18-2007)

Sec. 3A-1-141. Payment by check.

Wherever a license or license receipt shall be issued in return for any check, the same shall not be valid or of any force or effect unless such check shall be duly paid upon first presentation to the drawee.
(Ord. No. 97-183, art. II, § 31, 12-23-1997; Ord. No. 07-233, art. II, § 31, 12-18-2007)

Sec. 3A-1-142. Dishonored instrument.

Payment of license taxes following a dishonor of such instrument upon presentation for payment shall, thereafter, be made only by cashier's check, money order, or cash, which fee shall include any applicable penalty, as well as a service charge as set forth within the city's current fee resolution. The remedy of such dishonored instrument shall be in a manner prescribed by the director of finance.
(Ord. No. 97-183, art. II, § 31, 12-23-1997; Ord. No. 07-233, art. II, § 31, 12-18-2007)

Sec. 3A-1-143. License to be exhibited.

Each license shall be posted in a conspicuous place, where such business, trade or occupation is carried on, and the holder of such license shall immediately show such license to the department's designated agent, or to any police officer of the city upon being so requested by such agent or officer.
(Ord. No. 97-183, art. II, § 32, 12-23-1997; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 07-233, art. II, § 32, 12-18-2007)

Sec. 3A-1-144. Unlawful to fail to exhibit, display or post license.

It shall be unlawful for any person operating a business to fail to exhibit, display, or post such license in a conspicuous place, or to fail to immediately show such license to the department's designated agent, or to any police officer of the city upon being so requested by such agent or officer. Each refusal of such a request to show such license shall constitute an offense, and each subsequent refusal of such request to show such license on any day thereafter shall constitute a separate offense.
(Ord. No. 97-183, art. II, § 32, 12-23-1997; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 07-233, art. II, § 32, 12-18-2007)

Sec. 3A-1-145. Affixing license decals/stickers.

Whenever a license is issued for the use or operation of any vehicle there shall be delivered to the licensee, free of charge, a decal, or sticker showing the business, the license year, the words "Birmingham, Alabama," and a serial number to be attached to such vehicle or machine, and it shall be the duty of such licensee to attach and to keep securely attached such decal or sticker to

such vehicle or machine in a conspicuous place. It shall be unlawful for any person to use or operate such vehicle or machine not having such decal or sticker attached thereto.
(Ord. No. 97-183, art. II, § 32, 12-23-1997; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 07-233, art. II, § 32, 12-18-2007)

Sec. 3A-1-146. Altering, tampering with, or changing license.

Whenever a license, an identifying decal or sticker has been issued for a business location, vehicle, device, machine, or other piece of equipment pursuant to this chapter, it shall be unlawful for any person to tamper with, to change, or to alter any such decal, sticker or license.
(Ord. No. 97-183, art. II, § 32, 12-23-1997; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 07-233, art. II, § 32, 12-18-2007)

Sec. 3A-1-147. No undue burden imposed upon interstate commerce.

No provision of this chapter shall be applied:

(1) So as to impose any unlawful tax or unlawful burden on interstate commerce or on activity of the state or federal governments; or

(2) In any manner which contradicts or is inconsistent with or violates any provision of the United States or state constitutions.

(Ord. No. 97-183, art. II, § 33, 12-23-1997; Ord. No. 07-233, art. II, § 33, 12-18-2007)

Sec. 3A-1-148. Sworn statement to be furnished.

Any person acting as a licensed general contractor, whether building for his or her own occupancy or not, shall furnish to the director of finance in writing, within 15 days of request therefor, a full, true, and complete written statement, signed by such person, under penalty of perjury, listing any and all subcontractors who have performed or shall perform any work or service, whatsoever for said general contractor in the city.
(Ord. No. 97-183, art. II, § 35.1, 12-23-1997; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 07-233, art. II, § 35, 12-18-2007)

Sec. 3A-1-149. Contractors affected.

Any builder-owner, general engineering contractor, specialty contractor or subcontractor, subcontracting any work shall be deemed a general contractor for the purpose of this section, section 3A-1-148 and sections 3A-1-150 and 3A-1-151.
(Ord. No. 97-183, art. II, § 35.2, 12-23-1997; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 07-233, art. II, § 35, 12-18-2007)

Sec. 3A-1-150. Contents of general contractor's statement.

Said statement shall include the name, address, telephone number, contract amount, city taxpayer identification number and specialty classification of each contractor, subcontractor or other person required to be licensed.
(Ord. No. 97-183, art. II, § 35.3, 12-23-1997; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 07-233, art. II, § 35, 12-18-2007)

Sec. 3A-1-151. Unlawful to fail to provide contractor's statement.

It shall be unlawful for any contractor to fail to provide the general contractor's statement as required by this section. Violations of the provisions of this section are punishable pursuant to section 1-1-6, as amended and as it may be amended.
(Ord. No. 97-183, art. II, § 35.4, 12-23-1997; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 07-233, art. II, § 35, 12-18-2007)

Sec. 3A-1-152. License tax a debt.

Every license fee, tax, or assessment, levied by the provisions of this chapter and all penalties levied or assessed thereon by this chapter for failure to pay the same within the time required constitute a debt to the city.
(Ord. No. 97-183, art. II, § 36, 12-23-1997; Ord. No. 07-233, art. II, § 36, 12-18-2007)

Sec. 3A-1-153. Recovery; civil action.

The department may initiate and/or maintain a civil action to recover delinquent license taxes, penalties, and administrative costs incurred in connection therewith, including filing fees, in any court of competent jurisdiction, which remedy shall be in addition to any and all other remedies which may be provided.
(Ord. No. 97-183, art. II, § 36, 12-23-1997; Ord. No. 07-233, art. II, § 36, 12-18-2007)

Sec. 3A-1-154. Business operation may be enjoined.

Pursuant to Code of Ala. 1975, § 11-51-150, the department may file in the circuit court of Jefferson County, a petition to enjoin the operation and conduct of any business, occupation, trade or profession subject to a privilege license or business license or excise tax imposed by the city and which is delinquent in whole or in part, following no less than 15 days' written notice and demand to the taxpayer delivered personally or via certified U.S. mail, return receipt requested, and addressed to the taxpayer's last known address as indicated on the records of the municipality. Said petition shall be verified by the director of finance.

Sec. 3A-1-155. Method of procedure for injunction proceeding.

Code of Ala. 1975, §§ 11-51-151 through 11-51-160, prescribe the method of procedure in any injunction proceeding provided for in Code of Ala. 1975, § 11-51-150.
(Ord. No. 97-183, art. II, § 37, 12-23-1997; Ord. No. 07-233, art. II, § 37, 12-18-2007)

Sec. 3A-1-156. Liens generally.

(a) Pursuant to Code of Ala. 1975, §§ 40-29-20 et seq., and/or 11-51-96, the provisions of this section shall apply to privilege or license taxes and/or any penalty payable thereon, levied under this chapter, and such license taxes and penalties shall be a lien in favor of the city as set forth in subsection (b) of this section.

(b) If any person liable to pay any tax, other than ad valorem tax, neglects or refuses to pay the same, the amount (including any interest, additional amount, addition to tax, or assessable penalty together with filing fees and any costs that may accrue in addition thereto) shall be a lien in favor of the city upon all property and rights to property, whether real or personal, tangible or intangible, belonging to such person which is used in any exhibition, trade, business, vocation, occupation, or profession, for which a license is or may be required. The effective period of the lien shall arise at the time of the assessment, return therefor or the payment thereof, whichever is prior, was due to have been filed with or made to the city, and shall continue until the liability for the amount so assessed (or a judgment against the taxpayer arising out of such liability) is satisfied or becomes unenforceable by reason of lapse of time. The lien shall be superior to all other liens, except the lien of the state, county and municipal corporations for taxes, and the lien of the state and county for license. Such lien may be enforced by attachment.

Sec. 3A-1-157. Notice of lien.

The department shall give a 30-day notice of intent to file lien to the taxpayer by any one of the following methods:

(1) Given to the person;

(2) Left at the dwelling or usual place of business of such person; or

(3) Sent by certified mail with return receipt requested to the taxpayer's last known address.

Sec. 3A-1-158. Release of lien.

If the taxpayer shall file with the department a bond in double the amount of the lien filed, with surety or sureties to be either a surety company authorized to do business in the state or such individual property owners, not less than three in number, as recommended by the judge of probate of the county in which the notice of lien is recorded, conditioned to pay all such tax, interest penalty, additional amount or addition to such tax, together with any costs which may occur in addition thereto as may be assessed against the taxpayer, principal in said bond, the director of finance shall withdraw and release said lien filed under the provisions of this section, and upon a

determination that the said taxpayer owes any of said taxes to the city, the assessment (judgment) therefor shall be entered against said taxpayer and the surety or sureties on said bond; and, if not paid within 30 days from the date of said final assessment (judgment), then execution shall issue therefor against said principal and the surety or sureties on said bond. If the bond hereinabove provided for is not given and approved by the director of finance, and final assessment (judgment) is entered against said taxpayer and he or she duly and legally appeals therefrom within the time and in the manner provided for by this chapter, and if the court approves the bond required for an appeal or the said taxpayer against whom the assessment was entered by the department shall, within 30 days from the date of the assessment, pay the amount thereof to the city, then, in either of said events, the director of finance shall cancel or release from record said lien.
(Ord. No. 97-183, art. II, § 38, 12-23-1997; Ord. No. 07-233, art. II, § 38, 12-18-2007)

Sec. 3A-1-159. Collection after assessment.

The tax herein levied may be collected by levy as provided in Code of Ala. 1975, § 40-29-51, as follows:

(1) *Length of period.* Where the assessment of any license tax imposed by this chapter has been begun or made within the period of limitation properly applicable thereto, such license tax may be collected by levy or by a proceeding in court, but only if the levy is made or the proceeding begun:

a. Within the period allowed by law after the final assessment of the tax; or

b. Prior to the expiration of any period for collection agreed upon in writing by the director of finance and the taxpayer before the expiration of the period allowed by law (or, if there is a release of levy under Code of Ala. 1975, § 40-29-34, after such period allowed by law, then before such release).

The period so agreed upon may be extended by subsequent agreements in writing made before the expiration of the period previously agreed upon. The period allowed by law as provided in this subsection during which a license tax may be collected by levy shall not be extended or curtailed by reason of a judgment against the taxpayer.

(2) *Date when levy is considered made.* The date on which a levy on property or rights to property is made shall be the date on which the notice of seizure provided in Code of Ala. 1975, § 40-29-26, is given.

(Ord. No. 97-183, art. II, § 39, 12-23-1997; Ord. No. 07-233, art. II, § 39, 12-18-2007)

Sec. 3A-1-160. Businesses located in annexed areas; affidavits of capital employed.

Pursuant to Code of Ala. 1975, § 11-42-57, all territory brought within the corporate limits of the city and having a situs within such territory shall be exempt from such city taxation as fixed by a resolution. The department shall, in such cases, require sworn statements as to the amount of capital invested or value of goods or stocks or amounts of sales or receipts where the amount of the license is made to depend upon the amount of capital invested or value of goods or stocks or amount of sales or receipts, as provided in Code of Ala. 1975, § 11-51-90(a)(3). It shall be unlawful for any person, firm, or corporation to fail or refuse to furnish sworn statements required by this section or to give false statements in relation thereto. Each occurrence of such failure or refusal shall constitute a separate offense.
(Ord. No. 97-183, art. II, § 40, 12-23-1997; Ord. No. 07-233, art. II, § 40, 12-18-2007)

Sec. 3A-1-161. Remedies cumulative.

The conviction and fine or imprisonment of any person, taxpayer or agent of a person or taxpayer for engaging in any business without first obtaining a license to conduct such business shall not relieve such person from paying the business license tax to conduct such business, nor shall the payment of any business license tax prevent a civil action or criminal prosecution for the viola-

tion of any of the provisions of this chapter. All remedies prescribed hereunder shall be cumulative and the use of one or more remedies by the department shall not bar the use of any other remedy for the purpose of enforcing the provisions hereof. (See section 3A-1-164(f).)
(Ord. No. 97-183, art. II, § 41, 12-23-1997; Ord. No. 07-233, art. II, § 41, 12-18-2007)

Sec. 3A-1-162. Effect of this chapter on past actions and obligations.

Unless otherwise specifically or by necessary implication provided herein, neither the adoption of the ordinance from which this chapter is derived nor its superseding of any portion of any other ordinance of the city shall in any manner be construed to affect prosecution for a violation committed on any other ordinance prior to the adoption of the ordinance from which this chapter is derived, nor be construed to affect the validity of any bond or cash deposit required by any ordinance to be posted, filed, or deposited, and all rights and obligations thereunto appertaining shall continue in full force and effect for the term prescribed therein.
(Ord. No. 97-183, art. II, § 42, 12-23-1997; Ord. No. 07-233, art. II, § 42, 12-18-2007)

Sec. 3A-1-163. Violator may be restrained from continuing in business.

Any taxpayer who shall violate any of the provisions of this chapter may be restrained from continuing in business, and proper prosecution shall be instituted in the name of the city until such person shall have complied with the provisions of this chapter.
(Ord. No. 97-183, art. II, § 43, 12-23-1997; Ord. No. 07-233, art. II, § 43, 12-18-2007)

Sec. 3A-1-164. Violations.

(a) *Failure to pay the license tax, make reports, keep or provide records.* Any person subject to the provisions of this chapter, who shall fail to pay the license tax, make the reports or any of them as herein required, or who shall fail to keep or provide records, or supply any information, as herein required, shall, as provided in Code of Ala. 1975, § 40-29-112, be guilty of a misdemeanor and upon conviction shall be fined not less than $50.00, nor more than $500.00 for each offense, and, in addition, may be imprisoned for a period not to exceed six months, or by both such fine and imprisonment. Each occurrence of such failure shall constitute a separate offense.

(b) *Willful refusal to make reports, or permit examination of records.* Any person subject to the provisions of this chapter willfully failing or refusing to make the reports, furnish any supplemental returns or other data herein required, or who shall refuse to permit the examination of his or her records by the department, shall be guilty of a misdemeanor, and upon conviction shall be fined not less than $50.00 nor more than $500.00 for each offense, and in addition may be imprisoned for a period not to exceed to six months or by both such fine and imprisonment. Each occurrence of a failure to make such reports shall constitute a separate offense, and each refusal of a written demand by the department to examine, inspect or audit such records shall constitute a separate offense.

(c) *Violation of chapter.* Any person who shall fail, neglect or refuse to perform any duty imposed by this chapter, or other city ordinances, or any rule, regulation, or law thereof, or who shall fail or neglect to do or perform any act or series of acts as required by this chapter or other city ordinances shall, upon conviction, be punished by a fine not exceeding $500.00 for each offense, or by imprisonment for a period not exceeding six months, or by both such fine and imprisonment, pursuant to section 1-1-6, as amended and as it may be amended.

(d) *Enforcement.* The payment of any and all licenses due may be enforced immediately after the due date thereof. A violation of the provisions of this chapter constitutes a misdemeanor punishable as provided in Code of Ala. 1975, § 11-51-93, and section 1-1-6. Payment of a fine imposed in criminal proceedings pursuant to this section does not relieve a person of his or her liability for taxes imposed under this chapter, and the department may seek appropriate equitable relief from a court of competent jurisdiction to prevent or redress violations of this chapter.

(e) *Unlawful for taxpayers to fail or refuse to perform duties required by this license code.*

(1) It shall be unlawful for any license holder, to fail or refuse to perform any duty, herein imposed upon such license holder, or to obstruct or interfere with the director of finance, in obtaining information necessary or convenient for determination of the proper license classification of such license holder.

(2) It shall also be unlawful for any such person, or for any agent, servant or employee of such person, to fail or refuse to perform any duty herein imposed upon such person or obstruct or interfere with the director of finance, in carrying out the purpose of this chapter. Each occurrence of a failure or refusal to perform any duty herein imposed shall constitute a separate offense.

(f) *Penalty for violation; fine and/or imprisonment.*

(1) Any person, firm or corporation or agent of a firm or corporation engaging in any business or vocation for which a license is required, without first having procured a license therefor may upon conviction, be punished by a fine not to exceed $100.00 for each offense or by imprisonment not to exceed six months, or by both such fine and imprisonment, at the discretion of the court trying the same, and each occurrence shall constitute a separate offense (Code of Ala. 1975, § 11-51-93).

(2) Except as provided by subsection (f)(1) of this section, any person, firm or corporation violating any provision of this chapter shall, upon conviction, be punished within the limits of and as provided by section 1-1-6.

(Ord. No. 97-183, art. II, § 44, 12-23-1997; Ord. No. 07-233, art. II, § 44, 12-18-2007)

Sec. 3A-1-165. Statute of limitations.

The statute of limitations for action by the city for the recovery of all amounts due under this chapter is five years, pursuant to Code of Ala. 1975, § 6-2-35, except as provided in section 3A-1-91(c)(1).

(Ord. No. 97-183, art. II, § 45, 12-23-1997; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 07-233, art. II, § 45, 12-18-2007)

Sec. 3A-1-166. Request for ruling on determination of taxation.

Any taxpayer may request a ruling on the determination of whether amounts of gross sales, or gross receipts of the taxpayer's business are subject to the license tax, or are not to be used as a measure of the license taxes due and payable as levied by this chapter. Such requests shall be made in writing to the finance department, and shall contain all pertinent facts relating to the items in question.

(Ord. No. 97-183, art. II, § 46, 12-23-1997; Ord. No. 07-233, art. II, § 46, 12-18-2007)

CHAPTER 2. OCCUPATIONAL TAX*

ARTICLE A. GENERAL PROVISIONS

Sec. 3A-2-1. Definitions.

The following words, terms and phrases when used in this chapter, shall have the following meanings, except when the context clearly indicates a different meaning:

Department means the department of finance of the city, and includes the director of finance.

Director of finance or *director* means the director of finance of the city or his or her duly authorized agent.

"Employee" means and includes any person engaging in or following any "trade," "occupation" or "profession" within the meaning of that term as defined in this section.

Determination of status as employee means any person who does any kind of work or renders any kind of personal services subject

*__State law reference—__*Municipalities power to license, fix the mount of such licenses, and set the duration of same for any occupation not prohibited by state laws within their police jurisdiction, Code of Ala. 1975, § 11-51-90 et seq.

to control by an employer both as to what work or services shall be performed and as to how they shall be performed, where the relationship between the person performing the services and the person for whom such services are rendered is, as to those services, the legal relationship of employer and employee, shall be classified as an employee under this chapter. In determining whether a person is an employee or an independent contractor, the director of finance may utilize the definitions of the terms "employee" and "employer," as found in sections 3121(d)(1) and (2) and 3401(d) of the Internal Revenue Code of 1986, as amended from time to time and treasury regulation section 31.3401(c)-1 and shall consider the following factors, along with other relevant factors:

(1) Whether the person receiving the benefit of the service has the right to control the manner and method of performance;

(2) Whether the person rendering the service has a substantial investment in his or her own tools and/or equipment;

(3) Whether the person rendering the service undertook substantial costs to perform the services;

(4) Whether the person performing the service had an opportunity for profit dependent on his or her managerial skill;

(5) Whether the service rendered required special training and skill;

(6) The duration of the relationship between the parties;

(7) Whether the service performed is an integral part of the recipient's business rather than an ancillary portion;

(8) Whether the person rendering the service had a risk of loss;

(9) The relationship which the parties believed they created;

(10) Whether or not the person who performed the services offered these services publicly and practiced an independent trade;

(11) Whether the custom in the trade or industry was for the service to be performed on an independent contractor or employee basis;

(12) Whether the person who received the benefit of the service had the right to discharge without cause the person who performed the services;

(13) Whether the person who performed the services had the right to delegate his or her duty to others;

(14) Whether the person who performed the services had a current city business license to conduct business in the city.

Determination of status as independent contractor means a person who is subject to the control and direction of another as to the result of his or her work, and not as to means or methods, is an independent contractor.

Employer means and includes any person, business, firm, corporation, partnership, association, or any other kind of organization or profession, who or that employs any person in any trade, occupation or profession in the city within the meaning of that term as defined in this section.

Final assessment means the final notice of value, underpayment or nonpayment of any tax administered by the department.

Gross receipts and *compensation.*

(1) The terms "gross receipts" and "compensation" mean any payment granted or given an employee unless specifically excluded, and shall include, but not be limited to, the total of the following items which a person receives from or is entitled to receive from or be given credit for by his or her employer for any work done or personal services rendered in any trade,

occupation or profession, including any kind of deductions before take-home pay is received:

a. Cash compensation.
   1. Salary.
   2. Wages.
   3. Bonuses.
   4. Incentive pay.
   5. Overtime pay.
   6. Commissions.
   7. Severance pay.
   8. Reimbursements for expenses over amount actually incurred.

b. Non-cash compensation.
   1. Value of personal use of company-owned vehicle.
   2. Value of personal use of clubs.
   3. Cost of more than $50,000.00 group life insurance.
   4. Non-de-minimis awards in excess of $100.00.

The terms "gross receipts" and "compensation" also include the amount which an employee elects to defer pursuant to a salary reduction agreement under a retirement plan or deferral arrangement (including but not limited to 26 USC 401(k) or 403(b) plans, but not section 125 cafeteria plans).

(2) The terms "gross receipts" and "compensation" do not include the items as outlined in section 3A-2-3(a).

Licensee means and includes any person required to file a return or to pay a license fee under this chapter.

Notice of appeal means any written notice sufficient to identify the name of the taxpayer or other party appealing, the specific matter appealed from, the basis for that appeal, and the relief sought.

Person means any natural person. Whenever the term "person" is used in any clause prescribing and imposing a penalty in the nature of a fine or imprisonment, the term as applied to a partnership or other form of unincorporated enterprise, means the partners or members thereof, and as applied to corporations means the officers and directors thereof.

Petition for refund means a written request for a refund of tax previously paid, including in the form of an amended return. Unless otherwise provided by law, such request shall include sufficient information to identify the amount of tax overpaid, the taxpayer, the period included, the reasons for the refund and sufficient documentation as required by the director of finance.

Petition for review means a written document filed with the department in response to a preliminary assessment in which the taxpayer sets forth reasonably specific objections for the preliminary assessment.

Preliminary assessment means the preliminary notice of value or underpayment of any tax administered by the department.

Private auditing or collecting firm means any person in the business of collecting, through contract or otherwise, local occupational license fees for the city, or auditing any taxpayer, through the examination of books and records, for the city.

Reasonable cause includes, but not be limited to, those instances in which the taxpayer has acted in good faith. The burden of proving reasonable cause shall be on the taxpayer.

Return means any report, document, or other statement required to be filed with the department for the purpose of paying, reporting, or determining the proper amount of value or tax due.

Tax means any amount, including applicable penalty and interest, levied or assessed against a taxpayer and which the department is required or authorized to administer under the provisions of state law.

Taxpayer means any person subject to or liable for taxes herein levied; any person required to file a return with respect to, or to pay, or withhold and remit the tax herein levied or to report any information or value to the department; or its designee; or any person required to

obtain or holding any interest in any license issued by the department, or its designee, or any person that may be affected by any act or refusal to act by the department, or its designee, or to keep any records required by this chapter.

Taxpayer's authorized representative means any individual with written authority or power of attorney to represent a taxpayer before the department; provided, however, that nothing herein shall be construed as entitling any such individual who is not a licensed attorney to engage in the practice of law.

Taxpayers' Bill of Rights Pamphlet means a written pamphlet to be distributed by the department to all taxpayers whose books and records are being examined by the department, at or before the commencement of an examination, explaining in simple and nontechnical terms, the role of the department and the rights of the taxpayer whose books and records are being examined by the department during the examination and which shall be promptly revised from time to time to reflect any changes in the applicable law or rules.

Trade, occupation and *profession* means and includes the doing of any kind of work, the rendering of any kind of personal services, or the holding of any kind of position or job within the city, by any clerk, laborer, tradesman, manager, official, professional or other employee, including any nonresident of the city who is employed by any employer as defined in this section, where the relationship between the individual performing the services and the person for whom such services are rendered is, as to those services, the legal relationship of employer and employee, including also a partner of a firm or an officer of a firm or corporation, if such partner or officer receives a salary for his or her personal services rendered in the business of such firm or corporation, but they shall not mean or include domestic servants employed in private homes or businesses, professions or occupations for which a business license fee is required to be paid under the city's general license code. The term "trade, occupation and profession" also means and includes the holding of any kind of office or position, either by election or appointment, by any federal, state, county or city officer or employee where the services of such official or employee are rendered within the city.
(Ord. No. 97-184, § 1(art. I, § 1), 12-23-1997; Ord. No. 00-208, § 1, 12-12-2000; Ord. No. 02-174, § 1, 12-10-2002; Ord. No. 02-185, § 1, 12-17-2002)

Sec. 3A-2-2. Persons taxed; person liable; applicability.

(a) License fee is imposed upon any person who engages in or follows any trade, occupation or profession within the city when the relationship between the individual performing the services and the person for whom such services are rendered is the legal relationship of employer and employee. This includes both residents and nonresidents, an officer or partner of a corporation or firm if such officer or partner receives a salary for his or her personal services rendered in the business of such corporation, and governmental employees performing services within the city.

(b) It shall be unlawful for any person to engage in or follow any trade, occupation or profession, as defined in section 3A-2-1, within the city without paying occupational license fees for the privilege of engaging in or following such trade, occupation, or profession, which occupational license fees shall be measured by one percent of the gross receipts of each such person.
(Ord. No. 97-184, § 1(art. I, § 2), 12-23-1997; Ord. No. 98-173, 11-10-1998)

Sec. 3A-2-3. Exemptions.

(a) *Items exempt from tax.* The terms "gross receipts" and "compensation" do not include the following items:

(1) Employer paid insurance.

(2) Educational assistance.

(3) Employee discounts.

(4) Stock options.

(5) Stock grants subject to a substantial risk of forfeiture under 26 USC 83.

(6) Distributions from qualified pension, profit sharing, thrift, stock bonus, and other deferred compensation plans qualified under 26 USC 401(a).

(7) Distributions from nonqualified deferred compensation plans.

(8) Section 125, cafeteria plans.

(9) Dependent child care assistance.

(10) Payment of parking by employer.

(11) Students grant/scholarships.

(12) Death benefits.

(13) Unemployment compensation.

(14) Expenses incurred in moving.

(15) Employer contributions to nonqualified deferred compensation plans.

(16) Employer contributions to qualified pension, profit sharing, thrift, stock bonus and other deferred compensation plans qualified under 26 USC 401(a).

(17) Strike benefits.

(18) Workmen's compensation.

(19) Actual expenses incurred in the employer's behalf.

(b) *Persons exempt from occupational license fee.* Gross receipts and compensation earned by domestic servants shall be exempt from the occupational license fee imposed by this chapter.

(c) *Special.* Special exemptions from the taxes imposed by this chapter are allowed in all other instances where the occupation taxes levied under this chapter are exempted under any other provision of the Code of Ala. 1975.
(Ord. No. 97-184, § 1(art. I, § 3), 12-23-1997; Ord. No. 02-174, § 1, 12-10-2002)

Sec. 3A-2-4. License required to engage in business.

If any person shall engage in or continue in any business for which a privilege tax is imposed by section 3A-2-2 as a condition precedent to engaging or continuing in such business, he or she shall apply for and obtain from the department a license to engage in and to conduct such business for the current tax year upon the condition that he or she shall pay the taxes accruing to the city under the provisions of this chapter; provided that no license shall be issued under the provisions of this chapter to any person who has not complied with the provisions of this chapter, and no provision of this chapter shall be construed as relieving any person from the payment of any license or privilege tax now or hereafter imposed by law.
(Ord. No. 97-184, § 1(art. I, § 4), 12-23-1997)

Sec. 3A-2-5. Filing of returns: employers; employees; annual filing of reconciliation of returns; payment of the tax; bulk submissions.

(a) *Employers to withhold occupational license fees and file returns; due date of tax.* Each employer shall deduct from each payment of gross receipts and compensation due each employee the amount of the occupational license fees measured by one percent of the compensation due each employee beginning on December 1, 1970. The payments required to be made on account of such deductions by employers shall be made monthly to the city on or before the 20th day of the month next following the end of each such monthly period, and each employer shall at the same time make a return in connection therewith on a form made available to such employer in the department; provided that, if the total amount deducted from payments made to or due all employees of an employer averages less than $50.00 per month during the preceding calendar year, a quarterly return and remittance in lieu of monthly returns may be made, by election of the taxpayer to the department, for the current calendar year, and the remittance of such deductions to the city for the quarterly periods shall be due on or before the 20th day of the month next following the end of each such quarterly period, and each such employer shall at the same time make a return in connection therewith on a form made available to such employer by the department.

(1) *Contents of returns.* Each monthly or quarterly return shall show:

a. The number of employees, both taxable and nontaxable, of the employer;

b. The amount of gross compensation of all employees;

c. Nontaxable compensation;

d. The amount of occupational license fees deducted and paid by such employer for all or any part of the period being reported;

e. The correct reporting period; and

f. In addition to the gross compensation earned by the employees, such return shall show such other pertinent information as may be required by the department.

(2) *Remittance to accompany return.* At the time of making such monthly or quarterly report, such persons shall compute the occupational license fees due and shall pay to the city the amount of occupational license fees shown to be due.

(3) *Taxpayer's responsibility when no form received.* The department is authorized to provide prescribed forms necessary for compliance with the filing requirement outlined in this section. The failure of the taxpayer to receive forms from the department does not relieve the taxpayer of the responsibility of the timely reporting of the information required on the return, nor the timely payment of the tax.

(4) *Failure or omission by employer; employee's responsibility.* Provided, however, that the failure or omission by any employer to deduct such occupational license fees shall not relieve an employee from:

a. The payment of such occupational license fees;

b. Compliance with the requirements for making returns as provided in subsection (b) of this section; or

c. Compliance with any regulations promulgated under this chapter.

(b) *Returns to be filed by employees; due date of tax.* When a monthly or quarterly return, as required by subsection (a) of this section, is not filed by an employer and the occupational license fees are not paid to the city by such employer monthly as herein provided, the employee for whom no return has been filed and no payment has been made shall file a return with the director of finance on or before the 20th day of the month next following the end of each such monthly or quarterly period, showing in said return his or her gross receipts subject to occupational license fees for such month or quarter. If for any reason all occupational license fees of a person subject to the provisions of this chapter were not withheld by his or her employer from his or her gross receipts, such person shall file each return required by this section on a form obtainable from the director of finance. In addition to the gross receipts earned by him or her, such return shall show such other pertinent information as may be required by the director of finance. Each person making a return required by this section shall, at the time of filing thereof, pay to the city the amount of occupational license fees due under this chapter; provided, however, that any portion of the occupational license fees deducted by the employer shall be deducted on the return and only the balance, if any, shall be due and payable at the time of filing said return.

(c) *Annual filing of reconciliation returns.*

(1) Each employer shall file with the department on or before January 31 of each year, a return on a form made available in the department. This return shall show the gross amount of compensation of each employee, the amount of occupational license fees deducted and paid by such employer for all or any part of the period, and including the last known address of each such employee.

(2) Each employee for which no return was filed by the employer, shall file a return with the department on or before January 31 of each year thereafter in which his or her employer has failed to file any monthly or quarterly return required in the preceding calendar year, showing on said return the gross receipts subject to occupational license fees during the preceding calendar year. If for any reason all occupational license fees of a person

subject to the provisions of this chapter were not withheld by his or her employer from his or her gross receipts, such person shall file each return required by this section on a form obtainable in the department of finance.

(3) Each employer shall file with the department on or before January 31 of each year, a copy of all 1099s or a report showing the amount of compensation earned by any person not considered an employee, as defined in this chapter, who has rendered personal services for which the occupational tax was not withheld by the taxpayer receiving the personal services.

(d) *Timely mailing treated as timely filing and paying.* The provisions outlined in this section for the timely filing of any returns, payments, claims, statements, or other documents shall be administered as provided herein.

(1) *Date of delivery.* If any return, claim, statement, or other document required to be filed, or any payment required to be made, within a prescribed period or on or before a prescribed date under the authority of any provision of this chapter is, after such period or such date, delivered by United States mail to the finance department or to the department's designated depository where such return, claim, statement, or other document is required to be filed, or to which such payment is required to be made, the date of the United States postmark stamped on the cover in which such return, claim, statement, or other document, or payment, is mailed shall be deemed to be the date of delivery, or the date of payment, as the case may be; provided, however:

a. *Weekends and holidays.* When the due date falls on a Saturday, Sunday, or city holiday, payment of the tax may be made without penalty on the first working day following the due date.

b. *Mailing requirements.* The return, claim, statement, or other document, or payment was, within the time prescribed in subsection (d)(1) of this section, deposited in the mail in the United States in an envelope or other appropriate wrapper, postage prepaid, properly addressed to the finance department or to the department's designated depository where such return, claim, statement or other document is required to be filed, or to where such payment is required to be made.

(2) *Delivery by method other than United States mail.* Returns, claims, statements, or other documents, or payments which are required under any provision of this chapter which are delivered by any method other than by United States mail shall be considered timely filed when such items are received in the finance department or the department's designated depository on the due date prescribed.

(3) *Untimely filing.* Any return, payment, claim, statement, or other document not received in accordance with the provisions of this section shall be deemed untimely filed and shall be assessed applicable penalties and interest as prescribed by the relevant sections of this chapter.

(e) *Bulk submissions.* The department may accept, for reporting and payment of taxes due the city, bulk submissions of reports, and under regulations promulgated by the department, payments owed to the city made on behalf of the taxpayer by its properly authorized representative where such submissions are made using the appropriate form prescribed by the department. Any such bulk submissions of reports and payments shall include:

(1) The city's assigned taxpayer identification number for each such taxpayer for each tax paid; and

(2) Sufficiently detailed information by which each taxpayer can be identified such that a determination can be made as to the amount and method of assessment of tax against such taxpayer for the city.

The acceptance by the city of such bulk submissions shall not relieve the taxpayer on whose behalf such submissions were made from liability for any occupational tax arising from an error or omission made by the taxpayer's representative. Such bulk submission shall be signed by the taxpayer or its properly authorized representative.
(Ord. No. 97-184, § 5, 12-23-1997; Ord. No. 98-107, § 1(5), 6-30-1998; Ord. No. 00-208, § 1, 12-12-2000; Ord. No. 02-174, § 1, 12-10-2002; Ord. No. 02-185, § 1, 12-17-2002)

Sec. 3A-2-6. Extension of time for making return.

The director of finance, at his or her discretion, for reasonable cause, may extend the time for making any return required under the provisions of this chapter, however, the time for filing any such return shall not be extended for a period greater than 30 days from the date such return is due to be made and shall not prevent penalty and interest from accruing during the period of such extension.
(Ord. No. 97-184, § 1(art. I, § 6), 12-23-1997)

Sec. 3A-2-7. Where work done or services performed both within and without the city.

In cases where compensation is earned as a result of work done or services performed both within and without the city, the occupational license fees required under this chapter shall be computed by determining upon the oath of the employer, or if required by the director of finance upon the oath of the employee, that percentage of the compensation earned from the proportion of the work which was done or performed within the city.
(Ord. No. 97-184, § 1(art. I, § 7), 12-23-1997)

Sec. 3A-2-8. Oaths.

The monthly reports herein required to be made are not required to be made under oath, but wherever in this chapter any report is required to be sworn to, the same shall be sworn to by the taxpayer or his or her agent before some officer authorized to administer oaths, and any false statement to a material fact made with the intent to defraud shall constitute perjury, and upon conviction thereof, the person so convicted shall be punished as provided in section 1-1-6, as amended and as it may be amended.
(Ord. No. 97-184, § 1(art. I, § 8), 12-23-1997; Ord. No. 98-107, § 1(8), 6-30-1998)

Sec. 3A-2-9. Maintenance of records; investigative powers; audit and subpoena authority.

The provisions of this section shall be administered in accordance with the procedures set forth herein.

(1) *Records to be kept.* It shall be the duty of every person engaging, or continuing, in this city in any business for which a privilege tax is imposed by this chapter to keep and preserve suitable records of the gross compensation or gross receipts earned of such employees and such other books or accounts as may be necessary to allow the department to determine the correct amount of tax for which he or she is liable, or other records or information as may be necessary for the proper administration of any matters, under the provisions of this chapter. It shall also be the duty of every person to keep and preserve, for a period of not less than five years from the due date of the return on which the underlying tax is required to be reported, or five years of the date the return is filed, whichever is later, all such payroll journals or registers, canceled checks, expense reports or otherwise, and all such payroll journals or registers, canceled checks, expense reports and other records shall be open for examination by the department, upon request, at a reasonable time and location.

a. *Reasonable time and reasonable location.* Reasonable time shall be considered to be during normal business hours of the department. Reasonable location shall be considered to be the taxpayer's place of business or the offices of the taxpayer's authorized representa-

tive, provided such business or representative is located within a 50-mile radius of the city. Taxpayers maintaining records outside of this radius must make records available at city hall or at such other location as agreed upon by the department. The department, when conducting an audit, review, or examination for verification, may, at its election, require any taxpayer conducting business within the city to provide records, accounts, books, papers and other documents at a reasonable time and reasonable place agreed upon by the department, as provided herein;

b. *Taxpayer may be assessed reasonable costs.* The department may assess and collect from the taxpayer the reasonable costs, based on the then current state government employee per diem rates incurred by, or charged to, the city in connection with performing an examination of the taxpayer's books and records if the taxpayer received notice by certified U.S. mail, return receipt requested, at least 30 days prior to the date on which the examination was to commence; and:

1. The taxpayer either failed or refused to respond or did not propose a reasonable alternative date on which the examination was to commence within 15 days of receipt of notice of the pending examination; or if
2. The taxpayer and the department agreed in writing as to an alternative date on which the examination was to commence but the taxpayer then failed or refused to permit reasonable access to its books and records on the alternative date.

(2) *Investigative powers.* Each taxpayer shall give to the director of finance the means, facilities and opportunity for the making of such audit, examination and investigation of the records, books, or other relevant information maintained by any taxpayer or other person for the purpose of computing and determining the correct amount of value or correct amount of tax as provided for in subsection (1) of this section. The director of finance is hereby authorized to examine any person under oath concerning any gross receipts and compensation which were or should have been shown in a return, and to this end, he or she may compel the production of books, papers, records and the attendance of all persons before him or her, whether as parties or as witnesses, whom he or she believes to have knowledge of such gross receipts and compensation. Any taxpayer, or any officer of a corporation or association, or partner of a partnership, or fiduciary of a trust, or responsible individual of any entity under a duty to maintain books and records pursuant to this chapter, who fails or refuses to maintain, or refuses to provide such records and books, or permit inspection, as required herein, shall be subject to the provisions of section 3A-2-11, and shall be subject to contempt proceedings in the circuit court.

(3) *Audit and subpoena authority; additional requirements.* The department is authorized to audit, to subpoena records, and to enter into contracts with private examining or collecting firms as provided herein.

a. The director of finance or any agent or employee authorized by him or her is hereby authorized to examine and audit the books, papers, records, or other information of any taxpayer or of any licensee, in order to determine the accuracy of any return made, or if no return was made, to ascertain the amount of occupational license fees due under the terms of this article by such audit or examination.

b. The department may summon any witness to appear and give testimony, and summon by subpoena duces tecum any records, books, or other information of any kind relating to any matter which the department has authority to administer. The witness may be summoned by subpoena issued by any circuit judge, any magistrate, or any district judge, in the name of the department, directed to any sheriff of the state and returnable to the department. The subpoena may be served in like manner as subpoenas issued out of any circuit court, or the subpoena may be served by an authorized employee of the department or by certified mail, return receipt requested. If any witness has been subpoenaed to appear and testify or appear and produce records, books, or other information, and fails or refuses to appear or testify or to produce the books, records, or other information, that witness shall be subject to contempt proceedings in the circuit court.

c. The department is authorized to enter into contracts with private examining or collecting firms, provided:

1. Said private examining or collecting firm is certified and licensed under the auspices of the Alabama Local Tax Institute of Standards and Training (ALTIST), established under Code of Ala. 1975, § 40-2A-15;

2. No contract between the city and the private examining or collecting firm entered into for the purpose of examining or collecting city taxes shall have a term in excess of three years, including any renewal or extension options;

3. The limitation on the term of a contract between the city and a private examining or collecting firm does not prohibit the negotiation of a new contract between the parties following expiration of a properly executed contract; and

4. Any contract between the city and any private examining or collecting firm shall terminate automatically, whether or not it is stated in the contract, if the private examining or collecting firm loses or forgoes its license under Code of Ala. 1975, § 40-2A-13 or 40-2A-14.

(Ord. No. 97-184, § 1(art. I, § 9), 12-23-1997; Ord. No. 98-173, 11-10-1998; Ord. No. 98-107, § 1(9), 6-30-1998; Ord. No. 00-208, § 1, 12-12-2000)

Sec. 3A-2-10. Refunds.

(a) *Petitions for refund.*

(1) Any taxpayer may file a petition for refund with the department for any overpayment of tax erroneously paid to the department. If a final assessment for the tax has been entered by the department, a petition for refund of all or a portion of the tax may be filed only if the final assessment plus applicable interest has been paid in full prior to or with the filing of the petition for refund.

(2) The petition for refund must be filed in writing by the employer who collected and remitted the tax to the department. However, a direct petition may be filed in writing by an employee of a federal or a state agency.

(3) Unless otherwise provided by law, all petitions for refund shall include sufficient information to identify the type and amount of tax overpaid, the taxpayer, the period included, and the reasons for the refund. Such petition shall be

accompanied with sufficient supporting documentation as the department may deem necessary and proper.

(b) *Automatic refund.* Where the department determines that an employer is entitled to a refund on the annual reconciliation properly submitted, the department shall automatically refund to that taxpayer the amount of any excess tax so paid to the city; provided, however, that the time limitation provisions of this chapter shall apply.

(c) *Time limitations.*

(1) A petition for refund must be filed in writing with the department within two years from:

a. The date the return was filed; or

b. The date of payment of the tax, whichever is later.

(2) The department shall either grant or deny a petition for refund within six months from the date the petition is filed, unless the period is extended by written agreement of the taxpayer and the department. The taxpayer shall be notified of the department's decision concerning the petition for refund by first class United States mail, or by certified mail, with return receipt requested, sent to the taxpayer's last known address. If the department is unable to grant a refund within the time provided herein due to the taxpayer's failure to provide adequate information, the petition for refund shall be deemed to be denied.

(3) The department and the taxpayer may, prior to the expiration of the period for the filing of a petition for refund, agree in writing to extend the time provided for filing the petition. The petition for refund may be filed at any time prior to the expiration of the period agreed upon. The period agreed upon may be extended by subsequent agreements in writing made before the expiration of the period previously agreed upon.

(Ord. No. 97-184, § 1(art. I, § 10), 12-23-1997; Ord. No. 98-107, § 1(10), 6-30-1998; Ord. No. 00-208, § 1, 12-12-2000; Ord. No. 02-174, § 1, 12-10-2002)

Sec. 3A-2-11. Jeopardy, preliminary, final assessments and time limitations.

(a) *Jeopardy assessment.* All jeopardy assessments issued by the department shall be executed pursuant to Code of Ala. 1975, § 40-29-91(a), (b) and (c).

(1) If the director of finance finds that a taxpayer designs quickly to depart from the city or to remove his or her property therein or to do any other act tending to prejudice or to render wholly or partly ineffectual proceedings to collect any tax imposed by this chapter, the director of finance may issue notice of such finding to the taxpayer by personal service or mailing to the taxpayer's last known address, together with a demand for immediate payment of the tax declared to be in jeopardy, including, penalties and additions thereto and such taxes, penalty, interest, and additions thereto shall be immediately due and payable. A final assessment of such tax may be entered immediately and if the assessment is not paid upon such demand of the director, the director may forthwith issue a warrant for levy and distraint of any personal property of the taxpayer which shall be collected in the same manner and with the like effect as provided under section 3A-2-20.

(2) In the case of a tax for a current period, the director may declare the taxable period of the taxpayer immediately terminated and may at his or her discretion estimate the tax liability based upon the best information obtainable. Notice of such finding and declaration shall be issued to the taxpayer in the same manner as in subsection (a)(1) of this section.

(3) When a jeopardy assessment has been made as provided in this subsection (a), the collection of all or any part of such assessment may be stayed by filing with the director an approved bond conditioned upon the payment of the assessment together with applicable interest and cost of collection. The director shall have sole discretion to approve or disapprove the bond, but such approval shall not be unreasonably withheld.

(b) *Preliminary and final assessments.* All preliminary and final assessments issued by the department shall be executed as provided herein. The terms "preliminary assessment" and "final assessment" shall have the respective meanings as ascribed by section 3A-2-1.

(1) *Entry of preliminary assessment.* If the department determines that the amount of any tax as reported on a return is incorrect, or if no return is filed, or if the department is required to determine value, the department may calculate the correct tax or value based on the most accurate and complete information reasonably obtainable by the department. The department may thereafter enter a preliminary assessment for the correct tax or value, including any applicable penalty and interest.

(2) *Service of preliminary assessment upon taxpayer.* The preliminary assessment entered by the department, or a copy thereof, shall be promptly mailed by the department to the taxpayer's last known address by either first class U.S. mail or certified mail with return receipt requested, but at the option of the department, the preliminary assessment may be delivered to the taxpayer by personal delivery.

a. *Disputed preliminary assessments.* If a taxpayer disagrees with a preliminary assessment as entered by the department, the taxpayer may file a written petition for review with the director of finance within 30 calendar days from the date of entry of the preliminary assessment, setting out the specific objections to the preliminary assessment and showing cause why such assessment should not be made final. If a petition for review is timely filed, or if the department otherwise deems it necessary, the department shall schedule a conference with the taxpayer for the purpose of allowing the taxpayer and the department to present their respective positions, discuss any omissions or errors, and to attempt to agree upon any changes or modifications to their respective positions.

b. *Written petition.* If a written petition for appeal/review:

1. Is not timely filed; or

2. Is properly filed;

and upon further review the department determines the preliminary assessment is due to be upheld in whole or in part, the department may make the assessment final in the amount of tax due as computed by the department, with applicable interest and penalty computed to the date of entry of the final assessment.

(3) *Service of final assessment upon taxpayer.* The final assessment entered by the department, or a copy thereof, shall be mailed by the department to the taxpayer's last known address:

a. By either first class U.S. mail or certified mail with return receipt requested in the case of assessments of tax of $500.00 or less; or

b. By certified mail with return receipt requested in the case of assessments of tax of more than $500.00.

In either case and at the option of the department, the final assessment, or a copy thereof, may be delivered to the taxpayer by personal delivery.

(4) *Undisputed preliminary assessments.* Where the amount of tax or value reported on a return is undisputed by the department, or the taxpayer consents in writing to the department's determination of the amount of any deficiency, determination of value, or preliminary assessment as provided by this chapter, the department may immediately enter a final assessment for the amount of the tax or value, plus applicable penalty and interest; provided, the department may at any time enter a final jeopardy assessment pursuant to Code of Ala. 1975, § 40-29-91.

(c) *Time limitation for entering assessments.*

(1) Any preliminary assessment must be entered within five years from the due date of the return, or five years from the date the return is filed with the department, whichever is later, or if no return is required to be filed, within five years of the due date of the tax, except as follows:

a. A preliminary assessment may be entered at any time if no return is filed as required, or if a false or fraudulent return is filed with the intent to evade tax;

b. A preliminary assessment may be entered within six years from the due date of the return or six years from the date the return is filed with the department, whichever is later, if such return omits more than 25 percent of the amount of the taxable base stated in the return.

For purposes of this paragraph:

1. The term "taxable base" means the gross receipts and compensation or other amounts on which the tax paid with the return is computed; and

2. In determining the amount omitted from the taxable base, there shall not be taken into account any amount which is omitted from the taxable base stated in the return if the amount is disclosed in the return, or in a statement attached to the return, in a manner adequate to apprise the department of the nature and amount of the item.

(2) The department and the taxpayer may, prior to the expiration of the period for entering a preliminary assessment, agree in writing to extend the time provided for entering the assessment. The tax may be assessed at any time prior to the expiration of the period agreed upon. The period agreed upon may be extended by subsequent agreements in writing made before the expiration of the period previously agreed upon.

(3) Additional tax may be assessed by the department within any applicable period allowed above, even though a preliminary or final assessment has been previously entered by the department against the same taxpayer for the same or a portion of the same tax period.

(Ord. No. 97-184, § 1(art. I, § 11), 12-23-1997; Ord. No. 98-173, 11-10-1998; Ord. No. 98-107, § 1(11), 6-30-1998; Ord. No. 00-208, § 1, 12-12-2000)

Sec. 3A-2-12. Appeals.

(a) *Execution; information required.* Appeals from denial of refunds, jeopardy assessments, and final assessments shall be executed as provided in Code of Ala. 1975, § 6-3-11. A written notice of appeal shall be filed with department and shall contain information sufficient to:

(1) Identify the name of the taxpayer or other party filing such notice of appeal;

(2) Identify the specific matter appealed from;

(3) Outline the basis for such appeal; and

(4) Specify the relief sought.

(b) *Appeal from refund denial.*

(1) A taxpayer may appeal from the denial in whole or in part of a petition for refund

by filing a written notice of appeal with the circuit court within two years from the date the petition is denied. The circuit court shall hear the appeal according to its own rules and procedures and shall determine the correct amount of refund due, if any.

(2) If an appeal is not filed with the circuit court within two years of the date the petition is denied, then the appeal shall be dismissed for lack of jurisdiction.

(c) *Appeal from jeopardy assessment.*

(1) In any court proceeding to contest the jeopardy assessment or to enforce payment of the taxes made due and payable by virtue of the provisions of section 3A-2-11, the finding of the director of finance, made as herein provided, shall be for all purposes presumptive evidence of jeopardy.

(2) A final jeopardy assessment entered hereunder may be appealed to either the director of finance or the circuit court. On appeal to the circuit court or to the director of finance, the final jeopardy assessment shall be prima facie correct, and the burden of proof shall be on the taxpayer to prove such assessment is incorrect.

(3) If an appeal is not filed with the director of finance or in the circuit court within the time provided herein for appeals of final assessments, the appeal shall be dismissed for lack of jurisdiction.

(d) *Appeal from preliminary assessment.* Refer to section 3A-2-11(b)(1) and (2).

(e) *Appeal from final assessment.*

(1) A taxpayer may appeal from any final assessment entered by the department by filing a written notice of appeal with the director of finance within 30 days from the date of entry of the final assessment, and the appeal, if timely filed, shall proceed as herein provided.

(2) In lieu of the appeal under subsection (e)(1) of this section, at the option of the taxpayer, the taxpayer may appeal from any final assessment to the circuit court by filing written notice of appeal within 30 days, from the date of entry of the final assessment with both the director of finance and the circuit court. If the appeal is to the circuit court, the taxpayer must, also within the 30-day period, allowed for appeal, either: (i) pay the tax, interest, and any penalty shown on the final assessment; or (ii) file a supersedeas bond with the court in double the amount of the tax, interest, and any penalty shown on the final assessment. The supersedeas bond shall be executed by a surety company licensed and authorized to do business in the state and shall be conditioned to pay the assessment plus applicable penalty and any court costs relating to the appeal. A taxpayer may appeal a final assessment to circuit court as provided herein, even though the taxpayer has paid the tax in issue prior to taking the appeal.

(3) The filing of the written notice of appeal with the director of finance or in the case of appeals to the circuit court, the filing of the written notice of appeal with both the director of finance and the circuit court, and also the payment of the assessment in full and applicable interest and penalty or the filing of a bond as provided herein, are jurisdictional. If such prerequisites are not satisfied within the time provided for appeal, the appeal shall be dismissed for lack of jurisdiction. On appeal to the circuit court, or to the director of finance, the final assessment shall be prima facie correct, and the burden of proof shall be on the taxpayer to prove such assessment is incorrect.

(Ord. No. 97-184, § 1(art. I, § 12), 12-23-1997; Ord. No. 98-173, 11-10-1998; Ord. No. 98-107, § 1(12), 6-30-1998)

Sec. 3A-2-13. Penalties and interest.

(a) *Failure to timely file return.* If a taxpayer fails, neglects, or refuses to file any return required to be filed with the department on or

before the date prescribed therefor, determined with regard to any extension of time for filing granted by the director of finance, there shall be assessed, in addition to the tax due or the amount of tax herein required to be withheld/remitted, a penalty of ten percent of the amount due, or $50.00, whichever is greater, together with interest thereon at the rate of one percent per month or fraction thereof, from the date at which the tax herein levied became due and payable, such penalty and interest to be assessed and collected as part of the tax.

(b) *Failure to timely pay tax.* If a taxpayer fails, neglects, or refuses to pay to the department the amount of tax shown as due on a return required to be filed on or before the date prescribed for payment of the tax, determined with regard to any extension of time for payment granted by the director of finance, there shall be added:

(1) In addition to the tax due or the amount of tax herein required to be remitted;

(2) For any tax for which a monthly or quarterly return is required; or

(3) For which no return is required.

A penalty of ten percent of the unpaid amount shown as tax due on the return or the amount stated in the notice and demand, provided, however, that the minimum penalty imposed against such person or employer shall be $3.00, together with interest thereon at the rate of one percent per month or fraction thereof, from the date at which the tax herein levied became due and payable.

(c) *Underpayment of tax.* Any taxpayer failing to pay the tax herein levied to the city or any amount of tax herein required to be withheld and remitted to the city, within the time required by this chapter shall pay, in addition to the tax or the amount of tax herein required to be withheld and remitted, a penalty of ten percent of the amount due plus interest at the rate of one percent per month, or fraction thereof, from the date at which the tax or the amount of tax herein levied or required to be withheld and remitted became delinquent, that is, due and payable to the city; provided, however, that the minimum penalty imposed against such taxpayer shall be $3.00.

(d) *Underpayment due to negligence.* If any part of any underpayment of tax is due to negligence or disregard of rules or regulations, there shall be added to the tax an amount equal to ten percent of that part of the tax attributable to negligence or disregard of rules or regulations. For the purpose of this section, the term "negligence" includes any failure to make a reasonable attempt to comply with this chapter, and the term "disregard" includes any careless, reckless or intentional disregard. Provided, however, that the minimum penalty imposed against such person or employer shall be $3.00.

(e) *Underpayment due to fraud.* If any part of any underpayment of tax required to be shown on a return is due to fraud, there shall be added to the tax an amount equal to 50 percent of that portion of the underpayment which is attributable to fraud. For purposes of this section, the term "fraud" shall have the same meaning as ascribed to the term under Code of Ala. 1975, § 40-2A-11(d).

(f) *Frivolous appeal penalty.* If any appeal to the director of finance or the circuit court is determined to be frivolous or primarily for the purpose of delay or to impede collection of the tax imposed by this chapter, a penalty of $250.00 or 25 percent of the tax in question, whichever is greater, shall be assessed in addition to any tax due.

(g) *Penalties not exclusive.* The penalties provided in this section for failure to timely file a return, failure to timely pay tax, underpayment of tax, underpayment due to negligence and fraud, or filing a frivolous appeal, may be asserted against the same taxpayer for the same tax period.

(h) *Waiver of penalties.* Penalties may be waived, in whole or in part, by the director of finance upon a determination of reasonable cause. The term "reasonable cause" includes, but is not limited to, those instances in which the taxpayer has acted in good faith. The burden of proving reasonable cause shall be on the taxpayer.

(i) *Penalty and interest assessed as tax.* All penalties and interest levied or assessed against a taxpayer and which are administered by the department shall be assessed and collected in the same manner as taxes.

(j) *Interest.* Interest shall be computed at a rate of one percent per month or fraction thereof, and shall be added as provided herein to any tax or other amount due the department which is not paid by the due date. Interest on any delinquency or underpayment shall be charged from the due date of the tax.

(k) *Abatement of penalty.* The department shall abate any penalty attributable to erroneous written advice furnished to a taxpayer by an employee of the department. However, this subsection shall apply only if the department employee provided the written advice in good faith while acting in his or her official capacity, the written advice was reasonably relied on by the taxpayer and was in response to a specific written request of the taxpayer, and the penalty did not result from the taxpayer's failure to provide adequate or accurate information.

(l) *Penalty for failure to perform duties.* Any person required to collect, withhold, truthfully account for, and/or pay over any tax imposed by this chapter who willfully fails to collect or withhold such tax, or truthfully account for, and/or pay over such tax, or willfully attempts in any manner to evade or defeat any such tax or the payment thereof, shall in addition to the tax due and other penalties provided by law, be liable for a penalty up to the total amount of the tax evaded, or not collected, or not account for and paid over.

(Ord. No. 97-184, § 1(art. I, § 13), 12-23-1997; Ord. No. 98-173, 11-10-1998; Ord. No. 98-107, § 1(13), 6-30-1998; Ord. No. 00-208, § 1, 12-12-2000; Ord. No. 02-174, § 1, 12-10-2002)

Sec. 3A-2-14. Confidentiality of tax returns.

The confidentiality provisions imposed by this chapter shall be executed as provided herein.

(1) It shall be unlawful for any person to print, publish, or divulge, without the written permission or approval of the taxpayer, the tax return of any taxpayer or any part thereof or any information secured in arriving at the amount of tax or value reported for any purpose other than the proper administration of any matter administered by the department, or upon order of any court, or as otherwise allowed in this section. Statistical information pertaining to taxes may be disclosed at the discretion of the director of finance. The director of finance may make written or verbal disclosure upon request as to the status of compliance of the taxpayer relative to this chapter.

(2) A good standing certificate shall be issued to a requesting person with respect to a taxpayer if the taxpayer has filed all tax returns due and paid the taxes shown as payable in accordance with those returns.

(3) The director of finance shall promulgate reasonable regulations permitting and governing the exchange of tax returns, information, records, and other documents secured by the department, with tax officers of other agencies of the state, municipal, and county government agencies within the state, federal government agencies, any association of state government tax agencies of this state or other states, and any foreign government tax agencies; however:

a. Any tax returns, information, records, or other documents remain subject to the confidentiality provisions set forth in subsection (1) of this section;

b. The department may charge a reasonable fee for providing information or documents for the benefit of the requesting agencies; and

c. Any exchange shall be for one or more of the following purposes:

1. Collecting taxes due.

2. Ascertaining the amount of taxes due from any person.

3. Determining whether a person is liable for, or whether there

is probable cause for believing a person might be liable for the payment of any tax.

(4) Nothing herein shall prohibit the use of tax returns or tax information by the department in the enforcement, collection, and assessment of any tax levied or imposed by this chapter, or any other matters administered by the department. The department may also divulge to a purchaser or successor of a business or stock of goods the outstanding tax liability of the seller for which the purchaser or successor may be liable pursuant to section 3A-2-16. This section shall not preclude the inspection of returns by federal or foreign state agents pursuant to Code of Ala. 1975, § 40-18-53.

(5) Nothing herein shall prohibit the exchange of information between and among county or municipal governments subject to the restrictions of this section.

(6) In no event shall any damages, attorney fees, or court costs be assessed against the city or against its elected officials, officers, or employees under this section.

(Ord. No. 97-184, § 1(art. I, § 14), 12-23-1997; Ord. No. 98-173, 11-10-1998; Ord. No. 98-107, § 1(14), 6-30-1998; Ord. No. 00-208, § 1, 12-12-2000)

Sec. 3A-2-15. Regulations may be promulgated; payments due taxpayers may be withheld.

(a) *Regulations may be promulgated.*

(1) The director of finance shall from time to time promulgate rules and regulations for making returns and for ascertainment, assessment and remittance of the tax imposed hereunder as the director may deem necessary to enforce its provisions; and upon request shall furnish any taxpayer with a copy of such rules and regulations.

(2) The director of finance may prescribe, adopt, promulgate and enforce reasonable rules and regulations not in conflict with this chapter relating to any matter or thing pertaining to the administration and enforcement of the provisions of this chapter, including but not limited to provisions for the re-examination and correction of returns as to which overpayment or underpayment is claimed or found to have been made, and the rules and regulations so promulgated shall be binding upon all licensees and employers.

(3) The director of finance shall prescribe printed forms for use by persons subject to the provisions of this chapter and shall make such forms available at the director's office for use by such persons.

(b) *Payments due taxpayers may be withheld.* Pursuant to the Mayor-Council Act, article VI, section 6.04(o), Act No. 452-55, Acts of Alabama, the director of finance, in order to protect the interests of the city, is authorized to withhold the payment of any claim or demand for payment of monies due from the city to any vendor, contractor, consultant or other person having unpaid or delinquent tax or license liabilities until such unpaid tax, including applicable interest and penalties, shall first have been settled and adjusted. The director of finance shall notify the taxpayer by certified mail with return receipt requested, sent to the taxpayer's last known address, of the director's intention to make such levy, the effect of which shall be continuous from the date such levy is first made until the liability out of which such levy arose is satisfied.

(Ord. No. 97-184, § 1(art. I, § 15), 12-23-1997)

Sec. 3A-2-16. Purchaser to withhold taxes due from purchase money or be liable.

Any person liable for an amount of tax herein required to be remitted who shall sell out his or her business or stock of goods, or shall quit business, shall be required to make out a final return, as provided for under section 3A-2-5, and shall make payment of the taxes due within 30 days after the date he or she sold out his or her business, or stock of goods, or quit business, and his or her successor in business shall be required to withhold sufficient of the purchase money to cover the amount of said taxes due and unpaid

until such time as the former owner shall produce a receipt from the department showing that the taxes have been paid, or a certificate stating that no taxes are due. If the purchaser of a business or stock of goods shall fail to withhold purchase money as provided herein, and the taxes remain due and unpaid after said 30-day period, he or she shall be personally liable for the payment of the taxes accrued and unpaid on account of the operation of the business by the former owner. If in such cases the department deems it necessary in order to collect the taxes due, it may make a jeopardy assessment as provided in Code of Ala. 1975, title 40, ch. 29.
(Ord. No. 97-184, § 1(art. I, § 16), 12-23-1997; Ord. No. 98-173, 11-10-1998)

Sec. 3A-2-17. Disposition of funds derived from occupational license fees.

All monies derived from the occupational license fees levied under the provisions of this chapter shall be paid to the city and placed to the credit of the general fund of the city, and shall be used and expended as authorized by law and ordinance.
(Ord. No. 97-184, § 1(art. I, § 17), 12-23-1997; Ord. No. 98-173, 11-10-1998; Ord. No. 98-107, § 1(17), 6-30-1998)

Sec. 3A-2-18. Credit for occupational tax erroneously paid.

(a) *Taxes due the city which were erroneously paid to another municipality.*

(1) *Taxpayer requirement to request refund of erroneous tax payment within 60 days of notice to avoid interest, penalties.* In order to avoid the accrual of interest and any otherwise applicable penalties on the tax due the city, when an occupational tax owed to the city is erroneously paid to a different municipality or county in good faith, based on a reasonable interpretation of the enabling ordinance, resolution, or act levying or authorizing the tax, but not under a requirement of law, the taxpayer making the erroneous payment must comply with the applicable refund procedures of such municipality or county within 60 days of receiving notice from the city, a county, or other municipality or its agent of the erroneous payment.

(2) *Compliance with refund procedure; interest, penalties.* If the taxpayer complies with the refund procedure within the requisite 60-day period, the city shall not assess or attempt to assess the tax, or any related interest or otherwise applicable penalty thereon until the date of receipt of the overpayment from the refunding municipality or county by the taxpayer or the taxpayer's agent, and no interest or penalty thereon shall accrue until such date of receipt. The taxpayer shall remit the disputed tax to the city within 15 days after receipt.

(3) *Failure to comply with refund procedure; interest, penalties.* If the taxpayer fails to comply with the refund procedures within the requisite 60-day period, interest and any applicable penalties shall accrue on the tax to which the city is entitled from the 61st day and until such time as the tax is paid.

(b) *Taxes due to another municipality which were erroneously paid to the city.*

(1) *City's requirement to refund overpayment of erroneous tax payment within 60 days of compliance with refund procedures.* If an occupational tax owed to another municipality or county is erroneously paid to the city in good faith, based on a reasonable interpretation of the enabling ordinance, resolution, or act levying or authorizing the occupational tax, but not under a requirement of law, the city shall refund the overpaid tax, without interest, to the taxpayer within 60 days of the taxpayer's compliance with applicable refund procedures provided in section 3A-2-10.

(2) *Refund of excess tax; requirements.* Provided, however, that if the applicable rate of occupational tax imposed by the city exceeds the rate of occupational tax imposed by the proper locality under a requirement of law, the city shall not be

obligated to refund the difference unless the taxpayer properly files the applicable petition for refund, as in the case of direct petitions for refund as required by section 3A-2-10(a).

(Ord. No. 98-107, § 1(21), 6-30-1998)

Sec. 3A-2-19. Collection after assessment.

The tax herein levied may be collected by levy as provided in Code of Ala. 1975, § 40-29-51.

(1) *Length of period.* Where the assessment of any tax imposed by this chapter has been begun or made within the period of limitation properly applicable thereto, such tax may be collected by levy or by a proceeding in court, but only if the levy is made or the proceeding begun:

a. Within the period allowed by law after the final assessment of the tax; or

b. Prior to the expiration of any period for collection agreed upon in writing by the director of finance and the taxpayer before the expiration of such period allowed by law (or, if there is a release of levy under Code of Ala. 1975, § 40-29-34 after such period allowed by law, then before such release).

The period so agreed upon may be extended by subsequent agreements in writing made before the expiration of the period previously agreed upon. The period allowed by law as provided in this subsection during which a tax may be collected by levy shall not be extended or curtailed by reason of a judgment against the taxpayer.

(2) *Date when levy is considered made.* The date on which a levy on property or rights to property is made shall be the date on which the notice of seizure provided in Code of Ala. 1975, § 40-29-26, is given.

(Ord. No. 97-184, § 1(art. I, § 23), 12-23-1997)

Sec. 3A-2-20. Lien for taxes.

Pursuant to Code of Ala. 1975, §§ 40-29-20, 40-29-21, 40-29-23(e)(2) and 11-51-96, the provisions of this section shall apply to the taxes and/or any penalty or interest payable thereon, levied under this chapter.

(1) *Notice of lien.* If any person liable to pay the privilege or license tax herein levied, neglects or refuses to pay the same within 30 days of the final assessment, the amount (including any interest, additional amount, addition to tax, or assessable penalty together with filing fees and any other costs that may accrue in addition thereto) shall be a lien in favor of the city upon all property and rights to property, whether real or personal, tangible or intangible, used in any exhibition, trade, business, vocation, occupation or profession for which a privilege or license tax is or may be required. The department shall give a 30 day *"Notice of Intent to File Lien"* to the taxpayer by any one of the following methods:

a. Given in person;

b. Left at the dwelling or usual place of business of such person; or

c. Sent by certified mail with return receipt requested to the taxpayer's last known address.

(2) *Term.* Unless another date is specifically fixed by law, the lien imposed by subsection (1) of this section shall arise at the time of the final assessment, return therefor or the payment thereof, whichever is prior, was due to have been filed with or made to the department, and shall continue until the liability for the amount so assessed (or a judgment against the taxpayer arising out of such liability) is satisfied or becomes unenforceable by reason of lapse of time.

(3) *Right to enforce lien by attachment.* The department may enforce such lien in any court of competent jurisdiction, by attachment issued by any officer authorized to issue such writs, upon executing bond as

in other cases of attachment, and upon making affidavit that the attachment is not sued out for the purpose of vexing or harassing the defendant, and describing the property on which the lien is claimed and settling forth all the facts necessary to the creation of the lien and the amount due and unpaid (including any interest, additional amount, addition to tax, or assessable penalty together with filing fees and any other costs that may accrue in addition thereto).

(4) *Release of lien.* With respect to a lien described in this section, the director of finance shall within ten days release the lien when the liability out of which such lien arose is satisfied, and shall promptly notify the person upon whom such lien was made that such lien has been released.

(Ord. No. 97-184, § 1(art. I, § 24), 12-23-1997)

Sec. 3A-2-21. Collection by civil suit.

The department may initiate and/or maintain a civil action to recover delinquent taxes herein levied, interest, penalties and administrative costs incurred in connection therewith, in any court of competent jurisdiction, which remedy shall be in addition to any and all other remedies which may be provided.

(Ord. No. 97-184, § 1(art. I, § 25), 12-23-1997)

Sec. 3A-2-22. Violator may be restrained from continuing in business.

Any taxpayer who shall violate any of the provisions of this chapter may be restrained from continuing in business, and proper prosecution shall be instituted in the name of the city until such person shall have complied with the provisions of this chapter.

(Ord. No. 97-184, § 1(art. I, § 26), 12-23-1997)

Sec. 3A-2-23. Violations.

(a) *Failure to pay the tax, make reports, keep or provide records.* Any person subject to the provisions of this chapter, who shall fail to make the reports or any of them, as herein required, or who shall fail to keep or provide records, or supply any information, as herein required, shall, as provided in Code of Ala. 1975, § 40-29-112 be guilty of a misdemeanor, and upon conviction shall be fined not less than $50.00 nor more than $500.00 for each offense and in addition may be imprisoned for a period not to exceed six months. Each occurrence of a failure to keep records shall constitute a separate offense.

(b) *Willful refusal to make reports or permit examination of records.* Any person subject to the provisions of this chapter willfully refusing to make the reports herein required, or who shall refuse to permit the examination of his or her records by the department, as provided in Code of Ala. 1975, § 40-29-112 shall be guilty of a misdemeanor, and shall upon conviction be fined not less than $50.00 nor more than $500.00 for each offense, and in addition may be imprisoned for a period not to exceed six months. Each occurrence of failure to make such reports shall constitute a separate offense, and each refusal of a written demand of the department to examine, inspect or audit such records shall constitute a separate offense.

(c) *Violation of chapter.* Any person who shall fail, neglect, or refuse to perform any duty imposed by this chapter or other city ordinances, or any rule, regulation or law thereof, or who shall fail or neglect to do or perform any acts or series of act as required by this chapter or other city ordinances shall, upon conviction, be punished by a fine not exceeding $500.00 for each offense, and in addition may be imprisoned for a period not to exceed six months, or by both such fine and imprisonment, pursuant to section 1-1-6, as amended and as may be amended.

(d) *Fraudulent statement or failure to furnish statement to the department.* In addition to the criminal penalty provided by Code of Ala. 1975, §§ 40-29-113 and 40-29-114 any person required under this chapter to furnish a statement to the department who willfully furnishes a false statement or fraudulent statement, or who willfully fails to furnish a statement in the manner, at the time, and showing the information required shall for each such failure be subject to a penalty under this chapter of not less than $50.00 nor more than $500.00 for each offense, and in

addition may be imprisoned for a period not to exceed six months, or by both such fine and imprisonment.
(Ord. No. 97-184, § 1(art. I, § 27), 12-23-1997; Ord. No. 98-173, 11-10-1998)

Sec. 3A-2-24. Request for ruling on items of compensation.

Any taxpayer may request a ruling on the determination of whether items of compensation are included in gross receipts and compensation or are not to be included in gross receipts and compensation as a measure of the taxes due and payable as levied by this ordinance. Such requests shall be made in writing to the finance department, and shall contain all pertinent facts relating to the items in question.
(Ord. No. 97-184, § 1(art. I, § 28), 12-23-1997; Ord. No. 98-173, 11-10-1998)

Secs. 3A-2-25—3A-2-30. Reserved.

ARTICLE B. RULES AND REGULATIONS FOR OCCUPATIONAL LICENSE TAX

Sec. 3A-2-31. Promulgation of rules and regulations.

(a) The rules and regulations set forth in this article are hereby promulgated by the director of finance of the City of Birmingham under the authority granted to him or her in section 3A-2-15.

(b) The rules and regulations set forth in this article are effective January 1, 1993, and are to be applied prospectively.
(Ord. No. 97-184, § 1(art. II, § 1), 12-23-1997)

Sec. 3A-2-32. Definitions.

The following words, terms and phrases when used in this article shall have the following meanings except when the context clearly indicates a different meaning, or when the definition of such word or phrase conflicts with the same definition as contained in section 3A-2-1, in which case the definition in section 3A-2-1 will govern:

City means the City of Birmingham, Alabama.

Director of finance means the director of finance of the City of Birmingham or his or her duly authorized agent.

Employee means and includes any person engaging in or following any trade, occupation or profession within the meaning of this section. (See section 3A-2-1.)

Employer means and includes any person, business, firm, corporation, partnership, association or any other kind of organization or profession in the city within the meaning of this section. (See section 3A-2-1.)

Gross receipts and compensation. See section 3A-2-36 for definition and items included in gross receipts and compensation and section 3A-2-37 for items excluded from gross receipts and compensation.

Licensee means and includes any person required to file a return or to pay a license fee under this article.

Person means any natural person. Whenever the term "person" is used in any clause prescribing and imposing a penalty in the nature of a fine or imprisonment, the word as applied to a partnership or other form of unincorporated enterprise means the partners or members thereof, and as applied to corporations means the officers and directors thereof.

Trade, occupation, and profession means and includes the doing of any kind of work, the rendering of any kind of personal services, or the holding of any kind of position or job within the city by any clerk, laborer, tradesman, manager, official, or other employee, including any nonresident of the city who is employed by any employer as defined in this section, where the relationship between the individual performing the services and the person for whom such services are rendered is, as to those services, the legal relationship of employer and employee, including also a partner of a firm or an officer of a firm or corporation, if such partner or officer receives a salary for his or her personal services rendered in the business of such firm or corporation, but they shall not mean or include domestic servants employed in private homes or businesses, professions or occupations for which

occupational license fees are required to be paid under any general license code of the city. The term "trade, occupations and professions" shall also mean and include the holding of any kind of office or position, either by election or appointment, by any federal, state, county or city officer or employee where the services of such official or employee are rendered within the city.
(Ord. No. 97-184, § 1(art. II, § 2), 12-23-1997)

Sec. 3A-2-33. Imposition of occupational license fee; rate of tax.

(a) *License fee required.* It shall be unlawful for any person to engage in or follow any trade, occupation or profession as defined in section 3A-2-1 within the city on and after December 1, 1970, without paying occupational license fees for the privilege of engaging in any trade, occupation, or profession, which occupational license fees shall be measured by one percent of the gross receipts and compensation of each such person.

(b) *When gross receipts and compensation deemed to have been earned in city.* Gross receipts and compensation are deemed to have been received from, entitled to be received from or given credit for by the employer when the work done or personal services are rendered by the employee inside the city and results in actual receipt by the employee or entitlement to a receipt by or credit to the employee, regardless of where or when the payment is to be made or received.
(Ord. No. 97-184, § 1(art. II, § 3), 12-23-1997; Ord. No. 98-173, 11-10-1998)

Sec. 3A-2-34. Apportionment of gross receipts and compensation when trade, occupation or profession engaged in both inside and outside the city; computation of license fee.

(a) *Apportionment of gross receipts and compensation.* When gross receipts and compensation are earned by an employee and work is done or personal services rendered by such employee both within and without the city, the license fee shall be measured by the gross receipts and compensation earned as a result of work done or personal services rendered within the city. Employers shall multiply the total gross receipts and compensation of each said employee's earnings both within and without the city by a fraction whose numerator is the days spent working or rendering personal services in the city and whose denominator is the total days working or rendering personal services by the employee within and without the city and shall treat the result as the gross receipts and compensation subject to the license fee imposed by the city.

(b) *Requirement to keep records.* Each employer with one or more employees working both within or without the city shall keep accurate records of days working or rendering personal services within and without the city, and with respect to each such employee, the employer shall remit as required in section 3A-2-24. For purposes of the required withholding of occupational license fees and of the required monthly remittances of occupational license fees withheld, employers are permitted to estimate, using a fair and reasonable method consistently applied, the portion of the employee's days spent within the city on the basis of the employee's prior year's experience; provided, however, that the employer shall annually reconcile and pay over the license fee due on each said employee's gross receipts and compensation based upon such employee's days spent working or rendering personal services within and without the city. Such records shall be kept and maintained by each such employer for not less than five years subsequent to the date such compensation was earned.
(Ord. No. 97-184, § 1(art. II, § 4), 12-23-1997)

Sec. 3A-2-35. Responsibility of employers to withhold, account for, remit, and report occupational license fee.

(a) *Employer obligated to withhold license fee from payments of gross receipts and compensation.* Each employer shall withhold at the time of payment of gross receipts and compensation (as hereinafter defined) to any employee from such payment of gross receipts and compensation the license fee then due from each such employee.

Each employer who is notified of or discovers an underpayment by the employer of the license fee shall correct the previously submitted returns which had shown the amount which was under withheld, and remit payment of the license fee not previously paid over, together with any applicable penalty and interest as outlined in section 3A-2-13.

(b) *Payment/remittance of withheld occupational license fees.* Every employer is obligated to withhold occupational license fees for gross receipts and compensation from payments of wages, salaries, commissions or fees, make the return required by section 3A-2-5 and at the time of the filing thereof, pay to the department of finance the amount of the occupational license fees shown as due thereon. (Ord. No. 97-184, § 1(art. II, § 5), 12-23-1997)

Sec. 3A-2-36. Items of gross receipts and compensation.

Section 3A-2-1 defines the terms "gross receipts" and "compensation," as having the same meaning, which terms include but are not limited to the "total of the following items which a person receives from or is entitled to receive from or be given credit for by his or her employer for any work done or personal services rendered in any trade, occupation, or profession . . . ." The determination whether an item constitutes gross receipts and compensation is to be made without consideration of where or when the payment, entitlement or credit is to be made or received and without consideration of who is the payor or obligor. Pursuant to section 3A-2-1, the following items of gross receipts and compensation earned by an employee are subject to the license fee:

(1) *Salaries.* Salaries, bonuses, overtime pay or incentive payments earned by a person, whether received directly or through an agent:

a. As an official or employee, or both, of a corporation;

b. As an official or employee (as distinguished from a partner or member) of a partnership or other association;

c. As an employee (as distinguished from the proprietor) of a business conducted by an individual owner;

d. As an official or employee (whether elected or appointed, enlisted or commissioned) of a governmental agency; or

e. An official or employee of any other entity.

(2) *Wages.* Wages, bonuses, overtime pay or incentive payments earned by a person, whether received directly or through an agent:

a. Whether based upon hourly, daily, weekly, semimonthly, monthly, annual, unit of production or piecemeal rates; and

b. Whether paid by an individual, nonprofit association, corporation, partnership, fiduciary, governmental agency or any business or other entity.

(3) *Commissions.* Commissions earned by an employee from his or her employer whether received directly or through an agent, for personal services rendered regardless of how such commissions are computed, including any amounts paid by the employer and received by the employee as a drawing account exceeding the commissions earned.

(4) *Fees.* Fees earned by an employee, whether received directly or through an agent, for personal services rendered regardless of how computed.

(5) *Vacation pay, sick pay, holiday payments, etc.* Vacation pay, sick pay, and holiday payments received by an employee during periods of absence from work; payments for accrued, unused vacation, sick or holiday days received by an employee regardless whether such payments are received during periods of absence from work or not.

(6) *Employee elective contributions to qualified and non-qualified deferred compensation plans.* Amounts earned by an

employee and which said employee has elected to defer receipt of from his or her employer pursuant to a cash or deferred arrangement election by the employee or a salary reduction agreement between the employer and the employee. This would include elective deferrals under plans such as section 401(k) plans, section 403(b) plans and similar plans which allow for a salary reduction.

(7) *Non-cash fringe benefits.* Non-cash fringe benefits received by an employee from his or her employer not excluded under section 3A-2-37 and having a value of $100.00 or more including the fair market value of property or services received as compensation by an employee and paid by the employer where such compensation is not in the ordinary course of business. Non-cash fringe benefits may be valued for purposes of the imposition of the license fee using any reasonable method or any reasonable basis consistently applied by the employer including the use of valuation methods for federal income tax reporting purposes.

(8) *Severance and separation payments.* Payments made by an employer to an employee, whether at the time of separation or following separation from service with the employer to the extent that said payments represent vacation pay, sick pay, severance pay, early retirement buyouts and other benefits accrued pursuant to any employer and employee relationship if such benefits would be subject to the occupational license fee if they were paid to the active employee. Included are payments which are made in lieu of any payment which the employer is obligated to make to or on behalf of the employee arising from the employment of the employee, to the extent that such payments would be subject to the occupational license fee if they were made to an active employee.

(9) *Expense accounts.* Allowances and reimbursements paid by an employer to an employee for expenses incurred by the employee in the trade or business of the employer, which sums are not accounted for by the employee to the employer as ordinary and necessary trade or business expenses of the employer.

(10) *Non-de minimis awards in excess of $100.00.* Non-de minimis awards in excess of $100.00 received by an employee from his or her employer whether received directly or through an agent of the employer.

(11) *Insurance premiums paid by the employer for group term life insurance coverage in excess of $50,000.00.* The value of group term life insurance the employer provides to an employee for coverage over $50,000.00. The employer may use a valuation method used for federal income tax reporting purposes.

(12) *Imputed income on personal use of automobile.* The value of the personal use by an employee of an employer-provided automobile. The value of personal use of automobiles may be determined by using any reasonable method consistently applied by the employer including the use of valuation methods used for federal income tax reporting purposes.

(13) *Country club dues/memberships.* The value of the personal use by an employee of country club dues/memberships paid for by the employer or reimbursed by the employer. The personal use of country club and similar memberships may be valued for purposes of the imposition of the license fee using any reasonable method or any reasonable base consistently applied by the employer including the use of valuation methods for federal income tax reporting purposes.

(14) *Other items of gross receipts and compensation.* All other forms of consideration having monetary value, earned by an employee, due from an employer for the performance of any activity subject to the

license fee and not expressly exempt under section 3A-2-3(a) or herein (see sections 3A-2-37 and 3A-2-40).

(Ord. No. 97-184, § 1(art. II, § 6), 12-23-1997; Ord. No. 98-173, 11-10-1998)

Sec. 3A-2-37. Items not constituting gross receipts and compensation.

The following items of payment and benefits from or on behalf of an employer to or for the credit of an employee are not considered gross receipts and compensation under this chapter:

(1) *Unemployment compensation.* Unemployment compensation payments made by any governmental agency.

(2) *Death benefits.* Death benefits payable to the beneficiary of an employee or to his or her estate, whether payable in a single sum or otherwise.

(3) *Workmen's compensation.* Amounts received under the Workmen's Compensation Act as compensation for a disability sustained during the course of employment, together with any amount of damages received by suit or agreement on account of such disability.

(4) *Allowances and reimbursements for expenses.* Allowances and reimbursements paid by an employer to an employee for expenses actually incurred by the employee in the trade or business of the employer, which sums are accounted for by the employee to the employer as ordinary and necessary trade or business expenses of the employer.

(5) *Strike benefits.* Strike pay benefits paid from a fund which is established and/or replenished, in whole or in part, from the employee's wages.

(6) *Employer contributions to employee welfare benefit plans.* Employer's contributions for life, health and accident, disability and similar welfare benefit plans whether the plans are insured, self-insured or otherwise.

(7) *Amounts paid under qualified and non-qualified deferred compensation plans.* Amounts paid under qualified and non-qualified deferred compensation plans at withdrawal.

(8) *Student grants.* Stipends, honorariums, grants and other payments made to students to the extent such payments are conditioned only upon the recipient's pursuit of studies and/or participation in athletic or other intercollegiate competition, and scholarships and other non-cash fringe benefits received by duly registered students from the school, college or university in which they are enrolled. To the extent that such payments are made for services rendered by the student and an employer-employee relationship exists between the payor and the student, the payments are included in gross receipts and compensation.

(9) *Exemptions afforded by treaty.* Any wages, salaries or other compensation paid to a foreign national to the extent that such payments are exempt from state and local taxation by a treaty of the United States.

(10) *Employer contributions to qualified and non-qualified deferred compensation plans not arising from employee election.* Contributions to qualified and non-qualified deferred compensation plans by employers, other than contributions as provided in section 3A-2-36(6).

(11) *Flexible benefit plan payments.* Payments by employers to cafeteria plans, flexible benefit plans, flex plans or plans of similar import, which provide the opportunity for employees to elect to reduce their wages for federal income tax purposes and contribute such amount to such plans to pay for welfare benefits such as medical insurance or expenses, dependent care expenses, group disability insurance, etc., not otherwise paid for by the employer.

(12) *Stock options, stock grants and bargain stock purchases from employer.* Employer granted stock options, stock grants and

bargain stock purchases shall not be included in the gross receipts of said employee at the time of grant nor at the time of exercise or at any other time including stock grants subject to a substantial risk of forfeiture under 26 USC 83.

(13) *Moving expenses.* Allowances and reimbursements paid by an employer to an employee for expenses incurred in moving to the location of the employer.

(14) *Payment of parking by employer.* Parking (i) paid or provided by the employer for the benefit of the employee or (ii) reimbursement by the employer for the benefit of the employee or (iii) reimbursement by the employer of parking expenses actually incurred by the employee.

(15) *Dependent child care assistance.* Dependent child care expenses paid by the employer for the benefit of the employee, reimbursed by the employer or employer-provided dependent child care services.

(16) *Employee discounts.* Discounts provided by an employer to employees on the selling price of property or services offered for sale to customers in the normal business of the employer.

(17) *Educational assistance payments.* Educational assistance provided by the employer to an employee under an employer-provided educational assistance program.

(18) *Distributions from qualified pension and unqualified compensation plans.* Amounts paid from retirement plans or similar arrangements including amounts from pension plans, profit sharing plans, stock bonus plans, or employee stock ownership plans whether or not such plans are qualified deferred compensation plans pursuant to 26 USC 401(a) or nonqualified deferred compensation plans or arrangements.

(19) *Employee achievement awards in excess of $100.00.* Employee achievement awards in excess of $100.00 received by an employee from his or her employer whether received directly or through an agent of the employer that are not taxable under 26 USC 74 shall not be taxable.

(Ord. No. 97-184, § 1(art. II, § 7), 12-23-1997)

Sec. 3A-2-38. Persons exempt from occupational license fee.

Gross receipts and compensation earned by domestic servants are not subject to the occupational license fee.

(Ord. No. 97-184, § 1(art. II, § 8), 12-23-1997)

Sec. 3A-2-39. Returns required of licensees.

The failure of or omission by an employer to withhold or pay over occupational license fees due under this chapter shall not relieve an employee, with respect to which such failure or omission occurred, from the payment of such occupational license fees due and compliance with the requirements for making returns as provided in this chapter. See section 3A-2-35.

(Ord. No. 97-184, § 1(art. II, § 9), 12-23-1997)

Sec. 3A-2-40. Request for ruling on items of compensation.

Any taxpayer may request a ruling on the determination of whether items of compensation are included in gross receipts and compensation or are not to be included in gross receipts and compensation as a measure of the taxes due and payable as levied by this chapter. Such requests shall be made in writing to the finance department, and shall contain all pertinent facts relating to the item in question.

(Ord. No. 97-184, § 1(art. II, § 10), 12-23-1997)

CHAPTER 3. SALES TAX*

Sec. 3A-3-1. Definitions.

The following words, terms and phrases when used in this chapter shall have the following

*__State law references__—Local sales taxes, Code of Ala. 1975, § 11-51-200 et seq.; state sales tax, Code of Ala. 1975, § 40-23-1 et seq.

meanings except when the context clearly indicates a different meaning; or when the definition of such word or phrase conflicts with the same definition as contained in Code of Ala. 1975, §§ 40-23-1 or 40-2A-3, in which case the state law definition will govern:

Automotive vehicle includes a power shovel, drag line, crawler, crawler crane, ditcher, or any similar machine which is self-propelled, in addition to self-propelled machines which are used primarily as instruments of conveyance.

Business includes all activities engaged in, or caused to be engaged in, with the object of gain, profit, benefit or advantage, either direct or indirect, and not excepting subactivities producing marketable commodities used or consumed in the main business activity, each of which subactivities shall be considered business engaged in, taxable in the class in which it falls.

Code of Ala. 1975 means such sections as are currently in effect and as it or they may be amended.

Department means the department of finance of the city, and includes the director of finance.

Director or *director of finance* means the director of finance of the city or his or her duly authorized agent.

Final assessment means the final notice of value, underpayment, or nonpayment of any tax administered by the department.

Gross proceeds of sales means the value proceeding or accruing from the sale of tangible personal property (and including the proceeds from the sale of any property handled on consignment by the taxpayer), including merchandise of any kind and character without any deduction on account of the cost of the property sold, the cost of the materials used, labor or service cost, interest paid, any consumer excise taxes that may be included within the sales price of the property sold, or any other expenses whatsoever, and without any deductions on account of losses; provided that cash discounts allowed and taken on sales shall not be included, and the term "gross proceeds of sales" shall not include the sale price of property returned by customers when the full sales price thereof is refunded either in cash or by credit. The term "gross proceeds of sales" also means and includes the reasonable and fair market value of any tangible personal property previously purchased at wholesale which is withdrawn or used from the business or stock and used or consumed in connection with a business, and shall also mean and include the reasonable and fair market value of any tangible personal property previously purchased at wholesale which is withdrawn from the business or stock and used or consumed by any person so withdrawing the same, except property which has been previously withdrawn from such business or stock and so used and consumed with respect to which property the tax has been paid because of such previous withdrawal, use or consumption, except property which enters into and becomes an ingredient or component part of tangible personal property or products manufactured or compounded for sale as provided in the term "wholesale sale" or "sale at wholesale" and not for the personal and private use or consumption of any person so withdrawing, using, or consuming the same, and except refinery, residue, or fuel gas, whether in a liquid or gaseous state, that has been generated by, or is otherwise a by-product of, a petroleum-refining process, which gas is then utilized in the process to generate heat or is otherwise utilized in the distillation of refining of petroleum products. In the case of the retail sale of equipment, accessories, fixtures, and other similar tangible personal property used in connection with the sale of commercial mobile services as defined herein, or in connection with satellite television services, at a price below cost, the term "gross proceeds of sale" shall only include the stated sales price thereof and shall not include any sales commission or rebate received by the seller as a result of the sale. As used herein, the term "commercial mobile services" shall have the same meaning as that term has in 47 USC 153(n) and 332(d), as in effect from time to time.

Gross receipts means the value proceeding or accruing from the sale of tangible personal property, including merchandise and commodities of any kind and character, all receipts actual and accrued, by reason of any business engaged in (not including, however, interest, discounts, rentals of real estate or royalties) and without any deduction on account of the cost of the property sold, cost of the materials used, labor or service cost, interest paid, any consumer excise taxes that may be included in the sales price of the property sold or any other expenses whatsoever and without any deductions on account of losses. The term "gross receipts" shall also mean and include the reasonable and fair market value of any tangible personal property previously purchased at wholesale which is withdrawn or used from the business or stock and used or consumed in connection with said business, and shall also mean and include the reasonable and fair market value of any tangible personal property previously purchased at wholesale which is withdrawn from the business or stock and used or consumed by any person so withdrawing the same, except property which has been previously withdrawn from such business or stock and so used or consumed and with respect to which property the tax has been paid because of such previous withdrawal, use or consumption, except property which enters into and becomes an ingredient or component part of tangible personal property or products manufactured or compounded for sale as provided in the term "wholesale sale" or "sale at wholesale" and not for the personal and private use or consumption of any person so withdrawing, using or consuming the same, and except refinery, residue, or fuel gas, whether in a liquid or gaseous state, that has been generated by, or is otherwise a by-product of, a petroleum-refining process, which gas is then utilized in the process to generate heat or is otherwise utilized in the distillation of refining of petroleum products.

Notice of appeal of final assessment means any written notice sufficient to identify the name of the taxpayer or other party appealing, the specific matter appealed from, the basis for that appeal, and the relief sought.

Person or *company,* herein used interchangeably, includes any individual, firm, partnership, copartnership, association, corporation, receiver, trustee or any other group or combination acting as a unit and the plural as well as the singular number, unless the intention to give a more limited meaning is disclosed by the context.

Petition for refund means a written request for a refund of tax previously paid, including in the form of an amended return. Unless otherwise provided by law, such request shall include sufficient information to identify the amount of tax overpaid, the taxpayer, the period included, the reasons for the refund and sufficient documentation as required by the director of finance.

Petition for review means a written document filed with the department in response to a preliminary assessment in which the taxpayer sets forth reasonably specific objections for the preliminary assessment.

Preliminary assessment means the preliminary notice of value or underpayment of any tax administered by the department.

Prepaid telephone calling card means a sale of a prepaid telephone calling card or a prepaid authorization number, or both, shall be deemed the sale of tangible personal property subject to the tax imposed on the sale of tangible personal property pursuant to this chapter.

Private auditing or collecting firm means any person in the business of collecting, through contract or otherwise, local sales taxes for the city, or auditing any taxpayer, through the examination of books and records, for the city.

Reasonable cause includes, but is not limited to, those instances in which the taxpayer has acted in good faith. The burden of proving reasonable cause shall be on the taxpayer.

Return means any report, document, or other statement required to be filed with the department for the purpose of paying, reporting, or determining the proper amount of value or tax due.

Sale or *sales* includes installment and credit sales and the exchanges of properties as well as the sale thereof for money, every closed transaction constituting a sale. Provided, however, a transaction shall not be closed or a sale completed

until the time and place when and where title is transferred by the seller or seller's agent to the purchaser or purchaser's agent, and for the purpose of determining transfer of title, a common carrier or the U.S. Postal Service shall be deemed to be the agent of the seller, regardless of any FOB point and regardless of who selects the method of transportation, and regardless of by whom or the method by which freight, postage, other transportation charge is paid. Provided further that, where billed as a separate item to and paid by the purchaser, the freight, postage, or other transportation charge paid to a common carrier or the U.S. Postal Service is not part of the selling price.

Sale at retail or *retail sale* means all sales of tangible personal property except those defined below as wholesale sales. The quantities of goods sold, or prices at which sold, are immaterial in determining whether or not a sale is at retail. Sales of building materials to contractors, builders, or landowners for resale or use in the form of real estate are retail sales in whatever quantity sold. Sales of building materials, fixtures, or other equipment to a manufacturer or builder of modular buildings for use in manufacturing, building or equipping a modular building ultimately becoming a part of real estate situated in the city are retail sales, and the use, sale or resale of such building shall not be subject to the tax. Sales of tangible personal property to undertakers and morticians are retail sales and subject to the tax at the time of purchase, but are not subject to the tax on resale to the consumer. Sales of tangible personal property or products to manufacturers, quarry operators, mine operators, or compounders, which are used or consumed by them in manufacturing, mining, quarrying or compounding and do not become an ingredient or component part of the tangible personal property manufactured or compounded as provided in the term "wholesale sale" or "sale at wholesale" are retail sales. The term "sale at retail" or "retail sale" shall also mean and include the withdrawal, use, or consumption of any tangible personal property by anyone who purchases same at wholesale, except property which has been previously withdrawn from the business or stock and so used or consumed and with respect to which property the tax has been paid because of such previous withdrawal, use or consumption, except property which enters into and becomes an ingredient or component part of tangible personal property or products manufactured or compounded for sale as provided in the term "wholesale sale" or "sale at wholesale" and not for the personal and private use or consumption of any person so withdrawing, using or consuming the same; and such wholesale purchaser shall report and pay the taxes thereon; and except refinery, residue, or fuel gas, whether in a liquid or gaseous state, that has been generated by, or is otherwise a by-product of, a petroleum-refining process, which gas is then utilized in the process to generate heat or is otherwise utilized in the distillation of refining of petroleum products. In the case of the sale of equipment, accessories, fixtures, and other similar tangible personal property used in connection with the sale of commercial mobile services as above defined in "gross proceeds of sales," or in connection with satellite television services, at a price below cost, the term "sale at retail" and "retail sale" shall include those sales, and those sales shall not be taxable as a withdrawal, use or consumption of such tangible personal property.

Tax means any amount, including applicable penalty and interest, levied or assessed against a taxpayer and which the department is required or authorized to administer under the provisions of state law.

Tax year or *taxable year* means the calendar year.

Taxpayer means any person subject to or liable for taxes herein levied; any person required to file a return with respect to, or to remit the tax herein levied, or to report any information or value to the department, or its designee; or any person required to obtain or holding any interest in any license issued by the department, or its designee, or any person that may be affected by any act or refusal to act by the department, or its designee, or to keep any records required by this chapter.

Taxpayer's authorized representative means any individual with written authority or power of attorney to represent a taxpayer before the department; provided, however, that nothing herein

shall be construed as entitling any such individual who is not a licensed attorney to engage in the practice of law.

Taxpayers' Bill of Rights Pamphlet means a written pamphlet to be distributed by the department to all taxpayers whose books and records are being examined by the department, at or before the commencement of an audit, explaining in simple and nontechnical terms, the role of the department and the rights of the taxpayer whose books and records are being examined by the department during the examination and which shall be promptly revised from time to time to reflect any changes in the applicable law or rules.

Wholesale sale or *sale at wholesale.*

(1) The term "wholesale sale" or "sale at wholesale" means any one of the following:

a. A sale of tangible personal property by wholesalers to licensed retail merchants, jobbers, dealers, or other wholesalers for resale and does not include a sale by wholesalers to users or consumers, not for resale.

b. A sale of tangible personal property or products including iron ore, and including the furnished container and label of such property or products, to a manufacturer or compounder which enter into and become an ingredient or component part of the tangible personal property or products which such manufacturer or compounder manufactures or compounds for sale, whether or not such tangible personal property or product used in manufacturing or compounding a finished product is used with the intent that it becomes a component of the finished product; provided, however, that it is the intent of this chapter that no capital equipment, machinery, tools or product shall be included in the term "wholesale sale." The term "capital equipment, machinery, tools, or product" means property that is subject to depreciation allowances for state income tax purposes.

c. A sale of containers intended for one-time use only, and the labels thereof, when such containers are sold without contents to persons who sell or furnish such containers along with the contents placed therein for sale by such persons.

d. A sale of pallets intended for one-time use only when such pallets are sold without contents to persons who sell or furnish such pallets along with the contents placed thereon for sale by such persons.

e. A sale to a manufacturer or compounder, of crowns, caps, and tops intended for one-time use employed and used upon the containers in which such manufacturer or compounder markets his or her products.

f. A sale of containers to persons engaged in selling or otherwise supplying or furnishing baby chicks to growers thereof where such containers are used for the delivery of such chicks or a sale of containers for use in the delivery of eggs by the producer thereof to the distributor or packer of such eggs even though such containers used for delivery of baby chicks or eggs may be recovered for reuse.

g. A sale of bagging and ties used in preparing cotton for market.

h. A sale to meat packers, manufacturers, compounders, or processors of meat products of all casings used in molding or forming wieners and Vienna sausages even though such casings may be recovered for reuse.

i. A sale of commercial fish feed including concentrates, supplements, and other feed ingredients when such substances are used as ingredients

in mixing and preparing feed for fish raised to be sold on a commercial basis.

j. A sale of tangible personal property to any person engaging in the business of leasing or renting such tangible personal property to others, if such tangible personal property is purchased for the purpose of leasing or renting it to others under a transaction subject to the privilege or license tax levied in Code of Ala. 1975, tit. 40, ch. 12, art. 4, against any person engaging in the business of leasing or renting tangible personal property to others.

k. A purchase or withdrawal of parts or materials from stock by any person licensed under this chapter where such parts or materials are used in repairing or reconditioning the tangible personal property of a licensed person, which tangible personal property is a part of the stock of goods of such licensed person, offered for sale by him or her, and not for use or consumption of such licensed person.

(2) The use within this city of tangible personal property by the manufacturer thereof, as building materials in the performance of a construction contract, shall, for the purposes of this chapter be considered as a retail sale thereof by such manufacturer, who shall also be construed as the ultimate consumer of such materials or property, and who shall be required to report such transaction and pay the sales tax thereon, based upon the reasonable and fair market price thereof at the time and place where same are used or consumed by him or her or it. Where the contractor is the manufacturer or compounder of ready-mix concrete or asphalt plant mix used in the performance of a contract, whether the ready-mix concrete or asphalt plant mix is manufactured or compounded at the job site or at a fixed or permanent plant location, the tax applies only to the cost of the ingredients that become a component part of the ready-mix concrete or the asphalt plant mix. The provisions of this subsection shall not apply to any tangible personal property which is specifically exempted from the tax levied in this chapter.

(3) The sale of lumber by a lumber manufacturer to a trucker for resale is a sale at wholesale as sales are defined herein where the trucker is either a licensed dealer in lumber or, if a resident of the state, has registered with the state department of revenue, and has received therefrom a certificate of registration or, if a nonresident of this state purchasing lumber for resale outside the state, has furnished to the lumber manufacturer his or her name, address and vehicle license number of the truck in which the lumber is to be transported, which name, address, and vehicle license number shall be shown on the sales invoices rendered by the lumber manufacturer. Taxpayer must present such current certificate of registration to the director of finance upon request (Code of Ala. 1975, § 40-23-1(c)).

(4) The dispensing or transferring of ophthalmic materials, including lenses, frames, eyeglasses, contact lenses, and other therapeutic optic devices to a patient by a licensed ophthalmologist, as a part of his or her professional service, shall not, for purposes of this chapter be deemed or considered to constitute a sale, subject to the city sales tax. The licensed ophthalmologist shall be considered the ultimate consumer of the ophthalmic materials and shall have no responsibility or duty pursuant to this chapter for the collection of the city sales tax. The sale of the ophthalmic materials to a licensed ophthalmologist by a supplier thereof shall be considered a retail sale subject to the city sales tax, and the supplier shall be responsible for collecting sales tax from the licensed ophthalmologist. In no event shall the providing of professional services in connection with the dispensing or transfer-

ring of ophthalmic materials by a licensed ophthalmologist or optometrist be considered a sale subject to the municipal sales tax. All transfers of ophthalmic materials by opticians or optometrists shall be considered retail sales subject to municipal sales tax. The term "supplier" includes, but is not limited to, optical laboratories, ophthalmic material wholesalers, or anyone selling ophthalmic materials to ophthalmologists (Code of Ala. 1975, § 40-23-1(d)).

Notwithstanding the above, the withdrawal, use, or consumption of a manufactured product by the manufacturer thereof in "quality control testing" performed by employees or independent contractors of the taxpayer, for purposes of this chapter, shall not be deemed or considered to constitute a transaction subject to sales tax, nor shall a gift by the manufacturer of a manufactured product, withdrawn from the manufacturer's inventory, to an entity listed in 26 USC 170(b) or (c), be considered a transaction subject to sales tax (Code of Ala. 1975, § 40-23-1(e)).
(Ord. No. 97-185, § 1, 12-23-1997; Ord. No. 98-181, § 1(1), 11-17-1998; Ord. No. 00-209, § 1(1), 12-12-2000; Ord. No. 02-175, § 1(1), 12-10-2002)

Sec. 3A-3-2. Property taxes; person liable; applicability; tax imposed-agricultural machinery and equipment.

(a) *Property taxed; person liable; applicability.* Pursuant to Code of Ala. 1975, § 40-23-2, there is hereby levied, in addition to all other taxes of every kind now imposed by law, and shall be collected as herein provided, a privilege or license tax against the person on account of the business activities and in the amount to be determined by the application of rates against gross sales, or gross receipts, as the case may be, as follows and which shall be collected as herein provided:

(1) *General rate.* Upon every person, firm or corporation, including the state, and its state alcoholic beverage control board in the sale of alcoholic beverages of all kinds, the University of Alabama, Auburn University and all other institutions of higher learning in the state, whether such institutions be denominational, state, county or municipal institutions, any association or other agency or instrumentality of such institutions engaged or continuing within this city in the business of selling at retail any tangible personal property whatsoever, including merchandise and commodities of every kind and character, (not including, however, bonds or other evidences of debts or stocks, nor sales of material and supplies to any person for use in fulfilling a contract for the painting, repair, or reconditioning of vessels, barges, ships and other watercraft and commercial fishing vessels of over five tons load displacement as registered with the U.S. Coast Guard and licensed by the state department of conservation and natural resources), an amount equal to four percent of the gross proceeds of sales of the business except where a different amount is expressly provided herein. Any person engaging or continuing in business as a retailer and wholesaler or jobber shall pay the tax required on the gross proceeds of retail sales of such business at the rates specified, when his or her books are kept so as to show separately the gross proceeds of sales of each business, and when his or her books are not so kept such person shall pay the tax as a retailer, on the gross sales of the business. Where any used part, including tires, of an automotive vehicle or truck, trailer, semitrailer or house trailer is taken in trade, or in a series of trades, as a credit or part payment on the sale of a new or rebuilt part or tire, the tax levied herein shall be paid on the net difference, that is, the price of the new or used part or tire sold less the credit for the used part or tire taken in trade; provided, however, this provision shall not be construed to include batteries.

(2) *Amusement/entertainment rate.* Upon every person, firm or corporation engaged, or continuing within this city, in the business of conducting, or operating places of amusement or entertainment, billiard and pool rooms, bowling alleys, amusement

devices, musical devices, theaters, opera houses, moving picture shows, vaudevilles, amusement parks, athletic contests, including wrestling matches, prize fights, boxing and wrestling exhibitions, football and baseball games, (including athletic contests conducted by or under the auspices of any educational institution within this state, or any athletic association thereof, or other association whether such institution or association be a denominational, a state, or county, or a municipal institution or association or a state, county, or city school, or other institution, association or school), skating rinks, race tracks, golf courses, or any other place at which any exhibition, display, amusement or entertainment is offered to the public or place or places where an admission fee is charged, including public bathing places, public dance halls of every kind and description within the city, an amount equal to four percent of the gross receipts of any such business; provided, however, notwithstanding any language to the contrary in the prior portion of this chapter, the tax provisions so specified shall not apply to any athletic event conducted by a public primary or secondary school or any football playoff conducted by or under the auspices of the Alabama High School Athletic Association. The tax amount which would have been collected pursuant to this subsection shall continue to be collected by the public primary or secondary school but shall be retained by the school which collected it and shall be used by the school for school purposes.

(3) *Machine rate.* Upon every person, firm or corporation engaged or continuing within this city in the business of selling at retail machines used in mining, quarrying, compounding, processing and manufacturing of tangible personal property, an amount equal to two percent of the gross proceeds of the sale of such machines. The term "machine," as herein used, includes machinery which is used for mining, quarrying, compounding, processing or manufacturing tangible personal property, and the parts of such machines, attachments and replacements therefore, which are made or manufactured for use on or in the operations of such machines and which are necessary to the operation of such machines and are customarily so used.

(4) *Automotive rate.* Upon every person, firm or corporation engaged or continuing within this city in the business of selling at retail any automotive vehicle or truck trailer, semitrailer or house trailer, or mobile home set-up materials and supplies including but not limited to steps, blocks, anchoring, cable pipes, and any other materials pertaining thereto, an amount equal to two percent of the gross proceeds of sale of said automotive vehicle or truck trailer, semitrailer or house trailer, or mobile home setup materials and supplies; provided, however, where a person subject to the tax provided for in this subsection withdraws from such person's stock-in-trade any automotive vehicle or truck trailer, semitrailer or house trailer for use by such person's or by such person's employee or agent in the operation of such business, there shall be paid, in lieu of the tax levied herein, a fee of $5.00 per year or part thereof during which such automotive vehicle, truck trailer, semitrailer or house trailer shall remain the property of the person. Each such year or part thereof shall begin with the day or anniversary date, as the case may be of such withdrawal and shall run for the 12 succeeding months or parts thereof during which such automotive vehicle, truck trailer, semitrailer or house trailer shall remain the property of such person. Where any used automobile vehicle or truck trailer, semitrailer or house trailer is taken in trade or in a series of trades, as a credit or part payment on the sale of a new or used vehicle, the tax levied herein shall be paid on the net difference, that is, the price of the new or used vehicle sold less the credit for the used vehicle taken in trade. Sales of automobiles, motorcycles, trucks, truck trailers, or semitrailers that will be registered or titled outside of the state

that are exported or removed from the state within 72 hours by the purchaser or his or her agent for first use outside of the state are not subject to municipal sales tax. Sales of other vehicles such as mobile homes, motor bikes, all terrain vehicles, and boats do not qualify for the export exemption provision and are taxable unless the dealer can provide factual evidence that the vehicle was delivered outside of the state or to a common carrier for transportation outside of the state. In order for the sale to be exempt from municipal sales tax, the information relative to the exempt sale shall be documented on forms approved by the director of finance.

(5) *Vending machine rate.* Upon every person, firm or corporation engaged or continuing within this city in the business of selling through coin operated dispensing machines, food and food products for human consumption, not including beverages other than coffee, milk, milk products and substitutes therefor, there is hereby levied a tax equal to four percent of the cost of such food, food products and beverages sold through such machines, which cost for the purpose of this subsection shall be the gross proceeds of sales of such business.

(b) *Agricultural machinery and equipment; tax imposed; rate.* There is hereby levied, pursuant to Code of Ala. 1975, § 40-23-37, a sales tax, upon every person, firm or corporation engaged or continuing within this city in the business of selling at retail any machine, machinery, or equipment which is used in planting, cultivating, and harvesting farm products, or used in connection with the production of agricultural produce or products, livestock, or poultry on farms, and the parts of such machines, machinery, or equipment, attachments and replacements therefore which are made or manufactured for use on or in the operation of such machine, machinery, or equipment, and which are necessary to and customarily used in the operation of such machine, machinery, or equipment, an amount equal to two percent of the gross proceeds of the sale thereof; provided, however, the two percent rate herein prescribed with respect to parts, attachments, and replacements shall not apply to any automotive vehicle or trailer designed primarily for public highway use, except farm trailers used primarily in the production and harvesting of agricultural commodities. Where any used machine, machinery, or equipment which is used in planting, cultivating, and harvesting farm products, or used in connection with the production of agricultural produce or products, livestock, and poultry on farms is taken in trade or in a series of trades as a credit or part payment on a sale of a new or used machine, machinery, or equipment, the tax levied herein shall be paid on the net difference, that is, the price of the new or used machine, machinery or equipment sold, less the credit for the used machine, machinery or equipment taken in trade.

(Ord. No. 97-185, § 2, 12-23-1997; Ord. No. 98-108, § 1(2), 6-30-1998; Ord. No. 98-181, § 1(2), 11-17-1998; Ord. No. 02-175, § 1(2), 12-10-2002; Ord. No. 07-234, § 1(2), 12-18-2007)

State law reference—If a sales tax, gross receipts tax in the nature of a sales tax, use tax, or rental tax levied by or on behalf of a municipality is paid under a requirement of law, then the property which is the subject of such tax is not subject to the sales tax, use tax, or rental tax of a second municipality when such property is imported for use, storage, or consumption into the second municipality, Code of Ala. 1975, § 40-23-2.1.

Sec. 3A-3-3. Exemptions.

(a) *Generally.* There are exempted from the provisions of this chapter and from the computation of the amount of the tax levied, assessed or payable under this chapter the gross proceeds of sales of tangible personal property or the gross receipts of any business which the city is prohibited from taxing under the constitution or laws of the United States or under the constitution or laws of the state, as now or hereafter amended, with particular reference to Code of Ala. 1975, title 40, ch. 23, art. 1, sales tax, as the same is now or hereafter amended and all acts supplemental thereto except where inapplicable or where herein otherwise provided, is adopted and made a part hereof by reference.

(b) *Special.* Special exemptions from the taxes imposed by this chapter are allowed in all other instances where the sales taxes levied under

Code of Ala. 1975, title 40, ch. 23, art. 1, are exempted under any other provision of the Code of Alabama 1975.

(c) *Sales tax holiday.* Certain "covered items", as defined in Code of Ala. 1975, tit. 40, ch. 23, art. 7, (Code of Ala. 1975, § 40-23-210), are exempted from the taxes imposed by this chapter during the period commencing at 12:01 a.m. on the third Friday in July of each year and ending at twelve midnight the following Sunday. This exemption is subject to the same terms, conditions, and definitions as provided for the state sales tax holiday, Code of Ala. 1975, tit. 40, ch. 23, art. 7.

(d) *Invalidity of sales tax holiday.* Subsection (c) of this section shall be null and void and shall no longer be effective if the state sales tax holiday provided for in art. 7, ch. 23, tit. 40 (Code of Ala. 1975, § 40-23-210) is canceled, delayed or postponed beyond the first weekend in August of any year or is repealed, or declared invalid or unconstitutional for any reason.
(Ord. No. 09-84, § 1(3.4), 7-16-2009; Ord. No. 97-185, § 3, 12-23-1997; Ord. No. 02-175, § 1(2), 12-10-2002; Ord. No. 09-84, § 1(3.3), 7-16-2009; Ord. No. 17-68, § 1, 6-13-2017)

State law references—State exemptions mandatory, Code of Ala. 1975, § 11-51-201; exemptions generally, Code of Ala. 1975, § 40-23-4 et seq.; school items annual sales tax holiday, Code of Ala. 1975, § 40-23-210 et seq.; exemption of sales made by state alcoholic beverage control board, Code of Ala. 1975, § 11-51-200; penalties for ordinance violations, Code of Ala. 1975, § 11-45-9.

Sec. 3A-3-4. License required to engage in business.

If any person shall engage in or continue in any business for which a privilege tax is imposed by section 3A-3-2 pursuant to Code of Ala. 1975, § 40-23-6, as a condition precedent to engaging or continuing in such business, he or she shall apply for and obtain from the city a license to engage in and to conduct such business for the current tax year upon the condition that he or she shall pay the taxes accruing to the city, under the provisions of this chapter, provided that no license shall be issued to any person who has not complied with the provisions of this chapter, and no provisions of this chapter shall be construed as relieving any person from the payment of any license or privilege tax now or hereafter imposed by law.
(Ord. No. 97-185, § 4, 12-23-1997)

Sec. 3A-3-5. Filing of returns and payment of tax.

The taxes levied under the provisions of this chapter, except as otherwise provided in subsection (3) of this section, shall be administered pursuant to Code of Ala. 1975, § 40-23-7 and shall be due and payable in monthly installments on or before the 20th day of the month next succeeding the month in which the tax accrues.

(1) *Due date and contents of return; payment of the tax.* On or before the 20th day of each month, every person on whom the taxes levied by this chapter are imposed shall report to the department, on a form prescribed by the department, a true and correct statement showing:

a. The gross sales, the gross proceeds of sales, or gross receipts of his or her business, as the case may be, for the next preceding month;

b. The amount of gross proceeds of sales or gross receipts which are not subject to the tax, or are not to be used as a measure of the taxes due by such person, and the nature thereof; and

c. Such other information as the department may deem necessary.

At the time of making such monthly report, such persons shall compute the taxes due and shall pay to the city the amount of taxes shown to be due.

(2) *Taxpayer's responsibility when no form received.* The department is authorized to provide prescribed printed forms necessary for compliance with the filing requirements outlined in this section. Failure of the taxpayer to receive forms from the department does not relieve the taxpayer of the responsibility of the timely report-

ing of the information required on the return, nor the timely payment of the tax.

(3) *Tax return filing elections.*

a. *Election to file quarterly; requirements.*

1. If the total amount of taxable sales for which any person is liable under this chapter does not exceed $5,000.00 per month during the preceding calendar year, or, if the total tax liability due to the state for such sales during such period averages less than $200.00 per month during the preceding calendar year, a quarterly return and remittance in lieu of the monthly returns may be made, by election of the taxpayer to the department, on or before the 20th day of the month next succeeding the end of the quarter for which the tax is due, and under such rules and regulations as may be prescribed in Code of Ala. 1975, § 40-23-7.

2. In order to file quarterly, the election shall be made in writing no later than February 20 of each year and shall be filed with the department. If such election is not timely made and in accordance with the provisions of this subsection, returns shall be due monthly as provided for in this section.

b. *Election to file yearly.* Notwithstanding subsection (3)a of this section, if the total amount of taxable sales for which any person is liable under this chapter does not exceed $250.00 during the preceding calendar year, or, if the total tax liability due to the state for such sales during such period is less than $10.00 during the preceding calendar year, a yearly return and remittance shall be made to the department, on or before January 20 of each year. In order to file yearly, the election shall be made in writing and shall be filed with the department. If such election is not timely made and in accordance with the provisions of this subsection, returns shall be due monthly as provided for in this section.

(4) *Timely mailing treated as timely filing and paying.* The provisions outlined in this section for the timely filing of any returns, payments, claims, statements or other documents shall be administered as herein provided.

a. *Date of delivery.* If any return, claim, statement, or other document required to be filed, or any payment required to be made, within a prescribed period or on or before a prescribed date under the authority of any provision of this chapter is, after such period or such date, delivered by United States mail to the finance department or to the department's designated depository where such return, claim, statement, or other document is required to be filed, or to which such payment is required to be made, the date of the United States postmark stamped on the cover in which such return, claim, statement, or other document, or payment, is mailed shall be deemed to be the date of delivery or the date of payment, as the case may be; provided, however:

1. *Weekends and holidays.* When the due date falls on a Saturday, Sunday or city holiday, payment of the tax may be made without penalty on the first working day following the due date.

2. *Mailing requirements.* The return, claim, statement, or other document, or payment was, within the time prescribed in subsection (4)a of this section, deposited in the mail in the United States in an envelope or other appropriate wrapper, postage prepaid, properly addressed

to the finance department or to the department's designated depository where such return, claim, statement, or other document is required to be filed, or to where such payment is required to be made.

b. *Delivery by method other than United States mail.* Returns, claims, statements, or other documents, or payments which are required under any provision of this chapter which are delivered by any method other than by United States mail shall be considered timely filed when such items are received in the finance department or the department's designated depository on the due date prescribed.

c. *Untimely filing.* Any return, claim, statement, or other document, or payment not received in accordance with the provisions of this section shall be deemed untimely filed and shall be assessed applicable penalties and interest as prescribed by the relevant sections of this chapter.

(5) *Bulk submissions.* The department may accept, for reporting and payment of taxes due the city, bulk submissions of reports, and under regulations promulgated by the department, payments owed to the city made on behalf of the taxpayer by its properly authorized representative where such submissions are made using the appropriate form prescribed by the department, as provided in Code of Ala. 1975, § 11-51-210(d). Any such bulk submissions of reports and payments shall include:

a. The city's assigned taxpayer identification number for each such taxpayer for each tax paid; and

b. Sufficiently detailed information by which each taxpayer can be identified such that a determination can be made as to the amount and method of assessment of tax against such taxpayer for the city.

The acceptance by the city of such bulk submissions shall not relieve the taxpayer on whose behalf such submissions were made from liability for any sales tax arising from an error or omission made by the taxpayer's representative. Such bulk submission shall be signed by the taxpayer or its properly authorized representative.

(6) *Returns to be filed even though no tax may be due.* Where a return is required to be filed pursuant to a provision of this chapter, such returns shall be filed in accordance with the provisions outlined herein, provided that, a return should be filed for each reporting period, by the due date required, even when no tax is due.

(Ord. No. 97-185, § 5, 12-23-1997; Ord. No. 98-108, § 1(5), 6-30-1998; Ord. No. 98-181, § 1(5), 11-17-1998; Ord. No. 00-209, § 1(5), 12-12-2000; Ord. No. 07-234, § 1(5), 12-18-2007)

Sec. 3A-3-6. Extension of time for making return.

In accordance with Code of Ala. 1975, § 40-23-7, the director of finance, at his or her discretion, for reasonable cause, may extend the time for making any return required under the provisions of this chapter, however, the time for filing any such return shall not be extended for a period greater than 30 days from the date such return is due to be made and shall not prevent penalty and interest from accruing during the period of such extension.

(Ord. No. 97-185, § 6, 12-23-1997)

Sec. 3A-3-7. Credit sales.

Pursuant to Code of Ala. 1975, § 40-23-8, any person taxable under this chapter having cash and credit sales may report such cash sales, and the taxpayer shall thereafter include in each monthly report all credit collections made during the month preceding, and shall pay the taxes due thereon at the time of filing such report, but in no event shall the gross proceeds of credit sales be

included in the measure of the tax to be paid until collections of such credit sales shall have been made.
(Ord. No. 97-185, § 7, 12-23-1997)

Sec. 3A-3-8. Oaths.

As provided in Code of Ala. 1975, § 40-23-10, the monthly reports herein required to be made are not required to be made under oath, but wherever in this chapter any report is required to be sworn to, the same shall be sworn to by the taxpayer or his agent before some officer authorized to administer oaths, and any false statement to a material fact made with intent to defraud shall constitute perjury, and upon conviction thereof, the person so convicted shall be punished as provided in section 1-1-6, as amended and as it may be amended.
(Ord. No. 97-185, § 8, 12-23-1997)

Sec. 3A-3-9. Maintenance of records; investigative powers; audit and subpoena authority.

The provisions of this section shall be administered in accordance with the procedures set forth in Code of Ala. 1975, §§ 40-23-9 and 40-2A-7(a).

(1) *Records to be kept.* It shall be the duty of every person engaging, or continuing, in this city in any business for which a privilege tax is imposed by this chapter to keep and preserve an accurate and complete set of records of the gross sales, gross proceeds of sales and gross receipts or gross receipts of sales of such business and such other books or accounts as may be necessary to allow the department to determine the correct amount of tax for which he or she is liable, or other records or information as may be necessary for the proper administration of any matters, under the provisions of this chapter. It shall also be the duty of every person to keep and preserve, for a period of not less than five years from the due date of the return on which the underlying tax is required to be reported, or five years of the date the return is filed, whichever is later, all invoices of goods, wares and merchandise purchased, for resale or otherwise, and all such receipts, books, invoices and other records shall be open for examination by the department, upon request, at a reasonable time and location.

a. *Reasonable time and reasonable location.* For the purposes of this section, reasonable time shall be considered to be during normal business hours of the department. Reasonable location shall be considered to be the taxpayer's place of business or the offices of the taxpayer's authorized representative, provided such business or representative is located within a 50-mile radius of the city. Taxpayers maintaining records outside of this radius must make records available at city hall or at such other location as agreed upon by the department. The department, when conducting an audit, review or examination for verification, may, at its election, require any taxpayer conducting business within the city to provide records, accounts, books, papers and other documents at a reasonable time and reasonable place agreed upon by the department, as provided herein.

b. *Taxpayer may be assessed reasonable costs.* As provided in Code of Ala. 1975, § 40-2A-6(d), the department may assess and collect from the taxpayer, the reasonable costs, based on the then current state government employee per diem rates incurred by, or charged to, the city in connection with performing an examination of the taxpayer's books and records if the taxpayer received notice by certified U.S. mail, return receipt requested, at least 30 days prior to the date on which the examination was to commence, and:

1. The taxpayer either failed or refused to respond or did not

propose a reasonable alternative date on which the examination was to commence within 15 days of receipt of notice of the pending examination; or

2. The taxpayer and the department agreed in writing as to an alternative date on which the examination was to commence but the taxpayer then failed or refused to permit reasonable access to its books and records on the alternative date.

c. *Selling at wholesale and retail.* Any person selling both at wholesale and retail shall keep his or her books so as to show separately the gross proceeds of wholesale sales and the gross proceeds of retail sales. All sales shall be subject to tax in the absence of such separate records.

(2) *Investigative powers.* Each taxpayer shall give to the director of finance the means, facilities and opportunity for the making of such audit, examination, and investigation of the records, books, or other relevant information maintained by any taxpayer or other person for the purpose of computing and determining the correct amount of value or the correct amount of tax as provided for in subsection (1) of this section. The director of finance is hereby authorized to examine any person under oath concerning any gross receipts which were or should have been shown in a return, and to this end, he or she may compel the production of books, papers, records and the attendance of all persons before him or her, whether as parties or as witnesses, whom he or she believes to have knowledge of such gross receipts. Any taxpayer, or officer of a corporation or association, or partner of a partnership, or fiduciary of a trust, or responsible individual of any entity under a duty to maintain books and records pursuant to this chapter, who fails or refuses to maintain or provide such records and books, or permit inspection, as required herein, shall be subject to the provisions of section 3A-3-11, and shall be subject to contempt proceedings in the circuit court.

(3) *Audit and subpoena authority; additional requirements.* Code of Ala. 1975, § 40-2A-7(a), outlines further requirements for the maintenance of records, in addition to the recordkeeping requirements set out in subsection (1) of this section. The department's authority to audit, to subpoena records, and to enter into contracts with private examining or collecting firms is granted pursuant to Act No. 98-191, the Local Tax Procedures Act of 1998, Act No. 98-192, the Local Tax Simplification Act of 1998, as well as Code of Ala. 1975, § 40-2A-7(a), except where inapplicable or where herein otherwise provided.

(Ord. No. 97-185, § 9, 12-23-1997; Ord. No. 98-108, § 1(9), 6-30-1998; Ord. No. 98-181, § 1(9), 11-17-1998; Ord. No. 07-234, § 1(9), 12-18-2007)

Sec. 3A-3-10. Refunds.

(a) *Petitions for refund.*

(1) Any taxpayer may file a petition for refund with the department for any overpayment of tax erroneously paid to the department as provided in Code of Ala. 1975, § 40-2A-7(c)(1). If a final assessment for the tax has been entered by the department, a petition for refund of all or a portion of the tax may be filed only if the final assessment plus applicable interest has been paid in full prior to or with the filing of the petition for refund.

(2) The petition for refund must be filed in writing jointly by the taxpayer who collected and paid over the tax to the department and the purchaser who paid the tax to the taxpayer. However, a direct petition may be filed in writing by the taxpayer if the taxpayer never collected the tax from the consumer/purchaser, or if the tax has been credited or repaid to the consumer/purchaser by the taxpayer.

(3) Unless otherwise provided by law, all petitions for refund shall include sufficient information to identify the type and amount of tax overpaid, the taxpayer, the period included, and the reasons for the refund. Such petition shall be accompanied with sufficient supporting documentation as the department may deem necessary and proper.

(b) *Refund overpayments applied to other taxes.* Refund overpayments may be applied to other taxes as provided in Code of Ala. 1975, § 40-2A-7(c)(4). If a petition is granted by the department, or a court determines that a refund is due, the overpayment shall be refunded to the taxpayer by the department. If the department determines that a refund is due, the amount of overpayment may first be credited by the department against any outstanding final tax liabilities due and owing by the taxpayer to the department, and the balance of any overpayment shall be refunded to the taxpayer. If any refund or part thereof is credited to any other tax by the department, the department shall provide a written detailed statement to the taxpayer showing the amount of overpayment, the amount credited for payment to other taxes, and the amount refunded.

(c) *Time limitations.*

(1) A petition for refund must be filed in writing with the department within:

a. Three years from the date the return was filed;

b. Two years from the date of payment of the tax, whichever is later; or

c. If no return was timely filed, two years from the date of the payment of the tax.

(2) The department shall either grant or deny a petition for refund within six months from the date the petition is filed, unless the period is extended by written agreement of the taxpayer and the department. The taxpayer shall be notified of the department's decision concerning the petition for refund by first class United States mail, or by certified mail with return receipt requested, sent to the taxpayer's last known address. If the department is unable to grant a refund within the time provided herein due to the taxpayer's failure to provide adequate documentation, the petition for refund shall be deemed to be denied.

(3) The department and the taxpayer may, prior to the expiration of the period for the filing of a petition for refund, agree in writing to extend the time provided for filing the petition. The petition for refund may be filed at any time prior to the expiration of the period agreed upon. The period agreed upon may be extended by subsequent agreements in writing made before the expiration of the period previously agreed upon.

(d) *Interest on refunds.* On any overpayment of any sales tax levied under any provisions of this chapter, the city, in addition to the amount of the overpayment, shall refund interest thereon at the rate of one percent per month, or fraction thereof, from the date of such overpayment on any refund of tax erroneously paid. As provided in Code of Ala. 1975, § 11-51-208(f), references in this subsection to erroneously paid taxes on which interest shall be due to the taxpayer shall only mean and refer to taxes erroneously paid to the city as a result of any error, omission, or inaccurate written advice by or on behalf of the city, including in connection with a prior examination of its books and records by the city.

(e) *Assignment of refunds.* The right of any person to a refund under this section is not assignable. A petition for a refund must be made by the person who withheld and remitted the tax.

(f) *Action for recovery of refund.* It is unlawful for any petitioner for a tax refund to make a false statement in connection with such application. If any person obtains a refund unlawfully, the director of finance is empowered and directed to bring appropriate action for recovery of such refund. A conviction for the violation of this subsection shall constitute prima facie evidence that all refunds received by such person pursuant to the petition which contained the false

statement were obtained unlawfully. Obtaining a refund unlawfully shall be an act of fraud against the city and shall be subject to applicable penalties outlined in section 3A-3-13.
(Ord. No. 97-185, § 10, 12-23-1997; Ord. No. 98-108, § 1(10), 6-30-1998; Ord. No. 02-175, § 1(10), 12-10-2002; Ord. No. 07-234, § 1(10), 12-18-2007)

Sec. 3A-3-11. Jeopardy, preliminary, final assessments and time limitations.

(a) *Jeopardy assessments.* All jeopardy assessments issued by the department shall be executed pursuant to Code of Ala. 1975, § 40-29-91(a), (b) and (c).

(1) If the director of finance finds a person liable for tax under any provisions of this chapter designs quickly to depart from the city or to remove his or her property therein, or to conceal himself or herself or his or her property therein, or to do any other act tending to prejudice or to render wholly or partly ineffectual proceedings to collect any tax imposed by this chapter, the director of finance may issue notice of such finding to the taxpayer by personal service or mailing to the taxpayer's last known address, together with a demand for immediate payment of the tax declared to be in jeopardy, including penalties and additions thereto and such tax, penalty, interest, and additions thereto shall be immediately due and payable. A final assessment of such tax may be entered immediately and if the assessment is not paid upon such demand of the director, the director may forthwith issue a warrant for levy and distraint of any personal property of the taxpayer which shall be collected in the same manner and with like effect as provided under section 3A-2-20.

(2) In the case of a tax for a current period, the director may declare the taxable period of the taxpayer immediately terminated and may at his or her discretion estimate the tax liability based upon the best information obtainable. Notice of such finding and declaration shall be issued to the taxpayer in the same manner as in subsection (a)(1) of this section.

(3) When a jeopardy assessment has been made as provided in this subsection (a), the collection of all or any part of such assessment may be stayed by filing with the director an approved bond conditioned upon the payment of the assessment together with applicable interest and costs of collection. The director shall have sole discretion to approve or disapprove the bond, but such approval shall not be unreasonably withheld.

(b) *Preliminary and final assessments.* All preliminary and final assessments issued by the department shall be executed as provided in Code of Ala. 1975, § 40-2A-7(b)(1)a and b, (b)(3) and (b)(4) and Code of Ala. 1975, § 40-29-91. The terms "preliminary assessment" and "final assessments" shall have the respective meanings ascribed by Code of Ala. 1975, § 40-2A-3.

(1) *Entry of preliminary assessment.* If the department determines that the amount of any tax as reported on a return is incorrect, or if no return is filed, or if the department is required to determine value, the department may calculate the correct tax or value based on the most accurate and complete information reasonable obtainable by the department. The department may thereafter enter a preliminary assessment for the correct tax or value, including any applicable penalty and interest.

(2) *Service of preliminary assessment upon taxpayer; appeal; review.* The preliminary assessment entered by the department, or a copy thereof, shall be promptly mailed by the department to the taxpayer's last known address by either first class U.S. mail or certified mail with return receipt requested, but at the option of the department, the preliminary assessment may be delivered to the taxpayer by personal delivery. In the case of any preliminary assessment or jeopardy assessment entered under the provisions

of this chapter, the department shall notify the taxpayer by certified mail with return receipt requested to the taxpayer's last known address, or written notice delivered by the department's authorized agent, of the amount of such assessment, and shall notify the taxpayer to appear before the city council on a day named not less than 30 days from the date of such notice and show cause why such assessment should not be made final. Such appearance may be made by the taxpayer or his or her duly authorized agent. If no showing is made on or before the date fixed in such notice, or if such showing is not sufficient in the judgment of the city council, such assessment shall be made final in the amount originally fixed or in such other amount as is determined by the city council to be correct. If upon such hearing the city council finds the amount due to be different from that originally assessed, it shall make the assessment final in the correct amount and in all cases shall notify the taxpayer of the assessment as finally fixed, by certified mail with return receipt requested addressed to the taxpayer's last known address. On appeal to the city council, the final assessment shall be prima facie correct, and the burden of proof shall be on the taxpayer to prove such assessment is incorrect.

(3) *Service of final assessment upon taxpayer.* The final assessment entered by the department, or a copy thereof, shall be mailed by the department to the taxpayer's last known address by certified mail return with receipt requested. At the option of the department, the final assessment, or a copy thereof, may be delivered to the taxpayer by personal delivery.

(4) *Undisputed preliminary assessments.* Where the amount of tax or value reported on a return is undisputed by the department, or the taxpayer consents in writing to the department's determination of the amount of any deficiency, determination of value, or preliminary assessment as provided by this chapter, the department may immediately enter a final assessment for the amount of the tax or value, plus applicable penalty and interest; provided, the department may at any time enter a final jeopardy assessment, pursuant to Code of Ala. 1975, § 40-29-91.

(c) *Time limitation for entering assessments.*

(1) Pursuant to Code of Ala. 1975, § 40-2A-7(b)(2), any preliminary assessment must be entered within three years from the due date of the return, or three years from the date the return is filed with the department, whichever is later, or if no return is required to be filed, within three years of the due date of the tax, except as follows:

a. A preliminary assessment may be entered at any time if no return is filed as required, or if a false or fraudulent return is filed with the intent to evade tax;

b. A preliminary assessment may be entered within six years from the due date of the return or six years from the date the return is filed with the department, whichever is later, if the taxpayer omits from the taxable base an amount properly includable therein which is in excess of 25 percent of the amount of the taxable base stated in the return.

For purposes of this paragraph:

1. The term "taxable base" means the gross proceeds from sales, gross receipts, or other amounts on which the tax paid with the return is computed; and

2. In determining the amount omitted from the taxable base, there shall not be taken into account any amount which is omitted from the taxable base stated in the return if the amount is disclosed in the return, or in a statement attached to the return, in a

manner adequate to apprise the department of the nature and amount of the item.

c. A preliminary assessment entered pursuant to Code of Ala. 1975, §§ 40-29-72 and 40-29-73, may be entered within five years from the due date of the return on which the underlying tax is required to be reported or within five years of the date the return is filed, whichever is later.

(2) The department and the taxpayer may, prior to the expiration of the period for entering a preliminary assessment, agree in writing to extend the time provided for entering the assessment. The tax may be assessed at any time prior to the expiration of the period agreed upon. The period agreed upon may be extended by subsequent agreements in writing made before the expiration of the period previously agreed upon.

(3) Additional tax may be assessed by the department within any applicable period allowed above, even though a preliminary or final assessment has been previously entered by the department against the same taxpayer for the same or a portion of the same tax period.

(Ord. No. 97-185, § 11, 12-23-1997; Ord. No. 98-108, § 1(11), 6-30-1998)

Sec. 3A-3-12. Appeals.

(a) *Execution; information required.* Appeals from denial of refunds, jeopardy assessments, and final assessments shall be executed as provided in Code of Ala. 1975, § 6-3-11. A written notice of appeal shall be filed with the department and shall contain information sufficient to:

(1) Identify the name of the taxpayer or other party filing such notice of appeal;

(2) Identify the specific matter appealed from;

(3) Outline the basis for such appeal; and

(4) Specify the relief sought.

(b) *Appeal from refund denial.*

(1) A taxpayer may appeal from the denial in whole or in part of a petition for refund by filing a written notice of appeal with the circuit court within two years from the date the petition is denied. The circuit court shall hear the appeal according to its own rules and procedures and shall determine the correct amount of refund due, if any.

(2) If an appeal is not filed with the circuit court within two years of the date the petition is denied, then the appeal shall be dismissed for lack of jurisdiction.

(c) *Appeal from jeopardy assessment.*

(1) In any court proceeding to contest the jeopardy assessment or to enforce payment of the taxes made due and payable by virtue of the provisions of section 3A-3-11, the finding of the director of finance, made as herein provided, shall be for all purposes presumptive evidence of jeopardy.

(2) A final jeopardy assessment entered hereunder may be appealed to the circuit court. On appeal to the circuit court, the final jeopardy assessment shall be prima facie correct, and the burden of proof shall be on the taxpayer to prove such assessment is incorrect.

(3) If an appeal is not filed with the circuit court within the time provided herein for appeal of final assessments, the appeal shall be dismissed for lack of jurisdiction.

(d) *Appeal from preliminary assessment.* (Refer to section 3A-3-11(b)(2).)

(e) *Appeal from final assessment.*

(1) A taxpayer may appeal from any final assessment entered by the department by filing a written notice of appeal with the director of finance within 30 days from the date of entry of the final assessment, and the appeal, if timely filed, shall proceed as herein provided.

(2) The taxpayer may appeal from any final assessment to the circuit court by filing

written notice of appeal within 30 days, from the date of entry of the final assessment with the circuit court. If the appeal is to the circuit court, the taxpayer must, also within the 30-day period, allowed for appeal, either: (i) pay the tax, interest, and any penalty shown on the final assessment; or (ii) file a supersedeas bond with the court in double the amount of the tax, interest, and any penalty shown on the final assessment. The supersedeas bond shall be executed by a surety company licensed and authorized to do business in the state and shall be conditioned to pay the assessment plus applicable interest, penalty and any court costs relating to the appeal. A taxpayer may appeal a final assessment to Circuit Court as provided herein, even though the taxpayer has paid the tax in issue prior to taking the appeal.

(3) The filing of the notice of appeal to the circuit court and also the payment of the assessment in full and applicable interest and penalty or the filing of a bond as provided herein, are jurisdictional. If such prerequisites are not satisfied within the time provided for appeal, the appeal shall be dismissed for lack of jurisdiction. On appeal to the circuit court the final assessment shall be prima facie correct, and the burden of proof shall be on the taxpayer to prove such assessment is incorrect.

(Ord. No. 97-185, § 12, 12-23-1997; Ord. No. 98-108, § 1(12), 6-30-1998)

Sec. 3A-3-13. Penalties and interest.

The provisions for penalties are pursuant to Code of Ala. 1975, § 40-2A-11; provided, however, the rates and amounts of penalties are as provided herein.

(1) *Failure to timely file return.* If a person fails, neglects, or refuses to file any return required to be filed with the department on or before the date prescribed therefor, determined with regard to any extension of time for filing granted by the director of finance, there shall be assessed, in addition to the tax due or the amount of tax herein required to be collected and/or remitted, a penalty of ten percent of the amount due or $50.00, whichever is greater, together with interest thereon at the rate of one percent per month, or fraction thereof, from the date at which the tax herein levied became due and payable, such penalty and interest to be assessed and collected as part of the tax as provided in Code of Ala. 1975, § 40-2A-11(a).

(2) *Failure to timely pay tax.* If a person fails, neglects, or refuses to pay to the department the amount of tax shown as due on a return required to be filed on or before the date prescribed for payment of the tax, determined with regard to any extension of time granted for payment by the director of finance, there shall be added:

a. In addition to the tax due or the amount of tax herein required to be collected and/or remitted;

b. For any tax which a monthly or quarterly return is required; or

c. For which no return is required;

a penalty of ten percent of the unpaid amount shown as tax due on the return or the amount stated in the notice and demand, together with interest thereon at the rate of one percent per month, or fraction thereof, from the date at which the tax herein levied became due and payable as provided in Code of Ala. 1975, § 40-2A-11(b).

(3) *Underpayment of tax.* Any person failing to pay the tax herein levied to the city or any amount of tax herein required to be collected and paid to the city, within the time required by this chapter, shall pay, in addition to the tax or the amount of tax herein required to be collected and/or remitted, a penalty of ten percent of the amount of tax due, plus interest at the rate of one percent per month, or fraction thereof, from the date at which the tax or the amount of tax herein levied became

due and payable, such penalty and interest to be assessed and collected as part of the tax.

(4) *Underpayment due to negligence.* If any part of any underpayment of tax is due to negligence or disregard of rules or regulations, there shall be added to the tax an amount equal to ten percent of that part of the tax attributable to negligence or disregard of rules and regulations. For the purpose of this section, the term "negligence" includes any failure to make a reasonable attempt to comply with this chapter, and the term "disregard" includes any careless, reckless or intentional disregard as provided in Code of Ala. 1975, § 40-2A-11(c).

(5) *Underpayment due to fraud.* If any part of any underpayment of tax required to be shown on a return is due to fraud, there shall be added to the tax an amount equal to 50 percent of that portion of the underpayment which is attributable to fraud. For purposes of this section, the term "fraud" shall have the same meaning as ascribed to the term under Code of Ala. 1975, § 40-2A-11(d).

(6) *Frivolous appeal penalty.* If any appeal to the director of finance or to circuit court is determined to be frivolous or primarily for the purpose of delay or to impede collection of the tax imposed by this chapter, a penalty of $250.00 or 25 percent of the tax in question, whichever is greater, shall be assessed in addition to any tax due as provided in Code of Ala. 1975, § 40-2A-11(f).

(7) *Penalties not exclusive.* The penalties provided in this section for failure to timely file a return, failure to timely pay tax, underpayment of taxes, underpayment due to negligence, or filing a frivolous appeal may be asserted against the same taxpayer for the same tax period as provided in Code of Ala. 1975, § 40-2A-11(g). If the fraud penalty is asserted, no other penalties shall be asserted.

(8) *Waiver of penalties.* Penalties may be waived, in whole or in part, by the director of finance upon a determination of reasonable cause, pursuant to Code of Ala. 1975, § 40-2A-11(h). Reasonable cause shall include, but not be limited to, those instances in which the taxpayer has acted in good faith. The burden of proving reasonable cause shall be on the taxpayer.

(9) *Penalty and interest assessed as tax.* All penalties and interest, levied or assessed against a taxpayer and which are administered by the department shall be assessed and collected in the same manner as taxes. (See Code of Ala. 1975, §§ 40-2A-11(i) and 40-29-72.)

(10) *Interest.* Interest shall be computed at rate of one percent per month or fraction thereof, and shall be added as provided herein to any tax or other amount due the department which is not paid by the due date. Interest on any delinquency or underpayment shall be charged from the due date of the tax, as provided in Code of Ala. 1975, § 40-1-44.

(11) *Abatement of penalty.* The department shall abate any penalty attributable to erroneous written advice furnished to a taxpayer by an employee of the department. However, this subsection shall apply only if the department employee provided the written advice in good faith while acting in his official capacity, the written advice was reasonably relied on by the taxpayer and was in response to a specific written request of the taxpayer, and the penalty did not result from the taxpayer's failure to provide adequate or accurate information.

(12) *Penalty for failure to perform duties.* Any person required to collect, truthfully account for, and/or pay over any tax imposed by this chapter who willfully fails to collect such tax, or truthfully account for, and/or pay over such tax, or willfully attempts in any manner to evade or defeat any such tax or the payment

thereof, shall, in addition to other penalties provided by law, be liable for a

penalty up to the total amount of the tax evaded, or not collected, or not accounted for and paid over.

(Ord. No. 97-185, § 13, 12-23-1997; Ord. No. 98-108, § 1(13), 6-30-1998; Ord. No. 98-181, § 1(13), 11-17-1998; Ord. No. 00-209, § 1(13), 12-12-2000)

Sec. 3A-3-14. Confidentiality of tax returns.

The confidentiality provisions imposed by this Code shall be executed as provided in Code of Ala. 1975, § 40-2A-10(a), (d), (e), (f) and (g).

(1) It shall be unlawful for any person to print, publish, or divulge, without the written permission or approval of the taxpayer, the tax return of any taxpayer or any part thereof or any information secured in arriving at the amount of tax or value reported for any purpose other than the proper administration of any matter administered by the department, or upon order of any court, or as otherwise allowed in this section. Statistical information pertaining to taxes may be disclosed at the discretion of the director of finance. The director of finance may make written or verbal disclosure upon request as to the status of compliance of the taxpayer relative to this Code.

(2) A good standing certificate shall be issued to a requesting person with respect to a taxpayer, if the taxpayer has filed all tax returns due, and paid the taxes shown as payable in accordance with those returns.

(3) The director of finance shall promulgate reasonable regulations permitting and governing the exchange of tax returns, information, records, and other documents secured by the department, with tax officers of other agencies of the state, municipal, and county government agencies within the state, federal government agencies, any association of state government tax agencies of the state or other states, and any foreign government tax agencies, however:

a. Any tax returns, information, records, or other documents remain subject to the confidentiality provisions set forth in subsection (1) of this section;

b. The department may charge a reasonable fee for providing information or documents for the benefit of the requesting agencies; and

c. Any exchange shall be for one or more of the following purposes:

1. Collecting taxes due.

2. Ascertaining the amount of taxes due from any person.

3. Determining whether a person is liable for, or whether there is probable cause for believing a person might be liable for the payment of any tax.

(4) Nothing herein shall prohibit the use of tax returns or tax information by the department in the enforcement, collection, and assessment of any tax levied or imposed by this Code, or any other matters administered by the department. The department may also divulge to a purchaser or successor of a business or stock of goods the outstanding taxes of which the purchaser or successor may be liable pursuant to Code of Ala. 1975, § 40-23-25. This section shall not preclude the inspection of returns by federal or foreign state agents pursuant to Code of Ala. 1975, § 40-18-53.

(5) Nothing herein shall prohibit the exchange of information between and among county or municipal governments subject to the restrictions of this section.

(6) In no event shall any damages, attorney fees, or court costs be assessed against the city or against its elected officials, officers, or employees under this section.

(Ord. No. 97-185, § 14, 12-23-1997; Ord. No. 98-108, § 1(14), 6-30-1998)

Sec. 3A-3-15. Regulations may be promulgated; payments due taxpayers may be withheld.

Regulations may be promulgated pursuant to Code of Ala. 1975, § 40-23-31.

(1) *Regulations may be promulgated.*

a. The director of finance shall from time to time promulgate rules and regulations for making returns and for ascertainment, assessment and collection of the tax imposed hereunder as the director may deem necessary to enforce its provisions; and upon request shall furnish any taxpayer with a copy of such rules and regulations.

b. The director of finance may adopt, prescribe, promulgate and enforce reasonable rules and regulations not in conflict with this chapter relating to any matter or thing pertaining to the administration and enforcement of the provisions of this chapter, including but not limited to provisions for the re-examination and correction of returns as to which overpayment or underpayment is claimed or found to have been made, and the rules and regulations so promulgated shall be binding upon all taxpayers.

c. The director of finance shall prescribe printed forms for use by persons subject to the provisions of this chapter and shall make such forms available at the director's office for use by such persons.

(2) *Payments due taxpayers may be withheld.* Pursuant to the Mayor-City Council Act, article VI, section 6.04(o), Act No. 452-55 Acts of Alabama, the director of finance, in order to protect the interests of the city, is authorized to withhold the payment of any claim or demand for payment of monies due from the city to any vendor, contractor, consultant or other person having unpaid or delinquent tax or license liabilities until such unpaid tax, including applicable interest and penalties, shall first have been settled and adjusted. The director of finance shall notify the taxpayer by certified mail with return requested, sent to the taxpayer's last known address, of the director's intention to make such levy, the effect of which shall be continuous from the date such levy is first made until the liability out of which such levy arose is satisfied.

(Ord. No. 97-185, § 15, 12-23-1997)

Sec. 3A-3-16. Purchaser to withhold taxes due from purchase money or be liable.

Any person subject to the provisions of Code of Ala. 1975, § 40-23-25 who shall sell out his or her business or stock of goods, or shall quit business, shall be required to make out a final return, as provided for under section 3A-3-5, and shall make payment of the taxes due within 30 days after the date he or she sold out his or her business, or stock of goods, or quit business, and his or her successor in business shall be required to withhold sufficient of the purchase money to cover the amount of said taxes due and unpaid until such time as the former owner shall produce a receipt from the department showing that the taxes have been paid, or a certificate stating that no taxes are due. If the purchaser of a business or stock of goods shall fail to withhold purchase money as provided herein, and the taxes remain due and unpaid after said 30-day period, he or she shall be personally liable for the payment of the taxes accrued and unpaid on account of the operation of the business by the former owner. If in such cases the department deems it necessary in order to collect the taxes due, it may make a jeopardy assessment as provided in Code of Ala. 1975, tit. 40, ch. 29.

(Ord. No. 97-185, § 16, 12-23-1997)

Sec. 3A-3-17. Disposition of funds derived from taxes.

All money derived from sales tax levied under the provisions of this chapter shall be paid to the

city and placed to the credit of the general fund of the city, and shall be used and expended as authorized by law and ordinance.
(Ord. No. 97-185, § 17, 12-23-1997; Ord. No. 98-108, § 1(17), 6-30-1998)

Sec. 3A-3-18. Bond requirements.

For the purpose of securing the payment of any tax, penalties, or interest due or which may become due under the provisions of this chapter, every itinerant vendor engaged in the business of selling tangible personal property at retail in the city shall be required to file a bond to be approved by the director of finance, conditioned upon the payment of any tax, penalty, or interest due or to become due under this chapter and upon faithful observance of the provisions of this chapter, as provided in Code of Ala. 1975, § 40-23-24.

(1) Such bond shall:

a. Be effective for a period of one year from date of issuance;

b. Be in an amount equal to the tax estimated due or to become due under the provisions of this chapter, but in no event shall said bond be less than $1,000.00 nor more than three percent of anticipated sales, whichever is greater, as fixed by the director of finance; and

c. Have a surety or sureties satisfactory to the director of finance; or

(2) Said itinerant vendor may deposit in cash said sum, which shall be estimated by the director of finance to be due or to become due under the provisions of this chapter

If such itinerant vendor fails to make any return due under this chapter or to pay any taxes or penalties due hereunder, or to keep books and records as required by this chapter, or fails to perform any other duty or obligation imposed on him under this chapter, such bond, or cash deposited in lieu thereof, shall thereupon be forfeited, and the department shall institute an action upon such bond in the name of the city for the entire amount of said bond and costs.
(Ord. No. 97-185, § 18, 12-23-1997; Ord. No. 98-181, § 1(18), 11-17-1998)

Sec. 3A-3-19. Discount.

A discount of three-fourths of one percent (0.0075) of the taxes levied by this chapter due and payable to the city shall be allowed to the seller or vendor provided the taxes due by such seller are paid before the same becomes delinquent, as provided in this chapter pursuant to Code of Ala. 1975, § 40-23-36, with a maximum discount allowed of $400.00. If the returns are not filed within the time herein provided and the taxes not paid on the dates herein provided for, no such person shall be entitled to such a discount, but shall pay to the city the amount of tax due, together with applicable penalty and interest at the rate of one percent per month from the date the payment of said tax became delinquent.
(Ord. No. 97-185, § 19, 12-23-1997; Ord. No. 14-123, § 1, 9-10-2014)

Sec. 3A-3-20. Seller to collect and remit taxes.

Tax to be added to purchase price pursuant to Code of Ala. 1975, § 40-23-26.

(1) Every person, firm, corporation, association or copartnership engaged in or continuing within the city in any business for which a license or privilege tax is required by this chapter shall add to the sales price and collect from the purchaser on all sales upon the gross receipts or gross proceeds of which there is levied by this chapter a sales tax at the rate of four percent of the sales price. Upon all sales the gross receipts or gross proceeds of which are taxed by this chapter at a rate of less than four percent, there shall be added to the sales price and collected from the purchaser by such person, firm, corporation, association, or copartnership described in this section an amount equal to the prescribed percentage of such sales price.

(2) It shall be unlawful for any person, firm, corporation, association, or copartnership described in this section to fail or refuse to add to the sales price and collect from the purchaser the amount required by this section to be so added to the sales price and collected from the purchaser; and it shall likewise be unlawful to refund or offer to refund all or any part of the amount collected, or to absorb or advertise directly or indirectly the absorption or refund of the amount required to be added to the sales price and collected from the purchaser, or any portion of such amount. Any person, firm, corporation, association, or copartnership violating any of the provisions of this section shall upon conviction be fined in a sum of not less than $50.00 or more than $500.00, or may be imprisoned for not more than six months or both such fine and imprisonment, and each act in violation of the provisions of this chapter shall constitute a separate offense. The requirement herein that there shall be added to the sales price and collected from the purchaser the amounts provided herein shall in no way relieve the person, firm, corporation, association, or copartnership described in this section of the tax levied by this chapter, nor shall the inability, impracticability, refusal, or failure to add to the sales price and collect from the purchaser the amounts provided herein relieve such person, firm, corporation, association or copartnership from the tax levied by this chapter.

(3) All taxes paid in pursuance to this chapter shall conclusively be presumed to be a direct tax on the retail consumer precollected for the purpose of convenience and facility only.

(4) In the event that any sum is collected from a consumer that purports to be collected because of this section, whether or not the amount is actually provided for hereunder, then any such sum, except such as is collected solely because of rounding the correct amount of tax upward to the nearest cent, shall be paid to the department.

(Ord. No. 97-185, § 20, 12-23-1997; Ord. No. 98-181, § 1(20), 11-17-1998)

Sec. 3A-3-21. Credit for sales tax erroneously paid.

Pursuant to Code of Ala. 1975, § 40-23-2.1, if a sales tax equal to or greater than the amount of city sales tax is paid to another city under a requirement of law, the property which is the subject of such tax, when imported for use or consumption in the city, is not subject to the sales tax, which is required to be paid by section 3A-3-2. The director of finance shall require such proof of payment of tax to another city as he or she deems to be necessary and proper.

(1) *Taxes due the city which were erroneously paid to another municipality.*

a. *Taxpayer requirement to request refund of erroneous tax payment within 60 days of notice to avoid interest, penalties.* In order to avoid the accrual of interest and any otherwise applicable penalties on the tax due the city, when a sales tax owed to the city is erroneously paid to a different municipality or county in good faith, based on a reasonable interpretation of the enabling ordinance, resolution, or act levying or authorizing the tax, but not under a requirement of law, the taxpayer making the erroneous payment must comply with the applicable refund procedures of such municipality or county within 60 days of receiving notice from the city, a county, or another municipality or its agent of the erroneous payment.

b. *Compliance with refund procedure; interest, penalties.* If the taxpayer complies with the refund procedure within the requisite 60-day period, the city shall not assess or attempt to assess the tax, or any related

interest or otherwise applicable penalty thereon until the date of receipt of the overpayment from the refunding municipality or county by the taxpayer or the taxpayer's agent, and no interest or penalty thereon shall accrue until such date of receipt. The taxpayer shall remit the disputed tax to the city within 15 days after receipt.

c. *Failure to comply with refund procedure; interest, penalties.* If the taxpayer fails to comply with the refund procedures within the requisite 60-day period, interest and any applicable penalties shall accrue on the tax to which the city is entitled from the 61st day and until such time as the tax is paid.

(2) *Taxes due to another municipality which were erroneously paid to the city.*

a. *City's requirement to refund overpayment of erroneous tax payment within 60 days of compliance with refund procedures.* If a sales tax owed to another municipality or county is erroneously paid to the city in good faith, based on a reasonable interpretation of the enabling ordinance, resolution, or act levying or authorizing the sales tax, but not under a requirement of law, the city shall refund the overpaid tax, without interest, to the taxpayer within 60 days of the taxpayer's compliance with applicable refund procedures provided in section 3A-3-10.

b. *Refund of excess tax; requirements.* Provided, however, that if the applicable rate of sales tax imposed by the city exceeds the rate of sales tax imposed by the proper locality under a requirement of law, the city shall not be obligated to refund the difference unless the taxpayer properly files the applicable petition for refund, as in the case of joint petitions for refund as required by section 3A-3-10(a).

(Ord. No. 97-185, § 21, 12-23-1997; Ord. No. 98-108, § 1(21), 6-30-1998; Ord. No. 98-181, § 1(21), 11-17-1998)

Sec. 3A-3-22. Sales tax in addition to other taxes.

The tax imposed by this chapter pursuant to Code of Ala. 1975, § 40-23-28, shall be in addition to all other licenses and taxes levied by law as a condition precedent to engaging in any business taxable hereunder, except as in this chapter otherwise specifically provided.
(Ord. No. 97-185, § 22, 12-23-1997)

Sec. 3A-3-23. Collection after assessment.

The tax herein levied may be collected by levy as provided in Code of Ala. 1975, § 40-29-51, as follows:

(1) *Length of period.* Where the assessment of any tax imposed by this chapter has been begun or made within the period of limitation properly applicable thereto, such tax may be collected by levy or by a proceeding in court, but only if the levy is made or the proceeding begun:

a. Within the period allowed by law after the final assessment of the tax; or

b. Prior to the expiration of any period for collection agreed upon in writing by the director of finance and the taxpayer before the expiration of such period allowed by law, (or, if there is a release of levy under Code of Ala. 1975, § 40-29-34, after such period allowed by law, then before such release).

The period so agreed upon may be extended by subsequent agreements in writing made before the expiration of the period previously agreed upon. The period allowed by law as provided in this subsection during which a tax may be collected

by levy shall not be extended or curtailed by reason of a judgment against the taxpayer.

(2) *Date when levy is considered made.* The date on which a levy on property or rights to property is made shall be the date on which the notice of seizure provided in Code of Ala. 1975, § 40-29-26, is given.

(Ord. No. 97-185, § 23, 12-23-1997)

Sec. 3A-3-24. Lien for taxes.

Pursuant to Code of Ala. 1975, §§ 40-29-20 et seq., and/or 11-51-96, the provisions of this section shall apply to the taxes, and/or any penalty or interest payable thereon, levied under this chapter.

(1) *Liens generally.* If any person liable to pay the tax herein levied, neglects or refuses to pay the same within 30 days of the final assessment, the amount (including any interest, additional amount, addition to tax, or assessable penalty together with filing fees and any other costs that may accrue in addition thereto) shall be a lien in favor of the city upon all property and rights to property, whether real or personal, tangible or intangible, belonging to such person.

(2) *Notice of lien.* The department shall give a 30-day notice of intent to file lien to the taxpayer by any one of the following methods:

a. Given in person;

b. Left at the dwelling or usual place of business of such person; or

c. Sent by certified mail with return receipt requested to the taxpayer's last known address.

(3) *Term.* Unless another date is specifically fixed by law, the lien imposed by subsection (1) of this section shall arise at the time of the final assessment, return therefor or the payment thereof, whichever is prior, was due to have been filed with or made to the department, and shall continue until the liability for the amount so assessed (or a judgment against the taxpayer arising out of such liability) is satisfied or becomes unenforceable by reason of lapse of time.

(4) *Right to enforce lien by attachment.* The department may enforce such lien in any court of competent jurisdiction, by attachment issued by any officer authorized to issue such writs, upon executing bond as in other cases of attachment, and upon making affidavit that the attachment is not sued out for the purpose of vexing or harassing the defendant, and describing the property on which the lien is claimed and setting forth all the facts necessary to the creation of the lien and the amount due and unpaid (including any interest, additional amount, addition to tax, or assessable penalty together with filing fees and any other costs that may accrue in addition thereto).

(5) *Release of lien.* If the taxpayer shall file with the department a bond in double the amount of the lien filed, with surety or sureties to be either a surety company authorized to do business in the state or such individual property owners, not less than three in number, as recommended by the judge of probate of the county in which the notice of lien is recorded, conditioned to pay all such tax, interest, penalty, additional amount or addition to such tax, together with any costs which may occur in addition thereto as may be assessed against the taxpayer, principal in said bond, the director of finance shall withdraw and release said lien filed under the provisions of this subsection, and upon a determination that the said taxpayer owes any of said taxes to the city, the assessment (judgment) therefor shall be entered against said taxpayer and the surety or sureties on said bond; and, if not paid within 30 days from the date of said final assessment (judgment), then execution shall issue therefor against said principal and the surety or sureties on said bond. If the bond hereinabove provided for is not given and approved by

the director of finance, and final assessment (judgment) is entered against said taxpayer and he or she duly and legally appeals therefrom within the time and in the manner provided for by this chapter, and if the court approves the bond required for an appeal or the said taxpayer against whom the assessment was entered by the department shall, within 30 days from the date of the assessment, pay the amount thereof to the city, then, in either of said events, the director of finance shall cancel or release from record said lien.

(Ord. No. 97-185, § 24, 12-23-1997; Ord. No. 07-234, § 1(24), 12-18-2007)

Sec. 3A-3-25. Collection by civil suit.

The department may initiate and/or maintain a civil action to recover delinquent taxes herein levied, interest, penalties and administrative costs incurred in connection therewith, in any court of competent jurisdiction, which remedy shall be in addition to any and all other remedies which may be provided.

(Ord. No. 97-185, § 25, 12-23-1997)

Sec. 3A-3-26. Violator may be restrained from continuing in business.

Any taxpayer who shall violate any of the provisions of this chapter, pursuant to Code of Ala. 1975, § 40-23-27, may be restrained from continuing in business, and proper prosecution shall be instituted in the name of the city until such person shall have complied with the provisions of this chapter.

(Ord. No. 97-185, § 26, 12-23-1997)

Sec. 3A-3-27. Violations.

(a) *Failure to pay the tax, make reports, keep or provide records.* Any person subject to the provisions of this chapter, who shall fail to pay the tax, make the reports or any of them as herein required, or who shall fail to keep or provide records, or supply any information, as herein required, shall, as provided in Code of Ala. 1975, §§ 40-23-11 and 40-29-112, be guilty of a misdemeanor and upon conviction shall be fined not less than $50.00, nor more than $500.00 for each offense and, in addition, may be imprisoned for a period not to exceed six months. Each occurrence of such failure shall constitute a separate offense.

(b) *Willful refusal to make reports, or permit examination of records.* Any person subject to the provisions of this chapter willfully failing or refusing to make the reports, furnish any supplemental returns or other data herein required or who shall refuse to permit the examination of his records by the department, pursuant to Code of Ala. 1975, § 40-23-12, shall be guilty of a misdemeanor and upon conviction shall be fined not less than $50.00 nor more than $500.00 for each offense, and in addition may be imprisoned for a period not to exceed six months. Each occurrence of a failure to make such reports shall constitute a separate offense, and each refusal of a written demand by the department to examine, inspect, or audit such records shall constitute a separate offense.

(c) *Violation of chapter.* Any person who shall fail or neglect or refuse to perform any duty imposed by this chapter, or other city ordinances, or any rule, regulation, or law thereof, or who shall fail or neglect to do or perform any act or series of acts as required by this chapter shall upon conviction be punished by a fine not exceeding $500.00 for each offense, and in addition may be imprisoned for a period not to exceed six months or by both such fine and imprisonment, pursuant to section 1-1-6, as amended and as it may be amended.

(Ord. No. 97-185, § 27, 12-23-1997)

Sec. 3A-3-28. Request for ruling on determination of taxation.

Any taxpayer may request a ruling on the determination of whether amounts of gross proceeds of sales or gross receipts of the taxpayer's business are subject to the tax, or are not to be used as a measure of the taxes due and payable as levied by this chapter. Such requests shall be made in writing to the finance department, and shall contain all pertinent facts and any written

determinations or revenue rulings issued by the state department of revenue relating to the items in question.
(Ord. No. 97-185, § 28, 12-23-1997; Ord. No. 98-181, § 1(28), 11-17-1998)

Sec. 3A-3-29. Expiration of additional $0.01 tax.

The sales tax rates appearing in this chapter, which include the additional one cent per dollar sales tax continued by Ordinance No. 13-18, are hereby readopted and continued until amended or repealed.
(Ord. No. 13-18, § 1, 2-12-2013; Ord. No. 18-52, § 1, 4-13-2018)

CHAPTER 4. USE TAX*

Sec. 3A-4-1. Definitions.

The following words, terms, and phrases, when used in this chapter, shall have the following meanings except when the context clearly indicates a different meaning; or when the definition of such word or phrase conflicts with the same definition as contained in Code of Ala. 1975, §§ 40-23-60 or 40-2A-3, in which case the state law definition will govern:

Automotive vehicle includes a power shovel, dragline, crawler, crawler crane, ditcher, or any similar machine which is self-propelled, in addition to self-propelled machines which are used primarily as instruments of conveyance.

Business includes all activities engaged in, or caused to be engaged in, with the object of gain, profit, benefit or advantage, either direct or indirect, and not excepting subactivities producing marketable commodities used or consumed in the main business activity, each of which subactivities shall be considered business engaged in, taxable in the class in which it falls.

Department means the department of finance of the city, and includes the director of finance.

Director or *director of finance* means the director of finance of the city or his or her duly authorized agent.

Final assessment means the final notice of value, underpayment, or nonpayment of any tax administered by the department.

In this city or *in the city* means within the exterior limits of the city.

Notice of appeal means any written notice sufficient to identify the name of the taxpayer or other party appealing, the specific matter appealed from, the basis for that appeal, and the relief sought.

Person or *company* means any individual, firm, company, partnership, association, corporation, receiver, or trustee, or any other group or combination acting as a unit, and the plural as well as the singular number, unless the intention to give a more limited meaning is disclosed by the context.

Petition for refund means a written request for a refund of tax previously paid, including in the form of an amended return. Unless otherwise provided by law, such request shall include sufficient information to identify the amount of tax overpaid, the taxpayer, the period included, the reasons for the refund and sufficient documentation as required by the director of finance.

Petition for review means a written document filed with the department in response to a preliminary assessment in which the taxpayer sets forth reasonably specific objections to the preliminary assessment.

Preliminary assessment means the preliminary notice of value or underpayment of any tax administered by the department.

Prepaid telephone calling card means a sale of a prepaid telephone calling card or a prepaid authorization number, or both, shall be deemed the sale of tangible personal property subject to the tax imposed pursuant to this chapter.

Private auditing or collecting firm means any person in the business of collecting, through

*__State law references__—Local use taxes, Code of Ala. 1975, § 11-51-202 et seq.; state use tax, Code of Ala. 1975, § 40-23-60 et seq.

contract or otherwise, use taxes for the city, or auditing any taxpayer, through the examination of books and records, for the city.

Purchase means acquired for a consideration, whether such acquisition was effected by a transfer of title, or of possession or of both, or a license to use or consume; whether such transfer shall have been absolute or conditional, and by whatsoever means the same shall have been effected; and whether such consideration be a price or rental in money, or by way of exchange or barter.

Reasonable cause includes, but not be limited to, those instances in which the taxpayer has acted in good faith. The burden of proving reasonable cause shall be on the taxpayer.

Return means any report, document, or other statement required to be filed with the department for the purpose of paying, reporting or determining the proper amount of value or tax due.

Sale at retail or *retail sale* means all sales of tangible personal property except those herein defined as wholesale sales. The quantities of goods sold or prices at which sold are immaterial in determining whether or not a sale is at retail. Sales of building materials to contractors, builders, or landowners for resale or use in the form of real estate are retail sales in whatever quantity sold. Sales of building materials, fixtures or other equipment to a manufacturer or builder of modular buildings for use in manufacturing, building or equipping a modular building ultimately becoming a part of real estate situated in the city are retail sales, and the use, sale or resale of such building shall not be subject to the tax. Sales of tangible personal property to undertakers and morticians are retail sales and subject to the tax at the time of purchase, but are not subject to the tax on resale to the consumer. Sales of tangible personal property or products to manufacturers, quarry operators, mine operators, or compounders, which are used or consumed by them in manufacturing, mining, quarrying, or compounding and do not become an ingredient or component part of the tangible personal property manufactured or compounded are retail sales. The term "sale at retail" or "retail sale" shall also mean and include the withdrawal, use or consumption of any tangible personal property by anyone who purchases same at wholesale, except property which has been previously withdrawn from the business or stock and so used or consumed and with respect to which property the tax has been paid because of such previous withdrawal, use or consumption, except property which enters into and becomes an ingredient or component part of tangible personal property or products manufactured or compounded for sale; and not for the personal and private use or consumption of any person so withdrawing, using or consuming the same, and such wholesale purchaser shall report and pay the taxes thereon; and except refinery, residue, or fuel gas, whether in a liquid or gaseous state, that has been generated by, or is otherwise a by-product of, a petroleum-refining process, which gas is then utilized in the process to generate heat or is otherwise utilized in the distillation of refining of petroleum products. The term "retail sale" or "sale at retail" also means and includes the sale of tangible personal property previously purchased at wholesale for the purpose of leasing or renting under a transaction subject to the privilege or license tax levied under chapter 5 of this title, the lease tax code of the city, 1998, as amended and as it may be amended, regardless of whether such sale is to the person who theretofore leased or rented the said tangible personal property or to some other person.

Sales price means the total amount for which tangible personal property is sold, including any services, including transportation, that are a part of the sale, valued in money, whether paid in money or otherwise, and includes any amount for which credit is given to the purchaser by the seller, without any deduction therefrom on account of the cost of the property sold, the cost of the materials used, labor or service cost, interest charged, losses or any other expenses whatsoever; provided that cash discounts allowed and taken on sales shall not be included and sales price shall not include the amount charged for property returned by customers when the entire amount charged therefor is refunded either in cash or by credit.

Storage means and includes any keeping or retention in this city for any purpose except sale in the regular course of business or subsequent use solely outside this city of tangible personal property purchased at retail.

Tax means any amount, including applicable penalty and interest, levied or assessed against a taxpayer and which the department is required or authorized to administer under the provisions of state law.

Taxpayer means any person subject to or liable for the tax herein levied; any person required to file a return with respect to, or to pay the tax herein levied, or to report any information or

value to the department or its designee; or any person required to obtain or holding any interest in any license issued by the department or its designee, or any person that may be affected by any act or refusal to act by the department or its designee, or to keep any records required by this chapter.

Taxpayer's authorized representative means any individual with written authority or power of attorney to represent a taxpayer before the department; provided, however, that nothing herein shall be construed as entitling any such individual who is not a licensed attorney to engage in the practice of law.

Taxpayers' Bill of Rights Pamphlet means a written pamphlet to be distributed by the department to all taxpayers whose books and records are being examined by the department, at or before the commencement of an examination, explaining in simple and nontechnical terms, the role of the department and the rights of the taxpayer whose books and records are being examined by the department during the examination and which shall be promptly revised from time to time to reflect any changes in the applicable law or rules.

Use means and includes the exercise of any right or power over tangible personal property incident to the ownership of that property, or by any transaction where possession is given, except that it shall not include the sale of that property in the regular course of business.

Wholesale sale or *sale at wholesale* means any one of the following:

(1) A sale of tangible personal property by wholesaler to licensed retail merchants, jobbers, dealers, or other wholesalers for resale and does not include a sale by wholesalers to users or consumers, not for resale.

(2) A sale of tangible personal property or products, including iron ore, and including the furnished container and label of such property or products, to a manufacturer or compounder which enter into and become an ingredient or component part of the tangible personal property or products which the manufacturer or compounder manufactures or compounds for sale, whether or not such tangible personal property or product used in manufacturing or compounding a finished product is used with the intent that it become a component of the finished product; provided, however, that it is the intent of this section that no sale of capital equipment, machinery, tools, or product shall be included in the term "wholesale sale." The term "capital equipment, machinery, tools, or product" means property that is subject to depreciation allowances for state income tax purposes.

(3) A sale of containers intended for one-time use only, and the labels thereof, when such containers are sold without contents to persons who sell or furnish such containers along with the contents placed therein for sale by such persons.

(4) A sale of pallets intended for one-time use only when such pallets are sold without contents to persons who sell or furnish such pallets along with the contents placed thereon for sale by such persons.

(5) A sale to a manufacturer or compounder, of crowns, caps, and tops intended for one-time use employed and used upon the containers in which such manufacturer or compounder markets his or her products.

(6) A sale of containers to persons engaged in selling or otherwise supplying or furnishing baby chicks to growers thereof where such containers are used for the delivery of such chicks or a sale of containers for use in the delivery of eggs by the producer thereof to the distributor or packer of such eggs even though such containers used for delivery of baby chicks or eggs may be recovered for reuse.

(7) A sale of bagging and ties used in preparing cotton for market.

(8) A sale of commercial fish feed including concentrates, supplements, and other feed ingredients when such substances are used

as ingredients in mixing and preparing feed for fish raised to be sold on a commercial basis.

(9) A sale of tangible personal property to any person engaging in the business of leasing or renting such tangible personal property to others, if such tangible personal property is purchased for the purpose of leasing or renting it to others under a transaction subject to the privilege or license tax levied in Code of Ala. 1975, tit. 40, ch. 12, art. 4, against any person engaging in the business of leasing or renting tangible personal property to others.

(10) A purchase or withdrawal of parts or materials from stock by any person licensed under this chapter where such parts or materials are used in repairing or reconditioning the tangible personal property of such licensed person which tangible personal property is a part of the stock of goods of such licensed person, offered for sale by him or her and not for use or consumption of such licensed person.

(11) A sale to meat packers, manufacturers, compounders of processors of meat products of all casings used in moulding or forming wieners and Vienna sausages, even though such casings may be recovered for reuse.

(Ord. No. 97-186, § 1, 12-23-1997; Ord. No. 98-174, § 1(1), 11-10-1998; Ord. No. 00-210, § 1(1), 12-12-2000; Ord. No. 02-176, § 1(1), 12-10-2002)

Sec. 3A-4-2. Property taxed; persons liable; applicability; tax imposed on agricultural machinery or equipment; rate; who liable.

(a) *Property taxed; persons liable; applicability.* Pursuant to Code of Ala. 1975, § 40-23-61, there is hereby levied, in addition to all other taxes of every kind now imposed by law, an excise tax upon the storage, use or other consumption in this city of tangible personal property, in amounts to be determined by the application of rates against gross sales or gross purchases as follows, and which shall be collected as herein provided:

(1) *General tax rate.* An excise tax is hereby imposed on the storage, use or other consumption in this city of tangible personal property not including, however, materials and supplies bought for use in fulfilling a contract for the painting, repairing or reconditioning of vessels, barges, ships and other watercraft and commercial fishing vessels of over five tons load displacement as registered with the U.S. Coast Guard and licensed by the state department of conservation and natural resources, purchased at retail on or after October 1, 1974, for storage, use or other consumption in this city at the rate of four percent of the sales price of such property or the amount of tax collected by the seller, whichever is greater; provided, however, when the seller follows the state department of revenue's suggested use tax brackets and his or her records prove that his or her following said brackets resulted in a net under collection of tax for the month, he or she may report the tax due or tax collected, whichever is less, except as provided in subsections (a)(2) and (3) of this section.

(2) *Machine tax rate.* An excise tax is hereby imposed on the storage, use or other consumption in this city of any machines used in mining, quarrying, compounding, processing and manufacturing of tangible personal property, purchased at retail on or after October 1, 1974, at the rate of two percent of the sales price of any such machine or the amount of tax collected by the seller, whichever is greater; provided, however, when the seller follows the state department of revenue's suggested use tax brackets and his or her records prove that his or her following said brackets resulted in a net under collection of tax for the month, he or she may report the tax due or tax collected, whichever is less; provided that the term "machine," as herein used, shall include machinery which is

used for mining, quarrying, compounding, processing, or manufacturing tangible personal property, and the parts of such machines, attachments and replacements therefore, which are made or manufactured for use on or in the operation of such machines and which are necessary to the operation of such machines and are customarily so used.

(3) *Automotive tax rate.* An excise tax is hereby imposed on the storage, use or other consumption in this city of any automotive vehicle or truck trailer, semitrailer or house trailer and mobile home set-up materials and supplies including, but not limited to, steps, blocks, anchoring, cable pipes and any other materials pertaining thereto, purchased at retail on or after October 1, 1974, for storage, use or other consumption in this city at the rate of two percent of the sales price of such automotive vehicle, truck trailer, semitrailer or house trailer, and mobile home set-up materials and supplies as specified above, or the amount of tax collected by the seller, whichever is greater; provided, however, when the seller follows the state department of revenue's suggested use tax brackets and his or her records prove that this following said brackets resulted in a net under collection of tax for the month, he or she may report the tax due or tax collected, whichever is less. Where any used automotive vehicle or truck trailer, semitrailer or house trailer is taken in trade, or in a series of trades, as a credit or part payment on the sale of a new or used vehicle, the tax levied herein shall be paid on the net difference, that is, the price of the new or used vehicle sold less the credit for the used vehicle taken in trade.

(4) *Liability for tax not extinguished.* Every person storing, using or otherwise consuming in this city tangible personal property purchased at retail shall be liable for the tax imposed by this chapter, and the liability shall not be extinguished until the tax has been paid to this city; provided, however, that a receipt from a retailer maintaining a place of business in this city or a retailer authorized by the department, under such rules and regulations as it may prescribe, to collect the tax imposed hereby and who shall for the purpose of this chapter be regarded as the retailer maintaining a place of business in this city, given to the purchaser in accordance with the provisions of section 3A-4-19, shall be sufficient to relieve the purchaser from further liability for tax to which such receipt may refer.

(5) *Tax measured by sales price of fair and reasonable market value.* An excise tax is hereby imposed on the classes of tangible personal property, and at the rates imposed on such classes, specified in subsections (a)(1), (2) and (3) of this section, on the storage, use or other consumption in the performance of a contract in this city of any such tangible personal property, new or used, the tax to be measured by the sales price of the fair and reasonable market value of such tangible personal property when put into use in this city, whichever is less; provided that the tax imposed by this subsection shall not apply where the taxes imposed by subsections (a)(1), (2) or (3) of this section apply.

(b) *Tax imposed on agricultural machinery or equipment; rate; who liable.* Pursuant to Code of Ala. 1975, § 40-23-63, there is hereby levied and imposed an excise tax on the storage, use or other consumption in this city of any machine, machinery, or equipment, which is used in planting, cultivating, and harvesting farm products, or used in connection with the production of agricultural produce or products, livestock, or poultry, or farms, and the parts of such machines, machinery, or equipment, attachments and replacements therefore which are made or manufactured for use on or in the operation of such machine, machinery, or equipment, and which are necessary to and customarily used in the operation of such machine, machinery, or equipment, which is purchased at retail on or after October 1, 1974, for storage, use or other consumption in this city, at the rate of two percent of the sales price of such property or

the amount of tax collected by the seller, whichever is greater, provided, however, when the seller follows the state department of revenue's suggested use tax brackets and his or her records prove that his or her following said brackets resulted in a net under collection of tax for the month, he or she may report the tax due or tax collected, whichever is less, regardless of whether the retailer is or is not engaged in business in the city; provided, however, the two percent rate, herein prescribed with respect to parts, attachments, and replacements shall not apply to any automotive vehicle or trailer designed primarily for public highway use except farm trailers used primarily in the production and harvesting of agricultural commodities. Every person storing, using or otherwise consuming in this city such tangible personal property purchased at retail shall be liable for the tax imposed by this chapter, and the liability shall not be extinguished until the tax has been paid to this city; provided, however, that a receipt from a retailer maintaining a place of business in this city or a retailer authorized by the department under such rules and regulations as the city may prescribe, to collect the tax imposed hereby and who shall for the purpose of this chapter be regarded as a retailer maintaining a place of business in this city, given to the purchaser in accordance with the provisions of Code of Ala. 1975, § 40-23-67, shall be sufficient to relieve the purchaser from further liability for a tax to which such receipt may refer.
(Ord. No. 97-186, § 2, 12-23-1997; Ord. No. 02-176, § 1(2), 12-10-2002; Ord. No. 07-232, § 1(2), 12-18-2007)

Sec. 3A-4-3. Exemptions.

(a) *Generally.* Taxes imposed by this chapter shall be subject to all exemptions as are provided in article 2, chapter 23, title 40, Code of Ala. 1975, the state use tax law (Code of Ala. 1975, § 40-23-62), as now or hereafter amended, all acts supplementary thereto except where inapplicable or where herein otherwise provided, all of which are adopted and made a part hereof by reference.

(b) *Special.* Special exemptions from the taxes imposed by this chapter are allowed in all other instances where the use taxes levied under article 2, chapter 23, title 40, Code of Ala. 1975 (Code of Ala. 1975, § 40-23-62), are exempted under any other provision of the Code of Ala. 1975.

(c) *Use tax holiday.* Certain "covered items," as defined in article 7, chapter 23, title 40 (Code of Ala. 1975, § 40-23-210), are exempted from the taxes imposed by this chapter during the period commencing at 12:01 a.m. on the first Friday in August of each year and ending at 12:00 midnight the following Sunday. This exemption is subject to the same terms, conditions, and definitions as provided for the state sales tax holiday, article 7, chapter 23, title 40, Code of Ala. 1975.

(d) *Invalidity of use tax holiday.* Subsection (c) of this section shall be null and void and shall no longer be effective if the state sales tax holiday provided for in art. 7, ch. 23, tit. 40 (Code of Ala. 1975, § 40-23-210) is canceled, delayed or postponed beyond the first weekend in August of any year or is repealed, or declared invalid or unconstitutional for any reason.
(Ord. No. 97-186, § 3, 12-23-1997; Ord. No. 02-176, § 1(3), 12-10-2002; Ord. No. 09-85, § 1(3.3, 3.4), 7-21-2009)

Sec. 3A-4-4. Retail sellers to register and give information; exceptions.

Pursuant to Code of Ala. 1975, § 40-23-66, every seller engaged in making retail sales of tangible personal property for storage, use or other consumption in this city, who:

(1) Maintains a place of business;

(2) Qualifies to do business;

(3) Solicits and receives purchases or orders by agent or salesman; or

(4) Distributes catalogs or other advertising matter and by reason thereof receives and accepts orders from residents, within the city;

shall register with the department and give the name and address of each agent operating in this city, the location of any and all distribution or sales houses or offices or other places of business, in this city, the number of persons in the city to whom catalogs are delivered, by mail or otherwise, the number of persons in the city from

whom orders are received, by mail or otherwise, together with the amount of the purchase price charged and received, and such other information as the department may require with respect to matters pertinent to the enforcement of this chapter; provided, however, that this section shall not apply to a seller holding a license obtained pursuant to the provisions of chapter 3 of this title.
(Ord. No. 97-186, § 4, 12-23-1997)

Sec. 3A-4-5. Filing of returns and payment of tax.

The provisions of this section, except where inapplicable or where herein otherwise provided, shall be administered pursuant to Code of Ala. 1975, § 40-23-68, as amended, and as it may be amended, and for such purposes are hereby incorporated into this chapter by reference.

(1) *Seller to file returns and pay tax.*

a. *Due date of tax-seller.* The tax imposed by this chapter shall, except as otherwise provided in subsection (5) of this section, be due and payable to the city quarterly on or before the 20th day of the month next succeeding each quarterly period during which the storage, use, or other consumption of tangible personal property becomes taxable hereunder, said returns shall be due for each calendar quarter.

b. *Qualifications-seller; due date of returns; contents of returns.* Every seller engaged in making retail sales of tangible personal property for storage, use or other consumption in this city, who alternatively:

1. Maintains, occupies, or uses, permanently or temporarily, directly or indirectly, or through a subsidiary, or agent by whatever name called, an office, place of distribution, sales or sample room or place, warehouse or storage place, or other place of business;
2. Qualifies to do business or registers with the city to collect the tax levied by this chapter;
3. Employs or retains under contract any representative, agent, salesman, canvasser, solicitor or installer operating in this city under the authority of the person or its subsidiary for the purpose of selling, delivering, or the taking of orders for the sale of tangible personal property or any services taxable under this chapter or otherwise solicits and receives purchases or orders by any agent or salesman;
4. Solicits, pursuant to a contract with a broadcaster or publisher located in this city, orders for tangible personal property by means of advertising which is disseminated primarily to consumers located in this city and only secondarily to bordering jurisdiction;
5. Solicits orders for tangible personal property by mail in this city if the solicitations are substantial and recurring and if the retailer benefits from any banking, financing, debt collection, telecommunication, or marketing activities occurring in the state or benefits from the location in the state of authorized installation, servicing, or repair facilities;
6. Has, under a franchise or licensing arrangement or contract, a franchisee or licensee operating under its trade name;
7. Solicits, pursuant to a contract with a cable television operator located in the state, orders for tangible personal property by means of advertising which

is transmitted or distributed over a cable television system in this city;

8. Solicits orders for tangible personal property by means of a telecommunication or television shopping system which is intended by the person to be broadcast by cable television or other means of broadcasting, to consumers located in this city;

9. Maintains any other contact with this city that would allow this city to require the seller to collect and remit the tax due under the provisions of the constitution and laws of the United States; or

10. Distributes catalogs or other advertising matter and by reason thereof receives and accepts orders from residents within the city;

shall be subject to all the provisions of this chapter and shall, except as otherwise provided in subsection (5) of this section, on or before the 20th day of the month following the close of the first quarterly period of three months, as above defined, and on or before the 20th day of the month following each subsequent quarterly period of three months, file with the department a return for the preceding quarterly period in such form as may be prescribed by the department, showing:

(i) The total sales price of the tangible personal property sold by such seller, the storage, use or consumption of which became subject to the tax imposed by this chapter, during the preceding quarterly period;

(ii) The amount of gross proceeds of sales or gross receipts of tangible personal property for storage, use, or other consumption, which are not subject to the tax, or are not to be used as a measure of the taxes due by such person, and the nature thereof; and

(iii) Such other information as the department may deem necessary for the proper administration of this chapter.

c. *Remittance to accompany return-seller.* The return shall be accompanied by a remittance of the amount of tax herein required to be collected by the seller during the period covered by the return. The director of finance for the city, if he or she deems it necessary in order to ensure payment to the city of the amount of tax herein required to be collected by sellers, may require returns and payment of such amount of tax for other than quarterly periods. Returns shall be signed by the seller or his or her duly authorized agent but need not be verified by oath.

d. *Presumption of tax liability-seller; certificate of resale.* For the purpose of the proper administration of this chapter, and to prevent evasion of the tax and the duty to collect the same herein imposed, it shall be presumed that tangible personal property sold by any person for delivery in this city is sold for storage, use or other consumption in this city unless the person selling such property shall have taken from the purchaser a certificate signed by and bearing the name and address of the purchaser to the effect that the property was purchased for resale and it shall be further presumed that tangible personal property shipped to this city by

the purchaser thereof was purchased from a retailer for storage, use or other consumption in this city.

e. *Returns to be filed even though no tax may be due.* Where a return is required to be filed pursuant to a provision of this chapter, such returns shall be filed in accordance with the provisions outlined herein, provided that, a return should be filed for each reporting period, by the due date required, even when no tax is due.

(2) *Purchaser to file returns and pay tax.*

a. *Due date of tax-purchaser.* The tax imposed by this chapter shall, except as otherwise provided in subsection (5) of this section, be due and payable to the city quarterly on or before the 20th day of the month next succeeding each quarterly period during which the storage, use or other consumption of tangible personal property becomes taxable hereunder, said returns shall be due for each calendar quarter.

b. *Qualifications-purchaser; due date of returns; contents of returns.* Every person purchasing tangible personal property, the storage, use or other consumption of which is subject to the tax imposed by this chapter, and who has not paid the tax due with respect thereto to a seller required or authorized hereunder to collect the tax, shall, except as otherwise provided in subsection (5) of this section, on or before the 20th day of the month following the close of the each quarterly period of three months, file with the department a return for the preceding quarterly period in such form as may be prescribed by the director of finance showing:

1. The total sales price of the tangible personal property purchased by such person, the storage, use or other consumption of which became subject to the tax imposed by this chapter during the preceding quarterly period, and with respect to which the tax was not paid to a seller required or authorized hereunder to collect the tax;
2. The amount of gross purchases of tangible personal property for storage, use, or other consumption, which are not subject to the tax, or are not to be used as a measure of the taxes due by such person, and the nature thereof; and,
3. Such other information as the department may deem necessary for the proper administration of this chapter.

c. *Remittance to accompany return-purchaser.* The return shall be accompanied by a remittance of the amount of tax herein imposed and not paid to a seller required or authorized hereunder to collect the tax during the period covered by the return. The director of finance, if he or she deems it necessary in order to ensure payment to the city of the amount of such tax may require returns and payment for other than quarterly periods. Returns shall be signed by the person liable for the tax or his or her duly authorized agent, but need not be verified by oath.

d. *Presumption of tax liability-purchaser; temporary storage.* For the purpose of the proper administration of this chapter, and to prevent evasion of the tax and the duty to collect and/or remit the same herein imposed, it shall be presumed that tangible personal property purchased by any person and delivered in this city is purchased for storage, use or other consumption in this city, unless the person purchasing such property shall have measures to document the temporary storage of such tangible per-

sonal property in this city by the purchaser thereof, and it shall be further presumed that said tangible personal property was purchased from a retailer for storage, use or other consumption in this city.

e. *Returns to be filed even though no tax may be due.* Where a return is required to be filed pursuant to a provision of this chapter, such returns shall be filed in accordance with the provisions outlined herein, provided that, a return should be filed for each reporting period, even when no tax is due.

(3) *Taxpayer's responsibility when no form received.* The department is authorized to provide prescribed printed forms necessary for compliance with the filing requirements outlined in this section. Failure of the taxpayer to receive forms from the department does not relieve the taxpayer of the responsibility of the timely reporting of the information required on the return, nor the timely payment of the tax.

(4) *Timely mailing treated as timely filing and paying.* The provisions outlined in this section for the timely filing of any returns, payments, claims, statements, or other documents shall be administered as herein provided.

a. *Date of delivery.* If any return, claim, statement, or other document required to be filed, or any payment required to be made, within a prescribed period or on or before a prescribed date under the authority of any provision of this chapter is, after such period or such date, delivered by United States mail to the finance department or to the department's designated depository where such return, claim, statement, or other document is required to be filed, or to which such payment is required to be made, the date of the United States postmark stamped on the cover in which such return, claim, statement, or other document, or payment, is mailed shall be deemed to be the date of delivery, or the date of payment, as the case may be; provided, however:

1. *Weekends and holidays.* When the due date falls on a Saturday, Sunday or city holiday, payment of the tax may be made without penalty on the first working day following the due date.

2. *Mailing requirements.* The return, claim, statement, or other document, or payment was, within the time prescribed in this subsection (4)a, deposited in the mail in the United States in an envelope or other appropriate wrapper, postage prepaid, properly addressed to the finance department or to the department's designated depository where such return, claim, statement, or other document is required to be filed, or to where such payment is required to be made.

b. *Delivery by method other than United States mail.* Returns, claims, statements, or other documents, or payments which are required under any provision of this chapter which are delivered by any method other than by United States mail shall be considered timely filed when such items are received in the finance department or the department's designated depository on the due date prescribed.

c. *Untimely filing.* Any return, payment, claim, statement, or other document not received in accordance with the provisions of this section shall be deemed untimely filed and shall be assessed applicable penalties and interest as prescribed by the relevant sections of this chapter.

(5) *Election to file yearly.* Notwithstanding the above, if the total amount of taxable sales/purchases of tangible personal property for which any person is liable under this chapter does not exceed $250.00 during the preceding calendar year, or, if the total use tax liability due to the state for the sale/purchase of such tangible personal property during such period is less than $10.00 during the preceding calendar year, a yearly return and remittance shall be made to the department, on or before January 20 of each year. In order to file yearly, the election shall be made in writing and shall be filed with the department. If such election is not timely made and in accordance with the provisions of this subsection, returns shall be due quarterly as provided for in this section.

(6) *Bulk submissions.* The department may accept, for reporting and payment of taxes due the city, bulk submissions of reports, and under regulations promulgated by the department, payments owed to the city made on behalf of the taxpayer by its properly authorized representative where such submissions are made using the appropriate form prescribed by the department, as provided in Code of Ala. 1975, § 11-51-210(d). Any such bulk submissions of reports and payments shall include:

a. The city's assigned taxpayer identification number for each such taxpayer for each tax paid; and,

b. Sufficiently detailed information by which each taxpayer can be identified such that a determination can be made as to the amount and method of assessment of tax against such taxpayer for the city.

The acceptance by the city of such bulk submissions shall not relieve the taxpayer on whose behalf such submissions were made from liability for any use tax arising from an error or omission made by the taxpayer's representative. Such bulk submission shall be signed by the taxpayer or its properly authorized representative.

(Ord. No. 97-186, § 5, 12-23-1997; Ord. No. 98-109, § 1(5), 6-30-1998; Ord. No. 00-210, § 1(5), 12-12-2000; Ord. No. 02-176, § 1(5), 12-10-2002; Ord. No. 07-232, § 1(5), 12-18-2007)

Sec. 3A-4-6. Extension of time for making return.

In accordance with the provisions of Code of Ala. 1975, § 40-23-74, the director of finance, at his or her discretion, for reasonable cause, may extend the time for making any return required under the provisions of this chapter; however, the time for filing any such return shall not be extended for a period greater than 30 days from the date such return is due to be made and shall not prevent penalty and interest from accruing during the period of such extension.

(Ord. No. 97-186, § 6, 12-23-1997)

Sec. 3A-4-7. Credit sales.

Pursuant to Code of Ala. 1975, § 40-23-68(e), and except as otherwise provided in section 3A-4-5(5), any seller making cash and credit sales for storage, use or other consumption in the city may report such cash sales and shall thereafter include in each quarterly report all credit collections made during the preceding quarter and shall pay the taxes due thereon at the time of filing such report, but in no event shall the gross proceeds of credit sales be included in the measure of the tax to be paid until collections of such credit sales shall have been made.

(Ord. No. 97-186, § 7, 12-23-1997)

Sec. 3A-4-8. Oaths.

The monthly reports herein required to be made are not required to be made under oath, but wherever in this chapter any report is required to be sworn to, the same shall be sworn to by the taxpayer or his or her agent before some officer authorized to administer oaths, and any false statement to a material fact made with the intent to defraud shall constitute perjury, and

upon conviction thereof, the person so convicted shall be punished as provided in section 1-1-6, as amended and as it may be amended.
(Ord. No. 97-186, § 8, 12-23-1997)

Sec. 3A-4-9. Maintenance of records; investigative powers; audit and subpoena authority.

The provisions of this section shall be administered in accordance with the procedures set forth in Code of Ala. 1975, §§ 40-23-83 and 40-2A-7(a), except where inapplicable or where herein otherwise provided.

(1) *Records to be kept.* Every seller and every person storing, using or otherwise consuming in this city tangible personal property purchased from a retailer shall keep and preserve, an accurate and complete set of records, receipts, invoices and other pertinent papers suitable for the determination of the correct amount of use tax due, or other records or information as may be necessary for the proper administration of any matter under the provisions of this chapter in such form as the department may require. The department, or any person authorized in writing by it, is hereby authorized to examine the books, papers, records and equipment of any person selling tangible personal property and any person liable for the tax imposed by this chapter, and to investigate the character of the business of any such person in order to verify the accuracy of any return made, or if no return was made by such person, to ascertain and determine the amount required to be paid hereunder. Such books, papers, records, and equipment shall be open for examination by the department upon request at a reasonable time and location. It shall also be the duty of every person to keep and preserve such records, receipts, invoices, and other pertinent records or other information for a period of not less than five years from the due date of the return on which the underlying tax is required to be reported, or five years of the date the return is filed, whichever is later.

a. *Reasonable time and reasonable location.* For the purposes of this section, reasonable time shall be considered to be during normal business hours of the department. Reasonable location shall be considered to be the taxpayer's place of business or the offices of the taxpayer's authorized representative, provided such business or representative is located within a 50-mile radius of the city. Taxpayers maintaining records outside of this radius must make records available at city hall or at such other location as agreed upon by the department. The department, when conducting an audit, review, or examination for verification, may, at its election, require any taxpayer conducting business within the city to provide the records, accounts, books, papers and other documents at a reasonable time and reasonable place agreed upon by the department, as provided herein.

b. *Taxpayer may be assessed reasonable costs.* As provided in Code of Ala. 1975, § 40-2A-6(d), the department may assess and collect from the taxpayer, the reasonable costs, based on the then current state government employee per diem rates incurred by, or charged to, the city in connection with performing an examination of the taxpayer's books and records if the taxpayer received notice by certified U.S. mail, return receipt requested, at least 30 days prior to the date on which the examination was to commence; and:

1. The taxpayer either failed or refused to respond or did not propose a reasonable alternative date on which the examination was to commence within

15 days of receipt of notice of the pending examination; or if

2. The taxpayer and the department agreed in writing as to an alternative date on which the examination was to commence but the taxpayer then failed or refused to permit reasonable access to its books and records on the alternative date.

(2) *Investigative powers.* Each taxpayer shall give to the director of finance the means, facilities and opportunity for the making of such audit, examination, and investigation of the records, books, or other relevant information maintained by any taxpayer or other person for the purpose of computing and determining the correct amount of value or correct amount of tax as provided for in subsection (1) of this section. The director of finance is hereby authorized to examine any person under oath concerning any gross receipts which were or should have been shown in a return, and to this end, he or she may compel the production of books, papers, records and the attendance of all persons before him or her, whether as parties or as witnesses, whom he or she believes to have knowledge of such gross receipts. Any taxpayer, or officer of a corporation or association, or partner of a partnership, or fiduciary of a trust, or responsible individual of any entity under a duty to maintain books and records pursuant to this chapter, who fails or refuses to maintain or provide such records and books, or permit inspection, as required herein, shall be subject to the provisions of section 3A-4-11, and shall be subject to contempt proceedings in the circuit court.

(3) *Audit and subpoena authority; additional requirements.* Code of Ala. 1975, § 40-2A-7(a), outlines further requirements for the maintenance of records, in addition to the recordkeeping requirements set out in subsection (1) of this section. The department's authority to audit, to subpoena records, and to enter into contracts with private examining or collecting firms is granted pursuant to Act No. 98-191, the Local Tax Procedures Act of 1998, Act No. 98-192, the Local Tax Simplification Act of 1998, as well as Code of Ala. 1975, § 40-2A-7(a), except where inapplicable or where herein otherwise provided.

(Ord. No. 97-186, § 9, 12-23-1997; Ord. No. 98-109, § 1(9), 6-30-1998; Ord. No. 02-176, § 1(9), 12-10-2002; Ord. No. 07-232, § 1(9), 12-18-2007)

Sec. 3A-4-10. Refunds.

(a) *Petitions for refund.* Any taxpayer may file a petition for refund with the department for any overpayment of tax erroneously paid to the department as provided in Code of Ala. 1975, § 40-2A-7(c)(1). If a final assessment for the tax has been entered by the department, a petition for refund of all or a portion of the tax may be filed only if the final assessment plus applicable interest has been paid in full prior to or with the filing of the petition for refund. The petition for refund must be filed in writing jointly by the taxpayer who collected and paid over the tax to the department and the consumer/purchaser who paid the tax to the taxpayer. However, a direct petition may be filed in writing by the taxpayer if the taxpayer never collected the tax from the consumer/purchaser, or if the tax has been credited or repaid to the consumer/purchaser by the taxpayer. Unless otherwise provided by law, all petitions for refund shall include sufficient information to identify the type and amount of tax overpaid, the taxpayer, the period included, and the reasons for the refund. Such petition shall be accompanied with sufficient supporting documentation as the department may deem necessary and proper.

(b) *Refund overpayments applied to other taxes.* Refund overpayments may be applied to other taxes as provided in Code of Ala. 1975, § 40-2A-7(c)(4). If a petition is granted by the department, or a court determines that a refund is due, the overpayment shall be refunded to the taxpayer by the department. If the department determines that a refund is due, the amount of overpayment may first be credited by the department against

any outstanding final tax liabilities due and owing by the taxpayer to the department, and the balance of any overpayment shall be refunded to the taxpayer. If any refund or part thereof is credited to any other tax by the department, the department shall provide a written detailed statement to the taxpayer showing the amount of overpayment, the amount credited for payment to other taxes, and the amount refunded.

(c) *Time limitations.*

(1) A petition for refund must be filed in writing with the department within:

a. Three years from the date the return was filed;

b. Two years from the date of payment of the tax, whichever is later; or

c. If no return was timely filed, two years from the date of the payment of the tax.

(2) The department shall either grant or deny a petition for refund within six months from the date the petition is filed, unless the period is extended by written agreement of the taxpayer and the department. The taxpayer shall be notified of the department's decision concerning the petition for refund by first class United States mail or by certified mail with return receipt requested, sent to the taxpayer's last known address. If the department is unable to grant a refund within the time provided herein due to the taxpayer's failure to provide adequate documentation, the petition for refund shall be deemed to be denied.

(3) The department and the taxpayer may, prior to the expiration of the period for the filing of a petition for refund, agree in writing to extend the time provided for filing the petition. The petition for refund may be filed at any time prior to the expiration of the period agreed upon. The period agreed upon may be extended by subsequent agreements in writing made before the expiration of the period previously agreed upon.

(d) *Interest on refunds.* On any overpayment of any use tax levied under any provisions of this chapter, the city, in addition to the amount of the overpayment, shall refund interest thereon at the rate of one percent per month, or fraction thereof, from the date of such overpayment on any refund of tax erroneously paid. As provided in Code of Ala. 1975, § 11-51-208(f), references in this subsection to erroneously paid taxes on which interest shall be due to the taxpayer shall only mean and refer to taxes erroneously paid to the city as a result of any error, omission, or inaccurate written advice by or on behalf of the city, including in connection with a prior examination of its books and records by the city.

(e) *Assignment of refunds.* The right of any person to a refund under this section is not assignable. A petition for a refund must be made by the person who withheld and remitted the tax.

(f) *Action for recovery of refund.* It is unlawful for any petitioner for a tax refund to make a false statement in connection with such application. If any person obtains a refund unlawfully, the director of finance is empowered and directed to bring appropriate action for recovery of such refund. A conviction for the violation of this subsection shall constitute prima facie evidence that all refunds received by such person pursuant to the petition which contained the false statement were obtained unlawfully. Obtaining a refund unlawfully shall be an act of fraud against the city and shall be subject to applicable penalties outlined in section 3A-4-13.
(Ord. No. 97-186, § 10, 12-23-1997; Ord. No. 98-109, § 1(10), 6-30-1998; Ord. No. 02-176, § 1(10), 12-10-2002; Ord. No. 07-232, § 1(10), 12-18-2007)

Sec. 3A-4-11. Jeopardy, preliminary, final assessments and time limitations.

(a) *Jeopardy assessments.* All jeopardy assessments issued by the department shall be executed pursuant to Code of Ala. 1975, § 40-29-91(a), (b) and (c).

(1) If the director of finance finds that a taxpayer designs quickly to depart from

the city or to remove his or her property therein, or to do any other act tending to prejudice or to render wholly or partly ineffectual proceedings to collect any tax imposed by this chapter, the director of finance may issue notice of such finding to the taxpayer by personal service or mailing to the taxpayer's last known address, together with a demand for immediate payment of the tax declared to be in jeopardy, including penalties and additions thereto and such tax, penalty, interest, and additions thereto shall be immediately due and payable. A final assessment of such tax may be entered immediately and if the assessment is not paid upon such demand of the director, the director may forthwith issue a warrant for levy and distraint of any personal property of the taxpayer which shall be collected in the same manner and with like effect as provided under section 3A-3-11.

(2) In the case of a tax for a current period, the director may declare the taxable period of the taxpayer immediately terminated and may at his or her discretion estimate the tax liability based upon the best information obtainable. Notice of such finding and declaration shall be issued to the taxpayer in the same manner as in subsection (a)(1) of this section.

(3) When a jeopardy assessment has been made as provided in subsection (a)(1) of this section, the collection of all or any part of such assessment may be stayed by filing with the director an approved bond conditioned upon the payment of the assessment together with applicable interest and costs of collection. The director shall have sole discretion to approve or disapprove the bond, but such approval shall not be unreasonably withheld.

(b) *Preliminary and final assessments.* All preliminary and final assessments issued by the department shall be executed as provided in Code of Ala. 1975, §§ 40-2A-7(b)(1)a and b, (b)(3), (b)(4) and 40-29-91. The terms "preliminary assessment" and "final assessment" shall have the respective meanings ascribed by Code of Ala. 1975, § 40-2A-3.

(1) *Entry of preliminary assessment.* If the department determines that the amount of any tax as reported on a return is incorrect, or if no return is filed, or if the department is required to determine value, the department may calculate the correct tax or value based on the most accurate and complete information reasonably obtainable by the department. The department may thereafter enter a preliminary assessment for the correct tax or value, including any applicable penalty and interest.

(2) *Service of preliminary assessment upon taxpayer.* The preliminary assessment entered by the department, or a copy thereof, shall be promptly mailed by the department to the taxpayer's last known address by either first class U.S. mail or certified mail with return receipt requested, but at the option of the department, the preliminary assessment may be delivered to the taxpayer by personal delivery.

a. Disputed preliminary assessments. If a taxpayer disagrees with a preliminary assessment as entered by the department, the taxpayer may file a written petition for review with the director of finance within 30 calendar days from the date of entry of the preliminary assessment, setting out the specific objections to the preliminary assessment, and showing cause why such assessment should not be made final. If a petition for review is timely filed, or if the department otherwise deems it necessary, the department shall schedule a conference with the taxpayer for the purpose of allowing the taxpayer and the department to present their respective positions, discuss any omissions or errors, and

to attempt to agree upon any changes or modifications to their respective positions.

b. If a written petition for appeal/review:

1. Is not timely filed; or

2. Is properly filed, and upon further review the department determines the preliminary assessment is due to be upheld in whole or in part, the department may make the assessment final in the amount of tax due as computed by the department, with applicable interest and penalty computed to the date of entry of the final assessment.

(3) *Service of final assessment upon taxpayer.* The final assessment entered by the department, or a copy thereof, shall be mailed by the department to the taxpayer's known address by certified mail with return receipt requested. At the option of the department, the final assessment, or a copy thereof, may be delivered to the taxpayer by personal delivery.

(4) *Undisputed preliminary assessments.* Where the amount of tax or value reported on a return is undisputed by the department, or the taxpayer consents in writing to the department's determination of the amount of any deficiency, determination of value, or preliminary assessment as provided by this chapter, the department may immediately enter a final assessment for the amount of the tax or value, plus applicable penalty and interest; provided, the department may at any time enter a final jeopardy assessment, pursuant to Code of Ala. 1975, § 40-29-91.

(c) *Time limitation for entering assessments.*

(1) Pursuant to Code of Ala. 1975, § 40-2A-7(b)(2), any preliminary assessment must be entered within three years from the due date of the return, or three years from the date the return is filed with the department, whichever is later, or if no return is required to be filed, within three years of the due date of the tax, except as follows:

a. A preliminary assessment may be entered at any time if no return is filed as required, or if a false or fraudulent return is filed with the intent to evade tax;

b. A preliminary assessment may be entered within six years from the due date of the return or six years from the date the return is filed with the department, whichever is later if the taxpayer omits from the taxable base an amount properly includable therein which is in excess of 25 percent of the amount of the taxable base stated in the return.

For purposes of this paragraph:

1. The term "taxable base" means the gross proceeds from sales, gross receipts, or other amounts on which the tax paid with the return is computed; and

2. In determining the amount omitted from the taxable base, there shall not be taken into account any amount which is omitted from the taxable base stated in the return if the amount is disclosed in the return, or in a statement attached to the return, in a manner adequate to apprise the department of the nature and amount of the item.

c. A preliminary assessment entered pursuant to Code of Ala. 1975, §§ 40-29-72 and 40-29-73 may be entered within five years from the due date of the return on which the underlying tax is required to be reported or within five years of the date the return is filed, whichever is later.

(2) The department and the taxpayer may, prior to the expiration of the period for

entering a preliminary assessment, agree in writing to extend the time provided for entering the assessment. The tax may be assessed at any time prior to the expiration of the period agreed upon. The period agreed upon may be extended by subsequent agreements in writing made before the expiration of the period previously agreed upon.

(3) Additional tax may be assessed by the department within any applicable period allowed above, even though a preliminary or final assessment has been previously entered by the department against the same taxpayer for the same or a portion of the same tax period.

(Ord. No. 97-186, § 11, 12-23-1997; Ord. No. 98-109, § 1(11), 6-30-1998)

Sec. 3A-4-12. Appeals.

(a) Appeals from denial of refunds, jeopardy assessments, and final assessments shall be executed as provided in Code of Ala. 1975, § 6-3-11. A written notice of appeal shall be filed with department and shall contain information sufficient to:

(1) Identify the name of the taxpayer or other party filing such notice of appeal;

(2) Identify the specific matter appealed from;

(3) Outline the basis for such appeal; and

(4) Specify the relief sought.

(b) *Appeal from refund denial.*

(1) A taxpayer may appeal from the denial in whole or in part of a petition for refund by filing a written notice of appeal with the circuit court within two years from the date the petition is denied. The circuit court shall hear the appeal according to its own rules and procedures and shall determine the correct amount of refund due, if any.

(2) If an appeal is not filed with the circuit court within two years of the date the petition is denied, then the appeal shall be dismissed for lack of jurisdiction.

(c) *Appeal from jeopardy assessment.*

(1) In any court proceeding to contest the jeopardy assessment or to enforce payment of the license taxes made due and payable by virtue of the provisions of section 3A-4-11, the finding of the director of finance, made as herein provided, shall be for all purposes presumptive evidence of jeopardy.

(2) A final jeopardy assessment entered hereunder may be appealed to either the director of finance or the circuit court. On appeal to the circuit court or to the director of finance, the final jeopardy assessment shall be prima facie correct, and the burden of proof shall be on the taxpayer to prove such assessment is incorrect.

(3) If an appeal is not filed with the director of finance or in the circuit court within the time provided herein for appeals of final assessments, the appeal shall be dismissed for lack of jurisdiction.

(d) *Appeal from preliminary assessment.* (Refer to section 3A-4-11(b)(2)a and b.)

(e) *Appeal from final assessment.*

(1) A taxpayer may appeal from any final assessment entered by the department by filing a written notice of appeal with the director of finance within 30 days from the date of entry of the final assessment, and the appeal, if timely filed, shall proceed as herein provided.

(2) The taxpayer may appeal from any final assessment to the circuit court by filing written notice of appeal within 30 days from the date of entry of the final assessment with the circuit court. If the appeal is to the circuit court, the taxpayer shall, also within the 30 day period allowed for appeal, either: (i) pay the tax, interest, and any penalty shown on the final assessment; or (ii) file a supersedeas bond with the court in double the amount of the tax, interest, and any penalty shown on the final assessment. The supersedeas bond shall be executed by a surety

company licensed and authorized to do business in the State of Alabama and shall be conditioned to pay the assessment plus applicable interest, penalty, and any court costs relating to the appeal. A taxpayer may appeal a final assessment to circuit court as provided herein, even though the taxpayer has paid the tax in issue prior to taking the appeal.

(3) The filing of the written notice of appeal with the director of finance or in the case of appeals to the circuit court, the filing of the written notice of appeal with both the director of finance and the circuit court, and also the payment of the assessment in full and applicable interest and penalty or the filing of a bond as provided herein, are jurisdictional. If such prerequisites are not satisfied within the time provided for appeal, the appeal shall be dismissed for lack of jurisdiction. On appeal to the circuit court, or to the director of finance, the final assessment shall be prima facie correct, and the burden of proof shall be on the taxpayer to prove such assessment is incorrect.

(Ord. No. 97-186, § 12, 12-23-1997; Ord. No. 98-109, § 1(12), 6-30-1998)

Sec. 3A-4-13. Penalties and interest.

The provisions for penalties are pursuant to Code of Ala. 1975, § 40-2A-11; provided, however, the rates and amounts of penalties are as provided herein.

(1) *Failure to timely file return.* If a person fails, neglects, or refuses to file any return required to be filed with the department on or before the date prescribed therefor, determined with regard to any extension of time for filing granted by the director of finance, there shall be assessed, in addition to the tax due or the amount of tax herein required to be collected and/or remitted, a penalty of ten percent of the amount due, or $50.00, whichever is greater, together with interest thereon at the rate of one percent per month, or fraction thereof, from the date at which the tax herein levied became due and payable, such penalty and interest to be assessed and collected as part of the tax, as provided in Code of Ala. 1975, § 40-2A-11(a).

(2) *Failure to timely pay tax.* If a person fails, neglects, or refuses to pay to the department the amount of tax shown as due on a return required to be filed on or before the date prescribed for payment of the tax, determined with regard to any extension of time granted for payment by the director of finance, there shall be added:

a. In addition to the tax due or the amount of tax herein required to be collected and/or remitted;

b. For any tax for which a monthly or quarterly return is required; or

c. For which no return is required;

a penalty of ten percent of the unpaid amount shown as tax due on the return or the amount stated in the notice and demand, together with interest thereon at the rate of one percent per month, or fraction thereof, from the date at which the tax herein levied became due and payable, as provided in Code of Ala. 1975, § 40-2A-11(b).

(3) *Underpayment of tax.* Any person failing to pay the tax herein levied to the city or any amount of tax herein required to be collected and paid to the city, within the time required by this chapter, shall pay, in addition to the tax or the amount of tax herein required to be collected and/or remitted, a penalty of ten percent of the amount of tax due, plus interest at the rate of one percent per month, or fraction thereof, from the date at which the tax or the amount of tax herein levied or required to be collected became delinquent, that is, due and payable to the city.

(4) *Underpayment due to negligence.* If any part of any underpayment of tax is due to negligence or disregard of rules or regulations, there shall be added to the tax an amount equal to ten percent of that part

of the tax attributable to negligence or disregard of rules and regulations. For the purpose of this section, the term "negligence" includes any failure to make a reasonable attempt to comply with this chapter, and the term "disregard" includes any careless, reckless or intentional disregard, as provided in Code of Ala. 1975, § 40-2A-11(c).

(5) *Underpayment due to fraud.* If any part of any underpayment of tax required to be shown on a return is due to fraud, there shall be added to the tax an amount equal to 50 percent of that portion of the underpayment which is attributable to fraud. For purposes of this section, the term "fraud" shall have the same meaning as ascribed to the term under Code of Ala. 1975, § 40-2A-11(d).

(6) *Frivolous appeal penalty.* If any appeal to the director of finance or to circuit court is determined to be frivolous or primarily for the purpose of delay or to impede collection of the tax imposed by this chapter, a penalty of $250.00 or 25 percent of the tax in question, whichever is greater, shall be assessed in addition to any tax due, as provided in Code of Ala. 1975, § 40-2A-11(f).

(7) *Penalties not exclusive.* The penalties provided in this section for failure to timely file a return, failure to timely pay tax, underpayment of tax, underpayment due to negligence, or filing a frivolous appeal may be asserted against the same taxpayer for the same tax period, as provided in Code of Ala. 1975, § 40-2A-11(g). If the fraud penalty is asserted, no other penalties shall be asserted.

(8) *Waiver of penalties.* Penalties may be waived, in whole or in part, by the director of finance upon a determination of reasonable cause, pursuant to Code of Ala. 1975, § 40-2A-11(h). The term "reasonable cause" includes, but is not limited to, those instances in which the taxpayer has acted in good faith. The burden of proving reasonable cause shall be on the taxpayer.

(9) *Penalty and interest assessed as tax.* All penalties and interest, levied or assessed against a taxpayer and which is administered by the department shall be assessed and collected in the same manner as taxes.

(10) *Interest.* Interest shall be computed at the rate of one percent per month or fraction thereof, and shall be added as provided herein to any tax or other amount due the department which is not paid by the due date. Interest on any delinquency or underpayment shall be charged from the due date of the tax, as provided in Code of Ala. 1975, § 40-1-44.

(11) *Abatement of penalty.* The department shall abate any penalty attributable to erroneous written advice furnished to a taxpayer by an employee of the department. However, this subsection shall apply only if the department employee provided the written advice in good faith while acting in his official capacity, the written advice was reasonably relied on by the taxpayer and was in response to a specific written request of the taxpayer, and the penalty did not result from the taxpayer's failure to provide adequate or accurate information.

(12) *Penalty for failure to perform duties.* Any person required to collect, truthfully account for, and/or pay over any tax imposed by this chapter who willfully fails to collect such tax, or truthfully account for, and/or pay over such tax, or willfully attempts in any manner to evade or defeat any such tax or the payment thereof, shall, in addition to other penalties provided by law, be liable for a penalty up to the total amount of the tax evaded, or not collected, or not accounted for and paid over.

(Ord. No. 97-186, § 13, 12-23-1997; Ord. No. 98-109, § 1(13), 6-30-1998; Ord. No. 98-174, § 1(13), 11-10-1998; Ord. No. 00-210, § 1(13), 12-12-2000)

Sec. 3A-4-14. Confidentiality of tax returns.

The confidentiality provisions imposed by this Code shall be executed as provided in Code of Ala. 1975, § 40-2A-10(a), (d), (e), (f) and (g).

(1) It shall be unlawful for any person to print, publish, or divulge, without the written permission or approval of the taxpayer, the tax return of any taxpayer or any part thereof or any information secured in arriving at the amount of tax or value reported for any purpose other than the proper administration of any matter administered by the department, or upon order of any court, or as otherwise allowed in this section. Statistical information pertaining to taxes may be disclosed at the discretion of the director of finance. The director of finance may make written or verbal disclosure upon request as to the status of compliance of the taxpayer relative to this Code.

(2) A good standing certificate shall be issued to a requesting person with respect to a taxpayer, if the taxpayer has filed all tax returns due, and paid the taxes shown as payable in accordance with those returns.

(3) The director of finance shall promulgate reasonable regulations permitting and governing the exchange of tax returns, information, records, and other documents secured by the department, with tax officers of other agencies of the state, municipal, and county government agencies within the state, federal government agencies, any association of state government tax agencies of this state or other states, and any foreign government tax agencies; however:

a. Any tax returns, information, records, or other documents remain subject to the confidentiality provisions set forth in subsection (1) of this section;

b. The department may charge a reasonable fee for providing information or documents for the benefit of the requesting agencies; and

c. Any exchange shall be for one or more of the following purposes:

1. Collecting taxes due.

2. Ascertaining the amount of taxes due from any person.

3. Determining whether a person is liable for, or whether there is probable cause for believing a person might be liable for the payment of any tax.

(4) Nothing herein shall prohibit the use of tax returns or tax information by the department in the enforcement, collection, and assessment of any tax levied or imposed by this Code, or any other matters administered by the department. The department may also divulge to a purchaser or successor of a business or stock of goods the outstanding taxes of which the purchaser or successor may be liable pursuant to Code of Ala. 1975, § 40-23-82. This section shall not preclude the inspection of returns by federal or foreign state agents pursuant to Code of Ala. 1975, § 40-18-53.

(5) Nothing herein shall prohibit the exchange of information between and among county or municipal governments subject to the restrictions of this section.

(6) In no event shall any damages, attorney fees or court costs be assessed against the city or against its elected officials, officers or employees under this section.

(Ord. No. 97-186, § 14, 12-23-1997; Ord. No. 98-109, § 1(14), 6-30-1998)

Sec. 3A-4-15. Regulations may be promulgated; payments due taxpayers may be withheld.

(a) *Regulations may be promulgated.* Regulations may be promulgated as provided in Code of Ala. 1975, § 40-23-83 except where inapplicable or where herein otherwise provided.

(1) The director of finance shall from time to time promulgate rules and regulations for making returns and for ascertainment, assessment and collection of the

tax imposed hereunder as the director may deem necessary to enforce its provisions; and upon request shall furnish any taxpayer with a copy of such rules and regulations.

(2) The director of finance may prescribe, adopt, promulgate and enforce reasonable rules and regulations not in conflict with this chapter relating to any matter or thing pertaining to the administration and enforcement of the provisions of this chapter, including but not limited to provisions for the re-examination and correction of returns as to which overpayment or underpayment is claimed or found to have been made, and the rules and regulations so promulgated shall be binding upon all taxpayers.

(3) The director of finance shall prescribe printed forms for use by persons subject to the provisions of this chapter and shall make such forms available at the director's office for use by such persons.

(b) *Payments due taxpayers may be withheld.* Pursuant to the Mayor-City Council Act, article VI, section 6.04(o), Act No. 452-55, Acts of Alabama, the director of finance, in order to protect the interests of the city, is authorized to withhold the payment of any claim or demand for payment of monies due from the city to any vendor, contractor, consultant or other person having unpaid or delinquent tax or license liabilities until such unpaid tax, including applicable interest and penalties, shall first have been settled and adjusted. The director of finance shall notify the taxpayer by certified mail with return receipt requested, sent to the taxpayer's last known address, of the director's intention to make such levy, the effect of which shall be continuous from the date such levy is first made until the liability out of which such levy arose is satisfied.

(Ord. No. 97-186, § 15, 12-23-1997; Ord. No. 02-176, § 1(15), 12-10-2002)

Sec. 3A-4-16. Purchaser to withhold taxes due from purchase money or be liable.

Pursuant to Code of Ala. 1975, § 40-23-82, if any retailer liable for an amount of tax herein required to be collected shall sell out his or her business or stock of goods or shall quit the business, he or she shall make a final return, as provided under section 3A-4-5 and shall make payment of the taxes due within 30 days after the date of selling or quitting business. His or her successor, successors or assigns, if any, shall be required to withhold sufficient of the purchase money to cover the amount of such taxes herein required to be collected and interest or penalties due and unpaid until such time as the former owner shall produce a receipt from the department showing that they have been paid, or a certificate stating that no amount is due. If the purchaser of a business or stock of goods shall fail to withhold purchase money a provided herein, and the taxes remain due and unpaid after said 30-day period, he or she shall be personally liable for the payment of the amount of taxes herein required to be collected by the former owner, interest and penalties accrued and unpaid by any former owner, owners or assignors. If in such cases the department deems it necessary in order to collect the taxes due, it may make a jeopardy assessment as provided in Code of Ala. 1975, tit. 40, ch. 29.

(Ord. No. 97-186, § 16, 12-23-1997)

Sec. 3A-4-17. Disposition of funds derived from taxes.

All monies derived from the use tax levied under the provisions of this chapter shall be paid to the city and placed to the credit of the general fund of the city, and shall be used and expended as authorized by law and ordinance.

(Ord. No. 97-186, § 17, 12-23-1997; Ord. No. 98-109, § 1(17), 6-30-1998)

Sec. 3A-4-18. Discount.

A discount of three-fourths of one percent (.0075) of the taxes levied by this chapter due and payable to the city shall be allowed to the seller or vendor provided the taxes due by such seller are paid before the same becomes delinquent, as provided in this chapter, pursuant to Code of Ala. 1975, § 40-23-36 with a maximum discount allowed of $400.00. If the returns are not filed within the time herein provided and the taxes not paid on the dates herein provided for,

no such person shall be entitled to such a discount, but shall pay to the city the amount of tax due, together with applicable penalty and interest at the rate of one percent (0.01) per month, from the date the payment of said use tax became delinquent.
(Ord. No. 97-186, § 19, 12-23-1997; Ord. No. 14-124, § 1, 9-10-2014)

Sec. 3A-4-19. Seller to collect tax; seller not to assume or absorb tax.

(a) Pursuant to Code of Ala. 1975, § 40-23-67, every such seller making sales of tangible personal property for storage, use or other consumption in this city, not exempted under the provisions of section 3A-4-3, shall at the time of making such sales, or, if the storage, use or other consumption of the tangible personal property is not then taxable hereunder, at the time such storage, use or other consumption becomes taxable hereunder, collect the tax imposed by this chapter from the purchaser, and give to the purchaser a receipt therefor in the manner and form prescribed by the department. The tax required to be collected by the seller from the purchaser shall be displayed separately from the list, advertised in the premises, marked or other price on the sales check or other proof of sales.

(b) It shall be unlawful for any such seller to advertise or hold out or state to the public or any customer, directly or indirectly, that the tax or any part thereof imposed by this chapter will be assumed or absorbed by the seller or that it will not be added to the selling price of the property sold, or if added that it or any part thereof will be refunded.

(c) Any person violating any of the provisions of this section shall be guilty of a misdemeanor and shall, upon conviction, be punished pursuant to section 1-1-6. The tax herein required to be collected by the seller shall constitute a debt owed by the seller to this city.
(Ord. No. 97-186, § 20, 12-23-1997)

Sec. 3A-4-20. Credit for sales or use tax erroneously paid.

(a) *Authorization.* Pursuant to Code of Ala. 1975, § 40-23-65, if a sales or use tax equal to or greater than the amount of the city tax is paid to another city under a requirement of law, the property which is the subject of such tax, when imported for use or consumption in the city, is not subject to the use tax, which is required to be paid by section 3A-4-2. If the amount of tax paid to the other city is less than the Birmingham tax, then the difference between the out-of-city tax and the Birmingham tax must be paid. No credit will be allowed for taxes paid on tangible personal property in any city which does not give credit for taxes paid on similar property in Birmingham. The director of finance shall require such proof of payment of tax to another city as he or she deems to be necessary and proper.

(b) *Taxes due the city which were erroneously paid to another municipality.*

(1) *Taxpayer requirement to request refund of erroneous tax payment within 60 days of notice to avoid interest, penalties.* In order to avoid the accrual of interest and any otherwise applicable penalties on the tax due the city, when a use tax owed to the city is erroneously paid to a different municipality or county in good faith, based on a reasonable interpretation of the enabling ordinance, resolution, or act levying or authorizing the tax, but not under a requirement of law, the taxpayer making the erroneous payment must comply with the applicable refund procedures of such municipality or county within 60 days of receiving notice from the city, a county, or other municipality or its agent of the erroneous payment.

(2) *Compliance with refund procedure; interest, penalties.* If the taxpayer complies with the refund procedure within the requisite 60-day period, the city shall not assess or attempt to assess the tax, or any related interest or otherwise applicable penalty thereon until the date of receipt of the overpayment from the refunding municipality or county by the taxpayer or the taxpayer's agent, and no interest or penalty thereon shall accrue until such date of receipt. The taxpayer shall remit the disputed tax to the city within 15 days after receipt.

(3) *Failure to comply with refund procedure; interest, penalties.* If the taxpayer fails to comply with the refund procedures within the requisite 60-day period, interest and any applicable penalties shall accrue on the tax to which the city is entitled from the 61st day and until such time as the tax is paid.

(c) *Taxes due to another municipality which were erroneously paid to the city.*

(1) *City's requirement to refund overpayment of erroneous tax payment within 60 days of compliance with refund procedures.* If a use tax owed to another municipality or county is erroneously paid to the city in good faith, based on a reasonable interpretation of the enabling ordinance, resolution, or act levying or authorizing the use tax, but not under a requirement of law, the city shall refund the overpaid tax, without interest, to the taxpayer within 60 days of the taxpayer's compliance with applicable refund procedures provided in section 3A-4-10.

(2) *Refund of excess tax; requirements.* Provided, however, that if the applicable rate of use tax imposed by the city exceeds the rate of use tax imposed by the proper locality under a requirement of law, the city shall not be obligated to refund the difference unless the taxpayer properly files the applicable petition for refund, as in the case of joint petitions for refund as required by section 3A-4-10(a).

(Ord. No. 97-186, § 21, 12-23-1997; Ord. No. 98-109, § 1(21), 6-30-1998)

Sec. 3A-4-21. Collection after assessment.

The tax herein levied may be collected by levy as provided in Code of Ala. 1975, § 40-29-51, as follows:

(1) *Length of period.* Where the assessment of any tax imposed by this chapter has been begun or made within the period of limitation properly applicable thereto, such tax may be collected by levy or by a proceeding in court, but only if the levy is made or the proceeding begun:

a. Within the period allowed by law after the final assessment of the tax; or

b. Prior to the expiration of any period for collection agreed upon in writing by the director of finance and the taxpayer before the expiration of such period allowed by law (or, if there is a release of levy under Code of Ala. 1975, § 40-29-34, after such period allowed by law, then before such release).

The period so agreed upon may be extended by subsequent agreements in writing made before the expiration of the period previously agreed upon. The period allowed by law as provided in this subsection during which a tax may be collected by levy shall not be extended or curtailed by reason of a judgment against the taxpayer.

(2) *Date when levy is considered made.* The date on which a levy on property or rights to property is made shall be the date on which the notice of seizure provided in Code of Ala. 1975, § 40-29-26, is given.

(Ord. No. 97-186, § 23, 12-23-1997)

Sec. 3A-4-22. Lien for taxes.

Pursuant to Code of Ala. 1975, §§ 40-29-20 et seq., and/or 11-51-96, the provisions of this section shall apply to the taxes, and/or any penalty or interest payable thereon, levied under this chapter.

(1) *Liens generally.* If any person liable to pay the tax herein levied, neglects or refuses to pay the same within 30 days of the final assessment, the amount (including any interest, additional amount, addition to tax, or assessable penalty together with filing fees and any other costs that may accrue in addition thereto) shall be a lien in favor of the city upon all property

and rights to property, whether real or personal, tangible or intangible, belonging to such person.

(2) *Notice of lien.* The department shall give a 30-day notice of intent of file lien to the taxpayer by any one of the following methods:

a. Given in person;

b. Left at the dwelling or usual place of business of such person; or

c. Sent by certified mail with return receipt requested to the taxpayer's last known address.

(3) *Term.* Unless another date is specifically fixed by law, the lien imposed by subsection (1) of this section shall arise at the time of the final assessment, return therefor or the payment thereof, whichever is prior, was due to have been filed with or made to the department, and shall continue until the liability for the amount so assessed (or a judgment against the taxpayer arising out of such liability) is satisfied or becomes unenforceable by reason of lapse of time.

(4) *Right to enforce lien by attachment.* The department may enforce such lien in any court of competent jurisdiction, by attachment issued by any officer authorized to issue such writs, upon executing bond as in other cases of attachment, and upon making affidavit that the attachment is not sued out for the purpose of vexing or harassing the defendant, and describing the property on which the lien is claimed and setting forth all the facts necessary to the creation of the lien and the amount due and unpaid (including any interest, additional amount, addition to tax, or assessable penalty together with filing fees and any other costs that may accrue in addition thereto).

(5) *Release of lien.* If the taxpayer shall file with the department a bond in double the amount of the lien filed, with surety or sureties to be either a surety company authorized to do business in the state or such individual property owners, not less than three in number, as recommended by the judge of probate of the county in which the notice of lien is recorded, conditioned to pay all such tax, interest, penalty, additional amount or addition to such tax, together with any costs which may occur in addition thereto as may be assessed against the taxpayer, principal in said bond, the director of finance shall withdraw and release said lien filed under the provisions of this subsection, and upon a determination that the said taxpayer owes any of said taxes to the city, the assessment (judgment) therefor shall be entered against said taxpayer and the surety or sureties on said bond; and, if not paid within 30 days from the date of said final assessment (judgment), then execution shall issue therefor against said principal and the surety or sureties on said bond. If the bond hereinabove provided for is not given and approved by the director of finance, and final assessment (judgment) is entered against said taxpayer and he or she duly and legally appeals therefrom within the time and in the manner provided for by this chapter, and if the court approves the bond required for an appeal or the said taxpayer against whom the assessment was entered by the department shall, within 30 days from the date of the assessment, pay the amount thereof to the city, then, in either of said events, the director of finance shall cancel or release from record said lien.

(Ord. No. 97-186, § 24, 12-23-1997; Ord. No. 07-232, § 1(24), 12-18-2007)

Sec. 3A-4-23. Collection by civil suit.

The department may initiate and/or maintain a civil action to recover delinquent taxes herein levied, interest, penalties, and administrative costs incurred in connection therewith, in any court of competent jurisdiction, which remedy shall be in addition to any and all other remedies which may be provided.

(Ord. No. 97-186, § 25, 12-23-1997)

Sec. 3A-4-24. Violator may be restrained from continuing in business.

Any taxpayer who shall violate any of the provisions of this chapter may be restrained from continuing in business, and proper prosecution shall be instituted in the name of the city until such person shall have complied with the provisions of this chapter.
(Ord. No. 97-186, § 26, 12-23-1997)

Sec. 3A-4-25. Violations.

(a) *Failure to pay the tax, make reports, keep or provide records.* Any person subject to the provisions of this chapter, who shall fail to pay the tax, make the reports or any of them, as herein required, or who shall fail to keep or provide records, as herein required, as provided in Code of Ala. 1975, § 40-29-112, shall be guilty of a misdemeanor and upon conviction be fined not less than $50.00, nor more than $500.00 for each offense, and in addition, may be imprisoned for a period not to exceed six months. Each occurrence of such failure shall constitute a separate offense.

(b) *Willful refusal to make reports, or permit examination of records.* Any person subject to the provisions of this chapter willfully refusing to make the reports herein required, or who shall refuse to permit the examination of his or her records by the department, shall be guilty of a misdemeanor, and upon conviction shall be fined not less than $50.00 nor more than $500.00 for each offense, and in addition may be imprisoned for a period not to exceed to six months. Each occurrence of failure to make such reports shall constitute a separate offense, and each refusal of a written demand by the department to examine, inspect or audit such records shall constitute a separate offense.

(c) *Violation of chapter.* Any person who shall fail, neglect, or refuse to perform any duty imposed by this chapter, or other city ordinances, or any rule, regulation, or law thereof, or who shall fail or neglect to do or perform any act or series of acts as required by this chapter or other city ordinances shall, upon conviction, be punished by a fine not exceeding $500.00 for each offense, and in addition may be imprisoned for a period not to exceed six months, or by both such fine and imprisonment, pursuant to section 1-1-6, as amended and as it may be amended.
(Ord. No. 97-186, § 27, 12-23-1997)

Sec. 3A-4-26. Request for ruling on determination of taxation.

Any taxpayer may request a ruling on the determination of whether amounts of gross sales or gross purchases at retail of tangible personal property for storage, use or other consumption in the city by a taxpayer are subject to the tax, or are not to be used as a measure of the taxes due and payable as levied by this chapter. Such requests shall be made in writing to the finance department, and shall contain all pertinent facts, and shall include a copy of any written determinations or revenue rulings issued by the state department of revenue relating to the items in question.
(Ord. No. 97-186, § 28, 12-23-1997; Ord. No. 01-166, § 1, 12-18-2001)

Sec. 3A-4-27. Tax continued.

The use tax rates appearing in this chapter, which include the additional $0.01 per dollar use tax, are hereby continued until amended or repealed by the council.
(Ord. No. 13-17, § 1, 2-12-2013)

CHAPTER 5. LEASE TAX*

Sec. 3A-5-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the following

*__State law references__—Local lease taxes, Code of Ala. 1975, § 11-51-207; state lease tax, Code of Ala. 1975, § 40-12-220 et seq.

meanings except when the context clearly indicates a different meaning; or when the definition of such word or phrase conflicts with the same definition as contained in Code of Ala. 1975, §§ 40-12-220, 40-23-1, or 40-2A-3, in which case the state law definition will govern:

Automotive vehicle shall include a power shovel, drag line, crawler, crawler crane, ditcher, or any similar machine which is self-propelled, in addition to self-propelled machines which are used primarily as instruments of conveyance.

Business means all activities engaged in, or caused to be engaged in, by any person with the object of gain, profit, benefit, or advantage, either direct or indirect to such person.

Department means the department of finance of the city, and includes the director of finance.

Director of finance or *director* means the director of finance of the city or his or her duly authorized agent.

Final assessment means the final notice of value, underpayment, or nonpayment of any tax administered by the department.

Gross proceeds means the value proceeding or accruing from the leasing or rental of tangible personal property, including any license or privilege taxes passed on to a lessee by a lessor, without any deduction on account of the cost of the property so leased or rented, the cost of materials used, labor or service cost, interest paid, or any other expense whatsoever, and without any deductions on account of loss, and shall also include on the part of any person claiming exemption under Code of Ala. 1975, § 40-12-223(4) an amount equal to the amount of rental paid on any tangible personal property acquired under such exemption and thereafter diverted to the use of such person.

Leasing or *rental* means a transaction whereunder the person who owns or controls the possession of tangible personal property permits another person to have the possession or use thereof for a consideration and for the duration of a definite or indefinite period of time without transfer of the title to such property. The detention by the user thereof of freight cars, oxygen and acetylene tanks and similar property, in respect of which detention a demurrage or per diem charge is made against the user of such property, shall not be deemed to constitute a transaction whereunder property is leased or rented to another within the meaning of this chapter.

Notice of appeal means any written notice sufficient to identify the name of the taxpayer or other party appealing, the specific matter appealed from, the basis for such appeal, and the relief sought.

Person or *company* means any natural person, firm, partnership, association, corporation, receiver, trust, estate, or other entity, or any other group or combination of any thereof acting as a unit.

Petition for refund means a written request for a refund of tax previously paid, including in the form of an amended return. Unless otherwise provided by law, such request shall include sufficient information to identify the type and amount of tax overpaid, the taxpayer, the period included, the reasons for the refund and sufficient documentation as required by the director of finance.

Petition for review means a written document filed with the department in response to a preliminary assessment in which the taxpayer sets forth reasonably specific objections to the preliminary assessment.

Preliminary assessment means the preliminary notice of value or underpayment of any tax administered by the department.

Private auditing or collecting firm means any person in the business of collecting, through contract or otherwise, leases taxes for the city, or auditing any taxpayer, through the examination of books and records, for the city.

Reasonable cause includes, but is not limited to, those instances in which the taxpayer has acted in good faith. The burden of proving reasonable cause shall be on the taxpayer.

Return means any report, document, or other statement required to be filed with the department for the purpose of paying, reporting, or determining the proper amount of value or tax due.

Tangible personal property.

(1) The term "tangible personal property" means personal property which may be seen, weighed, measured, felt, or touched, or is in any other manner perceptible to the senses.

(2) The term "tangible personal property" does not include stocks, bonds, notes, insurance, or other contracts or securities.

Tax means any amount, including applicable penalty and interest, levied or assessed against a taxpayer and which the department is required or authorized to administer under the provisions of state law.

Taxpayer means any person subject to or liable for tax herein levied; any person required to file a return with respect to, or to pay or remit the tax herein levied, or to report any information or value to the department, or its designee; or any person required to obtain or holding any interest in any license issued by the department, or its designee, or any person that may be affected by any act or refusal to act by the department, or its designee, or to keep any records required by this chapter.

Taxpayer's authorized representative means any individual with written authority or power of attorney to represent a taxpayer before the department; provided, however, that nothing herein shall be construed as entitling any such individual who is not a licensed attorney to engage in the practice of law.

Taxpayers' Bill of Rights Pamphlet means a written pamphlet to be distributed by the department to all taxpayers whose books and records are being examined by the department, at or before the commencement of an examination, explaining in simple and nontechnical terms, the role of the department and the rights of the taxpayer whose books and records are being examined by the department during the examination and which shall be promptly revised from time to time to reflect any changes in the applicable law or rules.

(Ord. No. 97-187, § 1, 12-23-1997; Ord. No. 98-175, § 1(1), 11-10-1998; Ord. No. 00-211, § 1(1), 12-12-2000; Ord. No. 01-167, § 1(1), 12-18-2001; Ord. No. 02-178, § 1(1), 12-10-2002)

Sec. 3A-5-2. Levy of tax.

Effective May 1, 1980, and pursuant to Code of Ala. 1975, § 40-12-222, there is hereby levied and shall be collected and remitted as herein provided, in addition to all other taxes now imposed by law, a privilege or license tax on each person engaging or continuing within this city in the business of leasing or renting tangible personal property which shall be in the amounts to be determined by the application of the rates against gross proceeds or gross receipts derived by the lessor from the lease or rental of tangible personal property, as follows:

(1) *General rate.* On each person engaging or continuing within this city in the business of leasing or renting tangible personal property, there is hereby levied an amount equal to three percent of the gross proceeds derived by the lessor from the lease or rental of tangible personal property of every kind and description. Provided that the privilege or license tax on each person or firm engaging or continuing within this city in the business of the leasing and rental of linens and garments shall also be at the rate of three percent of the gross proceeds derived by the lessor from the lease or rental of such linens and garments.

(2) *Automotive rate.* Provided, further, that the said privilege or license tax on each person engaging or continuing within this city in the business of leasing or renting any automotive vehicle or truck trailer, semitrailer or house trailer shall be at the rate of 0.75 percent of the gross proceeds derived by the lessor from the lease or rental of such automotive vehicle or truck trailer, semitrailer or house trailer.

(3) *Exclusions.* Provided, however, that the tax levied in this chapter shall not apply to any leasing or rental, as lessor, by the state, or any municipality or county in the state, or any public corporation organized under the laws of the state, including without limiting the generality of the fore-

going, any corporation organized under the provision of Code of Ala. 1975, §§ 11-54-80 through 11-54-101.

(4) *Pass on authority.* Notwithstanding the above, nothing shall prohibit a lessor subject to the lease tax levied by this chapter from passing such amounts on to a lessee by adding such taxes to the leasing price or otherwise, provided, however, that all such amounts passed on to the lessee shall be includable in the gross proceeds derived from the lease of tangible personal property which shall be subject to the privilege or license tax owed by the lessor.

Provided, however, the authority to pass on such amounts of the privilege or license tax granted in this subsection shall not apply to the leasing or renting of tangible personal property to the state, a municipality or county in the state, unless the flat amount collected by the lessor includes both the tax and the leasing fee.
(Ord. No. 97-187, § 2, 12-23-1997; Ord. No. 98-175, § 1(2), 11-10-1998; Ord. No. 01-167, § 1(2), 12-18-2001)

Sec. 3A-5-3. Exemptions.

(a) *Generally.* Taxes imposed by this chapter shall be subject to all exemptions as are provided in Code of Ala. 1975, tit. 40, ch. 12, art. 4, the state leasing or rental tax law, as now or hereafter amended, all acts supplementary thereto except where inapplicable or where herein otherwise provided, all of which are adopted and made a part hereof by reference.

(b) *Special.* Special exemptions from the taxes imposed by this chapter are allowed in all other instances where the lease taxes levied under Code of Ala. 1975, tit. 40, ch. 12, art. 4, are exempted under any other provision of Code of Ala. 1975.
(Ord. No. 97-187, § 3, 12-23-1997; Ord. No. 02-178, § 1(3), 12-10-2002)

Sec. 3A-5-4. License required to engage in business.

Pursuant to Code of Ala. 1975, § 40-12-221. If any person shall engage in or continue in any business for which a privilege tax is imposed by section 3A-5-2 as a condition precedent to engaging or continuing in such business, he or she shall apply for and obtain from the department a license to engage in and to conduct such business for the current tax year upon the condition that he or she shall pay the taxes accruing to the city under the provisions of this chapter; provided that no license shall be issued to any person who has not complied with the provisions of this chapter, and no provision of this chapter shall be construed as relieving any person from the payment of any license or privilege tax now or hereafter imposed by law.
(Ord. No. 97-187, § 4, 12-23-1997)

Sec. 3A-5-5. Filing of returns and payment of tax.

The privilege license tax levied hereunder, except as otherwise provided in subsection (4) of this section, shall be due and payable in monthly installments on or before the 20th day of the month next succeeding the month in which the privilege license tax accrues.

(1) *Due date and contents of returns; payment of the tax.* On or before such 20th day of each month, except as otherwise provided in subsection (4) of this section, every person on whom the amounts levied hereunder are imposed shall report to the department, on a form prescribed by the department, a true and correct statement showing:

a. The gross proceeds or gross receipts, as the case may be, of his or her business for the next preceding month;

b. The amount of the gross proceeds or gross receipts which are not subject to the privilege license tax, or are not to be used as a measurement of the taxes due by such person, and the nature thereof; and

c. Such other information as the city may deem necessary for the proper administration of this chapter.

At the time of making such monthly report such person shall compute the privilege license taxes due and shall pay to the city the amounts shown to be due.

(2) *Taxpayer's responsibility when no form received.* The department is authorized to provide prescribed printed forms necessary for compliance with the filing requirements outlined in this section. Failure of the taxpayer to receive forms from the department does not relieve the taxpayer of the responsibility of the timely reporting of the information required on the return, nor the timely payment of the tax.

(3) *Timely mailing treated as timely filing and paying.* The provisions outlined in this section for the timely filing of any returns, payments, claims, statements or other documents shall be administered as herein provided.

a. *Date of delivery.* If any return, claim, statement, or other document required to be filed, or any payment required to be made, within a prescribed period or on or before a prescribed date under the authority of any provision of this chapter is, after such period or such date, delivered by United States mail to the finance department or to the department's designated depository where such return, claim, statement, or other document is required to be filed, or to which such payment is required to be made, the date of the United States postmark stamped on the cover in which such return, claim, statement, or other document, or payment, is mailed shall be deemed to be the date of delivery, or the date of payment, as the case may be; provided, however:

1. *Weekends and holidays.* When the due date falls on a Saturday, Sunday or city holiday, payment of the tax may be made without penalty on the first working day following the due date.

2. *Mailing requirements.* The return, claim, statement or other document, or payment was, within the time prescribed in subsection (3)a of this section, deposited in the mail in the United States in an envelope or other appropriate wrapper, postage prepaid, properly addressed to the finance department or to the department's designated depository where such return, claim, statement, or other document is required to be filed, or to where such payment is required to be made.

b. *Delivery by method other than United States mail.* Returns, claims, statements, or other documents, or payments which are required under any provision of this chapter which are delivered by any method other than by mailing shall be considered timely filed when such items are received in the finance department or the department's designated depository on the due date prescribed.

c. *Untimely filing.* Any return, payment, claim, statement or other document not received in accordance with the provisions of this section shall be deemed untimely filed and shall be assessed applicable penalties and interest as prescribed by the relevant sections of this chapter.

(4) *Tax return filing elections.*

a. *Election to file quarterly; requirements.*

1. If the total amount of taxable leases/rentals for which any person is liable under this chapter does not exceed $5,000.00 per month during the preceding calendar year, or, if the total tax liability due to the state for such leases/rentals during such period averages less than $200.00 per month during the

preceding calendar year, a quarterly return and remittance in lieu of the monthly returns may be made, by election of the taxpayer to the department, on or before the 20th day of the month next succeeding the end of the quarter for which the tax is due, and under such rules and regulations as may be prescribed in Code of Ala. 1975, tit. 40, ch. 12, art. 4.

2. In order to file quarterly, the election shall be made in writing no later than February 20 of each year and shall be filed with the department. If such election is not timely made and in accordance with the provisions of this subsection, returns shall be due monthly as provided for in this section.

b. *Election to file yearly.* Notwithstanding the above, if the total amount of taxable leases/rentals for which any person is liable under this chapter does not exceed $250.00 during the preceding calendar year, or, if the total tax liability due to the state for such leases/rentals during such period is less than $10.00 during the preceding calendar year, a yearly return and remittance shall be made to the city, on or before January 20 of each year. In order to file yearly, the election shall be made in writing and shall be filed with the department. If such election is not timely made and in accordance with the provisions of this subsection, returns shall be due monthly as provided for in this section.

(5) *Bulk submissions.* The department may accept, for reporting and payment of taxes due the city, bulk submissions of reports, and under regulations promulgated by the department, payments owed to the city made on behalf of the taxpayer by its properly authorized representative where such submissions are made using the appropriate form prescribed by the department, as provided in Code of Ala. 1975, § 11-51-210(d). Any such bulk submissions of reports and payments shall include:

a. The city's assigned taxpayer identification number for each such taxpayer for each tax paid; and,

b. Sufficiently detailed information by which each taxpayer can be identified such that a determination can be made as to the amount and method of assessment of tax against such taxpayer for the city.

The acceptance by the city of such bulk submissions shall not relieve the taxpayer on whose behalf such submissions were made from liability for any lease tax arising from an error or omission made by the taxpayer's representative. Such bulk submission shall be signed by the taxpayer or its properly authorized representative.

(Ord. No. 97-187, § 5, 12-23-1997; Ord. No. 98-110, § 1(5), 6-30-1998; Ord. No. 98-175, § 1(5), 11-10-1998; Ord. No. 00-211, § 1(5), 12-12-2000)

Sec. 3A-5-6. Extension of time for making return.

The director of finance, for reasonable cause, may extend the time for making any return required under the provisions of this chapter, however, the time for filing any such return shall not be extended for a period greater than 30 days from the date such return is due to be made and shall not prevent penalty and interest from accruing during the period of such extension.
(Ord. No. 97-187, § 6, 12-23-1997)

Sec. 3A-5-7. Oaths.

The monthly reports herein required to be made are not required to be made under oath, but wherever in this chapter any report is required to be sworn to, the same shall be sworn to by the taxpayer or his or her agent before some officer authorized to administer oaths, and any false

statement to a material fact made with intent to defraud shall constitute perjury and upon conviction thereof the person so convicted shall be punished as provided in section 1-1-6, as amended and as may be amended.
(Ord. No. 97-187, § 8, 12-23-1997)

Sec. 3A-5-8. Maintenance of records; investigative powers; audit and subpoena authority.

The provisions of this section shall be administered in accordance with the procedures set forth in Code of Ala. 1975, § 40-2A-7(a).

(1) *Records to be kept.* It shall be the duty of every lessor/renter and every person engaging or continuing in any business for which a privilege tax is imposed hereby to keep and preserve an accurate and complete set of records suitable for the determination of the correct amount of gross receipts or gross proceeds of any such business and such other books or accounts as may be necessary to determine the amount of tax for which such lessor/renter or person is liable hereunder. It shall be the duty of every lessor/renter and every person leasing/renting in this city, tangible personal property to keep and preserve for a period of not less than five years from the due date of the return on which the underlying tax is required to be reported, or five years of the date the return is filed, whichever is later, all invoices of gross proceeds, or gross receipts, and other pertinent papers, in such form as the city may require, proceeding or accruing from the leasing or rental herein taxed. All such books, invoices, equipment and other records shall be open for examination, by the department upon request at a reasonable time and location.

a. *Reasonable time and reasonable location.* The term "reasonable time" means during normal business hours of the department. The term "reasonable location" means the taxpayer's place of business or the offices of the taxpayer's authorized representative, provided such business or representative is located within a 50-mile radius of the city. Taxpayers maintaining records outside of this radius must make records available at city hall or at such other location as agreed upon by the department. The department, when conducting an audit, review, or examination for verification, may, at its election, require any taxpayer conducting business within the city to provide records, accounts, books, papers and other documents at a reasonable time and reasonable place agreed upon by the department, as provided herein.

b. *Taxpayer may be assessed reasonable costs.* As provided in Code of Ala. 1975, § 40-2A-6(d), the department may assess and collect from the taxpayer the reasonable costs, based on the then current state government employee per diem rates incurred by, or charged to, the city in connection with performing an examination of the taxpayer's books and records if the taxpayer received notice by certified U.S. mail, return receipt requested, at least 30 days prior to the date on which the examination was to commence; and:

1. The taxpayer either failed or refused to respond or did not propose a reasonable alternative date on which the examination was to commence within 15 days of receipt of notice of the pending examination; or

2. The taxpayer and the department agreed in writing as to an alternative date on which the examination was to commence but the taxpayer then failed or refused to permit reasonable access to its books and records on the alternative date.

c. *Leasing for re-leasing.* Any person leasing, who in addition leases for re-leasing, shall keep his or her books so as to show separately the gross proceeds of leasing and the gross proceeds of leasing for re-leasing.

(2) *Investigative powers.* Each taxpayer shall give to the director of finance the means, facilities and opportunity for the making of such audit, examination and investigation of the records, books, or other relevant information maintained by any taxpayer or other person for the purpose of computing and determining the correct amount of value or correct amount of tax as provided for in subsection (1) of this section. The director of finance is hereby authorized to examine any person under oath concerning any gross receipts or gross proceeds which were or should have been shown in a return, and to this end, he or she may compel the production of books, papers, records and the attendance of all persons before him or her, whether as parties or as witnesses, whom he or she believes to have knowledge of such gross receipts or gross proceeds. Any taxpayer, or officer of a corporation or association, or partner of a partnership, or fiduciary of a trust, or responsible individual of any entity under a duty to maintain books and records pursuant to this chapter, who fails or refuses to maintain or provide such records and books, or permit inspection, as required herein, shall be subject to the provisions of section 3A-5-10, and shall be subject to contempt proceedings in the circuit court.

(3) *Audit and subpoena authority; additional requirements.* Code of Ala. 1975, § 40-2A-7(a), outlines further requirements for the maintenance of records, in addition to the recordkeeping requirements set out in subsection (1) of this section. The department's authority to audit, to subpoena records, and to enter into contracts with private examining or collecting firms is granted pursuant to Act No. 98-191, the Local Tax Procedures Act of 1998, Act No. 98-192, the Local Tax Simplification Act of 1998, as well as Code of Ala. 1975, § 40-2A-7(a), except where inapplicable or where herein otherwise provided.

(Ord. No. 97-187, § 9, 12-23-1997; Ord. No. 98-110, § 1(9), 6-30-1998; Ord. No. 98-175, § 1(9), 11-10-1998)

Sec. 3A-5-9. Refunds.

(a) *Petitions for refund.* Any taxpayer may file a petition for refund with the department for any overpayment of tax erroneously paid to the department as provided in Code of Ala. 1975, § 40-2A-7(c)(1). If a final assessment for the tax has been entered by the department, a petition for refund of all or a portion of the tax may be filed only if the final assessment plus applicable interest has been paid in full prior to or with the filing of the petition for refund. The petition for the refund must be filed in writing by the taxpayer who paid the privilege or license tax to the department. Unless otherwise provided by law, all petitions for refund shall include sufficient information to identify the type and amount of tax overpaid, the taxpayer, the period included, and the reasons for the refund. Such petition shall be accompanied with sufficient supporting documentation as the department may deem necessary and proper.

(b) *Refund overpayment applied to other taxes.* Refund overpayments may be applied to other taxes as provided in Code of Ala. 1975, § 40-2A-7(c)(4). If a petition is granted by the department, or a court determines that a refund is due, the overpayment shall be refunded to the taxpayer by the department. If the department determines that a refund is due, the amount of overpayment may first be credited by the department against any outstanding tax liabilities due and owing by the taxpayer to the department, and the balance of any overpayment shall be refunded to the taxpayer. If any refund or part thereof is credited to any other tax, the department shall provide a written detailed statement to the taxpayer show-

ing the amount of overpayment, the amount credited for payment to other taxes, and the amount refunded.

(c) *Time limitations.*

(1) A petition for refund must be filed in writing with the department within three years from the date the return was filed or two years from the date of payment of the tax, whichever is later, or if no return was timely filed, two years from the date of the payment of the tax.

(2) The department shall either grant or deny a petition for refund within six months from the date the petition is filed, unless the period is extended by written agreement of the taxpayer and the department. The taxpayer shall be notified of the department's decision concerning the petition for refund by first class United States mail, or by certified mail, with return receipt requested, sent to the taxpayer's last known address. If the department is unable to grant a refund within the time provided herein due to the taxpayer's failure to provide adequate documentation, the petition for refund shall be deemed to be denied.

(3) The department and the taxpayer may, prior to the expiration of the period for the filing of a petition for refund, agree in writing to extend the time provided for filing the petition. The petition for refund may be filed at any time prior to the expiration of the period agreed upon. The period agreed upon may be extended by subsequent agreements in writing made before the expiration of the period previously agreed upon.

(d) *Interest on refunds.* On any overpayment of any lease/rental tax levied under any provisions of this chapter, the city, in addition to the amount of the overpayment, shall refund interest thereon at the rate of one percent per month, or fraction thereof, from the date of such overpayment on any refund of tax erroneously paid. References in this subsection to the term "erroneously paid taxes on which interest shall be due to the taxpayer" means and refers only to taxes erroneously paid to the city as a result of any error, omission, or inaccurate written advice by or on behalf of the city, including in connection with a prior examination of its books and records by the city.

(Ord. No. 97-187, § 10, 12-23-1997; Ord. No. 98-110, § 1(10), 6-30-1998; Ord. No. 98-175, § 1(10), 11-10-1998; Ord. No. 02-178, § 1(10), 12-10-2002)

Sec. 3A-5-10. Jeopardy; preliminary, final assessments and time limitations.

(a) *Jeopardy assessments.* All jeopardy assessments issued by the department shall be executed pursuant to Code of Ala. 1975, § 40-29-91(a), (b) and (c).

(1) If the director of finance finds that a taxpayer designs quickly to depart from the city or to remove his or her property therein or to do any other act tending to prejudice or to render wholly or partly ineffectual proceedings to collect any tax imposed by this chapter, the director of finance may issue notice of such finding to the taxpayer by personal service or mailing to the taxpayer's last known address, together with a demand for immediate payment of the tax declared to be in jeopardy, including, penalties and additions thereto and such taxes, penalty, interest, and additions thereto shall be immediately due and payable. A final assessment of such tax may be entered immediately and if the assessment is not paid upon such demand of the director, the director may forthwith issue a warrant for levy and distraint of any personal property of the taxpayer which shall be collected in the same manner and with the like effect as provided under section 3A-3-11.

(2) In the case of a tax for a current period, the director may declare the taxable period of the taxpayer immediately terminated and may at his or her discretion estimate the tax liability based upon the best information obtainable. Notice

of such finding and declaration shall be issued to the taxpayer in the same manner as in subsection (a)(1) of this section.

(3) When a jeopardy assessment has been made pursuant to subsection (a)(1) of this section, the collection of all or any part of such assessment may be stayed by filing with the director an approved bond conditioned upon the payment of the assessment together with applicable interest and cost of collection. The director shall have sole discretion to approve or disapprove the bond, but such approval shall not be unreasonably withheld.

(b) *Preliminary and final assessments.* All preliminary and final assessments issued by the department shall be executed as provided in Code of Ala. 1975, § 40-2A-7(b)(1)a and b, (b)(3), (b)(4) and Code of Ala. 1975, § 40-29-91. The terms "preliminary assessment" and "final assessment" shall have the respective meanings ascribed by section 3A-5-1 and Code of Ala. 1975, § 40-2A-3.

(1) *Entry of preliminary assessment.* If the department determines that the amount of any tax as reported on a return is incorrect, or if no return is filed, or if the department is required to determine value, the department may calculate the correct tax or value based on the most accurate and complete information reasonably obtainable by the department. The department may thereafter enter a preliminary assessment for the correct tax or value, including any applicable penalty and interest.

(2) *Service of preliminary assessment upon taxpayer.* The preliminary assessment entered by the department, or a copy thereof, shall be promptly mailed by the department to the taxpayer's last known address by either first class U.S. mail or certified mail with return receipt requested, but at the option of the department, the preliminary assessment may be delivered to the taxpayer by personal delivery.

a. *Disputed preliminary assessments.* If a taxpayer disagrees with a preliminary assessment as entered by the department, the taxpayer may file a written petition for review with the director of finance within 30 calendar days from the date of entry of the preliminary assessment, setting out the specific objections to the preliminary assessment and showing cause why such assessment should not be made final. If a petition for review is timely filed, or if the department otherwise deems it necessary, the department shall schedule a conference with the taxpayer for the purpose of allowing the taxpayer and the department to present their respective positions, discuss any omissions or errors, and to attempt to agree upon any changes or modifications to their respective positions.

b. *Written petition for appeal.* If a written petition for an appeal/review:

1. Is not timely filed; or

2. Is properly filed, and upon further review the department determines the preliminary assessment is due to be upheld in whole or in part, the department may make the assessment final in the amount of tax due as computed by the department, with applicable interest and penalty computed to the date of entry of the final assessment.

(3) *Service of final assessment upon taxpayer.* The final assessment entered by the department, or a copy thereof, shall be mailed by the department to the taxpayer's last known address by either: (i) first class U.S. mail or certified mail with return receipt requested in the case of assessments of tax of $500.00 or less; or (ii) certified mail with return receipt requested in the case of assessments of tax of more than $500.00. In either case and at the option of the department, the

final assessment, or a copy thereof, may be delivered to the taxpayer by personal delivery.

(4) *Undisputed preliminary assessments.* Where the amount of tax or value reported on a return is undisputed by the department, or the taxpayer consents in writing to the department's determination of the amount of any deficiency, determination of value, or preliminary assessment as provided by this chapter, the department may immediately enter a final assessment for the amount of the tax or value, plus applicable penalty and interest; provided, the department may at any time enter a final jeopardy assessment, pursuant to Code of Ala. 1975, § 40-29-91.

(c) *Time limitation for entering assessment.*

(1) Pursuant to Code of Ala. 1975, § 40-2A-7(b)(2), any preliminary assessment must be entered within three years from the due date of the return, or three years from the date the return was filed with the department, whichever is later, or if no return is required to be filed, within three years of the due date of the tax, except as follows:

a. A preliminary assessment may be entered at any time if no return is filed as required, or if a false or fraudulent return is filed with the intent to evade tax;

b. A preliminary assessment may be entered within six years from the due date of the return or six years from the date the return is filed with the department, whichever is later, if the taxpayer omits from the taxable base an amount properly includable therein which is in excess of 25 percent of the amount of the taxable base stated in the return.

For purposes of this paragraph:

1. The term "taxable base" means the gross proceeds from rentals/leases, gross receipts, or other amounts on which the tax paid with the return is computed; and

2. In determining the amount omitted from the taxable base, there shall not be taken into account any amount which is omitted from the taxable base stated in the return if the amount is disclosed in the return, or in a statement attached to the return, in a manner adequate to apprise the department of the nature and amount of the item.

c. A preliminary assessment entered pursuant to Code of Ala. 1975, §§ 40-29-72 and 40-29-73, may be entered within five years from the due date of the return on which the underlying tax is required to be reported or within five years of the date the return is filed, whichever is later.

(2) The department and the taxpayer may, prior to the expiration of the period for entering a preliminary assessment, agree in writing to extend the time provided for entering the assessment. The tax may be assessed at any time prior to the expiration of the period agreed upon. The period agreed upon may be extended by subsequent agreements in writing made before the expiration of the period previously agreed upon.

(3) Additional tax may be assessed by the department within any applicable period allowed above, even though a preliminary or final assessment has been previously entered by the department against the same taxpayer for the same or a portion of the same tax period.

(Ord. No. 97-187, § 11, 12-23-1997; Ord. No. 98-110, § 1(11), 6-30-1998)

Sec. 3A-5-11. Appeals.

(a) *Appeals from denial of refunds, jeopardy assessments and final assessments.* Appeals from denial of refunds, jeopardy assessments and

final assessments shall be executed as provided in Code of Ala. 1975, § 6-3-11. A written notice of appeals shall be filed with the department and shall contain information sufficient to:

(1) Identify the name of the taxpayer or other party filing such notice of appeal;

(2) Identify the specific matter appealed from;

(3) Outlined the basis for such appeal; and

(4) Specify the relief sought.

(b) *Appeal from refund denial.*

(1) A taxpayer may appeal from the denial in whole or in part of a petition for refund by filing a written notice of appeal with the circuit court within two years from the date the petition is denied. The circuit court shall hear the appeal according to its own rules and procedures and shall determine the correct amount of refund due, if any.

(2) If an appeal is not filed with the circuit court within two years of the date the petition is denied, then the appeal shall be dismissed for lack of jurisdiction.

(c) *Appeal from jeopardy assessment.*

(1) In any court proceeding to contest the jeopardy assessment or to enforce payment of the taxes made due and payable by virtue of the provisions of section 3A-5-10, the finding of the director of finance made as herein provided, shall be for all purposes presumptive evidence of jeopardy.

(2) A final jeopardy assessment entered hereunder may be appealed to either the director of finance or the circuit court. On appeal to the director of finance or to the circuit court, the final jeopardy assessment shall be prima facie correct, and the burden of proof shall be on the taxpayer to prove such assessment is incorrect.

(3) If an appeal is not filed with the director of finance or in the circuit court within the time provided herein for appeals of final assessments, the appeal shall be dismissed for lack of jurisdiction.

(d) *Appeal from preliminary assessment.* (Refer to section 3A-5-10(b)(2)a and b.)

(e) *Appeal from final assessment.*

(1) A taxpayer may appeal from any final assessment entered by the department by filing a written notice of appeal with the director of finance within 30 days from the date of entry of the final assessment, and the appeal if timely filed, shall proceed as herein provided.

(2) In lieu of the appeal under subsection (e)(1) of this section, at the option of the taxpayer, the taxpayer may appeal from any final assessment to the circuit court by filing written notice of appeal within 30 days from the date of entry of the final assessment with both the director of finance and the circuit court. If the appeal is to circuit court, the taxpayer must, also within the 30-day period, either: (i) pay the tax, interest, and any penalty shown on the final assessment; or (ii) file a supersedeas bond with the court in double the amount of the tax, interest, and any penalty shown on the final assessment. The supersedeas bond shall be executed by a surety company licensed and authorized to do business in the state and shall be conditioned to pay the assessment plus applicable interest, penalty and any court costs relating to the appeal. A taxpayer may appeal a final assessment to circuit court as provided herein, even though the taxpayer has paid the tax in issue prior to taking the appeal.

(3) The filing of the written notice of appeal with the director of finance or in the case of appeals to the circuit court, the filing of such notice of appeal with both the director of finance and the circuit court, and also the payment of the assessment in full and applicable interest and penalty or the filing of a bond as provided herein, are jurisdictional. If such prerequisites

are not satisfied within the time provided for appeal, the appeal shall be dismissed for lack of jurisdiction. On appeal to the circuit court or to the director of finance, the final assessment shall be prima facie correct, and the burden of proof shall be on the taxpayer to prove such assessment is incorrect.

(Ord. No. 97-187, § 12, 12-23-1997; Ord. No. 98-110, § 1(12), 6-30-1998; Ord. No. 98-175, § 1(12), 11-10-1998)

Sec. 3A-5-12. Penalties and interest.

(a) *Generally.* The provisions for penalties are pursuant to Code of Ala. 1975, § 40-2A-11; provided, however, the rates and amounts of penalties are as provided herein.

(b) *Failure to timely file return.* If a person fails, neglects, or refuses to file any return required to be filed with the department on or before the date prescribed therefor, or any extension of time for filing granted by the director of finance, there shall be assessed, in addition to the tax due or the amount of tax herein required to be remitted, a penalty of ten percent of the amount due or $50.00, whichever is greater, together with interest thereon at the rate of one percent per month or fraction thereof, from the date at which the tax herein levied became due and payable, such penalty and interest to be assessed and collected as part of the tax as provided in Code of Ala. 1975, § 40-2A-11(a).

(c) *Failure to timely pay tax.* If a taxable fails, neglects, or refuses to remit to the department the amount of tax shown as due on a return required to be filed on or before the date prescribed for payment of the tax, determined with regard to any extension of time for payment granted by the director of finance, there shall be added:

(1) In addition to the tax due or the amount of tax herein required to be remitted;

(2) For any tax which a monthly return is required; or

(3) For which no return is required;

a penalty of ten percent of the unpaid amount shown as tax due on the return or the amount stated in the notice and demand, together with interest thereon at the rate of one percent per month or fraction thereof, from the date at which the tax herein levied became due and payable as provided in Code of Ala. 1975, § 40-2A-11(b).

(d) *Underpayment of tax.* Any person failing to pay the tax herein levied to the city or any amount of tax herein required to be remitted and paid to the city, within the time required by this chapter shall pay, in addition to the tax or the amount of tax herein required to be remitted, a penalty of ten percent the amount of tax due plus interest at the rate of one percent per month, or fraction thereof, from the date at which the tax or the amount of tax herein required to be remitted became delinquent, that is, due and payable to the city.

(e) *Underpayment due to negligence.* If any part of any underpayment of tax is due to negligence or disregard of rules or regulations, there shall be added to the tax an amount equal to ten percent of that part of the tax attributable to negligence or disregard of rules and regulations. For the purpose of this section, the term "negligence" includes any failure to make a reasonable attempt to comply with this chapter, and the term "disregard" includes any careless, reckless or intentional disregard as provided in Code of Ala. 1975, § 40-2A-11(c).

(f) *Underpayment due to fraud.* If any part of any underpayment of tax required to be shown on a return is due to fraud, there shall be added to the tax an amount equal to 50 percent of that portion of the underpayment which is attributable to fraud. For purposes of this section, the term "fraud" shall have the same meaning as ascribed under Code of Ala. 1975, § 40-2A-11(d).

(g) *Frivolous appeal penalty.* If any appeal to the director of finance is determined to be frivolous or primarily for the purpose of delay or to impede collection of the tax imposed by this chapter, a penalty of $250.00 or 25 percent of the tax in question, whichever is greater, shall be assessed in addition to any tax due, as provided in Code of Ala. 1975, § 40-2A-11(f).

(h) *Penalties not exclusive.* The penalties provided in this section for failure to timely file a return, failure to timely pay tax, underpayment

of tax, underpayment due to negligence, or filing a frivolous appeal may be asserted against the same taxpayer for the same tax period, as provided in Code of Ala. 1975, § 40-2A-11(g). If the fraud penalty is asserted, no other penalties shall be asserted.

(i) *Waiver of penalties.* Penalties may be waived, in whole or in part, by the director of finance upon a determination of reasonable cause, pursuant to Code of Ala. 1975, § 40-2A-11(h). Reasonable cause shall include, but not be limited to, those instances in which the taxpayer has acted in good faith. The burden of proving reasonable cause shall be on the taxpayer.

(j) *Penalty and interest assessed as tax.* All penalties and interest, levied or assessed against a taxpayer and which are administered by the department shall be assessed and collected in the same manner as taxes. (See Code of Ala. 1975, §§ 40-2A-11(i), 40-29-72 and 40-29-73.)

(k) *Interest.* Interest shall be computed at the rate of one percent per month, or fraction thereof and shall be added as provided herein to any tax or other amount due the department which is not paid by the due date. Interest on any delinquency or underpayment shall be charged from the due date of the tax, as provided in Code of Ala. 1975, § 40-1-44.

(l) *Abatement of penalty.* The department shall abate any penalty attributable to erroneous written advice furnished to a taxpayer by an employee of the department. However, this subsection shall apply only if the department employee provided the written advice in good faith while acting in his official capacity, the written advice was reasonably relied on by the taxpayer and was in response to a specific written request of the taxpayer, and the penalty did not result from the taxpayer's failure to provide adequate or accurate information.

(m) *Penalty for failure to perform duties.* Any person required to collect, truthfully account for, and/or pay over any tax imposed by this chapter who willfully fails to collect such tax, or truthfully account for, and/or pay over such tax, or willfully attempts in any manner to evade or defeat any such tax or the payment thereof, shall, in addition to other penalties provided by law, be liable for a penalty up to the total amount of the tax evaded, or not collected, or not accounted for and paid over.

(Ord. No. 97-187, § 13, 12-23-1997; Ord. No. 98-110, § 1(13), 6-30-1998; Ord. No. 00-211, § 1(13), 12-12-2000)

Sec. 3A-5-13. Confidentiality of tax returns.

The confidentiality provisions imposed by this Code shall be executed as provided in Code of Ala. 1975, § 40-2A-10(a), (d), (e), (f) and (g).

(1) It shall be unlawful for any person to print, publish, or divulge, without the written permission or approval of the taxpayer, the tax return of any taxpayer or any part thereof or any information secured in arriving at the amount of tax or value reported for any purpose other than the proper administration of any matter administered by the department, or upon order of any court, or as otherwise allowed in this section. Statistical information pertaining to taxes may be disclosed at the discretion of the director of finance. The director of finance may make written or verbal disclosure upon request as to the status of compliance of the taxpayer relative to this Code.

(2) A good standing certificate shall be issued to a requesting person with respect to a taxpayer, if the taxpayer has filed all tax returns due, and paid the taxes shown as payable in accordance with those returns.

(3) The director of finance shall promulgate reasonable regulations permitting and governing the exchange of tax returns, information, records, and other documents secured by the department, with tax officers of other agencies of the state, municipal, and county government agencies within the state, federal government agencies, any association of state government tax agencies of the state or other states, and any foreign government tax agencies, however:

a. Any tax returns, information, records, or other documents remain

subject to the confidentiality provisions set forth in subsection (1) of this section;

b. The department may charge a reasonable fee for providing information or documents for the benefit of the requesting agencies; and

c. Any exchange shall be for one or more of the following purposes:

1. Collecting taxes due.
2. Ascertaining the amount of taxes due from any person.
3. Determining whether a person is liable for, or whether there is probable cause for believing a person might be liable for the payment of any tax.

(4) Nothing herein shall prohibit the use of tax returns or tax information by the department in the enforcement, collection, and assessment of any tax levied or imposed by this Code, or any other matters administered by the department. The department may also divulge to a purchaser or successor of a business or stock of goods the outstanding taxes of which the purchaser or successor may be liable pursuant to Code of Ala. 1975, § 40-12-224. This section shall not preclude the inspection of returns by federal or foreign state agents pursuant to Code of Ala. 1975, § 40-18-53.

(5) Nothing herein shall prohibit the exchange of information between and among county or municipal governments subject to the restrictions of this section.

(6) In no event shall any damages, attorney fees, or court costs be assessed against the city or against its elected officials, officers or employees under this section.

(Ord. No. 97-187, § 14, 12-23-1997; Ord. No. 98-110, § 1(14), 6-30-1998)

Sec. 3A-5-14. Regulations may be promulgated; payments due taxpayers may be withheld.

(a) *Regulations may be promulgated.*

(1) The director of finance shall from time to time promulgate rules and regulations for making returns and for ascertainment, assessment and remittance of the tax imposed hereunder as the director may deem necessary to enforce its provisions; and upon request shall furnish any taxpayer with a copy of such rules and regulations.

(2) The director of finance may prescribe, adopt, promulgate and enforce reasonable rules and regulations not in conflict with this chapter relating to any matter or thing pertaining to the administration and enforcement of the provisions of this chapter, including but not limited to provisions for the re-examination and correction of returns as to which overpayment or underpayment is claimed or found to have been made, and the rules and regulations so promulgated shall be binding upon all taxpayers.

(3) The director of finance shall prescribe printed forms for use by persons subject to the provisions of this chapter and shall make such forms available at the director's office for use by such persons.

(b) *Payments due taxpayers may be withheld.* Pursuant to the Mayor-Council Act, article VI, section 6.04(o), Act No. 452-55, Acts of Alabama, the director of finance, in order to protect the interests of the city, is authorized to withhold the payment of any claim or demand for payment of monies due from the city to any vendor, contractor, consultant or other person having unpaid or delinquent tax or license liabilities until such unpaid tax, including applicable interest and penalties, shall first have been settled and adjusted. The director of finance shall notify the taxpayer by certified mail with return receipt requested, sent to the taxpayer's last known address, of the director's intention to make such levy, the effect of which shall be continuous from the date such levy is first made until the liability out of which such levy arose is satisfied.

(Ord. No. 97-187, § 15, 12-23-1997)

Sec. 3A-5-15. Purchaser to withhold taxes due from purchase money or be liable.

If any person subject to the provisions hereof shall sell out his business or stock of goods, or

shall quit the business, he shall be required to make a final return, as provided for under section 3A-5-5, and shall make payment of the taxes due within 30 days after the date of selling or quitting business. His successor in business shall be required to withhold sufficient of the purchase money to cover the amount of said taxes herein required to be remitted, and any interest or penalties due and unpaid until such time as the former owner shall produce a receipt from the department showing that the taxes have been paid, or a certificate stating that no taxes are due. If the purchaser of a business or stock of goods shall fail to withhold purchase money as provided herein, and the taxes remain due and unpaid after the 30 day period allowed, he shall be personally liable for the payment of the taxes herein required to be remitted, interest, and penalties accrued and unpaid on account of the operation of the business by the former owner. If in such cases the department deems it necessary in order to collect the taxes due the city, it may make a jeopardy assessment as provided in Code of Ala. 1975, title 40, ch. 29.
(Ord. No. 97-187, § 16, 12-23-1997)

Sec. 3A-5-16. Disposition of funds derived from taxes.

All monies derived from the lease tax levied under the provisions of this chapter shall be paid to the city and placed to the credit of the general fund of the city, and shall be used and expended as authorized by law and ordinance.
(Ord. No. 97-187, § 17, 12-23-1997; Ord. No. 98-110, § 1(17), 6-30-1998)

Sec. 3A-5-17. Bond requirements.

For the purpose of securing the payment of any lease tax, penalties, or interest due or which may become due under the provisions of this chapter, every itinerant vendor engaged in the business of leasing/renting tangible personal property in the city shall be required to file a bond to be approved by the director of finance, conditioned upon the payment of any tax, penalty, or interest due or to become due under this chapter and upon faithful observance of the provisions of this chapter.

(1) Such bond shall:
   a. Be effective for a period of one year from date of issuance;
   b. Be in an amount equal to the tax estimated due or to become due under the provisions of this chapter, but in no event shall said bond be less than $1,000.00 nor more than three percent of anticipated gross proceeds, whichever is greater, as fixed by the director of finance; and
   c. Have a surety or sureties satisfactory to the director of finance; or

(2) Said itinerant vendor may deposit in cash said sum, which shall be estimated by the director of finance to be due or to become due under the provisions of this chapter.

If such itinerant vendor fails to make any return due under this chapter or to pay any taxes or penalties due hereunder, or to keep books and records as required by this chapter, or fails to perform any other duty or obligation imposed on him under this chapter, such bond, or cash deposited in lieu thereof, shall thereupon be forfeited, and the department shall institute an action upon such bond in the name of the city for the entire amount of said bond and costs.
(Ord. No. 97-187, § 18, 12-23-1997; Ord. No. 98-175, § 1(18), 11-10-1998)

Sec. 3A-5-18. Credit for lease/rental tax erroneously paid.

(a) *Taxes due the city which were erroneously paid to another municipality.*

(1) *Taxpayer's requirement to request refund of erroneous tax payment within 60 days of notice to avoid interest, penalties.* In order to avoid the accrual of interest and any otherwise applicable penalties on the tax due the city, when a lease/rental tax owed to the city is erroneously paid to a different municipality or county in good faith, based on a reasonable interpretation of the enabling ordinance, resolution, or act levying or authorizing the tax, but not under a requirement of law, the taxpayer making the erroneous payment must comply with the applicable refund procedures of such municipality or county within 60 days of receiving

notice from the city, a county, or other municipality or its agent of the erroneous payment.

(2) *Compliance with refund procedure; interest, penalties.* If the taxpayer complies with the refund procedure within the requisite 60-day period, the city shall not assess or attempt to assess the tax, or any related interest or otherwise applicable penalty thereon until the date of receipt of the overpayment from the refunding municipality or county by the taxpayer or the taxpayer's agent, and no interest or penalty thereon shall accrue until such date of receipt. The taxpayer shall remit the disputed tax to the city within 15 days after receipt.

(3) *Failure to comply with refund procedure; interest, penalties.* If the taxpayer fails to comply with the refund procedures within the requisite 60-day period, interest and any applicable penalties shall accrue on the tax to which the city is entitled from the 61st day and until such time as the tax is paid.

(b) *Taxes due to another municipality which were erroneously paid to the city.*

(1) *City's requirement to refund overpayment of erroneous tax payment within 60 days of compliance with refund procedures.* If a lease/rental tax owed to another municipality or county is erroneously paid to the city in good faith, based on a reasonable interpretation of the enabling ordinance, resolution, or act levying or authorizing the lease/rental tax, but not under a requirement of law, the city shall refund the overpaid tax, without interest, to the taxpayer within 60 days of the taxpayer's compliance with applicable refund procedures provided in section 3A-5-9.

(2) *Refund of excess tax; requirements.* Provided, however, that if the applicable rate of lease/rental tax imposed by the city exceeds the rate of lease/rental tax imposed by the proper locality under a requirement of law, the city shall not be obligated to refund the difference.

(Ord. No. 98-110, § 1(21), 6-30-1998)

Sec. 3A-5-19. Collection after assessment.

The tax herein required to be remitted may be collected by levy as provided in Code of Ala. 1975, § 40-29-51, as follows:

(1) *Length of period.* Where the assessment of any tax imposed by this chapter has been begun or made within the period of limitation properly applicable thereto, such tax may be collected by levy or by a proceeding in court, but only if the levy is made or the proceeding begun:

a. Within the period allowed by law after the final assessment of the tax; or

b. Prior to the expiration of any period for collection agreed upon in writing by the director of finance and the taxpayer before the expiration of such period allowed by law, (or, if there is a release of levy under Code of Ala. 1975, § 40-29-34, after such period allowed by law, then before such release).

The period so agreed upon may be extended by subsequent agreements in writing made before the expiration of the period previously agreed upon. The period allowed by law as provided in this subsection during which a tax may be collected by levy shall not be extended or curtailed by reason of a judgment against the taxpayer.

(2) *Date when levy is considered made.* The date on which a levy on property or rights to property is made shall be the date on which the notice of seizure provided in Code of Ala. 1975, § 40-29-26, is given.

(Ord. No. 97-187, § 23, 12-23-1997)

Sec. 3A-5-20. Lien for taxes.

Pursuant to Code of Ala. 1975, §§ 40-29-20, 40-29-21 and 11-51-96, the provisions of this section shall apply to the taxes, and/or any penalty or interest payable thereon, levied under this chapter.

(1) *Notice.* If any person liable to pay the privilege or license tax herein levied, neglects or refuses to pay the same within 30 days of the final assessment, the amount (including any interest, additional amount, addition to tax, or assessable penalty together with filing fees and any other costs that may accrue in addition thereto) shall be a lien in favor of the city upon all property and rights to property, whether real or personal, tangible or intangible, used in any exhibition, trade, business, vocation, occupation or profession for which a privilege or license tax is or may be required. The department shall give a 30-day notice of intent to file lien to the taxpayer by any one of the following methods:

a. Given in person;

b. Left at the dwelling or usual place of business of such person; or

c. Sent by certified mail with return receipt requested to the taxpayer's last known address.

(2) *Term.* Unless another date is specifically fixed by law, the lien imposed by subsection (1) of this section shall arise at the time the final assessment, return therefor or the payment thereof, whichever is prior, was due to have been filed with or made to the department, and shall continue until the liability for the amount so assessed (or a judgment against the taxpayer arising out of such liability) is satisfied or becomes unenforceable by reason of lapse of time.

(3) *Right to enforce by attachment.* The department may enforce such lien in any court of competent jurisdiction, by attachment issued by any officer authorized to issue such writs, upon executing bond as in other cases of attachment, and upon making affidavit that the attachment is not sued out for the purpose of vexing or harassing the defendant, and describing the property on which the lien is claimed and setting forth all the facts necessary to the creation of the lien, and amount due and unpaid, (including any interest, additional amount, addition to tax, or assessable penalty together with filing fees and any other costs that may accrue in addition thereto).

(4) *Release.* With respect to a lien described in this section, the director of finance shall, within ten days, release the lien when the liability out of which such lien arose is satisfied, and shall promptly notify the person upon whom such lien was made that such lien has been released.

(Ord. No. 97-187, § 24, 12-23-1997; Ord. No. 02-178, § 1(24), 12-10-2002)

Sec. 3A-5-21. Collection by civil suit.

The department may initiate and/or maintain a civil action to recover delinquent taxes herein levied, interest, penalties and administrative costs incurred in connection therewith, in any court of competent jurisdiction, which remedy shall be in addition to any and all other remedies which may be provided.

(Ord. No. 97-187, § 25, 12-23-1997)

Sec. 3A-5-22. Violator may be restrained from continuing in business.

Any taxpayer who shall violate any of the provisions of this chapter may be restrained from continuing in business, and proper prosecution shall be instituted in the name of the city until such person shall have compiled with the provisions of this chapter.

(Ord. No. 97-187, § 26, 12-23-1997)

Sec. 3A-5-23. Violations.

(a) *Failure to pay the tax, make reports, keep or provide records.* Any person subject to the provisions of this chapter, who shall fail to pay the tax, make the reports or any of them, as herein required, or who shall fail to keep or

provide records, as herein required and, as provided in Code of Ala. 1975, § 40-29-112, shall be guilty of a misdemeanor, and upon conviction shall be fined not less than $50.00 nor more than $500.00 for each offense, and in addition, may be imprisoned for period not to exceed six months. Each month of such failure shall constitute a separate offense.

(b) *Willful refusal to make reports or permit examination of records.* Any person subject to the provisions of this chapter willfully failing or refusing to make the reports, furnish any supplemental returns or other data herein required, or who shall refuse to permit the examination of his or her records by the department, shall be guilty of a misdemeanor, and upon conviction shall be fined not less than $50.00 nor more than $500.00 for each offense, and in addition may be imprisoned for a period not to exceed six months. Each occurrence of a failure to make such reports shall constitute a separate offense, and each refusal of a written demand by the department to examine, inspect or audit such records shall constitute a separate offense.

(c) *Violation of chapter.* Any person who shall fail, neglect, or refuse to perform any duty imposed by this chapter or other city ordinances, or any rule, regulation or law thereof, or who shall fail or neglect to do or perform any act or series of acts as required by this chapter or any other ordinance shall upon conviction be punished by a fine not exceeding $500.00 for each offense, and in addition may be imprisoned for a period not to exceed six months. or both such fine and imprisonment pursuant to section 1-1-6, as amended and as may be amended.
(Ord. No. 97-187, § 27, 12-23-1997; Ord. No. 98-175, § 1(27), 11-10-1998)

Sec. 3A-5-24. Request for ruling on determination of taxation.

Any taxpayer may request a ruling on the determination of whether amounts of gross proceeds from leases or gross receipts of the taxpayer's business are subject to the tax, or are not to be used as a measurement of the taxes due and payable as levied by this chapter. Such requests shall be made in writing to the finance department, and shall contain all pertinent facts and any written determinations or revenue rulings issued by the state department of revenue relating to the items in question.
(Ord. No. 97-187, § 28, 12-23-1997)

CHAPTER 6. LODGING AND HOTEL TAX*

Sec. 3A-6-1. Definitions.

The following words, terms and phrases when used in this chapter shall have the following meanings except when the context clearly indicates a different meaning; or when the definition of such word or phrase conflicts with the same definition as contained in Code of Ala. 1975, §§ 40-26-1 or 40-2A-3 in which case the state law definition will govern:

Business means all activities engaged in, or caused to be engaged in, by any person with the object of gain, profit, benefit or advantage, either direct or indirect to such person.

Department means the department of finance of the city, and includes the director of finance.

Director of finance or *director* means the director of finance of the city or his or her duly authorized agent.

Final assessment means the final notice of value, underpayment, or nonpayment of any tax administered by the department.

Gross receipts means the total gross charges, both cash and credit, from the rental of any room, rooms, lodgings, accommodations, and including any charges for the use or rental of tangible personal property and services furnished in connection therewith, and also including total collections made on credit charges previously claimed as deductions.

Notice of appeal means any written notice sufficient to identify the name of the taxpayer or other party appealing, the specific matter appealed from, the basis for such appeal, and the relief sought.

***State law references—**Municipal authority to levy lodgings tax, Code of Ala. 1975, § 11-51-202; transient occupancy tax generally, Code of Ala. 1975, § 40-26-1 et seq.

Person or *company* means and includes any individual, firm, foreign or domestic corporation, partnership, association, joint-stock company or joint-stock corporation, trust, business trust, cooperative nonprofit membership, joint venture, estate, receiver, syndicate, holding company, society, limited liability company, limited liability partnership, unincorporated organization, and any other group or entity, or combination acting as a unit, in the singular or plural, and shall also include the agent or employee having charge or control of a business in the absence of the principals.

Petition for refund means a written request for a refund of tax previously paid, including in the form of an amended return. Unless otherwise provided by law, such request shall include sufficient information to identify the type and amount of tax overpaid, the taxpayer, the period included, the reasons for the refund and sufficient documentation as required by the director of finance.

Petition for review means a written document filed with the department in response to a preliminary assessment in which the taxpayer sets forth reasonably specific objections to the preliminary assessment.

Preliminary assessment means the preliminary notice of value or underpayment of any tax administered by the department.

Private auditing or collecting firm means any person in the business of collecting, through contract or otherwise, lodgings taxes for the city, or auditing any taxpayer, through the examination of books and records, for the city.

Reasonable cause includes, but not be limited to, those instances in which the taxpayer has acted in good faith. The burden of proving reasonable cause shall be on the taxpayer.

Return means any report, document, or other statement required to be filed with the department for the purpose of paying, reporting, or determining the proper amount of value or tax due.

Tax means any amount, including applicable penalty and interest, levied or assessed against a taxpayer and which the department is required or authorized to administer under the provisions of state law.

Taxpayer means any person subject to or liable for tax herein levied; any person required to file a return with respect to, or to pay or remit the tax herein levied, or to report any information or value to the department, or its designee; or any person required to obtain or holding any interest in any license issued by the department, or its designee, or any person that may be affected by any act or refusal to act by the department, or its designee, or to keep any records required by this chapter.

Taxpayer's authorized representative means any individual with written authority or power of attorney to represent a taxpayer before the department; provided, however, that nothing herein shall be construed as entitling any such individual who is not a licensed attorney to engage in the practice of law.

Taxpayers' Bill of Rights Pamphlet means a written pamphlet to be distributed by the department to all taxpayers whose books and records are being examined by the department, at or before the commencement of an examination, explaining in simple and nontechnical terms, the role of the department and the rights of the taxpayer whose books and records are being examined by the department during the examination and which shall be promptly revised from time to time to reflect any changes in the applicable law or rules.
(Ord. No. 02-113, 7-30-2002; Ord. No. 02-177, § 1, 12-10-2002)

Sec. 3A-6-2. Levy of tax.

There is hereby levied and shall be collected and remitted as herein provided, a lodging privilege or license tax as hereinafter provided:

(1) *Lodgings tax rate.* On each person, firm, or corporation engaging or continuing within this city in the business of renting or furnishing any room or rooms, lodgings, or accommodations to transients in any hotel, motel, inn, tourist camp, tourist cabin, or any other place in which rooms, lodgings, or accommodations are

regularly furnished to transients for a consideration, there is hereby imposed, in addition to all other taxes of every kind now imposed by law, a privilege or license tax, in an amount to be determined by the application of the rate of six and one-half percent of the charge of such room, rooms, lodgings, or accommodations, including the charge for use or rental of personal property and services furnished in such rooms.

(2) *Additional tax.* In addition to the tax levied in subsection (1), above, there is hereby imposed an additional charge of $3.00 per night per room on each person, firm, or corporation engaging or continuing within this city in the business of renting or furnishing any room or rooms, lodgings, or accommodations to transients in any hotel, motel, inn, tourist camp, tourist cabin, or any other place in which rooms, lodgings, or accommodations are regularly furnished to transients for a consideration to be used exclusively for sports and entertainment recruitment and development, tourism and infrastructure improvements.

(3) *Relationship to state law.* This chapter and the taxes levied herein shall be subject to all definitions, exceptions, exemptions, proceedings, requirements, rules, regulations, provisions, penalties, fines, punishments and deductions that are applicable to the taxes levied pursuant to Code of Ala. 1975, § 40-26-1 et seq. (the "Lodgings or Transient Occupancy Statutes"), except where inapplicable or herein otherwise provided.

(Ord. No. 02-113, 7-30-2002; Ord. No. 02-177, § 2, 12-10-2002; Ord. No. 10-147, § 1(a), 10-26-2010; Ord. No. 11-107, § 1(a), 8-23-2011; Ord. No. 19-87, § 1, 7-10-2019; Ord. No. 19-140, § 1, 9-25-2019)

Sec. 3A-6-3. Exemptions.

(a) *Generally.* There is exempted from the tax levied under this chapter any rentals or services taxed under Code of Ala. 1975, ch. 23, art. 1, div. 1. Taxes imposed by this chapter shall be subject to all exemptions as are provided in Code of Ala. 1975, tit. 40, ch. 26, state lodging or transient occupancy tax, as now or hereafter amended, all acts supplementary thereto except where inapplicable or where herein otherwise provided, all of which are adopted and made a part hereof by reference.

(b) *Special.* Special exemptions from the taxes imposed by this chapter are allowed in all other instances where the lodgings taxes levied under Code of Ala. 1975. tit. 40, ch. 26, are exempted under any other provision of Code of Ala. 1975.
(Ord. No. 02-113, 7-30-2002; Ord. No. 02-177, § 3, 12-10-2002)

Sec. 3A-6-4. License required to engage in business.

If any person shall engage in or continue in any business for which a privilege tax is imposed by section 3A-6-2 as a condition precedent to engaging or continuing in such business, he or she shall apply for and obtain from the department a license to engage in and to conduct such business for the current tax year upon the condition that he or she shall pay the taxes accruing to the city under the provisions of this chapter; provided that no license shall be issued under the provisions of this chapter to any person who has not complied with the provisions of this chapter, and no provision of this chapter shall be construed as relieving any person from the payment of any license or privilege tax now or hereafter imposed by law.
(Ord. No. 02-113, 7-30-2002; Ord. No. 02-177, § 4, 12-10-2002)

Sec. 3A-6-5. Filing of returns; payment of the tax; annual return and payment; bulk submissions.

(a) *Due date and contents of returns; payment of the tax.* The taxes levied under the provisions of this chapter shall be due and payable in monthly installments on or before the 20th day of the month next succeeding the month in which the tax accrues. On or before the 20th day of each month, every person on whom the amounts

levied hereunder are imposed shall report to the department, on a form prescribed by the department, a true and correct statement showing:

(1) The gross proceeds or gross receipts, as the case may be, of the business from the renting or furnishing of any rooms, lodgings, or accommodations, including any charges for the use or rental of personal property and services furnished in such rooms, lodgings or accommodations, for the current reporting period;

(2) The amount of gross receipts which are not subject to the privilege or license tax, or are not to be used as a measure of the taxes due by such person, and the nature thereof;

(3) The amount of lodgings tax due based on those gross receipts reported;

(4) The number of rooming nights accrued during the reporting period;

(5) The correct reporting period; and

(6) Such other pertinent information as the department may deem necessary.

At the time of making such monthly report such person shall compute the privilege license taxes due and shall pay to the city the amounts shown to be due.

(b) *Annual return and payment.* In addition to the monthly return required by this section, on or before January 31 of each year, each person, firm, or corporation liable for the payment of a privilege tax as levied by this chapter shall make a return showing the gross proceeds of the business during the preceding year and compute the amount of tax chargeable against him or her or it in accordance with the provisions of this chapter, and deduct the amount of monthly payments as hereinbefore provided, if any have been made, and transmit with this report a remittance in the form required by this chapter covering the residue of the tax chargeable against him or her, to the department, and such report shall be verified by oath.

(c) *Taxpayer's responsibility when no form received.* The department is authorized to provide prescribed printed forms necessary for compliance with the filing requirements outlined in this section. Failure of the taxpayer to receive forms from the department does not relieve the taxpayer of the responsibility of the timely reporting of the information required on the return, nor the timely payment of the tax.

(d) *Timely mailing treated as timely filing and paying.* The provisions outlined in this section for the timely filing of any returns, payments, claims, statements, or other documents shall be administered as herein provided.

(1) *Date of delivery.* If any return, claim, statement, or other document required to be filed, or any payment required to be made, within a prescribed period or on or before a prescribed date under the authority of any provision of this chapter is, after such period or such date, delivered by United States mail to the finance department or to the department's designated depository where such return, claim, statement, or other document is required to be filed, or to which such payment is required to be made, the date of the United States postmark stamped on the cover in which such return, claim, statement, or other document, or payment, is mailed shall be deemed to be the date of delivery, or the date of payment, as the case may be; provided, however:

a. *Weekends and holidays.* When the due date falls on a Saturday, Sunday, or city holiday, payment of the tax may be made without penalty on the first working day following the due date.

b. *Mailing requirements.* The return, claim, statement, or other document, or payment was, within the time prescribed in subsection (d)(1) of this section, deposited in the mail in the United States in an envelope or other appropriate wrapper, postage prepaid, properly addressed to the finance department or to the department's designated depository where such return, claim, statement, or other document is required to be filed, or to where such payment is required to be made.

(2) *Delivery by method other than United States mail.* Returns, claims, statements, or other documents, or payments which are required under any provision of this chapter which are delivered by any method other than by mailing shall be considered timely filed when such items are received in the finance department or the department's designated depository on the due date prescribed.

(3) *Untimely filing.* Any return, payment, claim, statement, or other document not received in accordance with the provisions of this section shall be deemed

untimely filed and shall be assessed applicable penalties and interest as prescribed by the relevant sections of this chapter.

(e) *Bulk submissions.* The department may accept, for reporting and payment of taxes due the city, bulk submissions of reports, and under regulations promulgated by the department, payments owed to the city made on behalf of the taxpayer by its properly authorized representative where such submissions are made using the appropriate form prescribed by the department, as provided in Code of Ala. 1975, § 11-51-210(d). Any such bulk submissions of reports and payments shall include:

(1) The city's assigned taxpayer identification number for each such taxpayer for each tax paid; and

(2) Sufficiently detailed information by which each taxpayer can be identified such that a determination can be made as to the amount and method of assessment of tax against such taxpayer for the city.

The acceptance by the city of such bulk submissions shall not relieve the taxpayer on whose behalf such submissions were made from liability for any lodgings tax arising from an error or omission made by the taxpayer's representative. Such bulk submission shall be signed by the taxpayer or its properly authorized representative.
(Ord. No. 02-113, 7-30-2002; Ord. No. 02-177, § 5, 12-10-2002)

Sec. 3A-6-6. Extension of time for making return.

The director of finance, for reasonable cause, may extend the time for making any return required under the provisions of this chapter, however, the time for filing any such return shall not be extended for a period greater than 30 days from the date such return is due to be made and shall not prevent penalty and interest from accruing during the period of such extension.
(Ord. No. 02-113, 7-30-2002; Ord. No. 02-177, § 6, 12-10-2002)

Sec. 3A-6-7. Oaths.

The monthly reports herein required to be made are not required to be made under oath, but wherever in this chapter any report is required to be sworn to, the same shall be sworn to by the taxpayer or his or her agent before some officer authorized to administer oaths, and any false statement to a material fact made with intent to defraud shall constitute perjury and upon conviction thereof the person so convicted shall be punished as provided in section 1-1-6, as amended and as may be amended.
(Ord. No. 02-113, 7-30-2002; Ord. No. 02-177, § 8, 12-10-2002)

Sec. 3A-6-8. Maintenance of records; investigative powers; audit and subpoena authority.

The provisions of this section shall be administered in accordance with the procedures set forth in Code of Ala. 1975, § 40-2A-7(a).

(1) *Records to be kept.* It shall be the duty of every person, firm or corporation engaging or continuing in this city in any business for which a privilege or license tax is imposed by this chapter, to keep and preserve an accurate and complete set of records suitable for the determination of the correct amount of gross receipts or gross proceeds of any such business and such other books or accounts as may be necessary to determine the amount of tax for which such person is liable under the provisions of this chapter. It shall be the duty of every person, firm or corporation furnishing rooms, lodgings, or accommodations in this city to keep and preserve for a period of not less than five years from the due date of the return on which the underlying tax is required to be reported, or five years of the date the return is filed, whichever is later, all invoices of gross proceeds, or gross receipts, and other pertinent papers, in such form as the city may require, proceeding or accruing from the furnishing of rooms, lodgings, or accommodations herein taxed. All such books, invoices, equipment and other records shall be open for

examination by the department, upon request, at a reasonable time and location.

a. *Reasonable time and reasonable location.* Reasonable time shall be considered to be during normal business hours of the department. Reasonable location shall be considered to be the taxpayer's place of business or the offices of the taxpayer's authorized representative, provided such business or representative is located within a 50-mile radius of the city. Taxpayers maintaining records outside of this radius must make records available at city hall or at such other location as agreed upon by the department. The department, when conducting an audit, review, or examination for verification, may, at its election, require any taxpayer conducting business within the city to provide records, accounts, books, papers and other documents at a reasonable time and reasonable place agreed upon by the department, as provided herein.

b. *Taxpayer may be assessed reasonable costs.* As provided in Code of Ala. 1975, § 40-2A-6(d), the department may assess and collect from the taxpayer, the reasonable costs, based on the then current state government employee per diem rates incurred by, or charged to, the city in connection with performing an examination of the taxpayer's books and records if the taxpayer received notice by certified U.S. mail, return receipt requested, at least 30 days prior to the date on which the examination was to commence and the:

1. Taxpayer either failed or refused to respond or did not propose a reasonable alternative date on which the examination was to commence within 15 days of receipt of notice of the pending examination; or

2. Taxpayer and the department agreed in writing as to an alternative date on which the examination was to commence but the taxpayer then failed or refused to permit reasonable access to its books and records on the alternative date.

(2) *Investigative powers.* Each taxpayer shall give to the director of finance the means, facilities and opportunity for the making of such audit, examination and investigation of the records, books, or other relevant information maintained by any taxpayer or other person for the purpose of computing and determining the correct amount of value or the correct amount of tax as provided for in subsection (1) of this section. The director of finance is hereby authorized to examine any person under oath concerning any gross receipts or gross proceeds which were or should have been shown in a return, and to this end, he or she may compel the production of books, papers, records and the attendance of all persons before him or her, whether as parties or as witnesses, whom he or she believes to have knowledge of such gross receipts or gross proceeds. Any taxpayer, or officer of a corporation or association, or partner of a partnership, or fiduciary of a trust, or responsible individual of any entity under a duty to maintain books and records pursuant to this chapter, who fails or refuses to maintain or provide such records and books, or permit inspection, as required herein, shall be subject to the provisions of section 3A-6-10, and shall be subject to contempt proceedings in the circuit court.

(3) *Audit and subpoena authority; additional requirements.* Code of Ala. 1975, § 40-2A-7(a), outlines further requirements for the maintenance of records, in addition to the recordkeeping requirements set

out in subsection (1) of this section. The department's authority to audit, to subpoena records, and to enter into contracts with private examining or collecting firms is granted pursuant to Act No. 98-191, the Local Tax Procedures Act of 1998, Act No. 98-192, the Local Tax Simplification Act of 1998, as well as Code of Ala. 1975, § 40-2A-7(a), except where inapplicable or where herein otherwise provided.

(Ord. No. 02-113, 7-30-2002; Ord. No. 02-177, § 9, 12-10-2002)

Sec. 3A-6-9. Refunds.

(a) *Petitions for refund.* Any taxpayer may file a petition for refund with the department for any overpayment of tax erroneously paid to the department as provided in Code of Ala. 1975, § 40-2A-7(c)(1). If a final assessment for the tax has been entered by the department, a petition for refund of all or a portion of the tax may be filed only if the final assessment plus applicable interest has been paid in full prior to or with the filing of the petition for refund. The petition for the refund must be filed in writing by the taxpayer who paid the privilege or license tax to the department. Unless otherwise provided by law, all petitions for refund shall include sufficient information to identify the type and amount of tax overpaid, the taxpayer, the period included, and the reasons for the refund, and sufficient documentation as required by the director of finance.

(b) *Refund overpayment applied to other taxes.* Refund overpayments may be applied to other taxes as provided in Code of Ala. 1975, § 40-2A-7(c)(4). If a petition is granted by the department, or a court determines that a refund is due, the overpayment shall be refunded to the taxpayer by the department. If the department determines that a refund is due, the amount of overpayment may first be credited by the department against any outstanding final tax liabilities due and owing by the taxpayer to the department, and the balance of any overpayment shall be refunded to the taxpayer. If any refund or part thereof is credited to any other tax by the department, the department shall provide a written detailed statement to the taxpayer showing the amount of overpayment, the amount credited for payment to other taxes, and the amount refunded.

(c) *Time limitations.*

(1) A petition for refund must be filed in writing with the department within:

a. Three years from the date the return was filed;

b. Two years from the date of payment of the tax, whichever is later; or

c. If no return was timely filed, two years from the date of the payment of the tax.

(2) The department shall either grant or deny a petition for refund within six months from the date the petition is filed, unless the period is extended by written agreement of the taxpayer and the department. The taxpayer shall be notified of the department's decision concerning the petition for refund by first class United States mail, or by certified mail, with return receipt requested, sent to the taxpayer's last known address. If the department is unable to grant a refund within the time provided herein due to the taxpayer's failure to provide adequate documentation, the petition for refund shall be deemed to be denied.

(3) The department and the taxpayer may, prior to the expiration of the period for the filing of a petition for refund, agree in writing to extend the time provided for filing the petition. The petition for refund may be filed at any time prior to the expiration of the period agreed upon. The period agreed upon may be extended by subsequent agreements in writing made before the expiration of the period previously agreed upon.

(d) *Interest on refunds.* On any overpayment of any lodgings tax levied under any provisions of this chapter, the city, in addition to the amount of the overpayment, shall refund interest thereon at the rate of one percent per month, or fraction thereof, from the date of such overpay-

ment on any refund of tax erroneously paid. As provided in Code of Ala. 1975, § 11-51-208(f), references in this subsection to the term "erroneously paid taxes on which interest shall be due to the taxpayer" means and refers only to taxes erroneously paid to the city as a result of any error, omission, or inaccurate written advice by or on behalf of the city, including in connection with a prior examination of its books and records by the city.
(Ord. No. 02-113, 7-30-2002; Ord. No. 02-177, § 10, 12-10-2002)

Sec. 3A-6-10. Jeopardy, preliminary, final assessments and time limitations.

(a) *Jeopardy assessments.* All jeopardy assessments issued by the department shall be executed pursuant to Code of Ala. 1975, § 40-29-91(a), (b) and (c).

(1) If the director of finance finds that a taxpayer designs quickly to depart from the city or to remove his or her property therein or to do any other act tending to prejudice or to render wholly or partly ineffectual proceedings to collect any tax imposed by this chapter, the director of finance may issue notice of such finding to the taxpayer by personal service or mailing to the taxpayer's last known address, together with a demand for immediate payment of the tax declared to be in jeopardy, including, penalties and additions thereto and such taxes, penalty, interest, and additions thereto shall be immediately due and payable. A final assessment of such tax may be entered immediately and if the assessment is not paid upon such demand of the director, the director may forthwith issue a warrant for levy and distraint of any personal property of the taxpayer which shall be collected in the same manner and with the like effect as provided under section 3A-3-11.

(2) In the case of a tax for a current period, the director may declare the taxable period of the taxpayer immediately terminated and may at his or her discretion estimate the tax liability based upon the best information obtainable. Notice of such finding and declaration shall be issued to the taxpayer in the same manner as in subsection (a)(1) of this section.

(3) When a jeopardy assessment has been made pursuant to subsection (a)(1) of this section, the collection of all or any part of such assessment may be stayed by filing with the director an approved bond conditioned upon the payment of the assessment together with applicable interest and cost of collection. The director shall have sole discretion to approve or disapprove the bond, but such approval shall not be unreasonably withheld.

(b) *Preliminary and final assessments.* All preliminary and final assessments issued by the department shall be executed as provided in Code of Ala. 1975, §§ 40-2A-7(b)(1)a and b, (b)(3), (b)(4) and 40-29-91. The terms "preliminary assessment" and "final assessment" shall have the respective meanings ascribed by Code of Ala. 1975, § 40-2A-3.

(1) *Entry of preliminary assessment.* If the department determines that the amount of any tax as reported on a return is incorrect, or if no return is filed, or if the department is required to determine value, the department may calculate the correct tax or value based on the most accurate and complete information reasonably obtainable by the department. The department may thereafter enter a preliminary assessment for the correct tax or value, including any applicable penalty and interest.

(2) *Service of preliminary assessment upon taxpayer.* The preliminary assessment entered by the department, or a copy thereof, shall be promptly mailed by the department to the taxpayer's last known address by either first class U.S. mail or certified mail with return receipt requested, but at the option of the department, the preliminary assessment may be delivered to the taxpayer by personal delivery.

a. *Disputed preliminary assessments.* If a taxpayer disagrees with a

preliminary assessment as entered by the department, the taxpayer may file a written petition for review with the director of finance within 30 calendar days from the date of entry of the preliminary assessment, setting out the specific objections to the preliminary assessment and showing cause why such assessment should not be made final. If a petition for review is timely filed, or if the department otherwise deems it necessary, the department shall schedule a conference with the taxpayer for the purpose of allowing the taxpayer and the department to present their respective positions, discuss any omissions or errors, and to attempt to agree upon any changes or modifications to their respective positions.

b. If a written petition for an appeal/review:

1. Is not timely filed; or

2. Is properly filed, and upon further review the department determines the preliminary assessment is due to be upheld in whole or in part, the department may make the assessment final in the amount of tax due as computed by the department, with applicable interest and penalty computed to the date of entry of the final assessment.

(3) *Service of final assessment upon taxpayer.* The final assessment entered by the department, or a copy thereof, shall be mailed by the department to the taxpayer's last known address:

a. By either first class U.S. mail or certified mail with return receipt requested in the case of assessments of tax of $500.00 or less; or

b. By certified mail with return receipt requested in the case of assessments of tax of more than $500.00.

In either case and at the option of the department, the final assessment, or a copy thereof, may be delivered to the taxpayer by personal delivery.

(c) *Time limitation for entering assessment.*

(1) Pursuant to Code of Ala. 1975, § 40-2A-7(b)(2), any preliminary assessment must be entered within three years from the due date of the return, or three years from the date the return was filed with the department, whichever is later, or if no return is required to be filed, within three years of the due date of the tax, except as follows:

a. A preliminary assessment may be entered at any time if no return is filed as required, or if a false or fraudulent return is filed with the intent to evade tax;

b. A preliminary assessment may be entered within six years from the due date of the return or six years from the date the return is filed with the department, whichever is later, if the taxpayer omits from the taxable base an amount properly includable therein which is in excess of 25 percent of the amount of the taxable base stated in the return. For purposes of this subsection:

1. The term "taxable base" means the gross proceeds from renting, or furnishing any room, lodging or accommodation to transients in any hotel, motel, inn, tourist camp, tourist cabin or any other place in which rooms, lodgings or accommodations are regularly furnished to transients for a consideration, gross receipts or other amounts on which the tax paid with the return is computed; and

2. In determining the amount omitted from the taxable base, there shall not be taken into

account any amount which is omitted from the taxable base stated in the return if the amount is disclosed in the return, or in a statement attached to the return, in a manner adequate to apprise the department of the nature and amount of the item.

c. A preliminary assessment entered pursuant to Code of Ala. 1975, §§ 40-29-72 and 40-29-73, may be entered within five years from the due date of the return on which the underlying tax is required to be reported or within five years of the date the return is filed, whichever is later.

(2) The department and the taxpayer may, prior to the expiration of the period for entering a preliminary assessment, agree in writing to extend the time provided for entering the assessment. The tax may be assessed at any time prior to the expiration of the period agreed upon. The period agreed upon may be extended by subsequent agreements in writing made before the expiration of the period previously agreed upon.

(3) Additional tax may be assessed by the department within any applicable period allowed above, even though a preliminary or final assessment has been previously entered by the department against the same taxpayer for the same or a portion of the same tax period.

(Ord. No. 02-113, 7-30-2002; Ord. No. 02-177, § 11, 12-10-2002)

Sec. 3A-6-11. Appeals.

(a) Appeals from denial of refunds, jeopardy assessments, and final assessments shall be executed as provided in Code of Ala. 1975, § 6-3-11. A written notice of appeal shall be filed with the department and shall contain information sufficient to:

(1) Identify the name of the taxpayer or other party filing such notice of appeal,

(2) Identify the specific matter appealed from,

(3) Outlined the basis for such appeal, and

(4) Specify the relief sought.

(b) *Appeal from refund denial.*

(1) A taxpayer may appeal from the denial in whole or in part of a petition for refund by filing a written notice of appeal with the circuit court within two years from the date the petition is denied. The circuit court shall hear the appeal according to its own rules and procedures and shall determine the correct amount of refund due, if any.

(2) If an appeal is not filed with the circuit court, within two years of the date the petition is denied, then the appeal shall be dismissed for lack of jurisdiction.

(c) *Appeal from jeopardy assessment.*

(1) In any court proceeding to contest the jeopardy assessment or to enforce payment of the taxes made due and payable by virtue of the provisions of section 3A-6-10, the finding of the director of finance made as herein provided, shall be for all purposes presumptive evidence of jeopardy.

(2) A final jeopardy assessment entered hereunder may be appealed to either the director of finance or the circuit court in the same manner as provided in subsection (e) of this section for the appeal of final assessments. On appeal to the director of finance or to the circuit court, the final jeopardy assessment shall be prima facie correct, and the burden of proof shall be on the taxpayer to prove such assessment is incorrect.

(3) If an appeal is not filed with the director of finance or in the circuit court within the time provided herein for appeals of final assessments, the appeal shall be dismissed for lack of jurisdiction.

(d) *Appeal from preliminary assessment.* (Refer to section 3A-6-10(b)(2)a and b.)

(e) *Appeal from final assessment.*

(1) A taxpayer may appeal from any final assessment entered by the department by filing a written notice of appeal with the director of finance within 30 days from the date of entry of the final assessment, and the appeal if timely filed, shall proceed as herein provided.

(2) In lieu of the appeal under subsection (e)(1) of this section, at the option of the taxpayer, the taxpayer may appeal from any final assessment to the circuit court by filing written notice of appeal within 30 days from the date of entry of the final assessment with both the director of finance and the circuit court. If the appeal is to circuit court, the taxpayer shall, also within the 30-day period allowed for appeal either:

a. Pay the tax, interest, and any penalty shown on the final assessment, or

b. File a supersedeas bond with the court in double the amount of the tax, interest, and any penalty shown on the final assessment. The supersedeas bond shall be executed by a surety company licensed and authorized to do business in the state and shall be conditioned to pay the assessment plus applicable interest, penalty, and any court costs relating to the appeal. A taxpayer may appeal a final assessment to circuit court as provided herein, even though the taxpayer has paid the tax in issue prior to taking the appeal.

(3) The filing of the written notice of appeal with the director of finance or, in the case of appeals to the circuit court, the filing of such notice of appeal with both the director of finance and the circuit court, and also the payment of the assessment in full and applicable interest and penalty or the filing of a bond as provided herein, are jurisdictional. If such prerequisites are not satisfied within the time provided for appeal, the appeal shall be dismissed for lack of jurisdiction. On appeal to the circuit court or to the director of finance, the final assessment shall be prima facie correct, and the burden of proof shall be on the taxpayer to prove such assessment is incorrect.

(Ord. No. 02-113, 7-30-2002; Ord. No. 02-177, § 12, 12-10-2002)

Sec. 3A-6-12. Penalties and interest.

(a) *Generally.* The provisions for penalties are pursuant to Code of Ala. 1975, § 40-2A-11; provided, however, the rates and amounts of penalties are as provided herein.

(b) *Failure to timely file return.* If a taxpayer fails, neglects, or refuses to file any return required to be filed with the department on or before the date prescribed therefor, determined with regard to any extension of time for filing granted by the director of finance, there shall be assessed, in addition to the tax due or the amount of tax herein required to be remitted, a penalty of ten percent of the amount due or $50.00, whichever is greater, together with interest thereon at the rate of one percent per month or fraction thereof, from the date at which the tax herein levied became due and payable, such penalty and interest to be assessed and collected as part of the tax as provided in Code of Ala. 1975, § 40-2A-11(a).

(c) *Failure to timely pay tax.* If a taxpayer fails, neglects, or refuses to remit to the department the amount of tax shown as due on a return required to be filed on or before the date prescribed for payment of the tax, determined with regard to any extension of time for payment granted by the director of finance, there shall be added:

(1) In addition to the tax due or the amount of tax herein required to be remitted;

(2) For any tax for which a monthly return is required; or

(3) For which no return is required;

a penalty of ten percent of the unpaid amount shown as tax due on the return or the amount stated in the notice and demand, together with interest thereon at the rate of one percent per

month or fraction thereof, from the date at which the tax herein levied became due and payable as provided in Code of Ala. 1975, § 40-2A-11(b).

(d) *Underpayment of tax.* Any taxpayer failing to pay the tax herein levied to the city or any amount of tax herein required to be remitted and paid to the city, within the time required by this chapter shall pay, in addition to the tax or the amount of tax herein required to be remitted, a penalty of ten percent of the amount of tax due plus interest at the rate of one percent per month, or fraction thereof, from the date at which the tax or the amount of tax herein required to be remitted became delinquent, that is, due and payable to the city.

(e) *Underpayment due to negligence.* If any part of any underpayment of tax is due to negligence or disregard of rules or regulations, there shall be added to the tax an amount equal to ten percent of that part of the tax attributable to negligence or disregard of rules or regulations. For the purpose of this section, the term "negligence" includes any failure to make a reasonable attempt to comply with this chapter, and the term "disregard" includes any careless, reckless or intentional disregard as provided in Code of Ala. 1975, § 40-2A-11(c).

(f) *Underpayment due to fraud.* If any part of any underpayment of tax required to be shown on a return is due to fraud, there shall be added to the tax an amount equal to 50 percent of that portion of the underpayment which is attributable to fraud. For purposes of this section, the term "fraud" shall have the same meaning as ascribed under Code of Ala. 1975, § 40-2A-11(d).

(g) *Frivolous appeal penalty.* If any appeal to the director of finance or to circuit court is determined to be frivolous or primarily for the purpose of delay or to impede collection of the tax imposed by this chapter, a penalty of $250.00 or 25 percent of the tax in question, whichever is greater, shall be assessed in addition to any tax due, as provided in Code of Ala. 1975, § 40-2A-11(f).

(h) *Penalties not exclusive.* The penalties provided in this section for failure to timely file a return, failure to timely pay tax, underpayment of tax, underpayment due to negligence, or filing a frivolous appeal may be asserted against the same taxpayer for the same tax period, as provided in Code of Ala. 1975, § 40-2A-11(g). If the fraud penalty is asserted, no other penalties shall be asserted.

(i) *Waiver of penalties.* Penalties may be waived, in whole or in part, by the director of finance upon a determination of reasonable cause, pursuant to Code of Ala. 1975, § 40-2A-11(h). Reasonable cause shall include, but not be limited to, those instances in which the taxpayer has acted in good faith. The burden of providing reasonable cause shall be on the taxpayer.

(j) *Penalty and interest assessed as tax.* All penalties and interest, levied or assessed against a taxpayer and which are administered by the department shall be assessed and collected in the same manner as taxes.

(k) *Interest.* Interest shall be computed at a rate of one percent per month, or fraction thereof and shall be added as provided herein to any tax or other amount due the department which is not paid by the due date. Interest on any delinquency or underpayment shall be charged from the due date of the tax, as provided in Code of Ala. 1975, § 40-1-44.

(l) *Abatement of penalty.* The department shall abate any penalty attributable to erroneous written advice furnished to a taxpayer by an employee of the department. However, this subsection shall apply only if the department employee provided the written advice in good faith while acting in his or her official capacity, the written advice was reasonably relied on by the taxpayer and was in response to a specific written request of the taxpayer, and the penalty did not result from the taxpayer's failure to provide adequate or accurate information.

(m) *Penalty for failure to perform duties.* Any person required to collect, truthfully account for, and/or pay over any tax imposed by this chapter who willfully fails to collect such tax, or truthfully account for, and/or pay over such tax, or willfully attempts in any manner to evade or defeat any such tax or the payment thereof, shall, in addition to other penalties provided by

law, be liable for a penalty up to the total amount of the tax evaded, or not collected, or not accounted for and paid over.
(Ord. No. 02-113, 7-30-2002; Ord. No. 02-177, § 13, 12-10-2002)

Sec. 3A-6-13. Confidentiality of tax returns.

The confidentiality provisions imposed by this chapter shall be executed as provided in Code of Ala. 1975, § 40-2A-10(a), (d), (e), (f) and (g).

(1) It shall be unlawful for any person to print, publish, or divulge, without the written permission or approval of the taxpayer, the tax return of any taxpayer or any part thereof or any information secured in arriving at the amount of tax or value reported for any purpose other than the proper administration of any matter administered by the department, or upon order of any court, or as otherwise allowed in this section. Statistical information pertaining to taxes may be disclosed at the discretion of the director of finance. The director of finance may make written or verbal disclosure upon request as to the status of compliance of the taxpayer relative to this chapter.

(2) A good standing certificate shall be issued to a requesting person with respect to a taxpayer, if the taxpayer has filed all tax returns due, and paid the taxes shown as payable in accordance with those returns.

(3) The director of finance shall promulgate reasonable regulations permitting and governing the exchange of tax returns, information, records, and other documents secured by the department, with tax officers of other agencies of the state, municipal, and county government agencies within the state, federal government agencies, any association of state government tax agencies of this state or other states, and any foreign government tax agencies; however:

a. Any tax returns, information, records, or other documents remain subject to the confidentiality provisions set forth in subsection (1) of this section;

b. The department may charge a reasonable fee for providing information or documents for the benefit of the requesting agencies; and

c. Any exchange shall be for one or more of the following purposes:

1. Collecting taxes due.

2. Ascertaining the amount of taxes due from any person.

3. Determining whether a person is liable for, or whether there is probable cause for believing a person might be liable for the payment of any tax.

(4) Nothing herein shall prohibit the use of tax returns or tax information by the department in the enforcement, collection, and assessment of any tax levied or imposed by this chapter, or any other matters administered by the department. The department may also divulge to a purchaser or successor of a business or stock of goods the outstanding tax liability of the seller for which the purchaser or successor may be liable pursuant to section 3A-6-15. This section shall not preclude the inspection of returns by federal or foreign state agents pursuant to Code of Ala. 1975, § 40-18-53.

(5) Nothing herein shall prohibit the exchange of information between and among county or municipal governments subject to the restrictions of this section.

(6) In no event shall any damages, attorney fees, or court costs be assessed against the city or against its elected officials, officers, or employees under this section.
(Ord. No. 02-113, 7-30-2002; Ord. No. 02-177, § 14, 12-10-2002)

Sec. 3A-6-14. Regulations may be promulgated; payments due taxpayers may be withheld.

Regulations may be promulgated as provided in Code of Ala. 1975 §§ 40-26-19 and 11-51-204.

(1) *Regulations may be promulgated.*

a. The director of finance shall from time to time promulgate rules and regulations for making returns and for ascertainment, assessment and remittance of the tax imposed hereunder as the director may deem necessary to enforce its provisions; and upon request shall furnish any taxpayer with a copy of such rules and regulations.

b. The director of finance may prescribe, adopt, promulgate and enforce reasonable rules and regulations not in conflict with this chapter relating to any matter or thing pertaining to the administration and enforcement of the provisions of this chapter, including but not limited to provisions for the reexamination and correction of returns as to which overpayment or underpayment is claimed or found to have been made, and the rules and regulations so promulgated shall be binding upon all taxpayers.

c. The director of finance shall prescribe printed forms for use by persons subject to the provisions of this chapter and shall make such forms available at the director's office for use by such persons.

(2) *Payments due taxpayers may be withheld.* Pursuant to the Mayor-Council Act, article VI, section 6.04(o), Act No. 452-55, Acts of Alabama, the director of finance, in order to protect the interests of the city, is authorized to withhold the payment of any claim or demand for payment of monies due from the city to any vendor, contractor, consultant or other person having unpaid or delinquent tax or license liabilities until such unpaid tax, including applicable interest and penalties, shall first have been settled and adjusted. The director of finance shall notify the taxpayer by certified mail with return receipt requested, sent to the taxpayer's last known address, of the director's intention to make such levy, the effect of which shall be continuous from the date such levy is first made until the liability out of which such levy arose is satisfied.

(Ord. No. 02-113, 7-30-2002; Ord. No. 02-177, § 15, 12-10-2002)

Sec. 3A-6-15. Purchaser to withhold taxes from purchase money or be liable.

If any person subject to the provisions hereof shall sell out his or her business or stock of goods, or shall quit the business, he or she shall be required to make a final return, as provided for under section 3A-6-5, and shall make payment of the taxes due within 30 days after the date of selling or quitting business. His or her successor in business shall be required to withhold sufficient of the purchase money to cover the amount of said taxes herein required to be remitted, and any interest or penalties due and unpaid until such time as the former owner shall produce a receipt from the department showing that the taxes have been paid, or a certificate stating that no taxes are due. If the purchaser of a business or stock of goods shall fail to withhold purchase money as provided herein, and the taxes remain due and unpaid after the 30-day period allowed, he or she shall be personally liable for the payment of the taxes herein required to be remitted, interest, and penalties accrued and unpaid on account of the operation of the business by the former owner. If in such cases the department deems it necessary in order to collect the taxes due the city, it may make a jeopardy assessment as provided in Code of Ala. 1975, tit. 40, ch. 29.

(Ord. No. 02-113, 7-30-2002; Ord. No. 02-177, § 16, 12-10-2002)

Sec. 3A-6-16. Disposition of funds derived from taxes.

(a) *Revenue from original three percent lodgings tax rate.* Except as provided in subsection (b) of this section, all monies derived from the lodgings tax levied under the provisions of this chapter shall be paid to the city and placed to the

credit of the General Fund of the City of Birmingham, and shall be used and expended as authorized by law and ordinance.

(b) *Reserved.*

(Ord. No. 02-113, 7-30-2002; Ord. No. 02-177, § 17, 12-10-2002; Ord. No. 10-147, § 1(b), 10-26-2010; Ord. 11-107, § 1(b), 8-23-2011)

Sec. 3A-6-17. Cash and credit businesses.

Any person, firm or corporation taxable under this chapter having a cash and credit business may report such cash business and the taxpayer shall thereafter include in each monthly report all credit collections made during the month preceding and shall pay the taxes due thereon at the time of filing such report, but in no event shall the gross proceeds of such credit business be included in the measure of the tax to be paid until collections of such credit business shall have been made.

(Ord. No. 02-113, 7-30-2002; Ord. No. 02-177, § 18, 12-10-2002)

Sec. 3A-6-18. Credit for lodgings tax erroneously paid.

(a) *Taxes due the city which were erroneously paid to another municipality.*

(1) *Requirement to request refund of erroneous tax payment within 60 days of notice to avoid interest, penalties (taxpayer).* In order to avoid the accrual of interest and any otherwise applicable penalties on the tax due the city, when a lodgings tax owed to the city is erroneously paid to a different municipality or county in good faith, based on a reasonable interpretation of the enabling ordinance, resolution, or act levying or authorizing the tax, but not under a requirement of law, the taxpayer making the erroneous payment must comply with the applicable refund procedures of such municipality or county within 60 days of receiving notice from the city, a county, or other municipality or its agent of the erroneous payment.

(2) *Compliance with refund procedure; interest, penalties.* If the taxpayer complies with the refund procedure within the requisite 60-day period, the city shall not assess or attempt to assess the tax, or any related interest or otherwise applicable penalty thereon until the date of receipt of the overpayment from the refunding municipality or county by the taxpayer or the taxpayer's agent, and no interest or penalty thereon shall accrue until such date of receipt. The taxpayer shall remit the disputed tax to the city within 15 days after receipt.

(3) *Failure to comply with refund procedure; interest, penalties.* If the taxpayer fails to comply with the refund procedures within the requisite 60-day period, interest and any applicable penalties shall accrue on the tax to which the city is entitled from the 61st day and until such time as the tax is paid.

(b) *Taxes due to another municipality which were erroneously paid to the city.*

(1) *City's requirement to refund overpayment of erroneous tax payment within 60 days of compliance with refund procedures.* If a lodgings tax owed to another municipality or county is erroneously paid to the city in good faith, based on a reasonable interpretation of the enabling ordinance, resolution, or act levying or authorizing the lodgings tax, but not under a requirement of law, the city shall refund the overpaid tax, without interest, to the taxpayer within 60 days of the taxpayer's compliance with applicable refund procedures provided in section 3A-6-9.

(2) *Refund of excess tax; requirements.* Provided, however, that if the applicable rate of lodgings tax imposed by the city exceeds the rate of lodgings tax imposed by the proper locality under a requirement of law, the city shall not be obligated to refund the difference.

(Ord. No. 02-113, 7-30-2002; Ord. No. 02-177, § 21, 12-10-2002)

Sec. 3A-6-19. Collection after assessment.

The tax herein required to be remitted may be collected by levy as provided in Code of Ala. 1975, § 40-29-51, as follows:

(1) *Length of period.* Where the assessment of any tax imposed by this chapter has been begun or made within the period of limitation properly applicable thereto, such tax may be collected by levy or by a proceeding in court, but only if the levy is made or the proceeding begun:

a. Within the period allowed by law after the final assessment of the tax; or

b. Prior to the expiration of any period for collection agreed upon in writing by the director of finance and the taxpayer before the expiration of such period allowed by law, (or, if there is a release of levy under Code of Ala. 1975, § 40-29-34, after such period allowed by law, then before such release).

The period so agreed upon may be extended by subsequent agreements in writing made before the expiration of the period previously agreed upon. The period allowed by law as provided in this subsection during which a tax may be collected by levy shall not be extended or curtailed by reason of a judgment against the taxpayer.

(2) *Date when levy is considered made.* The date on which a levy on property or rights to property is made shall be the date on which the notice of seizure provided in Code of Ala. 1975, § 40-29-26, is given.

(Ord. No. 02-113, 7-30-2002; Ord. No. 02-177, § 23, 12-10-2002)

Sec. 3A-6-20. Lien for taxes.

Pursuant to Code of Ala. 1975, §§ 40-29-20, 40-29-21, and 11-51-96, the provisions of this section shall apply to the taxes, and/or any penalty or interest payable thereon, levied under this chapter.

(1) *Notice.* If any person liable to pay the privilege or license tax herein levied, neglects or refuses to pay the same within 30 days of the final assessment, the amount (including any interest, additional amount, addition to tax, or assessable penalty together with filing fees and any other costs that may accrue in addition thereto) shall be a lien in favor of the city upon all property and rights to property, whether real or personal, tangible or intangible, used in any exhibition, trade, business, vocation, occupation or profession for which a privilege or license tax is or may be required. The department shall give a 30-day notice of intent to file lien to the taxpayer by any one of the following methods:

a. Given in person;

b. Left at the dwelling or usual place of business of such person; or

c. Sent by certified mail with return receipt requested to the taxpayer's last known address.

(2) *Term.* Unless another date is specifically fixed by law, the lien imposed by subsection (1) of this section shall arise at the time the final assessment, return therefor or the payment thereof, whichever is prior, was due to have been filed with or made to the department, and shall continue until the liability for the amount so assessed (or a judgment against the taxpayer arising out of such liability) is satisfied or becomes unenforceable by reason of lapse of time.

(3) *Right to enforce by attachment.* The department may enforce such lien in any court of competent jurisdiction, by attachment issued by any officer authorized to issue such writs, upon executing bond as in other cases of attachment, and upon making affidavit that the attachment is not sued out for the purpose of vexing or harassing the defendant, and describing

the property on which the lien is claimed and setting forth all the facts necessary to the creation of the lien, and amount due and unpaid, (including any interest, additional amount, addition to tax, or assessable penalty together with filing fees and any other costs that may accrue in addition thereto).

(4) *Release.* With respect to a lien described in this section, the director of finance shall, within ten days, release the lien when the liability out of which such lien arose is satisfied, and shall promptly notify the person upon whom such lien was made that such lien has been released.

(Ord. No. 02-113, 7-30-2002; Ord. No. 02-177, § 24, 12-10-2002)

Sec. 3A-6-21. Collection by civil suit.

The department may initiate and/or maintain a civil action to recover delinquent taxes herein levied, interest, penalties, and administrative cost incurred in connection therewith, in any court of competent jurisdiction, which remedy shall be in addition to any and all other remedies which may be provided.

(Ord. No. 02-113, 7-30-2002; Ord. No. 02-177, § 25, 12-10-2002)

Sec. 3A-6-22. Violator may be restrained from continuing in business.

Any taxpayer who shall violate any of the provisions of this chapter may be restrained from continuing in business, and proper prosecution shall be instituted in the name of the city until such person shall have compiled with the provisions of this chapter.

(Ord. No. 02-113, 7-30-2002; Ord. No. 02-177, § 26, 12-10-2002)

Sec. 3A-6-23. Violations.

(a) *Failure to pay the tax, make reports, keep or provide records.* Any person subject to the provisions of this chapter, who shall fail to pay the tax, make the reports or any of them as herein required, or who shall fail to keep or provide records, or supply any information as herein required, shall, as provided in Code of Ala. 1975, § 40-26-8, be guilty of a misdemeanor, and upon conviction shall be fined not less than $25.00 nor more than $500.00 for each offense, and in addition, may be imprisoned for period not to exceed six months. Each occurrence of such failure shall constitute a separate offense.

(b) *Willful refusal to make reports or permit examination of records.* Any person subject to the provisions of this chapter willfully failing or refusing to make the reports, furnish any supplemental returns or other data herein required, or who shall refuse to permit the examination of his or her records by the department, shall be guilty of a misdemeanor, and upon conviction shall be fined not less than $50.00 nor more than $500.00 for each offense, and in addition may be imprisoned for a period not to exceed six months. Each month of failure to make such reports shall constitute a separate offense, and each refusal of a written demand by the department to examine, inspect or audit such records shall constitute a separate offense.

(c) *Failure to add tax to price of service; refund or absorption of tax prohibited.* It shall be unlawful for any person, firm or corporation engaged in or continuing within this city in any business for which a privilege or license tax is required by this chapter to fail or refuse to add to the price of the service rendered the amount due by the taxpayer on account of the tax levied by this chapter. Nor shall any person refund or offer to refund all or any part of the amount collected as tax under this chapter or to absorb such tax or to advertise directly or indirectly the absorption or refund of such tax or any portion of the same. Any person, firm, or corporation violating any of the provisions of this section shall be guilty of a misdemeanor and upon conviction shall be fined in a sum not less than $50.00 nor more than $100.00, or may be imprisoned in the city jail for not more than six months, or by both such fine and imprisonment, and each act or violation of the provisions of this chapter shall constitute a separate offense.

(d) *Violation of chapter.* Any person who shall fail, neglect, or refuse to perform any duty imposed by this chapter or other city ordinances, or any rule, regulation or law thereof, or who

shall fail or neglect to do or perform any act or series of acts as required by this chapter or other city ordinances shall, upon conviction, be punished by a fine not exceeding $500.00 for each offense, and in addition may be imprisoned for a period not to exceed six months, or by both such fine and imprisonment, pursuant to section 1-1-6, as amended and as may be amended.
(Ord. No. 02-113, 7-30-2002; Ord. No. 02-177, § 27, 12-10-2002)

Sec. 3A-6-24. Request for ruling on determination of taxation.

Any taxpayer may request a ruling on the determination of whether amounts of gross receipts from the furnishing of rooms, lodgings, or accommodations by him or her or it are subject to the tax, or are not to be used as a measure of the taxes due and payable as levied by this chapter. Such requests shall be made in writing to the finance department, and shall contain all pertinent facts, and shall include a copy of any written determinations or revenue rulings issued by the state department of revenue relating to the items in question.
(Ord. No. 02-113, 7-30-2002; Ord. No. 02-177, § 28, 12-10-2002)

Sec. 3A-6-25. Chapter cumulative.

This chapter shall not be construed to repeal any of the provisions of the business license code of the city (Ordinance No. 97-183, as amended and as it may be amended and which is set forth in chapter 1 of this title), but shall be held to be cumulative and the amounts of the taxes herein levied shall be in addition to the amounts of other license taxes imposed by the city by its business license code.
(Ord. No. 02-113, 7-30-2002; Ord. No. 02-177, § 30, 12-10-2002)

CHAPTER 7. TAX TRIBUNAL

Sec. 3A-7-1. The City of Birmingham Tax Tribunal is hereby established.

The tax tribunal shall hear all appeals of final assessments or denied refunds in whole or in part, of any sales, use, rental, or lodgings taxes levied or collected from time to time by the City of Birmingham. A taxpayer may appeal a final assessment or denied refund involving any such tax to the tax tribunal. The tax tribunal shall be administered by an independent hearing officer appointed by the city council and its procedures shall function in a manner similar to the procedures prescribed for appeals to the Alabama Tax Tribunal, as established by the Code of Ala., tit. 40, ch. 2B. The hearing officer is authorized to take any action that is necessary to enable the City of Birmingham Tax Tribunal to properly exercise the duties, functions, and powers given the City of Birmingham Tax Tribunal.
(Ord. No. 15-39, § 1, 3-31-2015)

Sec. 3A-7-2. Scope and intent of rules governing the City of Birmingham Tax Tribunal.

In accordance with Code of Ala. 1975, § 40-2B-1, these regulations shall govern the procedures to be followed in all appeals filed with the City of Birmingham Tax Tribunal. If there is no regulation applicable in a given circumstance and no controlling statutory provision or precedent, the hearing officer hearing the case shall prescribe the procedure or procedures to be followed. These regulations shall be liberally construed to allow substantial justice and a fair and complete resolution of all matters in dispute. All references herein to a particular "§" or "Section" shall mean and refer to the Code of Alabama 1975, as amended, as amended, and all references to "Title 40" shall mean and refer to Title 40 of the Code of Alabama 1975, as amended.
(Ord. No. 15-72, § 1(101), 5-19-2015)

Sec. 3A-7-3. Definitions.

Unless otherwise specified, the definitions set forth in Section 40-2A-3 shall apply to these regulations and generally to appeals before the Tax Tribunal. In addition, the following words and phrases shall have the following meanings:

City of Birmingham (or the "city"). The City of Birmingham, Alabama.

City attorney. The City Attorney for the City of Birmingham or his or her designee.

Answer. A document required to be filed by the city, in response to an appeal filed by a taxpayer or petitioner.

Designee. An agent, or contractor of the city, who is authorized to administer or collect, or both, the jurisdiction's sales, use, rental or lodging taxes a "private auditing or collecting firm," as defined in Code of Ala., § 40-2A-3.

Department. City of Birmingham Department of Finance and includes the Director of finance.

Director of finance (or "director"). The director of finance of the city or his or her designee.

Formal discovery. Any form of discovery allowed by these regulations that is approved and ordered by a hearing officer.

Private auditing or collecting firm. Any person in the business of collecting, through contract or otherwise, local license fees or for the city, or auditing any taxpayer, through the examination of books and records, for the city.

Tax tribunal. The City of Birmingham Tax Tribunal.

Tax tribunal hearing officer. Any person appointed and authorized to hear and decide appeals as provided in this chapter.

Rules or regulations. Reference the procedures set out in this chapter.
(Ord. No. 15-72, § 1(102), 5-19-2015)

Sec. 3A-7-4. Appeals.

(a) Any taxpayer may appeal to the tax tribunal from a final assessment entered by or on behalf of the city concerning a sales, use, rental or lodgings tax levied by the city or appeals of refunds of such taxes denied by the city. A taxpayer may also appeal to the tax tribunal to dispute a preliminary assessment entered by the city that has not been made final or withdrawn within five years from the date of entry.

(b) The tax tribunal shall not have jurisdiction to hear appeals of any matters related to business license taxes or occupational taxes. The tax tribunal shall not have jurisdiction to hear appeals of preliminary assessments issued/entered against the taxpayer for sales, use, rental or lodgings taxes, by the City of Birmingham; nor shall the Tax Tribunal have jurisdiction to hear appeals of jeopardy assessments.

The tax tribunal shall not have jurisdiction to hear city personnel actions, any issue that is the subject of an action pending in state or federal court, or any action concerning the collection of any final tax liability owed the City of Birmingham.

(c) Any taxpayer entitled to appeal to the tax tribunal pursuant to subsection (a) above shall commence an appeal by filing a written notice of appeal with the tax tribunal. Appeals should be mailed to the following address:

For sales tax, use tax, lease tax, lodgings tax and refund denial appeals:

The City of Birmingham
c/o The City Clerk
Attention: Hearing Officer
710 North 20th Street
City Clerk's Office/City Hall
Birmingham, AL 35203

The appeal must be filed:

(1) Within 30 days from the date on which a final assessment is mailed as provided in Code of Ala., § 40-2A-7(b)(4) or delivered by personal service, whichever occurs earlier; or

(2) Within 30 days after the date on which the city mails notice of any act or proposed act or refusal to act from which the taxpayer is entitled to appeal pursuant to Code of Ala., § 40-2A-8. If a taxpayer that is detrimentally affected by an act or proposed act or refusal to act by the department is not mailed notice of such act, proposed act, or refusal to act under Code of Ala., § 40-2A-8, the taxpayer may appeal to the tax tribunal within 30 days from receiving actual notice of the act, proposed act, or refusal to act; provided, however, the burden is on the taxpayer to show that the appeal was filed within 30 days of actual notice; or

(3) Within 30 days after five years from the date a preliminary assessment was entered by the city and the preliminary assessment has not been withdrawn or made final by the city.

(d) The written notice of appeal shall be filed on either:

(1) The form prescribed by the director of finance or the hearing officer; or

(2) Any other form of notice of appeal that includes the information in subsection (d)(1).

(d) (1) The notice of appeal shall identify or include: (i) the final assessment, denied refund, or other act, proposed act, or refusal to act by the city from which the taxpayer is appealing; (ii) the position of the appealing party; (iii) the relief sought; and (iv) the legal or other basis on which relief should be granted. Failure to include the above information shall not, by itself, be grounds for dismissal of the appeal. The hearing officer may require the taxpayer to file an amended notice of appeal if additional information is deemed necessary.

(d) (2) Within three business days of the receipt of the appeal, the clerk's office shall provide the hearing officer the certified original of the appeal. The appeal may be provided via electronic mail delivery, hand delivery or U.S. Certified Mail Delivery. All forms of delivery shall be made with return receipt requested.

(e) (1) Upon receipt of a timely filed notice of appeal the hearing officer shall assign the appeal a docket number and shall submit a copy of the docketed appeal, with attachments, if any, to the city attorney. This shall be accompanied by a notice directing the city attorney to file an answer in the case within 45 days after receipt of the notice. The tax tribunal shall also notify the taxpayer or the taxpayer's authorized representative that it has received the notice of appeal, and the date that the notice was transmitted to the city attorney. A notice to the city attorney shall be deemed received by the city attorney three business days from the date on which it was transmitted to the city attorney, or the date on which the notice is received by e-mail or otherwise by the city attorney, whichever occurs first. The city attorney may be allowed up to a 45-day extension to file its answer, but only if the city attorney files a written extension request with the hearing officer before the initial 45-day period has expired specifying why an extension is necessary and should be granted. The hearing officer may, in its discretion, grant the requested extension for any period it deems appropriate, up to 45 days. If an extension request is granted for a period less than 45 days, no additional extension will be allowed absent extraordinary circumstances.

(e) (2) If the city attorney fails to file its answer or file a written extension request with the hearing officer within the 45-day period, or, if an extension is requested and granted, within the extended period, the tax tribunal shall grant the relief requested by the taxpayer. As a courtesy, the tax tribunal shall within ten days before the answer due date provide the city attorney or its designee required to file the answer with notice by electronic transmission that the answer is due; provided, however, the tax tribunal's failure to transmit the notice and/or the failure of the city attorney or its designee to receive the notice shall not relieve the city attorney of the duty to timely file the answer.

(f) (1) Upon the timely filing of an answer with the tax tribunal, the tribunal may, at his or her discretion, enter a preliminary or other order: (i) directing one or more parties to take such action as deemed appropriate by the hearing officer under the circumstances; (ii) holding the appeal in abeyance if agreed by the parties or deemed appropriate and necessary by the hearing officer; or (iii) setting the case for hearing. A copy of the answer shall be submitted to the taxpayer or taxpayer's authorized representative after the answer is filed with the tax tribunal.

(f) (2) The taxpayer may, but is not required to, file a reply to the answer with the tax tribunal within 30 days after receipt of the answer. The city attorney or its designee may, but is not required to, file an amended answer, from which the taxpayer may, but is not required to, file a response.

(f) (3) The notice of appeal and any subsequent pleadings submitted by the parties shall be deemed to conform to the evidence submitted by the parties. If an issue is raised or evidence is presented at a hearing that was not previously pled or raised, the opposing party may, at the discretion of the hearing officer, be allowed time to address the issue or evidence, either through brief, or at a subsequent hearing in the case, as fairness dictates.

(Ord. No. 15-72, § 1(103), 5-19-2015)

Sec. 3A-7-5. Hearings.

(a) An appeal before the tax tribunal may be held in abeyance by agreement of the parties or at the discretion of the hearing officer, or an appeal may be submitted without a hearing on a joint stipulation of facts or otherwise as agreed by the parties. The hearing officer may also, with or without a hearing, dismiss any appeal or grant appropriate relief to any party if a party fails to comply with any regulation or statute governing appeals before the tax tribunal, or with any preliminary order or opinion and preliminary order entered by the hearing officer. The hearing officer may also decide a case without a hearing if a party submits information or evidence that is, in the discretion of the hearing officer, sufficient to warrant a final decision in the case.

(b) If a hearing is conducted in a case, the hearing officer shall conduct the hearing substantially as follows:

(1) Open the record and receive appearances.

(2) Receive testimony and exhibits presented by the parties. All testimony shall be under oath.

(3) Interrogate witnesses if deemed necessary for a full and fair adjudication of the case.

(4) Allow direct and cross-examination of any witnesses.

(5) Require the submission of briefs.

(6) Continue or reopen the hearing to take additional evidence as deemed necessary by the hearing officer for a fair, efficient, and complete resolution of all factual and legal issues in dispute.

(c) Hearings before the tax tribunal shall be open to the public; provided, however, the hearing officer has discretion to order a hearing closed as necessary to protect confidential information or for other good cause. The tax tribunal may also issue a protective order on motion by a party if the party shows good cause why certain information should not be publicly disclosed.

(d) The tax tribunal shall conduct hearings at City Hall in Birmingham, Alabama or any other location as ordered by the tax tribunal hearing officer.

(e) Hearings involving taxpayers that appear pro se or that are represented by an authorized representative who is not an attorney shall be informal in nature. To ensure a fair hearing in such cases, the hearing officer may explain to the

pro se taxpayer or the taxpayer's non-attorney authorized representative the general procedures to be followed in the hearing, the legal issue or issues involved in the case, and the facts that are generally relevant in deciding the legal issue or issues. The intent of this subsection is to ensure that all taxpayers will receive a fair hearing, and that taxpayers and their non-attorney authorized representative fully understand the legal issue or issues and the relevant facts involved in the case.

(f) There shall be no ex parte communication in any pending cases/matters before the tax tribunal hearing officer. Ex parte communication means communication with any party, by the hearing officer, without requiring all of the parties to the controversy to be present or notified.
(Ord. No. 15-72, § 1(104), 5-19-2015)

Sec. 3A-7-6. Rules of evidence.

The tax tribunal is not bound by the rules of evidence applicable in civil cases in circuit court. The tax tribunal may, at the discretion of the hearing officer, admit any evidence, including hearsay, that is probative and relevant to a material fact in issue. The hearing officer also has discretion to allow sworn affidavits in lieu of testimony if, in the hearing officer's discretion, the sworn affidavit is sufficiently reliable to prove the fact or facts asserted. Notwithstanding the foregoing, the affidavit of a party to the appeal, a party's agent, employee, family member, or any other individual whose interests appear to be aligned with the party, will be admissible in lieu of testimony only upon a showing that (1) the affiant is unavailable due to death or then existing physical or mental illness or infirmity, or (2) requiring the affiant's presence at a hearing would be unduly burdensome and that the inability to cross examine the affiant will not unduly prejudice another party to the appeal. Any party that intends to submit a sworn affidavit in lieu of testimony must attest that the affiant is unavailable or that the affiant's presence would be unduly burdensome, and also submit a copy of the affidavit to the hearing officer at least 15 days before the date set for the hearing. The hearing officer shall provide the opposing party with a copy of the affidavit, and allow that party to object to the affidavit before the hearing date. If the opposing party timely objects, the hearing officer shall thereafter have discretion to allow or disallow the affidavit, or to take such other action as deemed appropriate under the circumstances. If deemed appropriate by the hearing officer, a sworn affidavit may be allowed without the affidavit being submitted for prior review, but only if, in the discretion of the hearing officer, the opposing party is not unduly or unfairly harmed or prejudiced by allowing the affidavit.
(Ord. No. 15-72, § 1(105), 5-19-2015)

Sec. 3A-7-7. Orders of the tax tribunal.

The hearing officer shall issue written decisions, which shall contain findings of fact and conclusions of law.

(a) A hearing officer may issue a preliminary order for any reason specified in section 3A-7-4(f)(1) of this chapter.

(b) A hearing officer may issue an opinion and preliminary order after a hearing in the case or otherwise, as deemed appropriate by the hearing officer. The opinion and preliminary order may direct the city, as appropriate, to re-compute the taxpayer's liability or the amount of refund due, or for any party to take such action as deemed appropriate by the hearing officer.

(c) The hearing officer shall issue a final order in all cases. The final order may dismiss an appeal for lack of jurisdiction or other cause, or grant such relief and invoke such remedies as deemed necessary by the hearing officer for a fair and complete resolution of all matters in dispute.
(Ord. No. 15-72, § 1(106), 5-19-2015)

Sec. 3A-7-8. Application for rehearing.

(a) Any party may apply for a rehearing from any final order or opinion and preliminary order entered by the hearing officer within 15 days from the date such order was entered. The application must specify the reasons and support-

ing arguments why such order is incorrect and should be reconsidered. The hearing officer shall serve a copy of a timely-filed application for rehearing on the opposing party, and may allow the opposing party time to respond to the application. The hearing officer shall thereafter, with or without a hearing, issue a final or other order on rehearing, as appropriate under the circumstances.

(b) The timely filing of an application for rehearing shall suspend the time for filing an appeal to circuit court. The time for filing a notice of appeal to circuit court shall begin anew on the date the final order on rehearing is entered.
(Ord. No. 15-72, § 1(107), 5-19-2015)

Sec. 3A-7-9. Appeals to circuit court.

Appeals to the circuit court from an order of the hearing officer shall be as provided by law.
(Ord. No. 15-72, § 1(108), 5-19-2015)

Sec. 3A-7-10. Representation before the tax tribunal.

(a) The department shall be represented at any appeal or other proceeding before the tax tribunal by the city attorney.

(b) Taxpayers or other parties in an appeal or other proceeding before the tax tribunal may represent themselves, or be represented by an authorized representative who is an attorney licensed to practice in Alabama or any other state, or an attorney employed by or a member or partner in an accounting or professional services firm, or by a CPA or accountant licensed in Alabama or any other state, or by any duly authorized officer, employee, partner or member of the taxpayer, or by any other duly authorized representative.

(i) A taxpayer is entitled to be represented or assisted, at their own expense, by an authorized representative. In the absence of a form prescribed by the City of Birmingham or the tax tribunal hearing officer, the taxpayer may provide such other evidence that a person is the authorized representative of a taxpayer as it considers appropriate. This provision shall not be construed as authorizing the practice of law by a person who is not a licenses attorney.

(Ord. No. 15-72, § 1(109), 5-19-2015)

Sec. 3A-7-11. Publication of orders and pending cases.

The city shall index and publish the hearing officer's final decision in print or electronic form as it deems best adapted for public convenience. Such publications shall be made permanently available and constitute the official reports of the city tax tribunal.
(Ord. No. 15-72, § 1(110), 5-19-2015)

Sec. 3A-7-12. Constitutional issues.

(a) The tax tribunal hearing officer may decide the constitutionality of the department's application of a statute, regulation, ordinance, or resolution to a particular taxpayer, but shall not have the authority to declare a statute, ordinance, or regulation unconstitutional on its face.

(b) Constitutional appeals of statute, regulations ordinances shall be as provided by law.
(Ord. No. 15-72, § 1(111), 5-19-2015)

Sec. 3A-7-13. Stipulations.

The parties to a proceeding before the tax tribunal shall stipulate all relevant and non-privileged facts to the fullest extent practicable and to which complete or qualified agreement can or fairly should be reached.
(Ord. No. 15-72, § 1(112), 5-19-2015)

Sec. 3A-7-14. Discovery.

(a) Parties to a proceeding before the tax tribunal may use the discovery methods authorized herein to obtain non-privileged information that is relevant to the subject matter involved in the pending appeal; provided, except as specified below, discovery can only be used with the prior approval of the hearing officer. Before requesting formal discovery, however, the parties to an appeal shall make every reasonable effort to voluntarily and informally exchange information and evidence regarding any matter, not privileged, which is relevant to the subject

matter involved in the appeal. Such voluntary exchange of information and evidence may include a request for production of documents and the submission of written questions in the nature of interrogatories to the opposing party without the prior approval of the hearing officer; the intent being that the parties should make every reasonable effort to voluntarily exchange information before petitioning the tax tribunal for formal discovery. If voluntary written questions are proffered by a party, the opposing party shall affirmatively respond within 30 days to all questions that are relevant to the issue or issues involved in the case. The opposing party may also object in writing and refuse, without prejudice, to answer or affirmatively respond to any questions that the party deems to be not relevant to the issue or issues involved in the case or privileged. Questions propounded pursuant to this paragraph shall be limited in number and responses shall be executed under oath and in accordance with the Alabama Rules of Civil Procedure 33.

(b) If a party cannot obtain relevant information or evidence by voluntary and informal exchange, the party may petition the tax tribunal to allow formal discovery. The petition shall (1) explain why the information could not be obtained by voluntary and informal exchange, and (2) identify the type or types of formal discovery requested. The requesting party shall also serve a copy of the petition on the opposing party or the opposing party's authorized representative, who may file a written objection to the requested discovery within 14 days of the date of receipt of the petition requesting discovery. The Tax Tribunal may thereafter allow discovery by the following means: written interrogatories; requests for production and inspection of tax returns, books, papers, documents, and other evidence; depositions of parties, non-party witnesses, and experts; requests for admission; or other forms of discovery authorized by the tax tribunal. It is not grounds for objection that the information sought to be discovered is not relevant to the issue or issues involved in the appeal before the tax tribunal if the information sought appears reasonably calculated to lead to the discovery of relevant evidence.

(c) Formal discovery authorized by subsection (b) of this regulation shall be allowed only in the discretion of the hearing officer, and only upon a showing that informal consultation and other communications, conducted in good faith, have failed to result in the voluntary exchange of information, documents, and other relevant and non-privileged evidence necessary to the resolution of the issue or issues in dispute in the appeal. The hearing officer shall determine the type of discovery to be allowed, if any, after considering whether the discovery would be unduly burdensome or expensive, and in consideration of the amount in controversy, the extent of the parties' resources, and the necessity and relevance of the information requested.

(d) If discovery is allowed by the hearing officer, discovery requests propounded to a pro se party or to an authorized representative not authorized to practice law in this state or another jurisdiction, shall, at a minimum, include the following information: the deadline for responding to the request; a brief description of the form in which a response or responses should be provided; notice that the response must be signed under penalty of perjury; notice of the right to object to a particular request or seek a protective order, as the case may be; and, with regard to requests for admissions, notice that the matter will be deemed admitted unless the pro se party or the authorized representative answers or objects to the requested admissions within 30 days after the request is served on the pro se party or authorized representative.

(e) If discovery is allowed by the hearing officer, the hearing officer shall issue an order granting discovery which, after consulting with the parties, shall specify therein a date on which discovery shall be completed. A party or parties may petition the tax tribunal for additional time within which discovery may be completed. Such petition shall explain the reason why such additional time is required or necessary. The hearing officer may grant such additional time as deemed appropriate by the hearing officer.

(f) Except as ordered by the hearing officer, the methods of discovery allowed by this regulation shall be conducted in accordance with

Alabama Rules of Civil Procedure Rule 26 (general provisions governing discovery), Rule 28 (persons before whom depositions may be taken), Rule 29 (authorizing modification of discovery procedures by written stipulation of the parties), Rule 30 (depositions), Rule 33 (interrogatories), Rule 34 (production of documents), and Rule 36 (requests for admissions).

(g) If a party or other person or entity fails or refuses to cooperate or comply with formal discovery allowed by the tax tribunal, the discovering party may petition the tax tribunal for an order requiring the party, person, or entity to fully cooperate and comply with the discovery request. If the tax tribunal issues an order to compel, and the party, person, or entity fails to fully comply with discovery or the order to compel, the hearing officer may grant the discovering party such relief or take such other action as deemed appropriate, fair, and reasonable by the hearing officer under the circumstances.
(Ord. No. 15-72, § 1(113), 5-19-2015)

Sec. 3A-7-15. Subpoenas.

A hearing officer may, on his or her own motion or at the written request of a party, also issue subpoenas requiring witnesses to attend and testify at a hearing, or subpoenas duces tecum for the production of any tangible evidence. The discretion to issue subpoenas or subpoenas duces tecum shall rest solely with the hearing officer. Any witness subpoenaed to testify or produce records, or whose deposition is taken, shall be paid by the requesting party the same fees and mileage as paid to individuals subpoenaed in a circuit court action in Alabama.
(Ord. No. 15-72, § 1(114), 5-19-2015)

Sec. 3A-7-16. Joinder of persons needed for just adjudication.

The hearing officer, on his or her own motion or at the request of a party, may join a person in the appeal, but only if (1) it appears that in the person's absence, complete relief cannot be accorded among those already parties in the appeal, or (2) it appears that the party has an interest relating to the subject of the appeal and is so situated that the disposition of the action in the person's absence may (i) as a practical matter impair or impede the person's ability to protect that interest, or (ii) leave any of the persons already parties to the appeal subject to a substantial risk of incurring double, multiple, or otherwise inconsistent obligations by reason of the claimed interest. A request for joinder shall be in writing, and shall be served upon all parties to the appeal and the person or persons sought to be joined.
(Ord. No. 15-72, § 1(115), 5-19-2015)

Sec. 3A-7-17. Amicus briefs.

An individual or entity may, with the approval of the hearing officer, submit an amicus curiae brief in a case pending before the tax tribunal.
(Ord. No. 15-72, § 1(116), 5-19-2015)

Title 4

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CHAPTER 1. ENGINEERING, CONSTRUCTION AND PUBLIC WORKS

ARTICLE A. CITY ENGINEER AND CITY ARCHITECT

Sec. 4-1-1. Supervision of public works; records generally; reports.

The city engineer shall superintend the execution of all contracts with the city for the improvement of the streets and alleys. He or she shall likewise have supervision and general charge of all work done on any street or alley in the city, may direct the manner of doing such work, and the construction of all street crossings, bridges or other structures in or upon the streets or alleys, and he or she shall take care that all contracts for any such work for the city are fully complied with. He or she shall likewise supervise and direct all engineering work in connection with the sewerage system of the city, and all other municipal work and improvements the mayor may require, involving a knowledge of civil engineering. He or she shall make all necessary maps, profiles and working plans of any public works and carefully preserve the same. He or she shall keep in proper form, as part of the records of his or her division, the plans, surveys and maps of the sewerage system of the city and the widths and grades of the streets of the city. He or she shall make those special reports concerning the state and progress of the work in his or her division as may be required of him or her by the mayor.
(Code 1980, § 4-1-1; Ord. No. 99-20, § 4-1-1, 2-4-1999)

State law reference—Supervisory role of city engineer, Code of Ala. 1975, § 11-48-12.

Sec. 4-1-2. Maps and records of property.

All surveys, profiles, plans and estimates made by the city engineer or his or her assistants for the city shall be the property of the city and shall be carefully preserved in the office of the city engineer, open to the inspection of the city officers and parties interested, and the same, together with all books, papers and documents and instruments appertaining to that office shall be delivered by the engineer to his or her successor or to the mayor at the expiration of his or her tenure of office.
(Code 1964, § 2-68; Code 1980, § 4-1-2; Ord. No. 99-20, § 4-1-2, 2-4-1999)

Sec. 4-1-3. Payment for performance of contract.

All claims for payment on any contract under his or her supervision, unless otherwise specified in the contract, shall be certified by the city engineer, who shall withhold his or her certificate of approval in every case where the contract has not been faithfully performed, and in no case shall he or she certify any claim in advance of the doing of the work for which the payment is to be made.
(Code 1964, § 2-69; Code 1980, § 4-1-3; Ord. No. 99-20, § 4-1-3, 2-4-1999)

Sec. 4-1-4. Records of street grades.

The city engineer shall establish the grade of all streets and alleys and whenever the grade of any street is established, or the grade of any street or alley already established is changed, the city engineer shall make a map or profile of the grade, and preserve the same with other maps and profiles in his or her office.
(Code 1964, § 2-70; Code 1980, § 4-1-4; Ord. No. 99-20, § 4-1-4, 2-4-1999)

Sec. 4-1-5. Other duties.

The city engineer shall perform any other duties as may be required of him or her by the mayor or by state statute.
(Code 1964, § 2-71; Code 1980, § 4-1-5; Ord. No. 99-20, § 4-1-5, 2-4-1999)

Sec. 4-1-6. City architect.

The city architect shall superintend the execution of all contracts with the city for the construction of, renovation of and repair of city owned buildings and parking lots. The architect shall likewise have supervision and general charge of all work done on any city owned buildings, may direct the manner of doing such work and he or she shall take care that all contracts for any such work for the city are fully complied with. The architect shall likewise supervise and direct all

architectural and energy management work in connection with the construction of new buildings owned by the city, and all other municipal work and improvements the mayor may require, involving a knowledge of architecture and engineering. The architect shall make all or supervise the making of all necessary working plans of any public works project and carefully preserve the same. The architect shall keep in proper form, as part of the records of his or her division, the plans of the city owned buildings. The architect shall make those special reports concerning the state and progress of the work in his or her division as may be required of him or her by the mayor.
(Ord. No. 99-20, § 4-1-6, 2-4-1999)

Sec. 4-1-7. Building plans.

All building plans and estimates made for the city by the city architect or his or her assistants, or consultants for the city shall be the property of the city and shall be carefully preserved in the office of the city architect open to the inspection of the city officers and parties interested, and the same, together with all books, papers and documents and instruments appertaining to that office shall be delivered by the city architect to his or her successor or to the mayor at the expiration of his or her tenure of office.
(Ord. No. 99-20, § 4-1-7, 2-4-1999)

Sec. 4-1-8. Payment for performance of contract.

All claims for payment on any contract for construction or renovation of city owned building unless otherwise specified in the contract, shall be certified by the city architect, who shall withhold his or her certificate of approval in every case where the contract has not been faithfully performed, and in no case shall he or she certify any claim in advance of the doing of the work for which the payment is to be made.
(Ord. No. 99-20, § 4-1-8, 2-4-1999)

Sec. 4-1-9. Records of city-owned buildings.

The city architect shall establish or supervise the establishment of floor plan layout of all city owned buildings and preserve the same with other floor plans and profiles in his or her office.
(Ord. No. 99-20, § 4-1-9, 2-4-1999)

Sec. 4-1-10. Other duties.

The city architect shall perform any other duties as may be required of him or her by the mayor or by state statute.
(Ord. No. 99-20, § 4-1-10, 2-4-1999)

ARTICLE B. IMPROVEMENTS AND PUBLIC WORKS*

Division 1. Generally

Sec. 4-1-11. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

City-owned property means real property that the city owns or has a contractual right to own or purchase, including easements, rights-of-way, or otherwise.

Force account work means work paid for by reimbursing for the actual costs for labor, materials, and equipment usage incurred in the performance of the work, as directed, including a percentage for overhead and profit, where appropriate.

Public works means the construction, repair, renovation, or maintenance of public buildings, structures, sewers, waterworks, roads, bridges, docks, underpasses, and viaducts as well as any other improvement to be constructed, repaired, renovated, or maintained on public property and to be paid in whole or in part, with public funds or with financing to be retired with public funds in the form of lease payments or otherwise.
(Ord. No. 99-20, § 4-1-11(a), 2-4-1999)

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*__State law references—__The Municipal Public Improvement Act, Code of Ala. 1975, § 11-48-1 et seq.; advertisement for and opening of sealed bids for public works contracts involving an amount in excess of $50,000.00, Code of Ala. 1975, § 39-2-1 et seq.; competitive bidding required for contracts of municipalities regarding labor, services, or the purchase or lease of materials, equipment, supplies, or other personal property involving $7,500.00 or more, Code of Ala. 1975, § 41-16-50 et seq.

Sec. 4-1-11.1. Notice requesting bids.

When, in contemplation of any local improvement, the council shall have adopted any ordinance or resolution finally ordering the making of a proposed improvement, notice shall be given by the director of planning, engineering, and permits or his or her designee requesting bids for the work. This notice shall be published as prescribed by state law, and shall be in substantially the following form:

Notice to Contractors

Sealed bids will be received by the undersigned until _____ ____, 20____, for _____. Specifications may be obtained and plans examined at this office. The right is reserved to reject any or all bids.

(Signed) _____
City Engineer

(Code 1980, § 4-1-11; Ord. No. 99-20, § 4-1-11, 2-4-1999)

Sec. 4-1-12. Hours of labor; stipulation in contract.

(a) The service or employment of all laborers, workers and mechanics employed by the city on any public work or by any contractor or subcontractor for or upon any public work in the city under any contract made shall be on the basis of eight hours constituting a day's work in any calendar day, and it shall be unlawful for any officer or agent of the city, or for any contractor or subcontractor or other person whose duty it shall be to employ, direct or control the service of these laborers, workers or mechanics to require of any such laborer, worker or mechanic more than eight hours work as a basic day's labor in any calendar day, except in case of extraordinary emergency, as in case of war, fire, flood or danger to life or property or to the public health.

(b) Any contract for the doing of public work made by or on behalf of the city, which may involve the employment of laborers, workers or mechanics, shall contain stipulations in accordance with the provisions of subsection (a) of this section.
(Code 1964, § 27-2; Code 1980, § 4-1-12; Ord. No. 99-20, § 4-1-12, 2-4-1999)

Sec. 4-1-13. Collection of assessments; rate of interest on unpaid balance.

The director of finance shall be the custodian of the assessment book for local improvements and shall collect, receipt for and record all payments of assessments for local improvements, and all installments of those assessments. The rate of interest on such assessments shall be eight percent per annum on the unpaid balance.
(Code 1964, § 27-3; Code 1980, § 4-1-13; Ord. No. 80-95, 5-20-1980; Ord. No. 99-20, § 4-1-13, 2-4-1999)

Sec. 4-1-14. Sales for delinquent assessments—Notice.

Notice of public improvement sales required by law shall be punished in substantially the following form:

Notice

TO WHOM IT MAY CONCERN: Notice is hereby given that on the ____ day of _____, 20____, at the front of the main west entrance door of the Courthouse of _____ County, Alabama, in the City of Birmingham, Alabama, commencing at 11:00 a.m., and continuing within legal hours of sale, the undersigned director of finance will proceed publicly to sell to the highest bidder for cash the respective lots or parcels of land hereinafter described for the purpose of collecting delinquent local improvement assessments thereon, all the lots or parcels of land being situated in the City of Birmingham, Alabama. The respective numbers of the ordinances under which the improvements were made, the respective names of the owners of such lots or parcels where known, and where unknown, the respective persons in whose names assessed, the respective descriptions of the lots or parcels of land to be sold and the respective amounts of the assessments with interest to date of sale and costs are as follows:

(Here set out, with respect to each separate lot or parcel, the Ordinance No., the pro number, the description of the lot or parcel, the name of owner, if known, and the amount.)

_____

Director of Finance of the City of Birmingham, Alabama

(Code 1964, § 27-4; Code 1980, § 4-1-14; Ord. No. 99-20, § 4-1-14, 2-4-1999)

Sec. 4-1-15. Same—Form of deed.

The form of local improvement sale deeds shall be substantially as follows:

State of Alabama,
_____ County.

KNOW ALL MEN BY THESE PRESENTS, THAT,

WHEREAS, the property hereinafter described was duly assessed under Improvement Ordinance _____, Pro No. _____, _____ Series; and

WHEREAS, the assessment aforesaid, upon said property, hereinafter described, remained due and unpaid and delinquent at the date of the sale thereof, as hereinafter set forth; and

WHEREAS, by virtue of the authority vested in him by law, the director of finance did, on the ____ day of _____, 20____, at a sale begun and publicly held on said day, commencing at 11:00 a.m. and continuing within the legal hours of sale, offer for sale at the front of the main west entrance door of the Courthouse of _____ County, Alabama, in the City of Birmingham, Alabama, to the highest bidder for cash, the property hereinafter described, for the purpose of paying said assessment and the interest and costs then due and remaining unpaid on said property, after having first given notice once a week for three consecutive weeks by publication in the _____, a newspaper published and of general circulation in Birmingham, _____ County, Alabama, that he would sell said property at the aforesaid time and place for the aforesaid purpose to the highest bidder for cash; and,

WHEREAS, at the time and place aforesaid, _____ bid and offered to pay the sum of _____ dollars (_____), in cash, for the hereinafter described property, which was the highest cash bid therefor and which was the whole amount of said assessment and interest and costs then due and remaining unpaid on said property, and the said property was then and there sold to said _____ for said price.

NOW THEREFORE, I, _____ as Director of Finance of the City of Birmingham, in my official capacity as such, and for and on behalf of said City, and for and in consideration of said sum to me as director of finance in hand paid by said purchaser, the receipt whereof is hereby acknowledged, have bargained and sold, and I do, as such director of finance, hereby grant, bargain, sell and convey unto the said _____ the following described real estate situated in the City of Birmingham, _____ County, Alabama:

TO HAVE AND TO HOLD until the said _____, his heirs and assigns, subject, however, to all rights of redemption as provided by law.

IN WITNESS WHEREOF, I, _____, as director of finance, as aforesaid, have hereunto set my hand and seal, this ____ day of _____, 20____.

(SEAL) _____
Director of Finance
of the City of
Birmingham, Alabama

State of Alabama,
_____ County.

I, _____, a Notary Public in and for said county in said state, hereby certify that _____, whose name as Director of Finance of City of Birmingham, Alabama, a municipal corporation, is signed to the foregoing conveyance, and who is known to me acknowledged before me on this day that, being informed of the contents of the conveyance, he, in his capacity as such officer and with full authority, executed the same voluntarily on the day the same bears date.

Given under my hand this ____ day of _____, 20____.

NOTARY PUBLIC

(Code 1964, § 27-5; Code 1980, § 4-1-15; Ord. No. 99-20, § 4-1-15, 2-4-1999)

Sec. 4-1-16. Same—Recitals in deed to be true and accurate.

The director of finance shall make no false, untrue or inaccurate recital in any local improvement sale deed executed by him or her, and, to that end, it shall be his or her duty, prior to the execution of any such deed, to know that all matters and things recited in that deed to have happened, transpired or occurred have happened, transpired or occurred as therein recited.
(Code 1964, § 27-6; Code 1980, § 4-1-16; Ord. No. 99-20, § 4-1-16, 2-4-1999)

Sec. 4-1-17. Same—Record of sales.

The director of finance shall keep a full record of sales in a well bound book, which shall contain a general description of the property sold, the owner thereof, where known (and, where unknown, the person in whose name assessed), the name of the purchaser, the date of sale and amount bid, and number of ordinance under which improvements were made for which property was assessed, together with date and facts as to the redemption if same is redeemed.
(Code 1964, § 27-7; Code 1980, § 4-1-17; Ord. No. 99-20, § 4-1-17, 2-4-1999)

Sec. 4-1-18. Same—Redemption deed.

The deed required to be given by the city upon redemption of property sold for payment of public improvement assessments shall be substantially in the following form:

State of Alabama,
_____ County.

KNOW ALL MEN BY THESE PRESENTS, That,

WHEREAS, the property hereinafter described, situated in the City of Birmingham, Alabama, was on the ____ day of _____, 20____ sold by the Director of Finance of the City of Birmingham for the payment of certain assessments under Improvement Ordinance Pro No. _____, _____ Series; and

WHEREAS, _____ purchased said property at said sale for the sum of _____ dollars ($_____), all of which more specifically appears by certain deed executed by _____, as Director of Finance of the City of Birmingham, Alabama, which said deed is recorded in the office of the Probate Judge of _____ County, Alabama, in Volume _____, Record of Deeds, pages _____; and

WHEREAS, the said _____ has this day paid to the City of Birmingham the statutory redemption price for redemption of the property hereinafter described from the sale thereof hereinabove described, together with the sum of two dollars ($2.00) to pay for the cost of making this conveyance, amounting in the aggregate to the sum of, _____ dollars ($_____); and

WHEREAS, the said _____ has redeemed the property hereinafter described from the sale hereinabove set forth and described.

NOW, THEREFORE, in consideration of the premises, and in further consideration of the sum of _____ dollars ($_____), to the City of Birmingham, in hand paid by the said _____, the receipt of which is hereby acknowledged, we, the City of Birmingham, a municipal corporation, have bargained and sold, and we do hereby grant, bargain, sell and convey unto the said _____ all of the title to the property hereinafter described, which the City of Birmingham or the purchaser at said sale derived by virtue of the sale hereinabove described, which said property is described as follows:

_____
_____
_____

TO HAVE AND TO HOLD unto the said _____, his heirs and assigns.

It is the purpose and intention of this conveyance to evidence the redemption of said above-described property from the sale herein described, but this deed shall not operate to

divest any other right, title, interest or claim which the City of Birmingham may have or claim on account of any other assessment or tax, or lien or encumbrance, against said property.

IN WITNESS WHEREOF, the City of Birmingham has caused its signature to be hereto subscribed by _____, its director of finance, this the ____ day of _____, 20____.

City of Birmingham

_____
Director of Finance

(SEAL)

The State of Alabama,
_____ County.

I, _____, a Notary Public in and for said county, in said state, hereby certify that _____, whose name as Director of Finance of the City of Birmingham, Alabama, a municipal corporation, is signed to the foregoing conveyance, and who is known to me, acknowledged before me on this day that, being informed of the contents of the said conveyance, he as such officer and with full authority, executed the same voluntarily for and as the act of said corporation.

Given under my hand this ____ day of _____, 20____.

Notary Public

(Code 1964, § 27-8; Code 1980, § 4-1-18; Ord. No. 99-20, § 4-1-18, 2-4-1999)

Secs. 4-1-19—4-1-30. Reserved.

Division 2. Contracts for Public Works Improvements

Sec. 4-1-31. To be let to lowest responsible bidder; bid procedure.

(a) Bidding and administration. All public works projects to be entered into by the city shall be bid and administered in accordance with the provisions of the Code of the state as appears in title 39, chapter 2 thereof, as such statute may be amended.

(b) Sealed bids on all contracts enumerated in subsection (a) of this section shall be solicited and advertised by the director of planning, engineering and permits or his or her designee. All these bids shall be presented sealed to the person designated by the director of the department of planning, engineering and permits to receive same and shall be identified as bids on the envelope. The bids shall be opened in public at the time and place stated in the notice. The bids shall be tabulated by the department of planning, engineering and permits and submitted to the council for award of the contract. The council may reject any or all bids so submitted if it finds that to do so is in the public interest. The tabulation of all bids received shall be available for public inspection and all original bids, together with all documents pertaining to the award of the contract, shall be retained and made a part of a permanent file in the office of the city clerk and shall be open to public inspection.

(c) The city engineer or city architect shall superintend the execution of all contracts referred to in subsection (a) of this section in accordance with the provisions of sections 4-1-1 and 4-1-6.

(d) All contracts to be entered into by the city for the construction, improvement or repair of any public works in an amount less than $50,000.00 or such other limit as may be established under the provisions of state law, may be let in such manner and under such conditions as may be in the best interests of the city.
(Code 1964, § 27-9; Code 1980, § 4-1-31; Ord. No. 99-20, § 4-1-31, 2-4-1999)

Sec. 4-1-32. Execution and attestation of contracts.

All contracts for the construction, improvement or repair of any public works let under the provisions of this article shall be executed by the mayor and attested by the city clerk.
(Code 1964, § 27-10; Code 1980, § 4-1-32; Ord. No. 99-20, § 4-1-32, 2-4-1999)

Sec. 4-1-33. Contracts not to be made in violation of certain state act.

No contract under the provisions of this article shall be made in violation of any provision of the laws of the state.
(Code 1964, § 27-11; Code 1980, § 4-1-33; Ord. No. 99-20, § 4-1-33, 2-4-1999)

Sec. 4-1-34. Contracts made by park and recreation board.

Any provision of this article to the contrary notwithstanding, it shall not apply to or be applicable to any contract made in the name of the city by the park and recreation board of the city or by that board or on behalf of that board, except that the board shall establish and maintain purchasing facilities and procedures for any contract, and any contracts shall be let, made and executed by the board so as not to violate any provision of applicable state law.
(Code 1964, § 27-12; Code 1980, § 4-1-34; Ord. No. 99-20, § 4-1-347, 2-4-1999)

Sec. 4-1-35. Procedure where cost of work less than $500.00.

(a) Anything in this article to the contrary notwithstanding, competitive bids shall not be required for any contract for the construction, improvement or repair of public works where the consideration to be paid under that contract is less than $500.00 unless otherwise required by law.

(b) Any provision of this article to the contrary notwithstanding, all contracts for the construction, improvement or repair of public works where the consideration to be paid under the contract is less than $500.00, by or on behalf of the city library board, for which competitive bidding is not required by applicable state law, may be made under authority of that board and the agent shall have no authority or responsibility in regard to those contracts.
(Code 1964, § 27-13; Code 1980, § 4-1-35).

Secs. 4-1-36, 4-1-37. Reserved.

Sec. 4-1-38. Bid procedure under state law.

Any provision of this article, or of any other provision of this Code, to the contrary notwithstanding, whenever adherence to the administrative procedures otherwise provided in this Code for notice, bid openings, and the letting of city contracts for public works or improvement project will, by reason of the exigencies of time, render improbable the completion of such project within the necessary time period, the mayor is authorized to direct the city engineer, or a duly appointed agent or representative acting in the premises for the city, to employ those procedural provisions of the state competitive bid law as particularly set forth in applicable state law.
(Code 1980, § 4-1-38; Ord. No. 85-245, 11-12-1985)

Sec. 4-1-39. Payroll certification compliance provision.

The following provision shall be included in each contract let by the city, its boards, and agencies for the construction, remodeling, refinishing, refurbishing, rehabilitation, alteration, and repair of any public works project as referenced under Code of Ala. 1975, § 39-2-1 (50, for this public works project, contractor shall provide and require its subcontractors to provide for the city, a payroll certification compliance form approved by the city attorney and provided to contractor by the director of planning engineering and permits listing the name, social security number, and address of each of contractor's and subcontractor's employee doing any work on the project; his or her correct classification; hourly rates of wages paid; daily and weekly number of hours worked; deductions made, including federal, state, Jefferson County and city taxes withheld; and actual wages paid.) The payroll certification compliance form shall be submitted to the director of finance within ten days of any pay period while the project is ongoing.
(Ord. No. 11-105, 8-9-2011)

Secs. 4-1-40—4-1-50. Reserved.

ARTICLE C. RESERVED

Secs. 4-1-51—4-1-60. Reserved.

ARTICLE D. BLASTING*

Sec. 4-1-61. Permit—Required; contents, terms, fees.

It shall be unlawful for any person to blast in the city without first securing from the city engineer a permit to do the blasting, which permit shall state the location of the work, the name of the person to whom the permit is granted, the date of issue and the date of expiration of the permit. This permit shall be operative for 30 days from the date of issue, except any permit issued to a mine or quarry owner or operator may be operative for an entire year; provided that every such permit shall expire on December 31 of the year in which that permit is issued.
(Code 1980, § 4-1-61; Ord. No. 78-101, 6-9-1978)

Sec. 4-1-62. Same—Application.

Written application for a blasting permit shall be filed with the city engineer, giving the date, the name of the applicant, the location and character of the work and type of explosive to be used.
(Code 1980, § 4-1-62; Ord. No. 78-101, 6-9-1978)

Sec. 4-1-63. Fee; bond; insurance.

(a) Any applicant, not a mine, quarry or strip mine owner or operator, shall pay a permit fee of $100.00 to the city engineer and shall file with the city engineer either a bond or a liability insurance policy or certificate thereof in accordance with the provisions, conditions and terms hereinafter set out.

(b) This bond shall in the sum of $500,000.00 payable to the city and conditioned to hold the city harmless from any loss, damage or liability on account of any injury to person or property, occasioned by or growing out of any blasting that may be done by any applicant within the period of one year from date of blasting, and to pay the loss or damage as any person may suffer in person or property as a result of the violation of any provisions of this article.

(c) The liability insurance policy shall have limits of not less than $500,000.00 for injury to one person, $1,000,000.00 for all injuries to persons and $500,000.00 for damage to property, covering the applicant and any contractor or subcontractor engaged in blasting on behalf of or under contract with the applicant against liability for any damage or injury resulting from the blasting. The policy of insurance, or certificate thereof, shall contain a provision that the policy cannot be altered or canceled without ten days' written notice to the city engineer.
(Code 1980, § 4-1-63; Ord. No. 78-101, 6-9-1978; Ord. No. 90-216, § 1, 8-21-1990; Ord. No. 10-165, § 1(4-1-63), 11-9-2010)

Sec. 4-1-64. Mine, quarry owner or operator.

(a) A mine or quarry owner or operator, upon payment of a permit fee of $300.00 to the city engineer and upon filing with the city engineer either a bond or a liability insurance policy or certificate thereof in accordance with the provisions, conditions and terms hereinafter set out may be issued a blasting permit by the city engineer.

(b) The bond shall be in the sum of $500,000.00, payable to the city and conditioned to hold the city harmless from any loss, damage or liability on account of any injury to person or property, occasioned by or growing out of any blasting that may be done by the applicant within the period of one year from the date of the bond, and to pay any loss or damage as any person may suffer in person or property as a result of the violation of any of the provisions of this article.

(c) The liability insurance policy shall have limits of not less than $100,000.00 for injury to one person, $500,000.00 for all injuries to persons and $100,000.00 for damage to property, covering the applicant and any contractor or subcontractor engaging in blasting on behalf of or under contract with the applicant, against liability for any damage or injury resulting from the blasting. The policy of insurance or certificate thereof shall contain a provision that the policy cannot be altered or canceled without ten days' written notice to the city engineer.
(Code 1980, § 4-1-64; Ord. No. 78-101, 6-9-1978; Ord. No. 10-165, § 1(4-1-64), 11-9-2010)

*__State law references__—Alabama Explosives Safety Act of 1993, Code of Ala. 1975, § 8-17-240 et seq.; municipal explosives use permit, Code of Ala. 1975, § 8-17-248.

Sec. 4-1-65. Strip mine owner or operator.

A strip mine owner or operator, upon payment of a permit fee of $150.00 to the city engineer and upon filing with the city engineer a certificate of insurance that the owner or operator has in force a public liability insurance policy issued in compliance with the Code of Ala. 1975, § 9-16-43, and a duplicate copy of the mining and reclamation map filed with the Alabama Surface Mining Reclamation Commission as provided by the Code of Ala. 1975, § 9-16-39, and a copy of the permit issued by the Alabama Surface Mining Reclamation Commission, as provided by the Code of Ala. 1975, § 9-16-35, may be issued a blasting permit by the city engineer for the location shown on said mining and reclamation map.
(Code 1980, § 4-1-65; Ord. No. 78-101, 6-9-1978)

Sec. 4-1-66. Approval of bond and insurance; execution of bond.

The bond or insurance required in sections 4-1-63 and 4-1-64 shall be approved by the city engineer before any blasting permit shall be issued. Before any bond shall be approved by the city engineer it shall be executed by the applicant, as principal, with good and sufficient sureties. It shall be stipulated in the bond that any person injured may maintain a suit thereon for any injury suffered by him or her in person or property, as the result of blasting done by the applicant. The bond authorized in sections 4-1-63 and 4-1-64 shall be effective and sufficient to cover all blasting done under permit for one year from date of bond or until the time as a claim is made on the bond.
(Code 1980, § 4-1-66; Ord. No. 78-101, 6-9-1978)

Sec. 4-1-67. Control of debris.

It shall be unlawful for any person blasting under a permit issued pursuant to this article to permit, suffer or cause rocks or other debris to be cast upon the streets of the city or on the lands of another, or to fail to restrict within safe limits the flight of blasted rock or other debris by safely covering the blast with timbers or metal covering of sufficient weight to confine the blasted rock within safe limits.
(Code 1980, § 4-1-67; Ord. No. 78-101, 6-9-1978)

Sec. 4-1-68. Warning required.

It shall be unlawful for any person engaged in blasting to fire any blast without first giving timely notice or warning of each blast a sufficient time before the blast is fired, to enable all persons in the vicinity thereof to escape danger.
(Code 1980, § 4-1-68; Ord. No. 78-101, 6-9-1978)

CHAPTER 2. PARKS AND RECREATION*

ARTICLE A. GENERAL PROVISIONS

Sec. 4-2-1. Rules of park and recreation board; incorporated by reference.

The policies, rules and regulations governing parks and recreational facilities as set forth in the bylaws and policies of the city park and recreation board as adopted by the board are hereby incorporated herein and made a part of this chapter by reference.
(Code 1980, § 4-2-1)

Sec. 4-2-2. Dedicated parks.

(a) *Dedication of land for park purposes.* Neither the acquisition by the city of land for park purposes, nor the designation as a park of land owned by the city, nor the use of any such land for park purposes shall be construed as an irrevocable dedication of that land for park purposes, but every such dedication shall be effected solely by formal ordinance or resolution of the council, expressly declaring an irrevocable dedication. Nothing in this section shall apply to land dedicated for park purposes by other than the city.

(b) *Listing of irrevocably dedicated parks.* The following parks have been, and by their inclusion in this subsection, are irrevocably dedicated as required by law as parks for park and no other purposes, subject to any recorded easements and

*__Editor's note—__At the discretion of the editor, the provisions of sections 1—4 of Ord. No. 80-161, adopted Aug. 12, 1980, have been included as tit. 4, ch. 2, art. B, sections 4-2-21—4-2-24, with the existing provisions of ch. 2 designated as art. A.

__State law reference—__General authority relative to parks and recreational facilities, Code of Ala. 1975, § 11-47-210 et seq.

the vacations of any public rights-of-way, and subject to surveys as required in subsection (c) of this section:

(1) Altamont Park, Altamont Road, listed as dedicated by park board January 27, 1995 and irrevocably dedicated for park purposes by Ord. No. 00-16 of the city council January 25, 2000;

(2) Avondale Park, 5th Avenue and 40th Street South, listed as dedicated by park board January 27, 1995 and irrevocably dedicated for park purposes by Ord. No. 00-16 of the city council January 25, 2000;

(3) Birmingham Botanical Gardens, Park Lane Road and Cahaba Road, irrevocably dedicated for park purposes by Ord. No. 00-41 of the city council February 29, 2000;

(4) Tom Bradford Park, Edwards Lake Road, excepting that property currently planned for the widening of Medical Park Drive, irrevocably dedicated for park purposes by Ord. No. 00-27 of the city council February 15, 2000;

(5) Brother Bryan Park, Magnolia Avenue and 21st Street South, formerly Magnolia Park dedicated by resolution of the commission of the city June 10, 1924 as recorded in Minute Book A-4 and irrevocably dedicated for park purposes by Ord. No. 00-16 of the city council January 25, 2000;

(6) Caldwell Park, Highland Avenue and 26th Street, dedicated by resolution of the commission of the city June 10, 1924 as recorded in Minute Book A-4 and irrevocably dedicated for park purposes by Ord. No. 00-16 by the city council January 25, 2000;

(7) City Park, Elder Street, listed as dedicated by park board January 27, 1995 and irrevocably dedicated for park purposes by Ord. No. 00-16 of the city council January 25, 2000;

(8) Clairmont Park, formerly Essex Triangle Park, Essex Road and Clairmont Avenue irrevocably dedicated for park purposes by Ord. No. 00-41 of the city council February 29, 2000;

(9) Crestwood Park, formerly Woodcrest Park, U.S. Highway 78 East at 48th Street, irrevocably dedicated for park purposes by Ord. No. 00-41 of the city council February 29, 2000;

(10) Alma Dennis Park, Bush Boulevard at 17th Street West, irrevocably dedicated for park purposes by Ord. No. 00-38 of the city council February 29, 2000;

(11) Echo Highlands Park, Echo Highlands, irrevocably dedicated for park purposes by Ord. No. 00-27 of the city council February 15, 2000;

(12) Elder Street Nature Park, Elder Street and Shades Creek, listed as dedicated by park board January 27, 1995 and irrevocably dedicated for park purposes by Ord. No. 00-16 of the city council January 25, 2000;

(13) Eldorado Park, Old Springville Road, listed as dedicated by park board January 27, 1995 and irrevocably dedicated for park purposes by Ord. No. 00-16 of the city council January 25, 2000;

(14) Ensley Park, 2800 Avenue K, Ensley, dedicated by resolution of the commission of the city June 10, 1924 as recorded in Minute Book A-4 and irrevocably dedicated for park purposes by Ord. No. 00-16 by the city council January 25, 2000;

(15) Bessie Estell Park, 8th Street South and 9th Avenue South irrevocably dedicated for park purposes by Ord. No. 00-41 of the city council February 29, 2000;

(16) Exchange Park, Pike Road and Avenue W, formerly Shadyside Park, dedicated by resolution of the commission of the city June 10, 1924 as recorded in Minute Book A-4 and irrevocably dedicated for park purposes by Ord. No. 00-16 by the city council January 25, 2000;

(17) Fairview Park, 29th Street West and Avenue Y, dedicated by resolution of the

commission of the city June 10, 1924 as recorded in Minute Book A-4 and irrevocably dedicated for park purposes by Ord. No. 00-16 by the city council January 25, 2000;

(18) Gaston Park, 10th Place and Washington Avenue, irrevocably dedicated for park purposes by Ord. No. 00-25 of the city council February 15, 2000;

(19) Claude Grayson Park, Five Mile Road at Azalea Way, excepting a 25 feet additional right-of-way along Five Mile Road, irrevocably dedicated for park purposes by Ord. No. 00-27 of the city council February 15, 2000;

(20) Cooper Green Park, Flora Avenue in Powderly Hills, name changed from Powderly Hills Park March 3, 1953, listed as dedicated by park board January 27, 1995 and irrevocably dedicated for park purposes by Ord. No. 00-16 of the city council January 25, 2000;

(21) Hanover Park, Hanover Circle, listed as dedicated by park board January 27, 1995 and irrevocably dedicated for park purposes by Ord. No. 00-16 of the city council January 25, 2000;

(22) Charles Harrison Park, Pearson Avenue, irrevocably dedicated for park purposes by Ord. No. 00-25 of the city council February 15, 2000;

(23) Erskine Hawkins Park, Ensley Avenue and 19th Street, irrevocably dedicated for park purposes by Ord. No. 00-39 of the city council February 29, 2000;

(24) Highland Park, 3300 Highland Avenue, also known as The Charlie Boswell Golf Course, dedicated by Res. No. 969-99 of the city council, March 23, 1999 and irrevocably dedicated for park purposes by Ord. No. 00-16 of the city council January 25, 2000;

(25) Hooper City Park, 3901 4th Street West, Hooper City, irrevocably dedicated for park purposes by Ord. No. 00-39 of the city council February 29, 2000;

(26) Howze-Sanford Park, 320 Avenue D, Pratt City, Formerly Pratt City Park, Colored, deeded to the city May 23, 1953, forever for park purposes, as recorded in Jefferson County Deed Book 5063, page 119, and irrevocably dedicated for park purposes by Ord. No. 00-16 of the city council January 25, 2000;

(27) Jimmy Hudson Park, formerly Sandusky Park, 900 Pratt Highway, irrevocably dedicated for park purposes by Ord. No. 00-39 of the city council February 29, 2000;

(28) Inglenook Park, 4016 37th Avenue North, irrevocably dedicated for park purposes by Ord. No. 00-26 of the city council February 15, 2000;

(29) Kelly Ingham Park, 5th Avenue and 17th Street North, formerly West Park, dedicated by resolution of the commission of the city June 10, 1924 as recorded in Minute Book A-4 and irrevocably dedicated for park purposes by Ord. No. 00-16 by the city council January 25, 2000;

(30) Jenny Justo Park, Killough Drive, except current road right-of-way, irrevocably dedicated for park purposes by Ord. No. 00-27 of the city council February 15, 2000;

(31) Key Circle, intersection of Argyle Road, Cahaba Road, Smolian Place, and Aberdeen, except existing road right-of-way, irrevocably dedicated for park purposes by Ord. No. 00-41 of the city council February 29, 2000;

(32) Martin Luther King Jr. Park, 42nd Avenue and 6th Street, irrevocably dedicated for park purposes by Ord. No. 00-26 of the city council February 15, 2000;

(33) Lane Park, Cahaba Road, current site of the Birmingham Zoo, formerly Red Mountain Park, dedicated by resolution of the commission of the city January 16, 1934, as recorded in Minute Book A-18 and irrevocably dedicated for park purposes by Ord. No. 00-16 by the city council January 25, 2000;

(34) Beulah Lewis Park, 66th Street and Interlaken Avenue, deeded to the city as a

public park, May 9, 1949, as recorded in Jefferson County Deed Book 4253, page 239, and irrevocably dedicated for park purposes by Ord. No. 00-16 by the city council January 25, 2000;

(35) Charles Linn Park, 20th Street and 7th Avenue North, formerly Woodrow Wilson Park and as Capital Park, dedicated by resolution of the commission of the city June 10, 1924, as recorded in Minute Book A-4 and irrevocably dedicated for park purposes by Ord. No. 00-16 of the city council January 25, 2000;

(36) Wynelle Lowery Park, 700 15th Way Southwest, irrevocably dedicated for park purposes by Ord. No. 00-25 of the city council February 15, 2000;

(37) Agnes Maclin Park, Huntsville Road and 27th Avenue North, excepting property currently proposed for the Finley Avenue Bypass Extension, irrevocably dedicated for park purposes by Ord. No. 00-26 of the city council February 15, 2000;

(38) John MacMahon Park, formerly Harris Park, Avenue T and 26th Street, Ensley, irrevocably dedicated for park purposes by Ord. No. 00-38 of the city council February 29, 2000;

(39) William L. McAlpine Park, 1115 Avenue F, Ensley, irrevocably dedicated for park purposes by Ord. No. 00-39 of the city council February 29, 2000;

(40) McLendon Park, 400 Graymont Avenue, site of Legion Field, dedicated by resolution of the commission of the city June 10, 1924, as recorded in Minute Book A-4 and irrevocably dedicated for park purposes by Ord. No. 00-16 of the city council January 25, 2000;

(41) Marconi Park, 6th Avenue and 24th Street North, formerly East Park, deeded to the city February 21, 1883, to be "kept and used as public parks" as recorded in Jefferson County Deed Book 53, page 50, and irrevocably dedicated for park purposes by Ord. No. 00-16 of the city council January 25, 2000;

(42) Memorial Park, 524 6th Avenue South, irrevocably dedicated for park purposes by Ord. No. 00-25 of the city council February 15, 2000;

(43) North Birmingham Park, 36th Avenue and 28th Street North, dedicated by resolution of the commission of the city June 10, 1924, as recorded in Minute Book A-4 and irrevocably dedicated for park purposes by Ord. No. 00-16 of the city council January 25, 2000;

(44) Overton Park, 834 Oak Street, irrevocably dedicated for park purposes by Ord. No. 00-27 of the city council February 15, 2000;

(45) Patton Park, Sipsey Street and 14th Avenue North, that property bounded by Sipsey (extended to 14th Avenue North) 12th Avenue North, Coosa Street and 14th Avenue North, excepting the southern 200 feet of Block 50 of the Lincoln City Survey, irrevocably dedicated for park purposes by Ord. No. 00-26 of the city council February 15, 2000;

(46) Phelan Park, 15th Street and 13th Avenue South, deeded to the city, August 10, 1905, to "be used by the city as and for a park and for no other purpose" as recorded in Jefferson County Deed Book 394, page 116, and dedicated by resolution of the commission of the city June 10, 1924, as recorded in Minute Book A-4 and irrevocably dedicated for park purposes by Ord. No. 00-16 of the city council January 25, 2000;

(47) Pine Knoll Park, Wood Avenue and 99th Avenue, irrevocably dedicated for park purposes by Ord. No. 00-26 of the city council February 15, 2000;

(48) Pratt City Park, Alder Street and 3rd Street, irrevocably dedicated for park purposes by Ord. No. 00-39 of the city council February 29, 2000;

(49) Erskine Ramsey Park (1), Montclair Road, listed as dedicated by park board January

27, 1995 and irrevocably dedicated for park purposes by Ord. No. 00-16 of the city council January 25, 2000;

(50) Erskine Ramsey Park (2), Argyle Road, listed as dedicated by park board January 27, 1995 and irrevocably dedicated for park purposes by Ord. No. 00-16 of the city council January 25, 2000;

(51) Rhodes Park, 28th Street and Highland Avenue, dedicated by resolution of the commission of the city June 10, 1924, as recorded in Minute Book A-4 and irrevocably dedicated for park purposes by Ord. No. 00-16 of the city council January 25, 2000;

(52) William Rushton Park, 31st Street South and Highland Avenue, formerly Hall Park, dedicated by resolution of the commission of the city June 10, 1924, as recorded in Minute Book A-4 and irrevocably dedicated for park purposes by Ord. No. 00-16 of the city council January 25, 2000;

(53) Sherman Heights Park, Lansing Street, irrevocably dedicated for park purposes by Ord. No. 00-39 of the city council February 29, 2000;

(54) Spring Haven Park, formerly Honey Suckle Hills Park, Green Springs Avenue, irrevocably dedicated for park purposes by Ord. No. 00-25 of the city council February 15, 2000;

(55) William Stockham Park, 42nd Street and 8th Avenue North, irrevocably dedicated for park purposes by Ord. No. 00-26 of the city council February 15, 2000;

(56) Tuxedo Park, Avenue U and 13th Street, Ensley, irrevocably dedicated for park purposes by Ord. No. 00-38 of the city council February 29, 2000;

(57) Tuxedo Heights Park, Alder Street and 6th Street, Ensley, irrevocably dedicated for park purposes by Ord. No. 00-39 of the city council February 29, 2000;

(58) Underwood Park, 27th Street and 8th Avenue, South, irrevocably dedicated for park purposes by Ord. No. 00-41 of the city council February 29, 2000;

(59) Valley View Park, 16th Avenue South and 16th Street South, irrevocably dedicated for park purposes by Ord. No. 00-41 of the city council February 29, 2000;

(60) Vulcan Trail, below Vulcan Park between Montgomery Highway and 11th Place South, irrevocably dedicated for park purposes by Ord. No. 00-41 of the city council February 29, 2000;

(61) George Ward Park, Greensprings Highway, formerly Green Springs Park, dedicated by resolution of the commission of the city June 10, 1924, as recorded in Minute Book A-4 and rededicated as George Ward Park by resolution of the commission of the city January 15, 1952, as recorded in Minute Book A-34 of the city and irrevocably dedicated for park purposes by Ord. No. 00-16 of the city council January 25, 2000;

(62) Willow Wood Park, 5312 Georgia Road, irrevocably dedicated for park purposes by Ord. No. 00-26 of the city council February 15, 2000;

(63) Woodward Park, McMillian Avenue and 14th Street Southwest, formerly West End Park, dedicated by resolution of the commission of the city June 10, 1924, as recorded in Minute Book A-4 and irrevocably dedicated for park purposes by Ord. No. 00-16 of the city council January 25, 2000;

(64) East Lake Park as it is described in the ordinance from which this subsection is derived and as depicted on the subdivision map recorded at instrument No. 2003 15/1939 and map book No. 0211-0040 in the probate court of Jefferson County, and on file in the office of the city clerk, is hereby dedicated for use as a public park and that such park shall not be alienated or sold unless such alienation is first

approved through a referendum election as provided in Code of Ala. 1975, § 35-4-410.

(65) Fountain Heights Park as it is described in the ordinance from which this subsection is derived and as depicted on the subdivision map recorded at instrument No. 2004 04/4136 and map book 212/56 in the probate court of Jefferson County, and on file in the office of the city clerk, is hereby dedicated for use as a public park and such park shall not be alienated or sold unless such alienation is first approved through a referendum election as provided in Code of Ala. 1975, § 35-4-410.

(66) East Brownville Park as it is described in the ordinance from which this subsection is derived and as depicted on the subdivision map recorded in map book 219 in the probate court of Jefferson County, and on file in the office of the city clerk, is hereby dedicated for use as a public park and such park shall not be alienated or sold unless such alienation is first approved through a referendum election as provided in Code of Ala. 1975, § 35-4-410.

(67) Grasselli Heights Park as it is described in the ordinance from which this subsection is derived and as depicted on the subdivision map recorded at map book 219 in the probate court of Jefferson County, and on file in the office of the city clerk, is hereby dedicated for use as a public park and such park shall not be alienated or sold unless such alienation is first approved through a referendum election as provided in Code of Ala. 1975, § 35-4-410.

(68) Tarpley City Park as it is described in the ordinance from which this subsection is derived and as depicted on the subdivision map recorded at map book 219 in the probate court of Jefferson County, and on file in the office of the city clerk, is hereby dedicated for use as a public park and such park shall not be alienated or sold unless such alienation is first approved through a referendum election as provided in Code of Ala. 1975, § 35-4-410.

(69) West Brownville Park as it is described in the ordinance from which this subsection is derived and as depicted on the subdivision map recorded in map book 219 in the probate court of Jefferson County, and on file in the office of the city clerk, is hereby dedicated for use as a public park and such park shall not be alienated or sold unless such alienation is first approved through a referendum election as provided in Code of Ala. 1975, § 35-4-410.

(70) Wiggins Park as it is described in the ordinance from which this subsection is derived and as depicted on the subdivision map recorded in map book 231 in the probate court of Jefferson County, and on file in the office of the city clerk, is hereby dedicated for use as a public park and such park shall not be alienated or sold unless such alienation is first approved through a referendum election as provided in Code of Ala. 1975, § 35-4-410.

(71) West Goldwire Park as it is described in the ordinance from which this subsection is derived and as depicted on the subdivision map recorded in map book 219 in the probate court of Jefferson County, and on file in the office of the city clerk, is hereby dedicated for use as a public park and such park shall not be alienated or sold unless such alienation is first approved through a referendum election as provided in Code of Ala. 1975, § 35-4-410.

(72) Oak Ridge Park as it is described in the ordinance from which this subsection is derived and as depicted on the subdivision map recorded in map book 232 in the probate court of Jefferson County, and on file in the office of the city clerk, is hereby dedicated for use as a public park and such park shall not be alienated or sold unless such alienation is first approved through a referendum election as provided in Code of Ala. 1975, § 35-4-410.

(c) *Surveys.* Any property irrevocably dedicated for park use by the city council by this section, or accepted and used for park purposes after being deeded to the city with a deed restriction requiring park use, which has not been surveyed within five years prior to the date of such dedication shall, within one year of the date of such dedication, be surveyed by the city and such survey, which shall require approval by the city council, shall constitute the legal description of said irrevocably dedicated park. The failure by the city or its officers to meet the requirements of this section, shall in no way, impair the irrevocable dedication of any park or parks.

(d) *Recording.* As additional lands are irrevocably dedicated for park use the city clerk shall update subsection (b) of this section with the park name, former name, address and the history of city council or other legal actions supporting such dedication, and shall maintain a file, including for each park so dedicated, its name, former name, address, legal description, deed, a map of the park, ordinances, resolutions of the city council or actions of the park and recreation board of the city, naming, renaming or irrevocably dedicating such parks.

(e) *Removal of park names.* No park name shall be removed from the list contained in subsection (b) of this section unless approved by a majority of the qualified electors of the city of voting in a referendum election held for such purpose.

(f) *Advertising of park dedication.* Within 14 days of the final passage of any ordinance or resolution irrevocably dedicating any land for park purposes the city clerk shall cause to be advertised such ordinance or resolution. Failure of the city clerk to carry out his or her duties herein shall in no way impair the irrevocable dedication of such park or parks.

(Code 1964, § 37-1; Code 1980, § 4-2-2; Ord. No. 00-16, 1-25-2000; Ord. No. 00-17, 1-25-2000; Ord. No. 00-23, 2-8-2000; Ord. No. 00-25, 2-15-2000; Ord. No. 00-26, 2-15-2000; Ord. No. 00-27, 2-15-2000; Ord. No. 00-28, 2-15-2000; Ord. No. 00-32, 2-29-2000; Ord. No. 00-33, 2-29-2000; Ord. No. 00-38, 3-7-2000; Ord. No. 00-39, 3-7-2000; Ord. No. 00-41, 3-7-2000; Ord. No. 00-43, 3-21-2000; Ord. No. 02-158, 11-5-2002; Ord. No. 04-35, 4-6-2004; Ord. No. 06-150, 7-31-2006; Ord. No. 06-151, 7-31-2006; Ord. No. 06-152, 7-31-2006; Ord. No. 06-153, 7-31-2006; Ord. No. 06-154, 7-31-2006; Ord. No. 09-129, 9-17-2009; Ord. No. 10-10, 2-4-2010)

Sec. 4-2-3. Names.

The following designations, with the designation "park" supplied after each, shall be the official names of the several parks of the city: Altamont; Arlington; Avondale; Barker; Black; Bradford; Botanical Gardens; Caldwell; Central; Charles Linn; Clairmont; Clayton; Cooper Green; Crestline; Crestwood; Downey; Duke; East Birmingham; East Lake; East Thomas; Elyton; Ensley; Exchange; Fairview; Fountain Heights; Gaston; George Ward; Grayson; Hanover; Harriman; Harris; Harrison; Highland; Honeysuckle Hills; Hopper City; Howze-Sanford; Huffman; Inglenook Park; Inglenook Playground; Kelly Ingram; King; Jimmie Hudson; Jordan; Lane; Lawson; Lewis; Lowery; Lynn; McAlpine; McLendon; Maclin; Magnolia; Marconi; Memorial; Jimmy Morgan Zoo; North Birmingham; North Birmingham Golf Course; North Haven; Norwood Blvd. Strip; Phelan; Powderly; Pratt City; Ramsey No. 1; Ramsey No. 2; Rhodes; Rickwood; Roebuck Hawkins; Rozelle Reynolds; Ruffner Mountain Nature; Rushton; Shades Creek Shores; Slossfield; Spain Park Nursery; Stockham; Tuxedo; Underwood; Valleyview; Vulcan; Wahouma; Wiggins; Willow Wood; Woodward; Wylam; Wylam Hills.

(Code 1980, § 4-2-3; Ord. No. 82-179, 10-19-1982; Ord. No. 86-274, 12-23-1986; Ord. No. 87-18, 2-10-1987; Ord. No. 89-143, 6-27-1989; Ord. No. 90-92, 4-17-1990; Ord. No. 95-114, 6-20-1995; Ord. No. 96-157, § 1, 9-3-1996; Ord. No. 02-41, § 1, 4-23-2002)

Sec. 4-2-4. Injuring, etc., trees, railings, etc.

No person shall willfully or maliciously break, cut, disfigure, injure or destroy any tree, shrub, plant or flower within any of the parks of the city, or any railing, structure or monument therein, or hitch or tie any horse or other animal to any tree or shrub therein.

(Code 1964, § 37-3; Code 1980, § 4-2-4)

Sec. 4-2-5. Use of gateways; climbing, etc., walls.

No person shall enter or leave any of the parks of the city except by the gateways. No person shall climb or walk upon the walls or fences of any of the parks of the city.
(Code 1964, § 37-4; Code 1980, § 4-2-5)

Sec. 4-2-6. Cattle, horses, etc.

No person shall turn or lead any cattle, horses, goats, swine or other animals into any of the parks of the city except under rules established by the city park and recreation board.
(Code 1980, § 4-2-6)

Sec. 4-2-7. Throwing stones, etc.

No person shall throw stones or other missiles within any of the parks of the city except in those areas of parks designated for that purpose.
(Code 1980, § 4-2-7)

Sec. 4-2-8. Golfing.

It shall be unlawful for any person to play or practice the game of golf or to drive, hit or otherwise propel a golf ball or similar object in or upon any public park other than a golf course, practice range or putting green, designed and constructed for that purpose.
(Code 1964, § 37-6.1; Code 1980, § 4-2-8)

Sec. 4-2-9. Carrying firearms.

No person shall carry firearms within any of the parks of the city in violation of any state law regulating firearms.
(Code 1980, § 4-2-9)

Sec. 4-2-10. Exposing articles for sale.

No person shall expose any article or thing for sale within any of the parks of the city without the written consent of the park and recreation board.
(Code 1964, § 37-8; Code 1980, § 4-2-10)

Sec. 4-2-11. Use of threatening, etc., language.

No person shall use threatening, abusive, insulting or indecent language, calculated to provoke a breach of the peace in any of the parks of the city.
(Code 1964, § 37-9; Code 1980, § 4-2-11)

Sec. 4-2-12. Bathing and wading in certain facilities regulated.

No persons shall enter, bathe, swim, wade or otherwise immerse themselves in the waters of any lake, pool, fish pond or ornamental fountain upon any land owned, maintained or operated by the city except in a designated swimming pool maintained for the purpose of swimming and related activities, during the regular hours of operation by the park and recreation board of the city unless a permit for such is received from the park board.
(Code 1980, § 4-2-12; Ord. No. 77-184, 9-1-1977)

Sec. 4-2-13. Limit on access to city parks.

(a) *Authorized.* The park and recreation board of the city is hereby authorized and empowered to limit access, by resolution duly adopted, to any park of the city or any area thereof to certain hours of the day or night.

(b) *Exemptions.* The park and recreation board may, by resolution duly adopted, provide for exemption from such limitations for good cause shown.

(c) *Notice.* A copy of such resolution limiting access to any such parks shall be kept on file in the offices of the park and recreation board at Legion Field Stadium and the office of the city clerk for public inspection, and the director of the park and recreation board shall cause to be posted at a minimum of four conspicuous places around any such park a notice that access to such park is restricted to the hours of the day or night set forth in such resolution. Such notice shall state that it is given pursuant to the provisions of this section.

(d) *Unlawful to enter or remain in city park during restricted hours.* It shall be unlawful for any person to enter or remain within the confines

of any city park in violation of restrictions placed upon access to such park pursuant to this section.
(Code 1980, § 4-2-13; Ord. No. 82-137, §§ 1—4, 8-3-1982)

Sec. 4-2-14. Skating prohibited in certain parks.

It shall be unlawful for any person to skate on roller skates, skate board, or similar item within Linn Park and Kelly Ingram Park or upon any sidewalk abutting said Linn Park and Kelly Ingram Park.
(Code 1980, § 4-2-14; Ord. No. 96-137, 7-9-1996)

Secs. 4-2-15—4-2-20. Reserved.

ARTICLE B. LEGION FIELD TRAFFIC CONTROL DISTRICT

Sec. 4-2-21. Definitions.

For the purpose of this article, the following terms shall have the following meanings:

Event means any athletic contest, musical program, religious, political or instructional gathering or any other program or entertainment which is authorized to be presented or conducted within Legion Field Stadium by lease or license issued by the park and recreation board of the city.

Legion Field Traffic Control District means all public streets, alleys and sidewalks within the area bounded on the north by the north property line of 8th Avenue, West; on the east by the east property line of Center Street; on the south by the south property line of 3rd Avenue, West; and on the west by the west property line of Arkadelphia/Princeton Parkway.
(Code 1980, § 4-2-21; Ord. No. 80-161, § 1, 8-12-1980)

Sec. 4-2-22. Sale of personal property prohibited.

No person shall, during any day in which any event is taking place or is to take place within Legion Field Stadium, sell, offer for sale or expose for sale any goods or personal property of any character whatsoever within McLendon Park or upon any public streets, alleys or sidewalks within the Legion Field Traffic Control District; nor shall any person during such day station or place any stand, cart or vehicle for the transportation, sale or display of any such goods or personal property within McLendon Park or upon any public streets, alleys or sidewalks within the Legion Field Traffic Control District.
(Code 1980, § 4-2-22; Ord. No. 80-161, § 2, 8-12-1980)

Sec. 4-2-23. Posting of notice of date of event.

The director of the park and recreation board of the city shall post or cause to be posted at the main entrance to Legion Field Stadium on Graymont Avenue, no later than three days prior to any scheduled event, a notice that such event is to take place and the date thereof. Such notice shall state that it is given pursuant to the provisions of this article.
(Code 1980, § 4-2-23; Ord. No. 80-161, § 3, 8-12-1980)

Sec. 4-2-24. Exemptions.

(a) Any concessionaire licensed by the park and recreation board of the city to sell any goods or personal property within Legion Field Stadium shall be exempt from the provisions of this article to the extent that such concessionaire shall have the right to sell goods or property within Legion Field Stadium and within the confines of McLendon Park.

(b) Any person to whom a lease or license has been granted by the park and recreation board of the city for the use of Legion Field Stadium shall be exempt from the provisions of this article to the extent that such lessee or licensee shall have the right to sell programs or other printed matter pertaining to the event for which such lease or license has been granted on the day or days of such event within Legion Field Stadium and within the confines of McLendon Park.
(Code 1980, § 4-2-24; Ord. No. 80-161, § 4, 8-12-1980)

CHAPTER 3. SOLID WASTE COLLECTION AND DISPOSAL*

Sec. 4-3-1. Approval by majority of voters required for the conveyance, assignment, transfer, etc., of solid waste facilities property.

Any and all title, right of interest in all property, whether real, personal, mixed or any combination thereof, including any land, building, plant, system, facility, motorized or other vehicle, equipment, or other property, owned, leased, maintained, controlled, used, useful or capable of future use in connection with the treatment, utilization, recycling, processing, transporting or disposal of solid waste, including but not limited to sanitary waste, construction and demolition waste or inert materials, by the city of facilities for separating and preparing solid waste for the reuse, facilities for converting solid waste to energy or other facilities necessary, desirable or otherwise used or to be used, operated or maintained in connection therewith (hereinafter "solid waste facilities") shall not be conveyed, assigned, alienated, transferred, sold or leased to any person or entity nor shall the management of such solid waste facilities be transferred to any other person or entity unless and until such alienation, transfer, lease, sale or management agreement involving in any manner the city's solid waste facilities be approved by a majority of the electors of the city in a special or general election. Further, the city council ordains that the ordinance from which this section is derived shall not be rescinded, repealed, or amended without approval of a majority of the electors of the city in a special or general election.
(Ord. No. 01-125, 9-4-2001)

Sec. 4-3-1.1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Approved garbage or rubbish container means a watertight paper or plastic bag or garbage or rubbish can which when full does not exceed 50 pounds in weight.

Garbage or rubbish can means a watertight, rustproof metal or plastic receptacle or container of substantial construction, having a holding capacity of not less than 15 nor more than 30 gallons, and equipped with a tight-fitting lid or cover and with one or more handles or grips by which the receptacle or container may be conveniently lifted or moved.

Paper bag means a bag made especially for the containment of garbage having a wire, string or other method of keeping the bag tightly sealed at all times, except when garbage is being deposited.

Plastic bag means a polyethylene bag, having not less than 15 gallons nor more than 30 gallons in capacity, which is especially designed for the disposal of garbage and has a wire, string or other method to keep the bag tightly sealed at all times, except when garbage is being deposited.

Special garbage and rubbish container means a metal container of substantial construction and size suitable for transportation to and from garbage and rubbish disposal areas by specially equipped vehicles, and for the mechanical dumping of garbage and rubbish therefrom by such vehicles.

Yard rubbish means grass cuttings, small brush, tree trimmings, hedge clippings, leaves, pine straw and similar materials.
(Code 1964, § 24-1; Code 1980, § 4-3-1; Ord. No. 94-222, 10-4-1994)

Sec. 4-3-2. Use of containers for disposal of garbage required at dwellings, restaurants, etc.; maintenance of containers; deposit of rubbish in garbage containers prohibited.

(a) It shall be the duty of the owner of or the person in charge or control of any dwelling, hotel, restaurant, delicatessen or store where food for human consumption is prepared or kept for sale or any other place where garbage originates, to keep and maintain at or in such premises a sufficient number of approved garbage and rubbish containers or special garbage and rubbish containers to receive the garbage originating upon the premises, and it shall be unlawful for any person to cause or permit the disposal of garbage

*__State law references__—Authority of municipalities to regulate disposal of garbage and refuse, Code of Ala. 1975, § 11-47-135; Solid Waste Disposal Act, Code of Ala. 1975, § 22-27-1 et seq.; local solid waste management programs required, Code of Ala. 1975, § 22-27-47.

originating upon the premises otherwise than by depositing the same in the approved garbage containers or special garbage and rubbish containers for removal to a garbage and rubbish disposal area authorized by federal or state law and city ordinance and permitted by the state department of environmental management under the provisions of this chapter.

(b) All lids or covers of the garbage cans or special garbage and rubbish containers shall be kept tightly fitted thereon at all times other than when garbage or rubbish is being deposited therein and all paper or plastic bags used for garbage or rubbish shall at all times be tightly tied or otherwise closed or secured except when garbage or rubbish is being deposited therein and the garbage cans or special garbage and rubbish containers, paper bags and plastic bags shall at all times be so kept and maintained as to prevent the access of flies therein and the soiling of the ground, floor or structure upon which the garbage cans, containers or bags are placed.

(c) It shall be unlawful for any person to deposit or permit to be deposited in any garbage can, plastic bag or paper bag provided and intended for garbage or rubbish, any ashes, cinders, gravel, rock, sand or earth.
(Code 1964, § 24-2; Code 1980, § 4-3-2; Ord. No. 94-222, 10-4-1994)

Sec. 4-3-3. Use of rubbish can provided by person in charge of dwelling, etc.; deposit of garbage in rubbish can prohibited.

(a) It shall be the duty of the person in charge or control of a dwelling, hotel, restaurant, delicatessen, store or other place where ashes, cinders or rubbish originate or are created to keep and maintain in or upon those premises a sufficient number of rubbish cans for the reception of ashes, cinders, rubbish and other nonburnable waste substances originating or created upon the premises.

(b) It shall be unlawful for any person to deposit or permit to be deposited any garbage in a rubbish can provided for ashes, cinders, gravel, rock, sand, earth, mineral, rubbish or other nonburnable substances.
(Code 1964, § 24-3; Code 1980, § 4-3-3)

Sec. 4-3-4. Maximum number of garbage and rubbish cans permitted to be kept.

It shall be unlawful to place, keep or maintain upon any premises or in any public way adjacent thereto, except when permitted by law, more than four approved garbage and rubbish containers for a business, commercial or industrial use or for a single dwelling unit, nor more than ten approved garbage and rubbish containers for multiple dwelling units on such premises at any one time which contain garbage, rubbish, or trash to be called or picked up by the city.
(Code 1964, § 24-4; Code 1980, § 4-3-4; Ord. No. 94-222, 10-4-1994)

Sec. 4-3-4.1. Yard rubbish preparation, exceptions.

(a) Yard rubbish will be allowed to be placed for pickup provided it is enclosed in approved containers. There shall be no limitation on the number of approved containers placed for pickup which contain only yard rubbish. Tree branches and heavy brush which cannot be containerized shall not exceed four feet in length or eight inches in diameter and shall be neatly stacked; no further preparation shall be required. Bulky objects such as furniture or appliances shall be neatly stacked; no further preparation shall be required.

(b) The director of the department of public works may waive the requirements for preparation of yard rubbish during organized community cleanup programs or when excessive yard waste is a result of tornado or storm damage or other extraordinary natural occurrence and to provide collection service at the time of the waiver.
(Code 1980, § 4-3-4.1; Ord. No. 94-222, 10-4-1994)

Sec. 4-3-4.2. Yard rubbish placement for collection.

All yard rubbish to be removed by the city shall be placed either between the sidewalk and curb or in an accessible place approved by the director of the department of public works or his or her designee. It shall be unlawful for any person to place yard rubbish between the sidewalk and curb, in a right-of-way or in an alley which does not comply with the provisions of this chapter. The property owner or occupant shall be notified

in writing by or on behalf of the director of the department of public works by personal service or certified mail of any such violation and shall remove all yard rubbish and trash within seven days of said notice at his or her expense, or prepare said rubbish in accordance with this chapter. It shall be unlawful for the property owner or occupant to fail to abate the violation within the time set forth in the notice.
(Code 1980, § 4-3-4.2; Ord. No. 94-222, 10-4-1994)

Sec. 4-3-5. Special garbage and rubbish containers; placement; premises to be kept clean.

(a) Where any owner, lessee or agent acting for an owner or lessee or for any other person, or any person acting for himself or herself or others rents to others, leases or subleases to others, manages or otherwise provides for occupancy, dwelling units in any structure containing in excess of ten dwelling units or on any premises upon which is situated in excess of ten dwelling units, that owner, lessee or agent or other person, as the case may be, shall provide for the structure or premises a special garbage and rubbish container as defined in this chapter and provide for servicing thereof. It shall be unlawful for any owner, lessee, agent or other person to fail to provide a special garbage and rubbish container and service as hereinafter required. The term "premises," as used in this chapter, means a parcel or plot of land devoted to or available for use in whole or part by the occupants of dwelling units situated thereon, or for use and occupancy of business, commercial or industrial establishments or operations situated thereon. It shall be unlawful for any owner, lessee or agent to allow or permit any special garbage or rubbish container serving the premises to be placed on the sidewalk, between the sidewalk and curb, in the right-of-way or blocking an alley without having first been granted a right-of-way use agreement by the council. It shall be unlawful for any owner, lessee or agent to allow or permit any garbage or rubbish to accumulate in any special garbage and rubbish container serving dwelling units owned, managed or controlled by that owner, lessee or agent unless he or she has provided for the timely collection of garbage from the container so that the immediate area will be kept clean, sanitary and free of obnoxious odors and will not promote the propagation of flies and rodents.

(b) Any person conducting or operating a business, commercial or industrial establishment or operation upon any premises in the city and requiring in excess of four approved garbage and rubbish containers as permitted under section 4-3-4 shall provide for that premises a special garbage and rubbish container as defined in this chapter and provide for servicing thereof. It shall be unlawful for any such person to fail to provide a special garbage and rubbish container and service as hereinabove required. It shall be unlawful for any owner, lessee or agent to allow or permit any special garbage and rubbish container serving the premises to be placed on the sidewalk, between the sidewalk and curb, in the right-of-way or blocking an alley without having first been granted a right-of-way use agreement by the council. It shall be unlawful for any such person to allow or permit any garbage or rubbish to accumulate in any special garbage and rubbish container owned by any person or in his or her charge or control unless that person has provided for the timely collection of garbage from the container so that the immediate area will be clean, sanitary and free of obnoxious odors and will not promote the propagation of flies and rodents.

(c) Any owner or occupant of a dwelling, owner or occupant of a business, commercial or industrial establishment or operation, or any owner, lessee or agent acting for an owner or lessee or for any other person or any person acting for himself or herself or others who rents to others, leases or subleases to others, manages or otherwise provides for occupancy, dwelling units in any structure containing in excess of four dwelling units shall keep or cause to be kept free of garbage and rubbish the area immediately surrounding the garbage cans, rubbish cans, special garbage and rubbish containers, paper bags or plastic bags serving the premises. Should that area at any time become so littered, unclean or unsanitary and that person be so advised in writing by or on behalf of the director of the department of public works or the health officer of the county, that person shall within 24 hours thereafter place or

cause to be placed that area in a clean, sanitary and unlittered condition. It shall be unlawful for any such person to fail to clean or cause to be cleaned within the time hereinabove set out any such area. Each day such condition exists shall constitute a separate offense.
(Code 1964, § 24-5; Code 1980, § 4-3-5; Ord. No. 94-222, 10-4-1994)

Sec. 4-3-6. When cans and containers to be put out for collection and taken in after collection.

It shall be unlawful for any person in charge or control of any dwelling, hotel, restaurant, delicatessen or store where garbage, rubbish or any other material is placed in a garbage can, rubbish can or special garbage and rubbish container, paper bag or plastic bag, to permit any such can or container or bag to be placed out for collection in or on a sidewalk area earlier than 6:00 p.m. of the day before regular city garbage or trash collection service is to be rendered or to permit a can or container to remain in or on any sidewalk area after 6:00 p.m. on the day the service is rendered; provided that where the city garbage or trash collection is regularly made after 5:00 p.m. of one day and before 3:00 a.m. of the following day, that person shall not permit any can or container to remain in or on any sidewalk area between the hours of 8:00 a.m. and 5:00 p.m.
(Code 1964, § 24-6; Code 1980, § 4-3-6)

Sec. 4-3-7. Opening or disturbing garbage cans, etc.

It shall be unlawful for any person to open any garbage can or other container provided for in this chapter in which garbage or trash has been deposited for collection, or to search in any can or container for garbage or trash, or to remove from any can any garbage, trash or other thing; provided that the foregoing prohibitions shall not apply to the owner of the can or container or to any person employed by the city for the purpose of collecting garbage or trash.
(Code 1964, § 24-7; Code 1980, § 4-3-7)

Sec. 4-3-8. Limitations on burning of garbage.

It shall be unlawful for any person to burn or cause to be burned any garbage anywhere except upon property belonging to the city, and then only as permitted by the city.
(Code 1964, § 24-8; Code 1980, § 4-3-8)

Sec. 4-3-9. Disposal in authorized areas.

(a) It shall be unlawful for any person to dispose of garbage or refuse anywhere other than in approved garbage or rubbish containers for city or other pickup as provided herein, in special garbage and rubbish containers provided for use of the premises as provided herein or in disposal areas authorized by federal or state law and city ordinance and permitted by the state department of environmental management.

(b) It shall be unlawful for any person to dispose of garbage or refuse on property not their own without permission of such property owner, occupant or agent, provided that any such disposal shall be in authorized disposal areas as provided in subsection (a) of this section.
(Code 1964, § 24-9; Code 1980, § 4-3-9; Ord. No. 94-222, 10-4-1994)

Sec. 4-3-10. Use of city trash receptacles by places of business.

It shall be unlawful for any person operating any place of business in the city or for any employee, servant or agent of any such person to place or deposit garbage, trash, paper, rubbish or other waste material in any trash basket or waste receptacle maintained by the city upon a public street or sidewalk, when the garbage, trash, paper, rubbish or waste material accumulated in or came from that place of business.
(Code 1964, § 24-10; Code 1980, § 4-3-10)

Sec. 4-3-11. Breaking, baling, etc., of boxes, crates, etc.

It shall be unlawful for any person operating any place of business in the city or for any employee, servant or agent of any such person, to place or deposit in any street, sidewalk or alley any pasteboard or wooden boxes, crates or cartons

for the purpose of being collected by the city trash collection employees or for any other purpose, unless the same be first broken down and securely fastened into bales or bundles not exceeding 100 pounds in weight or four feet in any dimension.
(Code 1964, § 24-11; Code 1980, § 4-3-11)

Sec. 4-3-12. Landfill charges.

(a) The director of the department of public works is hereby authorized to determine and establish the charges for disposal of solid waste or materials in any landfill now or hereafter operated by the city based on studies and evaluations of present and projected landfill expenses and costs necessary to comply with mandated state and federal regulations.

(b) The director of the department of public works, upon making a determination, based on studies and evaluations, that a change in charges is necessary, shall notify the city council in writing detailing the proposed change in charges and the effective date of implementation of such charges. Such implementation date shall be a minimum of ten days subsequent to the date of said notice. Any councilmember objecting to any proposed charge shall notify the director of the department of public works and the city clerk in writing of the objection prior to the effective date of implementation. Any charge or charges objected to shall be set on a regular council agenda for consideration within 14 days of receipt of the objection. If no objection is made before the implementation date, the proposed charges shall take effect on that date.

(c) The director of the department of public works shall maintain a current copy of a schedule designating such rates on file in the office of the city clerk, in the office of the director of the department of public works, and prominently posted at each landfill.
(Code 1964, § 24-12; Code 1980, § 4-3-12; Ord. No. 89-264, 11-21-1989)

Sec. 4-3-13. Reserved.

Sec. 4-3-14. Additional charges for special handling.

In addition to the charges as set forth in the schedule of rates, charges may be made to cover additional costs to the city for any waste that requires special handling.
(Code 1964, § 24-14; Code 1980, § 4-3-14; Ord. No. 89-264, 11-21-1989)

Sec. 4-3-15. Reserved.

Sec. 4-3-16. Charges applicable to disposal of certain domestic garbage.

A fee not to exceed $5.00 per vehicle and $10.00 if said vehicle has a trailer attached thereto may be charged for the disposal of domestic solid waste, as provided in section 4-3-12, for disposal in any city-operated landfill of domestic garbage or rubbish that is not carried by a commercial collector or by any other persons, firms or corporations making any charge therefor.
(Code 1964, § 24-15; Code 1980, § 4-3-16; Ord. No. 10-92, § 4-3-16, 7-6-2010)

Sec. 4-3-17. Charges applicable to solid waste disposal by certain boards, organizations, etc.

No charges as provided for in section 4-3-12 shall be made for solid waste disposal in any city-operated landfill by the Birmingham Board of Education.
(Code 1964, § 24-16; Code 1980, § 4-3-17; Ord. No. 79-193, 11-13-1977; Ord. No. 10-92, § 4-3-17, 7-6-2010)

CHAPTER 4. SEWERS AND SEWAGE DISPOSAL*

ARTICLE A. GENERAL PROVISIONS

Sec. 4-4-1. Definitions; compliance with specifications.

The following words and terms, when used in this chapter, shall have the meanings respectively

*__State law reference__—Powers of municipalities with regard to sewers, drainage, etc., generally, Code of Ala. 1975, § 11-50-51 et seq.

ascribed to them by this section, unless the context clearly indicates otherwise, and shall meet the specifications herein prescribed:

Class A dry closet means a pit privy consisting of an excavation into soil over which, and as a part of the privy, is placed an appropriate cap or covering and seat riser and screened vent pipe, which shall conform to the design and specifications, rules and regulations of the state board of health, as set out in the bulletin approved April 14, 1948, entitled "Plans and Specifications for Approved Pit Privies, Concrete Construction," and shall be constructed in such a manner that all human excreta will, during the ordinary and proper use thereof, be deposited directly into such excavations. These privies shall be located, constructed and maintained in such a manner as to exclude surface drainage, flies, insects and animals.

Dwelling means a house or building or portion thereof which is occupied entirely or partially as the home, residence or sleeping place of one or more persons, either permanently or periodically.

Laundry wastes means liquid wastes from a washing machine, laundry sink or other receptacle used for laundering purposes.

Multiple dwelling means a dwelling occupied otherwise than as a private dwelling or two-family dwelling.

Private dwelling means a dwelling occupied by one family alone.

Sanitary means when used in connection with or alluding to a system, method or character of sewage disposal or to the type, capacity, construction, location or condition of a water closet, septic tank, privy or dry closet or other sewage waste appurtenances used for or in connection therewith, shall, in addition to its ordinary definition, mean only that system, method or character of sewage disposal and those water closets, septic tanks, privies or dry closets and all appliances and appurtenances thereto which are used for or in connection with those purposes as are in accordance with the regulations, general and uniform in nature, made and promulgated by the state board of health.

Septic tank means a watertight tank or receptacle used as a temporary reservoir for the purpose of receiving or depositing the sewage, contents or drainage from any of the following: a water closet, lavatory, shower, bathtub, washing machine, kitchen sink, grease trap, dishwasher or other household waste appurtenances.

Sewage wastes means the contents of a sewer or drain; refuse liquids or matter carried off by sewers or drains. When used in connection with this chapter, the term "sewage wastes" shall also include those wastes emptied or deposited on the surface of the ground by other means than by sewers or drains, such as laundry wastes, kitchen wastes, wastes resulting from the washing of garbage containers when done in connection with a commercial operation or other similar wastes, whether or not enumerated herein.

Toilet facility means a water closet room where, according to the provisions of this chapter, a water closet room is specified, or a Class A dry closet where, according to the provisions of this chapter, a Class A dry closet is required and permitted.

Two-family dwelling means a dwelling occupied by two families.

Water closet means a china, porcelain or metal receptacle, having glazed interior and exterior surfaces with superimposed hinged seat, normally containing a portion of water into which human excreta or waste will, in the course of proper and ordinary use thereof, fall or be deposited, and so constructed and arranged that any excreta or waste received therein will be flushed out by water under pressure connected therewith and carried by the flushing into a sanitary sewer or septic tank.

Water closet room means an adequately lighted, ventilated, flyproof and weatherproof room or compartment, being an integral part of and opening within the principal building or dwelling which the water closet therein is intended to serve.

(Code 1964, § 47-1; Code 1980, § 4-4-1)

Sec. 4-4-2. Classes of multiple dwellings.

Multiple dwellings for the purpose of this chapter are divided into two classes: Classes A and B:

(1) *Class A multiple dwelling.* Class A multiple dwellings shall be dwellings which are occupied more or less permanently for residence purposes by several families and in which the rooms are occupied as apartments, suites or units, including tenement houses; flat duplexes; apartment houses, buildings or hotels; bachelor apartments; studio apartments; and all other dwellings similarly occupied, whether specifically enumerated herein or not.

(2) *Class B multiple dwelling.* Class B multiple dwellings shall be dwellings occupied, as a rule, transiently as the more or less temporary abiding place of individuals, who are lodged with or without meals, and in which, as a rule, the rooms are occupied singly. This class includes hotels, lodginghouses, boardinghouses, furnished roominghouses, clubhouses, convents, asylums, hospitals, jails and all other dwellings similarly occupied, whether specifically enumerated herein or not.

(Code 1964, § 47-2; Code 1980, § 4-4-2)

Sec. 4-4-3. Method of disposal of sewage and laundry wastes.

All sewage waste and laundry waste shall be deposited directly into a sanitary sewer or other sanitary system approved by the health officer.
(Code 1964, § 47-3; Code 1980, § 4-4-3)

Sec. 4-4-4. Septic tanks.

It shall be unlawful for any person to construct, install or use any septic tank or other receptacle intended for the reception or storage of human waste, sewage waste or laundry waste that does not conform to the provisions of this chapter and to the rules and regulations of the state board of health and the rules and regulations of the county health department. Upon completion of the construction or installation of any septic tank, it shall be the duty of that person to notify the health officer that the work is completed, uncovered and ready for inspection. Upon receipt of the aforementioned notice, it shall be the duty of the health officer or his or her authorized representatives to make an inspection of the completed septic tank and appurtenances and approve it for use, provided the requirements of this chapter are fully met.
(Code 1964, § 47-4; Code 1980, § 4-4-4)

Sec. 4-4-5. Drain of closet improperly constructed or out of repair.

It shall be unlawful for the owner of or agent for any building or dwelling to permit any drain, conduit or sewer connection to remain connected with any public sewer if the work has been improperly done, and no person shall permit the use of any water closet connected with a sanitary sewer or septic tank without an adequate supply of water connected thereto for the purpose of properly flushing the closet. When any water closet, sanitary appurtenance or conduit draining into a sanitary sewer or septic tank becomes stopped, clogged or otherwise out of repair, it shall be the duty of the owner of or agent for the building or dwelling to promptly cause the necessary repairs required for compliance with the provisions herein.
(Code 1964, § 47-5; Code 1980, § 4-4-5)

Sec. 4-4-6. Connections in police jurisdiction.

Any person who, having his or her property, premises or building not within the corporate limits but within the police jurisdiction of the city, desires or is required by law to use or connect with any sanitary sewer or sewerage system serving the city, shall conform to the provisions of this Code and other ordinances and regulations of the city regulating the installation of sanitary plumbing, the securing of permits for, and the inspection of same, and shall abide by the sanitary sewerage regulations of the city and the regulations of the owner of the sanitary sewer system.
(Code 1964, § 47-6; Code 1980, § 4-4-6)

Sec. 4-4-7. Obstructing sewers—Prohibited.

It shall be unlawful to place or deposit in any manhole or other opening into a sanitary sewer,

or into a drain or gutter connected with a sanitary or storm sewer in the city, any rock, brick, garbage, rubbish or manure, or any mineral, metallic, wooden or other solid substance whatsoever, or to damage or obstruct, or cause the damaging or obstruction of any such sewer, drain or gutter; provided that this section shall not be construed to prohibit the installation or use of a properly installed garbage disposal unit.
(Code 1964, § 47-7; Code 1980, § 4-4-7)

Sec. 4-4-8. Same—Reward for information leading to conviction.

The mayor is hereby authorized and empowered to offer and pay for and in behalf of the city a reward of not exceeding $25.00 to any person who shall furnish evidence leading to the arrest and conviction of another person for obstructing the sewers of the city by placing in the manholes rocks, bricks or other material of like kind; provided that this section shall not apply to prosecutions or convictions when the defendant appeals from the conviction in the municipal court or juvenile court to the circuit court and is there acquitted.
(Code 1964, § 47-8; Code 1980, § 4-4-8)

Sec. 4-4-9. Removing or receiving manhole or storm sewer inlet covers—Prohibited.

It shall be unlawful for any person to remove, take or carry away or to conceal, or to buy or receive from any person other than the city any manhole cover or storm sewer inlet cover belonging to the city.
(Code 1964, § 47-9; Code 1980, § 4-4-9)

Sec. 4-4-10. Same—Reward for information leading to conviction.

The mayor is hereby authorized and empowered to offer and pay for and in behalf of the city a reward of not exceeding $50.00 to any person who shall furnish evidence leading to the arrest and conviction of another person for stealing, removing with intent to steal or with intent to destroy, or for purchasing, receiving, concealing or converting any manhole cover belonging to the city, or any storm sewer inlet cover; provided that the provisions of this section shall not apply to prosecutions or convictions when the defendant appeals from the conviction in the municipal court or juvenile court to the circuit court and is there acquitted.
(Code 1964, § 47-10; Code 1980, § 4-4-10)

Sec. 4-4-11. Authority to prohibit occupancy or use of nonconforming buildings.

The health officer is hereby authorized to post on any building which does not meet the requirements of this chapter, prohibiting the occupancy or use of that building until the requirements of this chapter have been met. It shall thereafter be unlawful for any person to occupy or use that building until a time as that building shall comply with the requirements of this chapter.
(Code 1964, § 47-11; Code 1980, § 4-4-11)

Secs. 4-4-12—4-4-20. Reserved.

ARTICLE B. TOILET FACILITIES

Division 1. Generally

Sec. 4-4-21. Number required.

It shall be the duty of the owner of, or agent for, every dwelling or building of a class described in this chapter, to keep installed therein as specified in this article, toilet facilities in number not less than that specified for the designation of the class to which the dwelling or building belongs, as required by the city plumbing code.
(Code 1964, § 47-12; Code 1980, § 4-4-21)

Sec. 4-4-22. Cleanliness.

It shall be unlawful for the owner or person in charge or control of any toilet facility located within the city to allow the use of any toilet facility which is unsanitary or in a condition of uncleanliness that foul and offensive odors arise therefrom. It shall be the duty of the owner or person in charge or control of every toilet facility to keep it in a clean and sanitary condition so that foul and offensive odors shall not be in evidence at any time.
(Code 1964, § 47-13; Code 1980, § 4-4-22)

Sec. 4-4-23. Rubbish or waste in toilets.

It shall be unlawful for any person to deposit, discard or throw any rubbish, article or object into any water closet, or any paper other than the type commonly known as toilet paper or tissue.
(Code 1964, § 47-14; Code 1980, § 4-4-23)

Sec. 4-4-24. Use of premises other than closets forbidden.

It shall be unlawful for any person in the city to dispose of or to permit the disposal of body waste on or about public or private property or premises, except in a toilet facility as specified in this article.
(Code 1964, § 47-15; Code 1980, § 4-4-24)

Secs. 4-4-25—4-4-30. Reserved.

Division 2. Water Closets

Sec. 4-4-31. When required.

When any portion of any lot or parcel of land, upon which is situated any dwelling, building or premises occupied as a dwelling or as a place of employment or congregation of any persons, is, and has been for a period of 30 days, situated within a distance of 100 feet of a sanitary sewer and public water supply main or pipe existing within any public street, alley or right-of-way which abuts or adjoins the lot or parcel of land upon which such dwelling, building or premises exists, it shall be the duty of the owner of or the agent for that dwelling, building or premises to provide therein, or attach directly thereto and opening therein, the number of water closet rooms as are defined and specified in this article, and its shall be unlawful for any person to let, rent, lease, use or occupy any such dwelling, building or premises as a dwelling or as a place of employment or congregation unless the requirements herein are satisfied. It shall also be unlawful for any person to maintain or use, or cause or allow to be maintained or used, upon any such lot or parcel any receptacle or place for deposit of human wastes other than a water closet connected with a sanitary sewer.
(Code 1964, § 47-16; Code 1980, § 4-4-31)

Sec. 4-4-32. Use of defective closets.

It shall be unlawful for any person to use any water closet which does not comply with the specifications of this article, or which, or the equipment of which, is in such defective condition that excreta deposited therein cannot be promptly and completely flushed out with water connected therewith so as to reach without leakage, the disposal sewer or septic tank to which the water closet is connected. It shall be the duty of the owner of or agent for any structure to promptly cause necessary repairs to any defective water closet located therein, and it shall be unlawful for any person in charge or control of any such water closet to use or permit the use thereof until the necessary repairs have been completed.
(Code 1964, § 47-17; Code 1980, § 4-4-32)

Sec. 4-4-33. Water supply.

When the occupants of apartments, suites or units of two-family and multiple dwellings are not independently connected to the pipes or mains of the approved public water supply, it shall be unlawful for any person, either owner or agent, to cause or permit the discontinuance of the supply of water to any water closet located therein.
(Code 1964, § 47-18; Code 1980, § 4-4-33)

Secs. 4-4-34—4-4-40. Reserved.

Division 3. Class A Dry Closets

Sec. 4-4-41. When permitted.

When the nearest portion of any lot or parcel of land upon which is situated any dwelling, building or premises occupied as a dwelling or place of employment or congregation of persons is situated more than 100 feet from a sanitary sewer, as stipulated in section 4-4-31, or is not available to the pipes or mains of an approved public water supply, it shall be the duty of the owner of, or agent for, the dwelling, building or premises to provide Class A dry closets in such number as are required in section 4-4-21, and it shall be unlawful for any person to let, rent, lease, use or occupy any such dwelling, building or premises for that purpose while the requirements herein remain unsatisfied. It shall be unlawful for any person to

construct, install, maintain or use any dry closet within the city except as specified and permitted within this article.
(Code 1964, § 47-19; Code 1980, § 4-4-41)

Sec. 4-4-42. Replacement when filled.

When a pit or excavation, used as or in connection with a Class A dry closet, shall become filled with excreta or other material to within 18 inches of the level of the surrounding ground surface, the owner or agent shall forthwith construct a new pit or excavation of adequate dimensions in another location, which shall be constructed and equipped in accordance with the provisions of this article.
(Code 1964, § 47-20; Code 1980, § 4-4-42)

Sec. 4-4-43. Covering pit when filled.

When a pit or excavation, used as part of a Class A dry closet, is abandoned after becoming filled or partly filled with excreta or other material, it shall be the duty of the owner or his or her agent to cause the contents thereof to be covered with earth to a depth of not less than 18 inches, and in every case such pit or excavation shall be filled up to a level with the surrounding ground surface and maintained in that manner.
(Code 1964, § 47-21; Code 1980, § 4-4-43)

CHAPTER 5. STREETS AND SIDEWALKS*

ARTICLE A. GENERAL PROVISIONS

Sec. 4-5-1. Removing marks indicating grade of street.

No person shall remove, cover or disturb any post, stake or other mark indicating the lines or grade of any street.
(Code 1964, § 48-1; Code 1980, § 4-5-1)

Sec. 4-5-2. Defacing pavements or curbstones.

It shall be unlawful for any person to write, paint or print any letters, figures, signs, devices, pictures or marks on any of the pavements or curbstones of the city; provided that this section shall not apply to traffic regulatory markings required or authorized by this Code or other city ordinance.
(Code 1964, § 48-2; Code 1980, § 4-5-2)

Sec. 4-5-3. Sweeping trash into streets.

It shall be unlawful for any person to sweep or throw trash, dirt, leaves, twigs, glass, debris or other similar substances into any gutter or street within the city.
(Code 1964, § 48-3; Code 1980, § 4-5-3)

Sec. 4-5-4. Throwing litter upon public or private ways or property.

(a) It shall be unlawful for any person to throw or cause or allow to be thrown or placed on any sidewalk, street, alley or driveway, or any public property, or on private property within 30 feet of a sidewalk, or street in the city, any paper, litter, rubbish, debris, filthy or odoriferous objects, substance or other trash of any kind or nature, including but not limited to any bottles, glassware or glass of any description, whether broken or not, any barrel, hoop or stave, any barbed wire or other wire, any sheet or bar iron of any kind or description, any tacks, metal, stone, trash, paper, cinders, planks, shingles and any hazardous obstruction tending to injure any person, animal, vehicle or tire using any sidewalk, street, alley, driveway or property, except that such may be placed in a proper receptacle or near a receptacle for immediate pickup.

(b) Any person found guilty of violating this section shall be fined not less than $25.00 nor more than $100.00.
(Code 1964, § 48-4; Code 1980, § 4-5-4)

Sec. 4-5-5. Dropping trash, etc., from vehicles.

No person hauling earth, trash, slag, concrete, gravel, coke, coal or other substance in any vehicle along or over any of the streets of the city shall allow that earth, trash, slag, concrete, gravel or other substance to escape from any vehicle and be deposited upon any of the streets.
(Code 1964, § 48-5; Code 1980, § 4-5-5)

*__State law reference__—Authority of municipalities to regulate streets and sidewalks, Code of Ala. 1975, § 11-49-1 et seq.

Sec. 4-5-6. Tracking dirt, etc., from vehicles onto paved streets.

(a) It shall be unlawful for the owner, driver or operator of any car, truck, machine, or other vehicle which tracks or deposits dirt, mud, vegetation or similar substances onto any paved street in the city to fail to immediately commence removal of any such substance and complete such removal within two hours after such substance was tracked or deposited thereon.

(b) It shall be unlawful for the owner, driver or operator of any car, truck, machine, or other vehicle which tracks or deposits dirt, mud, vegetation or similar substances onto any paved street in the city to fail to place warning signs for each direction of vehicular traffic on the street upon which such substance is deposited giving warning to drivers of a hazardous condition ahead, such signs to be placed at intervals, as prescribed by the Manual on Uniform Traffic Control Devices, latest edition, before the area of the street upon which such substance has been tracked or deposited and such signs to be illuminated if placed or maintained between sunset and sunrise.

(c) The city traffic engineer shall have the power to prescribe such other and different specifications for size, visibility, and location of warning signs as, in his or her judgment, may be necessary due to the physical nature of a roadway or the speed of vehicular traffic thereon. It shall be unlawful for the owner, driver or operator of any car, truck, machine, or other vehicle which tracks or deposits dirt, mud, vegetation or similar substances onto any paved street in the city to fail to comply with any such order after having received actual notice thereof.
(Code 1964, § 48-6; Code 1980, § 4-5-6; Ord. 79-113, 7-31-1979)

Sec. 4-5-7. Placing damaging substances on pavements.

It shall be unlawful for any person to mix or place on the bare surface of the pavement of any street, sidewalk or other public property, any hydraulic cement, Portland cement, bituminous cement or other substance which may permanently deface, stain or damage the same.
(Code 1964, § 48-7; Code 1980, § 4-5-7)

Sec. 4-5-8. Washing of vehicles or animals.

No person shall wash or cause to be washed any vehicle or any animal upon any street or sidewalk.
(Code 1964, § 48-8; Code 1980, § 4-5-8)

Sec. 4-5-9. Sidewalks to be kept clean by abutting owner.

It shall be unlawful for the person in charge or control of any lot or parcel of land, or for the occupant or person in charge or control of the ground floor or story of any store or other building in the city, which abuts on any paved public sidewalk of the city, to cause, permit or suffer any garbage, refuse or filth from those premises to gather, collect or remain upon that sidewalk, so that the sidewalk shall become unclean, offensive, obstructed or obscured, either in whole or in part.
(Code 1964, § 48-9; Code 1980, § 4-5-9)

Sec. 4-5-10. Snow and ice on sidewalks.

It shall be the duty of every occupant or person in possession, charge or control of the ground floor or lower story of any house, building or structure, whether the same is used for dwelling, business or other purposes, situated on, abutting or facing any sidewalk which has been provided with curbing or which has been paved, macadamized or otherwise improved, to keep the sidewalk so abutting or bordering the premises, whether in front or on the side thereof, free from snow, sleet and ice, so as to afford a safe and convenient passage for pedestrians using the sidewalks. Where the sidewalk abutting the premises has been paved with brick, asphalt, concrete, natural or artificial stone or any substitute therefor, the entire paved portion of the sidewalk shall be kept cleaned and free from snow, sleet and ice.
(Code 1964, § 48-10; Code 1980, § 4-5-10)

Sec. 4-5-11. Defective or unsafe conditions—Sidewalks or grass plots.

It shall be unlawful for any property owner to allow the sidewalk paving, portions of private driveways built within the public right-of-way, and any sidewalk openings, as defined in section 4-5-90, located in such paved sidewalks in front, or along the side of his or her property to remain

in a broken, worn, damaged or defective condition, or to permit, suffer, cause or allow any obstruction to remain thereon, or on any grass plot adjacent to that sidewalk, or to permit that sidewalk, driveway, sidewalk opening, streetscape or grass plot to remain in an unsafe or dangerous condition to the traveling public or pedestrians using the same in the ordinary manner of travel thereon.
(Code 1964, § 48-11; Code 1980, § 4-5-11; Ord. No. 98-200, § I(4-5-11), 12-22-1998)

State law reference—Municipal authority to regulate cellar openings, stairways, and signs on sidewalks, as well as the construction and repair of sidewalks, Code of Ala. 1975, § 11-49-2.

Sec. 4-5-12. Same—Notice to abutting owner.

(a) It shall be the duty of the city engineer to give notice of any defective or dangerous condition of any sidewalk, sidewalk opening or vault as these terms are defined in section 4-5-90, driveway, or grass plot to the owner of the property abutting upon that portion of such sidewalk, sidewalk opening, vault or grass plot in which the dangerous, unsafe or defective condition exists, which notice shall also require the property owner to repair or replace the same within ten days of the date of the notice, and it shall thereupon be the duty of the property owner to make any repairs within that time.

(b) If any abutting property owner constructs or uses or permits, allows, suffers or causes the construction or use of any sidewalk opening or vault, as these terms are defined in section 4-5-90, or sidewalk cut for a driveway without first having obtained a permit for such use as hereinafter provided, the city engineer shall notify the person in writing of such illegal structure or use in the city right-of-way and shall demand the removal of the illegal structure and restoration of the public way to its former condition, within ten days after the date of the notice. It shall be the duty of the property owner to immediately take all necessary measures to make the area safe and additionally make any repairs within that time unless such time is extended in writing by the city engineer.
(Code 1964, § 48-12; Code 1980, § 4-5-12; Ord. No. 98-200, § I(4-5-12), 12-22-1998)

Sec. 4-5-13. Same—Failure to repair.

In the event the abutting property owner fails to make repairs or remove the obstructions or illegal structures from the right-of-way as required in section 4-5-12 within ten days of the date of the notice or any written extension, the city engineer shall have the authority to proceed to make the repairs or remove such structure, close the space therein and restore the public way at the expense of the property owner and to report the same to the council, and the council shall thereupon assess the cost of making repairs to the property owner. The city shall have a lien for the cost as provided by Code of Ala. 1975, § 11-49-2.
(Code 1964, § 48-13; Code 1980, § 4-5-13; Ord. No. 98-200, § I(4-5-13), 12-22-1998)

Sec. 4-5-14. Temporary closing of streets.

The council may, whenever it deems necessary for the protection of health, or for the safety of persons or property, temporarily close any public way or portion thereof against entry or passage of persons and vehicles thereon, and, in case of an emergency of fire or other calamity, the chief of police or chief of the fire department may temporarily close any public way or portion thereof against any entry or passage when, in his or her judgment, the closure is necessary for the safety of persons or property, and, in case any public way or portion thereof is under construction or repair or be dangerous or in need or repair, the city engineer may temporarily close the same against the entry or passage when, in his or her judgment, the closure is necessary for the safety of persons or property. The authority herein authorized to so close may cause any such closure authorized by him or her to be evidenced by barricades, lights, signs or other warning devices or structures. It shall be unlawful for any person to enter or pass or to cause or allow any vehicle to enter or pass upon any such closed area of public way when warned of the closure either verbally or by means of barricade, light, sign or other warning device or structure, and it shall also be unlawful for any person to drive a vehicle upon or against, or to knock down, tamper with or remove, any such barricade, light, sign or other warning device or structure.
(Code 1964, § 48-14; Code 1980, § 4-5-14)

State law reference—Obedience to traffic control devices, Code of Ala. 1975, §§ 32-1-1.1, 32-5A-31.

Sec. 4-5-15. Gas and water boxes, etc.

No area within the roadway of any street and no area within the sidewalk of any street more than 12 inches from the curb or curbline of that street shall be maintained or used by any public utility for or as an opening to provide access to any water or gas box or cutoff or meter, and every opening made or maintained by any public utility in any sidewalk shall be kept closed at all times by such public utility and its successors by means of a suitable covering laid flush with the surrounding surface in such manner and with such protection as that neither that covering nor that opening shall constitute or cause a defect in the sidewalk.
(Code 1964, § 48-15; Code 1980, § 4-5-15)

Secs. 4-5-16—4-5-18. Reserved.

Sec. 4-5-19. Barricades, lights, etc., near excavations on public property.

(a) For every excavation made on public property, proper safeguards shall be provided against injury to the public. Barricades shall be provided five feet from any excavations, and shall completely encircle all open excavations or trenches. All barricades, as required by this section, shall have at least one sign placed thereon in a conspicuous manner, indicating the name of the person causing the excavation.

(b) When approved by the city engineer, steel plates of sufficient strength may be used to cover excavations to prevent blocking of streets.

(c) From sunup to sundown, there shall be placed, at a distance of not less than 100 feet, sufficient numbers of caution flags to warn the public of dangerous excavations. From sunset to sunrise, there shall be placed, at a distance of not less than 100 feet, sufficient caution lights to indicate the length of the excavation in the public thoroughfare and to warn the public of dangerous excavation. In addition to the above, there shall be placed on or by the barricades sufficient caution lights to indicate the point of excavation and size.
(Code 1980, § 4-5-19)

Sec. 4-5-20. Removing or injuring lights or danger signals.

It shall be unlawful for any person to destroy, remove, injure or interfere with any caution lantern, lamp or other danger signal that may be in use in the city.
(Code 1964, § 48-20; Code 1980, § 4-5-20)

Sec. 4-5-21. Dangerous excavations, openings or obstructions.

(a) No person shall leave any excavation in any street or sidewalk, or any material while building or repairing any house or other structure, in such a condition as to endanger persons passing along the street or sidewalk.

(b) No person shall leave open or cause to be left open any well, cistern, cellar or vault door, grating or excavation in or near any street or sidewalk so as to endanger persons walking along the street or sidewalk.
(Code 1964, § 48-21; Code 1980, § 4-5-21)

Sec. 4-5-22. Signs on obstructions and at excavations.

It shall be the duty of any person making any opening in any public street in the city, laying or repairing any pavement or sewers in or under any street or in any manner obstructing any portion of that street to keep a sign at or on the work or obstruction, which sign shall state the name of the person doing the work or obstructing that portion of the street, with the further statement that the work or obstruction is being done by that person. The sign shall be placed and kept and shall be large and plain enough to be easily read at a distance of 30 feet.
(Code 1964, § 48-22; Code 1980, § 4-5-22)

Sec. 4-5-23. Obstruction generally of free passage on streets and sidewalks.

No person shall obstruct any street or sidewalk or part thereof in any manner not permitted by this Code or other ordinance of the city with any animal or vehicle or with boxes or barrels, glass, trash, rubbish or display of wares, merchandise

or sidewalk signs or other like things, so as to obstruct the free passage of persons on the streets or sidewalks or any part thereof.
(Code 1964, § 48-23; Code 1980, § 4-5-23)

Sec. 4-5-24. Use of stages, improvised platforms, etc., by vendors, speakers, etc.

It shall be unlawful for any vendor of patent medicines or compounds sold as medicine or salesman or crier of any goods of whatsoever description, or for any dispenser of any goods, wares or merchandise, or for any lecturer, preacher, slight-of-hand performer, showman, teacher or professor, doctor, healer or alleged healer of the sick, blind, halt or disabled to occupy or speak upon any stand or upon any chair, vehicle, stage or any improvised platform on the sidewalks or streets of the city.
(Code 1964, § 48-24; Code 1980, § 4-5-24)

Sec. 4-5-25. Erection of stands, etc.

It shall be unlawful for any person to erect, place, project or maintain in, over or upon any street, sidewalk, park or other public place, any stand for the sale of fruit, flowers, candy, jewelry or trinkets, umbrellas or other commodity, or any bootblack stand, bulletin board, trough for feeding or watering horses, or any table, box, bin, rack, showcase, platform or other arrangement or structure for the display of goods, wares or merchandise or for the pursuit of any occupation whatsoever, whether of the same nature as the structures or arrangements herein specifically mentioned or not; provided that a specific permit may be granted by the park and recreation board of the city for the erection of these stands in the public parks of the city at those locations as not to impede the use of the driveways and walkways of the park or to render the same dangerous to the public.
(Code 1964, § 48-25; Code 1980, § 4-5-25)

Sec. 4-5-26. Erection of steps on sidewalks.

No person shall erect any steps upon any sidewalk, except by permission of the council.
(Code 1964, § 48-26; Code 1980, § 4-5-26)

Sec. 4-5-27. Fences encroaching on public rights-of-way.

No person, or owner or occupant of any property shall erect or maintain any fence in the city in such a manner that the same will encroach upon a sidewalk, street or alley, or other public right-of-way.
(Code 1980, § 4-5-27)

Sec. 4-5-28. Gates and doors opening over public ways.

No person shall maintain any gate or door which, when opened, projects into or upon any roadway, sidewalk or alley unless they shall have first obtained a vacation of the public right-of-way or a right-of-way use agreement for use of the public right-of-way.
(Code 1964, § 48-28; Code 1980, § 4-5-28; Ord. No. 88-95, 7-5-1988)

Sec. 4-5-29. Sorting, packing, etc., on street, etc.

It shall be unlawful for any person to pick, sort, pack or unpack fruit, flowers, vegetables, rags, paper, old iron, bottles or junk upon any street, sidewalk, park or other public place.
(Code 1964, § 48-29; Code 1980, § 4-5-29)

Sec. 4-5-30. Height of things above sidewalk.

No person shall cause anything to hang over any sidewalk at less than seven feet from the ground.
(Code 1964, § 48-30; Code 1980, § 4-5-30)

Sec. 4-5-31. Banners, signs, etc., suspended over streets.

It shall be unlawful for any person to suspend any flag, banner, streamer, cloth, placard, notice, poster, sign, advertisement, festoon or other matter or device from that portion of any wire, cable or other facility which may now or hereafter exist above the roadway of any street of the city; provided that nothing contained in this section shall be construed to prohibit any person operating a public utility enterprise from suspending, from any wire or cable owned or controlled by that

person, any street lamp or other device necessary or convenient to the performance of his or her duties to the public.
(Code 1964, § 48-31; Code 1980, § 4-5-31)

Sec. 4-5-32. Obstructing gutters or ditches.

It shall be unlawful for any person to obstruct or cause to be obstructed the free flow of water in, over, along, upon or through any gutter or drainageway or ditch in any street or other public way or easement in the city, or to erect or maintain across any such gutter or drainageway or ditch any bridge, platform or other structure which so obstructs or tends to so obstruct or which accumulates or tends to accumulate trash, leaves, dirt or other substances to form such obstruction.
(Code 1964, § 48-32; Code 1980, § 4-5-32)

Sec. 4-5-33. Removing obstructions from parkways.

The owner of the abutting property as well as the person in possession thereof, whether as agent, tenant or owner, shall be under the duty of removing any obstructions from the city's parkways or grass plots.
(Code 1980, § 4-5-33)

Sec. 4-5-34. Rollerskating on sidewalks.

It shall be unlawful for any person to skate on rollerskates on any sidewalk in the loop area of the city or on any paved sidewalk abutting any church in the city while services are being held therein, or on any sidewalk in a zone indicated by official signs as a quiet or sick zone.
(Code 1964, § 48-35; Code 1980, § 4-5-34)

Sec. 4-5-35. Driving over or upon sidewalks; permits for driving over sidewalks.

(a) It shall be unlawful for any person to drive any vehicle, other than a bicycle or wheelchair whether the wheelchair is motorized or not, along, across or upon any curb or paved or unpaved sidewalk; provided that the foregoing prohibitions shall not apply to the driving of vehicles across any unpaved and uncurbed sidewalk, nor to the driving of vehicles cross any paved sidewalk upon a properly authorized and constructed driveway across such paved sidewalk, nor to the driving of vehicles across any curbed or paved or curbed and paved sidewalk in accordance with a written permit first issued by the city engineer.

(b) Any person may apply to the city engineer for a written permit to authorize him or her or another to drive a vehicle across any curb or paved sidewalk or either for the purpose of entry into abutting premises. If the city engineer shall be reasonably satisfied that the applicant is financially responsible and that entry into such premises cannot be otherwise reasonably and conveniently gained by such vehicle, he or she may issue a permit for the crossing of such curb or paved sidewalk or both by such vehicle and shall therein stipulate the place at which such crossing may be made, the means and method by which curb or paved sidewalk or both shall be protected against damage from such crossing and the time within which such crossing may be made and such protection removed. It shall be unlawful for any person to drive any such vehicle across such sidewalk under authority of such permit, except in conformity with the stipulation thereof. It shall also be unlawful for the permit holder to permit the stipulated protection to remain longer than as allowed by such permit or to fail to promptly pay upon demand any damage to curb or paved sidewalk resulting from the crossing.

(c) The foregoing prohibitions shall not apply to the driving of vehicles across any curbed or paved or curbed and paved sidewalk in connection with the transportation of material to be used in construction work upon premises abutting any street, curb or sidewalk under a then existing, valid building permit issued by the building official of the city. If any street, curb or any sidewalk is damaged by any vehicle transporting material to abutting premises, as hereinabove allowed, the owner of those premises, the person obtaining the building permit and the person transporting or causing the transportation of the material shall all be responsible for repairing the street, curb or sidewalk and no final inspection shall be made in connection with the construction work until the damaged street, curb or sidewalk has been repaired to the satisfaction of the city engineer.

(d) Nothing in this section shall be construed as authorizing any person to create a street or sidewalk defect, nor as releasing any person from any liability to any one injured by reason of a street or sidewalk defect created by any person or for which any person is responsible.
(Code 1964, § 48-36; Code 1980, § 4-5-35)

Sec. 4-5-36. Installation of utilities, etc., prior to paving of streets.

(a) Whenever the council determines to pave or repave any street or alley or any portion of the vehicular way of any street or alley by a public improvement ordinance assessing abutting property owners for any improvement or by any other means or procedure and whenever the state, acting through any of its duly constituted agencies either solely or in conjunction with the city or in conjunction with the Federal Highway Administration or other federal agency, proposes to pave or repave any street or alley in the city, and whenever any private person proposes to do any such work in connection with the development of any subdivision in the city, the city clerk, upon receipt of appropriate information and advice from the city engineer, shall mail written notice thereof by certified mail, postage prepaid, to the person last assessing the abutting property for city ad valorem taxation, at his or her last known address, and to each public utility maintaining any sewers, mains, conduits or other utility installations in or under the roadway or alley, informing all such persons and utilities that no permit for any opening, cut or excavation in the proposed paving or repaving will be issued for a period of five years after the completion date of the improvements, except under conditions set forth in this chapter, and that each such public utility is required by law to install all underground sewers, mains, conduits or other utility installations and to make repairs thereto then necessary or contemplated to be necessary within five years, within 30 days from the date of the notice, and that each such abutting property owner, within the same period, is required either to install all necessary service lines connecting with any mains, sewers, conduits or other utility installations located in the street or alley or to stub out or extend any connections to the property line, failing which the right to make any such installation, except as otherwise provided in this chapter, shall be forfeited for a period of five years after the completion date of the new paving. Copies of the notice shall also be transmitted to the water works board of the city.

(b) Within 30 days after the date of any notice mailed as provided in this section, it shall be the duty of each public utility to which the city clerk has mailed the notice to install all sewers, mains, conduits and other necessary utility installations and to make all needed repairs thereto then necessary or contemplated to be necessary within five years. In the event any abutting property owner to whom a notice is sent pursuant to this section shall fail, within 30 days after the date of the notice, to install all necessary service lines connecting with any mains, sewers, conduits or other utility installations or to stub out or extend any connections to the property lines, all rights of the owner or of his or her successors in title to make any such installation, except as otherwise provided in this chapter shall be forfeited for a period of five years after date of completion of the new paving.
(Code 1964, § 48-37; Code 1980, § 4-5-36)

Sec. 4-5-37. Adoption of state standards for accommodating utilities on highway rights-of-way.

The council of the city hereby formerly adopts the Alabama Department of Transportation Utilities Manual as standards (as written and future amendments thereto when the city is notified of any amendments) for use by the city for accommodating utilities on roads and streets under the jurisdiction of the city, on those roads and streets which have or will involve the expenditure of state or federal highway funds.
(Code 1964, § 48-37.1; Code 1980, § 4-5-37)

Sec. 4-5-38. Construction of wheelchair ramps in curbs adjacent to crosswalks.

(a) Any person, firm or corporation who constructs or reconstructs any street or alley curb which abuts on or is within five feet of any crosswalk within the city shall build a wheelchair

ramp in the curb as near as possible to any such crosswalk; provided, however, that whenever the city engineer may determine that the construction of a wheelchair ramp at any certain location is impractical due to the topography or unusual conditions, he or she may issue a permit allowing curb construction at any location without a wheelchair ramp. All wheelchair ramps required hereby shall be built according to the requirements of the Americans with Disabilities Act Accessibility Guidelines, 36 CFR 1191 and appendices, as the same may be amended from time to time, and in accordance with standard specifications and designs therefor kept on file for public inspection in the office of the city engineer.

(b) Anything herein to the contrary notwithstanding, the provisions of article F of this chapter shall apply to the construction of any wheelchair ramp hereby required. For the purpose of determining when wheelchair ramps shall be required hereunder, the term "crosswalk" means the portion of any roadway clearly and officially marked by the city traffic engineer as a crosswalk or in the absence of an officially marked crosswalk, that portion of any roadway which the traffic engineer may find, determine or designate as necessary for the safety and convenience of pedestrian traffic.
(Code 1964, § 48-37.2; Code 1980, § 4-5-38; Ord. No. 79-195, 11-20-1979)

Sec. 4-5-39. Basketball goals on public rights-of-way prohibited.

(a) Basketball goals and other like structures or devices located upon any city street, sidewalk, grass plot, parkway or other public right-of-way are hereby declared to be health and safety hazards and public nuisances and shall be removed by the owner or occupant of the abutting property within five days of receiving notice from the office of the city engineer.

(b) In the event the owner or occupant fails to remove the basketball goal as required in subsection (a) of this section, it shall be the duty of the city engineer to remove the same as provided in section 4-5-13.
(Code 1980, § 4-5-39; Ord. No. 84-12, §§ 1, 2, 1-24-1984)

Sec. 4-5-40. Damage to city streets during construction; restoration required.

(a) For the purpose of this section the term "street" includes sidewalks, curbs, gutters, and public improvements such as sewers.

(b) Whenever the streets of the city are damaged in the course of or as a consequence of construction activities, such damage must be repaired by the contractor, developer, or other party causing said damage.

(c) If, upon demand by the city engineer, the director of buildings and inspection, or the purchasing agent, any such contractor, developer, or other party fails in 15 days thereafter to repair any such damage, the city may perform or have performed the repairs and demand reimbursement for the cost thereof and, further, refuse to thereafter issue permits to the defaulter so long as any such reimbursement to the city remains unpaid.

(d) In the event any such street damage is caused by a contractor or other party in performance of a contract with the city, the city engineer or purchasing agent, as the case may be, shall not approve or cause to have issued to any such contractor or other party any check for monies otherwise due on account of the contract until such contractor or other party shall have repaired such street damage. The remedial relief herein provided the city shall, however, in no wise detract from or otherwise diminish the remedies afforded the city in subsection (c) of this section in the event the contract monies withheld pursuant to this section are insufficient to pay for any such street damage repairs.
(Code 1980, § 4-5-40; Ord. No. 89-159, 7-18-1989)

Secs. 4-5-41—4-5-50. Reserved.

ARTICLE B. NAMING OF STREETS

Sec. 4-5-51. Official map; designation of names.

That the streets and other public ways shown or depicted in digital data kept by the geographic information systems division of the department of

planning, engineering and permits shall bear the names and designations within the data for the streets and other public ways.
(Code 1964, § 48-38; Code 1980, § 4-5-51; Ord. No. 78-18, § 1, 1-23-1978)

Sec. 4-5-52. Availability for public inspection.

That the map shall be open to inspection of the public during office hours of the engineering department and copies made available to the public at a reasonable cost.
(Code 1964, § 48-39; Code 1980, § 4-5-52; Ord. No. 78-18, § 2, 1-23-1978)

Sec. 4-5-53. Injuring, etc., street name signs.

It shall be unlawful for any person to take down, alter, injure or deface any sign or marker indicating the name of any street.
(Code 1964, § 48-40; Code 1980, § 4-5-53)

Sec. 4-5-54. Unaccepted streets.

The city does not, by any change of the names of the several streets, assume jurisdiction or responsibility for the maintenance and upkeep of any street which has not heretofore been accepted by the city. All the streets dedicated to the public and not heretofore accepted by the city shall remain unaffected by the adoption of the ordinance from which the 1980 Code is derived.
(Code 1964, § 48-41; Code 1980, § 4-5-54)

Sec. 4-5-55. Policy for honorary street designations and official street renaming.

(a) *Policy.*

(1) The council hereby finds that:

a. The primary purpose for street names is the orderly arrangement of the city and addresses therein to provide for efficient navigation; locating residences and businesses; and provision of services, including emergency services, utilities and city services;

b. The official renaming of streets requires complex and costly processes to the city, postal service, residents and businesses and service providers to change addresses, stationery, maps, street signs, directional signs, etc. and can create confusion for residents, businesses, service providers and visitors.

c. There is a pattern to the names of streets in the city providing for orderly navigation of the city and assignment of addresses, therefore, official renaming of streets should not be done unless a need critical to delivery of emergency services or the health and safety of citizens is demonstrated.

(2) The council may consider the honorary designation of a portion of street in accordance with this chapter. No more than one designation per district shall occur per council term. One additional designation at any location within the city during a council term may be approved by council pursuant to this section recommendation of the mayor.

(3) No existing streets will be renamed unless a need critical to emergency service delivery, or the health and safety of citizens, is demonstrated. Citizens may submit requests for naming newly constructed streets for persons meeting the qualifications in this policy.

(b) *Procedure.*

(1) A recommendation for an honorary or memorial designation of a portion of a street may be made to a neighborhood association by any citizen or civic organization.

(2) A request for an honorary or memorial designation of a portion of a street shall be submitted to the office of the councilor for the district where the designation is proposed by a neighborhood association. A neighborhood association may submit a request to the mayor.

(3) The person to be honored must have made a significant contribution to the city for at least 25 years.

(4) The request shall include:

a. The name of the section of street proposed for honorary or memorial designation, with the "from" and "to" cross-streets, including a map depicting the proposed portion of the street. The portion to be designated shall not be more than one block in length. Where blocks are not clear or uniform, the length shall not exceed the distance between an intersecting street and the next intersecting street;

b. Proposed honorary street name designation.

c. Basis for requesting the honorary street designation, that is, historic figure/person and background/ biography for the figure/person, including the significant contributions the person has made to the city;

d. Name of the individual or group requesting the honorary street name designation and contact information (address, phone, e-mail).

e. Family contact information for the person to be honored.

(5) The council office receiving a request shall notify the mayor's office, the department of planning, engineering and permits, the department of traffic engineering, the department of community development and the department of public works that an honorary street designation is being proposed. If the mayor recommends a designation, he shall notify the office of the councilor for the district where the designation will be made, as well as the departments required in this subsection.

(6) The department of traffic engineering shall contact the applicant to review the proposed location and determine the appropriate placement of the designation signs.

(7) The department of planning, engineering and permits will provide the applicant and the chair of the council's public improvements and beautification committee a list of the addresses within the area of the proposed designation. The area of the proposed designation shall include the addresses on the block proposed for designation and the addresses on the blocks immediately adjacent to and on either side of the block proposed for designation. Addresses on the opposite side of the street from the block proposed for designation and the adjacent blocks shall be included.

(8) The applicant shall have 90 calendar days to obtain signatures on petitions from the occupants of buildings on the address list provided by the department of planning, engineering and permits. The petitions shall provide the name, business name (if applicable), address, signature, and indicate whether the signer is for or against the proposed honorary street designation. (When a single property with one address has multiple units, the applicant must receive input from at least 50 percent of the units. The opinion of a majority of the units shall be the decision for that address.)

(9) The applicant shall have 90 days to obtain a written response from the neighborhood association for the neighborhood where the designation is proposed.

(10) The applicant must demonstrate that input was received from at least 75 percent of the addresses in the area of the proposed designation and that at least 75 percent of the addresses represented and the neighborhood association are in favor of the honorary designation. (This is a total of 56 percent of the addresses indicating a favorable response.)

(11) Fees. The application shall be accompanied by a receipt from the department of finance showing payment of a $250.00 non-refundable application fee. Upon approval of the application, an additional $250.00 fee shall be due for parts and labor for installation of the signs. No sign shall be installed until all fees are paid in full.

(c) The completed application with the petition showing support from the addresses in the area of the proposed designation shall be forwarded to the chair of the public improvements and beautification committee, who shall place it on the next scheduled regular committee meeting agenda. The public improvements and beautification committee shall consider the nomination application at a regular meeting of the committee. The committee shall forward the nomination to the city council agenda with its recommendation to approve or reject the nomination.

(d) If the nomination is approved by the council, notice shall be sent to the person(s) making the nomination, the family contact specified on the application and the president of the neighborhood where the honorary or memorial sign will be located.

(e) The person(s) recommending the designation shall purchase the necessary sign(s) made in compliance with specifications available from the department of traffic engineering. The signs shall be delivered to the department of traffic engineering no later than 14 days before the date planned for installation. The application fee, purchase of signs and cost of installation shall not be paid from city funds. The nominators must also show the financial ability to maintain the sign in good repair. Lost, stolen or damaged signs will not be replaced by the city. The city may remove signs that become unsightly or become a hazard.

(f) No more than one honorary or memorial designation shall be placed on any one block. The sign shall comply with all applicable statutes, ordinances and regulations.

(g) Designation signs shall remain in place for no more than five years. The city will make reasonable effort to contact and return the sign to the applicant or the family of the person honored. If return of the sign at the end of five years is desired, the applicant and/or family of the person honored may inform the department of traffic engineering of any change in contact information during that period.

(h) This chapter shall not apply to signs installed prior to the effective date of this ordinance but such signs may be removed if they are damaged, unsightly, or have become a hazard. The department of traffic engineering is authorized to take down signs in depopulated areas where most of the structures have been removed and the signs no longer serve their intended purpose. Neighborhood associations may inform the department of traffic of such signs needing removal.

(Ord. No. 16-20, § 1, 2-16-2016)

Editor's note—Ordinance No. 16-20, § 1, adopted February 16, 2016, did not specifically amend the Code. Therefore, such ordinance has been added as § 4-5-55 at the editor's discretion.

Secs. 4-5-56—4-5-60. Reserved.

ARTICLE C. NUMBERING OF BUILDINGS

Sec. 4-5-61. System.

The blocks along every street of the city shall bear the progressive numbers respectively assigned to them by the city on the official street name map of the city on file in the office of the city engineer. The frontage upon each side of the street within each numbered block shall be deemed divided into sections of 25 feet each, and these sections shall be deemed progressively numbered in the direction of progressive numbering of blocks along the street upon which these sections front, according to the formula hereinafter in this section contained. The northerly first 25-foot section of a block of a street running in a generally east and west direction shall be deemed to bear the same number as the number of the block in which situated, and each succeeding such northerly section in such block shall be deemed to bear a number equal to the number of

the next preceding such northerly section in such block plus two. The southerly first 25-foot section of a block of a street running in a generally east and west direction shall be deemed to bear a number equal to the number of the block in which situated plus one and each succeeding such southerly section in such block shall be deemed to bear a number equal to the number of the next preceding such southerly section in such block plus two. The westerly first 25-foot section of a block of a street running in a generally north and south direction shall be deemed to bear the same number as the number of the block in which situated, and each succeeding such westerly section in such block shall be deemed to bear a number equal to the number of the next preceding such westerly section in such block plus two. The easterly first 25-foot section of a block of a street running in a generally north and south direction shall be deemed to bear the same number as the number of the block in which situated plus one, and each succeeding such easterly section in such block shall be deemed to bear a number equal to the number of the next preceding such easterly section in such block plus two. Every house or building fronting upon a street of the city shall bear a number corresponding to the number of the block section embraced by the parcel of land upon which such house or building is situated.
(Code 1964, § 48-42; Code 1980, § 4-5-61)

Sec. 4-5-62. Unnumbered or improperly numbered houses or buildings.

It shall be the duty of the owner or occupant of every unnumbered building or house fronting on any street in the city or of any building or house fronting on any street in the city and not properly numbered pursuant to section 4-5-61 to apply to the city engineer for the proper number of that house or building. It shall be the duty of the city engineer to inform the owner or occupant of the proper number of the house or building, according to the general system of numbering shown hereinabove and upon the official street name map on file in the office of the city engineer, and it shall be the duty of the owner or occupant, upon being furnished this information by the city engineer, either in answer to an application or without any application, to supply and place upon the front of the house or building, in a conspicuous place, durable numbers at least two inches high in accordance with the information supplied by the city engineer.
(Code 1964, § 48-43; Code 1980, § 4-5-62)

Sec. 4-5-63. Removing, injuring, etc., numbers.

It shall be unlawful for any person to take down, alter, injure or deface any number assigned and put up as provided in section 4-5-61, or to retain an improper number, or to substitute any other number on any building owned or occupied by that person than the one given by virtue of this article and for the purpose of carrying out its provisions.
(Code 1964, § 48-44; Code 1980, § 4-5-63)

Secs. 4-5-64—4-5-70. Reserved.

ARTICLE D. DEDICATION OF STREETS

Sec. 4-5-71. Right to change grades.

The assent of the council shall not be given to the dedication of any street or other public way unless the map or plat shall contain upon the face thereof a covenant running with the lands, executed and acknowledged by the owner making the dedication, to the effect that the city may at any time change the natural grade of any such street or other public way or any part thereof from the natural grade to the permanent grade without the payment of compensation or damages to the abutting owner.
(Code 1964, § 48-45; Code 1980, § 4-5-71)

Sec. 4-5-72. Form of assenting resolution.

The resolution of the council assenting to the dedication of any street, avenue, alley or other public way shall be in substance as follows:

Resolution

Be it resolved, by the Council of the City of Birmingham, that the assent of this body be and the same is hereby given to the dedication of the streets, avenues, alleys and other public ways as shown on survey and map of

_____, which said map was certified by _____, as surveyor, and acknowledged by _____, as owner, and has been exhibited to this council, said map being further identified by a recital of the approval of this council signed by _____, City Clerk, of even date herewith. But this shall not be construed as an assumption of dominion by the city over any street, avenue, alley or other public way shown on said plat or impose liability upon the city for the upkeep of same.

(Code 1964, § 48-46; Code 1980, § 4-5-72)

Sec. 4-5-73. Submission of plat to planning commission and city engineer.

No plat or map of territory within the city carrying with it a dedication of streets shall be accepted by the city unless the same is first submitted to the city engineer and the planning commission for their investigation and recommendation.

(Code 1964, § 48-47; Code 1980, § 4-5-73)

Secs. 4-5-74—4-5-80. Reserved.

ARTICLE E. VACATION OF STREETS, ETC.*

Sec. 4-5-81. Vacation of streets or alleys by abutting landowners.

Any street, alley or public way within the city, whether or not shown by a map, plat or survey, may be vacated in whole or in part, by the owner or owners of the land abutting the street, alley or public way (or that portion of the street, alley or public way desired to be vacated), who shall first make application to the city planning commission, upon such reasonable conditions as it may prescribe, and to the director of planning and

*__State law reference—__Vacation of right-of-way fee, Code of Ala. 1975, § 11-49-6.

engineering and permits accompanied by a $100.00 application fee, for their investigation and recommendation to the city council.
(Code 1964, § 48-48; Code 1980, § 4-5-81; Ord. No. 82-155, § 1, 9-14-1982; Ord. No. 93-239, 10-5-1993; Ord. No. 05-208, § 1(4-5-81), 10-25-2005)

Sec. 4-5-82. Required payment of fees and administrative costs.

(a) Within ten days of the date of written notice of the recommendation of the city planning commission to the city council to either assent to or disapprove the proposed vacation, the applicant shall pay both the required vacation right-of-way fee and administrative costs in the amounts set out in this section and section 4-5-84. No request for vacation of a right-of-way shall proceed to a hearing before the city council until such required amounts have been paid.

(b) If the council, after the requisite public hearing, shall assent to the vacation and sets a lesser vacation right-of-way fee, the difference between the amount previously paid in and the amount assessed shall be refunded to the applicant. If council refuses assent, then the entire vacation right-of-way fee paid shall be returned.

(c) All costs for the required advertisement and notices incurred by the city for the advertising of the city council public hearing to consider the right-of-way vacation requests shall be paid to the city by the applicant. The applicant shall pay $2,500.00 to the city to cover the costs of advertising. Within 30 days after the city council acts on a vacation request, the city shall either reimburse the applicant for any portion of the $2,500.00 not used for advertising and notification costs or, where the $2,500.00 does not cover the full costs of the advertising and notification costs, the applicant shall reimburse the city for the shortage before the record plat can be recorded.
(Code 1964, § 38-49; Code 1980, § 4-5-82; Ord. No. 82-155, § 2, 9-14-1982; Ord. No. 87-31, 3-10-1987; Ord. No. 93-239, 10-5-1993; Ord. No. 05-208, § 1(4-5-82), 10-25-2005)

Sec. 4-5-83. Public notice and hearing.

(a) After receipt of the required fees and costs, the city planning commission shall notify council of its recommendation and shall formally present the recommendation to the council at the public hearing provided for hereinafter.

(b) Within 90 days following receipt of the recommendation of the city planning commission and the required vacation of right-of-way fee and $2,500.00 for publication costs, the city council shall hold a public hearing to determine whether its assent to the vacation shall be given and if so, the fair market value of the land to be vacated.

(c) Notice of the hearing shall be published in a daily newspaper of general circulation for four consecutive weeks prior to the date of the hearing. Written notice of the hearing shall also be mailed at least 30 days prior to the hearing to the address of all utilities and owners of property abutting any portion of the street proposed for vacation whether or not that part of the street is included in the vacation proposal. A copy of the notice shall be posted on a bulletin board at the county courthouse. Notice of the decision of the city council regarding vacation request shall be published in a daily newspaper of general circulation within 14 days of the decision.

(d) Assent to said vacation by the council shall be evidenced by a resolution, a copy of which, certified by the city clerk, shall be attached to, and filed and recorded with the written declaration of vacation.
(Ord. No. 05-208, § 1(4-5-83), 10-25-2005)

Sec. 4-5-84. Assent to vacation conditioned upon payment of fee; amount of vacation fee.

(a) The assent of the council shall not be given to any proposal to annul or vacate, either in whole or in part, any street or public way or any map or plat of lands which includes any street or public way or any map or plat of lands which includes any street or public way or portion thereof except upon payment of a vacation of right-of-way fee by the owners of the land abutting any portion of the street, or public way, proposed for vacation or annulment, except as provided herein.

(b) The amount of the vacation of right-of-way fee shall be one-third of the value as determined by multiplying the assessed value per square foot of all subdivision lots or tracts abutting that portion of the street or public way proposed for

vacation times the square foot area of the land to be added to the real property of each abutting landowner as a result of the vacation.

(c) The amount of the vacation of right-of-way fee for a business may be reduced or waived entirely if the city council determines that said business will result in economic benefit to the city and the discount or waiver of the fee is in the public interest. Factors to be considered in determining economic benefit for reduction or waiver of the fee shall include, but not be limited to, the following: occupational, sales, and property taxes to be generated to the city: business licenses and permits to be purchased from the city; new jobs created by the business.

(d) The amount of the vacation of right-of-way fee shall be waived for not for profit organizations, state, county and federal agencies who have received an exemption from the payment of state ad valorem taxes for the then current year from the Jefferson County tax assessor.
(Ord. No. 05-208, § 1(4-5-84), 10-25-2005)

Secs. 4-5-85—4-5-87. Reserved.

ARTICLE F. CONSTRUCTION OF DRIVEWAYS AND SIDEWALKS

Division 1. Generally

Sec. 4-5-88. Covering for areas or openings in sidewalks.

All sidewalk openings, as defined in section 4-5-90, except for stairways, shall be covered with a substantial plate of metal or other material as may be approved by the building official, lift out concrete panels and/or metal gratings which shall be constructed according to plans approved by the city engineer and the building official. No owner or occupant of a building abutting the sidewalk as defined in section 4-5-90 shall use or make any such areas or openings without providing such plate, metal grating or lift out concrete panel, or permit the same to remain open or uncovered.
(Code 1980, § 4-5-16; Ord. No. 98-200, § I(4-5-16), 12-22-1998)

Sec. 4-5-88.1. Unsafe sidewalk openings.

(a) No person shall keep any sidewalk opening in such an insecure condition as to render it unsafe or dangerous to walk thereon.

(b) No person shall remove or insecurely fix, cause, procure, or permit to be removed or to be insecurely fixed so that the same can be removed from its frame, any grate, plate, concrete panel or other covering of any sidewalk opening, as defined in section 4-5-90; provided that nothing herein contained shall prevent the owner or occupant of the building with which such sidewalk opening is connected from removing the grate or covering for the proper purpose of such opening as provided hereinbelow.

(c) It shall be unlawful for any person owning or using any sidewalk opening to:

(1) Allow the same to remain uncovered or opened, except while the same is actually being used for the purpose of entrance or exit or for the purpose of introducing or removing any article through such opening;

(2) Operate or cause to be operated a lift or elevator without providing a warning system suitable to alert and caution pedestrians of the opening of the sidewalk;

(3) Use a sidewalk lift or trapdoor between the hours of 7:00 a.m. and 9:00 a.m., 11:30 a.m. and 1:30 p.m., and 4:00 p.m. and 7:00 p.m.; and it shall be unlawful to use any sidewalk lift or trapdoor which serves any building which has access by means of an adjacent alley between the hours of 7:00 a.m. and 6:00 p.m. weekdays, Monday through Friday; or

(4) Remove a grate, plate, manhole cover, concrete panel, or other cover over a sidewalk opening without first providing and thereafter maintaining the proper barricades as required for any street opening for the entire time the covering is removed.

(d) Any person violating this section shall be fined not less than $100.00 nor more than $500.00 for each offense.
(Code 1964, § 48-17; Code 1980, § 4-5-17; Ord. No. 98-200, § I(4-5-17), 12-22-1998)

Sec. 4-5-88.2. Openings for stairways to cellars.

For the purpose of stairways to cellars, under special permits from the council, it shall be lawful to make openings in the sidewalk not exceeding three feet in width, where the sidewalk is not less than 12 feet wide, which opening shall not be more than 12 feet long, and all such openings shall be guarded with neat, substantial metal railing and newel posts; provided that there shall be but one such opening to each building. No openings shall be allowed in the sidewalk, except by the permission of the council.
(Code 1964, § 48-18; Code 1980, § 4-5-18)

Sec. 4-5-89. Reserved.

Division 2. Permits

Sec. 4-5-90. Definitions.

For the purposes of this division, the following words and phrases shall have the meanings ascribed to them by this section:

Building official means that person designated as such under the terms of the current technical code adopted by the city.

Paved sidewalk means that portion of the sidewalk which is paved for the purpose of pedestrian traffic.

Public improvements means any sewers, mains, conduits, pipes, tubes, cables, wires, poles, signs, planters, fire hydrants, irrigation systems, street lighting, traffic control devices, parking control devices, or structures owned or maintained by the city.

Public utilities means utility services operated by public corporations, governmental entities other than the city, entities regulated by the Alabama Public Service Commission, and entities holding a valid franchise with the city.

Sidewalk means the surface and space above and below any public right-of-way extending from the adjacent property lines to the curblines or lateral lines of a roadway which shall include, but not be limited to, paved sidewalks, streetscapes, grassy plots, landscaped areas and planters.

Sidewalk opening means any manhole, grate, access lid, trapdoor, ventilation shaft opening, panel or other structure or device which provides an opening in the surface sidewalk for access to the subsurface sidewalk area.

Utility service means any water, sewer, gas, drainage, or sprinkler service provided by means of culvert, conduit or pipe and any electric power, telecommunication, signal, communication or cable television service provided by means of fiber, wire, or cable and any appurtenant devices such as monitoring stations operated by entities other than the city.

Vault means any void or space beneath of the surface of the sidewalk which is used by, was constructed for the use of, or, is accessory to the use of the adjacent property owner including any shaft leading to the sidewalk whether or not such subsurface space has on opening into the sidewalk above.
(Ord. No. 98-200, § 1(4-5-90), 12-22-1998)

Sec. 4-5-91. Permit—Required.

(a) It shall be unlawful for any person to construct, use, or cause to be constructed or used any driveway or paved sidewalk or portion of any such, or any sidewalk opening or vault, without having first obtained a written permit from the building official.

(b) It shall also be unlawful for any person to whom a permit has been issued to do or cause to be done the work authorized therein without complying with the inspection requirements and, if applicable, certification requirements contained in the permit.

(c) It shall be unlawful for any person to use a sidewalk opening and/or vault without obtaining a permit annually from the city building official for such use and no such permit or the rights or privileges allowed thereunder shall be transferred or assigned, except as hereinafter provided.

(d) The number, location, size of all driveways, paved sidewalks, sidewalk openings and vaults and their construction and maintenance shall be

subject to the approval of and under the direction of the city engineer, city traffic engineer and the building official.

(e) A permit shall not be required under this division for linear footage and related space used specifically for conduit, pipe, and/or cable used by public utilities to supply utility service to the adjacent property from the main utility lines, however, any other use of the sidewalk, surface or subsurface, for other utility service or business support purposes shall be required to obtain a permit as required hereunder.

(f) Compliance with these permitting requirements shall not excuse any person from complying with all other requirements of law, including the requirement to hold a current, valid franchise to operate in the city's rights-of-way.

(g) No permit shall be issued for the use of any space under the surface of the roadway of any public way or other public ground except as provided hereinafter in this chapter.

(h) No permit shall be required for the construction, maintenance or the continued use of vaults and/or sidewalk openings which are constructed and maintained as public improvements.
(Code 1964, § 48-51; Code 1980, § 4-5-91; Ord. No. 98-200, § 1(4-5-91), 12-22-1998)

Sec. 4-5-92. Same—Purpose; prerequisites to issuance; compliance with specifications.

No permit required by this division shall be issued unless the city engineer, city traffic engineer and the building official find that the driveway, paved sidewalk, sidewalk opening or vault to be constructed under the permit will not unreasonably interfere with:

(1) Vehicular and pedestrian traffic along that street;

(2) The demand and necessity for parking spaces on that street;

(3) The means of ingress and egress from abutting property and adjacent properties;

(4) Interfere with lawfully placed utility services or existing or proposed surface or subsurface public improvements except as provided hereinbelow; and

(5) Unreasonably impair the health, welfare and safety of the public.

(Code 1964, § 48-52; Code 1980, § 4-5-92; Ord. No. 98-200, § 1(4-5-92), 12-22-1998)

Sec. 4-5-93. Application for permit for new construction or modification; compliance with specifications; agreements by applicant.

(a) No permit for new construction or modification to existing driveways, paved sidewalks, sidewalk openings or vaults required by this division shall be issued except upon written application of the owner of the abutting property into which the driveway is to be constructed or opposite which the paved sidewalk, sidewalk opening or vault is to be constructed. Permit applications for modifications or new construction shall contain at minimum construction drawings and calculations showing accurate measurements and locations which shall be subject to the approval of the city engineer, traffic engineer and the building official. Each such application shall also contain the agreements and affidavits of the owner that he or she will not allow construction of the driveway, paved sidewalk, sidewalk opening or vault otherwise than in conformity with the approved plans, permit requirements and specifications and that he or she will maintain any such driveway, paved sidewalk, sidewalk opening or vault in a good and safe condition.

(b) The permit for paved sidewalks and driveways shall be for construction according to specifications of the city engineer, city traffic engineer and building official and according to current standard plans and specifications approved by and on file in the office of the city engineer.

(c) For all driveway permits, the specifications shall be designed for the size and weight of vehicles proposed to use the driveways and the driveways shall be constructed in the locations approved by the city engineer. Driveways in ex-

cess of 15 feet in width shall be accompanied by detailed construction drawings and shall also be subject to approval by the city traffic engineer.

(d) An initial and annual renewal permit shall also be required of all existing vaults and sidewalk openings.

(e) Application for both proposed and existing vaults and/or sidewalk openings shall also include the accurate gross measurements of the vault and/or shafts to be constructed, together with accurate dimensions and locations of all sidewalk openings and a description of the materials and techniques to be used or had been used if existing. Any new construction or modification of a vault or sidewalk opening shall comply with the current building code adopted by the city applying to supports for walkways, sidewalks and structural load restrictions on loading and minimum concentrated floor live loads or comparable sections within the building code as may be determined by the building official. Any new construction or modification of a vault shall include permanent markers, in a form approved by the city engineer, in the surface sidewalk which identify the outer dimensions of the vault beneath. Both existing and proposed vault and sidewalk opening applications as well as the annual renewal shall contain a certificate from a structural engineer registered in the state certifying the load capacity of the existing structure and certifying that the structure is satisfactory for its current use.

(f) Permits for proposed driveways, paved sidewalks, sidewalk openings or vaults which are to be included as part of new construction of any commercial or residential structure shall be obtained at the time the building permit is obtained and inspection and approval shall be in conjunction with the required building permits for said structure.

(g) Permits for new construction or modification which are not issued in conjunction with a building permit shall expire 60 days after the issuance thereof.
(Code 1964, § 48-53; Code 1980, § 4-5-93; Ord. No. 78-91, 5-23-1978; Ord. No. 98-200, § 1(4-5-93), 12-22-1998)

Sec. 4-5-93.1. Annual renewal of permit; application.

(a) Any permit for a vault or sidewalk opening shall be renewed on an annual basis. Each annual renewal application shall be accompanied by proof of insurance and required engineer's certificate; sidewalk openings applications shall also show proof of bonding as required in section 4-5-95.

(b) The renewal date shall be January 1 of each calendar year. Renewal applications shall be delinquent after January 31.

(c) A permit renewal is subject to the approval of the building official.
(Ord. No. 98-200, § 1(4-5-93.1), 12-22-1998; Ord. No. 16-183, § 1, 10-10-2016)

Sec. 4-5-94. Fees.

(a) The fees for permits required by this article shall be as follows: New construction permits for paved sidewalks, driveways, sidewalk openings or vaults which are obtained as part of a new construction of a structure shall be included in the cost of the building permit based on building permit rates and fees. Vaults constructed as part of the new construction of a structure shall be subject to the annual permit fee beginning January 1 of the next calendar year following the issuance of a certificate of occupancy for the new structure.

New construction or modification of paved sidewalks, sidewalk openings or vaults	$100.00
New construction of driveways for the first driveway:	
Up to 15 feet wide	$150.00
Over 15 feet wide	$300.00
For each additional driveway on the same application	$100.00
Initial permit for existing sidewalk opening and/or vault	$100.00
Annual renewal permit for sidewalk opening with vault of 300 cubic feet or less	$100.00

Annual renewal permit for sidewalk opening with vault in excess of 300 cubic feet, plus $50.00 for each additional 1,000 cubic feet or fraction thereof $100.00

Transfer of permit for vault and/or sidewalk opening $100.00

Delinquent annual renewal (February 1 and after):

For sidewalk opening with vault of 300 cubic feet or less $150.00

For sidewalk opening with vault in excess of 300 cubic feet, plus $50.00 for each additional 1,000 cubic feet or fraction thereof $150.00

(b) In the event construction is commenced before a written permit required by this article is granted, no permit shall be issued except upon payment of a fee of $200.00 along with the fee required by subsection (a) of this section; provided, however, that any penalties for failure to obtain a permit prior to new construction of paved sidewalks, driveways, sidewalk openings or vaults as part of new construction of a structure shall be governed by regulations for building permit rates and fees.

(c) A plan review fee shall also be required when plans are required to be reviewed before permit issuance. Plan review fees are due at the time of application.

Plan Review Fee:

Valuation	*Fee*
$0—$10,000.00	$150.00
$10,001.00—$50,000.00	$350.00
$50,001.00—$100,000.00	$700.00
$100,001.00	$700.00 Plus $1.50 per $1000.00 valuation for each $1000.00 of the estimated value in excess of $100,001.00

(d) The applicant shall provide an estimated construction value at the time of application. Estimated cost shall include the total cost of all work and shall include overhead and profit, engineering and architectural design fees, and be equivalent to the end cost of the project. Detailed estimates and copy of the original executed contract(s) may be required for review to validate the declared scope and/or value of the construction. Final valuation shall be set by the city engineer.
(Ord. No. 98-200, § 1(4-5-94), 12-22-1998; Ord. No. 10-153, § 1(4-5-94), 11-2-2010; Ord. No. 16-183, § 1, 10-10-2016; Ord. No. 19-88, § 1, 7-10-2019)

Sec. 4-5-95. Proof of insurance; bond required.

(a) As part of all applications for a permit for sidewalk openings and/or vaults, an applicant must also present proof of insurance against any liability, loss or claim arising out of the issuance of the permit, or out of the permitted disturbance of the sidewalk or out of the construction, maintenance or use of the permitted sidewalk opening or vault. The insurance shall be issued by an insurer authorized to do business in the state with a Best rating of B^+ or greater, shall be in an amount no less than $100,000.00 per person, and $1,000,000.00 per occurrence and shall name the city, its officers, employees and agents as additional insured. The insurance policy shall provide for 30 days' written notice to the city clerk prior to any lapse or change in coverage. The insurance shall be maintained in effect in the required amounts at all times that the permitted activity is conducted and that any permitted vault or sidewalk opening is in existence.

(b) As part of all applications for a permit authorizing the disturbing of a sidewalk or the construction, maintenance or use of any sidewalk opening, the applicant shall file with the application a bond in the penal sum of $10,000.00 with surety to be approved by the building official, such surety to be worth in the aggregate the sum of $10,000.00. Such bond shall be conditioned that the person to whom such permit shall be issued, his or her heirs, successors, or assigns,

shall save and keep the city free and harmless from any and all loss or damage, or claim of damage, arising from or out of the construction or use of the vault and/or sidewalk opening therein mentioned; and for the maintenance of the sidewalk opening and the public way or the paved sidewalk over such vault in such condition that the said public way, or the sidewalk, shall at all times after such sidewalk opening and/or vault is completed or such space is covered, be safe for public use; and conditioned for the full and complete protection of the city against any and all litigation growing out of the granting of such permit or anything done under such permit; and conditioned for the prompt vacation of said sidewalk opening and/or vault, or any portion thereof mentioned in said permit, upon 30 days' notice from the building official whenever in the opinion of said official it shall be necessary or advisable to have the said vault or sidewalk opening, or any portion thereof, vacated, or the said vault and/or sidewalk opening removed, in order to provide for the use of the said sidewalk opening and/or vault or any portion thereof for a public purpose, or because of the construction of any other public purpose in, under, or near the public way or public ground in which said sidewalk opening and/or vault is located, or for the purpose of moving, laying or maintaining transportation lines, sewers, drains, conduits, cable, pipes, tubes or wires of any kind whatsoever because of the construction for public purposes; conditioned further for the conditions of the said permit and of the various sections of this chapter dealing therewith. The obligation of such bond is for the benefit of the city and such bond cannot be released nor the surety relieved of its responsibilities thereunder unless and until:

(1) The vault and/or sidewalk opening is filled with compacted fill or other closure as approved by the building official; or

(2) Such bond is replaced with another comparable bond.

Whenever the building official determines that the sureties on any bond given for any permit issued hereunder have become insufficient, a new bond for such permit shall be filed with sureties to be approved by the building official.
(Ord. No. 98-200, § 1(4-5-95), 12-22-1998)

Sec. 4-5-96. Engineer certification of vault spaces required.

(a) Every user of vaults and/or sidewalk openings shall cause the vault to be inspected at least annually by and provide the certification of a licensed engineer. Required inspections shall be conducted at the vault user's expense. The user of the vault shall maintain records of inspections under this section for a period of three years, and shall make the records available for review by the building official on demand during regular business hours.

(b) If the inspection indicates the need for any repairs, alterations or other work, the vault user shall prepare a written report indicating the following: the location of the vault, the purpose for which the vault is used; the date of commencement for the work; the nature of the work; and, the name and address of each contractor performing any portion of the work. The report shall include working drawings for the repairs or other work and shall be filed with the building official. In review of the proposed repairs or other work the building official shall consider the purpose for which the vault space is used, the nature of the equipment or items stored in the space, the proximity of vault space to the public way, and other factors that may affect public safety.

(c) Any vault user who fails to obtain a required inspection, or who fails to maintain inspection records or file a required inspection report, or who provides false or misleading information in an inspection report, shall be subject to a fine of not less than $200.00 and not more the $500.00 for each offense. Each day that a violation continues shall constitute a separate and distinct offense.

(d) The building official shall order the revocation of the permit for failure to comply with any provision of this section. Revocations shall be in addition to the fines provided herein.
(Ord. No. 98-200, § 1(4-5-96), 12-22-1998)

Sec. 4-5-97. Liability for damages.

(a) The owner and the person in possession of the abutting premises, in front of which a vault and/or sidewalk opening is constructed, shall be

held jointly responsible to the city for any and all damages to persons or property in consequence of any defects in the construction of such vault or sidewalk opening or for allowing the same, or any portion thereof, to remain out of repair; and such owner shall be required to keep such vault or structure, its walls and coverings, in good order at all times; provided, however, that the city shall not be liable or in any way responsible for any damages occurring or arising from the adjacent owners use of the vault and/or sidewalk opening.

(b) The owner and the person in possession of any premises abutting on such a vault or sidewalk opening shall be held jointly responsible to the city for any and all damages occasioned to persons or property in consequence of the sidewalk opening being left exposed and uncovered or in consequence of the covering thereof being left insecure or unfastened; provided, however, that the city shall not be liable or in any way responsible for any damages occurring or arising from the adjacent owners use of the vault and/or sidewalk opening.

(c) The city shall not be responsible or in any way liable for any damages occurring to the adjacent property owner in their use or arising out of their use of the vault and/or sidewalk opening, including, but not limited to, leaks, structural failure, and sidewalk cuts.
(Ord. No. 98-200, § 1(4-5-97), 12-22-1998)

Sec. 4-5-98. Interference with sewers or water pipes.

No person shall use the space under any such sidewalk in such a way as to interfere with any utility services or public improvements unless by the express consent of the building official and no such permit shall be granted until the applicant therefor has paid to the city a sum of money sufficient in the judgment of the building official, as may be appropriate to defray the cost and expense of renewing or rebuilding or relaying such public improvements and utility services and making the necessary connections therewith. Written proof shall be provided at the time the request for permit is made that any person owning, having possessory or use interest and/or title in such public improvements and utility services has been notified and that approval for the work by the applicant has been obtained, and, further, that the persons or entities owning or operating the public improvements and utility services have been included as a named insured on the policy of the applicant relevant to the work sought to be done under the permit and connected therewith. Every such person disturbing any such public improvement and utility service shall, within ten days thereafter, restore the same to such condition as will meet the approval of the building official. When the building official certifies that such public improvement and/or utility service is so restored, the sum so paid to the city shall be refunded. If the applicant shall fail to so restore such public improvement and/or utility service, then the appropriate official shall cause the same to be restored in a manner meeting his or her approval, and the cost thereof shall be paid out of said deposit.
(Ord. No. 98-200, § 1(4-5-98), 12-22-1998)

Sec. 4-5-99. Conveyance of premises, release of bond and insurance.

Any person to whom a permit for the use of subsidewalk space shall have been granted under the terms of this chapter, or who gives a bond for or provided insurance in connection with the occupation of space under any sidewalk under any ordinance or order of the city council heretofore passed, shall remain responsible for the insurance and bonding requirements for said space until such space is filled and compacted, filled with flowable fill or other comparable material as approved by the building official or until a successor in interest has obtained a vault and/or sidewalk opening permit and provided all required insurance and bonding. Said person may secure from the building official a permit to close up any vault and/or sidewalk opening in a condition similar to the balance of the sidewalk in front of said premises; and upon completion of said work to the satisfaction of the building official all liability under the bond or insurance policy heretofore given by said person shall cease and determine, except as to acts happening or causes of action accruing prior to the closing of

said ventilation shaft, trapdoor or other opening. If, however, said successor in interest shall pay the transfer fee hereinafter provided for, and shall provide a replacement insurance and bonding in the amounts specified in section 4-5-95, a permit shall be issued to said successor in interest covering the same vault and/or sidewalk opening specified in the original permit, and then it shall not be necessary for the person to whom the original permit was issued to close up said opening, but the providing of required insurance and the securing of a new permit by the purchaser shall act as a release of liability under the bond originally given and insurance originally provided in like manner as if said vault and/or sidewalk opening has been closed to the satisfaction of the building official, except as to the causes of action accruing prior to the procuring of the new bond and insurance.
(Ord. No. 98-200, § 1(4-5-99), 12-22-1998)

Sec. 4-5-100. Cancellation of previous permits.

Any person holding a contract or permit for the construction or maintenance of any vault and/or sidewalk opening issued under the terms of any ordinance, resolution or building permit heretofore in force, whether or not the conditions of such ordinance, resolution or permit have been or are now being fully complied with, shall be required to apply for a permit hereunder. If such person shall desire to have such ordinance, resolution, permit or contract canceled, the building official shall cancel the same as regards any liability thereunder arising after the date of the issuance of the permit hereunder, but such contract or permit and the bond given therewith shall remain in full force and effect as to all rights and liabilities accruing under the same, including all amounts due the city for fees or compensation under the same up to the time of said cancellation.
(Ord. No. 98-200, § 1(4-5-100), 12-22-1998)

Sec. 4-5-101. Hazardous materials or explosives under the sidewalk, sidewalk opening to be covered and fastened.

No explosive substance or flammable oil or other hazardous substance shall be stored or kept for any purpose under any sidewalk unless approved by the chief of the fire department and, if approved, the design, construction and maintenance of such shall be subject at all times to compliance with standards and requirements of the fire chief, and further no vault shall be ventilated into the sidewalk unless approved by the building official and the opening shall be securely covered and fastened or locked.
(Ord. No. 98-200, § 1(4-5-101), 12-22-1998)

Sec. 4-5-102. Revocation of permits.

(a) All permits issued for vaults and/or sidewalk openings shall be subject to revocation in whole or in part by the building official whenever he or she shall consider it necessary or advisable to have the vault and/or sidewalk opening covered by such permits, or any portion thereof, vacated in order that the same may be used for a public purpose, or because of the construction or maintenance of public service projects in, under or near the public way or public place in which said vault and/or sidewalk opening is located, or for the purposes of moving, laying or maintaining sewers, mains, conduits, pipes, tubes, cables, or wires of any kind whatsoever because of construction or maintenance of public improvements projects. No permit shall be issued except upon written agreement of the party to whom the same is issued that the said vault or space, or any portion thereof required to be vacated, shall be vacated within 30 days after the building official shall have given notice of revocation of the permit and that in case such party shall fail to so vacate such space or vault of that portion of the space specified in such notice the building official may cause the same to be done at the expense of said party to whom the permit was issued and all expenses incurred or damages paid by the city on account thereof shall be borne by said party and shall be paid to the city upon demand.

(b) If any person who has secured such a permit shall at any time fail or neglect to comply with the terms of this chapter, such permit may be revoked by the building official.

(c) In cases where there is a danger to the public health, safety or welfare caused by the actions of the person having secured the permit

in the construction, occupancy, or maintenance of the vault and/or sidewalk opening, the building official may upon direct that construction, or occupancy of the vault and/or sidewalk opening cease until the unsafe condition is corrected.
(Ord. No. 98-200, § 1(4-5-102), 12-22-1998)

Secs. 4-5-103—4-5-110. Reserved.

ARTICLE G. CONSTRUCTION OF SEWERS AND OTHER IMPROVEMENTS IN STREETS

Sec. 4-5-111. Permit—Required; exception.

(a) It shall be unlawful for any person to construct or cause to be constructed any sanitary or storm sewer or any other improvement in, under or upon any public street or alley, other than under an improvement ordinance, without a written permit from the city engineer, or without inspection as required by the permit.

(b) It shall also be unlawful for any person to whom a permit has been issued to do or cause to be done the work authorized therein without also complying with inspection requirements contained in the permit.
(Code 1964, § 48-57; Code 1980, § 4-5-111)

Sec. 4-5-112. Same—Application.

No permit required by this article shall be issued except upon written application, accompanied by plans which shall, in the judgment of the city engineer, meet good and acceptable engineering standards and procedures, filed by a contractor holding a business license issued by the city, permitting him or her to engage in business either as a contractor, excavator, paver or viaduct, underpass or sewer builder. The application shall contain an agreement that the improvements shall be performed in strict accordance with the plans as approved by the city engineer and shall comply with all provisions of this Code and other regulations and ordinance of the city and the applicable specifications on file in the office of the city engineer.
(Code 1964, § 48-58; Code 1980, § 4-5-112)

Sec. 4-5-113. Same—Fees.

(a) The fee for a permit required by this article shall be $300.00; provided, that in the event construction is commenced before a written permit is granted, no permit shall be issued except upon payment of a fee of $400.00.

(b) A plan review fee shall also be required when plans are required to be reviewed before permit issuance. Plan review fees are due at the time of application.

Plan review fee:

Valuation	*Fee*
$0—$10,000.00	$150.00
$10,001.00—$50,000.00	$350.00
$50,001.00—$100,000.00	$700.00
$100,001.00	$700.00 Plus $1.50 per $1000.00 valuation for each $1000.00 of the estimated value in excess of $100,001.00

(c) The applicant shall provide an estimated construction value at the time of application. Estimated cost shall include the total cost of all work and shall include overhead and profit, engineering and architectural design fees, and be equivalent to the end cost of the project. Detailed estimates and copy of the original executed contract(s) may be required for review to validate the declared scope and/or value of the construction. Final valuation shall be set by the city engineer.
(Code 1964, § 48-59; Code 1980, § 4-5-113; Ord. No. 89-188, 8-1-1989; Ord. No. 10-153, § 1(4-5-113), 11-2-2010; Ord. No. 16-184, § 1, 10-10-2016; Ord. No. 19-89, § 1, 7-10-2019)

Sec. 4-5-114. Same—Expiration date.

Any permit issued under this article shall expire 60 days after issuance thereof.
(Code 1964, § 48-60; Code 1980, § 4-5-114)

Sec. 4-5-115. Inspections by city.

The applicant for a permit required by this article shall agree that no work shall be performed

without proper inspection by an authorized representative of the planning, engineering, and permits department. These inspection services may be charged for at a daily rate and scale commensurate with existing wages being paid for these services and shall be payable to the city at the end of each month. No use shall be made of the improvements until the city shall have been paid in full for the inspection charges.
(Code 1964, § 48-61; Code 1980, § 4-5-115)

Sec. 4-5-116. Certificate of compliance with specifications, etc., required.

No improvements constructed under a permit granted pursuant to this article shall be maintained by the city until the applicant and the owner of the abutting property receives a written notice from the city engineer that all work has been performed in accordance with the plans filed with the application and all applicable ordinances, regulations and specifications.
(Code 1964, § 48-62; Code 1980, § 4-5-116)

Sec. 4-5-117. Private driveways exempt from article.

Anything in this article to the contrary notwithstanding, any private driveway built within a street right-of-way shall be constructed according to and subject to the provisions of article F of this chapter, and not to the provisions of this article.
(Code 1964, § 48-63; Code 1980, § 4-5-117; Ord. No. 98-200, § 1(4-5-117), 12-22-1998)

Secs. 4-5-118—4-5-130. Reserved.

ARTICLE H. EXCAVATIONS

Sec. 4-5-131. Permit—Required; exceptions.

(a) It shall be unlawful, except in an emergency as set forth in section 4-5-132, for any person, other than an authorized officer, employee or agent of the city, to make any opening, cut or excavation in or under the surface of any street, alley, sidewalk or public way of the city without having first obtained a permit as provided in this article, or without inspection as required by that permit.

(b) It shall also be unlawful for any person to whom a permit has been issued to do or cause to be done the work authorized therein without also complying with inspection requirements contained in the permit.

(c) The permittee shall cause the work authorized by a permit issued in accordance with this article to be performed by an entity licensed to do the work for which the permit is issued. All pavement restoration shall be performed by a licensed paving contractor. Proof of licensure shall be presented at the time application for a permit is made or a permit will not be issued.
(Code 1964, § 48-64; Code 1980, § 4-5-131; Ord. No. 10-115, § 1(4-5-131), 8-31-2010)

Sec. 4-5-132. Same—Procedure when utility installation breaks, etc.

(a) In the event that any sewer, main, conduit or other utility or franchisee installation in or under any street, alley, sidewalk or public way shall burst, break or otherwise be in a condition as seriously to endanger persons or property, the owner of that sewer, main, conduit or other installation shall immediately repair the trouble and shall immediately take all necessary steps to make the location safe and secure. That owner, utility or franchisee shall not, however, begin making any permanent repairs to the street, alley or sidewalk until he or she shall have secured a permit as provided in this article. A permit shall be secured on the next business day after any break or serious trouble shall have developed, and the necessary repairs to the street, alley or sidewalk shall be made as directed by the city engineer and shall be completed as is set forth in section 4-5-144.

(b) It shall be unlawful for any person to cut any pavement under this section unless an emergency shall be of such nature that immediate repair is required for the safety of persons or property or both, and it shall be unlawful for any person to fail to comply with all other provisions of this article, including but not limited to the securing of a permit within the time required and the payment of the special charge and

making of permanent restoration in the manner and time required by sections 4-5-133, 4-5-135 and 4-5-144.

(c) Any and all utilities and/or franchisees shall provide current contact information, including the name of a designated person, address, telephone, cell phone, email or other electronic means of communication to the city engineer to report an emergency repair to be made under this section. Should the city become independently aware of a cut to any pavement under this section, the city shall notify utility or franchisee to comply with permit requirements. Failure to comply shall result in a permit fee of not less than $200.00. The contact information described herein shall be made available to the city engineer upon request.
(Code 1964, § 48-65; Code 1980, § 4-5-132; Ord. No. 10-115, § 1(4-5-132), 8-31-2010)

Sec. 4-5-133. Same—Special charge; when required.

Subject to the provisions of sections 4-5-36, 4-5-134, 4-5-135 and 4-5-144, any person desiring to make or who has under section 4-5-132 made any opening, cut or excavation in or under the surface of any paved, curbed or otherwise improved street, alley or sidewalk for any rightful or necessary purpose to be accomplished speedily and without undue delay in the event the street to be cut or which has been cut has been paved or repaved less than five years next prior to the application for the permit, shall, at the time the excavation permit is applied for and prior to the issuance thereof pay to the city engineer a special charge, to become a part of the general fund of the city an amount calculated according to the age of the pavement, as follows:

(1)	During the first 12 months after completion	$1,500.00
(2)	During the second 12 months	$1,200.00
(3)	During the third 12 months	$900.00
(4)	During the fourth 12 months	$600.00
(5)	During the fifth 12 months.	$300.00

(Code 1964, § 48-66; Code 1980, § 4-5-133; Ord. No. 10-115, § 1(4-5-133), 8-31-2010; Ord. No. 16-185, § 1, 10-10-2016)

Sec. 4-5-134. Same—When payment excused.

In the event that the city engineer shall, in his or her sound discretion, determine that due to circumstances beyond the control of any person who owns such property as to which notice was mailed as provided in section 4-5-36 which abuts on or is in any street or alley which has been paved or repaved within five years next preceding the application for a pavement cut permit, improvements on the property have been damaged or destroyed in such a manner as to require a permit for a pavement cut to be issued pursuant to the rebuilding or repair of such destroyed or damaged improvements, then the city engineer may issue a permit for such pavement cut without requiring the payment of the special charge provided in section 4-5-133. In no case shall this special charge be required where notice was not mailed as provided in section 4-5-36.
(Code 1964, § 48-67; Code 1980, § 4-5-134; Ord. No. 10-115, § 1(4-5-134), 8-31-2010)

Sec. 4-5-135. Same—Provision to be made for restoration of pavement.

(a) The permittee shall restore, or cause to be restored, the pavement for all excavations in streets, alleys, sidewalks or other public ways, and curbs and gutters in accordance with the city's standard specifications and details. Said specifications and details are on file in the office of the city engineer.

(b) The cost of restoration shall be paid by the applicant for the total cost incurred to restore streets, alleys, sidewalks or other public ways, and curbs and gutters.

(c) Prior to the issuance of any permit required by this article, any permittee for whom application for a permit is made to make any opening, cut or excavation in or under the surface of any street, alley, sidewalk or public way of the city shall, in addition to payment of the special charge provided in section 4-5-133, when the payment is required, deposit with the department of finance and continuously maintain a good and sufficient bond in the sum of $10,000.00 for cuts 75 square feet or less or if the cut is greater than 75 square feet in an amount to be

approved by the city engineer, and made by a surety company duly authorized to do business in the state. Said bond shall be conditioned that the person, firm or corporation, to be known as the principal in said bond shall:

(1) Observe all ordinances and laws of the city pertaining to said business, whether now or hereafter enacted, together with all rules and regulations established under the authority of said laws or ordinances;

(2) Perform in a workmanlike manner all work undertaken by said principal in the prosecution of said business;

(3) Indemnify and save harmless the said city from all liability occasioned or arising from any activities by said principal, its servants and agents, in any way related to said activities;

(4) Adequately safeguard all excavations which may be opened by said principal in the streets, alleys, sidewalks and other public ways of said city; and

(5) Restore, or cause to be restored, in accordance with the city's standard specifications and details, all such portions of said streets, alleys and sidewalks and other public ways excavated by said principal is responsible, pay the costs and expenses thereof; and

(6) Pay all such damages as any person, firm, or corporation may sustain by reason the activities by said principal, its servants or agents, in the prosecution of said business.

Any person, firm, or corporation injured in person or property by reason of the activities by said principal, or by an act, default, or omission constituting a breach of any of the conditions of this bond, may maintain a suit or action thereon for such injury. Said bond shall also provide that it may be canceled by the surety by giving the city engineer 30 days' notice in writing prior to the date of cancellation.

(d) The bonding requirement in subsection (c) of this section is waived if any permittee for whom application for a permit is made has a bond as described in subsection (c) of this section on file with the department of finance.

(e) The bonding requirements of subsection (c) of this section shall not apply to departments of the city.

(Code 1964, § 48-68(b); Code 1980, § 4-5-135; Ord. No. 79-115, 7-31-1979; Ord. No. 81-102, 6-16-1981; Ord. No. 88-96, 7-5-1988; Ord. No. 10-115, § 1(4-5-135), 8-31-2010)

Sec. 4-5-136. Same—Issuance; fee.

(a) All permits required by this article shall be issued by the city engineer or his or her designee. A permit fee of $400.00 shall be paid for each permit prior to issuance, provided that in the event construction is started before a written permit is granted, no permit shall be issued except upon payment of a fee of $600.00. The provisions of this section shall apply to all persons alike, whether they are authorized by law or franchise to excavate in or under any of the streets or sidewalks of the city or not.

(b) A plan review fee shall also be required when plans are required to be reviewed before permit issuance. Plan review fees are due at the time of application.

Plan review fee:

Valuation	*Fee*
$0—$10,000.00	$150.00
$10,001.00—$50,000.00	$350.00
$50,001.00—$100,000.00	$700.00
$100,001.00	$700.00 Plus $1.50 per $1000.00 valuation for each $1000.00 of the estimated value in excess of $100,001.00

(c) The applicant shall provide an estimated construction value at the time of application. Estimated cost shall include the total cost of all work and shall include overhead and profit, engineering and architectural design fees, and

be equivalent to the end cost of the project. Detailed estimates and copy of the original executed contract(s) may be required for review to validate the declared scope and/or value of the construction. Final valuation shall be set by the city engineer.
(Code 1964, § 48-69; Code 1980, § 4-5-136; Ord. No. 89-189, 8-1-1989; Ord. No. 10-115, § 1(4-5-136), 8-31-2010; Ord. No. 16-185, § 1, 10-10-2016; Ord. No. 19-90, § 1, 7-10-2019)

Sec. 4-5-137. Same—Time limits.

Any permit issued pursuant to this article shall become null and void in the event work authorized thereunder is not commenced within 30 days after its issuance or in the event a cessation of work continues for 24 hours unless a time extension is granted, in writing, by the city engineer or his or her designee.
(Code 1964, § 48-70; Code 1980, § 4-5-137; Ord. No. 10-115, § 1(4-5-137), 8-31-2010)

Sec. 4-5-138. Use of sewers or utilities prior to restoration of pavement prohibited; exceptions.

It shall be unlawful for any person, except a public utility corporation, to use or attempt to use any sewer or public utility for which any pavement, sidewalk or curb cut was made until restoration shall have been completed and finally

accepted by the city engineer or his or her designee, where the work is done by a contractor and the cost thereof paid where done by the city.
(Code 1964, § 48-71; Code 1980, § 4-5-138; Ord. No. 10-115, § 1(4-5-138), 8-31-2010)

Sec. 4-5-139. Excavations under electrical, gas, building and plumbing codes subject to this article.

All provisions of the electrical code, gas code, building code and plumbing code of the city relating to excavation in streets or alleys, and relating to connections with or use of sewers and utilities requiring a permit for pavement, sidewalk or curb cuts shall be subject to all applicable provisions of this article.
(Code 1964, § 48-72; Code 1980, § 4-5-139; Ord. No. 10-115, § 1(4-5-139), 8-31-2010)

Sec. 4-5-140. Obstruction of more than half of street or alley.

(a) Except as otherwise provided in section 4-5-14, it shall be unlawful for any person, firm or corporation to engage in any construction project, pavement or excavation in or adjacent to any roadway, street or alley which shall in any way obstruct more than half of the width of the roadway, street or alley at any time, measured from curb to curb.

(b) Any person, firm or corporation engaged in any construction, pavement or excavation for which, due to the nature or extent of the work involved, obstruction is necessary of any portion of a roadway, street or alley either within the Central Business District as defined in section 10-1-1, or as established in section 10-10-1, in schedule II, through streets designated, may obstruct only such portion of the roadway, street or alley as the city engineer or his or her designee, may deem necessary and shall obtain a permit therefor as provided herein, except as provided in the technical codes of the city or this section.

(c) Requests for permits to obstruct any portion of a roadway, street or alley as referred to in subsection (b) of this section for the purpose of construction, pavement or excavation on or adjacent thereto shall be made on a form to be supplied by the city engineer or his or her designee, and prior to issuance of the permit, the request shall be reviewed and approved by the city engineer or his or her designee, and shall be reviewed by the traffic engineer.

(d) Upon compliance with subsection (c) of this section, a permit shall be issued for a period of time reasonably necessary for the completion of the proposed work and under such restrictions as the issuing and approving authorities may reasonably require for the protection of the public. Such permit may be renewed only upon reapplication and approval.

(e) A copy of the permit issued pursuant to subsection (d) of this section shall be maintained at the jobsite of the construction, pavement or excavation and shall be produced for inspection by the permittee or his or her agent or employee in charge upon demand by any authorized city inspector, authorized employee of the city planning, engineering and permits department or traffic engineering department or any city law enforcement officer, any of whom may issue citations for violations of this section.

(f) Any such obstruction of which no permit has been issued, or which exceeds the limits established in an issued permit, shall be removed immediately upon demand by any of the authorized city employees set out in subsection (e) of this section.

(g) Failure to comply.

(1) Failure to comply with the permit requirements of this section; or

(2) Failure to comply with any lawful order to remove any unauthorized obstruction shall be punishable in accordance with section 1-1-6, and continued failure to so comply for more than one day shall be punishable as an act or omission of a continuing character under the provisions of section 1-1-7.

(h) The provisions of this section, or of any other section of this Code or of any building code provision, notwithstanding, the city engineer or his or her designee, may, at his or her discretion, authorize temporary obstructions of any street, roadway or alley for a period not to exceed one day for emergency repairs to utilities or streets, and

shall have the authority to set limits and conditions on such temporary obstructions as he or she may deem necessary.

(i) The provisions of the section further notwithstanding, authorized obstruction of any street, alley or roadway shall comply with any and all other or additional requirements or restrictions contained in this Code or any other code governing the activity for which the obstruction is necessary, as well as the traffic regulations of the city.
(Code 1980, § 4-5-140; Ord. No. 85-158, 7-9-1985; Ord. No. 10-115, § 1(4-5-140), 8-31-2010)

Sec. 4-5-141. Duty of persons completing work on unimproved, etc., streets, etc.

Except as otherwise provided in section 4-5-142, whenever an excavation is made in any unimproved, unpaved or oiled street, alley or sidewalk, or the same is otherwise obstructed, any person doing the same shall forthwith, upon completion of the work thereon, proceed to fill in the excavation, to remove all obstructions and to leave any unimproved, unpaved or oiled street, alley or sidewalk in as good condition as he or she found it, and free from all irregularities, obstructions or unevenness.
(Code 1964, § 48-75; Code 1980, § 4-5-141; Ord. No. 10-115, § 1(4-5-141), 8-31-2010)

Sec. 4-5-142. How work performed; materials for backfilling.

In the event any cut, opening or excavation is made in or under the surface of any street or alley which is already paved or which is about to be paved pursuant to the terms of any existing contract, it shall be the duty of the person making the cut, opening or excavation or causing same to be done and of each agent acting for any such person to perform such works in accordance with standard specifications and details prescribed by the city engineer.
(Code 1980, § 4-5-142; Ord. No. 10-115, § 1(4-5-142), 8-31-2010)

Sec. 4-5-143. Utility installations.

(a) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Utility means any sewer; storm drain; culvert; water main; gas main; telephone line, cable or conduit; fiber optic line, cable or conduit; electric power line, cable or conduit; cable and duct; television cable; service connections; or any other main, line, conduit, cable or duct installed in the right-of-way.

(b) *New construction.* Utilities shall be installed behind the curb or beyond the edge of pavement in new subdivisions or commercial developments to the maximum extent practical. The city engineer or his or her designee, may grant a variance from this requirement on a case-by-case basis to account for unusual site conditions. Replacement of existing utilities shall not be considered new construction.

(c) *Replacement.*

(1) When existing underground utilities are replaced, the replacement utilities shall be relocated behind the curb or beyond the edge of pavement to the maximum extent practical. The city engineer or his or her designee, may grant a variance from this requirement on a case-by-case basis to account for unusual site conditions.

(2) The permittee shall, to the maximum extent possible, install or caused to be installed, facilities using technologies that are the least disruptive to the pavement.

(3) The permittee shall, to the maximum extent possible, connect, or cause to be connected, existing service connections to facilities by utilizing technologies that minimize disruption to the pavement and public.

(Ord. No. 10-115, § 1(4-5-143), 8-31-2010)

Sec. 4-5-144. Restoration requirements.

(a) *Streets, alleys, sidewalks or other public ways.*

(1) The permittee shall be responsible for making, or causing to be made, all temporary and permanent pavement repairs. All repairs shall be made in accordance with the city's standard specifications and details. Said specifications and details are on file in the office of the city engineer.

(2) The permittee shall cut, or caused to be cut, the streets, alleys, sidewalks or other public ways to form straight lines and neat rectangular shapes as directed by the city engineer or his or her designee.

(3) The permittee shall install, or cause to be installed, a temporary repair upon completion of the work authorized by a permit. The permittee shall be responsible for maintaining the temporary repair for a period of 30 days and until the permanent repair is made. If the permittee fails to install or maintain the temporary repair, the bond shall be forfeited and the permittee will not be issued any subsequent permits to excavate in the public right-of-way.

(4) The permittee shall make, or cause to be made, the permanent repair no later than five business days after expiration of the 30-day period cited on subsection (a)(3) of this section. If the permittee fails to make the permanent repair within the stated timeframe, the bond shall be forfeited and the permittee will not be issued any subsequent permits to excavate in the public right-of-way.

(5) The permittee shall be responsible for maintaining the permanent repair for one year after completion of the permanent repair. The permittee shall commence, or cause to be commenced, maintenance of the permanent repair within five business days of receipt of written notification from the city engineer or his or her designee, to perform said maintenance. If the permittee fails to maintain the permanent repair within the time period stated, the bond shall be forfeited and the permittee will not be issued any subsequent permits to excavate in the public right-of-way.

(6) The permittee shall replace, or cause to be replaced, existing traffic striping and markings damaged as a result of the work.

(b) *Sidewalk, curb and driveway.*

(1) The permittee shall replace, or cause to be replaced, from joint to joint, all concrete sidewalk and curb sections that are disturbed, disrupted or damaged as a result of the permitted work.

(2) The permittee shall bore, or cause to be bored, all driveways where possible. The city engineer or his or her designee, may grant a variance from this requirement on a case-by-case basis to account for unusual site conditions. Driveways that are allowed to be open cut shall be saw cut to form straight lines across the driveway. The city engineer or his or her designee, may require that the entire driveway be replaced if it is determined to be in the best interest of the city to do so.

(3) The permittee shall make, or cause to be made, all concrete repairs in accordance with the city's standard specifications and details. Said specifications and details are on file in the office of the city engineer.

(4) If the permittee fails to replace, or fails to cause to be replaced, as directed by the city engineer or his or her designee, any sidewalk, curbs or driveways that are disturbed, disrupted or damaged as a result of the permitted work, the bond shall be forfeited and the permittee will not be issued any subsequent permits to excavate in the public right-of-way.

(Ord. No. 10-115, § 1(4-5-144), 8-31-2010)

Sec. 4-5-145. Appealing decisions of the city engineer.

Any discretionary decision of the city engineer or his or her designee, referenced in section 4-5-144 which results in loss of property interests or costs other than set fees may be appealed to the

city council for a public hearing on the matter. The person or permittee shall be required to provide written notice to the city engineer and the city clerk to request such hearing within 14 days of receipt of written notice of decision or the challenge to such decision or cost is waived. Upon a filing of a timely written notice of appeal hereunder filed in the office of the city clerk, a public hearing on the matter before the city council will be held within 30 days of the filing of the notice of appeal.
(Ord. No. 10-115, § 1(4-5-145), 8-31-2010)

Secs. 4-5-146—4-5-150. Reserved.

ARTICLE I. ELECTRICAL EQUIPMENT AND WIRES IN PUBLIC WAYS*

Sec. 4-5-151. Definitions.

The following words and phrases, when used in this article, shall have the meaning respectively ascribed to them in this section:

Chief of inspection services means the chief of inspection services of the city.

City engineer means the engineer of the City of Birmingham.
(Code 1964, § 48-77; Code 1980, § 4-5-151)

Sec. 4-5-152. Electrical equipment on streets.

It shall be the duty of the chief of inspection services and the city engineer to supervise the erection, construction and maintenance of all poles, wires, conduits and electrical fixtures over or under the streets, avenues or alleys of the city and to see that all laws and ordinances pertaining thereto are observed.
(Code 1964, § 48-78; Code 1980, § 4-5-152)

Sec. 4-5-153. Installing wires.

Electric light and power wires must be securely fastened to insulating supports. The use of iron tie wires is prohibited. Wires must be tightly stretched, never allowed to sag to such an extent as to be capable of coming into swinging contact with each other or with signs or other neighboring objects.
(Code 1964, § 48-79; Code 1980, § 4-5-153)

Sec. 4-5-154. Permit required before fixtures installed on streets.

No person shall erect any pole, conduit or underground fixtures upon any street, avenue or alley of the city without having first obtained a written permit from the city engineer.
(Code 1964, § 48-80; Code 1980, § 4-5-154)

Sec. 4-5-155. Location of wires and poles.

No electric light company shall erect or maintain its poles or wires at any location upon the streets, avenues or alleys of the city other than that specified in the permit of the city engineer.
(Code 1964, § 48-81; Code 1980, § 4-5-155)

Sec. 4-5-156. Franchise to stretch wires.

No person shall stretch any wire along or above any street, avenue or alley without first obtaining a franchise from the council.
(Code 1964, § 48-82; Code 1980, § 4-5-156)

Sec. 4-5-157. Stringing wires upon streets.

All wires for the use of telephone, telegraph, electric light, or power companies, cable television and cable television franchises, shall be placed upon the streets, avenues and alleys of the city subject to rules and regulations of this article and all other applicable ordinances of the city, but in granting permits for stringing these wires or installing any kind of overhead electrical construction, the council reserves the right to add to or modify the rules and regulations, and if it should become necessary, to have all such wires put underground.
(Code 1980, § 4-5-157)

Sec. 4-5-158. Height of wires.

(a) All wires above any street, avenue or alley must be maintained at a minimum height of 18 feet above the ground, and in crossing any such street, avenue or alley, must be run horizontally if practicable.

*__State law reference—__Municipalities' authority to exercise of certain police powers regarding public utilities, Code of Ala. 1975, § 37-1-35.

(b) If a communication service drop or a guy which is effectively insulated against the highest voltage to which it is exposed crosses a street or alley, the clearance may be reduced to 16 feet at the side of the public way; provided that this provision for reduction of clearance shall not apply to any drop or guy exposed to a voltage in excess of 8,700 volts.

(c) Where communication wires or cables cross over or run along alleys, this clearance may be reduced to 15 feet.
(Code 1964, § 48-84; Code 1980, § 4-5-158)

Sec. 4-5-159. Where wires to be placed underground.

It shall be unlawful for any person owning or operating any light, heat, power, telephone or telegraph wires to erect any poles, fixtures or electrical conductors upon, along or over any of the roads, streets or highways within that section of the city bounded on the north by the north side of 4th Avenue; on the south by the north side of Powell Avenue; on the east by the east side of 21st Street; and on the west by the west side of 18th Street, except any poles, fixtures and electrical conductors as may be necessary for local distribution from an underground system.
(Code 1964, § 48-85; Code 1980, § 4-5-159)

Sec. 4-5-160. Permit required before placing wires underground.

No person shall place any wires underground before first submitting the plans and specifications therefor to the city engineer and obtaining a permit therefor; the permit shall be issued on the plans and specifications furnished if the same shall be reasonably satisfactory, or shall be issued upon those plans and specifications and those changes as the city engineer may suggest; the city engineer, however, reserves the right to reject all plans and specifications offered and may require the submission of new plans until the same shall be satisfactory. The council requires that any company placing underground conduits shall reserve one conduit for the free use of the city for police and fire alarm wires, traffic control system wires and for any other electric wires, and shall install the wires furnished by the city in the conduit for the city free of charge.
(Code 1964, § 48-86; Code 1980, § 4-5-160)

Sec. 4-5-161. Underground wires to be maintained in accordance with permit.

It shall be unlawful for any person to construct or maintain any underground wires except in strict accordance with the permit issued by the city engineer.
(Code 1964, § 48-87; Code 1980, § 4-5-161)

Sec. 4-5-162. Maps of underground installation.

Any company desiring to place conduits under the streets and alleys of the city, in accordance with this article, shall first file with the city engineer maps and plans showing locations, elevations and grades of all underground conduits.
(Code 1964, § 48-88; Code 1980, § 4-5-162)

Sec. 4-5-163. Wires contrary to article deemed nuisance.

All wires over, along or across any street, avenue, alley or other public place and all poles situated in such street, avenue, alley or other public place on which any such wires are strung, or from which the same are suspended, contrary to the requirements of this article, shall be, and the same are hereby declared to be a public nuisance, and abatable as such; provided, however, that this section shall not apply to distribution poles and wires shown on plans and specifications approved by the city, for which special permit is issued.
(Code 1964, § 48-89; Code 1980, § 4-5-163)

Sec. 4-5-164. Person in charge or control responsible for violations.

It shall be unlawful for any person to cause, permit or suffer any wire of which he or she is the owner or lessee, or of which he or she has charge or control, to be maintained in violation of any ordinance of the city.
(Code 1964, § 48-90; Code 1980, § 4-5-164)

Sec. 4-5-165. Requirements as to poles.

All poles erected on the streets, alleys or public places of the city, by any telegraph, telephone, electric light, street railway or power company, shall be neat and symmetrical. All dead or unused poles must be promptly removed from the streets by the company erecting them.
(Code 1964, § 48-91; Code 1980, § 4-5-165)

Sec. 4-5-166. Maps to be filed with city engineer.

Any person maintaining any telephone or telegraph system, or any electric light or power system along, across, upon, over or under any of the streets or public places of the city shall, upon demand of the city engineer, file in the office of the city engineer a certified map and declaration showing the location of all poles, and the outside dimensions of all underground conduits and manholes, location and depth of all underground constructions, with reference to street lines and the city plans, and such statements and maps shall be certified by the owner or chief executive officer, or some other person duly authorized to make such certificate, which certificate shall be sworn to before any officer authorized to administer oaths.
(Code 1964, § 48-92; Code 1980, § 4-5-166)

Sec. 4-5-167. Use of poles of another.

In granting permits to erect poles for the purpose of suspending telephone, electric light or power wires, the council reserves the right, if the interest of the city so demands, to authorize other persons or companies to use the same poles for the same purposes, upon the payment to the owners thereof, a proper compensation to be determined by agreement of the parties concerned, or by board of arbitration, in default of the agreement. All permits will be subject to this condition, and by accepting a permit the applicant binds himself or herself according thereto.
(Code 1964, § 48-93; Code 1980, § 4-5-167)

Sec. 4-5-168. Plan to accompany application for permit to erect poles.

Applications for permits to erect poles must be accompanied by a plan indicating the proposed location of same; the plan, if approved, may undergo modifications in minor detail, subject to the approval of the city engineer. It shall not be permissible to construct on any main street, poles or other supports where it is practicable to penetrate any district or supply the occupants of any one square by erecting poles and supports in the alleyways.
(Code 1964, § 48-94; Code 1980, § 4-5-168)

Secs. 4-5-169—4-5-180. Reserved.

ARTICLE J. EXCAVATION PERMITS FOR CERTAIN STREETS

Sec. 4-5-181. Required; streets enumerated; unlawful not to comply with specifications of permit and article.

It shall be unlawful for any person, firm or corporation to make or cause to be made any opening, cut or excavation in or under the surface of the following streets without having first obtained a permit therefor from the city engineer or his or her authorized deputy, as required by this article. It shall also be unlawful for any person, firm or corporation to whom such a permit has been issued to do or cause to be done any work authorized thereby without also complying with the specifications for such work prescribed by such permit and this article or without also complying with inspection requirements contained in such permit.

(1) 19th Street North from the north curbline at 1st Avenue North, to the north curbline of 4th Avenue North; 2nd Avenue North at the intersection of 19th Street North; 3rd Avenue North at the intersection of 19th Street North.

(2) Cobb Lane from the north curbline of 14th Avenue South to the south curbline of 13th Avenue South.

(3) Bush Boulevard from the south curbline of Graymont Avenue to the east curbline of Avenue "Z."

(4) 20th Street South at the intersection of 11th Avenue South, 11th Court South and Magnolia Avenue.

(5) East sidewalk only of 26th Street North from the north curbline of 30th Avenue North to the south curbline of 31st Avenue North Alley, 27th Street North from the north curbline of 28th Avenue Alley North to the south curbline of 32nd Avenue Alley.

(6) Highland Avenue from the east curbline of 21st Street South to the west curbline of Highland Drive.

(7) 1st Avenue North from the north curbline of 54th Street North to 100 feet north of the north curbline of 56th Street North; also, 1st Avenue South, from the north curbline of 56th Place North to the south curbline of 57th Place North; also, 55th Place North, from the east curbline of 1st Avenue North to the west curbline of 1st Avenue South.

(8) Morris Avenue from the east right-of-way line of 20th Street to the west curbline of 23rd Street.

(Code 1964, § 48-97; Code 1980, § 4-5-181; Ord. No. 84-184, § 1, 10-9-1984; Ord. No. 85-163, § 1, 7-16-1985)

Sec. 4-5-182. Application; fee; deposit; restoration of street; specifications for work; inspection of work.

Any person, firm or corporation desiring to make any opening, cut or excavation in or under the surface of that part or portion of any street or avenue (including the sidewalk areas) described in section 4-5-181 for any rightful or necessary purpose shall make application for a permit therefor to the city engineer or his or her authorized deputy. The city engineer or his or her authorized deputy shall issue such permit upon the payment of a fee of $5.00 and the deposit by the applicant with the city engineer of an amount of money determined by the city engineer or his or her authorized deputy to be sufficient to defray the cost of restoration or replacement of the street or sidewalk to the same condition that it was before such opening, cut or excavation pursuant to the permit and this article. Any street pavement, sidewalk pavement or crosswalk pavement within the area described in section 4-5-181 in which an opening, cut or excavation is made shall be restored or replaced in total sections from joint to joint with like materials as those removed and shall conform to the then existing pattern and color of such street, sidewalk or crosswalk. All work performed under a permit issued pursuant to this article shall also be in accordance with such reasonable specifications and time and method of performance therefor as the city engineer or his or her authorized deputy may prescribe, shall be subject to the supervision of the city engineer or his or her authorized deputy, and shall further be subject after completion thereof to a final inspection by the city engineer or his or her authorized deputy.

(Code 1964, § 48-98; Code 1980, § 4-5-182; Ord. No. 84-184, § 2, 10-9-1984; Ord. No. 85-163, § 2, 7-16-1985)

Sec. 4-5-183. Refund of deposit.

Upon completion of all work authorized by a permit issued pursuant to this article to the satisfaction of the city engineer, the amount of the deposit required upon issuance of such permit shall be refunded to the applicant or such other person providing the deposit. If the applicant fails to cause such work to be performed to the satisfaction of the city engineer, no refund shall be made and such deposit shall be paid into the general fund of the city.

(Code 1964, § 48-99; Code 1980, § 4-5-183; Ord. No. 84-184, § 3, 10-9-1984; Ord. No. 85-163, § 2, 7-16-1985)

Sec. 4-5-184. Compliance with national, state and city laws, ordinances, etc.

The applicant in the performance of any work under a permit issued pursuant to this article shall perform or cause the same to be performed in full compliance with all applicable laws, ordinances and regulations of the United States of America, the state and the city.

(Code 1964, § 48-100; Code 1980, § 4-5-184; Ord. No. 84-184, § 4, 10-9-1984; Ord. No. 85-163, § 3, 7-16-1985)

Secs. 4-5-185—4-5-190. Reserved.

ARTICLE K. ESTABLISHMENT, OPERATION, MAINTENANCE OF OUTDOOR CAFES

Sec. 4-5-191. Applicability of article.

The provisions of this article shall apply to the establishment, operation and maintenance of outdoor cafes.
(Code 1980, § 4-5-191; Ord. No. 85-188, § 1, 8-20-1985)

Sec. 4-5-192. Definitions.

For the purpose of this article, the following words shall have the meanings respectively ascribed in this section:

Alabama alcoholic beverage control board means a state agency comprised of three members who are appointed by the governor and is vested with the authority to carry out the provisions of Code of Ala. 1975, title 28, and to promulgate rules and regulations on behalf of the state.

City clerk means the clerk of the City of Birmingham.

City engineer means the engineer of the City of Birmingham or his or her designee.

Health officer means the county health officer.

Outdoor cafe means exterior facilities adjacent to and a part of establishments selling food and drink that require the use of some city-owned property for operation, are temporary in nature and open to the elements except for optional awnings and/or temporary low walls or fences. The term "outdoor cafe" includes only those facilities which, if they hold a state liquor licenses also operate as a restaurant within the meaning and definition of the state alcoholic beverage control board.

Permit means written authorization issued by the city engineer pursuant to this chapter permitting the operation of an outdoor cafe.

Sidewalk means the area of public right-of-way reserved for pedestrian traffic, not including street crossings.
(Code 1980, § 4-5-192; Ord. No. 85-188, § 2, 8-20-1985; Ord. No. 11-9, § 1(4-5-192), 2-1-2011)

Sec. 4-5-193. Permit—Required.

(a) It shall be unlawful for any person to create, establish, operate, maintain or otherwise be engaged in the business of running an outdoor cafe upon the sidewalks in the city unless he or she shall hold a currently valid permit issued under the terms of this article; and no permit shall be issued hereunder unless the applicant can demonstrate that a minimum of five feet of unobstructed, paved space shall be available for pedestrian traffic around or through such outdoor café and that such outdoor cafe be contiguous to a food preparation establishment; provided further, that no food or drinks served at such cafes shall be prepared outside.

(b) It shall be unlawful for any person operating an outdoor cafe to sell or serve any alcoholic beverages in the cafe without having been approved by resolution of the city council for the sale or service of alcoholic beverages. Any outdoor cafe which sells or serves alcoholic beverages shall, in compliance with the state alcoholic beverage control board (ABC board) rules and regulations, have a protective barrier separating the eating and serving areas from pedestrian traffic.

(c) Application for an outdoor cafe permit shall be made first to the design review committee of the city and shall be signed by the applicant himself or herself, if an individual; by a duly authorized partner, if a partnership; and by a duly authorized officer or agent, if a corporation. Such application shall be sworn to by each of its signers before a notary public or other officer authorized by law to administer oaths and shall include the following information:

(1) Name, residence, address and telephone number of each individual owner, partner, or, if a domestic corporation, the names of the directors and chief executive officer of such corporation, or, if a foreign corporation, the name of the managing officer of such corporation for the state and the date on which such foreign corporation became legally qualified to do business in the state.

(2) The trade or corporate name under which the applicant does business or proposes to do business.

(3) The location and description of each place where the applicant intends to establish or operate an outdoor cafe.

(4) The name and address of the person holding title to the property on which the applicant intends to establish or operate an outdoor cafe and, if the applicant is a lessee of such property, a copy of the lease evidencing that fact.

(5) Three sets of scale drawings including the scaled drawing of the sidewalk clearly illustrating:

a. The number of tables, chairs, umbrellas or other furnishings or fixtures desired for this area and a rendering of the positions of tables relative to entrances, exits and the sidewalk.

b. The location of any doors leading from any abutting buildings to each outdoor cafe.

c. The number of feet and location of unobstructed space for free passage of pedestrian traffic around or through the outdoor cafe.

d. The location of the place where any food or drink is intended to be prepared.

e. The type of protective barrier separating the eating and serving area of each outdoor cafe from pedestrian traffic, which shall be portable and approximately three feet in height. If alcoholic beverages are to be served on the premises the barrier must be in compliance with the ABC board's rules and regulations for patios and outdoor cafes.

f. The location of all fire hydrants, parking meters, utility poles, sign poles, trees, tree pits, benches, handicapped ramps, street furniture and any other permanent sidewalk fixtures.

g. The type and location of any existing or proposed outdoor lighting and fixtures.

h. A proposed use plan.

i. Any additional information concerning the nature or design of each such outdoor cafe that the design review committee may request.

(6) A nonrefundable application fee in the amount of $25.00.

(7) A statement declaring whether any alcoholic beverages are intended to be served and whether the applicant currently holds a valid alcoholic beverage license.

(Code 1980, § 4-5-193; Ord. No. 85-188, § 3, 8-20-1985; Ord. No. 91-101, 5-28-1991; Ord. No. 11-9, § 1(4-5-193), 2-1-2011)

Sec. 4-5-194. Same—Investigation and issuance or denial of permit.

(a) The design review committee shall consider whether the proposed location is suitable for an outdoor cafe, whether the design of the cafe is suitable for public display, and report its findings to the city engineer within 14 days of the date of the application.

(b) Upon a finding by the design review committee of compliance with section 4-5-193 requirements herein, the city engineer shall investigate the facts set out in the application to determine whether the requirements of this article and all other applicable laws and ordinances relating to the application have been met, and within 14 days of the date of approval by the design review committee, approve or disapprove of the permit.

(Code 1980, § 4-5-194; Ord. No. 85-188, § 4, 7-9-1985; Ord. No. 11-9, § 1(4-5-194), 2-1-2011)

Sec. 4-5-195. Same—Transferability; limited by location; display.

(a) Any change or transfer of ownership of an outdoor cafe for which a permit has been or shall be granted under this chapter shall terminate such permit and shall require a new application and a new permit in conformance with all the requirements of this article.

(b) No outdoor cafe shall be operated under any name other than that set forth in the permit granted under this article unless such permit

shall have been transferred with permission of the city engineer, in which event it shall operate in the name of the transferee of such permit.

(c) A permit issued under this article shall not authorize the grantee to conduct or allow the operation of an outdoor cafe except as described in the city engineer's approval document and shall be valid only for that area and in the manner described in such document. The permit shall state whether the applicant has been issued an alcohol license by the city council. Such permit shall be constantly and conspicuously displayed on the licensed premises.
(Code 1980, § 4-5-195; Ord. No. 85-188, § 5, 8-20-1985; Ord. No. 91-100, 5-28-1991; Ord. No. 11-9, § 1(4-5-195), 2-1-2011)

Sec. 4-5-196. Inspection.

Every outdoor cafe for which a permit is issued under this article and all records relating to its maintenance and operation as such shall be open to inspection by the health officer or designated representative and the city or its designated representative at any time.
(Code 1980, § 4-5-196; Ord. No. 85-188, § 6, 8-20-1985; Ord. No. 11-9, § 1(4-5-196), 2-1-2011)

Sec. 4-5-197. Indemnity.

No permit required by this article shall be granted to any person to operate an outdoor cafe until such person shall have first filed with the city engineer a statement agreeing to indemnify and hold harmless the city, its agents, representatives or employees, from any and all claims, damages, judgments, costs or expenses, including attorneys' fees, which they may incur or be required to pay because of any personal injury, including death, or property damage suffered by any person as a result of or related in any way to the operation and maintenance of the outdoor cafe for which the permit is issued, even though such personal injury or property damage results from negligence on the part of the city, its agents, representatives or employees, or which otherwise might be imputed to any of them.
(Code 1980, § 4-5-197; Ord. No. 85-188, § 7, 8-20-1985; Ord. No. 11-9, § 1(4-5-197), 2-1-2011)

Sec. 4-5-198. Liability insurance required.

(a) No permit required by this article shall be granted to any person to operate an outdoor cafe until such person shall have first filed with the city clerk a comprehensive general liability insurance policy issued to such person by a public liability insurance company authorized to do business in the state, affording the coverage set forth below in the amounts specified herein or a certificate of insurance with an endorsement naming the city as an additional insured. Such insurance policy shall afford coverage for the city, its agents, representatives and employees, as additional insureds with respect to the operation and maintenance of the outdoor cafe in the following amounts:

(1) Bodily injury: $100,000.00 each person and $300,000.00 each accident.

(2) Property damage: $100,000.00 each person and $300,000.00 each accident.

(b) The insurance coverage required by this section shall at all times be maintained for the full amount. The policy of insurance required by this section shall be first provided to the city engineer for verification and approval. A certificate of insurance or endorsement approved by the city engineer shall be filed with the city clerk. The insurance or endorsement shall contain a clause obligating the company issuing the same to give not less than 30 days' written notice to the city clerk before cancellation thereof. Notice of cancellation shall not relieve the company issuing such policy of liability for any injury of claim arising before the cancellation becomes effective. The cancellation of any such policy shall have the effect of suspending the permit of such person to operate the outdoor cafe covered thereby until a new policy complying with the provisions of this section is filed with the city clerk.

(c) Every insurance policy required hereunder shall contain a provision for continuing liability to the full amount thereof, notwithstanding any recovery thereon, that the liability of the insurer shall not be affected by the insolvency or the bankruptcy of the insured, and that until the policy is canceled the insurance company will not be relieved from liability on account of nonpayment of premium, or any act or omission by the named insured. Such policy of insurance shall be

further conditioned for the payment of any and all judgments, up to the limits of such policy, recovered against any person other than the owner, the owner's agent or employee who may operate the outdoor cafe with the consent or acquiescence of the owner.
(Code 1980, § 4-5-198; Ord. No. 85-188, § 8, 8-20-1985; Ord. No. 11-9, § 1(4-5-198), 2-1-2011)

Sec. 4-5-199. Revocation or suspension of permit.

(a) Any permit issued under this article shall be subject to revocation or suspension by the city engineer for failure of a permittee to comply with this article, or for any violation of any applicable provision of this article or of any regulation promulgated hereunder, or when, in the opinion of the city engineer, the public necessity, convenience or good renders such revocation advisable, upon not less than ten days' written notice to the permittee and after a public hearing thereon before the council.

(b) Whenever any permit has been revoked the applicant shall cease operation of the sidewalk cafe and no refund or any unearned portion thereof shall be made. It shall be unlawful for any person to operate an outdoor cafe after the effective date of the suspension or revocation of the applicable permit.
(Code 1980, § 4-5-199; Ord. No. 85-188, § 9, 8-20-1985; Ord. No. 11-9, § 1(4-5-199), 2-1-2011)

Secs. 4-5-200—4-5-210. Reserved.

ARTICLE L. COMPLETE STREETS POLICY

Sec. 4-5-211. Complete streets policy.

It is the policy of the City of Birmingham to develop a safe, reliable, efficient, integrated and connected multimodal transportation network that will provide access, mobility, safety and connectivity for all users, and will ensure that the safety and convenience of all users of the transportation system are accommodated, including motorists, pedestrians, bicyclists, users of public transportation, emergency responders, freight providers, people of all ages and abilities, and adjacent land owners.
(Ord. No. 18-37, § 1, 3-13-2018)

Sec. 4-5-212. Applicability.

(a) The city shall apply this complete streets policy to all city-owned transportation facilities in the public right-of-way including, but not limited to, streets, sidewalks, and bridges, regardless of funding source.

(b) The city shall apply this complete streets policy to all transportation projects such as, but not limited to, new road construction, reconstruction, retrofits, upgrades, resurfacing, and rehabilitation.

(c) The city shall apply this complete streets policy to all construction projects of new public streets, the city's pavement management system, and any large-scale non-emergency utility work.

(d) Routine maintenance activities designed to keep assets in serviceable condition (e.g. mowing, sweeping, pothole repair, utility covers, street tree replacement or other interim measures) may be excluded from the requirements of this article.

(e) This policy will be triggered for all city-owned transportation projects as they are scheduled except for routine maintenance as noted in item (d).

(f) There will be an evaluation of each project in terms of the applicability of this complete streets policy including whether any exceptions provided in section 4-5-215 of this policy may apply.

(g) While this policy does not mandate certain designs or construction standards and does not require specific improvements, the policy does require the city to approach every transportation project and program as an opportunity to create safer, more accessible streets for all users by incorporating complete streets practices in the design, construction, operation, and maintenance of transportation projects, improvements and facilities. This policy is meant to be used as a guide to provide where practicable and economi-

cally feasible, in the design, operation and maintenance of city streets to promote safe and convenient access and travel for all users, including pedestrians, bicyclists, motorists, transit riders, and people of all abilities.

(h) City staff shall also work closely with state and county transportation officials to incorporate complete streets elements whenever feasible on projects that fall within Birmingham's corporate limits but are owned and managed by higher levels of government through increased and ongoing project coordination.

(i) Privately constructed and owned streets, sidewalks, and parking lots will be encouraged, where possible, to adhere to this policy.
(Ord. No. 18-37, § 1, 3-13-2018)

Sec. 4-5-213. Guiding principles and practices.

As feasible, the city shall incorporate complete streets infrastructure into existing public streets to create a comprehensive, integrated, and connected transportation network that balances access, mobility and safety needs of all users of all ages and abilities and the needs of adjacent land users, thus providing a fully connected, integrated network that provides transportation options throughout the city.

Transportation improvements, facilities, and amenities that may contribute to complete streets design features include: sidewalks, crosswalks, curb extensions, street and sidewalk lighting, bike facilities, automobile lanes, street trees and landscaping, accessible curb ramps, refuge islands, pedestrian and traffic signals, signage, bicycle parking facilities, public transportation stops and facilities, dedicated bus lanes, traffic calming measures and infrastructure.

The city will strive to incorporate complete streets design features into public transportation projects in order to provide suitable accommodations for bicyclists, pedestrians, transit users, and persons of all ages and abilities, as appropriate, while promoting safe operation for all users in a manner consistent with, and supportive of, the surrounding community. The goal is a balanced transportation system that recognizes the need for some roads to offer the appropriate degree of complete street accounting for each type of user, while still ensuring basic accommodation is provided for all permitted users.
(Ord. No. 18-37, § 1, 3-13-2018)

Sec. 4-5-214. Design flexibility.

The latest design guidance, standards, and recommendations available will be used in the appropriate implementation of complete streets including but not limited to the most up-to-date versions of the following:

(1) The American Association of State Highway and Transportation Officials (AASHTO) A Policy on Geometric Design of Highways and Streets.

(2) Manual of Uniform Traffic Control Devices (MUTCD).

(3) The National Association of City Transportation Officials (NACTO) Urban Bikeway Design Guide.

(4) The National Association of City Transportation Officials (NACTO) Urban Street Design Guide.

(5) The Institute of Transportation Engineers publication Designing Walkable Urban Thoroughfares: A Context-Sensitive Approach: An ITE Recommended Practice.

(6) The American Association of State Highway and Transportation Officials (AASHTO) Guide for the Planning, Design, and Operation of Pedestrian Facilities.

(7) The United States Access Board's Public Rights-of-Way Accessibility Guidelines, (PROWAG) and any and all current or future applicable Americans with Disabilities Act (ADA) guidelines or standards.

(Ord. No. 18-37, § 1, 3-13-2018)

Sec. 4-5-215. Exceptions.

Complete streets principles shall be included in street construction, reconstruction, repaving, and rehabilitation projects except under one or more of the following conditions:

(1) The project involves a facility on which certain users are prohibited by law;

(2) An equivalent project along the same corridor or within a 1,000 feet of said corridor is better suited to provide the needed infrastructure or facilities due to the lack of necessary right-of-way or conflict with right-of-way not in the city's control;

(3) Routine maintenance of the transportation network that does not change the roadway geometry or operations, such as mowing, sweeping and spot repair;

(4) A documented absence of current and future needs exists which will be reviewed by the technical oversight committee; in coordination with the complete streets advisory committee;

(5) Transit accommodations that are not required where there is no existing or planned transit service;

(6) The costs of complete streets accommodations is excessively disproportionate to the need or probable use, as defined by 20 percent of the cost of the larger transportation project. This 20 percent figure should be used in an advisory rather than an absolute sense, and the determination must be documented by the technical oversite committee and discussed with the complete streets advisory committee; or

(7) In extreme circumstances when unforeseen consequences have been discovered or as the director of planning, engineering and permits deems necessary.

Any exception to this policy shall be both (1) supported by data and written documentation, and (2) not otherwise prohibited by applicable law or regulation. The determination shall identify the applicability of an exception for each user group whose needs will not be accommodated by the transportation project. Where there may be a question related to one of the above exceptions the technical oversight committee will make the final decision if it shall apply to any particular project, and, in the absence of any adopted priority network by the Birmingham Planning Commission. A level of traffic stress map may be used to help identify areas of need in the City for complete streets and if an exception should be allowed.
(Ord. No. 18-37, § 1, 3-13-2018)

Sec. 4-5-216. Priority network.

Recognizing the need in the city that certain streets should be prioritized for complete streets, priority shall be given to any street or segment that has been specifically listed and adopted as a priority street or segment by the city's planning commission. The technical oversight committee and complete streets advisory committee will provide the planning commission a recommendation regarding the proposed priority network. This complete streets policy shall apply in full regard to these priority streets and segments without exceptions.
(Ord. No. 18-37, § 1, 3-13-2018)

Sec. 4-5-217. Implementation.

The city shall make complete streets practices a routine part of everyday operations, shall approach every transportation project and program as an opportunity to improve streets and the transportation for all users, and shall work in coordination with other local and state departments and agencies to achieve complete streets to the extent feasible. To ensure implementation of this complete streets policy, the city shall establish a complete streets advisory committee and a technical oversite committee.

(a) The complete streets advisory committee will help comply with the complete streets policy and provide ongoing feedback related to the implementation of the complete streets policy. The purpose of the complete streets advisory committee shall be to promote and advance both the broader vision and implementation details of this policy, while ensuring that the needs of all users and all modes are addressed throughout the planning and design process. The complete streets advisory committee will meet at least once a quarter or as the committee deems necessary. The committee will also

establish by-laws within the first six months of the creation of the committee.

(1) The duties and responsibilities of the complete streets advisory committee will include the following:

a. Review annual reports and any other reports related to complete streets efforts untaken by the city.

b. Provide an advisory role to the technical oversight committee as it relates to complete streets projects within Birmingham.

c. Discuss data/information and the latest best practices in regards to complete streets policies.

d. Support any education initiatives undertaken by the city to implement complete streets projects.

e. Provide recommendations to the city's planning commission in terms of any priority network for the city.

f. The advisory committee will provide feedback on the development and direction of the complete streets policy, and will review and comment on annual progress reports to be presented to the mayor and city council.

(2) The complete streets advisory committee shall be a multidisciplinary team made up of representatives from the following entities:

- One member appointed by the city council.
- One member designated by the mayor.
- Two officers of the city's neighborhood associations, one appointed by the mayor and one appointed by the city council.
- One member appointed by the mayor from the business community.
- One member appointed by the city council from the real estate industry.

The following organizations shall be represented on the committee by their director/chairman or their proxy:

- One member from the Birmingham Planning Commission.
- One member from the city's comprehensive plan implementation committee's systems and networks committee.
- One member of the AARP Alabama.
- One member from the University of Alabama at Birmingham.
- One member from the American Heart Association.
- One member from United Way of Central Alabama.
- One member from the Lakeshore Foundation.
- One member from REV Birmingham.
- One member from Birmingham Bicycle Club.
- One member from the Birmingham-Jefferson County Transit Authority.
- One member from the Freshwater Land Trust.
- One member from the Birmingham Business Alliance.
- One member from the Birmingham City Schools.
- One member from the Jefferson County Department of Health.
- One member from the Regional Planning Commission of Greater Birmingham.

(b) The technical oversight committee will evaluate all transportation projects and determine if a project requires complete street interventions or if an exception is warranted. If the committee determines that an exception must be used, their findings shall be reported to the complete streets advisory committee. The technical oversight committee will be comprised of the following inter-departmental staff, as determined by the director of planning, engineering and permits;

- Two engineering staff.
- Two traffic engineering staff.
- Two planning staff.
- One staff attorney.

1. The city's technical oversight committee, with input from the complete streets advisory committee, shall review and either revise or develop proposed planning documents, policies, procedures, rules, regulations, guidelines, performance metrics, and paving programs to integrate complete streets principles in all transportation projects.

2. The city technical oversight committee, with input from the complete streets advisory committee, shall develop plans and set goals to ensure the successful implementation of the complete streets policy in low- and moderate-income communities. Within 12 months of ordinance adoption, the city shall prepare an initial report to identify barriers, and propose solutions to successful implementation of the complete streets policy in low- and moderate-income communities.

   (a) For the purpose of this section, "low income community" refers to any census tract that meets one of the following criteria (as reported in the most recently completed decennial census published by the U.S. Bureau of the Census):

      i. The poverty rate for the census tract is at least 20 percent; or

      ii. For a community located within a metropolitan area, the median family income (MFI) for a census tract does not exceed 80 percent of the statewide MFI.

   (b) For the purpose of this section, "moderate income community" refers to any census tract whose MFI is between 81 and 95 percent of the statewide MFI.

(Ord. No. 18-37, § 1, 3-13-2018)

Sec. 4-5-218. Performance measures.

The city shall measure the success of this complete streets policy using performance measures determined by complete streets advisory committee and the technical oversight committee, such as:

(1) Total miles of new or refurbished bike facilities, including off-street trails.

(2) Linear feet of new or refurbished pedestrian facilities.

(3) Percent of intersections ADA compliant.

(4) Number of new curb ramps installed or updated along city streets.

(5) Crosswalk and intersection improvements.

(6) Progress toward STAR community standards.

(7) Number of new countdown signals installed.

(8) Installed improvements made in proximity to transit facilities.

(9) Number of transit shelters added.

Within six months of the adoption of this article, the technical oversight committee, in collaboration with the complete streets advisory

committee, shall initiate a process to select performance measures and develop individual numeric benchmarks for each performance measure as a means of tracking and measuring the annual performance of the program. Such benchmarks shall be established within 18 months of ordinance adoption. Annual reports shall be presented to the mayor and city council and made available to the public.
(Ord. No. 18-37, § 1, 3-13-2018)

CHAPTER 6. WEIGHTS AND MEASURES CODE*

Sec. 4-6-1. Adopted.

The weights and measures code of the city, 1980, contained on pages annexed together and numbered 1 to 40 all inclusive and including the National Bureau of Standards Handbook 44, 1979, adopted by section 3 of chapter I of said code, are before this council and have been on file in the office of the city clerk, pursuant to resolution adopted by the city council on July 22, 1980 (Res. No. 964-80), is hereby adopted as the weights and measures code of the city, 1980, and shall be effective and operative as such on and after September 15, 1980, and on and after said date shall be binding within the corporate limits of the city.
(Code 1980, § 4-6-1; Ord. No. 80-164, § 1, 8-26-1980)

Editor's note—Specific amendments to the weights and measures code are not printed herein but have been effected by the following ordinances:

Ordinance No.	*Chapter/Section Amended*	
82-107	3	5
82-141	1	12

Sec. 4-6-2. City clerk to maintain copy.

Immediately after the adoption of the ordinance from which this chapter is derived and in the presence of this council at this meeting, the city clerk shall further identify the weights and measures code of the city, 1980 and the National Bureau of Standards Handbook 44, 1979, adopted by section 3 of chapter I of said code, referred to in section 4-6-1 which is before this council, and appending thereto and signing a certificate in form substantially as follows: "I, the city clerk, hereby certify that the annexed pages numbered 1 to 40 all inclusive and the National Bureau of Standards Handbook 44, 1979, adopted by section 3 of chapter I of said code, to which this certificate is appended are the documents referred to in section 1 of Ordinance No. 80-164 adopted by the city council at a regular meeting thereof held on August 26, 1980, and that I have signed this certificate in the presence of said council at said regular meeting on said date. City clerk." The city clerk shall carefully preserve this chapter and said documents adopted by section 4-6-1 as the weights and measures code of the city, 1980, as a part of the permanent records of his or her office.
(Code 1980, § 4-6-2; Ord. No. 80-164, § 2, 8-26-1980)

Sec. 4-6-3. Inspection by public.

It is hereby proclaimed that the code adopted by section 4-6-1 is on file with the city clerk of the City of Birmingham where the same may be inspected by the public, and this proclamation and said code shall be made public by publication of this proclamation as a part of the publication of this chapter as ordered by section 4-6-5.
(Code 1980, § 4-6-3; Ord. No. 80-164, § 3, 8-26-1980)

Sec. 4-6-4. Copies available to public.

At least 100 copies of this chapter and of the code adopted by section 4-6-1 shall be prepared and bound within the appropriate covers and made available to the general public at the office of the director of buildings and inspection services of the city, provided that said director of buildings and inspection services may charge therefor at a rate not exceeding the cost per volume to the city. Each bound volume purporting in print to contain this chapter and the weights and measures code of the city, 1980, and to have been published by authority of this council shall be received as

*__Editor's note—__**On 7-22-1980, the city council adopted Res. No. 964-80, calling a hearing for 8-26-1980, preliminary to the adoption of a weights and measures code. Pursuant to that resolution, the city adopted Ord. No. 80-164, included herein as title 4, chapter 6, §§ 4-6-1—4-6-5.

State law reference—Weights and measures generally, Code of Ala. 1975, § 8-16-1 et seq.

prima facie evidence as provided by the Code of Ala. of 1975, § 12-21-95, and may be used by courts as an aid to judicial knowledge under state law.
(Code 1980, § 4-6-4; Ord. No. 80-164, § 4, 8-26-1980)

Sec. 4-6-5. Publication.

The city clerk shall cause a true copy of this chapter to be promptly published in a newspaper published and of general circulation in the city and shall carefully preserve in his or her office a thus published copy of said chapter as a part of the permanent records of his or her office.
(Code 1980, § 4-6-5; Ord. No. 80-164, § 5, 8-26-1980)

CHAPTER 7. SOIL EROSION AND SEDIMENT CONTROL

ARTICLE A. GENERAL PROVISIONS

Sec. 4-7-1. Purpose, title.

(a) The purpose of this Code is to safeguard life, limb, property and the public health, safety and welfare by regulating clearing, earthwork and other land-disturbing activities and by requiring temporary and permanent provisions for erosion and sediment control.

(b) This chapter shall be known as the Soil Erosion and Sediment Control Code of the City of Birmingham, Alabama.
(Ord. No. 88-148, § 1(100), 10-7-1988; Ord. No. 99-131, § 1(100), 7-15-1999)

Sec. 4-7-2. Hazards.

(a) Whenever the city engineer is made aware of and determines that any existing land condition or exposed surface created or caused by means of clearing, earthwork or other land-disturbing activity has: (1) become a hazard to life and limb, (2) endangered property, (3) created a nuisance, (4) adversely affected the safety, use or stability of a public way or drainage channel, or (5) caused erosion, the owner, upon notice in writing from the city engineer, shall rectify or eliminate the stated hazardous condition within the time period specified in the notice to bring the property into conformance with requirements of this chapter. It shall be a violation of this chapter for the owner to fail to eliminate the hazardous condition within that time.

(b) In the event the owner fails to eliminate the hazardous condition within the required time, the city engineer may cause the hazardous condition to be eliminated as provided in Code of Ala. 1975, §§ 11-47-117, 11-47-118 and/or 11-49-2.
(Ord. No. 88-148, § 1(101), 10-7-1988; Ord. No. 99-131, § 1(101), 7-15-1999)

Sec. 4-7-3. City engineer, duties.

(a) The city engineer shall provide for the administration and enforcement of the provisions of this chapter and further to be responsible, on behalf of the city, for enforcement of the provisions of this chapter to meet the city's obligations as a part of the storm water management program under NPDES permit ALS000001.

(b) When the city engineer determines that the city needs assistance in its enforcement of the provisions of this chapter, or that assistance would be helpful in the enforcement of this chapter, the city engineer may request the assistance of the authority on behalf of the city.

(c) The authority shall be requested to assist the city and act as the city engineer's authorized agent in the requirements contained in this chapter for regulation, inspection, monitoring, and testing for pollutant loading to the city's MS4.
(Ord. No. 88-148, § 1(102), 10-7-1988; Ord. No. 99-131, § 1(102), 7-15-1999)

Sec. 4-7-4. Definitions.

For the purposes of this chapter, the following words and terms shall have the meaning assigned to them in this section. When not inconsistent with the context, words used in the present tense include the future, words in the plural number include the singular number and words in the singular number include the plural number, the words he, him, and his shall include both masculine and feminine. The word "shall" is

mandatory and the word "may" is permissive. Words not defined shall have their common and ordinary meanings.

Accidental discharge means a discharge prohibited by this article into the MS4 or community water which occurs by chance and without planning or consideration prior to occurrence.

Adverse impact means any deleterious effect on waters or wetlands, including their quality, quantity, surface area, species composition, aesthetics or usefulness for human or natural uses which are or may potentially be harmful or injurious to human health, welfare, safety or property or to biological productivity, diversity or stability, or which would unreasonably interfere with the enjoyment of life or property.

Agriculture means activities undertaken on land for the production of plants, crops, and animals which are useful to man.

Alabama Department of Environmental Management ("ADEM") means the State of Alabama regulatory agency, created under Code of Ala. 1975, § 22-22A-1 et seq., responsible for administering and enforcing the stormwater laws of the United States of America and the State of Alabama.

Applicant means any person, firm, corporation, entity or governmental agency who is the owner or authorized agent of the owner of land on which land-disturbing activity is proposed and who executes the necessary forms as the responsible party to procure a soil erosion and sediment control permit.

Authority means Storm Water Management Authority, Inc.

Best Management Practices ("BMP") means activities, prohibitions of practices, maintenance procedures and management practices designed to prevent or reduce the discharge or surface runoff of sediment or other pollution. Best management practices also include treatment requirements, operating procedures and practices to control facility site runoff, spillage or leaks, sludge or waste disposal or drainage from raw material storage and construction sites.

Best Management Practices Plan ("BMP Plan") means a set of drawings and/or other documents which contain all of the information and specifications pertaining to BMP.

City engineer means the city engineer or his duly authorized representative.

Clean Water Act ("CWA") means the federal act (33 U.S.C. §§ 1251 through 1387) which was formerly referred to as the Federal Water Pollution Control Act and Federal Water Pollution Control Act Amendments of 1972, Public Law 92-500, as amended by Public Law 95-217, Public Law 95-576, Public Law 6-483 and Public Law 97-117, 33 U.S.C. §§ 1251—1387.

Clearing means the removal from the land of trees, shrubs, grass, brush and/or other varied ground cover and vegetation useful for windbreaks, water retention and the maintenance of topsoil, not including the ordinary mowing of grass or the maintenance of previously cleared areas.

Community waters means any or all rivers, streams, creeks, branches, lakes, reservoirs, ponds, drainage systems, springs, wetlands, wells and other bodies of natural or artificial surface or subsurface water.

Contour means a line of equal elevation above a specified datum, usually mean sea level.

Contour line means a line joining points having or representing equal elevations.

Discharge means the passing of water or other liquid through an opening or along a pipe, conduit or channel; the rate of flow of water, silt, or other mobile substance which emerges from a pipe, conduit or channel, usually expressed as cubic feet per second, gallons per minute or million gallons per day.

Drainage means the removal of surface water from a given area either by gravity or by pumping; commonly applied to surface water and groundwater.

Drainage area means that area contributing runoff to a single point measured in a horizontal

plane, which is enclosed by a ridge line; the area of a drainage basin or watershed, expressed in acres, square miles or other unit of area.

Earthwork means land-disturbing activity as defined herein but shall not include clearing.

Erosion means wearing away of land surface as a result of the movement of wind or water.

Erosion control means the application of measures to reduce erosion of land surfaces.

Grading means any act by which soil is cleared, stripped, stockpiled, excavated, scarified or filled, or any combination thereof.

Illicit connection means any manmade conveyance connecting an illicit discharge directly to the MS4.

Illicit discharge means any discharge that is not composed entirely of stormwater, except discharges pursuant to a NPDES permit (other than NPDES Permit ALS000001) and discharges which are specifically excepted from this chapter.

Individual single family dwelling means a single dwelling being constructed by or for one or more individuals as opposed to a developer constructing a dwelling for resale or as part of a development of two or more dwellings.

Land-disturbing activity means any land change which may result in soil erosion from water or wind and the movement of sediment, including, but not limited to, the clearing, dredging, grading, compaction, excavating, transporting and filling of land.

Minor extension means an addition to an existing utility pipeline or other utility line in which the land disturbed consists of fewer than 7,500 linear feet.

Municipal separate storm sewer (herein abbreviated as "MS3") means a conveyance or conveyances (including roads with drainage systems, municipal streets, catch basins, curbs, gutters, ditches, manmade channels and storm drains), owned or operated by a city, town or county or other public body (created by, or pursuant to, state law) having jurisdiction over stormwater.

Municipal separate storm sewer system (herein abbreviated as "MS4") means a system of municipal separate storm sewers, as defined hereinbefore.

NPDES means National Pollutant Discharge Elimination System.

Outfall means a point source (meaning any discernible, confined and discrete conveyance, including, but not limited to, any pipe, ditch, channel, tunnel, conduit, well, discrete fissure, container rolling stock, concentrated animal feeding operation, landfill leachate collection system, vessel or other floating craft from which pollutants are or may be discharged, but not including return flows from irrigated agriculture or agricultural water runoff) at the point of a discharge to waters of the United States of America.

Permit means any soil erosion and sediment control permit issued pursuant to this chapter.

Permittee means a person, party, government entity and all others who receive a soil erosion and sediment control permit.

Pollutant means and includes, but is not limited to, the pollutants specified in Code of Ala. 1975, § 22-22-1(b)(3) and any other effluent characteristics specified in a Permit.

Pollutant loading means the amount of a pollutant, including eroded soil or sediment, entering the MS4.

Qualified credentialed professional means a Certified Professional in Erosion and Sediment Control ("CPESC") as determined by the Soil and Water Conservation Society ("SWCS") or the International Erosion Control Association ("IECA"). Other registered or certified professionals such as a professional engineer, registered landscape architect, registered architect, registered geologist or engineering geologist, or registered environmental manager as determined by the National Registry of Environmental Professionals ("NREP"), who can document the professional certification, registration, or credentials acceptable to the city engineer and can demonstrate proven experience in the field of erosion and sediment control shall be considered

a qualified credentialed professional. The qualified credentialed professional must be in good standing with the authority granting the registration. The qualified credentialed professional must be familiar, and have expertise, with current industry standards for erosion and sediment controls and must be able to inspect and assure that nonstructural BMPs or other pollution control devices (silt fences, erosion control fabric, rock check devices, etc.) and erosion control efforts, such as grading, mulching, seeding and growth management, or management strategies have been properly implemented and regularly maintained according to good engineering practices and the requirements of any permit issued pursuant to this chapter.

Sediment means solid material settled from suspension in a liquid that has been transported and deposited from its site of origin by air, water, ice or gravity as a product of erosion and has come to rest on the earth's surface either above or below a water surface, usually, inorganic or organic particles originating from weathering, chemical precipitation, or biological activity.

Silviculture means the care and cultivation of forest trees, including site preparation, planting, pruning, thinning and harvesting.

Site means any tract, lot or parcel of land or combination of contiguous tracts, lots or parcels of land which are in one ownership, and any combination of tracts, lots and parcels which are contiguous, are owned by two or more parties and are to be developed as a unit, subdivision or project.

Stabilization means the prevention of soil movement by any of various vegetative and/or structural means.

Stormwater means the excess water running off from the surface of a drainage area during and immediately after a period of rain. It is that portion of the rainfall and resulting surface flow that is in excess of that which can be absorbed through the infiltration capacity of the surface of the basin.

Storm Water Management means the incorporation of a variety of activities and equipment into a plan to address concerns associated with storm-water for the purpose of preventing pollution, improving water quality, keeping pollutants, including eroded soil and sediment, out of runoff, and the implementation of Best Management Practices.

Storm Water Management Program (herein referred to as "the management program" or "the program") means a program for management of storm water runoff and sediment and pollution control under NPDES permit ALS000001 which covers the duration of the permit. A requirement of the program and permit ALS000001 is to reduce the discharge of pollutants, including sediment and eroded soil, to the maximum extent practicable using management practices control techniques and system design and engineering methods and such other provisions which are appropriate.

Stream means a course of running water usually flowing in a particular direction in a definite channel and discharging into some other course of running water or body of water.

Structural controls means measures incorporated into existing storm water drainage systems or newly constructed systems to prevent or minimize the discharge of pollutants, including eroded soil and sediment, for the purpose of maintaining and/or improving water quantity and quality management; quantitative control by a system of vegetative and structural measures that control the increased volume and rate of surface runoff caused by manmade changes to the land; qualitative control by a system of vegetative, structural and other measures that reduce or eliminate pollutants, including eroded soil and sediment, that might otherwise be carried by surface runoff.

Turbidity means a condition in water or wastewater caused by the presence of suspended matter. A measure of fine suspended matter in liquids.

Utility means a publicly regulated business or service which is engaged in regularly supplying the public with some commodity or service which is of public consequence and need, such as electricity, gas, water, telephone service and telegraph service.

Variance means the modification of the minimum stormwater management requirements in situations in which exceptional circumstances, applicable to the site with respect to which the variance is requested, exist so that strict adherence to the provisions of this chapter would result in unnecessary hardship and the granting of such modification would not result in a condition contrary to the intent of this chapter.
(Ord. No. 88-148, § 1(103), 10-7-1988; Ord. No. 99-131, § 1(103), 7-15-1999)

Secs. 4-7-5—4-7-10. Reserved.

ARTICLE B. PERMITS AND PLANS

Sec. 4-7-11. Permit required.

It shall be unlawful to commence or continue to conduct or for the owner to allow the commencement or conduct of any land-disturbing activity that is not exempted from obtaining a permit under this article without first having obtained a soil erosion and sediment control permit from the city engineer. A separate permit shall be required for each site. The issuance of the permit shall not excuse the owner from the need to obtain other required state and local permits or licenses.
(Ord. No. 88-148, § 1(201), 10-7-1988; Ord. No. 99-131, § 1(200), 7-15-1999)

Sec. 4-7-12. Permit exemptions.

(a) Land-disturbing activities shall include any land change which may result in soil erosion from water or wind and the movement of sediment, including, but not limited to, the clearing, dredging, grading, excavating, transporting and filling of land, except that the term shall not include the following:

(1) Agriculture.

(2) Silviculture.

(3) This shall include such minor land-disturbing activities as home gardens, landscaping on individual residential lots (excluding landscaping performed by, or on behalf of, a developer or builder, who builds a house on any such lot), home repairs, home maintenance work, the maintenance or repair of accessory structures and other related activities which result in minor soil erosion.

(4) Minor land-disturbing activities such as individual connections for utility services and sewer services for single or two-family residences, minor grading for driveways, yard areas and sidewalks, excluding any grading done by, or on behalf of, a developer or builder in connection with the construction of a house.

(5) Minor maintenance, minor repair, and the minor extension of any existing underground public utility lines, except sewer lines; provided, that the utility company which owns such lines has received approval of a general BMP plan from the authority for such maintenance, repair, and extension; and provided further, that any utility company making a minor extension in connection with

which the land disturbed consists of more than 1,000 linear feet must give the city engineer written notice of such extension prior to the commencement of such minor extension.

(6) The construction, repair or rebuilding of railroad tracks.

(7) Minor subsurface exploratory excavations under the direction of soils engineers or engineering geologists.

(8) The opening of individual burial sites in property which has been approved for such use by all necessary governmental authorities.

(9) Digging of water wells or environmental monitoring wells.

(b) The activities referred to above may be undertaken without this permit; however, the persons conducting these excluded activities shall remain responsible for otherwise conducting such activities in accordance with the provisions of

this article and any other applicable law, including the proper control of sedimentation and runoff.
(Ord. No. 88-148, § 1(202), 10-7-1988; Ord. No. 99-131, § 1(201), 7-15-1999)

Sec. 4-7-13. Application review.

(a) It shall be the duty of the owner of the land on which land-disturbing activity is proposed to be conducted, or his duly authorized agent, to file with the city engineer an application which shall include the owner's BMP plan. A professional engineer ("PE") registered in the state must certify the design and construction of structural practices such as spill prevention control and counter measures ("SPCC") plan containment structures, dam construction, etc. Once a complete application, including all required submittals, has been filed, the city engineer shall accept or reject the application within 14 days of the day it is filed with the city engineer. Incomplete applications shall not be deemed to have been filed. If the application is rejected, the city engineer must inform the applicant, in writing, of the reasons for its rejection. If the applicant, on one or more occasions, revises the BMP plan or submits to the city engineer additional documents or written information in connection with the application, the city engineer must either accept the application as revised or make a written response to the applicant of the reasons for rejection within 14 days of the day such revised BMP plan or additional documents or information are submitted to the city engineer.

(b) In order for a permit to be issued the application must meet the requirements of this article.
(Ord. No. 88-148, § 1(203), 10-7-1988; Ord. No. 99-131, § 1(202), 7-15-1999)

Sec. 4-7-14. Permit application fee.

(a) A fee for each soil erosion and sediment control permit shall be paid to the city engineer as set forth below:

SOIL EROSION AND SEDIMENT CONTROL PERMIT FEES

Individual single family or duplex residence:

Valuation	*Fee*
$0—$150,000.00	$100.00
$150,001—$300,000.00	$250.00
$300,001.00 and over	$350.00

Non-residential and multi-family residence:

$9.50 per $1,000.00 valuation; minimum permit fee..... $400.00

Plus a plan review fee when plans are required to be reviewed before permit issuance.

Plan review fees are due at the time of application.

Plan review fee:

Valuation	*Fee*
$0—$10,000.00	$150.00
$10,001.00—$50,000.00	$350.00
$50,001.00—$100,000.00	$700.00
$100,001.00	$700.00 Plus $1.50 per $1000.00 valuation for each $1000.00 of the estimated value in excess of $100,001.00

(b) The fee for a soil erosion and sediment control permit authorizing work additional to that under a current, valid permit shall be the difference between the fee paid for the original permit and the fee shown for the entire project.

(c) The fee for a soil erosion and sediment control permit for which application is not made until after work has begun on the project shall be equal to double the amount of the fee required for the entire project.

(c) Non-residential and multi-family sites require a bond in the amount of $3,000.00 per acre and any part of any acre. The bond amount shall be doubled for work in floodplains and landslide areas.

(d) The applicant shall provide an estimated construction value at the time of application. Estimated cost shall include the total cost of all work and shall include overhead and profit, engineering and architectural design fees, and be equivalent to the end cost of the project.

Detailed estimates and copy of the original executed contract(s) may be required for review to validate the declared scope and/or value of the construction. Final valuation shall be set by the city engineer.
(Ord. No. 88-148, § 1(204), 10-7-1988; Ord. No. 99-131, § 1(203), 7-15-1999; Ord. No. 10-154, § 1(203), 11-9-2010; Ord. No. 19-92, § 1, 7-10-2019)

Sec. 4-7-15. Required application contents.

All applications for a permit must include the following information:

(1) Identify and describe the work to be performed and the proposed use of the site;

(2) Name, address, telephone number, and cellphone number, pager number, telecopier number, and e-mail address, if any, of each of the following:

a. The applicant;

b. The owner of the project;

c. The owner of the property on which the project is to be located;

d. The ground lessee of the property, if the applicant is not the owner of the project or the property;

e. Contact person who is a resident of Alabama if not one of the above;

f. All contractors and subcontractors who shall implement any BMP plan; provided, however, that if the contractor and the subcontractors have not been selected when the application for a permit is filed, the Applicant shall furnish such information to the city engineer within five days of the day or days on which the contractor and/or subcontractors are selected, provided however such information shall be provided prior to any such entities beginning work on the site;

g. The qualified credentialed professional who has approved the BMP plan (this is required for all land-disturbing activities except those related to the construction of individual single-family residences);

(3) Legal description and address, if any, of the property upon which the land-disturbing activity is to be conducted and also a description of the size and particular location on the site for the proposed land-disturbing activity;

(4) Each application for a permit must be accompanied by a map or a plot of the land on which the land-disturbing activity will be conducted and any other information that is required under the provisions of this article;

(5) Include a soil survey where topographically or geologically difficult sites are encountered which shall detail any limitations on use and development which may be restrictive to construction, drainage, soil integrity, slope stability and revegetation of property;

(6) Be accompanied by three sets of each category of plans and specifications as required by this article;

(7) State the estimated cost of work involved, including any temporary and/or permanent erosion and sediment control measures drainage systems and revegetation;(this is required for all land-disturbing activities except those related to the construction of individual single-family residences);

(8) State the schedule of the projecting starting and completion dates of the land-disturbing activity;

(9) Be signed by the owner, or his authorized representative as provided in section 212, who may be required to submit evidence to indicate such authority; and

(10) Give such other information as reasonably may be required by the city engineer to comply with the purposes and intent of this Code.

(Ord. No. 88-148, § 1(205), 10-7-1988; Ord. No. 99-131, § 1(204), 7-15-1999)

Sec. 4-7-16. Plans required.

(a) Each application for a soil erosion and sediment control permit shall be accompanied by three sets of BMP plans and specifications and, if required, supporting data and affidavits prepared and signed by a registered architect, landscape architect, civil engineer, geologist, geotechnical engineer or environmental manager.

(b) Each application for a soil erosion and sediment control permit, except applications related to the construction of an individual single family residence, shall require a soil erosion and sediment control plan ("control plan").

(c) A drainage plan shall be required as set out in section 207.

(d) Soil engineering and engineering geology reports will be required if deemed necessary by the city engineer, owner's architect, landscape architect or civil engineer and/or may also be required by the city engineer in fragile, complex or hazardous areas as provided in section 208. (Ord. No. 88-148, § 1(206), 10-7-1988; Ord. No. 99-131, § 1(205), 7-15-1999)

Sec. 4-7-17. Plan standards.

(a) Persons conducting land-disturbing activities shall take all reasonable measures referred to, or provided for, in this article to protect all public and private property from damage caused by such activities and to reduce stormwater pollution to the maximum extent practicable.

(b) All plans and specifications required to be submitted, including BMP plans for an individual single family residence, should be prepared in a manner which will assure the following standards are met:

(1) Protect and preserve existing natural drainage channels.

(2) Include design provisions to retain off-site natural drainage patterns.

(3) Assure that waters drained from the development are free of point and non-point sources of pollutants, including eroded soil and sediment, and do not cause water problems on adjacent properties to any greater extent than occurs in the absence of development.

(4) Assure that waters are drained from the development in such a manner that will not cause erosion to any greater extent than would occur in the absence of development.

(5) Provide that all roof and foundation drains shall be discharged to natural drainage, engineered detention ponds, curb face outlets, or to a public or approved private storm drain.

(6) All drainage facilities shall be designed to carry waters to the nearest practicable drainage way as provided by the city engineer and/or other appropriate jurisdiction designated as a safe place to discharge such waters. If drainage facilities discharge other than into an approved drainage way, riprap or other erosion protection may be required.

(7) All surface water flowing toward the construction area shall, to the maximum extent practicable, either be passed through the site in a protected channel or diverted by using berms, channels or sediment traps, as necessary.

(8) Cut-fill operations shall be kept to a minimum.

(9) Adequate provisions shall be provided to minimize drainage of surface water from the cut face of excavations or the sloping surfaces of fills.

(10) Slopes shall be no steeper than are safe for the intended use and shall not endanger adjoining property. The slope stability design shall be within normally accepted engineering practice and shall be provided with surface and subsurface drainage as necessary. Erosion and sediment control measures shall be designed, according to the size and slope of the disturbed areas or drainage areas, to minimize erosion and to control sediment, to the maximum extent practicable.

(11) Fills shall not encroach upon natural watercourses or constructed channels in a manner so as to impede water flow or adversely affect other property owners.

(12) Grading equipment shall cross natural drainage ways by the means of bridges or culverts except when such methods are not feasible and provided, in any case, that such crossings are kept to a minimum.

(13) To the maximum extent practicable, sediment in runoff water must be minimized by using appropriate BMPs. Structural controls shall be designed and maintained as required to minimize erosion and pollution to the maximum extent practicable.

(14) Discharges from sediment basins and traps must be conducted in a manner consistent with good engineering practices. Sediment-laden, or otherwise polluted, water discharged from the site must be addressed in a manner consistent with good engineering practices and the requirements of this article.

(15) Control measures shall be maintained as an effective barrier to sedimentation and erosion in accordance with the provisions of this article.

(c) Plans and specifications for all land-disturbing activity which are not for an individual single family residence shall also meet the following standards:

(1) Assure that if drainage levees or flow rates currently impact or will temporarily or permanently increase onto adjacent properties, detention facilities or other acceptable remedies or conservation measures will be installed which shall include the plan and responsibility for the permanent maintenance of such facilities.

(2) When a lake or pond, either new or existing, is incorporated in a development, the developer shall note on his plans if the lake or pond is to be used for sediment control and/or retention during or after construction.

(Ord. No. 88-148, § 1(207), 10-7-1988; Ord. No. 99-131, § 1(206), 7-15-1999)

Sec. 4-7-18. Design and performance standards.

(a) All applications for a permit, except those related to the construction of individual single-family residences, must contain, or be accompanied by a soil erosion and sediment control plan ("control plan"). The control plan shall be prepared by a qualified credentialed professional and shall include the following:

(1) The control plan shall be accompanied by a map or plot of the property upon which land-disturbing activities are to be conducted, prepared by a registered land surveyor, showing the present contour lines of such property, and the present contour lines of at least the nearest 25 feet of the properties immediately adjacent to such property and the existing grades and elevations of all streets which abut such property. Such map or plot shall show all existing drainage facilities and all natural drainage on such property and on such adjacent property.

(2) All proposed contours, the proposed temporary and permanent disposition of surface water and the proposed drainage structures; provided, however, the control plans for utility projects, except sewer projects, shall not be required to show the proposed contours.

(3) The proposed contours in the map or plot shall be depicted in contour intervals of two or fewer feet; provided, however, the control plans for utility projects, except sewer projects, shall not be required to show the proposed contours. All maps, plots and plans submitted shall be on a sheet of paper at least 24 inches by 36 inches and drawn to a scale of not less than one inch equals 100 feet. Contour intervals of more than two feet and maps, plots or plans which are smaller than the required size may be approved by the city engineer, upon written request and for good cause shown.

(b) The control plan shall contain a description of the existing site conditions, a description of adjacent topographical features, the information necessary to determine the erosion qualities of the soil on the site, potential problem areas of soil erosion and sedimentation, soil stabilization specifications, provision for saving topsoil for later revegetation, provision for saving trees and other vegetation and any retention of a buffer,

intended means of revegetation and any provision of a buffer, proposed protective measures for controlling erosion and sediment, both temporary and permanent, storm water management considerations, a projected time schedule for the commencement and completion of the land-disturbing activity, specifications for BMP plan maintenance during the project and after the completion of the project, clearing and grading limits, and all other information needed to depict accurately the solutions to potential soil erosion and sedimentation problems
(Ord. No. 99-131, § 1(207), 7-15-1999)

Sec. 4-7-19. Drainage plans.

(a) A drainage plan shall be required if a project:

(1) Involves land-disturbing activity on a site which changes the natural course of stormwater;

(2) Involves a site which is subject to flash flooding or local ponding as a result of soil conditions and lack of identified drainage channels;

(3) Is located wholly or partially within a 100-year floodplain, a landslide susceptible area, or other fragile lands as may be designated for environmental protection; or

(4) Involves hillside development on slopes steeper than ten percent.

(b) A required drainage plan may be submitted as part of the soil erosion and sediment control plan but must be clearly marked as a "drainage plan." Plans are to be neatly and accurately drawn, at an appropriate scale that will enable ready identification and recognition of submitted information. A drainage plan shall include:

(1) Flow lines of surface waters onto and off the site;

(2) Building pad and existing and proposed finished floor and street elevations if building construction is proposed;

(3) Existing and proposed drainage channels, including drainage swales, wetlands, ditches and berms;

(4) Location and design of any proposed facilities for storage or for conveyance of runoff into indicated drainage channels, including sumps, basins, channels, culverts, ponds, storm drains and drop inlets;

(5) Estimated of exiting and increased runoff resulting from the proposed improvements and a statement of the proposed effects on the existing drainage system and adjacent property.

(Ord. No. 99-131, § 1(208), 7-15-1999)

Sec. 4-7-20. Affidavits.

(a) When determined to be necessary, the city engineer may require affidavits on forms furnished by the city to be executed by the owner and his consultants as to any or all of the following:

(1) A compaction report where a site is proposed to be filled to be used for a building pad;

(2) A soil engineering report, including data regarding the nature, distribution and strength of existing soils, conclusions and recommendations for earthwork procedures and criteria for corrective measures when necessary, and opinions and recommendation covering adequacy of sites for various types of development facilitated by the proposed earthwork;

(3) An engineering geology report, including a description of site geology, conclusions and recommendations regarding the effect of geologic conditions on the proposed development, and opinions and recommendations covering the adequacy of sites for various types of development facilitated by the proposed earthwork;

(4) Other affidavits and reports deemed necessary by the city engineer.

(b) The affidavits as required herein shall be submitted prior to issuance of a permit. Affidavits will be furnished for execution by the owner and

his consultants after completion of construction covered by this permit, affirming that appropriate measures were taken and that the completed construction conforms to the requirements of this article.
(Ord. No. 99-131, § 1(209), 7-15-1999)

Sec. 4-7-21. Maintenance of records.

Records of compliance with the provisions of the permit shall be maintained in the office of the owner or the applicant, shall be available to the contact person and shall be made available at any time for review by the city engineer; provided, that if such records are maintained without the state and, because of their size, cannot be transmitted to the city engineer by telecopier, such records must be delivered to the city engineer (at no expense to the city or the city engineer) within 48 hours of the earliest of the receipt by the owner, applicant or contact person of a request by the city engineer for such records.
(Ord. No. 99-131, § 1(210), 7-15-1999)

Sec. 4-7-22. Amended application; transfer of permit.

(a) A permit may be amended upon the filing with the city engineer of an amended or restated permit application, containing all changes from the original application; provided, that the holder of the Permit shows to the reasonable satisfaction of the city engineer that there are no proposed changes which may affect the quantity and/or quality of stormwater runoff. If an amended or restated application is filed with the city engineer with respect to land-disturbing activities for which a permit has been issued, such existing permit shall continue in effect, and the holder of the permit may continue to operate under it unless and until an amended permit is issued in response to the amended or restated application ("amended permit") at which time the original permit shall expire and all land-disturbing activities must be conducted in accordance with the amended permit.

(b) A permit may be transferred, without the payment of an additional fee, upon the filing with the city engineer of an application for transfer; provided, that the holder and proposed transferee of the permit: (1) submit the bonds required in section 400; and (2) show to the reasonable satisfaction of the city engineer that, upon or following the transfer, there will be no proposed changes which may affect the quantity and/or quality of stormwater runoff. If there is a request for the transfer of a permit and there are to be one or more changes in the operation of the project which is the source of the land-disturbing activity which may affect the quantity and/or quality of stormwater runoff, the new owner or operator of such project must apply to the city for a new permit prior to his involvement with the operation of such project.
(Ord. No. 99-131, § 1(211), 7-15-1999)

Sec. 4-7-23. Signatory requirements.

(a) All applications and correspondence required by this article to be submitted to the city engineer shall be signed as follows:

(1) If an application or correspondence is submitted by a corporation, it must be signed by the president of the corporation or by a vice-president of the corporation who is in charge of a principal business function of the corporation, or any other person who performs similar policy-making or decision-making functions for the corporation, or who has been authorized to sign such applications and/or correspondence by a resolution adopted by the board of directors of the corporation. Proof of the authority of the signatory shall be provided to the city engineer, upon his request.

(2) If an application or correspondence is submitted by a limited liability company, it must be signed by a manager or other person who serves the same or similar function as the president of a corporation.

(3) If an application or correspondence is submitted by a partnership, it must be signed by a general partner of the partnership.

(4) If an application or correspondence is submitted by a sole proprietorship, it must be signed by the proprietor.

(5) If an application or correspondence is submitted by a municipality, county, the state or the federal government or by any municipal, state or federal agency, it must be signed by either the chief executive officer or a principal executive officer of any such government or by either the chief executive officer, a principal executive officer or a senior executive officer having responsibility for the overall operations of a principal geographic unit of any such governmental agency.

(b) Any person signing any application or correspondence required by this article shall make the following certification: "I certify, under penalty of law, that this document and all attachments were prepared under my direction or supervision and that I have personally examined, and I am familiar with, the information in this document and such attachments. Based on my inquiry of those individuals immediately responsible for obtaining the information, I believe the submitted information is true, accurate and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and civil penalty."
(Ord. No. 99-131, § 1(212), 7-15-1999)

Sec. 4-7-24. Issuance of permit; expiration, suspension or revocation.

(a) The purpose of permitting plans and specifications is to assure compliance with this article. The city engineer's review and permitting of plans and specifications is not intended as approval of the overall layout, structural design, grading procedures, situation control, engineer's reports or construction procedures. These responsibilities shall remain with and be those of the owner or his consultants.

(b) The application, plans and specifications, reports, affidavits and other required documents shall be filed with the city engineer as required by this article. Such plans may be reviewed by other departments to check compliance with the laws and ordinances under their jurisdiction. If the city engineer is satisfied that the work described in an application for permit and the plans and specifications filed therewith conform to the requirements of this Code and other pertinent laws and ordinances, that the fees specified in section 203 have been paid and necessary bonds and other surety obtained, he shall issue a permit therefor to the owner.

When the city engineer issues the permit, he shall endorse in writing or stamp "PERMIT ISSUED" on the original set of plans and specifications. The city engineer shall be furnished with two sets of permitted plans. Permitted plans and specifications shall not be changed, modified or altered without authorization from the city engineer; and all work shall be done in accordance with the permitted plans.

(c) One set permitted plans, specifications and other required documents shall be retained by the city engineer for a period of not less than one year from date of completion of the work covered therein. It shall be the responsibility of the owner to maintain one of the sets of permitted plans and specifications on the site at all times during which the work authorized thereby is in progress.

(d) The issuance or granting of a permit shall not permit or be construed as approval for violation of any of the provisions of this article or any other laws or regulations; and such permit shall not be valid, except insofar as the work or use which it authorizes is lawful.

(e) The issuance of a permit shall not prevent the city engineer from thereafter requiring the correction of errors or changes due to unforeseen problems in permitted plans and specifications. The city engineer may require that earthwork operations and project design be modified if significant problems occur which were not considered at the time the permit was issued.

(f) Every permit issued by the city engineer under the provisions of this Code shall expire by limitation and become null and void, if the work authorized by such permit is not commenced within 90 days from the date of issuance of such permit, provided that consecutive renewal of such permit may be granted, at no additional cost, upon written request to the city engineer with good cause shown. The work authorized by such permit shall not be suspended or abandoned

at any time after the work is commenced and shall be carried to completion or the permit shall be void. If work is suspended or abandoned, required bonds may be used to correct or eliminate erosion, drainage problem or hazardous conditions as provided herein.

(g) The city engineer may suspend or revoke a permit or waiver issued under provisions of this Code by giving notice in writing to the owner whenever the permit or waiver is issued in error, on the basis of incorrect information supplied, or in violation of any ordinance, regulation or any of the provisions of this Code.
(Ord. No. 99-131, § 1(213), 7-15-1999)

Secs. 4-7-25—4-7-40. Reserved.

ARTICLE C. LAND-DISTURBING ACTIVITY RESPONSIBILITIES

Sec. 4-7-41. Land-disturbing activity responsibilities.

(a) The persons proposing to conduct any land-disturbing activity, or an agent, contractor or other representative of such person, must contact the city engineer at least five business days before commencement of the land-disturbing activity to advise the city engineer of the commencement of such land-disturbing activity, unless, for good cause shown, the city engineer permits such person, contractor, agent or other representative to contact him nearer to the date of the commencement of such land-disturbing activity.

(b) Other than land-clearing activities required to install the appropriate BMP in accordance with BMP plans, any downslope erosion and sediment control measures, on-site stream channel protection and upslope diversion of drainage required by the BMP plan shall be in place and functional before any clearing or earthwork begins, and shall be constructed and maintained throughout the construction period. Temporary measures may be removed at the beginning of the workday, but shall be replaced at the end of the workday.

(c) The angle for graded slopes and fills shall be no greater than the angle, which can be retained by vegetative cover or other adequate erosion control devices or structures. Any slope or fill which has been graded shall, within 14 days of the completion of such grading or the completion of any phase of grading, be planted or otherwise provided with ground cover, materials, devices or structures sufficient to restrain erosion. The BMPs shall remain in place in accordance with the BMP plan until the graded slope or fill is stabilized.

(d) Adequate protective measures shall be provided for the containment of hazardous substances and any other materials which may pollute the MS4, including petroleum products, lubricants and paint.

(e) All control measures shall be checked, and repaired as necessary, every two weeks in dry periods and within 24 hours after any rainfall at the site of .75 inch within a 24-hour period. During prolonged rainfalls, daily checking and, if necessary, repairing shall be done. The permittee shall maintain written records of such checks and repairs, which records shall be subject to the inspection of the city engineer at any reasonable time.

(f) A site plan, accompanied by a written description of BMPs which are shown on the site plan, and a schedule of implementation during land-disturbing activities and construction shall be furnished to the city engineer prior to the commencement of any land-disturbing activities.

(g) A description of, and procedures for, proper storage, handling and disposal of construction materials stored on-site which could contribute to the pollutant loading to the MS4, shall be furnished to the city engineer prior to the commencement of any land-disturbing activities.

(h) There shall be no distinctly visible floating scum, oil or other matter contained in the stormwater discharge. The stormwater discharge to an MS4 must not cause an unnatural color (except dyes or other substances discharged to an MS4 for the purpose of environmental studies and which do not have a harmful effect on the bodies of water within the MS4) or odor in the

community waters. The stormwater discharge to the MS4 must result in no materials in concentrations sufficient to be hazardous or otherwise detrimental to humans, livestock, wildlife, plant life or fish and aquatic life in the community waters.

(i) The owner shall be responsible for the ongoing observation, review and field issuance of reports in the actual land-disturbing activity. This responsibility shall include, but need not be limited to, testing, inspection and issuing of field reports as to the establishment of line, grade and drainage of the project area. Civil engineering record documents shall be preserved in accord with state law.

(j) The city engineer may require inspection and testing by an approved testing agency if he determines that such inspection and testing is necessary because unusual, complex or hazardous conditions exist on or adjacent to the site. The cost of such inspection and testing shall be the responsibility of the owner. The testing agency's responsibility shall include, but is not limited to, inspection and issuance of affidavits concerning the inspection of cleared areas and benches to receive fill, and the compaction of fills.
(Ord. No. 99-131, § 1(300), 7-15-1999)

Sec. 4-7-42. Notification of noncompliance.

If the owner, his contractor or his consultants finds that the work is not being done in conformance with this Ordinance or the permitted plans, the discrepancies, if not corrected in a timely manner, shall be reported immediately in writing to the city engineer, plans for corrective measures shall be submitted to the city engineer along with an appropriate schedule for completion of such corrections.
(Ord. No. 99-131, § 1(301), 7-15-1999)

Sec. 4-7-43. Replacement of contractors or consultants.

If the owner's contact person, contractor, civil engineer, soil engineer, engineering geologist or the testing agency of record are changed during the course of the work, the work shall be stopped until the owner has notified the city engineer in writing and properly replaced the contractor or consultants of records to the satisfaction of the city engineer.
(Ord. No. 99-131, § 1(302), 7-15-1999)

Secs. 4-7-44—4-7-59. Reserved.

ARTICLE D. BONDS, LETTERS OF CREDIT

Sec. 4-7-60. Bonds, letters of credit.

Each control plan must be accompanied by a letter of credit or, a surety bond with the city having the right to approve the security which shall be furnished. A letter of credit, or a surety bond (collectively referred to as "security") shall be furnished to the city in accordance with the following provisions:

(1) The city engineer shall require security in such amount as specified herein to assure that the work, if not completed or if not in accordance with the permitted plans and specifications, will be corrected to eliminate hazardous conditions, erosion and/or drainage problems.

(2) The security shall contain, or have attached to it as an exhibit, a legal description of the site. The security shall remain in effect until it has been released in writing by the city engineer as provided in section 401. A bond with a specific expiration date shall not be acceptable.

(3) The security for clearing operations only shall be in the amount of $1,000.00 per acre for each acre, or fraction of an acre, disturbed or affected by such operations.

(4) The security for earthwork or clearing and earthwork operations shall be in the amount of $3,000.00 per acre for each acre, or fraction of an acre, disturbed or affected by such operations.

(5) Security equal to double the amounts required in subsections (3) and (4) of this section, shall be required where clearing or earthwork is performed in areas designated as floodways, floodplains or areas susceptible to landslides.

(6) Each letter of credit must be issued by a bank which has a principal office in Alabama.

(7) Each letter of credit must be issued by a bank which is satisfactory to the city and each surety bond must be issued by a surety company which is qualified to do business in Alabama and which is otherwise satisfactory to the city.

(Ord. No. 99-131, § 1(400), 7-15-1999)

Sec. 4-7-61. Release of surety bonds.

One year following the completion of vegetation and upon receipt of the as-built plans, the city will release the surety bonds or other form of security to the owner; provided, however, that if vegetation has not been established for an entire growing season, the bonds or other surety shall not be released for one year plus one growing season after the vegetation becomes established with standing growth.

(Ord. No. 99-131, § 1(401), 7-15-1999)

Secs. 4-7-62—4-7-77. Reserved.

ARTICLE E. INSPECTION, OBSERVATION, COMPLETION

Sec. 4-7-78. Observation of construction.

(a) All land-disturbing activity for which a permit is required shall be subject to observation, inspection and review by the city engineer.

(b) It will be the responsibility of the owner to notify the city engineer in writing of the completion of the following:

(1) Temporary erosion control measures.

(2) Clearing.

(3) Rough grading work.

(4) Final grading work.

(5) All work, including completion of vegetation.

(c) Conditions may reveal the need for additional erosion control measures which shall, if directed by the city engineer, be promptly acquired and installed by the owner.

(Ord. No. 99-131, § 1(500), 7-15-1999)

Sec. 4-7-79. Inspections.

(a) The city engineer, or an authorized agent of the city engineer, bearing proper identification, may enter and inspect all land-disturbing activities for regular periodic inspections, investigations, monitoring, observations, measurements, enforcement, sampling and testing to verify compliance with the provisions of this article and the specific BMP plans and control plans for such land-disturbing activities. The inspections shall be conducted at reasonable times. The city engineer shall inspect the construction site to confirm the implementation and the maintenance of BMP plans. Such site shall also be inspected when the city engineer, or his authorized agent, believes, as a result of complaints or monitoring activity, that land-disturbing activities on the site are causing a substantial pollutant loading which threatens the MS4.

(b) Upon the refusal by any property owner to allow the city engineer to enter, or to continue an inspection on, a site on which land-disturbing activities or construction work is being done, the city engineer may issue a stop work order.

(c) If the city engineer or his authorized agent has reasonable cause to believe that discharges from the land-disturbing activities to the MS4 may cause an imminent threat to human health or the environment, an inspection of the site may take place at any time and without notice to the owner of the property or a representative on site. The city engineer or his authorized agent shall present proper identification upon request of the owner or his representative.

(Ord. No. 99-131, § 1(501), 7-15-1999)

Sec. 4-7-80. Notification of completion.

The owner shall notify the city engineer when the project has been completed, including installation of all drainage facilities and their protective devices and all the provisions of the sediment

and erosion control plan in accordance with the final permitted plans and that all the required reports have been submitted.
(Ord. No. 99-131, § 1(502), 7-15-1999)

Secs. 4-7-81—4-7-96. Reserved.

ARTICLE F. MONITORING, ENFORCEMENT AND ABATEMENT

Sec. 4-7-97. Monitoring.

The city engineer, or his authorized agent, may periodically monitor the quality of stormwater and the concentration of pollutants, including eroded soil and sediment, in storm water discharges from land-disturbing activities pursuant to this article.
(Ord. No. 99-131, § 1(600), 7-15-1999)

Sec. 4-7-98. Detection of illicit connections, improper disposal and/or discharges.

The city engineer, or his authorized agent, shall take appropriate steps to detect and eliminate illicit connections and eliminate improper disposal and/or discharge to the City's MS4, including the required dry-weather and wet-weather programs to screen illicit connections and improper discharges and identify their source or sources from land-disturbing activities.
(Ord. No. 99-131, § 1(601), 7-15-1999)

Sec. 4-7-99. Unauthorized discharge a public nuisance.

Any discharge of stormwater made in violation of this article or of any condition of a permit issued pursuant to this article is hereby declared a public nuisance and shall be subject to correction and/or abatement in accordance with applicable law, provided however, the following direct or indirect discharges into the MS4 are allowable under the terms of this article unless determined by the city engineer to be a source of contamination to the community water: landscape irrigation; uncontaminated water from foundation and footing drains; discharges from springs; lawn watering; and discharges from firefighting activities.
(Ord. No. 99-131, § 1(602), 7-15-1999)

Sec. 4-7-100. Accidental discharges.

(a) In the event of any discharge of a hazardous substance or a significant spill of a hazardous substance which could constitute a threat to human health or the environment, the owner or operator of the site shall give notice to the city engineer, the city fire and rescue service and the local emergency management authority in the same manner and within the same time as is required by state regulations for notice to ADEM.

(b) The owner or operator of such property shall take all reasonable steps to minimize any adverse impact to the community waters caused by discharges to the MS4, including such improved or additional monitoring as may be necessary to determine the nature and impact of the discharge. Absent a compelling public interest to the contrary, it shall not be a defense for the owner or operator in an enforcement action that it would have been necessary to halt or reduce the business or activity of the site, or any project or facility thereon, to maintain water quality and minimize any adverse impact that the discharge may cause.
(Ord. No. 99-131, § 1(603), 7-15-1999)

Sec. 4-7-101. Immediate threats to public health or welfare.

Notwithstanding any other provision in this article to the contrary, in the event of an immediate threat to the public health or welfare, the city engineer may take all appropriate measures to remove or alleviate such threat.
(Ord. No. 99-131, § 1(604), 7-15-1999)

Sec. 4-7-102. Notification; enforcement remedies.

(a) *Notification of violation.* Whenever the city engineer finds that any person is in violation of any provision of this article, or any order issued hereunder, the city engineer or his authorized agent may serve upon such person written notice of the violation. Within ten calendar

days of the date of such notice, an explanation of the violation and a plan for the satisfactory correction and future prevention thereof, including specific required actions, shall be submitted to the city engineer. Submission of such plan shall in no way relieve such person in violation of this article of liability for any violations occurring before or after receipt of the notice of violation.

(b) *Compliance order.* When the city engineer finds that any person has violated, or continues to violate, this article, he may issue a compliance order to the violator, directing that, within a specified time period, adequate structures and devices be installed, or procedures implemented, and properly operated, or other action be taken, to remedy such violation. Compliance orders may also contain such other requirements as may be reasonably necessary and appropriate to address such violation, including the construction of appropriate structures, installation of devices and self-monitoring and management practices.

(c) *Cease and desist orders.* When the city engineer finds that any person has violated, or continues to violate, this article or any order issued under this article, the city engineer may issue an order to such person to cease and desist all such violations immediately, and direct such person in violation of this article to:

(1) Comply with this article forthwith; or

(2) Take such appropriate remedial or preventive action as may be required to address properly a continuing or threatened violation of this article, including halting operations and terminating the discharge.

(Ord. No. 99-131, § 1(605), 7-15-1999)

Sec. 4-7-103. Violation, penalties.

It shall be unlawful for any person to:

(1) Violate any provision of this article or fail to comply therewith;

(2) Violate the provisions of any permit issued pursuant to this article;

(3) Fail or refuse to comply with any lawful notice to abate issued by the city engineer which has not been appealed to the storm water appeal board of the authority ("board") within the time specified by such notice; or

(4) Violate any lawful order of the board.

Such person shall be guilty of a misdemeanor; and each day of such violation, failure or refusal to comply with this article shall be deemed a separate offense and punishable accordingly. Any person found to be in violation of any of the provisions of this article shall be punished by a fine of not less than $100.00 and not more than $500.00 and/or up to 180 days in jail.
(Ord. No. 99-131, § 1(706), 7-15-1999)

Secs. 4-7-104—4-7-138. Reserved.

ARTICLE G. STORM WATER APPEAL BOARD OF STORM WATER MANAGEMENT AUTHORITY

Sec. 4-7-139. Storm water appeal board of storm water management authority, established.

The authority, a public corporation established by Act No. 95-755, Acts of Alabama, and consisting of Jefferson County and 23 member municipalities, established a board of five members known as the storm water appeal board of storm water management authority ("board"). The composition of the board, the duties of the members of the board, the power of the board to grant variances, the hearing and review procedures of the board and other matters with respect to the board are set forth in a resolution adopted by the authority on May 25, 1999, which resolution is on file in the office the city clerk and in the office of the authority at the Jefferson County Courthouse.
(Ord. No. 99-131, § 1(800), 7-15-1999)

Sec. 4-7-140. Appeals.

Appeal to board of an order of the city engineer: Any person aggrieved by an order of the city engineer may appeal said order to the board and have such order reviewed by the board. A written notice of appeal shall be filed with the city engineer and with the board within 15 days of

the issuance of such order, and such notice shall set forth with particularity the order complained of, and the relief sought by, the person filing the appeal. The appeal may be heard at a regular meeting of the board or the chairman of the board may call a special meeting of the board to consider such appeal. The board may, in its discretion, suspend the operation of the order until the board has acted upon the appeal, which suspension must be made in writing and delivered to the city engineer and the person who filed the appeal by personal delivery or by certified or registered mail, return receipt requested.
(Ord. No. 99-131, § 1(801), 7-15-1999)

Sec. 4-7-141. Variances.

(a) The board may grant variances from the requirements of this article; provided, that to do so would not be contrary to the public interest, would not violate the spirit of this article, and would not result in the violation of the NPDES permit ALS000001 or any state or federal law or regulation. A variance shall not be granted unless exceptional circumstances, applicable to the site with respect to which the variance is requested, exist so that strict adherence to the provisions of this article would result in unnecessary hardship and the granting of such variance would not result in a condition contrary to the intent of this article.

(b) A party seeking a variance must submit a written petition for a variance, which sets forth the specific variance sought and the reasons therefor, with supporting data as to why the requested variance should be granted. The petition shall include all information necessary to evaluate the requested variance. The petition for a variance shall be filed with the city engineer.

(c) The city engineer shall conduct a review of the petition for a variance within ten working days after his receipt of such petition and may either support, or object to, the petition. The city engineer shall prepare a written statement of support of, or a written statement of the reason or reasons for his objection to such petition and deliver a copy of such statement to the board and to the person requesting the variance.

(d) Once the city engineer has issued such statement or such ten-day period for review has expired, the petition shall be subject to board action at the next regularly scheduled meeting of the board or at a special meeting of the board, called at the discretion of the chairman of the board.
(Ord. No. 99-131, § 1(802), 7-15-1999)

Secs. 4-7-142—4-7-157. Reserved.

ARTICLE H. MISCELLANEOUS

Sec. 4-7-158. Notices.

Whenever the city is required or permitted to:

(1) Give a notice to any party, such notice must be in writing; or

(2) Deliver a document to any party; such notice or document may be delivered by personal delivery, certified mail (return receipt requested), registered mail (return receipt requested) or a generally recognized overnight carrier, to the address of such party which is in the records of the city or is otherwise known to the city.

(Ord. No. 99-131, § 1(901), 7-15-1999)

Sec. 4-7-159. References.

Whenever a chapter or section is referred to in this article, unless the context clearly indicates the contrary, such reference shall be to a chapter or section of this article.
(Ord. No. 99-131, § 1(902), 7-15-1999)

Sec. 4-7-160. Minimum requirements.

(a) In interpreting and applying the provisions of this article, they shall be held to be the minimum requirements for the promotion of public health, safety, convenience, comfort, and the general welfare.

(b) Where this article imposes greater restrictions than are imposed or required by other ordinances, rules, regulations or permits, or by easements, covenants or agreements, the provisions of this article shall apply.

(c) Where any other laws, ordinances or rules, regulations or permits or restrictive conditions of other governmental or city agencies charged with land or clean water regulation impose greater restrictions than are required under the regulations of this article, such provisions shall govern.
(Ord. No. 99-131, § 1(903), 7-15-1999)

CHAPTER 8. STORMWATER PROTECTION ORDINANCE

ARTICLE A. GENERAL PROVISIONS

Sec. 4-8-1. Title.

(a) These regulations shall hereafter be known, cited and referred to as the Stormwater Protection Ordinance of the City of Birmingham, Alabama.
(Ord. No. 14-198, § 1, 12-16-2014)

Sec. 4-8-2. Purpose/intent.

(a) The primary intent of this chapter is to protect the health, safety, and general welfare of the citizens of the City of Birmingham, Alabama, through the regulation of non-stormwater discharges to the city's municipal separate stormwater system ("MS4") to the maximum extent practicable as required by federal and state law.

(b) This chapter establishes methods for controlling the introduction of pollutants into the City of Birmingham's MS4 in order to comply with requirements of the national pollutant discharge elimination system ("NPDES") permit.

(c) The objectives of the stormwater protection ordinance are:

(1) To regulate the contribution of pollutants to the MS4 from stormwater discharges by any person;

(2) To prohibit illicit connections and non-stormwater discharges to the MS4;

(3) To prevent non-stormwater discharges, generated as a result of spills, inappropriate dumping or disposal, to the city's MS4; and

(4) To establish legal authority to carry out all inspections, surveillance, monitoring and enforcement necessary to ensure compliance with this chapter and the NPDES MS4 Permit.
(Ord. No. 14-198, § 1, 12-16-2014)

Sec. 4-8-3. Authority.

Code of Ala. 1975, tit. 11, Ch. 89C, authorizes the City of Birmingham to specifically regulate and control stormwater discharges and eliminate the discharge of pollutants to the city's MS4.
(Ord. No. 14-198, § 1, 12-16-2014)

Sec. 4-8-4. Applicability.

This chapter applies to all premises (whether developed or undeveloped) that have stormwater discharges associated with any and all land uses within the City of Birmingham.
(Ord. No. 14-198, § 1, 12-16-2014)

Sec. 4-8-5. Administration.

The director of the department of planning, engineering and permits of the city or his designee, shall administer, implement, and enforce the provisions of this chapter and shall act as the "official" for the provisions of this chapter. Any powers granted or duties imposed may be delegated by the director of planning, engineering and permits to persons or entities acting in the beneficial interest of or in the employ of the city.
(Ord. No. 14-198, § 1, 12-16-2014)

Sec. 4-8-6. Regulatory consistency.

This chapter shall be construed to assure consistency with the requirements of the Clean Water Act (CWA), the Alabama Water Pollution Control Act (AWPCA) and acts amendatory thereof or supplementary thereto or any other applicable regulations including the city's NPDES MS4 Phase 1 permit.

The standards set forth herein and promulgated pursuant to this chapter are minimum standards; therefore this chapter does not intend nor imply

that compliance by any person will ensure that there will be no contamination, pollution, nor unauthorized discharge of pollutants.
(Ord. No. 14-198, § 1, 12-16-2014)

Secs. 4-8-7—4-8-10. Reserved.

ARTICLE B. DEFINITIONS

Sec. 4-8-11. Usage.

(a) For the purposes of this chapter, certain words, terms and phrases shall be used, interpreted and defined as set forth in this chapter.

(b) Definitions not expressly prescribed herein are to be construed in accordance with terms defined in the Federal Clean Water Act (33 U.S.C. § 1251, et seq., as amended)) and the Alabama Water Pollution Control Act of 1975 (§ 22-22-1, as amended), the regulations promulgated with respect to those laws, and the city's NPDES MS4 permit. Terms not otherwise defined shall be construed in accordance with customary usage in municipal planning and engineering practice.
(Ord. No. 14-198, § 1, 12-16-2014)

Sec. 4-8-12. Definitions.

Accidental discharge. A discharge prohibited by this chapter into the MS4 which occurs by chance and without planning or thought prior to occurrence.

Alabama Department of Environmental Management (herein abbreviated as "ADEM"). The state regulatory agency, created under Code of Ala. (1975), § 22-22A-1, et seq., responsible for administering and enforcing the stormwater laws of the United States of America and the state.

Alabama Water Pollution Control Act ("AWPCA"). The state act found in Code of Ala., § 22-22-1 et seq. and any subsequent amendments thereto.

Best management practices ("BMPs"). Site specific schedules of activities, prohibitions of practices, general good housekeeping practices, pollution prevention and educational practices, maintenance procedures, and other management practices to prevent or reduce the discharge of pollutants directly or indirectly to stormwater, receiving waters, or stormwater conveyance systems. BMPs also include treatment requirements, operating procedures, and practices to control site runoff, spillage or leaks, sludge or water disposal, or drainage from raw materials storage and construction sites.

City. The City of Birmingham, Alabama, a municipal corporation organized under the laws of the State of Alabama.

City official or official. The director of the department of planning, engineering and permits of the city or his designee.

Clean Water Act ("CWA"). The Federal Water Pollution Control Act (33 U.S.C. § 1251, et seq.) and any subsequent amendments thereto.

Construction activity. Activities that require a land disturbing activity permit and are subject to the city's soil erosion and sediment control ordinance and/or NPDES construction permits.

Discharge. The passing of water or other liquid into the MS4 or into waters of the State. Code of Ala. (1975), § 22-22-1.

Discharger. Any person, property owner, or operator which causes, allows, permits, or is otherwise responsible for a discharge.

EPA. United States Environmental Protection Agency.

Hazardous material. Any material, including any substance, waste, or combination thereof, which because of its quantity, concentration, or physical, chemical, or infectious characteristics may cause, or significantly contribute to, a substantial present or potential hazard to human health, safety, property, or the environment when improperly treated, stored, transported, disposed of, or otherwise managed.

High-risk source. Municipal landfills; other treatment, storage, or disposal facilities for municipal waste; hazardous waste treatment, storage, disposal and recover facilities; facilities subject to Emergency Planning & Community Right-to-Know Act (EPCRA), Title III, Section

313; and any other industrial or commercial source that the city official determines may make or has made a substantial pollutant contribution to the MS4.

Illicit connection. An illicit connection is defined as any man-made conveyance connecting an illicit discharge directly to a municipal separate storm sewer.

Illicit discharge. Any discharge to a municipal separate storm sewer system that is not composed entirely of stormwater except discharges pursuant to an NPDES permit (other than the NPDES permit for certain discharges from the municipal separate storm sewer system), discharges resulting from firefighting activities, and other allowable non-stormwater discharges.

Industrial activity. Activities subject to NPDES Industrial Permits as defined in 40 C.F.R. § 122.26(b)(14) by the EPA.

Municipal separate storm sewer system (MS4 or storm drainage system) means a conveyance, or system of conveyances (including roads with drainage systems, municipal streets, catch basins, curbs, gutters, ditches, man-made channels, or storm drains): (i) owned or operated by a state, city, town, borough, county, parish, district, association, or other public body (created by or pursuant to state law) having jurisdiction over disposal of wastes, stormwater, or other wastes, including special districts under state law such as a sewer district, flood control district or drainage district, or similar entity, or an Indian Tribe or an authorized Indian tribal organization, or a designated and approved management agency under Section 208 of the CWA that discharges to waters of the United States.

National Pollutant Discharge Elimination System (NPDES) Stormwater Discharge Permit. A permit issued by EPA (or by a state under authority delegated pursuant to 33 USC § 1342(b)) that authorizes the discharge of pollutants to waters of the United States and waters of the state, whether the permit is applicable on an individual, group, or general area-wide basis.

Operator. The party or parties that (either individually or groups taken together) meet either of the following two criteria: 1) They have operational control over the site specifications (including the ability to make modifications in specifications); or 2) They have the day to day operational control of those activities at the site necessary to ensure compliance with stormwater pollution prevention plan requirements and any permit conditions.

Person. Any individual, association, organization, partnership, firm, corporation or other entity recognized by law and acting as the owner or owner's agent of a premises or as a lessee of a premises. Any and all persons, natural or artificial, including, but not limited to, any individual, partnership, association, society, joint stock company, firm, company, corporation, institution, trust, other legal entity, business organization or any governmental entity and any successor, representative, responsible corporate officer, agent or agency of the foregoing.

Pollutant. Anything which causes or contributes to pollution. Pollutants may include, but are not limited to: dredged spoil, solid waste, incinerator residue, sewage, garbage, sewage sludge, munitions, chemical wastes, biological materials, radioactive materials, heat, wrecked or discarded equipment, rock, sand, cellar dirt and industrial, municipal, and agricultural waste discharged into water. The term also includes any other effluent characteristics specified in the city's NPDES permit.

Pollution. The term "pollution" means the man-made or man-induced alteration of the chemical, physical, biological, and radiological integrity of water.

Premises. Any building, lot, parcel of land, or portion of land whether improved or unimproved including facilities, adjacent sidewalks and parking strips located thereon for all land uses.

Sewage. The term "sewage" means any solid, semisolid, or liquid waste from a sewer or drain; water-carried human, animal or vegetable wastes from residences, buildings, institutions, food service and industrial establishments, and other similar facilities. When used in connection with this chapter, the term "sewage" shall also include the contents or drainage from water closets,

lavatories, showers, bathtubs, clothes washing machines, kitchen sinks, grease traps, dishwashers, or other similar appurtenances.

Source. The term "source" shall mean any specific activity, operation, use or facility which discharges or may discharge any pollutant to the MS4 or which may be required by the Clean Water Act to have a permit to discharge stormwater associated with the source.

State. The State of Alabama.

Stormwater. Any surface flow, runoff, and drainage consisting entirely of water from any form of natural precipitation, and resulting from such precipitation. It is that portion of the rainfall and resulting surface flow that is in excess of that which can be absorbed through the infiltration capacity of the surface of the basin.

Stormwater pollution prevention plan. A document which describes the best management practices and activities to be implemented by a person or business to identify sources of pollution or contamination potential at a site and the actions to eliminate or reduce pollutant discharges to stormwater, stormwater conveyance systems, and/or receiving waters to the maximum extent practicable or technologically feasible.

Structural stormwater control. A structural stormwater management facility or device that controls stormwater runoff and changes the characteristics of that runoff, including, but not limited to quantity, quality, and period of release or the velocity of flow.

Watercourse. A natural or man-made surface drainage channel or body of water (including a lake or pond) through which a water flow occurs, either continuously or intermittently.

Waters of the state. Means all waters of any river, stream, watercourse, pond, lake, coastal, ground or surface water, wholly or partially within the state, natural or artificial. This does not include waters which are entirely confined and retained completely upon the property of a single individual, partnership or corporation unless such waters are used in interstate commerce. (Code of Ala. 1975, § 22-22-1(b)(2). "Waters of the State" include all "navigable waters" as defined in 502(7) of FWPCA, which are within the State of Alabama.

Waters of the United States means:

(a) All waters which are currently used, were used in the past, or may be susceptible to use in interstate or foreign commerce, including all waters which are subject to the ebb and flow of tide;

(b) All interstate waters, including interstate "wetlands";

(c) All other waters such as interstate lakes, rivers, streams (including intermittent streams), mudflats, sandflats, wetlands, sloughs, prairie potholes, wet meadows, playa lakes, or natural ponds the use, degradation, or destruction of which would affect or could affect interstate or foreign commerce including any such waters.

i. Which are or could be used by interstate or foreign travelers for recreational purposes;

ii. From which fish or shellfish are or could be taken and sold in interstate or foreign commerce; or

iii. Which are used or could be used for industrial purposes by industries in interstate commerce:

(d) All impoundments of waters otherwise defined as waters of the United States under this definition;

(e) Tributaries of water identified in paragraphs (a) through (d) of this definition;

(f) The territorial sea; and

(g) Wetlands adjacent to waters (other than waters that are themselves wetlands) identified in paragraphs (a) through (t) of this definition.

Waste treatment systems, including treatment ponds or lagoon designed to meet the requirements of CWA are not waters of the United States. This exclusion applies only to manmade bodies of water which neither were originally created in waters of the United States

(such as disposal areas in wetlands) nor resulted from the impoundment of waters of the United States.
(Ord. No. 14-198, § 1, 12-16-2014)

Secs. 4-8-13—4-8-20. Reserved.

ARTICLE C. PROHIBITIONS

Sec. 4-8-21. Prohibition of illicit discharges.

(a) *Prohibition.* Unless otherwise excepted herein, no person now or in the future, shall spill, dump, throw, drain, make, cause to be made or continue to be made; allow others under such person's control to spill, dump, throw, drain, make, cause to be made or continue to be made; or otherwise discharge and/or dispose of into the city's MS4 any illicit discharge, including but not limited to pollutants or waters containing any pollutants, other than stormwater. The prohibition shall not apply to any non-stormwater discharge permitted under an NPDES permit, waiver, or waste discharge order issued to the discharger and administered under the authority of ADEM, provided that the discharger is in full compliance with all requirements of the permit, waiver or order and other applicable laws and regulations.

(b) *Exceptions.* Discharges from the following activities will not be considered a source of pollutants to the MS4 when properly managed to ensure that no potential pollutants are present, and therefore shall not be considered illicit discharges unless determined to cause a violation of the provisions of the AWPCA, CWA or this article:

(1) Water line flushing (including fire hydrant testing);

(2) Landscape irrigation water and/or lawn watering;

(3) Diverted stream flows carried out in accordance with applicable law;

(4) Rising ground water;

(5) Building pressure wash water without detergents;

(6) Uncontaminated ground water infiltration to storm drains;

(7) Uncontaminated pumped ground water;

(8) Discharges from potable water sources;

(9) Foundation and/or footing drain water (not including active groundwater dewatering systems);

(10) Water from crawl space pumps;

(11) Air conditioning condensation;

(12) Springs;

(13) Street wash water;

(14) Non-commercial or charity car washes;

(15) Individual residential washing of vehicles;

(16) Discharges from natural riparian habitat and/or wetlands;

(17) Swimming pool discharges (only if dechlorinated);

(18) Discharges or flow from firefighting activities and other discharges determined by the fire chief as being necessary to protect public health and safety; and

(19) Discharges associated with biodegradable dye testing.

(c) The City of Birmingham may exempt in writing other non-stormwater discharges which are not a source of pollutants to the MS4.

(d) A person must not improperly store, handle, or apply any pollutant in a manner that will cause its exposure to rainfall or runoff and discharge as point source or nonpoint source pollution into the city's MS4 except in concentrations and quantities authorized by an approved NPDES discharge permit and consistent with a stormwater pollution prevention plan for compliance.

(e) No person shall throw, deposit, leave, maintain, keep, or permit to be thrown, deposited, left, or maintained, in or upon any component of the MS4 or any public or private property, driveway, parking area, street, alley, or sidewalk any refuse, rubbish, garbage, litter, or other discarded or abandoned objects, articles, and accumulations, so that the same may cause or

contribute to pollution of the MS4. Yard wastes deposited in streets in proper waste receptacles or otherwise in compliance with city ordinances, regulations or policies for the purposes of collection are exempted from this prohibition. However, no waste or receptacle shall be placed in a manner to block, obstruct or restrict drain inlets to the MS4.
(Ord. No. 14-198, § 1, 12-16-2014)

Sec. 4-8-22. Prohibition of illicit connections.

(a) *Prohibition.* The construction, use, maintenance or continued existence of undocumented and illicit connections to the storm drainage system is prohibited and a violation of this chapter.

(b) *Past connections prohibited.* This prohibition expressly includes, without limitation, illicit connections made in the past, regardless of whether the connection was permissible under law or practices applicable or prevailing at the time of connection.

(c) *Sewage connections prohibited.* A person is considered to be in violation of this ordinance if the person connects a line conveying sewage to the MS4 or allows such an illicit connection to continue. Improper connections in violation of this ordinance shall be disconnected and redirected, if necessary, to an approved onsite wastewater management system or a sanitary sewer system upon approval of the city and at no cost to the city for same.

(d) *Warning notice provided for:* Upon discovering an illicit discharge to the MS4, the official shall investigate and identify the property or properties from which the discharge is suspected to have originated. The official shall issue written warning notice to the owner or operator of the premises requiring that any drain or conveyance that has not been permitted by the city and documented in plans, maps or the equivalent and which may be connected to the MS4 be located. Such notice will specify a reasonable time within which the location of the drain or conveyance is to be determined, the basis for the reasonable suspicion of an undocumented connection, that the drain or conveyance be identified as storm drainage system, sanitary sewer, or other, and that the outfall location or point of connection to the storm drainage system, sanitary sewer system or other discharge point be identified. The owner or operator of the premises shall cooperate with the official in locating the illicit connection or shall investigate and report the location of the connection to the official. Results of these investigations are to be documented and provided in writing to the official.

(e) *Discontinue illicit discharges:* Upon identifying and locating an illicit connection, the city official may require that discharges from the illicit connection be discontinued and disconnected from the MS4 or may require that the owner or operator provide a plan acceptable to the city for bringing the connection into compliance with this chapter.
(Ord. No. 14-198, § 1, 12-16-2014)

Secs. 4-8-23—4-8-30. Reserved.

ARTICLE D. MS4 PROTECTION

Sec. 4-8-31. General provisions.

(a) No person owning or leasing premises through which a MS4 passes shall throw, deposit, leave, maintain, keep, or permit to be thrown, deposited, left, maintained or kept in any part of a MS4 any trash, debris, other obstacles that would cause pollution, contamination or pollutant loading.

(b) A person shall keep and maintain that part of the MS4 on the premises owned or leased by such person free from any such trash, debris, excessive vegetation and other obstacles that would pollute or contaminate the MS4.

(c) A person shall only be liable under this chapter for trash, debris, excessive vegetation and other obstacles that originate from the premises owned or leased by such person. Nothing in this ordinance shall allow any person to maintain any trash, debris, excessive vegetation or other obstacles on the premises in violation of section 11-8-8 of the General Code of the City of Birmingham that may impact the MS4.
(Ord. No. 14-198, § 1, 12-16-2014)

Secs. 4-8-31—4-8-40. Reserved.

ARTICLE E. INDUSTRIAL OR CONSTRUCTION ACTIVITY DISCHARGES

Sec. 4-8-41. Industrial or commercial activity.

(a) Plan and records review requirement. Any person requesting a business license, rezoning, permit to construct, or permit to subdivide for a property in the City of Birmingham not limited to residential, industrial, agricultural or construction activities will be subject to plan and records reviews by the city official.

(b) It shall be unlawful to commence or continue to conduct or for the owner to allow the commencement or conduct of any commercial or industrial activity with the potential to discharge non-stormwater, whether illicitly or by accident, that is not exempted under this ordinance without first having submitted to the city official either a notice of intent to seek a National Pollutant Discharge Elimination System (NPDES) operating permit from ADEM, if required by state law to do so, a current copy of an NPDES operating permit, or a statement that an NPDES permit is not required.

(c) Compliance with subsection (b) above, shall not excuse the owner from the need to obtain other required state and local permits or licenses.
(Ord. No. 14-198, § 1, 12-16-2014)

Sec. 4-8-42. Construction and land disturbing activities.

(a) City of Birmingham Soil Erosion and Sediment Control permit required. Construction or land-disturbing activity shall be carried out in accordance with and governed by the City of Birmingham Soil Erosion and Sediment Control Ordinance, Ordinance No. 99-131, as amended. It shall be the duty of the owner, or his duly authorized agent, of the land on which construction or land-disturbing activity is proposed to be conducted to first obtain a soil erosion and sediment control permit from the city, as required by Ordinance No. 99-131, as amended. Failure to do so prior to construction is unlawful and subject to penalty in accordance with Ordinance No. 99-131, as amended.

(b) Consistent with permit conditions. Any person subject to a City of Birmingham Soil Erosion and Sediment Control Permit and required also to have or having a NPDES permit shall comply with all terms and provisions of such permits. Any person required to have a NPDES permit shall provide the city official with either a copy of the permit or notice of intent (NOI) of said permit, a copy of the stormwater pollution prevention plan, and copies of all monitoring data and reports submitted to ADEM as required by the NPDES permit.
(Ord. No. 14-198, § 1, 12-16-2014)

Sec. 4-8-43. Notice of intent (NOI).

The owner and/or operator of a source, including construction sites, required to have a NPDES permit to discharge stormwater shall submit a copy of the NOI to the official. The copy of the NOI may be delivered to the official either in person or by mailing to:

Notice of Intent to Discharge Stormwater
Planning, Urban Design and Watershed Management Division
Department of Planning, Engineering and Permits
710 North 20th Street,
City Hall, 2nd Floor
Birmingham, Alabama 35203
(Ord. No. 14-198, § 1, 12-16-2014)

Sec. 4-8-44. Stormwater discharge without permit prohibited.

No direct discharge to the city's MS4 permit shall be permitted until either proof of a NPDES NOI or NPDES permit has first been obtained and/or approved by the city official.
(Ord. No. 14-198, § 1, 12-16-2014)

Secs. 4-8-45—4-8-50. Reserved.

ARTICLE F. COMPLIANCE MONITORING

Sec. 4-8-51. Right of entry; inspection and sampling.

(a) The city official may enter upon private property upon reasonable notice to the owner and the person in possession thereof and during

normal business hours and upon the presentation of appropriate credentials for the purpose of performing investigations regarding the existence and source of contamination and determining from the owner or other appropriate individual the methods which they will employ to stop, neutralize, remove, or otherwise remedy the contamination, and as needed t determine compliance or noncompliance with permit conditions, including any prohibition of illicit discharges to its municipal separate storm sewers. Any officer, employee, or other authorized agent who performs the duties authorized by this chapter in accordance with provisions hereof shall be immune from arrest and prosecution for trespass while performing any legal duty pursuant to this chapter by presenting identification issued by the City of Birmingham. Identification issued by the city shall be presented by the city official at the time of entry.

(b) If security measures are in force on a premise, then the premises owner shall make the necessary arrangements to allow access to representatives of the official for the purposes of this chapter. Proof of an illicit discharge or an illicit connection is not required for entry onto a premise.

(c) Owners and/or operators of a premises shall allow the city official reasonable access to all parts of the premises for the purposes of inspection, sampling, photography, videotaping, testing, and examination; for the copying of records that must be kept under the conditions of an NPDES permit to discharge stormwater; and for the performance of any additional duties as required by state and federal law.

(d) The city official shall have the right as may be necessary to conduct monitoring, determine flow connections using test dyes or other appropriate methods, and/or sampling of the premises' stormwater discharges.

(e) Any temporary or permanent obstruction to safe and easy access to the premises to be inspected and/or sampled shall be promptly removed by the owner of the premises at the written or oral request of the city official. The costs of clearing such access shall be borne by the owner and/or operator of the premises.

(f) Unreasonable delay in allowing the city official access to a premise is a violation of this chapter. It shall be understood that for any person who is the owner and/or operator of a source with a NPDES permit to discharge stormwater and denies the official reasonable access to the permitted premises for the purpose of conducting any activity authorized or required by this chapter shall be considered an offense, punishable by Chapter 9 of this title.
(Ord. No. 14-198, § 1, 12-16-2014)

Sec. 4-8-52. Search warrants.

If the city official has been refused access to all or any part of a premises from which stormwater is discharged and is able to demonstrate probable cause to believe that there may be a violation of this chapter, or that there is a need to inspect and/or sample as part of a routine inspection and sampling program designed to verify compliance with this chapter or any order issued hereunder, or to protect the overall public health, safety, and welfare of the community, then the city official may seek issuance of a search warrant from any court of competent jurisdiction.
(Ord. No. 14-198, § 1, 12-16-2014)

Sec. 4-8-53. Emergency discharge.

The city official may, without prior notice, suspend MS4 discharge access to a person when such suspension is necessary to stop an actual or threatened discharge which presents or may present imminent and substantial danger to the environment, or to the health or welfare of persons, or to the MS4. If the violator fails to comply with a suspension order in an emergency, the city may take such steps as deemed necessary to prevent or minimize danger to the MS4 or to minimize danger to persons.
(Ord. No. 14-198, § 1, 12-16-2014)

Secs. 4-8-54—4-8-60. Reserved.

ARTICLE G. REQUIREMENT TO PREVENT, CONTROL, AND REDUCE STORMWATER POLLUTANTS THROUGH THE USE OF BEST MANAGEMENT PRACTICES

Sec. 4-8-61. BMPs required.

(a) All commercial, industrial and high-risk sources shall identify, implement and maintain BMPs to prevent any pollution or contamination of stormwater discharges.

(b) Any person responsible for a property or premise, which is, or may be, the source of an illicit discharge, may be required to implement, at said person's expense, additional structural and/or non-structural BMPs to prevent the further discharge of pollutants to the MS4.

(c) Noncompliance with such BMPs will constitute a violation of this chapter.
(Ord. No. 14-198, § 1, 12-16-2014)

Sec. 4-8-62. Exceptions.

(a) Where BMPs are promulgated by the city or any federal, state or regional agency for any specific activity, operation, or facility which would otherwise cause the discharge of pollutants to the city's MS4, every person undertaking such activity or operation or owning or operating such source shall comply with such requirements.

(b) Compliance with such BMPs shall be deemed in compliance with the provisions of this chapter.

(c) Compliance with all terms and conditions of a valid NPDES permit authorizing the discharge of stormwater associated with construction and/or industrial activity shall be deemed in compliance with the provisions of this chapter.
(Ord. No. 14-198, § 1, 12-16-2014)

Sec. 4-8-63. Responsibility to implement best management practices.

(a) The owner or operator of a commercial, industrial or high risk source shall provide, at their own expense, reasonable protection from accidental discharge of prohibited materials or other wastes into the MS4 through the use of these structural and non-structural BMPs.

(b) Except as set forth herein, any person engaged in activities or operations, or owning facilities or property which results in pollutants entering stormwater and the MS4 shall implement BMPs to the extent they are technologically achievable to prevent and reduce such pollutants.
(Ord. No. 14-198, § 1, 12-16-2014)

Sec. 4-8-64. Spill containment.

(a) Spill containment facilities shall be provided when required by state or federal regulations or, in the judgment of the city.

(b) Such facilities are necessary for the containment of any raw materials, products, wastes or other potential pollutants used or stored on the user's premises.

(c) Facilities are also needed in such locations where a spill of the material may enter into the city MS4 and cause interference or violations of the applicable NPDES permit.
(Ord. No. 14-198, § 1, 12-16-2014)

Secs. 4-8-65—4-8-70. Reserved.

ARTICLE H. NOTIFICATION OF ACCIDENTAL DISCHARGES AND SPILLS

Sec. 4-8-71. Responsibility.

Notwithstanding other requirements of law, as soon as any premises owner or person responsible for a premises or responsible for emergency response for a premises has information of any known or suspected release of materials which is resulting or may result in illicit discharges or pollutants discharging into stormwater and the MS4, said person shall take all necessary steps to ensure the discovery, containment, and cleanup of such release so as to minimize the effects of the discharge.
(Ord. No. 14-198, § 1, 12-16-2014)

Sec. 4-8-72. Release of hazardous materials.

In the event of a release of hazardous pollutants or materials into the MS4, said person shall immediately notify emergency response agencies

of the occurrence via emergency dispatch services (911) and shall also notify the city official in person, by phone or facsimile not later than 24 hours from the date and time of the release as to the occurrence of and the quantity of the release.
(Ord. No. 14-198, § 1, 12-16-2014)

Sec. 4-8-73. Release of non-hazardous materials.

In the event of a release of non-hazardous materials, said person shall notify the Birmingham Fire Department and the city official in person, by phone or facsimile no later than the 24 hours from the date and time of the release as to the occurrence of and the quantity of the release.
(Ord. No. 14-198, § 1, 12-16-2014)

Sec. 4-8-74. Notifications.

Notifications in person or by phone shall be confirmed by written notice addressed and mailed to the official within three business days of date of the phone or in person notice.
(Ord. No. 14-198, § 1, 12-16-2014)

Sec. 4-8-75. Responsibility for hazardous spills.

(a) The property owner and/or person responsible for the hazardous materials spill or release shall be financially responsible for the response, control, containment, equipment and materials costs (including legal fees), incurred by the city and supporting agencies.

(b) The property owner and/or person responsible for the hazardous material spill may provide personnel to assist abatement, removal and remedial measures, provided such personnel have been adequately equipped and trained pursuant to the requirements of local, state and federal laws.
(Ord. No. 14-198, § 1, 12-16-2014)

Sec. 4-8-76. Written records.

(a) If the discharge of prohibited pollutants or materials to the MS4 emanates from a commercial or industrial establishment, the owner or operator of such establishment shall also retain an on-site written record of the discharge and the actions taken to prevent its recurrence.

(b) Such records shall be retained for at least three years from the date of the discharge.

(c) Said person shall also take immediate steps to ensure no reoccurrence of the discharge or spill.
(Ord. No. 14-198, § 1, 12-16-2014)

Secs. 4-8-77—4-8-80. Reserved.

ARTICLE I. VIOLATIONS, ENFORCEMENT AND PENALTIES

Sec. 4-8-81. Violations.

(a) It shall be unlawful for any person to violate any provision of or fail to comply with any requirement of this chapter, provided however, proof of compliance or any demonstration of compliance with any NPDES permit is considered to be in compliance with the provisions of this chapter. Any person that has violated or continues to violate this chapter shall be, upon conviction, subject to a penalty of not greater than $500.00 and/or imprisonment for a period of time not to exceed six months for each violation. Each act of violation and/or each day upon which any violation shall occur or continue to occur shall constitute a separate offense.

(b) Any discharge to the MS4 in violation of this chapter or continuing violation of any provision of this chapter may be subject to the enforcement actions outlined in this chapter or may be restrained by injunction or otherwise abated in a manner provided by law.
(Ord. No. 14-198, § 1, 12-16-2014)

Sec. 4-8-82. Warning notice.

(a) When the city official determines that any person has violated or continues to violate any provision of this chapter or any order issued hereunder, the city official may serve upon that person a written warning notice specifying the particular violation believed to have occurred

and requesting that the discharger immediately investigate the matter and seek a resolution whereby any offending discharge will cease.

(b) The notice shall set forth a deadline (30 days) by which a written response to the warning notice must be received indicating the discharger's plan for remediation or restoration and the time by which such plan will be completed.

(c) Investigation and/or resolution of the matter in response to the warning notice does not relieve the alleged violator of liability for any violations occurring before or after receipt of the warning notice.

(d) Nothing in this subsection shall limit the authority of the city official to take any action, including notice of violation, emergency action or any other enforcement action, without first issuing a warning notice.
(Ord. No. 14-198, § 1, 12-16-2014)

Sec. 4-8-83. Notice of violation.

(a) Whenever the city official finds that a person has violated a prohibition or failed to meet a requirement of this chapter or failed to comply with a warning notice, the official may order compliance by written notice of violation to the responsible person.

(b) This notice of violation shall contain:

(1) The name and address of the alleged violator;

(2) The address of the premises (when available) or a description of the building, structure or land upon which the violation is occurring or has occurred;

(3) A statement specifying the nature of the violation;

(4) A description of the remedial and/or restoration measures necessary to restore compliance with this ordinance and a deadline for the completion of such remedial and/or restoration action;

(5) A statement of the penalty or penalties that shall or may be assessed against the person to whom the notice of violation is directed;

(6) A statement that the determination of violation may be appealed to the stormwater appeals board, by filing a written notice of appeal with the director of planning, engineering, and permits within ten business days of service of a notice of violation; and

(7) A statement specifying that, should the violator fail to restore compliance with this chapter within the established time schedule, the work will be done by a designated governmental agency or a contractor and the expense thereof shall be charged to the violator as allowed hereunder and collected as allowed by law.

(c) Such notice may require without limitation:

(1) The performance of monitoring, analyses, and reporting;

(2) The elimination of illicit connections and/or illicit discharges;

(3) That violating discharges, practices, or operations shall cease and desist;

(4) The abatement or remediation of stormwater pollution or contamination hazards and the restoration of any affected property;

(5) Payment of an amount equal to administrative and remediation costs; and/or

(6) The implementation of source control or treatment BMPs.

(d) The failure of a person to comply with any lawful notice to abate issued by the official, which has not been appealed within the time allowed herein, shall be deemed a violation of this chapter.
(Ord. No. 14-198, § 1, 12-16-2014)

Sec. 4-8-84. Appeal of notice of violation.

(a) Notwithstanding the provisions of this chapter, any person receiving a notice of violation may appeal the determination of the city official to the stormwater appeals board.

(b) The notice of appeal must be received within ten days following the date of the notice of violation.

(c) A hearing on the appeal before the stormwater appeals board shall take place in accordance with the procedure set out in section 4-8-95 herein.
(Ord. No. 14-198, § 1, 12-16-2014)

Sec. 4-8-85. Emergency abatement.

(a) The city official is authorized to require immediate abatement of any violation of this chapter that is reasonably believed to be an immediate threat to the health, safety or wellbeing of the public.

(b) When the city official finds that any person has violated, or continues to violate, any provision of this chapter, and that the person's violation(s) has (have) caused or contributed to an actual or threatened discharge to the MS4, which reasonably appears to present an imminent or substantial endangerment to the health or welfare of persons or to the environment, the city official may issue an order to the violator directing it immediately to cease and desist all such violations and directing the violator to:

(1) Immediately comply with all ordinance requirements; and

(2) Take such appropriate preventive action as may be needed to properly address a continuing or threatened violation, including immediately halting operations and/or terminating the discharge.

(c) Any person notified of an emergency order directed to it under this subsection shall immediately take steps to comply and stop or eliminate its illicit discharge.
(Ord. No. 14-198, § 1, 12-16-2014)

Sec. 4-8-86. Injunctive relief and/or civil remedies.

(a) If a person has violated or continues to violate the provisions of this chapter, the city may petition the appropriate court for a preliminary and/or permanent injunction restraining the person from activities which would create violations of this chapter or compelling the person to perform abatement or remediation of any violation.

(b) The city may also initiate civil proceedings in any court of competent jurisdiction seeking monetary damages for any damages caused to the MS4 by any person, including costs incurred for abatement or remediation, and may seek other equitable relief to enforce compliance with the provisions of this chapter or to force compliance with any lawful orders of the city official.

(c) Damages sought by the city shall include any and all costs of such action, including attorneys' fees, trial expenses, court costs and damages to the MS4.
(Ord. No. 14-198, § 1, 12-16-2014)

Sec. 4-8-87. Remedies not exclusive; costs recoverable by the city.

(a) The remedies listed in this chapter are not exclusive of any other remedies available under any applicable federal, state or local law and it is within the discretion of the city to seek cumulative remedies.

(b) The city may seek to recover in a civil suit for damages all attorney's fees, trial expenses, court costs and any and all other costs and losses resulting directly or indirectly from a violation of this ordinance or any rule, regulation, order, or other provision authorized by state law. These costs or losses may include, but are not limited to, sampling and monitoring expenses, ADEM fines, EPA fines and any other costs associated with the enforcement of this chapter or the abatement of violations of this chapter.
(Ord. No. 14-198, § 1, 12-16-2014)

Secs. 4-8-88—4-8-90. Reserved.

ARTICLE J. STORMWATER APPEALS BOARD

Sec. 4-8-91. Established.

The stormwater appeals board (SAB) shall be composed of five members appointed as provided in this division and have the duties provided herein.
(Ord. No. 14-198, § 1, 12-16-2014; Ord. No. 17-100, § 1, 8-16-2017)

Sec. 4-8-92. Composition; terms; filling vacancies.

(a) The five members of the board shall be appointed by the council. The council shall appoint members with the following qualifications: one member who is an environmental engineer or an environmental scientist; one person who is employed by or retired from a utility, industrial or commercial establishment regulated by this chapter; one person who is an officer of a neighborhood association under the city's citizen participation plan; one person from either an environmental or conservation group; and one resident of the City of Birmingham appointed at large. The city's stormwater administrator or his designee shall attend all meetings of the board.

(b) Each member shall be a resident of the city who has a recognized interest in stormwater management; provided, however, that in the event that no city residents apply to fill vacancies for the positions for environmental engineer/scientist, utility/business representative or environmental/conservation group representative, the council may appoint a person who does not reside in the city but who is a business owner or employee of a utility, business or organization that has its principal place of business in the city.

(c) The members shall serve until their successor is appointed. In the event of a vacancy, the council shall appoint a member to fill the unexpired term subject to approval by the council. The SAB shall select its own chair and vice chair. All officers shall serve for terms of one year.

(d) The initial terms of office shall be as follows: the terms of two members shall be for two years and the terms of three members shall be three years. Following the expiration of a member's initial term, each member's appointment thereafter shall be for a term of two years. Should a vacancy occur prior to expiration of a member's term, a successor shall be appointed by the council from a list of interested individuals provided by the city official.

(e) An appointee shall cease to be a member of the SAB upon the appointee's death, being declared inactive or resignation or upon the appointee's ceasing to reside in the city. Appointments to fill any vacancies on the committee shall be made only for the unexpired portion of the term so vacated.

(f) SAB members shall serve without compensation.

(g) The SAB shall meet and organize as soon as possible after appointments. Members shall annually elect from among its members a chairman and vice-chairman. The records of the proceedings of the SAB shall be maintained by the director of planning, engineering, and permits, or his designee. Such records shall set forth the reasons for the committee's decisions. The records of SAB shall be open for public inspection at the office of the director of planning, engineering, and permits, or his designee during normal business hours.

(h) The SAB shall establish rules and regulations for its own procedures, consistent with the provisions of this section.
(Ord. No. 14-198, § 1, 12-16-2014; Ord. No. 17-100, § 1, 8-16-2017)

Sec. 4-8-93. Meetings; quorum.

(a) The SAB shall meet at least six times a year on a bimonthly basis and such special meetings as the chair may find necessary.

(b) A majority of the SAB shall constitute a quorum. A concurring vote of a majority of the voting members present shall be necessary to deny or grant any appeal.

(c) The SAB meetings, deliberations, and records shall be open to the public. The SAB may elect to provide for public comment on relevant issues.

(d) The stormwater administrator or his or her designee shall act as secretary for the stormwater appeals board and shall record all meetings and hearings of the board and shall prepare the minutes of all SAB meetings showing the final motions and decisions of the board.
(Ord. No. 14-198, § 1, 12-16-2014; Ord. No. 17-100, § 1, 8-16-2017)

Sec. 4-8-94. General duties of the SAB.

In addition to any other duty or responsibility otherwise conferred upon the SAB by this title, the SAB shall have the duty and power as follows:

(a) To recommend from time to time to the council that it amend or modify the provisions of this article;

(b) To hold hearings upon appeals from actions of the city official, as may be provided under any provision of this title relating to stormwater;

(c) To hold hearings relating to the suspension, revocation, or modification of a stormwater discharge decision and issue appropriate decisions relating thereto;

(d) To hold such other hearings as may be required in the administration of this title and to make such determinations and issue such decisions as may be necessary to effectuate the purposes of this title.

(Ord. No. 14-198, § 1, 12-16-2014; Ord. No. 17-100, § 1, 8-16-2017)

Sec. 4-8-95. Hearing procedure.

(a) The SAB shall make a record of such hearing as prescribed in section 4-8-93 of this article.

(b) Any person aggrieved by any order or determination of the city official may appeal said order or determination to the SAB and have such order or determination reviewed by the SAB under the provisions of this title. The party shall have 30 days to petition the SAB in order to appeal the city official's decision. A written notice of appeal shall be filed with the city clerk, and such notice shall set forth with particularity the action or inaction of the city complained of and the relief sought by the person filing said appeal. Upon receiving such appeal, the clerk shall immediately forward the notice to the chair of the board and the stormwater administrator. The appeal shall be heard at the next regular meeting of the SAB but the chair may call a special meeting of the SAB to specifically hear the appeal. The SAB may, in its discretion, suspend the operation of the decision or determination of the city until such time as the SAB has acted upon the appeal.

(c) The SAB shall give written notice of decisions of the appeal to the petitioner. The decision shall be issued to no later than 30 days following the close of the hearing.

(d) The vice-chair or the chair pro tem shall possess all the authority delegated to the chair by this section when action in his/her absence or in his/her stead is required.

(e) An appeal may be filed with the city council by any person aggrieved by any determination of the SAB within ten days of the decision of the board. The appeal shall be filed in writing with the city clerk and a hearing shall be held before the council.

(Ord. No. 14-198, § 1, 12-16-2014; Ord. No. 17-100, § 1, 8-16-2017)

Secs. 4-8-96—4-8-100. Reserved.

ARTICLE K. MISCELLANEOUS

Sec. 4-8-101. Notices.

Whenever the city is required or permitted to:

(a) Give a notice to any party, such notice shall be in writing; or

(b) Deliver a document to any party; such notice or document may be delivered by personal delivery, certified mail (return receipt requested), registered mail (return receipt requested) or a generally recognized overnight carrier, to the address of such party which is in the records of the city or is otherwise known to the city.

(Ord. No. 14-198, § 1, 12-16-2014)

Sec. 4-8-102. References.

Whenever a chapter or section is referred to in this chapter, unless the context clearly indicates the contrary, such reference shall be to a section of this chapter.

(Ord. No. 14-198, § 1, 12-16-2014)

Sec. 4-8-103. Minimum requirements.

(a) In interpreting and applying the provisions of this chapter, they shall be held to be the minimum requirements for the promotion of public health, safety, convenience, comfort, and the general welfare.

(b) Where this chapter imposes greater restrictions than are imposed or required by other ordinances, rules, regulations or permits, or by easements, covenants or agreements, the provisions of this chapter shall apply.

(c) Where any other laws, ordinances or rules, regulations or permits or restrictive conditions of other governmental or city agencies charged with land or clean water regulation impose greater restrictions than are required under the regulations of this chapter, such provisions shall govern.
(Ord. No. 14-198, § 1, 12-16-2014)

CHAPTER 9. POST CONSTRUCTION STORMWATER ORDINANCE

ARTICLE A. GENERAL PROVISIONS

Sec. 4-9-1. Title.

These regulations shall hereafter be known, cited and referred to as the Post Construction Stormwater Ordinance of the City of Birmingham, Alabama.
(Ord. No. 19-31, § 1, 3-29-2019)

Sec. 4-9-2. Purpose and intent.

(a) The primary intent of this chapter is promoting the health, safety, and general welfare of the citizens of the City of Birmingham, Alabama, and to minimize public and private losses due to flood conditions through the regulation of stormwater discharges from land developments.

(b) This chapter establishes methods for controlling the discharge of pollutants from land developments to the city's municipal separate stormwater system ("MS4") and local waterways in order to comply with requirements of the National Pollutant Discharge Elimination System ("NPDES") permit, required by the federal Clean Water Act, 33 U.S.C. § 1251 et seq. (1972), and supported by the Alabama Water Pollution Control Act, Code of Alabama 1975, § 22-22-1.

(c) This chapter establishes methods for controlling stormwater volume and peak discharges from land developments in order to minimize public and private losses due to poor drainage or flood conditions.

(d) The objectives of the post construction stormwater ordinance are:

(1) To minimize or, if possible, eliminate the contribution of pollutants to the MS4 from, or caused by, stormwater discharges from new land developments or redevelopments;

(2) To regulate the volume and peak discharge of stormwater discharges from new land developments or redevelopments;

(3) To provide for adequate long-term operation and maintenance of the structural practices installed to comply with this chapter and the City of Birmingham's NPDES MS4 Phase 1 Permit.

(4) To establish legal authority to require the plans and permits, and carry out all inspections, surveillance, monitoring, and enforcement, necessary to ensure compliance with this chapter and the City of Birmingham's NPDES MS4 Phase 1 Permit.
(Ord. No. 19-31, § 1, 3-29-2019)

Sec. 4-9-3. Authority.

This chapter is adopted pursuant to Code of Ala. 1975, § 11-45-1, which authorizes the City of Birmingham to adopt ordinances, not inconsistent with the laws of the state, to provide for the safety, preserve the health, promote the prosperity, and improve the morals, order, comfort, and convenience of the inhabitants of the municipality, and to enforce obedience to such ordinances.

This chapter is also adopted pursuant to Code of Ala. 1975, tit. 11, ch. 89C, which authorizes

local government units to specifically regulate and control stormwater discharges and eliminate the discharge of pollutants to the MS4.

This chapter is also adopted pursuant to requirements of the City of Birmingham's NPDES MS4 Phase 1 Permit to control post-construction discharges from new development or re-development to the city's MS4.
(Ord. No. 19-31, § 1, 3-29-2019)

Sec. 4-9-4. Administration.

The director of the department of planning, engineering and permits (the director) or his/her designee, shall administer, implement and enforce the provisions of this chapter and shall act as the "official" for the provisions of this chapter. Any powers granted or duties imposed may be delegated by the director to persons or entities acting in the beneficial interest of, or in the employ of the city and certified in the manner established in the design manual and licensed to practice as a professional in the State of Alabama.
(Ord. No. 19-31, § 1, 3-29-2019)

Sec. 4-9-5. Referenced standards.

(a) The standards referenced in this chapter shall be considered an integral part of the ordinance without separate adoption. If specific portions of a standard are denoted by ordinance text, only those portions of the standard shall be enforced. Where ordinance provisions conflict with a standard the ordinance provisions shall be enforced. Permissive and advisory provisions in a standard shall not be construed as mandatory.

(b) Within the referenced standards, the director may allow administrative variations to the requirements in the design manual or maintenance manual provided such variations do not result in a reduction or elimination of post construction stormwater performance standards or the addition of fees. Otherwise, changes to this chapter or to the referenced standards shall require city council approval in the same manner as any change to city code.
(Ord. No. 19-31, § 1, 3-29-2019)

Sec. 4-9-6. Applicability.

This chapter applies to all proposed land development (whether new development or redevelopment, whether public or private) that:

(a) Will result in a land disturbance of one acre or greater;

(b) Will result in a land disturbance of less than one acre, but is part of a larger common plan of development or sale that will, or already has, disturbed one acre or greater of land;

(c) Will result in a land disturbance of less than one acre but is determined by the director to warrant additional engineering analysis and/or stormwater management controls, based on one or more of the following circumstances; or

(1) The proposed land development is located on a property that is considered a brownfield or is otherwise known or believed to have pollutants in the soil or on the ground that, if discharged from the property in stormwater or groundwater, may cause harm to the general public or the environment.

(2) The proposed land development that will, after development, discharge stormwater to a waterbody that is included on the most recent Alabama § 303(d) List, or for which a Total Maximum Daily Load ("TMDL") has been approved by the United States Environmental Protection Agency ("USEPA").

(3) The proposed land development will, after development, discharge stormwater to a waterbody that is classified by the Alabama Department of Environmental Management ("ADEM") for Public Water Supply, as an Outstanding National Resource Water, as an Outstanding Alabama Water, or as a Treasured Alabama Lake, and the director, in consultation with the chief civil engineer -

watersheds and city engineer, using sound engineering judgement, has reason to believe that unregulated stormwater discharges from the land development may adversely affect the waterbody.

(4) The proposed land development is located on, or will, after development, discharge stormwater to an area that has been designated by the United States Fish and Wildlife Service ("USFWS") as critical habitat for one or more threatened or endangered species, or where the USFWS has identified one or more threatened or endangered species are located.

(5) A history of flooding or drainage problems is known to exist in, or downstream of, the drainage basin where the premises is located, whether documented or undocumented.

(6) An engineering study prepared by a professional engineer licensed in the State of Alabama indicates a need for more stringent regulation of stormwater in the watershed where the proposed land development is located in order to avoid, or alleviate, any flood, drainage, or pollution problems.

(7) The director, in consultation with the chief civil engineer - watersheds and city engineer, has reason to believe, using sound judgment, that the proposed land development may further exacerbate existing flood or drainage problems as a result of development or redevelopment on the property.

(Ord. No. 19-31, § 1, 3-29-2019)

Sec. 4-9-7. Exemptions.

(a) The exemptions listed in this section shall not be construed as an opportunity to circumvent the letter and spirit of this chapter.

(b) The following land developments or land-disturbing activities shall be exempt from this chapter:

(1) Land developments for which a civil construction permit was obtained prior to the date of adoption of this chapter and for which substantial grading or construction has occurred within one year of the date of adoption of this chapter. (Owners of such land developments must comply with the civil engineering plan approved for the land development.);

(2) Agriculture;

(3) Silviculture;

(4) Home gardens, landscaping on individual residential lots (excluding landscaping performed by, or on behalf of, a developer or builder who builds a house on any such lot that is an applicable land development, as defined in this chapter), home repairs, home maintenance work, the maintenance or repair of accessory structures and other related activities which result in minor land disturbances;

(5) Individual connections for utility or sewer services for single or two-family residences, minor grading for driveways, yard areas, and sidewalks, excluding any service connection or any grading done by, or on behalf of, a developer or builder who builds a house on any such lot that is an applicable land development, as defined in this chapter;

(6) Utility installation, maintenance, repair and extension for both above-ground and underground utilities, including sewer lines. (The construction of utility buildings, service stations, junction stations, substations, treatment plants, and other utility related spaces or buildings is not exempt if construction will result in a land disturbance of one acre or greater.);

(7) The construction, repair, or rebuilding of railroads;

(8) Other land disturbing activities which will not result in land development, including, but not limited to, minor subsurface

exploratory excavations under the direction of soils engineer or engineering geologists; the opening of individual burial sites in cemeteries, the digging of water wells or environmental monitoring wells.

(Ord. No. 19-31, § 1, 3-29-2019)

Sec. 4-9-8. Responsibility.

Conformance with this chapter is a minimum requirement and does not prohibit or relieve the owner of a premises or the owner's representative, such as a lessee, tenant, contractor, facility or equipment operator, co-permittee or any other person or entity residing, working, or operating on the premises, from applying sound judgment and taking measures which go beyond the scope of the requirements of this chapter where necessary. Nor does this chapter imply a warranty or the assumption of responsibility on the part of the city for the suitability, fitness or safety of any structure with respect to flooding, water quality, or structural integrity. This chapter is a regulatory instrument only, and is not to be interpreted as an undertaking by the city to design, construct or operate any structure or practice.

Exemption from the requirement in this chapter to obtain a permit or prepare a plan shall not be construed as relieving or prohibiting the owner or the owner's representative of any premises from implementing onsite drainage improvements that may be required in accordance with building and construction codes, nor from providing adequate erosion and sedimentation control measures or stormwater management measures to protect adjoining property owners, the MS4, public rights-of-way and local waterways. Nor does this chapter relieve the owner or the owner's representative from complying with other ordinances or regulations as they relate to the City of Birmingham.

(Ord. No. 19-31, § 1, 3-29-2019)

Sec. 4-9-9. Regulatory consistency.

This chapter shall be construed to assure consistency with the requirements of the Clean Water Act ("CWA"), the Alabama Water Pollution Control Act ("AWPCA") and acts amendatory thereof or supplementary thereto or any other applicable regulations including the city's NPDES MS4 Phase 1 permit.

The standards set forth herein and promulgated pursuant to this chapter are minimum standards; therefore, this chapter does not intend nor imply that compliance by any person will ensure that there will be no contamination, pollution, nor unauthorized discharge of pollutants.

This chapter is not intended to repeal, abrogate or impair any existing easements, covenants, deed restrictions, or existing ordinances and regulations. However, where the provisions of this chapter and other regulations conflict or overlap, that provision which is more restrictive or imposes higher standards or requirements shall prevail. It is required that the director be advised of any such regulatory conflicts upon submittal of any plan required by the ordinance.

(Ord. No. 19-31, § 1, 3-29-2019)

Sec. 4-9-10. General prohibitions.

(a) Person(s) responsible for the design of proposed land development and person(s) responsible for the maintenance of post-construction stormwater management practices shall adhere to the following general prohibitions at all times.

(b) The following uses, activities, encroachments, and conditions are prohibited in post construction stormwater practices designed and constructed for stormwater management.

(1) Spraying, filling, and dumping of any material or waste, including the land application of bio-solids or animal waste, unless such activity is a result of an emergency;

(2) Storage for commercial or industrial land uses, including but not limited to storage of vehicles, equipment, materials, pesticides, herbicides, fertilizers, or household or commercially-generated wastes;

(3) Disposal of sewage, on-site sewage disposal and treatment systems (septic systems),

whether underground or raised, or subsurface discharges from a wastewater treatment plant;

(4) Use as a waste storage area, whether temporary or permanent, or a landfill of any type, including, but not limited to, demolition, permitted and closed-in place landfills, and household garbage pits;

(5) Abandoned, closed or active junkyards or other similar waste fields;

(6) The storage of motorized vehicles and equipment is prohibited;

(7) Farms, feedlots, confined animal feed operations, animal pastures, concentrated animal lots, dog parks or outdoor animal play/relief areas for animal care facilities, kennels, and commercial/business developments or facilities that provide short-term or long-term care of animals;

(8) Gardens installed solely for the cultivation of plants, fruits, or vegetables that do not meet the design requirements for a bioretention area (rain garden), orchards, crops or greenhouses, whether associated with a farm, commercial business or residence;

(9) Other land uses or activities deemed by the director to have the potential to generate pollutant loadings that may be harmful to the health of the vegetation or soil in the practice or to the health of the downstream water body(s).

(Ord. No. 19-31, § 1, 3-29-2019)

Secs. 4-9-11—4-9-20. Reserved.

ARTICLE B. DEFINITIONS

Sec. 4-9-21. Usage.

(a) For the purposes of this article, certain words, terms, and phrases shall be used, interpreted and defined as set forth in this chapter.

(b) Definitions not expressly prescribed herein are to be construed in accordance with terms defined in the Federal Clean Water Act (33 U.S.C. § 1251, et seq., as amended) and the Alabama Water Pollution Control Act of 1975 (Code of Ala. 1975, § 22-22-1, as amended), the regulations promulgated with respect to those laws, and the city's NPDES-MS4 permit. Terms not otherwise defined shall be construed in accordance with customary usage in municipal planning and engineering practice.

(Ord. No. 19-31, § 1, 3-29-2019)

Sec. 4-9-22. Definitions.

Alabama Department of Environmental Management (or "ADEM") means the state regulatory agency, created under the Code of Alabama (1975) § 22-22A-1, et seq., responsible for administering and enforcing the stormwater laws of the United States of America and the state.

Brownfield means real property, the expansion, redevelopment, or reuse of which may be complicated by the presence or potential presence of hazardous substance, pollutant, or contaminant.

CFR means the Code of Federal Regulations.

City means the City of Birmingham, Alabama.

CWA means the Clean Water Act (formerly referred to as the Federal Water Pollution Control Act or Federal Water Pollution Control Act Amendments of 1972) Pub. L. 92-500, as amended Pub. L. 95-217, Pub. L. 95-576, Pub. L. 96-483 and Pub. L. 97-117, 33 U.S.C. 1251 et seq.

Design manual means the "City of Birmingham Post-Construction Stormwater Design Manual".

Director means the director of the department of planning, engineering and permits, or his/her designated representative.

Federal Emergency Management Agency (or "FEMA") means the federal agency established in 1979 by executive order of the President of the United States to coordinate the federal government's role in preparing for, preventing, mitigating the effects of, responding to, and recovering from all domestic disasters, whether natural or man-made, including disasters caused by flooding.

Green infrastructure practice means systems and practices that use or mimic natural processes to infiltrate, evapotranspire (the return of water to the atmosphere either through evaporation or by plants), or reuse of stormwater or runoff on the land development where it is generated. Green infrastructure practices identified in the design manual include, but are not limited to, bioretention area, cistern, downspout disconnection, dry water quality swale, enhanced swale, green roof, infiltration trench, permeable pavement, reforestation, sheet flow, and urban bioretention.

Impervious surface means surfaces composed of any material that impedes or prevents the natural infiltration of water into the soil. Impervious surfaces shall include, but are not limited to, roofs, streets, driveways, parking areas, patios, sidewalks, tennis courts, solid decks, other concrete or asphalt paved areas, and any areas used (or to be used) as a vehicle driveway or travelway or for parking, whether paved, gravel, or other compacted material, unless such material is (or has been) specifically designed, installed, and maintained to allow water to pass beneath the surface. For example, permeable pavers, asphalt, and concrete are not impervious surfaces.

Land disturbance (or "land disturbing activity") means any change in the land which may result in soil erosion or the movement of sediment by water, wind or other means of transport, including, but not limited to, clearing, grubbing, grading, dredging, compaction, excavation, dumping, discharging, alteration of natural or existing topography, moving, placing or storing fill material, or any other means that causes disturbance of soil.

Maintenance manual means the "City of Birmingham Property Owner's Guide to BMP Maintenance".

Municipal separate storm sewer system (or "MS4") means a conveyance or system of conveyances (including roads with drainage systems, municipal streets, catch basins, curbs, gutters, ditches, man-made channels, or storm drains): (i) Owned or operated by the City of Birmingham, Alabama; (ii) Designed or used for collecting or conveying stormwater; (iii) Which is not a combined sewer; and (iv) Which is not part of a Publicly Owned Treatment Works (POTW) as defined in ADEM Administrative Code 335-6-6-.02(nn).

Offsite means outside the property lines of a land development for which a post construction stormwater permit must be, will be, or has been obtained.

Onsite means within, or inside, the property lines of the land development for which a post construction stormwater permit must be, will be, or has been obtained.

New development means any track, lot, or parcel of land, or combination of contiguous tracts, lots, or parcels of land which are in one ownership, or which are owned by two or more parties, and for which improvements of the land from a natural, entirely unimproved, condition are proposed or planned as a unit, subdivision, or project. New development includes land that has been used previously for livestock or crops, or has been previously grubbed, stripped, graded, and/or revegetated from a natural, entirely unimproved condition, provided that impervious surfaces were not previously placed or demolished thereon.

Performance standard (or "design standard") means the benchmark against which the design of the land development, the stormwater drainage system, or a specific component of the system is measured. A design must meet the performance standard for it to be deemed compliant with the standard. Performance standards are authorized and established by this chapter and defined in detail in the design manual.

Person means any individual, association, organization, partnership, firm, corporation, or other entity recognized by law and acting as the owner or owner's agent of a premises or as a lessee of a premises. All persons, natural or artificial, including, but not limited to, any individual, partnership, association, society, joint stock company, firm, company, corporation, institution, trust, other legal entity, business organization, or other governmental entity and any successor, representative, responsible corporate officer, agent, or agency of the foregoing.

Pollutant means anything which causes or contributes to pollution. Pollutants may include, but are not limited to: sediment, oils and greases, detergents, fertilizers, pesticides, herbicides, metals, hazardous chemicals, materials that cause changes in pH of stormwater, dredged spoil, solid waste, incinerator residue, sewage, garbage, sewage sludge, munitions, chemical wastes, biological materials, radioactive materials, heat, wrecked or discarded equipment, rock, sand, cellar dirt, and industrial, municipal, and agricultural waste discharged into water. The term also includes any other effluent characteristics specified in the city's NPDES permit.

Post construction stormwater practice means, generally, any activity or practice or drainage system that is designed and constructed to manage post construction stormwater quality or provide flood control whether alone or in combination with other post construction stormwater practices. Green infrastructure practices are considered post construction stormwater practices.

Pre-concept conference is a meeting between the owner of a proposed (or possibly proposed) land development, the consultants working on his/her behalf to design the land development, and the chief civil engineer - watersheds, to examine the existing (pre-construction condition) hydrology of said land development for the purpose of identifying opportunities or limitations to the use of low impact development practices and green infrastructure practices, and to generally evaluate the practices, permits, and regulations that may be necessary to effectively manage stormwater after development of the land.

Pre-concept sketch is a written set of documents, narratives, and maps that provides a detailed characterization of the existing hydrology at the location of a proposed land development subject to this chapter.

Pre-construction condition is the existing condition of the property at the time the application for a post-construction stormwater permit is submitted, prior to any clearing, grubbing, grading, construction, or demolition done in preparation for the proposed new development or redevelopment. For new land developments, the pre-construction condition will be an undeveloped condition. For redevelopments, the pre-construction condition will be a developed condition. In the event that demolition of pavement or structures has already occurred in preparation for the proposed redevelopment when the application for a post-construction stormwater permit is received, the pre-construction condition shall be the previously developed condition of the property, as obtained from aerial photography, historical mapping, or other reliable source of land cover information.

Premises means any building, lot, parcel of land, or portion of land whether improved or unimproved including facilities, adjacent sidewalks, and parking strips located thereon for all land uses.

Record drawing is a written, detailed set of documents, narratives, maps, affidavits, and reports that accurately indicate the as-constructed condition of the individual and collective stormwater drainage systems and post construction stormwater practices on a land development subject to this chapter. Approval of a record drawing by the director is required to terminate a post construction stormwater permit.

Redevelopment means the expansion, renovation, rebuilding, demolition and construction, or other further improvement of any previously improved tract, lot, or parcel of land, or combination of contiguous tracts, lots, or parcels of land which are in one ownership, or which are owned by two or more parties, are proposed or planned as a unit, subdivision, or project. "Previously improved" includes, but is not limited to, the prior placement, construction, and/or demolition of buildings, roadways, sidewalks, parking areas, and other areas of concrete, asphalt, gravel, packed gravel, or other materials on the subject tract(s), lot(s) or parcel(s).

Stormwater is defined at 40 CFR Part 122.26(b)(13) and means stormwater runoff, snow melt runoff, and surface runoff and drainage.

Stormwater drainage system means the system of roadside drainage, roadside curbs and gutters, curb inlets, swales, catch basins, manholes, gut-

ters, ditches, pipes, lakes, ponds, sinkholes, channels, creeks, streams, storm drains, post construction stormwater practices, and similar conveyances and facilities, both natural and manmade, located within the city which are designated or used for collecting, storing, or conveying stormwater, or through which stormwater is collected, treated, stored or conveyed, whether owned or operated by the city or other person.

Stormwater management plan is a written, detailed set of documents, narratives, and maps containing the proposed design, design calculations, construction specifications, affidavits, and reports of the individual and collective stormwater drainage systems and post construction stormwater practices on a specific, proposed land development subject to this chapter. Approval of a stormwater management plan by the director is required to obtain a post construction stormwater permit.
(Ord. No. 19-31, § 1, 3-29-2019)

Secs. 4-9-23—4-9-30. Reserved.

ARTICLE C. PERMITS AND PLANS

Sec. 4-9-31. Pre-concept sketch and conference required.

Owners proposed land developments or, in the case of land speculation, person(s) who are considering undertaking ownership of a future land development, shall submit to the director a pre-concept sketch and shall schedule and attend a pre-concept conference with the chief civil engineer - watersheds. The sketch shall be prepared, and the conference shall be scheduled, in accordance with the policies established in the design manual.
(Ord. No. 19-31, § 1, 3-29-2019)

Sec. 4-9-32. Post construction stormwater permit required.

It shall be unlawful to commence or continue to conduct, or for the owner to allow the commencement or conduct of, any of the following activities without first having obtained a post construction stormwater permit from the director, unless the activity is exempted from obtaining a permit under this chapter.

(1) Land disturbing activities as defined in this chapter;

(2) Construction/building activities; and

(3) Construction or alteration of any natural or manmade stormwater system so as to divert, constrict, increase or change in any manner the natural or existing flow of any stream, or natural or existing stormwater system of any area.

(Ord. No. 19-31, § 1, 3-29-2019)

Sec. 4-9-33. Post construction stormwater permit application review.

(a) It shall be the duty of the owner of the proposed land development, or his/her duly authorized agent, to file with the director a complete post construction stormwater permit application. The application shall include the application document, a complete stormwater management plan, including any applicable forms and certifications, proof of adequate letter of credit or surety bond as required by section 4-9-71 this chapter. Incomplete applications shall not be deemed to have been filed. Once a complete application has been filed, the director shall approve or reject the application based upon its review for conformance with this chapter and all other applicable requirements. The application will be approved if it, and the plans and checklists therein, are in conformance with this chapter. If the application is rejected, the director shall inform the applicant, in writing, of the reasons for its rejection.

(b) The director does not assume to provide complete and comprehensive technical review of the stormwater management plan. Rather, the director provides a general review of information and documentation that has been submitted to generally ensure that the onsite stormwater drainage system is designed in accordance with this chapter, and that stormwater design calculations have been appropriately documented. To this end, the owner of the proposed land development shall be responsible for the intent, adequacy

and compliance of the stormwater designs based on actual field conditions and construction techniques.
(Ord. No. 19-31, § 1, 3-29-2019)

Sec. 4-9-34. Stormwater management plan required.

(a) Each application for a post construction stormwater permit shall be accompanied by three sets of stormwater management plans as set forth in section 4-9-36, and any other required, supporting forms and certifications prepared and signed by the appropriate professional.

(b) Each request for termination of a post construction stormwater permit shall be accompanied by two sets of stormwater record drawings, as set forth in section 4-9-38, and any other required supporting forms and certifications prepared and signed by the appropriate professional.

(c) Additional plans or reports may be required by the director to allow adequate assessment of the proposed stormwater designs, to better understand potential flood, drainage, or pollutant impacts of a proposed or installed stormwater drainage system.
(Ord. No. 19-31, § 1, 3-29-2019)

Sec. 4-9-35. General standards for all plans.

(a) Persons conducting land development shall take all reasonable measures referred to, or provided for, in this chapter and the design manual to protect all public and private property from damage caused by stormwater from such development and to reduce stormwater pollution to the maximum extent practicable.

(b) All plans, specifications, and documents established to comply with this chapter shall be prepared and submitted in accordance with, and as required by, this chapter, the design manual, and all other rules, regulations and specifications of the City of Birmingham. Required plan elements are established in the design manual.

(c) The director may require submittal of additional information in any plan required by this chapter as necessary to allow an adequate review of the existing or proposed land development conditions, proposed designs, or constructed stormwater drainage system. Omission of any required items for a plan shall render the plan incomplete and withdraw it from review by the director.

(d) All plans and specifications required to be submitted to obtain or terminate a permit should be prepared, to the maximum extent practicable, in keeping with the following general standards:

(1) Protect and preserve existing natural drainage channels.

(2) Retain off-site natural drainage patterns.

(3) Stabilize bare soil and prevent erosion in pervious areas.

(4) Assure that waters drained from the land development are free of point and nonpoint sources of pollutants, including eroded soil and sediment, and do not cause flooding or erosion on adjacent or downstream properties to any greater extent that occurs in the absence of development.

(5) Assure that waters are drained from the development in such a manner that will not cause erosion to any greater extent than would occur in the absence of development.

(6) Provide that all roof and foundation drains shall be discharged to natural drainage, engineered detention ponds, curb face outlets, or to a public or approved private storm drain.
(Ord. No. 19-31, § 1, 3-29-2019)

Sec. 4-9-36. Stormwater management plan standards.

(a) The stormwater management plan shall be prepared and stamped by an engineer, landscape architect, or architect competent in civil and land development design and licensed to practice in the State of Alabama. Additional

professional license requirements pertaining to preparation of the stormwater management plan are as follows:

(1) Portions of the plan that require hydraulic and/or hydrologic calculations (excluding the determination of soil infiltration and permeability rates) and design shall be prepared plans signed, sealed and dated by a licensed professional engineer, qualified in civil engineering, in good standing with the Alabama State Board of Licensure for Professional Engineers and Land Surveyors, and licensed to practice in the State of Alabama.

(2) Portions of the plan that require soil infiltration tests, soil permeability assessments, and soil media design shall be prepared by a soil scientist, geologist or geotechnical engineer licensed to practice as professional in the State of Alabama.

(b) Professionals responsible for preparation of the stormwater management plan shall indicate conforming licensure by affixing their seal as a licensed professional and providing signature and date of signature in the manner required by the Alabama Law Regulating Practice of Engineering and Land Surveying, Code of Alabama 1975, tit. 34, ch. 11.

(c) Performance standards, technical methods, required calculations, and post construction stormwater practice design specifications that are applied to prepare the stormwater management plan shall be in accordance with the design manual. Technical methods, calculation approaches, or practices not shown in the design manual shall not be used without prior written permission of the director. This chapter shall supersede where the regulations of this chapter and the policies stated in the design manual conflict.

(d) The stormwater management plan shall be subject to any additional requirements as set forth in city subdivision regulation, zoning ordinance, engineering and construction specifications, public work specifications, and all other city regulations.

(e) It is the responsibility of the owner to be aware of, and to fully address, any regulations or permits that may apply to his/her land development, including state and federal regulations for construction activities that will have an impact on Waters of the State, wetlands, sinkholes, landslide areas, and threatened or endangered species. The director may require proof of land development conformance with, or coverage by, any applicable local, state, or federal regulation or permit in the stormwater management plan. (Ord. No. 19-31, § 1, 3-29-2019)

Sec. 4-9-37. Stormwater record drawings.

(a) The applicant shall prepare and provide a stormwater record drawing within 120 days of completion of the land development project.

(b) The stormwater record drawing shall reflect the "as-constructed" condition of the land development and shall demonstrate substantial conformance with the approved stormwater management plan for the land development. Significant deviations from the approved stormwater management plan shall be considered violations of this chapter and are grounds for any of the following:

(1) A requirement to submit a new request for termination of the post construction stormwater permit, including submittal and obtaining approval on a revised stormwater record drawing;

(2) A requirement to submit and obtain approval on a revised stormwater management plan prior to performing corrective action(s);

(3) The invocation of the injunctions and penalties defined therein;

(4) Withholding the release of a bond or termination of the post construction stormwater permit pending the completion of corrective action(s);

(c) The stormwater record drawing shall include all of the required and applicable elements as specified in the design manual.

(d) The stormwater record drawing shall be prepared and certified in the manner established in the design manual by registered land surveyor or professional engineer licensed to practice in the State of Alabama. Additional professional license requirements pertaining to preparation of the record drawing are as follows:

(1) The record drawing shall be reviewed by a professional engineer or landscape architect for conformance with the approved stormwater management plan. Portions of the land development that are not in conformance with the approved stormwater management plan shall be identified and accompanied by a narrative explanation of the non-conformance. The director may also require engineering analyses and resubmittal of the stormwater management plan (entirely or in part) to prove land development conformance with required performance standards. The record drawing and any associated narrative, engineering analyses, and accompanying plan shall be signed, sealed and dated by the professional engineer, landscape architect, or architect competent in civil and land development design and licensed to practice in the State of Alabama, as appropriate.

(2) Portions of the plan that require soil infiltration tests or soil permeability assessments shall be prepared by a soil scientist, geologist or geotechnical engineer licensed to practice as a professional in the State of Alabama.

(Ord. No. 19-31, § 1, 3-29-2019)

Sec. 4-9-38. Post construction stormwater permit termination.

(a) It is the responsibility of the permit holder to request termination of a post construction stormwater permit. The submittal of the record drawing shall constitute a request for permit termination.

(b) Stormwater drainage systems for which a record drawing has been submitted shall be subject to a permit termination inspection by the director. Systems that meet all of the following criteria shall be considered functional and operating as indicated in the approved stormwater management plan:

(1) The post-construction stormwater practice maintenance map provides an accurate depiction and labelling of the post-construction stormwater practices on the land development;

(2) The post-construction stormwater maintenance agreement is fully executed;

(3) The stormwater drainage system shall be free of blockages, sediment, trash, construction related wastes, and other debris;

(4) The stormwater drainage system shall not be damaged or otherwise in need of repair or replacement;

(5) Accumulated sediment from basins, traps, and other areas where sediment was captured during construction, whether intentionally or unintentionally, shall be entirely removed, unless otherwise provided for in the stormwater management plan;

(6) All pervious areas draining to the stormwater drainage system with permanent vegetation or landscaping as indicated in the approved stormwater management plan;

(7) No prohibited conditions as established in section 4-9-81 of this chapter exist; and

(8) All temporary erosion protection and sediment control measures are removed.

(c) Corrective actions shall be required of the owner(s) where these inspection criteria are not met. The director may re-inspect the system to confirm satisfactory completion of any required corrective actions and may withhold inspection approval until such actions have been completed and all criteria are satisfied.

(d) The post construction stormwater permit for a land development shall not be terminated until the director approves the stormwater record drawing and the permit termination inspection.

(e) Permits obtained for an applicable land development that was ultimately not constructed or was partially constructed shall not be terminated and the bond not released until the land development is fully stabilized against soil erosion with permanent vegetation and it is demonstrated that the project meets the requirements of this chapter for any construction that did occur. In the event that one or both of these conditions are not met, corrective actions shall be imposed on the owner(s) as required to meet these conditions. Corrective actions may include, but are not limited to, the installation and care of permanent vegetation until it is fully established, the preparation, submittal, and approval of a stormwater management plan, and/or the design and construction of post-construction stormwater practices.
(Ord. No. 19-31, § 1, 3-29-2019)

Sec. 4-9-39. Affidavits.

(a) When determined to be necessary, the director may require affidavits on forms furnished by the city and as indicated in the design manual to be executed by the owner and his consultants prior to issuance of a post construction stormwater permit.

(b) Upon filing of a request for termination of a post construction stormwater permit, affidavits will be furnished for execution by the owner and his consultants affirming that the completed construction conforms to the approved stormwater management plan and to the requirements of this chapter.
(Ord. No. 19-31, § 1, 3-29-2019)

Sec. 4-9-40. Maintenance of records.

Records of compliance with any approved plan or record drawing shall be maintained by the person(s) responsible for development of the property for a period of at least three years from the date of termination of the permit. Said records shall be made available for review by the director upon request.
(Ord. No. 19-31, § 1, 3-29-2019)

Sec. 4-9-41. Conformity to the approved plan.

(a) Construction of the land development shall not deviate from the approved stormwater management plan without the prior written approval of a plan revision from the director. The owner shall ensure adherence to this requirement by all persons acting on his/her behalf during construction of the land development and until termination of the post construction stormwater permit.

(b) Permitted stormwater management plans and specifications shall not be changed, modified, or altered without authorization of the director; and all work shall be done in accordance with the permitted plans.
(Ord. No. 19-31, § 1, 3-29-2019)

Sec. 4-9-42. Plan revisions.

(a) The issuance of a permit shall not prevent the director from thereafter requiring the correction of errors or changes due to unforeseen problems in permitted plans and specifications. The director may require revision of the approved plan or specification if it is determined after approval that the approved plan or specification is inadequate to meet the requirements of this chapter, or if significant problems occur which were not considered at the time the permit was issued.

(b) If the conditions of the land development change after approval of the stormwater management plan, the owner shall notify the director immediately. The director may require cessation of all, or a portion of, construction, re-application for a post construction stormwater permit in accordance with section 4-9-44 of this chapter, and/or resubmittal and approval of a revised stormwater management plan, or appropriate portions thereof. Such proposed conditions include, but are not limited to, the layout or size of proposed buildings, streets, and other impervious surfaces or unexpected pollution, geological or hydrologic conditions encountered during construction.
(Ord. No. 19-31, § 1, 3-29-2019)

Sec. 4-9-43. Amended applications; transfer of permits.

(a) A post construction stormwater permit may be amended upon the filing with the director of an amended or restated permit application, containing all changes from the original application; provided, that the older of the permit shows to the reasonable satisfaction of the director that there are no proposed changes which may affect compliance with the provisions of this chapter. If an amended or restated application is filed with the director with respect to post construction stormwater activities for which a post construction stormwater permit has been issued, said existing permit shall continue in effect, and the holder of the permit may continue to operate under it unless and until amended. A new permit is issued in response to the amended or restated application ("amended permit") at which time the original permit shall expire and stormwater construction or special pollution abatement activities must be conducted in accordance with the amended permit.

(b) A post construction stormwater permit may be transferred upon the filing with the director of an application for transfer; provided, that the holder and proposed transferee of the permit: (1) submit any bonds required by this chapter; and, (2) show to the reasonable satisfaction of the director that, upon or following the permit transfer, there will be no proposed changes which may affect the construction of the stormwater system as indicated in the approved stormwater management plan. If there is a request for the transfer of a permit and there are to be one or more changes in post construction stormwater, the new owner or operator of such project must apply to the city for a new permit prior to his/her involvement with the operation of such project.
(Ord. No. 19-31, § 1, 3-29-2019)

Sec. 4-9-44. Signatory requirements.

(a) All applications and correspondence required by this chapter to be submitted to the director shall be signed as follows:

(1) If an application or correspondence is submitted by a corporation, it must be signed by the president of the corporation or by a vice president of the corporation who oversees a principal business function of the corporation, or any other person who has been authorized to sign such applications and/or correspondence by a resolution adopted by the board of directors of the corporation. Proof of the authority of the signatory shall be provided to the director upon his/her request.

(2) If an application or correspondence is submitted by a limited liability company, it must be signed by a manager or other person who serves the same or similar function as the president of a corporation.

(3) If an application or correspondence is submitted by a partnership, it must be signed by a general partner of the partnership.

(4) If an application or correspondence is submitted by a sole proprietorship, it must be signed by the proprietor.

(5) If an application or correspondence is submitted by a municipality, county, the state, or the federal government or by any municipal, state, or federal agency, it must be signed by either the chief executive officer or a principal executive officer of any such government or by either the chief executive officer, a principal executive officer, or a senior executive officer having responsibility for the overall operations of a principal geographic unit of any such governmental agency.

(b) Any person signing any application or correspondence required by this chapter shall make the following certification: "I certify, under penalty of the law, that this document and all attachments were prepared under my direction or supervision and that I have personally examined, and I am familiar with, the information in this document and such attachments. Based on my inquiry of those individuals immediately responsible for obtaining the information, I believe the submitted information is true, accurate, and complete. I am aware that there

are significant penalties for submitting false information, including the possibility of fine and civil penalty."
(Ord. No. 19-31, § 1, 3-29-2019)

Sec. 4-9-45. Issuance of permit; expiration, suspension or revocation.

(a) The purpose of permitting plans and specifications is to assure compliance with this chapter. The director's review and permitting of plans and specifications is not intended as approval of the overall layout, structural design, grading procedures, situation control, engineer's reports, or construction procedures. These responsibilities shall remain with, and be those of, the owner or his consultants.

(b) The permit application, plan, specifications, reports, affidavits, and other required documents shall be filed with the director as required by this chapter. Such documents may be reviewed by other departments to check compliance with the laws and ordinances under their jurisdiction. If the director is satisfied that the work described in the permit application, the plan, and specifications filed therewith conform to the requirements of this chapter and other pertinent laws and ordinances, and necessary bonds and other surety obtained, he/she shall issue a permit therefor to the owner. When the director issues the permit, he/she shall endorse in writing or stamp "PERMIT ISSUED" on the original set of plans and specifications.

(c) One set of permitted plans, specifications, and/or other required documents shall be retained by the director for a period of not less than one year from the date of completion of the work covered therein.

(d) Every permit issued by the director under the provisions of this chapter shall expire by limitation and become null and void, if the work authorized by such permit is not commenced within 90 days from the date of issuance of such permit, provided that consecutive renewal of such permit may be granted, at no additional cost, upon writing request to the director with good cause shown. The work authorized by such permit shall not be suspended or abandoned at any time after the work is commenced and shall be carried to completion or the permit shall be suspended. If work is suspended or abandoned, required bonds may be used to correct or eliminate stormwater quality or drainage problems, or hazardous conditions as provided there.

(e) The director may suspend or revoke a permit or waiver issued under provisions of this chapter by giving notice in writing to the owner whenever the permit or waiver is issued in error, on the basis of incorrect information supplied, or in violation of any ordinance, regulation, or any of the provisions of this chapter.
(Ord. No. 19-31, § 1, 3-29-2019)

Sec. 4-9-46. Recorded instruments.

(a) As an express condition precedent to final approval by the director of any post construction stormwater plan which contains post construction stormwater practices:

(1) Post construction stormwater practices that serve multiple owner properties with a subdivision plat shall be provided an unobstructed access easement of not be less than 20 feet in width, encompassing the said practice, and connected to a public street. Stormwater access easements shall be accurately recorded on the property's plat, with identification of each practice by name, as established in the design manual. The plat shall also include a statement as follows "It is the responsibility of the property owner(s) to inspect, operate, and maintain all post construction stormwater practices in accordance with the Birmingham Post Construction Stormwater Ordinance."

(2) The city and all owners (including contract purchasers), whether persons or entities of the property upon which post construction stormwater practices are located (excluding however, (i) any governmental entity owning any interest in lands within said property dedicated to and accepted by the public such as public streets and rights-of-way and (ii) any person or entity holding any interest in such real property solely as security for the performance or satisfaction of any obligation), shall enter

into a post construction stormwater practice maintenance agreement substantially in the form and substance as set forth in the design manual. The maintenance agreement shall be recorded with the property's plat.

(3) Owners who hold such an interest in such real property solely as security for the performance or satisfaction of any obligation shall execute acknowledged ratification on the face of the property's plat so as to give full force and effect to said post construction stormwater practice maintenance agreement; and

(4) The plat shall contain a plat note suitable in form and content to the city attorney or his/her designee which incorporates by reference said post construction stormwater practice maintenance agreement.

(b) The mayor of the city is hereby authorized, directed, and empowered to execute said post construction stormwater practice maintenance agreement and corresponding plat note on behalf of the city for each such agreement and plat.

(c) The post construction stormwater practice maintenance agreement established in the design manual, which shall constitute a covenant running with the land as to the real property made the subject of such plat, shall be incorporated by reference into each such plat.

(d) Person(s) seeking such modification or release of a recorded covenant established by execution of the maintenance agreement, that encompasses a stormwater practice, shall be required to request such modification or revocation from the director. In the event the director denies the modification or release of the covenant, the person seeking the modification or release of the covenant may appeal the decision of the director to the stormwater appeals board, as provided in section 4-8-95 of the General Code of the City of Birmingham, as it may be amended. In the event that the position of director and/or the stormwater appeals board are amended or eliminated in the future, application for modification or release shall be made to the person or body succeeding to the powers and duties of director and/or stormwater appeals board or as provided in any amended or succeeding post-construction stormwater management ordinance.

(e) Modification or release of a recorded covenant established by execution of the maintenance agreement that encompasses a stormwater practice may be allowed if the stormwater practice(s) encompassed by the covenant:

(1) Will be, or have been, significantly altered or relocated such that the maintenance agreement and its stormwater practices map are incorrect and will, or do, not reflect the actual type or location of practice(s) located on the property;

(2) Will be, or are, no longer needed due to construction of other stormwater practices, either on or off the property, that will, or do, manage the stormwater handled by the practice(s) encompassed under the covenant;

(3) Will be, or have been, removed or relocated due to planned redevelopment of a portion, or all, of the property;

(4) Significant alteration or relocation of a stormwater practice is prohibited without prior approval by the director and may require a new stormwater permit and maintenance agreement.

(Ord. No. 19-31, § 1, 3-29-2019)

Sec. 4-9-47. NPDES permits.

Persons or entities who hold NPDES general, individual, or multi-sector permits shall provide either a copy of such permit or the permit number assigned to them by ADEM no later than 60 calendar days after termination of the post construction stormwater permit.
(Ord. No. 19-31, § 1, 3-29-2019)

Secs. 4-9-48—4-9-60. Reserved.

ARTICLE D. STORMWATER DESIGN

Sec. 4-9-61. Stormwater system requirements.

(a) The performance standards provided in the design manual establish the minimum stormwater management requirements for the design

and construction of individual and collective stormwater drainage systems and post construction stormwater practices on land developments not exempted by this chapter, whether such systems and practices are located on public or private lands.

(b) Individual and collective stormwater drainage systems and post construction stormwater practices on new developments not exempted by this chapter, whether such systems and practices are located on public or private lands, shall meet or exceed the following stormwater performance standards established in the design manual: stormwater quality protection; flood protection; downstream analysis; and, drainage system design.

Adherence to these performance standards for a new development shall be calculated for the entire area of the land development, inclusive of all pervious and impervious surfaces located inside the legal boundaries of the land development.

(c) Individual and collective stormwater drainage systems and post construction stormwater practices on redevelopments not exempted by this chapter, whether such systems and practices are located on public or private lands, that will result in a net increase in impervious surface area from the previously developed condition shall be subject to the following performance standards: stormwater quality protection; downstream analysis; and drainage system design. If the downstream analysis indicates an increase in peak discharges in the post-construction condition as compared to the pre-construction condition, the flood protection performance standards shall also apply.

Adherence to applicable performance standards for a redevelopment shall be calculated for the increase in impervious surface area that will result from the redevelopment.

(d) In the evaluation of, and adherence to, flood protection and downstream analysis performance standards, the pre-construction condition shall be the existing condition of the land at the time of application for a post construction stormwater permit for the land development. In the event that demolition of pavement or structures has already occurred at the time of application for a post construction stormwater permit on a property proposed for redevelopment, the pre-construction condition shall be the previously developed condition of the property, as obtained from aerial photography, historical mapping, or other reliable source of impervious cover information. It shall be the responsibility of the owner to provide proof of the pre-construction condition with the stormwater management plan.

(e) Individual and collective stormwater drainage systems and post construction stormwater practices shall be designed and constructed in strict accordance with the policies, design criteria, calculation and technical specifications, and guidance established in the design manual and in the standard specifications for the construction of public works projects, where applicable, unless otherwise established by this chapter or by the director. Adherence to this requirement shall be established in the stormwater management plan. Other technical methods, calculation approaches, and practices shall not be used without the approval of the director. In the event that an alternative method, approach, or practice is allowed, the director may request the owner to provide additional hydrologic and hydraulic calculations, or other technical information to confirm that the alternative method, approach, or practice will meet the performance standard(s).

(f) The Federal Emergency Management Agency ("FEMA") or the city's floodplain zone overlay (City of Birmingham Zoning Ordinance Chapter 8, Article II) may have more stringent requirements for stormwater drainage systems and post construction stormwater practices for detention/retention that are located within a flood hazard zone. It is the engineer of record's responsibility to determine if a stormwater drainage system will be within a flood hazard zone and to design it in accordance with FEMA requirements, or the city's requirements if more stringent. Such requirements and designs shall be provided in the stormwater management plan.

(g) Land development shall not, under any circumstances, be designed or constructed to allow impervious surfaces to discharge directly

to a natural water body, even if one or more of the stormwater performance standards has been waived. In such cases, stormwater from these surfaces shall discharge from the land development through an appropriately designed drainage pipe, ditch, or swale, or overland through level spreader and into a vegetated buffer that have been designed, constructed, and suitably vegetated to withstand the expected stormwater discharges without damage or erosion. In any case, permanent protection from soil erosion shall be provided, at the inlet and outlets of the discharge, and through the buffer if used. Vegetated stabilization alternatives are preferred when technologically feasible.

(h) Banks of all streams, channels, ditches and other earthen stormwater conveyances shall be left in a stabilized condition upon completion of the project. No actively eroding, bare or unstable banks shall remain. Placement of riprap and other hard armor as the sole bank protection method on blue line streams is only allowed when vegetative bank stabilization alternatives are not technologically feasible.

(i) Post construction stormwater practices for post construction stormwater management on private land development shall be selected with consideration of the practicality of practice maintenance and operation by the type of future land owner(s) intended for the development. Practices that are considered, in the opinion of the director, to be impractical for land owner operation and maintenance will not be approved.

(j) Post construction stormwater practices shall not be located in public rights-of-way or on public property without prior approval by the director.

(k) Green infrastructure practices designed to infiltrate stormwater runoff shall not be located in wellhead protection areas or in other areas where infiltration is prohibited or where groundwater is protected by a local, state, or federal plan, permit, regulation, or agreement. (Ord. No. 19-31, § 1, 3-29-2019)

Sec. 4-9-62. Performance standard waivers.

(a) Land developments conducted by entities under the jurisdiction and supervision of the Alabama Public Service Commission are waived from complying with the stormwater quality performance standard established in the design manual, only insofar as these land developments are exempted from local government water quality regulation by Code of Ala. 1975, tit. 11, ch. 89C.

(b) A waiver of one or more of the stormwater performance standards established in the design manual may be granted by the director under one or more of the circumstances defined below. Waiver of one or more of the performance standards shall not be construed as an exemption of the proposed land development from all other requirements of this chapter.

(1) One or more performance standards may be waived for redevelopments that will result in zero net increase in impervious surface area from the pre-construction condition.

(2) The small storm extended detention performance standard may be waived for new developments and redevelopments: where the post-construction condition peak discharge at the outlet(s) of the development is less than 2.0 cfs at each offsite discharge location; or, that discharge directly into open conveyances such as larger streams, rivers, wetlands, or lakes provided the discharge will not have an impact on stream bank or channel integrity.

(3) Flood protection performance standards may be waived for redevelopments that do not increase peak discharges. Demonstration of this condition shall be provided by the applicant(s) through preparation of a downstream analysis comparing the post-construction discharges without the influence of any additional flood protection storage practices to pre-construction discharges. The analysis shall be prepared by a professional engineer licensed in the State of Alabama.

(4) The director may waive one or more flood protection standards and/or the downstream analysis requirement if engineering data, whether provided by

the owner or the director, demonstrates that implementation of flood protection performance standards is unnecessary or may cause adverse flooding or erosion impacts on the subject property, on adjacent, nearby or downstream properties, whether publicly or privately held, or on receiving water(s).

(5) The director may waive one or more of any of the performance standards as an onsite design requirement if the land development will discharge, after construction, to an existing downstream or shared offsite post construction stormwater practice or system of practices that was previously designed and constructed to receive stormwater discharges from the proposed development, provided the practice or system of practices that will provide the required stormwater quality protection and/or flood protection with inclusion of stormwater discharges from the proposed land development.

a. The owner shall evaluate the adequacy of the offsite or shared stormwater practice(s) to receive a waiver if such information is not already in the director's possession. This evaluation shall be prepared by a professional engineer licensed in the State of Alabama and provided in the stormwater management plan.

b. The owner shall prepare a stormwater management plan and/or record drawing for the offsite or shared stormwater practice(s) if such information is not already in the director's possession.

(6) The director may waive one or more of the performance standards if the land development is determined to be eligible for payment of a fee-in-lieu of construction of onsite post construction stormwater practices or eligible for participation in an offsite stormwater control program when one or both of such programs are made available by the city and provided that the land development adheres to program policies. Each program shall be available when program policies are approved by city council and published by the city.

(Ord. No. 19-31, § 1, 3-29-2019)

Sec. 4-9-63. More stringent performance standards.

Constructed onsite stormwater systems that are designed and based on requirements that are more stringent than or differ from the minimum requirements established in the design manual may be necessary in order to effectively control and manage post construction stormwater. The director may require the land development to meet one or alternate or more stringent performance standards or design criteria than those established in the design manual under the following circumstances:

(a) The proposed land development is located on a property that is considered a brownfield or is otherwise known or believed to have pollutants in the soil or on the ground that, if discharged from the property in stormwater or groundwater, may cause harm to the general public or the environment.

(b) The proposed land development will, after development, discharge stormwater to a waterbody that is included on the most recent Alabama § 303(d) List, or for which a TMDL has been approved by the USEPA.

(c) The proposed land development will, after development, discharge stormwater to a waterbody that is classified by ADEM for Public Water Supply, as an Outstanding National Resource Water, as an Outstanding Alabama Water, or as a Treasured Alabama Lake, and the director, through sound engineering judgement, has reason to believe that unregulated stormwater discharges from the land development may adversely affect the waterbody.

(d) The proposed land development is located on, or will, after development, discharge stormwater to an area that has been designated by the USFWS as critical

habitat for one or more threatened or endangered species, or where the USFWS has identified one or more threatened or endangered species are located. In such cases, the owner may be required to consult with USFWS regarding the land development and to provide with the stormwater management plan any requirements of USFWS for the land development or outcomes of said consultation.

(e) The director has determined, through watershed management plans, stormwater master plans, engineering studies, or engineering judgement based on a history of existing pollutant, erosion, drainage or flooding problems, whether documented or undocumented, whether on the land development or on adjacent or downstream locations, that additional restrictions are needed to limit adverse impacts of the proposed land development that may result from stormwater discharges.

(Ord. No. 19-31, § 1, 3-29-2019)

Secs. 4-9-64—4-9-70. Reserved.

ARTICLE E. BONDS, LETTERS OF CREDIT

Sec. 4-9-71. Requirements.

Each stormwater management plan must be accompanied by letter of credit, or surety bond with the city having the right to approve the security which shall be furnished. Letter of credit, or surety bond (collectively referred to as "security") shall be furnished to the city in accordance with the following provisions:

(a) The director shall require a security in such amount as specified herein to assure the work, if not completed or if not in accordance with the approved plans and specifications, will be corrected to eliminate hazardous conditions, erosion, potential pollutant discharges, and/or drainage problems.

(b) The security shall contain, or have attached to it as an exhibit, a legal description of the proposed development. The security shall remain in effect until it has been released in writing by the director as provided in [this] section. A bond with a specific expiration date shall not be acceptable.

(c) The security for construction of the stormwater drainage system shall be in the amount of $5,000.00 per acre for each acre, or fraction of an acre, disturbed or affected by the proposed project.

(d) The letter of credit must be issued by a bank which has a principal office in Alabama.

(e) The letter of credit must be issued by a bank which is satisfactory to the city and each surety bond must be issued by a surety company which is qualified to do business in Alabama and which is otherwise satisfactory to the city.

(f) The security for construction operations for the stormwater drainage system shall be released upon termination of the post construction stormwater permit.

(Ord. No. 19-31, § 1, 3-29-2019)

Secs. 4-9-72—4-9-80. Reserved.

ARTICLE F. INSPECTION, OPERATION, AND MAINTENANCE

Sec. 4-9-81. Prohibited conditions.

In addition to the prohibited conditions established in Article A, section 4-9-10, the following uses, activities, encroachments or conditions are prohibited in post construction stormwater practices designed and constructed for stormwater management.

(a) Installation of impervious surfaces, except when included in an approved practice design, stream crossing, or other approved use;

(b) Damage to, or removal of, existing vegetation, unless such activities are necessary for the maintenance of the practice;

(c) Installation of non-native, invasive, or noxious plant species in a vegetated buffer or reforestation practice. Non-native, non-invasive plant species are permitted in all other stormwater management practices.

(Ord. No. 19-31, § 1, 3-29-2019)

Sec. 4-9-82. Maintenance and integrity during construction.

(a) The following requirements apply during clearing, grading, and construction to green infrastructure practices that will operate, after their construction, by infiltration and evapotranspiration:

(1) To avoid soil compaction and pollution, areas where green infrastructure practices will be, or are, located shall be protected from encroachment by heavy equipment, vehicles, and construction materials storage at all times.

i. Said areas shall be cordoned-off with a highly visible barrier, such as orange construction fencing, and shall not be encroached upon or otherwise disturbed unless they are being established, constructed, restored, or enhanced as provided for in an approved stormwater management plan. Protection measures shall be installed prior to, or if more practical, during clearing and grubbing of the land development.

ii. Said areas shall be clearly identified on the stormwater management plan, on the erosion and sediment control plan, and on all construction drawings, and marked with the statement "Green Infrastructure Practice. Do not disturb." Temporary protection measures to be used during construction shall be shown on the stormwater management plan.

(2) The use of green infrastructure practices as sediment traps or for any other erosion prevention and sediment control measure is expressly prohibited. Nor shall sediment from any area of the land development be allowed to discharge into, or through, areas where green infrastructure practices will be located.

(3) Erosion prevention and sediment control measures to be used during construction shall be shown on the stormwater management plan. Said measures shall not be removed until construction in the area that discharges stormwater to the practice is fully completed, and after 100 percent of the pervious surfaces in said area are fully vegetated or otherwise permanently stabilized to prevent soil erosion.

(4) Where encroachment, sedimentation, pollution, or other adverse condition is known or suspected as a result of clearing, grading, or construction, the director may require soil infiltration testing, soil amendment, or other corrective action(s) to confirm or restore infiltration rates to design requirements.

(b) Owner(s) of individual and collective stormwater drainage systems and post construction stormwater practices shall, at the completion of construction, inspect said systems and practices for sediment, trash, debris, or damage. Issues noted shall be corrected prior to submittal of the record drawing. Sediment, trash, and debris discharged during construction to individual and collective stormwater drainage systems shall be entirely removed, such that the system is free of blockage and operating at its fully functional design capacity, as indicated in the approved stormwater management plan.

(c) Post construction stormwater practices, excluding green infrastructure practices, may be used as sediment traps or other soil erosion and sediment control measures, if such use is approved in the soil erosion and sediment control plan. When such use is approved:

(1) Sediment discharged to a post construction stormwater practice during construction shall be removed after construction in the area that discharges stormwater to the practice is fully completed, and after 100 percent of the pervious surfaces

in said area are fully vegetated or otherwise permanently stabilized to prevent soil erosion;

(2) The use shall be clearly noted in the stormwater management plan, and the stormwater management plan shall indicate the sequence and method which will be used to ensure that the post construction stormwater practice functions as indicated by the approved design.

(d) Individual and collective stormwater drainage systems and post construction stormwater practices shall not, at any time, be used for storage of construction or demolition-related chemicals or waste, either temporarily or permanently.

(e) The director may, alone or in addition to other enforcement actions authorized by this chapter, withhold termination of a stormwater management plan pending satisfactory completion of corrective action(s) for failure to comply with any of the provisions of this section.
(Ord. No. 19-31, § 1, 3-29-2019)

Sec. 4-9-83. Post construction maintenance and integrity.

(a) It shall be the responsibility of the owner(s) of land developments to:

(1) At all times operate and maintain the individual and collective stormwater drainage systems and post construction stormwater practices located on their property, whether or not such systems and practices are identified on the property's plat, in proper, functional condition as defined by the approved stormwater management plan and the maintenance manual;

(2) Inspect and maintain all post-construction stormwater practices located on their property in accordance with the maintenance manual;

(3) At all times protect said systems and practices from alteration that adversely impacts their function as indicated by the approved stormwater management plan;

(4) Perform corrective actions when conditions occur that can or do adversely impact the function of the said systems and practices, whether said actions are undertaken voluntarily by the owner or required by the director; and

(5) Keep records of inspection and maintenance activities for a period of at least three years and make them available to the director upon request.

(b) Removal of said systems and practices, or their alteration in any way that adversely impacts their approved function and performance standard, without the prior approval of the director is expressly prohibited.

(c) The responsibilities stated herein shall continue for the owner(s) of land developments until such time that ownership of the property is transferred, upon which these responsibilities are immediately transferred to the subsequent owner.
(Ord. No. 19-31, § 1, 3-29-2019)

Sec. 4-9-84. Annual post construction owner inspection.

Owner(s) of post construction stormwater practices shall, at a minimum, inspect and document said practices annually to ensure the practices are properly functioning and compliant with this chapter. More frequent inspections may be required to ensure proper function, as established by the maintenance manual based on the maintenance needs of specific types of practices or by director as he/she deems necessary to ensure the maintenance needs of a particular practice are being addressed. Inspections shall be conducted by a person familiar with the operation of said practices on the property and be documented and submitted to the director in the manner established in the maintenance manual.
(Ord. No. 19-31, § 1, 3-29-2019)

Sec. 4-9-85. Maintenance of records after construction.

Records of compliance with the requirements set forth in sections 4-9-83 and 4-9-84, and records of compliance with any warning, notice

of violation, or order for corrective action by the director shall be maintained by the owner, and retained for at least six years, and shall be made available for inspection by the director.
(Ord. No. 19-31, § 1, 3-29-2019)

Sec. 4-9-86. Right of entry.

(a) The director may enter upon private property upon reasonable notice to the owner and the person in possession thereof and during normal business hours and upon the presentation of appropriate credentials for the purpose of performing investigations to: verify owner compliance with this chapter; determine whether corrective actions are needed; verify satisfactory compliance with any requested corrective actions; and, investigate any suspected violation(s) of this chapter. Proof of a violation of this chapter is not required for entry onto a premises. Any officer, employee, or other authorized agent who performs the duties of the director authorized by this chapter in accordance with provisions hereof shall be immune from arrest and prosecution for trespass while performing any legal duty pursuant to this chapter by presenting identification issued by the City of Birmingham. Identification issued by the city shall be presented by the city official at the time of entry.

(b) If security measures are in force on a premises, then the premises owner shall make the necessary arrangements to allow access to representatives of the official for the purposes of this chapter.

(c) Owners and/or operators of a premises shall allow the director or his her duly authorized representative reasonable access to all parts of the premises for the purposes of inspection, sampling, photography, videotaping, testing, documenting, and examination; for the copying of records that must be kept under the conditions of this chapter, a post construction stormwater permit, or an NPDES permit to discharge stormwater; and for the performance of any additional duties as required by state and federal law.

(d) The director shall have the right as may be necessary to conduct visual inspections of the individual and collective stormwater drainage systems, post construction stormwater practices, and pervious land cover areas of the premises, and to determine flow connection or blockages using test dyes or other appropriate methods.

(e) The director shall have the right to require the owner and/or operator of a BMP to demonstrate that the BMP is properly installed and functioning to meet the requirements of this chapter by operating the BMP in the presence of the director or by certification by an appropriate third party or other appropriate methods.

(f) Any temporary or permanent obstruction to safe and easy access to the premises to be inspected by the director shall be promptly removed by the owner of the premises at the written or oral request of the director. The costs of clearing such access shall be borne by the owner and/or occupier of the premises.

(g) Unreasonable delay in allowing the director access to a premises is a violation of this chapter. It shall be understood that for any person who is the owner and/or occupier of a land development upon which individual and collective stormwater drainage systems, and post construction stormwater practices are located and denies the director reasonable access to the premises for the purpose of conducting any activity authorized or required by this chapter shall be considered an offense, punishable by article G of this chapter.
(Ord. No. 19-31, § 1, 3-29-2019)

Sec. 4-9-87. Search warrants.

If the director has been refused access to all or any part of a land development upon which individual and collective stormwater drainage systems and post construction stormwater practices are located and is able to demonstrate probable cause that there may be a violation of this chapter, or that there is a need to inspect as part of a routine inspection program designed to verify compliance with this chapter or any order for corrective action issued hereunder, or to protect the overall public health, safety, and welfare of the community, then the director may seek issuance of a search warrant from any court of competent jurisdiction.
(Ord. No. 19-31, § 1, 3-29-2019)

Secs. 4-9-88—4-9-100. Reserved.

ARTICLE G. VIOLATIONS, ENFORCEMENT, AND PENALTIES

Sec. 4-9-101. Violations.

It shall be unlawful for any person to violate any provision of, or fail to comply with, any requirement of this chapter. Any person that has violated, or continues to violate, this chapter shall be subject to one or more of the following enforcement actions:

(a) Upon conviction, the violator shall subject to a penalty of not greater than $500.00 and/or imprisonment for a period of time not to exceed six months for each violation. Each act of violation and/or each day upon which any violation shall occur or continue to occur shall constitute a separate offense.

(b) Permit holders shall be required to perform corrective actions at their own expense if the director determines that the stormwater drainage system is not constructed in accordance with the approved stormwater construction plan, does not conform to the record drawing, or is not functioning, or will not function, in proper operating condition during a precipitation event.

(c) Failure to terminate a post construction stormwater permit may result in the withholding of a certificate of occupancy.

(d) Construction begun prior to issuance of the post-construction stormwater permit or failure to perform corrective actions required by the directory may result in the withholding of a certificate of occupancy for the applicable land development, or the withholding of any permit approvals or terminations on the applicable development and/or other land developments permitted in the permit holder's name until said permit issuance or corrective action(s) is resolved. Withholding of any approvals under this subsection does not preclude any other enforcement remedies available to the city.

(Ord. No. 19-31, § 1, 3-29-2019)

Sec. 4-9-102. Warning notice.

(a) When the director determines that any person has violated or continues to violate any provision of this chapter or any order issued hereunder, the director may serve upon that person a written warning notice specifying the particular violation believe to have occurred and requesting that the person immediately investigate the matter and seek a resolution whereby any offending condition will cease. The director may also include a description of the corrective action(s) he/she deems necessary to resolve the offending condition.

(b) The notice shall set forth a deadline of (30 days) by which a written response to the warning notice must be received indicating the person's plan for corrective action, whether said actions are designated by the director or determined by the person, and the time by which such plan will be completed.

(c) Investigation, corrective actions, and/or other resolution of the offending condition in response to the warning notice does not relieve the violator of liability for any violations occurring before or after receipt of the warning notice.

(d) Nothing in this subsection shall limit the authority of the director to take any action, including notice of violation, emergency action, or any other enforcement action, without first issuing a warning notice.

(Ord. No. 19-31, § 1, 3-29-2019)

Sec. 4-9-103. Notice of violation.

(a) Whenever the director finds a violation of a prohibition or a failure to meet a requirement of this chapter or a failure to comply with a warning notice, the director may order compliance by written notice of violation.

(b) This notice of violation shall contain:

(1) The name and address of the alleged violator, property owner, and/or operator;

(2) The address of the premises (when available) or a description of the building, structure, land, individual and collective stormwater drainage system and/or post construction stormwater practice upon which the violation is occurring or has occurred;

(3) A statement specifying the nature of the violation;

(4) A description of the corrective action(s) necessary to restore compliance with this chapter and a deadline for the completion of said action(s);

(5) A statement of the penalty or penalties that shall or may be assessed against the person to whom the notice of violation is directed;

(6) A statement that the determination of violation may be appealed to the stormwater appeals board, by filing a written notice of appeal with the director within ten business days of service of a notice of violation; and

(7) A statement specifying that, should the violator fail to restore compliance with this chapter within the established time schedule, the work will be done by a designated governmental agency or a contractor and twice the expense thereof shall be charged to the violator as allowed hereunder and collected as allowed by law.

(c) Such notice may require without limitation:

(1) The performance of monitoring, analyses, and reporting;

(2) Application for permits and/or the preparation of design plans;

(3) Vegetative restoration, structure restoration, repair or other remediation of individual and collective stormwater drainage systems and post construction stormwater practices;

(4) Vegetative stabilization, restoration, repair, enhancement, or other improvement of areas that drain to individual and collective stormwater drainage systems and post construction stormwater practices that are, or may be in the future, adversely impacted by the offending condition;

(5) The abatement or remediation of stormwater pollution or contamination hazards and restoration of any affected system, practice, or affected property;

(6) The design and installation of new individual and collective stormwater drainage systems and post construction stormwater practices;

(7) That violating discharges, practices, or alterations shall cease and desist;

(8) The implementation of, or repair of, systems or practices to correct the violation;

(9) Payment of an amount equal to twice any administrative and remediation costs borne by the City of Birmingham, including costs to administer and execute remedial actions and repair damages that have occurred on public property or in local waterways as a result of said violation(s).

(d) The failure of a person to comply with any lawful notice to implement corrective actions issued by the official, which has not been appealed within the time allowed herein, shall be deemed a violation of this chapter.
(Ord. No. 19-31, § 1, 3-29-2019)

Sec. 4-9-104. Appeal of notice of violation.

(a) Notwithstanding the provisions of this chapter, a person receiving a notice of violation may appeal the determination of the director to the stormwater appeals board.

(b) The notice of appeal must be received within ten days following the date of the notice of violation.

(c) A hearing on the appeal before the stormwater appeals board, established and authorized in the General Code of the City of Birmingham,

title 4, chapter 8, article J, and shall take place in accordance with the procedures set out therein. (Ord. No. 19-31, § 1, 3-29-2019)

Sec. 4-9-105. Emergency abatement.

(a) The director is authorized to require immediate abatement of any violation of this chapter that is reasonably believed to be an immediate threat to the health, safety, or well-being of the public.

(b) When the director finds that any person has violated, or continues to violate, any provision of this chapter, and that the person's violation(s) has (have) cause or contributed to an actual or threatened discharge of stormwater, which reasonably appears to present an imminent or substantial endangerment to the health or welfare of persons or to the environment, the director may issue an order to the violator directing it to immediately to cease and desist all such violations and to:

(1) Immediately comply with all ordinance requirements; and

(2) Take such appropriate corrective actions as may be needed to properly address a continuing or threatened violation.

(c) Any person notified of an emergency order directed to it under this subsection shall immediately take steps to comply and implement corrective actions.
(Ord. No. 19-31, § 1, 3-29-2019)

Sec. 4-9-106. Injunctive relief and/or civil remedies.

(a) If a person has violated or continues to violate the provisions of this chapter, the city may petition the appropriate court for a preliminary and/or permanent injunction restraining the person from activities which would create violations of this chapter or compelling the person to perform corrective action and/or remediation of any violation.

(b) The city may also initiate civil proceedings in any court of competent jurisdiction seeking monetary damages for any damages caused to the public stormwater drainage system or other public properties by any person, including costs incurred for corrective action and remediation, and may seek other equitable relief to enforce compliance with the provisions of this chapter or to force compliance with any lawful orders of the director.

(c) Damages sought by the city shall include any and all costs of such action, including attorneys' fees, trial expenses, court costs, and damages to the public stormwater drainage system or other public properties.
(Ord. No. 19-31, § 1, 3-29-2019)

Sec. 4-9-107. Remedies not exclusive: costs recoverable by the city.

(a) The remedies listed in this chapter are not exclusive of any other remedies available under any applicable federal, state, or local law and it is within the discretion of the city to seek cumulative remedies.

(b) The city may seek to recover in a civil suit for damages all attorneys' fees, trial expenses, court costs, and any and all other costs and losses resulting directly or indirectly from a violation of this chapter or any rule, regulation, order, or other provision authorized by state law. These costs or losses may include, but are not limited to, sampling and monitoring expenses, ADEM fines, EPA fines, costs associated with lawsuits of the city by third party(s), and any other costs associated with the enforcement of this chapter or the corrective actions or remediation stemming from violations of this chapter.
(Ord. No. 19-31, § 1, 3-29-2019)

Secs. 4-9-108—4-9-120. Reserved.

ARTICLE H. MISCELLANEOUS

Sec. 4-9-121. Notices.

Whenever the city is required or permitted to:

(a) Give a notice to any party, such notice shall be in writing; or,

(b) Deliver a document to any party; such notice or document may be delivered by personal deliver, certified mail (return receipt requested), registered mail (return receipt requested), or a general recognized

overnight carrier, to the address of such party which is in the record of the city or is otherwise known to the city.

(Ord. No. 19-31, § 1, 3-29-2019)

Sec. 4-9-122. References.

Whenever a chapter or section is referred to in this chapter, unless the context clearly indicates the contrary, such reference shall be to a section of this chapter.

(Ord. No. 19-31, § 1, 3-29-2019)

Sec. 4-9-123. Minimum requirements.

(a) In interpreting and applying the provisions of this chapter, they shall be held to be the minimum requirements for the promotion of public health, safety, convenience, comfort, and the general welfare.

(b) Where this chapter imposes greater restrictions than are imposed or required by other ordinances, rules, regulations, or permits, or by easements, covenants, or agreements, the provisions of this chapter shall apply.

(c) Where any other laws, ordinances, rules, regulations, permits, or restrictive conditions of other governmental or city agencies charged with land or clean water regulation impose such greater restrictions than are required under the regulations of this chapter, such provisions shall govern.

(Ord. No. 19-31, § 1, 3-29-2019)

Title 5

AVIATION

Chapter 1. General Provisions

Sec. 5-1-1. Definitions.
Secs. 5-1-2—5-1-4. Reserved.
Sec. 5-1-5. Penalties.

Chapter 2. Aircraft Operation

Sec. 5-2-1. Aircraft operations to conform with regulations.
Sec. 5-2-2. Unlawful to land or take off except at licensed airport or heliport without a permit.
Sec. 5-2-3. Permits for aircraft to land or take off at places other than airports or heliports.
Secs. 5-2-4, 5-2-5. Reserved.
Sec. 5-2-6. Reckless operation.
Sec. 5-2-7. Acrobatic flight prohibited without permit.
Sec. 5-2-8. Dropping objects or parachuting from aircraft prohibited without permit.
Sec. 5-2-9. Use of afterburners.
Sec. 5-2-10. Prima facie evidence of aircraft operation.

CHAPTER 1. GENERAL PROVISIONS*

Sec. 5-1-1. Definitions.

The following words and terms, when used in this title, shall have the meanings respectively ascribed to them by this section:

Aircraft means any device, self-propelled or otherwise, which is now known or hereafter invented, used or designed for navigation of or flight in the air, except a parachute or other device designed for use primarily as safety equipment.

Aircraft operator means any person, firm, corporation, company, association or organization owning, leasing, controlling or operating any aircraft, or causing the operation thereof.

Airport means any area of land or water designed and set aside for the landing, takeoff, storage, parking of aircraft and appurtenant areas which are used or intended for such use, for airport buildings, facilities or rights-of-way, together with all buildings, structures and facilities located thereon now or hereafter purchased, leased, donated or used for the Birmingham Municipal Airport, including such property which may be subject to an exclusive lease or license agreement or which is managed by the Birmingham Airport Authority and utilized or to be utilized in the interest of the public for such purposes.

Airport rules and regulations means the rules and regulations for the airport established under this title by the Birmingham Airport Authority.

Heliport means an airport designed primarily for use by helicopters.

Licensed airport or heliport means an airport or heliport which has been air spaced by the Federal Aviation Administration and licensed by the state department of aeronautics.
(Code 1980, § 5-1-1; Ord. No. 91-149, 6-25-1991)

Secs. 5-1-2—5-1-4. Reserved.

*__State law reference—__Municipal airports and regulations, Code of Ala. 1975, § 4-4-1 et seq.

Sec. 5-1-5. Penalties.

Any person operating or handling any aircraft in violation of any provision of this title or any Birmingham Airport Authority rule or regulation, or failing to comply therewith, on any lawful order of any officer charged with the enforcement of this title shall, on conviction in the municipal court of the city, be punished as now or hereafter provided by section 1-1-6.
(Code 1980, § 5-1-5; Ord. No. 91-149, 6-25-1991)

CHAPTER 2. AIRCRAFT OPERATION

Sec. 5-2-1. Aircraft operations to conform with regulations.

It shall be unlawful for any person to operate any aircraft in the city except in conformity with all Federal Aviation Administration regulations, the provisions of this title and the rules and regulations of the Birmingham Airport Authority.
(Code 1980, § 5-2-1; Ord. No. 91-148, 6-25-1991)

Sec. 5-2-2. Unlawful to land or take off except at licensed airport or heliport without a permit.

Except as necessary in an emergency, it shall be unlawful for an aircraft operator to land at or take off from any place in the city other than a licensed airport or heliport without a permit issued by the mayor.
(Code 1980, § 5-2-2; Ord. No. 91-148, 6-25-1991)

Sec. 5-2-3. Permits for aircraft to land or take off at places other than airports or heliports.

The mayor may issue a permit upon application therefor authorizing the applicant to land or take off, or cause to land or take off, any aircraft, including helicopters, at or from a place to be described in the permit other than a licensed airport or heliport. Such permits shall be effective only for the period of time specified therein.
(Code 1980, § 5-2-3; Ord. No. 91-148, 6-25-1991)

Secs. 5-2-4, 5-2-5. Reserved.

Sec. 5-2-6. Reckless operation.

It shall be unlawful for any person to operate any aircraft or rotorcraft over the city carelessly and heedlessly in willful or wanton disregard for the rights or safety of persons or property, or without due caution and circumspection, or in a manner so as to endanger or be likely to endanger any person or property.
(Code 1964, § 8-4; Code 1980, § 5-2-6; Ord. No. 91-148, 6-25-1991)

Sec. 5-2-7. Acrobatic flight prohibited without permit.

No person shall engage in acrobatic flight over the city, except that aerobatic flying may be authorized by the Birmingham Airport Authority upon a Federal Aviation Administration waiver when such flights are conducted from a licensed airport under the control of the Birmingham Airport Authority; and in such instance no permit from the mayor will be required.
(Code 1980, § 5-2-7; Ord. No. 91-148, 6-25-1991)

Sec. 5-2-8. Dropping objects or parachuting from aircraft prohibited without permit.

No person shall drop or permit any object to be dropped from any aircraft in flight, nor shall any person make or permit a nonemergency parachute jump to be made over the city, unless a permit shall have been obtained from the mayor.
(Code 1980, § 5-2-8; Ord. No. 91-148, 6-25-1991)

Sec. 5-2-9. Use of afterburners.

No afterburner or afterburners shall be used except within the boundary limits of the airport.
(Code 1964, § 8-40; Code 1980, § 5-2-9)

Sec. 5-2-10. Prima facie evidence of aircraft operation.

In any prosecution of an alleged operation or use of an aircraft in violation of any provision of this title it shall be prima facie evidence that the person or corporation registered with the Federal Aviation Administration as the owner of said aircraft was operating the same, or causing its operation, at the time of the alleged violation.
(Code 1980, § 5-2-10)

Title 6

HEALTH AND ENVIRONMENTAL CONTROL

Chapter 1. Animals and Fowl

Article A. General Provisions

Sec. 6-1-1. Definitions.
Sec. 6-1-2. Wild or vicious animals.
Sec. 6-1-3. Noisy animals or fowl.
Sec. 6-1-4. Keeping of swine, goats and sheep prohibited; exceptions.
Sec. 6-1-5. Sanitation of premises where animals or fowl kept.
Secs. 6-1-6—6-1-10. Reserved.

Article B. Dogs

Sec. 6-1-11. Enforcement.
Sec. 6-1-12. Inoculation.
Sec. 6-1-13. Kennel licenses.
Sec. 6-1-14. Running at large; prohibited; penalties.
Sec. 6-1-15. Excretion of dogs.
Sec. 6-1-16. Care of tethered dogs.
Sec. 6-1-17. Causing escape, etc., of confined, etc., dog.
Sec. 6-1-18. Impoundment—Generally.
Sec. 6-1-19. Same—Redemption generally; sale or disposition of unredeemed dogs or cats.
Sec. 6-1-20. Same—Fees.
Sec. 6-1-21. Keeping vicious dogs; destruction of animal for humane reasons.
Secs. 6-1-22—6-1-30. Reserved.

Article C. Rabies Control

Sec. 6-1-31. Authority to require quarantine or confinement of animals.
Sec. 6-1-32. Responsibilities of veterinarians.
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Sec. 6-1-35. Interference with officials prohibited.
Sec. 6-1-36. Records required.
Secs. 6-1-37—6-1-50. Reserved.

Article D. Running At Large

Sec. 6-1-51. Allowing horses, cows, etc., to run at large; duty of rabies control officer as to animals in violation of section.
Sec. 6-1-52. Stray animals may be taken up.
Sec. 6-1-53. Duties of persons taking up stray animals.
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CHAPTER 1. ANIMALS AND FOWL*

ARTICLE A. GENERAL PROVISIONS

Sec. 6-1-1. Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

Animal control center means any premises designated by the city for the purpose of impounding and caring for animals under the Rabies Act for the confinement under municipal ordinances or state laws.

Animal control officer means the person employed by the supervisor of the animal control center or otherwise authorized by the city to assist the supervisor of the animal control center in the performance of his or her duties.

At large. A dog or cat shall be deemed to be at large when it is not under physical restraint by its owner or a competent person having charge or control of it or when it is not confined within a wall, fence, vehicle or other enclosure in such a manner as to effectively prevent it from escape.

Cat means all members of the feline family.

Dog means all members of the canine family.

Exposed to rabies. A dog or cat has been exposed to rabies within the meaning of this chapter if it has been bitten by, or been exposed to, any animal known to have been infected with rabies.

Kennel means any person, group of persons or corporation engaged in the business of breeding, buying, selling or boarding dogs or cats.

Owner means any person having a right of property in a dog or cat or who has care of it or acts as its custodian or who keeps it, allows it food and refuge on or about any premises occupied by that person or who harbors it in any manner.

Supervisor, animal control center, means the person authorized by the city to supervise the operation of the rabies control at the animal control center and to perform other duties as required by city ordinance or state law.

Under restraint means controlled by a leash, cord, chain or similar means in the hands of the owner or tethered in a humane manner so as to remain upon private premises and in the presence of the owner or any competent person.
(Code 1964, § 7-1; Code 1980, § 6-1-1; Ord. No. 07-103, 6-19-2007)

Sec. 6-1-2. Wild or vicious animals.

It shall be unlawful for the owner or other person in charge thereof to harbor or keep in the city a wild or vicious animal unless the same is securely confined or bound in such a manner as to prevent that animal from biting or attacking a person or another animal.
(Code 1964, § 7-2; Code 1980, § 6-1-2)

Sec. 6-1-3. Noisy animals or fowl.

It shall be unlawful to confine, harbor or keep on a lot, place or premises, any animal or fowl which habitually, continuously or intermittently makes or emits sounds or noises of a volume, nature and extent as to be a public nuisance by reason of being obnoxious or annoying to the ordinary persons in that neighborhood.
(Code 1964, § 7-3; Code 1980, § 6-1-3)

Sec. 6-1-4. Keeping of swine, goats and sheep prohibited; exceptions.

It shall be unlawful for any person to keep, harbor or confine any swine, goats or sheep within the city, except in commercial stockyards or slaughterhouses.
(Code 1964, § 7-4; Code 1980, § 6-1-4)

Sec. 6-1-5. Sanitation of premises where animals or fowl kept.

All places and premises in the city where animals or fowl are kept, harbored or confined shall be kept clean, sanitary and free of obnoxious odors, and shall be maintained in such a manner as will effectually prevent the reproduction or propagation in or about the places or premises of flies. The presence on or about the places or

*__State law references__—Animals generally, Code of Ala. 1975, § 3-1-1 et seq.; general authority relative to animals, Code of Ala. 1975, § 11-47-110.

premises of the live larvae of flies under conditions which permit or favor growth or development shall be prima facie evidence of the reproduction or propagation of flies and of the keeping or maintaining of such places or premises used for those purposes in violation of the provisions of this section.
(Code 1964, § 7-5; Code 1980, § 6-1-5)

Secs. 6-1-6—6-1-10. Reserved.

ARTICLE B. DOGS

Sec. 6-1-11. Enforcement.

The provisions of this article may be enforced by any police officer of the city, the supervisor of the animal control center, any animal control officer authorized by the city or any other duly authorized employee of the city; provided, however, that these enforcement provisions shall not be construed to limit citizens from making duly sworn complaints to a magistrate of the city for violations of section 6-1-14.
(Code 1964, § 7-11; Code 1980, § 6-1-11; Ord. No. 07-103, 6-19-2007)

Sec. 6-1-12. Inoculation.

It shall be unlawful for the owner or any person to possess, keep or harbor in the city any dog or cat over three months of age which has not been inoculated against rabies within the preceding 12 months and tagged as required by Code of Ala. 1975, §§ 3-7-2 and 3-7-4.
(Code 1980, § 6-1-12; Ord. No. 07-103, 6-19-2007)

Sec. 6-1-13. Kennel licenses.

No person, group or corporation shall engage in the business of buying, selling, boarding or breeding dogs or cats unless a business license for the current license year shall have first been issued therefor by the director of finance.
(Code 1964, § 7-13; Code 1980, § 6-1-13; Ord. No. 92-207, 8-4-1992; Ord. No. 07-103, 6-19-2007)

Sec. 6-1-14. Running at large; prohibited; penalties.

(a) *Offenses.* It shall be unlawful for the owner or any person having charge or control of a dog or cat to allow it to be or to run at large.

(b) *Penalties.*

(1) The minimum fine on a finding of guilty or a plea of guilty on a first offense within a 12-month period of time shall be $100.00, which first offense may be resolved administratively as provided in section 8-3-10, as the same may be amended over time.

(2) The minimum fine on a finding of guilty or a plea of guilty on a second offense within a 12-month period of time shall be $250.00, provided that, upon the second and subsequent offenses charged within a 12-month period, the offender shall be required to appear in court.

(3) The minimum fine on a third or subsequent offense within a 12-month period on a finding of guilty or a plea of guilty shall be $400.00 and/or imprisonment as provided in section 1-1-6.

(Code 1964, § 7-14; Code 1980, § 6-1-14; Ord. No. 04-144, § 1, 12-21-2004; Ord. No. 07-103, 6-19-2007)

Sec. 6-1-15. Excretion of dogs.

(a) It shall be unlawful for the owner or person having charge or control of any dog to permit or allow such dog to defecate upon the private property of others or on any public street, public right-of-way, sidewalk, pathway, park, pedestrian way, or any public facility or on any school ground unless such person shall immediately secure and enclose within a bag or other container all feces deposited by the animal and dispose of it in a sanitary manner.

(b) It shall be unlawful for any person who has the charge and control of a dog on any private property of others, public street, public right-of-way, sidewalk, pathway, park, pedestrian way or any public facility or on any school ground, to fail to maintain in his or her possession sufficient wrappers, bags or a container for the purpose of complying with the requirements of this section,

when in charge or control of a dog on public street, public right-of-way, sidewalk, pathway, park, pedestrian way or any public facility or on any school ground.

(c) The vision-impaired or such person who has the charge or control of a guide or service dog shall be exempt from the provisions of this section.

(d) The fine for the violation of this section will be $50.00.
(Ord. No. 02-142, § 1, 10-1-2002)

Sec. 6-1-16. Care of tethered dogs.

It shall be unlawful for any person to tether a dog in an inhumane manner and it shall be unlawful for any person to leave a dog tethered without its owner or a competent person to care for it.
(Code 1964, § 7-15; Code 1980, § 6-1-16)

State law reference—Cruelty to animals, Code of Ala. 1975, § 13A-11-14.

Sec. 6-1-17. Causing escape, etc., of confined, etc., dog.

It shall be unlawful for anyone to take a dog from the confinement or restraint of its owner or of the person in charge or control of it or to cause a dog to escape from the confinement or restraint without specific permission therefor from the owner or person in charge or control of the dog.
(Code 1964, § 7-16; Code 1980, § 6-1-17)

Sec. 6-1-18. Impoundment—Generally.

(a) Any dog or cat found running at large may be picked up by an animal control officer or rabies officer and impounded in the shelter designated as the animal control center and there confined in a humane manner for a period of not less than three days, and thereafter be disposed of in a humane manner if not claimed by its owner; provided, however, when the owner or person in charge of any such dog or cat found at large or running at large is known or made known to the animal control officer, and that dog or cat is otherwise in compliance with the other requirements of this article and article C of this chapter, any officer authorized as set forth in this article may issue a citation for ordinance violation to the owner or person in charge, in lieu of the impoundment. Any officer authorized as set forth in this article shall be authorized hereby to issue a citation of ordinance violation, as set forth in section 6-1-11, to the owner or person in charge of a dog or cat found at large or running at large.

(b) After the legal detention period has expired and an impounded dog or cat has not been claimed by its owner, the supervisor of the animal control center may transfer the title to and give ownership of any dog or cat held in the animal control center to:

(1) The humane society or any responsible state animal adoption society, said society agreeing to provide for the inoculation of said animal to the satisfaction of the supervisor, but not being required to pay any fee;

(2) To any person deemed by the supervisor to be a responsible and suitable owner who shall agree to comply with the provisions of this article, including the inoculation and payment of fees herein required.

(c) Immediately upon the impounding of any dog or cat, the supervisor of the animal control center shall make every reasonable effort to notify the owner of the dog or cat so impounded and inform the owner of the conditions under which they may regain custody of the dog or cat.
(Code 1964, § 7-17; Code 1980, § 6-1-18; Ord. No. 79-8, 1-23-1979; Ord. No. 07-103, 6-19-2007)

Sec. 6-1-19. Same—Redemption generally; sale or disposition of unredeemed dogs or cats.

(a) The owner shall be entitled to resume possession of any impounded dog or cat, except as hereinafter provided in the cases of fierce, dangerous or vicious dogs, upon compliance with the inoculation requirements of this article and the payment of impoundment and board fees herein required.

(b) Release of dogs or cats by the supervisor of the animal control center.

(1) No impounded dog over the age of three months shall be released from the animal

control center unless or until the same is inoculated and a proper certificate thereof and tag therefor is presented or obtained as required in this article or the ordinance or regulation of the city, town or county in the state where that dog or cat is to be taken and remain. An owner or other person entitled to possession of an impounded dog or cat who does not have the required inoculation certificate and tag for the dog or cat shall have the dog or cat inoculated at the animal control center by a licensed veterinarian, upon payment of the fee, or any sums as may be hereafter authorized therefor by state law.

(2) It shall be the duty of the supervisor, or his or her assistant, to furnish a copy of all receipts issued under this subsection (b) promptly to the health department, along with the names and addresses of all persons to whom these receipts have been issued.

(3) Any dog or cat impounded under the provisions of this section and not reclaimed by its owner within three days:

a. May be humanely destroyed by the supervisor, or his or her assistant; or

b. The supervisor may transfer title to it and give ownership of it as provided in section 6-1-18(b).

(4) The owner of a dog or cat impounded and not redeemed within the detention period provided for in this article shall be responsible for the fees and charges herein required and incurred, whether or not the dog or cat is claimed.

(5) In the event any dog or cat is voluntarily left for disposal by its owner, the supervisor of the animal control center shall have complete authority either to destroy any such dog or cat in a humane manner without holding the same for redemption, or if any such dog or cat is healthy, to give the same to a new owner, upon proper inoculation and payment of all required fees by the new owner.

(Code 1964, § 7-18; Code 1980, § 6-1-19; Ord. No. 92-205, 8-4-1992; Ord. No. 07-103, 6-19-2007)

Sec. 6-1-20. Same—Fees.

(a) Any dog or cat impounded hereunder may be reclaimed as herein provided upon payment by the owner to the supervisor of the animal control center or his or her assistant of the fee approved by the city for the:

(1) Board;

(2) Inoculation fee, if necessary, plus any penalty due;

(3) Impounding fee; and

(4) Any veterinarian cost for emergency.

(b) All board fees, inoculation fees, impoundment, veterinarian fees for emergency treatment, and kennel permit fees shall be remitted to the city's director of finance.

(Code 1964, § 7-19; Code 1980, § 6-1-20; Ord. No. 92-206, 8-4-1992; Ord. No. 07-103, 6-19-2007)

Sec. 6-1-21. Keeping vicious dogs; destruction of animal for humane reasons.

(a) The owner shall confine within a building or secure enclosure every fierce, dangerous or vicious dog, and not take that dog out of the building or secure enclosure unless the dog is on a leash and is securely muzzled. The owner of the dog shall post a written notice in letters not less than two inches high upon the place of confinement so as to be easily seen warning that a vicious dog is on the premises. It shall be prima facie evidence that a dog is fierce, dangerous or vicious if it fiercely or viciously bites or attacks another animal not on its owner's premises or if it shall bite, attack or fiercely or viciously assault or chase any person who is not at the time on the owner's premises.

(b) Any dog as is described in subsection (a) of this section found at large shall be impounded by the animal control officers in the animal control center and when, in the judgment of a licensed veterinarian and/or the supervisor of the animal control center, that dog should be destroyed for reasons of public safety or humane reasons, it may not be redeemed.

(c) If it is determined by a licensed veterinarian that the dog should be destroyed, the owner shall be notified in writing within 24 hours of such decision or one business day. The owner shall have seven days to file an appeal of the decision with the supervisor of the animal control center and the city clerk. The city clerk shall place the appeal before the city council within ten days for a hearing on the decision to destroy the dog. (Code 1964, § 7-20; Code 1980, § 6-1-21; Ord. No. 07-103, 6-19-2007)

Secs. 6-1-22—6-1-30. Reserved.

ARTICLE C. RABIES CONTROL*

Sec. 6-1-31. Authority to require quarantine or confinement of animals.

(a) The county health officer shall have authority to quarantine or require confinement of any or all dogs, or other animals in any part or all of the city for the period of time and in the manner as he or she may determine whenever he or she considers a quarantine or confinement necessary for the control of rabies.

(b) Whenever the county health officer, the county quarantine officer or rabies inspector shall receive information that any person has been bitten by a dog, the county health officer, county quarantine officer or rabies inspector shall be required to have the dog confined under the direct care, custody, control and supervision of a licensed veterinarian for a period of ten days. It shall be unlawful for any person having knowledge that any person has been bitten by any such dog to refuse to notify promptly one or more of the officers mentioned in this section. It shall be unlawful for the owner of any such dog to refuse to or fail to comply with the written recommendations made by the county health officer, county quarantine officer or rabies inspector in any particular case. Any expenses incurred in the handling of any dog under this and preceding sections shall be borne by the owner. The veterinarian under whose care a dog has been committed shall report the results of his or her observation of the dog to the attending physician of the person bitten.

(c) Upon demand made by the health officer, the owner shall forthwith surrender to the health officer or his or her authorized representative any animal which has bitten a human, or which is suspected as having been exposed to or having rabies, for supervised quarantine; any expense incurred shall be borne by the owner. If adjudged free of rabies, and upon payment of fees set forth in article B of this chapter, and upon compliance with provisions set forth in that article, the animal may be released to its owner.

(d) It shall be unlawful for any person to keep, harbor or maintain on or about any place or premises in the city a dog or other animal which is known to have or is reasonably suspected of having rabies, unless the animal is securely confined in such a manner as effectually to prevent contact with or injury to persons or other animals, and any such animal not so confined shall either be destroyed or removed to the rabies control center or other appropriate place by a person designated for that purpose by the city, and there securely confined as aforesaid.

(e) It shall be unlawful for any person to keep, harbor or maintain on or about any place or premises in the city, any animal whatsoever which has been or is reasonably suspected to have been bitten or otherwise injured by or in contact with another animal afflicted with or suspected of being afflicted with rabies in such a manner as to permit or favor transmission of the disease, unless the animal so bitten, injured or in contact shall be securely confined for not less than six months thereafter.

(f) When an animal under quarantine dies while under observation for rabies, the head of that animal shall be sent to the health department laboratory for pathological examination.

(g) When a laboratory report, either preliminary or final, gives a positive diagnosis of rabies, the health officer may declare a citywide quarantine or quarantine any part of the city for a period of 30 days, and upon the invoking of this quarantine, no animal shall be permitted to be at large

*__State law reference—__Rabies control generally, Code of Ala. 1975, § 3-7A-1 et seq.

except on a leash and muzzled and accompanied by a responsible person during this period of quarantine. During the quarantine, no animal may be taken or shipped from the city without written permission of the health officer. During the quarantine period, the health officer shall be empowered to provide for a program of mass immunization of dogs by the establishment of temporary emergency canine rabies vaccination clinics strategically located throughout the area of health jurisdiction.

(h) No dog which has been impounded by reason of its being a stray and unclaimed by its owner may be adopted from the rabies control center during the period of rabies emergency quarantine, except by special authorization of the health officer.

(i) During the period of rabies quarantine as herein mentioned, every animal bitten by an animal adjudged to be rabid shall be forthwith destroyed or, at the owner's expense and option, shall be treated for rabies infection by a licensed veterinarian and held under six months' quarantine by the owner in the same manner as other animals are quarantined.

(j) In the event there are additional positive cases of rabies occurring during the period of quarantine, the period of quarantine may be extended for an additional six months.

(k) No person shall kill, or cause to be killed, any rabid animal, any animal suspected of having been exposed to rabies or any animal that has bitten a human, except as herein provided, nor remove the same from the city limits without written permission from the health officer.

(l) The carcass of any dead animal exposed to rabies shall, upon demand, be surrendered to the health officer.

(m) The health officer shall direct the disposition of any animal found to be infected with rabies.

(n) No person shall fail or refuse to surrender any animal for quarantine or destruction as required herein when demand is made thereof by the health officer.
(Code 1964, § 7-21; Code 1980, § 6-1-22)

Sec. 6-1-32. Responsibilities of veterinarians.

It shall be the duty of every licensed veterinarian to report to the health officer his or her diagnosis of any animal observed by him or her as a rabies suspect.
(Code 1964, § 7-22; Code 1980, § 6-1-32)

Sec. 6-1-33. Exemptions from article.

(a) The provisions of this article to the contrary notwithstanding, the person in charge or possession of dogs kept in a hospital, clinic or other place operated by a licensed veterinarian for the care and treatment of animals shall not be required to vaccinate any such dogs which are not the property of such person.

(b) The vaccination requirements of this article shall not apply to any dog belonging to a nonresident of the city and kept within the city for not longer than 30 days; provided that all such dogs shall at all times while in the city be confined within a building, enclosure or vehicle or be under restraint or tethered as required in this chapter.
(Code 1964, § 7-23; Code 1980, § 6-1-33)

Sec. 6-1-34. Right of entry.

For the purpose of discharging the duties imposed by this article and to enforce its provisions, any authorized representative of the health officer or any police officer is empowered to enter upon any premises upon which a dog is kept or harbored and to demand the exhibition by the owner of the certificate of vaccination for the dog.
(Code 1964, § 7-24; Code 1980, § 6-1-34)

Sec. 6-1-35. Interference with officials prohibited.

No person shall interfere with, hinder or molest any authorized representative of the health officer in the performance of any duty of that representative or seek to release any animal in the custody of the health officer or his or her authorized representative, except as herein provided.
(Code 1964, § 7-25; Code 1980, § 6-1-35)

Sec. 6-1-36. Records required.

(a) It shall be the duty of the supervisor of the rabies control center to keep or cause to be kept accurate and detailed records for a period of five years of the impoundment and disposition of all animals coming into his or her custody.

(b) It shall be the duty of the supervisor of the rabies control center to keep or cause to be kept accurate records of all animal bite cases reported to him or her and the investigation of these bites for a period of five years.

(c) It shall be the duty of the health officer to keep, or cause to be kept, accurate and detailed records of all monies belonging to the city, which records shall be open to inspection at reasonable times by those persons responsible for similar records of the city and shall be audited by the city annually in the same manner as other city records are audited.
(Code 1964, § 7-26; Code 1980, § 6-1-36)

Secs. 6-1-37—6-1-50. Reserved.

ARTICLE D. RUNNING AT LARGE*

Sec. 6-1-51. Allowing horses, cows, etc., to run at large; duty of rabies control officer as to animals in violation of section.

It shall be unlawful for the owner or person in charge of any animal, except dogs and cats, to cause, permit or allow any such animal to be at large upon, or staked out in any manner as to have access to, any of the streets, parks or public places of the city, or to be at large upon any private premises in the city, unless securely confined to the private premises by a fence or other enclosure. It shall be the duty of the rabies control officer to take up and impound any such animal found at large, or staked out in violation of or contrary to the provisions of this section.
(Code 1964, § 7-35; Code 1980, § 6-1-51)

*__State law reference__—Authority of municipality to regulate and prevent the running at large of animals on the city streets, Code of Ala. 1975, § 11-47-110.

Sec. 6-1-52. Stray animals may be taken up.

Any person in the city finding any horse, mare, mule, cow, bull, hog, sheep or calf running at large about his or her residence, or the residence of which he or she is in charge, the owner of which is unknown, may take up the animal as an estray.
(Code 1964, § 7-36; Code 1980, § 6-1-52)

Sec. 6-1-53. Duties of persons taking up stray animals.

It shall be the duty of every person taking up an estray to notify immediately the rabies control officer, giving the name of the person taking up such estray and his or her residence address, including street and house number, and a description of the animal so taken up, whether horse, mare, mule, cow, calf, bull or sheep or whatever that animal may be, and the location where that animal has been placed. It shall thereupon be the duty of the rabies control officer immediately to make demand upon that person at the address given for the possession of the animal, and it shall be the duty of the person in possession of the animal, on demand, to deliver the same to the rabies control officer, and the rabies control officer shall thereupon impound the animal in the shelter designated as the rabies control center. It shall be unlawful for any person in the city to take up any stray animal unless the person shall immediately comply with these provisions.
(Code 1964, § 7-37; Code 1980, § 6-1-53)

Sec. 6-1-54. Driving animals into city for purpose of impounding.

It shall be unlawful for any person to drive or bring, or attempt to drive or bring, any horse, mule, goat, sheep, cow or other animal into the city for the purpose of having the same impounded.
(Code 1964, § 7-38; Code 1980, § 6-1-54)

Sec. 6-1-55. Sale of impounded animals or return to owner.

Immediately after the impounding of any animal, other than a dog, the rabies control officer shall proceed to sell the same at public outcry to the highest bidder for cash after having given notice of the time and place and terms of sale,

together with a brief description of the animal, by one publication in some newspaper of general circulation in the city. If, before the sale, the owner of any animal so taken up and impounded applies for the animal, it shall be delivered to him or her by the rabies control officer upon payment of $2.00, together with any expenses as may have been incurred in or about the advertising of the sale of the animal and the care and preservation of the same, and also the following feeding fees:

(1) For each horse, mule, cow or animal of like kind, $0.75 per day;

(2) For each hog, sheep, goat or animal of like kind, $0.50 per day.

(Code 1964, § 7-39; Code 1980, § 6-1-55)

Sec. 6-1-56. Proceeds of sale or redemption.

The proceeds of all sales and redemptions of impounded animals made as provided in this article shall be paid into the city treasury; but if any surplus of the proceeds of sale remain, after paying the charges and expenses thereof, the same shall be paid to the owner of the animal from the sale of which the proceeds were derived, upon rendition of satisfactory proof of ownership.
(Code 1964, § 7-40; Code 1980, § 6-1-56)

Sec. 6-1-57. Report of sales; bids by city officers.

It shall be the duty of the rabies control officer to report to the mayor all animals impounded or sold, with the results of each sale. No officer of the city shall bid at, or be directly or indirectly interested in, the sale of any animal taken up and sold under the provisions of this article.
(Code 1964, § 7-41; Code 1980, § 6-1-57)

Secs. 6-1-58—6-1-70. Reserved.

ARTICLE E. CRUELTY TO ANIMALS*

Sec. 6-1-71. Certain acts of cruelty enumerated.

No person shall override, overdrive, overload, torture, torment, maim, mutilate, deprive of necessary sustenance or cruelly kill, beat, bruise, wound, cause or procure to be overridden, overdriven, overloaded, driven while overloaded, cruelly beaten, mutilated or cruelly killed, any domestic animal, whether belonging to himself or to another, or, either as owner or otherwise, inflict unnecessary cruelty upon the same, or upon any living creature, or use, work, ride or employ in any manner any bruised, maimed, sick or lame beast of burden or working animal, or fail to provide any domestic animal with proper food, drink or protection from the weather; provided that this section shall not be construed as prohibiting the dehorning of cattle.
(Code 1964, § 7-42; Code 1980, § 6-1-71)

Sec. 6-1-72. Humane societies, etc.—Authority generally.

Any officer, agent or member of any society for the prevention of cruelty to animals or of any humane society may lawfully interfere to prevent the perpetration of any act of cruelty upon any animal in his or her presence, and it shall be unlawful for any person to interfere with or obstruct any such officer, agent or member in the discharge of his or her duty.
(Code 1964, § 7-43; Code 1980, § 6-1-72)

Sec. 6-1-73. Same—Authority to make arrests; impersonation of officer.

Any officer or agent of any society for the prevention of cruelty to animals or of any humane society shall have power to make arrests for any act of cruelty to animals now or hereafter prohibited by this article or any other ordinance of the city. It shall be unlawful for any person to falsely personate any officer, agent or member of any such society.
(Code 1964, § 7-44; Code 1980, § 6-1-73)

Secs. 6-1-74—6-1-80. Reserved.

*__State law reference__—Cruelty to animals, Code of Ala. 1975, § 13A-11-14.

ARTICLE F. DEAD ANIMALS*

Sec. 6-1-81. Deposit on streets.

It shall be unlawful for any person to cast, throw, drop or otherwise deposit any dead animal or fowl in or upon any street, sidewalk, park or other public place in the city.
(Code 1964, § 7-45; Code 1980, § 6-1-81)

Sec. 6-1-82. Removal by city—Required.

It shall be unlawful for any person, other than the city, to remove any dead horse, mare, colt, bull, cow, calf, hog, goat, dog or cat from any public street or alley or from any private premises in the city, but it shall be the duty of the person in charge or control of any premises in the city upon which any dead animal lies or remains to promptly notify the superintendent of streets and sanitation of the presence thereon of any dead animal, whereupon it shall be the duty of the superintendent to promptly cause the removal of the animal, at the expense of the owner of the animal, if the animal is removed from a street, alley or other public place, and at the expense of the owner or person in charge or control of the premises from which the animal was removed, if removed from private premises.
(Code 1964, § 7-46; Code 1980, § 6-1-82)

Sec. 6-1-83. Same—Fees.

(a) The owner or person in charge or control of private premises from which a dead animal is removed by the street and sanitation department shall pay for such removal as follows:

(1) Dogs, cats or other small animals: $5.00.

(2) Horses, cows or other large animals: $25.00.

(b) The fee shall be paid prior to the removal of the animal, and it shall be unlawful for any person so liable to fail or refuse to pay these fees.
(Code 1964, § 7-47; Code 1980, § 6-1-83; Ord. No. 88-97, 7-5-1988)

Secs. 6-1-84—6-1-90. Reserved.

*__State law reference__—Burial or burning of bodies of dead animals generally, Code of Ala. 1975, § 3-1-28.

ARTICLE G. CORRALS, PENS AND STABLES

Sec. 6-1-91. Definitions.

For the purposes of this article, the following words and phrases shall have the meanings respectively ascribed to them by this section:

Animal means any animal of the equine, bovine, sheep, goat or swine species or type.

Corral means any uncovered, enclosed parcel of land where animals are kept.

Keeping includes harboring or confining.

Stable means any building, structure or shed in which animals are kept.
(Code 1964, § 7-48; Code 1980, § 6-1-91)

Sec. 6-1-92. Watertight floors; connecting with sanitary sewer.

It shall be unlawful for any person to keep any animal in any stable, building, structure or shed unless that stable, building, structure or shed is provided with a concrete floor or other impervious material constructed so as to readily drain to suitable outlets connected to a sanitary sewer, or septic tank when the nearest sanitary sewer is greater than 200 feet distant from the enclosure.
(Code 1964, § 7-49; Code 1980, § 6-1-92)

Sec. 6-1-93. Minimum area of corrals—In commercial or industrial districts.

It shall be unlawful for any person to keep any animal in any corral in a commercial or industrial district, as established by the zoning ordinance set forth in Appendix D to this Code, unless the corral shall have a minimum area of 1,000 square feet for one animal and 200 square feet for each additional animal kept there.
(Code 1964, § 7-50; Code 1980, § 6-1-93)

Sec. 6-1-94. Same—Outside commercial or industrial districts.

It shall be unlawful for any person to keep any animal in any corral outside a commercial or industrial district, as established by the zoning ordinance set forth in Appendix D to this Code, unless that corral shall have a minimum area of

2,500 square feet for one such animal, and 1,000 square feet for each additional animal kept there, to every portion of which the animal shall have free and unrestricted access.
(Code 1964, § 7-51; Code 1980, § 6-1-94)

Sec. 6-1-95. Floors and appliances to be cleaned.

The base or floor of every stable or building in which any animal is kept, together with all appliances used in connection therewith, shall be cleaned at least once each day by the removal of manure and other material soiled by manure, and by washing.
(Code 1964, § 7-52; Code 1980, § 6-1-95)

Sec. 6-1-96. Disposal of manure, straw, etc.

All accumulations of manure and material soiled by excreta in and about every stable, corral or pen where any animal is kept shall be collected at least once each day and immediately deposited in substantial flyproof containers. All these collections may be kept stored in substantial flyproof containers for a continuous period of two weeks from date of collection. Sawdust, shavings, straw and other material used as animal bedding and unsoiled by excreta shall be collected at least once each week and deposited and stored as provided in this section. In lieu of storage as herein provided, manure and other material, when collected in accordance with the provisions hereof, being free of live fly larvae, may be disposed of, within 24 hours from time of collection, by burial at least six inches underground or by spreading the same thinly upon the surface of the ground at some place distant from human habitation or any place where animals are kept, so that these collections shall be and remain fully exposed to sunshine.
(Code 1964, § 7-53; Code 1980, § 6-1-96)

Sec. 6-1-97. Distance of corrals from dwellings, etc.

It shall be unlawful for any person to keep any animal of the equine or bovine species or type in any corral in the city, any part of which is within 100 feet of a dwelling, school, church, hospital, public building, public park, public playground or public thoroughfare.
(Code 1964, § 7-54; Code 1980, § 6-1-97)

Sec. 6-1-98. Distance of stables from dwellings, etc.

It shall be unlawful to keep any animal of the equine or bovine species or type in any stable, building, structure or shed in the city, any part of which is within 100 feet of a dwelling, school, church, hospital, public building, public park, public playground or public thoroughfare; provided that any provision of this section to the contrary notwithstanding, the city, in exercising any governmental function, power or authority shall not be subject to the provisions of this section or in anywise limited thereby in the exercise of such governmental function, power or authority.
(Code 1964, § 7-55; Code 1980, § 6-1-98; Ord. No. 84-54, 5-8-1984)

Sec. 6-1-99. Stalls and stables.

The following regulations apply to stalls and stables:

(1) Ventilation will be provided for stalls with animals.

(2) Ceilings in stalls and stables must be at least ten feet high from bedding flooring.

(3) Bedding in stalls and stables must be at least six inches deep and dry enough so as not to show wetness under the pressure of the animal's hoofs and shall be cleaned daily.

(4) Foot hazards and sharp surfaces will not be permitted in any area or building where they may come in contact with the animals.

(5) Roofs must be kept free of leaks where animals are kept.

(6) Each animal must have a stall large enough for the animal to turn around.

(7) Food must be kept free of contamination.

(8) Animals and animal areas must be treated to destroy and repel inspects and rodents.

(Code 1980, § 6-1-99; Ord. No. 85-62, 4-2-1985)

Secs. 6-1-100—6-1-110. Reserved.

ARTICLE H. FOWL

Sec. 6-1-111. Allowing chickens, pigeons, etc., to run or fly at large.

It shall be unlawful for any person to permit or allow chickens, ducks, geese, turkeys, guineas or pigeons (except homing pigeons) to run or fly at large in the city.

(Code 1964, § 7-56; Code 1980, § 6-1-111)

Sec. 6-1-112. Distance of fowl enclosures from dwellings, etc.; space for fowl confined on premises.

It shall be unlawful for any person to keep, harbor or confine any duck, goose, chicken, guinea, peacock or other fowl in any stable, building, structure, corral, pen or enclosure in the city, any part of which is within 100 feet of a dwelling, church, hospital, school, public building, public park or public thoroughfare. There shall be provided for each fowl an area, pen or enclosure having a minimum of 15 square feet of space for each fowl so confined or kept on any premises.

(Code 1964, § 7-57; Code 1980, § 6-1-112)

Sec. 6-1-113. Sale, etc., of baby chicks, etc.—When artificially colored.

It shall be unlawful for any person to sell, offer for sale, barter or display living baby chicks, ducklings or other fowl which have been dyed, colored or otherwise treated so as to impart to them an artificial color.

(Code 1964, § 7-58; Code 1980, § 6-1-113)

State law reference—Similar provision, Code of Ala. 1975, § 3-1-15.

Sec. 6-1-114. Same—Limitations applicable within ten days prior to Easter.

It shall be unlawful for any person to sell, offer for sale or barter living baby chicks, ducklings or other fowl, under two weeks of age in any quantity less than six at any time within ten days prior to Easter in any year.

(Code 1964, § 7-59; Code 1980, § 6-1-114)

Sec. 6-1-115. Age of squab pigeons shipped.

Squab pigeons shall not be shipped when under six weeks old.

(Code 1964, § 7-60; Code 1980, § 6-1-115)

Sec. 6-1-116. Poultry coops to be ventilated.

It shall be unlawful for any person to have in his or her possession poultry in any coop or other device for confinement, unless the coop or device shall be thoroughly ventilated and of sufficient size to admit of free movements of poultry therein confined.

(Code 1964, § 7-61; Code 1980, § 6-1-116)

Sec. 6-1-117. Care of poultry shipped or stored.

All poultry shipped, carried or kept for the market shall be regularly watered and fed and kept out of rain and the sun and not otherwise injuriously exposed to the weather.

(Code 1964, § 7-62; Code 1980, § 6-1-117)

Sec. 6-1-118. Removal of injured, etc., fowl from coop.

Injured, diseased or dead fowl shall, immediately upon discovery of the injury, disease or death, be removed from the crate or coop in which those fowl are shipped, carried or kept.

(Code 1964, § 7-63; Code 1980, § 6-1-118)

Sec. 6-1-119. Killing, etc., wild or migratory birds.

It shall be unlawful for any person to maim or kill any wild or migratory bird within the city.

(Code 1964, § 7-64; Code 1980, § 6-1-119)

CHAPTER 2. FOOD AND DRUGS*

ARTICLE A. GENERAL PROVISIONS

Sec. 6-2-1. Definitions.

For the purposes of this chapter, the following words and terms shall have the meanings respectively ascribed to them by this section:

Custard filled products means cream puffs, eclairs, pies, cream cakes or similar products which contain custard filling.

Custard filling means any product containing, as principal ingredients, eggs or milk, egg products or milk products or protein or fat substitutes therefor, and which does not contain sufficient acids, fruit juice or otherwise, to adequately inhibit the growth of food poisoning bacteria.

Employee means any person who handles food during its preparation or service to others, or who handles utensils or equipment used in the preparation or service of food to others in a food handling establishment.

Equipment means any work tables, service tables, mixer frames, power saw frames, meat grinder frames, scales, conveyors, meat blocks, scale counters, stoves, ovens, hoods, ducts, vents, fans, refrigerators, storage bins, ingredient containers, dough troughs, proof boxes, display cases, coffee urns, founts, sinks, wash vats, hand washing lavatories, cabinets, shelves and all other things except utensils used in the storage, manufacture, preparation, display or cooking or serving of foods.

Food handling establishment means any place, structure, premises, vehicle, vessel, aircraft or railroad car or any part thereof in which foods intended for sale for human consumption are manufactured, prepared, stored, processed, displayed for sale, served or handled in their packaged or unpackaged state in any manner, or in which utensils used for these activities are washed or stored.

Inspection or *inspect* means an examination of the building or structure, facilities, equipment and operations conducted, including all rooms and fixtures, equipment, utensils, water supply, waste disposal, surroundings, food, employees and any other examination necessary to determine the degree to which any food handling establishment complies with the applicable provisions of state law, this Code and other city ordinances.

Licensed, when used in connection with practitioners of medicine, pharmacy, dentistry and veterinary medicine, means a practitioner licensed by the appropriate state board.

Score card. The official score card for food establishments shall be the score card adopted for these places by the board of health.

Utensil.

(1) The term "utensil" means any kitchenware, tableware, glassware, cutlery, hand meat saws, blades of power meat saws, hoppers, insides of meat grinders, pots, platters, trays, pans, mixing bowls, beaters, whips, dashers, any other disassembled parts of machines, containers or other implements or articles with which foods come in contact during storage, display, preparation, serving or consumption.

a. *Multiuse utensil* means any utensil used or intended for use more than once, and with which foods come in contact in the course of preparation, storage or display, but which is not used by individuals in the consumption of food.

b. *Repeated service utensil* means any utensil used or intended for use more than once and by different individuals in the consumption of food.

c. *Single-service utensil* means any utensil, container, implement or wrapper (including toothpicks, paper napkins

*__State law references—__Food, drug and cosmetics, Code of Ala. 1975, §§ 2-1-1 et seq., 20-1-1 et seq.; state milk regulations, Code of Ala. 1975, § 2-13-1 et seq.; state meat regulations, Code of Ala. 1975, §§ 2-15-1 et seq., 2-17-1 et seq.; authority of city to regulate and inspect dairies and dairy products, regulate sale of food and meat, Code of Ala. 1975, § 11-47-137; authority to adopt milk code, Code of Ala. 1975, § 11-45-8(c)(7); state committee on public health adoption of regulations for establishments handling food and providing public accommodations, Code of Ala. 1975, § 22-20-5.

and straws) intended for use only once in the preparation, storage, display, service or consumption of food.

(2) The term "utensil" does not include equipment.

(Code 1964, § 20-1; Code 1980, § 6-2-1)

Sec. 6-2-2. Right of entry of health officer, etc.

(a) In order to carry out the provisions of this chapter, the county health department, the health officer and their duly authorized representatives shall have the right at all times, while in the discharge of their duties, to enter upon or into the premises of any person engaged in the production, manufacture, preparation, storage, serving, disposing of, distributing, selling or exposing for sale in the city any article of food or beverage used or intended for human consumption, and refusal on the part of that person to allow the inspection as may be necessary and proper for the enforcement of this chapter may be punished by the revocation of the permit of that person.

(b) The county health department, the health officer and their duly authorized representatives shall have the right and it shall be their duty to enter and have full access, egress and ingress to all places where any article of food, beverage or other liquids used or intended for human consumption are produced, manufactured, prepared, stored, kept, served, disposed of, distributed, sold or exposed for sale, and to all wagons or other vehicles, railway cars or conveyances of every kind used for the transportation or delivery of food, beverages or other liquids for the purpose of sale or distribution in the city.

(Code 1964, § 20-2; Code 1980, § 6-2-2)

Sec. 6-2-3. Taking of samples of food, etc.

The health officer and his or her authorized representatives shall have the right at any time to take samples of food, beverages or other liquids from any person storing, selling or otherwise disposing of, exposing for sale, offering for sale, exchanging, delivering or distributing in the city, or shipping into the city, food, beverages or other liquids; provided that these samples shall not exceed in quantity or portion an amount which may be deemed necessary for the purpose of examination to determine compliance with or violation of the provisions of this chapter.

(Code 1964, § 20-3; Code 1980, § 6-2-3)

Sec. 6-2-4. Hindering officers in performance of duties.

It shall be unlawful for any person to impede, obstruct, hinder or otherwise prevent or attempt to prevent any duly authorized officer in the performance of his or her duties in collecting samples of food or beverage or otherwise.

(Code 1964, § 20-4; Code 1980, § 6-2-4)

Sec. 6-2-5. Sanitary permit for handlers, producers, etc., of food—Required.

It shall be unlawful for any person to prepare, sell, offer or expose for sale, exchange, give away, deliver, dispose of or have in possession, custody or control, in the city, with intent to sell, offer or expose for sale, exchange, gift or delivery, any meat, prepared food, vegetable, beverage, liquid or other article used or intended for use as food for human beings, without a valid, unsuspended and unrevoked sanitary permit issued by the health officer, pursuant to regulations of the state committee of public health.

(Code 1964, § 20-5; Code 1980, § 6-2-5)

State law reference—Adoption of health regulations by state committee of public health and specifying effect of such regulations, Code of Ala. 1975, § 22-20-5.

Sec. 6-2-6. Same—Prerequisite to issuance of business license.

No business license shall be issued by the director of finance to a person to engage in the business of producing, handling, selling, serving or distributing any article of food, liquid or beverage used for or intended for human consumption in the city unless the applicant for that business license holds an unsuspended and unrevoked sanitary permit issued by the health officer.

(Code 1964, § 20-6; Code 1980, § 6-2-6)

Sec. 6-2-7. Enforcement of chapter.

It shall be the duty of the county health department to cause the building, store, place or prem-

ises used in connection with the manufacture, preparation, storage, serving, disposal of, distributing, selling or exposing for sale in the city, any article of food, beverage or other liquids used or intended for human consumption, to be inspected from time to time and to see that the provisions and requirements of this chapter are constantly complied with.
(Code 1964, § 20-7; Code 1980, § 6-2-7)

Secs. 6-2-8—6-2-20. Reserved.

ARTICLE B. FOOD

Sec. 6-2-21. Distribution of unwholesome food prohibited.

It shall be unlawful for any person to sell, keep, offer or expose for sale, or to serve, dispense or distribute for use as food for human beings, in the city, any article of food, beverage or other liquid which is contaminated, insanitary, impure, unwholesome, decayed, fermented or adulterated, or which is otherwise unfit or unsafe for use as food for human beings.
(Code 1964, § 20-8; Code 1980, § 6-2-21)

Sec. 6-2-22. County health department—Authorization to seize, condemn and destroy unfit food.

All foods, milk and its products, vegetables, fruits, drinks, liquids and beverages, as provided in this article, are hereby declared to be insanitary and unsafe for use as food for human beings when not kept, produced, handled, stored, refrigerated, sold, offered for sale, served or disposed of in accordance with the provisions hereof, and the county health department is authorized and directed to prevent the sale, serving, dispensing or distribution of the foods, vegetables, fruits, drinks and beverages by seizure, condemnation, confiscation, destroying or denaturing according to the laws of the city; except that, when in the judgment of the county health department, delay would greatly increase the danger to the public health and the value of the property involved does not exceed $250.00, the seizure, condemnation, confiscation, destroying or denaturing may be summarily accomplished by the county health department.
(Code 1964, § 20-9; Code 1980, § 6-2-22)

Sec. 6-2-23. Same—Seizure and disposition of unfit food.

Foods, milk and its products, vegetables, meats, fruits, drinks, liquids or beverages which are misbranded, unwholesome, adulterated, insanitary, unsafe or unfit for use as food for human beings, shall be seized by the health officer and safely impounded until condemned, released or other disposition ordered by the municipal court.
(Code 1964, § 20-10; Code 1980, § 6-2-23; Ord. No. 77-246, § 1, 12-1-1977)

Sec. 6-2-24. Petition for condemnation of food seized by health officer.

Immediately upon seizure and impounding, as provided in section 6-2-23, the health officer shall file in the municipal court a petition setting out a description of the articles seized and impounded, the name of the owner or the name of the person in possession at the time of seizure, the place where seized, and the place where impounded, and shall pray in such petition for condemnation or other disposition of these articles. Upon the filing of this petition, a municipal judge shall make an order setting the hearing of the petition and requiring that a copy of the order, together with a copy of the petition, be served upon the owner or person in possession at the time of seizure at least one day before the day set for the hearing.
(Code 1964, § 20-11; Code 1980, § 6-2-24; Ord. No. 77-246, § 2, 12-2-1977)

Sec. 6-2-25. Order of court disposing of food seized by health officer.

If, upon a hearing as provided by section 6-2-24, it shall appear that the articles are adulterated, misbranded, unwholesome, insanitary or unsafe for human consumption, or have not been kept, stored, refrigerated, sold, offered for sale, served and disposed of in accordance with the provisions of this article, a municipal judge shall enter an order condemning the articles and order-

ing the health officer to denature or destroy the same or to make any other disposition thereof as will prevent the same from being used as food for human beings. Should it appear that these articles are not adulterated, misbranded, unwholesome, insanitary or unsafe for human consumption and have been kept, stored, refrigerated, sold, offered for sale, served or disposed of in accordance with the provisions hereof, the municipal judge hearing the case shall enter an order requiring the health officer to restore these articles to the owner or person in possession at the time of seizure.
(Code 1964, § 20-12; Code 1980, § 6-2-25; Ord. No. 77-246, § 3, 12-2-1977)

Sec. 6-2-26. Ripening, etc., fruit or vegetables—Use of certain gases.

It shall be unlawful for any person to use ethylene gas or other inflammable or explosive gas as an agent for the purpose of ripening, coloring or treating bananas or other fruits or vegetables.
(Code 1964, § 20-14; Code 1980, § 6-2-26)

Sec. 6-2-27. Same—Use of open-flame heating apparatus.

It shall be unlawful for any person to use any heating apparatus with an open flame for the purpose of ripening, coloring or treating bananas or other fruits or vegetables.
(Code 1964, § 20-14; Code 1980, § 6-2-27)

Secs. 6-2-28—6-2-40. Reserved.

ARTICLE C. ADULTERATION AND MISBRANDING OF FOOD AND DRUGS*

Sec. 6-2-41. When food deemed adulterated.

An article of food shall be deemed to be adulterated, first, if any substance has been mixed and packed with it so as to reduce or lower or injuriously affect its quality or strength; or, second, if any substance has been substituted wholly or in part for the article; or, third, if any valuable constituent of the article has been wholly or in part extracted; or, fourth, if it is mixed, colored, powdered, coated or stained in a manner whereby damage or inferiority is concealed; or, fifth, if the package, vessel or bottle containing it shall be of a composition, or carry any attachment of a composition, or metal or alloy as will be acted upon in the ordinary course of use by the contents of the package, vessel or bottle, in such a way as to produce an injurious, deleterious or poisonous compound; or, sixth, if it consists in whole or in part of a filthy, tainted, decomposed or putrid animal or vegetable substance, or any portion of any animal unfit for food, whether manufactured or not, or if it is the product of a diseased animal or one that has died otherwise than by slaughter; or, seventh, if it contains any added poisonous or deleterious ingredient which may render that article injurious to health; provided, that any external application for the preservation of food shall not be deemed to adulterate that food when the external preservation is applied in such manner that the same is necessarily removed, mechanically or otherwise, and directions for the removal of the preservatives, stating the name and component parts of the preservative, are borne on the covering of the package or on a tag securely attached to the article.
(Code 1964, § 20-68; Code 1980, § 6-2-41)

Sec. 6-2-42. When drugs deemed adulterated.

A drug shall be deemed adulterated, first, if, when the same is sold under or by a distinctive name recognized in the United States Pharmacopeia or National Formulary, it differs from the standard of strength, quality or purity as determined by the test laid down in such United States Pharmacopeia or National Formulary official at the time of sale; provided that no drug defined in the United States Pharmacopeia or National Formulary shall be deemed to be adulterated if the standard of strength and purity of the drug is plainly and correctly stated on the bottle, box or container thereof; and, second, if the strength, quality or purity of the drug shall fall below the professed strength, quality or purity under which it was sold.
(Code 1964, § 20-69; Code 1980, § 6-2-42)

*__State law reference__—Power of municipalities to prohibit sale, gift or display of adulterated food, Code of Ala. 1975, § 11-47-136.

Sec. 6-2-43. When confectionery deemed adulterated.

An article of confectionery shall be deemed to be adulterated if it contains terraalba, barytes, talc, chrome yellow, burnt umber or other mineral substance, or poisonous coloring or flavoring or other ingredients detrimental to health, or any vinous, malt or spirituous liquor, or compound, or any narcotic drug.
(Code 1964, § 20-70; Code 1980, § 6-2-43)

Sec. 6-2-44. When food and drugs deemed misbranded generally.

Food or drugs, or articles which enter into the composition of food or drugs, shall be deemed misbranded when the package or receptacle containing the same shall bear any statement, design or device regarding these articles, the ingredients or substances contained therein, or the place where manufactured or produced, which shall be false or misleading in any particular.
(Code 1964, § 20-71; Code 1980, § 6-2-44)

Sec. 6-2-45. Further provisions as to misbranding of food.

An article of food shall be deemed to be misbranded, first, if it is an imitation of or offered for sale under the distinctive name of another article; or, second, if it is labeled or branded so as to deceive or mislead the purchaser; or, third, if it purports to be a foreign product when not so, or is contained in a package or under a label of another substance of a previously established trademarked or patented name; or, fourth, if the contents of the package, as originally put up, shall have been removed in whole or in part, and other contents shall have been placed in the package; or, fifth, if it fails to bear a true statement on the package or container in conspicuous letters of the quantity and proportion of any alcohol, morphine, malt, malt extract, opium, cocaine, heroin, alpha-eucaine, beta-eucaine, chloroform, cannabis, indican, chloral hydrate, antipyrine, acetanilid or any derivative or preparation of any such substances, which may be contained therein; or, sixth, if any statement of weight or measure upon the package or receptacle containing the same is false; or, seventh, if the package containing the article shall bear any statement, design or device regarding the ingredients or substances contained therein which is false or misleading in any particular.
(Code 1964, § 20-72; Code 1980, § 6-2-45)

Sec. 6-2-46. When drug deemed misbranded.

Drugs shall be deemed to be misbranded, first, if they are an imitation of, or offered for sale under the name of, another article; or, second, if the contents of the package, as originally put up, shall have been removed in whole or in part and other contents shall have been placed in the package; or, third, if the package fails to bear a true statement in conspicuous letters of the quantity and proportion of any alcohol, spirituous, vinous, or malt liquor, morphine, opium, cocaine, heroin, alpha-eucaine, beta-eucaine, chloroform, cannabis, indican, chloral hydrate, antipyrine, or acetanilid, or other derivative, or any preparation of those substances, which may be contained in the package; provided that the absence of the statement from preparations specified and recognized by the United States Pharmacopeia or National Formulary, or from prescriptions of licensed practitioners of medicine, or dental and veterinary medicine in the course of their personal practice, shall not be deemed misbranding.
(Code 1964, § 20-73; Code 1980, § 6-2-46)

Sec. 6-2-47. Sale, etc., of adulterated or misbranded articles.

It shall be unlawful for any person to adulterate or misbrand any food, drug or confectionery, and it shall also be unlawful for any person to store, sell, offer for sale or have in possession for sale any misbranded or adulterated food, drugs or confectionery.
(Code 1964, § 20-74; Code 1980, § 6-2-47)

Secs. 6-2-48—6-2-60. Reserved.

ARTICLE D. DRUGS

Division 1. Generally

Sec. 6-2-61. Sale of drugs by others than licensed pharmacists.

(a) It shall be unlawful for any person who is not a licensed pharmacist, or who does not act under the immediate supervision and control of a

licensed pharmacist, to sell, dispense, distribute, compound, or have in possession for sale, distribution or compounding, any drug, poison, nostrum, ointment, remedy or medicinal preparation designed or intended for the treatment, relief or cure of any ailment, disease or injury of human beings.

(b) This section shall not be construed to prohibit the compounding and dispensing of prescriptions by any licensed practitioner of medicine or dentistry for use of his or her own patients.
(Code 1964, § 20-75; Code 1980, § 6-2-61)

Sec. 6-2-62. Retail sale of certain poisons.

(a) The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Schedule A consists of arsenic and its preparation, biniodide of mercury, cyanide of potassium, carbolic acid, hydrocyanic acid, strychnine, arsenate and its preparations and all other poisonous alkaloids and their salts, together with the essential oil of bitter almonds.

Schedule B consists of aconite, belladonna, colchicum, conium, nux vomica, henbane, savin, ergot, cotton root, cantharides, creosote, veratrum, digitalis, and their pharmaceutical preparations, croton oil, chloroform, sulphate of zinc, corrosive sublimate, red precipitate, white precipitate, mineral acid and oxalic acid.

(b) It shall be unlawful for any person to retail and deliver any poison mentioned in Schedules A and B, unless, upon inquiry, the purchaser is found to be aware of its poisonous character and represents that it is to be used for some legitimate purpose.

(c) It shall be unlawful for any person to retail and deliver any poison mentioned in Schedule A until he or she shall have first caused an entry to be made in a book kept for that exclusive purpose, stating the date of sale, name of dispenser, name and address of purchaser, name of poison sold and the amount thereof, together with the purpose for which it was represented by the purchaser to be required, which book shall be preserved for a period of at least three years from the date of the last entry therein, and shall always be open for inspection by the health officer and his or her deputies, and to the police authorities of the city.

(d) It shall be unlawful for any person, to retail and deliver any poison mentioned in Schedule B, unless the box, vessel, paper or container in which the poison is contained is plainly labeled "poison" and bears the name and address of the seller.

(e) The provisions of this section shall not apply to the dispensing of poison upon the prescription of a duly licensed practitioner of medicine.

(f) The provisions of this section shall not apply to the sale of any poisonous substance sold for exclusive use in the arts, or for use as an insecticide, when the poisonous substance, at the time of sale and delivery, is contained in an original unbroken package bearing a label having plainly printed thereon the name of the contents, the word "poison" and the name of at least two readily obtainable antidotes.
(Code 1964, § 20-76; Code 1980, § 6-2-62)

State law reference—Similar provision, Code of Ala. 1975, § 22-20-11.

Sec. 6-2-63. Promiscuous distribution of drugs and medicines.

It shall be unlawful for any person to deliver, deposit or leave upon any premises where human beings reside any drug, medicinal preparation or medicinal remedy, or any sample thereof; provided that this section shall not apply to deliveries of drugs, medicinal preparations and medicinal remedies from a lawfully operated drugstore or from a licensed physician upon prior order from a person residing upon those premises or upon prior order of a licensed physician having a patient upon those premises.
(Code 1964, § 20-77; Code 1980, § 6-2-63)

Sec. 6-2-64. Reserved.

Sec. 6-2-65. Records to be kept by druggists; copies of prescriptions.

Every proprietor or manager of a pharmacy, drugstore or apothecary shop in the city shall keep in his or her place of business a suitable book

or file in which shall be preserved, for a period of not less than five years, the original or a copy of every prescription compounded or dispensed at that drugstore or pharmacy, numbering, dating and filing them in the order in which they are compounded, and shall produce the same in court whenever lawfully required to do so. Upon request, the proprietor or manager of the store shall furnish to the prescribing physician and may, except when otherwise instructed by the prescribing physician, furnish to the person for whom the prescription was compounded or dispensed, a true and correct copy thereof. This book or file at all times shall be open for inspection by duly authorized officers of the law. Notwithstanding anything herein to the contrary, no copy shall be furnished of any prescription which calls for cocaine, alpha-eucaine, beta-eucaine, opium, morphine, heroin or any salt or compound containing any of the substances mentioned herein, or any preparation or compound containing any of these substances or their salts or compounds.

(Code 1964, § 20-79; Code 1980, § 6-2-65)

State law reference—Similar provision, Code of Ala. 1975, § 34-23-70(k).

Sec. 6-2-66. Pharmacist's license certificate and name of pharmacy's owner to be displayed.

Every certificate of license or renewal thereof to practice as a pharmacist shall be conspicuously exposed in the pharmacy or store or place of business of which the pharmacist is the owner or manager or in which he or she is employed. The name of the owner or responsible manager of every pharmacy, drugstore or apothecary shop shall be conspicuously displayed on the outside of that place of business.

(Code 1964, § 20-80; Code 1980, § 6-2-66)

State law reference—Similar provision, Code of Ala. 1975, § 34-23-70(b).

Secs. 6-2-67—6-2-80. Reserved.

*Division 2. Amphetamines and Related Drugs**

Sec. 6-2-81. Applicability of division to common carriers, public officers, etc.

The provisions of this division restricting the possession, custody or control of the drugs referred to in section 6-2-82 or any of their derivatives shall not apply to common carriers or to warehousemen, while engaged in lawfully transporting or storing the same, nor to any employee thereof while acting within the scope of his or her employment, nor to public officers or employees in the performance of their official duties requiring possession or control of any of the foregoing, nor to temporary incidental possession by employees or agents of persons lawfully entitled to possession, nor to persons whose possession is for the purpose of aiding public officers in performing their official duties.

(Code 1964, § 20-81; Code 1980, § 6-2-81)

Sec. 6-2-82. Prescription prerequisite to sale, etc.

It shall be unlawful for any person to sell, dispense, furnish, supply, distribute, give away, receive or obtain or attempt to receive or obtain any amphetamine, methamphetamine, dextroamphetamine, phenmetrazine or any of their derivatives or any other drug of comparable pharmacological action, except upon the original written prescription of a practitioner licensed by law to administer these drugs, or upon an oral prescription of the practitioner, which shall be promptly reduced to writing by the pharmacist filling the prescription, or upon the refilling of the original written or oral prescription when the refilling thereof has been authorized by the practitioner prescribing the same, which refilling shall be likewise recorded in writing by the pharmacist dispensing same. All written prescriptions authorized hereby shall contain the date, the name of the person for whom prescribed and the signature of the prescriber; and if the same is given orally,

*__State law references—__Unlawful acts regarding controlled substances, Code of Ala. 1975, § 20-2-71; illegal possession of prescription drugs, Code of Ala. 1975, § 34-23-71; practicing pharmacy without a license and compounding or dispensing prescriptions by unauthorized persons, Code of Ala. 1975, § 34-23-13.

the pharmacist shall record the date, the name of the person for whom prescribed and the name of the prescribing practitioner. All written prescriptions and records of oral prescriptions, herein required, shall be preserved for a period of not less than five years from the date of filling or the date of the last refilling of the prescription. The provisions of this section shall not apply to amphetamine (benzedrine) inhalers, when the amphetamine contained therein has been denatured so as to make it unfit for internal use, nor shall these provisions apply to sales by properly licensed jobbers, wholesalers or manufacturers of drugs to properly licensed drugstores or qualified physicians or to each other, nor to sales made to properly licensed hospitals or scientific institutions.
(Code 1964, § 20-82; Code 1980, § 6-2-82)

Sec. 6-2-83. Possession, etc., except pursuant to a prescription.

It shall be unlawful for any person to have in his or her possession, custody or control any amphetamine, methamphetamine, dextroamphetamine, phenmetrazine or any of their derivatives, or any other drug of comparable pharmacological action, except upon the order or prescription or refill thereof of a practitioner licensed to administer these drugs, made in compliance herewith, whether the possession, custody or control was acquired within or without the city or the police jurisdiction thereof, and the burden of establishing that the possession, custody or control of any of the foregoing was acquired upon order or prescription or refill thereof, under this division, shall be upon the person charged with any violation of this division.
(Code 1964, § 20-83; Code 1980, § 6-2-83)

Secs. 6-2-84—6-2-90. Reserved.

ARTICLE E. DELICATESSEN STORES*

Sec. 6-2-91. Permit for operation on Sunday—Required; application.

It shall be unlawful for any person, firm or corporation to operate a delicatessen store as defined in Code of Ala. 1975, § 40-12-91, on Sunday, in the city, unless that person, firm or corporation has obtained a permit therefor as required by this article. Any person, firm or corporation desiring to operate a delicatessen store on Sunday in the city shall make application for a permit therefor to the chief of police specifying therein the street address where the business will be carried on and setting out therein the names of the owners thereof.
(Code 1964, § 20-84; Code 1980, § 6-2-91)

Sec. 6-2-92. Same—Fee; issuance.

After receipt of the application provided for by section 6-2-91 and the payment by the applicant of a fee of $1.00 to the city, the chief of police shall issue to such applicant a permit authorizing the operation on Sunday of a delicatessen store as defined in Code of Ala. 1975, § 40-12-91, for the sale of delicatessen products as defined in such section. There shall be issued with each permit granted to the applicant hereunder a printed notice, sign or poster 20 inches wide and 24 inches long with the following words thereon:

> "This store is permitted by law to sell on Sunday only the following products: Bread, cakes, rolls, pastries, puddings, cookies, crackers, candy, chewing gum, nuts, pies, crystalized fruits, bottled or boxed milk, and cream, butter, yard eggs and cooked eggs, oleomargarine, cheese, ice cream, sherbets, nonalcoholic cold and hot drinks, cooked and prepared foods, sold in bulk (not in cans or containers) ready for human consumption, and cooked or prepared foods served on the premises, cooked or ready prepared vegetables, salads, meats, fish, pickles, olives, condiments and sauces, fresh fruits and vegetables served and consumed on the premises, tobacco products, newspapers and magazines."

(Code 1964, § 20-85; Code 1980, § 6-2-92)

Sec. 6-2-93. Same—Display.

Every person, firm or corporation obtaining a permit hereunder shall display in a prominent place in the store for which the permit was issued visible to the customers of that store at all times that store is open on Sunday the permit and the printed notice, sign or poster issued with

*__State law reference__—Acts that are prohibited on Sunday, Code of Ala. 1975, §§ 13A-12-1, 13A-12-2.

the permit; provided that if at any time the notice, sign or poster is lost, destroyed or defaced another notice, sign or poster may be obtained from the chief of police on payment of $0.50 to the city as a fee therefor and posted in lieu of the original notice, sign or poster.
(Code 1964, § 20-86; Code 1980, § 6-2-93)

Sec. 6-2-94. Same—Revocation or suspension.

Any permit issued under the provisions of this article may be revoked or suspended by the city council upon ten days' prior notice thereof given to the permittee or his or her agent, servant or employee, and after a public hearing thereon if the council finds from evidence presented at the hearing that the store for which the permit was issued after the issuance of the permit sold on Sunday any products other than the products which the store is permitted by law to sell as set out in section 6-2-92. No permit revoked under the provisions of this section shall be reissued or any other permit issued to the person, firm or corporation authorized to operate a delicatessen store by that permit until the expiration of six months after the revocation of that permit.
(Code 1964, § 20-87; Code 1980, § 6-2-94)

Sec. 6-2-95. Provisions of article cumulative.

The provisions of this article are cumulative and in addition to all other regulations and ordinances of the city. Anything in this article to the contrary notwithstanding, the permit provided for herein shall not authorize the operation of a delicatessen store in violation of any other ordinance or regulation of the city or law of the state.
(Code 1964, § 20-88; Code 1980, § 6-2-95)

Sec. 6-2-96. Penalty for violation of article.

Any person who violates any provision of this article, or does any act made unlawful by this article, shall upon conviction be punished as provided in section 1-1-6.
(Code 1964, § 20-89; Code 1980, § 6-2-96)

Secs. 6-2-97—6-2-110. Reserved.

ARTICLE F. HEALTHY FOOD INCENTIVE PROGRAM*

Sec. 6-2-111. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section:

Administrator shall mean the party awarded a contract by the city pursuant to a competitive bid process for the management and administration of the program.

Alabama WIC Program shall mean The Alabama Special Supplemental Nutrition Program for Women, Infants, and Children, a program that focuses on the provision of supplemental foods, nutrition education, healthcare referrals, and other social services to women, infants and children in the State of Alabama.

Eligible foods shall mean the "approved foods" list that is supplied by the Alabama WIC Program.

Healthy food incentive shall mean the financial assistance offered by the city under the program to qualified participants.

Healthy food incentive card shall mean a debit type card or voucher issued to qualified participants to be used to purchase eligible foods at participating stores and markets.

Program shall mean the Healthy Food Incentive Program for the City of Birmingham created pursuant to this article.

Participating stores and markets shall mean the grocery stores, markets and other food providers licensed to do business and operating within the City of Birmingham which are retained the administrator in accordance with the criteria set forth in this article to participate in the program.

Qualified participants shall mean those persons who are determined by the administrator to meet the qualifications for participation in the program set forth in section 6-2-114 of this article.

***Editor's note—**Ordinance No. 17-23, §§ 1—6, adopted March 7, 2017, did not specifically amend the Code. Therefore, such ordinance has been added as §§ 6-2-111—6-2-116 at the editor's discretion.

SNAP shall mean the United States Department of Agriculture's (USDA) Supplemental Nutrition Assistance Program (SNAP), formerly known as the Food Stamp Program.
(Ord. No. 17-23, § 1, 3-7-2017)

Sec. 6-2-112. Healthy food incentive program.

A healthy food incentive program to provide assistance for qualified low income individuals and families in the City of Birmingham is hereby established and shall be known as the "Healthy Food Incentive Program for the City of Birmingham".
(Ord. No. 17-23, § 2, 3-7-2017)

Sec. 6-2-113. Administration of the program.

Following the effective date of this article, the city shall advertise and receive bids pursuant to Alabama competitive bid laws for an entity that will contract with the city to administer the program. The initial contract with the administrator shall be for a term ending June 30, 2018. Thereafter, the term of the contract awarded following the competitive bid process shall be up to three years, subject to availability of funding.

The administrator of the program shall receive funds from the city in an amount to be appropriated by the council, which shall be used to provide the healthy food incentive to qualified participants in the form of the healthy food incentive card to be used for the purchase of eligible foods from participating stores and markets. The administrator shall be entitled to receive such fees as agreed to by the city by acceptance of the lowest responsible bid.

The administrator shall be responsible for the following:

(1) The administrator shall use a request for proposals or other similar means of advertising for participating stores and markets and shall provide a list of participating stores and markets to the city council by the first day of July of each year.

(2) The administrator shall be responsible for developing a healthy food incentive card which will be distributed to qualified participants to be used to purchase eligible foods at participating stores and markets.

(3) The administrator shall further be responsible for developing an application form, which shall be consistent with the requirements of this ordinance and shall be approved by the city attorney.

(4) The administrator shall employ necessary safeguards to ensure protection from duplication and fraud and that no household receives more than one card.

(5) The administrator will ensure that the healthy food incentive is used only for the purchase of eligible foods.

(6) The administrator shall also comply with all other provisions of this article and state and federal law as well as such other guidelines that the city council may establish by resolution prior to advertisement for bids.

(Ord. No. 17-23, § 3, 3-7-2017)

Sec. 6-2-114. Qualified participants.

Every person desiring to participate in the program shall submit to the administrator a verified, written application form signed under oath with necessary documentation required in accordance with rules to be adopted by the city council. The application must be filed between May 15 and June 30 each year. The administrator shall review the applications to determine if the applicant satisfies the qualifications set forth in this article and shall distribute healthy food incentive cards to qualified participants beginning August 1 of each year. The healthy food incentive must be used between August 1 of the year in which application is made and approved and June 1 of the following year. Any healthy food incentive issued but not used within such time period shall be forfeited. Healthy food incentive cards shall not be transferable.

Each applicant for a healthy food incentive card must satisfy the following requirements to be eligible to participate in the program:

(1) a. The applicant must be at least 18 years old and have been a full time

resident of the city for a full 12-month period prior to making an application for the year for which a healthy food incentive is being applied for. The applicant must provide proof of identity and proof of residency. Proof of identity shall be demonstrated by providing a copy of driver's license or other State of Alabama or Federal photo identification and birth certificate. Proof of residency will be verified using copies of a deed or a lease, and utility bills for the residence. The proof of residency must demonstrate at least 12 months residency in the City of Birmingham during the required period; and

b. Applicants meeting one or more of the following criteria shall be presumed to be eligible for the program:

1. Applicants with income at or below 130 percent of the current federal poverty guidelines as defined by the U.S. Department of Health and Human Services; or
2. Applicants currently enrolled in SNAP; or
3. Applicants currently enrolled in WIC.

(2) If the applicant is an individual, the applicant must establish that he or she has not been claimed as a dependent on anyone other qualified participant or applicant's tax return for the year for which a rebate is claimed;

(3) No household shall be eligible for more than one healthy food incentive card;

(4) Determination of eligibility shall be made by the administrator based on investigation and sworn application from the applicant which shall include a copy of the applicant's tax return for the preceding year. The administrator may require additional documentation of income eligibility, including, but not limited to, W-2 forms, 1099 forms, Social Security income statements, asset statements, or other similar documentation as necessary;

(5) The city council shall have the authority to annually adjust qualifying income levels and healthy food incentive amounts consistent with the changes in area median family income. The qualifying income levels and healthy food incentive amounts shall be published on the city's website; and

(6) No city employee, nor the spouse or a dependent of a city employee, shall be eligible to participate in the program. No city official, nor the spouse, dependent, adult child or his or her spouse, parent, spouse's parents, sibling and his or her spouse, of a city official shall be eligible to participate in the program.

(Ord. No. 17-23, § 4, 3-7-2017; Ord. No. 17-50, § 1, 5-3-2017)

Sec. 6-2-115. Amount of healthy food incentive.

The amounts of the healthy food incentive for qualified participants during the first year of the program and for each subsequent year until adjusted by the city council as necessary and shall be as follows:

Family Size	*Amount of*
Individual Household	$50.00
1 Dependent	$75.00
2 Dependents	$100.00
3 Dependents	$125.00
4 or more	$150.00

Additionally, if a qualified participant is aged 65 or older as of January 1 in the year for which the incentive is claimed, such participant is eligible to receive an additional $25.00 household senior citizen allowance. By way of example, if the qualified participant is an individual household with no dependents qualifying for the additional senior citizen allowance, such qualified participant would receive $75.00 ($50.00 + $25.00).

(Ord. No. 17-23, § 5, 3-7-2017)

Sec. 6-2-116. Budget availability.

The program shall be contingent on availability of funds each year as approved by the city council and included as a line item in each year's budget. The program shall be capped at the annually allocated amount, and incentives distributed on a first come, first served basis until funds are exhausted. At the end of each yearly cycle, the administrator shall return any unused funds to the city no later than June 15 of the following year.
(Ord. No. 17-23, § 6, 3-7-2017)

CHAPTER 3. HEALTH AND SANITATION*

ARTICLE A. GENERAL PROVISIONS

Sec. 6-3-1. Interference with health officers.

No person shall impede, obstruct, resist, hinder or attempt to impede, obstruct, resist or hinder the health officer or any deputy health officer or other agent or representative of the county department of health while in the performance of his or her duty.
(Code 1964, § 25-1; Code 1980, § 6-3-1)

State law reference—Similar provision, Code of Ala. 1975, § 13A-10-2.

Sec. 6-3-2. Common towels and drinking cups.

It shall be unlawful for any person to provide or maintain in or about a hotel, lodginghouse, boardinghouse, railroad station, store, factory, school, public building or any place or premises in the city where human beings reside, congregate or are employed, a common towel or common drinking vessel or cup for use in common by those persons, or to permit the use of a towel or drinking vessel or cup in or about any such place or premises, which has not been washed, cleaned and sterilized since the last use thereof by another person.
(Code 1964, § 25-2; Code 1980, § 6-3-2)

State law reference—Similar provision, Code of Ala. 1975, § 22-20-1.

*__State law reference—__Authority of city relative to health, generally, Code of Ala. 1975, § 11-47-131, title 22.

Sec. 6-3-3. Use of wells and springs as water supply.

It shall be unlawful to construct, maintain, use or permit to be used, any spring, well, cistern or other excavation as a source of domestic water supply for any dwelling, building or premises located within 100 feet of an approved public water supply main or pipe.
(Code 1964, § 25-6; Code 1980, § 6-3-3)

Sec. 6-3-4. Vital statistics; hospitals to keep records.

It shall be the duty of the owner or manager in charge of a hospital, infirmary, sanatorium or

other similar institution in the city at the time a person enters or is admitted to be cared for or treated, to make or cause to be made and kept as part of the records of that hospital, infirmary, sanatorium or other similar institution, a record which shall contain all of the information in regard to such a person as may be necessary for the purpose of reporting or registering a death or birth in conformity with state law. The information contained in records kept in pursuance of this section shall be made available to the undertaker, physician or other person legally responsible for the preparation and filing of a birth or death certificate.
(Code 1964, § 25-15; Code 1980, § 6-3-4)

State law reference—Similar provisions, Code of Ala. 1975, § 22-9A-1 et seq.

Secs. 6-3-5—6-3-10. Reserved.

ARTICLE B. DUTIES OF HEALTH OFFICER*

Sec. 6-3-11. Supervision of health law enforcement and employees.

The health officer, under the direction of the county health department, shall exercise supervision and control over the enforcement of the provisions of this Code and other ordinances of the city pertaining to public health and sanitation, and over all assistants or persons engaged or employed for that purpose.
(Code 1964, § 25-7; Code 1980, § 6-3-11)

Sec. 6-3-12. Access to premises.

The health officer and his or her assistants, while in the performance of their duty, shall have the right to enter, at all reasonable times, into or upon any building, place or premises in the city.
(Code 1964, § 25-10; Code 1980, § 6-3-12)

State law reference—Similar provision, Code of Ala. 1975, § 22-1-7.

Secs. 6-3-13—6-3-20. Reserved.

*__State law reference—__Powers and responsibilities of public health officer, Code of Ala. 1975, §§ 22-1-3, 22-3-5.

ARTICLE C. COMMUNICABLE DISEASES†

Sec. 6-3-21. Definitions.

The definitions of all terms used in connection with the control of communicable diseases shall be the definitions as given in Control of Communicable Diseases in Man, latest edition, American Public Health Association.
(Code 1980, § 6-3-21)

Sec. 6-3-22. Specific measures for control of communicable diseases.

For control of each of the diseases listed in Code of Ala. 1975, title 22, § 47, groups A and D, shall be regarded as authoritative.
(Code 1980, § 6-3-22)

Sec. 6-3-23. Reporting notifiable diseases.

(a) Each physician practicing in the city who treats or examines any person having or suspected of having any notifiable disease shall immediately report any cases of notifiable disease in the most expeditious manner possible, whether by telephone, telegraph or special messenger, and within seven days thereafter in writing to the county health officer. The written report shall be upon those forms and shall contain that matter, as may be provided for from time to time by the rules and regulations of the state board of health.

(b) The superintendent or person in charge of any hospital, infirmary, sanatorium or other similar institution in the city or his or her designee may, with the consent of the health officer, report in the place of the attending physician the cases of notifiable diseases and disabilities occurring in or admitted to those hospitals, infirmaries, sanatoriums or similar institutions, in the same manner as the attending physician would have reported them.

(c) Teachers or other persons employed in, or in charge of public, or private schools shall report immediately to the county health officer, or state health officer the known or suspected cases of notifiable disease in persons attending or employed in their respective schools.

†__State law reference—__Reporting of notifiable diseases, Code of Ala. 1975, § 22-11A-1 et seq.

(d) Whenever a person is known or is suspected to be afflicted with a notifiable disease and no physician is in attendance, an immediate report of the existence of the case shall be made to the county health officer, or the state health officer, by the midwife, nurse, attendant or other person in charge of the patient.
(Code 1980, § 6-3-23)

State law reference—Similar provision, Code of Ala. 1975, § 22-11A-2.

Sec. 6-3-24. Vaccination of pupils, etc.

It shall be unlawful for any child, pupil or student to attend any public or private school of learning, or center engaged in the care of children of preschool age in the city without meeting the following requirements for school entry and attendance. Immunizations and testing shall be required for diphtheria, pertussis, tetanus, poliomyelitis, measles, rubella, mumps and tuberculosis, and any other communicable diseases as may be determined by the county board of health. The manner and frequency of immunizations or testing material shall conform to recognized standards of medical practice. Certain immunizations and testing shall not be required for a particular child, pupil or student, if:

(1) In the opinion of the county board of health or any physician licensed to practice in the state the immunization or testing procedure is or may be hazardous to the health of the individual or is unnecessary; or

(2) The parent or guardian of the individual certifies in writing that the administration of agents of immunization or testing conflict with the tenets of a religious organization with which that family is affiliated.

(Code 1980, § 6-3-24)

State law reference—Similar provision, Code of Ala. 1975, § 16-30-1.

Sec. 6-3-25. Responsibility for enforcement of section 6-3-24.

The county board of health will coordinate with the city board of education enforcement of the required immunizations and testing procedures. It shall be unlawful for the principal, superintendent or other person in charge of a public, private or parochial school to enroll or permit the enrollment or attendance in or about the school of any child, pupil or student who does not present either a certificate of immunization and testing for the prevention of those communicable diseases set forth in section 6-3-24, or a certificate granting release from those requirements of immunization and testing for those reasons set forth in section 6-3-24.
(Code 1980, § 6-3-25)

Secs. 6-3-26—6-3-30. Reserved.

ARTICLE D. FLY AND MOSQUITO CONTROL*

Sec. 6-3-31. Decomposable material to be kept in flyproof containers.

It shall be unlawful for any person to keep, maintain, store or deposit on or about any place or premises in the city any decomposable, decaying or putrefactive material, either animal or vegetable in nature or origin, except in a substantial, watertight and flyproof container, either made for or appropriate to be used for those purposes, and so as to prevent access of flies to the same or the reproduction or propagation of flies on or about the same.
(Code 1964, § 25-42; Code 1980, § 6-3-31)

Sec. 6-3-32. Conditions favoring reproduction of flies.

It shall be unlawful for any person to deposit, store, maintain or harbor on or about any place or premises in the city any decomposable, decaying or putrefactive material or to cause or permit the soiling of the ground by the material on or about the place or premises so as to cause, permit or favor the propagation or reproduction of flies. The presence or existence in any material or on or about any place or premises of live fly larvae shall

*__State law reference—__Municipal authority to compel regulated use of areas where mosquitoes or other insects propagate, Code of Ala. 1975, § 11-47-140.

be prima facie evidence of the propagation or reproduction of flies and of a violation of this section.
(Code 1964, § 25-43; Code 1980, § 6-3-32)

Sec. 6-3-33. Conditions favoring reproduction of mosquitoes.

It shall be unlawful to keep, maintain, cause or permit within the city any body or collection of water in containers or otherwise, either standing or flowing, under those conditions or circumstances as may permit or favor the propagation or reproduction of mosquitoes. The presence of live mosquito larvae in those collections or bodies of water shall be prima facie evidence of the propagation or reproduction of mosquitoes in that water.
(Code 1964, § 25-44; Code 1980, § 6-3-33)

Sec. 6-3-34. Vessels containing water.

It shall be unlawful for any person to keep or maintain on or about any place or premises in the city any cistern, tank, barrel, can or other vessel containing or likely to contain standing water favoring or permitting the propagation of mosquitoes, unless the same shall be completely covered with wire hardware cloth having not less than 18 meshes to the lineal inch; provided that the vessel may be covered with a tightfitting wood or steel cover at all times.
(Code 1964, § 25-45; Code 1980, § 6-3-34)

Sec. 6-3-35. Notices of violations.

Officers of the city and board of health are empowered to issue notices of ordinance violations to persons in charge of or responsible for any place or premises on which any condition exists which is made unlawful by any section or provision of this article; provided that no such notice of violation shall be permitted to be given to the same person more than once during any successive months.
(Code 1964, § 25-45.1; Code 1980, § 6-3-35)

Sec. 6-3-36. Voluntary settlement of charges out of court.

Any person who has received a notice of ordinance violation and who has not appeared or executed bond for appearance in the municipal court to answer the charge, who desires to waive trial of the question of his or her guilt or innocence, may voluntarily settle the charge out of court by applying to the director of finance within 72 hours after issuance of the notice of violation to voluntarily pay in settlement of the alleged offense the sum of $10.00 to the director of finance.
(Code 1964, § 25-45.2; Code 1980, § 6-3-36)

Secs. 6-3-37—6-3-50. Reserved.

ARTICLE E. RODENT CONTROL

Sec. 6-3-51. Definitions.

For the purposes of this article the following words and phrases shall have the meanings respectively ascribed to them by this section:

Building means any public or private structure or any part thereof adaptable for occupancy as a residence or for the transaction of business of any character or as a shelter for animals or for storage purposes.

Rat control means the destruction or capture of rats or their parasites by any means acceptable to the health officer.

Rat harborage means any place where rats live or propagate or which affords shelter or protection to rats.

Ratproofing means the closing of any hole or opening to a building or its foundation which permits entry of rats, by use of concrete, sheet metal, hardware cloth or any other material acceptable to the health officer.
(Code 1964, § 25-46; Code 1980, § 6-3-51)

Sec. 6-3-52. Certain buildings to be kept free of rats.

It shall be unlawful for any person owning, controlling, managing, operating or occupying any building used for the purpose of selling, storing or manufacturing foods, foodstuffs, feeds or grain or used for the purpose of housing poultry or animals or used to conduct any other business the operation of which affords food for rats to fail to

maintain the interior of the building and adjacent premises reasonably free of rats at all times by effective methods of rat control and ratproofing.
(Code 1964, § 25-47; Code 1980, § 6-3-52)

Sec. 6-3-53. Notice that rat infestation exists.

(a) Upon notification by the health officer or by any of his or her authorized assistants that a rat infestation exists in any building owned, controlled, managed, operated, used or occupied by the person notified, it shall be unlawful for any such person to fail to comply, within the time specified in the notice, with all measures of rat control and ratproofing, and with all steps to eliminate rat harborage specified in the notice. Each day's failure to comply with the foregoing notice shall constitute a separate offense.

(b) The notice required by subsection (a) of this section shall be in writing, and may be given either by personal service, by posting the same on the front door of the infested building or by registered mail, postage prepaid, and, in the latter event, shall be deemed effective upon mailing.
(Code 1964, § 25-48; Code 1980, § 6-3-53)

Sec. 6-3-54. When work to be done by health officer; lien on property for unpaid charges.

Whenever any building referred to in section 6-3-52 remains infested with rats for a period of seven or more days, or whenever any building referred to in section 6-3-53 remains infested with rats for a period of seven or more days after expiration of the period of time specified in the notice provided for in section 6-3-53, the health officer shall institute or cause to be instituted necessary measures of rat control, ratproofing and the elimination of rat harborages, and the cost of those measures shall be promptly paid by the person owning, leasing, using or occupying the building, upon receipt of a bill from the health officer. Any costs remaining unpaid 60 days after the date of billing shall thereupon constitute a lien against the building and its contents.
(Code 1964, § 25-49; Code 1980, § 6-3-54)

Secs. 6-3-55—6-3-65. Reserved.

ARTICLE F. SWIMMING POOLS

Sec. 6-3-66. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Swimming pool.

(1) The term "swimming pool" means any body of water sufficiently deep for the complete immersion of the body and used collectively by numbers of persons for swimming or recreative purposes, together with the shores, buildings, equipment and appurtenances pertaining to those swimming pools.

(2) The term "swimming pool" does not include public or semipublic baths where the main object is the cleansing of the body or the practice of the healing art, unless those baths contain pools or tanks used collectively by a number of individuals.

(Code 1964, § 49-1; Code 1980, § 6-4-1)

Sec. 6-3-67. Conformity to standards of health department.

No person shall construct, install or operate any swimming pool within the city that is not constructed, installed or operated in accordance with the minimum standards of design, equipment and operation of swimming pools approved by the county health department; provided that the owner or operator of any swimming pool constructed or installed prior to December 8, 1944, shall not be required to modify or add to the existing facilities for the purpose of conforming to the minimum standards of the county health department unless the modifications or additions are deemed necessary to protect the health of persons using the existing swimming pool.
(Code 1964, § 49-2; Code 1980, § 6-4-2)

Sec. 6-3-68. Posting of schedule of hours.

It shall be the duty of any person operating a swimming pool within the city, which pool is open to the general public, to keep posted in a conspic-

uous manner at or near the pool a schedule of the hours during which the pool will be open to the public.
(Code 1964, § 49-3; Code 1980, § 6-4-3)

Sec. 6-3-69. Lifeguard to be in attendance.

It shall be the duty of any person operating a swimming pool within the corporate limits of the city to have a competent lifeguard in attendance, during the hours the pool is open to the public, for the protection of patrons.
(Code 1964, § 49-4; Code 1980, § 6-4-4)

CHAPTER 4. RESERVED

CHAPTER 5. TREES AND SHRUBS*

ARTICLE A. GENERAL PROVISIONS

Sec. 6-5-1. Injuring, destroying or removing trees, shrubs, etc.

No person shall, without proper authority, willfully or maliciously cut down or destroy or remove, steal or injure any tree, plant or shrub, planted or preserved for shade or ornament in any public street or square or in any yard, ground or park belonging to the city or to any individual inhabitant of the city, or remove therefrom any substance, earth, dirt or turf.
(Code 1964, § 53-1; Code 1980, § 6-5-1)

Sec. 6-5-2. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Tree surgery work means the work of cutting, trimming, pruning or removing trees or shrubs in any manner whatsoever.
(Code 1964, § 53-2; Code 1980, § 6-5-2)

*__State law reference—__*Cutting or mutilating trees, Code of Ala. 1975, § 9-13-21.

Sec. 6-5-3. Removal of waste cuttings, etc., to dump.

Every person engaged in the business of tree surgery work shall remove to a city dump any waste cuttings, trimmings, prunings or cut trees which that person has cut or has had cut in carrying on that business.
(Code 1964, § 53-3; Code 1980, § 6-5-3)

Sec. 6-5-4. Report of cuttings, etc., not removed.

Every person engaged in the business of tree surgery work shall, each day, file in writing with the superintendent of streets and sanitation the street address or legal description of any land upon which that person did any tree surgery work in the city during the previous day and from which that person failed to remove to a city dump any cuttings, trimmings, prunings or cut trees because the same were not waste, together with the name of the person for whom the work was performed.
(Code 1964, § 53-4; Code 1980, § 6-5-4)

Secs. 6-5-5—6-5-10. Reserved.

ARTICLE B. SALE OF CHRISTMAS TREES

Sec. 6-5-11. Permit required; fee.

It shall be unlawful for any person to engage in selling Christmas trees at any place in the city without first obtaining a permit therefor from the director of finance. Any person desiring such a permit shall be entitled thereto upon payment to the city of a fee of $10.00 at the time of applying therefor.
(Code 1964, § 53-5; Code 1980, § 6-5-11)

Sec. 6-5-12. Refund of permit fee.

If, within six days after December 25 of the year in which a permit required by this article is issued, the person to whom that permit is issued shall obtain from the superintendent of streets and sanitation a certificate stating that the place where the sales of Christmas trees were conducted under the permit has been satisfactorily cleaned and all Christmas trees and rubbish have

been removed therefrom, and shall present to the director of finance within such six-day period after December 25 the certificate, together with the receipt issued by the director of finance evidencing payment of the fee of $10.00, then the aforesaid fee of $10.00 shall be returned to that person. Otherwise, it shall constitute reimbursement to the city for the cost of cleaning that place.
(Code 1964, § 53-6; Code 1980, § 6-5-12)

Sec. 6-5-13. Expiration of permit; separate permit for each location.

Permits issued under the provisions of this article shall expire on December 25 of the calendar year in which issued. A separate permit shall be required for each separate place where sales of Christmas trees are conducted.
(Code 1964, § 53-7; Code 1980, § 6-5-13)

Sec. 6-5-14. Sales inside store building.

The provisions of this article shall not apply to any person engaging in selling Christmas trees inside a store building.
(Code 1964, § 53-8; Code 1980, § 6-5-14)

Title 7

BUILDING AND LAND USE CONTROLS*

Chapter 1. Building and Housing Code Enforcement

Article A. Building Regulations

Division 1. Generally

Sec. 7-1-1. Technical codes adopted.
Sec. 7-1-2. Technical code exceptions.
Sec. 7-1-3. Administration.
Sec. 7-1-4. Building code amendments.
Sec. 7-1-5. International Residential Code amendments.
Sec. 7-1-6. International Fuel Gas Code amendments.
Sec. 7-1-7. Permit and inspection fees.
Sec. 7-1-8. Fire Code and Life Safety Code amendments.
Sec. 7-1-9. Fire permit fees.
Sec. 7-1-10. Property Maintenance Code amendments.
Secs. 7-1-11—7-1-100. Reserved.

Division 2. Fire Permits

Sec. 7-1-101. Fire zones.
Secs. 7-1-102—7-1-210. Reserved.

Article B. Property Maintenance Code of the City of Birmingham 2014

Division 1. Generally

Sec. 7-1-211. Property maintenance code adopted.
Secs. 7-1-212—7-1-280. Reserved.

Division 2. Property Maintenance Code Amendments

Sec. 7-1-281. International Property Maintenance Code amendments.
Secs. 7-1-282—7-1-380. Reserved.

Article C. Design Standards for Properties in Commercial Revitalization Project Areas

Sec. 7-1-381. Purpose.
Sec. 7-1-382. Definitions.
Sec. 7-1-383. Design standards for properties in rehabilitation areas and approved properties in optional rehabilitation areas.
Sec. 7-1-384. Design review and approval.
Sec. 7-1-385. Design review committee.
Sec. 7-1-386. Commercial revitalization project initiation date.
Sec. 7-1-387. Adoption of design standards.
Sec. 7-1-388. Design standards appeal.
Sec. 7-1-389. New development plans; rehabilitation plans; approval.
Sec. 7-1-390. Review procedure.

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*__Editor's note—__The director of the department of buildings and inspections is responsible for the administration of the city's various building and land use controls with exception of minimum standards as to dwellings and commercial and industrial properties codified in article B of chapter 1. The mayor's office is responsible for administration of article B of chapter 1. The department of buildings and inspections is established in section 2-3-1. The zoning ordinance of the city as well as the rules of procedure of the zoning advisory committee and the zoning board of adjustment are found as appendices C and D to this Code of Ordinances.

Sec. 7-1-391. Restrictions.
Sec. 7-1-392. Demolition of structures.
Sec. 7-1-393. Initial inspection.
Sec. 7-1-394. Continued inspection.
Sec. 7-1-395. Appeals of application of design standards.
Sec. 7-1-396. Period of compliance; penalties.
Secs. 7-1-397—7-1-410. Reserved.

Article D. Historic Preservation

Sec. 7-1-411. Declaration of public policy and purposes.
Sec. 7-1-412. Definitions.
Sec. 7-1-413. Establishment of historical commission.
Sec. 7-1-414. Local historic designation of local property or district.
Sec. 7-1-415. Certificates of appropriateness and economic hardship.
Sec. 7-1-416. Consideration of economic hardship of local historic designation or design review.
Sec. 7-1-417. Denial of demolition permits.
Sec. 7-1-418. Enforcement.

Chapter 2. Reserved

Chapter 3. Planning and Subdivisions

Article A. Reserved

Secs. 7-3-1—7-3-20. Reserved.

Article B. Improvement and Sale of Land Subject to Subdivision Regulations

Sec. 7-3-21. Definitions.
Sec. 7-3-22. Approval of preliminary plat prerequisite to construction of street, etc.
Sec. 7-3-23. Approval of final plat prerequisite to sale of land.
Sec. 7-3-24. Enforcement.

CHAPTER 1. BUILDING AND HOUSING CODE ENFORCEMENT*

ARTICLE A. BUILDING REGULATIONS

Division 1. Generally

Sec. 7-1-1. Technical codes adopted.

The "Technical Code of the City of Birmingham, 2015" which shall encompass the 2015 International Building, Plumbing, Fuel, Gas, Mechanical, Fire, Existing Building, and Residential Codes, the 2015 International Property Maintenance Code, and the NEC 2015 Electrical Code and NFPA 101 2015 Life Safety Code, as specifically amended by pages annexed together and numbered Article I 1—40, Article II 1—10, Article III 1, Article IV 1, Article V 1—5, Article VI 1—7, Article VII 1, Article VIII 1—4, all inclusive, and which shall include Appendix A of the International Property Maintenance Code, "Boarding Standard", Sections A-101 through A-104, is before this Council and has been on file in the Office of the City Clerk of the City of Birmingham, Alabama pursuant to resolution adopted by the Council of the City of Birmingham, on the 20th Day of October 2015 and set forth in the preambles of Ordinance No. 15-164, and hereby adopted as the "Technical Code of the City of Birmingham, 2015" and shall be effective and operative as such on and after the effective date of this ordinance, as provided herein, and on and after said date shall be binding within the corporate limits of the City of Birmingham. (Code 1980, § 7-1-1; Ord. No. 79-163, §§ 1, 2, 10-23-1979; Ord. No. 82-206, §§ 1, 2, 12-21-1982; Ord. No. 88-87, §§ 1, 2, 6-21-1988; Ord. No. 91-204, §§ 1, 2, 8-27-1991; Ord. No. 93-3, 1-5-1993; Ord. No. 97-37, 3-18-1997; Ord. No. 05-220, § 1, 11-15-2005; Ord. No. 07-151, § 1, 8-21-2007; Ord. No. 07-151, § 1, 11-12-2008; Ord. No. 10-112, § 1, 8-24-2010; Ord. No. 15-164, § 1, 11-30-2015; Ord. No. 16-88, § 1, 5-27-2016)

*__State law references—__Authority to adopt building laws and inspect buildings, Code of Ala. 1975, § 11-43-59; authority to adopt technical codes by reference, Code of Ala. 1975, § 11-45-8; state building construction standards, Code of Ala. 1975, § 41-9-160 et seq.

Sec. 7-1-2. Technical code exceptions.

(a) *Building.* The provisions of the International Building Code 2015 Edition published by International Code Council as amended in section 7-1-4 shall apply to the construction, alteration, repair, equipment, use and occupancy, location, maintenance, removal and demolition, of every building or structure or any appurtenances connected or attached to such buildings or structures.

Exceptions:

1. Detached one- and two-family dwellings and multiple single-family dwellings (town houses) not more than three stories above grade plane in height with a separate means of egress and their accessory structures shall comply with the International Residential Code.
2. Existing buildings undergoing repair, alterations or additions and change of occupancy shall be permitted to comply with the International Existing Building Code.
3. Both the 2015 International Codes and NFPA 101 - Life Safety Code requirements in Chapters 14, 15, 16 and 17 shall be enforced for Educational and Daycare Occupancies. Where discrepancies occur between the codes, the most restrictive shall apply.

(b) *Residential construction.* The provisions of the International Residential Building Code, 2015 Edition, published by International Code Council shall apply to the construction, alteration, repair, equipment, use and occupancy, location, and maintenance of every building or structure or any appurtenances connected or attached to such buildings or structures as amended in section 7-1-5.

Exception:

1. References to the ICC Electrical Code contained in the International Residential Code or the International Building Code shall not apply to residential construction.

(c) *Plumbing.* The provisions of the International Plumbing Code, 2015 Edition, published by International Code Council shall apply to every plumbing installation, including alterations, repairs, replacement, equipment, appliances, fixtures, fittings and/or appurtenances within the city.

Exception:

1. Any boiler or Pressure vessel subject to inspection by federal or state inspectors.

(d) *Gas.* The provisions of the International Fuel Gas Code, 2015 Edition, published by International Code Council shall apply to all gas piping installations on the consumer's premises from the outlet side of the utility company meter to the most remote point of use or outlet, including all alterations, repairs, equipment, appliances, ranges, fixtures, fittings and appurtenances thereto within the City of Birmingham when connected to a gas distribution system except residential gas ranges, gas lights and outside gas fired grills. These requirements are intended to cover the design, fabrication, installation, test and operation of such systems for fuel gases as natural gas, manufactured gas, undiluted liquefied petroleum gases, liquefied petroleum gas-air or mixtures thereof. They are not intended to cover systems or portions of systems supplying only equipment engineered, designed and installed for specific manufacturing production processing and power generating applications such as large and high pressure boilers, melting and treating furnaces, production ovens, etc., or for public utility piping and gas distribution and transmission systems on the inlet side of utility company meters or in gas compressing stations and in gas processing plants. The applicability of installation requirements of this Code shall be determined by the building official and the said building official may require such systems to be designed by a licensed professional engineer.

(e) *Electrical.* The provisions of the National Electrical Code, 2014 Edition, published by National Fire Protection Association, shall apply to the installation of electrical systems, including alterations, repairs, replacement, equipment, appliances, fixtures, fittings and appurtenances thereto.

(f) *Mechanical.* The provisions of the International Mechanical Code, 2015 Edition, published by International Code Council shall apply to the installation of mechanical systems, including alterations, repairs, replacement, equipment, appliances, fixtures, fittings and/or appurtenances, including ventilating, heating, cooling, air conditioning and refrigeration systems, incinerators, and other energy-related systems. Provisions are not intended to cover systems or portion of systems supplying only equipment engineered, designed and installed for specific manufacturing production processing and power generating applications. The applicability of installation requirements of this Code shall be determined by the building official, and said building official may require such systems to be designed by a licensed professional engineer.

(g) *Fire.* The provisions of the International Fire Code, 2015 Edition, published by the International Code Council and amended in sections 7-1-4 and 7-1-9 herein shall apply to all buildings, structures, vehicles, premises, conditions, the construction, alteration, repair, equipment, use and occupancy, location, maintenance, removal and demolition, of every building or structure or any appurtenances connected or attached to such buildings or structures. The provisions of the NFPA 101-Life Safety Code, 2015 Edition, published by the National Fire Protection Association and amended in sections 7-1-4 and 7-1-8 herein shall apply to the specific occupancies where they occur in any building, structure, vehicle, premise, conditions, the construction, alteration, repair, equipment, specified use and occupancy, location, maintenance, removal and demolition, of every building or structure or any appurtenances connected or attached to such buildings or structures.
(Ord. No. 10-112, 8-24-2010; Ord. No. 15-164, 11-30-2015)

Sec. 7-1-3. Administration.

Chapter 1 of the 2015 editions of International Building, Plumbing, Fuel Gas, Fire, Existing Building, Residential and Mechanical Codes, are hereby deleted and the following Chapter 1 is substituted thereof:

CHAPTER 1
ADMINISTRATION

101 TITLE AND SCOPE

101.1 Title

The provisions of the following Articles, Chapters and Sections shall constitute, be known, and be cited as the "Technical Codes of the City of Birmingham, 2015", hereinafter known as "this Code".

101.1.1 Purpose. The purpose of this Chapter is to provide for the administration and enforcement of the International Building, Fuel Gas, Mechanical, Fire, Plumbing, Residential, Existing Building Codes, and the National Electrical Codes.

101.2 Code Remedial.

101.2.1 General. This Code is hereby declared to be remedial, and shall be construed to secure the beneficial interests and purposes thereof, which are public safety, health, and general welfare through structural strength, stability, sanitation, adequate light and ventilation, and safety to life and property from fire, explosions and other hazards attributed to the built environment including alteration, repair, removal, demolition, use and occupancy of buildings, structures, or premises, and by regulating the installation and maintenance of all electrical, gas, elevator, fire protection, mechanical, and plumbing systems, which may be referred to as service systems.

101.2.2 Quality Control. Quality control of materials and workmanship is not within the purview of this Code except as it relates to the purposes stated herein.

101.2.3 Permitting and Inspection. The inspection or permitting of any building, system or plan by any jurisdiction, under the requirements of this Code, shall not be construed in any court as a warranty of the physical condition of such building, system or plan or their adequacy. No jurisdiction nor any employee thereof shall be liable in tort for damages for any defect or hazardous or illegal condition or inadequacy in such building, system or plan, nor for any failure of any component of such, which may occur subsequent to such inspection or permitting.

101.3 Scope.

101.3.1 Federal and State Authority. The provisions of this Code shall not be held to deprive any Federal or State agency, or any applicable governing authority having jurisdiction, of any power or authority which it had on the effective date of the adoption of this Code or of any remedy then existing for the enforcement of its orders, nor shall it deprive any individual or corporation of its legal rights as provided by law.

101.3.2 Appendices. To be enforceable, the appendices included in this Code must be referenced in the Code text or specifically included in Articles II through VI herein.

101.3.3 Referenced Standards. Standards referenced of this Code shall be considered an integral part of the Code without separate adoption. If specific portions of a standard are denoted by Code text, only those portions of the standard shall be enforced. Where Code provisions conflict with a standard the Code provisions shall be enforced. Permissive and advisory provisions in a standard shall not be construed as mandatory.

101.3.4 Maintenance. All buildings, structures, electrical, gas, fire protection, elevator, escalator, mechanical and plumbing systems, both existing and new, and all parts thereof, shall be maintained in a safe and sanitary condition. All devices or safeguards which are required by this Code when constructed, altered, or repaired, shall be maintained in good working order. The owner, or his designated agent, shall be responsible for the maintenance of buildings, structures, fire protection, elevator, escalator, electrical, gas, mechanical and plumbing systems. Inspections of existing buildings, by the Fire Official for maintenance, are conducted according to the NFPA 101 Life Safety Code, 2015 edition, and the 2015 IFC but any issues requiring construction, permitting & plans review will be governed by the ICC.

AMENDED: Section 621.2 IFGC 2015: One or more unvented room heaters shall not be used as the sole source of comfort heating in a dwelling unit.

101.3.5 Plumbing Installation or Maintenance by Home Owner. Nothing in this Code shall prevent any owner of single family home from installing or maintaining plumbing within his own property boundaries, provided such plumbing work is done by himself and is used exclusively by him and his family and, also, provided that such plumbing work does not necessitate repair, alteration or direct connection to soil, waste, or drain lines on the outlet side of a trap. Such privilege does not convey the right to violate any of the provisions of this Code, or the terms of any state statute or any other applicable ordinance of the City of Birmingham, nor is it to be construed as exempting any such property owner from obtaining a permit with the applicable inspections and paying the required fees therefore.

101.3.6 Conflict of codes and standards. The International Codes shall be the construction codes with sections herein listed from the NFPA 101 - Life Safety Code, 2015 ed., being used in conjunction with the ICC family of codes.

a) Any building or portion thereof used for less than 24 hours per day where occupants (regardless of age) requiring care, maintenance, and supervision by other than their relatives shall be defined as a Day Care Occupancy. Day-care occupancy provisions of Life Safety 2015, Chapters 16 and 17, shall apply for all new and existing occupancies. Location and construction type limitation requirements for Day-care occupancies, shall meet the appropriate regulations as set forth by the 2015 International Building Code. Those classifications listed in the 2015 International Building Code that are not addressed in the 2015 Life Safety Code will also be added as Sub-classifications.

   - *Exception:* This would not include occupancies that are a part of the health care classification or places of worship during religious functions.

b) Both the International Codes and NFPA 101 - Life Safety Code requirements of Chapters 14 & 15, shall be enforced for new and existing Educational Occupancies. Where discrepancies occur between the codes, the most restrictive shall apply.

Those sections of NFPA 101 - Life Safety Code, 2015 Edition that are also adopted by this Code shall be used by the Fire Official as maintenance requirements for the Inspection of Existing Buildings only unless it is deemed necessary by both the Fire and Building Officials to use as an applied code for construction.

101.4 Building Official.

The Director of the Department of Planning, Engineering and Permits shall be designated as the Building Official, and shall be appointed by the Mayor of the City of Birmingham and shall have all of the authority and carry out all of the duties of the Building Official under this Code.

101.4.1 Deputy. The Building Official may designate as his deputy an employee in the Department of Planning, Engineering and Permits, who may be assigned by the Director the duty of enforcing this Code and other such duties as the Building Official may delegate, and who shall, during the absence or disability of the Building Official, exercise all the powers of the Building Official.

101.4.2 Inspector Qualifications. The Building Official, with the approval of the Director of the Department of Planning, Engineering and Permits, may appoint or hire such number of officers, inspectors, assistants and other employees as shall be authorized from time to time subject to the rules and regulations of the Personnel Board of Jefferson County, Alabama. A person shall not be appointed or hired as Inspector who has not had at least 3 years' experience as a building inspector, engineer, architect, or as a superintendent, foreman or competent mechanic in charge of construction.

101.4.3 Restrictions on Employees. An officer or employee connected with the Department of Planning, Engineering and Permits except one whose only connection is as a member of the Construction Board of Adjust-

ment and Appeals established by this Code, shall not be financially interested in the furnishing of labor, material, or appliances for the construction, alteration, or maintenance of a building, structure, service, system, or in the making of plans or of specifications thereof, unless he is the owner of such. This officer or employee shall not engage in any other work which is inconsistent with his duties or conflict with the interests of the Department of Planning, Engineering and Permits, or such other department which may be assigned by ordinance of the City Council the duty of enforcing this Code. Any secondary employment shall be approved by the Appointing Authority.

101.4.4 Records. The Building Official shall keep, or cause to be kept, a record of the business of the Department of Planning, Engineering and Permits, or such other department or division of a department which may be assigned by ordinance of the City Council the duty of enforcing this Code. The records of such department or division shall be open to public inspection as permitted by law.

101.4.5 Liability. Any officer or employee, or member of the Board of Adjustments and Appeals, charged with the enforcement of this Code, acting for the applicable governing authority in the discharge of his duties, shall not thereby render himself personally liable, and is hereby relieved from all personal liability, for any damage that may accrue to persons or property as a result of any act required or permitted in the discharge of his duties. Any suit brought against any officer or employee or member because of such act performed by him in the enforcement of any provision of this Code shall be indemnified and have representation provided on their behalf as provided be section 2-4-11 of the General City Code of Birmingham, 1980.

This Code shall not be construed as imposing upon the city any liability or responsibility for damages to any person or property caused by any defect in any electrical installation or equipment mentioned herein or by installation thereof, nor shall the City of Birmingham or any officer, inspector, assistant or employee thereof, be held as assuming any such liability or responsibility by reason of the inspection authorized hereunder or the certificate of approval issued the inspector.

101.4.6 Reports. The Building Official shall submit annually a report covering the work of the Department of Planning, Engineering and Permits, or such other department or division of a department which may be assigned by ordinance of the City Council the duty of enforcing this Code, during the preceding year. The Building Official may incorporate in said report a summary of the decisions of the Board of Adjustments and Appeals during said year.

101.5 Fire Official.

The Fire Chief of the Birmingham Fire and Rescue Service Department or his designee shall be known as the Fire Official and shall have all of the authority and carry out all of the duties of the Fire Official under this Code.

101.5.1 Fire Prevention Division. There is hereby established a division within the Fire and Rescue Service Department to be known as the Fire Prevention Division. This division shall operate under the direction of the Fire Chief, through the designated Fire Marshal, and shall assist in the performance of the duties as Fire Official. The function of this Division shall be the implementation, administration and enforcement of the provisions of this Code. This division may also perform other duties as assigned by the Fire Chief.

101.5.2 Inspector Qualifications. The Fire Marshal, with the approval of the Fire Chief of the Birmingham Fire and Rescue Service Department may appoint or hire such number of officers, inspectors, assistants and other employees as shall be authorized from time to time subject to the rules and regulations of the Personnel Board of Jefferson County, Alabama.

101.5.3 Records. The Fire Code Official shall keep official records as required by the following subsections. Such official records shall be retained for not less than five years or for as

long as the structure or activity to which such records relate remains in existence, unless otherwise provided by other regulations.

101.6 Existing Buildings.

101.6.1 General. Alterations, repairs or rehabilitation work may be made to any existing structure, building, fire protection, elevator, escalator, electrical, gas, mechanical or plumbing system without requiring the building, elevator, escalator, structure, plumbing, electrical, mechanical, fire protection or gas system to comply with all the requirements of this Code provided that the alteration, repair or rehabilitation work conforms to the requirements of this Code for new construction. The Building Official and Fire Official shall determine the extent to which the existing system shall be made to conform to the requirements of this Code for new construction. Existing buildings, built before the adoption of this Code, that are being remodeled or changed to a new use shall be exempt from the seismic requirements of the 2015 International Building Code. Permits and inspections for reroofing or recovering roofs of Use Group R-3 dwellings are not required. All reroofing work shall comply with Section R907 of the IRC.

101.6.2 Change of Occupancy. If the occupancy classification of any existing building or structure is changed, the building, fire protection, elevator, escalator, electrical, gas, mechanical and plumbing systems shall be made to conform to the intent of this Code as required by the Building and Fire Officials.

101.6.3 Existing Conditions. Existing conditions not in strict compliance with this Code may be permitted to continue when, in the opinion of the Building and Fire Officials, these conditions do not constitute a distinct hazard to life or property.

101.7 Special Historic Buildings. The provisions of this Code relating to the construction alteration, repair, enlargement, restoration, relocation or moving of buildings or structures shall not be mandatory for existing buildings or structures identified and classified by the state or the City of Birmingham as Historic Buildings when such buildings or structures are judged by the Building and Fire Officials to be safe and in the public interest of health, safety and welfare regarding any proposed construction, alteration, repair, enlargement, restoration, relocation. The applicant must submit complete architectural and engineering plans and specifications bearing the seal of a registered Professional Engineer or Architect in the State of Alabama.

102 POWERS AND DUTIES OF THE BUILDING, CODE, AND FIRE OFFICIALS

102.1 General. The Building Official, Code Official, and Fire Official is hereby authorized and directed to enforce the respective provisions of this Code. The Building, Code, or Fire Official is further authorized to render interpretations of the respective portion of this Code over which they have authority.

102.2 Right of Entry.

102.2.1 Whenever necessary to make an inspection to enforce any of the provisions of this Code, or whenever the Building, Code, or Fire Official has reasonable cause to believe that there exists in any building or upon any premises any condition or code violation which makes such building, structure, premises, elevator, escalator, electrical, gas, mechanical, fire protection, life safety or plumbing systems unsafe, dangerous or hazardous, the Building, Code, or Fire Official may enter such building, structure or premises at all reasonable times to inspect the same or to perform any duty imposed upon the Building, Code, or Fire Official by this Code, provided that if such building or premises is occupied, he shall first present proper credentials and request entry. If such building, structure, or premises is unoccupied, he shall first make a reasonable effort to locate the owner or other persons having charge or control of such and request entry. If entry is refused, the Building, Code, or Fire Official shall have recourse to every remedy provided by law to secure entry.

102.2.2 When the Building, Code, or Fire Official shall have first obtained a proper inspection warrant or other remedy provided by law to secure entry, no owner or occupant or any other persons having charge, care or

control of any building, structure, or premises shall fail or neglect, after proper request is made as herein provided, to promptly permit entry therein by the Building or Fire Official for the purpose of inspection and examination pursuant to this Code.

102.3 Stop Work Orders.

Upon notice from the Building, Code, or Fire Official, work on any building, structure, elevator, escalator, electrical, gas, fire protection, mechanical or plumbing system that is being done contrary to the provisions of this Code or in a dangerous or unsafe manner, shall immediately cease. Such notice shall be in writing and shall be given to the owner of the property, or to his agent, or to the person doing the work, and shall state the conditions under which work may be resumed. Where an emergency exists, the Building, Code, or Fire Official shall not be required to give a written notice prior to stopping the work.

102.4 Revocation of Permits.

102.4.1 Misrepresentation of Application. The Building, Code, or Fire Official may revoke a permit or approval, issued under the provisions of this Code, where there has been any false statement or misrepresentation as to a material fact in the application or plans on which the permit or approval was based.

102.4.2 Violation of Code Provisions. The Building, Code, or Fire Official may revoke a permit upon determination by the Building, Code, or Fire Official that the construction, erection, alteration, repair, moving, demolition, installation or replacement of the building, fire protection, elevator, escalator, structure, electrical, gas, mechanical or plumbing systems for which the permit was issued is in violation of, or not in conformity with, the provisions of this Code.

102.5 Unsafe Buildings, Systems and Public Nuisances.

102.5.1 Unsafe Buildings and Systems. All buildings, systems, structures, and premises, which are unsafe, unsanitary, which are not provided with adequate egress, or which in relation to existing use constitute a hazard to safety or health by reason of inadequate maintenance, dilapidation, obsolescence, or abandonment, but are not unsafe to the extent that they constitute a public nuisance, are considered unsafe buildings. All such unsafe buildings, systems, structures and premises are hereby declared illegal and shall be abated by repair and rehabilitation or by demolition in accordance with the following procedure:

102.5.1.1 Whenever the Building, Code, or Fire Official shall find any building or structure or portion thereof to be unsafe, as defined in this section, he shall, in accordance with the established procedure for legal notices, give the assessed owner, agent, person having an interest in or person in control of such building or structure written notice stating the defects thereof. This notice shall require the owner within a stated time either to complete specified repairs or improvements or to demolish and remove the building or structure or portion thereof.

102.5.1.2 If necessary, such notice shall also require the building, structure, or portion thereof to be vacated forthwith and not reoccupied until the specified repair and improvements are completed, inspected, and approved by the Building, Code, and Fire Official. The Building, Code, or Fire Official shall cause to be posted at each entrance to such building a notice: "THIS BUILDING IS UNSAFE AND ITS USE OR OCCUPANCY HAS BEEN PROHIBITED BY THE BUILDING OFFICIAL." Such notice shall remain posted until the required repairs are made or demolition is completed. It shall be unlawful for any person, firm, or corporation, their agents, servants, or employees to remove such notice without written permission of the Building, Code, or Fire Official, or for any person to enter the building except for the purpose of making the required repairs or of demolishing same.

102.5.1.3 If such owner(s), agent, or person in control shall fail, neglect, or refuse to comply with notice to repair, rehabilitate, or to demolish and remove said building

or structure or portion thereof, the Building, Code, or Fire Official shall cause such building or structure or portion hereof, if not heretofore vacated, to be vacated and remain vacated until repaired or demolished; provided, however, if thereafter such building or structure or portion thereof becomes unsafe to the extent that it is a public nuisance, the Building Official shall proceed as provided in section 102.5.2 hereof.

102.5.1.4 The Building and Fire Officials may make, periodically, a thorough re-inspection of the installation of all electrical wiring, electric devices, and electric equipment now installed or that may hereafter be installed within the city; and when the installation of any wiring devices or equipment is found to be in a dangerous or unsafe condition, the person owning, using, or operating the same shall be notified in writing and shall make the necessary repairs or changes required to place such wiring, devices, or equipment in safe condition and have such work completed within the period specified by the Building or Fire Official. The Building Official or Fire Official is hereby empowered to disconnect or order the discontinuance of electrical service to such wiring devices, or equipment so found to be defectively installed until the installation of such wiring, devices, or equipment has been made safe as directed by him.

102.5.1.5 All plumbing, electrical, gas and mechanical installations, regardless of type, that are unsanitary or that constitute a hazard to human life, health, or welfare are hereby declared illegal and shall be abated by repair and rehabilitation or by demolition, and such violations shall be brought to the attention of the owner or agent thereof, with written instructions to have same corrected within 10 days after receipt of such notice in writing and said owner or agent shall be held responsible for such violations. If after any water meter is set, it is determined that there is danger of backflow or back-siphonage into the building water distribution system, water service or water main from any connection, fittings, fixture, device, appurtenance or appliance whereby the water in the water supply or distribution piping could become contaminated or the water could otherwise be rendered a non-potable supply of water, the Building Official may, upon written notice, require the water supplier to disconnect the premises upon which such back-flow or back-siphon condition exists from the water main until such condition is remedied to the satisfaction of the Building Official. The Building Official shall have the authority to prevent the setting of a meter or the connection of a water service to any building water distribution system when upon inspection of the premises, conditions are found to exist which are contrary to the provisions of this Code as it pertains to the water supply and/or water distribution system of a building or premises until such condition or conditions are remedied to the satisfaction of said Building Official.

102.5.1.6 The owner, agent or person in control shall have the right, except in cases of emergency, to appeal from the decision of the Building, Code, or Fire Official, as provided hereinafter, and to appear before the Construction Board of Adjustments and Appeals at a specified time and place to show cause why he should not comply with said notice.

102.5.1.7 The decision of the Building, Code, or Fire Official shall be final, and supersede any other pending action, in cases of emergency which, in his opinion, involve imminent danger of structural collapse endangering adjoining property, the public right-of-way or to human life or health. He shall promptly cause such building, structure, or portion thereof to be made safe, secured, or removed. For this purpose he may at once enter such structure, with such assistance and at

such cost as he may deem necessary. He may vacate adjacent structures and protect the public by appropriate fence or such other means as may be necessary, and for this purpose may close a public or private way.

102.5.1.8 The costs of such emergency action shall be fixed by the City Council and such costs shall be assessed against the person or persons creating or maintaining such dangerous condition. Costs shall be fixed and assessed as provided in Sections 102.5.2.4 through 102.5.2.6 herein, inclusive.

102.5.2 Public Nuisances.

102.5.2.1 Whenever the Building Official shall find that any building, structure, part of building or structure, party wall, foundation or premises situated in the City is unsafe to the extent that it is a public nuisance, he shall give the person or persons, firm, association, or corporation last assessing the property for state taxes and all mortgagees of record, by certified or registered mail to the address on file in the tax collector's office, notice to remedy the unsafe or dangerous condition of such building, structure, or premises, or to demolish the same, within a reasonable time set out in said notice, which time shall be not less than thirty (30) days or suffer such building or structure to be demolished by the City and the cost thereof assessed against the property. The mailing of such certified or registered mail notice, properly addressed and postage prepaid, shall constitute notice as required herein. Notice of such order, or a copy thereof, shall, within three (3) working days of the date of mailing, also be posted at or within three (3) feet of an entrance to the building or structure provided that if there is no entrance, the notice may be posted at any location upon the building or structure.

102.5.2.2 Within the time specified in such notice, but not more than thirty (30) days from the date notice is given, any person, firm or corporation having an interest in such building or structure may file a written request for a hearing before the City Council, together with his objections to the finding by the Building Official that such building or structure is unsafe to the extent of becoming a public nuisance. The filing of such request shall hold in abeyance any action on the finding of the Building Official until determination thereon is made by the Council. Upon holding such hearing, which hearing shall be held not less than five (5) nor more than thirty (30) days after such request, or in the event no hearing is timely requested, the Council, after the expiration of thirty (30) days from the date notice is given, shall determine whether or not such building or structure is unsafe to the extent that it is a public nuisance. In the event that it is determined by the Council that such building or structure is unsafe to the extent that it is a public nuisance, the Council shall order such building or structure to be demolished. Such demolition may be accomplished by the City by the use of its own forces, or it may provide by contract for such demolition. The City shall have authority to sell or otherwise dispose of salvaged materials resulting from such demolition.

Exception: When emergency action is declared after a thirty (30) day notice has been mailed and a written request for a hearing is received, the hearing before the City Council may be held immediately.

102.5.2.3 Any person aggrieved by the decision of the Council at such hearing may, within ten (10) days thereafter, appeal to the Circuit Court upon filing with the clerk of said court notice of appeal and bond for security of costs in the form and amount to be approved by the Circuit Clerk. The City Clerk shall, upon receiving notice of appeal, file with the Clerk of the Court a copy of the findings and determination of the Council proceedings.

102.5.2.4 Upon demolition of such building or structure, the Building Official shall make report to the Council of the cost thereof, and the Council shall adopt a resolution fixing the costs which it finds were reasonably incurred in such demolition and assessing the same against the property; provided, however, the proceeds of any monies received from the sale of salvaged materials from said building or structure shall be used or applied against the cost of said demolition; and provided, further, that any person, firm, or corporation having an interest in said property may be heard at such meetings to any objection he may have to the fixing of such costs or the amounts thereof. The City Clerk shall give notice of the meeting at which the fixing of such costs are to be considered by first-class mail to all entities having an interest in the property whose address and interest is determined from the tax collector's records on the property or is otherwise known to the clerk. The fixing of said costs by the Council shall constitute a special assessment against the lot or lots, parcel or parcels of land upon which the building or structure was located, and, thus made and confirmed, shall constitute a lien on said property for the amount of such assessment. Said lien shall be superior to all other liens on said property except liens for taxes, and shall continue in force until paid. A certified copy of such resolution shall also be filed in the Office of Judge of Probate of Jefferson County, Alabama.

102.5.2.5 The City shall have the power to assess the costs authorized herein against any lot or lots, parcel or parcels of land purchased by the State of Alabama at any sale for the nonpayment of taxes, and where any such assessment is made against such lot or lots, parcel or parcels of land, a subsequent redemption thereof by any person authorized to redeem, or sale thereof by the state, shall not operate to discharge, or in any manner affect the lien or such city for such assessment, but any redemptioner or purchaser at any sale by the state or any lot or lots, parcel or parcels of land upon which an assessment has been levied, whether prior to or subsequent to a sale to the state for the nonpayment of taxes, shall take the same subject to such assessment. Such assessment shall then be added to the tax bill of the property, collected as tax, and remitted to the city.

102.5.2.6 Payment of such assessment shall be made in the manner and as provided for the payment of municipal improvement assessments in Section 11-48-48, Code of Alabama, 1975, as now amended, and upon the property owner's failure to pay such assessment, as provided in the provisions of Sections 11-48-49 through 11-48-60, inclusive, Code of Alabama, 1975.

102.6 Requirements Not Covered By Code.

Any requirements necessary for the strength, stability or proper operation of an existing or proposed building, structure, elevator, escalator, electrical, gas, fire protection, mechanical or plumbing system, or for the public safety, health and general welfare, not specifically covered by this Code, shall be determined by the Building, Code, and Fire Officials.

102.7 Alternate Materials and Methods.

The provisions of this Code are not intended to prevent the use of any material or method of construction not specifically prescribed by them, provided any such alternate has been reviewed by the Building and Fire Officials. The Building, Code, and Fire Officials shall approve any such alternate, provided the Building and Fire Officials find that the alternate is at least the equivalent of that prescribed in this Code in quality, strength, effectiveness, fire resistance, durability and safety for the purpose intended. The Building, Code, or Fire Official shall require that sufficient evidence or proof be submitted to substantiate any claim made regarding the alternate.

102.7.1 Approved Materials, Apparatus, Equipment and Methods. All materials, apparatus, fittings, appliances, devices,

appurtenances or fire rated assemblies, shall be listed by testing agencies that have been accredited by the International Accreditation Service, Inc. (IAS), as stated in the ICC-ES Rules of Procedure of the International Code Council (ICC).

103 CONSTRUCTION PERMITS

A person, firm or corporation shall not erect, construct, enlarge, install, alter, repair, move, improve, remove, convert or demolish any building, structure, elevator, escalator, electrical, gas, fire protection, mechanical or plumbing system in the City of Birmingham, or cause the same to be done, without first obtaining a permit for such from the Building and/or Fire Official.

103.1 Application for permit.

103.1.1 When Required. Any owner, authorized agent, or contractor who desires to construct, enlarge, alter, repair, move, demolish, or change the occupancy of a building or structure, or to erect, install, enlarge, alter, repair, remove, convert or replace any fire protection, electrical, elevator, escalator, gas, mechanical or plumbing system, the installation of which is regulated by this Code, or to cause any such work to be done, shall first make application to the Building and/or Fire Official and obtain the required permit for the work.

Exception: Permits shall not be required for the following work except as noted herein:

1. Any portable heating, ventilation, evaporator coil or cooling equipment;
2. Any steam, hot or chilled water piping within any heating or cooling equipment regulated by this Code;
3. Any self-contained refrigeration system containing 10 lb. or less of refrigerant and actuated be motors of 1 horsepower or less;
4. Repair or replacement of components with similar equipment which does not enlarge, move, convert, or replace the mechanical system and which does not create an unsafe condition;
5. Repair of a gas-fired furnace excluding Vent and Gas piping. Vent and Gas piping shall require a Gas permit;
6. Repair or replacement of condensing unit;
7. Repair or replacement of no more than 50% which shall not to exceed 20 feet, of water service;
8. Accessory structures for one and two family dwellings less than 150 SF when approved by the Planning Division of the Department of Planning, Engineering and Permits;
9. Repair or replacement of roof shingles/ roof covering on R-3, single family dwellings;
10. Retaining walls less than 3 feet from the top of the footing;
11. Painting, papering, carpeting, cabinets, counter tops and similar finish work in single family residences;
12. Building permits for swimming pools; electrical and plumbing permits and associated inspections are required;
13. Playground equipment.

103.1.2 Work Authorized. A building, fire protection, electrical, elevator, escalator, gas, mechanical or plumbing permit shall carry with it the right to construct or install the work, provided the same are shown on the drawings and set forth in the specifications filed with the application for the permit. Where these are not shown on the drawings and covered by the specifications submitted with the application, separate permits shall be required.

103.1.3 Minor Repairs. Ordinary minor repairs may be made with the approval of the Building, Code, and Fire Official without a permit, provided that such repairs shall not violate any of the provisions of this Code.

103.1.4 Information Required. Each application for a new construction building permit, with the required fee, shall be filed with the Building Official on a form furnished for that purpose, and shall contain a general descrip-

tion of the proposed work and its location. The application shall be signed by the owner, or his authorized agent. The building permit application shall indicate the proposed occupancy of all parts of the building and of that portion of the site, lot, if any, not covered by the building or structure, and shall contain such other information as may be required by the Building Official.

103.1.5 Time Limitations. An application for a permit for any proposed work shall be deemed to have been abandoned 6 months after the date of filing for the permit unless a permit has been issued within the 6 months period. One or more extensions of time for periods of not more than 90 days each may be allowed by the Building Official for the application, provided the request for extension is in writing and justifiable cause for such delay is demonstrated. See Section 103.6.2 for Special Permits.

103.2 Drawings and Specifications.

103.2.1 Requirements. When required by the Building Official, or Fire Official, three or more copies of specifications, and of drawings drawn to scale with sufficient clarity and detail to indicate the nature and character of the work, shall accompany the application for a permit. Such drawings and specifications shall contain information, in the form of notes or otherwise, as to the quality of materials, where quality is essential to conformity with this Code. Such information shall be specific; this Code shall not be cited as a whole or in part, nor shall the term "legal" or its equivalent be used as a substitute for specific information. All information, drawings, specifications and accompanying data shall bear the name and signature of the person responsible for the design.

Mechanical permit applications may be required to have drawings or Heat Loss and Gain forms (ACCA Manual J or ACCA Manual N) attached.

103.2.2 Additional Data. The Building or Fire Official may require details, computations, stress diagrams, and other data necessary to describe the construction or installation and the basis of calculations.

103.2.3 Design Professional. All drawings, specifications, and accompanying data shall bear the name and address of the designer. In the case of buildings or structures of Group A and E Occupancy, and all buildings or structures or portions thereof more than 2500 square feet, except single-family dwellings, such designer shall be an Architect or Engineer legally registered under the laws of the State of Alabama regulating the practice of architecture or engineering and shall affix his official seal to said drawings, specifications and accompanying data. All Gas, Mechanical, Plumbing, Fire Protection System drawings are required to be prepared by a Registered Engineer in the State of Alabama.

103.2.3.1 Design professional in responsible charge.

103.2.3.2 General. When it is required that documents be prepared by a registered design professional, the building official shall be authorized to require the owner to engage and designate on the building permit application registered design professional who shall act as the registered design professional in responsible charge. If the circumstances require, the owner shall designate a substitute registered design professional in responsible charge who shall perform the duties required of the original registered design professional in responsible charge. The building official shall be notified in writing by the owner if the registered design professional in responsible charge is changed or is unable to continue to perform the duties. The registered design professional in responsible charge shall be responsible for reviewing and coordinating submittal documents prepared by others, including phased and deferred items, for compatibility with the design of the building. Where structural observation is required by Section 170, the inspection program shall name the individual or firms who are to perform structural observation and describe the stages of construction at

which structural observation is to occur (see also duties specified in Section 1704).

103.2.3.3 Deferred submittals. For the purposes of this section, deferred submittals are defined as those portions of the design that are not submitted at the time of the application and that are to be submitted to the building official within a specified period. Deferral of any submittal items shall have the prior approval of the building official. The registered design professional in responsible charge shall list the deferred submittals on the construction documents for review by the building official.

Documents for deferred submittal items shall be submitted to the registered design professional in responsible charge who shall review them and forward them to the building official with a notation indicating that the deferred submittal documents have been reviewed and been found to be in general conformance to the design of the building. The deferred submittal items shall not be installed until the design and submittal documents have been approved by the building official.

103.2.3.4 Fire Protection Shop Drawings. Shop drawings for the fire protection system(s) shall be submitted to indicate conformance with this Code and the construction documents and shall be approved prior to the start of system installation. Shop drawings shall contain all information as required by the referenced installation standards in Chapter 9 of NFPA 2015.

103.2.4 Structural and Fire Resistance Integrity. Plans for all buildings shall indicate how required structural and fire resistive integrity will be maintained where a penetration of a required fire resistant wall, floor or partition will be made for electrical, gas, mechanical, plumbing and communication conduits, pipes and systems and also indicate in sufficient detail how the fire integrity will be maintained where required fire resistant floors intersect the exterior walls.

103.2.5 Site Drawings. Drawings shall show the location of the proposed building or structure and of every existing building or structure on the site or lot. The Building or Fire Official may require a boundary line survey prepared by a qualified surveyor. Site drawings shall include fire access roadways, fire hydrants and obstructions to proposed buildings.

103.3 Examination of Documents.

103.3.1 Plan Review. The Building and Fire Official shall examine or cause to be examined each application for a permit and the accompanying documents, consisting of drawings, specifications, computations and additional data, and shall ascertain by such examinations whether the construction indicated and described is in accordance with the requirements of this Code and all other pertinent laws or ordinances, such as Zoning and Soil Erosion and Sediment Control ordinances. The Building and Fire Official shall also examine or cause to be examined each set of drawings, specifications, computations and additional data of all components of fire protection systems, and the Building and Fire Official shall ascertain by such examinations whether the construction and/or installation of all components of the fire protection systems are in compliance with this Code and all other pertinent laws or ordinances.

103.4 Issuing Permits.

103.4.1 Action on Application. If the Building Official and Fire Officials are satisfied that the work described in an application for permit and the drawings filed therewith conform with the requirements of this Code and other pertinent laws and ordinances, they shall issue a permit therefore to the applicant; provided that no permit shall be issued for renovation, repair or construction by a contractor or superintendent of any commercial building costing $50,000 or more, and renovation, repair or construction of residential construction costing $10,000 or more, and both covered by Chapter 8, Title 34, Code of Alabama of

1975, or as same may be amended, unless such contractor shall be duly licensed under the provisions of said chapter.

103.4.2 Refusal To Issue Permit. If the application for a permit and the accompanying contract documents describing the work do not conform to the requirements of this Code or other pertinent laws or ordinances, the Building and Fire Officials shall not issue a permit, but shall return the contract documents to the applicant with his refusal to issue such permit. The Building and Fire Officials may withhold the further issuance of permits to the holder of any permit previously issued under this Code if the work or inspections as required thereunder have not been completed within a reasonable time. Such refusal shall, when requested, be in writing and shall contain the reason for refusal.

103.4.3 Partial Permits. When application for permit to erect or enlarge a building has been filed and pending issuance of such permit, the Building Official may, at his discretion, issue a special permit for the foundations, framing or other portions of such building. The holder of such a special permit shall proceed at his own risk and without assurance that a permit for remainder of the structure will be granted.

103.4.4 Public Right Of Way. A permit shall not be given by the Building Official for the construction of any building, or for the alteration of any building where said building is to be changed and such change will affect the exterior walls, bays, balconies, or other appendages or projections fronting on any street, alley or public lane, or for the placing on any lot or premises of any building or structure removed from another lot or premises, unless the applicant has made application at the office of the Department of Planning, Engineering and Permits for the lines of the public street on which he proposes to build, erect or locate said building; and it shall be the duty of the City Engineer to see that the street lines are not encroached upon except as provided for in Chapter 32 of Article II, IBC 2015.

103.4.5 Excavations. A permit is required to be taken out with the Department of Planning, Engineering and Permits for each excavation in a public street or alley before the work is commenced. It shall be unlawful for any person, firm or corporation to do any tunneling under any public street or alley. All excavations, back-fills and repairs in public streets or alleys shall be done in accordance with applicable ordinances of the City of Birmingham as amended from time to time and filed in the office of the Department of Planning, Engineering and Permits, the enforcement of which rests with the Department of Planning, Engineering and Permits.

103.4.5.1 Boring. Boring for utility piping requires documentation of boring depth. If water service is done by boring method, documentation is required for approval.

103.4.6 Public Protection Requirement. It is hereby required that for every excavation made on public property, proper safeguards shall be provided against injury to the public; barricades shall be provided at five (5) feet intervals, and such barricades shall completely encircle all open excavations or trenches. All barricades, as required by this Code, shall have at least one (1) sign placed thereon in a conspicuous manner, indicating the name of the person, firm or corporation causing such excavation. When approved by the Department of Planning, Engineering and Permits, steel plates of sufficient strength may be used to cover the excavation to prevent blocking streets.

103.5 Contractors License. It shall be the duty of every contractor or builder, who shall make contracts for the erection, construction or repair of buildings for which a permit is required in the City, and every contractor or builder making such contracts and subletting the same, or any part thereof, to pay license fees as provided by ordinance.

103.6 Conditions of the Permit.

103.6.1 Permit Intent. A permit issued shall be construed to be a license to proceed with the work and shall not be construed as authority to violate, cancel, alter, or set aside any of

the provisions of this Code, nor shall such issuance of a permit prevent the Building or Fire Official from thereafter requiring a correction of errors in plans or in construction, or of violations of this Code. Any permit issued shall become invalid unless the work authorized by it shall have been commenced within ninety days after its issuance, or if the work authorized by such permit is suspended or abandoned for a period of ninety days after the time work is commenced; provided that for cause, one or more extensions of time, for periods not exceeding ninety days each, may be allowed in writing by the Building Official.

103.6.2 Special Permits. Whenever a building has been condemned as a public nuisance by resolution of the City Council, no building or moving permit shall be issued nor shall any building permit be valid unless approved by resolution of the City Council. Authorized repair permits for buildings condemned by the City Council or the Building Official must be obtained within seven (7) days of approval and shall become invalid unless the structure is secured and weeds and trash are removed from the premises within ten (10) days of permit issuance and substantial repair is commenced within 30 days of permit issuance. These permits shall also become invalid if work is abandoned for any thirty (30) day period.

103.6.3 Plans. When the Building or Fire Official issues a permit, he shall endorse, in writing, or stamp, three sets of plans as official drawings. Two sets of drawings so stamped shall be retained by the Building and Fire Officials the third set which shall be returned to the applicant, shall be kept at the site of work and shall be open to inspection by the Building and Fire Official or their authorized representative at all times.

104 FEES

104.1 Prescribed Fees. A permit shall not be issued until the fees prescribed in this Code have been paid, or other arrangements have been made. Nor shall an amendment to a permit be released until payment of the additional fee, if any, due to an increase in the estimated cost of the building, elevator, escalator, structure, or the fire protection, electrical, plumbing, mechanical or gas systems, has been arranged.

104.2 Work Commencing Before Permit Issuance. Where any work on a building, structure, elevator, escalator, or the fire protection, electrical, plumbing, mechanical or gas systems is commenced before obtaining the necessary permits, the fees herein specified shall be doubled, but the payment of such double fee shall not relieve any person from fully complying with the requirements of this Code in the execution of the work nor of any other penalties prescribed herein. The Building Official may withhold the issuance of further permits to any person, firm, or corporation until all permits for work previously started by them have been obtained. Repeat violations within any 12-month period shall result in the double fee plus fifty dollars ($50.00) for each such additional violation.

104.3 Accounting. The Building Official shall keep a permanent and accurate accounting of all such permit fees and other monies collected, the names of all persons upon whose account the same was paid, along with the date and amount thereof.

104.4 Schedule of Permit Fees. On all buildings, structures, elevators, escalators, or the fire protection, electrical, plumbing, mechanical and gas systems, or alterations or for any operational/use and special events requiring a permit, a fee for each permit shall be paid as required in section 104.1, in accordance with the schedule as established by Articles V and VII.

104.5 Building Permit Valuations. The applicant shall provide an estimated construction value at the time of application. If, in the opinion of the Building Official, the estimated cost of construction appears to be underestimated, the estimated costs for permit fee purposes shall be determined by the use of the most current applicable tables published by the ICC. Estimated cost shall include the total cost of all work such as plumbing, elevator, escalator, electrical, fire protection,

mechanical, paving, landscaping, permanent systems, overhead and profit, engineering and architectural design fees, and be equivalent to the end cost of the project. Detailed estimates and copy of the original executed contract(s) may be required for review to validate the declared scope and/or value of the construction. Final building valuation shall be set by the Building Official. New Projects and Additions total project costs are paid by the general contractor. General contractors shall provide a list of subcontractors whose fees are included in the building permit value for new buildings and additions. Trades listed as covered under the general contractor will only incur a processing fee at time of their permit issuance. Alterations and Repairs require all trades to pay fees based on the value of their work. Permanent systems and permanent equipment require separate review and permitting. Grading work shall be permitted according to Title 4, Chapter 7 of the General Code of the City of Birmingham.

104.6 Fees, How Paid. All fees for permits and inspections required under this Code shall be paid in the Finance Department, First Floor - City Hall.

105 CONSTRUCTION PERMIT INSPECTIONS

105.1 Existing Building Inspections. Before issuing a permit the Building and Fire Officials may examine or cause to be examined any building, elevator, escalator, structure, or the fire protection, electrical, gas, mechanical or plumbing systems for which an application has been received for a permit to enlarge, alter, repair, move, demolish, install, or change the occupancy. He shall inspect all buildings, structures, elevator, escalator, or the electrical, fire protection, gas, mechanical and plumbing systems, from time to time, during and upon completion of the work for which a permit was issued. He shall make a record of every such examination and inspection and of all violations of this Code.

105.2 Manufacturers and Fabricators. When deemed necessary by the Building or Fire Official, they shall make, or cause to be made, an inspection of materials or assemblies at the point of manufacture or fabrication. A record shall be made of every such examination and inspection and of all violations of this Code. Costs of such inspections shall be paid by the manufacturer.

105.3 Inspection Service. The Building or Fire Official may make, or cause to be made, the inspections required by this section. He may accept reports of inspectors of recognized inspection services provided that after investigation he is satisfied as to their qualifications and reliability. A certificate called for by any provision of this Code shall not be based on such reports unless the same are in writing and certified by a responsible officer of such service.

105.4 Inspections Prior To Issuance of Certificate of Occupancy or Completion. The Building and Fire Officials shall inspect or cause to be inspected at various intervals all construction or work for which a permit is required, and a final inspection shall be made of every building or structure upon completion, prior to the issuance of the Certificate of Occupancy, as required in Section 106. Where any additional or extra inspection is required on any undertaking due to the failure of the permit holder to comply with the provisions of this Code, a "Special Inspection Permit" shall be obtained for each such inspection and there shall be an additional charge of $50.00 for each such permit and inspection.

105.5 Posting of Permit. Work requiring a permit shall not commence until the permit holder or his agent posts the permit card in a conspicuous place on the premises. The permit shall be protected from the weather and located in such position as to permit the Building or Fire Official or their representative to conveniently make the required entries thereon. This permit card shall be maintained in such position by the permit holder until the Certificate of Occupancy or Completion is issued by the Building Official. The Fire operational/use permit shall be maintained on site permanently.

105.6 Required Inspections. It shall be the responsibility of the permit holder/contractor to give reasonable advance notice to the Building and Fire Officials when work is ready for test or inspection. Except in case of emergency this

notice should be given 24 hours prior to the requested inspection unless otherwise specified. The Building and/or Fire Official, upon notification from the permit holder or his agent, shall make the following inspections and such other inspections as necessary, and shall either release that portion of the construction or shall notify the permit holder or his agent of any violations which must be corrected in order to comply with this Code:

105.6.1 Footing and foundation inspection. Footing and foundation inspections shall be made after excavations for footings are complete and any required reinforcing steel is in place. For concrete foundations, any required

forms shall be in place prior to inspection. Materials for the foundation shall be on the job, except where concrete is ready mixed in accordance with ASTM C 94, the concrete need not be on the job.

105.6.2 Concrete slab and under-floor inspection. Concrete slab and under-floor inspections shall be made after in-slab or under-floor reinforcing steel and building service equipment, conduit, piping accessories and other ancillary equipment items are in place, but before any concrete is placed or floor sheathing installed, including the subfloor.

105.6.3 Lowest floor elevation. In flood hazard areas, upon placement of the lowest floor, including the basement, and prior to further vertical construction, the elevation certification required in Section 1612.5 shall be submitted to the building official.

105.6.4 Frame inspection. Framing inspections shall be made after the roof deck or sheathing, all framing, fire blocking and bracing are in place and pipes, chimneys and vents to be concealed are complete and the rough electrical, plumbing, heating wires, pipes and ducts are approved.

105.6.5 Lath and gypsum board inspection. Lath and gypsum board inspections shall be made after lathing and gypsum board, interior and exterior, is in place, but before any plastering is applied or gypsum board joints and fasteners are taped and finished.

> *Exception:* Gypsum board that is not part of a fire-resistance-rated assembly or a shear assembly.

105.6.6 Fire-resistant penetrations. Protection of joints and penetrations in fire-resistance-rated assemblies shall not be concealed from view until inspected and approved.

105.6.7 Other inspections. In addition to the inspections specified above, the building official is authorized to make or require other inspections of any construction work to ascertain compliance with the provisions of this Code and other laws that are enforced by the department of building safety.

105.6.8 Special inspections. For special inspections, see Section 1704 of the IBC.

105.6.9 Final inspection. The final inspection shall be made after all work required by the building permit is completed.

105.7. Fire Inspections.

105.7.1 Testing of Fire Protection systems and equipment. The Fire Official shall witness tests for all fire protection systems and equipment before a Certificate of Occupancy or Certificate of Completion is issued by the Building Official. The following lists the Fire Official inspections on fire protection systems:

105.7.1.1 Underground Fire Service (NFPA Certification required).

- Open Trench Inspection of piping, thrust blocks and other approved methods of restraining fire mains.
- Hydrostatic Test.
- Flush Test (before connection to the aboveground Fire Sprinkler System).
- Final (with Fire Alarm Final, if applicable).

105.7.1.2 Fire Sprinkler Systems (NFPA Certification required).

- Above Ceiling inspection and Hydrostatic Test (open ceiling).
- Bucket Test (13R).
- Final (with Fire Alarm System if applicable).

105.7.1.3 Standpipe System (NFPA Certification required).

- Hydrostatic Test.
- Flush Test (with Fire Pump if applicable).
- Final (with Fire Alarm System if applicable).

105.7.1.4 Fire Pumps (Certification required).

- Hydrostatic and Flush Test of piping.
- Functional Test (Pump Certification) Emergency Power Supply for Electric Pumps.

- Final (with Fire Alarm System, if applicable).

105.7.1.5 Fire Alarm System (NFPA Certification required).

- Acceptance Test (with other trades if applicable).
- Re-certification (if an existing system is upgraded or re-installed).

105.7.1.6 Commercial Hood Fire Extinguishing System (Certification required).

- Inspection (all components).
- Functional Test.
- Final (with Fire alarm if applicable).

105.7.1.7 Non-Water based Fire Suppression Systems (Certification required).

- Inspection (all components).
- Room Integrity Test.
- Pneumatic Test.
- Puff Test (flow).
- Functional Test.
- Final (with Fire alarm if applicable).

105.7.1.8 Above (AST) and Underground (UST) Tanks (Certification Required).

- Inspection (ASME code stamp or UL mark verifying Factory testing).
- Hydrostatic Test (soap test before tanks are placed in the ground).
- Piping and Tank tightness test (UST tested before covering).
- Final Inspection.

105.7.1.9 Final Certificate of Occupancy Inspection.

- Required at the completion of the testing of all Fire Protection Systems and Equipment.
- Required if no Fire Protection Systems are installed unless instructed otherwise by the Building Inspection.
- Fire Extinguishers should be properly installed.
- All Life Safety Features including egress should be completed.

The following inspections require a completed contractor's certificate per NFPA Standards:

Underground Fire Service

Fire Sprinkler Systems

Standpipe Systems

Fire Alarm Systems

Fire Suppression Systems

105.8 Electrical.

Required electrical inspections shall consist of the following:

105.8.1 Underground Inspection. To be made after trenches or ditches are excavated, conduit or cable installed, and before any backfill is put in place.

105.8.2 Rough-In Inspection. To be made after the roof, framing, fireblocking and bracing is in place and prior to the installation of wall or ceiling membranes. When any part of a wiring installation is to be hidden from view by the permanent placement of parts of the building, the person installing the wiring shall notify the Building Official and such parts of the wiring installation shall not be concealed until they have been inspected and approved by the Building Official; provided, that on large installations where the concealment of parts of the wiring proceeds continuously, the person installing the wiring shall give the Building Official due notice and inspections shall be made periodically during the progress of work.

105.8.3 Low Voltage Wiring. Low voltage wiring, as described in the 2014 NEC will be exempt from having to be installed under and electrical permit by a licensed electrician. Proper business license is required for indicated work. Wiring shall be limited to Class II or less power supply as determined by the authority having jurisdiction. The Electrical inspector is responsible for conducting the inspection

for all the electrical wiring for fire alarm system. The electrical inspector checks wiring to fire alarm panel and from panel to devices/appliances (this does not include testing for supervision). The Fire inspector is responsible for conducting an acceptance test (including supervision) of the fire alarm system.

105.8.3.1 Permit Required. A low voltage permit will be required to install the following types of wiring and systems:

- Telecommunication
- Sound
- Data
- Burglar Alarm
- Power Limited Fire Alarm
- Video/CATV
- Lawn Sprinkler
- Fiber Optics
- Class II Controls
- Energy Management

Wire that is laid on the ceiling grid or supported by the ceiling grid hanger wire will not be approved and the inspector will not approve the installation of the ceiling tile.

105.8.3.2 Permit Cost. The minimum permit fee will be $50.00. Permit cost will be based on the cost of the job being installed and will be charged at a rate of $8.50 per $1,000 worth of installation cost. Fire Alarm systems that are included in the base cost of construction for new or remodeled buildings, and the Fire Alarm system that is shown on the approved building plans, will be exempt from paying the above fee.

105.8.4 Final Inspection. To be made after the building is complete, all required electrical fixtures are in place and properly connected or protected, and the structure is ready for occupancy. When the Building Official shall determine that work has been completed under a permit, but no final inspection has been requested or made, it shall be his duty to refuse to issue any permits to the master electrician for any work until said completed work has satisfactorily passed a final inspection. Regardless of any other provision of this Code, electrical work or equipment placed in operation and which are in use by the owner or occupant of the building or premises shall be deemed complete and ready for final inspection. If, upon final inspection, the installation is not found to be in full compliance with this Code, the Building Official shall at once notify the person installing the wiring, stating the defects which have been found to exist.

105.9 Plumbing.

Required plumbing inspections shall consist of the following:

105.9.1. Underground Inspection. To be made after trenches or ditches are excavated, piping installed, and before any backfill is put in place.

105.9.2. Rough-In Inspection. To be made after the roof, framing, fireblocking and bracing is in place and all soil, waste and vent piping is complete, and prior to this installation of wall or ceiling membranes.

105.9.3 Final Inspection. To be made after the building is complete, all plumbing fixtures are in place and properly connected, and the structure is ready for occupancy.

105.9.4 Responsibility of Master Plumber. It shall be the responsibility of the master plumber to notify the office of the Building Official within forty-eight hours after the completion of the job and before the plumbing system, alterations or additions are placed in service, that the work is ready for final inspection. When the Building Official shall determine that work has been completed under a permit, but no final inspection has been asked for or made, it shall be his duty to refuse to issue any permits to the master plumber for any work until said completed work has satisfactorily passed a final inspection. Regardless of any other provision of this Code, plumbing work or fixtures placed in operation and

which are in use by the owner or an occupant of the building or premises shall be deemed complete and ready for final inspection.

105.9.5 Test of Drainage and Vent Systems. All the piping of the plumbing system shall be tested with water. After the plumbing fixtures have been set and their traps filled with water, the entire drainage system shall be submitted to final tests. The Building Official may require the removal of any clean-out to ascertain if the pressure has reached all parts of the system.

105.9.6 Methods of Testing Drainage and Vent Systems.

(a) Water Test—The Water Test shall be applied to the drainage and vent system, either in its entirety or in sections. If applied to the entire system, all openings in the piping shall be tightly closed, except the highest opening, and the system filled with water to the point of overflow. If the system is tested in sections, each opening shall be tightly plugged except the highest openings of the section under test, and each section shall be filled with water, but no section shall be tested with less than a 10 foot head of water. In testing successive sections at least the upper 10 feet of the next proceeding section shall be tested so that no joint or pipe in the building (except the uppermost 10 feet of the system) shall have been submitted to a test of less than a 10 foot head of water. The water shall be kept in the system, or in the portion under test, for a least 15 minutes before inspection starts; the system shall then be tight at all points. Exception: Sewage ejectors need only meet the requirements of the final test.

(b) Ball Test—All soil or waste pipes other than individual fixture drains 3" or larger shall be subjected to the "Ball Test." This test shall consist of passing through the pipe bore a wooden sewer ball of a diameter not smaller than ½" less than the diameter of the pipe under test. The ball shall pass freely, under the action of gravity, through the pipe under test. Water, no more than 5 gallons, may be used to assist in floating the ball through the piping, however, no other means of assistance shall be used.

(c) Final Test—The final test of the completed drainage and vent system shall be visual and in sufficient detail to insure that the provisions of this Code have been complied with, provided, however, that for cause, the plumber may be required to subject the plumbing to a smoke or mint test as determined by the Building Official. Where the mint test is used, two ounces of oil of mint shall be introduced for each line or stack.

105.9.7 Test of Water-Supply System. Upon completion of a section, or of the entire water-supply system, it shall be tested and proved tight under a water pressure not less than the working pressure under which it is to be used. The water used for tests shall be obtained from a potable source of supply. Provisions allowed under Section 312.5 2015 IPC for testing purposes.

105.9.8 Test of Building Sewer. Shall be tested and accepted by Jefferson County Environmental Services before any final plumbing inspections are to be made. A letter of acceptance shall be received in the Department of Planning, Engineering and Permits addressed to the Chief Plumbing, Gas and Mechanical Inspector.

105.9.9 Test of Interior Leaders or Downspouts. Leaders or downspouts and branches within a building shall be tested by water in accordance with "Methods for Testing of Drainage and Vent Systems."

105.9.10. Test of Defective Plumbing. The drainage system of any building, where there is reason to believe that it has become defective, shall be subjected to test or inspection.

105.10. Mechanical.

105.10.1. Rough-In Inspection. To be made after the roof, framing, fire-blocking and bracing are in place and all ducting, and other

concealed components are complete, and prior to the installation of wall or ceiling membranes.

105.10.2 Final Inspection. To be made after the building is complete, the mechanical system is in place and properly connected, and the structure is ready for occupancy.

105.11 Gas.

105.11.1 Rough Piping Inspection. To be made after all new piping authorized by the permit has been installed, and before any such piping has been covered or concealed or any fixtures or gas appliances have been connected.

105.11.2 Final Piping Inspection. To be made after all piping authorized by the permit has been installed and after all portions which are to be concealed by plastering or otherwise have been so concealed, and before any fixtures or gas appliances have been connected. This inspection shall include a pressure test.

105.11.3 Intermediate Inspection. It shall be the responsibility of the Master Gas Fitter to notify the office of the Building Official within forty-eight hours after completion of the job and before the gas system, alterations or additions are placed in service, that the work is ready for intermediate inspection. It shall further be the responsibility of the Master Gas Fitter to see that the premises and the work are available and accessible to the Building Official or his representative for inspection.

105.11.4 Final Inspection. To be made on all new gas work authorized by the permit and such portions of existing systems as may be affected by new work or any changes, to insure compliance with all the requirements of this Code and to assure that the installation and construction of the gas system is in accordance with reviewed plans. It shall be the responsibility of a Master Gas Fitter to put all equipment in operation for final inspection after completion and call for final inspection of the job and within ten (10) days after approval of the intermediate inspection except in such cases where the unfinished work of other crafts prohibit proper operation of the equipment. Such cases shall be determined by the Building Official after request of inspection, but in no case will this relieve the Master Gas Fitter, Company, Firm, or Corporation of his or their responsibility to call for final inspection within ten (10) days. If final inspection is not requested within 10 days from approval of the intermediate inspection and final approval given, it shall be the responsibility of the Building Official to refuse to issue any permits to the Master Gas Fitter, Company, Firm, or Corporation for any additional work at any time it has been ascertained that the equipment has been placed in operation and final inspection has not been requested and final approval obtained.

105.11.5 Instrument Tests. Instrument tests, when required, shall insure that the flue gas temperature does not exceed 480 Degrees Fahrenheit above that of the air temperature surrounding the appliance. The concentration of CO-2 does not exceed 9%; or the concentration of CO-02 does not exceed 0.04%, and the concentration and oxygen is not less than 4% and not more than 10%. This test shall be applicable to conversion burner installations, barometric damper installations, power burner installations, and at any time, when, after test by the Building Official, the equipment is found not to comply with the above requirements.

105.11.6 Test of a Gas Piping System. All the piping of the gas system to the outlet manual shut-off valve required by Article IV or quick-disconnect device when provided shall be tested with air or inert gas in accordance with Article IV.

105.11.7 Test of Defective Gas Systems. The gas system of any building, where there is reason to believe that it has become defective, shall be subjected to test and/or inspection.

105.11.8 Gas Vent Inspection. Before approval of the roughing-in-inspection, required in this Code, may be given, all gas vent piping shall be in place, joints properly sealed, adequately supported and clear of all combustible material in accordance with other sections of this Code. Where it is necessary for ceilings or other obstructions to be installed

prior to the gas vent pipe, then adequate clearance shall be provided around the vent pipe in order that clearances, as required in Article IV may be ascertained and, also, that the type material and listing may be determined by the Building Official. In no case shall the installation of ceilings or other obstructions prior to inspection be the cause of an inspector having to crawl in or through attics when an earlier installation could have been made and inspection be called for.

105.11.9 Final or Operational Inspection. After a gas meter is set and all equipment is put in service, a final inspection may be made. This inspection will be in sufficient detail to assure that all final connections have been made and that all appliances have been properly adjusted and that all controls are in good working order. Upon the satisfactory completion of this inspection, a certificate of approval shall be issued to the permittee by the Building Official to be delivered to the owner.

105.11.10 Visual or Intermediate Inspection. When all equipment is ready to be put in service, and before the meter is set, visual inspection shall be requested by the Master Gas Fitter. This inspection shall be in sufficient detail to insure that all the provisions of this Code have been complied with. In existing systems, where a meter is already in service, final connection of the appliance or equipment to the customer's gas piping shall not be made until the visual or intermediate inspection is made and approval given. Except for replacements when no roughing-in is required, then a final inspection may be made in lieu of the intermediate inspection. When equipment is placed in operation, such equipment shall be deemed ready for final inspection whether requested or not. However, nothing contained in this section shall relieve any person, firm or corporation from his or their responsibility to request inspection as required by this Code nor shall such inspection relieve any person from payment of additional inspection fees or other penalties incurred under this Code.

105.12 Elevator.

105.12.1 The installation and maintenance of all new and existing elevator equipment is under the control of the State of Alabama Elevator Board. This includes the recall service (i.e., Phase I or Phase II; proper recall using smoke detectors). The Fire Official will be responsible for testing of the sprinkler system providing protection for the elevator shaft/room. The Fire Official will check elevator lobby/shaft detection for proper signals to fire alarm panel.

105.12.2 Man lifts installed on construction sites shall comply with A17.1-2000, Section 5.10.

105.13 Written Release. Work shall not be done on any part of a building, structure, elevator, escalator, or the fire protection, electrical, gas, mechanical or plumbing system beyond the point indicated in each successive inspection without first obtaining a written release from the Building or Fire Official. Such written release shall be given only after an inspection has been made of each successive step in the construction or installation as indicated by each of the foregoing inspections.

105.14 Reinspection. If the Building or Fire Official finds that the work will not pass the inspection, the contractor shall be required to make necessary corrections and the work shall then be resubmitted for reinspection. Where additional inspections are necessary, there shall be an additional fee as provided for in Article V.

105.15 Delayed Inspection and Penalty. On any job for which a permit has been obtained and a period of more than 90 days elapsed without request for an inspection, an inspection shall be made and should it be ascertained that the work has been completed for which an inspection is required and no inspection has been requested as otherwise required by this Code, a delayed inspection penalty fee shall be paid as provided in this Code. Payment of this fee shall not include preclude payment of any other inspection charges incurred due to defective material, workmanship, equipment, apparatus, or the lack of equipment, apparatus, or personnel required for inspection or tests.

105.16 Contractor's Responsibility. It shall be the responsibility of the contractor to make sure that the work will stand the test prescribed before giving the notice for the inspection. It shall also be the responsibility of the contractor to see that the premises, work and personnel are available and accessible to the Building and Fire Officials or their representative for final inspection. Failure of the contractor to insure that final inspections are requested in accordance with this section may result in denial of future permit issuance.

105.17 Retesting. If the Building or Fire Official finds that the work will not pass the test, the contractor shall be required to make necessary corrections and the work shall then be resubmitted for inspection. Where additional inspections are necessary for such retesting there shall be an additional fee as provided for in Article V.

105.18 Covering the Work. Prior to testing, the system or part thereof shall not be covered until it has been inspected, tested and approved as prescribed in this Code.

105.19 Uncovering of Work. If a system or part thereof is covered before being inspected and approved as prescribed in this chapter, it shall be uncovered upon direction of the Building or Fire Official.

105.20 Material and Labor for Tests. The equipment, material, power, and labor necessary for the inspection and test shall be furnished by the contractor. The contractor shall be responsible for supplying gas for the operational or final test except that this requirement need not apply to gas meters when the owner has applied for service and a meter has been set within the time period covered in this Code.

106 CERTIFICATES

106.1 Building Occupancy. A new building shall not be occupied or a change made in the occupancy, nature or use of a building or part of a building until after the Building Official has issued a Certificate of Occupancy. Said certificate shall not be issued until all required building, structural, elevator, escalator, or the electrical, gas, mechanical, plumbing and fire protection systems have been inspected for compliance with this Code and other applicable laws and ordinances and released by the Building and Fire Officials. Issuance of a certificate of occupancy shall not be construed as an approval of a violation of the provisions of this Code or of other ordinances of the jurisdiction.

106.2 Issuing Certificate Of Occupancy. Upon satisfactory completion of construction of a building or structure and installation of electrical, elevator, escalator, fire protection, gas, mechanical and plumbing systems in accordance with this Code, reviewed plans and specifications, and after the final inspection, the Building Official shall issue a Certificate of Occupancy stating the nature of the occupancy permitted, the number of persons for each floor when limited by law, and the allowable load per square foot for each floor in accordance with the provisions of this Code.

106.3 Temporary/Partial Occupancy. A temporary/partial certificate of occupancy may be issued for a portion or portions of a building that may safely be occupied prior to final completion of the building.

106.4 Existing Building Certificate Of Occupancy. A Certificate of Occupancy for any existing building may be obtained by applying to the Building Official and supplying the information and data necessary to determine compliance with this Code for the occupancy intended. Where necessary, in the opinion of the Building Official and Fire Official, two sets of detailed drawings, or a general inspection, or both, may be required. When, upon examination and inspection, it is found that the building conforms to the provisions of this Code and other applicable laws and ordinances for such occupancy, a Certificate of Occupancy shall be issued.

106.5 Roughing-in-Inspection Certificate. Upon the satisfactory completion of the roughing-in-inspection, approval shall be so noted in the electrical, gas, mechanical or plumbing section of the building permit card. This approval shall give the date of the roughing-in-inspection and the name of the inspector.

106.6 Final Inspection Certificate.

Upon the satisfactory completion and final test of the plumbing system, a certificate of approval shall be issued by the Building Official to the Contractor to be delivered to the owner. If the work is found to be fully in compliance with this Code and does not constitute a hazard to life and property, he shall issue to such person, for delivery to the owner, a final certificate of approval authorizing connection to the electrical service, the turning on of the current and the use of the installation, and shall send written notice of such authorization to the public utility corporation furnishing the electric service. When a certificate is issued authorizing the connection and use of temporary work, such a certificate shall be issued to expire at a stated time and shall be revocable by the Building Official at his discretion. A preliminary certificate may be issued authorizing the connection and use of certain specified portions of an uncompleted installation; such a preliminary certificate shall be revocable at the discretion of the Building Official.

106.7 Certificate of Completion. Upon satisfactory completion of a building, structure, elevator, escalator, or the fire protection, gas, mechanical or plumbing system or portion thereof, a Certificate of Completion may be issued. This Certificate is proof that a structure or system is complete and for certain types of permits is released for use and may be connected to a utility system. This Certificate does not grant authority to occupy or connect a building, such as a shell building, prior to the issuance of a Certificate of Occupancy.

106.8 Revocation. The building official is authorized to, in writing, suspend or revoke a certificate of occupancy or completion issued under the provisions of this Code wherever the certificate is issued in error, or on the basis of incorrect information supplied, or where it is determined that the building or structure or portion thereof is in violation of any ordinance or regulation or any of the provisions of this Code.

107 SERVICE UTILITIES

107.1 Connection of Service Utilities. No person shall make connections from a utility, source of energy, fuel or power to any building or system which is regulated by this Code and for which a permit is required, until released by the Building Official and a Certificate of Occupancy or Completion is issued. Building Sewers (laterals), water services and gas services shall connect to the respective public main within the limits of the lot lines if extended to the public main.

107.2 Temporary Permanent Connection. The Building Official may authorize the temporary connection of the building or system to the utility source of energy, fuel or power for the purpose of testing building service systems or for use under a temporary Certificate of Occupancy. A separate application and permit fee is required in addition to all other fees.

107.3 Authority to Disconnect Service Utilities. The Building or Fire Official shall have the authority to authorize disconnection of utility service to the building, structure or system regulated by this Code in case of emergency where necessary to eliminate an immediate hazard to life or property or when the structure has been declared a public nuisance. The Building or Fire Official shall notify the serving utility, and whenever possible the owner and occupant of the building, structure or service system of the decision to disconnect prior to taking such action. If not notified prior to disconnecting, the owner or occupant of the building, structure or service system shall be notified in writing as soon as practical thereafter.

107.4 Responsibility of Public Utility Companies. Before any meter is set by any utility company or their authorized agent on any new or existing installation or before a larger meter is set where there is an increase in demand, the company desiring to set meters shall submit the name, address and date of the subscribers making request for such service. No meter shall be set until approval is given by the Building Official. The subscriber's name and address shall be submitted in duplicate.

107.5 Initial Connections. It shall be unlawful for any person, firm, or corporation to make connections from a source of electrical energy to any electric wiring, devices or equipment for the installation of which a permit is required, until a

certificate of approval has been issued by the Building Official authorizing such connections and the use of such wiring, devices, or equipment.

107.6 Reconnections. It shall be unlawful for any person, firm, or corporation to make connection from a source of electrical energy to any electrical wiring, device, or equipment which has been disconnected or the use of which has been ordered by the Building or Fire Official to be disconnected until a certificate of approval has been issued by the Building Official authorizing the reconnection and use of such wiring devices or equipment.

107.7 Illegal Work To Be Remedied. Any person, firm, or corporation engaged in the plumbing business or any other person doing work under the provisions of this Code whose work does not conform to the regulations herein set out, shall on notice from the Building Official make the necessary changes at once in order to remedy the same; if the work has not been so changed after 10 days' notice from the Building Official, the said Building Official shall then refuse to issue any more permits until he, it, or they, have conformed to all regulations applying to said work. Any person, firm or corporation having control of such work, who fails or refuses to make said changes, shall be punished on conviction as provided in Section 114. It shall be unlawful for the owner or agent for any building, dwelling, or dwelling unit to permit any drain or conduit connection to remain connected with any public sewer if the work has been improperly done, and no person shall permit the use of any water closet, or other plumbing fixture connected with a sanitary sewer or septic tank without an adequate supply of water connected thereto for the purpose of properly flushing and cleaning same. When any water closet sanitary appurtenance or conduit draining into a sanitary sewer or septic tank becomes stopped, clogged or otherwise out of repair, it shall be the duty of the owner or agent for the building, dwelling or dwelling unit to promptly cause the necessary repairs required for compliance with the provisions herein.

108 POSTING FLOOR LOADS

108.1 Occupancy. An existing or new building shall not be occupied for any purpose which will cause the floors thereof to be loaded beyond their safe capacity. The Building Official may permit occupancy of a building for mercantile, commercial or industrial purposes by a specific occupancy, when he is satisfied that such capacity will not thereby be exceeded.

108.2 Storage and Factory-Industrial Occupancies. It shall be the responsibility of the owner, agent, proprietor or occupant of Group S and Group F occupancies, or any occupancy where excessive floor loading is likely to occur, to employ a competent architect or engineer in computing the safe load capacity. All such computations shall be accompanied by an affidavit from the architect or engineer stating the safe allowable floor load on each floor in pounds per square foot uniformly distributed. The computations and affidavit shall be filed as a permanent record of the Department of Planning, Engineering and Permits, or such other departments which may be assigned by ordinance of the City Council the duty of enforcing this Code.

108.3 Signs Required. In every building or part of a building used for storage, industrial or hazardous purposes, the safe floor loads, as reviewed by the Building and Fire Officials on the plan, shall be marked on plates of approved design which shall be supplied and securely affixed by the owner of the building in a conspicuous place in each story to which they relate. Such plates shall not be removed or defaced, and if lost, removed or defaced, shall be replaced by the owner of the building.

109 TESTS

109.1 The Building or Fire Official may require tests or test reports as proof of compliance. Required tests are to be made at the expense of the owner, or his agent, by an approved testing laboratory or other approved agency.

110 CONSTRUCTION BOARD OF ADJUSTMENT AND APPEALS

110.1 Appointment. There is hereby established a Board to be called the Construction Board of

Adjustment and Appeals, which shall consist of eight members. The Board shall be appointed by the Birmingham City Council.

110.2 Membership and Terms.

110.2.1 Membership. The Construction Board of Adjustment and Appeals should consist of eight members. Such Board members should be composed of individuals with knowledge and experience in this Code. One member shall be a practicing Architect, one a competent Builder, one a Lawyer, one an Electrical Engineer one a Mechanical Engineer and two shall be Building or Fire Code Consultants, each of whom shall have had at least ten years' experience as an Architect, Engineer, Consultant, Lawyer or Builder. The Building and Fire Officials shall be ex-officio members. A Board member shall not act in a case that has a personal or financial interest.

110.2.2 Terms. The terms of office of the Board Members shall be six (6) years or until a replacement is appointed.

110.2.3 Quorum and Voting. Four members of the board shall constitute a quorum. In approving equivalency applications of any provisions of this Code or in modifying an order of the Building or Fire Official, affirmative votes of the majority present, but not less than four affirmative votes, shall be required.

110.2.4 Secretary of Board. The Building Official shall designate the deputy or other employee of the Department of Planning, Engineering and Permits to act as Secretary of the Board and who shall make a detailed record of all of its proceedings, which shall set forth the reasons for its decision, the vote of each member, the absence of a member and any failure of a member to vote.

110.3 Powers. The Construction Board of Adjustments and Appeals shall have the power, as further defined in 110.4 herein, to hear equal alternatives and equivalencies, appeals of decisions and interpretations of the Building or Fire Official and consider equivalencies of this Code. The Board shall also have the power to hear appeals of any person directly affected by a decision of the Code Official or a notice or order issued under the Property Maintenance Code of the City that is based on a claim that the true intent of the Property Maintenance Code or the rules legally adopted thereunder have been incorrectly interpreted, the provisions of that code do not fully apply, or the requirements of that code are adequately satisfied by other means. The Board shall also hear the appeal of any person aggrieved by a decision of the City's Design Review Committee or of the inspector related to the application of design review standards in any commercial revitalization district of the City.

110.4 Appeals.

110.4.1 Decision of the Building or Fire Official. The owner of a building, structure or service system, or his duly authorized agent, may appeal a decision of the Building or Fire Official to the Construction Board of Adjustment and Appeals whenever any one of the following conditions are claimed to exist:

110.4.1.1 The Building or Fire Official rejected or refused to approve the mode or manner of construction proposed to be followed or materials to be used in the installation or alteration of a building, structure or service system.

110.4.1.2 The provisions of this Code do not apply to this specific case.

110.4.1.3 That an equally good or more desirable form of installation can be employed in any specific case.

110.4.1.4 The true intent and meaning of this Code or any of the regulations there under, have been misconstrued or incorrectly interpreted.

110.4.2 Equal Alternatives and Equivalencies. The Construction Board of Adjustments and Appeals, when so appealed to and after a hearing, may approve equivalency applications the application of any provision of this Code to any particular case when, in its opinion, the literal enforcement thereof would do manifest injustice and would be contrary to the spirit and purpose of this Code or public interest, and also finds all of the following:

110.4.2.1 That special conditions and circumstances exist which are peculiar to

the building, structure or service system involved and which are not applicable to others.

110.4.2.2 That the special conditions and circumstances do not result from the action or inaction of the applicant.

110.4.2.3 That granting the equivalency requested will not confer on the applicant any special privilege that is denied by this Code to other buildings, structures or service systems.

110.4.2.4 That the equivalency granted is the minimum requirement that will make possible the reasonable use of the building, structure or service system.

110.4.2.5 That the granting of the equivalency will be in harmony with the general intent and purpose of this Code and will not be detrimental to the public health, safety and general welfare.

110.4.3 Conditions of the Equal Alternatives and Equivalencies. In granting the equivalency, the Board may prescribe a reasonable time limit within which the action for which the equivalency is required shall be commenced or completed or both. In addition, the Board may prescribe appropriate conditions and safeguards in conformity with this Code. Violation of the conditions of a equivalency shall be deemed a violation of this Code.

110.4.5 Notice of Appeal. Notice of appeal shall be in writing and filed within 30 calendar days after the decision is rendered by the Building or Fire Official. Appeals shall be in a form acceptable to the Building Official and accompanied by a non-refundable check in the amount of $150.00.

110.4.6 Unsafe or Dangerous Buildings or Service Systems. In the case of a building, structure or service system which, in the opinion of the Building or Fire Official, is unsafe, unsanitary or dangerous, the Building or Fire Official may, in his order, limit the time for such appeals to a shorter period. Appeals shall stay all proceedings in furtherance of the action appealed unless the Buildings or Fire Official certifies in writing to the Board that the stay would, in his opinion, cause imminent peril to life or property.

110.5 Procedures of the Board.

110.5.1 Rules and Regulations. The Board shall establish rules and regulations for its own procedure not inconsistent with the provisions of this Code. The Board shall meet on call of the Chairman. The Board shall meet within 30 calendar days after notice of appeal has been received. Hearings before the Board shall be open to the public. The appellant, the appellant's representative, the respective official or city staff member charged with enforcement and any person whose interests are affected shall be given an opportunity to be heard. The rules and regulations of the Board shall be made available to the public through the Secretary. Appeals of notice and orders (other than Imminent Danger notices) shall stay the enforcement of the notice and order until the appeal is heard by the appeals board.

110.5.2 Decisions. The Construction Board of Adjustment and Appeals shall, in every case, reach a decision without unreasonable or unnecessary delay. Each decision of the Board shall also include the reasons for the decision. If a decision of the Board reverses or modifies a refusal, order, or disallowance of the Building, Fire or Code Official or varies the application of any provision of this Code the Building, Fire or Code Official shall immediately take action in accordance with such decision. Every decision related to Articles I - VII of this Code shall be promptly filed in writing in the office of the Building Official with a duplicate copy filed with the Fire Official and shall be open to public inspection. Every decision related to Article VIII of this Code (Property Maintenance Code) shall be promptly filed in writing in the office of the Building Official with a duplicate copy filed with the Code Official and shall be open to public inspection. Every decision related to design review standards in commercial revitalization districts shall be promptly filed in writing in the office of the Building Official with a duplicate copy filed in the office of the Urban Design Administrator and shall be

open to public inspection. A copy of the decision shall be sent by mail or otherwise to the appellant and a copy shall be kept in the office of the Building, Fire and Code Officials, as provided above. Every decision of the Board shall be final, subject however to such remedy as any aggrieved party might have at law or in equity."

111 - LICENSES AND BONDS

111.1 General. Before any person, firm, or corporation shall engage in fire protection, mechanical, electrical, plumbing, or gas fitting work within the City, County, and State they shall be qualified as set forth herein, and a license shall be obtained from the City, County, and State as required and proper bonds posted. Where electrical, plumbing, or gas fitting work is being done, a master or journeyman electrician, plumber, utility gas fitter or gas fitter shall at all times be present on the job, and in actual control and in charge of the work being done. In the case of utility gas fitters they may only be in the employ of a public utility duly franchised in the City of Birmingham.

Exception: Any firm or corporation licensed to do any work in connection with "limited energy" or other work approved by the Administrative Authority.

111.2 Registration. Any person registered as Master Plumber or Gas Fitter with the State of Alabama Plumbers and Gas Fitters Board may apply for and obtain permits, provided, they have obtained a business license from the City of Birmingham as required by the City ordinance and provided bonding as herein required is in effect.

111.3 Licensing of Electricians.

111.3.1 Definitions. The term "electrical construction", as used in this Code, shall be held to include all work and materials used in installing, maintaining or extending a system of electrical wiring for light, heat or power and all appurtenance, apparatus or equipment used in connection therewith, inside of or attached to any building or structure, lot or premises. The term "electrical contractor", as used in this Code, shall be held to mean a person who is engaged in the business of electrical construction and who is qualified under the terms and provision of this Code. The term "master electrician", as used in this Code, shall be held to mean a person who possesses the necessary qualifications, training, and technical knowledge to plan, lay out, and supervise the installation of electrical wiring, apparatus and equipment for light, heat, and power, as covered by the terms and provisions of this Code. The term "journeyman electrician", as used in this Code, shall be held to mean a person who possesses the necessary qualifications, training, and technical knowledge to install electrical wiring, apparatus or equipment for light, heat, or power, as covered by the terms and provisions of this Code, also he shall be capable of doing said work according to plans and specifications furnished to him and in accordance with standard rules and regulations governing such work. The term "apprentice electrician", as used in this Code, shall be held to mean a person who is engaged in the electrical industry in the capacity of assistant to a journeyman electrician. The term "direct supervision", as used in this Code, shall be held to mean supervision by the supervisor while on the same premises or under the same roof with the supervised. The term "maintenance electrician", as used in this Code, shall be held to mean a person who possesses the necessary qualifications, training, and technical knowledge to maintain electrical wiring, apparatus or equipment for light, heat, or power, as covered by the terms and provisions of this Code; he shall be capable of performing such maintenance work in accordance with standard rules and regulations governing such work; and, he shall be a person who is regularly employed, to maintain and make necessary repairs to the existing building or premises, owned or occupied, or controlled by the person, firm, company, or corporation by whom he is employed. The term "fire district", as used in this Code, shall mean the district referred to in Appendix D of Article II.

111.3.2 All Electrical Examinations are conducted by the State of Alabama Electrical Contractors Board.

111.3.10 Reciprocity. Reciprocity shall be with the State of Alabama, Jefferson County and those deemed by the Building Official.

111.3.11 Apprentice Registration. Any person who shall apply for registration as an apprentice electrician upon form provided for that purpose by the City, shall be registered as such by the Chief Electrical Inspector without examination for the next succeeding calendar year upon payment to the Director of Finance of an annual fee of thirty-five dollars ($35.00).

111.3.12 Renewal of Certificate of Registration. Every certificate of registration, whether master's or journeyman's, and whether original or renewal, shall be issued for only the calendar year in which issued and dated, and shall be of no force or effect in any subsequent calendar year. Any holder of an unrevoked and unsuspended master's certificate for the current or preceding five (5) calendar years shall be entitled to a renewal certificate without examination for the next succeeding calendar year upon payment to the Director of Finance of a renewal fee of fifty dollars ($50.00) for each of the preceding and current years. It shall be unlawful for any person to engage in the business of master electrician or electrical contractor in any period in which he does not hold an unrevoked and unsuspended master's certificate. Any holder of an unrevoked and unsuspended journeyman's certificate for the current or preceding five (5) calendar years shall be entitled to a renewal certificate without examination upon payment to the Director of Finance of a renewal fee of thirty-five dollars ($35.00) for each of the preceding and current years. It shall be unlawful for any person to engage as a journeyman in any period in which he does not hold an unrevoked and unsuspended journeyman's certificate. A person may renew an unexpired registration by paying to the board before the expiration date of the registration the required renewal fee. If a person's registration has been expired for not longer than 90 days, the person may renew the registration by paying to the board the required renewal fee and a fee that is one-half of the examination fee for the registration. If a person's registration has been expired for longer than 90 days but less than two years, the person may renew the registration by paying to the board all unpaid renewal fees and a fee that is equal to the examination fee for the registration. If a person's registration has been expired for two years or longer, the person may not renew the registration. The person may obtain a new registration by submitting to re-examination and complying with the provisions for obtaining an original registration. Any holder of an unrevoked and unsuspended maintenance electrician's certificate for the current or preceding calendar year shall be entitled to a renewal certificate without examination for the next succeeding calendar year, upon payment to the Director of Finance of a renewal fee of thirty-five dollars ($35.00). It shall be unlawful for any person to engage as a maintenance electrician for any person, firm, company, or corporation in any period in which he does not hold an unrevoked and unsuspended maintenance certificate.

111.3.13 Revocation and Suspension of Certificate of Competency. The Electrical Examining Board shall have the power to revoke any certificate if, after fair hearing, it be found that any false statement was made in the application or that actual practice under such certificate has demonstrated to the satisfaction of the Board that the holder thereof does not possess the qualifications necessary for issuance of a certificate after examination as provided in Section 111.3.3, Section 111.3.4, and Section 11.3.5; and revoked certificate shall not be reinstated within thirty days and without examination as provided in Section 111.3.3, Section 111.3.4, and Section 111.3.5. The Board shall have power to suspend any certificate for a definite period not exceeding sixty days if, after fair hearing, it determines that the holder has been guilty of any violation of the laws of the City relating to the electrical installation or construction or of any clearly incompetent workmanship.

111.3.14 Appeal From Action of Building Official.

111.4 Prerequisite to License. The Director of Finance shall refuse to issue a license to any person to engage in the business of gas, plumb-

ing, mechanical or electrical construction and installation, unless such person holds a valid unrevoked and unsuspended master's certificate of competency, or certification of the Alabama State Board of Heating and Air Conditioning Contractors or has in his full-time employ a person who holds such master's certificate or certification. The Director of Finance shall also refuse to issue to any partnership a license to engage in such business unless said partnership shall have in its full time employ, or as a member, a person who holds such master's certificate or certification. The Director of Finance shall also refuse a license to any corporation which has not in its full time employ, a person who holds a masters certificate. Every such license shall stand suspended during any period in which the conditions requisite to issuance of a license do not prevail. Exception as required by 111.1.

111.5 Duty of Employer. No person, firm or corporation shall employ any person on any job in the capacity of a journeyman electrician, plumber or gas fitter except as permitted for utility gas fitters in the employ of a duly authorized franchised public (gas) utility company, unless such person shall have in his possession a valid journeyman's certificate of registration, issued to him as hereinabove provided in this Code.

111.6 Unlawful To Do Business Without Certificate. It shall be unlawful:

(a) For any person other than a holder of a certificate of registration as an apprentice electrician, plumber or gas fitter to do any electrical, plumbing or gas installation or construction work in the city; or

1) For any holder of a certificate of registration to employ as an assistant in any such work any person other than a holder of a certificate of registration or the holder of a certificate of registration as an apprentice electrician, plumber or gas fitter; or

2) For any holder of a certificate of registration to require a registered apprentice electrician, plumber or gas fitter to do any such work otherwise than under his direct supervision; or

3) For any registered apprentice electrician, plumber or gas fitter to do any such work otherwise than while under the direct supervision of the holder of a certificate of registration; or

4) For any holder of a maintenance electrician's, plumber's or gas fitter's certificate to make any alterations or additions to the wiring, plumbing or gas systems of the person, firm, company, or corporation by whom he is employed; or

5) For an individual to perform plumbing or gas work upon his own premises, other than what is allowed in Section 101.3.5 Chapter 1

(b) To engage as a gas fitter or plumber for another person, firm or corporation while work is outstanding under permit issued to him while operating his own gas fitting or plumbing business.

(c) To engage in the business as gas fitter or plumber for himself while permits are outstanding on work issued to another under his signature while acting as Master Gas Fitter or Plumber for such company, firm or corporation.

(d) To engage as a gas fitter or plumber for any company, firm or corporation while permits are outstanding for any other company, firm or corporation issued under his signature as Master Gas Fitter or Plumber.

(e) To operate two or more gas fitter or plumbing businesses and act as Master Gas Fitter or Plumber for both at the same time.

(f) To be employed by two or more gas fitting or plumbing businesses at the same time while acting as Master Gas Fitter or Plumber for either.

(g) Anything herein to the contrary notwithstanding, it shall not be unlawful for any public utility corporation operating under a franchise from the city to transmit and sell electrical energy, or any employee of such public utility corporation to do any such work as a part of the public utility business of such corporation.

111.7 Installation and Operation of Illegal Wiring of Equipment. It shall be unlawful for any person, firm, or corporation to permit the installation of any electrical wiring, apparatus, or other appurtenances upon his premises, works, ways, machinery, or plant except in strict accordance with all provisions of this Code; it shall be further unlawful for any person to maintain, operate or attempt to operate any electrical wiring, apparatus, equipment, or other appurtenances in or upon his premises, works, ways, machinery, or plant which has not been installed in strict accordance with this Code.

111.8 Vehicular Signs. All trucks and similar vehicles used by electrical, plumbing, heating and gas contractors shall have on the body on both sides of same, the full name and telephone number of the firm to which it belongs. Lettering may be any color in contrast to the color of the body, but the firm's name must be in letters at least 2½ inches high.

111.9 Bond Required of Electrical Contractors. Before any person, firm, or corporation may engage in the business of installing, maintaining, or repairing electrical wiring, equipment, as an Electrical Contractor or in excavating or blasting within the City of Birmingham, he, it, or they, shall in addition to the requirements of competency, have a business license issued by the Municipal, City, and State authorities, also deposit with the Director of Finance and continuously maintain a good and sufficient bond in the sum of ten thousand dollars ($10,000) to be approved by the Director of Finance, and made by surety company duly authorized to do business in Alabama. Said bond shall be conditioned that the person, firm, or corporation, to be known as the principal in said bond, shall faithfully observe all ordinances and laws of the City pertaining to said business or businesses, whether now or hereafter enacted, together with all rules and regulations established under the authority of said laws or ordinances; and shall perform in a workmanlike manner all work undertaken by said principal in the prosecution of said business or businesses; and shall indemnify and save harmless the said City from all liability occasioned or arising from acts done or omitted by said principal, its servants and agents, in doing said work or from any unfaithful or inadequate work; and shall adequately safeguard all ditches and excavations which may be opened by said principal in the streets and highways of said City; and shall restore, or cause to be restored, in a workmanlike manner, to their former condition, all such portions of said streets and highways excavated by said principal, and pay the expenses thereof; and shall maintain said restored portions in a safe condition for the period of one year from the date of such excavation; and shall defend all suits brought against the City based, in whole or in part, upon any act or default for which said principal is responsible, and pay the costs and expenses thereof, and shall pay all such damages as any person, firm, or corporation may sustain by reason of violation of said laws, ordinance or regulations by said principal, its servants, or agents, in the prosecution of said business or businesses. Any person, firm, or corporation injured in person or property by reason of any violation of said laws, ordinances, or regulations by said principal, or by an act, default, or omission constituting a breach of any of the conditions of this bond, may maintain a suit or action thereon for such injury. Said bond shall also provide that it may be canceled by the surety by giving the Director of Finance thirty (30) days' notice in writing prior to the date of cancellation. Failure to comply with this section shall be cause for immediate revocation of the business license of the said person, firm, or corporation after first granting said person, firm, or corporation the right to a public hearing before the City Council. All contractors, subcontractors, permit holders shall have the required business license issued by municipal, city, county and state authorities before permit issuance.

111.10 Allowing One's Name, License, or Bond to be Used to Obtain Permit Fraudulently.

No person, firm, or corporation engaged in the electrical, plumbing or gas business shall allow his, its, or their name to be used by any other person, firm, or corporation, directly or indirectly, to obtain a permit for the construction of any work under his, its, or their name, license or bond; nor shall he, it or they make any misrepresentations or omissions in his, its, or their returns. No person holding a Master's certificate shall represent two or more businesses as such nor shall he represent any other business as such while operating his own business.

112 WIRING ON PUBLIC AND PRIVATE PROPERTY

112.1 Approved Wiring Within the Fire District. Within the Fire District, referred to in Appendix F of the Building Code of the City of Birmingham, all wiring shall be restricted to the provisions of the following Articles of the standard referred to in Chapter 11 of this Code: Articles 318, 326, 328, 330, 333, 334, 342, 344, 345, 346, 347, 348, 350, 351, 352, 353, 354, 356, 358, 362, 363, 364, 365.

112.2 Conformity.

(a) Section 210-5 shall be amended to add (c) to read as follows: 210-5c Identification of Ungrounded Conductors and Color Coding of Branch Circuits.

Each branch circuit connected to the same 120/240 or 120/208 volt system shall conform to the following color code: Single phase systems shall be one black, one red; for 3 phase systems one black, one red, one blue.

Each branch circuit connected to the same 277/480 volt system shall conform to the following color code: one yellow, one orange, one brown.

Each circuit with a higher voltage to ground or high leg shall have the high leg marked orange and shall conform to the following color code: one black, one orange, one blue.

All circuits of the same color shall be connected to the same ungrounded feeder conductor throughout the system.

(c) Section 215-10 shall be amended to add (b) to read as follows: 215-10b Installation Requirements for Feeders.

Service entrance conductors and feeders in residential multiple occupancy buildings; from the service drop or lateral to distribution panels; shall be installed in rigid metal conduit, IMC, EMT, or rigid nonmetallic conduit, either in a slab, basement or crawl space under a building or in a manner that the raceway will not pass through one occupancy to reach another, except the vertical portion from one floor to another connecting to a panel board.

(s) Electric fences shall be prohibited from any location within the City of Birmingham, except when approved by the Building Official.

113 SEVERABILITY

If any section, subsection, sentence, clause or phrase of this Code is for any reason held to be unconstitutional, such decision shall not affect the validity of the remaining portions of this Code.

114 VIOLATIONS AND PENALTIES

Any person, firm, corporation or agent who shall violate a provision of this Code, or fail to comply therewith, or with any of the requirements thereof, or who shall erect, construct, alter, install, demolish or move any structure, fire protection, electrical, elevator, escalator, gas, mechanical or plumbing system, or has erected, constructed, altered, repaired, moved or demolished a building, structure, elevator, escalator, fire protection systems, flammable liquid use or storage, electrical, gas, hazardous materials use or storage, mechanical or plumbing system, or conduct processes which produce hazards to

life and property, in violation of a detailed statement or drawing submitted and permitted there under, shall be guilty of a misdemeanor. Each such person shall be considered guilty of a separate offense for each and every day or portion thereof during which any violation of any of the provisions of this Code is committed or continued, and upon conviction of any such violation such person shall be punished within the limits and as provided by Section 1-1-6 of the General Code of the City of Birmingham, Alabama, 1980.
(Ord. No. 10-112, 8-24-2010; Ord. No. 15-164, 11-30-2015; Ord. No. 16-19, 2-16-2016; Ord. No. 16-89, § 1, 5-27-2016; Ord. No. 16-118, § 1, 6-29-2016; Ord. No. 19-93, § 1, 7-10-2019)

Sec. 7-1-4. Building code amendments.

The provisions of the International Building Code, 2015 Edition, published by International Code Council as amended in sections 7-1-2 and 7-1-3 and herein shall apply to the construction, alteration, repair, equipment, use and occupancy, location, maintenance, removal and demolition, of every building or structure or any appurtenances connected or attached to such buildings or structures.

CHAPTER 4
SPECIAL DETAILED REQUIREMENTS BASED ON USE AND OCCUPANCY

Chapter 4 of the International Building Code is hereby amended by adding the Operating Features for each occupancy classification, as detailed by NFPA 101, 2015 Life Safety Code.

CHAPTER 10

Section 1004.3 of the 2015 IBC Building Code is hereby deleted and a new section 1004.3 is hereby inserted as follows:

CHAPTER 13

Delete Chapter 13 without substitution.

CHAPTER 27

Delete Chapter 27 from the ICC Building Code in its entirety.

1004.3 Posting of occupant load. Every room or space that is assembly occupancy shall have the occupant load of the room or space posted in a conspicuous place, near the main exit or exit access doorway from the room or space. Posted signs shall be of an approved legible permanent design and shall be maintained by the owner or authorized agent.

1010.1.9.8 Sensor release of electrical locks on egress doors.

CHAPTER 31

3107 Signs.

Section 3107 of the 2015 IBC Building Code is hereby deleted and a new section 3107 substituted as follows:

3107.1 Permits.

a) No "Outdoor Advertising Display Sign" shall hereafter be erected, constructed, altered, or maintained except as provided in this Code, until after permit for the same has been issued by the Building Official as specified in Article I and the fee paid as specified in Article V, Fees.

b) Exemption—No permit fee shall be required for a sign advertising property for sale or rent, provided such sign is not over fifteen (15) feet in area and located on the same premises.

3107.2 Signs Projecting over Public Property.

Signs projecting from a building or extending over public property shall maintain a clear height of ten (10) feet above the sidewalk and all such signs shall not extend more than two-thirds the width of the sidewalk measured from the building line.

CHAPTER 32
ENCROACHMENTS INTO THE PUBLIC RIGHT-OF-WAY

3201.1 General.

The provisions of this chapter shall govern the encroachment of structure into public right-of-way.

That certain walls, solar screens, and/or decorative screens shall maintain a clear height of ten (10) feet. The allowable project over public property shall not exceed the following measurements from the building:

Bay windows, porches, balconies, fire escapes - 3 feet.

Curtain walls, cornices, belt courses, sills, plasters, water tables or any decorative feature - 6 inches, except that decorative features used in conjunction with curtain walls may project twelve (12) inches.

Solar screens and/or decorative screens - 2 feet. Where solar screens and/or decorative screens are installed, they shall have no loads imposed other than their own weight.

Upon written request, the Council of the City of Birmingham may grant a special revocable permit for the construction of a bridge or shed across an alley or street connecting two buildings provided the bridge or shed be of Type IIB, Noncombustible Construction. Said bridge or shed shall not interfere with the use and purpose of the public alley or street and shall meet all of the following conditions:

1. The maximum width shall not exceed twenty-five (25) feet.
2. The minimum height above alley or street grade shall be sixteen (16) feet.
3. Separation shall be provided from adjoining buildings by minimum of 2-hour fire-rated walls and 1½-hour fire doors.
4. Openings in the building wall which are 10 feet horizontally or vertically from the walkway shall be protected by approved three-quarter hour fire resistance-rated automatic opening protectives.
5. The maximum height above grade shall be limited to three stories or 40 feet or five stories or 55 feet when sprinklered.

3201.2 Measurement.

Public property shall be maintained clear of any and all obstructions, including among others, posts, and columns, unless approved by the Department of Planning and Engineering. The projection of any structure or portion therefore shall be the distance measured horizontally from the lot line to the outermost point of the projection.

CHAPTER 33
SAFEGUARDS DURING CONSTRUCTION

SECTION 3303

Section 3303 of the IBC is hereby deleted and a new section 3303 is hereby substituted.

SECTION 3303 - MOVING OF BUILDINGS AND DEMOLITION OF BUILDINGS

3303.1 General.

No building or part of any building shall be moved through or across any sidewalk, street, alley, or highway except as provided in the Code of Alabama 1975, or be wrecked, demolished, or otherwise torn down within the City Limits without first obtaining a permit from the Building Official. Failure to obtain the permit is a violation of this Code. Applicants are responsible for complying with State of Alabama Code Act 94-487 which references the locating of underground utilities.

(a) Class I Demolition - The demolition of any building or structure or part thereof of two (2) stories or less and 100,000 cubic feet or less in volume.

(b) Class II Demolition - The demolition of any building or structure or part thereof of more than two (2) stories or more than 100,000 cubic feet in volume.

(c) Building moving permits.

3303.2 Written application must be filed for a building relocation permit.

(a) Any person desiring to move a building shall first file with the Building Official a written application setting forth the following information:

1) Type and kind of building to be moved.
2) The original cost and present assessed value as determined by the county tax assessor of such building.

3) The extreme dimensions of the length, height, and width of the building.

4) Its present location and proposed new location by street numbers, and by metes and bounds, or, if subdivided, by lot, block and subdivision or parcel identification Number.

5) The approximate time such building will be upon the streets and the proposed route that will be taken from present location to new location.

6) Information showing the availability of public liability coverage to the extent hereinafter required.

(b) Any person desiring to wreck, demolish, or otherwise tear down a building or structure or part thereof shall first file with the Building Official a written application setting forth the following information:

1) Type and kind of building to be wrecked, demolished, or otherwise torn down and if partial demolition, detailed description of the portion to be demolished.

2) Extreme dimensions of the length, height, and width of the building.

3) Its present location by street numbers, and by metes and bounds, or, if subdivided, by lot, block, and subdivision or parcel identification number.

4) The present location of the building with relation to streets, sidewalks, and other adjacent public ways.

5) Information showing the availability of public liability coverage to the extent hereinafter required.

6) Environmental Service Permit verifying that the sewer was plugged.

7) Soil Erosion Permit when determined by the building official.

3303.3 Sewers and utilities.

(a) No work shall be commenced to demolish any building or structure until all utilities have been disconnected by the respective utility companies and the building sewer plugged through Jefferson County Environmental Services, inspected and approved. Except, that when it can be proved to the Building Official that the plugging of the sewer is not possible or feasible prior to beginning work, he may give written permission to proceed with the demolition work in such manner and under such provisions as he may determine to be necessary to properly protect the sewer system of the City of Birmingham.

(b) No work shall be commenced to prepare any building for moving until all utilities have been disconnected by the respective utility companies, and no work shall be accomplished except that work necessary to raise and load the building on house moving equipment until the building sewer has been plugged, inspected, and approved through Jefferson County Environmental Services or other authorized agent. In no case shall the building drain be disconnected or broken in such a manner as to allow dirt, debris, or surface water to enter the sewer system of the City of Birmingham. A building being moved shall have the address it is being moved from attached.

(c) Failure to disconnect utilities as required is a violation of this Code.

3303.4 Building official shall reject when.

If, in the opinion of the Building Official, the moving of any building will cause serious injury to persons or property, or serious injury to the streets or other public improvements, or the building to be moved has deteriorated more than twenty-five percent by fire or other element, or the moving of the building will violate any of the requirements of this Code or of the Zoning Regulations of the City, the permit shall not be issued and the building shall not be moved over the streets of the City. Any building being moved for which permit was granted shall not be allowed to remain in or on the streets, alleys, highways, right of way, sidewalks or any property of the city of the City for more than six (6) hours.

3303.5 Bond required.

(a) The Building Official, as a condition precedent to the issuance of a permit to move a building, shall require a bond in the minimum amount of Five Thousand Dollars ($5,000.00), or

an amount as otherwise determined by the Building Official depending on location and size of the structure, to be executed by the applicant desiring such removal permit with corporate surety authorized to engage in the business of writing surety bonds in the State of Alabama. Such bond shall name the City as oblige and shall indemnify the City against any damage caused by the moving of such building to streets, curbs, sidewalks, shade trees, highways, sewers, and any other City property which may be affected by the moving of the building and provide for the cost of moving buildings which are deposited in locations other than the permitted location. Such surety bond shall also be conditioned upon and liable for the strict compliance with the terms of said permit as to the route to be taken and limit of time in which to effect such removal and to clear the lot on which the building was situated of all debris occasioned by its removal, and to repair or compensate for the repair of any damage to City property or public improvements, and to pay said City, as liquidated damages, the amount of Five Hundred Dollars ($500.00) for each and every twenty-four hour period or part thereof such building remains upon a public street, alley, highway, right of way, sidewalk or property of the city or unapproved location in excess of six hours; provided, however, that in lieu of a separate bond for each permit, a bond conditioned as above provided and issued by a corporate surety as hereinabove provided, in an amount of not less than Ten Thousand Dollars ($10,000) may be accepted by the Building Official to cover all such permits issued to the principal named therein during the time such bond remains in force and effect; and provided further that the amount of such bond shall at all times be in an amount which is not less than Five Thousand Dollars ($5,000.00) multiplied by the number of such permits issued to said principal within the immediately preceding thirty (30) days; and provided further that the Building Official may require of the principal an increase in the amount of any bond whenever, in his opinion, additional security is required to protect the City.

(b) The Building Official, as a condition precedent to the issuance of permit to wreck, demolish, or otherwise tear down a building, shall require a bond in the minimum amount of Two Thousand Dollars ($2,000.00) for a single family residence and Ten Thousand Dollars ($10,000) for a commercial structure, to be executed by the applicant desiring such demolition permit with corporate surety authorized to engage in the business of writing surety bonds in the State of Alabama. Such bonds shall name as oblige the City and shall indemnify the City against any damage caused by the demolition of such buildings to streets, curbs, sidewalks, shade trees, highways, sewers, and any other City property which may be affected by the demolition of such buildings. Such surety bond shall also be conditioned upon and liable for strict compliance with the terms of said permit as to the time in which to affect such demolition, and to repair or compensate for the repair of any damage to City property or public improvements, and in clearing all public streets, alleys and highways, and in cleaning and clearing the lot on which the building was demolished, of all debris occasioned thereby; provided, however, that in lieu of a separate bond for each such permit, a bond conditioned as above provided and issued by a corporate surety authorized to write surety bonds in the State of Alabama to cover all such permits issued to the principal named therein during the time such bond remains in force and effect; and provided further that the amount of such bond shall at all times be in an amount which is not less than Two Thousand Dollars ($2,000.00) multiplied by the number of permits issued to said principal within the immediately preceding thirty (30) days; and provided further that the Building Official may require of the principal an increase in the amount of any such bond whenever, in his opinion, additional security is required to protect the City.

(c) Failure to obtain the required bonds is a violation of this Code.

3303.6 Public safety requirements.

(a) Lights Required. Every building which occupies any portion of public property after sundown shall have sufficient lights continu-

ously burning between sunset and sunrise for the protection of the public. Failure to provide the lights will be a violation of this Code.

(b) Number and Location. There shall be a minimum of five (5) red lights placed on each street side of the building; such red lights shall be attached to the building in such a fashion as to indicate extreme width, height, and size. Failure to provide the lights will be violation of this Code.

(c) Escort Flagmen Required. When a building is moved between sunset and sunrise, or when, in the opinion of the Building Official, flagmen are necessary to divert or caution traffic, the person, firm, or corporation moving such building shall employ, at their expense, two flagmen, one of which must be a policeman in uniform having full police power within the City of Birmingham. One flagman must be stationed at the intersections immediately ahead of and behind the building. The flagmen shall remain at these intersections diverting and cautioning traffic from sunset to sunrise. Red lights shall be employed in flagging traffic at night. Failure to provide the flagmen will be a violation of this Code.

(d) Report Required. The person, firm, or corporation having moved a building is hereby required to report the move to the Building Official by 10 o'clock a.m. on the morning after the building is moved or if the Building Official's office is closed, the report must properly identify the building, the time it was placed on the lot or reached the City Limits of Birmingham. Said report shall indicate any and all damages as a result of the moving of the building. It shall be required that this report be confirmed in writing, on forms furnished by the Building Official, within not less than 48 hours after the report is given to the Building Official as herein required, and it shall be duly signed by the persons, firm, or corporation who moved the building and the policeman in uniform who escorted the move. Failure to provide this report as required is a violation of this Code.

(e) Duties of Police Escort. It shall be the duty of the policeman in uniform who escorts any house moved through the streets of the City of Birmingham, to first determine that the person, firm, or corporation moving the building has been issued a valid building permit from the City of Birmingham to move said building, and that it is being moved along the route designated in said permit and that it is being moved within the time limit stipulated on said permit. Failure of the applicant to insure police escort is a violation of this Code.

(f) Minimum Liability Insurance Required. Anything herein to the contrary notwithstanding, no work shall be performed under a permit to move a building, or a permit to wreck, demolish, or otherwise tear down a building requiring Class II demolition permit, during any period of time when there is not in full force and effect a public liability insurance policy written by an insurance company authorized to write policies of liability insurance in the State of Alabama, covering the applicant, and the applicant's servants, agents, and employees, with minimum coverage of One Hundred Thousand Dollars ($100,000.00) for property damage and One Hundred Thousand Dollars ($100,000.00) for personal injury or death of one person and with Two Hundred Fifty Thousand Dollars ($250,000.00) as liability coverage resulting from any one accident. The applicant shall deliver to the Building Official, prior to beginning of any work under any such permit, a Certificate of Insurance showing the existence of such coverage, which Certificate shall contain a provision that the insurance coverage shall not be canceled without at least five (5) days prior notice thereof being given by the insurance company to the Building Official. Failure to obtain and maintain required insurance is violation of this contract.

(g) Lot Preparation. Where a building or structure has been demolished or removed from any lot, it shall be the responsibility of the holder of the demolition or house move permit to repair the lot to a safe and sanitary condition. These repairs shall meet the approval of the Building Official or his agents, and shall include, but not be limited to, the following:

1) Remove all organic material, trash and weeds from the premises.

2) All basements, cavities, pits or other similar conditions shall be filled with inorganic material. All such fill material shall have a minimum cover of 8 inches of earth.

3) All concrete slabs shall be removed and the lot shall be graded to a reasonably smooth finish and filled so that no surface water will stand.

4) Septic Tanks shall be dismantled according to Jefferson County Health Department Regulations.

5) Failure to prepare the lot as required is a violation of this Code.

3303.7 Improvements by owner.

The owner of any house, building, or structure proposed to be moved shall make all necessary improvements required in order for said house, building, or structure to comply with the requirements of this Code within 90 days from the date of the issuance of the moving permit. Extensions of such time as deemed reasonable may be granted by the Building Official upon a showing of delay caused by matters beyond the control of the owner or house mover. The application for the moving permit shall be accompanied by an application for a building permit, accompanied by complete plans and specifications showing the changes or conditions of said house, building, or structure as the same is proposed to be when moving, and all contemplated improvements, signed by the owner or the owner's agent.

3303.8 Unapproved building moves.

Any house, building, or structure moved to an unapproved location will be subject to the emergency procedures provided to the Building Official and subject to the removal or demolition by the City of Birmingham. Costs of such removal may be recovered from salvage of the structure and associated moving equipment, insurance or bonding as required herein. Any contractor performing such moves will be denied any additional moving permits for a period of one year or be subject to Section 114 where each and every day shall be considered a separate violation.

(add Section 3304.2 as follows:)

3304.2 Soil Erosion and Sediment Control.

Construction sites involving grading or excavations shall provide erosion control using filter fabric and silt anchor/gauges properly anchored, to prevent blowout conditions unless otherwise approved by the City Engineer. Filter fabric shall be installed with posts not to exceed 10 Feet on center and placed in a 6" deep trench and backfilled. Anchors/gauges shall be installed between posts and be gauged to clearly indicate correct depth placement. Anchors/gauges shall be self-locking, non-corrosive and constructed with a 2½ - 3½ inch diameter base and a minimum height of 7½ inches.

APPENDIX "D"

Appendix D of the 2015 International Building Code is hereby adopted.

Section D101 of Appendix D is hereby deleted with no substitution.

FIRE DISTRICT BOUNDARY

For the purpose of this Code, the Fire District within the City of Birmingham established by Ordinance is as follows:

Beginning at the intersection of 11th Avenue North and 17th Street North; then East along 11th Avenue to 25th Street North; then South along 25th Street to 10th Avenue North; then East along 10th Avenue to the Red Mountain Expressway; then South along the Red Mountain Expressway to 8th Avenue South; then West along 8th Avenue to 22nd Street South; then South and East along 22nd Street to Highland Avenue Alley to 21st Place South; then South along 21st Place to 15th Avenue South; then West along 15th Avenue to 19th Street South; then North along 19th Street to 12th Avenue South; then West along 12th Avenue to 15th Street South; then North along 15th Street to 11th Avenue South; then West along 11th Avenue to 8th Street South; then North along 8th Street to Interstate 65; then North along Interstate 65 to 8th Avenue North; then East along 8th Avenue

to 17th Street North; then North along 17th Street to 11th Avenue North and the point of beginning.
(Ord. No. 10-112, 8-24-2010; Ord. No. 15-164, 11-30-2015)

Sec. 7-1-5. International Residential Code amendments.

Delete Chapter 11 Energy Efficiency and all references to the codes shall not apply.
(Ord. No. 10-112, 8-24-2010; Ord. No. 15-164, 11-30-2015)

Sec. 7-1-6. International Fuel Gas Code amendments.

Delete section 401.5 of the IFGC, 2015 ed.;

Replace with revised section as follows:

401.5 Identification. All piping 2-PSI and higher shall be marked at the beginning, all ends and not less than 5 feet intervals along the length, designating the gas pressure.

For low pressure piping, other than black steel pipe, exposed piping shall be identified by yellow label marked "GAS" in black letters. The marking shall be spaced at intervals not exceeding 5 feet (1524 mm).
(Ord. No. 10-112, 8-24-2010; Ord. No. 15-164, 11-30-2015)

Sec. 7-1-7. Permit and inspection fees.

In calculating permit fees, the minimum charge for any permit will be no less than $125.00 regardless of the amount hereafter indicated for individual items. Belated billing charges shall be double the regular fee but in no case less than double the minimum indicated above.

Reinspection fees

(When necessitated by faulty materials, equipment, apparatus or workmanship)

Per inspection $125.00

All additional reinspections, each..... $125.00

Address correction $125.00

Consultation fee $150.00

Delayed inspection fee $100.00

Belated billing fee: A belated billing fee shall be a second billing for work or services where more than 30 days have expired since the date of the original fees due notice the original fees due notice $50.00

Weekends or After Hours Inspections: Fees for after-hours or weekend inspections shall be in addition to all other fees. The minimum fee shall be $50.00 for the first hour of portion thereof, plus $50.00 for each additional hour or portion thereof. Travel time will be added to the inspection time. When not in conjunction with normal working hours (weekend/holidays), the minimum fee shall be $300.00 for the first four hours or portion thereof.

Temporary/Permanent Utilities for Commercial Projects:

Required when needed to release meters in order to complete required inspections. This will stay in the contractor's name until final inspection.

Electrical Meter..... $125.00

Gas Meter $125.00

Refunds of the permit fee:

The Director of Finance of the City of Birmingham is authorized to make refund of amounts paid for permits issued under this Code at any time within 90 days after the issuance of said permits provided the director of the department of planning, engineering and permits, or such other department which may be assigned by ordinance of the city council the duty of enforcing this Code, certifies to said director of finance as follows:

a) That the permit for which the refund is requested has been canceled and no work begun there under and the permit was issued in error by the city, not the applicant; or,

b) That the inspection for which a refund of fee theretofore paid is requested, has not been made and is not to be made. Any refund made under the provision of this section shall be subject to an administra-

tive charge of $100.00, which amount shall be deducted from the amount of refund. Unless a written request and the permit holder's copy of the permit has been submitted to the director of the department of buildings and inspection, or such other department which may be assigned by ordinance of the city council the duty of enforcing this Code, within 90 days from the date of issuance of such permit, no refund will be made.

c) **Fire Permits** (see article VII): That the inspection for which a refund of fee theretofore paid is requested, has not been made and is not to be made. Any refund made under the provision of this section shall be subject to an administrative charge which shall be the fire permit fee as set out in article VII, fire permit fees, which amount shall be deducted from the amount of refund. A written request and the permit holder's copy of the permit has to be submitted to the fire official within 90 days from the date of issuance of such permit, or no refund will be made.

A plan review fee shall also be required when plans are required to be reviewed before permit issuance. Plan review fees are due at the time of application.

Plan Review Fee Schedule Commercial Work	
Valuation	**Fee**
$0—$10,000.00	$150.00
$10,001.00—$50,000.00	$350.00
$50,001.00—$100,000.00	$700.00
$100,001.00	$700.00 Plus $1.50 for each $1000.00 of the estimated value in excess of $100,001.00

Revised Plans

A minimum fee of $125.00 for a maximum of three pages, plus $20.00 for each additional page shall be paid for the submittal of revised plans after a permit is issued and shall be in addition to any other required fees.

Investigations:

For investigations or inspections necessary to determine compliance with other codes and ordinances of the City of Birmingham when required by law and a fee schedule is not otherwise established a minimum fee of $200.00.

Records Research: $100.00 minimum fee plus $50.00 per hour or part thereof after, where requests require research of multiple records or archives that will require significant time for investigation, identification, compilation and production of records.

Duplicate Certificate of Use & Occupancy

For the issuance of any duplicate Certificate of Use & Occupancy.... $150.00

BUILDING PERMIT FEES:

Building permit fees shall be determined at a rate of $9.50 per $1,000.00 valuation. This does not include other fees required by other departments or agencies. The applicant shall provide an estimated permit value at the time of making application. New projects and additions total project costs are paid by the general contractor. General contractors shall provide a list of subcontractors whose fees are included in the building permit value for new buildings and additions. Trades listed as covered under the general contractor will only incur a processing fee at time of their permit issuance. Alterations and repairs require all trades to pay fees based on the value of their work. Permanent systems and permanent equipment require separate review and permitting. Grading work shall be permitted according to title 4, chapter 7 of the General Code of the City of Birmingham.

NOTE:

An additional fee in the amount of $1.00 per $1,000.00 valuation shall be collected on any nonresidential construction building permit issued by the city and remitted to

the Division of Construction Management of the Alabama Department of Finance, as required by Ala. Code, 1975, § 41-4-413, for the state Craft Training Fund.

BUILDING PERMIT FEE SCHEDULE

Heating apparatus, incinerators, boilers burning solid or liquid fuel and air conditioners, or evaporator air coolers, per $1,000.00 valuation	$9.50
Awnings, per $1,000.00 valuation	$9.50
Suppression and Fire Detection Systems, per $1,000.00 valuation	$9.50
Fire Sprinkler Systems, Fuel Tanks, Fire Alarm Systems, and Fire Extinguishing Systems	

Gasoline Dispensers

Permit to install a gasoline dispenser/ meter	$100.00

Reinspection fee on a new gasoline dispenser installation shall be the same as the cost of the original permit.

Signs Permit fee for all signs listed include both an application fee and a sign face fee. The total fee amount for any sign is the sum of the two component fee items:

A. **Sign Application Fee**

1.	To erect a sign of any type except a roof sign or outdoor advertising sign (off-premises billboard)	$175.00
2.	To erect a roof sign	$250.00
3.	To erect an outdoor advertising sign (off-premises billboard)	$400.00
4.	Reader board, message board (any sign with rolling or static script), animated, or video display:	
	a. Additional fee per sign face	$100.00
	b. Additional fee per sign face for off-premises billboard	$300.00

Plus

B. **Sign Face Fee**, per square foot of sign face $1.50

C. **Annual Fees**

Annual fees must be paid by January 31 of each year.

Off Premises Sign Annual Fee	$200.00

Portable Ground Signs. An annual fee of $100.00 shall be paid for all portable signs and the fee for the first year shall be paid at the time of permit issuance and shall be in addition to all other fees

Moving of Buildings

Permit to move a building through or across any public street, alley, or highway	$400.00

Fees for Certificates

Certificate of Occupancy	$150.00
Partial Certificate of Occupancy	$150.00
Certificate of Completion	$150.00
Temporary Certificate of Occupancy	$150.00

New certificate of use and occupancy

Applications for a new certificate of use and occupancy when the occupancy of any building or structure is changed or when a building or structure has been condemned by city council shall require the payment of a $300.00 inspection fee at the time of application unless a building permit for alterations exceeding $10,000.00 is issued.

Tents

Permits for a temporary commercial or assembly tent - 30-day maximum	$150.00

Parking Lots

For the installation of commercial parking lots and off-street parking areas when the installation is not included as a part of an active building permit, per $1,000.00 valuation: $9.50 per $1,000.00 valuation

(Exception: off-street parking areas for one and two family dwellings.)

Temporary structures, other than for construction, $125.00 for each six-month period of approval. Construction trailers as part of a site clearing or permitted construction projects do not require a separate temporary structure permit but utilities for the trailer must be permitted, as provided herein.

Partial permits (Article I - Sec. 103.4.3) ..... $50.00 plus the fee for the Building permit.

Demolition Permit

Class I Demolition $150.00

Class II Demolition, per 1,000 cubic feet - ($750.00 minimum) $0.50

Issuance Fee for Trade Permits under a General Building Permit for New Construction or Addition $125.00

PLUMBING PERMIT FEES, per $1000.00 valuation for alterations . $9.50

Minimum permit fee $125.00

GAS PERMIT FEES, per $1000.00 valuation for alterations $9.50

Minimum permit fee $125.00

ELECTRICAL PERMIT FEES, per $1000.00 valuation for alterations . $9.50

Minimum permit fee $125.00

MECHANICAL PERMIT FEES, per $1000.00 valuation for alterations $9.50

Minimum permit fee $125.00

ELEVATOR PERMIT FEES

New installations ..... **Per State Regulations**

Erection of Personnel Hoists ... $100.00

Reinspection of Personnel Hoist $100.00

Barricade permit fee (other than excavation) $200.00

Design Review Fees

Historic Preservation Review $35.00

Design Review in Commercial Revitalization District $35.00

(Ord. No. 10-112, 8-24-2010; Ord. No. 15-164, 11-30-2015; Ord. No. 16-19, 2-16-2016; Ord. No. 16-118, § 2, 6-29-2018; Ord. No. 19-93, § 2, 7-10-2019; Ord. No. 19-96, § 1, 7-24-2019)

Sec. 7-1-8. Fire Code and Life Safety Code amendments.

The provisions of the International Fire Code, 2015 Edition, published by the International Code Council and the NFPA 101-Life Safety Code, 2015 Edition, as described in this section and section 7-1-4 of this Code, published by the National Fire Protection Association, as amended herein shall apply to all buildings, structures, vehicles, premises, conditions, the construction, alteration, repair, equipment, use and occupancy, location, maintenance, removal and demolition, of every building or structure or any appurtenances connected or attached to such buildings or structures.

INTERNATIONAL FIRE CODE AMENDMENTS

Chapter 1

Is hereby deleted and is substituted with Article I, Part Two of this Code, and the following sections:

F101 - GENERAL

F101.1 Scope. This Code establishes regulations affecting or relating to structures processes, premises and safeguards regarding:

1. The hazard of fire and explosion arising from the storage, handling or use of structures, materials or devices;
2. Conditions hazardous to life, property or public welfare in the occupancy of structures or premises;

3. Fire hazards in the structure or on the premises from occupancy or operation;
4. Matters related to the construction, extension, repair, alteration or removal of fire suppression or alarm systems.
5. Conditions affecting the safety of fire fighters and emergency responders during emergency operations.

F101.2 Intent. The purpose of this Code is to establish the minimum requirements consistent with nationally recognized good practice for providing a reasonable level of life safety and property protection from the hazards of fire, explosion or dangerous conditions in new and existing buildings, structures and premises and to provide safety to fire fighters and emergency responders during emergency operations.

F101.3 Inspection authority. The fire code official is authorized to enter and examine any building, structure, marine vessel, vehicle or premises for the purpose of enforcing this Code.

F101.4 Inspections. The fire code official is authorized to conduct such inspections as are deemed necessary to determine the extent of compliance with the provisions of this Code and to approve reports of inspection by approved agencies or individuals. All reports of such inspections shall be prepared and submitted in writing for review and approval. Inspection reports shall be certified by a responsible officer of such approved agency or by the responsible individual. The fire code official is authorized to engage such expert opinion as deemed necessary to report upon unusual, detailed or complex technical issues subject to the approval of the governing body.

F102 - MAINTENANCE

F102.1 Maintenance of safeguards. Whenever or wherever any device, equipment, system, condition, arrangement, level of protection, or any other feature is required for compliance with the provisions of this Code, or otherwise installed, such device, equipment, system, condition, arrangement, level of protection, or other feature shall thereafter be continuously maintained in accordance with this Code and applicable referenced standards.

F102.2 Testing and operation. Equipment requiring periodic testing or operation to ensure maintenance shall be tested or operated as specified in this Code.

F102.2.1 Test and inspection records. Required test and inspection records shall be available to the fire code official at all times or such records as the fire code official designates shall be filed with the fire code official.

F102.2.2 Re-inspection and testing. Where any work or installation does not pass an initial test or inspection, the necessary corrections shall be made so as to achieve compliance with this Code. The work or installation shall then be resubmitted to the fire code official for inspection and testing.

F102.3 Supervision. Maintenance and testing shall be under the supervision of a responsible person who shall ensure that such maintenance and testing is conducted at specified intervals in accordance with this Code.

F102.4 Rendering equipment inoperable. Portable or fixed fire-extinguishing systems or devices and fire-warning systems shall not be rendered inoperative or inaccessible except as necessary during emergencies, maintenance, repairs, alterations, drills or prescribed testing.

F102.5 Owner/occupant responsibility. Correction and abatement of violations of this Code shall be the responsibility of the owner. If an occupant creates, or allows to be created, hazardous conditions in violation of this Code, the occupant shall be held responsible for the abatement of such hazardous conditions.

F102.6 Overcrowding. Overcrowding or admittance of any person beyond the approved capacity of a building or a portion thereof shall not be allowed. The fire code official, upon finding any overcrowding conditions or obstructions in aisles, passageways or other means of egress, or upon finding any condition which constitutes a life safety hazard, shall be authorized to cause the event to be stopped until such condition or obstruction is corrected.

F103 - PERMITS

A person, firm or corporation shall not maintain, store or handle materials, or conduct processes which produce conditions hazardous to life or property, or install equipment used in connection with such activities without first obtaining a permit from the Fire Official, this includes, but not limited to the utilization of fireworks, pyrotechnics, open flames, gas, flammable liquids or other products that produce open flames ("regulated materials").

A person, firm or corporation shall not install, alter, or remove a fire protection system in the City of Birmingham, or cause the same to be done, without first obtaining a permit from the Building or Fire Official. (See Article I, Part Two, Section 103, Construction Permits)

F103.1 General

F103.1.1 Fire Department Permits for demonstrations, special events and exhibits as described in section F104.2 and required by this Code shall be obtained from the Fire Code Official. Permit fees, if any, shall be paid prior to issuance of the permit. Issued permits shall be kept on the premises at all times and shall be readily available for inspection by the Fire Code Official.

F103.1.2 Such permit shall not be a substitute for any license required by law. A fire code permit issued shall not be construed as authority to violate, cancel, alter, or set aside any of the provisions of this Code, nor shall such issuance of a life safety permit prevent the Fire Official from thereafter requiring a correction of violations of this Code. Every fire code permit issued shall become invalid unless the use authorized by such fire code permit is commenced within six months after its issuance, or if the use authorized by such life safety permit is suspended or abandoned for a period of six months after the time the use is commenced.

F103.1.3 A permit shall not be transferable and any change in use or occupancy of a building or premises shall require a new permit. A permit shall continue until revoked or for such a period of time as designated at time of issuance.

F103.1.4 A permit shall be obtained for all conditions described in this Code.

F103.2 Conditions of Permits

F103.2.1 The Fire Official shall act upon an application for permit without unreasonable delay and when issued such permit shall remain on the premises designated therein and shall at all times be subject to inspection.

F103.2.2 Whenever the provision of this Code requires more than one permit for the same establishment or location, such permits may be combined into a single permit, but each provision shall be listed in the permit.

F103.3 Compliance with Permit

All permits issued under this Code shall require that the applicant, his agents and employees shall carry out the proposed activity in compliance with all the requirements of this Code and any other laws or regulations applicable thereto, whether specified in the permit or not in complete accordance with the approved plan and application.

F103.4 Revocation of Permit

The Fire Official may revoke a permit issued under this Code when it is found by inspection or otherwise that any one of the following conditions exists:

1. The permit is used for a location of establishment other than that for which it was issued.
2. The permit is used for a condition or activity other than that listed in the permit
3. Conditions and limitations set forth in the permit have been violated
4. There have been any false statements or misrepresentation as to a material fact in the application for the permit or plans submitted or a condition of the permit.
5. The permit is used by a different person or firm other than the name for which it was issued.

F104 FEES

F104.1 Schedule of Permit Fees

A permit fee shall be paid for all permits as required in accordance with the schedules as established in this Code.

F104.2 Permit Application and Fees

Applications and fees for permits and inspections (excluding construction permits and construction inspections) required by Article VI of this Code shall be obtained from the Fire Prevention Division office of the Birmingham Fire and Rescue Service Department. The application must be accompanied by payment of the required compensation set forth herein prior to the issuance of a permit.

Demonstrations, Special Events and Exhibits

A permit is required for a person to organize or hold, assist in organizing or holding or to take part in or participate in any public demonstration, special event, exhibit, or other activity that utilizes or allows to be utilized any "regulated material" listed as follows: Class B or Class C explosives or fireworks, candles, open flames, gas, flammable liquids or other products that produce open flames.

1. A permit must be obtained a minimum of seven (7) days prior to the use of any regulated materials listed in this section.
2. Events utilizing "regulated material" shall require the on-site presence of fire inspectors.
3. All cooking booths, conventions, exhibits, demonstrations, or special events shall be inspected by the Fire Official to verify compliance with this Code.

Fireworks, Pyrotechnics, Special Effects Permit (FW)

A permit is required for all fireworks, pyrotechnics, open flames or special effects displays within the City of Birmingham.

Fire Bonfire Permit (FB)

No person shall kindle or maintain any bonfire or authorize any such fire to be kindled or maintained without a permit. Bonfires under this permit shall be an open fire for ceremonial purposes only.

Fire Hydrant Use Permission (FH)

Written permission (permit) to use a fire hydrant must be obtained from the Fire Official, which is a prerequisite to obtaining a permit from Birmingham Water Works.

F104.3 Fees for Hydrant Flow Tests (FT)

A permit fee shall be paid for a hydrant flow test requested by any person, firm or corporation.

Chapter 5

Add the following subsections to Section 507 (pg. 71) of the 2015 IFC:

F507.5.7 When the construction of a new subdivision, industrial or commercial complex, or other new construction makes the installation of public fire hydrants necessary to meet adequate fire protection requirements, as determined by the Fire Official, the city may assess the actual cost of such installations, including the first three years rental fees, to the individual or entity responsible for the new construction. The said installation fee shall be paid directly to the Water Authority governing the area of construction. The rental fees shall be paid directly to the City of Birmingham.

Chapter 9

Replace subsection 901.4.5 (pg. 103) of the 2015 IFC with the following:

F901.4.4 Appearance of equipment. Any device that has the physical appearance of life safety or fire protection equipment but that does not perform that life safety or fire protection function shall be prohibited.

Exception: A property owner and/or occupant may request that a system be removed or vacated. This request could be based on a change in the use of a building that the installed system is no longer a requirement according to the City Adopted Codes such as: (1) a complete change of occupancy; (2) the fire hazard has been reduced; or (3) the life safety hazard has changed. This could also apply to older buildings where the system is dilapidated

and never maintained in an operable condition. The Fire Official has the authority to approve or disapprove such vacations.

Add the following subsections to Section 907:

F907.3.1 Group A. A manual fire alarm system shall be installed in accordance with NFPA 72 in all existing Group A occupancies with an occupant load of 300 or more. Portions of Group E occupancies occupied for assembly purposes shall be provided with a fire alarm system as required for the Group E occupancy.

Exception 1: Manual fire alarm boxes are not required where the building is equipped throughout with an automatic sprinkler system and the alarm notification appliances will activate upon sprinkler water flow.

Exception 2: Group A occupancies used primarily for worship with an occupant load of 999 or less shall not be required to comply with this section.

F907.3.2(a) System initiation in Group A occupancies with an occupant load of 1,000 or more. Activation of the fire alarm in existing Group A occupancies with an occupant load of 1,000 or more shall initiate a signal using an emergency voice/alarm communications system in accordance with NFPA 72.

Exception: Where approved, the prerecorded announcement is allowed to be manually deactivated for a period of time, not to exceed 3 minutes, for the sole purpose of allowing a live voice announcement from an approved, constantly attended location.

F907.3.2(b) Emergency power. Emergency voice/alarm communications systems shall be provided with an approved emergency power source.

F907.3.3 A fire alarm system in accordance with NFPA 72 that complies with section F907.3.2(a) and (b) shall be installed in existing Group A occupancies used primarily for worship with an occupant load of 1000 or more.

Chapter 34

Add the following subsection to Section 3406:

F3406.5.1.6(a) Bulk storage and transfer facilities that have processing, blending, loading and transferring racks beneath a canopy shall be provided with an automatic fire protection system and/or systems compatible with the hazard.

APPENDIX B is adopted in its entirety.

APPENDIX C is adopted in its entirety.

APPENDIX D is adopted in its entirety.

APPENDIX F is adopted in its entirety.

APPENDIX H is adopted in its entirety.

APPENDIX I is adopted in its entirety.

APPENDIX M is adopted in its entirety.

AMENDMENTS TO NFPA 101 LIFE SAFETY CODE 2015

Chapter 24

Delete Chapter 24 One- and Two- Family Dwellings in its entirety without substitution.

Chapter 2, Section 2.2

Delete NFPA 1 Uniform Fire Code
(Ord. No. 10-112, 8-24-2010; Ord. No. 15-164, 11-30-2015; Ord. No. 16-19, 2-16-2016)

Sec. 7-1-9. Fire permit fees.

Fire Hydrant Use	$125.00
Bonfires	$100.00
Fireworks, Pyrotechnics, Special Effects Permit	$100.00
Each additional day - same event	$25.00
Hydrant flow tests, per hydrant	$125.00
Flow Test Calculations	$100.00
Fuel tank removal (underground and aboveground), per tank	$200.00
Weekend, and After Hours Inspections:	See Article V

Demonstrations, Special Events or Exhibit Inspections:

$325.00 shall be paid for the first four hours or portion thereof, plus an additional $75.00 for each additional hour or portion thereof thereafter, during the course of the public demonstration, special event or exhibit at which regulated materials are to be utilized. The length of inspection time shall be determined based upon the length of the public event subject to this section at the time of the application. Travel time will be added to the inspection time.

Re-Inspection Fees

Existing Occupancies: whenever more than two (2) re-inspections are required to assure compliance with original fire inspection, a permit shall be required	$75.00
New Construction and Permits issued under FS, FF, FA, FE or FI: re-inspection due to faulty materials, equipment, apparatus, or workmanship.....	See Article V

Records and Documents

Copy of Records/Reports, per copy .	$10.00
Pages 1 through 25, per page ...	$2.00
Pages 26 and above, per page ...	$1.00
Copy of Photos, per photo	$15.00

(Ord. No. 10-112, 8-24-2010; Ord. No. 15-164, 11-30-2015; Ord. No. 16-19, 2-16-2016; Ord. No. 16-118, § 3, 6-29-2016; Ord. No. 19-93, § 3, 7-10-2019)

Sec. 7-1-10. Property Maintenance Code amendments.

The provisions of the International Property Maintenance Code, 2015 edition, as published by the International Code Council, as amended is hereby adopted, and subject to the revisions as set herein shall apply to regulating and governing the conditions and maintenance of all property, buildings and structures.

The City of Birmingham specifically adopts the Boarding Standard, Appendix A of the International Property Maintenance Code, Sections A-101 through A104.

INTERNATIONAL PROPERTY MAINTENANCE CODE AMENDMENTS

The following subsections under each Chapter of the 2015 Edition of the International Property Maintenance Code are hereby deleted as set forth in this article and substituted as follows:

Chapter 1 Scope and Administration

101.1 Title. These regulations shall be known as the International Property Maintenance Code of The City of Birmingham, Alabama, hereinafter referred to as "this Code."

103.1 General. The Department of Community Development of the City of Birmingham shall be responsible for property maintenance inspections and other duties as provided in this Code.

103.2 Appointment. The Director of the Department of Community Development, as appointed by the Mayor of the City of Birmingham, shall be designated as the Property Maintenance Code Official and shall have all of the authority and carry out all of the duties of the Code Official under this Code.

103.3 Deputies. The Code Official may designate as his deputy(s) an employee(s) of the Department of Community Development, who may be assigned by the Director the duty of enforcing this Code and other such powers as delegated by the Code Official.

103.5. Fees. Any fees for services and activities associated with enforcement of this article shall be established by resolution or ordinance by the Birmingham City Council.

106.3 Prosecution of violation. Any person, firm, corporation or agent failing to comply with a notice of violation or order served in accordance with Section 107 shall be guilty of a misdemeanor. The Code Official is authorized to institute appropriate proceedings at law or in equity to restrain, correct or abate such violation or to require the removal or termination of the unlawful occupancy of the structure in violation of the provision of this Code or of the order or direction made pursuant thereto. Any action taken by the authority having jurisdiction on such premises shall be charged against the real estate upon which the structure is located and shall be a lien upon such real estate.

106.4 Violation penalties. Any person, firm, corporation or agent who shall violate a provision of this Code, or fail to comply therewith, or with any of the requirements thereof, shall be guilty of a misdemeanor. Each such person shall be considered guilty of a separate offense for each and every day or portion thereof during which any violation of any of the provisions of this Code is committed or continued, and upon conviction of any such violation such person shall be punished within the limits and as provided by Section 1-1-6 of the General Code of the City of Birmingham, Alabama.

Section 111 of the 2015 International Property Maintenance Code is deleted and substituted, in full, as follows:

111 Appeal. Any person directly affected by a decision of the Code Official or a notice or order issued under this Code shall have the right to appeal to the Construction Board of Adjustment and Appeals, created pursuant to the most recent of adoption of technical codes for the City, as amended. An application for appeal shall be based on a claim that the true intent of this Code or the rules legally adopted thereunder have been incorrectly interpreted, the provisions of this Code do not fully apply, or the requirements of this Code are adequately satisfied by other means.

112.4 Failure to comply. Any person who shall continue any work after having been served with a stop work order, except such work as that person is directed to perform to remove a violation or unsafe condition, shall be liable to a fine of not less than Fifty Dollars ($50.00) or more than Five Hundred Dollars ($500.00).

Chapter 3 General Requirements

302.4 Weeds. All premises and exterior property shall be maintained free from weeds or plant growth in excess of Ten (10) inches. All noxious weeds shall be prohibited. Weeds shall be defined as all grasses, annual plants and vegetation, other than trees or shrubs provided; however, this term shall not include cultivated flowers and gardens.

Upon failure of the owner or agent having charge of a property to cut and destroy weeds after service of a notice of violation, they shall be subject to prosecution in accordance with Section 106.3 and as prescribed by the authority having jurisdiction. Upon failure to comply with the

notice of violation, any duly authorized employee of the jurisdiction or contractor hired by the jurisdiction shall be authorized to enter upon the property in violation and cut and destroy the weeds growing thereon, and the costs of such removal shall be paid by the owner or agent responsible for the property.

302.7 Accessory structures. All accessory structures, including detached garages, fences and walls, shall be maintained structurally sound and in good repair. The permissible height of all fences shall conform to the building code and zoning ordinance of the city.

304.14 Insect screens. Every door, window and other outside opening required for ventilation of habitable rooms, food preparation areas, food service areas or any areas where products to be included or utilized in food for human consumption are processed, manufactured, packaged or stored shall be supplied with approved tightly fitting screens of not less than 16 mesh per inch (16 mesh per 25 mm), and every screen door used for insect control shall have a self-closing device in good working condition. Exception: Screens shall not be required where other approved means, such as air curtains or insect repellent fans, are employed.

Exception: Dwellings or dwelling units containing central air conditioning equipment for mechanically ventilating the building are not required to have screens on door or window openings. Window type air conditioners or sufficient capacity to adequately cool and ventilate the dwelling or dwelling unit may be included in this exception.

Chapter 4 Light, Ventilation and Occupancy Limitations

402.1 Habitable spaces. Every habitable space shall have at least one window of approved size facing directly to the outdoors or to a court. The minimum total glazed area for every habitable space shall be 8 percent of the floor area of such room. Wherever walls or other portions of a structure face a window of any room and such obstructions are located less than 3 feet (914 mm) from the window and extend to a level above that of the ceiling of the room, such window shall not be deemed to face directly to the outdoors nor to a court and shall not be included as contributing to the required minimum total window area for the room.

Exception: Where natural light for rooms or spaces without exterior glazing areas is provided through an adjoining room, the unobstructed opening to the adjoining room shall be at least 8 percent of the floor area of the interior room or space, but not less than 25 square feet (2.33 m^2). The exterior glazing area shall be based on the total floor area being served.

Chapter 6 Mechanical and Electrical Requirements

602.3 Heat supply. Every owner and operator of any building who rents, leases or lets one or more dwelling units or sleeping units on terms, either expressed or implied, to furnish heat to the occupants thereof shall supply heat during the period from September 1st to May 31st to maintain a temperature of not less than 68°F (20°C) in all habitable rooms, bathrooms and toilet-rooms.

Exceptions:

1. When the outdoor temperature is below the winter outdoor design temperature for the locality, maintenance of the minimum room temperature shall not be required provided that the heating system is operating at its full design capacity. The winter outdoor design temperature for the locality shall be as indicated in Appendix D of the International Plumbing Code.

2. In areas where the average monthly temperature is above 30°F (-1°C) a minimum temperature of 65°F (18°C) shall be maintained.

602.4 Occupiable work spaces. Indoor occupiable work spaces shall be supplied with heat during the period from September 1st to May 31st to maintain a temperature of not less than 65°F (18°C) during the period the spaces are occupied.

Exceptions:

1. Processing, storage and operation areas that require cooling or special temperature conditions.
2. Areas in which persons are primarily engaged in vigorous physical activities.

(Ord. No. 15-164, 11-30-2015; Ord. No. 16-89, § 2, 5-27-2016)

Secs. 7-1-11—7-1-100. Reserved.

Division 2. Fire Permits

Sec. 7-1-101. Fire zones.

(a) *Fire Zone Number 1.*

(1) *Downtown.* Beginning at the intersection of 11th Avenue North and 17th Street North; thence east along 11th Avenue to 25th Street North; thence south along 25th Street to 10th Avenue North; thence east along 10th Avenue to 32nd Street North; thence south along 32nd Street to 1st Avenue North; thence east along 1st Avenue to a point where 38th Street would intersect if extended northward from 2nd Avenue South; thence south along said extension of 38th Street and 38th Street South to 6th Avenue South; thence west along 6th Avenue to the Red Mountain Expressway; thence south along the Red Mountain Expressway to 8th Avenue South; thence west along 8th Avenue to 22nd Street South; thence south and east along 22nd Street to Highland Avenue; thence south along Highland Avenue to 21st Way South; thence south along 21st Way to Highland Avenue Alley; thence west along Highland Avenue Alley to 21st Place South; thence south along 21st Place to 15th Avenue South; thence west along 15th Avenue to 19th Street South; thence north along 19th Street to 12th Avenue South; thence west along 12th Avenue to 15th Street South; thence north along 15th Street to 11th Avenue South; thence west along 11th Avenue to 8th Street South; thence north along 8th Street to Interstate 65; thence north along Interstate 65 to 8th Avenue North; thence east along 8th Avenue to 17th Street North; thence north along 17th Street to 11th Avenue North and the point of beginning.

(2) *Eastwood.* Beginning at the intersection of Oporto Madrid Boulevard and Montclair Road; thence north along Oporto Madrid Boulevard to Crestwood Boulevard; thence west along Crestwood Boulevard to the west line of section 26, Township 17 South, Range 2 West; thence north along the west line of said section 26-17-2 and the west line of section 23, Township 17 South, Range 2 West to Interstate 20; thence southeast along Interstate 20 to Crestwood Boulevard; thence east along Crestwood Boulevard to Montclair Road; thence southwest along Montclair Road to Oporto Avenue and the point of beginning.

(3) *Roebuck Shopping Center.* Beginning at the point of intersection of Red Lane Road, Parkway East and Medford Road; thence east along Medford Road to the west line of Block 1 Brookhurst Survey; thence south along the west line of Block 1 Brookhurst Survey and said line if extended to Gadsden Highway; thence west along Gadsden Highway to Parkway East; thence southwest along Parkway East to Roebuck Boulevard; thence west along Roebuck Boulevard to the southwest corner of Lot 1 Engels Subdivision; thence northwest along the southwest line of said Lot 1 to its northwest corner; thence northeast along the northwest line of said Lot 1 to the west line of the east one-half of the northwest quarter of section 1, Township 17 South, Range 2 west; thence north along said west line to a point where Odell Drive would intersect if extended westerly; thence east along said extension and Odell Drive to the west line of Lot 1-A Alma J. Loveless Addition to Huffman; thence north along the west line of Lots 1-A and 5-A Alma J. Loveless Addition to Huffman to Red

Lane Road; thence east along Red Lane Road to Parkway East and the point of beginning.

(4) *Five Points West.* Beginning at the intersection of Warrior Road and Avenue V Ensley; thence east along Warrior Road to Court W Ensley; thence north along Court W to the intersection of Ensley Avenue and 31st Street Ensley; thence east along 31st Street to Avenue X Ensley; thence south along Avenue X to Bessemer Road; thence west along Bessemer Road to Avenue W Ensley; thence south along Avenue W to the Seaboard Coastline Railroad; thence west along the Seaboard Coastline Railroad to Court V Ensley; thence north along Court V to 47th Street Ensley; thence west along 47th Street to Avenue V Ensley; thence north along Avenue V to Warrior Road and the point of beginning.

(5) *North Birmingham.* Beginning at the intersection of 33rd Avenue North and 25th Street North; thence east along 33rd Avenue to the northeast corner of Lot 7, Block 142 of the North Birmingham Survey; thence south parallel to 27th Street North to 31st Avenue North; thence east along 31st Avenue to 28th Street North; thence south along 28th Street to the Louisville and Nashville Railroad; thence west along the Louisville and Nashville Railroad to 24th Street North; thence north along 24th Street to 30th Avenue North; thence east along 30th Avenue to 25th Street North; thence north along 25th Street to 33rd Avenue North and the point of beginning.

(6) *Ensley.* Beginning at the intersection of 24th Street Ensley and Avenue C Ensley; thence east along Avenue C to 18th Street Ensley; thence south along 18th Street to Avenue D Ensley; thence east along Avenue D to 17th Street Ensley; thence south along 17th Street to Avenue G Ensley; thence west along Avenue G to 18th Street Ensley; thence south along 18th Street to Avenue L Ensley; thence west along Avenue L to 20th Street Ensley; thence north along 20th Street to Avenue H Ensley; thence west along Avenue H to 21st Street Ensley; thence north along 21st Street to Avenue F Ensley; thence west along Avenue F to 24th Street Ensley; thence north on 24th Street to Avenue C Ensley and the point of beginning.

(b) *Fire Zone Number 2.* Fire Zone Number 2 includes all of the territory of the city which is not embraced within fire zones numbered one. (Code 1980, § 7-1-10)

Secs. 7-1-102—7-1-210. Reserved.

ARTICLE B. PROPERTY MAINTENANCE CODE OF THE CITY OF BIRMINGHAM 2014*

Division 1. Generally

Sec. 7-1-211. Property maintenance code adopted.

The provisions of the International Property Maintenance Code, 2009 edition, as published by the International Code Council and as amended in this article, are hereby adopted by reference and incorporated herein as if fully set out, and

*__Editor's note—__Ord. No. 14-47, adopted by the Council on March 25, 2014, and approved by the Mayor on April 1, 2014, repealed the former Art. B, Divs. 1—9, and enacted a new Art. B as set out herein. The former Art. B pertained to similar subject matter and derived from Code 1964, §§ 25-51, 25-58, 25-59, 25-61, 25-62, 25-64—25-71, 25-73—25-75, 25-77—25-82, 25-87-25-93, 25-95-25-97, 25-99-25-106, 25-108—25-110, 25-112—25-120, 25-122—25-125, 25-127—25-135, 25-137, 25-138; Code 1980, §§ 7-1-21, 7-1-22, 7-1-24, 7-1-31—7-1-37, 7-1-51—7-1-63, 7-1-71—7-1-77, 7-1-91—7-1-104, 7-1-111—7-1-116, 7-1-131—7-1-140, 7-1-151—7-1-164, 7-1-171—7-1-176; Ord. No. 77-152, Aug. 25, 1977; Ord. No. 77-153, Aug. 25, 1977; Ord. No. 77-154, Aug. 25, 1977; Ord. No. 77-155, Aug. 25, 1977; Ord. No. 77-156, Aug. 25, 1977; Ord. No. 77-157, Aug. 25, 1977; Ord. No. 77-158, Aug. 25, 1977; Ord. No. 77-159, Aug. 25, 1977; Ord. No. 77-160, Aug. 25, 1977; Ord. No. 77-163, Aug. 25, 1977; Ord. No. 77-166, Aug. 25, 1977; Ord. No. 77-168, Aug. 25, 1977; and Ord. No. 79-57, 4-17-1979.

State law references—Adoption by municipalities, Code of Ala. 1975, § 41-9-166; minimum housing standards and regulation of unsafe buildings, Code of Ala. 1975, §§ 11-53-1 through 11-53-4.

shall apply to regulating and governing the conditions and maintenance of all property, buildings and structures.
(Ord. No. 14-47, 4-1-2014)

Secs. 7-1-212—7-1-280. Reserved.

Division 2. Property Maintenance Code Amendments

Sec. 7-1-281. International Property Maintenance Code amendments.

The following subsections under each chapter of the 2009 edition of the International Property Maintenance Code are hereby deleted as set forth in this article and substituted as follows:

CHAPTER 1
SCOPE AND ADMINISTRATION

Replace the following subsection 101.1 Title with the following:

101.1 Title. These regulations shall be known as the International Property Maintenance Code of The City of Birmingham, Alabama, hereinafter referred to as "this Code."

Replace the following subsection 103.5 Fees with the following:

103.5. Fees. Any fees for services and activities associated with enforcement of this article shall be established by resolution or ordinance by the Birmingham City Council.

Replace the following subsection 112.4 Failure to comply with the following:

112.4 Failure to comply. Any person who shall continue any work after having been served with a stop work order, except such work as that person is directed to perform to remove a violation or unsafe condition, shall be liable to a fine of not less than $50.00 or more than $500.00.

CHAPTER 3
GENERAL REQUIREMENTS

Replace the following subsection 302.4 Weeds with the following:

302.4 Weeds. All premises and exterior property shall be maintained free from weeds or plant growth in excess of ten inches. All noxious weeds shall be prohibited. Weeds shall be defined as all grasses, annual plants and vegetation, other than trees or shrubs; provided, however, this term shall not include cultivated flowers and gardens.

Upon failure of the owner or agent having charge of a property to cut and destroy weeds after service of a notice of violation, they shall be subject to prosecution in accordance with section 106.3 and as prescribed by the authority having jurisdiction. Upon failure to comply with

the notice of violation, any duly authorized employee of the jurisdiction or contractor hired by the jurisdiction shall be authorized to enter upon the property in violation and cut and destroy the weeds growing thereon, and the costs of such removal shall be paid by the owner or agent responsible for the property.

Replace the following subsection 302.7 Accessory structures with the following:

302.7 Accessory structures. All accessory structures, including detached garages, fences and walls, shall be maintained structurally sound and in good repair. The permissible height of all fences shall conform to the building code and zoning ordinance of the city.

Replace the following subsection 304.14 Insect screens with the following:

304.14 Insect screens. Every door, window and other outside opening required for ventilation of habitable rooms, food preparation areas, food service areas or any areas where products to be included or utilized in food for human consumption are processed, manufactured, packaged or stored shall be supplied with approved tightly fitting screens of not less than 16 mesh per inch (16 mesh per 25 mm), and every screen door used for insect control shall have a self-closing device in good working condition.

Exception: Screens shall not be required where other approved means, such as air curtains or insect repellent fans, are employed.

Exception: That dwellings or dwelling units containing central air conditioning equipment for mechanically ventilating the building are not required to have screens on door or window openings. Window type air conditioners or sufficient capacity to adequately cool and ventilate the dwelling or dwelling unit may be included in this exception.

CHAPTER 4
LIGHT, VENTILATION AND OCCUPANCY LIMITATIONS

Replace the following subsection 402.1 Habitable spaces with the following:

402.1 Habitable spaces. Every habitable space shall have at least one window of approved size facing directly to the outdoors or to a court. The minimum total glazed area for every habitable space shall be eight percent of the floor area of such room. Wherever walls or other portions of a structure face a window of any room and such obstructions are located less than three feet (914 mm) from the window and extend to a level above that of the ceiling of the room, such window shall not be deemed to face directly to the outdoors nor to a court and shall not be included as contributing to the required minimum total window area for the room.

Exception: Where natural light for rooms or spaces without exterior glazing areas is provided through an adjoining room, the unobstructed opening to the adjoining room shall be at least eight percent of the floor area of the interior room or space, but not less than 25 square feet (2.33 m^2). The exterior glazing area shall be based on the total floor area being served.

Exception: Whenever the only window in a room is a skylight type window in the top of the room, the total window area of the skylight shall equal at least 15 percent of the total floor area of the room.

CHAPTER 6
MECHANICAL AND ELECTRICAL REQUIREMENTS

Replace the following subsection 602.3 Heat supply with the following:

602.3 Heat supply. Every owner and operator of any building who rents, leases or lets one or more dwelling units or sleeping units on terms, either expressed or implied, to furnish heat to the occupants thereof shall supply heat during the pe-

riod from September 1 to May 31 to maintain a temperature of not less than 68 degrees Fahrenheit (20 degrees Celsius) in all habitable rooms, bathrooms and toilet rooms.

Exceptions:

1. When the outdoor temperature is below the winter outdoor design temperature for the locality, maintenance of the minimum room temperature shall not be required provided that the heating system is operating at its full design capacity. The winter outdoor design temperature for the locality shall be as indicated in Appendix D of the International Plumbing Code.

2. In areas where the average monthly temperature is above 30 degrees Fahrenheit (minus 1 degrees Celsius) a minimum temperature of 65 degrees Fahrenheit (18 degrees Celsius) shall be maintained.

Replace the following subsection 602.4 Occupiable work spaces with the following:

602.4 Occupiable work spaces. Indoor occupiable work spaces shall be supplied with heat during the period from September 1 to May 31 to maintain a temperature of not less than 65 degrees Fahrenheit (18 degrees Celsius) during the period the spaces are occupied.

Exceptions:

1. Processing, storage and operation areas that require cooling or special temperature conditions.

2. Areas in which persons are primarily engaged in vigorous physical activities.

(Ord. No. 14-47, 4-1-2014)

Secs. 7-1-282—7-1-380. Reserved.

ARTICLE C. DESIGN STANDARDS FOR PROPERTIES IN COMMERCIAL REVITALIZATION PROJECT AREAS

Sec. 7-1-381. Purpose.

This article is adopted pursuant to authority granted to the council by Act 491 of the 1949 Regular Session of the Legislature of Alabama (Code of Ala. 1975, § 24-2-1 et seq.) and by Act 553 of the 1955 Regular Session of the Legislature of Alabama (Code of Ala. 1975, § 24-3-1 et seq.) as amended. The purpose of this article is to establish design standards for properties in the core of older business districts included in an urban renewal plan adopted by the city council, together with penalties to ensure compliance with those standards and a procedure for regulation and enforcement of the provisions of this article.
(Code 1980, § 7-1-181; Ord. No. 84-141, § 1, 8-7-1984)

Sec. 7-1-382. Definitions.

For the purpose of this article, certain terms and words are hereby defined:

Commercial rehabilitation incentive program means a program of financial incentives adopted by the city council to encourage the rehabilitation of properties in commercial revitalization project areas.

Commercial revitalization project area means that portion of an urban renewal plan area consisting of a rehabilitation area as defined herein which may further include an optional rehabilitation area, which is defined as that portion of the commercial revitalization project area which lies outside of the designated rehabilitation area.

Commercial revitalization project initiation date means a specific date certified by the director of the planning, engineering, and permits department subsequent to the adoption of the urban

[The next page is CD7:73]

renewal plan and the appropriation of funds by the council for the commercial revitalization project.

Design review committee means a committee appointed by the city council to review and approve the physical development of commercial revitalization project areas according to the provisions of this article and to perform such other duties as may be assigned.

Economic revitalization committee means a committee of community leaders appointed by the mayor to promote and advise the city on matters affecting the economics of an area.

Merchants' association means the association representing the merchants in an urban renewal plan area officially recognized by either the economic revitalization committee of that area or by the design review committee.

Rehabilitation area means that portion of a designated urban renewal plan area in which all properties must comply with design standards adopted by the design review committee.

Urban renewal plan means a neighborhood revitalization and improvement plan or commercial revitalization plan as adopted by the city council subsequent to January 31, 1978.
(Code 1980, § 7-1-182; Ord. No. 84-141, § 1, 8-7-1984)

Sec. 7-1-383. Design standards for properties in rehabilitation areas and approved properties in optional rehabilitation areas.

(a) *Rehabilitation of existing properties.* Detailed standards shall be adopted for each commercial revitalization project area by the design review committee in consultation with the merchants' association. The standards shall be applied to all existing structures whether occupied or vacant in a rehabilitation area and those properties in an optional rehabilitation area for which application has been made and approved by the design review committee for commercial rehabilitation incentives. The standards are directed at cleaning, repairing, maintaining, securing, and otherwise rehabilitating and refurbishing all structures and properties within rehabilitation areas. This work shall be done in a manner that establishes an overall condition and appearance for each commercial revitalization project area that reinforces its most positive characteristics and realizes its best potential as a commercial center. The design review committee shall administer these standards according to procedures set forth in this article. Standards shall include but not be limited to the following categories of improvement:

(1) Storefronts and show windows;

(2) Windows other than show windows;

(3) Building fronts, sides, and rears, abutting or visible from streets, public parking lots or other public areas;

(4) All signs and signage, including billboards, and other outdoor advertising whether related or unrelated to the property;

(5) Awnings and canopies;

(6) Mechanical and electrical equipment on exterior walls;

(7) Roofs;

(8) Auxiliary structures;

(9) Demolition;

(10) Rear and side yards and parking areas;

(11) Vacant lots;

(12) Fencing;

(13) Landscape and planting;

(14) Other.

(b) *New development of properties.* Detailed standards shall be adopted for each commercial revitalization project area by the design review committee in consultation with the merchants' association. These standards shall be applied to all new structures and site improvements or additions to existing structures and properties in a rehabilitation area and all new structures and site improvements or additions to existing structures and properties in the optional rehabilitation area for which application has been made and approved by the design review committee for incentive programs. The standards shall be directed at ensuring that new structures and site

improvements or additions to existing structures and properties are architecturally compatible and complementary with existing structures and properties within the commercial revitalization project area. The design review committee shall administer these standards according to procedures set forth in this article. Standards shall include, but not be limited to, demolition and the following categories of improvements:

(1) Building design;

(2) Parking design;

(3) Loading and service area design;

(4) Street, pedestrian walkways and open space design;

(5) Landscape and planting design;

(6) All signs and signage design, including billboards and other outdoor advertising, whether related or unrelated to the property.

(Code 1980, § 7-1-183; Ord. No. 84-141, § 1, 8-7-1984)

Sec. 7-1-384. Design review and approval.

The design review committee shall have the authority and responsibility for determining conformance with this article and approval of all demolition, improvements, modification, repairs, rehabilitation, painting or maintenance affecting the exterior and interiors visible from public ways and areas of new and existing buildings, yards, windows, signs and vacant lots.

(Code 1980, § 7-1-184; Ord. No. 84-141, § 1, 8-7-1984)

Sec. 7-1-385. Design review committee.

(a) The design review committee shall consist of 11 members, six of whom shall be residents of the city, appointed by the city council to serve for a term of three years beginning on July 31 and ending on July 30 three years thereafter. The members of the committee shall consist of three registered architects, one registered landscape architect, two practitioners from the building trades, and one member who is either a registered architect, a member of the building trades, a registered civil engineer, a commercial real estate broker or developer, or an investment counselor, each of whom shall have demonstrated experience in commercial rehabilitation work and shall have their primary place of business in the city, and four members at large who are residents of the city.

(b) The design review committee shall recommend and submit names of prospective members to the city council for their consideration.

(c) If any member of the committee shall fail to attend 12 regularly called committee meetings in any 12-month period, the committee shall terminate the term of office of that member. Any member so terminated shall be notified of the committee's action by certified mail. The committee shall then certify the termination of such person to the city council and shall recommend and submit to the city council names of prospective successors.

(d) The presidents of the local economic revitalization committees, the chairpersons of the local merchants' associations in commercial revitalization project areas and a representative designated by the Alabama Historical Commission shall be nonvoting members of the committee.

(e) In projects where the design review committee determines that specialized knowledge is required, the committee may call in experts to advise and assist the committee in its decision-making process. Per diem and transportation expenses of such experts may be paid out of funds budgeted for that purpose.

(f) The design review committee shall adopt rules and shall keep a record of its resolutions, transactions, determinations and findings, which record shall be a public record.

(Code 1980, § 7-1-185; Ord. No. 84-141, § 1, 8-7-1984)

Sec. 7-1-386. Commercial revitalization project initiation date.

At least ten days prior to the certification of a commercial revitalization project initiation date,

the date, the director of the planning, engineering and permits department shall give notice of the initiation date and provisions of this article:

(1) To the appropriate local merchants' association by certified mail return receipt requested;

(2) To each of the property owners in the commercial revitalization project area at the address recorded in the office of the tax assessor of Jefferson County by certified mail return receipt requested; and

(3) To merchants located in the commercial revitalization project area by first class mail; and the department shall cause notice of the initiation date and a description of the area affected to be published in a newspaper published and of general circulation in the city.

(Code 1980, § 7-1-186; Ord. No. 84-141, § 1, 8-7-1984)

Sec. 7-1-387. Adoption of design standards.

The local merchants' association for a commercial revitalization project area may recommend design standards for the area to the design review committee not later than 30 days after the commercial revitalization project initiation date. After consultation with the merchants' association and review of any proposed design standards, the design review committee shall determine and adopt design standards within 60 days after the commercial revitalization project initiation date. Conformance with the design standards adopted for a designated area shall be a requirement for approval of rehabilitation incentives.

(Code 1980, § 7-1-187; Ord. No. 84-141, § 1, 8-7-1984)

Sec. 7-1-388. Design standards appeal.

The local merchants' association for a commercial revitalization project area, bypassing a resolution of a majority of its membership, may appeal all or any part of the design standards adopted by the design review committee to the city council. The appeal must be submitted in writing to the city council not later than 30 days after the adoption of design standards by the committee. The council shall either approve the design standards adopted by the design review committee or adopt changes in the design standards within 30 days of the appeal.

(Code 1980, § 7-1-188; Ord. No. 84-141, § 1, 8-7-1984)

Sec. 7-1-389. New development plans; rehabilitation plans; approval.

(a) The design review committee shall review all proposed development plans and specifications for new development within a commercial revitalization project area with respect to their conformance with the standards adopted for the area in order to achieve harmonious development of a project area. Such review shall take into consideration, but not be limited to, the suitability of the site plan, architectural treatment, building plans, elevations, materials and color, access, parking, loading, landscaping, exterior lighting, refuse collection details, streets, sidewalks and signs.

(b) Prior to the issuance of any excavation, building, demolition or any other construction permit required now or in the future, the design review committee shall review the plans for new development or rehabilitation of structures and properties in commercial revitalization project areas.

(c) In reviewing plans for properties located in the rehabilitation area and for properties located in the optional rehabilitation area for which application has been made for commercial rehabilitation incentives, the design review committee shall only approve those plans which comply with the design standards adopted for the designated commercial revitalization project area. Upon approval, the design review committee shall certify the work encompassed by such plans as eligible for the commercial rehabilitation incentive program and shall provide written approval specified herein to the department of inspection services to allow the required permits to be issued.

(d) The design review committee shall review all new development and rehabilitation plans for properties located in the optional rehabilitation area and recommend to the property owner

and/or tenant any changes necessary to comply with the design standards adopted for the designated commercial revitalization project area and shall inform the property owner and/or tenant of the provisions of the commercial rehabilitation incentive program.
(Code 1980, § 7-1-189; Ord. No. 84-141, § 1, 8-7-1984)

Sec. 7-1-390. Review procedure.

(a) All plans for the rehabilitation of existing structures and property submitted to the design review committee shall be sufficient for the committee's members to understand the details of the proposed work and its affect upon the appearance of the structures and property in question. Such plans may include drawings, specifications, color and material samples, and sketches.

(b) Plans submitted to the design review committee for new structures and site improvements or additions to existing structures and properties shall include plot plans as may be required detailing all landscaping, parking layouts, utilities, street furniture, signage, lighting, trash containers, and any other details covered by this article.

(c) Developers of new structures and site improvements or additions to existing structures and properties shall submit:

(1) A statement of the intended use of the property;

(2) A written commitment to conform with development plans approved by the design review committee; and

(3) A written commitment that the use of the completed structures and property will be as submitted in the statement of intended use.

(d) Plans submitted to the design review committee shall be reviewed within 21 days from the date such plans and all necessary information required for review are submitted. In any case, plans shall be approved, disapproved, or approved with modifications, within 180 days of receipt of the original submission unless the applicant requests an extension of the review period.

(e) All plans submitted for review shall be accompanied by a review fee as provided in section 7-1-7 of the General Code of the City of Birmingham.
(Code 1980, § 7-1-190; Ord. No. 84-141, § 1, 8-7-1984; Ord. No. 19-91, § 1, 7-10-2019)

Sec. 7-1-391. Restrictions.

(a) No work, demolition, excavation, alterations or improvements shall be undertaken after enactment of this article which do not conform with the requirements of this article.

(b) Nothing herein shall be construed to permit any demolition, excavation, signage, construction, alteration, change, repair, use or any other matter otherwise forbidden, restricted, controlled or required by any other public law.

(c) In the event of conflict, the design standards for a commercial revitalization project area adopted by the design review committee shall take precedence over building or design standards for the same area contained in an urban renewal plan.

(d) Written approval by the design review committee shall be required before obtaining the necessary permits for construction, excavation or demolition and before initiating any work, unless authorized on an emergency basis for reasons of public safety by the department of inspection services.
(Code 1980, § 7-1-191; Ord. No. 84-141, § 1, 8-7-1984)

Sec. 7-1-392. Demolition of structures.

The department of inspection services shall not issue a permit for the demolition of any structure within a commercial revitalization project area until one of the following requirements has been met:

(1) The owner of the property presents written approval from the design review committee for the issuance of such a permit; or

(2) The owner of the property presents proof that he or she has applied to the design review committee for approval of his or her demolition permit, that six months

have expired since the date of that application, and that the design review committee has not acted on the application.

(Code 1980, § 7-1-192; Ord. No. 84-141, § 1, 8-7-1984)

Sec. 7-1-393. Initial inspection.

(a) The division of housing, community development department shall conduct an inspection of all:

(1) Existing properties in the rehabilitation area within six months of the adoption of the design standards for a commercial revitalization project area; and

(2) Properties in the optional rehabilitation area who have applied for commercial rehabilitation incentives within one month of such application as to their compliance with the design standards adopted for the commercial revitalization project area.

(b) The division of housing shall also notify the owners and tenants of said properties in writing of any violations of said standards, the procedures for submitting rehabilitation plans and the penalties for continued violation of the provisions of this article. Owners and tenants of buildings judged to be in compliance with the design standards for the commercial revitalization project area by the division of housing inspector will be notified of their compliance and of the provisions of the commercial rehabilitation incentive program.

(Code 1980, § 7-1-193; Ord. No. 84-141, § 1, 8-7-1984)

Sec. 7-1-394. Continued inspection.

Once properties and structures affected by this article have been certified as being in compliance with the design standards adopted for a commercial revitalization project area, they shall remain in compliance with the design standards until the city council, by resolution, declares the area to no longer be a commercial revitalization project area. To monitor compliance with the design standards, the department of community development along with the department of planning, engineering and permits shall periodically conduct a survey of rehabilitation areas and those properties in the optional rehabilitation area which have received incentives and if properties or structures appear to not be maintained at a level of continued compliance with the design standards, request in writing a new inspection of the affected properties and structures by the division of housing and send by certified mail copies of the request to the design review committee, the affected property owners at the addresses recorded in the office of the tax assessor of Jefferson County and the tenants of the affected property.

(Code 1980, § 7-1-194; Ord. No. 84-141, § 1, 8-7-1984)

Sec. 7-1-395. Appeals of application of design standards.

Any person aggrieved by the decision of either the inspector or the design review committee related to design standards for new or existing structures, sites or properties or for demolition plans in a commercial revitalization project area may seek relief therefrom by appeal to the construction board of appeals and adjustment, created pursuant to the most recent adoption of technical codes for the city, as amended.

(Code 1980, § 7-1-195; Ord. No. 84-141, § 1, 8-7-1984; Ord. No. 16-90, § 1, 5-27-2016)

Sec. 7-1-396. Period of compliance; penalties.

To the extent that rehabilitation and maintenance requirements for properties are specifically applicable to a rehabilitation area and to those properties in the optional rehabilitation area which have applied for and been approved for commercial rehabilitation incentives by the design review committee and are not generally required elsewhere, the work necessary to meet such requirements shall be undertaken and completed within the time requirements as set forth herein.

(1) *Initial compliance notice.* All rehabilitation requirements for structures and properties shall be undertaken and completed within the time requirements as set forth in the urban renewal plan, which time shall begin to run as of the project initiation date; but in no event

shall the time requirement for completion be a period of less than 18 months. Notice shall be sent by certified mail return receipt requested by the department or urban planning to those property owners and tenants who are not in compliance both 60 days and 30 days prior to the scheduled completion date informing them of the completion date and the potential penalties and amount thereof.

(2) *Continued compliance notice.* All maintenance requirements for structures and properties shall be undertaken and completed within 30 days from the date a notice of noncompliance is mailed by certified mail return receipt requested from the division of housing to the affected property owners and tenants, which notice shall state the date for completion of work and the potential penalties and amount thereof.

(3) *Damaged structures.*

a. Unless a structure suffers major damage, any external or otherwise visible damage to the structure and/or premises shall be repaired to come within rehabilitation and maintenance requirements. The affected property owners or tenants shall present plans of the proposed reconstruction within 30 days of such damage.

b. Any structure which suffers major damage by fire, act of God or other peril must be repaired to come within rehabilitation and maintenance requirements. In general, a structure shall be considered to have suffered major damage if 50 percent of the square footage has been rendered unusable for purposes of the occupancy. The affected property owners or tenants shall present plans of proposed reconstruction or request a demolition permit and present demolition plans to the design review committee for their review within six months of such damage.

c. Plans submitted to the design review committee shall be reviewed within 30 days from the date such plans and all necessary information required for review are submitted and shall set a time for structures and property to be brought back into compliance with standards. In all cases structures which have major damage must be brought back into compliance with standards within two years.

(4) *Application for extension review.* Any person affected by notice of violations issued hereinabove may request in writing an extension of time for compliance or a hearing before the design review committee to modify or withdraw the notice.

(5) *Penalties.* Any person, firm or corporation being the property owner, tenant or agent of either who shall violate a provision of this article or fail to comply with any of the requirements hereof shall be guilty of a misdemeanor. Each and every day or portion thereof during which any violation of the provisions of this article is committed or continued shall be considered a separate offense. Such person, firm or corporation in violation of this article shall be punished according to the general penalties described in section 1-1-6.

(Code 1980, § 7-1-196; Ord. No. 84-141, § 1, 8-7-1984; Ord. No. 90-19, 1-16-1990)

Secs. 7-1-397—7-1-410. Reserved.

ARTICLE D. HISTORIC PRESERVATION*

Sec. 7-1-411. Declaration of public policy and purposes.

(a) It is hereby declared as a matter of public policy that the preservation and protection of properties and districts of historical, architectural, cultural, archaeological, educational and aesthetic

*__State law reference—__Municipal historic preservation commissions, Code of Ala. 1975, § 11-68-1 et seq.

merit are public necessities that contribute to the health, prosperity and welfare of the people of the city.

(b) The purposes of this article are to:

(1) Preserve and protect properties and districts of historical significance, and of architectural, archaeological and aesthetic importance to the city for its citizens, and to promote these attractions to citizens and visitors.

(2) Strengthen the economy of the city by enhancing its attractiveness to residents, visitors, and potential businesses and by

stabilizing and improving property values thereby maintaining economic investment in the city and avoiding or reversing urban decay and blight.

(3) Designate local historic properties and districts to assure that the character of such is retained and enhanced.

(4) Regulate the exterior rehabilitation of historic properties and districts without economic displacement of residents living within those districts.

(5) Allow the city, interested persons, historical societies and commissions the opportunity to acquire or to arrange for the preservation of historic properties or districts.

(6) Foster civic pride in the architectural, historical, cultural and educational heritage of the city.

(Code 1980, § 7-1-201; Ord. No. 92-223, 9-1-1992)

Sec. 7-1-412. Definitions.

The following words as used in this article shall have the meanings ascribed to them below:

Alteration means any act or process that changes one or more of the exterior architectural features of a structure, including, but not limited to, the erection, construction, expansion, rehabilitation, reconstruction or removal of any structure.

Building means any structure having a roof supported by columns or walls designed or built for the support, enclosure, shelter, or protection of persons, animals, chattels, or property of any kind.

Certificate of appropriateness (COA) means a certificate signed by the secretary of the design review committee indicating its approval of plans for alteration, construction, removal or demolition of the exterior features of a structure which is individually designated as historic or is a structure within a historic district.

Construction means the act of adding to an existing structure or the erection of a new principal or accessory structure on a lot.

Demolition means the razing or destruction, whether entirely or of the defining historical elements, of a building, structure, or site. The term "demolition" also includes the removal of a building or structure from its site or the removal or destruction of its facade.

Demolition by neglect means failure to comply with the minimum property standards, as established by building and housing regulations and ordinances of the city.

Design review guidelines means a document describing design features and examples of appropriate treatment to preserve the historic and architectural character of a property or district.

Designation means the legal recognition by ordinance of a property or district as historic by action of the city council.

Exterior architectural appearance means the architectural character and general composition of the exterior of a structure, including but not limited to the kind and texture of the building material, and the type and character of all windows, doors, landscape elements, light fixtures, signs and appurtenances.

Historic landscape means the totality of the built or human-influenced habitat experienced at any one place. Dominant features are topography, views and vistas, a plant cover, buildings or other structures and their patterns.

Historic preservation plan means a written document prepared for each proposed historic district in which the district's individual needs, resources, and preservation strategy are specified. The plan will serve as city policy upon designation of the district by the city council.

Historical survey means a detailed written study describing architectural and historical significance of a historic property or district.

Local historic district means a geographically definable area designated by the city council which meets the criteria for eligibility contained in this article. Districts may be comprised of buildings, structures, sites, objects, historic landscapes or vistas which possess a significant concentration, linkage or continuity of buildings, and

may contain individual properties or elements which are separated geographically but linked by association, plan, design or history.

Local historic property means a building, structure, site, landscape or vista designated by the city council which meets the criteria for eligibility contained in this article.

Object means a material thing of functional, aesthetic, cultural, historic or scientific value that may be, by nature or design, movable yet related to a specific setting or environment.

Owner means the person, corporation or other legal entity who is the owner of the property or the person or agent in charge or control of the property.

Owner of record means the person, corporation or other legal entity listed as responsible for state taxes as their names and addresses appear in the tax records of the county tax assessor's office.

Reconstruction means the process of reproducing by new construction the exact form and detail of a vanished building, structure or object, as it appeared during a specified time period.

Rehabilitation means the act or process of returning a property to a state of utility through repair or alteration while preserving those features of the property which are historically, architecturally, or culturally significant.

Removal means any relocation of a structure on its site or to another site.

Repair means any change that is not construction, removal or alteration.

Restoration means the act or process of accurately recovering the form and details of a property and its setting as it appeared at a particular period of time through the removal of later work or by the replacement of missing earlier work.

Routine maintenance means minimum repairs to a building, structure, or object for which no certificate of appropriateness is required as adopted by the design review committee for the district in which the property is located.

Site means the location of a significant event, a prehistoric or historic occupation or activity or a building or structure, whether standing, ruined or vanished, where the location itself maintains historical, cultural or archaeological value regardless of the monetary value of the site or any structure thereon.

Structure means anything constructed or erected, the use of which requires permanent or temporary location on or in the ground, including but not limited to buildings, fences, gazebos, signs, billboards, back stops for tennis courts, swimming pools and radio and television antennae, including supporting towers.
(Code 1980, § 7-1-202; Ord. No. 92-223, 9-1-1992)

Sec. 7-1-413. Establishment of historical commission.

(a) *Creation.* There is hereby established the Birmingham Historical Commission (hereafter BHC) which shall consist of 11 members, ten of whom shall be nominated by the mayor and appointed by the city council. Recommendations of qualified individuals for nomination as defined herein should be made to the mayor. Of these ten members, at least one member will be selected to represent each of the following organizations or categories: Jefferson County Historical Commission, Birmingham Historical Society, design review committee, community groups, professional preservationists, professional planners/architects, and professional historians. The chairperson of the council committee on planning and zoning or his or her designee shall serve ex officio as the 11th member of the commission with full power to vote and be counted. Members of the BHC shall serve without compensation.

(b) *Tenure.*

(1) The ten appointed BHC members shall serve a three-year term and shall be appointed to serve overlapping terms. Three of the original members shall be appointed to serve a one-year term, three shall be appointed to serve a two-year term, and four shall be appointed to serve a three-year term. All members of the BHC may be appointed for no more than two full terms, provided that any members filling an unexpired term may in addition be appointed to two full terms.

(2) Vacancies shall be filled by persons nominated by the mayor and appointed by the city council. Such appointments shall be for the unexpired term of the member replaced.

(c) *Qualifications.* All BHC members shall be bona fide residents of the city. Not more than one-fifth of the members shall be public officials. Members shall have demonstrated training or experience in the fields of history, architecture, architectural history, urban planning, urban design, real estate, finance, archaeology or law, or who shall be residents of a historic district designated pursuant to ordinance. One member of the planning commission or its staff shall be a nonvoting ex officio member and shall not be counted.

(d) *Officers.* Members of the BHC shall elect a chairperson, a vice-chairperson, a secretary, and such other officers as the members deem necessary.

(e) *Meetings.*

(1) The BHC shall hold public meetings quarterly and more often as it shall determine and require. Six members shall constitute a quorum.

(2) Any member of the BHC who misses more than three consecutive regular meetings or more than half the regular meetings in a calendar year shall automatically be removed as a member.

(3) The BHC shall keep permanent minutes of its meetings. The minutes shall include the attendance of its members and its resolutions, findings, conclusions, recommendations and other actions. The minutes of the BHC shall be open for public inspection as required by law.

(f) *Rules of procedure.* Members of the BHC shall adopt rules of procedure and bylaws to govern its operations and shall communicate those rules of procedure and bylaws to the mayor and city council.

(g) *Commission responsibilities, powers, and duties.* The BHC shall seek to promote, enhance and preserve the character of historic properties and districts to achieve the purposes of this article as enumerated hereinabove and shall have the following specific duties and authority:

(1) Assist in the preparation of historical surveys of property within the city.

(2) Recommend properties and districts to the city for local historic designation.

(3) Promote acquisition of facade and conservation easements by authorized agencies as allowed by the Internal Revenue Code of 1986, as amended.

(4) Develop and conduct educational programs concerning designated historic preservation projects and districts designated pursuant to this article.

(5) Make such investigations or studies of matters relating to historic preservation as the city or the BHC deems necessary and appropriate.

(6) Advise and assist in the application for funds from municipal, county, state, federal and private sources and agencies through the city to carry out the purposes and responsibilities of the BHC.

(7) Advise and assist in the preparation of nominations of properties to the National Register of Historic Places.

(8) Advise and assist in the preparation of applications for certification of historic properties for tax credits.

(9) Coordinate all rehabilitation, demolition, or new construction activity of historic properties or districts through the design review committee.

(10) Adopt both general and specific design guidelines as the basis for decisions on applications for certificates of appropriateness.

(11) Specify any means by which technical assistance will be offered to property owners of each locally designated historic district.

(12) Specify any financial incentives that may be used in promoting preservation activities within a locally designated historic district.

(13) Specify any measures the BHC, the urban planning department staff, or other groups will take to encourage economic activity and development conducive to preservation activities within a locally designated historic district.

(14) Prepare and file with the city and with the Alabama Historical Commission, an annual report of its activities as required by the city and the Alabama Historical Commission.

(Code 1980, § 7-1-203; Ord. No. 92-223, 9-1-1992; Ord. No. 00-81, § 1, 5-23-2000)

Sec. 7-1-414. Local historic designation of local property or district.

(a) *Designation of local historic property or district.* The city council may designate by ordinance an individual property as a historic property, or a geographic area as a historic district, and such indication of the type and boundaries of any such area shall be entered on the official zoning map.

(b) *Initiation of requests to designate a local historic property or district.* Requests for any property or district to be nominated as a historic property or district shall be directed only to the BHC which alone will recommend nomination to the city council. Any individual or organization may submit such requests.

(c) *Eligibility of a property or district for local historic designation.* Any property or district may be considered for nomination when the property or district is listed on the National Register of Historic Places, or which, in the opinion of the BHC, meets the guidelines for inclusion on the National Register of Historic Places; is determined by the state historic preservation officer to be eligible for inclusion on the National Register of Historic Places; or meets one or more of the criteria established in Code of Ala. 1975, § 11-68-1 et seq.

(d) *Procedures for considering a request to establish a property or district or to extend an existing district's boundaries.* Upon the filing of a request to the BHC for nomination, the following steps shall apply to the consideration of the proposed property or district:

(1) Every property or district being considered for nomination must have a historical survey conducted by a professional historian or preservationist to determine its historical or architectural significance, identify its distinctive attributes and character, and provide a boundary description and rationale for nomination.

(2) Preservation plan.

a. Every district being nominated to the city council shall have as part of its nomination a written historic preservation plan. Upon the city council's designation of a district, the preservation plan for the particular district shall become city policy and all appropriate city bodies and administrative officials shall direct their best efforts to assure the effective implementation of the plan.

b. Each historic preservation plan shall include a statement of significance and eligibility status, and boundary description for the district; principles and guidelines for action on applications for certificates of appropriateness (COAs) and for the instances and procedure for waiver from a COA regarding routine maintenance; and preservation strategy tailored to the needs of the specific area which shall include, but not be limited to, the following elements:

1. The need for the historic district in that area, including the specific reasons why the regulatory provisions of this article should be applied in order to accommodate the preservation of that area.

2. The means by which the existence and significance of the

historic district will be publicized to historic district property owners and to the general public.

3. General design review guidelines for the local historic districts involving new construction, alteration, restoration or rehabilitation of the exterior of the structures. These guidelines will be the basis for specifications adopted by the design review committee (DRC) for the particular district once the district is designated. The specific guidelines adopted by the DRC shall be the basis for review and action upon applications for a certificate of appropriateness.
4. The general definition, rights, and obligations of that which constitutes routine maintenance. Upon designation, the DRC will adopt those criteria for routine maintenance which are specific to the particular district.
5. The general means by which technical assistance will be offered to property owners in the proposed local historic district by the BHC, department of planning, engineering and permits staff, or other groups. Upon designation, those means will be made specific by the BHC for the particular district.
6. A listing of any possible financial incentives that may be proposed for use in promoting preservation activities within the proposed local historic district, how those incentives might be used and how property owners may be made aware of them. Upon designation, these incentives will be made specific by the BHC for the particular district.
7. A listing of what, if any, measures the BHC, the department of planning, engineering and permits staff, or other groups could take to encourage economic activity and development conducive to preservation activities within the local historic district. Those measures will be made specific by BHC upon designation of the particular district.

(3) Before the BHC shall recommend the designation of a local historic property or district, it shall hold a public hearing on the recommendation. Property owners of record will be mailed notification of the hearing at least 15 days prior to the hearing date. The notification shall include the time, date, and location of the hearing. At the hearing, the BHC will consider the recommendation to designate the property or district and to adopt or amend the historic preservation plan.

(4) Upon the BHC's recommendation for designation of a local historic district, the city council will hold a public hearing to consider designation. Property owners of record will be notified by mail at least 15 days prior to this hearing. Notice of the time, place and full text of the proposed ordinance shall be published in a newspaper of general circulation at least 22 days prior to the hearing; and a synopsis of the proposed ordinance, and a reference as to the date of the original publication, shall also be published seven days thereafter in the same newspaper.

(5) The owner of private property which meets the criteria for eligibility as a local historic property as contained in this article or a majority of the owners of private property within a proposed historic district shall be given the opportunity to concur in or object to the designation of

the property or proposed district for designation as a historic property or district. If the owner of the property or a majority of the owners of the properties within the proposed district object to the designation, the property or district shall not be designated.

(6) Upon the designation of any historic property or district by the city, the BHC shall give notice in writing of that designation to all relevant agencies of the city and to all property owners of record included in the historic designation. After such notice is given, and the ordinance is published in a newspaper of general circulation, the designation will be in effect.

(7) Any proposed amendment to the historic preservation plan will be considered in the same manner and through the same procedure defined herein for the designation of a property or district and adoption of the preservation plan.

(Code 1980, § 7-1-204; Ord. No. 92-223, 9-1-1992; Ord. No. 00-81, § 1, 5-23-2000)

Sec. 7-1-415. Certificates of appropriateness and economic hardship.

(a) *COA required; design review.*

(1) From and after the designation by the city council of a historic property or district, no exterior portion of any building or other structure, nor any type of signage shall be erected, altered, restored, moved or demolished, nor shall any originally unpainted surfaces be painted within the district or on said property until after a waiver has been issued by the department of planning, engineering and permits or an application for a certificate of appropriateness (COA) has been submitted to and approved by the design review committee (DRC). A COA or waiver therefrom shall be issued prior to the issuance of a building permit for the purpose of constructing, altering, moving or demolishing structures. Each applicant for a COA or waiver must submit whatever documentation has been specified by the DRC and adopted for the designated area in which the property is located. The requirement of a COA or waiver thereof shall apply to both a public and private property which has been designated as a local historic property or which is contained in a local historic district, and shall also apply to all actions by public authorities which involve local historic properties and properties within historic districts.

(2) The city hereby appoints the DRC, as established in section 7-1-385, to perform the duties and responsibilities of the BHC in accepting, considering, and approving, approving as amended, or rejecting applications for COAs; to establish detailed design guidelines for each district; to specify the definition, rights and obligations of routine maintenance for each designated district; and to determine whether these guidelines may be waived due to reasons of economic hardship.

(3) In its review of applications for COAs, the DRC shall not consider interior changes or use having no effect on the exterior of a building or structure. The DRC's design review guidelines, as established in the historic preservation plan for that area, shall apply in considering the granting and denial of certificates of appropriateness.

(4) The department of planning, engineering and permits shall keep a record of all requests for approval of routine maintenance. The DRC shall keep a record of all applications for certificates of appropriateness and of all of its proceedings.

(b) *Application procedures; waiver approval; denial and appeal.*

(1) *Application required.* Each applicant for a COA or waiver therefrom must initially submit proposed drawings, photographs and plans, as set forth in the historic preservation plan, for the subject property

to the urban planning department staff, who will determine whether a waiver or COA is necessitated. All applications submitted for review shall be accompanied by a review fee as provided in section 7-1-7 of the General Code of the City of Birmingham.

(2) *Waiver.* Where the provisions, rights, and obligations for routine maintenance apply, the department of planning, engineering and permits staff will prepare a written waiver and present it to the owner which will specify those minimum repairs which were approved under DRC guidelines and the allowable method by which such repairs can be accomplished. If the owner is found to be in violation of the terms of the waiver, he or she will be given 30 days to bring the property into compliance, or to appear before the DRC to request a change in the terms specified in the waiver. After reviewing the original waiver or any request for amendment thereto, the DRC shall specify in writing the terms of the waiver and the time for compliance. Failure to comply with the terms of such waiver shall be deemed a violation of this article.

(3) *DRC meetings.* Applications for a COA shall be considered by the DRC at its regularly scheduled meetings. The applicant shall be informed in writing of the time and place of the hearing.

(4) *DRC considerations.* Upon acceptance by the DRC of an application for a COA, or COA with revisions, the DRC shall consider whether it finds that the proposed change, erection or demolition conforms to the design standards established, is compatible with the character of the historic property and historic district and does not detract from their historic value. Upon written request by an applicant, the DRC shall consider whether conformance with the design standards established will result in economic hardship. In making this determination, the DRC shall consider, in addition to any other pertinent factors, the historical and architectural features of the structure involved and the proposed change thereto, and the effect of the change to the exterior architectural style and pertinent features of other structures in the immediate neighborhood.

(5) *Approval.* If the application is approved, the DRC, within seven working days of its action, shall transmit a COA to the owner and the department of buildings and inspections, in letter form, clearly stating the work approved.

(6) *Denial.* In the event the DRC rejects an application, it shall within seven working days of its action state its reasons for doing so in writing and shall transmit such decision to the applicant and director of buildings and inspections. This action shall be binding upon the director of buildings and inspections or other administrative officer charged with issuing building permits; and, in such case, no building permit shall be issued.

(7) *Appeal or reapplication.* Any person having a request for a COA or COA with revisions denied by the DRC may:

a. Request a determination of economic hardship from the DRC;

b. Make modifications to such person's plans and resubmit the application for reconsideration at any time after doing so; and/or

c. Make written appeal of such denial or denial of a finding of economic hardship first to the Birmingham Historical Commission within 15 days of the denial. The BHC shall hear the appeal within 30 days and shall render its opinion in writing within five working days after its decision and shall transmit such decision to the applicant and the director of buildings and inspections. In the event that the grievance remains unsatisfied, a final appeal may be filed with the Circuit Court of Jefferson County.

(8) *BHC action.* The BHC or the city may institute any appropriate action or proceeding in a court of competent jurisdiction:

a. To prevent any unapproved change in the exterior of a building or structure which is a historic property or contained in a historic district;

b. To prevent any illegal act or conduct with respect to such historic property or historic district; or

c. To recover any damages which may have been caused by the violation of this article.

(c) *Expiration of certificate of appropriateness.* After the owner receives a building permit, construction must begin within six months and be completed within 18 months after the COA has been issued. Extensions of this time may be obtained after good cause having been shown. If the owner does not comply with the above construction time requirements, the COA shall expire and become void.

(d) *Neighborhood participation.* Neighborhood participation is recognized as being essential to the administration of local historic districts pursuant to this article. To facilitate this process, the following procedures shall apply:

(1) Local historic districts shall have the right to designate local historic advisory committees (committees) to be appointed by the citizens participation neighborhood association (neighborhood association) in which all or a majority of the local historic district is located. Such committees shall have not more than seven nor less than three members. Whenever practicable, at least one member of these said committees shall be a representative of the following professional groups; architects, building trades, civil engineers or real estate brokers or developers.

(2) Within 60 days following the adoption of the amended ordinance from which this article is derived, the department of planning, engineering and permits (PEP) will develop an orientation program for members of committees. Members of each committee will be afforded a reasonable opportunity to receive the orientation developed by PEP. In order for a committee to be designated as an advisory committee and to maintain such designation, a majority of its members shall have received said orientation and also shall have attended at least four meetings of the DRC. New members appointed to advisory committees will be afforded a reasonable opportunity to receive the PEP orientation and to attend meetings of the DRC. PEP will forward to advisory committees in locally designated historic districts cases arising in such district for the advisory committees to hear and make recommendations to the DRC; provided, however, all requests for waivers and consideration of economic hardship shall be considered by the DRC. The advisory committee shall follow and be bound by the same procedures and considerations as the DRC as set out in this article for consideration of a COA. The recommendation of such an advisory committee shall be delivered to the DRC within 30 days of receiving such case. In order for the DRC to reverse, wholly or partly, or modify the recommendation submitted by the advisory committee a vote of two-thirds majority of the DRC members present at the meeting which considers the matter is required.

(3) In all other cases, where there is no advisory committee serving the locally designated historic district, notices shall be sent to the neighborhood association in which all or the majority of such locally designated historic district is located through its officers, of all cases on the agenda of the DRC involving properties within such locally designated district. The DRC will not hear a case in such district without providing such notice to allow the neighborhood association a reasonable opportunity to consider the case and make its recommendations to the DRC, provided, however, if such recom-

mendation is not received by the DRC within 30 days of such notice, the DRC may proceed to act without such recommendation, and provided further that if the DRC, by a two-thirds majority vote of the DRC members present, determines that extraordinary circumstances exist which mitigate against the delay necessitated by giving the neighborhood association a chance to consider the matter, the case may be heard by the DRC without such notice being given, provided, however, if the DRC takes such action, the neighborhood will be notified within 30 days of the action taken. The neighborhood may make recommendations to the DRC which shall have sole authority to make the decision.

(Code 1980, § 7-1-205; Ord. No. 92-223, 9-1-1992; Ord. No. 00-81, § 1, 5-23-2000; Ord. No. 19-91, § 2, 7-10-2019)

Sec. 7-1-416. Consideration of economic hardship of local historic designation or design review.

(a) *Determination of economic effect designation requirements.* In order for the design review committee (DRC) to consider the economic effect of designation or of denial of a COA upon an individual property, the owner must demonstrate that such action will cause hardship so as to deprive him or her of a reasonable use of or return on the property. The DRC may solicit expert testimony or may require the owner to make submissions concerning any or all of the following information:

(1) Estimate of the cost of the proposed construction, alteration, demolition, or removal and an estimate of any additional cost that would be incurred to comply with the recommendations of the DRC for changes necessary for the issuance of a COA.

(2) A report from a licensed engineer or architect with experience in rehabilitation as to the structural soundness of any structures on the property and their suitability for rehabilitation.

(3) Estimated market value of the property in its current condition; after completion of the proposed construction, alteration, demolition, or removal; after any changes recommended by the DRC; and, in the case of a proposed demolition, after renovation of the existing property for continued use.

(4) In the case of a proposed demolition, an estimate from an architect, developer, real estate consultant, appraiser, or other real estate professional experienced in rehabilitation as to the economic feasibility of rehabilitation or reuse of the existing structure on the property.

(5) Amount paid for the property, the date of purchase, and the party from whom purchased, including a description of the familial, business, or other relationship, if any, between the owner of record or applicant and the person from whom the property was purchased, and any terms of financing between the seller and buyer.

(6) If the property is income-producing, the annual gross income from the property for the previous two years; itemized operating and maintenance expenses for the previous two years; major capital expenditures since last mortgage; and depreciation deduction and annual cash flow before and after-debt service, if any, during the same period.

(7) Remaining balance on any mortgage or other financing secured by the property and annual debt service, if any, for the previous two years.

(8) All appraisals obtained within the previous two years by the owner or applicant in connection with the purchase, financing, or ownership of the property.

(9) Any listing of the property for sale or rent, price asked, and offers received, if any, within the previous two years.

(10) Assessed value of the property according to the two most recent assessments.

(11) Real estate taxes for the previous two years.

(12) Form of ownership or operation of the property, whether sole proprietorship, for-profit or not-for-profit corporation, limited partnership, joint venture, or other.

(13) Any other information considered necessary by the DRC to a determination as to whether the property does yield or may yield a reasonable return to the owners.

(b) *Determination of economic hardship.* The DRC will consider all information presented and after all such information is received will make a written determination within 60 days of whether hardship and deprivation of reasonable use or return has been demonstrated.

(c) *Financial incentives to remedy economic hardship.* Should the owner demonstrate hardship and deprivation of reasonable use of or return on the property, the city will review its options for providing financial incentives necessary to comply with the DRC's design review decisions. A determination shall be made within 60 days as to whether financial incentives can be made available which are applicable to the project. If such incentives will not be available, or if after application such incentives are not obtained, the DRC shall notify in writing the owner and the department of buildings and inspections that no COA is required.
(Code 1980, § 7-1-206; Ord. No. 92-223, 9-1-1992)

Sec. 7-1-417. Denial of demolition permits.

(a) Owners of historic properties or properties within historic districts may be denied demolition permits for up to 12 months from the date the demolition permit is denied by the design review committee (DRC). The city may, during these 12 months, determine whether it will provide any of the financial incentives necessary to preserve the historic building in accordance with design review guidelines.

(b) If the DRC does find economic hardship, and the Birmingham Historical Commission (BHC) or the city does not provide financial incentives necessary to preserve the building in accordance with design review guidelines, the department of buildings and inspections and the owner shall be notified in writing that a permit may be obtained for demolition, provided that plans for a replacement structure or any other use of the property be first submitted to DRC for review.
(Code 1980, § 7-1-207; Ord. No. 92-223, 9-1-1992)

Sec. 7-1-418. Enforcement.

(a) *Compliance.* After the design review committee (DRC) approves a project and construction begins, it will be the owner's responsibility to bring the building into compliance with the approved plans. If, at any time, the construction is found not to be in compliance with approved plans, a stop work order may be issued by the department of buildings and inspections until plans are presented to the DRC which will bring the building into compliance.

(b) *Violation.* If construction has already been completed and is found to be in violation, the owner will be cited in writing by the department of planning, engineering and permits (PEP) and given 30 days to bring the property in compliance, or to bring his or her plans to the DRC and present sufficient justification of the unapproved design changes. After reviewing the unapproved design changes and the hearing of any evidence regarding such changes, the DRC, either in conjunction with the owner or by itself, shall provide written directives as to how to rectify the violations, if necessary, and to establish a deadline by which the building will be brought into compliance. Failure to comply with said directives or deadline shall be deemed a violation of this article. If the DRC agrees that the unapproved changes are no longer a violation, the urban design division of PEP staff will notify the owner and the inspections division of PEP in writing of that recommendation.

(c) *Penalties.* Any person who shall violate a provision of this article or fail to comply therewith or with any of the requirements thereof, or who shall do any alteration, restoration, or demolition in violation of approved plans shall be guilty of a misdemeanor. Each such person shall be deemed guilty of a separate offense for each and every day or portion thereof during which any violation of any of the provisions of this article is

committed or continued and, upon conviction of any violation, such person shall be punished within the limits and as provided by section 1-1-6.
(Code 1980, § 7-1-208; Ord. No. 92-223, 9-1-1992; Ord. No. 00-81, § 1, 5-23-2000)

CHAPTER 2. RESERVED

CHAPTER 3. PLANNING AND SUBDIVISIONS*

ARTICLE A. RESERVED

Secs. 7-3-1—7-3-20. Reserved.

ARTICLE B. IMPROVEMENT AND SALE OF LAND SUBJECT TO SUBDIVISION REGULATIONS

Sec. 7-3-21. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Subdivision means the division of a lot, tract or parcel of land into two or more lots, plats, sites or other divisions of land, whether described by metes and bounds or by any other description, for the purpose, whether immediate or future, of sale or of building development. The term "subdivision" includes resubdivision and, when appropriate to the context, relates to the process of subdividing or to the land or territory subdivided.
(Code 1964, § 40-9; Code 1980, § 7-3-21)

Sec. 7-3-22. Approval of preliminary plat prerequisite to construction of street, etc.

It shall be unlawful for any owner of land, his or her agent or subdivider, after or with a view to subdivision thereof, to proceed with the making or construction thereon of any street, sidewalk or other way or improvement for subdivision purposes until after approval by the planning commission of a preliminary plat in accordance with the subdivision regulations of the planning commission as at the time in force. Each day's work of making or construction shall constitute a separate offense.
(Code 1964, § 40-10; Code 1980, § 7-3-22)

Sec. 7-3-23. Approval of final plat prerequisite to sale of land.

It shall be unlawful for any owner of land to sell or convey a part but not all thereof until after approval by the planning commission of a final plat in accordance with the subdivision regulations of the planning commission as at the time in force; provided that this section shall not be construed to apply to the sale or conveyance of any full lot of land comprising part of a subdivision made prior to January 1, 1956. Each sale or conveyance in violation of this section shall constitute a separate offense.
(Code 1964, § 40-11; Code 1980, § 7-3-23)

Sec. 7-3-24. Enforcement.

The city engineer and his or her assistants shall enforce the provisions of this article.
(Code 1964, § 40-12; Code 1980, § 7-3-24)

*__State law references__—City planning generally, Code of Ala. 1975, §§ 11-52-1 to 11-52-11; subdivision control, Code of Ala. 1975, §§ 11-52-30 to 11-52-36.

Title 8

MUNICIPAL COURT*

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Sec. 8-1-1. Court established.
Sec. 8-1-2. Municipal judges—Appointment and salary.
Sec. 8-1-3. Same—Qualifications.
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Sec. 8-1-8. Powers and jurisdiction generally; trial.
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Chapter 2. Clerks

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Chapter 3. Fines and Costs

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Sec. 8-4-7. Witnesses.

***Editor's note—**Chapter 45 of the 1964 Code, which provided for the former recorder's court, was amended by Ord. No. 77-253, adopted by the council on December 2, 1977, so as to provide for the establishment of a Municipal Court of the City of Birmingham. The provisions of this title are derived from Ord. No. 77-253, adopted on December 2, 1977.

State law reference—Municipal courts generally, Code of Ala. 1975, § 12-14-1 et seq.

Sec. 8-4-8. Municipal judge to determine law and facts; statement of offense; technical objections.
Sec. 8-4-9. Joinder of defendants.
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Chapter 5. Bonds and Bondsmen

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Chapter 7. Municipal Court Administrative Agency

Sec. 8-7-1. Agency established.
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Chapter 8. Pretrial Diversion Program

Sec. 8-8-1. Established.
Sec. 8-8-2. Pretrial diversion program rules and regulations.

CHAPTER 1. IN GENERAL

Sec. 8-1-1. Court established.

(a) There is hereby created, established and set up a municipal court for the city to be known as "Municipal Court of the City of Birmingham," pursuant Code of Ala. 1975, tit. 12, ch. 14, as amended, and title 8 of the General Code of the City of Birmingham, as amended.

(b) (1) There shall be five full-time municipal judges. The full-time municipal judges shall be designated as follows:

a. Municipal court judge, full-time, place No. 1;

b. Municipal court judge, full-time, place No. 2;

c. Municipal court judge, full-time, place No. 3;

d. Municipal court judge, full-time, place No. 4;

e. Municipal court judge, full-time, place No. 5.

(2) There shall be up to four part-time municipal judges. The part-time municipal judges shall be designated as follows:

a. Municipal court judge, part-time, place No. 1;

b. Municipal court judge, part-time, place No. 2;

c. Municipal court judge, part-time, place No. 3;

d. Municipal court judge, part-time, place No. 4.

(3) There shall be one part-time municipal judge designated as municipal court judge, part-time, place No. 5, which shall be a temporary office. The office of municipal court judge, part-time, place No. 5, shall sunset and cease to exist two years after the passage of this section or two years after the initial appointment filling the office, whichever is later.

Each judge's specific court assignment and place number shall be designated by the presiding judge.

(c) Nothing in this section shall prevent the city council from increasing or decreasing the number of municipal judges, as needed, by ordinance and in accordance with the Mayor-Council Act of 1955.
(Code 1980, § 8-1-1; Ord. No. 94-87, 5-10-1994; Ord. No. 19-94, § 1, 7-10-2019)

Sec. 8-1-2. Municipal judges—Appointment and salary.

The judges of the municipal court shall be appointed by the city council by vote of a majority of its members. They shall receive a salary for their services as shall be fixed from time to time by the council, provided that no judge's salary shall be diminished during his or her term of office, and any general increase in the compensation of all or substantially all municipal employees shall be applied proportionately to the salary of each municipal judge. One of these judges shall be designated presiding judge as hereinafter provided.
(Code 1980, § 8-1-2)

Sec. 8-1-3. Same—Qualifications.

Municipal judges of the city shall be licensed to practice law in the state, must be a qualified elector of the state and must not be otherwise employed in any capacity by the city, and no full-time municipal judge shall, during his or her continuance in office, engage in the practice of law or receive any remuneration for his or her judicial service except the salary and allowances authorized by the city.
(Code 1980, § 8-1-3)

Sec. 8-1-4. Same—Oath.

Each municipal judge shall, before assuming office, take and sign the oath provided by the Constitution of Alabama and a copy thereof shall be filed in the office of the secretary of state, the administrative director of courts and the clerk of

the municipality; provided that failure to file as herein required shall not render invalid any act, order or judgment of the judge.
(Code 1980, § 8-1-4)

Sec. 8-1-5. Same—Term.

The term of office of each full-time municipal judge shall be for a term of four years. The term of office of a municipal judge other than a full-time municipal judge shall be two years. The term of either full-time or part-time municipal judges shall continue until a successor has been appointed and qualified. The mayor shall designate a presiding judge, who shall have those additional duties and powers and be entitled to receive the additional compensation as provided by ordinance.
(Code 1980, § 8-1-5)

Sec. 8-1-6. Duties; absence, death or disability, appointment of judge.

(a) It shall be the duty of each municipal judge to keep an office in the city and to hear and determine all cases for the breach of this Code or other ordinances of the city that may be brought before him or her. Each municipal judge is especially vested with and may exercise full jurisdiction in all prosecutions for the breach of the ordinances of the city within its police jurisdiction and any other jurisdiction as may be authorized by law as in quasi-criminal matters, and may impose the penalties prescribed by law for the violation of the laws and ordinances of the city and state, and shall have all the powers conferred upon that judge by this title or any other law.

(b) The office of a municipal judge shall be vacant if he or she dies, resigns or is removed, and vacancies shall be filled by the municipal governing body in the same manner as original appointments are made.

(c) In the absence from the city, death, disability or disqualification of a municipal judge, for any reason, the mayor shall have the authority to designate a person, licensed to practice law in the state and a qualified elector of the state, not otherwise employed in any capacity by the municipality, to serve as acting municipal judge under the direction of the presiding judge, with all power and authority of a duly appointed municipal judge. No such acting judge may serve for more than 30 successive days or a total of 60 days in any calendar year; provided that when the duly appointed municipal judge is disqualified pursuant to the state constitution, the time of service limitations for acting judges shall not apply during the disqualification.

(d) The municipal judge shall be subject to all grounds of disqualification from hearing specific cases applicable to circuit judges.

(e) No full-time municipal judge shall, during his or her continuance in office, engage in the practice of law or receive any remuneration for his or her judicial service, except the salary and allowances authorized by the city.

(f) No full-time municipal judge shall engage in campaign activities in connection with a political candidate other than candidates for judicial office and shall not be involved in political fund solicitations other than for his or her campaign which funds shall not be used for his or her private benefit.

(g) A full-time municipal judge shall resign his or her office when he or she becomes a candidate either in a political or in a general election for a nonjudicial office.

(h) A full-time municipal judge shall prohibit public officials or employees subject to his or her direction or control from doing for him or her what he or she is prohibited from doing by law or by the Canons of Judicial Ethics.

(i) The presiding judge of municipal court shall, when required, report to the council on the operation of the court and shall report on the proceedings of the court as otherwise required by law or rule.

(j) The presiding judge shall designate personnel to be responsible for accounting for all uniform traffic tickets and complaints used in the court. These personnel shall be responsible for the proper disposition and accounting of the tickets and shall cause to be prepared and submitted records and reports relating to the uniform

traffic ticket and complaint on a regular, systematic, basis, not less than monthly, to the administrative director of courts (ADC).
(Code 1980, § 8-1-6; Ord. No. 94-88, 5-10-1994)

Sec. 8-1-7. Time and place sessions of court held; facilities, personnel, etc.

(a) Municipal judges shall hold morning and afternoon sessions each day and evening sessions when required, except Saturdays, Sundays and recognized holidays under the direction of the presiding judge who shall direct the place and time for these sessions and assign quarters therefor.

(b) The mayor shall provide for prosecution, appropriate facilities, supplies, furnishings and necessary supportive personnel for the municipal court, and may provide for probation services, clerks and municipal employees designated as magistrates, as well as provide for indigent defense services as required by law.
(Code 1980, § 8-1-7)

Sec. 8-1-8. Powers and jurisdiction generally; trial.

(a) The municipal court and the judges thereof shall have and exercise all the power and jurisdiction which is now and which may from time to

time hereafter be conferred upon them, respectively, by the constitution, statutes and ordinances of the state and city.

(b) The municipal judges shall have power to administer oaths, to compel the attendance of witnesses and to compel the production of papers and books.

(c) The municipal court shall have concurrent jurisdiction with the district court of all acts constituting violations of state law committed within the police jurisdiction of the municipality which may be prosecuted as breaches of municipal ordinances.

(d) All cases in municipal courts will be tried by a judge without a jury.
(Code 1980, § 8-1-8)

Sec. 8-1-9. Presiding judge.

One of the permanent judges regularly assigned to the trial of cases shall be appointed by the mayor to serve as presiding judge of the municipal court in addition to the regular duties of that judge. All cases brought for the violation of any provision of this Code, or other bylaw or ordinance of the city or state, shall be brought before the presiding judge for disposition unless otherwise directed by that judge. The presiding judge shall have full authority to hear all pleas and motions relating to those cases and to assign the cases to another judge for trial or other disposition so as to equalize and expedite the work of the court. He or she shall also have authority to prescribe reasonable rules and regulations for the dispatch of the business of the court. He or she shall have direct charge and supervision of all clerks and other personnel of the court; provided that law department reporters, otherwise known as court reporters, shall not be considered a part of the personnel of the court. During his or her absence or inability to serve as presiding judge on account of illness, absence from the city or other reason, a temporary presiding judge may be appointed by the mayor. The presiding judge (other than a temporary presiding judge), in addition to his or her regular compensation as a municipal judge, shall receive additional compensation for the additional duties and responsibilities imposed by this section at the rate of five percent of the regular monthly compensation of a municipal judge per month. The presiding judge shall be entitled to any additional compensation only during his or her tenure as presiding judge.
(Code 1980, § 8-1-9; Ord. No. 95-115, § 1, 6-20-1995)

Sec. 8-1-10. Power to fine or imprison generally.

(a) The municipal judge trying any person for violation of any provisions of this Code or other bylaw or ordinance of the city shall, upon conviction of that person, have the power to fine and imprison him or her; provided, however, that no fine or sentence of imprisonment shall exceed the maximum fine and sentence provided by the city ordinance violated or be imposed where prohibited by law. The penalty imposed on a corporation shall consist of the fine only, plus costs of court.

(b) In the enforcement of the penalties prescribed in the Code of Ala. 1975, § 32-5A-191, as amended, "Driving while under the influence of alcohol or controlled substances, etc.," the fine shall not exceed $5,000.00 and any sentence of imprisonment or hard labor shall not exceed one year as provided by the Code of Ala. 1975, § 11-45-9, as amended.

(c) As provided by the Code of Ala. 1975, § 13A-5-12.1, as amended, the maximum fine for every person convicted for misdemeanor theft crimes and certain other misdemeanor crimes based on monetary value that are enumerated in Alabama Acts 2003, Act No. 2003-355, shall be $1,000.00 and any sentence of imprisonment or hard labor for such crime shall not exceed six months.

(d) In the event the fine and costs are not presently paid, the defendant may be required to work out the fine and costs under the direction of the city authorities, allowing $25.00 for each day's service. Provided, further, that the court may, in its discretion, remit fines, costs and fees, and impose any other remedial punishment as authorized by law.

(e) Upon conviction, the court may, upon a showing of inability to make immediate payment of fines and costs, accept defendant's bond with or

without surety and with waiver of exemptions as to personalty payable within 90 days, upon nonpayment of which execution may issue as upon judgments in state courts.

(f) The municipal judge shall have the authority to continue the case from time to time to permit the fine and costs to be paid, remit fines, costs and fees, impose intermittent sentences, establish work release programs, require attendance of educational, corrective or rehabilitative programs, suspend driving privileges for those times and under the conditions as provided by law and order hearing to determine the competency of the defendant to stand trial; provided, further, that the judge may enter an order authorizing the defendant to drive under the conditions set forth in the order.

(g) The municipal court may also suspend the execution of sentence and place a defendant on probation as provided in section 8-6-2.
(Code 1980, § 8-1-10)

Sec. 8-1-11. Contempts.

The municipal judges of the city shall have power to punish for contempts by a fine not exceeding $50.00 or imprisonment not exceeding five days, or both.
(Code 1980, § 8-1-11)

Sec. 8-1-12. Search warrants.

(a) A search warrant may be issued by the municipal judge to search for any personal property when it is made to appear to him or her upon oath that there is probable cause to believe that the property was stolen or embezzled, or was used as the means of committing a felony, or is in the possession of any person with the intent to use it as a means of committing an offense contrary to the laws of the state or of the city, or is in the possession of another to whom the same may have been delivered for the purpose of concealing it or preventing its discovery. These warrants are returnable to the municipal court for ordinance violations and to any state court for violations of state law.

(b) An administrative search warrant may be issued by any municipal judge of the city to inspect any place or premises in the city as to structural or other condition on, upon or in any place or premises where an inspection is to be made pursuant to, under the provisions of, or for the enforcement of an ordinance or regulation of the city when it is made to appear to any such municipal judge upon oath of any employee of the city or of the county board of health that facts exist which show a reasonable need for such an inspection and entry, that the owner or person in charge or possession of the place or premises to be inspected has refused to permit an entry and inspection of the place or premises and that the employee is acting under proper authorization.

(c) Any search warrant issued hereunder shall be directed by the municipal judge to the employee applying for the same commanding him or her to inspect that place or premises named therein between the hours of 8:00 a.m. and 4:00 p.m. or any other reasonable time during daylight hours as the municipal judge may prescribe and within ten days after the issuance thereof, to make proper return on the writ to the municipal judge issuing the same specifying that the warrant has been executed by performing the inspection authorized thereby or otherwise setting out the reason why the inspection was not performed. The administrative search warrant must be executed by making the inspection authorized thereby within ten days after its date, and after that time, if not so executed, is void.
(Code 1980, § 8-1-12)

State law reference—Search warrants generally, Code of Ala. 1975, § 15-5-1 et seq.

Sec. 8-1-13. Interference with officers, etc., prohibited.

(a) It shall be unlawful for any person to interfere with, oppose or obstruct any officer or employee of the city or employee of the county board of health while that officer or employee is engaged in making an inspection or attempting to make an inspection of any place or premises under a search warrant issued under the provisions of section 8-1-12(b).

(b) It shall be unlawful for any person in possession or control of any place or premises to be inspected under a search warrant issued under the provisions of section 8-1-12(b) to refuse to permit an inspection thereof as authorized by that warrant.
(Code 1980, § 8-1-13)

Sec. 8-1-14. Reserved.

Sec. 8-1-15. Attorneys, city employees not to act as agents for attorneys.

It shall be unlawful for any person in the employment of the city to act as agent for any attorney in securing cases from prisoners for that attorney, or to summon any lawyer to the city jail, except at the request of the prisoner.
(Code 1980, § 8-1-15)

CHAPTER 2. CLERKS

Sec. 8-2-1. Appointment; deputy and court administrator.

The mayor shall designate one of the senior clerks as court administrator. The court administrator, under the direction of the presiding judge, shall be charged with the responsibility of keeping all the records, documents and dockets of the court, and he or she shall act in a supervisory capacity over all other clerks. The court administrator shall also be responsible for the collection of fines and costs from the summary disposition of nondisputed traffic infractions, minor ordinance violations, and municipal parking violations as provided in Alabama Rules of Judicial Administration, Rules 19 and 20, and shall properly account for all uniform traffic tickets and complaints (UTTC) upon which said traffic infractions have been charged, and shall cause to be prepared and submitted records and reports relating to the UTTC on a regular systematic basis, as may be requested by the administrative director of courts (ADC).
(Code 1980, § 8-2-1; Ord. No. 89-224, 9-26-1989; Ord. No. 92-176, 6-30-1992; Ord. No. 93-271, 11-9-1993)

Sec. 8-2-2. Power as to oaths, summonses and other papers.

The clerks and magistrates of the municipal court shall have power to administer oaths and take affidavits in all cases in which oaths and affidavits are required by law, to issue summonses for witnesses, scire facias on forfeited bonds and any or all other papers or processes necessary for a speedy conduct of the business of the court.
(Code 1980, § 8-2-2)

CHAPTER 3. FINES AND COSTS

Sec. 8-3-1. Fines to be paid in money.

All fines and costs imposed by the municipal judges of the city and any other fines or costs payable to the city shall be paid in lawful money of the United States, but in no case where the fine and costs exceed the amount of $5.00 may the fine be paid by pennies.
(Code 1980, § 8-3-1)

Sec. 8-3-2. Fines for benefit of city.

All fines, penalties, forfeitures and recoveries for violation of any provision of this Code or other ordinance of the city shall be for the use and benefit of the city, unless otherwise expressly provided.
(Code 1980, § 8-3-2)

Sec. 8-3-3. Payment of fines, etc., to director of finance.

The court administrator or any clerk or deputy clerk who shall collect or receive any fines or costs or forfeitures assessed against any person or who shall accept any deposit from any person in lieu of bail shall promptly remit all those amounts or a report of those amounts so collected daily to the director of finance unless otherwise provided herein. Any such deposits in lieu of bail remitted to the director of finance shall be held in a special account to the credit of the court administrator of the municipal court to be held and disbursed as required by law.
(Code 1980, § 8-3-3)

Sec. 8-3-4. Charging certain fees.

The court administrator of the municipal court is authorized to charge fees for any transcripts furnished to any party interested or any documents, official books and papers in his or her possession, custody or control, or of any judicial proceedings in the municipal court, such as are allowed clerks of the circuit court or district court for similar services. All these fees so collected by the clerk shall be remitted to the director of finance.
(Code 1980, § 8-3-4)

Sec. 8-3-5. Additional court cost to benefit municipal jail, municipal court, etc.

(a) Upon each conviction in municipal court for a violation of any provision of this Code or other ordinance of the city, there shall be taxed against the defendant as court costs and fees the maximum amount of court costs and fees that are allowed to be charged in the District Court of Jefferson County for a similar case.

(b) All court costs and fees imposed by the state statutes or rules shall be remitted pursuant to such statutes or rules.

(c) Pursuant to Code of Ala. 1975, § 12-14-14, as amended, the sum of $5.00 shall be paid into the city's general fund from the costs taxed according to subsection (a) of this section.

(d) Pursuant to Code of Ala. 1975, § 12-14-14, as amended, an additional sum of $10.00 shall be paid into the city's general fund from the costs taxed according to subsection (a) of this section.

(e) Pursuant to Code of Ala. 1975, § 12-19-172(d), as amended, the sum of $2.00 shall be paid into the city's general fund from the costs taxed according to subsection (a) of this section to be used only for equipment, training, and certification of municipal court officials and employees.

(f) The difference in the amount of the court costs collected pursuant to subsection (a) of this section and the remittances made pursuant to subsections (b), (c), (d) and (e) of this section shall be paid into the City of Birmingham Corrections Fund to be used exclusively for the operation and maintenance of the Birmingham Municipal Jail, the Birmingham Municipal Court or any other correctional facility or court complex established after the effective date of the ordinance from which this section is derived.

(g) Any subsequent increase in court costs or fees for traffic, non-traffic, DUI, or drug cases mandated by the state or any increase in the court costs or fees of the District Court of Jefferson County for misdemeanor cases, whether traffic, non-traffic, DUI or drug cases, shall cause the court costs in the city municipal court to increase by the same amount and shall be remitted pursuant to the statute or rule instituting such increase.

(h) The costs in every case tried before the municipal judge shall be entered on the trial docket; and in no case shall any person be entitled to any fees unless these fees are clearly set down, item by item, on the docket. It shall be the duty of the judge to see that this section is enforced.
(Code 1980, § 8-3-5; Ord. No. 02-133, 9-17-2002; Ord. No. 08-103, 5-13-2008)

State law reference—Additional court costs authorized, Code of Ala. 1975, § 11-47-7.1.

Sec. 8-3-6. No costs to be paid by city.

No part of the costs nor any of the fees due any officer in any case or proceeding for a violation of this Code or other city ordinance shall be taxed against or paid by the city.
(Code 1980, § 8-3-6)

Sec. 8-3-7. Costs of frivolous prosecutions.

Whenever a person is tried on the complaint of another and is acquitted, the municipal judge may, if he or she is satisfied that the complaint is frivolous or malicious, tax the party making the same with all or any part of the costs, at his or her discretion, and the same shall be collected as other costs.
(Code 1980, § 8-3-7)

Sec. 8-3-8. Administrative adjudication of certain minor offenses in lieu of trial.

(a) With the exception of the following violations:

(1) Violations resulting in personal injury;

(2) Operation or possession of a motor vehicle while intoxicated;

(3) Reckless driving;

(4) Felonies or indictable offenses;

(5) Operation of a motor vehicle while license is suspended or revoked;

(6) Where the alleged offense is a moving violation or violation of section 11-8-8, premises to be kept free of garbage, weeds, inoperable motor vehicles, tires, and the alleged offender has previously been convicted to two or more moving violations or two or more violations of section 11-8-8, respectively, within the preceding 12 months;

(7) Failure to report an accident;

(8) Leaving the scene of an accident;

(9) Racing;

(10) Reckless driving in a parking lot; and/or

(11) Disregarding of a school bus signal;

violations of this Code and other ordinances of the city which have established by ordinance a schedule of fines for each such violation may be settled voluntarily, without any costs unless otherwise required by law, by the person charged with any such violation by an administrative adjudication in the manner herein proscribed.

(b) A defendant charged with a traffic infraction or minor misdemeanor where a schedule of fines has been prescribed by rule or ordinance or pursuant thereto may, within seven days, or, in the discretion of the magistrate, at any time on or before the court date shown on the ticket:

(1) Appear in person at the city magistrate's office, sign a plea of guilty and waiver of trial provision on the ticket or other form provided by the city, and pay the required fine and costs, a copy of which ticket or form shall be retained by the magistrate. In other cases where citations are given and do not require a court appearance, the payment of said citations properly made and accepted by the city shall constitute a waiver of trial.

(2) Sign the guilty plea and waiver of trial provisions on the ticket or form provided and mail the ticket and the amount of the required fine and costs to the clerk of the court. Remittance by mail of such fine and costs constitutes a guilty plea and waiver of trial whether or not the guilty plea and waiver of trial provision on the ticket are signed by the defendant. In other cases where citations are given and do not require a court appearance, the payment of said citations properly made and accepted by the city shall constitute a waiver of trial. Should the amount tendered be insufficient, such money received by the magistrate or clerk shall be considered to be a partial payment of the lawful penalty, applied by the clerk to the fines and costs and disbursed as required by law. The clerk may give notice of such insufficiency, and a supplemental summons or warrant of arrest shall be issued for the offender's arrest, and a judgment shall be entered by the court for the balance of the penalty due.

(3) When a defendant fails to appear pursuant to a ticket for a traffic infraction or minor misdemeanor issued to him or her or any bond executed by him or her, the court shall issue a supplemental summons or warrant and forfeit bail according to law. The case thereafter shall be disposed of as a court case upon the arrest of the defendant, but nothing herein shall prevent the defendant from making bail or bond anew in the same manner as other defendants.

a. Provided, however, that, notwithstanding the provision hereinabove, if the alleged offense is that of a moving or a defective

equipment violation and the alleged violator has not properly disposed of the violation by the date and at the time set in the citation for court appearance, then the court may, in lieu of the foregoing, refer the citation to the magistrate and may extend the period during which payment may be made for not less than seven nor more than 21 days from the original court appearance date; in addition to the basic fine, court costs and fees paid during this period and prior to docketing for court appearances, there shall be a penalty of $10.00 in addition to the amount set for the basic fine as set out in section 8-3-10, summary disposition of minor traffic and other minor offenses fine schedule; and

b. If the alleged offense is that of any nonparking violation or any nonmoving violation as is prohibited by this Code, as amended, or any other ordinance of the city, and if the alleged violator does not make application for payment or appear in municipal court on the date and at the time set in the citation for court appearance, then the court may, in lieu of the foregoing refer the citation to the magistrate and may extend the period during which payment may be made for not less than seven nor more than 21 days from the original court appearance date. In addition to the basic fine paid during this period and prior to docketing for court appearance, there shall be a penalty of double the amount set for the basic fine as set out in section 8-3-10, summary disposition of minor traffic and other minor offenses fine schedule, if the basic fine is less than $10.00. If the basic fine as set out in section 8-3-10 is $10.00 or more, then the penalty to be paid in addition thereto shall be $10.00.

c. If the alleged offense is that of any parking violation or as is prohibited by this Code, as amended, or any other ordinance of the city, and if the alleged violator does not make application for payment or appear before a magistrate on the date and at the time set in the citation for appearance, then the magistrate may extend the period during which payment may be made for not less than seven nor more than 21 days from the original court appearance date. In addition to the basis fine paid during this period and prior to docketing for court appearance, there shall be a penalty of double the amount set for the basic fine as set out in section 8-3-10, summary disposition of minor traffic and other minor offenses fine schedule, if the basic fine is less than $10.00. If the basic fine as set out in section 8-3-10 is $10.00 or more, then the penalty to be paid in addition thereto shall be $10.00.

d. Any person who has received a citation for driving a vehicle without required headlights, brake lights, taillights, or tag lights may avoid the payment of any penalty therefor by having the equipment repaired and inspected by any police officer of the city within 72 hours after receiving the citation, excepting legal holidays and Sundays. Upon such inspection, if the officer ascertains that the equipment is in good repair, he or she may make a written recommendation on the citation that the citation be voided. Any such citation presented to the magistrate on or before the date marked for court appearance shall be voided.

e. Any person who has received a citation for the following:

   1. Defacing pavements or curbstones;

   2. Sweeping trash into streets;

3. Throwing litter upon public or private ways;

4. Allowing defective or unsafe conditions of sidewalks or grass plots;

5. Allowing fences to encroach on public rights-of-way;

6. Maintaining gates and doors opening over public ways; or

7. Causing or permitting abutting sidewalks to be unclean;

may avoid the payment of any penalty therefor by correcting the violation and having it inspected by the sanitation inspector who is assigned to the district in which the violation occurred within 72 hours after receiving the citation, excepting legal holidays and Sundays. Upon such inspection, if the inspector ascertains that the violation has been corrected in accordance with this Code and ordinances of the city he or she may make a written recommendation on the citation that the citation be voided. Any such citation presented to the magistrate on or before the date marked for court appearance shall be voided.

(4) Fines and costs from the summary disposition of minor traffic infractions and misdemeanors shall be paid to the clerk of the court, who shall dispense said funds as provided by law; provided, however, that the magistrates serving outside the office of clerk shall transfer all records, including the ticket and plea of guilty, within the next two days that the court is open for business of receipt thereof, and all fines and costs in accordance with rules adopted by the administrative director of courts.

(Code 1980, § 8-3-8; Ord. No. 80-136, 7-15-1980; Ord. No. 82-48, 3-9-1982; Ord. No. 85-30, 3-5-1985; Ord. No. 92-136, 6-2-1992; Ord. No. 94-85, 5-3-1994; Ord. No. 97-96, 8-12-1997)

Sec. 8-3-9. Voluntary settlement of charges of drunkenness in lieu of trial.

(a) Any person who is in the city jail charged with drunkenness or drunken conduct under section 11-6-12 who is not then manifesting an intoxicated condition may make bond, with or without surety, as approved by the municipal judge or his or her designee, for appearance in municipal court to answer the charge at a specified time and date not less than ten nor more than 15 days thereafter, and the warden or his or her designee shall issue to that person a citation to be signed by the defendant stating the time and date for the appearance in court whereupon the person shall be released from custody forthwith; provided that any such person, unless otherwise provided in this section, may apply for an administrative disposition of his or her case in the manner provided in section 8-3-8 prior to the date his or her case is set for court in lieu of trial of the charge and the city magistrate is authorized to accept the application and to make a summary disposition of the case in the manner provided. The fine to be imposed in the administrative or summary disposition shall be the amount of $20.00 plus any required court costs. In the event any person bonded in accordance with the provisions of this section shall fail to make timely application for the administrative or summary disposition, he or she shall appear in court at the specified time and the charge shall then be disposed of as otherwise provided by law. The provisions of this section shall be limited to cases of drunkenness unaggravated by any other alleged offense.

(b) The provisions of this section shall apply to persons who have not within the previous 12 months been adjudged guilty of the offense either upon trial or by an administrative or summary disposition as herein provided, and any such person who has been adjudged guilty of such charge within the previous 12-month period shall be required to make bond, approved by an authorized officer, and his or her case set at a specified time and date for disposition according to law.

(Code 1980, § 8-3-9)

Sec. 8-3-10. Summary disposition of minor traffic and other minor offenses by fine schedule.

(a) The following listed schedules of minor traffic and misdemeanor offenses and parking violations and fines therefor may be settled voluntarily by the person charged for any such violation by administrative adjudication as provided in section 8-3-8:

(1) The schedule of fines for traffic infractions, established by Rule 20(A), Alabama Rules of Judicial Administration, as now or hereafter amended, shall apply if the defendant in a municipal court case elects to plead guilty before a magistrate to one of the traffic offenses listed in this schedule. Subsequent amendments to the schedule of fines established under Rule 20(A) shall apply.

(2) Pursuant to Rule 20(C), Alabama Rules of Judicial Administration, the state supreme court's extended schedule of fines as it appears in appendix B to Rule 20 of the Alabama Rules of Judicial Administration, as now or hereafter amended, shall apply if the defendant in a municipal court case elects to plead guilty before a magistrate to any of the offenses listed in this schedule. Subsequent amendments to the extended schedule of fines as it appears in appendix B to Rule 20 shall apply.

(3) Pursuant to Rule 20(C), Alabama Rules of Judicial Administration, the following local schedules of fines shall apply if the defendant in a municipal court case elects to plead guilty before a magistrate to any of the offenses listed in this schedule:

Moving Offenses	*Fine Amount*
Driving wrong way on one-way street	$60.00
Driving wrong way in one-way alley	$40.00
Fail to obey traffic markers in intersection	$40.00
Fail to obey traffic control device	$40.00
Fail to stop for flashing red light	$40.00
Driving through a funeral procession	$40.00
Illegally crossing the median on the interstate	$60.00
Failure to drive in the proper traffic lane	$40.00
Improper changing of traffic lanes	$40.00
Cutting in on a passed vehicle	$40.00
Failing to yield to passing vehicle	$40.00
Passing on curve, hill or railroad tracks	$40.00
Prohibited left turn at an alley or driveway	$40.00
Failing to yield from driveway or alley	$40.00
Slow moving vehicle failed to keep right	$40.00
Driving in public park except on roadways	$40.00
Driving with overcrowded front seat	$40.00
Improper starting from a parked position	$40.00
Failed to stop at sidewalk before entering street	$40.00
Failing to stop at crosswalk when traffic obstructed	$40.00
Driving upon a play street	$40.00

Moving Offenses	*Fine Amount*
Illegal hauling of junk vehicles	$100.00
Overloaded truck	$60.00
Off truck route	$40.00
Illegal vehicle on interstate or expressway	$40.00
Speeding on bicycle	$40.00
Riding bicycle on interstate	$40.00
Riding bicycle through red light	$40.00
Clinging onto vehicle while on bicycle or motorcycle or skates	$40.00
Passenger on running board or on outside of vehicle	$40.00
Jumping on or off or hanging onto a moving vehicle	$40.00
Pedestrian walking on roadway where sidewalks are provided	$40.00
Pedestrian walking on freeway or interstate	$40.00
Pedestrian suddenly walking/running into path of vehicle	$40.00
Pedestrian walking on wrong side of highway	$40.00
Walking against red or amber light or don't walk light	$40.00
No driver's license in possession*	$20.00
Stopping on highway	$60.00
*This does not include the $50.00 penalty imposed pursuant to Code of Ala. 1975, §§ 32-6-18 and 32-6-19.	

Equipment Offenses	*Fine Amount*
No or improper warning device	$40.00
No or improper windshield wipers	$40.00
No reflector or clearance lights on bus or truck	$40.00
Television receiver screen in vehicle	$40.00

General Non-Traffic Offenses	*Fine Amount*
Operating any radio, tape player or other device producing amplified sound by a passenger on a common carrier without an earplug or other device to abate the sound	$150.00
Operating radio, tape player or other device producing amplified sound from vehicle louder than necessary for convenient hearing of vehicle occupants and in a manner as to disturb neighboring inhabitants	$150.00
Unnecessary horn blowing	$40.00
Opening vehicle door into lane of traffic	$30.00
Blocking street crossing with RR trains	$100.00
Vehicle tracking dirt or mud or debris	$100.00
Throwing debris on public or private way (except from a vehicle)	$200.00
Disposal of garbage or refuse in an area other than is authorized	$70.00
Misuse of city waste receptacles by places of business	$70.00
Throwing or sweeping of trash into city streets	$100.00
Unlawfully obstructing sanitary or storm sewers with garbage, rubbish or any other substance or to damage the same	$100.00
Unlawfully obstructing the free flow of water in gutters and ditches by any substance	$100.00
Duty to keep premises free of garbage, rubbish, inoperable motor vehicles and tires and weeds	
First offense within one year	$200.00

General Non-Traffic Offenses	*Fine Amount*
Second offense within one year	$500.00
Allowing dog to run at large (first offense within a 12-month period)	$200.00
Failure to properly dispose of dog excrement	$100.00
Posting advertisements on fences, buildings, poles, viaducts	$50.00
Display of advertising on awnings	$20.00
Depositing dead animals on streets	$100.00
Failure to maintain fences in good repair	$50.00
Failure to keep dwellings and premises clean and sanitary	$100.00
Failure to keep commercial or industrial property clean and sanitary	$100.00
Improper disposition or storage of commercial or industrial rubbish, garbage	$100.00
Improper disposition or storage of rubbish, garbage, etc., in a dwelling unit	$100.00
Failure to use or maintain containers for garbage disposal	
Residential	$60.00
Commercial	$100.00
Failure to observe time restrictions on putting out or taking in garbage containers	$20.00
Opening or disturbing garbage containers	$30.00
Improper disposal or bailing of boxes, crates, etc.	$60.00
Failure to keep abutting sidewalk clean and clear	$70.00
Allowing gates and doors to open over public right-of-way	$40.00
Failure to remove obstructions from abutting right-of-way	$60.00
Failure to keep and maintain parking lot and premises clean	$70.00
Failure to remove waste cuttings, trimmings, etc., to landfill	$150.00
Junk dealer, peddler, etc., storing or permitting junk on street, alley, sidewalk or other public property	$100.00
Soliciting, watching or guarding of vehicles	$30.00
Placing objects on or in planter boxes on Birmingham Green	$50.00
Walking, standing or sitting on or in planter boxes on Birmingham Green	$40.00
Placing objects or debris on commemorative walk at Boutwell Auditorium	$50.00
Pedestrian littering city right-of-way	$200.00
Riding bicycle on sidewalk in business district	$20.00
No or improper lights on bicycle	$20.00
Riding on handlebars or frame of bicycle	$20.00
Riding bicycle with hands off handlebars	$20.00
No red flag or light on end of overhanging load (parked)	$100.00
Interfering with barriers or red lanterns	$50.00
Placing advertisement in or upon vehicle on a public way of the city	$50.00
Skating in street	$30.00
Skating in loop area on sidewalk	$30.00
Skating in front of church	$30.00

Public Service Vehicles Offenses	*Fine Amount*
Driver sleeping in taxi	$100.00
No or improper display on taxi	$50.00
Unserviceable public service vehicle	$200.00
High flagging	$100.00
No taxicab light, meter light or taximeter light	$50.00
Failure to clear taximeter	$100.00
Dirty public service vehicle	$100.00
Improper, dirty or soiled cab driver uniform	$100.00
No public service vehicle driver's license	$300.00
Failure to display cab driver's license	$50.00
No public service vehicle business license	$300.00
No certificate of public necessity and convenience (CPNC)	$300.00
Taximeter not properly sealed	$100.00
Fast taximeter	$200.00
Operating taxicab after PSV license suspended	$300.00
Illegal change of tires on taxicab	$100.00
Failure to keep accurate trip sheet	$50.00
Failure to transport passenger	$100.00
Failure to post maximum rate of fare	$100.00
No jitney permit	$100.00
Off jitney route	$100.00
Illegal pickup of passenger by jitney	$100.00
No ambulance attendants license	$100.00
Improper or dirty ambulance uniform	$50.00
Operating ambulance or invalid coach without each item of essential equipment	$100.00
Failure to have licensed EMT attending patient	$100.00
No city ambulance permit	$200.00
No city wrecker permit (vehicle)	$100.00
No city wrecker permit (driver)	$100.00
No or improper I.D. on wrecker	$50.00
No revolving amber light on wrecker	$50.00
Towing without amber light on	$100.00
Illegal use of amber light	$100.00
Allowing wrecker to operate without permit	$100.00
Failure to display wrecker permit (sticker on vehicle)	$50.00
Radio turned to police shortwave band	$100.00
Soliciting business at the scene of an accident	$50.00

Parking Violations	*Fine Amount*
Parking semitrailer truck or tractor over one hour on public way	$50.00
Stopping in intersection or crosswalk	$50.00
Improper parking more than 12 inches from curb	$30.00
Parking in alley	$30.00
Blocking alley (with vehicle)	$30.00
Parking on narrow street	$30.00
Stopping, standing or parking - hazardous or congested place	$30.00
No parking to corner	$30.00

Parking Violations	*Fine Amount*
Standing or parking on one-way streets or roadways	$40.00
Parking broken down or inoperative vehicle	$30.00
Unlawfully driving a vehicle other than a bicycle across or upon any curb or paved or unpaved sidewalk (parked)	$30.00
Parked on the street for:	
Advertising vehicle for sale	$50.00
Washing, greasing or repair (other than emergency repair)	$50.00
Storage	$40.00
Parked near schools or parks	$30.00
Priority in right to occupy parking space	$30.00
Parking on private property without permission	$30.00
Parking in front yard	$50.00
No parking anytime	$30.00
Prohibited parking during certain hours	$30.00
Parked passenger or freight loading zone	$25.00
Parking, stopping, standing bus other than at bus stop	$30.00
Parking, stopping, standing taxicab other than at taxi or cabstand	$30.00
Taxi unoccupied over 15 minutes in cabstand	$30.00
Other vehicle parking in bus lane or stop or cabstand	$30.00
Parking in prohibited zone between safety zone and curb	$40.00
Unlawful parking in designated space	$30.00
Parking on city hall lots	$30.00
Parking on municipal owned property	$30.00
Parking over line at meter	$30.00
Meter violation	$15.00
Overtime parking at meter	$15.00
Parking overtime except at meter	$15.00

(b) In addition to the basic fine amount, applicable court costs shall be added to all offenses listed in the schedules hereinabove, unless otherwise stated; provided, however, that parking violations listed in the local schedule of fines shall not be subject to court costs.

(c) Any person charged with a violation of a general non-traffic offense, including a first offense curfew violation, or public service vehicle offense as set out hereinabove who elects to plead guilty to any such offense must complete and sign a guilty plea and waiver form before such plea can be accepted.

(d) These schedules of fines shall be prominently displayed in the offices of the magistrate and other locations where fines are received or adjudicated.

(e) These schedules shall apply only in cases where the defendant elects to plead guilty to any of the offenses enumerated in the schedules. Offenses heard by a judge in municipal court are subject to the penalties prescribed by section 1-1-6.

(Code 1980, § 8-3-10; Ord. No. 92-137, § 1, 6-2-1992; Ord. No. 94-86, § 1, 5-3-1994; Ord. No. 94-136, § 1, 6-21-1994; Ord. No. 94-141, § 1, 6-28-1994; Ord. No. 95-63, § 1, 4-11-1995; Ord. No. 96-22, § 1, 1-23-1996; Ord. No. 96-130, § 1, 7-2-1996; Ord. No. 97-97, § 1, 8-12-1997; Ord. No. 02-172, 12-10-2002; Ord. No. 03-28, 3-4-2003; Ord. No. 03-33, § 1, 3-18-2003; Ord. No. 04-145, § 1, 12-21-2004; Ord. No. 08-106, § 1, 5-20-2008; Ord. No. 08-210, § 1, 9-30-2008; Ord. No. 09-101, § 1, 7-21-2009)

CHAPTER 4. PROCEDURE

Sec. 8-4-1. Service of process.

The chief of police shall cause to be served and executed any process issued by the municipal court of the city, but any other law enforcement officer or official may also execute the process.
(Code 1980, § 8-4-1)

Sec. 8-4-2. When and how prosecutions begun.

Prosecutions for violation of the provisions of this Code and other city ordinances shall be commenced within 12 months after the commission of the act or offense complained of, and may be begun by warrant of arrest, by arrest without a warrant, by summons, or by any other manner provided by law.
(Code 1980, § 8-4-2)

Sec. 8-4-3. Given and surname of defendant to be employed.

The name of every person complained of in the municipal court shall include his or her given and surname and any other name or initial of the person in the commencement of any prosecution against the person in the court and in all subsequent proceedings in any prosecutions, unless the name is not readily ascertainable.
(Code 1980, § 8-4-3)

Sec. 8-4-4. When warrant of arrest issued; form.

Upon a complaint being made to the municipal judge or a city magistrate that the person so complaining has probable cause for believing, and does believe, that an offense has been committed against this Code or other ordinances of the city, then the judge or magistrate shall examine the person so complaining under oath, and other witnesses, if he or she so desires, touching the offense complained of and if the judge or magistrate shall be reasonably satisfied that the offense alleged has been committed and that there is reasonable ground to believe that the person charged with the offense is guilty thereof, he or she shall issue his or her warrant of arrest on forms as prescribed by the Alabama Rules of Criminal Procedures.
(Code 1980, § 8-4-4)

Sec. 8-4-5. Disposition of persons arrested.

(a) When any person is arrested, with or without a warrant, for a violation of any provisions of this Code or other city ordinance, the officer making the arrest shall forthwith bring the person before a municipal court judge or deliver him or her to the city warden, who shall detain him or her in custody until he or she can be brought before a municipal court judge to be dealt with according to law, unless the person shall give written bond to be approved by a municipal judge or his or her designee in such amount as the judge shall prescribe, pursuant to the Alabama Rules of Criminal Procedure, or release the person as otherwise provided by law, conditioned for his or her appearance before the municipal court on a day named therein, not more than ten days after the arrest, to answer the charge preferred against him or her. On giving the bond, the person shall be discharged from custody and the bond shall be forthwith delivered to the municipal court.

(b) It shall be unlawful for any person to willfully fail to appear in municipal court pursuant to his or her written bond given in accordance with this section, or from time to time as the court may direct, regardless of the disposition of the charge upon which he or she was originally arrested. Any failure to appear shall be prima facie presumed to be willful.
(Code 1980, § 8-4-5)

Sec. 8-4-5.1. Failure to appear on parking violations.

It shall be unlawful for any person to willfully fail to either pay the fine owing for a parking violation or to appear before a magistrate or judge by or on the date and time set in the citation for appearance or any continuance as the magistrate or judge may direct. Any failure to so pay or appear shall be prima facie presumed to be willful.
(Code 1980, § 8-4-5.1; Ord. No. 92-138, 6-2-1992)

Sec. 8-4-6. Continuance of trials.

When a person charged with the breach of any provision of this Code or other city ordinance is brought or comes before the municipal court, the municipal judge may continue the trial from time to time as may be necessary. On the continuance, the defendant, if not previously admitted to bail, may be admitted to bail on his or her entering into an appearance bond to be approved by the municipal judge. On failure to give the bond, the defendant shall be committed to the city jail, and shall be brought before the municipal court on the day to which the trial was continued.
(Code 1980, § 8-4-6)

Sec. 8-4-7. Witnesses.

The clerk of the court, or other authorized officer, shall issue subpoenas at any time for any person to attend as a witness in the municipal court as any party may require, and the subpoena may include an order for the person to produce books, papers, documents or tangible things described therein, or any other lawful order, to appear at the court at the time when the person may be required as a witness or for other lawful purpose, designating the case in which he or she is to testify. It shall be the duty of the person so summoned to appear at the time and place designated and attend from day to day until the case is disposed of. Any person being so summoned and failing to attend as directed, without giving good excuse for the failure, shall be fined not less than $1.00 nor more than $100.00, this fine to be collected as are other fines imposed by the municipal judge. The clerk, when directed by the municipal judge, may issue attachments for defaulting witnesses, upon which proceedings must be had as in the law courts of the state; provided that in case the witness is not immediately wanted, the witness may give bond, as approved and directed by the court for his or her appearance at the time and place to be therein designated; this bond to be taken by the officer executing the writ of attachment.
(Code 1980, § 8-4-7)

Sec. 8-4-8. Municipal judge to determine law and facts; statement of offense; technical objections.

In trials before the municipal judge for violations of this Code and other city ordinances, the municipal judge shall determine both the law and the fact, and justice shall be speedily administered by him or her. No statement of the offense need be made other than that contained in the affidavit or warrant of arrest, and if the defendant has been arrested without a warrant, the entry on the docket of the offense charged shall be treated as the statement, unless the defendant shall demand a written complaint. It shall be sufficient statement of the offense in the affidavit, warrant or entry on the docket to designate the offense or act done by name or by some phrase which in common parlance designates it. It shall be no objection to the proceedings that they are imperfect or inaccurate, and all amendable errors shall be regarded as amended, so as to present only the substantial inquiry of the guilt or innocence of the defendant, and the affidavit, warrant or statement on the docket, one or all, may be changed or amended to meet the state of facts shown in evidence.
(Code 1980, § 8-4-8)

Sec. 8-4-9. Joinder of defendants.

When two or more persons are charged with the same act or offense, they shall, if practicable, be prosecuted and tried jointly, so as to have but one trial; provided that on the application of a defendant, the municipal judge may, when satisfied that justice requires it, try the cases separately.
(Code 1980, § 8-4-9)

Sec. 8-4-10. Judgment entry upon conviction.

When any person who is convicted and fined or fined and sentenced to hard labor for a breach of this Code or any other city ordinance fails to pay the fine and costs, the municipal judge may commit him or her to custody or to hard labor on the streets or other works of the city until the fine and costs are paid, or the hard labor is performed, and the judgment entry in those

cases may be made by the chief clerk or an assistant clerk from the bench notes of the judge and may be on forms as prescribed by the Alabama Rules of Criminal Procedures.
(Code 1980, § 8-4-10)

Sec. 8-4-11. Form of commitment.

In the case provided for by section 8-4-10, the form of commitment may be as prescribed by the Alabama Rules of Criminal Procedures.
(Code 1980, § 8-4-11)

Sec. 8-4-12. Appeals; form of appeal bond, etc.

(a) All appeals from judgments of municipal court shall be to the Circuit Court of Jefferson County for trial de novo.

(b) A defendant may appeal in any case within 14 days from the entry of judgment by filing notice of appeal and giving bond with or without surety approved by the court or the clerk in an amount not more than twice the amount of the fine and costs, as fixed by the court, or in the event no fine is levied the bond shall be not more than $1,000.00 and costs, as fixed by the court, conditioned upon defendant's appearance before the circuit court.

(c) The court may waive appearance bond upon satisfactory showing that the defendant is indigent or otherwise unable to provide a surety bond.

(d) If an appeal bond is waived, a defendant sentenced to imprisonment shall not be released from custody, but may obtain release at any time by filing a bond approved by the court. If defendant is not released, the prosecutor shall notify the circuit court and the case shall be set for trial at the earliest practicable time.

(e) Such bond with surety may be substantially in the form as prescribed by the Alabama Rules of Criminal Procedures.

(f) From a judgment of the municipal court holding an ordinance invalid, the city may appeal to the circuit court, without bond within 14 days of the date of the judgment or the denial of a timely filed post-judgment motion.

(g) When an appeal has been taken, the city shall file the notice and other documents in the circuit court to which the appeal is taken within 14 days failing which the city shall be deemed to have abandoned the prosecution, the defendant shall stand discharged and the bond shall be automatically terminated.

(h) Upon receipt of notice of dismissal of an appeal, the municipal court may issue a warrant for arrest of the defendant, who may also be arrested without a warrant as an escapee. Upon arrest defendant shall be delivered to the municipal authorities and punished in accordance with the judgment of the municipal court.
(Code 1980, § 8-4-12)

Sec. 8-4-13. Appeals from circuit court.

Appeals shall be taken as prescribed by the Alabama Rules of Criminal Procedures.
(Code 1980, § 8-4-13)

Sec. 8-4-14. Summons to corporation—Issuance; form.

Whenever complaint on oath is made before a municipal judge or city magistrate of the city that an offense in violation of this Code or any other ordinance of the city has been committed by a corporation doing business in the city or within the police jurisdiction thereof, the municipal judge or magistrate may issue a summons commanding that corporation to appear before the court on a day therein named, which summons may be in the following form:

State of Alabama Jefferson County	The Municipal Court of Birmingham

TO ANY OFFICER IN SAID COUNTY, GREETING:

You are hereby commanded to summon A.B., a corporation, to appear before the Honorable _____, municipal judge of the City of Birmingham, at his courtroom in the City of Birmingham, at _____ o'clock, on the ____ day of _____, 20____, to answer the City of Birmingham on a charge of (here insert the offense) in violation of the ordinance or law of said city in such cases made and provided, which charge was preferred by _____. And you will then and there make return of this summons.

WITNESS my hand this ____ day of _____, 20____.

Judge/Magistrate of the Municipal Court of Birmingham

(Code 1980, § 8-4-14)

Sec. 8-4-15. Same—Service.

A summons to a corporation may be served by the chief of police, any law enforcement officer or other designated city official upon the corporation by serving a copy thereof upon any officer or agent of the defendant corporation authorized by law to receive service of summons or other civil process issuing against the corporation.
(Code 1980, § 8-4-15)

Sec. 8-4-16. Same—Appearance of corporation.

If a defendant corporation shall appear in response to a summons, the trial shall proceed; if the defendant corporation fails to appear, the trial shall proceed as if the corporation had appeared and pleaded not guilty; but in that case proof must be made to the court that the person upon whom the summons was served was an officer or agent of the corporation authorized by law to receive the service.
(Code 1980, § 8-4-16)

Sec. 8-4-17. Same—Conviction of corporation.

Upon the conviction of a corporation in the municipal court, judgment shall be rendered against it for the fine imposed, together with the cost of court, and after 14 days from the rendition of the judgment, unless the corporation shall have satisfied the judgment or taken an appeal as provided by law for other convictions in the municipal court, execution thereon shall issue against the property of the corporation.
(Code 1980, § 8-4-17)

CHAPTER 5. BONDS AND BONDSMEN

Sec. 8-5-1. Soliciting business prohibited in or around city jail and municipal court.

(a) The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Professional bondsman means a person who makes an appearance for another for a valuable consideration or who is a surety simultaneously on more than four appearance bonds other than for immediate family members.

(b) It shall be unlawful for any professional bondsman or his or her authorized agent, while within the boundaries of any parcel of land owned by the city and upon which is situated any city jail, prison or courtroom, to solicit the business or patronage of making any bond for any defendant of the city; and it shall be unlawful for any such person to loiter within the boundaries of any parcel of land owned by the city and upon which is situated any city jail, prison or courtroom; provided that nothing in this section shall be construed to make it unlawful for any bondsman to visit any defendant at the place of his or her restraint for the purpose of making his or her bond when the defendant has previously requested the visit of the bondsman for that purpose.

(c) It shall be unlawful for any person to act as an agent for any person engaged in the business of professional bondsman in any period during which the bondsman does not have a valid and effective license for the transaction of business.

(d) The presiding judge of the municipal court shall have authority to establish such further procedures, rules, and regulations as the judge may find just and expedient to accomplish the purposes of this section and to facilitate the change from prior procedure.
(Ord. No. 13-68, § 1, 4-30-2013)

CHAPTER 6. CLEMENCY

Sec. 8-6-1. Power of mayor to grant.

Except as otherwise prohibited by state law, the mayor may remit fines and any costs as are payable to the municipality and commute sentences imposed by municipal judges or judges of the court to which an appeal was taken for violations of municipal ordinances, and may grant pardons, after conviction, for violation of any ordinances; and he or she shall report his or her action to the council or other governing body at the first regular meeting thereof in the succeeding month with his or her reasons therefor in writing. He or she shall also cause to be entered in a record kept for that purpose his or her reasons therefor and must preserve on file all documents on which he or she acts.
(Code 1980, § 8-6-1; Ord. No. 89-269, 11-21-1989)

Sec. 8-6-2. Suspension of sentences, probation, etc., by the court.

(a) The municipal court, by a judge thereof, may direct the discharge from custody of any person convicted of a violation of any law or ordinance of the city and suspend execution of the sentence of the defendant at any time and place defendant on probation for varying periods of time not to exceed two years.

(b) The court may require any investigations as may be deemed necessary and desirable, to be made by a probation officer or any other suitable person or persons as the court may designate, as to the circumstances of the offense, the criminal record, social history and present condition of the defendant. The court may suspend the execution of sentence and continue the defendant under an existing bond or may require any additional bail as it deems necessary, pending the disposition of the application for probation.

(c) The court shall determine and may, at any time, include among them the following, or any other: that the probationer shall avoid injurious or vicious habits; avoid persons or places of disreputable or harmful character; report to the probation officer, or other person designated by the judge; permit the officer to visit him or her at his or her home or elsewhere; work faithfully at suitable employment as far as possible; remain within a specified area; pay the fine and costs imposed or those portions thereof as the judge may determine, and in such installments as the judge may direct; make reparation or restitution to any aggrieved party for the damage or loss caused by his or her offense in an amount to be determined by the court; attend defensive driving schools, alcohol countermeasure programs or courses where available and support his or her dependents to the best of his or her ability.

(d) The probation or other officer designated by the court shall investigate all cases when directed to do so by the court and report in writing thereon if the court so directs. The officer, if so designated, shall furnish to each probationer released on probation under his or her supervision a written statement of the conditions of probation and shall instruct the probationer regarding the same. The officer shall keep informed concerning the conduct and conditions of each person on probation under his or her supervision by visiting the probationer, requiring reports from the probationer or others, and shall report thereon in writing as often as the court may require. The officer shall use all practicable and suitable methods, not inconsistent with the conditions imposed by the court, to aid and encourage persons on probation and to bring about improvement in their conduct and condition. The officer shall keep detailed records of his or her work and shall make those reports in writing as the judge may require. The officer so designated shall have, in the execution of his or her duties, the power to arrest probationers and the same right to execute process as is given by law to peace officers. All reports, records and data assembled by any probation officer and referred to the judge shall be privileged and shall not be available for public inspection except upon order of the judge to which the same was referred. All probation reports completed and filed shall be subject to inspection by the defendant or his or her attorney.

(e) The period of probation or suspension of execution of sentence shall be determined by the court and may exceed the length of the sentence and the period may be extended for varying periods of time not to exceed two years from the date the probation or suspension of sentence is

granted. Upon the satisfactory fulfillment of the conditions of probation or suspension of sentence, the court shall by order duly entered on the minutes, discharge the defendant. At any time during the period of probation or suspension of execution of sentence, the court may issue a warrant and cause the defendant to be arrested for violating any of the conditions of probation or suspension of sentence. Any probation officer with probable cause to believe a probationer has violated the conditions of probation may arrest the probationer without a warrant. In case of an arrest without a warrant, the arresting officer shall have a written statement by the probation officer setting forth that the probationer has, in his or her judgment, violated the conditions of probation and the statement shall be sufficient warrant for having probationers brought forthwith before the court for determination as to probable cause for the charge of probation violation. The court may order detention of the probationer pending further hearing, after which the court may revoke the probation or suspension of sentence and order and adjudge that the sentence be immediately executed.
(Code 1980, § 8-6-2)

Sec. 8-6-3. Mayor may appoint parole board.

The mayor may appoint a parole board consisting of five members, one of whom he or she shall designate to serve at his or her pleasure as chairperson; and the chairperson shall, if in attendance, preside at all meetings of the board. In the chairperson's absence, an acting chairperson shall be selected by a majority of the members present. One members of the board shall be appointed for six-year terms.
(Code 1980, § 8-6-3)

Sec. 8-6-4. Meetings of the board.

Meetings of the board shall be held on the first and third Wednesdays of each month, and at the call of the chairperson, when the business of the board shall warrant additional meetings. Three members of the board shall constitute a quorum for the transaction of the business of the board, and no action shall be taken by the board without the approval of at least two of its members.
(Code 1980, § 8-6-4)

Sec. 8-6-5. Authority and duties of board.

Except as otherwise prohibited by state law, the board may remit fines and such costs as are payable to the city, and commute any sentence imposed by the municipal court or any court to which an appeal is taken; may grant paroles and work and educational releases; prescribe the terms upon which persons are paroled or released; and may provide for the supervision of persons released on parole. Any period of parole may exceed the length of sentence but shall in no event exceed two years. Failure of any parolee to observe the conditions of his or her parole as prescribed by the board shall be sufficient cause for the board to revoke that parole.
(Code 1980, § 8-6-5; Ord. No. 89-270, 11-21-1989)

Sec. 8-6-6. Parole officer's reports; powers and duties.

Parole officers may be appointed to investigate all cases referred by the board to such officers and shall furnish to each parolee under his or her supervision a written statement of the conditions of his or her parole, instruct each parolee regarding the same, and keep informed concerning the conduct and condition of each person on parole under his or her supervision. Each parole officer shall make such reports as the board may require. Each parole officer shall have, in the execution of his or her duties, the power of arrest and the authority to execute process as is given by law to police officers of such city. All reports, records and data shall be privileged and shall not be available for public inspection except under order of a court, except that in no case shall the right to inspect the reports be denied the defendant or his or her counsel.
(Code 1980, § 8-6-6)

Sec. 8-6-7. Work and educational releases.

Any person released to work or further his or her education or training who violates any condition of his or her release as prescribed by the board may have such privilege revoked by the board. Any prisoner released to work or further his or her education or training who fails to return to city jail within the time prescribed by

the parole board may, in addition, be deemed an escapee and shall be punished as if the failure to return to city jail is willful.
(Code 1980, § 8-6-7)

Sec. 8-6-8. Work release; wages.

The employer of an inmate who is released from custody under a work release program shall pay the inmate's wages directly to the city finance department. The mayor of the city may adopt regulations concerning the manner of disbursing any earnings of the inmates involved in the work release program. The mayor is authorized to withhold from an inmate's wages the costs incident to the inmate's confinement. After the costs incident to the inmate's confinement have been deducted from the inmate's earnings, the remainder of the inmate's earnings shall be credited to the inmate's account with the city finance department, and upon his or her release from confinement shall be turned over to the inmate. The mayor is authorized, however, to pay the balance of the inmate's earnings to his or her family to be used by them for their support while the inmate is confined, provided the inmate has consented to such payment.
(Code 1980, § 8-6-8)

Sec. 8-6-9. Discharge; arrest for violation of parole; arrest without warrant; hearing; revocation.

Upon the expiration of the period of parole the parolee shall be discharged. At any time during the period of parole the parolee may be arrested for the violation of any condition of his or her parole, and after a hearing by the board his or her parole shall be subject to revocation. Any police officer or other law enforcement officer may arrest a parolee with or without a warrant for the violation of any condition of his or her parole. In case of an arrest without a warrant, the arresting officer shall have a written statement by a parole officer setting forth that parolee has, in the judgment of the parole officer, violated the conditions of his or her parole. Such statement shall be sufficient warrant for the detention of the parolee until he or she can be brought before a parole officer. The parole officer, after advising the parolee in writing of the charged violation and hearing any evidence or explanation offered by parolee in his or her defense shall, if not satisfied from the evidence or explanation of the parolee, forthwith submit to the board a written report of the violation. Upon receipt of the report the board shall set a hearing date to determine if the parole shall be revoked. The parolee at the hearing may be represented by counsel and present evidence in his or her defense. In the event that parole is revoked, the board shall prepare a written opinion stating the evidence relied upon and the reason for such revocation. The parolee, upon such revocation, shall serve his or her sentence as though no parole had been granted him or her, notwithstanding his or her sentence would have ended but for the suspension thereof by parole.
(Code 1980, § 8-6-9)

CHAPTER 7. MUNICIPAL COURT ADMINISTRATIVE AGENCY

Sec. 8-7-1. Agency established.

There is hereby established a municipal court administrative agency under the supervision of the municipal court to provide expeditious service in connection with administrative adjudication of ordinance violations; the handling of uniform traffic tickets and complaints; the issuance of arrest warrants; and other powers provided by law.
(Code 1980, § 8-7-1)

Sec. 8-7-2. Personnel; authority.

The personnel designated by the judge or judges of the municipal court for the accounting of uniform traffic tickets or complaints, court administrator and magistrates shall be considered as officials of the administrative agency. These officers are vested with judicial power reasonably incident to the accomplishment of the purposes and responsibilities of the administrative agency.
(Code 1980, § 8-7-2)

Sec. 8-7-3. Magistrates; powers, etc.

(a) Magistrates shall be considered the chief officers of such administrative agency, subject to the administrative directions of the clerk of the municipal court, and shall be appointed as authorized by law or rule.

(b) The powers of a magistrate shall be limited to:

(1) Issuance of arrest warrants.

(2) Granting of bail in minor misdemeanor or offense prosecutions.

(3) Receiving of pleas of guilty in minor misdemeanors or offenses where a schedule of fines or predetermined fine has been prescribed or established as permitted by law.

(4) Receiving of pleas of guilty in traffic infraction prosecutions, but may not receive pleas in matters involving:

a. Violations resulting in personal injury;

b. The operation of a motor vehicle while intoxicated;

c. Reckless driving;

d. Felonies or indictable offenses;

e. The operation of motor vehicles without an operator's license or while the license is suspended or revoked; or

f. A defendant convicted of two or more previous traffic offenses in the preceding 12 months.

(5) Accountability to the municipal court for all uniform traffic tickets and complaints, monies received and records of offenses.

(6) Accepting and screening affidavits of substantial hardship upon a municipal judge's approval and, if authorized by court order, assigning attorneys on a rotating basis from a list approved by the court.

(7) Conducting arraignments and setting non-guilty pleas for trial, upon a municipal judge's approval.

(8) Opening court and calling the docket, upon a municipal judge's approval.

(9) Granting continuances in municipal ordinance violation cases, upon a municipal judge's approval.

(10) Dismissing no driver's license violations pursuant to Code of Ala. 1975, § 32-6-9 where the defendant shows proof of a driver's license at the time the citation was written.

(11) Dismissing mandatory liability insurance violations pursuant to Code of Ala. 1975, § 32-7A-20 where the defendant has produced satisfactory evidence that at the time of the citation the motor vehicle was covered by a liability insurance policy in accordance with Code of Ala. 1975, § 32-7A-4.

(12) Dismissing equipment violations where a municipal ordinance allows and where the law enforcement officer signs the uniform traffic ticket and complaint verifying that the equipment has been replaced.

(13) Any other authority as may be granted by law.

(c) All officials of the administrative agency shall be bound by the rules of administration for the administrative agency as are provided by the state supreme court and all officials thereof shall be bonded as may be required by the rules.

(d) The presiding judge of the municipal court shall take steps to have magistrates appointed in accordance with the provisions of law or rule. (Code 1980, § 8-7-3)

Sec. 8-7-4. Conflicts.

In cases of conflict between the rules of judicial administration and the provisions appearing in this article, then the rules of judicial administration shall apply.

CHAPTER 8. PRETRIAL DIVERSION PROGRAM

Sec. 8-8-1. Established.

Pursuant to authority granted by Code of Ala. 1975, § 12-14-90 et seq., a pretrial diversion program is hereby established whereby certain eligible offenses may be dismissed upon a defendant's successful completion of program requirements including, but not limited to, pay-

ment of applicable fees and costs, treatment, and community service work. The program shall be as follows:

(a) A person charged with an eligible municipal ordinance violation under the jurisdiction of the Birmingham Municipal Court may apply to the court for admittance to the program.

(b) Upon receipt of the application and recommendation of the municipal prosecutor, the judge shall determine whether to grant the individual admittance to the program.

(c) Upon admittance to the program, the individual shall be required to enter a plea of guilty, at which time the case shall be placed in an administrative docket until such time as the offender has completed all requirements of the pretrial diversion program. Imposition of any sentence shall be deferred until such time as the offender completes the pretrial diversion program or is terminated from the program.

(d) In the event the offender does not satisfactorily complete the program and all terms thereof, the court shall impose an appropriate sentence in the same manner as with any guilty plea.

(e) Upon successful completion of the program and all terms thereof, the court shall dismiss the case pursuant to the rules established by the council and the presiding judge.

(f) A holder of a commercial driver's license, an operator of a commercial motor vehicle, or a commercial driver learner permit holder who is charged with a violation of a traffic law shall not be eligible for a pretrial diversion program pursuant to this ordinance.

(g) The pretrial diversion program established pursuant to this ordinance shall be under the supervision of the presiding judge for the municipal court pursuant to the rules and regulations established by the council. The presiding judge, with approval of the council and the municipal prosecutor, may contract with any agency, person, or business entity for any service necessary to accomplish the purpose of this chapter.

(h) The presiding judge, acting in consultation with the municipal prosecutor, shall have the authority to establish all rules and terms necessary for the implementation of a pretrial diversion program that are not inconsistent with this chapter or the rules and regulations established by the council.

(i) The establishment and administration of this pretrial diversion program shall not conflict with court programs established by and governed in accordance with Federal grant guidelines established for such courts. If an offender qualifies for a drug or specialty court program, that program shall have priority over the pretrial diversion program created pursuant to this chapter.

(1) Nothing in this chapter shall prohibit the municipal prosecutor and the presiding judge or the municipal judge in charge of the specialty court or drug court from entering into an agreement or memorandum of understanding, whereby the pretrial diversion program and the other specialty or drug court will work to complement each other in a cohesive and unified effort to serve the needs of the community, victims, and to rehabilitate the offender.

(2) Nothing in this chapter shall prevent the pretrial diversion program from accepting applicants who have been referred from or denied acceptance into a drug or specialty court program.

(j) No potential pretrial diversion program applicant shall be denied access to a program based on race, ethnic background, religion, gender, disability, marital status, or economic status. No person who is protected by applicable federal or state

laws against discrimination should be otherwise subjected to discrimination for eligibility purposes.

(k) An applicant may not be denied access into the pretrial diversion program based solely on his or her inability to pay pretrial diversion program fees. Fees established by this chapter may be waived or reduced for just cause, including indigency of the applicant. If an offender, upon application, claims indigency, he or she shall be brought before a municipal judge for a determination of indigency. In the event that the court determines the offender to be indigent, any fees or costs shall not be waived or remitted unless the defendant proves to the reasonable satisfaction of the judge presiding over the case that the defendant or party is not capable of paying the same within the reasonably foreseeable future. In the event the offender is determined to be indigent, a periodic review of the offender's indigent status may be conducted by the court upon motion of the municipal prosecutor to determine if the offender is no longer indigent.

(l) For purposes of administration of the pretrial diversion program, an offender shall be assessed a nonrefundable application fee when the offender is approved for the pretrial diversion program. The amount of the assessment for participation in the program shall be in addition to any court costs, fees, and assessments for the crime victim's compensation fund, department of forensic sciences assessments, drug, alcohol, or anger management treatment required by law, and any costs of supervision, treatment, and restitution for which the offender may be responsible. The presiding judge, acting in consultation with the municipal prosecutor, shall by rule establish a pretrial diversion application fee schedule setting forth the application fees for admittance into the pretrial diversion program based on the underlying criminal offense(s) charged, and said fees shall not exceed the maximum fine for the offense(s) charged. All applicable fees will be explained and consented to by the participant before his/her admittance to the pretrial diversion program.

(m) The application fee shall be collected by the municipal court clerk and after distribution of portions of the fee as required by state or federal law, including Code of Ala. 1975, § 12-17-226.17, the remainder shall be distributed to the municipal general fund.

(n) All provisions of Code of Ala. 1975, § 12-17-226.17, as that section may be amended, shall be complied with and the municipal court clerk shall ensure that the required funds are distributed to the Alabama Office of Prosecution Services.

(1) Upon entry into any pretrial diversion program, the municipal prosecutor shall submit information, including the name, date of birth, and identifying personal vital information of a participating offender to the Alabama Office of Prosecution Services. The municipal prosecutor shall also submit the criminal statute and/or municipal ordinance violated, a brief description of any underlying qualifying offense, and a brief description of the agreed upon disposition of the offense. If the offender was prematurely terminated from the program, a brief description of the reasons for the termination shall be submitted for inclusion into the database.

(2) Information from the Alabama Office of Prosecution Pretrial Diversion database shall only be accessible by court order, the district attorney, or a law enforcement agency.

(3) Any information submitted pursuant to Code of Ala. 1975, § 12-17-226.17, whereby the offender has been adjudicated or convicted as a youthful offender shall be sealed

pursuant to state law. This information may only be retrieved from the database or used upon an order of a court of competent jurisdiction.

(4) Within 30 days of entry of the applicant into any pretrial diversion program, $7.00 per applicant shall be paid by the Municipal Court Clerk to the Alabama Office of Prosecution Services for creation and maintenance of the offender database described in Code of Ala. 1975, § 12-17-226.17.

(o) Each offender shall also be responsible for payment of the cost of any treatment program made a part the offender's pretrial diversion program. Such programs may include: drug and alcohol treatment programs, other addiction treatment programs, behavior modification treatment programs or other therapy programs as may be required on a case by case basis.

(p) In addition to all fees required for participation in the pretrial diversion program, an offender shall also be liable for all court costs and fees, restitution, victims' compensation fund assessment, drug testing, and any and all other fees and assessments, in the same manner as if the offender had not applied for entry into the program and had been found guilty of the offense or offenses involved. Except as otherwise provided by law, no costs, fees, restitution, or assessments shall be waived or remitted, absent an express agreement to that effect between the municipal prosecutor and the offender with approval of the municipal judge, without a finding by the municipal judge that the offender does not have the reasonable ability to pay the same within the reasonably foreseeable future.

(q) With the exception of the application fee, as previously provided, other pretrial diversion program fees, assessments and treatment program costs, as well as, all court costs, court fees and court assessments shall be collected by the municipal court clerk and shall be distributed as provided by ordinance or state law. After acceptance into the pretrial diversion program, if the offender is terminated from the program for a violation of agreed upon conditions, the administration fees shall not be refundable. However, if at the time the agreement is initially presented to the court, the court rejects the agreement and disposition of the charges involved, any monies paid by the offender in satisfaction of the administration fee shall be refunded to the offender. The offender shall remain liable for any agency or service provider costs in furtherance of the application and evaluation process, and the same shall be deducted from any money refunded to the offender. Any deducted money shall be paid solely to the City, for payment of the expenses.

(Ord. No. 14-125, § 1, 9-10-2014)

Sec. 8-8-2. Pretrial diversion program rules and regulations.

The Council of the City of Birmingham does hereby adopt the following as the City of Birmingham Pretrial Diversion Program Rules and Regulations:

(a) Admittance into the pretrial diversion program is in the sole discretion of the municipal judge presiding over the case, pursuant to the rules established by the council and the presiding judge in accordance with the pretrial diversion ordinance, upon application by the defendant and the recommendation and agreement of the municipal prosecutor. An offender deemed by the municipal judge to be a threat to the safety or well-being of the community shall not be eligible for the program. An offender charged with any of the following types of offenses shall be ineligible for admittance:

1. Any offense involving violence where weapons are used or where children are victims;

2. Any driving under the influence charge where serious physical injuries, as defined by the Code of Ala. 1975, § 13A-1-2(14), are involved;
3. Any offense wherein the offender is a public official and the charge is related to the capacity of the offender as a public official;
4. Any offense involving the operation of a commercial motor vehicle or an offender, who holds a commercial driver license (CDL) or a commercial driver learner permit issued in any state, any United States possession or territory, or any United States insular area, who is charged with a violation of a traffic law, or an offender who has a previous conviction for which a commercial driver license was required;
5. Any offender charged with driving under the influence while driving a school bus or day care vehicle;
6. Any offender, who is 21 years of age or older, charged with driving under the influence when a child age 14 years or younger, was present in the vehicle at the time of the offense charged;
7. Any offense wherein the offender has previously completed a pre-trial diversion program in any jurisdiction within twelve months of the commission of the offense charged; and
8. Any offense wherein the offender has previously completed two pretrial diversion programs in any jurisdiction.

(b) Admittance into the pretrial diversion program will be considered on a case by case basis based on the following considerations:

1. There is a probability justice will be served if the offender is placed in the program;
2. It is determined the needs of the state, city and the offender can be met through the program;
3. The offender appears to pose no substantial threat to the safety and well-being of the community;
4. It appears the offender is not likely to be involved in further criminal activity if the offender complies with all conditions imposed pursuant to the program;
5. The offender will likely respond to rehabilitative treatment or counseling;
6. The need for restitution for the victim from the offender outweighs the interest of the state and city for incarceration of the offender; and
7. The Municipal Judge may waive any of the aforementioned standards, upon recommendation and consent of the prosecutor, if justice or special circumstances dictate.

(c) Application for admittance into the pretrial diversion program shall include a one-time application fee and an evaluation by the municipal court probation division which shall require the offender to furnish information concerning past criminal history, education history, work record, family history, medical or psychiatric treatment or care prescribed or received, psychological tests taken, and any other information concerning the offender which the prosecutor or probation officer believes has a bearing on the decision whether or not the offender should be admitted into the program. The probation officer may require the offender to submit to any type of test or evaluation process or interview the probation officer deems appropriate in evaluating the offender for admittance into the program. The costs of any test or evaluation shall be paid by the offender or as otherwise agreed to or provided in this policy. The offender shall provide the municipal prosecutor written consent to

allow the municipal prosecutor to receive any educational, work, medical, psychiatric, psychological, or other records deemed necessary by the probation officer for the evaluation process.

(d) Following the decision to admit an offender into the pretrial diversion program, but prior to entry, the offender shall enter into a written agreement with the municipal prosecutor stating the conditions of the participation of the offender in the program. The agreement shall include, but not be limited to, all of the following:

1. A voluntary waiver of the right of the offender to a speedy trial;
2. An agreement to the tolling, while in the program, of periods of limitations established by statutes or rules of court;
3. An agreement to the conditions of the program established by the municipal prosecutor;
4. If there is a victim of the charged crime, an agreement to the restitution repayment within a specified period of time and in an amount to be determined by the municipal prosecutor taking into account circumstances of the offender and the victim;
5. A truthful and complete statement by the offender as to the involvement of the offender in the offense charged, which statement shall be admissible in any criminal trial; and
6. Submission of a written plea of guilty to the offense or offenses charged or agreed upon included offenses, together with an agreement as to whether the case is to be dismissed upon successful completion of the program, and an agreement, if there be any, as to the recommended sentence should a sentence be imposed. The written agreement, determined on a case by case basis, may also require the offender to agree to any of the following conditions:

a. To participate in substance abuse treatment;
b. To participate in an education setting to include, but not limited to, K-12, college, job training, trade school, GED classes, or basic education courses;
c. If appropriate, to attempt to learn to read and write the English language;
d. To financially support his or her children or pay any court ordered child support;
e. To refrain from the use of drugs or alcohol or frequenting places where drugs or alcohol are sold or used;
f. To not commit any criminal offense;
g. To refrain from contact with certain named persons or premises;
h. To maintain or seek employment;
i. To not leave this state without prior written consent of the probation officer or supervising agency or personnel;
j. To maintain a residence approved by the probation officer or supervising agency or personnel;
k. To attend individual, group, financial, chemical addition, family, mental health, sex offender, or anger management counseling;
l. To pay all court costs, fees, fines, and worthless checks, and obey any other lawful court order associated with the

offense or offenses for which the offender has entered the program, or any other case;

m. To refrain from the possession or use of any deadly weapon or dangerous instrument as defined in Code of Ala. 1975, § 13A-l-2;

n. To pay supervision fees and application fees pursuant to this act;

o. To observe curfews or home detention or travel constraints as set out in agreement signed by the offender;

p. To have restitution, court costs, fees, child support, and any other moneys withheld or garnished from the wages or salary of the offender or withheld from any Alabama income tax due the offender, or from any available insurance policy, or forfeited from any other real or personal property of the offender, and applied to the above;

q. To be admitted to a drug or alcohol treatment program on an inpatient or outpatient basis or receive other treatment alternatives for substance abuse;

r. To submit to periodic or random drug testing as part of the program and other terms and conditions related to substance abuse as the municipal prosecutor may direct;

s. To waive in writing the right of the offender to a probation hearing in the event of termination or withdrawal from deferred prosecution;

t. To any other terms or conditions as the municipal prosecutor and the offender may agree to in the above-stated agreement;

u. To be required to pay supervision fees for monitoring and verifying the compliance of the offender with the terms of the program set forth by the municipal prosecutor.

(e) Each offender shall also be responsible for payment of the cost of any monitoring, supervision, testing, or treatment program made a part the offender's pretrial diversion program. Such programs may include: drug and alcohol treatment programs, other addiction treatment programs, behavior modification treatment programs or other therapy programs as may be required on a case by case basis.

(f) An applicant offender may not be denied access into the pretrial diversion program based solely on the inability of the offender to pay the application fee. An offender may make application to the court for a determination of indigency. Pretrial diversion application fees and/or other costs may be waived, remitted or reduced for indigency of the offender, at the discretion of the municipal judge. Any determination of the indigency of the offender for purposes of the application fee mitigation shall be made by the municipal judge.

(g) Upon acceptance of an offender into the pretrial diversion program by the municipal prosecutor, the offender shall submit the written application of the offender together with the statement of facts. The agreement between the municipal prosecutor and the offender shall be submitted to the municipal judge presiding over the case of the offender for approval of the court. The offender shall also enter a plea of guilty to the charge or charges involved. If the court rejects the agreement and guilty plea(s), any money paid by the offender in satisfaction of the

application fee shall be refunded to the offender. The offender shall still be liable for any actual expenses already incurred by the municipal prosecutor or any agency or service provider in furtherance of the application and evaluation process and the same will be deducted from any money to be refunded to the offender. In the event the offender is terminated from the program for noncompliance, the court shall impose appropriate punishment in the same manner as with any plea of guilty or finding of guilt and shall not be bound by the terms of the pretrial diversion written agreement. Upon successful completion of the program by the offender, the municipal prosecutor shall notify the court in writing of that fact together with a request that the court enter an order of dismissal of the case pursuant to the agreement between the offender and the municipal prosecutor. Regardless of whether the offender successfully completes the program or withdraws from or is terminated from the program, the offender shall be liable for and required to pay all court costs and fees, restitution, victim's compensation fund assessment, and any and all other fees and assessments, in the same manner as if the offender had not applied for entry into the program and has been found guilty of the offense or offenses involved. No costs, fees, restitution, or assessments shall be waived or remitted without a finding by the municipal judge that the offender does not have the reasonable ability to pay the same within the reasonably foreseeable future.

(h) In the event an offender fails to comply with any term or condition of the agreed upon pretrial diversion program, the municipal prosecutor shall recommend to the municipal judge any of the following:

(1) Continue the agreement with or without modification;

(2) Terminate the offender from the pretrial diversion program;

(3) Require the offender to adopt a new agreement as a condition of continued participation; or

(4) Waiver of sanctions for a violation of the terms of the agreement, for good cause shown, to allow the offender to remain in the program.

(Ord. No. 14-125, § 2, 9-10-2014)

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CHAPTER 1. POLICE DEPARTMENT*

ARTICLE A. GENERAL PROVISIONS

Sec. 9-1-1. Composition.

The police department shall consist of a chief of police and such other officers and personnel as the mayor may designate.
(Code 1964, § 41-1; Code 1980, § 9-1-1)

Sec. 9-1-2. Duties of chief of police.

The chief of police shall direct and supervise the personnel, rooms, buildings, equipment and property assigned to or used in or by the department, and shall direct, control and discipline all officers and members of the department in accordance with civil service regulations.
(Code 1964, § 41-2; Code 1980, § 9-1-2)

Sec. 9-1-3. Departmental functions—Generally.

The police department shall be charged with the preservation of the peace and order of the city, the protection of all persons and property within the city, and the enforcement of all criminal ordinances and all criminal laws of the city and the state. The department shall suppress all riots, disturbances and breaches of the peace, pursue and arrest any person fleeing from justice in any part of the state or of the United States, arrest all persons found in the act of committing a breach of the laws or ordinances of the city and take the offenders forthwith before the proper court to be dealt with according to law and shall make complaint to the proper officers of any person known or believed to be guilty of the violation of the laws or ordinances of the city or of the penal laws of the state or of the United States. The department shall also cooperate with law enforcement agencies of the United States.
(Code 1964, § 41-3; Code 1980, § 9-1-3)

*__State law references__—Municipal authority to create the office of and prescribe duties for police chief, Code of Ala. 1975, § 11-43-5; municipal authority to establish a police force, Code of Ala. 1975, § 11-43-55.

Sec. 9-1-4. Same—Patrol of city.

Adequate patrol of all parts of the city shall be maintained, so far as the size of the police force permits. To this end, the chief of police shall organize the city into districts and any necessary subdivisions thereof, distribute the patrol throughout the several police districts and assign the patrolmen to reliefs in such manner as conditions may call for. Crimes shall be charted according to the districts in which they occur, to aid in establishing a basis for the proper policing of the several districts.
(Code 1964, § 41-4; Code 1980, § 9-1-4)

Sec. 9-1-5. Same—Traffic.

The police department shall be charged with the enforcement of all traffic regulations and ordinances.
(Code 1964, § 41-5; Code 1980, § 9-1-5)

Sec. 9-1-6. Payment of special fees to members of department.

It shall be unlawful for any person to pay or give to any member of the police department, or to another for such member, or for any such member, or another for him or her, to accept or receive any money or other thing of value for services of such member in investigating, or in supplying maps, photographs or other information, verbal, written or pictorial, concerning, or in appearing or testifying in any court in relation to, any accident or accident scene or surrounding; provided that it shall not be unlawful for any person to pay into court for such member or for such member to receive from the court lawful witness fees of such member in amount as prescribed by law; provided further, that it shall not be unlawful for any such member, or another for him or her, to accept or receive money or other thing of value for photographs in the taking, processing, production or disposal of which no property or equipment of the city or on duty time of such member was used or employed and in the sale or disposal of which no discrimination is or was practiced in price or otherwise as between litigants or prospective litigants, or their attorneys who may apply or may have applied for photographs.
(Code 1964, § 41-6; Code 1980, § 9-1-6)

__State law reference__—Use of official position or office for personal gain, Code of Ala. 1975, § 36-25-5.

Sec. 9-1-7. Training school.

A police training school shall be maintained, in which all recruits shall be instructed in the various branches of police technique, acquainted with the regulations of the department and instructed in the laws and ordinances which they are called upon to enforce, as well as in the manner of their enforcement. Courses shall be provided for lieutenants, sergeants and detectives, these groups being instructed in matters of police administration, supervision, criminal investigation and identification, preparation of records and reports, criminal psychology and such other subjects as are necessary for the efficient performance of their respective duties.
(Code 1964, § 41-7; Code 1980, § 9-1-7)

Sec. 9-1-8. Reports.

The chief of police shall make periodic consolidated reports to the mayor, showing the condition of the force, number of arrests, complaints and crimes, arranged according to districts, amount of property stolen and amount recovered, and such other information as the mayor shall request.
(Code 1964, § 41-8; Code 1980, § 9-1-8)

Sec. 9-1-9. Records.

All records essential to effective police procedure and administration and the maintenance of the force, and for the performance of all duties required by the state or the city shall be maintained by the police department. Any person desiring a copy of any public record of the police department shall be entitled to receive the same from the police department upon payment of a fee per copy. The fee shall be in an amount as established by the city council from time to time. No additional charge shall be made for certification of any such record.
(Code 1964, § 41-9; Code 1980, § 9-1-9)

Sec. 9-1-10. Assignment to detective work.

The chief of police may make assignments to and from the uniformed and detective forces from time to time, as may be necessary. Such assignments shall be made solely on the basis of the special aptitude and ability required for detective work.
(Code 1964, § 41-10; Code 1980, § 9-1-10)

Sec. 9-1-11. Identification and apprehension of criminals.

Modern methods of criminal identification, including fingerprinting and the filing of criminal records of all criminals, shall be employed. Efforts shall be made to cooperate with other city, state and federal criminal agencies in all matters pertaining to the apprehension and identification of criminals.
(Code 1964, § 41-11; Code 1980, § 9-1-11)

Sec. 9-1-12. Duty of police at fires.

It shall be the duty of any police officers who are near a fire, on every alarm, to go immediately to the place where such fire may happen, for the preservation of the public peace and for the removal of all disorderly or suspicious persons or others not usefully employed in the extinguishing of fires or the preservation of property.
(Code 1964, § 41-12; Code 1980, § 9-1-12)

Sec. 9-1-13. Police not to inform attorneys of accidents or discuss same with them.

It shall be unlawful for any member of the police department of the city who learns, either in or out of the course of his or her duty of any accident involving injury or damage to person or property to inform any attorney of such accident, or to discuss such accident with any attorney, prior to employment of such attorney in behalf of one involved in such accident, and it shall also be unlawful for any member of the police department of the city to solicit any person to employ any attorney in connection with such accident.
(Code 1964, § 41-13; Code 1980, § 9-1-13)

Sec. 9-1-14. Physicians to report wounds.

Whenever any person suffering from a gunshot wound, knife wound or any other wound indicating personal violence is given first aid, medical or surgical treatment or attention by any physician or surgeon in the city, it shall be the duty of such

physician or surgeon to report the fact immediately by telephone or otherwise to the police department, giving the time such person is given the attention with the name of such person and stating briefly the nature of the wound, where received, and by whom inflicted, if such facts are known.
(Code 1964, § 41-14; Code 1980, § 9-1-14)

Sec. 9-1-15. Hospitals to report wounds and injuries.

Whenever any person suffering from a gunshot, knife or any other wound indicating personal violence, or suffering from injuries apparently or reported to have been received in an automobile accident, is received into any public or private hospital in the city, it shall be the duty of the manager, superintendent or person in charge or control in any such hospital, to report the fact immediately by telephone or otherwise to the police department, with the time of admission of such person, giving the name of the person and stating very briefly the nature of the wound or injuries, where received, by whom inflicted and by whom such person was carried or sent to the hospital, if such facts are known.
(Code 1964, § 41-15; Code 1980, § 9-1-15)

Sec. 9-1-16. Benefits.

Each member of the police department shall be entitled to all benefits such as salary and medical expenses when injured or killed while acting under the line and scope of his or her authority as a police officer, whether or not the officer is working a regularly assigned shift.
(Code 1964, § 41-15.1; Code 1980, § 9-1-16)

Sec. 9-1-17. Unauthorized wearing of uniforms.

It shall be unlawful for any person other than a member of the police department of the city or for any member of such police department other than one thereunto assigned to the uniformed force thereof, to wear the uniform or any distinctive part of the uniform or anything similar to the uniform or a distinctive part of the uniform of the police department of the city at any place within the city or the police jurisdiction thereof.
(Code 1964, § 41-17; Code 1980, § 9-1-17)

Sec. 9-1-18. Code enforcement inspections.

All inspectors charged with the responsibility of enforcing provisions of this Code, appointed or employed by the department of public works, shall have the same power of arrest and the authority to execute process as is given to police officers of the City of Birmingham.
(Ord. No. 03-26, 2-25-2003)

Secs. 9-1-19—9-1-30. Reserved.

ARTICLE B. UNION ACTIVITIES

Sec. 9-1-31. Definitions.

For the purposes of this article, the following terms shall have the meanings respectively ascribed to them by this section:

Member of the police department means the chief of police and any person who serves in the police department as a subordinate of the chief of police, whether such person serving as such subordinate is a clerical worker or otherwise.

Police department means the department or division of the department of public safety of the city which is headed by the chief of police.
(Code 1964, § 41-19; Code 1980, § 9-1-32)

Sec. 9-1-32. Prohibited.

It shall be unlawful, a violation of duty and disqualification from service in the police department for any member of the police department to be or become an organizer or member of any labor union, as that term is commonly used, or of any organization of any kind in which employees participate for the purpose of dealing with one or more employers concerning grievances, labor disputes, wages, salaries, rates of pay, hours of employment or conditions of work, whether or not such labor union or organization is associated or affiliated with or independent of the American Federation of Labor and Committee of Industrial Organization, the Government and Civil Employ-

ees Organizing Committee or another. It shall be the duty of members of the police department to conform with the policy of this section.
(Code 1964, § 41-20; Code 1980, § 9-1-32)

Sec. 9-1-33. Enforcement; statements may be required.

(a) It shall be the duty of the chief of police, without limitation to him or her, to enforce the policy of section 9-1-32, and thereabout, without limitation, to investigate for violations of such policy, and, consistently with the civil service or merit system applicable to the city, to cause information of any violations of such policy to be presented to the mayor.

(b) It shall be the duty of superior officers of the police department to aid and cooperate with the chief of police in the performance of the duty imposed upon him or her by this section.

(c) The chief of police shall have authority to require, from time to time, each member of the police department to sign, truly date and deliver to the chief, a paper writing addressed to the chief stating whether such member of the police department is a member of a union or organization such as described in section 9-1-32. It shall be the duty of a member of the police department to comply promptly with any such requirement of the chief of police. The signer of any such paper writing may, if he or she chooses, include over his or her signature any matter explanatory of his or her statement therein.
(Code 1980, § 9-1-33)

Secs. 9-1-34—9-1-40. Reserved.

ARTICLE C. POLICE LINES AND CHECKPOINTS

Sec. 9-1-41. Authority to establish.

The chief of police is hereby authorized to establish or cause to be established a police line or checkpoint at any location in the city where, in the judgment of the police chief, it is reasonably necessary to do so for the purpose of maintaining law and order within an area to the rear of such line or checkpoint, and to maintain such line or checkpoint so long as, in the judgment of the police chief, the maintenance of the line or checkpoint is necessary to maintain law and order in such area.
(Code 1964, § 41-22; Code 1980, § 9-1-41)

Sec. 9-1-42. Authority to prohibit persons from entering area.

Police officers, firefighters or other law enforcement officers at any police line or checkpoint are authorized to prohibit any person from entering the area for which such line or checkpoint is being maintained, except residents of the area, persons engaged in the operation of businesses in the area, customers of such businesses and persons servicing those businesses and any other person as the chief of police or the superior officer on duty at such line or checkpoint determines has business in such area of a nature not likely to impede the maintenance of law and order therein.
(Code 1964, § 41-23; Code 1980, § 9-1-42)

Sec. 9-1-43. Prohibited acts.

It shall be unlawful for any person to enter the area to the rear of any police line or checkpoint in disregard of the order of any police officer, firefighter or other law enforcement officer at such line or checkpoint. It shall be unlawful for any person who is permitted to enter any such area as a customer of any business therein or to service any business therein to fail to proceed directly to such business and to fail to leave such area without delay upon the completion of the activity for which he or she was permitted to enter such area. It shall be unlawful for persons to congregate in the vicinity of such line or checkpoint and refuse to disperse and leave after being ordered to do so by any police officer, firefighter or other law enforcement officer at the line or checkpoint. It shall be unlawful for any person to remain at or loiter at or in the vicinity of any such line or checkpoint after having been requested to depart therefrom by any police officer, firefighter or other law enforcement officer at the line or checkpoint. It shall be unlawful for any person to remain in or fail to leave the area for which any line or checkpoint is being maintained after having been re-

quested to do so by any police officer maintaining law and order or attempting to maintain law and order therein.
(Code 1964, § 41-24; Code 1980, § 9-1-43)

Sec. 9-1-44. Powers cumulative and supplemental.

The power and authority delegated to the chief of police, any police officer, firefighter or other law enforcement officer under the provisions of this article shall be cumulative and in addition to all other powers and authority which the chief of police or any police officer, firefighter or other law enforcement officer may have under any other rule, regulation, ordinance or law.
(Code 1964, § 41-25; Code 1980, § 9-1-44)

Secs. 9-1-45—9-1-50. Reserved.

ARTICLE D. CAPTURED OR STOLEN PROPERTY*

Sec. 9-1-51. Definitions.

For the purposes of this article, the following words and phrases shall have the meanings respectively ascribed to them by this section:

Captured portable property means any portable property taken into the custody of a police officer in his or her official capacity, for use as evidence or as lost, stolen or abandoned property or otherwise.

Portable property means personal property, other than vehicles.
(Code 1964, § 41-26; Code 1980, § 9-1-51)

Sec. 9-1-52. Creation of office of custodian of property.

The office of custodian of property is hereby created.
(Code 1964, § 41-27; Code 1980, § 9-1-52)

Sec. 9-1-53. Receiving, numbering, etc.

It shall be the duty of every police officer to deliver promptly to the custodian of property all captured portable property, including money, which he or she may take into his or her custody, and it shall be the duty of the custodian of property to receive such property. Upon delivery by a police officer to the custodian of property of any captured portable property, the custodian shall execute in duplicate a receipt for such property upon a form approved by the director of finance, describing the same as accurately as possible, which receipt shall be numbered and the duplicate thereof retained by such custodian, and the original thereof turned over to such police officer. The custodian of property shall attach to such property so received a tag bearing a number corresponding to the number placed on the receipt issued. The custodian of property shall keep such property safely in a room provided by the city. He or she shall keep such room locked and no person other than the custodian shall have access thereto, unless accompanied by the custodian. The custodian shall maintain and keep in his or her office a permanent record showing the date of the taking of each piece of such property, the place where found and taken and a description of the property.
(Code 1964, § 41-28; Code 1980, § 9-1-53)

Sec. 9-1-54. Delivery to rightful owner.

(a) Any captured portable property other than property being held as evidence in any legal proceeding, pending or contemplated, and other than property subject to condemnation or forfeiture under the laws of the state or under the provisions of this Code or other ordinances of the city, shall become subject to demand of the rightful owner thereof for its return upon the date of receipt thereof by the custodian of property. Any captured portable property being held as evidence in any legal proceeding, pending or contemplated, other than property subject to condemnation or forfeiture under the laws of the state or under the provisions of this Code or other ordinances of the city, shall become subject to demand of the rightful owner thereof for its return upon the date of final termination of such legal proceeding.

*__State law references__—Uniform Disposition of Unclaimed Property Act of 2004, Code of Ala. 1975, § 35-12-70 et seq.; authority regarding stolen and abandoned personal property, Code of Ala. 1975, § 11-47-116.

(b) The custodian of property shall deliver any property received by him or her as such custodian of property to the rightful owner thereof upon demand made after such property has become subject to demand therefor within the terms of this chapter and before sale thereof as provided in the following sections of this article.

(c) Upon delivery by the custodian of property to an owner of any captured portable property, the custodian of property at the time of making such delivery shall take the receipt of such owner for the property so delivered upon the duplicate receipt of the custodian for such property or upon a paper annexed to such duplicate receipt. Such receipt of the owner shall show the day on which such delivery was made, the name and address of the person to whom such property was delivered, a brief description of the property delivered, and a number corresponding to the number of the original receipt of the custodian covering such property.
(Code 1964, § 41-29; Code 1980, § 9-1-54)

Sec. 9-1-55. Sale—Generally.

At least every six months any portable property, other than property subject to condemnation or forfeiture under the state law, or under the provisions of this Code or other ordinances of the city, which shall have been taken up and stored and shall have remained in the custody of the custodian for a period of three months or more, shall be sold by the city purchasing agent at the direction of the chief of police at public auction to the highest bidder for cash. Such sales to be made after notice of the time and place thereof shall have first been given by publication of notice once a week for two successive weeks in a newspaper of general circulation published in the city. The first publication shall be at least 20 days before the sale. The owner of any of the property taken up and stored may redeem the same at any time prior to its sale by paying the reasonable expense of taking the property in charge, its maintenance and storage, and a pro rata share of the cost of publication. Each article shall be sold separately and a notation in the storage record book shall be made of the amount received for each article. The person making the sale shall have the right to reject any and all bids if the amount bid be unreasonably low, and shall have the right to continue the sales from time to time if no bidders are present. In the event that no bids are received, or the bid is rejected as being unreasonably low, or the city desires to purchase the article, then and in such event the purchasing agent of the city shall be permitted to bid and have the right to bid a reasonable amount on behalf of the city and the property shall then be sold to the city if its bid be the highest; provided that the purchasing agent shall make no single purchase on behalf of the city hereunder where the purchase price amounts to $500.00 or more. The proceeds of the sale shall be paid into the general fund of the city after deducting and paying all expenses incurred in the taking up, maintaining and selling of the property. Where such portable property is money, no sale or publication shall be required and if such money is not claimed by the rightful owner thereof within six months after its receipt by the custodian the same shall be paid into the general fund of the city.
(Code 1964, § 41-30; Code 1980, § 9-1-55)

Sec. 9-1-56. Same—Perishable property.

In all cases of perishable property it shall be the duty of the custodian of property to report the same with all convenient speed to the chief of police, who shall have power in his or her discretion to order such property disposed of at public or private sale, and the proceeds of such sale shall be held by the director of finance in lieu of the property so taken for the benefit of the person entitled to receive the same as the lawful owner of the property so sold. The director of finance shall pay over to the erstwhile owner of such perishable property the amount of the proceeds of the sale, less expenses of the sale, if such owner shall demand the same within six months from the date of the sale.
(Code 1964, § 41-31; Code 1980, § 9-1-56)

Sec. 9-1-57. Destruction of captured firearms and dangerous or deadly weapons.

(a) Any pistol, rifle, shotgun or other dangerous or deadly weapon not held as evidence in any legal proceeding, pending or contemplated, nor subject to condemnation or forfeiture under the

state law, or under the provisions of this Code or other ordinances of the city, and which shall have been taken up and stored as captured portable property under the provisions of this Code and have remained unclaimed in the custody of the city's custodian of property for a period of over six months, may be destroyed or otherwise rendered inoperable at the written direction of the chief of police.

(b) The chief of police shall maintain a permanent record of the identification of such property and shall make a written report to the mayor and director of finance every six months listing those weapons destroyed or otherwise rendered inoperable by the terms of this section.
(Code 1980, § 9-1-57; Ord. No. 96-74, § 1, 3-26-1996)

Secs. 9-1-58—9-1-110. Reserved.

ARTICLE E. AUXILIARY POLICE FORCE

Sec. 9-1-111. Authorized; appointment and qualifications of members.

The chief of police is hereby authorized to form an auxiliary police force for the city. He or she shall appoint, subject to the approval of the mayor, such persons to such force as he or she deems necessary or desirable. To be eligible for appointment to the auxiliary police force, a person must be of good character, over 21 years of age, a resident of the county and willing to serve without compensation.
(Code 1964, § 41-37; Code 1980, § 9-1-111)

State law reference—Appointment of reserve law enforcement officers by city or town, Code of Ala. 1975, § 11-43-210.

Sec. 9-1-112. Oath; powers and duties.

Upon appointment as a member of the auxiliary police force, each person, upon accepting membership therein, shall take the same oath that is required of the regular police of the city. The members of the auxiliary police force shall perform such duties and at such times as the chief of police shall prescribe, and shall be governed by the rules and regulations of the police department. Service as a member of the auxiliary police force shall be voluntary and without pay.
(Code 1964, § 41-38; Code 1980, § 9-1-112; Ord. No. 82-52, 3-16-1982)

Sec. 9-1-113. Uniform.

Members of the auxiliary police force shall perform their duties in civilian clothes, or in a uniform approved by the chief of police, but each of them shall be furnished with a badge, arm band and identification card signed by the chief of police when such member is sworn in. Such badge and card shall be carried by each member of the auxiliary police force whenever he or she is on duty and shall be surrendered to the chief of police at any time such chief requests the surrender of such badge, arm band and card.
(Code 1964, § 41-39; Code 1980, § 9-1-113)

Sec. 9-1-114. Term of membership.

Appointment as a member of the auxiliary police force shall be for an indefinite period of time, but such appointment shall be at the pleasure of the chief of police who may terminate such appointment at his or her pleasure by giving the member written notice of termination of membership. Members of the auxiliary police force may resign membership by written notice to the chief of police.
(Code 1964, § 41-40; Code 1980, § 9-1-114)

Secs. 9-1-115—9-1-130. Reserved.

ARTICLE F. BURGLARY AND ROBBERY ALARMS*

Sec. 9-1-131. Findings and purpose.

(a) Due to the proliferation of burglary and robbery alarm systems throughout the city, numerous instances of false alarms have occurred. Each of these false alarms has caused useless expenditure of police time, risks associated with emergency response to police officers and to the public, and an inefficient allocation of limited police patrol time available. This situation has adversely affected the emergency service of the City of Birmingham. Numerous municipalities have experienced this situation. The most efficient and effective method of controlling the problem has been the adoption and enforcement of an ordinance providing various degrees of improvement encouragement to those alarm system owners whose systems repeatedly alarm falsely.

(b) The purpose of this article is to give the chief of police a framework of lawful authority within which a program for reduction of false alarms can be established.
(Code 1980, § 9-1-131; Ord. No. 86-231, § A, 11-4-1986; Ord. No. 86-266, 12-16-1986)

Sec. 9-1-132. Definitions.

The following words and phrases when used in this article shall, for the purpose of this article, have meanings respectively ascribed to them in this section, except when the context otherwise requires:

Alarm business means the business by an individual, partnership, corporation or other entity of selling, leasing, maintaining, servicing, repairing, altering, replacing, moving or installing any alarm system or causing to be sold, leased, maintained, serviced, repaired, altered, replaced, moved or installed, any alarm system in or on any building, structure or facility.

Alarm system means any assembly of equipment, mechanical or electrical, arranged to signal the occurrence of an illegal entry or an attempted illegal entry, robbery or other activity requiring urgent attention and to which the police are expected to respond.

Alarm user or *user* means the person, firm, partnership, association, corporation, company or organization of any kind in control of any building, structure or facility wherein an alarm system is used or maintained.

Audible alarm means an alarm system that emits an audible signal that may be heard by persons outside the protected building, structure or facility.

Commander means director of the communications center or his or her designated representative whose duties shall be to promulgate rules and regulations for the implementation of the terms and conditions of this article, or such other person as the chief of police may designate.

Communications center means the police department's facility used to receive emergency and general information from the public to be dispatched to law enforcement personnel.

Designated trunk lines means a trunk line used for receiving automatic dialers.

False alarm means an alarm signal, eliciting a response by the police when a situation requiring a response by the police does not in fact exist, but does not include an alarm signal caused by violent conditions of nature or other extraordinary circumstances not reasonably subject to control by the alarm business operator or the alarm user and does not include an alarm signal from a new

*__Editor's note—__Article F, §§ 9-1-131—9-1-145, was originally promulgated by Ord. No. 86-231, adopted 11-4-1986, effective 1-1-1987. Although Ord. No. 86-266, adopted 12-16-1986, effective 1-1-1987, set out the text in its entirety, the title of the ordinance indicated that only certain sections of Ord. No. 86-231 were substantively changed. The editor has, therefore, included in the history note to every section reference to Ord. No. 86-231; but only those sections containing substantive changes effected by Ord. No. 86-266 will contain reference to that ordinance.

State law references—Alarm system installers generally, Code of Ala. 1975, § 34-1A-1 et seq.; municipality preempted from adopting local ordinances requiring a person or business entity to obtain local certification, but municipality is authorized to require submission and approval of installer's plans and specifications and to regulate the quality and character of work performed by contractors, Code of Ala. 1975, § 34-1A-8.

system for the first ten days from initial installation. This installation period may be extended in writing by the commander up to 30 days from initial installation.

Line trouble means an indication in the communications center indicated by monitor equipment means that an alarm is not functioning due to problems within the telephone lines.

Primary trunk line means a telephone line serving the communications center and which is designated to receive emergency calls.

Robbery alarm system means an alarm system signaling a robbery or attempted robbery.
(Code 1980, § 9-1-132; Ord. No. 86-231, § B, 11-4-1986; Ord. No. 86-266, 12-16-1986)

Sec. 9-1-133. User instructions.

(a) Every alarm business selling, leasing or furnishing to any user an alarm system which is installed on the premises located in the area subject to this article shall furnish the users with instructions to enable the user to operate the alarm system properly and to obtain service for the alarm system at any time from the alarm business.

(b) Each commercial, church and institutional alarm user shall instruct two designated employees in the use of the alarm system and shall enable an employee, on duty or available within one hour, to operate the alarm system properly at any time. Such employees' names and telephone numbers shall be posted at the main entrance to the premises and shall be readable from an area accessible to police officers. Such names and telephone numbers shall be filed with the commander. Any changes must be made filed in writing with the commander within five working days.
(Code 1980, § 9-1-133; Ord. No. 86-231, § C, 11-4-1986)

Sec. 9-1-134. Burglary alarm installation and regulation.

All alarm businesses, in order to have their system monitored by the police department, must install the system in accordance with all reasonable directions of the commander. The commander shall have authority (subject to the chief of police) to charge reasonable fees for testing and inspection, and establish other necessary or desirable rules and regulations, including a further false alarm reduction program.
(Code 1980, § 9-1-134; Ord. No. 86-231, § D, 11-4-1986)

Sec. 9-1-135. Audible alarms.

All alarm systems that emit audible signals that may be heard outside the protected building, structure or facility shall conform to the following requirements:

(1) Audible alarms shall not emit a sound substantially similar to that of an emergency siren as exemplified by the "wail" mode on sirens manufactured in 1985 by either the Whelen Engineering Company or Federal Sign and Signal Company in the judgment of the commander. A siren or audible alarm emitting the "hi-lo" mode or "yelp" mode as exemplified on sirens manufactured by the aforementioned firms is permissible.

(2) Audible alarms shall have conspicuously affixed on or adjacent to the main entrance on the exterior of the protected building, structure or facility the name and telephone number of the alarm business (or a police department approved sticker) or the name and telephone number of two persons who are responsible for control of the premises, and capable of controlling the alarm system.

(3) Audible alarms shall automatically discontinue emitting an audible sound within 15 minutes. However, UL certified alarm systems (or similar certified systems) approved in writing by the commander may emit sound for such time as the commander may approve.

(4) Any audible alarm shall comply with all the requirements of this section upon installation.

(Code 1980, § 9-1-135; Ord. No. 86-231, § E, 11-4-1986; Ord. No. 82-266, 12-16-1986; Ord. No. 87-125, 8-11-1987)

Sec. 9-1-136. Alarm terminations.

The following are conditions under which alarm monitoring by the communications center and emergency response by the police department may be terminated:

(1) Anytime an alarm is set off or activated intentionally, by any alarm user or any of its officers, agents or employees, for the purpose of testing the response time of the police department.

(2) After an alarm, the refusal or failure of user or its designated representative to respond to check the premises with the responding officers within one hour of the commencement of the alarm.

(3) Anytime the alarm is in the line or alarm position for a period of eight hours or more without being repaired or any attempt made to have it repaired.

(4) When the user utilizes the alarm to indicate the possibility of trouble when an actual robbery or illegal entry does not exist. This subsection does not apply to situations when persons are unable to use a telephone due to physical force or physical handicap which would prevent them from doing so.

(5) Any alarm user having four false alarms within any 12-month period will be terminated and/or disconnected from connection to communications center and emergency response by the police department shall cease.

(6) Any other reason that the commander finds, for good cause, is in the best interest of the city.

(Code 1980, § 9-1-136; Ord. No. 86-231, § F, 11-4-1986; Ord. No. 86-266, 12-16-1986)

Sec. 9-1-137. Termination procedure.

Prior to any user's alarm system being terminated or otherwise disconnected from monitoring by the communications center, or from emergency response, the commander shall notify the user. Notification by telephone to the user on the records of the commander shall be sufficient compliance with this provision. Upon a final decision of termination, an appeal to the city council may be had by the user filing a letter of appeal with city clerk within ten days of such final decision.
(Code 1980, § 9-1-137; Ord. No. 86-231, § G, 11-4-1986; Ord. No. 86-266, 12-16-1986)

Sec. 9-1-138. License required.

It shall be unlawful for any person or entity in the business of installing alarms to install an alarm designed to provoke police or emergency response unless such person possesses a current valid city business license and is knowledgeable and competent to make such installation.
(Code 1980, § 9-1-138; Ord. No. 86-231, § H, 11-4-1986)

Sec. 9-1-139. Notification of alarm system maintenance.

Any alarm business or user, prior to commencement of work or testing, and upon completion of work or testing, on any alarm system monitored by the communications center shall notify the communications center providing the following information:

(1) Proper identification of the alarm business or user and identification of individual performing work for the alarm business or user.

(2) Exact location of the alarm user.

(3) Estimated time of completion of work or test.

(Code 1980, § 9-1-139; Ord. No. 86-231, § I, 11-4-1986)

Sec. 9-1-140. Intentionally activating alarm.

It shall be unlawful for any person to intentionally activate an alarm system which is monitored or received by the police department communications center when no crime is in progress or has occurred.
(Code 1980, § 9-1-140; Ord. No. 86-231, § J, 11-4-1986)

Sec. 9-1-141. User reinstatement.

Any alarm user whose alarm system or police response thereto has been disconnected or termi-

nated from the communications center pursuant to this article may be reinstated under the following conditions:

(1) Payment by a commercial alarm user of a $250.00 reinstatement fee to the city or, in the case of a residential, church or other institutional alarm user, payment of a $50.00 reinstatement fee to the city.

(2) Written approval of reinstatement from the commander.

(3) Expiration of 30 days after termination or disconnection.

(4) The commander, with the approval of the chief of police, shall have authority to waive all or any portion of the fee and all or any portion of the waiting period upon the commander's approval of repairs or alteration to the above system.

(5) Upon user reinstatement, the commander may again terminate the system from connection or emergency police response if four additional false alarms occur within a following 12-month period, or any other reason as stated in section 9-1-136.

(Code 1980, § 9-1-141; Ord. No. 86-231, § K, 11-4-1986; Ord. No. 86-266, 12-16-1986)

Sec. 9-1-142. User list.

(a) Commercial, church and institutional users shall promptly notify the alarm company responsible for maintaining their alarm system and the commander, and shall immediately post at the main entrance to the protected structure all changes to their call-out list.

(b) The alarm company responsible for maintaining the alarm system will keep all call-out cards in the communications center current for all alarms answered by the communications center.

(c) No pager numbers will be utilized as call-out numbers on the call-out list.

(d) Before any alarm system monitor of any type is installed in or connected to the communications center, the alarm company or user shall notify the commander of the name of the business, or residence occupant, the location, and an updated call-out list of personnel to be contacted in the event the alarm is activated.

(Code 1980, § 9-1-142; Ord. No. 86-231, § L, 11-4-1986)

Sec. 9-1-143. Violation and penalties.

It shall be unlawful for any person to violate any provision of this article or to fail to comply with any duty herein imposed, and any such violation shall be punished as provided for in section 1-1-6.

(Code 1980, § 9-1-143; Ord. No. 86-231, § M, 11-4-1986)

Sec. 9-1-144. Exemptions.

The commander shall have authority to exempt Underwriters' Laboratories (UL) certified alarm systems (or similarly certified alarm systems) for this article upon written request of the user or representatives of Underwriters' Laboratories, upon such terms as the commander may approve.

(Code 1980, § 9-1-144; Ord. No. 86-231, § N, 11-4-1986)

Sec. 9-1-145. Statistical study.

The police department shall prepare, for the mayor and council, an annual statistical study and report on the number of false alarms, trends, analysis, and any suggested changes to the ordinance from which this article is derived.

(Code 1980, § 9-1-145; Ord. No. 86-231, § O, 11-4-1986)

CHAPTER 2. CITY JAIL*

ARTICLE A. GENERAL PROVISIONS

Secs. 9-2-1—9-2-3. Reserved.

Sec. 9-2-4. Breaking shackles on prisoners.

No prisoner or other person shall break or injure in any way any shackle while the same is on a city prisoner.

(Code 1964, § 42-10; Code 1980, § 9-2-4)

*__State law reference—__Authority to erect, maintain, etc., jails generally, Code of Ala. 1975, § 11-47-7.

Sec. 9-2-5. Reserved.

Sec. 9-2-6. Disposition of persons sentenced to labor.

All persons placed in the Birmingham City Jail or other temporary detention facility shall be under the direction and control of the chief of police or his or her authorized representative.
(Code 1980, § 9-2-6)

Sec. 9-2-7. Detention facility; location.

The designated facility of the city for the care, custody and control of all persons arrested, detained or sentenced for violations of the ordinances of the city and/or laws of the state is Birmingham City Jail located at 425 Sixth Avenue South, Birmingham, and such other locations as may from time to time be designated as temporary detention facilities by the chief of police.
(Code 1980, § 9-2-7; Ord. No. 79-62, 4-24-1979)

Sec. 9-2-8. Extension of the limits of confinement.

(a) The police chief or his or her authorized representative is authorized to adopt regulations permitting the extension of the limits of the place of confinement of an inmate as to whom there is reasonable cause to believe will honor the trust, by authorizing him or her, under prescribed conditions and following investigation and approval by the chief jail administrator of Birmingham City Jail, who shall maintain a written record of such action, to leave the confines of that place unaccompanied by a custodial agent for a prescribed period of time to:

(1) Visit, for a specified period, a specifically designated place or places for the purpose of visiting a seriously sick or injured relative, attending the funeral of a relative, or arranging for employment or to otherwise aid in the rehabilitation of the inmate, or for another compelling reason consistent with public interest and return to the same or another institution or facility designated by the chief jail administrator of Birmingham City Jail; or

(2) Work at paid employment, participate in an educational or a training program or voluntarily serve a public or nonprofit agency in the community, while continuing as an inmate of the institution or facility in which he or she shall be confined, except during the hours of his or her employment, education, training or service and traveling thereto and therefrom.

(b) The chief jail administrator of Birmingham City Jail may adopt regulations as to the eligibility of inmates for this extension of confinement.

(c) The willful failure of an inmate to remain within the extended limits of his or her confinement or to return within the time prescribed to the place of confinement designated by the chief jail administrator of Birmingham City Jail shall be deemed as an escape from the custody of the chief of police and shall be punishable as prescribed by law.
(Code 1980, § 9-2-8; Ord. No. 79-61, 4-24-1979)

Sec. 9-2-9. Refusal of prisoner to work—Penalty.

Any person convicted in the municipal court and sentenced to hard labor, who fails or refuses to perform such labor, is liable for a fine not exceeding $50.00 and an additional service at hard labor not exceeding six months, in the discretion of the court.
(Code 1964, § 42-13; Code 1980, § 9-2-9; Ord. No. 77-252, § 1, 11-29-1977)

Sec. 9-2-10. Same—Report to municipal court.

It shall be the duty of the officer or person in charge of the prisoners at work to report to the municipal court all prisoners who refuse to work when required to do so.
(Code 1964, § 42-14; Code 1980, § 9-2-10; Ord. No. 77-252, § 2, 11-29-1977)

Sec. 9-2-11. Property of prisoners—Generally.

All property of whatsoever kind or description, coming into the possession of the chief jail administrator of the city jail or his or her designated representative, belonging to any person confined

or detained in the city jail shall be kept by the chief jail administrator until such person is discharged as authorized by law from the custody of the chief jail administrator. All property taken from such person not claimed within 30 days after his or her release shall be turned over to the custodian of captured and stolen property, who shall issue a receipt for such delivered property.
(Code 1980, § 9-2-11)

Sec. 9-2-12. Same—After violation of section 9-2-1.

The chief jail administrator of the city jail or his or her designated representative may turn over to the custodian of captured and stolen property who shall issue a receipt for such delivered property, all property taken from persons confined within the city jail after such person has violated section 9-2-1.
(Code 1980, § 9-2-12)

Sec. 9-2-13. Attorneys loitering around city jail.

It shall be unlawful for any attorney to loaf or loiter around the city jail without good excuse therefor.
(Code 1964, § 42-16; Code 1980, § 9-2-13)

Sec. 9-2-14. Jailer, etc., supplying liquor to prisoners.

No person shall give, sell, provide or deliver to anyone within the custody of the chief of police:

(1) Any spirituous, vinous or malt beverage or liquor except upon written order of a physician or dentist;

(2) Any substance governed by the Alabama Uniform Controlled Substance Act except upon written order of a physician or dentist; or

(3) A weapon or any thing which may be fashioned into a weapon.

(Code 1980, § 9-2-14)

State law reference—Similar provision, Code of Ala. 1975, § 13A-10-38.

Secs. 9-2-15—9-2-20. Reserved.

ARTICLE B. ARRESTS

Sec. 9-2-21. Power of city officers to issue citations and approve bonds.

The authority and power to issue citations for violations of city ordinances pertaining to their respective departments or as otherwise provided in this Code and to approve or accept appearance bonds when designated to do so by the presiding municipal judge of the municipal court of parties so cited by them is conferred upon and vested in the following officers and employees:

(1) The director of buildings and inspections and his or her designated and authorized assistants or deputies;

(2) The city engineer and his or her designated and authorized assistants or deputies;

(3) The director of finance and his or her designated and authorized assistants or deputies;

(4) The rabies control officer and his or her designated and authorized assistants or deputies;

(5) The health officer and his or her designated and authorized assistants or deputies;

(6) The chief of fire and rescue department and his or her designated and authorized assistants or deputies;

(7) Managers, superintendents, officers and watchmen of municipal parks, golf courses, zoos, playgrounds and swimming pools;

(8) The director of streets and sanitation and his or her designated and authorized assistants or deputies;

(9) The director of aviation and his or her designated and authorized assistants or deputies;

(10) The parole officer in the office of the mayor and his or her designated and authorized assistants or deputies;

(11) The traffic engineer and his or her designated and authorized assistants or deputies;

(12) The building superintendent of the city hall and his or her designated and authorized assistants or deputies;

(13) The director of the art museum and his or her designated and authorized assistants or deputies; and

(14) The manager of the municipal auditorium and his or her designated and authorized assistants or deputies.

(Code 1964, § 42-18; Code 1980, § 9-2-21; Ord. No. 77-252, § 3, 11-29-1977; Ord. No. 85-31, 3-5-1985)

Sec. 9-2-22. Power of arrest of nisi officer.

The nisi officer of the city shall have all the authority and powers of arrest of a police officer and shall be deemed a police officer of the city for the purpose of making arrests.

(Code 1964, § 42-19; Code 1980, § 9-2-22)

Sec. 9-2-23. Restrictions on powers of arrest.

It is not intended by sections 9-2-21 and 9-2-22 to confer general police authority upon any of the officers or employees named therein, or to render any of them members of the police department of the city.

(Code 1964, § 42-20; Code 1980, § 9-2-23)

Sec. 9-2-24. Arrests by police officers for offenses against state laws.

The chief of police or any police officer of the city has authority and it is his or her duty to make arrests for offenses against the laws of the state in all cases where such authority is now or shall hereafter be conferred on such officers by the laws of the state, and in making such arrests, whether with or without a warrant, they shall have all the authority conferred, and be subject to all the duties imposed upon such officer, by the laws of the state, in existence now or that may hereafter be enacted.

(Code 1964, § 42-21; Code 1980, § 9-2-24)

Sec. 9-2-25. Arrest without warrant.

The chief of police and all city police officers shall arrest without warrant any person who, in their presence, commits any violation of this Code or other city ordinance or any other law.

(Code 1964, § 42-22; Code 1980, § 9-2-25)

Secs. 9-2-26—9-2-30. Reserved.

ARTICLE C. CHIEF JAIL ADMINISTRATOR

Sec. 9-2-31. Powers.

(a) The chief of police shall designate a police captain or a person of similar classification, qualification, knowledge, experience and ability to be chief jail administrator of the Birmingham City Jail, who shall supervise and have control of all city employees of the Birmingham City Jail subject to orders of the chief of police and the deputy chief as designated by the police chief.

(b) The chief jail administrator or his or her authorized representative shall have the power to accept or approve appearance bonds in the municipal court of the city as prescribed by rule of the presiding municipal judge.

(c) The chief jail administrator and his or her designated representative shall have the power of a police officer and may arrest any person who:

(1) Intrudes upon the premises of the Birmingham City Jail;

(2) Makes a disturbance in the presence of the chief jail administrator or his or her authorized representative;

(3) Escapes or attempts to escape from the custody of the chief of police or his or her designated representative; or

(4) Violates any of the city's ordinances in their presence while on the premises of the Birmingham City Jail.

(Code 1980, § 9-2-31)

Sec. 9-2-32. Duties.

The chief jail administrator or his or her authorized representative shall be responsible for performing the following:

(1) Keeping the Birmingham City Jail and all other temporary detention facilities or areas clean, adequately ventilated, safe and in good repair and order;

(2) Receiving all persons committed to Birmingham City Jail by judges of the municipal courts of the city or by any judge of the circuit court of the Tenth Judicial Circuit;

(3) Receiving all persons sentenced to hard labor each night and at all other times when such person is not at supervised hard labor outside the Birmingham City Jail;

(4) The chief jail administrator or his or her authorized representative shall see that each person confined within Birmingham City Jail is furnished three wholesome meals a day, and is properly clothed, except as may be provided for unruly and disobedient prisoners;

(5) The chief jail administrator and his or her designated representative shall make daily reports to the director of finance on such forms as may be prescribed by the director of finance, showing the number of prisoners received, the number discharged, the amount of money collected, the number of prisoners at work for the city, and such other information as the director of finance may require, and shall deliver one copy thereof to the city attorney; and

(6) The chief jail administrator or his or her authorized representative shall write requisitions for materials and food supplies for his or her division.

(Code 1980, § 9-2-32)

Sec. 9-2-33. Duty to keep prisons clean, etc.

The chief jail administrator or his or her authorized representative shall keep the prisons clean and in good order and well aired, and see that they are kept in good repair and safe for the confinement of prisoners.
(Code 1980, § 9-2-33)

Sec. 9-2-34. Receiving persons committed.

The chief jail administrator or his or her authorized representative shall receive all persons committed to prison by the judges of the court, and all other persons who are properly imprisoned in the city jail, and detain them there until such persons are properly discharged by law.
(Code 1980, § 9-2-34)

Sec. 9-2-35. Separation of sexes.

The chief jail administrator or his or her authorized representative shall set apart one apartment for the male prisoners and one for the female prisoners. They shall in no case confine a man and woman in the same cell.
(Code 1980, § 9-2-35)

Sec. 9-2-36. Care of prisoners.

The chief jail administrator or his or her authorized representative shall see to it that all inmates, prisoners or any other person in their custody or under their supervision are afforded all rights secured for them by the Constitution of the United States of America and the State of Alabama and all applicable laws and ordinances, and are provided shelter from the elements and a reasonable degree of safety from other inmates or other persons seeking to inflict malice or other physiological harm not provided for under sentence of the court or prison or jail administration.
(Code 1980, § 9-2-36)

Sec. 9-2-37. Receipt of fines and costs.

The chief jail administrator or his or her authorized representative may receive from any prisoner the fine and costs assessed against him or her and, when paid, execute a receipt therefor.
(Code 1980, § 9-2-37)

Secs. 9-2-38—9-2-50. Reserved.

ARTICLE D. CONSULTATIONS WITH PRISONERS

Sec. 9-2-51. Right of certain persons.

The following persons shall have the right to enter and consult with any individual in the custodial control of the jail of the city during the hours and under the conditions herein prescribed:

(1) All duly licensed attorneys; and

(2) Any law student of a recognized school of law or any investigator regularly employed by any licensed attorney, when authorized by a letter or other writing from such attorney and delivered for filing to the warden of the city jail or his or her designee, which shall identify such law student or investigator as such attorney's employee, furnish the name of the law student or investigator, the name of the person to be consulted and be signed in the handwriting of the attorney employing such law student or investigator. Any person employed by an attorney as a legal secretary, filing clerk, typist or general office worker or occupying a similar type status shall not be considered an investigator under this section.

(Code 1964, § 42-32; Code 1980, § 9-2-51)

Sec. 9-2-52. Hours of access.

Access to persons in custodial control shall be permitted to attorneys at all hours and to other persons authorized herein between the hours of 9:00 a.m. and 8:00 p.m., except at meal times and during peak visiting hours for members of the general public or when unusual or emergency conditions shall dictate otherwise.

(Code 1964, § 42-33; Code 1980, § 9-2-52)

Sec. 9-2-53. Impersonating attorney, etc., in order to consult.

It shall be unlawful for anyone to impersonate an attorney, law student or investigator employed by an attorney for the purpose of gaining entrance into the city jail.

(Code 1964, § 42-35; Code 1980, § 9-2-53)

Sec. 9-2-54. Effect of article.

Nothing contained in this article shall be construed as changing or modifying any rules or regulations prescribing periods of visitation by members of the general public to persons in the city jail.

(Code 1964, § 42-36; Code 1980, § 9-2-54)

Secs. 9-2-55—9-2-70. Reserved.

CHAPTER 3. FIRE AND RESCUE SERVICE DEPARTMENT*

ARTICLE A. DEPARTMENTAL OPERATIONS

Sec. 9-3-1. Name of department.

The department shall be known as the Birmingham Fire and Rescue Service Department, hereinafter referred to as "the department."

(Code 1980, § 9-3-1)

Sec. 9-3-2. Composition.

The department shall consist of a chief of the department, and such number of assistant chiefs, battalion chiefs, captains, lieutenants, apparatus operators, firefighters, firefighter paramedics and fire prevention inspectors as may be authorized and assigned to serve in the department.

(Code 1980, § 9-3-2)

Sec. 9-3-3. Duties of department.

The department shall be charged with preventing fires within the city and with the detecting, combating and extinguishing of fires when the same occur, with the protection of property and persons against damage and accident incident to such fires and with the provision of rescue and emergency medical services in the city.

(Code 1980, § 9-3-3)

Sec. 9-3-4. Devolution of command.

In case of the absence of the chief of the department and of any assistant chief from a fire, the ranking officer at the fire or other emergency shall be in command and exercise the power and authority of the chief at such fire.

(Code 1980, § 9-3-4)

Sec. 9-3-5. Authority and duties of chief.

(a) The chief of the department shall have general command, supervision and control of the department. The chief of the department or his or her designee shall answer fire alarms, and at all fires and emergency situations shall have sole

*__State law reference—__Municipal fire prevention powers, Code of Ala. 1975, § 11-43-59.

direction of the operations of the department. He or she shall locate the apparatus and men as they arrive, and they shall render such service as he or she may designate. All members and employees of the department shall give strict obedience to his or her orders. He or she shall have authority, subject to the approval of the mayor, to make such rules and regulations for the management of the department as may be necessary to promote the efficiency of the department and protect the city against fire and other emergency situations.

(b) The chief of the department shall direct and supervise the personnel, rooms, buildings, quarters, motor vehicles, equipment and property assigned to or used in or by the department, and shall direct, control and discipline all officers and members of the department, in accordance with civil service regulations.
(Code 1980, § 9-3-5)

Sec. 9-3-6. Authority and duties of captains.

(a) The captains shall have charge of their companies at fires and other emergencies or on occasion of emergency alarms, and shall see that each member efficiently performs his or her respective duties at fires as well as at the engine house.

(b) It shall be the duty of the captain of each company to see that the engines and other apparatus committed to his or her care, and the several buildings in which the same are deposited, and all things in and belonging to the same, are kept neat, clean and in order at all times in his or her company, and require and enforce at all times a strict compliance with the city laws and ordinances and the rules and regulations of the department.
(Code 1980, § 9-3-6)

Sec. 9-3-7. Inspection of hydrants and water pressure.

The chief of the department shall cause to be inspected, as often as may be necessary, the fire hydrants of the city and see that they are kept in good order and ready for instant use. He or she shall look after the water pressure in the mains from which the city obtains its water supply for fire protection, and if there should be a lack of water, or a weakness of pressure, he or she shall promptly notify the mayor and the waterworks board.
(Code 1964, § 18-6; Code 1980, § 9-3-7)

Sec. 9-3-8. Assistance from citizens at fires.

The chief of the department or ranking officer may, at any fire, command such assistance from the inhabitants of the city, for the extinguishment of fires and other emergencies and the preservation of order thereat, as may be necessary. It shall be unlawful for any person to refuse to comply with such orders for assistance.
(Code 1980, § 9-3-8)

Sec. 9-3-9. Clearing bystanders from vicinity of fire.

The chief of the department or ranking officer may, at all fires, order a space to be cleared of all persons to such a distance around the building or fire or from the vicinity thereof as may be necessary, in his or her judgment, to the efficient working of the department or to the safety of bystanders. No person shall fail or refuse to obey such order.
(Code 1980, § 9-3-9)

Sec. 9-3-10. Resisting or disobeying officers.

No person shall resist any fire or police officer in the discharge of any duty at the scene of a fire, or other emergency or fail to promptly obey the commands of any of such officers legally given.
(Code 1980, § 9-3-10)

State law reference—Similar provision, Code of Ala. 1975, § 13A-10-2.

Sec. 9-3-11. Destruction of property to prevent spread of fire.

To prevent the spread of any fire, the officer in charge at such fire, upon consultation with one or more assistant chiefs or captains, and with the mayor, if he or she is present or near the place of fire, may order any building or structure to be blown up or otherwise removed, provided such order shall receive the sanction of the majority of those so consulted.
(Code 1964, § 18-10; Code 1980, § 9-3-11)

Sec. 9-3-12. Riding on apparatus.

No person, without authorization of the chief of the department, shall ride on the apparatus in going to or returning from a fire.
(Code 1964, § 18-11; Code 1980, § 9-3-12)

Sec. 9-3-13. Use and maintenance of fire hydrants.

(a) Except as provided in subsection (b) of this section, it shall be unlawful for any person to use any of the fire hydrants of the city except the fire and rescue department or its employees or officers; provided that the waterworks board shall be allowed to test such hydrants.

(b) The chief shall be authorized to issue permits to individuals, persons, firms or corporations for use of fire hydrants under such rules and conditions as he or she may prescribe.
(Code 1980, § 9-3-13)

Sec. 9-3-14. Cutting off water supply of fire hydrants.

It shall be unlawful for any person to cut off water from any main or pipe to which a fire hydrant is attached, without giving notice to the mayor and the chief of the department at least six hours before such water is cut off.
(Code 1964, § 18-13; Code 1980, § 9-3-14)

Sec. 9-3-15. Obstructing fire hydrants.

It shall be unlawful for any person to place any building material, or any other obstruction whatever, within 15 feet of any public hydrant or fireplug.
(Code 1964, § 18-14; Code 1980, § 9-3-15)

Sec. 9-3-16. Members not to inform attorneys of accidents or discuss same with them.

It shall be unlawful for any member of the fire and rescue department who learns of any accident involving injury or damage to person or property, either in or out of the course of his or her duty, to inform any attorney of such accident, or to discuss such accident with any attorney, prior to employment of such attorney in behalf of one involved in such accident, and it shall also be unlawful for any member of the fire and rescue department of the city to solicit any person to employ any attorney in connection with such accident.
(Code 1964, § 18-15; Code 1980, § 9-3-16)

Sec. 9-3-17. Benefits.

Each member of the department shall be entitled to all benefits such as salary and medical expenses when injured or killed while acting under the line and scope of his or her authority as a firefighter, whether or not he or she is working a regularly assigned shift.
(Code 1964, § 18-16; Code 1980, § 9-3-17)

Sec. 9-3-18. Arson investigators designated as law enforcement officers.

(a) Persons serving as Arson Investigators in the Birmingham Fire and Rescue Service, Fire Investigations Bureau may be designated as law enforcement officers as defined by Code of Ala. 11-43-181 (1975) and Rule 1.4 Rules of criminal procedure.

(b) Arson investigators so designated shall maintain public order and investigate the commission or suspected commission of offenses related to arson or fire prevention and protection and shall have the authority to make arrests and issue citations related thereto, but shall not be authorized to exercise any law enforcement authority except with regard to the fire laws of the State of Alabama or the City of Birmingham.

(c) Arson investigators as law enforcement officers shall meet the minimum standards set out in Code of Ala. § 36-21-46 (1975), complete the law enforcement academy and maintain certification as law enforcement officers by Alabama Peace Officers Standards and Training Commission (APOST).
(Ord. No. 16-218, § 1, 11-22-2016)

Secs. 9-3-19—9-3-30. Reserved.

ARTICLE B. FIRE PREVENTION

Division 1. Generally

Sec. 9-3-31. Smoking or lighting matches or flammable material prohibited in certain places.

(a) It shall be unlawful for any person to ignite any match or flammable material, or to smoke any cigar, cigarette or pipe in any church, opera house, theatre, public hall, when more than 50 people are assembled in such public hall, department store or part or portion of a building if such part or portion has an aggregate area of 2,500 square feet or more and is used or occupied as a retail store for sale of dry goods, pyroxylin plastics, curtains, draperies, scarves, neckties, dresses, underwear, bedding, bunting, decorating materials, linen or other similarly highly flammable material or products. The owner, manager or other person in charge of any of the foregoing described places shall erect or cause to be erected at least two signs containing the words "No Smoking" with letters not less than four inches in height on each floor area of 2,500 square feet or part thereof in every story of the building where smoking is prohibited by this subsection.

(b) It shall be unlawful for any person to ignite any match or flammable material, or to smoke any cigar, cigarette or pipe while in or on a bed in

any hotel, or while in or on a bed in any house or building of 20 or more rooms, or of three or more stories high.
(Code 1964, § 19-1; Code 1980, § 9-3-31; Ord. No. 87-76, 4-28-1987)

Sec. 9-3-32. Class I liquids in portable containers.

(a) For the purposes of this section, the following words and phrases shall have the meanings respectively ascribed to them by this subsection:

Class I liquids or *Class I flammable liquids* means those liquids having flashpoints below 100 degrees Fahrenheit.

Portable container means a container that is made of sound metal or the equivalent and has a tight closure with a screw or spring cover and is fitted with a spout or so designed that the contents can be poured without spilling.

(b) Except as provided in subsection (e) of this section, it shall be unlawful for any person to deliver or dispense any Class I liquids into a portable container so that such container shall contain in excess of three gallons.

(c) In shall be unlawful for any person to store or transport in an automobile, closed truck or van in excess of a total of three gallons of Class I liquids in a portable container or containers.

(d) It shall be unlawful for any person to store upon any premises used for residential purposes in a portable container or portable containers in excess of a total of three gallons of Class I liquids.

(e) The provisions of this section shall not apply to the dispensing or transportation of not in excess of a total of 20 gallons of Class I liquids into or in a portable container or containers situated upon an open truck bed or in an open boat.
(Code 1964, § 19-1.1; Code 1980, § 9-3-32)

Secs. 9-3-33—9-3-40. Reserved.

Division 2. Highly Combustible Wearing Apparel

Sec. 9-3-41. Sale, etc.—Prohibited.

It shall be unlawful for any person to sell, offer for sale, expose for sale, or possess for the purpose of sale within the city, any wearing apparel which is so highly combustible as to be dangerous to a wearer thereof.
(Code 1964, § 19-19; Code 1980, § 93-41)

Sec. 9-3-42. Same—Action of fire chief, etc., authorized generally.

All wearing apparel which is so highly combustible as to be dangerous to a wearer thereof is hereby declared to be unsafe for use as such by human beings and the chief of the department or fire marshal of the city is authorized and directed to prevent the sale, offer of sale, exposing for sale, possession for the purpose of sale or other possession as provided in this division.
(Code 1964, § 19-20; Code 1980, § 9-3-42)

Sec. 9-3-43. Seizure and impoundment—Authorized.

Any wearing apparel which is so highly combustible as to be dangerous to a wearer thereof shall be seized by or under the authority of the chief of the department or the fire marshal of the city and a receipt therefor describing the same as accurately as possible shall be given to the owner or person in possession at time of seizure. Such wearing apparel shall be safely impounded until disposed of according to the provisions of this division.
(Code 1964, § 19-21; Code 1980, § 9-3-43)

Sec. 9-3-44. Same—Hearing upon petition of owner, etc.; notice; disposition.

Any person claiming any right or interest in or to any wearing apparel seized by or under the authority of the chief of the department or the fire marshal as provided by section 9-3-43 who objects to the seizure thereof may, within ten days after such seizure, present a complaint, in duplicate, to the municipal court of the city averring that the complainant is the owner or entitled to possession of such wearing apparel, describing it, that it is in

the custody of the chief of the department or the fire marshal of the city and that the seizure and impounding of the same was not authorized by this division. Upon presentation of such complaint, in duplicate, the municipal court shall immediately set same down for hearing on a day not less than one nor more than three days after presentation, and shall cause one of such duplicates, with the time of hearing noted thereon, to be delivered to the chief of the department or the fire marshal of the city. The judge may continue the hearing from time to time as may be proper. If upon the hearing the complaint should be sustained the judge shall render judgment that such wearing apparel be forthwith released to the petitioner. If the complaint should not be sustained, the judge shall enter judgment dismissing same.
(Code 1964, § 19-22; Code 1980, § 9-3-44; Ord. No. 77-245, § 1, 12-2-1977)

Sec. 9-3-45. Same—Disposition of merchandise if petition for hearing not filed within 30 days.

If, upon the expiration of 30 days after the seizure of any wearing apparel, which is so highly combustible as to be dangerous to a wearer thereof, seized by or under the authority of the chief of the department or the fire marshal as provided in this division, there has been no petition filed in the municipal court of the city as provided in section 9-3-44, or if such petition has been filed and the same has been dismissed, then the chief of the department or the fire marshal shall destroy or cause to be destroyed such wearing apparel or make such other disposition thereof as will prevent the same from being used as wearing apparel for human beings while the same is in such combustible state.
(Code 1964, § 19-23; Code 1980, § 9-3-45; Ord. No. 77-245, § 2, 12-2-1977)

Sec. 9-3-46. Same—Hearing upon petition of chief, etc.; authorized; notice.

The chief of the department or the fire marshal may, if either so elects, file or cause to be filed within 30 days after seizure thereof in the municipal court of the city, a petition setting out a description of the wearing apparel seized and impounded, the name of the owner or the name of the person in possession at the time of seizure, the place where seized, and the place where impounded, and pray in such petition for condemnation or other disposition of such wearing apparel. Upon the filing of such petition, a municipal judge shall make an order setting the hearing of the petition and requiring that a copy of the order, together with a copy of the petition, be served upon the owner or person in possession at the time of seizure, at least one day before the day set for the hearing.
(Code 1964, § 19-24; Code 1980, § 9-3-46; Ord. No. 77-245, § 3, 12-2-1977)

Sec. 9-3-47. Same—Disposition of dangerous merchandise; return of safe merchandise.

(a) If, upon such hearing, as provided for by section 9-3-46, it shall appear that such wearing apparel is so highly combustible as to be dangerous to a wearer thereof the municipal judge shall enter an order condemning such wearing apparel and ordering the chief of the department or the fire marshal to destroy the same or to make such other disposition thereof as will prevent the same from being used as wearing apparel for human beings while the same is in such combustible state. Should it appear that such wearing apparel is not so highly combustible as to be dangerous to a wearer thereof, the municipal judge shall enter an order requiring the chief of the department or the fire marshal to restore such wearing apparel to the owner or person in possession at the time of seizure.

(b) Nothing contained in this or the preceding sections shall be held to limit or alter the provisions of section 9-3-45.
(Code 1964, § 19-25; Code 1980, § 9-3-47)

CHAPTER 4. CIVIL DEFENSE AND DISASTER*

Sec. 9-4-1. Policy and purpose.

Because of the existing and increasing possibility of the occurrence of emergencies or disasters,

*__State law references__—Alabama Emergency Management Act of 1955, Code of Ala. 1975, § 31-9-1 et seq.; powers of governing body during local state of emergency, Code of Ala. 1975, § 31-9-10.

resulting from manmade or natural causes, or enemy attack, and in order to ensure that preparations of the city will be adequate to deal with emergencies or disasters and generally to provide for the common defense and to protect the public peace, health and safety, and to preserve the lives and property of the people of the city, it is hereby found and declared to be necessary:

(1) To provide for the rendering of mutual aid among other political subdivisions of the state and with the federal government with respect to the carrying out of civil defense functions; and

(2) To authorize the department of civil defense to take such steps as are necessary and appropriate to carry out the provisions of this law so that all civil defense functions for the city are coordinated to the maximum extent with the comparable functions of the state and its political subdivisions, of the federal government including its various departments and agencies, of other states and localities and of private agencies of every type to the end that the most effective preparation and use may be made of the nation's manpower, resources and facilities for dealing with any emergency or disaster that may occur.

(Code 1980, § 9-4-1)

Sec. 9-4-2. Definitions.

As used in this chapter, the term "civil defense" means the preparation for and the carrying out of all emergency functions, other than functions for which military forces are primarily responsible, to prevent, minimize and repair injury and damage resulting from emergencies or disasters, or the imminent threat, of manmade or natural origin, caused by enemy attack, sabotage, civil disturbance, fire, flood, earthquake, wind, storm, wave action, oil spill or other water contaminations requiring emergency action to avert danger or damage, epidemic, air contamination, blight, drought, infestation, explosion, riot or other hostile action, or other causes. These functions include, without limitation, firefighting services, police services, medical and health services, rescue, engineering, warning services, communications, defense from radiological, chemical and other special weapons, evacuation of persons from stricken areas, emergency welfare services, emergency transportation, plant protection, temporary restoration of public utility services and other functions related to civilian protection, together with all other activities necessary or incidental to the preparation for and carrying out of the foregoing functions.

(Code 1980, § 9-4-2)

Title 10

MOTOR VEHICLES AND TRAFFIC*

Chapter 1. General Provisions

Sec. 10-1-1. Definitions.
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CHAPTER 1. GENERAL PROVISIONS*

Sec. 10-1-1. Definitions.

The following words, terms and phrases, when used in this title, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Alley or *alleyway* means any roadway or public way dedicated to public use and designed for use as a means of providing access to the rear or side of lots or buildings or premises and not intended for the purpose of through vehicular traffic unless otherwise officially designated as a street.

Authorized emergency vehicle means such fire department vehicles, police vehicles and ambulances as are designated by the chief of police of the city.

Bicycle means every device propelled by human power upon which any person may ride, having two tandem wheels either of which is more than 14 inches in diameter.

Bus means every motor vehicle designed for carrying more than ten passengers and used for the transportation of persons; and every motor vehicle other than a taxicab or limousine designed and used for the transportation of persons for compensation.

Business district means the territory contiguous to and including a highway when within any 600 feet along such highway there are buildings in use for business or industrial purposes, including but not limited to hotels, banks or office buildings, railroad stations and public buildings which occupy at least 300 feet of frontage on one side or 300 feet collectively on both sides of the highway.

Central Business District means all streets and portions of streets within the area described as follows: All that area bounded on the west by the west line of 13th Street; on the east by the east line of 26th Street, North; on the south by the south line of University Blvd.; on the north by the north line of 8th Avenue, North.

Commercial vehicle means every vehicle designed, maintained or used primarily for the transportation of property.

Controlled-access highway means every highway, street or roadway in respect to which owners or occupants of abutting lands and other persons have no legal right of access to or from the same, except at those points only and in the manner as may be determined by the public authority having jurisdiction over the highway, street or roadway.

Crosswalk means:

(1) The part of a roadway at an intersection included within the connections of the lateral lines of the sidewalks on opposite sides of the highway measured from the curbs, or, in the absence of curbs, from the edges of the traversable roadway.

(2) Any portion of a roadway at an intersection or elsewhere distinctly indicated for pedestrian crossing by lines or other markings on the surface.

Curb loading zone means a space adjacent to a curb reserved for the exclusive use of vehicles during the loading or unloading of passengers or materials.

Diagonal parking means a vehicle shall be deemed parked diagonally when the same is parked at an angle of 45 degrees to the street curb, with the right front wheel of the vehicle not more than three inches from the curb.

Driver means every person who drives or is in actual physical control of a vehicle.

Farm tractor means every motor vehicle designed and used primarily as a farm implement for drawing plows, mowing machines and other implements of husbandry.

Freight curb loading zone means a space adjacent to a curb for the exclusive use of vehicles during the loading or unloading of freight or passengers.

*__State law references__—Authority of department of public safety to promulgate rules and regulations, Code of Ala. 1975, § 32-2-9; authority to adopt traffic laws by reference, Code of Ala. 1975, § 11-45-8(c)(11).

Highway means the entire width between the boundary lines of every way publicly maintained when any part thereof is open to the use of the public for purposes of vehicular travel.

Intersection means:

(1) The area embraced within the prolongation or connection of the lateral curblines, or, if none, then the lateral boundary lines of the roadways of two highways which join one another at, or approximately at, right angles, or the area within which vehicles traveling upon different highways joining at any other angle may come in conflict.

(2) Where a highway includes two roadways 30 feet or more apart, then every crossing of each roadway of the divided highway by an intersecting highway shall be regarded as a separate intersection. In the event the intersecting highway also includes two roadways 30 feet or more apart, then every crossing of the two roadways of the highways shall be regarded as a separate intersection.

(3) The junction of an alley with a street or highway shall not constitute an intersection.

Laned roadway means a roadway which is divided into two or more clearly marked lanes of vehicular traffic.

Metal tires means all tires, the surface of which in contact with the street is wholly or partly of metal or other hard, nonresilient material.

Motor vehicle means every vehicle which is self-propelled and every vehicle which is propelled by electric power obtained from overhead trolley wires, but not operated upon rails.

Motorcycle means every motor vehicle having a seat or saddle for the use of the rider and designed to travel on not more than three wheels in contact with the ground, but excluding a tractor.

Motor-driven cycle means every motorcycle, including every motor scooter, with a motor which produces not to exceed five brake horsepower nor to exceed 150 cubic centimeter engine displacement, and weighs less than 200 pounds fully equipped, and every bicycle with motor attached.

Official time standard means whenever certain hours are named in this title, they shall mean standard time or daylight saving time, as may be in current use in the city.

Official traffic control device means all signs, signals, markings and devices not inconsistent with this title, placed or erected by authority of a public body or official having jurisdiction, for the purpose of regulating, warning or guiding traffic.

Owner means a person, other than a lienholder, having the property in or title to a vehicle. The term "owner" includes a person entitled to the use and possession of a vehicle subject to a security interest in another person but excludes a lessee under a lease not intended as security.

Park or *parking* means the standing of a vehicle, whether occupied or not, otherwise than temporarily for the purpose of and while actually engaged in loading or unloading merchandise or passengers.

Passenger car means every motor vehicle, except motorcycles and motor-driven cycles, designed for carrying ten passengers or less and used for the transportation of persons.

Passenger curb loading zone means a place adjacent to a curb reserved for the exclusive use of vehicles during the loading or unloading of passengers.

Pedestrian means any person afoot.

Person means every natural person, firm, copartnership, association or corporation.

Pneumatic tire means every tire in which compressed air is designed to support the load.

Pole trailer means every vehicle without motive power designed to be drawn by another vehicle and attached to the towing vehicle by means of a reach or pole, or by being boomed or otherwise secured to the towing vehicle, and ordinarily used for transporting long or irregularly shaped loads such as poles, pipes or structural members capable, generally, of sustaining themselves as beams between the supporting connections.

Police officer means every officer of the police department or any officer authorized to direct or regulate traffic or to make arrests for violations of traffic regulations.

Private road or driveway means every way or place in private ownership and used for vehicular travel by the owner and those having expressed or implied permission from the owner, but not by other persons.

Public way means every street, highway or thoroughfare within the city which has been dedicated including that portion of the right-of-way between the lateral lines of the public street or road and the adjacent property lines, including sidewalks and grassy plots, if any.

Railroad means a carrier of persons or property upon cars, operated upon stationary rails.

Railroad sign or signal means any sign, signal or device erected by authority of a public body or official or by a railroad and intended to give notice of the presence of railroad tracks or the approach of a railroad train.

Railroad train means a steam engine, electric or other motor, with or without cars coupled thereto, operated upon rails.

Residence district means the territory contiguous to and including a highway not comprising a business district when the property on that highway for a distance of 300 feet or more is in the main improved with residences and buildings in use for business.

Right-of-way means the right of one vehicle or pedestrian to proceed in a lawful manner in preference to another vehicle or pedestrian approaching under such circumstances of direction, speed and proximity as to give rise to danger of collision unless one grants precedence to the other.

Road tractor means every motor vehicle designed and used for drawing other vehicles and not so constructed as to carry any load thereon independently or to carry any part of the weight of a vehicle or load so drawn.

Roadway means the portion of a highway improved, designed or ordinarily used for vehicular travel, exclusive of the berm or shoulder. In the event a highway includes two or more separate roadways, the term "roadway" refers to any such roadway separately but not to all such roadways collectively.

Safety zone means the area or space officially set apart within a roadway for the exclusive use of pedestrians and which is protected or is so marked or indicated by adequate signs as to be plainly visible at all times while set apart as a safety zone.

School bus means every motor vehicle that complies with the color and identification requirements set forth by statute or regulation and is used to transport children to or from school or in connection with school activities, but not including buses operated by common carriers in urban transportation of school children.

Semi-trailer means every vehicle with or without motive power, other than a pole trailer, designed for carrying persons or property and for being drawn by a motor vehicle and so constructed that some part of its weight and that of its load rests upon or is carried by another vehicle.

Sidewalk means the portion of a street between the curblines, or the lateral lines of a roadway, and the adjacent property lines, intended for use by pedestrians.

Solid tire means every tire of rubber or other resilient material which does not depend upon compressed air for the support of the load.

Special mobile equipment means every vehicle not designed or used primarily for the transportation of persons or property and only incidentally operated or moved over a highway, including but not limited to ditch digging apparatus, well boring apparatus and road construction and maintenance machinery such as asphalt spreaders, bituminous mixers, bucket loaders, tractors other than truck tractors, ditchers, leveling graders, finishing machines, motor graders, road rollers, scarifiers, earth-moving carry-alls and scrapers, power shovels and drag lines, and self-propelled cranes and earth-moving equipment. The term "special mobile equipment" does not include house trailers, dump trucks, truck-mounted transit mix-

ers, cranes or shovels, or other vehicles designed for the transportation of persons or property to which machinery has been attached.

Stand or *standing* means the halting of a vehicle, whether occupied or not, otherwise than for the purpose of and while actually engaged in receiving or discharging passengers.

Stop, when required, means complete cessation from movement.

Stop or *stopping,* when prohibited, means any halting, even momentarily, of a vehicle, whether occupied or not, except when necessary to avoid conflict with other traffic or in compliance with the directions of a police officer or traffic control sign or signal.

Street or *highway* means the entire width between the boundary lines of every way publicly maintained when any part thereof is open to the use of the public for purposes of vehicular travel.

Through highway means every street or highway or portion thereof on which vehicular traffic is given preferential right-of-way, and at the entrances to which vehicular traffic from intersecting highways is required by law to yield right-of-way to vehicles on the through highway in obedience to either a stop sign or a yield sign, when those signs are erected as provided in this title.

Traffic means pedestrians, ridden or herded animals, vehicles and other conveyances, either singly or together, while using any street or highway for purposes of travel.

Traffic control signal means any device, whether manually, electrically or mechanically operated, by which traffic is alternately directed to stop and to proceed.

Traffic officer means any officer designated by the mayor or the chief of police to direct or control traffic upon the streets of the city, or any member of the police department.

Trailer means every vehicle with or without motive power, other than a pole trailer, designed for carrying persons or property and for being drawn by a motor vehicle and so constructed that no part of its weight rests upon the towing vehicle.

Truck means every motor vehicle designed, used or maintained primarily for the transportation of property.

Truck-tractor means every motor vehicle designed and used primarily for drawing other vehicles and not so constructed as to carry a load other than a part of the weight of the vehicle and load so drawn.

Vehicle means every device in, upon or by which any person or property is or may be transported or drawn upon a highway, excepting devices moved by human power or used exclusively upon stationary rails or tracks; provided that for the purposes of this title, a bicycle or a ridden animal shall not be deemed a vehicle.
(Code 1964, § 34-1; Code 1980, § 10-1-1; Ord. No. 81-65, § 1, 4-7-1981; Ord. No. 93-251, § 1, 10-19-1993)

Sec. 10-1-2. Use of coasters, roller skates and similar devices restricted.

No person upon roller skates, or riding in or by means of any coaster, toy vehicle or similar device, shall go upon any roadway, except while crossing a street on a crosswalk; and when so crossing, that person shall be granted all the rights and shall be subject to all the duties applicable to pedestrians. This section shall not apply upon any street while set aside as a play street.
(Code 1964, § 34-2; Code 1980, § 10-1-2)

Sec. 10-1-3. Clinging to vehicles.

No person riding upon any motorcycle, motor-driven cycle, bicycle, coaster, roller skates, skateboard, sled or toy vehicle shall attach the same or himself or herself to any vehicle upon a roadway.
(Code 1964, § 34-3; Code 1980, § 10-1-3; Ord. No. 81-65, § 1, 4-7-1981)

State law reference—Similar provision, Code of Ala. 1975, § 32-5A-262.

Sec. 10-1-4. Unauthorized loitering in, meddling with, etc., automobiles.

It shall be unlawful for any person, without the consent of the owner or person in charge thereof, to loiter or sit in any automobile or other vehicle within the city or to blow the horn, turn the switch, put on the lights, pilfer or attempt to pilfer any of the contents or parts thereof, or in any other way to meddle or tamper with the mechanism, works or machinery of the automobile or other vehicle within the city.
(Code 1964, § 34-4; Code 1980, § 10-1-4)

State law references—Criminal tampering, Code of Ala. 1975, § 13A-7-26; criminal damage to property, Code of Ala. 1975, § 13A-7-21 et seq.

Sec. 10-1-5. Reserved.

Sec. 10-1-6. License tag.

It shall be unlawful for any person to drive or operate any motor vehicle upon the streets of the city, unless a proper and lawful license tag is attached thereto, as required by law, and the tag is of the proper classification computed upon the basis of the load carried upon the motor vehicle as provided by law, and unless the license tag is unobscured and plainly readable at a distance of 50 feet, and it shall be unlawful for any person to drive or operate any motor vehicle upon the streets of the city with any license tag attached thereto, other than a license tag for the current year; provided that this section shall be not construed to prevent any license tag being attached to a bus or truck engaged in interstate transportation of passengers or freight when the tag is required to be attached thereto, by the laws of any other state in which the bus or truck operates.
(Code 1964, § 34-6; Code 1980, § 10-1-6)

State law reference—Similar provision, Code of Ala. 1975, § 32-6-51.

Sec. 10-1-7. Display of oscillating, flashing, etc., beams of light.

(a) It shall be unlawful for any person to maintain or display upon or in view of any street a device which resembles rotating beacon lights usually used on emergency vehicles, that display a 360 degrees or less revolving or oscillating beam of light or an intermittent, flashing beam of light which is visible to operators of vehicles upon the street.

(b) It shall be unlawful for any person to maintain or display upon or in view of any street a light that displays a 360 degrees or less revolving or oscillating beam of light or an intermittent flashing beam of light which interferes with or reduces the vision of operators of vehicles upon the street.

(c) The provisions of this section shall not apply to the use of revolving beacon lights upon ambulances, wreckers or authorized emergency vehicles while the vehicles are being operated in an emergency or in an official capacity, nor shall the provisions of this section apply to the use of revolving beacon lights on vehicles used in construction, repair or service of public utility facilities on public ways during the time as is necessary to stop those vehicles on public ways to enable actual performance of the work, nor shall the provisions of this section apply to the display of intermittent flashing beams of light used to warn of construction, repair or service work on public utility facilities, when it is necessary to do the work on public ways.
(Code 1964, § 34-7; Code 1980, § 10-1-7)

Sec. 10-1-8. Reserved.

Sec. 10-1-9. Appearance upon arrest for traffic infraction; bond therefor; prima facie evidence.

(a) Whenever any person is arrested for a violation of any provision of this title, the arresting officer shall, unless otherwise provided in this section, take the name and address of that person and the license number of his or her motor vehicle and issue a uniform traffic ticket and complaint in accordance with Code of Ala. 1975, § 12-12-52 or otherwise notify him or her in writing to appear at a time and place to be specified in the uniform traffic ticket and complaint or notice. That officer shall, upon the giving by the person of a sufficient written bond approved by the arresting officer to appear at that time and place, forthwith release him or her from custody. The person shall, if he or she so desires, have a right to a prompt hearing

before a municipal judge at a convenient hour when that person shall apply for the hearing in person before a municipal judge within 24 hours of the issuance of said summons or notice.

(b) Any person refusing to give a bond to appear shall be taken immediately by the arresting officer to jail pending trial, or other lawful disposition, or the making of proper bond in accordance with the provisions of section 8-4-5.

(c) The provisions of this section shall not apply to any person arrested and charged with an offense causing or contributing to an accident resulting in injury or death to any person nor to any person charged with driving while under the influence of intoxicating liquor or of narcotic or other drugs nor to any person whom the arresting officer shall have good cause to believe has committed any felony, and the arresting officer shall take that person forthwith to the city jail for disposition as otherwise provided in this Code.

(d) It shall be unlawful for any person to willfully fail to appear in municipal court pursuant to his or her written bond or other surety given in accordance with this section, regardless of the disposition of the charge upon which he or she was originally arrested.

(e) Whenever any police officer has probable cause to believe or has knowledge that a parking offense under this title has been committed he or she shall, if he or she does not arrest the operator of the vehicle involved, issue and place upon the vehicle, a written traffic citation for the operator or owner of the vehicle to appear at a specified place within a specified time to answer for the offense, or dispose of the citation in the manner otherwise stated on the citation.

(f) In any prosecution for the violation of any provision of this title, relating to the operation or parking of vehicles, it shall be prima facie evidence that the owner of the vehicle was operating the same at the time of the alleged violation, or, in the case of parking overtime, that the owner parked the vehicle and caused it to be parked overtime.

(g) Deposit of driver's license in lieu of bond.

(1) Whenever any person lawfully possessed of a chauffeur's or driver's license theretofore issued to him or her by the state department of public safety, or under the laws of any other state or territory, or the District of Columbia of the United States, shall be arrested and charged with the violation of any traffic law of the city for which the arresting officer is directed to take a written bond, he or she shall have the option of depositing his or her chauffeur's or driver's license so issued to him or her with the arresting officer or the clerk of the municipal court, in lieu of any other security which may be required for his or her appearance in the municipal court in answer to the charge in that court.

(2) If the person arrested elects to deposit his or her license, as herein provided, the arresting officer or clerk of the municipal court shall issue that person a receipt for the license upon a form furnished or prescribed by the municipality, and thereafter the person shall be permitted to operate a motor vehicle upon the highways of this state during the pendency of the case in which the license was deposited, unless his or her license or privilege is otherwise revoked, suspended or canceled.

(3) The clerk of the court in which the charge is lodged shall immediately forward to the department of public safety of the state the license of the driver which was deposited in lieu of bail if the driver fails to appear in answer to the charge against him or her. The director of public safety shall, upon receipt of a license so forwarded by the clerk, suspend the driver's license and driving privilege of the defaulting driver until notified by the court that the charge against that driver has been finally adjudicated.

(Code 1964, § 34-9; Code 1980, § 10-1-9; Ord. No. 77-249, § 1, 12-2-1977)

State law reference—Similar provisions, Code of Ala. 1975, §§ 32-5-152, 32-5-152.1, 32-1-6.

Sec. 10-1-10. Impoundment of vehicles containing certain illegal substances, etc.

(a) Any police officer of the city who shall find within the city or the police jurisdiction thereof any vehicle which is found to contain any illegal

liquor, illegal drug or lottery paraphernalia, may remove or cause the vehicle to be removed to and impounded in any vehicular depository so designated by the city for such use.

(b) The police chief or designee shall designate the depositories for vehicles impounded pursuant to the authority contained in subsection (a) of this section.

(c) The city is entitled hereby and declared to have a lien upon any vehicle so impounded as provided in subsection (a) of this section, for an amount and length of time that shall be as established by the city council and prescribed by state law as well as any contract entered into for such services by the city council, while the vehicle remains in any city depository.

(d) Any vehicle impounded as provided in subsection (a) of this section shall not be released from any depository of the city except upon the full payment of all charges or liens accrued as provided in this section to the city, unless an unencumbered interest in the vehicle shall be declared by a court of competent jurisdiction to be in the city, in which event the vehicle shall be delivered or made available to the chief of police of the city without charge, unless the chief of police shall certify in writing to the purchasing agent for the city that the city has no need for the vehicle, in which event the vehicle shall be treated as surplus property and sold by the purchasing agent for the city as now or hereafter provided by law.
(Code 1964, § 34-9.3; Code 1980, § 10-1-10)

Sec. 10-1-11. Parking and storage of disabled, etc., automobiles.

(a) No owner, operator, employee or other person in charge or control of any service station, public or private garage, automotive towing or wrecker service, automobile repair shop, automobile sales establishment, new or used parts shop, automobile graveyard, automobile storage service or other automotive establishment shall permit the placement, storage, parking, dismantling, assembling or disassembling of any disabled or inoperable automobile, or part or parts thereof, including but not limited to motors, tires, wheels, axles, transmissions and accessories, upon the premises thereof or other premises under the control or use of the owner, operator, employee or other person, for a period in excess of three hours between the hours of 7:00 a.m. and 6:00 p.m. of any day, unless those vehicles, or part or parts thereof, shall be parked, stored, deposited or placed within or upon an area which is enclosed so as not to be visible from any adjacent public way open to travel, either by a fence, wall or screening device which shall be not less than eight feet in height measured from ground level. The fence, wall or screening device must be nontransparent and contain no openings wider or more numerous than reasonably necessary for ingress and egress; these openings shall be closable by a gate, door or other device of nontransparent material and be of a minimum height of eight feet measured from the ground level, and must remain closed at all times except when required to be open for ingress or egress, unless the same shall be stored, parked or deposited within a permanent type building or structure having a conventional or permanent type roof, and not less than three permanently constructed walls supporting the roof covering same; provided, however, that the council may, upon written application and public hearing thereon, waive the requirement for a fence, vertical wall or screening device along any railroad or other embankment, or alleyway when it finds that a nontransparent fence or wall or other screening device at the location applied for is not necessary to accomplish the purposes of this section.

(b) No such establishment as described in subsection (a) of this section shall be operated at any time in such a manner as to constitute a nuisance.
(Code 1964, § 34-9.4; Code 1980, § 10-1-11)

CHAPTER 2. TRAFFIC ADMINISTRATION

Sec. 10-2-1. Reserved.

Sec. 10-2-2. Duties of police department.

It shall be the duty of the police department to enforce the provisions of this title and other traffic regulations of this city and all of the state vehicle laws applicable to street traffic in this city, to make arrests for traffic violations, to investigate

accidents and to cooperate with the city traffic engineer and other officers of the city in the administration of the traffic laws and in developing ways and means to improve traffic conditions, and to carry out those duties specially imposed by this title and other traffic ordinances of the city.
(Code 1964, § 34-11; Code 1980, § 10-2-2; Ord. No. 81-65, § 2, 4-7-1981)

Sec. 10-2-3. Records of traffic violations.

(a) The police department shall keep a record of all violations of this title and other traffic ordinances of the city or of the state vehicle laws of which any person has been charged, together with a record of the final disposition of all alleged offenses. This record shall be so maintained as to show all types of violations and the total of each. Such record shall accumulate during at least a five-year period, and from that time on the record shall be maintained complete for at least the most recent five-year period.

(b) All forms for records of violations and notices of violations shall be serially numbered. For each month and year a written record shall be kept available to the public showing the disposal of all the forms.

(c) All these records and reports shall be public records.
(Code 1964, § 34-12; Code 1980, § 10-2-3; Ord. No. 81-65, § 2, 4-7-1981)

Sec. 10-2-4. Traffic accident studies.

Whenever the accidents at any particular location become numerous, the police department shall cooperate with the city traffic engineer in conducting studies of these accidents and determining remedial measures.
(Code 1964, § 34-14; Code 1980, § 10-2-4; Ord. No. 81-65, § 2, 4-7-1981)

Sec. 10-2-5. Traffic accident reports.

The police department shall maintain a suitable system of filing traffic accident reports. Accident reports or cards referring to them shall be filed alphabetically by date. These reports shall be available for the use and information of the city traffic engineer.
(Code 1964, § 34-15; Code 1980, § 10-2-5; Ord. No. 81-65, § 2, 4-7-1981)

Sec. 10-2-6. Drivers' files to be maintained.

(a) The police department shall maintain a suitable record of all traffic accidents, warnings, arrests, convictions and complaints reported for each driver, which shall be filed alphabetically under the name of the driver concerned.

(b) The police department shall study the cases of all the drivers charged with frequent or serious violations of the traffic laws or involved in frequent traffic accidents or any serious accident, and shall attempt to discover the reasons therefor, and shall take whatever steps are lawful and reasonable to prevent the same or to have the licenses of those persons suspended or revoked.

(c) Such records shall accumulate during at least a five-year period, and from that time on the records shall be maintained complete for at least the most recent five-year period.
(Code 1964, § 34-16; Code 1980, § 10-2-6; Ord. No. 81-65, § 2, 4-7-1981)

Sec. 10-2-7. Police department to submit annual traffic safety report.

(a) The police department shall annually prepare a traffic report, which shall be filed with the mayor. This report shall contain information on traffic matters in this city as follows:

(1) The number of traffic accidents, the number of persons killed, the number of persons injured and other pertinent traffic accident data.

(2) The number of traffic accidents investigated and other pertinent data on the safety activities of the police.

(b) The plans and/or recommendations of the police department for future traffic safety activities may be included in this report.
(Code 1964, § 34-17; Code 1980, § 10-2-7; Ord. No. 81-65, § 2, 4-7-1981)

Sec. 10-2-8. Police department to designate method of identifying funeral processions.

The police department shall designate the method to be employed to identify the vehicles in funeral processions.
(Code 1964, § 34-18; Code 1980, § 10-2-8; Ord. No. 81-65, § 2, 4-7-1981)

Sec. 10-2-9. Emergency and experimental regulations.

(a) The chief of police, by and with the approval of the city traffic engineer, is hereby empowered to make regulations necessary to make effective the provisions of this title and any other traffic ordinances of the city and to make and enforce temporary or experimental regulations to cover emergencies or special conditions. No such temporary or experimental regulations shall remain in effect for more than 90 days.

(b) The city traffic engineer may test traffic control devices under actual conditions of traffic.
(Code 1964, § 34-19; Code 1980, § 10-2-9)

Sec. 10-2-10. City traffic engineer—Office established; qualifications; appointment.

The office of city traffic engineer is hereby established. The city traffic engineer shall be a qualified engineer and shall be appointed under civil service. He or she shall exercise the powers and duties as provided in this title and other traffic ordinances of the city.
(Code 1964, § 34-20; Code 1980, § 10-2-10)

Sec. 10-2-11. Same—Powers and duties generally.

It shall be the general duty of the city traffic engineer to determine the installation and proper timing and maintenance of traffic control devices, to conduct engineering analyses of traffic accidents and to devise remedial measures, to conduct engineering investigation of traffic conditions, to plan the operation of traffic on the streets and highways of the city, and to cooperate with other city officials in the development of ways and means to improve traffic conditions, and to carry out the additional powers and duties imposed by this Code and other ordinances of the city.
(Code 1964, § 34-21; Code 1980, § 10-2-11)

Sec. 10-2-12. Same—Enforcement of parking ordinances.

The city traffic engineer is empowered hereby to enforce all provisions of this Code and other ordinances regulating or prohibiting the parking of motor vehicles upon the streets or public ways of the city. However, nothing contained herein shall limit in any way the authority of any police officer to enforce any such law or ordinance.
(Code 1964, § 34-21.1; Code 1980, § 10-2-12)

Sec. 10-2-13. Same—Authority to establish play streets and authorize street blockage for public functions.

(a) The city traffic engineer shall have authority to declare any street or part thereof a play street and authorize the placing of appropriate signs or devices in the roadway indicating and helping to protect the same.

(b) The city traffic engineer, upon request by a nonprofit organization made on a form provided by the traffic engineer, shall have the authority to approve street blockage on nonarterial streets or parts thereof for the sole purpose of conducting a public function when the traffic engineer determines that such blockage can be effected without unreasonably affecting traffic flow, land accessibility or the safety and comfort of the citizens affected thereby; and, upon approval, the traffic engineer shall authorize the placing of signs or devices as hereinafter provided in subsection (c) of this section.

(c) Whenever authorized traffic control devices are in place indicating any street or part thereof as a play street or blocked for the purpose of public functions, no person shall drive a vehicle upon any such street or portion thereof except drivers of vehicles having business or whose res-

idences are within the closed area; and then any said driver shall exercise the greatest care in driving upon any such street or portion thereof.
(Code 1964, § 34-22; Code 1980, § 10-2-13; Ord. No. 78-138, 8-4-1978; Ord. No. 81-65, § 2, 4-7-1981)

Sec. 10-2-14. Same—Authority to establish crosswalks and safety zones.

The city traffic engineer is hereby authorized to:

(1) Designate and maintain, by appropriate devices, marks or lines upon the surface of the roadway, crosswalks at intersections where, in his or her opinion, there is particular danger to pedestrians crossing the roadway and at any other places as he or she may deem necessary.

(2) Establish safety zones of a kind and character and at those places as he or she may deem necessary for the protection of pedestrians.

(Code 1964, § 34-23; Code 1980, § 10-2-14)

Sec. 10-2-15. Same—Authority to mark traffic lanes.

The city traffic engineer is hereby authorized to mark traffic lanes upon the roadway of any street or highway where a regular alignment of traffic is necessary.
(Code 1964, § 34-24; Code 1980, § 10-2-15)

Sec. 10-2-16. Same—Authority to restrict direction of movement on streets during certain periods.

(a) The city traffic engineer is hereby authorized to determine and designate streets, parts of streets or specific lanes thereon upon which vehicular traffic shall proceed in one direction during one period and the opposite direction during another period of the day and shall place and maintain appropriate markings, signs, barriers or other devices to give notice thereof. The city traffic engineer may erect signs temporarily designating lanes to be used by traffic moving in a particular direction, regardless of the centerline of the roadway.

(b) It shall be unlawful for any person to operate any vehicle in violation of these markings, signs, barriers or other devices so placed in accordance with this section.
(Code 1964, § 34-25; Code 1980, § 10-2-16)

State law reference—Obedience to traffic control devices required, Code of Ala. 1975, § 32-5A-31.

Sec. 10-2-16.1. Same—Authority to designate one-way streets and alleys.

(a) The city traffic engineer is hereby authorized to determine and designate one-way streets or alleys and shall place and maintain official traffic control devices giving notice thereof. No such designation shall be effective unless such devices are in place.

(b) The city traffic engineer shall maintain a current copy of a schedule designating such streets, parts of streets and alleys on file in the office of the city clerk and in the office of the city traffic engineer.
(Code 1980, § 10-2-16.1; Ord. No. 81-50, § 2, 4-7-1981)

Sec. 10-2-16.2. Same—Notice of proposed changes.

(a) The city traffic engineer, upon making a determination on the basis of traffic and engineering investigation that changes are necessary concerning any of the following, shall notify the city council by submitting a list detailing the proposed changes and the effective date of implementation of such changes, which date shall be ten days subsequent to the date of said notice:

(1) One-way streets and alleys.

(2) Through streets.

(3) Prohibited parking on certain streets.

(4) Parking time limited on certain streets.

(5) Parking meter zones.

(6) Load restrictions on certain streets.

(7) Commercial vehicles restricted to certain streets.

(8) Change in state maximum speed limits.

(9) Bus lanes.

(10) Automatic flashing light signals at certain railroad crossings.

(11) Streetlights at railroad crossings.

(b) Any councilmember objecting to any proposed change shall notify the city traffic engineer and the city clerk in writing detailing such complaint prior to the effective implementation date as stated in the notice. Any item or items of change objected to shall be set for determination within 14 days of the scheduled effective date of implementation. If no objection is made before the scheduled implementation date, the proposed changes shall forthwith take effect.
(Code 1980, § 10-2-16.2; Ord. No. 81-51, 4-7-1981)

Sec. 10-2-17. Traffic commission.

(a) The mayor is hereby authorized to establish a traffic commission to serve without compensation, consisting of the city traffic engineer, the chief of police, or their representatives, the chairperson of the council public safety committee, and any number of other city officers and representatives of unofficial bodies as may be determined and appointed by the mayor. The chairperson of the commission shall be appointed by the mayor and may be removed by him or her.

(b) The traffic commission shall have the authority to receive complaints having to do with traffic matters and to recommend to the city council and to the city traffic engineer, the chief of police and other city officials ways and means for improving traffic conditions and the administration and enforcement of traffic regulations.
(Code 1980, § 10-2-17; Ord. No. 81-65, § 2, 4-7-1981)

Sec. 10-2-18. Appeals of certain traffic regulations.

(a) An appeal from the following traffic regulations designated by the city traffic engineer as authorized by this title may be taken to the city council by any person aggrieved by such decision:

(1) One-way streets and alleys.

(2) Through streets.

(3) Prohibited parking on certain streets.

(4) Parking time limited on certain streets.

(5) Parking meter zones.

(6) Load restrictions on certain streets.

(7) Commercial vehicles restricted to certain streets.

(8) Change in state maximum speed limits.

(9) Bus lanes.

(10) Automatic flashing light signals at certain railroad crossings.

(11) Streetlights at railroad crossings.

(b) Such appeal of any change may be had by filing with the city traffic engineer a written notice of appeal specifying the grounds thereof on a form provided by the city traffic engineer within 30 days of implementation of such change.

(c) The city traffic engineer shall forthwith transmit to the mayor's office, council office and city clerk such notice of appeal.

(d) The city clerk shall set any such appeal on the council agenda within 21 days of receipt of such notice of appeal from the city traffic engineer for determination of the appeal. The city clerk shall also notify the person filing such appeal of this date and shall notify him or her that he or she shall have the opportunity to present his or her argument to the council. After hearing any arguments presented by the appellant and the city traffic engineer, the council shall affirm or deny such appeal.
(Code 1980, § 10-2-18; Ord. No. 81-52, 4-7-1981)

CHAPTER 3. ENFORCEMENT AND OBEDIENCE TO TRAFFIC REGULATIONS

Sec. 10-3-1. Required obedience to title.

It shall be unlawful for any person to do any act forbidden or fail to perform any act required in this title.
(Code 1964, § 34-26; Code 1980, § 10-3-1)

Sec. 10-3-2. Authority of police and fire and rescue service department officials.

(a) It shall be the duty of the officers of the police department or any officers as are assigned by the chief of police to enforce all street traffic laws of the city and all of the state vehicle laws applicable to street traffic in the city.

(b) Officers of the police department or any officers as are assigned by the chief of police are hereby authorized to direct all traffic by voice, hand or signal in conformance with traffic laws; provided that, in the event of a fire or other emergency or to expedite traffic or to safeguard pedestrians, officers of the police department may direct traffic as conditions may require, notwithstanding the provisions of the traffic laws.

(c) Officers of the fire and rescue service department, when at the scene of a fire, may direct or assist the police in directing traffic thereat or in the immediate vicinity.
(Code 1964, § 34-27; Code 1980, § 10-3-2)

Sec. 10-3-3. Obedience to police and fire and rescue service department officials.

No person shall willfully fail or refuse to comply with any lawful order, signal or direction of a police officer or fire and rescue service department official.
(Code 1964, § 34-28; Code 1980, § 10-3-3)

State law reference—Similar provision, Code of Ala. 1975, § 32-5A-4.

Sec. 10-3-4. Persons propelling pushcarts or riding animals to obey traffic regulations.

Every person propelling any pushcart or riding an animal upon a roadway and every person driving any animal drawn vehicle, shall be subject to all of the provisions of this title applicable to the driver of any vehicle, except those provisions of this title, which by their very nature, can have no application.
(Code 1964, § 34-29; Code 1980, § 10-3-4)

State law reference—Similar provision, Code of Ala. 1975, § 32-5A-5.

Sec. 10-3-5. Public employees to obey traffic regulations.

The provisions of this title shall apply to the driver of any vehicle owned by or used in the service of the United States Government, this state, county or city, and it shall be unlawful for any such driver to violate any of the provisions of this title except as otherwise permitted in this title or by state statute.
(Code 1964, § 34-30; Code 1980, § 10-3-5)

Sec. 10-3-6. Authorized emergency vehicles.

(a) The driver of an authorized emergency vehicle, when responding to an emergency call or when in the pursuit of an actual or suspected violator of the law or when responding to but not upon returning from fire alarm, may exercise the privileges set forth in this section, but subject to the conditions herein stated.

(b) The driver of an authorized emergency vehicle may:

(1) Park or stand, irrespective of the provisions of this title;

(2) Proceed past a red or stop signal or stop sign, but only after slowing down as may be necessary for safe operation;

(3) Exceed the maximum speed limits, so long as he or she does not endanger life or property; and/or

(4) Disregard regulations governing direction of movement or turning in specified directions.

(c) The exemptions granted in this section to an authorized emergency vehicle shall apply only when the driver of any such vehicle while in motion sounds an audible signal by bell or siren, as may be reasonably necessary, and when the vehicle is equipped with at least one lighted lamp displaying a red or blue light visible under normal atmospheric conditions from a distance of 500 feet to the front of the vehicle; except that an authorized emergency vehicle operated as a police vehicle need not be equipped with or display a red light visible from in front of the vehicle.

(d) The foregoing provisions shall not relieve the driver of an authorized emergency vehicle from the duty to drive with due regard for the

safety of all persons, nor shall these provisions protect the driver from the consequences of his or her reckless disregard for the safety of others.
(Code 1964, § 34-31; Code 1980, § 10-3-6; Ord. No. 81-65, § 3, 4-7-1981)

State law reference—Similar provisions, Code of Ala. 1975, §§ 32-5A-7, 32-5A-115.

Sec. 10-3-7. Operation of street cleaning or parking control vehicle.

The provisions of this title regulating the movement, parking and standing of vehicles shall not apply to street cleaning vehicles or parking control vehicles while the driver of either vehicle is operating the same in the necessary performance of public duties. This exemption shall not, however, protect the driver of any such vehicle from the consequences of a reckless disregard of the safety of the person or property of others.
(Code 1980, § 10-3-10; Ord. No. 81-65, § 3, 4-7-1981)

State law reference—Similar provision, Code of Ala. 1975, § 32-5A-6.

CHAPTER 4. ACCIDENTS*

Sec. 10-4-1. Accident reports—Immediate notice of accident.

The driver of a vehicle involved in an accident resulting in injury to or the death of any person or property damage to an apparent extent of $25.00 or more shall immediately, by the quickest means of communication, give notice of the accident to the police department if the accident occurs within the city.
(Code 1964, § 34-32; Code 1980, § 10-4-1)

State law reference—Similar provision, Code of Ala. 1975, § 32-10-5.

Sec. 10-4-2. Same—Written report of accident.

The driver of a vehicle which is in any manner involved in an accident resulting in bodily injury to or death of any person or total property damage to an apparent extent of $200.00 or more shall, within five days after the accident, forward a written report of the accident to the police department. The provisions of this section shall not be applicable when the accident has been investigated at the scene by a police officer while that driver was present thereat.
(Code 1964, § 34-33; Code 1980, § 10-4-2)

Sec. 10-4-3. Same—When driver unable to report.

(a) Whenever the driver of a vehicle is physically incapable of giving immediate notice of an accident required in section 10-4-1 and there was another occupant in the vehicle at the time of the accident capable of doing so, that occupant shall give or cause to be given the notice not given by the driver.

(b) Whenever the driver is physically incapable of making a written report of an accident required in section 10-4-2 and the driver is not the owner of the vehicle, then the owner of the vehicle involved in the accident shall within five days after learning of the accident make the report not made by the driver.
(Code 1964, § 34-34; Code 1980, § 10-4-3)

Sec. 10-4-4. Same—Disposition of reports relating to accidents.

(a) All accident reports made by persons involved in accidents or by garages shall be without prejudice to the individual so reporting, and shall be for the confidential use of the police department or other governmental agencies having use for the records for accident prevention purposes, or for the administration of the laws of the state relating to the deposit of security and proof of financial responsibility by persons driving or the owners of motor vehicles; except that the identity of a person involved in an accident may be disclosed when the identity is not otherwise known or when that person denies his or her presence at the accident.

(b) All accident reports and supplemental information filed in connection with the administration of the laws of this state relating to the deposit of security or proof of financial responsibility shall be confidential and not open to general public inspection, nor shall copying of lists of these reports be permitted; provided that these reports

*__State law reference—__Motor vehicle accidents, Code of Ala. 1975, § 32-10-1 et seq.

and supplemental information may be examined by any person named therein or by his or her representative designated in writing.

(c) No reports or information mentioned in this section shall be used as evidence in any trial, civil or criminal, arising out of an accident; except that the police department shall furnish upon demand of any party to that trial, or upon demand of any court, a certificate showing that a specified accident report has or has not been made to the department in compliance with law.
(Code 1964, § 34-35; Code 1980, § 10-4-4)

State law reference—Confidentiality of accident reports filed with the state, Code of Ala. 1975, § 32-10-11.

Sec. 10-4-5. Cleaning up after wrecks.

Whenever any person engaged in the business of moving automobiles from scenes of damage thereto on the public streets shall remove from the scene of damage thereto on any public street any automobile which has been in collision with any other automobiles or object, it shall be the duty of the mover to simultaneously remove from the public street or alley at and about the scene of the collision all glass, metal and debris which may have been cast upon the public street or alley as a result of the collision and transport such glass, metal and debris from the scene.
(Code 1964, § 34-36; Code 1980, § 10-4-5; Ord. No. 87-72, 4-7-1987)

State law reference—Similar provision, Code of Ala. 1975, § 32-5A-60(c).

Sec. 10-4-6. Stickers on vehicles involved in accidents—Required.

It shall be the duty of every police officer who investigates a motor vehicle accident to affix to the windshield of each vehicle involved a sticker or tag evidencing that such accident has been investigated by the police department.
(Code 1964, § 34-36.1; Code 1980, § 10-4-6)

Sec. 10-4-7. Same—Duty of garage to report vehicles without same.

The person in charge of any garage or repair shop in the city to which is brought any motor vehicle which shows evidence of having been involved in an accident shall immediately and prior to making repair notify the police department if that motor vehicle does not have affixed to it a sticker or tag evidencing that the accident has been investigated by a law enforcement agency. The possession or repair of the vehicle to which the required sticker or tag is not affixed shall be prima facie evidence that notification has not been given to the police department as required.
(Code 1964, § 34-36.2; Code 1980, § 10-4-7)

State law reference—Requirement that garage or repair shop report to the director of the state department of public safety evidence that a motor vehicle has been involved in an accident or struck by a bullet, Code of Ala. 1975, § 32-10-10.

CHAPTER 5. TURNING MOVEMENTS

Sec. 10-5-1. Required position and method of turning at intersections and from and onto two-way left turn lanes.

(a) *Turning at intersections.* The driver of a vehicle intending to turn at an intersection shall do as follows:

(1) *Right turns.* Both the approach for a right turn and a right turn shall be made as close as practicable to the righthand curb or edge of the roadway.

(2) *Left turns on two-way roadways.* At any intersection where traffic is permitted to move in both directions on each roadway entering the intersection, an approach for a left turn shall be made in that portion of the right half of the roadway nearest the centerline thereof and bypassing to the right of such centerline where it enters the intersection and after entering the intersection the left turn shall be made in that portion of the intersection to the left of the center of the intersection.

(3) *Left turns on other than two-way roadways.* At any intersection where traffic is restricted to one direction on one or more of the roadways, the driver of a vehicle intending to turn left at any such intersection shall approach the intersection in the extreme lefthand lane lawfully available to traffic moving in the direction of travel of that vehicle and after entering the intersection the left turn shall be

made so as to leave the intersection, as nearly as practicable, in the lefthand lane lawfully available to traffic moving in that direction upon the roadway being entered.

(b) *Left turns from or onto two-way left turn lanes.* The driver of a vehicle intending to turn from or onto a two-way left turn lane shall do as follows:

(1) Two-way left turn lanes shall be used for left turning movements only, except that they may be used otherwise when safe to do so by the driver of an authorized emergency vehicle when responding to an emergency call, or when in pursuit of an actual or suspected violator of the law or when responding to but not returning from a fire alarm.

(2) Vehicles using a two-way left turn lane shall follow the most direct route practical in making left turns.

(3) When two vehicles attempt to occupy the same area of a two-way left turn lane at the same time, the vehicle entering the lane first shall have the right-of-way.

(4) The driver of a vehicle exiting from a driveway or alley and desiring to make a left turn may use a two-way left turn lane as a storage or acceleration lane to enter or merge with traffic, when the movement can be accomplished without interfering with the traffic in the through lanes.

(5) Where a two-way left turn lane is designated, it shall be unlawful for a driver to make a left turn from any other lane unless official traffic control devices provide otherwise.

(Code 1964, § 34-37; Code 1980, § 10-5-1)

State law reference—Required position and method of turning at intersections, Code of Ala. 1975, § 32-5A-130.

Sec. 10-5-2. Authority to place and obedience to turning markers.

(a) The city traffic engineer is authorized to place markers, buttons or signs within or adjacent to intersections indicating the course to be traveled by vehicles turning at those intersections, and the course to be traveled as so indicated may conform to or be other than as prescribed by law or ordinance.

(b) When authorized markers, buttons or other indications are placed within an intersection indicating the course to be traveled by vehicles turning thereat, no driver of a vehicle shall disobey the directions of the indications.

(Code 1964, § 34-38; Code 1980, § 10-5-2)

State law reference—Obedience to traffic control devices, Code of Ala. 1975, § 32-5A-31.

Sec. 10-5-3. Authority to place restricted turn signs.

The city traffic engineer is hereby authorized to determine those intersections at which drivers of vehicles shall not make a right, left or U-turn, and shall place proper signs at those intersections. The making of these turns may be prohibited between certain hours of any day and permitted at other hours, in which event the same shall be plainly indicated on the signs or they may be removed when those turns are permitted.

(Code 1964, § 34-39; Code 1980, § 10-5-3; Ord. No. 08-238, 12-1-2008)

Sec. 10-5-4. Obedience to no-turn signs.

Whenever authorized signs are erected indicating that no right or left turn or U-turn is permitted, no driver of a vehicle shall disobey the directions of any such sign.

(Code 1964, § 34-40; Code 1980, § 10-5-4)

State law reference—Obedience to traffic control devices, Code of Ala. 1975, § 32-5A-31.

Sec. 10-5-5. Limitations on turning around.

The driver of any vehicle shall not turn that vehicle so as to proceed in the opposite direction upon any street in a business district or through street, and shall not upon any other street so turn a vehicle unless the movement can be made in safety and without interfering with other traffic.

(Code 1964, § 34-41; Code 1980, § 10-5-5; Ord. No. 81-65, § 4, 4-7-1981; Ord. No. 98-130, § 1(10-5-5), 8-18-1998)

State law reference—Turning movements and required signals, Code of Ala. 1975, § 32-5A-133.

Sec. 10-5-6. Starting, stopping, and turning and required signals.

(a) No person shall turn a vehicle at an intersection unless the vehicle is in proper position upon the roadway, or turn a vehicle to enter a private road or driveway, or otherwise turn a vehicle from a direct course or move right or left upon a roadway unless and until the movement can be made with reasonable safety. No person shall so turn any vehicle without giving an appropriate signal by signal lamps or hand and arm in the manner hereinafter provided.

(b) All signals herein required by hand and arm shall be given from the left side of the vehicle in the following manner, and such signals shall indicate as follows:

(1) *Left turn.* Hand and arm extended horizontally.

(2) *Right turn.* Hand and arm extended upward.

(3) *Stop or decrease speed.* Hand and arm extended downward.

(Code 1980, § 10-5-6; Ord. No. 81-65, § 4, 4-7-1981; Ord. No. 98-130, § 1(10-5-6), 8-18-1998)

CHAPTER 6. SPEED REGULATIONS*

Sec. 10-6-1. State speed laws applicable; exceptions.

All state traffic laws regulating the speed of vehicles shall be applicable upon all streets within this city, except as the city traffic engineer, as authorized by state law, shall declare and determine that certain speed regulations shall be applicable upon specified streets or in certain areas, in which event it shall be unlawful for any person to drive a vehicle at a speed in excess of any speed so declared in this title when signs are in place giving notice thereof.

(Code 1964, § 34-42; Code 1980, § 10-6-1; Ord. No. 81-54, 4-7-1981)

*__State law reference—__Speed restrictions, Code of Ala. 1975, § 32-5A-170 et seq.

Sec. 10-6-2. Authority of traffic engineer to increase or decrease state maximum speed limit.

(a) Whenever the city traffic engineer shall determine on the basis of an engineering and traffic investigation that the maximum speed permitted under state law is greater or less than is reasonable and safe under the conditions found to exist upon a street or part of a street, the city traffic engineer shall be authorized to determine and designate a reasonable and safe maximum speed limit thereon which may be greater or less than the maximum speed permitted under state law, with the limitation that it shall in no way conflict with the state speed regulations.

(b) No increase or decrease in maximum speed limit as designated by the city traffic engineer shall be effective on those streets or parts of streets designated unless appropriate signs giving notice thereof are erected. Such a maximum speed limit may be designated to be effective at all times or at such times as are indicated upon such signs. Differing limits may be established for different times of day, different types of vehicles, varying weather conditions and other factors bearing on safe speeds, which shall be effective when posted upon appropriate fixed or variable signs.

(c) The city traffic engineer shall maintain a current copy of schedules designating:

(1) Decrease in the state maximum speed limit on certain streets or parts of streets; and

(2) Increase in the state maximum speed limit on certain streets or parts of streets.

Such schedules shall be kept on file in the office of the city clerk and in the office of the city traffic engineer.

(Code 1980, § 10-6-2; Ord. No. 81-53, § 1, 4-7-1981)

Sec. 10-6-3. Reserved.

Sec. 10-6-4. Rate of speed in parks.

It shall be unlawful for any person to drive any vehicle along the roads or driveways of any public park at a greater rate of speed than stated by specified signs.
(Code 1964, § 34-45; Code 1980, § 10-6-4)

State law reference—Authority of municipality to regulate speed of vehicles in public parks, Code of Ala. 1975, § 32-5-1(e).

Sec. 10-6-5. Regulation of speed by traffic signals.

The city traffic engineer is authorized to regulate the timing of traffic signals so as to permit the movement of traffic in an orderly and safe manner at speeds slightly at variance from the speeds otherwise applicable within the district or at intersections and shall erect appropriate signs giving notice thereof.
(Code 1964, § 34-46; Code 1980, § 10-6-5)

Sec. 10-6-6. Ten-mile-per-hour speed limit in Fair Park East.

It shall be unlawful for any person to drive any motor vehicle as defined in section 10-1-1 at a speed in excess of ten miles per hour anywhere within that certain area in the city operated by the state fair authority as a park open to the public and designated by that authority as "Fair Park East."
(Code 1964, § 34-46.1; Code 1980, § 10-6-6)

CHAPTER 7. TRAFFIC CONTROL DEVICES

Sec. 10-7-1. Authority to install, etc.

The city traffic engineer shall place and maintain traffic control signs, signals and devices when and as required under this title or other traffic ordinances of the city to make effective the provisions of this title and any ordinances, and may place and maintain any additional traffic control devices as he or she may deem necessary to regulate traffic under this title or other traffic ordinances of the city or under state law or to guide or warn traffic.
(Code 1964, § 34-47; Code 1980, § 10-7-1)

Sec. 10-7-2. Manual and specifications.

All traffic control signs, signals and devices shall conform to the manual and specifications approved by the department of public safety or resolution adopted by the council. All signs and signals required under this title for a particular purpose shall, so far as practicable, be uniform as to type and location throughout the city. All traffic control devices so erected and not inconsistent with the provisions of state law or this title shall be official traffic control devices.
(Code 1964, § 34-48; Code 1980, § 10-7-2)

State law reference—Manual on Uniform Traffic Control Devices for Streets and Highways, Code of Ala. 1975, § 32-5A-30.

CHAPTER 8. MISCELLANEOUS DRIVING RULES

Sec. 10-8-1. Reserved.

Editor's note—Section 10-8-1 was repealed by Ord. No. 93-157, adopted 6-29-93. The section related to driving while under the influence of alcohol, controlled substances, etc., and was derived from Code 1964, § 34-56(a)—(i); Ord. Nos. 78-90, 80-159, 83-146, 85-6, 89-190 and 91-175.

Sec. 10-8-2. Reserved.

Editor's note—Ord. No. 82-103 amended title 10, ch. 8; the editor assigned section 10-8-2 to its provisions.

Sec. 10-8-3. Text messaging.

(a) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Text message or *short messaging service (SMS)* means the process by which users send, read, or receive messages on a wireless handset, including, but not limited to, text messages, instant messages, electronic messages or e-mails, in order to communicate with any person or device.

Wireless handset means a portable electronic or computing device, including but not limited to, cellular telephones, laptop computers, and personal digital assistants (PDAs), or other similar device capable of transmitting data in the form of a text message.

(b) *Text messaging while driving prohibited.* It shall be unlawful for individuals to use wireless handsets to compose, read, or send text messages while operating a vehicle in the city.

(c) *Applicability.*

(1) This section shall apply to all individuals operating motor vehicles within the city limits.

(2) Notwithstanding subsection (c)(1) of this section, this law shall not be construed to prohibit the use of any wireless handsets by:

a. Any law enforcement, public safety or police officers; emergency service officials, first aid, emergency medical technicians and personnel; and fire safety officials in the performance of duties arising out of and in the course of their employment as such;

b. A person using a wireless handset inside a motor vehicle while such motor vehicle is parked, standing or stopped, and is removed from the flow of traffic, in accordance with applicable laws, rules or ordinances, or is stopped due to the inoperability of such motor vehicle.

(d) *Penalties.* A violation of any provisions of this section shall carry a fine not exceeding $100.00, plus court costs, for each single violation. Each such violation shall constitute a separate and distinct offense.
(Ord. No. 10-100, § 1, 7-13-2010)

Sec. 10-8-4. Operation of vehicles on approach of authorized emergency vehicles.

(a) Upon the immediate approach of an authorized emergency vehicle making use of audible and visual signals meeting the requirements of the laws of this state or of a police vehicle properly and lawfully making use of an audible signal only, the driver of every other vehicle shall yield the right-of-way and shall immediately drive to a position parallel to, and as close as possible to, the righthand edge or curb of the roadway clear of any intersection and shall stop and remain in such position until the authorized emergency vehicle has passed, except when otherwise directed by a police officer.

(b) This section shall not operate to relieve the driver of an authorized emergency vehicle from the duty to drive with due regard for the safety of all persons using the highway.
(Code 1964, § 34-58; Code 1980, § 10-8-4)

State law reference—Similar provision, Code of Ala. 1975, § 32-5A-115.

Secs. 10-8-5—10-8-7. Reserved.

Sec. 10-8-8. Driving through funeral or other procession.

No driver of a vehicle shall drive between the vehicles comprising a funeral or other authorized procession while they are in motion and when those vehicles are conspicuously designated as required in section 10-8-10. This provision shall not apply at intersections where traffic is controlled by traffic control signals or police officers.
(Code 1964, § 34-62; Code 1980, § 10-8-8)

Sec. 10-8-9. Drivers in a procession.

Each driver in a funeral or other procession shall drive as near to the righthand edge of the roadway as practicable and shall follow the vehicle ahead as close as is practicable and safe.
(Code 1964, § 34-63; Code 1980, § 10-8-9)

Sec. 10-8-10. Funeral processions to be identified.

A funeral composed of a procession of vehicles shall be identified as such by the display upon the outside of each vehicle of a pennant or other identifying insignia or by any other method as may be determined and designated by the police department.
(Code 1964, § 34-64; Code 1980, § 10-8-10)

Secs. 10-8-11—10-8-14. Reserved.

Sec. 10-8-15. Unlawful riding on vehicles.

No person shall ride on any vehicle upon any portion thereof not designed or intended for the use of passengers. This section shall not apply to

an employee engaged in the necessary discharge of a duty, or to persons riding within truck bodies in space intended for merchandise.
(Code 1964, § 34-68; Code 1980, § 10-8-14)

Sec. 10-8-16. Boarding or alighting from vehicles.

No person shall board or alight from any vehicle while that vehicle is in motion.
(Code 1964, § 34-70; Code 1980, § 10-8-16)

Sec. 10-8-17. Reserved.

Sec. 10-8-18. Driving by persons under 16 years of age.

(a) Except as otherwise provided in this section, no person under the age of 16 years shall drive or operate a motor vehicle, whether that person is accompanied by an adult or not.

(b) The provisions of this section shall not apply to any student enrolled in a driver training program approved by the state superintendent of education or the director of public safety, while driving or operating a motor vehicle pursuant to the instructional program. However, no student in any driver training program shall drive or operate any motor vehicle unless accompanied by a licensed driver.

(c) Any person 14 years of age or older may operate a motor-driven cycle if that person has been granted an operator's license by the state director of public safety.
(Code 1964, § 34-72; Code 1980, § 10-8-18)

State law reference—License not to be issued to any person less than 16 years of age, Code of Ala. 1975, § 32-6-7(1).

Secs. 10-8-19—10-8-26. Reserved.

Sec. 10-8-27. Lefthand turns upon entering or leaving alley or driveway.

(a) The city traffic engineer is hereby authorized to determine those alleys or driveways at which drivers of vehicles shall not make a left turn and shall place proper signs at those alleys or driveways. The making of those turns may be prohibited between certain hours of any day and permitted at other hours, in which event the same shall be plainly indicated on the signs.

(b) When authorized signs are erected indicating that no left turn is permitted, it shall be unlawful for any driver of a vehicle to make a left turn contrary to the directions of any such sign; provided, however, that this section shall not apply to drivers of authorized emergency vehicles.
(Code 1964, § 34-81; Code 1980, § 10-8-27)

Sec. 10-8-28. Exceptions to right-of-way rule.

(a) The driver of a vehicle entering a public street from a private road or drive shall yield the right-of-way to all vehicles approaching on the public street.

(b) The driver of a vehicle upon a street shall yield the right-of-way to authorized emergency vehicles traveling in emergencies when the drivers of the emergency vehicles sound audible signal by bell or siren; provided that this provision shall not relieve the drivers of the vehicles from the consequences of reckless disregard of the safety of others.

(c) The driver of a vehicle, while emerging from an alley into a street, and while crossing the street to the opposite side, shall yield the right-of-way to all pedestrians and other traffic moving along that street.
(Code 1964, § 34-82; Code 1980, § 10-8-28)

State law reference—Similar provisions, Code of Ala. 1975, §§ 32-5A-114, 32-5A-115.

Sec. 10-8-29. Reserved.

Sec. 10-8-30. Driving in public parks.

It shall be unlawful for any person to ride or drive any vehicle in any public park, except upon or along the roads or driveways therein set apart for such use.
(Code 1964, § 34-84; Code 1980, § 10-8-30)

Sec. 10-8-31. Cruising prohibited.

(a) Between the hours of 6:00 p.m. and 6:00 a.m. Monday through Friday, and all day Saturday, Sunday and holidays, no person shall drive or permit a motor vehicle under his or her care, custody, control or ownership to be driven past a "cruiser traffic control point" three or more times within a two-hour period.

(b) A cruiser traffic control point shall be a designated location in a public street in a business or residential area provided:

(1) The location of the control point shall be determined by the police chief or his or her designee;

(2) The control point shall be located at a place where the number and movement of vehicles has blocked an adjacent intersection or has created a serious risk of public inconvenience or danger during the preceding 15 minutes, or for a period of one-half hour or more during the hours specified in subsection (a) of this section on any of the preceding seven days;

(3) Each control point shall be highly visible and shall be clearly identified by signs explaining its purpose and which are easily seen by passing motorists;

(4) Each control point shall be manned by at least two police officers; and

(5) Multiple control points may be in operation at any one time and the locations may be changed from time to time at the direction of the police chief or his or her designee.

(c) This section shall not apply to any municipal, emergency, ambulance or other governmental vehicle when the same is being operated in an official capacity. In addition, this section shall not apply to any duly licensed public transportation or public service vehicle nor to any vehicle utilized for business or commercial purpose being operated for business or commercial purposes.

(d) Upon first conviction, a person violating this section shall be fined a minimum of $100.00. Upon a second conviction, a person violating this section shall be fined a minimum of $200.00. Upon third or subsequent conviction, the fine shall be a minimum of $300.00.
(Code 1980, § 10-8-31; Ord. No. 94-170, § 1, 7-19-1994)

Sec. 10-8-32. Driving on Commemorative Garden Walk regulated.

It shall be unlawful for any person to drive, or to allow or cause to be driven, any vehicle, except a wheelchair or similar type carriage for disabled persons, on any portion of what is known as the Commemorative Garden Walk situated on that part of 20th Street, North, between 8th Avenue, North, and 9th Avenue, North, in the city; provided, however, that the provisions of this section shall not apply to the northeast 20 feet of that part of 20th Street, North, lying between the northwest line of 8th Avenue, North, and the northwest line of 8th Avenue Alley, North.
(Code 1964, § 34-85.1; Code 1980, § 10-8-32)

Sec. 10-8-33. Obstruction of operator's view; number of persons on front seat.

(a) It shall be unlawful for any operator of any vehicle to drive the same while blindfolded, or while the front seat, or the front seat and space in front of the front seat, is occupied by more than three persons.

(b) It shall be unlawful for any passenger in a vehicle or streetcar to ride in a position as to interfere with the operator's view ahead or to the sides, or to interfere with the operator's control over the driving mechanism of the vehicle.
(Code 1964, § 34-87; Code 1980, § 10-8-34)

State law reference—Similar provision, Code of Ala. 1975, § 32-5A-53.

Sec. 10-8-34. Emerging from alley, driveway or building.

The driver of a vehicle emerging from an alley, driveway or building shall stop the vehicle immediately prior to driving onto a sidewalk or onto the sidewalk area extending across any alleyway or driveway, and shall yield the right-of-way to any pedestrian as may be necessary to avoid collision, and upon entering the roadway shall yield the right-of-way to all vehicles approaching on that roadway.
(Code 1964, § 34-89; Code 1980, § 10-8-36)

Sec. 10-8-35. Findings of fact.

(a) It is hereby found and determined that:

(1) Driving a motor vehicle on the public streets and highways is a privilege, not a right.

(2) Of all drivers involved in fatal accidents, a driver with no license or a suspended or revoked license is more likely to be involved in a fatal accident than a properly licensed driver.

(3) Alabamians who comply with the law are frequently victims of traffic accidents caused by such unlicensed drivers. These innocent victims suffer considerable pain and property loss at the hands of people who flaunt the law.

(4) A large number of persons whose driving privilege has been suspended or revoked continue to drive regardless of the law; additionally, a large number of persons drive motor vehicles who have never become properly licensed.

(5) It is necessary and appropriate for protection of the public health, safety and welfare to take additional steps to prevent unlicensed drivers from illegally driving.

(b) The city has a critical interest in enforcing its traffic laws and in promptly removing such unlicensed drivers from the highway. Removing such unlicensed drivers from the highway and, if necessary, impounding vehicles being driven by such unlicensed drivers serves a significant governmental and public interest, namely the protection of the health, safety, and welfare of the citizens of the city. Protecting citizens from the harm arising from allowing unlicensed drivers, who disproportionately are the cause of traffic incidents, to continue to operate a vehicle on the public streets and to further avoid the associated destruction and damage to lives and property is of significant importance to the city. (Ord. No. 98-188, § 1(10-8-38), 11-24-1998)

Sec. 10-8-36. Impoundment of vehicle where driver does not have current, valid driver's license.

(a) Notwithstanding any other provisions of law, and except as otherwise provided in this section, a motor vehicle is subject to being impounded as a nuisance and/or for caretaking if it is driven on a highway or other public roadway in the city by a person whose license or driving privilege:

(1) Is revoked for any reason;

(2) Is currently suspended as a consequence of a driving while under the influence of alcohol, controlled substances, etc., (DUI) related offense, which includes but is not limited to, being adjudicated delinquent or a youthful offender based on a DUI-related offense or failure to comply with the implied consent law;

(3) Is suspended for failure to comply with the Motor Vehicle Safety Responsibility Act;

(4) Is suspended or cancelled under Code of Ala. 1975, § 32-5A-195;

(5) For driving a commercial vehicle has been disqualified and such person is driving a commercial vehicle;

(6) Does not have a current, valid driver's license and is not then exempt from having such license; or

(7) Is driving a commercial motor vehicle and does not then hold a valid, current commercial motor vehicle license and is not then exempt from having such license.

(b) Exceptions to impoundment.

(1) If a driver is unable to produce a valid driver's license on the demand of a police officer or other law enforcement officer, the vehicle may be impounded regardless of ownership, unless the officer is reasonably able, by other means, to verify that the driver is properly licensed. Prior to impounding the vehicle, such officer shall make a reasonable attempt to verify the license status of a driver who claims to be properly licensed but who is unable to produce the license on demand of the officer. A notation of the officer's attempt to verify that the driver is properly licensed shall be noted on the incident report.

(2) A police officer or other law enforcement officer shall not impound a vehicle pursu-

ant to this section if the license of the driver expired within the preceding 90 days and the driver would otherwise have been properly licensed.

(3) If the owner of the vehicle or another family member of the owner is present in the vehicle, such person has a valid license, and such person is not under the influence of alcohol and/or drugs or for any other reason is unable to legally operate the vehicle, then the vehicle shall not be impounded and towed.

(4) If the driver is the owner of the vehicle, the police officer or other law enforcement officer may elect to release the vehicle to a licensed driver present in the vehicle upon the consent of the owner.

(5) If there is a medical necessity jeopardizing life or limb, the law enforcement officer may elect not to impound the vehicle.

(6) If the vehicle is impounded, a pull in report shall be made with a full inventory of items in the vehicle.

(7) If the vehicle is impounded, the impounding officer shall advise the driver and occupants of the vehicle that the driver and occupants may be transported by the impounding officer or other officer at the scene to their residence or an open public facility, whichever is closer, unless they choose instead to:

a. Make arrangements to have someone come to the scene within 30 minutes to pick them up; or

b. Be left at the scene upon their specific request to do so, however, minors or physically or mentally handicapped persons, unless in the custody of a parent or guardian, shall not be left at the scene.

(8) The impounding officer shall make a notation on the incident report as to the disposition of the driver and/or occupants. If the driver and/or occupants were left at the scene, the persons requesting to be left shall be asked to sign the report.

(9) If the police or other law enforcement officer determines that the driver is not a resident of the area and that the driver is engaged at that time in interstate travel, the officer may elect not to impound the vehicle.

(c) A vehicle impounded pursuant to this section shall be released if:

(1) The registered owner or his or her representative with written notarized authorization from the registered owner appears at the city police department and presents a valid driver's license, a copy of the title, tag receipt, or notarized bill of sale, and a copy of the written authorization, if applicable, to be copied by the police department.

(2) If the registered owner does not have a valid driver's license the owner may bring someone with them who has a verified valid license and the vehicle may be released without written notarized permission.

(d) Any vehicle impounded that is not redeemed pursuant to this section within 45 days may be sold by the city according to state law.

(e) A registered or legal owner of the impounded vehicle may request a post impound hearing to contest the validity of the impoundment by filing written notice with the office of the chief of police within ten days of the impound. The post impound hearing shall be held within three days of receipt of such request by the chief of police or his or her designee.
(Ord. No. 98-188, § 1(10-8-39), 11-24-1998)

CHAPTER 9. STOPPING, STANDING AND PARKING

ARTICLE A. GENERAL PROVISIONS

Sec. 10-9-01. Authority of traffic engineer to regulate parking.

(a) The city traffic engineer is hereby authorized, on the basis of an engineering and traffic investigation, to prohibit, regulate or limit stopping, standing or parking of vehicles at all times or during specified hours.

(b) No prohibition, regulation or limitation relating to stopping, standing or parking imposed under this chapter or any other ordinance of the city shall be effective unless official traffic control devices are erected and in place at the time of any alleged offense; and it shall be the duty of the city traffic engineer to erect and maintain such devices.

(c) The city traffic engineer shall maintain a current copy of schedules designating the following:

(1) Parking prohibited at all times on certain streets;

(2) Parking prohibited during certain hours on certain streets;

(3) Stopping, standing or parking prohibited during certain hours on certain streets; and

(4) Parking time limited on certain streets.

Such schedules shall be kept on file in the office of the city clerk and in the office of the city traffic engineer.
(Code 1980, § 10-9-01; Ord. No. 81-55, 4-7-1981; Ord. No. 20-31, § 1, 2-28-2020)
Note—Formerly, § 10-9-1.

Sec. 10-9-1. Parallel parking.

(a) Except as otherwise provided in this chapter, every vehicle stopped or parked upon a roadway where there are adjacent curbs shall be so stopped or parked with the righthand wheels of the vehicle parallel to and within 12 inches of the righthand curb; provided that upon a roadway, other than a through street, in a residence district, parallel parking where permitted may also be accomplished by a vehicle being stopped or parked with the lefthand wheels of the vehicle parallel to and within 12 inches of the lefthand curb.

(b) When parking spaces have been designated by appropriate markings on the pavement, no person shall park a vehicle in any such designated parking space so that any part of the vehicle occupies more than one such space or protrudes beyond the markings designating that space; except that a vehicle which is of a size too large to be parked within a single designated space shall be permitted to occupy two adjoining parking spaces.
(Code 1964, § 34-91; Code 1980, § 10-9-1; Ord. No. 20-31, § 1, 2-28-2020)
State law reference—Similar provision, Code of Ala. 1975, § 32-5A-138.
Note—Formerly, § 10-9-2.

Sec. 10-9-2. Manner of parking unattended vehicles.

No person having charge or control of a vehicle shall allow that vehicle to stand on any street or alley unattended without first effectively setting the brakes thereon, stopping the motor of the vehicle, locking the ignition, removing the ignition key and taking the key with him; and, when standing upon any grade, without turning the front wheels of the vehicle to the curbside of the street.
(Ord. No. 20-31, § 1, 2-28-2020)

Sec. 10-9-3. Angle parking.

(a) The city traffic engineer shall determine upon what streets angle parking shall be permitted and shall mark or sign those streets, but this angle parking shall not be indicated upon any federal aid or state highway within this city unless the state highway commission has determined by resolution or order entered in its minutes that the roadway is of sufficient width to permit angle parking without interfering with the free movement of traffic.

(b) Angle parking shall not be indicated or permitted at any place where passing traffic would thereby be caused or required to drive upon the left side of the street.

(c) On those streets which have been signed or marked by the city traffic engineer for angle parking, no person shall park or stand a vehicle other than at the angle to the curb or edge of the roadway indicated by those signs or markings.
(Code 1964, § 34-93; Code 1980, § 10-9-3)
State law reference—Authority of city to permit angle parking, Code of Ala. 1975, § 32-5A-138.

Sec. 10-9-4. Permits for loading or unloading at angle to curb.

(a) The city traffic engineer is authorized to issue special permits to permit the backing of a vehicle to the curb for the purpose of loading or unloading merchandise or materials, subject to the terms and conditions of the permit. These permits may be issued either to the owner or lessee of real property or to the owner of the vehicle, and shall grant to that person the privilege as therein stated and authorized herein.

(b) It shall be unlawful for any permittee or other person to violate any of the special terms or conditions of any such permit.
(Code 1964, § 34-94; Code 1980, § 10-9-4)

Sec. 10-9-5. Stopping, standing or parking prohibited in specified places.

(a) No person shall stop, stand or park a vehicle, except when necessary to avoid conflict with other traffic or in compliance with law or the directions of a police officer or traffic control device, in any of the following places:

(1) On a sidewalk.

(2) In front of a public or private driveway.

(3) Within an intersection.

(4) Within 15 feet of a fire hydrant.

(5) On a crosswalk.

(6) Within 20 feet of a crosswalk at an intersection.

(7) Within 30 feet upon the approach to any flashing beacon, stop sign or traffic control signal located at the side of a roadway.

(8) Between a safety zone and the adjacent curb or within 30 feet of points on the curb immediately opposite the ends of a safety zone, unless the traffic engineer indicates a different length by signs or markings.

(9) Within 50 feet of the nearest rail of a railroad crossing.

(10) Within 20 feet of the driveway entrance to any fire station and on the side of a street opposite the entrance to any fire station within 75 feet of that entrance (when properly signposted).

(11) Alongside or opposite any street excavation or obstruction when stopping, standing or parking would obstruct traffic.

(12) On the roadway side of any vehicle stopped or parked at the edge or curb of a street.

(13) Upon any bridge or other elevated structure upon a highway or within a highway tunnel.

(14) At any place where official signs prohibit stopping, standing or parking.

(b) No person shall move a vehicle not lawfully under his control into any such prohibited area or away from a curb that distance as is unlawful.
(Ord. No. 20-31, § 2, 2-28-2020)

Sec. 10-9-6. Parking not to obstruct traffic.

No person shall park any vehicle upon a street, other than an alley, in such manner or under those conditions as to leave available less than ten feet of the width of the roadway for free movement of vehicular traffic.
(Code 1964, § 34-96; Code 1980, § 10-9-6)

Sec. 10-9-7. Parking in alleys.

(a) No person shall park a vehicle within an alley in such a manner or under those conditions as to leave available less than ten feet of the width of the roadway for the free movement of vehicular traffic, and no person shall stop, stand or park a vehicle within an alley in a position as to block the driveway entrance to any abutting property.

(b) Subsection (a) of this section to the contrary notwithstanding, it shall be unlawful for any person to park any vehicle in any public alley in a business district; provided that this prohibition shall not apply to trucks and other commercial vehicles, while loading and unloading or waiting to be loaded and unloaded, when parked in accordance with subsection (a) of this section.

(c) Subsections (a) and (b) of this section to the contrary notwithstanding, it shall be unlawful for any person to park any vehicle in any public alley within the central business district; provided that this prohibition shall not apply to trucks and other commercial vehicles while actually engaged in loading and unloading, when parked in accordance with subsection (a) of this section, nor shall this prohibition apply to trucks and other commercial vehicles parked in accordance with subsection (a) of this section while waiting to be loaded or unloaded for a period of not more than 30 minutes.
(Code 1964, § 34-97; Code 1980, § 10-9-7)

Sec. 10-9-8. Parking prohibited on narrow streets.

(a) The city traffic engineer is hereby authorized to erect signs indicating no parking upon any street when the width of the roadway does not exceed 27 feet, or upon one side of a street as indicated by those signs when the width of the roadway does not exceed 34 feet.

(b) When official signs prohibiting parking are erected upon narrow streets, as authorized in this section, no person shall park a vehicle upon any such street in violation of any such sign.
(Code 1964, § 34-98; Code 1980, § 10-9-8)

Sec. 10-9-9. No stopping, standing or parking near hazardous or congested places.

(a) The city traffic engineer is hereby authorized to determine and designate by proper signs places not exceeding 100 feet in length in which the stopping, standing or parking of vehicles would create an especially hazardous condition or would cause unusual delay to traffic.

(b) When official signs are erected at hazardous or congested places, as authorized in this section, no person shall stop, stand or park a vehicle in such designated place.
(Code 1964, § 34-99; Code 1980, § 10-9-9)

Sec. 10-9-10. Standing or parking on one-way streets.

The city traffic engineer is authorized to erect signs upon the lefthand side of any one-way street to prohibit the standing or parking of vehicles. When these signs are in place, no person shall stand or park a vehicle upon the lefthand side in violation of any such sign.
(Code 1964, § 34-100; Code 1980, § 10-9-10)

Sec. 10-9-11. Standing or parking on one-way roadways.

In the event a highway includes two or more separate roadways and traffic is restricted to one direction upon any such roadway, no person shall stand or park a vehicle upon the lefthand side of that one-way roadway, unless signs are erected to permit the standing or parking. The city traffic engineer is authorized to determine when standing or parking may be permitted upon the lefthand side of any such one-way roadway and to erect signs giving notice thereof.
(Code 1964, § 34-101; Code 1980, § 10-9-11)

Sec. 10-9-12. Parking on roadway for certain purposes prohibited.

(a) No person shall park a motor vehicle, trailer or semi-trailer as defined in section 10-1-1, as amended, upon any public highway, road or street, or other public way of the city, for the principal purpose of:

(1) Displaying that vehicle for sale.

(2) Washing, greasing or repairing that vehicle, except repairs necessitated by an emergency.

(b) No person shall park a motor vehicle, trailer or semi-trailer as defined in section 10-1-1, as amended, upon any public highway, road or street, or other public way of the city for the purpose of:

(1) Abandoning that vehicle.

(2) Standing or leaving that vehicle, otherwise as permitted in subsection (c) of this section, if it is disabled, broken down or otherwise inoperative and immovable.

(c) A reasonable period of time, but not in excess of 48 hours, shall be allowed for removal by the owner or person in possession thereof of any vehicle which is disabled, broken down or otherwise inoperative and immovable, or which has been parked for repairs necessitated by an emergency. In no event shall any such vehicle be allowed to remain parked upon any public street or other public way of the city for more than 48 hours, and after the expiration of a reasonable period of time the provisions of sections 10-14-1 through 10-14-9 shall be applicable to any such vehicle; provided, however, if a vehicle is disabled, broken down or otherwise inoperative but is not a traffic hazard, there shall be placed a citation upon that vehicle showing a violation of this section not less than 24 hours prior to its removal under the provisions of sections 10-14-1 through 10-14-9.

(Code 1964, § 34-102; Code 1980, § 10-9-12; Ord. No. 98-98, § 1, 6-23-1998)

Sec. 10-9-13. Use of streets by businesses for purposes of storage of vehicles.

(a) It shall be unlawful for any person engaged in any business of selling, leasing, renting or repairing motor vehicles, or for any agent, employee or servant of any such person, to store or park or cause or permit to be stored or parked on any street, alley or other public way in the city, within Fire Zone 1, any such vehicle kept or held for sale, lease, hire, rent or repair.

(b) It shall be unlawful for any person engaged in any business in which any motor vehicle is kept, held, used or employed as a means or instrument in or for the carrying on or advancement of such business, or for any agent, servant or employee of such person, to store or park or cause or permit to be stored or parked on any street, alley or other public way in the city, within Fire Zone 1, any such vehicle kept, held, used or employed as such means or instrument; provided that this subsection (b) of this section shall not apply to taxicabs or transit buses parked in taxicab or bus stands designated in accordance with law nor to passenger automobiles designed and used primarily for carriage of passengers and nonbusiness purposes.

(Code 1964, § 34-103; Code 1980, § 10-9-13)

Sec. 10-9-14. Parking adjacent to schools and parks.

(a) The city traffic engineer is hereby authorized to erect signs indicating no parking upon either or both sides of any street adjacent to any school or park property when that parking would, in his or her opinion, interfere with traffic or create a hazardous situation.

(b) When official signs are erected indicating no parking upon either side of a street adjacent to any school or park property, as authorized in this section, no person shall park a vehicle in any such designated place.

(Code 1964, § 34-104; Code 1980, § 10-9-14)

Sec. 10-9-15. Priority in right to occupy parking space.

It shall be unlawful for the operator of any vehicle which is not itself in position to be backed into a vacant parallel parking space to obstruct or hinder the lawful backing of any other vehicle into that vacant space.

(Code 1964, § 34-105; Code 1980, § 10-9-15)

Sec. 10-9-16. Parking of semitrailer trucks, other commercial vehicles, and buses.

(a) No semitrailer truck or any part thereof shall be parked upon any of the public ways of the city, other than for the expeditious loading and delivery or pickup and loading of materials.

(b) No farm tractor, pole trailer, road tractor, semitrailer, special mobile equipment, trailer, truck tractor or other commercial vehicle, as defined in section 10-1-1 or with a gross weight in excess of 6,000 pounds, shall park, stand or stop upon any public way in a residence district other than for the expeditious unloading and delivery or pickup and loading of materials.

(c) No bus, whether used for commercial or noncommercial purposes, shall be parked upon any public way in a residence district other than for the expeditious loading, delivery or pickup of materials. For the purposes of this section, the term "bus" means any vehicle which was originally designed to seat more than 12 passengers, whether or not the actual seats are still contained within the bus.

(d) Any commercial vehicle or bus set forth within this section which is parked, standing or stopped upon any public way in a residence district between the hours of 11:00 p.m. and 6:00 a.m. shall be prima facie evidence of a violation of this section.

(e) This section shall not authorize parking which is contrary to any other provisions of this Code.

(Code 1964, § 34-106; Code 1980, § 10-9-16; Ord. No. 78-122, 7-3-1978; Ord. No. 80-12, 1-29-1979; Ord. No. 93-251, § 1, 10-19-1993)

Sec. 10-9-17. Parking on private premises; presumption of guilt.

(a) It shall be unlawful for any person to park or leave or cause to be parked or left any automobile or other motor vehicle on the premises of another after having been warned not to do so by word of mouth or sign or otherwise; provided that this section shall not apply to employees of the city in the discharge of their official duties.

(b) The presence of an unattended automobile or other motor vehicle on the premises of one who is not the owner or in control of the automobile or other motor vehicle shall raise a prima facie presumption that the registered owner of the automobile or other motor vehicle parked or left or caused to be parked or left the automobile or other motor vehicle on the premises, and the burden of proof shall be upon the registered owner to show otherwise.

(Code 1964, § 34-107; Code 1980, § 10-9-17)

State law references—Criminal trespass by motor vehicle, Code of Ala. 1975, § 13A-7-4.1; presumption as to person parking in violation of municipal ordinances, Code of Ala. 1975, § 32-5-152.

Sec. 10-9-18. Parking spaces for the physically handicapped.

(a) *Designation.* The city traffic engineer is hereby authorized to designate not more than one marked parking space within any curb face of any city block for the exclusive parking of motor vehicles of physically handicapped persons; provided that the city's traffic engineer is hereby authorized to designate two marked parking spaces for the exclusive parking of motor vehicles of physically handicapped persons within any curb face of any city block which has a hospital located within said block. Spaces which provide added area for use by vehicles which are provided with lift mechanisms for ingress and egress of wheelchairs or other similar means of conveyance for persons with a handicap, shall be designated "Handicapped Van Only."

(b) *Unlawful use.* It shall be unlawful for any person not displaying a handicapped license plate decal and placard as provided by state law to park any other vehicle in an area designated for handicapped parking. It shall be unlawful for any vehicle other than a vehicle which is provided with a lift mechanism for ingress and egress of wheelchairs or other similar means of conveyance for a person with a handicap to park in a space designated as a "Handicapped Van Only" space.

(c) *Private spaces.* Upon the request of the owner, the city traffic engineer is also authorized, in addition to the above, to designate certain parking spaces and access ramps in parking decks or privately owned parking lots and authorize

those spaces and ramps to be posted as parking for the handicapped under the provisions of this section. The parking spaces and ramps so designated in parking decks or privately owned parking lots shall be subject to the same regulations as provided in this section. The cost of the sign and/or installation by the city shall be paid to the finance department by the owner to the city prior to delivery or installation of any such sign.

(d) *Evidence of certain violations.* In any prosecution for the violation of any provision of this section, relating to the operation or parking of vehicles, it shall be prima facie evidence that the owner of that vehicle was operating the same at the time of the alleged violation, or, in case of parking overtime, that the owner parked the vehicle and caused it to be parked overtime.

(e) *Penalty for violations.* Any person found guilty of the violation of this section shall be punishable by a fine of $500.00 plus community service for such period of time as the court may assess at a facility which provides rehabilitation services for persons with disabilities. A notice of the amount of the fine shall be posted on or at the location of each parking meter or space to which this section is applicable.
(Code 1964, § 34-107.1; Code 1980, § 10-9-18; Ord. No. 76-178, §§ 1—9, 8-25-1975; Ord. No. 77-179, §§ 1—9, 8-25-1977; Ord. No. 79-25, § 1, 2-13-1979; Ord. No. 81-41, 3-24-1981; Ord. No. 82-72, 5-11-1982; Ord. No. 84-52, 5-1-1984; Ord. No. 86-106, 5-27-1986; Ord. No. 07-180, 10-2-2007)

State law reference—Unauthorized use of parking places, Code of Ala. 1975, § 32-6-233.1.

Sec. 10-9-19. Security requirements.

(a) *Definitions.* For the purpose of this section, the following terms shall have the following meanings:

(1) *Person* means any person, firm or corporation not subject to the provisions of chapter 15 of this title, and any agent, servant or employee of such person.

(2) *Provide security* means that the person who permits the parking of automobiles or other motor vehicles for a charge upon property under his or her control or in his or her possession shall be present at such property and positioned in such a manner as to observe all automobiles or other motor vehicles parked upon such property for a charge during the entire period of time in which such automobiles or vehicles are parked thereon.

(b) *Security to be provided for automobiles parked for a charge.* Any person who permits the parking of automobiles or other motor vehicles for a charge upon property under his or her control or in his or her possession shall provide security for the protection of such automobiles or other motor vehicles for the entire period of time in which such automobiles or other motor vehicles are parked upon such property.

(c) *Duty to report unauthorized acts to police department and protect automobiles.* It shall be the duty of any person who permits the parking of automobiles or other motor vehicles for a charge upon property under his or her control or in his or her possession to immediately report to the police department of this city any unauthorized acts directed against such automobiles or other motor vehicles.
(Code 1980, § 10-9-19; Ord. No. 80-192, §§ 1—3, 9-16-1980)

Secs. 10-9-20—10-9-30. Reserved.

ARTICLE B. RESTRICTIONS ON CERTAIN STREETS

Sec. 10-9-31. Applicability of article.

The provisions of this article prohibiting the standing or parking of a vehicle shall apply at all times or at specified times as indicated on official signs, except when it is necessary to stop a vehicle to avoid conflict with other traffic or in compliance with the directions of a police officer or official traffic control device.
(Code 1964, § 34-108; Code 1980, § 10-9-31; Ord. No. 81-56, § 1, 4-7-1981)

Sec. 10-9-32. Regulations not exclusive.

The provisions of this article imposing a time limit on parking shall not relieve any person from the duty to observe other and more restrictive

provisions prohibiting or limiting the stopping, standing or parking of vehicles in specified places or at specified times.
(Code 1964, § 34-109; Code 1980, § 10-9-32)

Sec. 10-9-33. Parking prohibited at all times on certain streets.

When signs are erected giving notice thereof, no person shall park a vehicle at any time upon any of the streets designated by the city traffic engineer.
(Code 1980, § 10-9-33; Ord. No. 81-56, 4-7-1981, § 2)

Sec. 10-9-34. Parking prohibited during certain hours on certain streets.

When signs are erected in each block giving notice thereof, no person shall park a vehicle between the hours specified on such signs of any day except Sundays and public holidays on any of the streets designated by the city traffic engineer.
(Code 1980, § 10-9-34; Ord. No. 81-56, § 3, 4-7-1981)

Sec. 10-9-35. Stopping, standing or parking prohibited during certain hours on certain streets.

When signs are erected in each block giving notice thereof, no person shall stop, stand or park a vehicle between the hours specified on such signs upon any of the streets designated by the city traffic engineer.
(Code 1980, § 10-9-35; Ord. No. 81-56, § 4, 4-7-1981)

Sec. 10-9-36. Parking time limited on certain streets.

When signs are erected giving notice thereof, no person shall park a vehicle for longer than the time specified on such signs and between the hours of any day except Sundays and public holidays upon any of the streets designated by the city traffic engineer.
(Code 1980, § 10-9-36; Ord. No. 81-56, § 5, 4-7-1981)

Secs. 10-9-37—10-9-50. Reserved.

ARTICLE C. STOPPING FOR LOADING AND UNLOADING ONLY

Sec. 10-9-51. City traffic engineer to designate curb loading zones.

The city traffic engineer is hereby authorized to determine the location of passenger and freight curb loading zones and shall place and maintain appropriate signs indicating the same and stating the hours during which the provisions of this article are applicable.
(Code 1964, § 34-115; Code 1980, § 10-9-51)

Sec. 10-9-52. Stopping, standing or parking in passenger curb loading zone.

No person shall stop, stand or park a vehicle for any purpose or period of time, other than for the expeditious loading or unloading of passengers, in any place marked as a passenger curb loading zone during hours when the regulations applicable to such curb loading zone are effective, no longer than necessary.
(Code 1964, § 34-116; Code 1980, § 10-9-52)

Sec. 10-9-53. Stopping, standing or parking in freight curb loading zone.

No person shall stop, stand or park a vehicle for any purpose or for any period of time in any place marked as a freight curb loading zone during hours when the provisions applicable to such zones are in effect; provided, however, that commercial vehicles as defined in section 10-1-1 are permitted to stop, stand or park in such zones for a maximum period of 30 minutes for the purpose of loading, unloading, delivery or pickup.
(Code 1964, § 34-117; Code 1980, § 10-9-53; Ord. No. 88-115, 6-26-1988)

Sec. 10-9-54. City traffic engineer to designate public carrier stops and stands.

The city traffic engineer shall establish bus stops, bus stands, taxicab stands and stands for other passenger common carrier motor vehicles on such public streets in those places and in the number as he or she shall determine to be of the

greatest benefit and convenience to the public. Every bus stop, bus stand, taxicab stand or other stand shall be designated by appropriate signs.
(Code 1964, § 34-118; Code 1980, § 10-9-54)

Sec. 10-9-55. Stopping, standing and parking of buses.

(a) The operator of a bus shall not stand or park any vehicle upon any street at any place other than a bus stand.

(b) The operator of a bus shall not stop that vehicle upon any street at any place for the purpose of loading or unloading passengers or their baggage other than at a bus stop or bus stand except in case of an emergency.

(c) The operator of a bus shall enter a bus stop, bus stand or passenger loading zone on a public street in such a manner that the bus when stopped to load or unload passengers or baggage shall be in a position with the right front wheel of the vehicle not further than 18 inches from the curb and the bus approximately parallel to the curb so as not to unduly impede the movement of other vehicular traffic.
(Code 1964, § 34-119; Code 1980, § 10-9-55; Ord. No. 86-41, 3-4-1986)

Sec. 10-9-56. Restricted use of bus and taxicab stands.

(a) No person shall stop, stand or park a vehicle other than a bus in a bus stop, or other than a taxicab in a taxicab stand when any such stop or stand has been officially designated and appropriately signed, except that the driver of a passenger vehicle may temporarily stop therein for the purpose of and while actually engaged in loading or unloading passengers when that stopping does not interfere with any bus or taxicab waiting to enter or about to enter that zone.

(b) Upon approval of the traffic engineer, any entity employing more than 15,000 employees within the corporate limits of the city is hereby authorized to operate a courtesy shuttle service within the corporate limits of the city and shall be authorized to use existing bus stops or passenger loading zones for loading and unloading of its patrons. This section shall not operate to exempt the operator of said courtesy shuttle service from the provisions of section 12-16-1 et seq.
(Code 1964, § 34-120; Code 1980, § 10-9-56; Ord. No. 13-148, § 1, 11-22-2013)

Sec. 10-9-57. Stopping, standing and parking of taxicabs.

(a) No taxicab driver shall stop, stand or park the taxicab while in service upon any street or alley or public way except in a taxicab stand or while in the process of loading or unloading passengers.

(b) No taxicab driver shall leave his or her taxicab unoccupied in a taxicab stand for longer than five minutes.

(c) No taxicab driver which is out of service shall park the taxicab on any street, alley or public right-of-way in any business district for a period of longer than two hours.

(d) No driver of a taxicab shall receive or discharge passengers in the roadway portion of the street in any business district unless it is not possible to do so at the righthand curb or side of the street or at the righthand or lefthand curb or side of the street on one-way streets.
(Code 1980, § 10-9-57; Ord. No. 86-41, 3-4-1986)

Secs. 10-9-58—10-9-70. Reserved.

ARTICLE D. PARKING ON CITY HALL PARKING LOTS

Division 1. Generally

Sec. 10-9-71. Prohibited; exception as to city officers and employees.

It shall be unlawful for any person, other than an officer or employee of the city, to cause, permit or allow any automobile or other vehicle in his or her custody, possession or control to enter or to be on any part of that certain area which is bounded on the east by 20th Street North, on the south by Park Place, on the west by 19th Street North, and

on the north by 8th Avenue North (such area being Block 20, Elyton Land Company's Survey, otherwise known as the City Hall block).
(Code 1964, § 34-122; Code 1980, § 10-9-71)

Sec. 10-9-72. Parking restricted to city vehicles and private vehicles having permission.

It shall be unlawful for any officer or employee of the city, other than one in charge or control of an automobile or vehicle owned by the city or one to whom the city has granted an allowance for use of his or her automobile in the city's service or one whose name or other designation is painted or printed at the head of a parking space in the area described in this article, to cause, permit or allow any automobile or other vehicle in his or her custody, possession or control to enter or be on any part of such area.
(Code 1964, § 34-123; Code 1980, § 10-9-72)

Sec. 10-9-73. Parking in designated spaces.

(a) It shall be unlawful for any officer or employee of the city whose name or other designation is painted or printed at the head of any parking space in the area described in this article to cause, permit or allow any automobile or other vehicle in his or her custody, possession or control to enter or occupy any parking space in that area other than that at the head of which his or her name or other designation is painted or printed.

(b) It shall be unlawful for any officer or employee of the city to cause, permit or allow any automobile or other vehicle in his or her custody, possession or control to enter or be in any parking space of that area at the head of which is painted or printed a name or designation other than one belonging or appertaining to him or her.
(Code 1964, § 34-124; Code 1980, § 10-9-73)

Sec. 10-9-74. Parking regulations for the Municipal Justice Center parking lot.

(a) It shall be unlawful for any person to park or leave any vehicle upon the parking lot of the Municipal Justice Center unless such vehicle shall be parked wholly within a parking space as designated by painted lines or other discernible markings. This section shall not apply to authorized emergency vehicles.

(b) No person shall park a vehicle in any such designated parking space for a period longer than the restricted or regulated posted time for which parking is lawfully permitted in the parking lot of the Municipal Justice Center.

(c) It shall be unlawful for any person to stop, park, drive or operate a vehicle upon the parking lot of the Municipal Justice Center in any manner which unreasonably obstructs or hinders the free flow of pedestrian or vehicular traffic.

(d) It shall be unlawful for any vehicle not displaying a Municipal Justice Center parking decal and/or placard, issued by the city, to park in a parking space designated or posted for restricted parking.

(e) The area described in this section is any part of that certain area which is bounded on the east by the Municipal Justice Center building, on the south by 8th Avenue North, on the west by 17th Street North, on the north by an alley between the Municipal Justice Center parking lot and Interstate 59/20 1700 block (such area being otherwise known as the Municipal Justice Center parking lot).

(f) The provisions of this section shall not relieve any person from the duty to observe other and more restrictive provisions of this chapter, other ordinances or the state motor vehicle code prohibiting or limiting the stopping, standing or parking of vehicles in specified places or at specified times.

(g) The mayor shall be authorized to appoint persons who shall have authority to issue parking violation citations in the Municipal Justice Center parking lot but who shall not have the arrest powers of law enforcement officers. However, nothing contained herein shall limit in any way the authority of any police officer to enforce any such law or ordinance.
(Ord. No. 98-54, § 1, 4-14-1998)

Sec. 10-9-75. Parking regulations for the South Court and the city jail parking lot.

(a) It shall be unlawful for any person to park or leave any vehicle upon the parking lot of South Court and the city jail unless such vehicle shall be parked wholly within a parking space as designated by painted lines or other discernible markings. This section shall not apply to authorized emergency vehicles.

(b) It shall be unlawful for any person to stop, park, drive or operate a vehicle upon the parking lot of South Court and the city jail in any manner which unreasonably obstructs or hinders the free flow of pedestrian or vehicular traffic.

(c) The area described in this section is any part of that certain area which is bounded on the east by the Former Birmingham Police Administration building, on the south by the municipal court building (otherwise known as South Court), the city jail and the city police academy, on the west by Beta Street, on the north by 6th Avenue South.

(d) The provisions of this section shall not relieve any person from the duty to observe other and more restrictive provisions of this chapter, other ordinances or the state motor vehicle code prohibiting or limiting the stopping, standing or parking of vehicles in specified places or at specified times.

(e) The mayor shall be authorized to appoint persons who shall have authority to issue parking violation citations in the South Court and the city jail parking lot but who shall not have the arrest powers of law enforcement officers. However, nothing contained herein shall limit in any way the authority of any police officer to enforce any such law or ordinance.
(Ord. No. 98-53, § 1, 4-14-1998)

Secs. 10-9-76—10-9-79. Reserved.

ARTICLE E. PARKING METERS

Sec. 10-9-80. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this article, except where the context clearly indicates a different meaning:

Broken meter means any parking meter that will not accept any form of payment, including by parking meter technology.

Operator means and includes every individual who shall operate a vehicle as the owner thereof, or as the agent, employee or permittee of the owner, or who is in actual physical control of a vehicle.

Parking meter means and includes any mechanical device or meter, not inconsistent with this division, placed or erected for the regulation of parking by authority of this division, which device is designated to register, or issue printed and/or electronic confirmation of, the purchase and duration of the parking time and limit thereof, upon payment by United States coin or currency, payment card or any other alternative payment capability, including parking meter technology.

Parking meter space means any space within a parking meter zone which is duly designed for the parking of a single vehicle by lines painted or otherwise durably marked on the curb or on the surface of the street or otherwise designated by signage, which is either adjacent to a parking meter or which is in an area clearly marked by signs indicating the space is in a parking meter zone and indicating that payment may be made by the use of parking meter technology.

Parking meter technology means technology that allows payment for parking in parking meter zones without the use of mechanical parking meters, including but not limited to telephone, smartphone applications, website, storefront payment, single or multi space meters, or any other technology as deemed appropriate by the city to pay for parking. Parking meter technology may utilize parking space numbers, license plates,

sticker numbers, or any other means designated by the specific parking meter technology to process parking payment.

Parking meter zone means and includes those areas established by the city traffic engineer upon those streets or parts of streets where it is determined upon the basis of an engineering and traffic investigation that the installation of parking meter technology will be necessary to aid in the regulation, control and inspection of the parking of vehicles and to specify the time limitation on parking between the hours specified on any day except Sundays and the following public holidays: Christmas Day, New Year's Day, Martin Luther King, Jr.'s birthday, Good Friday, Memorial Day, the Fourth of July, Labor Day, Veterans Day and Thanksgiving.
(Ord. No. 20-30, § 1, 2-28-2020)

Sec. 10-9-81. Parking meter zones established; days not in operation.

(a) The city traffic engineer is hereby authorized to establish parking meter zones upon those streets or parts of streets where it is determined upon the basis of an engineering and traffic investigation that the installation of parking meters will be necessary to aid in the regulation, control and inspection of the parking of vehicles and to specify the time limitation on parking between the hours specified on any day except Sundays and the following public holidays: Christmas Day, New Year's Day, Martin Luther King, Jr.'s birthday, Good Friday, Memorial Day, the Fourth of July, Labor Day, Veterans Day and Thanksgiving.

(b) The city traffic engineer shall maintain a current copy of a schedule designating the streets or parts of streets on which parking meter zones have been created and specifying the parking time limitation as regulated by parking meters and specifying the hours and days of which the regulation is to be effective, which schedule shall be on file in the office of the city clerk and in the office of the city traffic engineer.

(c) The city traffic engineer may use parking meter technology covering more than one space.
(Code 1980, § 10-9-81; Ord. No. 81-57, § 2, 4-7-1981; Ord. No. 86-58, § 1, 3-25-1986; Ord. No. 20-30, § 1, 2-28-2020)

Sec. 10-9-82. Installation of parking meters; parking time specified.

(a) The city traffic engineer shall install parking meters in the parking meter zones established as provided in section 10-9-81, upon the curb immediately adjacent to each designated parking space. For any parking space for which no meter is installed adjacent to the space, the traffic engineer shall install signage in the area and visible from the space indicating that payment of the parking meter rates for that space shall be made using parking meter technology and indicating the procedure for using said technology. The period of legal parking time established for any parking meter zone within the city shall be as fixed by ordinance. The parking meter rates shall be as follows and shall be indicated on the meter or by the parking meter technology:

(1) *15-minute meters:* $0.25.

(2) *30-minute meters:* $0.50.

(3) *Two-hour meters:*

30 minutes: $0.50.

Each additional 15 min.: $0.25.

(4) *Three-hour meters:*

First hour: $1.00.

Each additional 15 min.: $0.25.

(5) *Ten-hour meters:*

Each hour: $0.50.

(b) When any vehicle is parked in any parking space alongside or next to which a parking meter is located, or that is located in a parking meter zone, the operator of such vehicle shall, upon entering the parking meter space, pay the parking meter rate either using the meter or by the use of parking meter technology.

(1) If payment is made using the meter, the operator shall immediately deposit or cause to be deposited in the meter such proper coin of the United States as is required for such parking meter and as is designated by proper directions on the meter, and when required by the directions on the meter, shall also set in operation the timing mechanism on such

meter. The failure to deposit such proper coin and to set the timing mechanism in operation when so required shall constitute a violation of this division.

(2) If payment is made using parking meter technology, the operator shall follow the directions posted for the use of such technology.

(3) In the event of a broken meter parking is limited to the posted time limit or maximum of two hours, whichever is shorter.

(c) Upon payment of the parking meter rate, the parking space may be lawfully occupied by such vehicle during the period of time which has been prescribed for the part of the street in which the parking space is located; provided, that any person placing a vehicle in a parking meter space adjacent to a coin-operated meter which indicates that unused time has been left in the meter by the previous occupant of the space shall not be required to deposit a coin so long as his occupancy of such space does not exceed the indicated unused parking time. If parting meter technology was used to pay for parking, any unused time may be used in another parking space within the same parking meter zone.
(Code 1964, § 34-126; Code 1980, § 10-9-82; Ord. No. 86-58, § 2, 3-25-1986; Ord. No. 08-105, § 1, 5-13-2008; Ord. No. 14-112, § 1, 8-8-2014; Ord. No. 14-185, § 1, 11-26-2014; Ord. No. 20-30, § 1, 2-28-2020)

Sec. 10-9-83. Legends.

(a) Each parking meter shall bear thereon a legend indicating the days and hours when the requirement to deposit payment therein shall apply, the value of the payment to be deposited in United States coin or currency, payment card or any other alternative payment capability, including parking meter technology, and the limited period of time for which parking is lawfully permitted in the parking meter zone in which that meter is located.

(b) For any parking space for which no meter is installed adjacent to the space, the traffic engineer shall install signage in the area and visible from the space indicating that payment of the parking meter rates for that space shall be made using parking meter technology, the limited period of time for which parking is lawfully permitted in the parking meter zone, and indicating the procedure for using said technology.
(Code 1964, § 34-127; Code 1980, § 10-9-83; Ord. No. 20-30, § 1, 2-28-2020)

Sec. 10-9-84. Operation of signal.

(a) Each parking meter shall be so set as to display a signal showing legal parking upon the deposit of the appropriate United States coin or currency, payment card or any other alternative payment capability, for the period of time prescribed by this section, and shall at all times indicate the balance of legal parking time. Each meter shall be arranged so that, upon the expiration of the lawful time limit, it will indicate by a proper visible signal that the lawful parking period has expired.

(b) When parking meter technology is in use, it shall notify the user and the parking enforcement officer of the legal parking time for which payment has been made, the balance of legal parking time and shall notify the user when the legal parking time has expired.
(Code 1964, § 34-128; Code 1980, § 10-9-84; Ord. No. 20-30, § 1, 2-28-2020)

Sec. 10-9-85. Designation of parking meter spaces; method of using spaces.

(a) The city traffic engineer shall designate the parking space adjacent to each parking meter for which that meter is to be used by appropriate markings upon the curb or the pavement of the street. Parking meter spaces so designated shall be of appropriate length and width so as to be accessible from the traffic lanes of the street. For any parking space for which no meter is installed adjacent to the space, the traffic engineer shall install signage in the area and visible from the space indicating that payment of the parking meter rates for that space shall be made using parking meter technology and indicating the procedure for using said technology.

(b) No person shall park a vehicle in any such designated parking meter space during the restricted or regulated time applicable to the parking meter zone in which the meter is located so that any part of the vehicle occupies more than one such space or protrudes beyond the markings designating the space; except that a vehicle which is of a size too large to be parked within a single designated parking meter zone shall be permitted to occupy two adjoining parking meter spaces when coins shall have been deposited in the parking meter for each space so occupied as is required in this division for the parking of other vehicles in that space.
(Code 1964, § 34-129; Code 1980, § 10-9-85; Ord. No. 20-30, § 1, 2-28-2020)

Sec. 10-9-86. Payment for parking and time limits of parking.

(a) No person shall cause, allow, or permit a vehicle operated by them or under their control or registered in their name to park a vehicle in any parking space within a parking meter zone unless payment for such parking has been made as required by this article.

(b) No vehicle shall remain parked in a lawful, designated parking space longer than the maximum amount of time allowed for parking in such parking space, as indicated by appropriate markings of signs, printed receipts, or electronic messages, or as indicated by such parking meters. The provisions of this section shall apply during such hours and on such dates as established from time to time by the city traffic engineer. This provision shall not apply to the act of parking or the necessary time which is required to deposit immediately thereafter coin or coins in the meter or make payment by other authorized means, such as parking meter technology.

(c) No person shall cause, allow, or permit a vehicle operated by them or under their control or registered in their name to be parked on the same block in a parking meter zone for a consecutive period of time longer than the limited period of time for which parking is lawfully permitted in any single space on that block. It shall be unlawful to "feed the meter" or otherwise to attempt to avoid detection for parking longer than the maximum amount of parking time designated for that space.

(d) The provisions of this section shall not relieve any person from the duty to observe other and more restrictive provisions of this chapter, other ordinances or the state vehicle code prohibiting or limiting the stopping, standing or parking of vehicles in specified places or at specified times.

(e) Failure to purchase parking time or failure to otherwise follow procedures required for confirming the purchase of time shall be considered a violation of this article.
(Code 1964, § 34-130; Code 1980, § 10-9-86; Ord. No. 20-30, § 1, 2-28-2020)

Sec. 10-9-87. Use of slugs prohibited.

It shall be unlawful for any person to deposit or attempt to deposit in any parking meter any slug, button or any other device or substance as substitutes for coins of United States currency or to otherwise use any card or other device in a parking meter in lieu of a card of device lawful and appropriate to an alternative payment process at such parking meter.
(Code 1964, § 34-131; Code 1980, § 10-9-87; Ord. No. 20-30, § 1, 2-28-2020)

State law reference—Similar provisions, Code of Ala. 1975, § 13A-8-10 et seq.

Sec. 10-9-88. Tampering, etc., with meters.

It shall be unlawful for any person to deface, injure, tamper with, open or willfully break, destroy or impair the usefulness of any parking meter.
(Code 1964, § 34-132; Code 1980, § 10-9-88; Ord. No. 20-30, § 1, 2-28-2020)

State law reference—Similar provisions, Code of Ala. 1975, § 13A-7-20 et seq.

Sec. 10-9-89. Reserved.

Editor's note—Ord. No. 20-30, § 2, adopted February 28, 2020, repealed § 10-9-89, which pertained to enforcement of parking regulations at Five Points South pubic parking deck and derived from Code 1980, § 10-9-89; Ord. No. 86-58, § 3, 3-25-1986.

CHAPTER 10. THROUGH STREETS AND STOP AND YIELD INTERSECTIONS

Sec. 10-10-1. Through streets designated.

(a) The city traffic engineer is hereby authorized to determine and designate through streets upon those streets or parts of streets where it is determined upon the basis of an engineering and traffic investigation to be necessary to promote free flow of traffic.

(b) The city traffic engineer shall maintain a current copy of a schedule designating such streets and parts of streets on file in the office of the city clerk and in the office of the city traffic engineer.
(Code 1980, § 10-10-1; Ord. No. 81-58, § 2, 4-7-1981)

Sec. 10-10-2. Signs required at through streets.

Whenever the traffic engineer of this city designates and describes a through street, it shall be the duty of the city traffic engineer to place and maintain a stop sign, or on the basis of an engineering and traffic investigation at any intersection, a yield sign, on every street intersecting that through street, unless traffic at any such intersection is controlled at all times by traffic control signals; provided that at the intersection of two such through streets or at the intersection of a through street and a heavy traffic street not so designated, stop signs shall be erected at the approaches of either of these streets as may be determined by the city traffic engineer upon the basis of an engineering and traffic study.
(Code 1964, § 34-134; Code 1980, § 10-10-2; Ord. No. 81-59, 4-7-1981)

Sec. 10-10-3. Other intersections where stop or yield required.

The city traffic engineer is hereby authorized to determine and designate intersections where particular hazard exists upon other than through streets and to determine whether vehicles shall stop at one or more entrances to any such intersection, in which event he or she shall cause to be erected a stop sign at every such place where a stop is required, or whether vehicles shall yield the right-of-way to vehicles on a different street at the intersection, in which event he or she shall cause to be erected a yield sign at every place where obedience thereto is required.
(Code 1964, § 34-135; Code 1980, § 10-10-3)

Sec. 10-10-4. Stop signs and yield signs.

(a) Every stop sign shall bear the word "Stop" in letters not less than eight inches in height. Every yield sign shall bear the word "Yield" in letters not less than seven inches in height. Every stop sign and every yield sign shall at nighttime be rendered luminous by internal illumination, by a floodlight projected on the face of the sign by efficient reflecting elements in the face of the sign.

(b) Every stop sign and every yield sign shall be erected as near as practicable to the nearest line of the crosswalk on the near side of the intersection or, if there is no crosswalk, then as near as practicable to the nearest line of the intersecting roadway.
(Code 1964, § 34-136; Code 1980, § 10-10-4)

CHAPTER 11. EQUIPMENT*

Sec. 10-11-1. Television screens in motor vehicles.

It shall be unlawful for any person to drive or operate any motor vehicle on any public way in the city or its police jurisdiction, or to cause or allow any motor vehicles to be on any such public way, while that vehicle is equipped with any video or television receiver or screen, or any device designed to exhibit images received by video or radio, so located as that such receiver or screen or device or any image thereon or reflection thereof is or would be visible to or within the range of vision of a person occupying the driver's seat of the vehicle.
(Code 1964, § 34-151; Code 1980, § 10-11-12)

State law reference—Permissible locations for television viewers in motor vehicles, Code of Ala. 1975, § 32-5-219.

*__State law reference—__Required motor vehicle equipment generally, Code of Ala. 1975, § 32-5-210 et seq.

CHAPTER 12. PEDESTRIANS' RIGHTS AND DUTIES*

Sec. 10-12-1. Pedestrians subject to traffic control signals.

Pedestrians shall be subject to traffic control signals, but pedestrians shall be granted those rights and be subject to the restrictions stated in this chapter.
(Code 1964, § 34-152; Code 1980, § 10-12-1)

Sec. 10-12-2. Pedestrians to use right half of crosswalks.

Pedestrians shall move, whenever practicable, upon the right half of crosswalks.
(Code 1964, § 34-155; Code 1980, § 10-12-4)

State law reference—Similar provision, Code of Ala. 1975, § 32-5A-214.

Sec. 10-12-3. Crossing at right angles.

No pedestrian shall cross a roadway at any place other than by a route at right angles to the curb or by the shortest route to the opposite curb, except in a crosswalk.
(Code 1964, § 34-156; Code 1980, § 10-12-5)

State law reference—Similar provision, Code of Ala. 1975, § 32-5A-212.

Sec. 10-12-4. Obedience of pedestrians to railroad signals.

No pedestrian shall pass through, around, over or under any crossing gate or barrier at a railroad grade crossing or bridge while that gate or barrier is closed or is being opened or closed.
(Code 1964, § 34-158; Code 1980, § 10-12-7)

Sec. 10-12-5. Solicitation and distribution of matter in public roadway; causing children to solicit.

(a) It shall be unlawful for any person to enter, stand, remain or otherwise be in close proximity to any public street, highway or roadway and solicit or accept from occupants of vehicles on such public way contributions for any reason or distribute to occupants of vehicles on such public way any matter.

(b) It shall be unlawful for any adult person to order, direct, encourage or allow any minor child in the custody, control, employ or supervision of said adult to violate subsection (a) of this section.
(Code 1980, § 10-12-9.1; Ord. No. 88-120, 8-9-1988)

Sec. 10-12-6. White canes, etc., for blind or otherwise incapacitated pedestrians.

(a) A crooked-handled wooden or cane walking stick, painted white except for a bright red band at the bottom thereof six inches in length, is hereby recognized and adopted as the emblem or sign of blind, partially blind or otherwise incapacitated persons, to be carried by them on the public streets, roads and highways for identification and protection.

*__State law reference—__Pedestrians required to comply with local traffic control signals and regulations, Code of Ala. 1975, § 32-5A-210.

(b) Whenever a pedestrian carrying the emblem described in this section or being guided by a guide dog is crossing or attempting to cross a public street, road or highway, the driver of every vehicle and every other pedestrian who approaches or comes in close proximity to him or her shall use every precaution and effort to avoid an accident or injury to the blind, partially blind or otherwise incapacitated person, and the driver of a vehicle shall come to a complete stop if this is necessary.

(c) Nothing contained in this section shall be construed to deprive any totally or partially blind or otherwise incapacitated person not carrying the emblem or not being guided by a dog of the rights and privileges conferred by law upon pedestrians crossing streets roads or highways, nor shall the failure of totally or partially blind or otherwise incapacitated persons to carry the emblem or to be guided by a dog upon the streets, roads, highways or sidewalks to constitute or be evidence of contributory negligence.
(Code 1964, § 34-161; Code 1980, § 10-12-10)

State law reference—Right-of-way to blind persons, guide dogs in training, Code of Ala. 1975, § 32-5A-220.

CHAPTER 13. RESTRICTIONS AS TO KINDS AND CLASSES OF VEHICLES ON CERTAIN STREETS*

Sec. 10-13-1. Authority of traffic engineer to restrict operation of commercial vehicles.

(a) The city traffic engineer is hereby authorized, on the basis of an engineering and traffic investigation, to designate truck routes upon which commercial vehicles are restricted and to erect and maintain official traffic control devices on any streets or parts of streets restricting the operation of commercial vehicles to the streets or parts of streets designated by the city traffic engineer; provided that such devices shall not prohibit necessary local operation on such streets for the purpose of making a pickup or delivery.

(b) The city traffic engineer shall maintain a current copy of a schedule designating such streets and parts of streets so regulated on file in the office of the city clerk and in the office of the city traffic engineer.
(Code 1980, § 10-13-01; Ord. No. 81-60, § 1, 4-7-1981)

Sec. 10-13-2. Authority of traffic engineer to designate load restrictions on certain streets.

(a) The city traffic engineer is hereby authorized, on the basis of an engineering and traffic investigation, to impose gross weight limits and to erect and maintain official traffic control devices on any streets or parts of streets to prohibit the operation of vehicles exceeding such posted weights at any time on any of the streets or parts of streets designated by the city traffic engineer; provided that such devices shall not prohibit necessary local operation on such streets for the purpose of making a pickup or delivery.

(b) The city traffic engineer shall maintain a current copy of a schedule designating such streets and parts of streets so regulated on file in the office of the city clerk and in the office of the city traffic engineer.
(Code 1980, § 10-13-02; Ord. No. 81-60, § 2, 4-7-1981)

Sec. 10-13-3. Oversize vehicles; hours of operation.

It shall be unlawful and a violation of the provisions of this section for any person, firm, or corporation to transport or operate or allow any vehicle which exceeds ten feet in width upon or over the streets or highways within the corporate limits of the city between the hours of 7:00 a.m. and 8:30 a.m. and between the hours of 4:00 p.m. and 6:00 p.m. Violation of the provisions of this section shall be punishable as provided for in section 1-1-6.
(Ord. No. 97-157, 11-18-1997; Ord. No. 98-156, 9-22-1998)

Sec. 10-13-4. Load restrictions upon vehicles using certain highways.

When signs are erected giving notice thereof, no person shall operate any vehicle with a gross

*__State law reference—__Size and weight of vehicles, Code of Ala. 1975, § 32-9-20 et seq.

weight in excess of the amounts designated by the city traffic engineer at any time upon any of the streets or parts of streets specified by the city traffic engineer.
(Code 1980, § 10-13-1; Ord. No. 81-61, § 1, 4-7-1981)

Sec. 10-13-5. Commercial vehicles restricted to certain streets; exceptions.

(a) The term "commercial vehicle" as used in this section means those commercial vehicles defined in section 10-1-1 which have three or more axles and house trailers when attached to pole-driven units, including those vehicles within the provisions set forth in title XII, "Commercial Motor Vehicle Safety Act of 1986," section 12019(6) of the federal code, as it may be amended, 49 USC app. 2716, but shall not include vehicles housing mobile health clinic units and equipment providing physical screening processes in or on such units.

(b) No person shall operate any commercial vehicle as hereinabove defined on any street or part of a street except a street designated as a truck route by the city traffic engineer; provided that subject to the provisions of subsection (c) of this section a driver may operate such a vehicle on a street not designated as a truck route for the purpose of making a delivery, loading or servicing by leaving a street designated as a truck route at an intersection which is nearest the place of delivery, loading or servicing, proceeding by the most direct route, and then returning to the nearest street designated as a truck route by the most direct route; and provided further that a driver of such a vehicle may enter the city from a street or road outside of the city and operate such a vehicle on a street not designated as a truck route for the purpose of making a delivery, loading or servicing at a location nearer by the most direct route to the point of entry than from any street designated as a truck route provided such driver proceeds to such location by the most direct route from the point of entry and after making such delivery, loading or servicing returns by the most direct route to the point of entry; and provided further that a driver of such a vehicle may operate such a vehicle on Red Lane Road, which is not designated as a truck route between Alabama Highway 75 (Roebuck-Center Point Road) and the point where Red Lane Road joins the Tarrant-Huffman Highway at its point of entry into the city, for the limited purpose of making delivery, loading or servicing at a place within the city from a place within the county.

(c) Between the hours of 9:00 a.m. and 6:00 p.m., it shall be unlawful for any person to load or unload any truck-tractor-drawn trailer or truck-tractor-drawn vehicle within that part of Fire Zone Number one bounded as follows: On the north by Fifth Avenue North, inclusive; on the south by First Avenue North, inclusive; on the west by 18th Street, inclusive; and on the east by 22nd Street, inclusive.

(d) Notwithstanding any other provision contained in this chapter:

(1) No commercial vehicle that transports, or is designed or equipped to transport fuel, oil, petroleum-based or other flammable materials as freight; or

(2) No vehicle utilizing a truck tractor and trailer that transports, or is designed or equipped to transport fuel, oil, petroleum-based or other flammable materials for commercial purposes, may operate along Green Springs Ave., SW at points between the I-65 interchange and Dennison Avenue.

(Code 1980, § 10-13-2; Ord. No. 81-61, § 2, 4-7-1981; Ord. No. 88-74, 6-14-1988; Ord. No. 93-251, § 1, 10-19-1993; Ord. No. 09-121, § 1, 8-25-2009)

Sec. 10-13-6. Restrictions upon use of streets by certain vehicles and pedestrians.

(a) The city traffic engineer is hereby authorized to determine and designate those heavily traveled streets upon which shall be prohibited the use of the roadway by motor-driven cycles, bicycles, horse-drawn vehicles or other nonmotorized traffic, and shall erect appropriate signs giving notice thereof.

(b) When signs are so erected giving notice thereof, no person shall disobey the restrictions stated on the signs.

(c) When appropriate official signs are so erected giving notice thereof, no person shall:

(1) As a pedestrian, occupy any space within the limits of the roadway of a controlled access highway except: in the performance of public works or official duties; as a result of an emergency caused by an accident or breakdown of a motor vehicle; or to obtain assistance.

(2) Occupy any space within the limits of the roadway of a controlled access highway, with: an animal-drawn vehicle; a ridden or led animal; herded animals; a push-cart; a bicycle; a bicycle with motor attached; parades; a motor-driven cycle with a motor which produces less than five brake horse power; funeral processions; and agricultural tractor; farm machinery; except in the performance of public works or official duties.

(Code 1964, § 34-165; Code 1980, § 10-13-3)

CHAPTER 14. VEHICLES OBSTRUCTING STREETS*

Sec. 10-14-1. Declared nuisance.

Any vehicle parked upon a public street of the city at a place, in a manner or for a length of time prohibited by this Code or any other ordinance or regulation of the city is, if unoccupied, hereby declared to be an obstruction in that street and a public nuisance, and any police officer of the city is hereby authorized to cause the same to be removed to, and impounded in, the depository provided by the city for such purposes.

(Code 1964, § 34-166; Code 1980, § 10-14-1)

Sec. 10-14-2. Authority of officer to cause removal.

Whenever any police officer of the city shall find upon any public street of the city or upon any street within the police jurisdiction of the city any vehicle which he or she has reasonable cause to believe to be lost, stolen or abandoned, or any vehicle which is or is likely to become an obstruction on a public way or to be without proper protection by reason of the person in charge or control thereof having been arrested and incarcerated, that officer shall have authority to immediately cause the same to be removed to, and impounded in, the depository provided by the city for such purposes.

(Code 1964, § 34-167; Code 1980, § 10-14-2)

Sec. 10-14-3. Hauling by persons contracting with city.

Where a contract exists between the city and any person, under the terms of which that person agrees to haul and store vehicles for the city in a depository provided for in the contract, that person and his or her employees, servants or agents, when requested by any police officer of the city to so haul or store any vehicle which is upon a public street or alley, shall have the authority to haul or store that vehicle as requested by the officer.

(Code 1964, § 34-168; Code 1980, § 10-14-3)

Sec. 10-14-4. Report of removal.

Whenever any police officer of the city shall cause the removal and impounding of any vehicle, he or she shall immediately report to the chief of police in writing, giving a description of the vehicle and the date and cause of removal and impounding thereof.

(Code 1964, § 34-169; Code 1980, § 10-14-4)

Sec. 10-14-5. Recovery by owner.

Any owner or person entitled to possession of an impounded vehicle may claim the same at any time before sale thereof by filing a written claim thereto with the chief of police, upon a form to be provided by the chief of police, and if the chief of police is satisfied that the claimant is the owner or entitled to possession of the vehicle, he or she shall notify the director of finance to cause the same to be released to the claimant upon payment of proper charges. Upon the notification, the director of finance shall cause same to be released to the claimant upon payment of the charges.

(Code 1964, § 34-170; Code 1980, § 10-14-5)

*__State law reference—__Abatement of inoperable motor vehicles in Class 1 municipalities, Code of Ala. 1975, § 11-67A-1 et seq.

Sec. 10-14-6. Charges.

(a) The city shall have a lien upon each vehicle impounded from any location under the provisions of this chapter, as follows:

(1) On any impounded vehicle of 10,000 pounds gross vehicle weight or less, such as automobiles and small trucks, removed to a depository therefor, the amount of the lien for towing and storage shall be the amount set out in that section of the wrecker service and storage contract between the city and wrecker company dealing with impounded vehicles which are later claimed by their owner, plus the additional amounts of $7.50 for towing, $4.00 for the first day's impoundment and $1.50 for each additional day of impoundment or any part of a day during which that vehicle remains impounded in the depository.

(2) On any impounded vehicle in excess of 10,000 pounds gross vehicle weight removed to a depository therefor, the amount of the lien for towing and storage shall be the amount set out in that section of the wrecker service and storage contract between the city and wrecker company dealing with impounded vehicles which are later claimed by their owner plus the additional amounts of $4.00 for the first day's impoundment and $1.50 for each additional day of impoundment or any part of a day during which that vehicle remains impounded in the depository.

(3) Where any impounded vehicle is removed to a depository by means of a dolly necessary to prevent damage or injury thereto, the amount of the lien for each dolly used shall be the amount set out in that section of the wrecker service and storage contract between the city and wrecker company dealing with impounded vehicles which are later claimed by their owner.

(b) The amounts set out in this section are hereby declared to be reasonable and proper charges to cover the cost of hauling to the depository, storage therein and overhead; and, except as provided in section 10-14-8, no vehicle shall be released to any claimant prior to sale thereof, unless the proper charge is paid.
(Code 1964, § 34-171; Code 1980, § 10-14-6; Ord. No. 81-14, § 1, 2-3-1981; Ord. No. 82-102, 6-22-1982; Ord. No. 83-206, 12-13-1983)

Sec. 10-14-7. Sale; disposition of proceeds.

(a) When any vehicle shall have remained in the depository for as long as 45 days from the date of its reception therein, and no claim for the vehicle shall have been made within that period, or if said vehicle has remained in the depository for at least 14 days from the date a claim has been made thereto and proper charges have not been paid, the city purchasing agent shall give five days' notice of the time, place and terms of sale of the vehicle, together with a brief description thereof, by make, type and motor number, if any, by one publication in a newspaper published in the city; and if said vehicle has not been claimed and proper charges paid prior to the advertised time of sale, he or she shall sell the same at the advertised time and place of sale to the highest bidder for cash.

(b) The money received at the sale shall be immediately paid into the treasury of the city and, upon demand made by the erstwhile owner of the vehicle at any time within 90 days from the date of receipt of the money in the treasury, the excess of the amount received, over and above the hauling and storage charges prescribed in section 10-14-6 and the cost of advertisement of sale, shall be paid to the owner.
(Code 1964, § 34-172; Code 1980, § 10-14-7; Ord. No. 81-2, 1-3-1981)

Sec. 10-14-8. Complaints; hearing.

It shall be the duty of every person who may not know the whereabouts of a vehicle owned by him or her, or to which he or she may have the right of possession, to take notice that the vehicle may be in the custody of the city, or its depository, pursuant to the terms of this chapter, and that he or she may inquire of the chief of police whether it is in such custody. Any person who may thus or otherwise ascertain that the vehicle is in such custody, and who may believe that it has been

impounded for a cause not authorized by this chapter, may, if he or she desires to escape payment of the aforesaid charges, present a complaint, in duplicate, to the municipal court of the city at any time prior to sale of the vehicle, averring that he or she is the owner or entitled to possession of the vehicle, describing it, that it is in the custody of the city or its depository, and that the same was impounded for a cause not authorized by this chapter. Upon presentation of the complaint, in duplicate, a municipal judge shall immediately set down for hearing on a day not less than one nor more than three after presentation, and shall cause one of such duplicates, with time of hearing noted thereon, to be delivered to the chief of police. A municipal judge may continue the hearing from time to time as may be proper. If, upon the hearing, the complaint should be sustained, the municipal judge hearing the case shall render judgment that the vehicle be forthwith released to complainant without payment of any impounding, storage or other charges and the director of finance shall cause the vehicle to be so released. If, on the other hand, the complaint should not be sustained, the municipal judge hearing the case shall enter judgment dismissing same and assessing costs of $3.00 against the complainant, to be collected before release of the vehicle to the complainant, in addition to the charges prescribed in section 10-14-6.
(Code 1964, § 34-173; Code 1980, § 10-14-8; Ord. No. 77-251, § 1, 12-2-1977)

Sec. 10-14-9. Penalties imposed for parking violations not affected.

The payment of any charges prescribed by this chapter shall not have the effect of relieving the owner or operator of the vehicle from any penalty prescribed by this Code or any other ordinance or regulation of the city for violations regarding parking.
(Code 1964, § 34-174; Code 1980, § 10-14-9)

CHAPTER 15. PARKING LOTS

Sec. 10-15-1. Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

Applicant means any person applying for a parking lot permit under the provisions hereof and any officer, agent or employee of that person.

Motor vehicle means any automobile, truck, motor scooter or other self-propelled vehicle.

Parking lot means any plot of land, lot, parcel, yard, building, enclosure, structure or any portion thereof where more than ten motor vehicles may be parked, stored, housed or kept, for which a charge is made and which is customarily available for such use on a regular basis of not less than five days a week; except, for the purposes of sections 10-15-15, 10-15-16 and 10-15-21 herein, such term shall also include any plot of land, lot, parcel, yard, building, enclosure, structure or any portion thereof, which is designed for or has a vehicular parking capacity of more than 100 vehicles and for which no charge is made for parking thereon.
(Code 1964, § 34-175; Code 1980, § 10-15-1; Ord. No. 80-259, § 1, 11-11-1980)

Sec. 10-15-2. Permit—Required.

Any person who shall conduct, operate or maintain a parking lot shall first obtain a permit therefor in the manner hereinafter prescribed, from the department of planning, engineering and permits, after payment of a nonrefundable application fee of $25.00 provided that any applicant who is operating, conducting or maintaining a parking lot on or prior to March 1, 1976, shall be required to pay a nonrefundable application fee of only $10.00. No permit granted hereunder shall be in lieu of any license required pursuant to an applicable license code of the city, nor in lieu of any permit required pursuant to an applicable building code or zoning ordinance of the city.
(Code 1964, § 34-176; Code 1980, § 10-15-2)

Sec. 10-15-3. Same—Application.

All applications for permits shall be made upon those forms as shall from time to time be provided by the city and shall be signed and verified under oath, by the applicant if an individual, by a partner if a partnership and by a duly authorized officer thereof if a corporation, and shall set forth the following:

(1) If an individual, the name and address of the applicant.

(2) If a partnership, the name, residence and business address of each partner.

(3) If a corporation, the name, date of incorporation, the state under whose laws the corporation was organized, the names of the directors and officers of the corporation and the name of the individual who will be in direct charge or control of the operation and management of the parking lot.

(4) Three copies of a plot or drawing of the parking lot, showing its location, design, size, capacity, location and size and type of construction of attendant's station; all walls, barriers or other structures surrounding or enclosing the premises; and the location and size of all driveways.

(5) The hours for storage or parking of motor vehicles and whether night storage is to be conducted upon the premises.

(6) The hours during which parking attendants will be on duty.

(7) A complete schedule of rates.

(8) Any other information as otherwise may reasonably be required.

(Code 1964, § 34-177; Code 1980, § 10-15-3)

Sec. 10-15-4. Same—Denial.

Should it be determined, upon investigation, that the information contained in the application is incorrect, insufficient or incomplete, or that the premises are unsafe for use as a parking lot, or that the operation thereof will adversely affect or endanger vehicle traffic on abutting streets, the permit shall be denied.

(Code 1964, § 34-178; Code 1980, § 10-15-4)

Sec. 10-15-5. Same—Granting and review.

Upon the granting of a permit by the department of planning, engineering and permits, the permit shall become effective 14 days from the date thereof, unless the council should set the same for hearing as hereinafter provided in this section. Notice of the granting of the permit shall be directed by the director of planning, engineering and permits to the city clerk within three days thereafter, together with a complete copy of the application for the permit. The city clerk shall bring the notice to the attention of the council not later than ten days thereafter. Should the council determine to review the action of the department of planning, engineering and permits in the granting of the permit, it shall set the matter for hearing at a regular meeting not more than 14 days after its receipt thereof, and the applicant shall be given not less than three days' notice of the hearing, in writing. Upon the date of the hearing or at any continuance thereof, the council, after considering all evidence or testimony offered by all interested parties, shall either affirm or rescind the action of the department of planning, engineering and permits. At such hearing the applicant shall be entitled to counsel, the right to subpoena witnesses and the right of cross examination.

(Code 1964, § 34-179; Code 1980, § 10-15-5)

Sec. 10-15-6. Same—Appeal to council upon denial.

Upon any denial of a parking lot permit by the department of planning, engineering and permits, the applicant may appeal the denial to the council by filing a written statement of appeal with the city clerk within ten days following the denial, and a hearing shall be held thereon by the council at a regular meeting of the council or a continuance thereof not later than 14 days thereafter. The applicant, during the appeal, may be represented by counsel, subpoena witnesses and have the right of cross examination.

(Code 1964, § 34-180; Code 1980, § 10-15-6)

Sec. 10-15-7. Same—Revocation.

The council may revoke any parking lot permit if, upon a hearing and investigation, after at least

ten days' written notice to the permittee of the time and place of the hearing, the council finds the permittee:

(1) Has knowingly made any false or materially incorrect statement in the application;

(2) Has violated or permitted or countenanced the violation of any provisions of this chapter;

(3) Has violated or permitted or countenanced the violation of any provision of any penal law or ordinance involving theft, larceny or conversion of a motor vehicle without the owner's consent; or

(4) Fails to keep an attendant on duty during the times specified in the permittee's application.

(Code 1964, § 34-181; Code 1980, § 10-15-7)

Sec. 10-15-8. Insurance.

No parking lot shall be opened for business or otherwise operated until the applicant shall have filed with the city clerk policies or proper certificates of insurance issued by an insurance company authorized to do business in the state in an amount not less than $50,000.00 for liability insurance coverage for personal injury or death to any individual and not less than $100,000.00 for any one accident, which insurance shall continuously remain in force and effect for so long as the parking lot shall be operated or maintained. These policies shall require the company issuing the same to give not less than 30 days' written notice to the city clerk before any cancellation or expiration thereof. The cancellation or expiration of any insurance policy as required by this section shall automatically suspend the permittee's permit until that time as a new insurance policy complying with the provisions of this section shall be filed with the city clerk.

(Code 1964, § 34-182; Code 1980, § 10-15-8)

Sec. 10-15-9. Signs.

Every permittee shall display at each entrance to its parking lot in a clearly visible manner a permanently affixed sign adequate to apprise persons using the parking lot of the name of the permittee, the hours of the day and night when the parking lot is open for parking or storing vehicles, the rates charged for parking or storing vehicles and the closing hours of the parking lot, if any. Where more than one rate is charged for parking or storing vehicles, each rate shall appear upon the sign. All letters and figures shall be substantially of the same size and no less than three inches in height.

(Code 1964, § 34-183; Code 1980, § 10-15-9)

Sec. 10-15-10. Charging more than scheduled rates.

It shall be unlawful for a permittee to accept, require or demand any fee or charge for the parking or storage of a motor vehicle in excess of the amount shown in the posted schedule of fees or charges for the parking or storage.

(Code 1964, § 34-183.1; Code 1980, § 10-15-10)

Sec. 10-15-11. Height of signs.

All signs shall be erected with the bottom edge of the same at a height not less than ten feet above the sidewalk level.

(Code 1964, § 34-183.2; Code 1980, § 10-15-11)

Sec. 10-15-12. Loading or unloading of vehicles to be within property line of parking lot.

No loading or unloading of passengers or drivers of vehicles shall take place across or upon any public street, sidewalk or alley, and any operator or employee of a parking lot who receives or delivers any vehicle other than within the property line of the parking lot and blocks or obstructs any public sidewalk, street or alley shall be in violation of this section.

(Code 1964, § 34-183.3; Code 1980, § 10-15-12)

Sec. 10-15-13. Unauthorized use or removal of vehicles.

It shall be unlawful for any permittee to make or permit any use for any purpose whatsoever of any parked or stored vehicle, unless the use shall have first been expressly authorized by the owner or operator of the vehicle.

(Code 1964, § 34-183.4; Code 1980, § 10-15-13)

Sec. 10-15-14. Care of vehicles after closing time.

When any vehicle parked upon or within any parking lot is not called for prior to the closing time of the parking lot, the permittee shall leave the keys to the vehicle and the parking coupon, if coupons are in use at the parking lot, for safekeeping at a place within a reasonable distance of the parking lot with a responsible person whose name and address shall be posted in a conspicuous place on the parking lot.
(Code 1964, § 34-183.5; Code 1980, § 10-15-14)

Sec. 10-15-15. Manner of driving vehicles—Generally.

It shall be unlawful for any person to drive a vehicle in willful or wanton disregard for the safety of persons or property upon or within a parking lot, or to drive thereon or therein at a speed in excess of ten miles per hour. The traffic engineer is hereby authorized to cause such signs as he or she may deem necessary to be erected on public right-of-way, at or near one or more entrances to such lots stating the speed limit of ten miles per hour upon such lot.
(Code 1964, § 34-183.6; Code 1980, § 10-15-15; Ord. No. 80-259, § 2, 11-11-1980)

Sec. 10-15-16. Same—In certain parking lots.

(a) It shall be unlawful for any person to stop, park, drive or operate a vehicle upon any parking lot in any manner which unreasonably obstructs or hinders the free flow of pedestrian or vehicular traffic.

(b) It shall be unlawful for any person operating a vehicle upon a parking lot to fail to yield the right-of-way to any pedestrian who is walking in a marked crosswalk or other marked pedestrian walkway.
(Code 1964, § 34-183.7; Code 1980, § 10-15-16; Ord. No. 80-259, § 3, 11-11-1980; Ord. No. 84-154, 9-4-1984)

Sec. 10-15-17. Ground maintenance.

The permittee shall keep the sidewalks adjacent to the parking lot free from any accumulation of dirt, ice, sleet and snow. The ground level of any parking lot upon which hourly rates are charged shall be surfaced with plant-mix asphalt pavement or equivalent surfacing, and the permittee shall maintain smooth and durable parking surfaces which shall at all times remain free of breaks, potholes or other dangerous conditions, be adequately drained so as not to retain water and be kept free of dirt and loose particles. All weeds, shrubs, trees and grass adjacent to or on the parking lot shall be kept neatly trimmed or cut and be removed or relocated if the same interfere with the parking of vehicles or with safe sight distance at any entrance or exit. Adequate disposal cans or other durable receptacles shall be maintained in every parking lot for the deposit or collection of refuse, trash or other waste materials, and in no event shall there be less than one such can or receptacle available for those purposes.
(Code 1964, § 34-183.8; Code 1980, § 10-15-17)

Sec. 10-15-18. Barriers.

All parking lots shall maintain a permanent substantial fence, wall or other barrier on or adjacent to any line abutting on any street or public way, so that motor vehicles parked or stored thereon will not intrude onto any part of the city's right-of-way and so that the motor vehicles cannot be removed from the parking lots except at the regularly established entrances and exits. These barriers shall be so designed and so located at all times that no portion of any motor vehicle parked on the parking lot may extend over any property line or damage any property of other persons.
(Code 1964, § 34-183.9; Code 1980, § 10-15-18)

Sec. 10-15-19. Permits not transferable.

No permit issued hereunder shall be transferred or assigned to another or used by any person other than the person to whom the permit was issued, nor shall the permit be used at any location other than the location for which the same was issued.
(Code 1964, § 34-183.10; Code 1980, § 10-15-19)

Sec. 10-15-20. Exemptions.

Any parking lot which rents or provides parking or storage space for motor vehicles solely on a

weekly, monthly or annual rental basis shall be exempt from the provisions of sections 10-15-9 through 10-15-12.
(Code 1964, § 34-183.11; Code 1980, § 10-15-20)

Sec. 10-15-21. Assembling so as to restrict access; parking in parking spaces required.

(a) It shall be unlawful for any person to assemble, with one or more other persons, upon any parking lot, in such manner as to restrict for more than five minutes the free passage of pedestrians or vehicles or to obstruct any designated driving lane for more than five minutes; but it shall not be a violation of this section to park in a designated parking space and then leave the parking lot area without delay, or to go upon such parking lot and without delay proceed to an open business establishment, or to go upon such parking lot and without delay proceed to a parked vehicle and then leave; it shall not be a violation of this section for a person to assemble with less than four other persons, for less than one hour, to remove or repair an inoperable motor vehicle; and this section shall not apply to any law enforcement vehicle, ambulance, firefighting vehicle, or other official emergency vehicle or the personnel of any of them; and this section shall not apply to any person who has received written consent from the owner of such parking lot or from the owner's authorized agent to assemble on such parking lot.

(b) It shall be unlawful for any person to park or leave any vehicle upon any parking lot unless such vehicle shall be parked wholly within a parking space as designated by painted lines or other discernible markings; but this section shall not apply to authorized emergency vehicles, inoperable motor vehicles, or persons given written consent to so park by the owner of the parking lot or by such owner's authorized agent.
(Code 1980, § 10-15-21; Ord. No. 80-259, § 4, 11-11-1980)

CHAPTER 16. RESERVED

CHAPTER 17. RESERVED BUS LANES

Sec. 10-17-1. Definitions.

(a) For the purposes of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this subsection:

Public holidays means Christmas Day, New Year's Day, Martin Luther King, Jr.'s birthday, Good Friday, Memorial Day, Fourth of July, Labor Day, Veterans Day and Thanksgiving Day.

Reserved bus lane means the portion of roadway devoted primarily to the use of transit buses for travel on the streets and avenues where those lanes are designated and for receiving and discharging passengers at bus stops located along those lanes.

Transit bus means a bus used for the mass transportation of people by the city-county transit authority.

(b) Whenever any words and phrases used in this chapter are not defined in this chapter but are defined in the state laws or this Code regulating the operation of vehicles, any such definition therein shall be deemed to apply to those words and phrases used herein.
(Code 1964, § 34-191.1; Code 1980, § 10-17-1; Ord. No. 81-62, § 1, 4-7-1981)

Sec. 10-17-2. Marking, etc., use generally.

(a) The city traffic engineer by appropriate markings, signs, barriers and other traffic control devices may designate and maintain reserved bus lanes of sufficient width to freely accommodate passenger bus travel along and adjacent to the curbs of streets or avenues or parts thereof. These lanes shall be reserved for transit bus use during the periods of time as set forth for each lane respectively as designated by the city traffic engineer; provided that reserved bus lanes may be used for receiving or discharging passengers by passenger vehicles, including but not limited to taxis, and for making right turns when to do so is

lawful under the provisions of this chapter and applicable traffic laws, ordinances and regulations of the city.

(b) The city traffic engineer shall maintain a current copy of a schedule designating the streets or parts of streets as reserved for bus lanes and the periods of time reserved for use of them by transit buses during every day except Saturday, Sunday and public holidays in the office of the city clerk and in the office of the city traffic engineer.
(Code 1964, § 34-191.2; Code 1980, § 10-17-2; Ord. No. 81-62, § 2, 4-7-1981)

Sec. 10-17-3. Discharging, etc., passengers.

The driver of any passenger vehicle, including but not limited to taxis, may use reserved bus lanes for the purpose of temporarily stopping and standing that vehicle while engaged in the actual receiving or discharging of passengers, but this section shall not authorize stopping or standing for that purpose in a bus stop or taxi stand when to so do would be an interference with the entry therein by bus or taxi contrary to section 10-9-56.
(Code 1964, § 34-191.3; Code 1980, § 10-17-3)

Sec. 10-17-4. Use by buses.

During the hours when a reserved bus lane is in effect, no transit bus shall be driven on any part of the street or avenue where that lane is designated other than within that lane, except as may be necessary to make right turns into another street or avenue or necessary to pass around a disabled vehicle.
(Code 1964, § 34-191.4; Code 1980, § 10-17-4)

Sec. 10-17-5. Prohibited uses generally.

During the hours when a reserved bus lane is in effect and when signs are erected giving notice thereof, it shall be unlawful for anyone to do any of the following:

(1) Park any type vehicle within any one of such lanes.

(2) Stop or stand any vehicle within any one of such lanes for the purpose of waiting for one or more passengers not already at the place when and where the vehicle is stopped or standing.

(3) Stop or stand any vehicle within any one of such lanes for the purpose of loading, unloading, delivering or receiving merchandise, goods or freight, including those places as may be marked or sign posted as freight loading zones, the intent hereof being that bus lane use during the reserved hours shall supersede freight loading use as well as parking use.

(4) Drive any vehicle other than a transit bus within any one of such lanes except for the purposes permitted by section 10-17-3 and except to make a right turn at the nearest street intersection.

(5) Turn any vehicle left from within any one of such lanes into another street or avenue or into an alley or driveway.

(Code 1964, § 34-191.5; Code 1980, § 10-17-5)

Sec. 10-17-6. Right turns.

The city traffic engineer or chief of police or any one of their authorized assistants or officers shall have authority by appropriate signs, barriers or signals to prohibit right turns from the streets or avenues on which reserved bus lanes are in effect by vehicles other than transit buses when the volume of such turning substantially impedes transit bus traffic in those bus lanes.
(Code 1964, § 34-191.6; Code 1980, § 10-17-6)

Sec. 10-17-7. Emergencies.

Reserved bus lanes may be used for any purpose by law enforcement officers, firefighters and ambulance drivers when responding to emergencies.
(Code 1964, § 34-191.7; Code 1980, § 10-17-7)

CHAPTER 18. TRANSPORTING JUNKED VEHICLES

Sec. 10-18-1. Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

Auto transport carrier means a vehicle designed and built for the purpose of transporting motor vehicles from one point to another.

Bona fide wrecker means a wrecker vehicle that is equipped with a wrecker crane, tow or spacer bar and power winch, all of which are designed for the transportation of inoperative motor vehicles.

Dolly means a device consisting of four sets of wheels, two pans and two axles, this device being one commonly used in the transportation of disabled automobiles from one point to another.

Junk vehicles or *junk motor vehicles* means any motor vehicle unable to proceed under its own power and that has been wrecked or stripped of essential equipment or burned or has outlived its usefulness as an automobile.
(Code 1964, § 34-191.8; Code 1980, § 10-18-1)

Sec. 10-18-2. Manner of transporting.

(a) No junk vehicle shall be transported over any street of the city by any means other than a bona fide wrecker, auto transport carrier, tractor trailer, flatbed truck or trailer. No vehicle shall transport junk vehicles in such a manner that any part of the junk vehicle shall be located at a height which exceeds 13½ feet from the road bed. No junk vehicle being transported shall extend more than five feet from the rear of the truck bed of the vehicle transporting the junk vehicle and shall not extend beyond the sides of the bed of the transporting vehicle. All transporting vehicles shall have full beds.

(b) It shall be unlawful while transporting or causing to be transported any junk vehicle to allow or permit any part or piece of debris or scrap metal or part of a junk vehicle to fall onto or upon any city street.

(c) No junk vehicle shall be transported on any city street unless that junk vehicle is secured by chains having a link diameter of at least 3/16 of an inch or steel cables having a diameter of at least three-eighths of an inch and all such junk vehicles shall be secured by either steel chains or cables on both the front and rear of the vehicle being transported.

(d) No junk vehicle shall be transported on top of another junk vehicle unless those vehicles are being transported by and on a regular auto transport carrier, tractor trailer, flatbed truck or trailer.

(e) It shall be unlawful to transport or cause to be transported on any street in the city a junk vehicle which does not have wheels and tires in a good and usable condition by a bona fide wrecker, unless a dolly shall be used in connection with the transportation and no part of the junk vehicle shall come into contact with the surface of any street.
(Code 1964, § 34-191.9; Code 1980, § 10-18-2)

Sec. 10-18-3. Penalties.

Any person who shall violate any provision of this chapter or fail to comply therewith or with any requirement thereof or who shall do any act prohibited therein or fail to do any act required therein shall, upon conviction, be punished for the first violation by a fine not exceeding $50.00 and for any subsequent violation of this chapter within the limits and as provided in section 1-1-6.
(Code 1964, § 34-191.10; Code 1980, § 10-18-3)

CHAPTER 19. RAILROADS

ARTICLE A. GENERAL PROVISIONS

Sec. 10-19-1. Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

Railroad means a carrier of persons or property upon cars, operated upon stationary rails.

Railroad train means a steam, electric or other type engine, with or without cars attached thereto, operated upon rails.

Through street means a street or part of street designated as a through street in schedule II of the city traffic regulations schedules.
(Code 1964, § 44-1; Code 1980, § 10-19-1)

Sec. 10-19-2. Culverts to be built.

At any point along any railroad in the city, whether heretofore or hereafter built, where culverts may be needed in the judgment of the city engineer to carry off the flow of water which may be obstructed by the railroad, the owner, operator, lessee or proprietor of the railroad shall put in

and thereafter maintain good substantial culverts of sufficient capacity to carry off all the water. If any owner, operator, lessee or proprietor of the railroad shall fail to build these culverts, as above provided within 30 days after due notice from the city engineer to put the same in, no train shall be run in the city over that railroad until the provisions of this section shall have been complied with.
(Code 1964, § 44-2; Code 1980, § 10-19-2)

Secs. 10-19-3—10-19-10. Reserved.

ARTICLE B. TRACKS

Sec. 10-19-11. Permit required to lay railroad tracks.

(a) It shall be unlawful for any railroad company or person to lay any track or build any switch over, along or across any street or alley of the city without first obtaining a permit from the council. Every application for a permit to lay any track shall be made in accordance with conditions and requirements adopted by the council. The application shall be accompanied by a drawing showing the location of the proposed track or switch.

(b) Any person violating the provisions of this section shall be punished as provided in section 1-1-6, and the track so laid shall be removed at the cost of the person laying the same.
(Code 1964, § 44-6; Code 1980, § 10-19-11)

Sec. 10-19-12. To be laid on street grade.

It shall be unlawful for any railroad company, to lay tracks in or on any street in the city without having first obtained from the city engineer the proper grade of the street over which the line of railroad is to run, if the street has been brought to grade and the railroad shall be put on exact grade, so as not to impede or interfere with travel. If the street has not been brought to grade, then the railroad must be so laid as to conform to the then surface of the street, so as not to interfere with travel over and along the street. If any company shall lay tracks on streets not brought to grade, the right of the city to grade these streets in the future shall not be prejudiced, and the owners, proprietors and lessees of the railroad tracks shall be required to raise or lower the tracks so as to conform to the grade of the streets, without cost to the city, whenever the city engineer or the council may direct the same to be done. Nothing contained in this section shall be so construed as to prejudice the existing rights of the city to compel all persons or companies, now owning or controlling railroad tracks in the city, to raise or lower the same so as to conform to grade of streets when those streets are brought to grade.
(Code 1964, § 44-7; Code 1980, § 10-19-12)

Sec. 10-19-13. Railroad companies to keep parts of streets between tracks in repair.

(a) Wherever any street in the city is paved, cherted or macadamized or otherwise improved, it shall be the duty of each railroad company having tracks laid along or across the same to keep in repair that part of the street between the rails of its tracks and for 18 inches on each side thereof and between parallel tracks.

(b) The portion between the tracks and on each side thereof shall be kept in repair with the same material, and in accordance with the manner in which the street is improved as aforesaid, unless the city engineer shall approve some other material or manner of repair.
(Code 1964, § 44-8; Code 1980, § 10-19-13)

State law reference—Duty of railroad companies to keep streets in repair, Code of Ala. 1975, § 11-49-3.

Sec. 10-19-14. Cars not to be operated over unrepaired roadbeds.

Upon failure to comply with the provisions of section 10-19-13 within ten days after written notice from the city engineer to repair, it shall be unlawful for any railroad company to operate any train, car or engine over any unrepaired portion of the street on its said tracks, and it shall be unlawful for any person in the employ of the street or other railroad company, having superintendence or charge or control entrusted to him or her, to cause, permit or suffer any such engine, cars or train to be so operated.
(Code 1964, § 44-9; Code 1980, § 10-19-14)

Sec. 10-19-15. Procedure in case of violation of section 10-19-13 or 10-19-14.

(a) When any corporation shall violate any provision of, or contained in, section 10-19-13 or 10-19-14, it shall be the duty of any officer to make complaint in writing, duly verified, to the municipal judge setting out the name of the corporation. The municipal judge shall forthwith file the cause and docket a case in the name of the city against the corporation, and shall issue a notice thereof to the defendant, accompanied by a certified copy of the complaint. This notice and copy may be served upon any officer or agent of the defendant corporation authorized by law to receive service of summons or other civil process issuing against the corporation, by the chief of police or any officer of the city; and upon the return of the officer showing proper service, the complaint and cause shall stand for trial.

(b) If the defendant fails to appear or plead to the complaint, the court shall cause the plea of "not guilty" to be entered, and the trial shall proceed as if the defendant had appeared and pleaded "not guilty"; but in the case proof must be made to the court that the person upon whom the notice and copy of the complaint was served was an officer or agent of the corporation, authorized by law to receive the service. Upon the conviction of a corporation for violating any provision in section 10-19-13 or 10-19-14, it shall be fined not less than $1.00 or more than $100.00, and the court shall render a judgment against the defendant for the amount of the fine imposed, together with all costs of prosecution; and execution thereon shall forthwith issue against the property of the defendant; and other executions may issue thereon, unless the judgment is satisfied.
(Code 1964, § 44-10; Code 1980, § 10-19-15)

Sec. 10-19-16. Change of location.

Whenever, in the opinion of the council, the public safety or convenience requires that the location of a railroad track should be changed, notice shall be given to the owner or agent of the railroad of the purpose of the council to make the change. If the owner or agent fails or refuses to make the change within a reasonable time the council shall cause the track to be removed or relocated at the expense of the owner, the costs thereof to be a lien on the property of the railroad, and may be collected as taxes are collected.
(Code 1964, § 44-11; Code 1980, § 10-19-16)

Sec. 10-19-17. Obstructions, etc.

It shall be unlawful for any person to grease or soap any railroad track, or to place upon, or cause to be placed upon, the rails of any railroad track in the city, any soap, grease, explosive or other substance or obstruction.
(Code 1964, § 44-12; Code 1980, § 10-19-17)

Sec. 10-19-18. Railroad companies to maintain and repair grade crossings and structures; penalties and assessment for failure.

(a) It shall be unlawful for a railroad company, as owner, or its officers or agents having supervision, charge or control of, or operating, a grade crossing, bridge, viaduct, tunnel, overpass, underpass or other structure to fail to properly maintain such grade crossing or structure.

(b) Wherever any railroad company has constructed within the city any bridge, viaduct, overpass, underpass, railroad tracks or other structure for the purpose of enabling the railroad to pass over, under, along or across any public street, road or highway, it shall be the duty and responsibility of the railroad company to maintain such bridge, viaduct, overpass, underpass, track bed or other structure in good repair and in a condition which is safe for members of the public traveling along, over, under or across such structure or track bed. Such maintenance shall be conducted at the expense of and under supervision of the railroad company.

(c) Upon determining the existence of any defect or condition of ill repair, the continued existence of which poses a danger to the public, in any of the structures referred to in subsection (b) of this section, or in any grade crossing or track bed, the city engineer shall give written notice, by certified or registered mail, of the

defect or ill repair to the railroad company owning the defective or unrepaired structure or grade crossing. The notice shall advise the railroad company that, in default of its remedying the condition set forth in the notice, the city may elect to do so and charge to the railroad company the costs thereof. In such written notice, the city engineer shall advise the railroad company that it is entitled to a hearing before the city council to object to the city engineer's findings that the structure or grade crossing is defective, presents a danger to the public, or otherwise constitutes a nuisance. The city engineer's notice shall advise the railroad company of the date, time and place of such hearing. The city engineer shall cause the appropriate resolution to be placed on the council agenda for the hearing date set forth in the notice to the railroad company.

(d) Any action on the finding of the city engineer shall be held in abeyance pending the determination thereon made by the city council at the hearing provided for in subsection (c) of this section. The hearing shall be held not less than 14 nor more than 30 days after the date the city engineer's notice to the railroad company is received by the company.

(e) At the conclusion of the hearing before the city council, the council shall approve or disapprove the resolution declaring the structure or track bed to be unsafe and a public nuisance, and ordering its abatement within the time set in the resolution. If the council approves the resolution declaring the condition to be a public nuisance, the city, in the event the railroad company fails to remedy the condition within the time allotted by the resolution, may itself abate the nuisance, and assess the costs so incurred against the railroad company.

(f) Where a railroad grade crossing is so raised or depressed as to obstruct traffic or otherwise create a danger to motorists passing over the tracks or track bed, it is hereby declared to be a public nuisance subject to abatement by the city at the railroad company's expense.

(g) The provisions of this section are cumulative to those provided in sections 10-19-11 through 10-19-17. Nothing in this section shall be construed to repeal or conflict with those sections.

(Code 1980, § 10-19-18; Ord. No. 90-281, 11-20-1990)

State law reference—Requirement of construction and maintenance by railroads, Code of Ala., 1975, §§ 11-49-3, 11-49-40, 11-49-43, and 11-49-44.

CHAPTER 20. BICYCLES AND SHARED MICROMOBILITY DEVICES*

ARTICLE A. GENERAL PROVISIONS

Sec. 10-20-1. Applicability.

The provisions of this chapter shall apply whenever a bicycle or shared micromobility device is operated upon any highway or upon any path set aside for the use of bicycles or shared micromobility devices subject to those exceptions stated herein.

(Code 1964, § 10-1; Code 1980, § 10-20-1; Ord. No. 20-24, § 1, 2-12-20)

Sec. 10-20-2. Duty of parents and guardians.

The parent of any child and the guardian of any ward shall not authorize or knowingly permit any such child or ward to violate any of the provisions of this chapter.

(Code 1964, § 10-3; Code 1980, § 10-20-3; Ord. No. 20-24, § 1, 2-12-20)

Sec. 10-20-3. Obedience to traffic control devices.

(a) Any person operating a bicycle or a shared micromobility device shall obey the instructions of official traffic control signals, signs and other control devices applicable to vehicles, unless otherwise directed by a police officer or other person authorized by law to direct traffic.

*__State law references—__Bicycles generally, Code of Ala. 1975, § 32-5A-260 et seq.; municipalities may establish a more comprehensive bicycle safety program than that imposed by state traffic laws, Code of Ala. 1975, § 32-5A-286.

(b) Whenever authorized signs are erected indicating that no right or left or U-turn is permitted, no person operating a bicycle or a shared micromobility device shall disobey the direction of any such sign, except where that person dismounts from the bicycle or a shared micromobility device to make any such turn, in which event that person shall then obey the regulations applicable to pedestrians.

(c) Every person riding a bicycle upon a roadway shall be granted all of the rights and shall be subject to all of the duties applicable to the driver of a vehicle by Alabama traffic laws, as provided in Code of Ala. 1975, § 32-5A-260, as may be amended, except as to special regulations in this article and except as to those provisions of this chapter which by their nature can have no application.

(d) Every person riding a shared micromobility device shall be granted all of the rights and shall be subject to all of the duties applicable to the driver of a bicycle by Alabama traffic laws, except as to specific provisions in Code of Ala. 1975, § 32-19-2, as may be amended, and except when such laws by their nature can have no application.
(Code 1964, § 10-4; Code 1980, § 10-20-4; Ord. No. 20-24, § 1, 2-12-20)

Sec. 10-20-4. Riding on sidewalks.

No person shall ride a bicycle or a shared micromobility device upon a sidewalk except for members of the city police department and members of any public assistance organization which may be authorized in writing to do so by the chief of police of the city while performing police or public assistance duties.
(Code 1964, § 10-6; Code 1980, § 10-20-6; Ord. No. 94-39, 2-15-1994; Ord. No. 06-69, 5-23-2005; Ord. No. 14-122, § 2, 9-10-2014; Ord. No. 20-24, § 1, 2-12-20)

Sec. 10-20-5. Speed.

No person shall operate a bicycle or a shared micromobility device at a speed greater than the posted speed limit, or at a speed greater than what is reasonable and prudent under the conditions then existing.
(Code 1964, § 10-7; Code 1980, § 10-20-7; Ord. No. 20-24, § 1, 2-12-20)

Sec. 10-20-6. Emerging from alley or driveway.

The operator of a bicycle or a shared micromobility device emerging from an alley, driveway or building shall, upon approaching a sidewalk or the sidewalk area extending across any alleyway, yield the right-of-way to all pedestrians approaching on the sidewalk or sidewalk area, and upon entering the roadway, shall yield the right-of-way to all vehicles approaching on the roadway.
(Code 1964, § 10-8; Code 1980, § 10-20-8; Ord. No. 20-24, § 1, 2-12-20)

Sec. 10-20-7. Parking.

No person shall park a bicycle or a shared micromobility device upon a street other than upon the roadway against the curb or upon the sidewalk in a rack or corral to support the bicycle or a shared micromobility device, or against a building or at the curb, in a manner as to afford the least obstruction to pedestrian traffic.
(Code 1964, § 10-11; Code 1980, § 10-20-11; Ord. No. 20-24, § 1, 2-12-20)

Sec. 10-20-8. Other operating restrictions.

(a) No person operating a bicycle or a shared micromobility device shall carry any package, bundle, or article that prevents the driver from keeping at least one hand upon the handlebars.

(b) No person operating a bicycle or shared micromobility device shall carry more persons at one time than the number for which it is designed and equipped.
(Ord. No. 20-24, § 1, 2-12-20)

Sec. 10-20-9. Interpretation.

References in this chapter to any statute, code section or ordinance shall be deemed to refer to such statute, code section or ordinance as cur-

rently in effect or as amended from time to time and to any rules or regulations promulgated thereunder.
(Ord. No. 20-24, § 1, 2-12-20)

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*__Editor's note—__Ord. No. 14-122, § 1, adopted September 10, 2014, repealed article B, which pertained to registration. See Code Comparative Table for complete derivation.

Title 11

CRIMES AND OFFENSES*

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CHAPTER 1. GENERAL PROVISIONS

Sec. 11-1-1. State misdemeanors and violations.

It shall be unlawful for any person to violate within the city or within the police jurisdiction thereof any law of the state, now or hereafter enacted, the violation of which is a misdemeanor or violation under the state law.
(Ord. No. 79-212, 12-28-1979; Ord. No. 80-246, 11-1-1980)

CHAPTER 2. OFFENSES INVOLVING DANGER TO THE PERSON

Sec. 11-2-1. Assault and battery.

(a) No person shall commit an assault, or an assault and battery, upon another person.

(b) On the trial of any person for an assault, or an assault and battery, he or she may give in evidence any opprobrious word or abusive language used by the person assaulted or beaten, at or near the time of the assault, and that evidence shall be in extenuation or justification, as the municipal judge may determine.
(Code 1980, § 11-2-1)

State law reference—Similar provision, Code of Ala. 1975, § 13A-6-20 et seq.

Secs. 11-2-2—11-2-7. Reserved.

Sec. 11-2-8. Domestic violence.

(a) No person shall commit a domestic assault, or engage in domestic violence as hereinafter described upon any person hereinafter described as family, household, or dating or engaged relationship.

(b) For the purposes of this section, the following terms have the following meanings:

Assault means:

(1) Intent to cause physical injury to another person;

(2) Causing physical injury to any person;

(3) Recklessly causes injury to another person; or

(4) With criminal negligence causes physical injury to another person by means of a dangerous or deadly instrument.

Domestic violence means any incident resulting in the assault, harassment, or the attempt or threats thereof between family, household or dating or engaged relationship members as defined in this section.

Family, household or dating or engagement relationship members includes a spouse, former spouse, parent, child, or any other person related by blood, marriage or common law marriage, a person with whom the victim has a child in common, a present or former household member, or a person who has a dating or engagement relationship or an individual who cohabitates or has cohabitated with the person, or any person who is under order of a proper court having jurisdiction to issue a restraining order against either person or persons.

Harassment. A person harasses another if, with intent to annoy or alarm another person, the person strikes or shoves, kicks or otherwise touches a person or subjects such person to physical contact, or directs abusive language or makes obscene gestures towards another person, makes verbal threats made with intent to carry out the threat that would cause a reasonable person who is the target of the threat to fear for such person's safety.
(Ord. No. 99-32, 2-23-1999)

CHAPTER 3. OFFENSES INVOLVING DAMAGE TO AND INTRUSION UPON PROPERTY

ARTICLE A. TRESPASS

Sec. 11-3-1. Definitions.

The following definitions are applicable to this article:

Building means any structure which may be entered and utilized by persons for business, public use, lodging or the storage of goods including any vehicle, aircraft or watercraft used for the lodging of persons or carrying on business therein.

Where a building consists of two or more units separately occupied or secured, each shall be deemed both a separate building and a part of the main building.

Dwelling means a building which is used or normally used by a person for sleeping, living or lodging therein.

Enter or remain unlawfully means a person who enters or remains unlawfully in or upon premises when he or she is not licensed, invited or privileged to do so. A person who, regardless of his or her intent, enters or remains in or upon premises which are at the time open to the public does so with license and privilege unless he or she defies a lawful order not to enter or remain, personally communicated to him or her by the owner of the premises or other authorized person. A license or privilege to enter or remain in a building which is partly open to the public is not a license or privilege to enter or remain in that part of the building which is not open to the public. A person who enters or remains upon unimproved and apparently unused land, which is neither fenced or otherwise enclosed in a manner designed to exclude intruders, does so with license and privilege unless notice against trespass is personally communicated to him or her by the owner of that land or other authorized person, or unless the notice is given by posting in a conspicuous manner.

Premises includes any building, as defined in this section, and any real property.
(Code 1980, § 11-3-1)

State law reference—Similar provision, Code of Ala. 1975, § 13A-7-1.

Sec. 11-3-2. Criminal trespass.

(a) A person is guilty of criminal trespass if he or she knowingly enters or remains unlawfully:

(1) In a dwelling;

(2) In a building or upon real property which is fenced or enclosed in a manner designed to exclude intruders; or

(3) In or upon premises.

(b) It shall be unlawful for any person to commit criminal trespass as defined in this article.
(Code 1980, § 11-3-2)

State law reference—Similar provisions, Code of Ala. 1975, §§ 13A-7-1—13A-7-4.

Sec. 11-3-3. Remaining upon school premises on days when not in session or between sunset and 7:00 a.m.

(a) It shall be unlawful for any person to go or remain upon the lands, buildings or premises of any school or educational institution or facility administered by the Birmingham public school system, on any holiday or other day when the same is not open for classes, or during any time between sunset and 7:00 a.m. of the following day, without the permission of the school administrator or other person in charge of that school or institution.

(b) This section shall not apply to any authorized employee, agent or servant of the school or institution while performing any assigned task as authorized or directed by the administrator or other person in charge of the school or institution, nor to any function or event approved by the administrator or other person in charge of the school or institution during the period of time commencing one hour before the time scheduled for the event and ending one hour after the event is concluded.
(Code 1980, § 11-3-3)

Sec. 11-3-4. Public decorative pools.

It shall be unlawful for any person to stand, sit, wade, swim, walk or otherwise enter any public decorative pool, fish pond or ornamental fountain in the city except for the cleaning, repairing or maintaining of the same by authorized personnel.
(Code 1980, § 11-3-4)

Sec. 11-3-5. Walking, standing, etc., on certain planted places.

(a) It shall be unlawful for any person to walk, stand, sit, or place any package or other object on or in the unpaved median or the unpaved areas between the curb and sidewalk along Birmingham Green, Highland Avenue South, Bush Bou-

levard or any other similar street or public way of the city in which the city or any of its boards or agencies have planted or maintained any grass, flowers, shrubbery, trees or plants of any kind or description, except for the maintaining of the same by authorized personnel.

(b) It shall be unlawful for any person to walk, stand, sit or place any package or other object on or in any planter box belonging to the city or any of its boards or agencies in which there is planted any grass, flowers, shrubbery, trees or plants of any kind or description and which is located on any street or public way of the city.

(c) It shall be unlawful for any person to walk, sit, stand or place any package or other object on any decorative news vending machine or decorative waste receptacle belonging to the city or any of its boards or agencies.

(d) It shall be unlawful for any person to drive or park any vehicle on or in any median located on any street or public way of the city.
(Code 1980, § 11-3-5)

Secs. 11-3-6—11-3-22. Reserved.

ARTICLE B. CRIMINAL DAMAGE TO PROPERTY

Sec. 11-3-23. Criminal littering.

(a) A person commits the offense of criminal littering if he or she:

(1) Knowingly deposits in any manner litter on any public or private property or in any public or private waters, having no permission to do so;

(2) Negligently deposits in any manner glass or other dangerously pointed or edged objects on or adjacent to water to which the public has lawful access for bathing, swimming or fishing, or on or upon a public highway, or within the right-of-way thereof;

(3) Discharges sewage, oil products or litter from a watercraft vessel of more than 25 feet in length into a river, inland lake or stream within the state or within three miles of the shoreline of the state; or

(4) a. Drops or permits to be dropped or thrown upon any highway any destructive or injurious material and does not immediately remove the same or cause it to be removed; or

b. Removes a wrecked or damaged vehicle from a highway and does not remove glass or other injurious substance dropped upon the highway from that vehicle.

(b) The term "litter" means rubbish, refuse, waste material, garbage, dead animals or fowl, offal, paper, glass, cans, bottles, trash, scrap metal, debris or any foreign substance of whatever kind and description whether or not it is of value.

(c) It is no defense under subsections (a)(3) and (4) of this section that the actor did not intend, or was unaware of, the act charged.

(d) It shall be unlawful for any person to commit the offense of criminal littering as defined by this section.
(Code 1980, § 11-3-23)

State law reference—Similar provision, Code of Ala. 1975, § 13A-7-29.

Sec. 11-3-24. Criminal use or possession of noxious substance.

(a) A person commits the crime of criminal use of a noxious substance if he or she knowingly deposits on the land or in the building or vehicle of another, without his or her consent, any stink bomb or device, irritant or offensive-smelling substance with the intent to interfere with another's use of the land, building or vehicle.

(b) A person commits the crime of criminal possession of noxious substances if he or she possesses, manufactures, or transports any stink bomb or device, irritant, offensive-smelling or injurious substance, with intent to use such article or substance in the commission of any crime.

(c) It shall be unlawful for any person to commit the offense of criminal use or possession of noxious substances as defined by this section.
(Code 1980, § 11-3-24)

State law reference—Similar provisions, Code of Ala. 1975, §§ 13A-7-27, 13A-7-28.

Secs. 11-3-25—11-3-30. Reserved.

ARTICLE C. OFFENSES CONCERNING UTILITIES

Sec. 11-3-31. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Utility means an enterprise which provides gas, electric, steam, water, sewage, transportation or communication services, and any institution that provides health and safety protection or other public services; it may be either publicly or privately owned and has the meaning respectively ascribed to it in this definition, except when the context otherwise requires.
(Code 1980, § 11-3-31)

Sec. 11-3-32. Illegal acts against utilities.

The following acts in regard to utilities, among others, shall be unlawful:

(1) *Appropriation of current.* It shall be unlawful for any person having charge or control of any wire, joined to or forming a part of an electric circuit, to use or permit anyone else to use therefrom any current for heat, light, power or other purpose, without first having applied to and obtained the consent and authority of the owner thereof.

(2) *Use of utility after shutoff.* It shall be unlawful for any person to cause or suffer any premises of which he or she is in charge or control to be supplied with water, gas, electricity or steam after such commodity shall have been rightfully shut off therefrom, unless he or she shall have first procured the consent of the utility furnishing the same. This section shall not apply in any case where there is a bona fide dispute as to the amount due the utility.

(3) *Use of utilities without metering.*

a. It shall be unlawful for any person to connect a tube, pipe, wire or other instrument or contrivance with any pipe, wire or conduit used for conducting or supplying gas, electricity, steam, water or communication service or in any manner to change, alter, extend, connect or disconnect any pipe, wire, conduit, meter or attachment through or by which the same is or may be furnished or supplied, in such manner that any gas, electricity, steam, water or communication service is or can be used or consumed without passing through and properly registering upon the meter or other measuring instrument provided for registering the quantity used or consumed.

b. It shall also be unlawful for any person to turn on the flow of water or gas through any of the pipes or mains of any water or gas company or board, with the intent or purpose of obtaining the use of such water or gas without paying for the same.

(4) *Interference with equipment.* It shall be unlawful for any person to in any manner destroy, alter, impair or prevent the proper action of any meter or other instrument used to measure the consumption of gas, electricity, steam or water, or to connect, disconnect or reconnect or in any manner interfere with, damage or destroy any main, pipe, wire, conduit, meter, valve, stopcock, cable or other appliance, machinery or equipment, of any entity engaged in furnishing gas, electricity, steam, water or communication service to the public.

(5) *Unauthorized extension of service.* It shall be unlawful for any person, in any manner whatever, to extend or alter any ser-

vice or other pipe, wire or attachment of any kind, connecting, or through which gas, electricity, steam, water or communication service is furnished from the gas mains, pipes, wires or source of supply of any utility.

(6) *Keeping equipment unlawfully.* It shall be unlawful for any person to retain possession of or refuse to deliver any meter, appliance or property which may have been loaned, rented or used by any utility for the purpose of furnishing gas, electricity, steam, water or communication service, or to sell, loan or in any manner dispose of the same to any person other than the owner thereof.

(7) *Injury to property of utility.* It shall be unlawful for any person to willfully, maliciously or unlawfully injure, destroy, mar, deface, break or otherwise injure any of the buildings, reservoirs, machinery, lamps, meters, pipes, hydrants, valves, wires or other fixtures or property of any utility company or board operated in the city.

(8) *Diversion.* It shall be unlawful for any person having charge or control of any pipe, wire or other apparatus supplied with water, gas, electricity, steam or communication service by any utility to allow or permit any person to take, draw or use any such commodity therefrom, prior to the time of passage of the commodity through a meter used for measuring consumption.

(9) *Evidence.* It shall be prima facie evidence that the accused committed, aided or abetted in the commission of acts specified in this section if these acts were done or permitted on premises in which the accused was in charge of or in possession of or the accused received the benefit of any of such acts.

(Code 1980, § 11-3-32)

State law reference—Similar provisions, Code of Ala. 1975, §§ 13A-8-10 et seq., 13A-8-23.

Sec. 11-3-33. Illegal acts by utilities or their employees.

(a) *Overcharging.* It shall be unlawful for any utility to knowingly charge or attempt to charge any consumer for a greater amount of water, gas, electricity, steam or communication service than that consumed by him or her at legal rates of charge.

(b) *Falsified meter readings.* No person inspecting meters for any water, gas, electric or steam company, selling water, gas, electricity or steam by measurement, shall falsely read or make a false report of the reading of any such meter, or turn in or report a reading of any such meter when he or she has in fact not read that meter for the period covered by that report.

(c) *Wrongful cutoffs.* It shall be unlawful for any person connected with, representing or in the employ of any utility, to wrongfully cut off or cause to be cut off the water, gas, electricity, steam supply or communication service of any consumer.

(Code 1980, § 11-3-33)

State law reference—Similar provisions, Code of Ala. 1975, §§ 13A-8-2 et seq., 13A-9-41.

Sec. 11-3-34. Illegal acts affecting water supply.

(a) *Injuring reservoir or equipment.* No person shall unlawfully, willfully or maliciously injure, deface or destroy any reservoir, machinery, pipes, hydrants or other fixtures belonging to any waterworks company or water board.

(b) *Unsanitary water.* It shall be unlawful for any person to sell, offer for sale, deliver or distribute for human consumption in the city any water which is unsanitary, impure, unwholesome or is not in conformity with the standards of purity and the regulations of the state board of health and the United States Public Health Service, governing certification of water supplies for use on carriers engaged in interstate commerce.

(c) *Pollution.* It shall be unlawful for any person to in any way defile or contaminate or attempt to defile or contaminate the water in any reservoir, pipe, main, public fountain or stream connected with the approved public water supply of the city.

(Code 1980, § 11-3-34)

State law reference—Similar provisions, Code of Ala. 1975, §§ 13A-7-20, 22-23-48.

Sec. 11-3-35. Meter readers of public utilities; badges.

(a) Each public utility shall furnish a badge, of the character herein described, to each of its employees who enter or request admission to any residence within the city for the purpose of reading, inspecting or checking any meter therein.

(b) It shall be unlawful for any public utility to authorize or permit any of its employees to enter any residence or request admission to any residence in the city, for the purpose of reading, inspecting or checking any meter, unless such public utility has furnished such employee with the badge required by this section.

(c) It shall be unlawful for any person to wear a badge required by this section, or an imitation thereof, unless he or she is an employee of the utility by which the badge purports to have been issued and unless such badge was issued by such utility with the name of the person wearing it inscribed thereon.

(d) It shall be unlawful for any person to enter or request admission to any residence in the city for the purpose of reading, inspecting or checking any meter therein without having the badge required by this section, with his or her name thereon, attached or pinned to the front of his or her coat or other wearing apparel in such a manner as to be plainly visible to any person of normal vision.

(e) Such badge shall be metallic, and on the front thereof shall be printed or inscribed, in letters at least three-eighths of an inch high, the name of the public utility issuing such badge and the name of the employee to whom issued.
(Code 1980, § 11-3-35)

Sec. 11-3-36. Illegal acts against cable service.

(a) *Definitions.* The following words and phrases when used in this subsection shall, for the purpose of this section, have meanings respectively ascribed to them in this subsection, except when the context otherwise requires:

Encoded, scrambled or other nonstandard signal includes, without limitation, any type of signal or transmission that is not intended to produce an intelligible program or service without the aid of a decoder, descrambler, filter, trap or some similar device.

Subscription television service means television broadcast and cable programming intended to be received in an intelligible form by members of the public only for a fee or charge.

(b) *Offense.* It shall be unlawful for any person to:

(1) Knowingly tamper or otherwise interfere with or connect to by any means, whether mechanical, electrical, acoustical or other means, any cables, wires or other devices used for the distribution of a subscription television service without authority from the operator or owner of the service;

(2) Knowingly obtain or attempt to obtain subscription television service by any means, artifice, trick, deception or device without the payment to the owner or operator of the service of all lawful compensation for each type of service obtained;

(3) Knowingly assist or instruct any other person in obtaining or attempting to obtain any subscription television service without the payment to the owner or operator of all lawful compensation;

(4) Willfully, maliciously or unlawfully injure, destroy, mar, deface, break or otherwise injure any appliance, machinery or equipment which is the property of the subscription television service;

(5) Knowingly retain or withhold possession from the subscription television service owner or operator or refuse to deliver any appliance, equipment or property of the subscription television service owner or operator which may have been used, loaned or rented in connection with such service or to sell, loan or in any manner dispose of the same to any person other than the owner thereof; or

(6) Without the express authorization of a franchise or other duly licensed subscrip-

tion television service, knowingly and willfully manufacture, import into this city, distribute, sell, offer to sell, possess for sale, or advertise for sale any device, or any plan or kit for a device or for a printed circuit, designed in whole or in part to decode, descramble or otherwise make intelligible any encoded, scrambled or other nonstandard signal carried by that subscription television service.

(c) *Prima facie evidence.* It shall constitute prima facie evidence that the accused committed, aided or abetted in the commission of acts specified in this section if:

(1) These acts were done or permitted on premises of which the accused was in charge or control or the accused received the benefit of any such acts;

(2) The property on which the accused is in charge or control has any connection, wire, conductor or any type of device which is connected in such a manner and under circumstances which it would appear that such connection is for the purpose of permitting unauthorized service without the service being reported for payment to the owner or operator of the subscription television service; or

(3) The accused has in actual possession or has on property in which he or she is in charge or control any device designed in whole or in part to facilitate the performance of any of the illegal acts mentioned in this section in quantities or volumes suggesting possession for resale.

(Code 1980, § 11-3-36; Ord. No. 84-106, §§ 1—3, 7-3-1984)

State law reference—Similar provisions, Code of Ala. 1975, §§ 13A-8-10 et seq., 13A-8-120 et seq.

Sec. 11-3-37. Flag; prohibited acts.

(a) It shall be unlawful for any person not so authorized to take down, remove or tamper with any such flag when displayed by another.

(b) It shall be unlawful for any person to exhibit or display in or upon any building owned, maintained and operated by the city and under the administrative control of the mayor any flag except as herein required or permitted without permission of the mayor in writing, provided that other flags may be exhibited or displayed as a part of and incident to public festivals, exhibitions, and meetings conducted in such buildings without permission of the mayor.

(Code 1980, § 1-1-14; Ord. No. 79-106, 7-17-1979; Ord. No. 79-114, 7-31-1979)

State law reference—Unlawful to burn American flag with intent to intimidate others or on the property of another, a highway, or other public place, Code of Ala. 1975, § 13A-6-28.

CHAPTER 4. OFFENSES INVOLVING THEFT AND FRAUDULENT PRACTICES

Sec. 11-4-1. Definitions.

The following definitions are applicable in this chapter unless the context otherwise requires:

Deception.

(1) The term "deception" means when a person knowingly:

a. Creates or confirms another's impression which is false and which the defendant does not believe to be true;

b. Fails to correct a false impression which the defendant previously has created or confirmed;

c. Fails to correct a false impression when the defendant is under a duty to do so;

d. Prevents another from acquiring information pertinent to the disposition of the property involved;

e. Sells or otherwise transfers or encumbers property, failing to disclose a lien, adverse claim or other legal impediment to the enjoyment of the property when the defendant is under a duty to do so, whether that impediment is or is not valid, or is or is not a matter of official record; or

f. Promises performance which the defendant does not intend to perform or knows will not be performed. Fail-

ure to perform standing alone, however, is not proof that the defendant did not intend to perform.

(2) The term "deception" does not include falsity as to matters having no pecuniary significance, or puffing by statements unlikely to deceive ordinary persons. The term "puffing" means an exaggerated commendation of wares or services.

Deprive means to:

(1) Withhold property or cause it to be withheld from a person permanently or for such period or under such circumstances that all or a portion of its use or benefit would be lost to him or her;

(2) Dispose of the property so as to make it unlikely that the owner would recover it;

(3) Retain the property with intent to restore it to the owner only if the owner purchases or leases it back, or pays a reward or other compensation for its return;

(4) Sell, give, pledge or otherwise transfer any interest in the property; or

(5) Subject the property to the claim of a person other than the owner.

Obtains means:

(1) In relation to property, to bring about a transfer or purported transfer of a legally recognized interest in the property, whether to the obtainer or another; or

(2) In relation to labor or service, to secure performance thereof.

Obtains or exerts control or *obtains or exerts unauthorized control* over property includes but is not necessarily limited to the taking, carrying away or the sale, conveyance or transfer of title to, or interest in, or possession of, property; and includes but is not necessarily limited to conduct heretofore defined or known as common law larceny by taking, common law trespassory larceny by trick, larceny by conversion, embezzlement, extortion or obtaining property by false pretenses.

Owner means:

(1) A person, other than the defendant, who has possession of or any other interest in the property involved, even though that interest or possession is unlawful, and without whose consent defendant has no authority to exert control over the property.

(2) A secured party is not an owner in relation to a defendant who is a debtor in respect of property in which the secured party has a security interest.

Propelled vehicle means any propelled device in, upon or by which any person or property is transported on land, water or in the air, and such term includes motor vehicles, motorcycles, motorboats, aircraft and any vessel propelled by machinery, whether or not that machinery is the principal source of propulsion.

Property means:

(1) Any money, tangible or intangible personal property, property (whether real or personal) the location of which can be changed (including things growing on, affixed to or found in land and documents, although the rights represented hereby have no physical location), contract right, chose-in-action, interest in or claim to wealth, credit or any other article or thing of value of any kind.

(2) Commodities of a public utility nature, such as gas, electricity, steam, water and communication services, constitute property, but the supplying of such a commodity to premises from an outside source by means of wires, pipes, conduits or other equipment shall be deemed a rendition of a service rather than a sale or delivery of property.

Receiving includes, but is not limited to, acquiring possession, control or title and taking a security interest in the property.

Stolen means obtained by theft, theft by appropriating lost property, robbery or extortion.

Threat means a menace, however communicated, to:

(1) Cause physical harm to the person threatened or to any other person;

(2) Cause damage to property;

(3) Subject the person threatened or any other person to physical confinement or restraint;

(4) Engage in other conduct constituting a crime;

(5) Accuse any person of a crime or cause criminal charges to be instituted against any person;

(6) Expose a secret or publicize an asserted fact, whether true or false, tending to subject any person to hatred, contempt or ridicule;

(7) Reveal any information sought to be concealed by the person threatened;

(8) Testify or provide information or withhold testimony or information with respect to another's legal claim or defense;

(9) Take action as an official against anyone or anything, or withhold official action, or cause such action or withholding;

(10) Bring about or continue a strike, boycott or other similar collective action to obtain property which is not demanded or received for the benefit of the group which the actor purports to represent; or

(11) Do any other act which would not in itself substantially benefit the actor but which is calculated to harm substantially another person with respect to his or her health, safety, business, calling, career, financial condition, reputation or personal relationships.

Value means:

(1) The market value of the property at the time and place of the criminal act. Whether or not they have been issued or delivered, certain written instruments, not including those having a readily ascertainable market value such as some public and corporate bonds and securities shall be evaluated as follows:

a. The value of an instrument constituting an evidence of debt, such as a check, draft or promissory note, shall be deemed the amount due or collectible thereon or thereby, that figure ordinarily being the face amount of the indebtedness less any portion thereof which has been satisfied.

b. The value of any other instrument that creates, releases, discharges or otherwise affects any valuable legal right, privilege or obligation shall be deemed the greatest amount of economic loss which the owner of the instrument might reasonably suffer by virtue of the loss of the instrument.

(2) When the value of property cannot be ascertained pursuant to the standards set forth in subsection (1) of this definition, its value shall be deemed to be an amount not exceeding $100.00.

(3) Amounts involved in thefts committed pursuant to one scheme or course of conduct, whether from the same person or several persons, may be aggregated in determining the grade of the offense; provided that only one conviction may be had and only one sentence enforced for all thefts included in such aggregate.

(Code 1980, § 11-4-1)

Secs. 11-4-2, 11-4-3. Reserved.

Sec. 11-4-4. Unauthorized use of vehicle.

(a) A person commits the offense of unauthorized use of a vehicle if:

(1) Knowing that he or she does not have the consent of the owner, he or she takes, operates, exercises control over or otherwise uses a propelled vehicle;

(2) Having custody of a propelled vehicle pursuant to an agreement between himself or herself or another and the owner thereof

whereby the actor or another is to perform for compensation a specific service for the owner involving the maintenance, repair or use of the vehicle, he or she intentionally uses or operates it, without the consent of the owner, for his or her own purpose in a manner constituting a gross deviation from the agreed purpose; or

(3) Having custody of a propelled vehicle pursuant to an agreement with the owner thereof whereby it is to be returned to the owner at a specified time, knowingly retains or withholds possession thereof, without the consent of the owner, for so lengthy a period beyond the specified time as to render the retention or possession a gross deviation from the agreement.

(b) It shall be unlawful for any person to commit the offense of unauthorized use of a vehicle.
(Code 1980, § 11-4-4)

State law reference—Similar provision, Code of Ala. 1975, § 13A-8-11.

Sec. 11-4-5. Reserved.

Sec. 11-4-6. Bringing stolen property into city.

Any person who unlawfully brings into the city any personal property which he or she knew was stolen elsewhere shall, upon conviction, be punished as if he or she had stolen it in the city.
(Code 1980, § 11-4-6)

Sec. 11-4-7. Criminal impersonation.

(a) A person commits the offense of criminal impersonation if he or she:

(1) Assumes a false identity and does an act in his or her assumed character with intent to gain an economic benefit for himself or herself or another or to injure or defraud another; or

(2) Pretends to be a representative of some person or organization and does an act in his or her pretended capacity with intent to gain an economic benefit for himself or herself or another or to injure or defraud another.

(b) It shall be unlawful for any person to commit the offense of criminal impersonation.
(Code 1980, § 11-4-7)

State law reference—Similar provision, Code of Ala. 1975, § 13A-9-18.

Sec. 11-4-8. Possession of burglarious or larcenous instruments and lock picks.

(a) No person shall have in his or her possession any implement or instrument designed and intended to aid in the commission of a burglary or larceny.

(b) No person, other than a licensed locksmith, shall have in his or her possession any implement or instrument designed for picking a lock.
(Code 1980, § 11-4-8)

State law reference—Similar provision, Code of Ala. 1975, § 13A-7-8.

Sec. 11-4-9. Reserved.

Sec. 11-4-10. Selling mortgaged property.

No person shall sell or convey any personal property, upon which he or she has given a written mortgage, lien or deed of trust and which is then unsatisfied, in whole or in part, without first obtaining the consent of the lawful holder thereof for such sale or conveyance.
(Code 1980, § 11-4-10)

Sec. 11-4-11. Reserved.

Sec. 11-4-12. Gaining entry by false pretense.

No person shall, by falsely representing himself or herself as an agent, servant, employee or representative of another, gain or attempt to gain entry or access into any building, or portion of a building, used as a home or place of residence.
(Code 1980, § 11-4-12)

Sec. 11-4-13. Reserved.

Sec. 11-4-14. Using false information to obtain or to attempt to obtain refunds.

(a) It shall be unlawful for any person to give any false information to obtain, or as a part of any attempt to obtain, a refund for merchandise returned to a business establishment when such false information is calculated to induce such business establishment to give a refund which would otherwise not be given.

(b) It shall be unlawful for any person to give a false or fictitious name or address as his or her own or to give the name or address of any other person without that person's knowledge and approval for the purpose of obtaining or attempting to obtain a refund for merchandise returned to a business establishment or for the purpose of obtaining or attempting to obtain a refund on a ticket or other document which is evidence of a service purchased from a business establishment, which service is yet to be performed.
(Code 1980, § 11-4-14; Ord. No. 82-188, § 1, 11-23-1982)

CHAPTER 5. OFFENSES AGAINST PUBLIC ADMINISTRATION

Sec. 11-5-1. Definitions.

The following definitions apply in this chapter unless the context otherwise requires:

Firefighter means any fire department officer, a member of a volunteer fire department, or any other person vested by law with the duty to extinguish fires.

Government means the state, county, municipality or other political subdivision thereof.

Governmental function means any activity which a public servant is legally authorized to undertake on behalf of a government or the fire control activities of a member of a volunteer fire department.

Governmental record means any record, paper, document or thing belonging to, or received or kept by, the government for information or record, or required by law to be kept by others for information of the government.

Peace officer means any public servant vested by law with a duty to maintain public order or to make arrests for crime, whether that duty extends to all crimes or is limited to specific crimes.

Property means any real or personal property, including books, records and documents.

Public servant means any officer or employee of government, including legislators and judges and any person or agency participating as an adviser, consultant or otherwise in performing a governmental function.
(Code 1980, § 11-5-1)

State law reference—Similar provision, Code of Ala. 1975, § 13A-10-1.

Sec. 11-5-2. Obstructing governmental operations.

(a) A person commits the offense of obstructing governmental operations if, by means of intimidations, physical force or interference or by any other independently unlawful act, he or she:

(1) Intentionally obstructs, impairs or hinders the administration of law or other governmental function; or

(2) Intentionally prevents a public servant from performing a governmental function.

(b) This section does not apply to the obstruction, impairment or hindrance of the making of an arrest.

(c) It shall be unlawful for any person to obstruct governmental operations as defined in this section.
(Code 1980, § 11-5-2)

State law reference—Similar provision, Code of Ala. 1975, § 13A-10-2.

Sec. 11-5-3. Resisting person summoned to assist officer.

It shall be unlawful for a person to assault, beat or resist a person acting in obedience to the lawful summons or command of any officer of the city and having knowledge of such command or summons.
(Code 1980, § 11-5-3)

Sec. 11-5-4. Resisting arrest.

(a) A person commits the offense of resisting arrest if he or she intentionally prevents or attempts to prevent a peace officer from effecting a lawful arrest of himself or herself or of another person.

(b) It shall be unlawful for any person to resist arrest as defined by this section.
(Code 1980, § 11-5-4)

State law reference—Similar provision, Code of Ala. 1975, § 13A-10-41.

Sec. 11-5-5. Giving false information or report to law enforcement officer or governmental agency.

(a) The term "governmental agency," as used in this section, means any officer, agent, servant or employee of the state, county or city.

(b) It shall be unlawful for any person intentionally to give in writing, orally or by any means of communication, any false information or false report calculated to cause a law enforcement or governmental agency to respond thereto, or to do or perform some act or to render some service.

(c) It shall be unlawful for any person to falsely report by any means an alarm of fire or make any other false report of emergency which causes an emergency unit or any governmental agency to respond thereto, or to do or perform some act or to render any service or take any action.
(Code 1980, § 11-5-5)

State law reference—Similar provisions, Code of Ala. 1975, §§ 13A-10-8, 13A-10-109.

Sec. 11-5-6. Refusing to aid peace officer.

(a) A person commits the offense of refusing to aid a peace officer if, upon command by a peace officer identified to him or her as such, he or she fails or refuses to aid such peace officer in:

(1) Effecting or securing a lawful arrest; or

(2) Preventing the commission by another person of any offense.

(b) A person is not liable under this section if the failure or refusal to aid the officer was reasonable under the circumstances. The burden of injecting this issue is on the defendant, but this does not shift the burden of proof.

(c) It shall be unlawful for any person to refuse to aid a peace officer as defined by this section.
(Code 1980, § 11-5-6)

State law reference—Similar provision, Code of Ala. 1975, § 13A-10-5.

Sec. 11-5-7. Obedience to police.

It shall be unlawful for any person to refuse or fail to comply with any lawful order, signal or direction of a police officer.
(Code 1980, § 11-5-7)

Sec. 11-5-8. False arrest and defaulting prosecuting witness.

(a) No person shall cause or procure the arrest of another on any frivolous or malicious charge.

(b) No person having sworn out a warrant against another on a charge and having been duly served with a subpoena for such, shall fail to appear in court for the trial of said charge.
(Code 1980, § 11-5-8)

Sec. 11-5-9. Concealing identity.

(a) No person charged with an offense shall give any false name or other false information calculated to conceal his or her true identity.

(b) No person having an outstanding warrant for his or her arrest shall give any false name or other false information to any law enforcement official calculated to conceal his or her true identity.
(Code 1980, § 11-5-9)

Sec. 11-5-10. Hindering prosecution or apprehension of escapee.

(a) A person commits the crime of hindering prosecution if, with the intent to hinder the apprehension, prosecution, conviction, or punishment of another he or she renders criminal assistance to such person.

(b) A person commits the crime of hindering the apprehension of an escapee if, with intent to hinder the apprehension of a person known to have escaped from a detention facility, he or she renders criminal assistance to such person.

(c) It shall be unlawful for any person to commit the crime of hindering prosecution or hindering the apprehension of an escapee.
(Code 1980, § 11-5-10)

State law reference—Similar provisions, Code of Ala. 1975, § 13A-10-42 et seq.

Sec. 11-5-11. Impersonating public servant.

(a) A person commits the offense of impersonating a public servant if he or she falsely pretends to be a public servant and does any act in that capacity.

(b) It is no defense to a prosecution under this section that the office the actor pretended to hold did not in fact exist.

(c) Impersonating a public servant shall be unlawful.
(Code 1980, § 11-5-11)

State law reference—Similar provision, Code of Ala. 1975, § 13A-10-10.

Sec. 11-5-12. Compounding.

(a) A person commits the offense of compounding if he or she gives or offers to give, or accepts or agrees to accept, any pecuniary benefit or other thing of value in consideration for:

(1) Refraining from seeking prosecution of a crime; or

(2) Refraining from reporting to law enforcement authorities the commission or suspected commission of any crime or information relating to the crime.

(b) It is a defense to a prosecution under this section that the pecuniary benefit did not exceed an amount which the actor reasonably believed to be due as restitution or indemnification for harm caused by the offense. The burden of injecting this defense is on the defendant.

(c) It shall be unlawful for any person to commit the offense of compounding as defined by this section.
(Code 1980, § 11-5-12)

State law reference—Similar provision, Code of Ala. 1975, § 13A-10-7.

CHAPTER 6. OFFENSES AGAINST PUBLIC ORDER AND SAFETY

ARTICLE A. GENERAL PROVISIONS

Sec. 11-6-1. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Obstruct means to render impassable or to render passage unreasonably inconvenient or hazardous. A gathering of persons to hear a person speak or otherwise communicate does not constitute an obstruction.

Public place means a place to which the public or a substantial group of persons has access, and includes but is not limited to highways, transportation facilities, schools, places of amusement, parks, playgrounds and hallways, lobbies and other portions of apartment houses not constituting rooms or apartments designed for actual residence; provided that no private dwelling and no place engaged for a private gathering is included within the meaning of public place with respect to any person specifically invited therein.

Transportation facility means any conveyance, premises or place used for or in connection with public passenger transportation, whether by air, railroad, motor vehicle or any other method. It includes aircraft, watercraft, railroad cars, buses and air, boat, railroad and bus terminals and stations and all appurtenances thereto.
(Code 1980, § 11-6-1)

State law reference—Similar provision, Code of Ala. 1975, § 13A-11-1.

Secs. 11-6-2—11-6-4. Reserved.

Sec. 11-6-5. Failure of disorderly persons to disperse.

(a) A person commits the offense of failure of a disorderly person to disperse if he or she participates with five or more other persons in a course of disorderly conduct likely to cause substantial harm or serious inconvenience, annoyance or alarm, and intentionally refuses or fails to disperse when ordered to do so by a peace officer or other public servant lawfully engaged in executing or enforcing the law.

(b) It shall be unlawful for any person to commit the offense of failure of a disorderly person to disperse as defined by this section.
(Code 1980, § 11-6-5)

State law reference—Similar provision, Code of Ala. 1975, § 13A-11-6.

Sec. 11-6-6. Reserved.

Sec. 11-6-7. Authority to prohibit persons near jails, etc.; trespass.

(a) The chief of police may when deemed advisable prescribe a reasonable distance surrounding any jail or other place where prisoners are held wherein entry into such space may be prohibited.

(b) It shall be unlawful for any person to enter such prescribed place without the permission of the officer in charge of such jail or place or to refuse to leave after being warned to do so by a law enforcement official.
(Code 1980, § 11-6-7)

Sec. 11-6-8. Reserved.

Sec. 11-6-9. Affray.

(a) It shall be unlawful for two or more persons to engage in any fight or use any blows or violence towards each other in any public place to the disturbance of others.

(b) On the trial of any person for engaging in an affray, he or she may give in evidence any opprobrious word or abusive language used by the other participant or participants in such affray at or near the time of the affray and that evidence shall be in extenuation or justification as the municipal judge may determine.
(Code 1980, § 11-6-9)

Secs. 11-6-10—11-6-12. Reserved.

Sec. 11-6-13. Disrupting, injuring places of business.

It shall be unlawful for any person who goes upon the premises of a place of business of another to wantonly, willfully or maliciously do any act, diversion or harassment so as to disrupt or injure the business of such place of business.
(Code 1980, § 11-6-13)

Sec. 11-6-14. Loitering.

(a) A person commits the crime of loitering if he or she:

(1) Loiters, remains or wanders about in a public place for the purpose of begging;

(2) Loiters or remains in a public place for the purpose of gambling;

(3) Loiters or remains in a public place for the purpose of engaging or soliciting another person to engage in prostitution or deviate sexual intercourse; or

(4) Loiters or remains in any transportation facility, unless specifically authorized to do so, for the purpose of soliciting or engaging in any business, trade or commercial transactions involving the sale of merchandise or services.

(b) It shall be unlawful to commit the offense of loitering.
(Code 1980, § 11-6-14)

State law reference—Similar provision, Code of Ala. 1975, § 13A-11-9.

Sec. 11-6-15. Reserved.

Sec. 11-6-16. False rumors; banking institutions.

(a) It shall be unlawful for any person to make, repeat, publish or circulate any oral, written or printed statement, suggestion or rumor, directly or indirectly or by innuendo, imputing insolvency

or unsound financial condition to any building and loan association, bank, banking institution or trust company, doing a banking business in the city; provided that any person charged with such offense may plead and prove in defense thereof that such statement, suggestion or rumor was true, or that the same as to such person was privileged and not made, repeated, published or circulated maliciously or recklessly.

(b) It shall be unlawful for any person to make, repeat, publish or circulate any statement, suggestion or rumor, oral or written or printed, calculated or likely to start what is commonly called a "run" on any building or loan association, bank, banking institution or trust company doing a banking business in the city.
(Code 1980, § 11-6-16)

Secs. 11-6-17—11-6-19. Reserved.

Sec. 11-6-20. City's curfew hours; enforcement and penalties for violation.

(a) *Definitions.* For the purpose of this section, the following terms, phrases, words and their derivations shall have the following meanings:

Accompanied means to go along with or be associated with under individualized supervision.

Custodian includes a parent as defined in this section or an adult to whom the care or supervision of a minor has been temporarily delegated or assigned by the minor's custodial parent or legal guardian.

Direct route means the shortest path of travel through a public place to reach a final destination, without any detour or stop.

Emergency means an unforeseen combination of circumstances or the resulting state that demands for immediate action. The term "emergency" includes but is not limited to, a fire, a natural disaster, an accident, or any situation requiring immediate action to prevent serious bodily injury or loss of life.

Establishment means any privately owned place of business operated for a profit to which the public is invited, including but not limited to any place of amusement or entertainment. The term "establishment" also includes the employees of an establishment.

Minor means any person under 17 years of age, who has not been emancipated under Alabama law.

Operator means any individual, firm, association, partnership, or corporation that owns, operates, manages or conducts any establishment. The term "operator" includes the members or partners of an association or partnership, the officers of a corporation, and employees.

Parent means a natural person having legal custody of a minor as a:

(1) Natural or an adoptive parent;

(2) Legal guardian;

(3) Person who stands in loco parentis; or

(4) Person to whom legal custody has been given by court order.

Public place means any place to which the public or a substantial group of the public has access and includes but is not limited to roads, streets, highways, sidewalks, alleys, parks, playgrounds, public buildings, common areas of schools, apartment houses, office buildings, businesses, transport facilities, shops and appurtenant open spaces or vacant lots.

Remain means to linger or stay or to fail to leave premises when requested to do so by a law enforcement officer or the owner, operator, or other person in control of the premises.

Serious bodily injury means bodily injury that creates a substantial risk of death, serious permanent disfigurement, or protracted loss or impairment of the function of any bodily member or organ.

Supervised by an adult means that adult persons are present at the activity and the adult persons take full responsibility for the minor.

Time of night means the prevailing standard of time, whether Central Standard Time or Central Daylight Saving Time, generally observed at that

hour by the public in the city; prima facie the time then observed in the city's administrative offices and police department.

Years of age continues from one birthday to, but not including the day of, the next birthday.

(b) *Offenses.*

(1) It shall be unlawful for a minor to remain in a public place or in or upon the premises of an establishment:

a. During city school system scheduled school hours;

b. From 9:00 p.m. on any Sunday, Monday, Tuesday, Wednesday or Thursday until 6:00 a.m. of the following day;

c. From 11:00 p.m. on any Friday, Saturday or the official city holiday as declared by the mayor until 6:00 a.m. of the following day.

(2) It shall be unlawful for a parent or custodian knowingly to permit or negligently by insufficient control to allow a minor under the parent's or custodian's care or custody to violate this section.

(3) It shall be unlawful for an operator or establishment or an operator's or establishment's agents or employees to knowingly permit a minor to remain in or upon the premises over which the operator has supervision, custody or control, in violation of this section.

(4) An operator or establishment within the city limits or police jurisdiction of the city shall conspicuously post and maintain on the business premises a current copy of the city curfew hours. Failure to comply with this requirement to conspicuously post notice of the curfew shall constitute a violation of this section.

(5) The provisions of this section shall apply to minors who are suspended or expelled from school, unless they are emancipated under state law.

(6) A separate offense shall be deemed committed for each violation of this section.

(c) *Defense to a prosecution.*

(1) It shall be a defense to a prosecution for a violation of this section if a minor is:

a. Accompanied by his or her parent or custodian;

b. On a reasonable errand as directed by his or her parent or custodian;

c. In a motor vehicle involved in interstate travel;

d. Engaged in a lawful employment activity pursuant to his or her parent's or custodian's direction, or going to or returning home from such employment activity by a direct route without any unnecessary detour or stop and within one hour of the termination of the employment activity;

e. Involved in an emergency;

f. On the sidewalk, right-of-way or property where he or she resides, or on private property on either side of or across the street from the place where the minor resides and the adult owner or resident of that property has given permission for him or her to be there;

g. Attending and going to and from school, an official school, religious, or other recreational activity supervised by adults or sponsored by the city or another public body, a civic organization, or other similar entity that takes responsibility for him or her, or going to or returning home from such an activity, by a direct route without any unnecessary detour or stop and within one hour of the termination of the activity sponsored by the city, other public body or civic organization or similar entity;

h. Exercising any First Amendment rights protected by the United States or state constitution, such as free exercise of religion, freedom of speech, and the right of assembly;

i. Emancipated under state law;

j. Attending a bona fide work-study program, or going to or returning home from such a program by a direct route without any unnecessary detour or stop and within one hour of the beginning or termination of the work-study program;

(2) It shall be a defense to a prosecution for a violation of this section if an operator or an establishment's agents or employees promptly notified a law enforcement agency that a minor was present in or upon the premises of an establishment in violation of this section and refused to leave.

(d) *Penalties.*

(1) Before taking any enforcement action under this section, a police officer shall ask the apparent offender's age and reason for being in the public place. The officer shall not issue a citation or make an arrest under this section unless the officer reasonably believes that an offense has occurred and that, based on any response and other circumstances, no defense in subsection (c) of this section is present. When a police officer or other law enforcement officer observes or has probable cause to believe that a violation of this section has been committed he or she shall detain the juvenile to be released only to the parent or custodian. When more than one child under the control of the same parent or custodian is found in violation of the provisions of this section in the same act or incident, that parent or custodian shall be issued one citation.

(2) Upon receiving a citation for an initial violation of this section within any 12-month period, a violator shall be required to appear in court and, upon conviction, shall be punished by a fine of $500.00.

(3) Upon receiving a citation for a second violation of this section within any 12-month period of receiving an initial citation, the violator shall be required to appear in court and, upon conviction, shall be punished by a fine of $500.00.

(4) Upon receiving a citation for a third or subsequent violation of this section within any 12-month period of receiving an initial citation, the violator shall be required to appear in court and, upon conviction, shall be punished by a fine of $500.00. A parent or custodian who has received a citation for a third or subsequent violation of this section within any 12-month period of receiving an initial citation shall be punished, upon conviction, by a fine of $500.00 and/or by imprisonment in the city jail, workhouse, or house of correction or at hard labor upon the streets and public works for not exceeding six months. The court may suspend or probate the sentence upon a conviction.

(5) As part of or in lieu of any penalty that may be imposed, a violator may be required by the court to obtain counseling or attend classes or programs to improve parenting and child-raising skills.

(6) The provisions of this section shall be enforced equally without regard to race, ethnicity or sex.

(e) *Enforcement statistics.*

(1) The police department shall inform the council as to the following:

a. The number of curfew violations;

b. Other arrests from said curfew violations;

c. The locations of said curfew violations;

d. The race of student and parent/guardian cited for curfew violations.

(2) Six months after the effective date of the ordinance from which this section is derived, and every six months thereafter, the municipal court shall report to the council the number and disposition of curfew violations.

(3) Curfew violations associated with gang activity shall be reported separately.

(Code 1980, § 11-6-20; Ord. No. 96-10, § 1, 1-9-1996; Ord. No. 96-57, § 1, 2-27-1996; Ord. No. 08-190, § 1, 8-19-2008)

Sec. 11-6-21. Visiting illegal drug house.

(a) For the purpose of this section, the term "illegal drug house" means any property, including premises, wherein controlled substances, as defined by the 1991 Alabama Uniform Controlled Substances Act codified in chapter 2 of title 20 of the Code of Alabama 1975, as amended, and any schedule incorporated thereafter, are unlawfully possessed, used, brought, sold, delivered, stored or distributed.

(b) It shall be unlawful for any person to visit or resort to an illegal drug house with the intent to unlawfully possess, use, buy, sell, deliver, store or distribute controlled substances.

(c) Among the circumstances which may be considered in determining whether such intent is manifested are:

(1) Such person having been convicted of possessing, selling, or distributing a controlled substance, within the last two years, under the state law, the fact of such conviction being known to the arresting officer at the time of such arrest;

(2) Such person was then engaged in an unlawful drug-related activity, including but not limited to acting as a lookout, furtively transferring small objects or packages, attempting to conceal a controlled substance, taking flight or manifestly attempting to conceal their person upon the entrance or arrival of a law enforcement officer;

(3) Such person is in possession of drug paraphernalia, as defined in Code of Ala. 1975, § 13A-12-260, as amended;

(4) Controlled substances are found in close proximity to such individual.

(d) Any combination of these circumstances shall establish prima facie evidence of such unlawful intent, but in no event shall any person be convicted of violating this section for visiting such person's own residence unless a court of competent jurisdiction previously declared the residence a drug-related public nuisance due to unlawful drug activity and such judicial finding had not been set aside or declared remedied prior to said visits.
(Ord. No. 97-15, § I, 1-21-1997)

Secs. 11-6-22—11-6-30. Reserved.

ARTICLE B. OFFENSES RELATING TO FIREARMS AND WEAPONS

Sec. 11-6-31. Definitions.

For the purposes of this article, the following words and phrases shall have the meanings respectively ascribed to them by this section:

Crime of violence means any of the following crimes or an attempt to commit any of them, namely murder, manslaughter (except manslaughter arising out of the operation of a vehicle), rape, mayhem, assault with intent to rob, assault with intent to ravish, assault with intent to murder, robbery, burglary, kidnapping or larceny.

Exempt person means any marshal, sheriff, prison or jail warden and his or her regularly employed deputies, police officers or other law enforcement officers of any state or political subdivision thereof; any member of the Army, Navy or Marine Corps of the United States or member of the National Guard, national guard organized reserves or state guard organizations, when on duty or going to or from duty; any regularly enrolled member of any organization duly authorized to purchase or receive pistols from the United States or from the state provided that the member is at or is going to or from his or her place of assembly or target practice; any officer or employee of the United States duly authorized to carry a pistol; any duly licensed person engaged in the manufacturing, repairing or dealing in pistols or the agent or representative of such person possessing, using or carrying a pistol in the usual or ordinary course of such business; any common carrier, except taxicabs, licensed as a common carrier.

Nonexempt person means any person, including any firm, partnership, association or corporation, other than an exempt person.

Pistol means any firearm with a barrel less than 12 inches in length.
(Code 1980, § 11-6-31)

State law reference—Similar provision, Code of Ala. 1975, § 13A-11-70.

Sec. 11-6-32. Reserved.

Sec. 11-6-33. Carrying pistol.

No nonexempt person shall carry a pistol on or about his or her person or in any vehicle in violation of any law of the state regulating firearms.
(Code 1980, § 11-6-33)

State law reference—Similar provision, Code of Ala. 1975, § 13A-11-52.

Sec. 11-6-34. Sword canes.

No person shall carry a sword cane.
(Code 1980, § 11-6-34)

Sec. 11-6-35. Trap guns, etc.

No person shall set or place any loaded trap gun, spring gun, automatic gun or any similar device where the same may shoot or injure any person approaching or coming in proximity with the same. It shall be unlawful for any person to cause, allow or permit any such gun or device to be placed upon premises under his or her control.
(Code 1980, § 11-6-35)

Sec. 11-6-36. Permit for firing cannon.

No cannon shall be discharged within the city without a permit from the city council, designating the place where the same shall be fired.
(Code 1980, § 11-6-36)

Sec. 11-6-37. Unlawfully selling, possessing, etc., fireworks.

(a) The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Fireworks.

(1) The term "fireworks" includes any explosive composition or any substance or combination of substances, or article prepared for the purpose of producing an audible or visible effect by explosion, deflagration or detonation, and includes, but is not limited to, blank cartridges and toy cannons in which explosives are used, the type of flare balloons which require fire underneath to propel the flare balloons, firecrackers, sparklers (except as exempted herein), torpedoes, sky rockets, Roman candles, bombs or other fireworks containing any explosive compound, or any tables or other devices containing any explosive substance.

(2) The term "fireworks" does not include:

a. Flares of the type used by railroads or any warning lights commonly known as red flares or marine distress signals of a type approved by the United States Coast Guard;

b. Pistols containing 0.025 grains or less of explosive compound, toy pistols, toy canes, toy guns or other devices in which paper caps containing 0.025 grains or less of explosive compound are used, provided the devices are so constructed that the hand cannot come in contact with the cap when in place for the explosion; or

c. Sparklers and dipped sticks, when the total pyrotechnic composition does not exceed 100 grains each in weight and when the pyrotechnic composition containing any chlorate or perchlorate does not exceed five grams.

(b) Any person who sells, offers for sale, keeps or has in possession, barters, exchanges or gives away, furnishes at a public place or elsewhere, or otherwise disposes of, uses or explodes any fireworks commits the crime of unlawfully dealing in fireworks.
(Code 1980, § 11-6-37)

State law reference—Regulation of fireworks, Code of Ala. 1975, § 8-17-210 et seq.

Sec. 11-6-38. Presenting, discharging firearms, etc.

(a) No person shall present at another person any gun, pistol or other firearm, whether loaded or unloaded.

(b) No person shall fire any gun, pistol or other firearm within the city, except in self defense; provided that this section shall not prohibit the firing or discharge of any shotgun or scatter gun designed for short range firing, when fired or discharged more than 600 feet from any roadway, school, park, church, building, dwelling house, outbuilding or animal shelter.

(c) This section shall not apply to any person defined as exempt as provided in section 11-6-31; nor shall this section apply to any person, firm or corporation lawfully engaged in the private security services or business in the usual or ordinary performance of their business.
(Code 1980, § 11-6-38; Ord. No. 80-263, 11-18-1980)

Sec. 11-6-39. Shooting toy weapons.

No person shall project or cause to be projected any gravel, marbles, shot or other missile by means of any Flobert rifle, air gun, slingshot, gravel shooter, blowgun, rubber sling or implement or device of like character; however, such projection shall not be unlawful if conducted as a part of a safety education program entirely within the Birmingham-Jefferson Civic Center with the permission of the civic center authority.
(Code 1980, § 11-6-39; Ord. No. 85-104, 5-21-1985)

Sec. 11-6-40. Committing crime of violence while armed.

No person shall commit or attempt to commit a crime of violence when armed with a pistol. In the trial of a person for committing or attempting to commit a crime of violence, the fact that he or she was armed with a pistol and had no license to carry the same shall be prima facie evidence of his or her intention to commit such crime of violence.
(Code 1980, § 11-6-40)

State law reference—Similar provision, Code of Ala. 1975, § 13A-11-71.

Secs. 11-6-41—11-6-43. Reserved.

Sec. 11-6-44. Sale or disposal of certain weapons.

It shall be unlawful for any person to sell, offer for sale, keep, have in possession for sale, barter, exchange, give away or otherwise dispose of any brass knuckles, metal knuckles, dirk, billet, slingshot, sandbag, air gun or air rifle; however, such keeping shall not be unlawful if conducted as a part of a safety education program within the Birmingham-Jefferson Civic Center with the permission of the civic center authority.
(Code 1980, § 11-6-44; Ord. No. 85-105, 5-21-1985)

Sec. 11-6-45. Reserved.

Sec. 11-6-46. Possession by certain persons prohibited.

No person shall own a pistol or have one in his or her possession in violation of any law of the state regulating firearms.
(Code 1980, § 11-6-46)

State law reference—Similar provision, Code of Ala. 1975, § 13A-11-72.

Sec. 11-6-47. Sale to or possession of toy pistol by a person under 18 years of age.

(a) No person shall expose for sale, sell or give away to any person under the age of 18 years, any toy pistol in which blank cartridges, or a metallic cartridge containing a leaden ball can be used or in which powder and balls can be used or can be exploded in violation of any law of the state regulating firearms.

(b) No person under the age of 18 years shall have in his or her possession or use any pistol of any kind described in this section in violation of any law of the state regulating firearms.
(Code 1980, § 11-6-47)

Sec. 11-6-48. Display of pistol for sale.

No pistol shall be displayed for sale in or through any window fronting on any street in the city.
(Code 1980, § 11-6-48)

Sec. 11-6-49. Records of sales of pistols.

Every person selling pistols in the city shall keep a register or record of such sales as required by state law and shall make those records accessible for inspection by the chief of police or any police officer.
(Code 1980, § 11-6-49)

Secs. 11-6-50—11-6-52. Reserved.

Sec. 11-6-53. Antique pistols.

This article shall not apply to the purchase, possession or sale of pistols unsuitable for use as firearms and possessed as curiosities or ornaments or to the transportation of such pistols unloaded and in a bag, box or securely wrapped package, but not concealed on the person.
(Code 1980, § 11-6-53)

State law reference—Similar provision, Code of Ala. 1975, § 13A-11-83.

Sec. 11-6-54. Territorial application; construction.

This article shall be applicable within the corporate limits and police jurisdiction of the city. This article shall not be construed to be in conflict with state law on this subject. It shall, however, be construed as supplementary to state law in the jurisdiction as set out in this section.
(Code 1980, § 11-6-54)

State law reference—Municipal ordinances enforcing police or sanitary regulations and prescribing fines and penalties for violations thereof have force and effect within corporate limits of the city and in the police jurisdiction, Code of Ala. 1975, § 11-40-10.

CHAPTER 7. OFFENSES AGAINST PUBLIC HEALTH AND MORALS

ARTICLE A. GAMBLING

Sec. 11-7-1. Definitions.

The following words and phrases when used in this article shall, for the purpose of this article, have meanings respectively ascribed to them in this section, except when the context otherwise requires:

Bookmaking means unlawfully accepting bets from members of the public as a business, rather than in a casual or personal fashion, upon the outcome of future contingent events.

Contest of chance means any contest, game, gaming scheme or gaming device in which the outcome depends in a material degree upon an element of chance, notwithstanding that skill of the contestants may also be a factor therein.

Lottery or *policy* means an unlawful gambling scheme in which:

(1) The players pay or agree to pay something of value for chances, represented and differentiated by numbers or by combinations of numbers or by some other medium, one or more of which chances are to be designated as the winning ones;

(2) The winning chances are to be determined by a drawing or by some other fortuitous method; and

(3) The holders of the winning chances are to receive something of value.

Parimutuel, mutuel or numbers game means a form of lottery in which the winning chances or plays are not determined upon the basis of a drawing or other act on the part of persons conducting or connected with the scheme, but upon the basis of the outcome of a future contingent event or events otherwise unrelated to the particular scheme.

Person means any natural person, firm, partnership, association or corporation.

Slot machine means a gambling device that, as a result of the insertion of a coin or other object, operates, either completely automatically or with the aid of some physical act by the player, in such a manner that depending upon elements of chance it may eject something of value or the amount, value or measure of the thing ejected depends upon chance. A device so construed or readily adaptable or convertible to such use is no less a slot machine because it is not in working order or because some mechanical act of manipulation or

repair is required to accomplish its adaptation, conversion or workability. Nor is it any less a slot machine because apart from its use or adaptability as such it may also sell or deliver something of value on a basis other than chance.
(Code 1980, § 11-7-1)

State law reference—Similar provision, Code of Ala. 1975, § 13A-12-20.

Sec. 11-7-2. Gaming prohibited.

No person shall play at any game of chance or hazard for money or other valuable thing or in any way aid, abet, countenance or encourage such game.
(Code 1980, § 11-7-2)

State law reference—Similar provision, Code of Ala. 1975, § 13A-12-21.

Sec. 11-7-3. Operation, sale, etc., of devices of chance.

(a) No person shall be engaged in, interested in or concerned with the setting up, carrying on or operating of any wheel of fortune, device of chance, slot machine, scheme of raffling, lottery, gift enterprise, or any device of like kind.

(b) No person shall sell or take an order for any ticket, chance or interest in any of the above described devices or schemes of raffling, lottery, gift enterprises or like devices.

(c) No person shall act for or represent any other person in selling or disposing of any such ticket, chance, interest or order.
(Code 1980, § 11-7-3)

State law reference—Similar provision, Code of Ala. 1975, § 13A-12-22.

Sec. 11-7-4. Renting premises to be used for gaming.

No person, being the owner, proprietor or manager of any building, house, room, booth or tent shall rent, lease or knowingly permit the same to be used for gaming purposes or for the exhibition of any gaming table.
(Code 1980, § 11-7-4)

State law reference—Similar provisions, Code of Ala. 1975, §§ 13A-12-21, 13A-12-22.

Sec. 11-7-5. Keeping gambling house or gambling paraphernalia.

(a) No person shall keep, exhibit or conduct a house for gaming.

(b) No person shall keep or have in his or her possession any table, cloth, box, implement or other device for the purpose of gaming or which may only be used for the purpose of gaming or keep, exhibit or conduct any faro bank or bank of like kind.
(Code 1980, § 11-7-5)

State law reference—Similar provisions, Code of Ala. 1975, §§ 13A-12-21, 13A-12-22.

Sec. 11-7-6. Operation of tables without license.

No person in charge or control of any room in which tables are located shall yield the use of such room or tables to another for a consideration for the purpose of the playing of any game, whether of cards, dice or otherwise, unless he or she shall have a license for such a business issued by the director of finance; provided that nothing in this section or in any license issued by the director of finance shall be construed to authorize a violation of any other section of this Code.
(Code 1980, § 11-7-6)

State law reference—Similar provision, Code of Ala. 1975, § 13A-12-22.

Sec. 11-7-7. Permitting gambling in public place.

No person, being the owner or lessee or having the custody or control of any tavern, inn or other public place, house or any building where people resort, shall permit or suffer the playing of any game of chance or hazard for money or other valuable thing.
(Code 1980, § 11-7-7)

State law reference—Similar provision, Code of Ala. 1975, § 13A-12-22.

Sec. 11-7-8. Visiting barricaded premises containing gambling devices.

It shall be unlawful for any person in the city to visit or resort to any barred or barricaded house or room, or other place built or protected, or equipped in the manner described in Code of Ala.

1975, § 13A-12-52, as amended, where any cards, dice, roulette wheel or any gambling implements whatsoever are exhibited or exposed to view when two or more persons are present.
(Code 1980, § 11-7-8)

State law reference—Prohibition against exhibiting gambling devices in barred house or where speaking tubes or electric signals are used, Code of Ala. 1975, § 13A-12-52.

Sec. 11-7-9. Authority of police to raid gambling house.

Whenever affidavit is made before a municipal judge by any person that he or she has good cause to believe, and does believe, that any house, building or part thereof, particularly designating the same, is being kept for the purpose of carrying on gambling, any police officer is authorized, and it shall be his or her duty, to break into and enter such house or part thereof upon the refusal of the owner or occupant thereof to open the same, and to seize all gambling equipment and paraphernalia and arrest all persons found therein.
(Code 1980, § 11-7-9)

State law reference—Similar provision, Code of Ala. 1975, § 13A-12-52.

Sec. 11-7-10. Visiting illegal gambling house.

It shall be unlawful for any person to visit or resort or be present in any gambling house, or any building or part thereof kept for the purpose of carrying on gambling therein.
(Code 1980, § 11-7-10)

Sec. 11-7-11. Destruction and forfeiture of gambling devices.

Every table, slot machine, cloth, paper, box, machine or other device used for the purpose of gaming or conducting a lottery in the city, or which can only be practically used for the purpose of gaming or conducting a lottery, is hereby declared to be a public nuisance and forfeited to the city, and may be seized, abated and summarily destroyed by any police officer. It shall be the duty of the chief of police and of every police officer to seize, remove and forthwith destroy the same when found in the possession, custody or control of any person in violation of any city or state law. Any physical money found by any police officer in the possession, custody or control of any person in the city and identifiable as consideration, means, instrument or medium in the conduct or process of gaming or lottery shall be forfeited to the city, and shall be seized by such police officer and delivered by him or her to the custodian of property, who, immediately after need thereof as evidence has ceased, shall deliver the same to the director of finance for the city treasury.
(Code 1964, § 23-11; Code 1980, § 11-7-11)

State law reference—Similar provision, Code of Ala. 1975, § 13A-12-30.

Sec. 11-7-12. Betting with minors.

(a) No person, being of full age shall bet or hazard anything of value with a minor.

(b) No person interested or concerned in any gaming table kept on exhibition shall allow any minor to bet or hazard anything of value at such table.
(Code 1980, § 11-7-12)

State law reference—Similar provisions, Code of Ala. 1975, §§ 13A-12-21, 13A-12-22.

Sec. 11-7-13. Betting at pool table or tenpin alley.

No person shall bet or hazard any money or anything of value, except the charge for use of the table or alley, at billiards, tenpins or any other table or alley for which a license is required by this Code or other ordinances of the city.
(Code 1980, § 11-7-13)

State law reference—Similar provision, Code of Ala. 1975, § 13A-12-21.

Sec. 11-7-14. Selling or buying pools, making or taking wagers upon sports or other contests or races, bookmaking.

(a) No person shall, either as principal or agent, sell or buy any pool ticket, chance or other device or make or take any wager, engage in any bookmaking activity or enter into any transaction whereby money or other valuable thing may be won or lost upon any professional or amateur sport or athletic game or upon any dog or horse race or what purports to be a dog or horse race or any other contest either within or without the state.

(b) No person shall act as agent for any other person taking or receiving money or other thing for or in procuring or placing for such other person any pool, ticket, chance, wager or other device, or do anything to aid any other person in entering into any transaction whereby he or she may win or lose money or other thing of value upon any professional or amateur sport or athletic game or upon any dog or horse race of what purports to be a dog or horse race or any other contest either within or without the state.

(Code 1980, § 11-7-14)

State law reference—Similar provisions, Code of Ala. 1975, §§ 13A-12-21, 13A-12-22.

Sec. 11-7-15. Possession of lottery tickets, policy slips, etc.

(a) No person shall possess any ticket, writing, paper, slip, document, memorandum, list, article, matter or thing of any nature or kind whatsoever, which is customarily or usually used in the operation of a lottery, policy game, bookmaking, pool selling or game of chance of any sort or kind or which is of a kind which is customarily used in the operation of lottery, policy game, bookmaking, pool selling or game of chance of any sort or kind and not customarily or usually used in the operation of a legitimate business or activity.

(b) To constitute the offense created by this section, it shall not be necessary that the ticket, writing, paper, slip, document, memorandum, list, article, matter or thing be actually used, in use or intended for use in the operation of bookmaking, pool selling, lottery, policy game or game of chance of any sort or kind and it shall not be a defense to violation of this section that the ticket, writing, paper, slip, document, memorandum, list, article, matter or thing has not actually been used, is not in use nor intended to be used in the operation or in connection with the operation of bookmaking, pool selling, lottery, policy game or game of chance of any sort or kind.

(c) This section shall not apply to possession by law enforcement officials, court officials or any person connected with the prosecution or investigation of a violation of this article or state or federal law on this subject.

(d) Expert testimony shall be admissible to show that the ticket, writing, paper, slip, document, memorandum, list, article, matter or thing was customarily and usually used in the operation of bookmaking or pool selling and expert testimony shall also be admissible to show the contrary.

(Code 1980, § 11-7-15)

State law reference—Similar provisions, Code of Ala. 1975, §§ 13A-12-24, 13A-12-25.

Sec. 11-7-16. Suit clubs.

No person shall accept or receive any money or other thing of value in payment or part payment for clothing or other merchandise under any agreement whereby the delivery of such clothing or the time of delivery thereof is made dependent upon chance.

(Code 1980, § 11-7-16)

State law reference—Similar provisions, Code of Ala. 1975, §§ 13A-12-21, 13A-12-22.

Sec. 11-7-17. Announcing or keeping place where progress or result of race is announced.

(a) No person shall keep or be interested in keeping any public building or place or in any private building to which the public generally has access in which is announced the progress or the result of what purports to be the progress or result of any dog or horse race or what purports to be a dog or horse race either within or without the state.

(b) No person shall announce the progress or results or purported progress or results of any such race therein.

(c) No person shall frequent any such building or place while such announcements are being made.

(Code 1980, § 11-7-17)

State law reference—Similar provision, Code of Ala. 1975, § 13A-12-22.

Sec. 11-7-18. Keeping place or board showing result of race.

(a) No person shall keep or be interested in keeping any public building or any private building to which the public generally has access in

which any board, placard or other bulletin is kept, displayed or marked showing entrants or what purports to be entrants in any dog or horse race or what purports to be a dog or horse race either within or without the state.

(b) No person shall keep, display or mark any such board or other such bulletin.

(c) No person shall frequent any such building or place where any such board, placard or bulletin is kept, displayed or marked.
(Code 1980, § 11-7-18)

State law reference—Similar provision, Code of Ala. 1975, § 13A-12-22.

Secs. 11-7-19—11-7-30. Reserved.

ARTICLE B. PROSTITUTION

Division 1. Generally

Sec. 11-7-31. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Prostitution means the commission by a person of any natural or unnatural sexual act, for a monetary consideration or other thing of value.
(Code 1980, § 11-7-31)

State law reference—Similar provision, Code of Ala. 1975, § 13A-12-120.

Secs. 11-7-32—11-7-34. Reserved.

Sec. 11-7-35. Causing or allowing member of family to prostitute themselves.

No person shall cause or knowingly and willfully allow or permit his or her spouse or other member of his or her family to solicit, invite or entice any person to have sexual intercourse or participate in any natural or unnatural sexual acts for a monetary consideration or other thing of value.
(Code 1980, § 11-7-35)

Sec. 11-7-36. Transportation of persons for immoral purposes.

It shall be unlawful for any common carrier or for the driver or person in charge of any taxicab or other public service vehicle to knowingly transport or aid or abet in the transportation of any person to or from any place in the city for the purpose of prostitution.
(Code 1980, § 11-7-36)

Sec. 11-7-37. Aiding, abetting, procuring, receiving profit from prostitution.

No person shall knowingly:

(1) Cause or aid a person to commit or engage in prostitution;

(2) Procure or solicit patrons for prostitution;

(3) Provide persons or premises for prostitution purposes;

(4) Receive or accept money or other thing of value pursuant to a prior agreement with any person whereby he or she participates or is to participate in the proceeds of any prostitution activity; or

(5) Operate or assist in the operation of a house of prostitution or a prostitution enterprise.

(Code 1980, § 11-7-37)

State law reference—Similar provision, Code of Ala. 1975, § 13A-12-113.

Sec. 11-7-38. Servants of lodging places aiding or abetting prostitution.

(a) It shall be unlawful for any bellhop, elevator operator, desk clerk, servant or employee of a hotel, motel, inn, boardinghouse, apartment house or any lodging place of like kind for the purpose of or in furtherance of unlawful sexual misconduct or prostitution to:

(1) Conduct any person to the room of any guest or occupant of such place; or

(2) Carry any note or message to or from a person to or from any guest or occupant of such place.

(b) It shall be unlawful for the owner or manager of any hotel, motel, inn, boardinghouse, apartment house or any lodging place or like kind to employ therein any person who has been convicted of aiding or abetting prostitution.
(Code 1980, § 11-7-38)

Secs. 11-7-39—11-7-50. Reserved.

Division 2. Houses of Prostitution

Sec. 11-7-51. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

House of prostitution means a place in which people resort for the purpose of engaging in natural or unnatural sexual acts for which a monetary consideration of other thing of value is charged, or any place in which any person resides for the purpose of prostitution.
(Code 1980, § 11-7-51)

Sec. 11-7-52. Residing in or frequenting.

(a) It shall be unlawful for any person within the city, to reside in, to visit or to resort to any house of prostitution.

(b) Any person charged with visiting or resorting to any house of prostitution may plead in mitigation or justification that such person visited or resorted to such house on a lawful mission and not for any immoral or illegal purpose.
(Code 1980, § 11-7-52)

State law reference—Similar provision, Code of Ala. 1975, § 13A-12-121.

Sec. 11-7-53. Keeping a house of prostitution.

No person shall own, lease, operate, manage, keep or permit any property or premises under his or her control to be kept or used as a house of prostitution, or keep therein anyone for the purpose of prostitution, or suffer anyone to visit or resort thereto for such purpose.
(Code 1980, § 11-7-53)

State law reference—Similar provision, Code of Ala. 1975, § 13A-12-121.

Sec. 11-7-54. Duty of owner or agent to evict certain tenants.

(a) The chief of police shall notify in writing the owner or agent of any house, building, structure or premises used as a house of prostitution that such is in violation of this division and that said owner or agent is under a duty to evict any tenants who have been convicted of a violation of this division within 15 days of receipt of such notice.

(b) It shall be unlawful for the owner of any house, building, structure or premises or his or her agent upon receiving such notice to refuse or fail to evict any tenants of the described property who have been convicted of a violation of this division within 15 days of receipt of such notice.
(Code 1980, § 11-7-54)

Sec. 11-7-55. Authority of police to raid house of prostitution.

Whenever affidavit is made before a municipal judge by any person that he or she has good cause to believe, and does believe, that any house, building or part thereof, particularly designating the same, is being kept or used for the purpose of carrying on prostitution, any police officer is authorized, and it shall be his or her duty, to break into and enter such house or part thereof upon refusal of the owner or occupant to open the same, and to arrest all persons found therein.
(Code 1980, § 11-7-55)

Secs. 11-7-56—11-7-60. Reserved.

ARTICLE C. OBSCENITY AND RELATED OFFENSES*

Division 1. Generally

Sec. 11-7-61. Definitions.

For the purposes of this article, the following words and phrases shall have the meanings respectively ascribed to them by this section:

Distribute means to transfer possession of, whether with or without consideration.

*__State law references—__*Prohibitions against obscenity and related offenses, Code of Ala. 1975, § 13A-12-130 et seq.; local obscenity ordinances not preempted, Code of Ala. 1975, § 13A-12-200.9.

Knowingly means having actual or constructive knowledge of the character and content of the subject matter. A person has constructive knowledge if a reasonable inspection under the circumstances would disclose the nature of the subject matter and the failure to inspect is for the purpose of avoiding such disclosure.

Nudity means the showing of the human male or female genitals, pubic area or buttocks with less than a fully opaque covering or the showing of the female breast with less than a fully opaque covering of any portion thereof below the top of the nipple or the depiction of covered male genitals in a discernibly turgid state.

Obscene means to the average person, applying contemporary community standards, the work or matter, taken as a whole, appeals to the prurient interest, the work or matter depicts or describes, in a patently offensive way, sexual conduct; and the work or matter, taken as a whole, lacks serious literary, artistic, political or scientific value.

Obscene motion picture means a motion picture which the average person, applying contemporary community standards, would find or regard, when taken as a whole, appeals to the prurient interest, depicts or describes sexual conduct in a patently offensive way and, taken as a whole, lacks serious literary, artistic, political or scientific value.

Performance means an exhibition by a living person, assemblage of living persons or group, presented for the entertainment, amusement, education or instruction of others, including but not limited to a play, concert, musical revue, comedy, extravaganza, vaudeville, ballet, burlesque, carnival skits or acts, circus, minstrel show, street show, sideshow, floor show, night club show or act, or other show, pageant or exhibition, wherever presented or exhibited in the city.

Prurient interest means sexual longing, shameful or lewd interest in sex, aroused sexual interest or desire or lascivious or lustful thoughts or desires.

Sadomasochistic abuse means flagellation or torture by or upon a person undressed or clad in undergarments, a mask or bizarre costume or the condition of being fettered, bound or otherwise physically restrained on the part of one undressed or so clothed.

Sexual conduct means any act of masturbation, excretory functions, homosexuality, sadomasochistic abuse, nudity, sexual intercourse or physical contact with a person's clothed or unclothed genitals, pubic area, buttocks or, if such a person is a female, breast, whether or not any such conduct is actual or simulated and any lewd exhibition of the genitals.

Work or *matter* means any book, magazine, newspaper or other printed or written material, performance or any picture, drawing, photograph, motion picture or other pictorial representation or any statue or figure or any recording transcription or mechanical, chemical or electrical reproduction or any other articles, equipment, machines or materials.
(Code 1980, § 11-7-61)

Sec. 11-7-62. Reserved.

Sec. 11-7-63. Indecent proposal.

No person shall, verbally, in writing or otherwise, make a proposal in public to another that such other person engage in an unlawful sexual, or lewd, or licentious act or acts, or intentionally touch the person of another in furtherance of any such proposal.
(Code 1980, § 11-7-63)

Sec. 11-7-64. Nude pictures.

It shall be unlawful for any person to display nude pictures of any man, woman or girl in any public place, except bona fide art galleries.
(Code 1980, § 11-7-64)

State law reference—Similar provision, Code of Ala. 1975, § 13A-12-200.3.

Sec. 11-7-65. Indecent pictures, writings, etc.

No person shall exhibit any lewd, obscene or indecent picture or drawing, or write, draw, paint or exhibit any lewd, obscene or indecent writing, word or sentence in any place open to public view.
(Code 1980, § 11-7-65)

State law reference—Similar provision, Code of Ala. 1975, § 13A-12-200.3.

Sec. 11-7-66. Exemptions.

The possession or exhibition forbidden by this article shall not apply to a possession or exhibition by a police officer, sheriff, deputy sheriff or other peace officer or any person under their supervision and control, or any judge, jury or attaché of a court, or any attorney, or any member of a legislative body, municipal, state or federal, when such possession or exhibition thereof is connected with the prosecution or investigation of a violation or possible violation of this article or other law or the consideration of legislation or proposed legislation designed to eliminate or reduce obscenity in any form nor to any possession or exhibition by any person where such possession or exhibition is for a bona fide scientific or educational purpose.
(Code 1980, § 11-7-66)

Sec. 11-7-67. Article cumulative.

This article is cumulative, and no remedy or procedure available under any section or provision of this division shall in any way restrict, limit or repeal any other remedy, authority or procedure now or hereafter available to any municipal judge or magistrate.
(Code 1980, § 11-7-67)

Secs. 11-7-68—11-7-83. Reserved.

Division 2. Obscenity

Sec. 11-7-84. Sale, etc., to minors prohibited.

(a) It shall be unlawful for any person, with knowledge that a person is a minor under 18 years of age, or who, while in possession of such facts that he or she should reasonably know that such person is a minor under 18 years of age, to knowingly send or cause to be sent, exhibited, distributed, sold or offered for sale, any obscene matter to any such minor under 18 years of age in the city or the police jurisdiction thereof.

(b) It shall be unlawful for any person, with knowledge that a person is a minor under 18 years of age, or who, while in possession of such facts that he or she should reasonably know that such person is a minor under 18 years of age, to hire, employ or use such minor to do or assist in the doing of any act described in this section.
(Code 1980, § 11-7-84)

State law reference—Similar provision, Code of Ala. 1975, § 13A-12-200.5.

Sec. 11-7-85. Reserved.

Sec. 11-7-86. Forcing purchasers of papers, etc., to accept obscene matter prohibited.

It shall be unlawful for any person knowingly, as a condition to a sale, allocation, consignment or delivery for resale of any paper, magazine, book, periodical or other merchandise, to require that the purchaser or consignee receive any matter reasonably believed by such purchaser or consignee to be obscene, or to deny or threaten to deny a franchise, or to revoke, or to impose any penalty, financial or otherwise, by reason of the failure of any such person to accept such matter, or by reason of the return of such matter.
(Code 1980, § 11-7-86)

Secs. 11-7-87—11-7-95. Reserved.

Division 3. Seizure of Obscene Motion Picture Film (Reserved)

Secs. 11-7-96—11-7-100. Reserved.

ARTICLE D. MODEL GLUE

Sec. 11-7-101. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Model glue means any glue or cement of the type commonly used in the building of model airplanes, boats and automobiles, containing toluene, acetone or other solvent or chemical having the property of releasing toxic vapors.
(Code 1964, § 36-37.1; Code 1980, § 11-7-101)

Sec. 11-7-102. Smelling or inhaling prohibited.

It shall be unlawful for any person to intentionally smell or inhale the fumes of any type of model glue or to induce any other person to do so, for the purpose of causing a condition of, or inducing symptoms of, intoxication, elation, euphoria, dizziness, excitement, irrational behavior, exhilaration, paralysis, stupefaction or dulling of the senses or nervous system, or for the purpose of, in any manner, changing, distorting or disturbing the audio, visual or mental processes; provided, however, that this section shall not apply to the inhalation of any anesthesia for medical or dental purposes.
(Code 1964, § 36-37.2; Code 1980, § 11-7-102)

Sec. 11-7-103. Possession for certain purposes prohibited.

It shall be unlawful for any person to intentionally possess any type of model glue for the purpose of using the same in the manner prohibited by section 11-7-102.
(Code 1964, § 36-37.3; Code 1980, § 11-7-103)

Sec. 11-7-104. Buying, selling, etc., for certain purposes prohibited.

It shall be unlawful for any person to intentionally possess, buy, sell or otherwise transfer any type of model glue for the purpose of inducing or aiding any other person to violate the provisions of sections 11-7-102 and 11-7-103.
(Code 1964, § 36-37.4; Code 1980, § 11-7-104)

Sec. 11-7-105. Sale or transfer to minors prohibited.

(a) It shall be unlawful for any person to sell or otherwise transfer possession of any type of model glue to any minor under the age of 19 years, for any purpose whatsoever, unless prior to the sale or transfer a parent or guardian shall have first given his or her written consent to such sale or transfer and such written consent shall have been signed by the parent or guardian in the presence of the person making the sale or transfer. Such written consent may be kept and maintained by the person making the sale or transfer and shall be deemed to be valid consent as required by this section for any subsequent sales or transfers to such minor for a period of six months after the giving of such written consent; provided, such written consent shall express the intent be valid for such period of time.

(b) It shall be unlawful to furnish or present such written consent which purports to be signed by a parent or guardian, which consent, or the signature signed thereto, is false in any respect.
(Code 1964, § 36-37.5; Code 1980, § 11-7-105)

Sec. 11-7-106. Sale to persons not bona fide dealers prohibited.

It shall be unlawful for any wholesaler of merchandise to sell or transfer any quantity of model glue to any person whatsoever, who is not, or does not, represent a recognized bona fide retail dealer in merchandise customarily handling such product in the ordinary course of its business at a fixed location. If any such prohibited sale is made by any wholesaler, it shall constitute prima facie evidence of an intent to violate the provisions of sections 11-7-102 and 11-7-103.
(Code 1964, § 36-37.6; Code 1980, § 11-7-106)

Sec. 11-7-107. Sales by persons not bona fide dealers prohibited.

(a) It shall be unlawful for any person, firm or corporation to engage in the retail sale of model glue unless that person, firm or corporation is a recognized bona fide retail dealer (at a fixed location) in merchandise, customarily handling such product in the ordinary course of its business.

(b) It shall be unlawful for any bona fide recognized retail dealer, as defined in subsection (a) of this section, to sell more than one tube, or other minimum sized container of model glue to any one customer within any 24-hour period; provided that the provisions of this subsection do not apply to the sale of model glue together with a hobby or model kit, and further the provisions of this subsection do not apply to the sale or transfer between a retail dealer or wholesaler and a bona fide user of such glue for industrial purposes.
(Code 1964, § 36-37.7; Code 1980, § 11-7-107)

CHAPTER 8. NUISANCES*

ARTICLE A. GENERAL PROVISIONS

Sec. 11-8-1. Prohibited generally.

No person shall cause, create or being the owner or agent in control permit any nuisance or the existence of anything likely to be prejudicial to the health or comfort of or likely to be offensive to the senses of ordinary citizens on or about any lot, street, public way, place or premises.
(Code 1980, § 11-8-1)

Sec. 11-8-2. Vacant buildings.

It shall be the duty of the owner or person in charge or control of a vacant building, house or other structure:

(1) To keep all openings into it securely closed in such manner as to exclude animals, fowl and the trespass of human beings therein; and

(2) To maintain it in a sanitary condition.
(Code 1980, § 11-8-2)

Sec. 11-8-3. Exhaust and circulating fans.

It shall be unlawful and a nuisance for any person in charge or control of any exhaust or circulating fan, in any building other than a residence, to operate or permit or allow the operation of such fan unless the blades thereof are effectively shielded from danger of contact with human beings, either by substantial metal screening with meshes not more than one-half-inch square or by the location of such blades at least eight feet above the surface of the nearest floor, or by the location of such fan in a room or compartment whereby all persons are effectively excluded except those charged with the duty of operating or maintaining such fan.
(Code 1980, § 11-8-3)

*__State law reference—__Abatement of nuisances by city, Code of Ala. 1975, §§ 6-5-122, 11-47-117, 11-47-118.

Sec. 11-8-4. Open wells or excavations.

It shall be the duty of the owner or other person in charge, possession or control of any land upon which there exists any open well, cistern, cesspool or other dangerous excavations:

(1) To securely cover or otherwise equip or provide such with appropriate safeguards in such manner as to prevent human beings, animals or fowl from falling in or otherwise having access to the same;

(2) If abandoned or not in use, to fill it to a level with the surface of the surrounding ground or securely cap, cover or otherwise obliterate the same.
(Code 1980, § 11-8-4)

State law references—Municipal authority to compel screening of wells, cisterns and other places in which water is collected where mosquitoes or other insects propagate, Code of Ala. 1975, § 11-47-140; creating a hazard, Code of Ala. 1975, § 13A-12-220.

Sec. 11-8-5. Hazardous containers.

No person shall leave outside of any building or dwelling, in a place accessible to children, any unattended, abandoned or discarded icebox, refrigerator or other similar container which has a door or lid that locks or fastens automatically when closed and cannot be easily opened from the inside without removing the door, lid or locking or fastening device.
(Code 1980, § 11-8-5)

State law reference—Similar provision, Code of Ala. 1975, § 13A-12-220.

Sec. 11-8-6. Gasoline; dispensing.

(a) It shall be unlawful for any person to operate within the city a filling or service station, garage or pump or other device for dispensing to the public gasoline or other motor fuel, except under the direct control and superintendence of the owner or one or more regularly employed attendants.

(b) It shall be unlawful for any person to permit or allow any person other than the owner of such service station or pump or device, or one or more of his or her or its regularly employed attendants, to use any hose, pump, pipe or gasoline conveying apparatus, including automatic

vending or self-service devices belonging to or operated by him or her or it in dispensing to the public gasoline or other motor fuels, except in the immediate presence of and under the direction and supervision of such owner or regularly employed attendant.
(Code 1980, § 11-8-6)

Sec. 11-8-7. Snakes and reptiles, displaying.

No person shall display, exhibit, handle or use any poisonous or dangerous snake or reptile in such a manner as to endanger the life or health of any person.
(Code 1980, § 11-8-7)

Sec. 11-8-8. Premises to be kept free of garbage, weeds, inoperable motor vehicles, tires.

(a) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Inoperable motor vehicle means a motor vehicle which is in such a state of disrepair that it is not capable of being moved safely from one location to another under its own power or which does not meet the requirements for operation upon the public street.

Residential district means the territory contiguous to and including a highway, public street or way not comprising a business district when the property on that highway, public street or way for more than 300 feet or more is primarily improved with residences and private dwellings.

Weed includes an economically useless plant: a plant of unsightly appearance; a tree or shrub of low economic value that tends to grow freely; a form of vegetable life of exuberant growth and injurious effect. Each day such condition is maintained shall constitute a separate offense.

(b) *Garbage.* It shall be unlawful for the owner or other person in charge or control of a building, lot or other premises within the city or the police jurisdiction thereof to fail to keep said lot or premises, including unenclosed porches, carports, and patios, clean and free from garbage, refuse, litter, junk, debris, salvaged materials, household furniture, trash, used motor vehicle tires (except when used as a decorative use such as a planter, or as part of recreational structure such as a tree swing, child's climbing toy or other structure in accordance to city or state laws), inoperable motor vehicles, kitchen and other household appliances, rags, paper, cardboard and other nondecorative matter, including any materials within which water may accumulate or which may shelter or encourage the growth of insects or rodents, or materials which generate obnoxious odors, or which offend the esthetics of the community and thereby cause a substantial diminution in the value of other property nearby; provided that this subsection shall not apply to a licensed business if such activity is an allowed use and the operation of the business is done in a manner which does not allow the accumulation of water within which mosquito larvae may live or encourage the growth of insects and/or rodents. Each day such condition is maintained shall constitute a separate offense.

(c) *Weeds, shrubs, other vegetable growth.* It shall be unlawful for any owner, proprietor or other person in charge or control of any lot, place or premises within the city or police jurisdiction thereof, when such lot, place or premises are not under cultivation for useful and productive purposes, to fail to keep and maintain the same free from injurious, noxious or unsightly weeds, shrubs and other vegetable or grass growth higher than ten inches.

(d) *Inoperable motor vehicles.* It shall be unlawful for any person to park, leave or store upon residential lot or premises within a residential district within the city or the police jurisdiction thereof:

(1) An inoperable motor vehicle; or

(2) More than one operable motor vehicle;

which is not currently and validly registered and tagged as required by the Code of Alabama, 1975, as it may be amended, for a longer period of time than is permitted by city or state law. Each day such condition is maintained shall constitute a separate offense.

(e) *Fines.* The minimum fine on a first offense within a 12-month period of time on a finding of guilty or a plea of guilty shall be $100.00, on a second offense within a 12-month period of time on a finding of guilty or a plea of guilty the minimum fine shall be $250.00, which first and second offenses may be resolved administratively as provided in section 8-3-10; provided, however, that upon the third offense and subsequent offense charged within a 12-month period the offender shall be required to appear in court, and, upon a finding of guilty or a plea of guilty the minimum shall be $500.00, plus court costs and/or imprisonment as provided in section 1-1-6. (Code 1980, § 11-8-8; Ord. No. 80-96, §§ 1—3, 5-20-1980; Ord. No. 84-152, 9-4-1984; Ord. No. 84-156, 9-11-1984; Ord. No. 86-111, § 1, 5-27-1986; Ord. No. 94-82, 4-6-1994; Ord. No. 94-240, 11-1-1994; Ord. No. 94-82, 4-26-1994; Ord. No. 02-38, 4-2-2002)

State law references—Municipal authority to require weeds to be cut and to do such work at the expense of the owner, Code of Ala. 1975, § 11-47-140; abatement of weeds, Code of Ala. 1975, § 45-37A-53.

Sec. 11-8-9. Prohibited parking in front yard.

(a) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Driveway means any area which is constructed for the purpose of accessing a parking space or area, and which is surfaced with concrete or asphalt, or brick, concrete or stone pavers. For the purposes of this section any driveway must connect to the public street and must include a curb cut where street curbing is present. All driveways must be permitted by the department of planning engineering and permits prior to their installation.

Front yard means any portion of a lot or parcel of land which extends its full width and lies between the edge of a public street and the front of the principal building or structure on the lot or parcel.

Motor vehicle means any motorized or electric vehicle which is required to be registered and licensed by the state in order to be driven on a public street.

Principal building means the principal dwelling house, office, or, if there is no principal dwelling house or office, that building which is closest in distance to the public street. The front of the principal building shall be all of the principal building which lies between the two corners which constitute the widest portion of that side of the principal building which faces the public street and shall include all sides of a building which face a public street where the lot or parcel either lies in a curve of the public street, or which occupies a corner bounded on two or more sides by a public street.

Registered owner means the owner of a motor vehicle as shown on the motor vehicle registration records of the state department of revenue or the analogous department or agency of another state or country.

Sidewalk means any area within the public right-of-way which is surfaced with asphalt, concrete, pavers or stone, and which is set aside and maintained by the city for the purpose of accommodating pedestrian traffic.

Variance means a lessening of the requirements of the zoning ordinance set forth in Appendix D to this Code. A variance can only be granted by the zoning board of adjustment in a public hearing.

(b) *Prohibition.* It shall be unlawful within the corporate limits of the city to:

(1) Park or place, within a residential area a motor vehicle, recreational vehicle, boat, trailer, or other type of similar wheeled conveyance, in the front yard of a residence unless it is parked on a paved and properly permitted driveway that provides access to a carport or garage that is incorporated into the main house structure; or that provides access to a parking area located entirely within the side or rear yard.

(2) Park or place, within a commercial area, a motor vehicle, recreational vehicle, boat,

trailer, or similar type of wheeled conveyance, in the front yard of a business

unless it is parked upon a properly paved and permitted parking lot or paved driveway that provides access to the same.

(3) Park a motor vehicle, recreational vehicle, boat, trailer, or other type of wheeled conveyance over any part of a curb, sidewalk, or unpaved portion of the public right-of-way.

(c) *Exceptions.*

(1) *Limited use.* For the purposes of this section, parking in the front yard, as restricted by subsection (b)(1) of this section, shall not be prohibited where the motor vehicle is parked for the limited purpose of loading, unloading, or washing. This exception shall only apply while the owner or operator of the motor vehicle is actively engaged in the said task, and in no event shall this exception apply for more than three hours in any given 24-hour period.

(2) *Emergency vehicles.* The prohibitions of this section shall not apply to authorized emergency vehicles parked while emergency personnel are engaged in answering a call or rendering assistance. Authorized emergency vehicles shall include police and fire vehicles, as well as ambulances and hearses.

(3) *Historic districts.* The provisions of this section shall not operate to allow the construction of driveways or the use of property in historic districts which conflicts with the rules and regulations governing land use in those districts.

(4) *Variance.* Locations in compliance with a variance granted by the zoning board of adjustment to allow parking in the front yard shall be deemed to be in compliance with this section.

(d) *Imposition of penalties for violations.*

(1) Any person or property owner found to have himself or herself parked, to have allowed others to be parked, or having a parked vehicle on his or her property, in violation of this section shall be subject to a fine of $50.00. Each calendar day in which a violation hereunder continues or reoccurs shall constitute a separate violation.

(2) The mayor of the city or a duly appointed designee shall be charged with the enforcement of this section. For each violation, a citation shall be posted on or near the front windshield of the motor vehicle found to be parked in violation of this section. The property owner or registered owner of the vehicle shall have 30 calendar days within which to enter a guilty plea and pay the said fine.

a. *Failure to pay fine.* If the fine is not paid within the prescribed 30 calendar days, a summons shall issue from the municipal court commanding the presence of the property owner or registered owner of the offending motor vehicle in municipal court to defend the prosecution of the said violation.

b. *Failure to appear.* If the property owner or registered owner does not appear at the time and place prescribed in the summons, and fails to enter a guilty plea and pay the fine before the said prescribed time, the municipal court may issue a warrant for the arrest of the property owner or registered owner, who may be fined up to $50.00 and held for up to five days in the municipal jail.

c. *Hearing.* A hearing shall be held by the municipal court at the time and place prescribed in the summons. Upon a determination by the municipal court that a violation has occurred, the court shall order the property owner or person found to have been operating the vehicle to pay the fine set out in subsection (d)(1) of this section. The municipal court shall have the additional authority to impose any court costs which may be allowable by state law upon a con-

viction after hearing or upon receiving a guilty plea after the issuance of the summons.

d. *Failure to pay court ordered fine and costs.* If, after the hearing, the municipal court orders the payment of the fine and/or costs set out in subsection (d)(2) of this section, and the person so ordered to pay fails to pay the said amounts, the municipal court may enforce the said order in accordance with rule 26.11 of the Alabama Rules of Criminal Procedure, as well as any other law, whether state, federal, or local which may empower the court to enforce the said order.

(3) The mayor of the city or a duly appointed designee shall have the authority to enter upon private property for the purpose of ticketing an offending vehicle found parked in violation of this section.

(Ord. No. 10-11, 2-4-2010)

Secs. 11-8-10—11-8-20. Reserved.

ARTICLE B. NOISES

Sec. 11-8-21. Illegal noises.

(a) No person shall make, continue or cause to be made or continue any noise which, because of its volume level, duration and character, either annoys, disturbs, or injures or endangers the comfort, health, peace or safety of reasonable persons of ordinary sensibilities. It shall be unlawful and a nuisance for any person to permit any such noise to be made in or upon any residence, business or other structure or upon any premises or in any vehicle owned or possessed by him or her or under his or her management or control.

(b) The provisions hereinafter contained are enacted for the purpose of preventing noise disturbances or unreasonable noise. Above certain levels or durations and during specific times of day, unreasonable noise or noise disturbance is detrimental to the health, safety and welfare of the citizenry and the individual's right to peaceful and quiet enjoyment. Therefore, it is hereby declared to be the policy of the city to prohibit noise disturbances or unreasonable noise from all sources, subject to its police power, in order to secure and promote the public health, comfort, convenience, safety, welfare, and prosperity of the citizens of the city. Nothing in this article is intended to deter individuals from lawfully exercising the individual right to freedom of speech or any other freedom guaranteed under the Constitutions of the United States of America or of the state.

(Ord. No. 98-25, § 1(11-8-21), 2-17-1998; Ord. No. 04-98, § 1(11-8-21), 9-14-2004)

Sec. 11-8-22. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Alarm means any fire, burglary, motor vehicle or civil defense alarm, whistle or similar stationary emergency signaling device.

Amplified sound means any sound that is broadcast through electronically amplified equipment or sound that is electronically enhanced.

Emergency means any occurrence or set of circumstances involving actual or immediate physical trauma or property damage demanding immediate attention.

Emergency vehicle means a motor vehicle belonging to the fire and rescue service of the city, a vehicle utilized by emergency medical technicians of the fire and rescue service department, an ambulance, a motor vehicle belonging to any authorized police department or motor vehicle belonging to federal, state or municipal law enforcement agency; provided said vehicles are in use as an emergency vehicle by one authorized to use said vehicle for that purpose.

Emergency work means repair or maintenance activities necessary to restore property to a safe condition from eminent public calamity or work required to protect persons or property from eminent exposure to danger.

Motor vehicle means a two or more wheeled vehicle, or machine, propelled or drawn by me-

chanical power and used on the public roads and highways in the transportation of passengers or property; or any combination thereof, which is required to be licensed, but does not include any vehicle, locomotive, or car operated exclusively on rail or rails.

Noise sensitive area means an area within 500 feet from where a school, hospital, nursing home, church, court, or public library is located.

Person means any individual, association, partnership, or corporation and includes any officer, employee, department, agency, or instrumentality of the United States.

Plainly audible means any prohibited sound, as defined by section 11-8-23, prohibited acts, from a vehicle, building, structure or open space which clearly can be heard at a distance of ten feet or more from the vehicle or 50 feet from the building, structure or open space, which either annoys, disturbs, or injures or endangers the comfort, health, peace or safety of reasonable persons of ordinary sensibilities. The distance measured shall be the actual distance between buildings if less than 50 feet in residentially zoned districts. Measurement standards shall be by the auditory senses, based upon direct line of sight. Words or phrases need not be discernable and bass reverberations are included.

Public right-of-way means any street, avenue, boulevard, highway, sidewalk, alley or similar place normally accessible to the public which is owned or controlled by a government entity.

Real property line means a line along the surface, and its vertical plane extension, which separates the real property owned, rented, or leased by one person from that owned, rented, or leased by another person, excluding intra-building real property division.

Residentially zoned district means any area designated as E-1, R-1, R-2, R-3, R-4, R-4A, R-5, R-6, R-7, or R-8 zoning according to the city zoning district map.

Sound amplification system means any radio, tape player, compact disc player, loudspeaker or other electronic device used for the amplification of sound.

(Ord. No. 98-25, § 1(11-8-22), 2-17-1998; Ord. No. 02-47, § 1(11-8-22), 4-30-2002; Ord. No. 04-98, § 1(11-8-22), 9-14-2004)

Sec. 11-8-23. Prohibited acts.

The following acts, and the causing thereof, in a manner to either annoy, disturb, or injure or endanger the comfort, health, peace or safety of reasonable persons of ordinary sensibilities are declared to be in violation of this article; but such enumeration shall not be deemed to be exclusive:

(1) *Horns, signaling devices, etc.*

a. The sounding of any horn, electronic alarm, or other signal device on any automobile, motorcycle, bus or other motor vehicle for more than 30 seconds constantly, except as a danger warning when and as required by ordinances of the city or by the Code of Alabama;

b. The creation by means of any such signaling device of any unreasonable, loud or harsh sound;

c. The sounding of such signaling device for an unnecessary or unreasonable period of time;

d. The sounding of such signaling device when traffic is held up for any reason;

e. The use of any signaling device except one operated by hand or by electricity;

f. The use of any horn, whistle or other device operated by engine exhaust.

(2) *Animals, birds, etc.* The owning, possessing, harboring, or keeping of any animal or bird which, by causing frequent or long-continued duration, howls, barks, squawks, or makes other sounds or noise, creates excessive and unnecessary noise across a residential or commercial real property line or within a noise sensitive area. For the purposes of this section, the term "barking dog" means a dog that barks, bays, cries, howls, or makes other noise continuously and/or incessantly for a period of ten minutes, or barks intermittently for one-half hour or more which disturbs the comfort or repose of persons of ordinary sensibilities in the vicinity.

(3) *Stationary nonemergency signaling devices.* Sounding or permitting the sounding of any signal from any stationary bell, chime, siren, whistle or similar device intended primarily for nonemergency purposes, from any place, for more than one minute in any hourly period.

(4) *Exhausts.* The discharge into the open air of the exhaust of any steam engine, stationary internal combustion engine or any motor boat, or motor vehicle except through a muffler or other device which will effectively prevent loud or explosive noises therefrom and which device shall be in good working order and in constant operation.

(5) *Street sales.* Offering for sale or selling anything by shouting or outcry in a manner to either annoy, disturb, or injure or endanger the comfort, health, peace or safety of reasonable persons of ordinary sensibilities within any residential or commercial area of the city, except in a stadium or sports arena.

(6) *Fireworks.* The explosion of firecrackers, skyrockets, Roman candles, pinwheels, or any other form of fireworks, except the display of fireworks in public parks or other open places within the city under a permit issued by the fire marshal, pursuant to the fire prevention code of the city.

(7) *Loudspeakers, amplifiers, etc., for commercial advertising purposes.* The use, operation or permitting the use or operation of any drum, bell, horn, musical instrument, phonograph, loudspeaker, amplifier, public address system, or other instrument or device for production or reproduction of sound which cases sound which is audible more than 50 feet from across a real property line or more than ten feet from a vehicle for the purpose of, or intending to attract attention to any building, structure, performance, show, sale, or display of merchandise, or for any other commercial advertising purpose, in a manner to either annoy, disturb, or injure or endanger the comfort, health, peace or safety of reasonable persons of ordinary sensibilities.

(8) *Sound amplification systems, television sets, musical instruments, etc.* Operating, playing or permitting the playing of any sound amplification systems, television sets, musical instruments, radio, phonograph, sound amplifier or similar device which produces, reproduces sounds in such a manner as to either annoy, disturb, or injure or endanger the comfort, health, peace or safety of reasonable persons of ordinary sensibilities residing or working in the area is hereby declared a nuisance.

a. The operation of any such machine or device in such manner as to be plainly audible at a distance of 50 feet from the building or structure or from the source of the sound in open yard, or to be plainly audible within the nearest building if such structure is nearer than 50 feet to the source of the sound shall be prima facie evidence of a violation of this section.

b. The operation of any such machine or device in such manner as to be plainly audible at a distance of ten feet from any motor vehicle in which it is located, or from any pedestrian operating such device, or to be plainly audible within the nearest building if such structure is nearer than 50 feet to the source of the sound, shall be prima facie evidence of a violation of this section. The motor vehicle may be stopped, standing, parked or moving on a public right-of-way, a park, parking lot or driveway on either public or private property.

c. The operation of any such device by a passenger on a common carrier without the use of an external ear plug speaker, the effect of which is to make the sound audible only to the person operating such device.

d. The provisions of this section shall not apply to activities permitted pursuant to section 12-5-22, when conducted between the hours of 8:00 a.m. and 10:00 p.m. when within 50 feet of a residentially zoned district.

(9) *Yelling, shouting, etc.* Yelling, shouting, hooting, whistling, or singing on the public streets, particularly between the hours of 10:00 p.m. and 7:00 a.m., or at any time or place so as to annoy or disturb the quiet, comfort, or repose of reasonable persons of ordinary sensibilities in any residence, hotel or other lodging facility, or in an office.

(10) *Defect in vehicle or load.* The use or operation of any automobile, motorcycle, or other vehicle which, by its physical state of repair, or by the manner in which it is loaded creates loud and unnecessary grating, grinding, rattling, roaring or other loud and unnecessary noise.

(11) *Refuse collection vehicles.* Operating or permitting the operation of:

a. Any vehicle for collection and hauling of refuse between the hours of 10:00 p.m. and 7:00 a.m. in or within 500 feet of a residentially zoned district.

b. The compacting mechanism of any motor vehicle which compacts refuse between the hours of 10:00 p.m. and 7:00 a.m. in or within 500 feet of a residentially zoned district.

City crews and equipment used to provide necessary safety and sanitation services shall be exempted from the operation of this provision.

(12) *Loading and unloading.*

a. Loading, unloading, opening, closing, destruction or other handling of boxes, crates, containers, building materials, garbage cans, or other similar objects between the hours of 10:00 p.m. and 7:00 a.m. in or within 500 feet of a residentially zoned district.

b. City crews and equipment used to provide necessary safety and sanitation services shall be exempted from the operation of this provision.

(13) *Emergency signaling devices.* Sounding or permitting the sounding of any exterior burglar alarm or any motor vehicle burglar alarm unless such alarm is automatically terminated within 15 minutes of activation unless there has been an attempted or actual entry of the premises or vehicle.

(14) *Domestic power tools.* Operating or permitting the operation out of doors of any mechanically powered saw, grinder, lawn or garden tool or similar device between the hours of 10:00 p.m. and 7:00 a.m. in a residentially zoned district.

(15) *Construction.*

a. Any and all activity incidental to the erection, demolition, assembling, altering, repairing, installing, or equipping of buildings, structure, roads, or appurtenances thereto, including and clearing, grading, excavating and filling between the hours of 10:00 p.m. and 7:00 a.m. within 500 feet of any residentially zoned district, except that the traffic engineer may allow such work during the hours between 10:00 p.m. and 7:00 a.m. whenever traffic conditions prevent the activity during other times of the day.

b. Emergency repair or maintenance of public roads and highways, parks, sewers, water, gas, electric, or telephone systems at any time or any such private construction necessary to restore property to a safe condition from eminent public calamity or work required to protect persons or property from eminent exposure to danger shall be exempted from the operation of this provision.

(16) *Noises near schools, courts, churches or hospitals.* The creation of any excessive noise within 500 feet of any school, insti-

tution of learning, church or court while the same is in use, or adjacent to any hospital, nursing home or similar facility which unreasonably interferes with the workings of such institutions or which disturbs or unduly annoys patients in such institution, provided that conspicuous signs are displayed in such streets indicating that the same is a school, hospital, church, or court street.

(Ord. No. 98-25, § 1(11-8-23), 2-17-1998; Ord. No. 02-47, § 1(11-8-23), 4-30-2002; Ord. No. 04-98, § 1(11-8-23), 9-14-2004)

Sec. 11-8-24. Determining circumstances.

Among circumstances which may be considered in determining whether a noise is unlawful and a nuisance include, but are not limited to the following:

(1) Volume of the noise;

(2) Intensity of the noise;

(3) Whether the nature of the noise is usual or unusual for the time and place;

(4) Whether the origin of the noise is natural or unnatural;

(5) The volume and intensity of the background noise, if any;

(6) The proximity of the noise to sleeping facilities;

(7) The nature and the zoning of the area from which the noise emanates;

(8) The density of inhabitation of the area from which the noise emanates;

(9) Time of day or night in which the noise occurs;

(10) Duration of the noise;

(11) Whether the noise is recurrent, intermittent, or constant;

(12) Whether the noise is produced by commercial or noncommercial activity.

(Ord. No. 98-25, § 1(11-8-24), 2-17-1998; Ord. No. 04-98, § 1(11-8-24), 9-14-2004)

Sec. 11-8-25. Exemptions.

The provisions of this article shall not apply to:

(1) The emission of sound by public safety vehicles, emergency signaling devices, or authorized public safety personnel for the purpose of alerting persons to the existence of an emergency;

(2) The emission of sound in the performance of emergency work;

(3) Noise resulting from the operation of the Birmingham International Airport;

(4) Noise generated from demonstrations, special events, races or runs permitted as required by section 12-5-22, provided that said demonstration, special event, race or run shall be conducted in a manner to avoid the creation of excessive, unreasonable or disturbing noise within 500 feet of any school, institution of learning, church or court while the same is in use, or adjacent to any hospital, nursing home or similar facility, so as to unreasonably or unduly disturb the workings of such institutions and that such event is conducted only between the hours of 8:00 a.m. and 10:00 p.m. when within 50 feet of a residentially zoned district;

(5) Sound generated by amplified and unamplified bells and chimes on schools, places of worship, public buildings and other places of assembly;

(6) Attendant on-site noise connected with the actual performance of organized sporting events on school campuses and in publicly or privately owned parks, stadiums, arenas, tracks or other similar facilities;

(7) Noises resulting from any practice or performance sponsored by or associated with the educational process administered by a recognized institution of learning, including, but not limited to band, choir and orchestral performances;

(8) Human sounds emanating from children 12 years of age or under, including but not

limited to speech and utterances of laughter, cries and sounds associated with play; and

(9) Sound generated from the use of a public address system at a business for communication necessary to the operation of the business, but not for the purpose of intending to attract attention to any building, structure, performance, show, sale, or display of merchandise, or for any other commercial advertising purpose.

(Ord. No. 98-25, § 1(11-8-25), 2-17-1998; Ord. No. 04-98, § 1(11-8-25), 9-14-2004)

Secs. 11-8-26—11-8-40. Reserved.

ARTICLE C. LOST, STOLEN OR ABANDONED AUTOMOBILES*

Sec. 11-8-41. Leaving on private property prohibited; impoundment.

Lost, stolen or abandoned automobiles, and other motor vehicles left upon private parking lots, private parking areas and other private land are hereby declared to be health and safety hazards and public nuisances and any police officer of the city, after being advised by or on behalf of the chief of police that the requirements of section 11-8-43 have been complied with, is hereby authorized to cause any such automobile or other motor vehicle to be removed to, and impounded in the depository provided by the city and for such purpose, all under the provisions of this article.

(Code 1964, § 35-15; Code 1980, § 11-8-41)

Sec. 11-8-42. Owner of property may request impoundment.

The owner, lessee or other person in possession, charge or control of a private parking lot, private parking area or other private land upon which a lost, stolen or abandoned automobile has been left and remained thereon for not less than ten consecutive days, and after making a reasonable effort to locate the owner thereof and being unsuccessful in such effort may request in writing the chief of police of the city to cause the same to be removed to, and impounded in the depository provided by the city for such purpose provided such owner, lessee or other person complies with section 11-8-43.

(Code 1964, § 35-16; Code 1980, § 11-8-42)

Sec. 11-8-43. Information required for removal.

Upon receipt of a request under the provisions of section 11-8-42, the chief of police shall authorize such automobile or motor vehicle to be removed to and impounded in such depository; provided that he or she first obtains from such owner, lessee or other such person the following:

(1) The sum of $40.00 to defray the expenses of the city in connection with such impoundment, which sum shall be remitted to the director of finance for the city.

(2) An affidavit executed by the owner, lessee or other person in possession, charge or control of the private parking lot, private parking area or other private land setting out the following facts:

a. The number of consecutive days such lost, stolen or abandoned automobile or other motor vehicle has remained upon that private parking lot, private parking area or other private land giving the dates thereof;

b. A description of the effort made by such person to locate the owner of such automobile or other motor vehicle; and

c. A description of such vehicle giving its make, model and year and such other information as will reasonably describe the vehicle.

(Code 1964, § 24-17; Code 1980, § 11-8-43)

Sec. 11-8-44. Chief of police to give report to officers; notification of owner of vehicle.

The chief of police shall also cause a report of every automobile or motor vehicle impounded under the provisions of this article to be given to the police officers assigned to the recovery of

*__State law reference__—Abatement of inoperable motor vehicles on private property in Class 1 municipalities, Code of Ala. 1975, § 11-67A-1 et seq.

stolen automobiles and a reasonable effort shall be made to locate and notify the owner of such automobile or motor vehicle.
(Code 1964, § 35-18; Code 1980, § 11-8-44)

Sec. 11-8-45. Authority of persons to remove and store vehicles.

Where a contract exists between the city and any person, firm or corporation under the terms of which that person agrees to haul and store vehicles for the city in a depository provided for in such contract, that person, firm or corporation and his or her or its employees, servants or agents, when requested by any police officer of the city to so haul and store any automobile or other motor vehicle under the provisions of this article, shall have the authority to haul or store the vehicle as requested by the officer.
(Code 1964, § 35-19; Code 1980, § 11-8-45)

Sec. 11-8-46. Procedure for reclaiming vehicle.

Any owner or person entitled to possession of an automobile or motor vehicle impounded under this article may claim the same at any time before sale thereof by filing a written claim thereto with the chief of police, upon a form to be provided by the chief of police, and if the chief of police is satisfied that the claimant is the owner or entitled to possession of the vehicle, he or she shall notify the director of finance to cause the same to be released to the claimant upon payment of proper charges. Upon the notification, the director of finance shall cause same to be released to the claimant upon payment of the charges.
(Code 1964, § 35-20; Code 1980, § 11-8-46)

Sec. 11-8-47. Payment of charges required for release.

The city shall have a lien upon each automobile or motor vehicle impounded under the provisions of this article in the same amount and to the same extent as if the automobile or motor vehicle were impounded under chapter 14 of title 10 of this Code, and in the amount set by section 10-14-6. No vehicle shall be released to any claimant prior to sale thereof, unless the proper charge is paid.
(Code 1964, § 24-21; Code 1980, § 11-8-47)

Sec. 11-8-48. Sale of vehicles; proceeds of sale to be paid to owner of vehicle.

(a) When any such automobile or motor vehicle shall have remained in the depository for as long as 45 days from the date of its reception therein, and no claim for such vehicle shall have been made within such period, the city purchasing agent shall give five days' notice of the time, place and terms of sale of such vehicle, together with a brief description thereof, by make, type and motor number, if any, by one publication in a newspaper published in the city; and if no claim thereto shall have been made prior to the advertised time of sale, he or she shall sell the same at such advertised time and place of sale to the highest bidder for cash.

(b) The money received at such sale shall be immediately paid into the treasury of the city and, upon demand made by the erstwhile owner of the vehicle at any time within 90 days from the date of receipt of such money in such treasury, the excess of the amount received, over and above the hauling and storage charges prescribed in section 11-8-47 and the cost of advertisement of sale, shall be paid to the owner.
(Code 1964, § 35-22; Code 1980, § 11-8-48)

Sec. 11-8-49. Complaints; hearing.

It shall be the duty of every person who may not know the whereabouts of an automobile or other motor vehicle owned by him or her, or to which he or she may have the right of possession, to take notice that the vehicle may be in the custody of the city, or its depository, pursuant to the terms of this article and that he or she may inquire of the chief of police whether it is in such custody. Any such person who may thus or otherwise ascertain that the vehicle is in such custody, and who may believe that it has been impounded for a cause not authorized by this article or other provision of law may, if he or she desires to escape payment of the aforesaid charges, present a complaint, in duplicate, to the municipal judge of the city at any time prior to sale of the vehicle, averring that he or she is the owner or entitled to possession of the vehicle, describing it, that it is in the custody of the city or its depository and that

the same was impounded for a cause not authorized by this article or other provision of law. Upon presentation of such complaint, in duplicate, the municipal judge shall immediately set same down for hearing on a day not less than one nor more than three after presentation, and shall cause one of such duplicates, with time of hearing noted thereon, to be delivered to the chief of police. The municipal judge may continue the hearing from time to time as may be proper. If, upon the hearing, the complaint should be sustained, the municipal judge shall render judgment that the vehicle be forthwith released to the complainant without payment of any impounding, to be so released. If, on the other hand, the complaint should not be sustained, the municipal judge shall enter judgment dismissing same and assessing costs of $3.00 against the complainant, to be collected before release of the vehicle to the complainant, in addition to the charges prescribed in section 11-8-47.
(Code 1964, § 35-23; Code 1980, § 11-8-49)

Sec. 11-8-50. Provisions of article cumulative.

The provisions of this article are cumulative and shall not be held to limit or restrict any right or authority which the city or any owner, lessee or other person in possession, charge or control of a private parking lot, private parking area or other private land upon which a lost, stolen or abandoned automobile or other motor vehicle is left, may have in such regard by reason of any other provision of law or authority.
(Code 1964, § 35-24; Code 1980, § 11-8-50)

Secs. 11-8-51—11-8-60. Reserved.

ARTICLE D. REMOVAL AND STORAGE OF PERSONAL PROPERTY FOUND IN CONDEMNED BUILDINGS OR STRUCTURES

Sec. 11-8-61. Authorization.

Whenever the director of buildings and inspections of the city shall find in any building or structure that the council has directed to be demolished as a public nuisance, personal property having a total value in his or her judgment of $150.00 or more, such director shall have authority to cause the same to be removed and stored for the protection of such property, as hereinafter provided.
(Code 1964, § 35-25; Code 1980, § 11-8-61)

Sec. 11-8-62. Written notice to last assessor of property.

Prior to removal of such property the director shall give the person or persons last assessing the property for state taxes not less than 15 days' written notice by registered or certified mail, return receipt requested, to remove such property from the building or structure or suffer the same to be removed and stored by the city. Such notice shall also state that after the expiration of 60 days from the date of storage, the property will be offered at public sale for the payment of accumulated hauling and storage charges. The mailing of such registered or certified mail notice, properly addressed and postage prepaid, shall constitute notice as required herein.
(Code 1964, § 35-26; Code 1980, § 11-8-62)

Sec. 11-8-63. Use of private contractor or public facilities.

Such property may be hauled and stored by private contractor or by available city employees utilizing city facilities designated for such purpose.
(Code 1964, § 35-27; Code 1980, § 11-8-63)

Sec. 11-8-64. Claiming stored property prior to sale.

Any owner or person entitled to possession of such stored property may claim the same at any time before sale thereof by filing a written claim with the director of buildings and inspections, upon a form to be provided by the director, and if the director of buildings and inspections is satisfied that the claimant is the owner or entitled to possession of the property he or she shall cause the same to be released to the claimant upon payment of the accrued hauling and storage charges. The city shall have a lien upon such property until the proper charges are paid.
(Code 1964, § 35-28; Code 1980, § 11-8-64)

Sec. 11-8-65. Sale of property.

When any property shall have remained in storage for so long as 60 days and no claim and payment of accrued charges shall have been made within such period, the city purchasing agent shall give five days' notice of the time, place and terms of sale of such property, together with a brief description thereof by one publication in a newspaper published in the city; and if no claim and payment of accrued charges thereto shall have been made prior to the advertised time of sale, he or she shall sell the same at the advertised time and place of sale to the highest bidder for cash.
(Code 1964, § 35-29; Code 1980, § 11-8-65)

Sec. 11-8-66. Proceeds of sale.

The money received at such sale shall be immediately paid into the city treasury, and upon demand made by the erstwhile owner of such property at any time within 90 days from the date of such sale, the excess amount of money received, over and above the accrued hauling and storage charges and the cost of advertisement of sale, shall be paid to such owner.
(Code 1964, § 35-30; Code 1980, § 11-8-66)

Secs. 11-8-67—11-8-70. Reserved.

ARTICLE E. INOPERABLE MOTOR VEHICLES ON PRIVATE PROPERTY*

Sec. 11-8-71. Declared nuisance.

Any inoperable motor vehicle parked upon a place, in a manner or for a length of time prohibited by this Code or any other ordinance or regulation of the city is, if unoccupied, hereby declared to be a public nuisance.
(Ord. No. 02-130, § 11-8-71, 9-10-2002)

*__State law reference—__Abatement of inoperable motor vehicles in Class 1 municipalities, Code of Ala. 1975, § 11-67A-1 et seq.

Sec. 11-8-72. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Inoperable motor vehicle means any motor vehicle, trailer, or semitrailer that has remained on private property and in view of the general public for 30 days and is inoperable in that one or more of its major mechanical components, including, but not limited to, the engine, transmission, drive train, or wheels, are missing or are not functional, or the vehicle otherwise constitutes a nuisance. An inoperable motor vehicle shall not be deemed a nuisance if the motor vehicle which has been rendered temporarily incapable of being driven under its own motor power in order to perform ordinary service or repair operations for a period not greater than 60 days, or if the motor vehicle is on the premises of a place of business engaged in the wrecking or junking of motor vehicles, or primarily engaged in the storage and sale of damaged or theft-recovered vehicles for insurers, or if the motor vehicle is kept in an enclosed building completely shielded from the view of individuals on the adjoining properties.

Person means any person, firm, partnership, corporation, association, company or organization of any kind.

Property means any real property within the city.

Vehicle means a machine propelled by power other than human power designated to travel along the ground by use of wheels, treads, runners, or slides and shall include, without limitation, automobile, truck, trailer, motorcycle, tractor, buggy and wagon.
(Ord. No. 02-130, § 11-8-72, 9-10-2002)

Sec. 11-8-73. Notice.

Whenever any representative, including but not limited to the city's police chief or any member of his or her department designated by him or her, who is charged with the responsibility of enforcement of this article shall find an inoperable motor vehicle as is defined herein, the representative shall cause a notice to be placed on the vehicle

and a written notice to be attempted to be delivered by registered mail, with a five-day return receipt requested, to the property owner of record as evidenced by the records of the tax assessor of Jefferson County, upon whose property the vehicle is found, and in cases where the vehicle is in such a condition that identification numbers are available to determine ownership, to the last registered owner of record of the vehicle and to any secured party or other holder of a recorded or registered security interest or lien on the motor vehicle; that the vehicle is determined to be a public nuisance and that the owner of the vehicle, then is given ten days from the date the notice is received in which to cause the vehicle to be removed from said property and if the vehicle is not removed within that period of time the city will cause its removal and all expenses incurred thereby will be assessed against the registered owner of the vehicle if the identity of the owner can be determined, or the costs may be assessed against the owner of the property on which the vehicle is located. The notice shall further provide that a hearing before the city council on the question of abatement and removal of the inoperable motor vehicle as a public nuisance may be requested by the owner of the vehicle, any secured party or the property owner within the ten-day period.
(Ord. No. 02-130, § 11-8-73, 9-10-2002)

Sec. 11-8-74. Request for hearing.

If a request for a hearing is received within the ten day period the matter shall be placed on the agenda of the city council at the next regularly scheduled meeting subsequent to the receipt of the request. A notice giving the time, location, and date of the hearing on the question of abatement and removal of the inoperable motor vehicle as a public nuisance shall be mailed by certified mail, with a return receipt requested to the owner of the land as shown on the last equalized assessment roll, to the last registered and legal owner of record of the vehicle, and to any registered or recorded secured party or lienholder unless the vehicle is in such a condition that identification numbers are not available to determine ownership.
(Ord. No. 02-130, § 11-8-74, 9-10-2002)

Sec. 11-8-75. Public hearing.

(a) The owner of the land on which the vehicle is located may appear in person at the hearing or present a written statement in time for consideration at the hearing, and deny responsibility for the presence of the vehicle on the land or otherwise show the owner's plans to abate the nuisance. No cost of the administration or removal of the vehicle against the landowner shall be assessed if it is determined at the hearing that the vehicle was placed on the land without the consent of the landowner and that the landowner has not subsequently acquiesced to its presence.

(b) The registered owner of the vehicle may appear in person at the hearing and present any reason why such vehicle should not be determined to be a public nuisance, why removal should not occur or why the cost of abatement should not be assessed against said owner, or may present a plan for abatement of said vehicle within a set period of time.

(c) Any secured party may appear and present a plan for removal of the vehicle or may present reasons why the vehicle should not be removed and sold by the city.

(d) The council shall consider the information presented at the meeting at which it is presented unless the council by majority vote of the councilors present and voting shall affirmatively find that the information or evidence submitted raises issues which require additional investigation, in which case the matter may be passed to a meeting no later than the second regularly scheduled meeting subsequent to the meeting at which the matter is initially presented, at which time the council shall act on the matter. The council may:

(1) Deny any requested relief and order the abatement of the vehicle and its disposal to proceed.

(2) Declare that property owner on whose property the vehicle is located is not responsible for the vehicle due to the vehicle having been placed on the land without the consent of the landowner and that the landowner has not subsequently acquiesced in its presence.

(3) Determine that the vehicle is not a public nuisance and that removal is not required.

(4) Accept an adequate plan for removal of the vehicle presented by the property owner or owner of the vehicle, set a date certain by which time the vehicle shall be removed and direct that in the event the vehicle is not removed by the date set, the vehicle shall be immediately abated by the city and all costs assessed against the party presenting the plan for removal.

(Ord. No. 02-130, § 11-8-75, 9-10-2002)

Sec. 11-8-76. List of providers of vehicle removal services.

The city will maintain a list of names of persons or private contractors, or both, who perform vehicle removal services. Any company or individual providing such service may request to be added to this list. The city will not recommend any particular individual or company but will, upon request of the registered owner of the vehicle, secured party or property owner, provide them with a copy of the list. The registered owner of the vehicle, secured party or property owner shall not be required to utilize the services of any company or individual listed, but may use any lawful means to cause the removal of the vehicle and may utilize the services of any individual or company for said removal.

(Ord. No. 02-130, § 11-8-76, 9-10-2002)

Sec. 11-8-77. Removal by registered owner, secured party or property owner.

The registered owner of the vehicle, any secured party or the owner of the land on which the vehicle is located may remove the vehicle at such person's own expense at any time prior to the removal of the vehicle by the city.

(Ord. No. 02-130, § 11-8-77, 9-10-2002)

Sec. 11-8-78. Removal by city.

At the conclusion of ten days from the date the final return receipt is received under the provisions of section 11-8-73, if the vehicle has not been removed by the owner of the property, the owner of the vehicle or the holder of the security interest, and if a request for hearing before the city council has not been made, then the city shall cause the vehicle to be removed. If request is made pursuant to that notice for a hearing before the city council and the city council determines that the vehicle is a public nuisance and that removal should proceed, and the property owner, vehicle owner or holder of the security interest has not removed the vehicle within five days from the date of the decision of the city council, then the city shall cause the vehicle to be removed. If a plan for removal of the vehicle had been presented to the city council and accepted and removal has not been accomplished by the date set, then the city shall cause the immediate removal of the vehicle.

(Ord. No. 02-130, § 11-8-78, 9-10-2002)

Sec. 11-8-79. Disposal of vehicles.

Inoperable motor vehicles removed by the city may be disposed of by sealed bid or auction whichever method shall, in the opinion of the city purchasing agent shall be in the best interests of the city. The sale of the abandoned motor vehicle shall be subject to the rights of any secured party or other holder of a recorded or registered security interest or lien on the motor vehicle, which has requested a hearing and verified the existence of the security interest or lien within the time permitted by the procedure. The proceeds of any such sale shall first be applied toward the payment of any and all expenses incurred by the city pursuant to the implementation of this article.

(Ord. No. 02-130, § 11-8-79, 9-10-2002)

Sec. 11-8-80. Assessment of costs.

At the conclusion of the removal process and after sale of any such vehicle has been made, all costs incurred by the city in the implementation of this provision of this Code which have not been offset by proceeds of the sale of the vehicle will be assessed against the registered owner of the vehicle if the identity of the owner can be determined or the costs may be assessed against the property owner on whose property the vehicle was located unless said property owner shall have requested a hearing as herein provided and shall have presented to the city council evidence suffi-

cient for the council to determine that the vehicle was placed on the property without the consent of the landowner and that the landowner has not subsequently acquiesced in its presence on the property.
(Ord. No. 02-130, § 11-8-80, 9-10-2002)

Sec. 11-8-81. Notice to the department of revenue.

The city shall notify the department of revenue of the sale or disposition of the inoperable motor vehicle on a form supplied by the department of revenue.
(Ord. No. 02-130, § 11-8-81, 9-10-2002)

CHAPTER 9. MISCELLANEOUS OFFENSES

Sec. 11-9-1. Aiding and abetting violations of code, state law, etc.

It shall be unlawful for any person to incite or aid or abet in the violation of any provision of this Code or other ordinance of the city, or any provision of state law, the violation of which is a misdemeanor or violation.
(Code 1980, § 11-9-1)

State law reference—Similar provision, Code of Ala. 1975, § 13A-2-23.

Secs. 11-9-2—11-9-4. Reserved.

Sec. 11-9-5. Bribery to commit crime or offense.

No person shall give, offer or promise anything of value to another person with intent to induce or influence such person to commit any crime or offense punishable as a misdemeanor or violation.
(Code 1980, § 11-9-5)

Sec. 11-9-6. Marathon dances, walkathons, endurance contests.

(a) It shall be unlawful for any person to promote, advertise or conduct any marathon dance contest, walkathon contest or any endurance contest of walking, dancing, riding, running or tree or pole sitting that continues or is intended to continue for a period of more than eight consecutive hours whether or not an admission is charged or a prize awarded.

(b) It shall be unlawful for any person to participate in any such contest by walking, dancing, riding or running or tree or pole sitting.

(c) It shall be unlawful for any person to participate in more than one endurance contest or performance within any 48-hour period.
(Code 1980, § 11-9-6)

Sec. 11-9-7. Wirewalking or building climbing.

It shall be unlawful for any person to engage in any exhibition of wirewalking or building climbing in view of any public street.
(Code 1980, § 11-9-7)

Sec. 11-9-8. Fortunetelling.

It shall be unlawful for any person to profess or attempt to:

(1) Tell fortunes;

(2) Locate lost or stolen articles; or

(3) Ascertain the past, present or future condition or fortune of any person;

by means of cards, mesmerism, clairvoyance, trance, spiritualism, phrenology, palmistry or by any other device for a fee, reward, compensation or to receive a fee, reward or compensation in connection with such acts or practices.
(Code 1980, § 11-9-8)

Sec. 11-9-9. Prohibited acts at fields, stadiums, theatres, etc.

(a) It shall be unlawful for any person to throw or cause to be thrown any bottle, cushion, paper, magazine, food, beverage or other article in or from the stands or seats in any athletic field, stadium, auditorium, hall, theatre or coliseum.

(b) It shall be unlawful for any person occupying a seat at any athletic field, stadium, auditorium, hall, theatre or coliseum at or during any event, contest, performance or exhibition for which admission is charged to refuse to vacate such seat after having been requested to move by an usher

or police officer unless such person has in his or her possession and exhibits to the usher or police officer a ticket or stub entitling him or her to occupy that seat.

(c) It shall be unlawful for any person to sit or stand in any aisle in any athletic field, stadium, auditorium, hall, theatre or coliseum during any event, contest, performance or exhibition.

(d) It shall be unlawful for any person to enter any back stage dressing room, press box, or other area not open to the general public in any athletic field, stadium, auditorium, hall, theatre or coliseum at or during any event, contest, performance or exhibition without having been granted permission by authorized personnel.
(Code 1980, § 11-9-9)

Sec. 11-9-10. Smoking in public places and places of employment.

(a) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Bar means an establishment that is devoted to the serving of alcoholic beverages for consumption by guests on the premises and in which the serving of food is only incidental to the consumption of those beverages, including but not limited to, taverns, nightclubs, cocktail lounges, and cabarets.

Business means a sole proprietorship, partnership, joint venture, corporation, or other business entity, either for-profit or not-for-profit, including retail establishments where goods or services are sold; professional corporations and other entities where legal, medical, dental, engineering, architectural, or other professional services are delivered; and private clubs.

Cigar bar means a licensed establishment in which the primary activity is the sale, manufacture or promotion of cigars or cigar accessories and in which the sale of other products is merely incidental.

Common area means a hallway, corridor, lobby, aisle, water fountain area, restroom, stairwell, interior and/or exterior general public entryway or exit, refreshment area or restroom.

E-cigarette means any electronic oral device, such as one composed of a heating element, battery, and/or electronic circuit, which provides a vapor of nicotine or any other substances, and the use or inhalation of which simulates smoking. The term "e-cigarette" includes any such device, whether manufactured, distributed, marketed, or sold as an e-cigarette, e-cigar, e-pipe, or under any other product name or descriptor.

Employee means a person who works for an employer, whether in consideration for direct or indirect monetary wages or profit, or as a volunteer.

Employer means a person, association, trust, or a business, including a municipal corporation, with one or more employees.

Enclosed area means all space between a floor and a ceiling that is bounded on at least two sides by walls, doorways, or windows, whether open or closed. The term "wall" includes any retractable divider, garage door or other physical barrier, whether temporary or permanent and whether or not containing openings of any kind.

Flow line means the face of the curb and gutter, or if no curb and gutter, the edge of the pavement.

Health care facility means an office or institution providing care or treatment of diseases, whether physical, mental, or emotional, or other medical, physiological, or psychological conditions, including but not limited to, hospitals, rehabilitation hospitals or other clinics, including weight control clinics, nursing homes, long-term care facilities, homes for the aging or chronically ill, laboratories, and offices of surgeons, chiropractors, physical therapists, physicians, psychiatrists, dentists, and all specialists within these professions. The term "health care facility" includes all waiting rooms, hallways, private rooms, semiprivate rooms, and wards within health care facilities.

Hookah bar.

(1) The term "hookah bar" means an establishment that is a bar as defined above, whose business is devoted to the serving of shisha products, and which serves only complimentary snacks. The hookah bar contains no kitchen facilities and has no access to kitchen facilities, catering, or food, other than the complimentary snacks. A hookah bar devotes a minimum of ten percent of net floor space to the display, storage and sale of actual tobacco products, and does not permit the on-premises use of tobacco products not purchased on the premises. A hookah bar must contain a functioning walk-in commercial grade humidor with a minimum interior area of not less than 100 square feet and a smoke evacuation system adequate to ensure that smoke from its premises does not infiltrate into areas where smoking is prohibited. The system must be separate from the establishment's HVAC system, vent to the exterior, and be approved by the city building department as having adequate capacity. No patron under the age of 21 is allowed in a hookah bar.

(2) The term "hookah bar" does not include a department or section of a larger commercial establishment.

Place of employment means an area under the control of a public or private employer, including, but not limited to, work areas, private offices, employee lounges, restrooms, conference rooms, meeting rooms, classrooms, employee cafeterias, hallways, construction sites, temporary offices, and vehicles. A private residence is not a place of employment unless it is used as a child care, adult day care or health care facility.

Private club means an organization, whether incorporated or not, which is the owner, lessee, or occupant of a building or portion thereof used exclusively for club purposes at all times, which is operated solely for a recreational, fraternal, social, patriotic, political, benevolent, or athletic purpose, but not for pecuniary gain, and which only sells alcoholic beverages incidental to its operation. The affairs and management of the organization are conducted by a board of directors, executive committee, or similar body chosen by the members at an annual meeting. The organization has established bylaws and/or a constitution to govern its activities, requires applications to be filled out for membership, and maintains membership records that show the date of application, admission, name and address for each member, and serial number of the membership card issued. The organization has been granted an exemption from the payment of federal income tax as a club under 26 USC 501.

Public place means an area to which the public is permitted. A private residence is not a public place unless it is used as a child care, adult day care or health care facility.

Restaurant means an eating establishment, including, but not limited to, coffee shops, cafeterias, sandwich stands, and private and public school cafeterias, which gives or offers for sale food to the public, guests, or employees, as well as kitchens and catering facilities in which food is prepared on the premises for serving elsewhere. The term "restaurant" includes a bar area within the restaurant.

Retail tobacco stores means any person, government or entity licensed to sell tobacco products to individuals for personal consumption, or who operates a facility where self-service displays of tobacco products are permitted.

Service line means an indoor or outdoor line in which one or more persons are waiting for or receiving service of any kind, whether or not the service involves the exchange of money, including but not limited to, ATM lines, concert lines, food vendor lines, movie ticket lines, and sporting event lines.

Shopping mall means an enclosed public walkway or hall area that serves to connect retail or professional establishments.

Smoke or *smoking* means inhaling, exhaling, burning, or carrying any lighted or cigar, cigarette, pipe or other tobacco or plant product intended for inhalation, in any manner or in any form.

Sports arena means a place where people assemble to engage in physical exercise, participate in athletic competition, or witness sports or other events, including sports pavilions, stadiums, gymnasiums, health spas, boxing arenas, swimming pools, roller and ice rinks, and bowling alleys.

Tobacco retailer means any person, government, or entity who sells tobacco products to individuals for personal consumption, or who operates a facility where self-service displays of tobacco products are permitted.

(b) *Public places.* Smoking shall be prohibited in all enclosed public places within the city, including, but not limited to, the following places:

(1) Aquariums, galleries, libraries, and museums.

(2) Banks.

(3) Bar and lounges.

(4) Bingo facilities.

(5) Child care and adult day care facilities.

(6) Convention facilities.

(7) Educational facilities, both public and private.

(8) Elevators.

(9) Gaming facilities, including bingo facilities.

(10) Health care facilities.

(11) Hotels and motels.

(12) Laundromats.

(13) Lobbies, hallways and other common areas in apartment buildings, condominiums, trailer parks, retirement facilities, nursing homes and other multiple-unit residential facilities.

(14) Polling places.

(15) Private clubs.

(16) Professional offices.

(17) Public transportation vehicles, including buses and taxicabs, under the authority of the city, and ticket, boarding and waiting areas of public transportation facilities, including bus, train and airport facilities.

(18) Restaurants and retail food production.

(19) Restrooms, lobbies, reception areas, waiting rooms, hallways and other common-use areas.

(20) Retail service establishments.

(21) Retail stores.

(22) Rooms, chambers, places of meeting or public assembly and other enclosed areas and vehicles owned, leased or operated by the city.

(23) Service lines.

(24) Shopping malls.

(25) Sports arenas, including enclosed places in outdoor arenas.

(26) Theaters and other facilities primarily used for exhibiting motion pictures, stage dramas, lectures, musical recitals or other similar performances.

(27) Parking decks and parking facilities under the control of the city.

(c) *Regulation of smoking in places of employment.*

(1) Smoking shall be prohibited in all enclosed areas of places of employment located within the city, including, but not limited to: common work areas, auditoriums, classrooms, conference and meeting rooms, private offices, elevators, hallways, medical facilities, cafeterias, employee lounges, stairs, restrooms, vehicles.

(2) This prohibition also applies to rooms, chambers, places of meeting or public assembly, and other enclosed areas and vehicles owned, leased, or operated by the city, including areas under the control of an agency, board, commission, or committee of the city, to the extent the place is subject to the jurisdiction of the city.

(3) This prohibition on smoking shall be communicated to all existing employees by the effective date of the ordinance from

which this section is derived and to all prospective employees upon their application for employment.

(d) *Regulation of smoking in residential facilities.* Smoking shall be prohibited in the following enclosed residential facilities:

(1) All private and semiprivate rooms in nursing homes.

(2) All hotel and motel rooms that are rented to guests.

(e) *Regulation of smoking in outdoor public places.* Smoking shall be prohibited in the following outdoor places:

(1) In and within, seven feet outside entrances, windows, and ventilation systems of enclosed areas where smoking is prohibited, so as to prevent tobacco smoke from entering those areas.

(2) In and within, outdoor seating or serving areas of restaurants and bars located on public property.

(3) In all outdoor arenas, stadiums, and amphitheaters, smoking shall also be prohibited in, and within 30 feet of, bleachers and grandstands for use by spectators at sporting and other public events.

(4) In, and within seven feet of, all outdoor public transportation stations, platforms and shelters under the authority of the city.

(5) In all outdoor service lines.

(f) *Exemptions.* Notwithstanding any other provision of this section to the contrary, the following areas shall be exempted from the provisions of this section:

(1) Smoking shall not be prohibited in private residences, except when used as a childcare, adult day care, or health care facility.

(2) Cigar bars as defined in subsection (a) of this section. Cigar bars must satisfy all of the following:

a. Generates ten percent or more of its quarterly gross revenue from the sale of alcoholic beverages for consumption on the premises by customers;

b. Generates 80 percent or more of its quarterly gross revenue from the rental of humidors and the sale of cigars for consumption on the premises by customers;

c. Has a humidor on the premises;

d. Posts health warning signage that states: "Warning: Cigar smoking causes lung cancer, heart disease, and other forms of cancer. Cigar tobacco contains nicotine, tar and carcinogens. Cigar smoking is not a safe alternative to cigarette smoking." The signage must be prominent, clearly visible and posted in every room where smoking is permitted. The signage must be written in 48-inch font or greater. The warning must also be displayed prominently on each bar menu; and

e. Does not allow individuals under the age of 21 to enter the premises. Revenue generated from other tobacco sales, including cigarette vending machines, shall not be used to determine whether an establishment satisfies the definition of cigar bar.

(3) Hookah bars as defined in subsection (a) of this section. Hookah bar must satisfy all of the following:

a. The hookah bar must generate ten percent or more of its quarterly gross revenue from the sale of alcohol beverages from on premises consumption;

b. The hookah bar must generate 80 percent of its quarterly gross revenue from the sale of shisha for on-premises consumption and from the sale of accessories used for the smoking of shisha;

c. The hookah bar shall not allow individuals under the age of 21 to enter the premises;

d. Hookah bars shall post health warning signage that states: "Warning: Hookah smoking causes lung cancer,

heart disease, and other forms of cancer. Hookah tobacco (shisha) contains nicotine, tar and carcinogens. Hookah smoking is not a safe alternative to cigarette smoking." The signage must be prominent, clearly visible and posted in every room where smoking is permitted. The signage must be written in 48-inch font or greater. The warning must also be displayed prominently on each bar menu.

(4) Retail tobacco stores which are the sole occupant of the building in which they are located provided that smoke from these places do not infiltrate into areas where smoking is prohibited under provisions of this section and which derives at least 90 percent of its gross quarterly revenue from the sale of tobacco, tobacco products, or tobacco accessories, such as pipes matches, lighters and ashtrays. Revenue generated from cigarette vending machine sales shall not be used to determine whether a retail store satisfies this requirement.

(g) *Designation of an establishment or outdoor area as nonsmoking.* Notwithstanding any other provision of this section, an owner or other person in control of an establishment, facility, or outdoor area may declare that entire establishment, facility, or outdoor area as a nonsmoking place. Smoking shall be prohibited in any place in which a sign, conforming to the requirements of subsection (h) of this section, is posted.

(h) *Signage.* The owner, or other person in control of a public place or place of employment where smoking is prohibited by this section shall:

(1) Clearly and conspicuously post "No Smoking within seven feet" signs or the international "No Smoking within seven feet" symbol (consisting of a pictorial representation of a burning cigarette enclosed in a red circle with a red bar across it) in that place;

(2) Clearly and conspicuously post at every entrance to that place a sign stating that smoking is prohibited within seven feet;

(3) Clearly and conspicuously state on the "No Smoking" sign or the international "No Smoking" symbol the distance requirement that corresponds to the type of establishment in accordance with subsection (e) of this section; and

(4) Clearly and conspicuously post on every vehicle that constitutes a place of employment under this section at least one sign, visible from the exterior of the vehicle, stating that smoking is prohibited.

(i) *Nonretaliation; nonwaiver of rights.*

(1) No person or employer shall discharge, refuse to hire, or in any manner retaliate against an employee, applicant for employment, customer, because that employee, applicant, or customer exercises any rights afforded by this section or reports or attempts to prosecute a violation of this section. Notwithstanding subsection (k) of this section, a violation of this provision shall be a misdemeanor, punishable by a fine not to exceed $1,000.00 for each violation.

(2) An employee who works in a setting where an employer allows smoking does not waive or otherwise surrender any legal rights the employee may have against the employer or any other party.

(j) *Enforcement.*

(1) This section shall be enforced by any county health officer or his or her duly authorized representative, the fire marshal or duly authorized representative, any duly sworn police officer employed by the city, or as otherwise allowed by law.

(2) Notice of the provisions of this section shall be given to all applicants for a business license in the city.

(3) Any citizen who desires to register a complaint under this section may initiate enforcement with an entity responsible for enforcement, such as the Jefferson County department of health or police department.

(4) The county health department, the fire department or designees shall, while an establishment is undergoing otherwise mandated inspections, inspect for compliance with this section.

(5) Any owner, manager, operator, or employee of an area regulated by this section shall direct a person who is smoking in violation of this section to extinguish the product being smoked. If the person does not stop smoking, the owner, manager, operator, or employee shall refuse service and shall immediately ask the person to leave the premises. If the person in violation refuses to leave the premises, the owner, manager, operator, or employee shall contact a law enforcement agency.

(6) Notwithstanding any other provision of this section, an employee or private citizen may bring legal action to enforce this section.

(7) In addition to the remedies provided by the provisions of this section, the city, the county health officer or any person aggrieved by the failure of the owner, operator, manager or other person in control of a public place or a place of employment to comply with the provisions of this section may apply for injunctive relief to enforce those provisions in any court of competent jurisdiction.

(k) *Violations and penalties.*

(1) A person who violates this section commits a violation, punishable by a fine of $50.00 for each violation. A charge of violation shall be treated in the same manner as a traffic violation. Any law enforcement officer may issue a citation pursuant to this section.

(2) Except as otherwise provided in subsection (i)(1) of this section, a person who owns, manages, operates or otherwise controls a public place or place of employment and who fails to comply with the provisions of this section shall be guilty of an offense, punishable by a fine of:

a. $100.00 for a first violation.

b. $200.00 for a second violation within one year.

c. $500.00 for each additional violation within one year.

A charge of violation shall be treated in the same manner as a traffic violation.

(3) In addition to the fines established by this section, violation of this section by a person who owns, manages, operates, or otherwise controls a public place or place of employment may result in the suspension or revocation of any permit or license issued to the person for the premises on which the violation occurred.

(4) Violation of this section is hereby declared to be a public nuisance, which may be abated by the city, the county health officer, or a designee by restraining order, preliminary and permanent injunction, or other means provided for by law, and the entity or person seeking abatement may take action to recover the costs of the nuisance abatement.

(5) Each day on which a violation of this section occurs shall be considered a separate and distinct violation.

(l) *Other applicable laws.* This section shall not be interpreted or construed to permit smoking where it is otherwise restricted by other applicable laws.

(Code 1980, § 11-9-10; Ord. No. 87-75, pt. I, 4-28-1987; Ord. No. 90-54, § 1, 3-13-1990; Ord. No. 95-64, §§ 1, 2, 4-11-1995; Ord. No. 05-59, § 1, 4-5-2005; Ord. No. 12-52, § 2, 4-17-2012)

State law reference—Alabama Clean Indoor Air Act, Code of Ala. 1975, § 22-15A-1 et seq.

Sec. 11-9-10.1. Health district for smoke-free public places.

(a) Words, terms and phrases used in this section, shall have the meanings ascribed to them as provided in section 11-9-10 of the General Code of the City of Birmingham, as amended.

(b) The health district is hereby established and shall be known as the "health district", as generally described below and which is also shown on a map on file in the office of the city clerk and incorporated herein by reference.

(c) The boundaries of the health district are hereby designated and described as follows:

Beginning at the POINT OF BEGINNING at the intersection of 4th Avenue S and 22nd Street S., proceeding along the midline of the public rights-of-way of the following streets, avenues and alleys, unless the described line proceeds along a property line, south along 22nd Street S., ±2,300 lf to 10th Avenue S.; proceeding west along 10th Avenue S., ±2,100 lf, to 18th Street S.; proceeding south along 18th Street S., ±770 lf, to 12th Avenue S.; proceeding west along 12th Avenue S., ±1,600 lf, to 15th Street S.; proceeding north along 5th Street S., ±1,450 lf, to a point, said point being the intersection with property line at western right-of-way; proceeding west along said property line, ±320 lf, to 14th Street S.; proceeding south along 14th Street S., ±320 lf, to 13th Avenue S.; proceeding west/southwest along 13th Avenues S., ±410 lf, as it transitions to 13th Place S. to a point, said point being the intersection with a property line at western right-of-way; proceeding west along said property line ±210 lf to 13th Street S.; proceeding south along 13th Street S., ±200 lf, to 14th Avenue S.; proceeding west along 14th Avenue S., ±230 lf, to 12th Alley S.; proceeding north along 12th Alley S., ±310 lf, to a point, said point being the intersection with property line at western right-of-way of alley; proceeding west along said property line, ±180 lf, to 12th Street S; proceeding north along 12th Street S., ±80 lf, to 14th Avenue S.; proceeding west along 14th Avenue S., ±150 lf, to Cullom Alley S.; proceeding north along Cullum Alley S., ±560 lf, to Cullom Street S.; proceeding north along Cullom Street S., ±310 lf, to 10th Avenue S.; proceeding west along 11th Avenue S., ±1,030 lf to the intersection of the northern right-of-way and the eastern property line of the Epic School; proceeding north along said eastern property line, ±340 lf, to a point, said point being the intersection of the eastern and northern property line for the Epic School; proceeding along said northern property line west, ±620 lf, to a point; proceeding north along eastern boundary of Bessie Estell Park, ±400 lf, to a point, said point being the intersection of property line and 8th Court S.; proceeding west along 8th Court S., to 8th Street S.; proceeding north along 8th Street S., ±540 lf, to 7th Avenue S.; proceeding west along 7th Avenue S., ±940 lf, to the railroad line; proceeding northeast along said railroad line, ±2,100 lf, to the point, said point being intersection of railroad line and property line; proceeding east along property line, ±590 lf, to 10th Street S.; proceeding along 10th Street S, ±710 lf, to 4th Avenue S.; proceeding east along 4th Avenue S., ±7,200 lf to a point; said point being the POINT OF BEGINNING.

In the event of a conflict in the health district boundary lines described above and the map on file in the office of the city clerk, the boundary lines depicted on the map on file in the office of the city clerk and as designated by signage and markers in the health district shall govern.

(d) Smoking, as defined in section 11-9-10 of the General City Code, as amended, is prohibited within the health district, including all outdoor public rights-of-way, sidewalks, streets, curbs and gutters, alleys, bus stop areas and parks within the health district, except as otherwise provided herein.

(e) Effective dates for the district. This designation of the district shall be effective on December 1, 2019 and when published as required by law. The designation shall continue until modified, suspended or revoked by the city council.

(f) Property owners within the health district may designate a smoking area or areas on their property and in compliance with section 11-9-10, each not to exceed 200 square feet and designated by signs and markers, where persons may smoke.

(g) Motor vehicles. This amendment does not include smoking in moving motor vehicles.

(h) Private residences. This amendment does not include smoking in private residences, except when used as a childcare, adult day care, or health care facility.

(i) Public education and signage. (1) The University of Alabama at Birmingham, UAB Medical Center, The Children's Hospital of Alabama, Cooper Green Mercy Health Services, the Jefferson County Board of Health, Southern

Research and the Birmingham Veterans Affairs Medical Center shall provide education and information about the health district to their students, patients, visitors and the public through any appropriate means. Regulatory signs may be placed in the right-of-way after obtaining approval from the city.
(Ord. No. 19-159, § 1, 10-23-2019)

Sec. 11-9-11. Soliciting near transportation facility.

(a) It shall be unlawful for any person who is not authorized to solicit patronage or business for:

(1) The carriage of baggage;

(2) Any hotel, motel, lodginghouse or boardinghouse; or

(3) Any vehicle for hire;

within the limits of the platforms, sitting rooms or grounds of any transportation facility.

(b) It shall be unlawful for any person to drum or solicit patronage or carry placards or boards advertising any lodging facility, eating or drinking establishment, on any public street or sidewalk of the city.
(Code 1980, § 11-9-11)

Sec. 11-9-12. Transportation tickets; dealing in nontransferable, free, etc., tickets.

(a) It shall be unlawful for any person to buy, sell or otherwise acquire or deal in or solicit the purchase or sale of any pass or other evidence of transportation issued by any railroad, railway, airline, steamboat or steamship or the person operating the same, which shows on its face that it was issued for free transportation.

(b) It shall be unlawful for any person to buy, sell or otherwise acquire or deal in or solicit the purchase or sale of any railroad, railway, airline, steamboat or steamship passenger ticket, or the unused portion thereof, or other evidence of passenger transportation, which on its face is a nontransferable mileage excursion or commutation ticket, where it appears upon such ticket or portion thereof, that the same was issued and sold below the regular schedule rate under contract with the original purchaser, whether such ticket was signed or unsigned by such original purchaser, and that such ticket, or portion thereof, is nontransferable and void in the hands of any person other than the original purchaser thereof.

(c) It shall be unlawful for any person to sell any other railroad, railway, airline, steamboat or steamship passenger ticket, or other evidence of passenger transportation, for any sum greater than that for which such ticket was originally sold.
(Code 1980, § 11-9-12)

Sec. 11-9-13. Sunday; duration; prohibited acts; permitted acts.

(a) Sunday shall be deemed to commence at 12:00 midnight Saturday night and to continue until 12:00 midnight Sunday night.

(b) No person shall do any worldly business or labor on Sunday, or compel or require any child, apprentice or servant to perform any labor on Sunday, except the customary domestic duties of daily necessity, comfort or works of charity; or keep open on Sunday any store, shop, warehouse or other building in which business is transacted, or goods of any description are kept for sale; or sell or offer for sale on that day any goods, wares or merchandise.

(c) The provision of subsection (b) of this section shall not apply to the following services, operations and acts; carriage of passengers or freight by any common carrier thereof; operation of any public utility; operation of airports, including concessions, facilities and activities in connection therewith; keeping open and operation of a drugstore; sale of automobile motor fuels and oils; sale of automobile parts and supplies; operation of a service for the relief of automobiles becoming disabled on Sunday; operation of a public storage garage; operation of an automobile livery service; operation of a bona fide restaurant devoted to the service of food to be consumed therein as well on week days as on Sundays; operation of delicatessen stores as defined under state law; operation of bona fide hotels; sale of newspapers by newsboys on the streets; sale of

newspapers and magazines by news dealers; polishing of boots and shoes by bootblacks; retail sale of tobaccos; operation of police and fire services and other municipal services; service of watching or guarding person or property; giving of concerts or entertainments; keeping open of municipal parks and recreational centers, together with concessions, facilities and activities in connection therewith for the purpose of enabling citizens to obtain rest and recreation; operation of swimming pools; operation of any manufacturing plant which has to be kept in continuous operation; playing or engaging in playing baseball, football, tennis or golf; operation of moving picture shows and vaudeville, whether admission is charged or not; operation of a service for the relief of boats and other related water recreational vehicles becoming disabled on Sunday; sale of marine motor oils and fuels, sale of marine parts and supplies.

(Code 1964, §§ 36-59—36-61; Code 1980, § 11-9-13)

State law reference—Similar provisions, Code of Ala. 1975, §§ 13A-12-1, 13A-12-2.

Sec. 11-9-14. Conduct in ticket lines.

When people are in line for the purpose either of purchasing tickets for, or for admission to, an entertainment, amusement or sporting event, it shall be unlawful for a person to:

(1) Take a place in that line other than at the end of the line farthest from the point of purchase or admission; or

(2) Request that a person in that line purchase a ticket on behalf of another person.

(Code 1980, § 11-9-14; Ord. No. 84-149-A, § 1, 8-21-1984)

Sec. 11-9-15. Water restrictions during emergency.

(a) *Definitions.* For the purpose of this section, the following terms, phrases, words, and their derivations shall have the meaning given herein:

Board means the city waterworks board.

City means the City of Birmingham.

City council means the council of the City of Birmingham.

Declaration means the formal determination by the mayor, in consultation with such officials as he or she deems appropriate, that a water emergency exists in the city.

Even-numbered addresses.

(1) The term "even-numbered addresses" means the house address, box number or rural route ending in numbers 0, 2, 4, 6, 8 or the letters A—M, or at locations with no address at the even-numbered side of the street.

(2) The term "even numbered addresses" does not include post office box numbers.

Mayor means the mayor of the city.

Odd-numbered addresses.

(1) The term "odd-numbered addresses" means the house address, box number or rural route ending numbers 1, 3, 5, 7, 9 or letters N—Z, or at locations with no address at the odd numbered side of the street.

(2) The term "odd-numbered addresses" does not include post office box numbers.

Person means any person, firm, partnership, association, corporation, company or organization of any kind.

Water means water supplied by the city waterworks board either directly or indirectly by the board through another entity.

(b) *Declaration of a drought warning or drought emergency by the mayor.* The mayor may upon written request by the city waterworks board, or upon other determination by him or her in consultation with such officials as he or she deems appropriate, determine that a water service emergency exists in the city, and issue a declaration of a drought warning or drought emergency relating to such water service emergency. This section shall then become effective upon the publication of such declaration in a daily newspaper generally circulated in the city. The declaration of a drought warning or a drought emergency shall be announced at the next council meeting and a copy of the declaration of a drought warning or a drought emergency shall be posted at the city hall, all city library branches, all police department precincts and substations, and all fire department stations.

(c) *Application of section.* Upon the publication of declaration of a drought warning or a drought emergency pursuant to the provisions of subsection (b) of this section, the provisions of this section shall apply to all persons using water both in the city and outside the city, within its police jurisdiction. This section does not prohibit the use of water from any source other than water supplied by the board so long as the person using such water can identify that the water source being used is from a source other than the board.

(d) *Certain uses restricted or prohibited for drought warnings.* The use and withdrawal of water by any person, subsequent to the declaration and publication of a drought warning will be prohibited except under the following conditions:

(1) Outdoor watering shall be limited to two days per week as defined herein by

handwatering with a hose or bucket which does not include a spray device pursuant to the following guidelines:

a. Handwatering of established lawns and landscaping is allowed only during the hours of 9:00 p.m. to 9:00 a.m. on the days of the week defined herein. Even-numbered addresses should hand water established lawns and landscaping on Mondays and Thursdays only. Odd-numbered addresses should hand water established lawns and landscaping on Tuesdays and Fridays only.

b. New lawns and landscaping are exempt from the days of the week restrictions set out in subsection (d)(1)a of this section for the first 20 days after installation of the lawn or landscaping materials. However, in the first 20 days of installation, handwatering for new lawns and landscaping shall be limited to the minimum necessary and shall be permitted only during the hours of 9:00 p.m. to 9:00 a.m. After the first 20 days and up to the 30th day, subsequent to installation of new lawns and landscaping, handwatering shall be permitted on two days of the week, with even numbered addresses handwatering new lawns and landscaping on Mondays and Thursdays, and odd-numbered addresses handwatering new lawns and landscaping on Tuesdays and Fridays during the hours listed in this subsection. After the 30th day after the installation of lawns and landscaping, handwatering should be in accordance with the times and dates as provided in subsection (d)(1)a of this section. Documentation to verify the date of installation of new lawns and landscaping material shall be made available upon request to the chief of police or his or her designee.

c. Handwatering for the purpose of watering in insecticides, fungicides, and herbicides, where such watering is required by the manufacturers or by the federal, state or local government, shall be conducted on the schedule above for established lawns and shall be hand watered during the hours of 9:00 p.m. to 9:00 a.m. only.

d. Use of fire hydrants for any purpose except for firefighting, or flushing sewers for health protection purposes shall be prohibited.

e. Watering of any portion of golf courses except for tees and greens shall be prohibited. The watering of tees and greens is allowed on Mondays; Wednesdays and Fridays between the hours of 1:00 a.m. and 5:00 a.m.

f. Commercial nurseries are exempt from the day of the week restrictions set out in subsection (d)(1)a of this section but shall restrict water use to the minimum amount necessary to maintain plants. Commercial nurseries shall refrain from watering between the hours of 10:00 a.m. and 4:00 p.m.

g. City-owned or -controlled athletic fields may be watered Wednesdays and Saturdays between the hours of 4:00 a.m. and 9:00 a.m.

h. Newly constructed or existing public and private swimming pools, including outdoor hot tubs, spas and Jacuzzis, may be filled once upon completion. A one-time draining and subsequent refilling of swimming pools is allowed only for repairs if conditions threaten the integrity of the pool and/or its supporting infrastructure.

(2) Vehicle washing not permitted; exception.

a. The washing of personal vehicles, trucks, trailers, mobile homes, campers, boats, other type motor vehicles or equipment shall not be permitted except as provided in subsection (d)(2)b of this section.

b. The washing of nonemergency vehicles shall be permitted when such washing is performed by a business engaged exclusively in the washing of vehicles. Such operation is permitted only between the hours of 10:00 a.m. and 4:00 p.m. Businesses engaged in washing vehicles by automated means that use only recycled water shall not be restricted in their hours of operation. Automobile dealerships shall be permitted to wash vehicles to prepare for delivery of new or used vehicles to their customers or when necessary to prepare vehicles for maintenance or repair. These exceptions only apply to duly licensed businesses within the city limits, and upon request by any city police officer such business license shall be made available for review.

(e) *Certain uses restricted or prohibited for drought emergencies.* The use and withdrawal of water by any person, subsequent to the declaration and publication of a drought emergency, for the following purposes will be prohibited:

(1) *Outdoor watering.* The sprinkling, watering or irrigating of trees, shrubbery, lawns, grass, ground covers, plants, vines, gardens, vegetables, flowers, or any other vegetation.

(2) *Washing mobile equipment.* The washing of automobiles, trucks, trailers, trailer houses, railroad cars, or any other type of mobile equipment.

(3) *Cleaning outdoor surfaces.* The washing of sidewalks, driveways, filling station aprons, porches and other outdoor surfaces.

(4) *Cleaning buildings.* The washing of the outside of dwellings; the washing of the inside and outside of office buildings.

(5) *Cleaning equipment and machinery.* The washing and cleaning of any business or industrial equipment or machinery.

(6) *Ornamental fountains.* The operation of any ornamental fountain or other structure making a similar use of water.

(7) *Swimming pools.* Swimming and wading pools not employing a filter and recirculation system.

(8) *Golf courses.* The watering of any portion of golf courses.

(f) *Exception to maintain sanitation.* The Jefferson County Health Officer shall have the authority to permit a reasonable use of water in any case necessary to maintain adequate health and sanitation standards, but such reasonable use shall not include any uses restricted or prohibited by subsections (d) and (e) of this section. Additionally, notwithstanding any other provisions of this section, the mayor may permit the watering of city-owned or -controlled athletic fields when the mayor, in his or her sole discretion, determines that said athletic fields are hazardous to the health and safety of children, by being too hard by virtue of a lack of water. The mayor may permit the watering of such athletic fields to the extent necessary to abate the hazard to the health and safety of such children.

(g) *Enforcement.* Upon publication of a declaration of a drought warning or a drought emergency by the mayor pursuant to subsections (d) and (e) of this section:

(1) *Police officers enforce.* Every police officer of the city shall, in connection with his or her duties imposed by law, diligently enforce the provisions of this section.

(2) *Contrary use.* No person shall knowingly or intentionally allow the use of water supplied by the board for any use, residential, commercial, industrial, agricultural, governmental, or any other purposes in a manner contrary to the provisions of this section.

(3) *Violations.* Any person, including a person classified as a water customer of the board in apparent control of the property where a violation occurs or originates, shall be presumed to be the violator, and proof that the violation occurred on the

person's property shall constitute a rebuttable presumption that the person in apparent control of the property committed the violation, but any such person shall have the right to rebut that such person did not commit the violation. Parents shall be presumed to be responsible for violations of their minor children and proof of a violation, committed by a minor child, occurred on property within the parent's control shall constitute a rebuttable presumption that the parents committed the violation, but any such parent may be excused if the parent provides that such parent has previously directed the minor child not to use water as it was used in violation of this section and that the parent could not have reasonably known of the violation.

(h) *Penalties.* Any person who shall violate or who permits the violation of any provision of this section or shall do any act prohibited hereby shall, upon conviction thereof, be punished by a fine not to exceed $500.00 or by imprisonment not to exceed 180 days in the city jail, or by both such fine and imprisonment. Each day on which a violation occurs or continues shall be deemed a separate offense.

(Code 1980, § 11-9-15; Ord. No. 88-93, §§ 1—7, 6-28-1988; Ord. No. 07-105, 6-19-2007; Ord. No. 07-131, § 1, 7-24-2007)

Sec. 11-9-16. Sale of goods during city stages.

No person shall sell, offer for sale or expose for sale any goods or personal property of any character whatsoever upon public streets, alleys or sidewalks within the area bounded on the south by Third Avenue North, on the west by 16th Street North, on the north by Ninth Avenue North, and on the east by 22nd Street North, at any time during the Friday, Saturday and Sunday in June which includes Father's Day and during which time "City Stages," an outdoor arts and music festival, is being conducted in this area; provided that any concessionaire licensed by the Birmingham Cultural and Heritage Foundation shall be exempt from the provisions of this section to the extent such concessionaire is authorized to offer for sale specified goods or services.

(Code 1980, § 11-9-16; Ord. No. 91-102, 5-28-1991; Ord. No. 00-74, § 1, 5-9-2000)

Title 12

LICENSING AND REGULATIONS*

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***State law references—**Licensing of the conduct of trades, businesses, etc., by cities generally, Code of Ala. 1975, § 11-51-90 et seq.; in the police jurisdiction the maximum tax is at one-half the in-city rate, Code of Ala. 1975, § 11-51-91; deceptive trade practices generally, Code of Ala. 1975, § 8-19-1 et seq.; licenses generally, Code of Ala. 1975, § 40-12-1 et seq.

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CHAPTER 1. ADVERTISING

Sec. 12-1-1. False or deceptive advertising prohibited.

(a) No person, knowingly or negligently, with intent to sell or in anywise dispose of merchandise, commodities, securities, services or anything offered by such person, directly or indirectly, to the public for sale or distribution or with intent to increase the consumption or use thereof, or to induce the public in any manner to enter into any obligation relating thereto, or to acquire title thereto, or an interest therein, shall make, publish, disseminate, circulate or place before the public, or cause, directly or indirectly, to be made, published, disseminated, circulated or placed before the public, in the city, in a newspaper or other publication, or in the form of a book, notice, handbill, poster, bill, circular, pamphlet or letter, or in any other way, an advertisement of any sort regarding merchandise, commodities, securities, services or anything so offered to the public which advertisement contains any assertion, representation or statement which is untrue, deceptive or misleading.

(b) No person shall print, publish, disseminate, circulate or cause the same to be done in the city in any newspaper or other publication or in the form of a book, notice, handbill, poster, bill, circular, pamphlet or letter or in any other manner, any notice or advertisement of any sort regarding merchandise, commodities, securities, services or anything offered for sale or distribution to the public, which notice or advertisement contains any assertion, representation or statement which is untrue, deceptive or misleading when such person has notice or knowledge that the same is untrue, deceptive or misleading.

(c) No person in response to an offer to purchase any merchandise, commodity, securities, services or other thing, so advertised, shall knowingly or negligently deliver any merchandise, commodity, securities or other thing, different from that so advertised and offered to be purchased, without having previously informed the purchaser of the substitution or intended substitution.
(Code 1964, § 3-1; Code 1980, § 12-1-1)

State law reference—Deceptive Trade Practices Act, Code of Ala. 1975, § 8-19-1 et seq.

Sec. 12-1-2. Posting advertisements on fences, buildings, poles, viaducts, etc.

Any person who posts, tacks or paints, or causes to be posted, tacked or painted any bill, sign, graffiti or advertisement on any lamppost, telephone or telegraph pole, or on any post supporting the same, or upon any tree or tree box or guard, or upon any viaduct, underpass or other structure, within, upon or over any public way, or any person who, without consent of the owner, paints, tacks or posts any bill, circular, graffiti or advertisement on any fence, building or other structure on private property, shall, on conviction, be punished as provided in section 1-1-6. It shall be the duty of any person having posted, tacked, painted or caused to be posted, tacked or painted any bill, sign, graffiti or advertisement on any object or structure prohibited under this section to remove the same, and it shall be unlawful for such person to permit or allow such bill, sign, graffiti or advertisement to remain on such structure. If the perpetrator cannot be identified, it shall be the responsibility of the property owner to remove the same within 15 days. This prohibition shall not apply to local public transit systems, including ones that are owned and operated by the public for public use, who shall be allowed to install signage on bus stop shelters or public bike share kiosks, subject to local, state, and federal laws, including the City of Birmingham Zoning Ordinance, as now or may be amended.
(Code 1964, § 3-2; Code 1980, § 12-1-2; Ord. No. 15-41, § 1, 4-14-2015)

Sec. 12-1-3. Distributing handbills, circulars, etc., containing commercial advertising generally.

It shall be unlawful for any person to distribute upon any street or sidewalk of the city any circular, handbill, card or poster containing advertising matter which is primarily commercial in nature, object or purpose; provided that this section shall not apply to the distribution of newspapers carrying advertising matter nor to circulars, handbills, cards and posters exclusively advertising the candidacy of any

person for public office or containing matter primarily of a political or religious nature or relating primarily to a labor dispute.
(Code 1964, § 3-3; Code 1980, § 12-1-3)

Sec. 12-1-4. Placing handbills, etc., on private premises.

It shall be unlawful for any person to throw, place or drop, or cause to be thrown, placed or dropped, any handbill, dodger, circular or other similar matter on any lot or private premises of another without the consent of such other.
(Code 1964, § 3-4; Code 1980, § 12-1-4)

Sec. 12-1-5. Placing advertisements in or on parked vehicles.

It shall be unlawful for any person to place any written or printed advertising matter in or attach any such advertisement to any part of any vehicle while the same is parked upon any public street or alley of the city, without first having obtained the consent of the owner of such vehicle to do so.
(Code 1964, § 3-5; Code 1980, § 12-1-5)

Sec. 12-1-6. Display of advertising on awnings.

It shall be unlawful to post or otherwise display any bill, announcement, sign or other advertising on any awning which extends over any street or other public place in the city.
(Code 1964, § 3-6; Code 1980, § 12-1-6)

Sec. 12-1-7. Noisy and obnoxious advertising.

(a) It shall be unlawful for the proprietor, manager or other person in charge or control of any place of business in the city to advertise, or attempt to attract attention, to such place of business, or any article of merchandise therein, or any business, sale or event being conducted therein, by causing or allowing any radio, phonograph, phonograph record, bell, drum, horn or other instrument located upon, at or in such place of business, to be played, operated or sounded in such manner that the sound created, emitted or transmitted by such instrument shall be audible to persons upon any public street of the city; provided that it shall be lawful from time to time to demonstrate any such instrument to prospective purchasers thereof in such place of business, notwithstanding resultant sound may escape to a public street; and provided further, that the provisions of this subsection (a) shall not apply to any type of carillon which is located in or on any premises in the city and is played, operated or sounded so as to cause music or musical notes or a time strike to emanate from such carillon or from amplifiers attached thereto and located in or on the same premises.

(b) It shall be unlawful for any person to drum or solicit any person on any sidewalk or street in the city, either orally or by means of cards or handbills, to enter any store or other place of business for the purpose of buying, or negotiating for the sale of, any goods, wares or merchandise, or for the rendition of any service.

(c) It shall be unlawful for any person to advertise from any vehicle upon any street or other public way by means of any loud speaker, amplifier, radio, phonograph, phonograph record, bell, drum, horn or other instrument, or by any other loud noise, within that portion of the city bounded on the north by the north line of Eighth Avenue, North, on the east by the east line of Twenty-Third Street, on the south by the south line of Morris Avenue, and on the west by the west line of Seventeenth Street, or within a radius of one block of any school or hospital, or within a radius of one block of any church on Sunday.

(d) It shall be unlawful for any person to advertise from any vehicle upon any street or other public way by means of any loudspeaker, amplifier, radio, victrola, victrola record, bell, drum, horn or other instrument, or by any other loud noise, within the city between the hours of 7:00 p.m. and 9:00 a.m.
(Code 1964, § 3-9; Code 1980, § 12-1-7)

State law reference—Municipal power to prevent and abate annoyances from anything offensive, dangerous, or unwholesome, Code of Ala. 1975, § 11-47-117.

CHAPTER 2. AMBULANCES*

ARTICLE A. GENERAL PROVISIONS

Sec. 12-2-1. Purpose, applicability, title.

(a) The provisions of this chapter shall apply to the operation of any ambulance which has a patient pickup point within the city, except when operated by the Birmingham Fire and Rescue Service, a volunteer rescue squad that is a member of the Alabama Association of Rescue Squads, Inc., and which furnishes ambulance service to the public, a business or company which provides free ambulance service to their employees, an ambulance service owned by the county, a municipality or any other political subdivision of the state or federal government, or when the transport of the patient began outside of the city and the patient is not admitted to the medical facility to which he was first delivered. The provisions of this chapter shall not apply to the transportation of deceased persons.

(b) In order to lessen congestion caused by emergency vehicles and to provide for the safety of pedestrians and vehicles on the public streets, to facilitate the prompt and coordinated dispatch of emergency transport vehicles when needed to protect life, safety and health, and to further preserve and promote the health, safety and welfare of its citizens, the city designates the Birmingham Fire and Rescue Service as the sole emergency transport service provider for all emergency calls and 911 calls within the city and its police jurisdiction and establishes the following procedures, rules and regulations for ambulances in the city as set out herein. Notwithstanding any other provision of this section to the contrary, fees for ambulance services provided by the Birmingham Fire and Rescue Service shall be as provided in section 12-2-41 of the General Code of the City of Birmingham.

(c) In order to assure that commercial ambulances operated in the city are properly operated, staffed, equipped, and financially accountable, the council enacts this chapter. The chapter is intended to also assure that backup ambulances are available if the available resources of Birmingham Fire and Rescue Service are already committed.

(d) This chapter shall be known as the Commercial Ambulance and Transportation Ordinance of the City of Birmingham, Alabama.
(Code 1980, § 12-2-1; Ord. No. 93-252, § 1, 10-26-1993; Ord. No. 99-70, § 1(12-2-1), 5-11-1999; Ord. No. 12-165, § 1(12-2-1), 12-18-2012; Ord. No. 18-26, § 1, 2-9-2018)

Sec. 12-2-2. Definitions.

For the purpose of this chapter, the following words, terms, phrases and their derivations shall have the meanings respectively ascribed thereto by this section. When not inconsistent with the context, words used in the present tense include the future, words in the plural number include the singular number and words in the singular number include the plural number, the use of the words "he," "him," and "his" shall include both the masculine and feminine. The term "shall" is mandatory and the term "may" is permissive. Words not defined shall be given their common and ordinary meanings. For the purpose of this chapter, those terms used and defined in Alabama Administrative Code, chapter 420-2-1, "Alabama Emergency Medical Services," shall have the meaning given those terms in Alabama Administrative Code, chapter 420-2-1, as now or hereafter amended.

Ambulance means a commercial vehicle equipped and used for the purpose of transporting the wounded, injured or sick, which is owned and/or operated by a person doing business within the city and shall include but is not restricted to emergency vehicles used for such purposes.

Ambulance call means the act of responding with an ambulance for the purpose of transporting and/or treating any patient for compensation.

Backup plan means the plan detailing circumstances when a licensed commercial ambulance service may be required to respond to

*__State law reference—__Ambulances generally, Code of Ala. 1975, § 22-18-1 et seq.

emergency calls in the city, as set out herein. The backup plan shall be established according to the procedures for promulgation of additional standards and regulations as set out in section 12-2-10, as amended.

Basic life support (BLS) means the response to and treatment of a patient by procedures recognized by the state department of public health as being within the scope of practice of an EMT-basic which may also include transportation of the patient.

Birmingham Regional Emergency Medical Services System (BREMSS) means the regional EMS organization as recognized by state law and contract with the state department of public health to perform regional EMS functions.

Centers for Medicare and Medicaid services (CMS) means a federal agency that determines payment formulas for Medicare/Medicaid payments.

Commercial ambulance means an ambulance as defined in this section.

Driver means any individual who for compensation drives or attempts to drive any ambulance and who is responsible for the safe transport of the patient and ambulance EMTs.

Emergency means any occurrence or situation involving illness, injury or disability requiring immediate medical services, wherein delay in the provision of such services is likely to aggravate the condition and endanger the personal health or safety of the patient.

Emergency medical dispatch means a system by which calls are prioritized into emergency or nonemergency categories through a series of algorithm-based questions asked by the call takers in the EMS dispatch center.

Emergency medical dispatcher means an individual employed in the EMS dispatch center who has completed a nationally recognized emergency medical dispatch course of instruction to become an emergency medical dispatcher.

Emergency medical services (EMS) means those prehospital functions and services which are necessary to prepare for and respond to emergencies and basic life support services, including rescue, transportation, treatment, triage, communications, evaluation and public education.

Emergency medical services (EMS) committee means a committee established by the city council to survey, evaluate and provide recommendations for improving all aspects of the city's emergency medical care; and investigate, study, advise and recommend minimum standards for care of emergency victims patients including mass casualty incidents; and other responsibilities as provided herein.

Emergency medical services (EMS) dispatch center means the fire communications center of the city fire and rescue service from which all E-911 and emergency call dispatches originate.

Emergency response means a response in which it is believed that the illness, injury or disability requires immediate medical services wherein delay of such services may endanger personal health or safety. This call shall be accomplished with use of all warning devices and lights.

Fire and rescue service (BFRS) means the fire and rescue service of the city.

Fire chief means the chief of the fire and rescue service of the city or his or her duly authorized representative.

Ground ambulance means a motor vehicle intended to be used for and maintained or operated for the transportation of persons who are sick or injured to a medical care facility.

Hospital to hospital means the transport of an admitted hospital patient to another hospital for treatment or admission.

Interfacility emergency ALS transfer means the transfer of a patient requiring EMT paramedic or EMT intermediate level of care, where more advanced procedures are to be performed such as the monitoring of IVs or drugs, from one health care facility to another.

Medical control physician means a physician licensed to practice medicine in the state, knowledgeable in the applicable medical protocols, radio procedures and general operating policies of the city's regional emergency medical services

system (BREMSS), the city and the state department of public health and from whom ambulance personnel shall take medical direction in person, by radio or by remote communications device, subject to the provisions of this chapter.

Medical direction.

(1) *On-line* means medical direction given EMS personnel by a base station medical control physician through direct voice contact, with or without vital signs and/or telemetry, as required by applicable medical protocols.

(2) *Off-line* means written medical direction by a medical control physician through the use of protocols, treatment guidelines, quality assurance and medical liaison for a specific emergency medical service.

Medical protocol means a series of written statements of standard procedure which is a part

of the approved BREMSS medical control accountability plan (MCAP) and approved by the state department of public health as the normal standard of prehospital care for a given clinical condition.

Medical review means a monthly review of emergency medical reports and procedures by the off-line medical control for quality assurance purposes.

Nonemergency response means a response that does not require the use of warning devices, including but not limited to interhospital transfers, discharges to home, visits to physicians offices and the transport of the deceased patients to funeral homes.

Nonscheduled event. Transport of a patient to an emergency department is by definition a nonscheduled event.

Nursing home to hospital means the transport of a nursing home resident to a clinic or physician's office to undergo procedures listed in the patient's nursing care plan or to otherwise be present for scheduled appointments with various types of medical practitioners.

Off-line medical director means the licensed physician appointed by any EMS provider to serve as its medical director.

Owner means a person engaged in business as the owner, manager, officer or proprietor of a company, firm or organization providing commercial ambulance service within the city.

Patient means any individual who is sick, injured, or wounded and in need of medical care and transportation.

Police chief means the chief of the police department of the city or his or her duly authorized representative.

Specialty care transport (SCT) means the interhospital transportation by an ambulance vehicle of a critically injured or ill patient at a level of service beyond the scope of the EMT-paramedic. SCT is necessary when a patient's condition requires ongoing care that must be furnished by one or more health professionals in an appropriate specialty area, for example, emergency or critical care nursing, emergency medicine, respiratory care, cardiovascular care or a paramedic with additional training and certification.

State medical control committee means the committee appointed by the state department of public health for the purpose of regulating emergency medical services in the state.

(Code 1980, § 12-2-2; Ord. No. 93-252, § 1, 10-26-1993; Ord. No. 99-70, § 1(12-2-2), 5-11-1999; Ord. No. 12-165, § 1(12-2-2), 12-18-2012)

Sec. 12-2-3. Emergency medical calls.

The BFRS shall be the primary responder to all calls of an emergency medical nature within the city whether received through E-911, forwarded from other agencies, or transferred from other agencies.

(1) In the event an ambulance receives a call for service which requires a response to an emergency, the ambulance company shall immediately transfer or forward such call to the city fire and rescue service if the location of the patient or incident is within the city.

(2) It shall be unlawful for an ambulance service dispatcher to fail to transfer or forward an emergency call to the BFRS dispatcher.

(3) It shall be unlawful for an ambulance EMT or ambulance company to make an emergency response on the city streets or to any location within the city without having been requested by the fire and rescue service or except as provided in other sections of this chapter.

(4) Failure to comply may result in a fine of up to $500.00.

(Code 1980, § 12-2-3; Ord. No. 93-252, § 1, 10-26-1993; Ord. No. 99-70, § 1(12-2-3), 5-11-1999; Ord. No. 12-165, § 1(12-2-3), 12-18-2012)

Sec. 12-2-4. Duty of the fire chief.

It shall be the duty and responsibility of the fire chief to administer the provisions of this chapter with regard to medical quality compli-

ance and to investigate along with the police chief all complaints involving any type of ambulance service within the city.
(Code 1980, § 12-2-4; Ord. No. 93-252, § 1, 10-26-1993)

Sec. 12-2-5. Use of emergency warning devices.

(a) It shall be unlawful for an ambulance which has responded to a non-emergency call to proceed to the hospital or other destination with the use of emergency warning equipment upon the city streets unless the fire and rescue service dispatcher or E-911 Operator No. 4 has been notified of the circumstances surrounding the call and the need to use emergency warning equipment.

(b) No clearance shall be necessary for patients being transported from a point of pickup to a physician's office, clinic, nursing home, funeral home or morgue; however, emergency warning equipment is not authorized and is illegal for such transports.

(c) Failure to comply may result in a fine of up to $500.00.
(Code 1980, § 12-2-5; Ord. No. 93-252, § 1, 10-26-1993; Ord. No. 99-70, § 1(12-2-5), 5-11-1999; Ord. No. 12-165, § 1(12-2-5), 12-18-2012)

Sec. 12-2-6. Obedience to traffic laws, ordinances or regulations.

(a) When the driver of any ambulance has been authorized to utilize lights and sirens by the city fire and rescue service he or she may:

(1) Stop, stand or park the ambulance in any place in order to provide medical services irrespective of the otherwise applicable provisions of law, ordinance or regulation;

(2) Proceed with warning devices operating past a red or stop signal or stop sign, but only after slowing down as is necessary for safe operation;

(3) Exceed the maximum speed limits permitted by law, ordinance or regulation; provided, however, that any governing directives issued by the city's chief of police are obeyed and that life and property are not endangered thereby;

(4) While operating warning devices, disregard operating laws, ordinances and regulations governing directions or movements or turning in specified directions.

(b) The provisions of subsection (a) of this section shall not operate to relieve the driver of any ambulance from the duty to drive with due regard for the safety of all persons, nor shall such provisions protect the driver from the consequences of his or her reckless disregard for the safety of others.
(Code 1980, § 12-2-6; Ord. No. 93-252, § 1, 10-26-1993; Ord. No. 12-165, § 1(12-2-6), 12-18-2012)

Sec. 12-2-7. Reserved.

Sec. 12-2-8. Unlawful or prohibited acts.

(a) It shall be unlawful for any person or ambulance service to intentionally or knowingly:

(1) Follow any police car or fire department apparatus which is traveling in response to any emergency call on the streets of the city or to follow any fire apparatus or police vehicle to or near the scene of an emergency call on the streets of the city.

(2) Solicit on the streets of the city the business of transporting emergency injured or sick persons; provided that this prohibition shall not be construed to prohibit lawful advertisements.

(3) Intercept by any means any fire or police radio or telephone communication that is reasonably accessible to the public concerning traffic accidents or other medical emergencies on the streets of the city and divulge or publish the existence, contents, substance, purpose, effect or meaning of such intercepted communication for the purpose of benefiting an owner of or an agent of an owner of a commercial ambulance service. No electronic equipment capable of receiving or transmitting on city fire or police department communications frequencies may be installed in any commercial ambulance, ambulance company vehicle, ambulance company office or dispatch center.

(4) Use a uniform, insignia, badge, title, identification card or vehicle marking that either closely resembles or mimics those of the fire and rescue service or for a permit holder and/or its employees to use any uniform, insignia, badge, title, identification card or vehicle marking which has not been authorized by the fire chief.

(6) Request the services of any ambulance which is not licensed or permitted or exempted therefrom in accordance with the provisions of this chapter.

(7) Make or cause another to make a request for ambulance service or assistance unless that person has some cause to believe that a medical need exists. It shall be prima facie evidence of a violation of this section if a person requests or causes another to request ambulance service or assistance and then fails to seek medical examination or treatment.

(8) Make or cause another to make a request for a licensed commercial ambulance service to make an emergency response to or from any location within the city for any reason except as described herein.

(9) Enter into a contract to provide emergency response to or from any location within the city for any reason except as described herein.

(b) No person licensed solely as an ambulance driver (a person who is not a licensed EMT) by the state department of public health shall operate or be employed on an ambulance that picks up emergency patients in the city.

(c) Failure to comply may result in a fine of up to $500.00.

(Code 1980, § 12-2-8; Ord. No. 93-252, § 1, 10-26-1993; Ord. No. 99-70, § 1(12-2-8), 5-11-1999; Ord. No. 12-165, § 1(12-2-8), 12-18-2012)

Sec. 12-2-9. Complaint procedure.

(a) Any member of the public having a complaint regarding service and/or charges shall first notify the person at the ambulance company or at the police/fire department as listed on the schedule of charges. The police/fire department shall forward a copy of any complaints it receives to the ambulance company. The ambulance company shall notify the complainant in writing within ten days of receipt of the complaint as to the outcome of the complaint and the procedure to be followed to appeal any complaints which are not resolved satisfactorily. Any person desiring to appeal such review shall file a written complaint with the EMS committee within ten days of receipt of the ambulance company's response.

(b) Any ambulance company or employee thereof having a complaint against another ambulance company or one of its employees shall first notify the fire chief in writing. The fire chief shall cause the charges to be investigated and notify the complainant in writing within ten days of receipt of the complaint as to the outcome and the procedure to be followed to appeal any complaints which are not resolved to the complainant's satisfaction. Any person desiring to appeal such review shall file a written complaint with the EMS committee within ten days of receipt of the fire chiefs response.

(c) Upon receipt of any such complaint, the EMS committee or an appointed subcommittee shall hold a hearing on such complaint within 30 days. The EMS committee or subcommittee hearing the complaint shall make a written report within seven business days to the fire chief, police chief, complainant and ambulance company, stating their findings. Such decision shall be final.

(d) The ambulance company shall keep a record of all complaints and how each is resolved for the preceding 24-month period when the call that is the subject of the complaint originates within the city.

(Code 1980, § 12-2-9; Ord. No. 93-252, § 1, 10-26-1993; Ord. No. 99-70, § 1(12-2-9), 5-11-1999; Ord. No. 12-165, § 1(12-2-9), 12-18-2012)

Sec. 12-2-10. Promulgation of additional standards and regulations.

(a) The chief of police and fire chief are hereby authorized to establish, with the approval and concurrence of the EMS committee, additional

procedures, standards and regulations for the administration of this chapter and operation of ambulances by permit holders not in conflict with any provision of this chapter. Such standards and regulations shall include and set forth the procedures to be followed in processing and handling complaints against permit holders made to the city, may clarify any provision of this chapter and may establish any procedure necessary to the accomplishment of the provisions of this chapter.

(b) Such standards and regulations as shall be established in accordance with subsection (a) of this section and the effective date of implementation of such changes, which date shall be a minimum of 30 days subsequent to the date of said notice, shall be mailed to all permit holders hereunder. If no written objections are made 14 days prior to the scheduled implementation date such changes shall forthwith take effect.

(c) Any ambulance company objecting to any proposed standard or regulation shall notify the fire chief in writing detailing such complaint at least 14 days prior to the effective date of implementation as stated in the notice. Any such items objected to shall be reviewed by the fire chief, police chief and the EMS committee prior to the effective date of implementation and a written response given to the complainant. If such response results in amendments to the standards and regulations and/or the implementation date all ambulance companies shall be given written notice of such changes as provided herein.

(d) The standards and regulations, or any part thereof, as provided herein, may be revoked at any time by appropriate action of the council. (Code 1980, § 12-2-10; Ord. No. 93-252, § 1, 10-26-1993; Ord. No. 99-70, § 1(12-2-10), 5-11-1999; Ord. No. 12-165, § 1(12-2-10), 12-18-2012)

ARTICLE B. PERMITS

Sec. 12-2-11. Permit to provide ambulance service, decals, licenses and insurance required; nontransferable; exemption.

(a) No ambulance shall operate on any street of the city without having first been issued an annual ambulance permit and a decal for each ambulance from the fire chief, an annual business license from the director of finance of the city and current and valid insurance as provided herein. The annual decal shall not be transferred from one vehicle to another. The ambulance decal shall be issued by the city upon submission of proof that the ambulance has a current inspection (within one year of the previous inspection) by state department of public health 10 EMST. In addition to the standards listed in this section, the city, at its discretion, may inspect any ambulance operating on any street of the city applying the following standards:

(1) The cost of inspection services for each ambulance, selected by the city for inspection or an ambulance that does not hold a current state department of public health 10 EMST inspection, shall be $25.00.

(2) Inspection fees for the number of ambulances to be inspected shall be due at the time the annual application is submitted.

(3) Ambulance inspection appointments shall be made for each ambulance company.

(4) Ambulance inspection fees must be paid at the time the inspection appointments are made.

(5) Ambulance inspection fees will be forfeited if the ambulance is not present at the inspection area at the time of its appointment unless 24 hours' notice is given to the BFRS EMS director or his or her designee.

(6) Ambulances for which the inspection fee has been forfeited will be required to pay an additional fee of $25.00 at the time of inspection.

(7) Any ambulance which does not meet the inspection may be reinspected one time at no additional charge. Any ambulance that does not meet the inspection criteria two times will require payment of an additional $25.00 fee at the time of any subsequent inspection.

(b) All licenses and permits which are issued pursuant to the provisions of this chapter are nontransferable. Any change or transfer of owner-

ship shall terminate such licenses and permits and shall require a new application in conformance with all the requirements of this chapter as upon an original application.

(c) Violation of subsection (a) of this section may result in a fine of up to $500.00.

(d) Notwithstanding the provisions of subsection (a) of this section, the fire chief is authorized to issue temporary, one-time permits for the use of ambulances to support any operation by any licensed health-care facility making an entire relocation from one premises within the city to another premises within the city under the following conditions:

(1) The ambulance company must hold a current, valid City of Birmingham annual ambulance permit and business license;

(2) The ambulance company shall only use ALS ambulances holding current, valid state department of public health authorization to operation in the state;

(3) Personnel staffing the ALS ambulances must comply with all state department of public health permit requirements;

(4) The ambulance company must show proof of insurance in compliance with the provisions of Title 12, Chapter 2 of this Code;

(5) The ambulance company shall submit proof of compliance with the above-listed requirements on a form prescribed by the fire chief;

(6) The form shall be accompanied by a fee of $25.00 per unit to be used in the relocation operation that does not have a current city annual ambulance permit;

(7) The fire chief may issue the temporary permit for a period of time to accommodate the complete relocation of all patients from one facility to another facility within the city, not to exceed seven days;

(8) The ambulance company shall provide to the fire chief at least 72 hours in advance of the anticipated move start time a completed ambulance service permit request for each ALS ambulance as well as the additional emergency medical services personnel with the state license number, name of licensee and certification level of the license;

(9) Each ambulance service shall ensure that each ALS ambulance permitted under this subsection displays the temporary permit, in a form prescribed by the fire chief, on the driver's side dashboard at all times during the relocation event.

(Code 1980, § 12-2-11; Ord. No. 93-252, § 1, 10-26-1993; Ord. No. 99-70, § 1(12-2-11), 5-11-1999; Ord. No. 12-165, § 1(12-2-11), 12-18-2012; Ord. No. 15-121, § 1, 8-25-2015)

Sec. 12-2-12. Requirement exceptions.

No annual permit shall be required for any person operating an ambulance or other vehicle under the following conditions:

(1) Rendering assistance during any catastrophe or major emergency when the ambulances authorized to operate in the city by annual permit are either insufficient in number or inadequate for any other reason as determined by the fire chief or fire dispatch center.

(2) Operating an ambulance brought into the city solely for the purpose of a drill or training exercise.

(3) Specialty care transport units which are owned and operated by hospitals located within the city.

(4) Operation of air ambulances and fixed-wing aircraft that do not conduct scene flights.

(Code 1980, § 12-2-12; Ord. No. 93-252, § 1, 10-26-1993; Ord. No. 99-70, § 1(12-2-12), 5-11-1999; Ord. No. 12-165, § 1(12-2-12), 12-18-2012)

Sec. 12-2-13. Application for annual permit.

Applications for an annual permit for the operation of an ambulance within the city shall be in writing, signed and sworn to by the applicant and accompanied by an annual permit fee of $400.00, and shall be filed with the fire chief on

such forms as may be prepared by the fire chief and shall contain at least the following information:

(1) The trade name under which the applicant does or proposes to do business; if the applicant is an individual, the name, age and address of the applicant and the length of time the applicant has resided in the city; or if a partnership or association, the business name thereof and the name, age and address of each partner and the length of time each partner has resided in the city; or if a corporation, the names and addresses of all officers and directors of such corporation.

(2) The number of vehicles the applicant desires to have included under its permit and the class, size, design and color scheme, insignia, name, monogram or other distinguishing characteristics to be used to designate the applicant's vehicle.

(3) Whether or not the applicant has ever been convicted of any federal or state crime, or a violation of any city ordinance, the disposition of same and place of conviction.

(4) Whether or not the applicant, his or her associates or employees have any claims or judgments against them for damages resulting from the negligent operation of an ambulance, or any other vehicle, the disposition of same and place of claim or judgment.

(5) Documentation from the applicant's insurance carrier, stating that the insurance required hereunder is available to the applicant and that such coverage is or will be provided prior to the issuance of the annual permit to operate hereunder.

(6) The training, experience, and credentials of the applicant and any employees of the applicant in the transportation and care of patients. This roster must be updated quarterly and be mailed or delivered to the fire chief or his or her designee.

(7) A description of each ambulance, to include its exterior colors; equipment; the make, model, and year of manufacture; vehicle identification number; motor and chassis number; current state license number; and the length of time the vehicle has been in use. This roster must be updated each time an ambulance used for patient transport in the city is permanently removed from service and when an ambulance intended for patient transport in the city is placed into service.

(8) The location and description of the place or places from which the applicant intends to conduct the ambulance service.

(9) State license number for ambulance companies and for each of its EMTs.

(10) A receipt from the director of finance showing payment of the annual permit fee of $400.00.

(Code 1980, § 12-2-13; Ord. No. 93-252, § 1, 10-26-1993; Ord. No. 99-70, § 1(12-2-13), 5-11-1999; Ord. No. 12-165, § 1(12-2-13), 12-18-2012)

Sec. 12-2-14. Investigation of applications.

The fire chief and the chief of police shall investigate the facts set out in the application within 30 days of receipt thereof. If the chief of police and the fire chief find that:

(1) The facts set out in the application appear to be complete, true and correct;

(2) Each such ambulance, its required equipment and the premises designated in the application meet the requirements of this chapter and other applicable laws, ordinances and regulations;

(3) The applicant is a responsible and proper person to conduct, carry on or engage in the proposed business; and

(4) The requirements of this chapter and all other applicable laws and ordinances relating to the application have been met;

then the fire chief shall issue the annual permit.

(Code 1980, § 12-2-14; Ord. No. 93-252, § 1, 10-26-1993; Ord. No. 99-70, § 1(12-2-14), 5-11-1999; Ord. No. 12-165, § 1(12-2-14), 12-18-2012)

Sec. 12-2-15. Reserved.

Sec. 12-2-16. Form, contents, and issuance of annual permit.

(a) Every annual permit issued hereunder shall be signed by the fire chief and shall contain, in addition to the name and address of the applicant, the number of vehicles authorized to be operated pursuant to such annual permit.

(b) A copy of every annual permit issued shall be filed with and maintained by the city fire and rescue service and the city clerk's office.

(c) Every permit holder shall post his or her permit prominently in the central place of business as provided for herein.

(Code 1980, § 12-2-16; Ord. No. 93-252, § 1, 10-26-1993; Ord. No. 99-70, § 1(12-2-16), 5-11-1999; Ord. No. 12-165, § 1(12-2-16), 12-18-2012)

Sec. 12-2-17. Revocation, alteration or suspension of permit—Causes.

(a) Every ambulance permit issued hereunder shall be subject to revocation, alteration or suspension by the city as provided in this chapter for failure to comply or maintain compliance with this chapter or if any of the following conditions should occur:

(1) Failure to respond when requested by BFRS in accordance with the ambulance backup plan.

(2) The owner has refused to render the full service authorized and required by his or her permit.

(3) The owner has been convicted of a crime which directly relates to the duties and responsibilities of the ambulance operation.

(4) The business license, annual decals or annual permit was obtained by an application in which any material fact was intentionally omitted or falsely stated.

(5) The owner has persisted in permitting his or her ambulances to be operated in violation of any law or section of this chapter.

(6) The owner has:

a. Willfully and knowingly violated; or

b. Failed to comply, after written notice of violation or noncompliance with;

any of the material provisions of this chapter or the ambulance backup plan.

(7) The owner or his or her agent has, without good cause, induced or sought to in-

duce a change of destination to or from a hospital or other place specified by the person hiring the ambulance.

(8) The owner or his or her agent has allowed the ambulance service to be operated in a negligent manner.

(9) The insurance coverage required herein has been canceled, reduced, withdrawn, suspended or terminated.

(10) The owner has allowed any of his or her vehicles or equipment to become damaged, deteriorated or unclean to the extent that they are unsatisfactory for public use.

(11) The owner fails to maintain the financial ability to comply with the terms of this chapter.

(12) The owner has failed to comply with applicable federal, state or local laws, ordinances or regulations.

(13) The owner fails to comply with the complaint procedures as set out in this chapter and as adopted by the fire chief.

(14) The owner has operated or permitted to be operated an ambulance which does not have a current, valid city ambulance decal for such ambulance.

(b) Violations of any of these requirements may result in a fine of up to $500.00.
(Code 1980, § 12-2-17; Ord. No. 93-252, § 1, 10-26-1993; Ord. No. 99-70, § 1(12-2-17), 5-11-1999; Ord. No. 12-165, § 1(12-2-17), 12-18-2012)

Sec. 12-2-18. Same—Procedure.

(a) The police chief or the fire chief may at any time give notice in writing to the permit holder or person in control of the operation and maintenance of such ambulance service and the EMS committee that he or she is requesting that the annual permit issued for the operation and maintenance of such ambulance service be suspended, altered or revoked. The notice shall outline the reason for suspension, alteration or revocation.

(b) Any applicant who has been denied an annual ambulance permit or decal for any individual ambulance vehicle by the fire chief may appeal such denial to the EMS committee. Such appeal shall be made in writing to the fire chief within ten days of the date of the written notice of denial.

(c) The fire chief shall forward to the EMS committee any appeal of denial of an annual ambulance permit and/or appeal of denial of decal for an ambulance vehicle, a copy of the application, all information in connection with such application, and the reasons for denial.

(d) The fire chief or police chief may suspend an ambulance permit for any of the reasons listed in section 12-2-17 for a period not to exceed ten days. Notice shall be given in writing to the permit holder by certified mail to the address of record of the permit holder or by personal delivery. Such written notice shall set out the offense or violation giving rise to the suspension and request for suspension or revocation of the ambulance permit and a date, time and location for a hearing before the EMS committee. The hearing shall be conducted not less than seven days from the date of written notice to the permit holder.

(e) If the fire chief or police chief removes an ambulance from service, the permit holder may appeal such removal from service to the EMS committee. Such appeal shall be made in writing within ten days of the removal from service. The vehicle shall remain out of service until either it is approved to return to service by the fire chief or police chief or the EMS committee after such appeal.

(f) The EMS committee may appoint a subcommittee to hear appeals from denials of annual ambulance permits and/or decals, recommendations for suspension or revocation of an ambulance permit and appeals for denial of ambulance decals and removal from service of ambulance vehicles.

(g) The applicant or permittee may be represented at the hearing by an attorney of his or her choosing and he or she may present witnesses and have the right of cross examination of witness against him or her concerning the charges. After hearing all evidence and witnesses presented, the EMS committee or its appointed subcommittee shall render a decision of its findings in writing to

the ambulance company, the fire chief and police chief within five business days. The EMS committee or its appointed subcommittee, upon finding due cause, may uphold the denial of the permit or suspend or revoke the license of the holder thereof. The decision of such committee or subcommittee shall be final.

(h) Upon suspension, revocation or termination of permit, such ambulance service shall immediately cease operation within the city.
(Code 1980, § 12-2-18; Ord. No. 93-252, § 1, 10-26-1993; Ord. No. 99-70, § 1(12-2-18), 5-11-1999; Ord. No. 12-165, § 1(12-2-18), 12-18-2012)

Sec. 12-2-19. Permit holder's records and reports.

(a) Each permit holder shall maintain a daily manifest upon which shall be recorded the date of call, time call received and name of individual calling, time of arrival at requested location, place of origin, patient's name and address, destination and charges for each trip and shall retain and preserve all daily manifests for at least 24 months. Each permit holder hereunder shall keep accurate records of receipts and expenses from operations and such other operating information as may be required by the fire chief. Prehospital reports on all patients shall be retained for a period of not less than 365 days, as shall all voice tapes of dispatches and instructions.

(b) Copies of daily manifests for the previous month, broken out to indicate those calls in which the points of origin or termination were within the city.

(c) Each permit holder shall provide to the fire chief an annual statement which includes the following:

(1) A list of any legal claims pending, or resolved in the past year.

(2) A statement of the total number of calls made in the previous calendar year broken out to indicate those calls in which the points of origin and termination were within the city.

(Code 1980, § 12-2-19; Ord. No. 93-252, § 1, 10-26-1993; Ord. No. 99-70, § 1(12-2-19), 5-11-1999; Ord. No. 12-165, § 1(12-2-19), 12-18-2012)

Sec. 12-2-20. Reserved.

ARTICLE C. PRIVATE AMBULANCE SERVICE GENERAL RULES AND REGULATIONS

Sec. 12-2-21. Duties and responsibilities.

(a) Ambulance services within the city shall have the following duties and responsibilities:

(1) Interhospital transfer of medically stable or unstable patients that require an EMT-intermediate or EMT-paramedic to monitor fluids, EKG rhythms or administer medications.

(2) Continuation of transport for patients who, during routine nonemergency transport, develop problems that require ALS procedures.

(3) Continuation of transport instituted outside of the city limits to a receiving facility inside the city.

(4) Transportation of patients to facilities outside of the BFRS service area to which the fire and rescue service declines to transport.

(5) Transportation of any patient needing ambulance transportation who requires a routine nonemergency response.

(6) Any duties assigned pursuant to providing ambulance and/or EMS services under a mass gathering permit issued pursuant to chapter 5 of this title.

(7) Providing transportation and/or EMS and medical aid to any patient when requested by BFRS arising out of an E-911/emergency call or mass casualty incident in accordance with the ambulance backup plan, provided, however, that the ambulance company shall be responsible for the billing and collection of fees resulting from such calls.

(8) Responding within ten minutes to any call requested by BFRS arising out of an E-911/emergency call in accordance with the ambulance backup plan.

(9) Removing any vehicle from service which does not meet the equipment, safety and sanitation requirements of this chapter and/or the state department of health ambulance regulations.

(b) Violation of any part of this section may result in a fine of up to $500.00.
(Code 1980, § 12-2-21; Ord. No. 93-252, § 1, 10-26-1993; Ord. No. 99-70, § 1(12-2-21), 5-11-1999; Ord. No. 12-165, § 1(12-2-21), 12-18-2012)

Sec. 12-2-22. Central place of business.

Each ambulance service owner shall maintain a place of business within the city with at least one properly listed telephone for receiving all calls for ambulance service, where all business records and daily manifests herein required shall be made available within 24 hours upon request of the police chief and/or the fire chief. Each owner shall, in writing, immediately notify the police and fire chiefs of any change of the business address or of the telephone number where said owner may be contacted at all times.
(Code 1980, § 12-2-22; Ord. No. 93-252, § 1, 10-26-1993; Ord. No. 99-70, § 1(12-2-22), 5-11-1999; Ord. No. 12-165, § 1(12-2-22), 12-18-2012)

Sec. 12-2-23. Reserved.

Sec. 12-2-24. Equipment required.

It shall be unlawful to operate any ambulance within the city when responding to a patient transport, which is not equipped with all of the equipment required by rule or regulation of the state department of public health, as the same may be amended from time to time, which equipment shall be in satisfactory working condition.
(Code 1980, § 12-2-24; Ord. No. 93-252, § 1, 10-26-1993; Ord. No. 12-165, § 1(12-2-24), 12-18-2012)

Sec. 12-2-25. Equipment changes, objections, adoption.

(a) The fire chief, upon making a determination based on procedures and equipment approved and/or adopted by the state EMS committee and BREMSS that changes are necessary to the list of equipment required to be on board any ambulance operating in the city, shall notify the city council by submitting a list detailing the proposed changes and the effective date of implementation of such changes, which date shall be a minimum of 30 days subsequent to the date of said notice. Such notice shall also be sent to all ambulance companies operating in the city as of the date of the proposed changes are submitted.

(b) Any councilmember or ambulance company objecting to any proposed change shall notify the fire chief and the city clerk in writing detailing such complaint at least 14 days prior to the effective date of implementation as stated in the notice. Any such items objected to shall be set for council hearing prior to the effective date of implementation. If no written objections are made 14 days prior to the scheduled implementation date such changes shall forthwith take effect.
(Code 1980, § 12-2-25; Ord. No. 93-252, § 1, 10-26-1993)

Sec. 12-2-26. Inspection of equipment.

(a) All mechanical, safety and special equipment shall be subject to inspection at any time by the police department or fire department.

(b) Prior to issuance of any permit and annually thereafter the holder of the permit shall submit a safety and soundness inspection report including both his or her and the inspecting mechanic's affidavit that each vehicle is in sound mechanical condition and is safe for operation on the streets of the city as an emergency vehicle and meets the police department's criteria and all provisions of this chapter.

(c) It shall be unlawful for any person to transport a patient in an ambulance or to place such ambulance in service subsequent to an accident involving such vehicle or alteration of such vehicle until the vehicle has been inspected by the chief of police or his or her designee and determined by him or her to be in proper operative condition and in compliance with all the requirements of this chapter and a new safety and soundness affidavit submitted as provided herein; provided, however, that this section shall not prohibit such an ambulance to continue the trans-

portation of a patient who was being transported at the time of the accident when such can be done safely.

(d) The police chief and fire chief or their designees shall be responsible for the annual inspection of said vehicles to insure that said vehicles are equipped in accordance with this chapter prior to issuance of a permit and at periodic intervals of their discretion. The periodic inspection required hereunder shall be in addition to any other safety or motor vehicle inspection required to be made for ambulances or other motor vehicles, or other inspections required to be made under general law or ordinance, and shall not excuse compliance with any requirement of law or ordinance to display any official certificate of motor vehicle inspection and approval, nor excuse compliance with the requirements of any other applicable general law or ordinance.
(Code 1980, § 12-2-26; Ord. No. 93-252, § 1, 10-26-1993; Ord. No. 99-70, § 1(12-2-26), 5-11-1999; Ord. No. 12-165, § 1(12-2-26), 12-18-2012)

Sec. 12-2-27. Operating regulations.

(a) Each ambulance shall have on each side thereof in letters not less than four inches in height the name of the ambulance service, the designation "Ambulance" as appropriate, the vehicle number assigned by Birmingham Regional Emergency Medical Services System (BREMSS) on the back door or doors of the vehicle in numerals not less than six inches in height, and on each side of the vehicle there shall appear the symbol of the "Star of Life." Any additional emblems or markings shall have the approval of the chief of police and fire chief or their designees.

(b) Each ambulance shall at all times while in use:

(1) Be suitable for the transportation of patients from the standpoint of health, sanitation and safety and be maintained in sanitary condition.

(2) Contain adequate safety belts for the driver and a passenger in the front seat and all seating in the patient compartment (head of cot and three on bench) which shall conform with the standards, requirements and regulations for such equipment and which shall be in proper working order.

(3) Comply with all applicable laws, ordinances and regulations relating to health, sanitation and safety.

(4) Be equipped with such lights, sirens and special markings to designate it as an ambulance as may be prescribed by law or in reasonable regulations promulgated by the chief of police or fire chief.

(c) No owner shall permit or allow a person to perform duties as an ambulance EMT (all levels) without a current permit issued by the police chief in accordance with this chapter.

(d) In a medical emergency as declared by city fire and rescue service and when no other practical means of transportation, including any other properly equipped permit holder, is reasonably available, an ambulance may deviate from the terms of this chapter to the extent necessary to meet the medical emergency, provided, however, that such ambulance shall be required to provide immediate notification to BFRS dispatch.
(Code 1980, § 12-2-27; Ord. No. 93-252, § 1, 10-26-1993; Ord. No. 99-70, § 1(12-2-27), 5-11-1999)

Sec. 12-2-28. Removal of ambulance from service.

(a) If any ambulance shall fail to meet any of the safety, equipment or sanitation standards of this chapter or the state department of health emergency services regulations or such vehicle has been wrecked or damaged, such vehicle shall be deemed to be an unserviceable vehicle and unfit for public use and may be removed from service until the vehicle is brought into compliance.

(b) No person shall drive and no permit holder shall permit a person to drive an ambulance upon a public street after the same has been declared unserviceable by the fire chief or the police chief until such time as the same shall be repaired and/or brought into compliance with this chapter and state ambulance regulations.

(c) Any permit holder and/or any driver who operates or allows any ambulance to be operated when such vehicle has been taken out of service for failure to comply with this section shall punished according to the general penalties described in section 1-1-6.
(Code 1980, § 12-2-28; Ord. No. 93-252, § 1, 10-26-1993; Ord. No. 99-70, § 1(12-2-28), 5-11-1999; Ord. No. 12-165, § 1(12-2-28), 12-18-2012)

Secs. 12-2-29, 12-2-30. Reserved.

ARTICLE D. INSURANCE

Sec. 12-2-31. Liability insurance required.

(a) No permit required by this chapter or business license shall be granted to any person to operate any ambulance upon the streets or elsewhere in the city until such person shall have first filed with the city clerk a personal injury and property damage liability insurance policy issued to such person by a public liability insurance company authorized to do business in the state with a Best rating of B^+ or better, providing insurance coverage for each such ambulance or as follows:

(1) For each ambulance, such insurance policy shall provide insurance coverage in the amount of $1,000,000.00 for personal injury or death arising from any one accident and $50,000.00 for property damage liability and uninsured motorist's liability coverage in the sum of $20,000.00 per person for bodily injury liability and $40,000.00 per accident for bodily injury liability or $1,000,000.00 combined single limit liability with $1,000,000.00 excess liability coverage whether the operation of any such vehicle is by such person, his or her agent, servant or employee, or by any person in possession of such vehicle.

(2) The insurance coverage required by this section shall at all times be maintained for the full amount. The policy of insurance required by this section to be filed with the city clerk shall contain a clause obligating the company issuing the same to give not less than 30 days' written notice to the city clerk before cancellation thereof. Notice of cancellation shall not relieve the company issuing such policy of liability for any injury or claim arising before the cancellation becomes effective. The cancellation of any such policy shall have the effect of suspending the permit of such person to operate the ambulances covered thereby until a new policy complying with the provision of this section is filed with the city clerk.

(3) Every insurance policy required hereunder shall contain a provision for a continuing liability thereunder to the full amount thereof, notwithstanding any recovery thereon, that the liability of the insurer shall not be affected by the insolvency or the bankruptcy of the insured, and that until the policy is canceled the insurance company will not be relieved from liability on account of nonpayment of premium, or any act or omission by the named insured. Such policy of insurance shall be further conditioned for the payment of any and all judgments, up to the limits of such policy, recovered against any person other than the owner, his or her agent or employee who may operate the same with the consent or acquiescence of the owner.

(4) In order to meet the policy filing requirements herein, as an alternative, the insured may file a binder of liability and property damage insurance as required hereinabove and a letter from the insuring agent which shall state that the coverage is bound, the name of the company, the effective date of coverage, the limits of liability and a list of all vehicles covered and proof that said agent has the ability to bind the issuing company. The policy of insurance so bound shall be filed with the city clerk within 60 days of the effective date of coverage.

(b) All licenses, permits and decals issued for the operation of ambulances shall be inoperative and ineffective unless and until all the provisions of this section shall have been complied with; and no person shall operate or drive or

permit or allow to be operated or driven within the city any ambulance unless all the provisions of this section have been complied with.

(c) Failure of a permit holder to meet or maintain the insurance requirements of this article on any vehicle shall result in such vehicle being removed from service immediately and remain out of service until the insurance requirements are met and shall be cause for revocation of the decal on each vehicle for which no or inadequate proof of insurance is filed within 30 days after the due date.

(d) Any permit holder whose permit is revoked by the city council for failure to meet or maintain the insurance requirements of this article shall be required to reapply for a new permit as required in section 12-2-13.

(e) Any permit holder and/or any driver who operates or allows any such vehicle to be operated when such vehicle has been taken out of service for failure to comply with this article shall be fined not less than $250.00 for the first offense and not less than $500.00 for the second and each subsequent offense in a calendar year. (Code 1980, § 12-2-31; Ord. No. 93-252, § 1, 10-26-1993; Ord. No. 99-70, § 1(12-2-31), 5-11-1999)

Secs. 12-2-32—12-2-40. Reserved.

ARTICLE E. RATES AND FEES

Sec. 12-2-41. Enumerated.

No person owning or having charge of any ambulance permitted under this chapter while operating in the city shall make any charges in excess of 150 percent of the Centers for Medicare and Medicaid Services (CMS) allowable charges in effect at the time of transport for the following services:

(a) *Transport services.*

Transport of a BLS non-emergency patient. Transportation by ground ambulance vehicle and the provision of medically necessary supplies and services including BLS ambulance services as defined by the CMS.

Transport of a BLS emergency patient. Transportation by ground ambulance vehicle and the provision of BLS services, as specified above, in the context of an emergency response. An emergency response is one that, at the time the ambulance provider is called, it responds immediately.

Transport of an ALS patient. Transportation by ground ambulance vehicle and the provision of medically necessary supplies and services including the provision of an ALS assessment as defined by CMS.

Transport of an ALS1 patient. Transportation by ground ambulance vehicle and the provision of medically necessary supplies and services including the provision of an ALS assessment or at least one ALS intervention as defined by CMS.

"Transport of an ALS2 patient. Transportation by ground ambulance vehicle and the provision of medically necessary supplies and services including (1) at least three separate administrations of one or more medications by intravenous push/bolus or by continuous infusion or (2) the provision of an ALS assessment or at least one ALS2 procedure as defined by CMS.

Mileage. One-way from pickup to delivery per patient loaded mile or fraction thereof.

(b) *Waiting charges.* In addition to the charges enumerated above, any ambulances required to wait for a patient at any hospital, clinic, medical office or nursing home may charge $150.00 per hour after a waiting period of 30 minutes, with a minimum charge of $100.00; provided, however that no waiting charge will be made for a standby at the scene of any accident or disaster.

(c) *Family members.* There shall be no charge for any family member or other person accompanying a patient or injured party being transported in an ambulance.

(d) *Extra patients.* When more than one injured person or patient is being transported by an ambulance at the same time, the maximum transportation charge shall be one-half of all of the allowed billing amount per person. Each patient transported shall be individually liable for only his entire transportation charge, and in no case shall a sum in excess of the total maximum billing be collected. If any one injured person or patient fails to pay any part of the transportation charge, there shall be no release of liability against any other injured person or patient for payment of transportation charges.

(e) *Accept assignment.* Any ambulance or ambulance company operating in the city shall accept "assignment" of Medicare or Medicaid, and shall not bill any patient for more than the "Medicare allowed amount" as stated in the Medicare assignment agreement.

(f) *Mandatory transportation.* Any patient, regardless of their ability to pay, shall be provided transportation by the requested permit holder to the appropriate medical facility and/or from the hospital to their residence if ambulance transfer is the only appropriate means of transportation.

(g) *Posting.* A schedule of the maximum charges allowed above, expressed in dollar amounts, shall be posted in a conspicuous place in the ambulance patient compartment in view of the patient and shall be provided in writing to each patient upon completion of each trip upon request. Such schedule shall include the names and telephone numbers of the appropriate persons at the ambulance company, fire department or police department to call concerning complaints and shall be kept up-to-date with the applicable Medicare/Medicaid allowable charges.

(h) *Refusal to pay for service; deferred payment plans.* No person shall obtain ambulance service or assistance from any ambulance service provider, whether or not such service is regulated by the provisions of this chapter with intent to refuse to pay for same upon demand, and no person after obtaining such service or assistance shall willfully refuse to pay for same on demand unless there exists a bona fide dispute as to amount owed or unless there is an agreement for credit or deferred payment, provided that, on request of the person obtaining ambulance service and upon presentation of proper identification, a written deferred payment plan shall be offered to that person for his signature, which deferred payment plan shall be on such terms as agreed, provided further that, if no agreement can be reached, then the offered plan shall require no less than four monthly installment payments, each approximately one-fourth of the total of the authorized charge plus an additional time-pay price differential charge of five dollars. Interest may not be charged on the amount due. Reasonable proof of financial indigence shall be a defense to any prosecution for violation of this section.

(i) *False information given to EMT.* It shall be unlawful for any person who has obtained ambulance service to willfully fail to give his/her correct name, social security number, residence address, and date of birth to the EMT providing ambulance service after having been requested to do so.

(Code 1980, § 12-2-41; Ord. No. 93-252, § 1, 10-26-1993; Ord. No. 95-172, 10-24-1995; Ord. No. 99-70, § 1(12-2-41), 5-11-1999; Ord. No. 12-165, § 1(12-2-41), 12-18-2012; Ord. No. 18-26, § 1, 2-9-2018)

Secs. 12-2-42—12-2-50. Reserved.

ARTICLE F. PRIVATE AMBULANCE SERVICE VEHICLE PERMIT

Sec. 12-2-51. Annual permit and decal—Required for each vehicle.

(a) After the owner shall have secured an annual permit as provided herein, no vehicle shall be operated under authority of such permit

until the owner has been issued an annual decal for each motor vehicle to be operated under said permit. No decal shall be issued for the operation of any ambulance which is unsafe or unfit for the transportation of patients.

(b) It shall be unlawful to own or cause to be operated an ambulance on any street of the city without first having obtained an annual permit and decal therefor in accordance with this chapter or unless exempted therefrom by the provisions of this chapter.

(c) Decals for additional or replacement ambulances may be issued at any time during the calendar year after the ambulance is inspected by personnel designated by the police and fire chiefs or, upon request, proof of a current state department of public health inspection.
(Code 1980, § 12-2-51; Ord. No. 93-252, § 1, 10-26-1993; Ord. No. 99-70, § 1(12-2-51), 5-11-1999; Ord. No. 12-165, § 1(12-2-51), 12-18-2012)

Sec. 12-2-52. Same—Fees.

No annual permit or decal for any ambulance shall be issued unless the holder thereof has paid an annual permit fee of $400.00 for each company and an annual decal fee of $25.00 for each vehicle to be operated within the city. The number of ambulances for which decals are issued shall not exceed the number authorized in the annual ambulance permit issued pursuant to this chapter. The permit and decals required herein shall be valid for one calendar year, beginning January 1 and ending December 31 of such year, and any owner desiring to continue the operation of any ambulance shall make application for renewal of any and all permits and decals issued hereunder prior to December 1, of any year for the privilege of operating during the following calendar year. The fees shall accompany the application and shall not be refundable. The amount of the permit fees hereunder prescribed shall not be pro-rated for fractional parts of a calendar year, nor shall it relieve the owner of the necessity of obtaining any city, state or county business or occupation licenses, payment of any other tax or complying with any other requirement established by statute or ordinance. Each decal shall designate a specific ambulance and shall not be transferable nor assignable without the prior written consent of the fire chief.
(Code 1980, § 12-2-52; Ord. No. 93-252, § 1, 10-26-1993; Ord. No. 99-70, § 1(12-2-52), 5-11-1999; Ord. No. 12-165, § 1(12-2-52), 12-18-2012)

Secs. 12-2-53—12-2-60. Reserved.

ARTICLE G. PRIVATE AMBULANCE PERSONNEL

Sec. 12-2-61. EMT license required.

No ambulance EMT shall drive, manage or control any ambulance on any public street in the city, attend or render any care to any passenger, or otherwise perform duties in any such ambulance for compensation without having a current valid EMT license issued by the state department of public health.
(Code 1980, § 12-2-61; Ord. No. 93-252, § 1, 10-26-1993; Ord. No. 12-165, § 1(12-2-61), 12-18-2012)

Sec. 12-2-62. Appearance and conduct of EMTs.

(a) No EMT shall operate on the streets of the city without wearing a distinctive uniform which shall first have been approved by the fire chief.

Each such uniform shirt shall bear a badge or patch on the left shoulder with some identity or trade name of the company and the EMT's license level appearing thereon. Uniforms worn must be clean.

(b) It shall be unlawful for any owner to permit or allow an EMT to work while not sanitary or not clean and neat in appearance.

(c) It shall be unlawful for any owner to permit or to allow an EMT employed by their ambulance service to be discourteous, to use vulgar, profane or obscene language, or to drink or be under the influence of intoxicating beverages or drugs while on duty.

(d) Complaints made against individual EMTs and reported to the state and sanctioned or not sanctioned by the state may be reviewed by the city. If the city deems the implemented sanctions determined by the state inadequate, the city may implement sanctions or additional sanctions against the individual EMT. The individual EMT will have appeal rights to the EMS committee.

(e) Background checks performed by private services on EMT employees shall be made available to the city for review within 24 hours upon request.
(Code 1980, § 12-2-62; Ord. No. 93-252, § 1, 10-26-1993; Ord. No. 12-165, § 1(12-2-62), 12-18-2012)

Secs. 12-2-63—12-2-70. Reserved.

ARTICLE H. EMERGENCY MEDICAL SERVICES COMMITTEE

Sec. 12-2-71. Created; purpose.

There is hereby created the emergency medical services committee of the city, for the purpose of surveying, evaluating and providing recommendations for improving all aspects of the city's emergency medical care, services and facilities including all ambulance companies and hospital emergency services and serving as an advisory body to the city council for the coordination of all lay and professional activities necessary to provide emergency care, transportation, and definitive treatment of emergency medical cases to the victims of accidental injury and sudden illness; and to investigate, study, advise and recommend minimum standards for care of emergency victims including mass casualty incidents; and to hear appeals of the denial, suspension or revocation of ambulance permits, decals and EMT permits; and to advise and recommend to the city council the minimum standards for highest possible efficiency in day-to-day care of emergency victims including victims of mass casualty incidents.
(Code 1980, § 12-2-71; Ord. No. 93-252, § 1, 10-26-1993; Ord. No. 99-70, § 1(12-2-71), 5-11-1999)

Sec. 12-2-72. Membership.

The emergency medical services committee shall consist of 29 members to be approved by the city council as follows:

(a) Two representatives each from:

The Alabama Committee on Trauma of the American College of Surgeons;

The Jefferson County Medical Society;

The American Red Cross;

The Alabama Hospital Association-Birmingham Regional Council;

The city police department (the chief and a named representative);

The city fire and rescue service (the chief and a named representative);

The Birmingham Area Chapter of the Emergency Department Nurses Association; and

The Alabama Chapter of the American College of Emergency Physicians;

all of whom shall be appointed as voting members by the city council for a term of three years from representatives designated by the agencies or organizations named in this subsection (1).

(b) One representative each from:

The city law department;

The Jefferson County Emergency Management Agency;

The Jefferson County Department of Health;

The Mineral District Medical Society;

The Jefferson County Coroner's Office;

The city council administrative staff;

The Birmingham Regional EMS System;

The Jefferson State EMS/Paramedic Program;

The American Heart Association;

The VA Area Emergency Managers;

The Birmingham Area Safety Officers;

The Children's Hospital of Alabama; and

The city clerk;

all of whom shall be appointed as a voting member by the city council for a term of three years from a representative designated by the agencies or organizations named in this subsection (2).

(c) There shall further be associate members without voting privileges who may be appointed by and serve at the pleasure of the chairperson of the committee. The chairperson of this committee shall appoint one member from each permitted service.

(d) All members of the committee are appointed in their status as representatives of the named organization or by virtue of their office, therefore if a person representing an organization of holding an office leaves the organization or office that position shall become vacant. The chairperson of the EMS committee shall notify the city clerk of any vacancy occurring in its voting membership. Any vacancy on the committee shall be filled by the council for the unexpired term of such vacancy. Members shall serve until their successors are appointed and qualified.

(Code 1980, § 12-2-72; Ord. No. 93-252, § 1, 10-26-1993; Ord. No. 94-38, 2-15-1994; Ord. No. 99-70, § 1(12-2-72), 5-11-1999; Ord. No. 00-82, § 1, 5-30-2000; Ord. No. 12-165, § 1(12-2-72), 12-18-2012; Ord. No. 15-121, § 1, 8-25-2015)

Sec. 12-2-73. Officers, subcommittees.

(a) The members of the committee shall elect a chairperson, a vice-chairperson and secretary annually from among their voting membership by a majority vote.

(b) The committee may appoint such subcommittees as needed to more efficiently carry out the functions of the committee, with members to be appointed by the chairperson with the approval of a majority of the voting members of the committee.

(Code 1980, § 12-2-73; Ord. No. 93-252, § 1, 10-26-1993)

Sec. 12-2-74. Meetings; quorum.

(a) The committee shall meet at least six times a year and as directed by the chairperson.

(b) Fifteen voting members of the committee shall constitute a quorum for any meeting or hearing.

(Code 1980, § 12-2-74; Ord. No. 93-252, § 1, 10-26-1993; Ord. No. 94-38, 2-15-1994; Ord. No. 12-165, § 1(12-2-74), 12-18-2012)

Sec. 12-2-75. Services to committee.

Investigation as needed under this chapter shall be furnished by the chief of police and/or the fire chief.

(Code 1980, § 12-2-75; Ord. No. 93-252, § 1, 10-26-1993)

Sec. 12-2-76. Compensation.

The members of the committee shall receive no compensation whatsoever for their services or expenses.

(Code 1980, § 12-2-76; Ord. No. 93-252, § 1, 10-26-1993)

Sec. 12-2-77. Powers and duties.

(a) The committee shall have the power to do all acts and things necessary to carry out the objectives and purposes set forth in this chapter subject to the general administrative process and procedures controlling departments of city government.

(b) The committee shall adopt rules and shall keep a record of its resolutions, transactions and findings which shall be public record.

(c) The committee shall act in an advisory capacity to the mayor and council in regard to matters set out in this chapter and such other information as is required from time to time by the city council.

(d) The committee shall review all applications for permit approval for private ambulances for hire and shall report its findings and recommendations to the city council as provided by this chapter.

(e) The committee shall review all appeals of denial, suspension or revocation of EMT permits by the chief of police or fire chief and any appeals for the denial of decals or removal from service of a particular ambulance or ambulances and hear appeals from complaints by members of the public and ambulance providers.
(Code 1980, § 12-2-77; Ord. No. 93-252, § 1, 10-26-1993; Ord. No. 99-70, § 1(12-2-77), 5-11-1999; Ord. No. 12-165, § 1(12-2-75), 12-18-2012)

Sec. 12-2-78. Notice to committee.

Any notice required to be given to the EMS committee by this chapter shall be made to the chairperson of such committee.
(Ord. No. 99-70, § 1(12-2-78), 5-11-1999)

CHAPTER 3. AMUSEMENTS*

ARTICLE A. CIRCUSES, CARNIVALS AND SIMILAR AMUSEMENTS

Sec. 12-3-1. Permit—Required.

(a) No circus, carnival or other similar amusement shall be conducted within the city unless a special permit from the mayor is first obtained therefor, which permit shall be issued by the mayor by proclamation.

(b) It shall be unlawful for any person or organization to conduct or to aid and abet in conducting any circus, carnival or similar amusement or entertainment within the city unless a permit therefor is first obtained in accordance with the terms of this article.
(Code 1964, § 6-1; Code 1980, § 12-3-1)

Sec. 12-3-2. Same—Application; investigation; grant or denial.

(a) Any person desiring a permit required by this article shall make written application therefor to the mayor, through the chief of police, stating the dates and describing the place where the proposed circus, carnival or similar amusement is desired to be held and in detail the manner in which the same is to be conducted, describing also each concession which is to be conducted in connection therewith, how each such concession is to be conducted together with the names and addresses of the operators of each such concession and must show that not less than four portable toilets shall be provided for members of the public attending such circus, carnival or similar amusement.

(b) Upon delivery of an application for a permit required by this article to the chief of police, he or she shall make an investigation and transmit such application to the mayor with his or her findings. Upon consideration of such application, the mayor shall determine in each case whether

*__State law reference—__Municipal power to license, tax, regulate, restrain or prohibit theatrical and other amusements, billiard and pool tables, theatres, parks and other places of amusement and may refuse to license any or all such businesses, Code of Ala. 1975, § 11-51-102.

or not it is to the best interest of the public safety and public morals that the permit be granted, and shall by proclamation grant or withhold such permit.
(Code 1964, §§ 6-2, 6-3; Code 1980, § 12-3-2)

Sec. 12-3-3. Compliance with permit.

No circus, carnival or similar amusement shall be conducted within the city otherwise than in strict conformity with the provisions of the permit granted therefor. Each day's conduct of any circus, carnival or other similar amusement without such permit or in violation of the provisions of such permit shall be deemed a separate offense.
(Code 1964, § 6-4; Code 1980, § 12-3-3)

Sec. 12-3-4. Cleaning of premises after closing required; deposit.

(a) It shall be the duty of any person engaging in the operation of a carnival, circus or other similar amusement at any place within the city to clean such premises of all garbage, trash, litter and debris immediately after close or cessation of operation of such amusement.

(b) It shall be unlawful for any person to engage in the operation of any carnival, circus or other similar amusement at any place within the city without having first deposited with the director of finance the sum of $50.00 to secure performance of the duty enjoined by subsection (a) of this section and obtained a deposit receipt for such deposit. Such deposit shall be in addition to payment of the fee for a license under the current license code.

(c) If within six days after close or cessation of operation of a carnival the depositor under subsection (b) of this section shall obtain from the superintendent of streets and sanitation a certificate to the effect that the duty enjoined by subsection (a) of this section has been properly performed and shall present such certificate to the director of finance, the director of finance shall refund to the depositor the amount of his or her deposit; otherwise, the director of finance shall retain such deposit as reimbursement to the city for its cost of cleaning such premises.
(Code 1964, §§ 6-5—6-7; Code 1980, § 12-3-4)

Secs. 12-3-5—12-3-10. Reserved.

ARTICLE B. DANCING

Division 1. Dancing By Patrons, Customers, or Guests, Commonly Known As Ballroom, Disco or Cotillion Dancing in Beer or Liquor Licensed Places

Sec. 12-3-11. Permit—Required.

Unless a permit therefor shall have been first obtained from the city as provided by this division, it shall be unlawful for any person, club, firm or corporation or the officers, members, agents, servants or person in charge thereof at any private club or at any other place in the city to which the public generally resorts or is admitted, which is a liquor or beer licensed place, to permit, allow, conduct, condone or allow the public, patrons, customers, members, guests of members, or any other persons to dance in a manner commonly described as ballroom, disco, cotillion or any other form of public dance; however, this division shall not apply to the Birmingham-Jefferson Civic Center, any premises owned by the United States government, the State of Alabama, Jefferson County, the city, or the Alabama State Fair Authority.
(Code 1964, § 6-8; Code 1980, § 12-3-11; Ord. No. 79-211, 12-28-1979; Ord. No. 82-153, § 1, 9-14-1982)

Sec. 12-3-12. Same—Application.

Application for a permit as required by this division shall be made in writing to the chief of police or his or her designee along with the sum of $25.00 to cover the cost of investigation, and shall describe the place where public dancing by patrons is proposed, the size and dimensions of the area proposed for dance, what type of license is held from the state alcoholic beverage control board, the name of the person, firm or corporation holding the license, and if a corporation, the name and address of the principal stockholders and officers of the corporation, and if a club, the names and addresses of its officers. In addition, the applicant will furnish the name of the persons in control of the premises and under whose supervi-

sion dancing will be supervised, and the character or type of business other than dancing which is conducted or proposed to be conducted at that location.
(Code 1964, § 6-9; Code 1980, § 12-3-12; Ord. No. 79-211, 12-28-1979; Ord. No. 82-153, § 1, 9-14-1982)

Sec. 12-3-13. Same—Prerequisites to grant.

(a) No permit required by this division shall be issued except upon the filing of an application for permit with the chief of police, who shall investigate the character and fitness of the applicant and the character and suitability of the proposed location and submit his or her findings regarding whether or not the applicant and the place for which the permit is sought to be issued are suitable and fit for such purpose to the council within 14 days. Upon receipt by the council, the application, investigative report and any other material received concerning the application shall be referred by the council president to an appropriate council committee for review. The committee shall, within 14 days, act to approve or disapprove said permit.

(b) Upon the approval or disapproval of any permit pursuant to the provisions of this section, the committee shall direct the notice of such action to the attention of the council at its next regular meeting; and the city clerk shall set the matter down for hearing at a regular meeting of the council to be held as near as possible to 21 days following receipt of such notice. Upon the date of the hearing or at any continuance thereof, the council shall, after considering any evidence or testimony offered by any person concerned, act upon the recommendation of the committee.
(Code 1964, § 6-10; Code 1980, § 12-3-13; Ord. No. 79-211, 12-28-1979; Ord. No. 80-185, 9-2-1980; Ord. No. 82-153, § 1, 9-14-1982)

Sec. 12-3-14. Same—Nontransferable, limited by location; business license required.

(a) A permit required by this division shall be deemed nontransferable with respect to the holder thereof, and to the place described therein, and in addition shall not authorize any person, firm, club or corporation to use the permit issued hereunder as a lessee or licensee of the holder of the permit issued hereunder.

(b) A permit issued hereunder shall not authorize the grantee to conduct or allow dancing of the type described in this division at any other place or location other than that described therein and shall be valid only for that area described in the permit.

(c) The grant of a permit shall not be deemed to authorize the conduct of dancing or other business without the payment of the fee for a business license as may be required under the present license code of the city, and a current business license is hereby made a prerequisite for the issuance of a permit hereunder.
(Code 1964, § 6-11; Code 1980, § 12-3-14; Ord. No. 79-211, 12-28-1979; Ord. No. 82-153, § 1, 9-14-1982; Ord. No. 90-277, 11-13-1990)

Sec. 12-3-15. Same—Revocation.

Any permit required by this division may be revoked by the city council for violation of any of the provisions of this division, or of any provision of this Code or other ordinance of the city enacted in the exercise of its police power and may also be revoked whenever in the judgment of the city council it may be necessary for the protection of the public good or for the prevention of disorders; provided that the city council shall first give reasonable notice to the permittee of a public hearing on the matter of such revocation, at which hearing the permittee shall have the right to counsel as well as the right to present and cross examine witnesses.
(Code 1964, § 6-12; Code 1980, § 12-3-15; Ord. No. 79-211, 12-28-1979; Ord. No. 82-153, § 1, 9-14-1982)

Sec. 12-3-16. Posting of notice.

It shall be unlawful for any person to dance in any public place or liquor or beer licensed place, unless there shall be posted in such place a notice reading: "Dancing Allowed By City Permit." It shall be unlawful for any person in charge or control of any public place or liquor or beer licensed place to permit or allow any such notice

in such place, unless a dancing permit has been granted to him or her by the city council for that place, and is then in full force and effect.
(Code 1964, § 6-13; Code 1980, § 12-3-16; Ord. No. 79-211, 12-28-1979; Ord. No. 82-153, § 1, 9-14-1982)

Sec. 12-3-17. Enforcement.

The chief of police is directed to cause this section to be diligently enforced and call to attention the violation of any portion of this division to the attention of the issuing authority for appropriate action as may be deemed advisable in their discretion.
(Code 1964, § 6-14; Code 1980, § 12-3-17; Ord. No. 79-211, 12-28-1979; Ord. No. 82-153, § 1, 9-14-1982)

Sec. 12-3-18. Business license required.

The grant of a permit hereunder shall not be deemed to authorize the conducting of entertainment or performance or any other form of business without the payment of the fee for a business license as may be required under the current business license code, and a current business license is hereby made a prerequisite for the issuance of a permit hereunder.
(Code 1964, § 6-14.1; Code 1980, § 12-3-18; Ord. No. 79-211, 12-28-1979; Ord. No. 82-153, § 1, 9-14-1982)

Secs. 12-3-19, 12-3-20. Reserved.

Division 2. Dancing By Other Than Patrons, Customers or General Public in Beer or Liquor Licensed Places

Subdivision I. Generally

Sec. 12-3-21. Permit—Required.

Unless a permit therefor shall have been first obtained from the city as provided by this section, it shall be unlawful for any person, firm, private club or corporation, or its agents, officers, servants, employees or members, to permit, allow, condone or conduct any dance or dance type performance at any liquor or beer licensed place or club by a person or persons in their employment, under contract, or present upon the premises at sufferance, or upon invitation, expressed or implied, in the nature of entertainment, amusement or exhibition; however, this division shall not apply to the Birmingham-Jefferson Civic Center, any premises owned by the United States government, the state, Jefferson County, the city, or the state fair authority.
(Code 1964, § 6-15; Code 1980, § 12-3-21; Ord. No. 79-211, 12-28-1979; Ord. No. 82-153, § 1, 9-14-1982; Ord. No. 82-207, § 1, 12-21-1982)

Sec. 12-3-22. Same—Application.

Application for a permit required by this division shall be made in writing to the chief of police or his or her designee along with the sum of $500.00 to cover the cost of investigation and shall describe the place where such entertainment or exhibition is proposed, the type of dance entertainment or exhibition proposed, the size and dimensions of the stage or platform to be used for such performance or exhibition, the name of the person, firm, club or corporation holding the business license, and the beer or liquor license issued by the state alcoholic beverage control board, and the names and addresses of the principal owners, or stockholders if a corporation, or officers, if a club, and the officers or manager of the premises who will be in control or supervision of the premises and the type of business other than entertainment or exhibition conducted upon the premises.
(Code 1964, § 6-15.1; Code 1980, § 12-3-22; Ord. No. 79-211, 12-28-1979; Ord. No. 82-153, § 1, 9-14-1982; Ord. No. 96-212, 12-17-1996)

Sec. 12-3-23. Posting a notice.

It shall be unlawful for the permittee hereunder to conduct or allow any performance unless there shall be posted at two or more places upon the premises a notice reading: "No participation or any physical contact with any dancer, performer or entertainer before, during or after any dance, performance or exhibition; or fondling, having sexual contact or simulating any sexual acts to or with a dancer, performer, exhibitionist or entertainer or assisting in any form or manner

in such performance or exhibition upon the stage, runway, raised platform or dance floor is permitted."
(Code 1964, § 6-15.2; Code 1980, § 12-3-23; Ord. No. 79-211, 12-28-1979; Ord. No. 82-153, § 1, 9-14-1982; Ord. No. 96-212, 12-17-1996)

Sec. 12-3-24. Permit not to be deemed a business license; existing license.

The grant of a permit hereunder shall not be deemed to authorize the conducting of entertainment or performance or any other form of business without the payment of the fee for a dance division II license as may be required under the current business license code, and a current liquor and/or beer license as required under the current business license code is hereby made a prerequisite for the issuance of a permit hereunder.
(Code 1964, § 6-15.3; Code 1980, § 12-3-24; Ord. No. 79-211, 12-28-1979; Ord. No. 82-153, § 1, 9-14-1982; Ord. No. 96-212, 12-17-1996)

Sec. 12-3-25. Prerequisites to grant.

(a) No permit required by this division shall be issued except upon the filing of an application for permit with the chief of police, who shall investigate the character and fitness of the applicant and the character and suitability of the proposed location and submit his or her findings regarding whether or not the applicant and the place for which the permit is sought to be issued are suitable and fit for such purpose to the council within 14 days. Upon receipt by the council, the application, investigative report and any other material received concerning the application shall be referred by the council president to an appropriate council committee for review. The committee shall, within 14 days, act to approve or disapprove said permit.

(b) Upon the approval or disapproval of any permit pursuant to the provisions of this section, the committee shall direct the notice of such action to the attention of the council at its next regular meeting; and the city clerk shall set the matter down for hearing at a regular meeting of the council to be held as near as possible to 21 days following receipt of such notice. Upon the date of the hearing or at any continuance thereof, the council shall, after considering any evidence or testimony offered by any person concerned, act upon the recommendation of the committee.

(c) In addition to every other requirement contained in this division, the applicant for a permit hereunder shall cause and pay for a notice to be published in a daily newspaper of general local circulation, not less than seven days preceding the date of the public hearing set by the city clerk, stating:

(1) A division II dance permit has been applied for;

(2) The street address of the location for where such permit is to be used;

(3) The names of the owners, stockholders or officers, as described on the application;

(4) The date and time of the public hearing before the city council; and

(5) A statement substantially as follows: "Please take notice that a public hearing will be held before the city council of the City of Birmingham, in the city council chambers, third floor, city hall, on the date listed above, for the purpose of hearing all interested persons regarding the grant or denial of a division II dance permit to be used at the above-listed address; such permit will, if granted, allow dance or dance type performances in the nature of entertainment, amusement, or exhibition."

(Code 1964, § 6-15.4; Code 1980, § 12-3-25; Ord. No. 79-211, 12-28-1979; Ord. No. 80-186, 9-2-1980; Ord. No. 82-153, § 1, 9-14-1982)

Sec. 12-3-25.1. Grant or denial of application.

(a) The city council shall after consideration of all evidence and information presented at the hearing render a decision to grant or deny the permit and notify the applicant of its decision. The decision shall be rendered within 14 days of the hearing. If the permit is granted the city council shall instruct the director of finance to

issue the division II dance permit in the name of the applicant as it appears on the application and indicating:

(1) The street address of the location for which such permit is to be used;

(2) Name of the owners, stockholders or officers as described in the application; and

(3) The square footage of the stage, runway, raised platform or dance floor to be used.

(b) If the permit is denied the applicant shall be notified within 14 days of the decision; provided, however, that failure to notify the applicant of the denial of the permit within the 14 days shall not render the decision of the city council invalid.
(Code 1980, § 12-3-25.1; Ord. No. 96-212, 12-17-1996)

Sec. 12-3-26. Issuance of permit.

The grant of a permit hereunder shall not be deemed to authorize the conducting of entertainment or performances or any other form of business without the payment of the fee for a dance division II license may be required under the current business license code, and a permit hereunder is hereby made a prerequisite for the issuance of a dance division II license.
(Code 1964, § 6-15.5; Code 1980, § 12-3-26; Ord. No. 79-211, 12-28-1979; Ord. No. 82-153, § 1, 9-14-1982; Ord. No. 96-212, 12-17-1996)

Sec. 12-3-27. Limitations.

The permit issued hereunder shall be subject to the following limitations:

(1) Any dance, performance, exhibition or entertainment shall be conducted in an area designated in the permit as a stage, runway, raised platform or dance floor, removed from contact with patrons, members, guests or customers.

(2) No physical contact between performers or entertainers will be permitted or allowed during any performance or exhibition; and the performer or exhibitor shall remain at all times during the performance or exhibition upon the designated stage, runway, raised platform or dance floor.

(3) No patrons, customers, club members, guests or members of the general public shall be permitted, suffered or allowed to participate, touch, fondle, or assist in any form or manner in such performance or exhibition upon the stage, runway, raised platform or dance floor during any performance.

(4) Performers shall not mingle with patrons, members or guests in costume either during or after a performance.

(Code 1964, § 6-15.6; Code 1980, § 12-3-27; Ord. No. 79-211, 12-28-1979; Ord. No. 82-153, § 1, 9-14-1982)

Sec. 12-3-28. Revocation.

Any permit required by this division may be revoked by the city council for violation of any of the provisions of this division, or of any provision of this Code or other ordinance of the city enacted in the exercise of its police power, and may also be revoked whenever in the judgment of the city council it may be necessary for the protection of the public good or for the prevention of disorders; provided that the city council shall first give reasonable notice to the permittee of a public hearing on the matter of such revocation, at which hearing the permittee shall have the right to counsel as well as the right to present and cross examine witnesses.
(Code 1964, § 6-15.7; Code 1980, § 12-3-28; Ord. No. 79-211, 12-28-1979; Ord. No. 82-153, § 1, 9-14-1982)

Sec. 12-3-29. Annual permit.

(a) Permits issued hereunder shall remain valid until revoked by the city council; however, permits issued hereunder shall become invalid if the permittee discontinues business, or remains closed for business, for a period of 90 or more days, or if the permittee transfers an interest in the business to any person, firm, club or corporation which entity was not listed as an owner or stockholder in the application for the permit.

(b) All permits shall remain subject to any change or amendment of this article.
(Code 1964, § 6-15.8; Code 1980, § 12-3-29; Ord. No. 79-211, 12-28-1979; Ord. No. 82-153, § 1, 9-14-1982; Ord. No. 84-186, 10-16-1984)

Sec. 12-3-30. Prohibited when not on stages, runways, etc.

It shall be unlawful for any person, while on the premises of any place permitted under this division to conduct dance or dance-type performance, to perform any dance or dance-type performance upon any area other than on a raised platform, stage or runway, which raised platform, stage or runway has a floor area of not less than 15 square feet and is of a permanent nature and described in the permit; and further provided that it shall be unlawful for any such person to perform any dance or dance-type performance upon any surface upon which food or drink is also served, upon any table, chair or other item of furniture, or upon any moveable box or other moveable item.
(Code 1980, § 12-3-30; Ord. No. 82-98, § 1, 6-22-1982; Ord. No. 86-26, 2-11-1986; Ord. No. 96-212, 12-17-1996)

Subdivision II. Dancer's Permit

Sec. 12-3-30.1. Individual dancer's permit required.

It shall be unlawful for any person, while on the premises of any place permitted under this subdivision, to conduct dance or dance-type performances, to perform any dance or dance-type performance without having a currently valid dancer's permit therefor issued under this subdivision.
(Code 1980, § 12-3-30.1; Ord. No. 82-152, 9-14-1982)

Sec. 12-3-30.2. Qualifications.

(a) No person who is under 19 years of age shall be granted a permit hereunder.

(b) No person who has been convicted of a felony, convicted of an offense arising out of the manner of performing a dance or dance-type performance, or convicted of prostitution, solicitation for prostitution, or a prostitution-related offense, within the next preceding calendar year, shall be granted a permit hereunder.

(c) No person who has knowingly made a false or misleading statement on any application for dancer's permit, request for duplication or request for renewal, within the next preceding year, shall be granted a permit hereunder.

(d) No person who, having been granted a dancer's permit hereunder, which permit was thereafter suspended by the public safety committee or the city council, shall be granted a permit during the period of suspension.

(e) No person who, having been granted a dancer's permit hereunder, which permit was thereafter revoked for any other reason by the public safety committee or city council, shall be granted a permit within 180 days of the date of revocation.
(Code 1980, § 12-3-30.2; Ord. No. 82-152, 9-14-1982; Ord. No. 96-211, 12-17-1996)

Sec. 12-3-30.3. Application, temporary permit, investigation permit.

(a) Each person desirous of obtaining a permit to perform dance or dance-type performances at any establishment permitted to conduct dance or dance-type performances shall file with the chief of police or his or her designee an application for permit on forms to be supplied by the chief of police. Said form shall state the person's full legal name, any names such person has used within the next preceding three years (including stage names), present residence address, each residence address for the next preceding three years, date of birth, place of birth, height, weight, race, eye color, hair color, distinguishing scars or marks, marital status, spouse's name, if married, all places of employment within the next preceding three years, driver's license number and issuing state, each felony and misdemeanor conviction during the next preceding calendar year and the place of such conviction, if any, and the place at which such person desires to dance. Upon making application, each applicant shall furnish and file therewith three photographs of the applicant of passport size (2½ inches by 2½ inches). Said application shall be signed by the applicant, and

the truth of matters therein stated shall be sworn to by the applicant. The applicant shall be fingerprinted by the police department. The application shall also be accompanied by a certified copy of the applicant's birth certificate, driver's license, passport or other proof of identification acceptable to the chief of police or his or her designee.

(b) Upon compliance with the application procedure hereinabove described, and if said applicant apparently meets the qualifications described in section 12-3-30.2, the chief of police shall, within three days, issue a temporary dancer's permit to be valid for 30 days at the place named on the application only.

(c) Upon issuance of a temporary dancer's permit, the chief of police shall cause an investigation to be made of the applicant and statements made upon the application. This investigation shall be completed within the period of validity of the temporary permit.

(d) Upon completion of the investigation, if the chief of police is reasonably satisfied that the person meets the qualifications described in section 12-3-30.2, and that the statements on the sworn application are true, then the chief of police shall cause to be prepared a wallet-sized permanent dancer's permit, including the name, thumb print, picture and current place of employment of the applicant.
(Code 1980, § 12-3-30.3; Ord. No. 82-152, 9-14-1982; Ord. No. 86-254, 11-25-1986)

Sec. 12-3-30.4. Transfer.

(a) A temporary dancer's permit shall be valid only at the place named on the permit.

(b) A permanent dancer's permit shall be valid only at the adult division II place or places listed thereon.
(Code 1980, § 12-3-30.4; Ord. No. 82-152, 9-14-1982; Ord. No. 96-211, 12-17-1996)

Sec. 12-3-30.5. Renewal.

The permanent dancer's permits issued hereunder shall remain valid for a 12-month period beginning on the date of issuance of the temporary dancer's permit, unless revoked or suspended as provided. Such permit may be renewed during the 30-day period preceding the end of the 12-month permit period upon the filing with the chief of police of a request for renewal and two passport-sized photos. The request for renewal shall provide current information on all items in the original application. For any duplicate or replacement permit, the same qualifications for renewal as for the original permit shall apply with the effective date of the original annual permit.
(Code 1980, § 12-3-30.5; Ord. No. 82-152, 9-14-1982; Ord. No. 96-211, 12-17-1996)

Sec. 12-3-30.6. False statement prohibited.

No person making application hereunder shall knowingly make a false or untrue statement on an application or request for renewal required to be filed hereunder.
(Code 1980, § 12-3-30.6; Ord. No. 82-152, 9-14-1982)

Sec. 12-3-30.7. Requirements.

The holder of a dancer's permit shall be required to:

(1) Have the card or temporary permit in the holder's constructive possession while in the place of employment or where the dance, performance or exhibition is performed. The card, temporary permit or dancer's permit and business license when applicable shall be posted on the premises. Such posting shall contain the picture, and identification of the dancer on the front, on the back of the permit shall list the name, address, fingerprint, current telephone number and business license number. Such posting will be considered compliance with this provision when in a site designated by the chief of police or his or her designee;

(2) Produce the card, temporary permit or dancer's permit for inspection upon reasonable demand of a member of the police department;

(3) Not permit the use of the dancer's permit or temporary permit by another;

(4) Notify the chief of police in writing of any change in address; and

(5) Immediately report to the chief of police the loss of the card or permit; should circumstances warrant, a duplicate card will be issued upon the payment of a fee as herein provided.

(Code 1980, § 12-3-30.7; Ord. No. 82-152, 9-14-1982; Ord. No. 96-211, 12-17-1996)

Sec. 12-3-30.8. Suspension, revocation.

(a) The public safety committee shall send notice of suspension or revocation of dancer's permit by certified mail to the last known place of abode provided by the dancer to the chief of police or his or her designee and stating the date of the hearing on the suspension or revocation period.

(b) Any permit issued hereunder may be suspended for a stated period of time or revoked by the public safety committee or the city council, after notice and hearing, or as otherwise provided under this subdivision, if it is determined or there is reason to believe that:

(1) The person holding said permit does not meet the qualifications described in section 12-3-30.2;

(2) Has violated the requirements of section 12-3-30.7;

(3) Has violated any other provisions of this subdivision II, any municipal misdemeanor ordinance, any business license violation, or any criminal law of the State of Alabama or federal government.

(c) Any suspension or revocation of the permit by the said committee may be appealed for a hearing and presentation of evidence before the city council to be held within 28 days of the date of the decision of the committee, unless request for continuance by dancer. Any suspension or revocation hereunder shall remain in full force and effect pending appeal and decision of the city council.

(d) Upon suspension or revocation of the dancer's permit held by the dancer, the custody and possession of same shall revert to the city and the dancer, performer, entertainer or exhibitionist shall surrender same to the city clerk.

(Code 1980, § 12-3-30.8; Ord. No. 82-152, 9-14-1982; Ord. No. 96-211, 12-17-1996)

Sec. 12-3-30.9. Fees.

(a) Each applicant for a dancer's permit hereunder shall pay with the application a service fee of $125.00. The dancer's permit shall be issued for a specific location. A dancer, performer or exhibitionist hereunder shall be required to pay an additional $25.00 fee for each additional division II site at which the dancer, performer or exhibitionist is employed or dances, performs or exhibits within 12 months of the issuance of the annual dancer's application for which a duplicate shall be issued for said location. The service fee for a replacement for a lost permit shall be $25.00. Each request for renewal shall be accompanied by the payment of a service fee of $125.00. All fees shall be paid to the director of finance and the receipt therefor shown to the chief of police. All fees shall be nonrefundable.

(b) Proof that either:

(1) A business license as required under this division has been obtained; or

(2) In the alternative, proof that the dancer, performer, exhibitionist is an employee of a validly permitted and licensed adult division II business establishment, is paid a salary and all federal, state and local employment taxes are being withheld during the entire period of the permit.

Such proof must be presented to the satisfaction of the chief of police within 30 days of the issuance of the temporary dancer's permit. If such proof is not provided to the satisfaction of the chief of police, then the permit issued hereunder may be suspended for up to 30 days or until the license is obtained or proof of employment is provided, otherwise the permit will be revoked at the end of the suspension period. Upon revocation of a permit, the applicant for a dancer's permit must reapply for a new said permit. Except for a violation under this specific section, the reappli-

cation cannot be sooner than provided under 180 days. The fee upon reapplication following revocation shall be $150.00.
(Code 1980, § 12-3-30.9; Ord. No. 82-152, 9-14-1982; Ord. No. 96-211, 12-17-1996)

Sec. 12-3-30.10. Duties of chief of police.

The chief of police or his or her designee shall have the authority to set reasonable times for application to be made and to prescribe such other reasonable administrative procedures as are in the chief of police's judgment, necessary or desirable to promote the efficient, economical administration of this subdivision.
(Code 1980, § 12-3-30.10; Ord. No. 82-152, 9-14-1982; Ord. No. 96-212, 12-17-1996)

Sec. 12-3-30.11. Duties of establishment.

It shall be unlawful for the owner, manager or any person in charge or control of any place permitted under this subdivision to conduct dance or dance-type performance to allow any person to perform any dance or dance-type performance without first having determined that said person has a currently valid dancer's permit issued under this subdivision, which permit names the place at which the person is to be allowed to perform.
(Code 1980, § 12-3-30.11; Ord. No. 82-152, 9-14-1982)

Sec. 12-3-30.12. Appeal of decision of public safety committee.

Any decision made hereunder by the public safety committee may be appealed to the full council upon the filing by the party aggrieved of a written request for review with the city clerk. The city clerk shall, within 28 days, place the matter on the council agenda and notify the public safety committee chairperson and the party aggrieved of the date set for hearing and review.
(Code 1980, § 12-3-30.12; Ord. No. 82-152, 9-14-1982; Ord. No. 96-211, 12-17-1996)

Sec. 12-3-30.13. Limitations on permit.

(a) The permit shall be issued for dance, performance, exhibition or entertainment by a dancer at the location listed on the permit. No dance, performance, exhibition or entertainment permitted under this section shall be conducted at any location other than at a business which is properly permitted as an adult division II establishment.

(b) The original copy of the permit or duplicate issued hereunder with picture affixed shall be visibly displayed on the premises for inspection during all business hours of the establishment.

(c) Any dance, performance, exhibition or entertainment by a dancer shall be conducted in an area designated in the permit as a stage, runway, raised platform or dance floor, removed from contact with patrons, members, guests or customers.

(d) No physical contact between performers or entertainers will be permitted or allowed during any performance or exhibition; and the performer or exhibitor shall remain at all times during the performance or exhibition upon the designated stage, runway, raised platform or dance floor. No patrons, customers, club members, guests or members of the general public shall be permitted, suffered or allowed to participate, fondle, or assist in any form or manner in such performance or exhibition upon the stage, runway, raised platform or dance floor during any performance. Dancers, performers and exhibitionists shall not mingle with patrons, members or guests in costume either before, during or after a performance unless their breasts, and male and female genital areas are covered by an opaque material, and the males genital is not in a turgid state even if covered by an opaque material.
(Code 1980, § 12-3-30.13; Ord. No. 96-211, 12-17-1996)

Sec. 12-3-30.14. Limitations on patrons, etc.

It shall be unlawful for any person other than a dancer to put or place himself or herself or allow himself or herself to be put or placed on any stage, runway, raised platform or dance floor during any dance, performance, exhibition or entertainment being done by a dancer. It shall be unlawful for any person to have physical contact with any dancer, performer or entertainer before, during or after any dance, performance or exhibition or to participate, fondle, have sexual contact or simu-

late any sexual acts to or with a dancer, performer, exhibitionist or entertainer or assist in any form or manner in such performance or exhibition upon the stage, runway, raised platform or dance floor.
(Code 1980, § 12-3-30.14; Ord. No. 96-211, 12-17-1996)

Sec. 12-3-30.15. Permit not to be deemed a business license; existing license.

The grant of a permit hereunder shall not be deemed to authorize the conducting of entertainment or performance or any other form of such business without the payment of the fee for a dancer's adult division II business license for performing a business function, and a current dancer's adult division II business license is hereby made a prerequisite in addition to the possession of a valid permit hereunder. Any dancer, performer, exhibitionist or entertainer required to obtain a permit under this division, who is not an employee of an adult division II establishment, but who operates as an independent contractor in the facility in which said person dances, performs or entertains and for whom no occupational tax or other withholdings consistent with the revenue code of the city, state and federal government regulations, are made by the adult division II business, such dancer, performer, exhibitionist or entertainer shall be required to have a dancer's adult II business license. A business license shall not be issued without a current dancer's permit in effect under this section. The business license is subject to suspension or revocation upon suspension or revocation of the dancer's permit.
(Code 1980, § 12-3-30.15; Ord. No. 96-211, 12-17-1996)

Sec. 12-3-30.16. Penalties.

It is unlawful to violate any of the provisions of this subdivision. Upon a conviction within a 12-month period under this subdivision the fine shall be $100.00; upon a second conviction under this subdivision within a 12-month period the fine shall be not less than $200.00 and the dancer's permit shall be suspended for 30 days; upon a third conviction under this subdivision within a 12-month period the fine shall be not less than $300.00 and the dancer's permit shall be suspended for 90 days; upon a fourth conviction under this subdivision within a 12-month period the fine shall be not less than $400.00 and the dancer's permit shall be revoked, provided that reapplication for a dancer's permit may be made not sooner than 180 days from the date of the most recent revocation.
(Code 1980, § 12-3-30.16; Ord. No. 96-211, 12-17-1996)

Division 3. Masked Balls

Sec. 12-3-31. Permit—Required.

It shall be unlawful for any person to conduct or aid or abet in conducting, or permit or allow upon any premises under his or her control, within the city, any masked ball, by whatever name it is called, unless a permit therefor is first obtained as provided by this division. Each day's conduct of any dance without the permit shall be deemed a separate offense.
(Code 1964, § 6-16; Code 1980, § 12-3-31; Ord. No. 79-211, 12-28-1979)

Sec. 12-3-32. Same—Application.

Any person desiring a permit required by this division shall make application therefor to the city council, describing the place where the same is to be held, the manner in which the same is to be conducted, whether the general public is invited or allowed to participate in such dance or only invited guests, and stating the charges proposed to be made for admission or participation therein, as well as the duration thereof.
(Code 1964, § 6-17; Code 1980, § 12-3-32; Ord. No. 79-211, 12-28-1979)

Sec. 12-3-33. Same—Grant or denial.

Upon consideration of an application for a permit required by this division, the city council shall determine whether or not it is to the best interest of the public safety, the public health, the public morals and the public welfare that the permit be granted, and shall by resolution grant or deny such permit.
(Code 1964, § 6-18; Code 1980, § 12-3-33; Ord. No. 79-211, 12-28-1979)

Secs. 12-3-34—12-3-40. Reserved.

ARTICLE C. POOLROOMS AND BILLIARD ROOMS*

Division 1. General Provisions

Sec. 12-3-41. Definitions.

For the purposes of this article, the following words and phrases shall have the meanings respectively ascribed to them by this section:

Billiard table includes a miniature billiard table.

Pool table includes a miniature pool table.
(Code 1964, § 6-18; Code 1980, § 12-3-41)

Sec. 12-3-42. Operating without license.

(a) No person shall, without having first obtained a license therefor as required by the current license code of the city, maintain or operate or be concerned in maintaining or operating a poolroom, pool table, billiard room or billiard table where the game known as pool or billiards is or may be played for compensation and for which a charge is made.

(b) There shall be excepted from this section and from all other sections contained in this article, all billiard tables or billiard rooms and all pool tables and poolrooms operated by industrial or manufacturing concerns for the exclusive use of their employees, Young Men's Christian Associations, religious orders, charitable institutions, state, county or city institutions, fraternal orders, bona fide clubs using tables for employees or members only and family game rooms.
(Code 1964, § 6-19; Code 1980, § 12-3-42)

Sec. 12-3-43. Closing hours; Sunday.

Every person maintaining any poolroom, pool table, billiard room or billiard table where the game known as pool or billiards is or may be played for compensation shall close the same at 11:30 p.m. on each day and shall keep the same closed until 6:00 a.m. of the following day and all day on Sunday; provided, however, that the closing hour of 11:30 p.m. shall not apply to the operation of a miniature billiard table or miniature pool table, except that such table shall not be operated on Sunday.
(Code 1980, § 12-3-43)

Sec. 12-3-44. Music.

It shall be unlawful for any person to cause, permit or suffer any music in any billiard or pool parlor or room, whether such music is by the human voice or by any other instrumentality, except radio.
(Code 1964, § 6-21; Code 1980, § 12-3-44)

Secs. 12-3-45—12-3-50. Reserved.

Division 2. Permits

Sec. 12-3-51. Required.

(a) It shall be unlawful for any person to set up, maintain or operate any poolroom, pool table, billiard room or billiard table where the same known as pool or billiards is or may be played for hire or reward, a charge or for compensation, without a special permit therefor from the chief of police, as provided in this division.

(b) It shall be unlawful for any person to furnish, install, provide or cause to be furnished, installed or provided at a location within the city by lease, agreement, sale or otherwise a pool table or billiard table where the game known as pool or billiards is or may be played for hire or reward, a charge or for compensation without a special permit therefor from the chief of police having been theretofore granted as to such location as provided in this division.

(c) The special permit required by this division shall not be required for any person, firm or corporation duly licensed to operate coin-operated pool tables or billiard tables maintained for the amusement of customers and patrons of a business or establishment where food and beverages

*__State law reference—__Authority of municipal governing body to fix a license fee for the operation of billiard rooms and make additional regulations governing the operation of such billiard rooms, Code of Ala. 1975, § 34-6-3 et seq.

are sold to the general public for consumption upon the premises, pursuant to Acts 1976, p. 803 (Act No. 590).
(Code 1964, § 6-24; Code 1980, § 12-3-51)

Sec. 12-3-52. Application.

Any person desiring a permit required by this division shall file with the chief of police a written application, signed by the applicant, giving his or her address and the proposed location of the poolroom or billiard room or table, and any other relevant information that the chief of police may require to be furnished with the application.
(Code 1964, § 6-25; Code 1980, § 12-3-52)

Sec. 12-3-53. Investigation by chief of police; grant or denial.

(a) No permit required by this division shall be issued except upon the filing of an application for permit with the chief of police, who shall investigate the character and fitness of the applicant and the character and suitability of the proposed location and submit his or her findings regarding whether or not the applicant and the place for which the permit is sought to be issued are suitable and fit for such purpose to the mayor. The mayor or his or her designee shall act to approve or disapprove the permit based upon the investigation and any other information available.

(b) The applicant, any councilmember, any officer of the neighborhood in which the pool table is to be located, or any person whose residence or business is located within 250 feet of the proposed pool table location may appeal to the council the action of the mayor or his or her designee by filing a letter of appeal with the city clerk within 30 days of the action appealed.

(c) Upon appeal of the mayor's approval or disapproval of any permit pursuant to the provisions of this section, the city clerk shall set the matter down for hearing at a regular meeting of the council following his or her receipt of notice of such action. The clerk shall notify the applicant and appellant of the date set for such hearing. Upon the date of the hearing or at any continuance thereof, the council shall, after considering any evidence or testimony offered by any person concerned, act to grant or deny the permit.
(Code 1964, § 6-26; Code 1980, § 12-3-53; Ord. No. 80-187, 9-2-1980; Ord. No. 82-186, § 1, 11-16-1982; Ord. No. 84-185, § 1, 10-16-1984)

Sec. 12-3-54. New permit required if location changed.

Any permit granted by the council under the terms of this division shall only authorize the operation of the poolroom, pool table, billiard room or billiard table at the location named in the application and permit, and any change in location shall require a new permit.
(Code 1964, § 6-27; Code 1980, § 12-3-54; Ord. No. 80-187, 9-2-1980)

Sec. 12-3-55. Revocation.

Any permit issued under this division may be revoked by the council after hearing or affording the permit holder an opportunity to be heard when the council determines that either the person to whom such permit was issued or the place for which such permit was issued is no longer suitable or fit for such purpose.
(Code 1964, § 6-28; Code 1980, § 12-3-55; Ord. No. 80-187, 9-2-1980)

Sec. 12-3-56. Permit additional to license.

The permit provided for in this division shall be in addition to and distinct from the business license or occupation tax imposed by the current license code of the city. (See title 13.)
(Code 1964, § 6-29; Code 1980, § 12-3-56)

CHAPTER 3.3. AMUSEMENT DEVICES

Sec. 12-3.3-1. General provisions.

Each business or establishment where video game machines, pinball machines, crane machines, novelty arcade games or other like amusement devices (hereinafter referred to as "amusement devices") are displayed or offered for public use shall purchase the appropriate business license required by the revenue code of the city. For the purposes of this section, the term "public use"

means offering the device or machine for play by any person at any establishment where the public is invited as well as private clubs.
(Ord. No. 07-16, § 1(12-3.3-1), 1-30-2007)

Sec. 12-3.3-2. License application.

Each application for a license pursuant to this chapter shall have attached a sworn statement containing the following information:

(1) The physical location where the amusement devices will be displayed for public use.

(2) The primary nature of the business where the amusement devices will be displayed for public use.

(3) The days and hours of operation for the business or portion of the business where amusement devices will be displayed for public use.

(4) A list containing the following information: name, type of game or device, model number, manufacturer and serial number of each game or amusement device to be displayed for public use.

(5) Whether or not prizes, other than free replay of the amusement devices, will be awarded to the public for successful play of the devices.

(6) If prizes other than free replay of the devices are to be awarded, a description of the prizes or prize categories and approximate wholesale value of each prize or prize category and if the prizes to be awarded are tokens or tickets that may be accumulated to exchange for merchandise, the value of tokens or tickets that may be earned on a single play of a device.

(Ord. No. 07-16, § 1(12-3.3-2), 1-30-2007)

Sec. 12-3.3-3. Inspection of amusement devices.

Each amusement device displayed or offered for public use shall be available for inspection by the city director of finance and the chief of police or their designees at all times that the devices are displayed or offered for public use. Periodic inspections may be performed by the director of finance or his or her designee to verify compliance with this chapter. Inspections may be performed by the chief of police or his or her designee for compliance with this section and with the gambling laws of the state.
(Ord. No. 07-16, § 1(12-3.3-3), 1-30-2007)

Sec. 12-3.3-4. Decal required; penalties; decal nontransferable.

(a) Every amusement device displayed or offered for public use shall have affixed a current year decal provided by the city director of finance or his or her designee as proof of the current valid license. Each decal shall be affixed to the machine to which it has been assigned. No amusement device shall be operated unless a current decal is affixed to the device on the left side of the machine in a position easily visible to the public and so positioned that numbers and other information on the decal can be easily read by city inspectors.

(b) Display or offer of an amusement device for public use without a current decal physically affixed to the device, where the current license tax has been paid, shall be a violation of this section and shall be punishable by a fine of $50.00 per offense.

(c) Display or offer of an amusement device for public use without a current decal physically affixed to the device and where no current license tax has been paid, shall be a violation of this section and shall be punishable by a fine of $250.00 per offense.

(d) License decals shall not be transferable from machine to machine or from location to location. A separate license and decal shall be required for each added or replacement machine at a location. A separate license and decal shall be required if a machine is moved to new location within the city.
(Ord. No. 07-16, § 1(12-3.3-4), 1-30-2007)

Sec. 12-3.3-5. Gambling devices prohibited under this license; penalties.

(a) Obtaining a license pursuant to this section for any machine other than a bona fide coin-operated amusement device defined by Code

of Ala. 1975, § 13A-12-76, as may be amended, or for any gambling device or gift enterprise or scheme in the nature of a lottery shall be violation of this section and shall be punishable by a fine of $500.00 per offense. Any such device shall be subject to seizure and forfeiture pursuant to Code of Ala. 1975, § 13A-12-30, as may be amended.

(b) Nothing in this chapter shall be construed to authorize the operation of any gambling device, gift enterprise or other scheme in the nature of a lottery prohibited by the laws and constitution of the state. Licensing of amusement devices pursuant to this chapter shall not protect said devices from enforcement of the criminal laws of the state and the city.
(Ord. No. 07-16, § 1(12-3.3-5), 1-30-2007)

Sec. 12-3.3-6. Repeat or continuing violations.

All penalties or forfeitures provided by this chapter for any act or omission shall apply to each such act or omission and when any act or omission described in this chapter is of a continuing character, the penalties or forfeitures shall apply to each day's continuance thereof.
(Ord. No. 07-16, § 1(12-3.3-6), 1-30-2007)

CHAPTER 3.5. BINGO*

Sec. 12-3.5-1. Regulated.

The operation of bingo games for prizes or money by qualified nonprofit organizations for charitable or educational purposes shall be legal in the city, subject to the provisions set out in this chapter.
(Code 1980, § 12-3.5-1; Ord. No. 80-222, § 1, 9-30-1980)

*__Editor's note—__Title 12, chapter 3.5, "Bingo," of the General Code of the city was repealed in its entirety and replaced by Ordinance No. 09-78, adopted June 2, 2009. Subsequent to that, Ordinance No. 09-158, adopted October 20, 2009, repealed Ordinance No. 09-78. Thereafter, Ordinance No. 09-159, also adopted on October 20, 2009, reinstated title 12, chapter 3.5, "Bingo," as it had appeared in its amended form in the 1980 General Code of the city before the ordinance had been repealed by Ordinance No. 09-78.

Sec. 12-3.5-2. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Bingo means that specific kind of game commonly known as bingo, which is a game of chance played with cards printed with five rows of five squares each. Participants place markers over randomly called numbers on the cards in an attempt to form a preselected pattern such as a diagonal, horizontal or vertical line or all four corners. The first participant to form the preselected pattern wins the game. The term "bingo" means any game of bingo of the type herein described in which wagers are placed, winners are determined and prizes or other property is distributed in the presence of all persons placing wagers in that game. The term "bingo" does not refer to any game of chance other than the type of game herein described.

Bingo session means a consecutive period of time not to exceed five hours during which bingo is played in a given calendar day.

Education organization means an organization within the state, not for pecuniary profit, whose primary purpose is educational in nature and designed to develop the capabilities of individuals by instruction in any public or private elementary or secondary school, or any public or private college, not for pecuniary profit, and approved by the state department of education.

Equipment means the receptacle and numbered objects drawn from it, the master board upon which such objects are placed as drawn, the cards or sheets bearing numbers or other designations to be covered and the objects used to cover them, and the board or signs, however operated, used to announce or display the numbers or designations as they are drawn. All equipment shall be permanently marked with the name of the organization and used only on that organization's premises.

Equivalent value means the fair market value of a gift or prize on the date it is awarded as a prize in a bingo game.

Fraternal organization means an organization within the state, except student fraternities or sororities, not for pecuniary profit, which is a branch, lodge or chapter of a national or state organization and exists for the common business or other interests of its members.

Location means a single detached building, hall, enclosure, single unit of a multiunit structure or single outdoor area used for the purpose of playing bingo pursuant to a permit issued under this chapter. Bingo games shall be held only on the premises wholly owned or leased by a single qualified permit holder. If the premises are leased, the rental shall not be based on a percentage of receipts or profits from the operation of bingo games and shall not exceed the fair market value for comparable rental properties in the immediate neighborhood.

Member means an individual who qualified for membership in a qualified organization pursuant to its bylaws, articles of incorporation, charter or other legal entity.

Permit holder means a qualified organization issued a permit pursuant to this chapter.

Person means a natural person, firm, association, corporation or other legal entity.

Police chief means the chief of the city department of police.

Qualified organization means a bona fide religious, educational, service, senior citizens, fraternal or veterans' organization which qualifies as an exempt organization under section 501(c) of the Internal Revenue Code and operates without profit to its members and which has been in existence continuously in the state, as such an organization for a period of two years.

Religious organization means an organization, church, body of communicants or group, not for pecuniary profit, meeting regularly within the state, in common membership for mutual support and edification in piety, worship and religious observances; or any society, not for pecuniary profit, of individuals united for religious purposes at a definite place; or a church-related private school, not for pecuniary profit.

Senior citizens organization means an organization within the state, not for pecuniary profit, of which at least 50 percent of the membership and at least ten members are 60 years of age or older, and exists for their mutual support and for the entertainment or advancing the causes of elderly or retired persons.

Service organization means a branch, lodge or chapter of a national or state organization, not for pecuniary profit, which is authorized by its written constitution, charter, articles of incorporation or bylaws to engage in a fraternal, civic or service purpose within the state; and a local civic organization, not for pecuniary profit and not affiliated with a state or national organization, whose constitution, charter, articles of incorporation or bylaws contain a provision for the perpetuation of the organization as a nonprofit organization whose entire assets are pledged to charitable purposes.

Special occasion means a single gathering or session at which a series of successive bingo games authorized by this chapter are played pursuant to a special permit issued under section 12-3.5-6.

Veterans organization means an organization within the state, or a branch, lodge or chapter within the state, of a state organization or of a national organization chartered by the Congress of the United States, not for pecuniary profit, the membership of which consists of individuals who were or are members of the armed services or forces of the United States.

(Code 1980, § 12-3.5-2; Ord. No. 80-222, § 2, 9-30-1980; Ord. No. 97-54, § I(12-3.5-2), 5-6-1997; Ord. No. 98-99, § I(12-3.5-2), 6-23-1998)

Sec. 12-3.5-3. Operation of bingo games; permit required; classification of permits.

(a) Any provisions of the law to the contrary notwithstanding, no qualified organization shall be permitted to operate a bingo game until the city council issues a permit to the organization authorizing it to do so. In the event of any controversy concerning whether or not a certain activity constitutes bingo for which a permit may

be issued, the decision of the city council shall control. A permit shall not be assignable or transferable.

(b) It shall be unlawful for any person to operate, conduct or participate in any bingo game unless such game is operated under a current, valid bingo permit issued for the operator at the permitted location and in conformance with the class, prize limits, and hours and days of operation of such permit. The permits described in this chapter are in addition to any business license or other license or permit required by law and it shall be unlawful to conduct or operate any bingo game until all required licenses and permits are obtained.

(c) The permits issued under this chapter shall be classified as follows:

(1) *Class I permit.* A qualified organization issued a Class I permit may award prizes in cash and/or gifts of equivalent value not to exceed $50.00 in any one bingo session, not to exceed $100.00 during any calendar week, and not to exceed $5,000.00 in a calendar year. Any qualified organization exceeding any of these three prize limitations at any time shall be considered a Class II permit holder and subject to all of the requirements and regulations of a Class II permit holder.

(2) *Class II permit.* A qualified organization issued a Class II permit may award prizes cash and/or gifts of equivalent value not to exceed $1,200.00 in any one bingo session and not to exceed $2,400.00 during any calendar week.

(Code 1980, § 12-3.5-3; Ord. No. 80-222, § 3, 9-30-1980; Ord. No. 97-54, § I(12-3.5-3), 5-6-1997; Ord. No. 98-99, § I(12-3.5-3), 6-23-1998; Ord. No. 98-194, § I(12-3.5-3), 12-15-1998)

Sec. 12-3.5-4. Application for permit to conduct bingo, approval by city council, submission, form, contents.

(a) All qualified organizations desiring to obtain or to renew a permit to operate bingo games shall make application to the police chief on forms prescribed by the city council. The police chief shall investigate the status of the applicant as a qualified organization as defined herein, the suitability of the proposed location where bingo will be conducted, and the character and fitness of the members who will conduct and manage bingo games. Within 21 days from the date of application, the police chief shall direct the results of the investigation and the application to the attention of the city council. All annual permits must be approved by the city council. The applicant shall be given reasonable notice of the city council meeting at which its application will be considered. Upon the date of such meeting, the city council shall, after considering any evidence or testimony offered by any party concerned, act upon the application. All qualified organizations shall pay an initial application and permit fee of $100.00 for a Class I bingo permit and $2,500.00 for a Class II bingo permit at the time of application for the permit. Any qualified organization which holds a current, valid bingo permit with the city as of August 1, 1998, and any qualified permit holder applying for a renewal permit shall pay an annual permit fee of $50.00 for a Class I permit and $500.00 for a Class II bingo permit to be payable at the time of application for renewal of an existing permit. No permit shall be issued to any qualified organization unless such organization has been in continuous existence in the state for 24 months immediately prior to the issuance of the permit. Such permit shall only be valid for one year from the date of issuance. A permit may be renewed annually by filing a renewal application with the police chief within 60 days before the date of expiration, on a form specifying all of the information required hereinbelow. The police chief shall direct the renewal application to the attention of the city council. Each application for a permit or for renewal of a permit shall be subscribed to by an authorized representative of the qualified organization before a notary public or other attesting officer authorized to administer oaths, shall affirm the truthfulness of the information provided and shall contain the following information:

(1) The name and address of the qualified organization. The name and home address of the applicant; the names and

home addresses of each of the officers and directors, or other persons similarly situated, of the organization.

(2) The names and home addresses of each of the persons who will be operating the bingo game, as well as their dates of birth and social security numbers.

(3) The names and addresses of any persons, organizations or other legal entities that will act as surety for the applicant, or to whom the applicant is financially indebted.

(4) The location at which the applicant will conduct the bingo games and a copy of all deeds, mortgages, rental agreements or leases to the premises where the proposed bingo operation is to be conducted.

(5) A statement showing the convictions, if any, for criminal offenses, other than minor traffic offenses, of each of the persons listed in subsections (a)(1), (2) and (3) of this section.

(6) The date, and location the qualified organization was established in the state, the certification from the Internal Revenue Service that the qualified organization is tax exempt, including production of the formal approval letter of the IRS as to the organization's status as a 501(c) corporation and resulting tax number together with production of the organization's last form 990 filed with the IRS, and if the qualified organization is a senior citizen organization, the name, address and age of each member.

(7) Whether the applicant is applying for a Class I or Class II bingo permit and the requested days and hours of operation.

(8) A copy of the qualified organization's bylaws, articles of incorporation and charter.

(9) A copy of the bingo equipment inventory and any rental or lease agreements on the equipment.

(10) A certificate of insurance for fire and liability insurance.

(11) A copy of the most recent fire safety inspection report for the premises where bingo is proposed to be conducted.

(12) A current financial statement for the qualified organization.

(13) Signed, notarized criminal history releases for each person involved in the planning, managing or operating each games and for the chief executive officer, secretary and treasurer of the organization.

(14) A statement revealing the existence of any other bingo or gambling establishment with which any person listed in subsections (a)(1), (2) and (3) of this section is presently associated or has a proprietary interest in, or with which the person has been associated or had a proprietary interest in within the past ten years.

(15) A certification by the applicant that all bingo sessions shall only be organized, promoted and operated solely and directly by such officers, directors or employees of the qualified organization applicant as stated in the application and in order to comply with state constitutional requirements the applicant shall further certify that it has not entered into a contract with any individual, firm, association or corporation to operate bingo games or concessions on its behalf and has not and will not pay any consulting fees to any individual to entity for any services performed in relation to the operation or conduct of a bingo game.

(16) Any other necessary and reasonable information which the city council may require.

(b) No bingo permit shall be granted to any applicant who fails to fully provide the information required by this section.

(Code 1980, § 12-3.5-4; Ord. No. 80-222, § 4, 9-30-1980; Ord. No. 97-54, § I(12-3.5-4), 5-6-1997; Ord. No. 98-99, § I(12-3.5-4), 6-23-1998; Ord. No. 98-135, § I, 8-18-1998; Ord. No. 98-194, § I(12-3.5-4), 12-15-1998)

Sec. 12-3.5-5. Contents and display of permits.

(a) Each bingo permit shall state whether the permit is for Class I or Class II bingo permit and shall contain the name and address of the permit holder, the names and addresses of each of the persons who will be operating the bingo games, the location at which the permit holder is permitted to conduct bingo and the days of the week, and specified hours of operation each day during which the permit holder will be permitted to conduct bingo, provided, however, no permit holder shall conduct bingo games more than two days a week and shall not allow games to exceed five hours each day of operation.

(b) The bingo permit holder shall display the permit conspicuously at the location where bingo is being conducted at all times during the conduct of the games.

(Code 1980, § 12-3.5-5; Ord. No. 80-222, § 5, 9-30-1980; Ord. No. 97-54, § I(12-3.5-5), 5-6-1997; Ord. No. 98-99, § I(12-3.5-5), 6-23-1998; Ord. No. 98-194, § I(12-3.5-5), 12-15-1998)

Sec. 12-3.5-6. Special permit, application, fee, issuance by city council, contents, term, number, transfer.

(a) A qualified organization licensed pursuant to section 12-3.5-4 may obtain a special Class II permit to play bingo games at locations and on days other than those set forth in its annual permit upon submission of a special application to the police chief at least 45 days prior to the date or dates that such bingo games are to be played. The police chief shall direct the application to the attention of the city council within 15 days of its receipt. All special permits must be considered by the city council as provided in section 12-3.5-4. The privilege to operate under a special permit is subject to the limitations of section 12-3.5-10(g). The fee for a permit issued under this subsection shall be $100.00 for a Class II special permit and shall be paid at the time of application for the permit.

(b) A qualified organization which does not hold a permit pursuant to section 12-3.5-4 may apply for a special Class II permit for conducting bingo at a designated location for a special occasion. Such an applicant shall submit to the police chief a written application prepared in accordance with and on a form containing the requirements contained in section 12-3.5-4, any additional requirements prescribed by rule of the city council and the applicant shall indicate the day or days on which the applicant will conduct bingo for the special occasion. An application pursuant to this subsection must be submitted at least 60 days prior to the date or dates bingo will be conducted. After investigation by the police chief that the applicant is a qualified organization and not ineligible pursuant to section 12-3.5-7, the police chief shall direct the applicant and the results of the investigation to the attention of the city council within 21 days of its receipt. All permits issued pursuant to this subsection must be considered and approved by the city council as provided in section 12-3.5-4. The fee for the special permit shall be $200.00 for a Class II special permit and shall be paid at the time of application for the permit.

(c) A special permit shall contain the name and address of the permit holder, the names and addresses of each of the persons who will be operating the bingo games, and shall specify the location at which the permit holder may conduct bingo and the dates, days, and hours, not exceeding two consecutive days, on which the permit holder may conduct bingo, for the special occasion.

(d) A qualified organization licensed pursuant to subsection (b) of this section shall not be issued more than two special permits in any one-year period. A special permit shall not be assignable or transferable.

(Code 1980, § 12-3.5-6; Ord. No. 80-222, § 6, 9-30-1980; Ord. No. 97-54, § I(12-3.5-6), 5-6-1997; Ord. No. 98-99, § I(12-3.5-6), 6-23-1998; Ord. No. 98-194, § I(12-3.5-6), 12-15-1998)

Sec. 12-3.5-7. Certain activities prohibited; special requirements.

(a) Only qualified organizations which are properly issued permits pursuant to this chapter shall be allowed to operate bingo games.

(b) A qualified organization shall not lend its name or allow its identity to be used by any individual, firm, association or corporation in the operating, promoting or advertising of a bingo game in which said qualified organization is not directly and solely operating said bingo game. All equipment shall be permanently and clearly marked in letters no less than one-half inch in height and one-fourth inch in width (except for the letter "I") with the name of the organization using same, and it shall be unlawful to use equipment marked with the name of another organization.

(c) It shall be unlawful for two or more qualified organizations to operate bingo games jointly or to operate bingo games upon the same premises.

(d) It shall be unlawful for two or more qualified organizations to pyramid the valuation of prizes in such a manner as to exceed the limits in cash or gifts of equivalent value as provided in section 12-3.5-10.

(e) It shall be unlawful for any person or organization by whatever name or composition thereof to take any salary, expense money or fees as remuneration for services rendered in the operation of any bingo game, including compensation in any form for providing bingo game participants.

(f) No qualified organization shall pay consulting fees to any individual or entity for any services performed in relation to the operation or conduct of a bingo game.

(g) It shall be unlawful for anyone to operate or conduct a bingo game at anywhere other than at the permitted location, nor at any time other permitted hours and days, nor for the permit holder to allow anyone to operate a bingo game under its permit who is not listed on said permit.

(h) It shall be unlawful for a permit holder or anyone conducting or operating a bingo game to fail to give out the amount of cash, prizes or gifts advertised for each bingo game.

(i) It shall be unlawful for a Class I permit holder or anyone conducting or operating a Class I permitted bingo game to offer or to give out more than $50.00 in cash and/or gifts of equivalent value in any calendar day or to give out more than $100.00 in cash and/or gifts of equivalent value in any calendar week and it shall be unlawful for any Class II permit holder or anyone conducting or operating a Class II permitted bingo game to offer or to give out more than $1,200.00 in cash or gifts of equivalent value in any calendar day or to offer or to give out more than $2,400.00 in cash or gifts of equivalent value in any calendar week.

(j) Failure to comply with the provisions of this section shall constitute cause for permit revocation.

(Code 1980, § 12-3.5-7; Ord. No. 80-222, § 7, 9-30-1980; Ord. No. 97-54, § I(12-3.5-7), 5-6-1997; Ord. No. 98-99, § I(12-3.5-7), 6-23-1998; Ord. No. 98-194, § I(12-3.5-7), 12-15-1998)

Sec. 12-3.5-8. Reserved.

Sec. 12-3.5-9. Proceeds of bingo games, disposition.

(a) A qualified organization operating bingo games pursuant to a Class I permit issued by the city council shall devote the entire net proceeds bingo games to the charitable, civic, community, benevolent, religious or scholastic activities stated in its charter, bylaws or similar legal instrument and shall distribute all of such proceeds no less than yearly. A qualified organization operating bingo games pursuant to a Class II permit issued by the city council shall devote the entire net proceeds or one-tenth of the gross proceeds of such games, whichever is greater, to the charitable, civic, community, benevolent, religious or scholastic activities stated in its charter, bylaws or similar legal instrument and shall distribute all of such proceeds no less than quarterly.

(b) An item of expense shall not be incurred or paid in connection with the holding, operating or conducting of bingo; except the following bona fide expenses may be incurred or paid in amounts which are comparable to the actual cost of the product or service and in amounts bearing a reasonable relationship to that proportion of the total expense attributable to the conduct of bingo games:

(1) The purchase or rental of equipment necessary for conducting bingo and payment of services reasonably necessary for the repair of equipment;

(2) Cash prizes or the purchase of prizes of merchandise;

(3) Rental of the location at which bingo is conducted, subject, however, to the restriction in this chapter; if the premises are leased, the rate of rental or mortgage payment shall not be based on a percentage of receipts or profits resulting from the operation of bingo games, and further such rate of rental or mortgage payment shall be reasonable as compared to the fair rental value or fair market value of comparable properties in the area;

(4) Utilities;

(5) Janitorial services;

(6) The fee required for issuance or reissuance of a permit to conduct bingo;

(7) Insurance on the facilities and liability coverage, as is reasonable for the operation of bingo games;

(8) Security personnel;

(9) Accountant fees in connection with the preparing and filing of financial statements required by this chapter;

(10) Other reasonable expenses incurred by the permit holder, not inconsistent with this chapter, as permitted by rules established by the city council.

(c) Failure to comply with the provisions of this section shall constitute cause for permit revocation.

(Code 1980, § 12-3.5-9; Ord. No. 80-222, § 9, 9-30-1980; Ord. No. 97-54, § I(12-3.5-9), 5-6-1997; Ord. No. 98-99, § I(12-3.5-9), 6-23-1998; Ord. No. 98-194, § I(12-3.5-9), 12-15-1998)

Sec. 12-3.5-10. Management and operation of bingo, persons eligible, compensation, equipment, prizes, advertisement.

(a) It shall be unlawful for a person other than a bona fide member of the permit holder to participate in the management of bingo. Persons other than bona fide members of the permit holder may participate in the operation of bingo as provided by rules established by the city council.

(b) Bingo may not be conducted with any equipment which is not owned, being purchased or being rented at a reasonable rate to be used solely by the permit holder.

(c) Prizes given by any organization for the playing of Class I permitted bingo games shall not exceed $50.00 in cash and/or gifts of equivalent value during any calendar day and shall not exceed $100.00 in cash or gifts of equivalent value during any calendar week and prizes given by any organization for the playing of Class II permitted bingo games shall not exceed $1,200.00 in cash or gifts of equivalent value during any calendar day and shall not exceed $2,400.00 in cash or gifts of equivalent value during any calendar week. Further, prizes given by any organization for the playing of any bingo games shall be no less than the amount of cash, prizes or gifts advertised by the permit holder. All monies, prizes and gifts for each bingo game shall be determined and prominently posted by the permit holder prior to the start of each bingo game. Flyers, advertisements, recorded announcements and other like promotionals stating a permittee is offering prizes in excess of the amount allowed by law shall be prima facie evidence that the permit holder has violated this section.

(d) Advertising or promotion of bingo games may be directed toward bona fide members of the permit holder in accordance with the reasonable rules therefor to be established by the city council. The permit holder shall indicate in all advertisements and promotions the purposes for which the net proceeds will be used by the permit holder.

(e) A permit holder shall display its bingo permit conspicuously at the location where the bingo game is conducted.

(f) A permit holder shall conduct bingo games only at the single location specified in the permit holder's application.

(g) It shall be unlawful to conduct any bingo sessions during the hours of 12:00 midnight on Saturday evening/Sunday morning and 4:00 p.m. on the Sunday or during any days or hours not

authorized by the city council. A permit holder shall not conduct more than one bingo session during any one calendar day and no more than two bingo sessions during any one calendar week, and no session shall exceed five hours.

(h) It shall be unlawful to sell, provide, allow or have in possession any alcoholic beverages in the rooms or enclosures where a bingo session is to be conducted from two hours prior to the session until one hour after the end of the session whether or not a bingo game is being played.

(i) It shall be unlawful to have any electronic gaming machines or gaming devices or to use any electronic machines or other devices for the purpose of gaming anywhere on the premises permitted for bingo games at any time whether or not a bingo game is being played.

(j) Failure to comply with the provisions of this section shall constitute cause for revocation of the bingo permit.
(Code 1980, § 12-3.5-10; Ord. No. 80-222, § 10, 9-30-1980; Ord. No. 97-54, § I(12-3.5-10), 5-6-1997; Ord. No. 98-99, § I(12-3.5-10), 6-23-1998; Ord. No. 98-194, § I(12-3.5-10), 12-15-1998)

Sec. 12-3.5-11. Age restriction to play or conduct bingo games.

No person under the age of 19 years shall be permitted to play any game or games of bingo conducted pursuant to any permit issued under this chapter. No person under the age of 19 years shall be permitted to conduct or assist in the conduct of any game of bingo conducted pursuant to any permit issued under this chapter.
(Code 1980, § 12-3.5-11; Ord. No. 80-222, § 11, 9-30-1980)

Sec. 12-3.5-12. Taxation, prize.

Local taxes of any kind whatsoever shall not be imposed upon the recipient of any prize, whether merchandise or money, awarded by a permit holder during a bingo game conducted in conformity with this chapter.
(Code 1980, § 12-3.5-12; Ord. No. 80-222, § 12, 9-30-1980; Ord. No. 97-54, § I(12-3.5-12), 5-6-1997; Ord. No. 98-99, § I(12-3.5-12), 6-23-1998)

Sec. 12-3.5-13. Enforcement and supervision of administration of chapter, personnel, rules.

(a) The city council may promulgate reasonable rules and regulations deemed necessary for the proper administration and enforcement of the provisions of this chapter. The police chief shall employ personnel as necessary to implement this chapter.

(b) The city council by reasonable rules shall regulate the holding, operation or conducting of bingo, including but not limited to the following:

(1) The method of play and selection of winners;

(2) The type of equipment to be used;

(3) Advertising and promotion among members of the permit holder.

(Code 1980, § 12-3.5-13; Ord. No. 80-222, § 13, 9-30-1980; Ord. No. 97-54, § I(12-3.5-13), 5-6-1997; Ord. No. 98-99, § I(12-3.5-13), 6-23-1998)

Sec. 12-3.5-14. Records of permit holders; financial statements; inspection and location of bingo.

(a) Each permit holder shall maintain the following records for at least three years from the date on which the last bingo game is conducted and Class II permit holders shall submit a quarterly report to the director of finance on forms approved by such director which shall report all receipts and expenditures for the preceding quarter particularly detailing the following:

(1) An itemized list of the gross receipts for each session including but not limited to cover charges or admission charges, charges for sale or use of cards and all other charges related to participation in bingo games, all receipts for food, beverages, concessions, supplies and other items or services sold in or about the premises;

(2) An itemized list detailing all expenses, including money and prizes paid during a bingo session, including the name and address of each person to whom the ex-

penses or prizes are paid, the amount of the expense or prize and a receipt for each of said expenses; and

(3) An itemized list of all distributions of net proceeds or one-tenth of gross proceeds to the charitable, civic, community, benevolent, religious or scholastic activities as required, including the name and address of each organization receiving such funds and the amount of contribution to each organization.

(b) The records shall be open to inspection by a duly authorized employee of the police chief and/or a duly authorized employee of the director of finance during reasonable business hours. The city finance director or his or her authorized deputy, auditor or representative, may examine and conduct an audit of a permit holder's records, accounts and transactions related to the operation of bingo.

(c) On or before April 15 in each year, each permit holder shall file with the finance director a financial statement of receipts and expenses relating to the operation of bingo games in the previous calendar year and a copy of the permit holder's Form 990. Said statement shall be in addition to any and all other reports required by law.

(d) The location at which bingo is being conducted or at which an applicant or permit holder intends to conduct bingo shall be open to inspection at all times by duly authorized employees of the police chief and/or authorized employees of the director of finance.
(Code 1980, § 12-3.5-14; Ord. No. 80-222, § 14, 9-30-1980; Ord. No. 97-54, § I(12-3.5-14), 5-6-1997; Ord. No. 98-99, § I(12-3.5-14), 6-23-1998; Ord. No. 98-194, § I(12-3.5-14), 12-15-1998)

Sec. 12-3.5-15. Suspension or revocation of permits.

(a) The city council may suspend or revoke any permit issued pursuant to this chapter if the permit holder or any officer, director, agent, member or employee of the permit holder violates this chapter or rule promulgated hereunder.

(b) The chief of police or his or her designee may request the revocation or suspension of any bingo permit for any of the following:

(1) Failure or refusal to comply with any provision of this chapter;

(2) Conviction of any officer, director or employee of the permit holder or other person operating, conducting or managing bingo games under such permit of any crime or offense involving moral turpitude or corrupt or fraudulent practice;

(3) Making a false statement of a material fact in the application for bingo permit or failing to disclose any information called for in the application;

(4) Failure to give out the amount of cash, prizes or gifts advertised for each bingo game; and

(5) A Class I bingo permittee, or employee, person operating, conducting or managing a Class I permitted bingo game offering or giving out more than $50.00 in cash or gifts of equivalent value in any calendar day or more than $100.00 in any calendar week or a Class II bingo permittee, or employee, person operating, conducting or managing a Class II permitted bingo game offering or giving out more than $1,200.00 in cash or gifts of equivalent value in any calendar day or more than $2,400.00 in any calendar week.

(c) The chief of police may suspend a bingo permit for any of the reasons given in subsection (b) of this section for a period not to exceed 15 days. Notice shall be given in writing to the permit holder or the manager or operator of the bingo games by certified mail to the address of record of the permit holder or by personal delivery. Such written notice shall set out the offense or violation giving rise to the suspension and request for suspension or revocation of the bingo permit and a date and time which the city council hearing will be held.

(d) The council shall hold a hearing on the revocation or suspension within 14 days of receipt of the police chief's recommendations. The permit

holder may be represented at the council hearing by an attorney and may present witnesses concerning the charges.

(e) The decision of the city council shall be final.

(f) Any suspension shall be upon such terms and conditions and for such period of time as the council deems appropriate.

(g) A permit holder whose permit is revoked for any reason is ineligible to apply for a bingo permit for 12 months after the revocation.

(h) The permit holder shall return the bingo permit to the city on or before the effective date of a revocation or suspension. Whether returned or not, the permit shall not be valid after the effective date of the revocation or suspension. It shall be unlawful for the permit holder or any officer, director, agent, member or employee of the permit holder to conduct or attempt to conduct bingo games after the effective date of revocation or suspension.
(Code 1980, § 12-3.5-15; Ord. No. 80-222, § 15, 9-30-1980; Ord. No. 97-54, § I(12-3.5-15), 5-6-1997; Ord. No. 98-99, § I(12-3.5-15), 6-23-1998; Ord. No. 98-194, § I(12-3.5-15), 12-15-1998)

Sec. 12-3.5-16. Violation, offense.

Any person who violates this chapter, upon conviction, shall be punished according to the general penalties described in section 1-1-6.
(Code 1980, § 12-3.5-16; Ord. No. 80-222, § 16, 9-30-1980)

Sec. 12-3.5-17. Issuance or reissuance of permit after revocation, forfeiture or suspension; grounds for forfeiture; return of permit upon suspension, revocation or forfeiture; effect of suspension, revocation or forfeiture.

(a) A permit holder whose permit is revoked in consequence of a violation of this chapter or a rule promulgated under this chapter shall be ineligible to apply for a permit for a period of one year after the revocation.

(b) A person convicted of an offense under this section or any other gambling offense shall be ineligible to participate in conducting bingo for a period of one year after the conviction becomes final.

(c) If the permit is suspended, in addition to other penalties which may be imposed, the city council may declare the violator ineligible to conduct a bingo game or apply for a permit under this chapter for a period not exceeding one year.

(d) The permit holder shall return its permit to the police chief on or before the effective date of a suspension, revocation or forfeiture. Whether returned or not, the permit shall not be valid beyond the effective date of the suspension, revocation or forfeiture.

(e) It shall be unlawful for any person to conduct or aid in conducting a bingo game under an expired, suspended or revoked permit.
(Code 1980, § 12-3.5-17; Ord. No. 80-222, § 17, 9-30-1980)

CHAPTER 3.7. BUYERS OF GOLD OR SILVER

Sec. 12-3.7-1. Definitions.

For the purpose of this chapter, the following terms shall have the following meanings:

Consumer means a person who uses economic goods and so diminishes or destroys their utility.

Gold or silver object means any object which contains any amount of gold or silver.

Manufacturer means a person who by labor, art or skill transforms raw material into some kind of finished product or article of trade.

Permittee means the person to whom a permit is issued pursuant to the provisions of this chapter and any agent, officer or employee of such person who is engaged in the business for which the permit was issued.

Retail merchant means one who sells directly to the consumer.

Wholesale or *wholesale merchant* means a person who sells to retailers for resale rather than directly to consumers.
(Code 1980, § 12-3.7-1; Ord. No. 80-201, § 1, 9-16-1980; Ord. No. 80-247, § 1, 11-4-1980)

Sec. 12-3.7-2. Permit required to engage in business of buying gold or silver or gold or silver objects.

No person shall engage in the business of buying gold, silver, or gold or silver objects without having first obtained a permit therefor from the city council.
(Code 1980, § 12-3.7-2; Ord. No. 80-201, § 2, 9-16-1980; Ord. No. 80-247, § 2, 11-4-1980)

Sec. 12-3.7-3. Application for permit; application fee.

(a) Application for a permit required herein shall be made to the chief of police and shall be signed by the applicant himself or herself, if an individual; by all partners, if a partnership; and by the chief executive officer, if a corporation, or, if a foreign corporation, the managing officer of such corporation for the state. Application forms shall be furnished by the chief of police, and such application shall be sworn to by each of its signers before a notary public or other officer authorized by law to administer oaths and shall include the following information:

(1) Name, residence address and telephone number of each individual owner, partner, or, if a domestic corporation, the names of the directors and chief executive officer of such corporation, or, if a foreign corporation, the name of the managing officer of such corporation for the state and the date on which such foreign corporation became legally qualified to do business in the state.

(2) Trade names used by the applicant during the previous three years and by each person signing the application, along with the locations of prior establishments.

(3) The names and addresses of employers of each person signing the application during the previous three years.

(4) The trade name and address of the business on behalf of which application is made and its telephone number, if assigned.

(5) The address of the place where the business is to be carried on.

(6) The name, residence address and telephone number of each person employed or intended to be employed in the business as of the time the application is filed.

(7) A photograph of each person signing the application, taken within 60 days immediately prior to the date of the filing of the application, which photograph shall be two inches by two inches, showing the head and shoulders of the applicant in a clear and distinguishing manner.

(8) What type of security, if any, the applicant proposes to employ to safeguard its purchases and the premises upon which it will conduct business.

(9) The type of evidence of ownership that the applicant will require of a seller of gold, silver, or gold or silver objects before completing the purchase.

(10) A copy of the form of bill of sale or other evidence of transfer of title of gold, silver, or gold or silver objects from the seller to the applicant which the applicant proposes to use in its business.

(b) Each application for a permit hereunder shall be accompanied by an application fee of $100.00, except that any person applying for a permit who has been continuously engaged in business within the city as a gold or silver dealer or a wholesale or retail merchandise dealer for a period of two years prior to the date of the adoption of the ordinance from which this chapter is derived under an appropriate business license issued by the city shall be exempt from the requirements of this subsection.
(Code 1980, § 12-3.7-3; Ord. No. 80-201, § 3, 9-16-1980; Ord. No. 80-247, § 3, 11-4-1980)

Sec. 12-3.7-4. Investigation of application; public hearing before city council.

(a) The chief of police shall investigate all applications for permits and shall file a written report of his or her findings, together with the

application, with the city clerk within 30 days from the date of receipt of such application. The chief of police shall state, in the report, his or her recommendations on the issuance or denial of the permit.

(b) Upon receipt of the application and the report of the chief of police, the city clerk shall submit such application and report to the city council. The city council shall set a public hearing on such application before the city council at a regular or special meeting to be held within 21 days after submission of the application to the city council by the city clerk. The city clerk shall notify the applicant of the time and place of such public hearing. Such notice shall be in writing and shall state that the applicant, at such public hearing, may appear in person and/or by his or her attorney and that he or she may present his or her position, argument or contentions orally and/or in writing and that he or she may present evidence in his or her behalf and examine witnesses appearing for or against him or her.

(c) At such public hearing, the city council shall hear any person who desires to be heard and shall receive all evidence offered by any person on any issue relevant to the issuance or denial of the permit applied for.

(d) The city council shall consider all relevant evidence and testimony presented to it at such public hearing and shall, at the conclusion of such hearing, issue or deny the permit.

(e) The city council may deny the permit if the applicant or any officer, agent or employee of the applicant has:

(1) Violated or failed to comply with any provision of this chapter.

(2) Knowingly and willfully given any false information of a material nature in connection with the application for a permit or in connection with the public hearing on the issuance or denial of such permit.

(3) Been convicted of any federal or state law or municipal ordinance which reasonably relates to the applicant's character, fitness and business responsibility for engaging in the business of buying gold, silver, or gold or silver objects in a manner consistent with the public safety. The city council shall, in regard to any such convictions, consider the nature and seriousness of the offense; the circumstances surrounding the offense; the number of such offenses; the amount of time that has elapsed since the offense; the age of the applicant at the time of the offense; and any evidence of rehabilitation.

(Code 1980, § 12-3.7-4; Ord. No. 80-201, § 4, 9-16-1980; Ord. No. 80-247, § 4, 11-4-1980)

Sec. 12-3.7-5. Permit valid only at address shown thereon.

The permit issued to the applicant shall be valid only at the address shown thereon. Any person engaged in the business of buying gold, silver, or gold or silver objects who operates more than one such business must have a separate permit for each such place of business.

(Code 1980, § 12-3.7-5; Ord. No. 80-201, § 5, 9-16-1980; Ord. No. 80-247, § 5, 11-4-1980)

Sec. 12-3.7-6. Records to be kept.

It shall be the duty of each person engaged in the business of buying gold, silver, or gold or silver objects to keep at his or her place of business a permanently bound book, with the pages therein numbered by the manufacturer, in which he or she shall enter, or cause to be entered, in ink, a minute description of all gold, silver, or gold or silver objects bought at his or her place of business and the time when such property was received, making particular mention of any prominent marks on same, together with the name, sex, color, apparent age and general description and place of residence of the person from whom such property was bought; and wherever such items bear a number of the name of a manufacturer or other descriptive mark, the description hereinabove provided for shall include such number, name of manufacturer and other descriptive marks. Each permittee shall make the entries, or cause the entries to be made, in the book, as herein provided, at the time any such property is received. Such permittee shall make the entries herein required by making the first entry at the top of the first page of the book. Subsequent entries in the book shall be made in the order in

which the property to which the respective entries pertain was received. It shall be unlawful for any such permittee to remove, or permit to be removed, any page or part of page from such book or to erase or obliterate, or permit to be erased or obliterated, any entry made upon any page thereof.
(Code 1980, § 12-3.7-6; Ord. No. 80-201, § 6, 9-16-1980; Ord. No. 80-247, § 6, 11-4-1980)

Sec. 12-3.7-7. Inspection of records.

Each permittee, during the ordinary hours of business, when requested by the mayor, the chief of police or any police officers of the city, shall submit and exhibit such book as is provided for in section 12-3.7-6 to the inspection of the mayor, chief of police or other police officer, and upon demand shall exhibit any gold or silver or gold or silver objects which may be in the place of business of such permittee or which may have been bought or received by such permittee and which may be kept by him or her at any place.
(Code 1980, § 12-3.7-7; Ord. No. 80-201, § 7, 9-16-1980; Ord. No. 80-247, § 7, 11-4-1980)

Sec. 12-3.7-8. Daily report to police.

It shall be the duty of every permittee to furnish to the chief of police, at his or her office on each day upon forms provided for that purpose, a complete description of all gold, silver, or gold or silver objects bought or received during the preceding day, together with the name, sex, color, apparent age and general description and place of residence of the person selling or exchanging any such property and showing the hour such property was received, purchased or exchanged. In the event any day shall be a legal holiday, the report required by this section may be made on the day following such holiday.
(Code 1980, § 12-3.7-8; Ord. No. 80-201, § 8, 9-16-1980; Ord. No. 80-247, § 8, 11-4-1980)

Sec. 12-3.7-9. Permittee to retain purchases for 15 days.

It shall be unlawful for any permittee to sell, exchange, alter, destroy, melt or remove from his or her place of business any gold, silver, or gold or silver objects received, bought or exchanged by him or her for a period of 15 days after the delivery of the report required by section 12-3.7-8.
(Code 1980, § 12-3.7-9; Ord. No. 80-201, § 9, 9-16-1980; Ord. No. 80-247, § 9, 11-4-1980; Ord. No. 85-219, 10-1-1985)

Sec. 12-3.7-10. Dealing with minors prohibited.

It shall be unlawful for any permittee to buy or receive any gold, silver, or gold or silver objects from any person under the age of 19 years.
(Code 1980, § 12-3.7-10; Ord. No. 80-201, § 10, 9-16-1980; Ord. No. 80-247, § 10, 11-4-1980)

Sec. 12-3.7-11. Revocation of permit.

(a) The city council may revoke any permit issued pursuant to the provisions of this chapter for any of the reasons set forth in section 12-3.7-4(e).

(b) The city council shall set a time for a public hearing on the matter of the revocation of any permit issued pursuant to this chapter, and notice of the date and time of such hearing will be given to the permittee in writing by the city clerk not less than seven days prior to such hearing. Such notice shall state the reason for the hearing and shall advise the permittee that he or she may appear in person and/or by attorney and that he or she may present his or her position, arguments and contentions in writing and/or orally, and that he or she may present evidence in his or her behalf and examine witnesses appearing for and against him or her. The city council shall receive any relevant evidence and hear any relevant testimony on the matter of revocation prior to making its decision on such matter. The revocation by the city council of a permit issued pursuant to this chapter shall also act as a revocation of the business license of the permittee which was issued by authority of such permit.
(Code 1980, § 12-3.7-11; Ord. No. 80-201, § 11, 9-16-1980; Ord. No. 80-247, § 11, 11-4-1980)

Sec. 12-3.7-12. License tax.

Each permittee shall pay to the director of finance a license tax for the privilege of engaging in the business of buying gold or silver or gold or silver objects in the amount specified in the then

current license code of the city and shall each year thereafter pay to the director of finance such amount as is specified for such business in the then current license code so long as such permittee's license is in effect. The permit issued to the permittee shall authorize the director of finance to issue such license; except that any permittee who is engaged in business as a retail or wholesale merchandise dealer on the date of the issuance of the permit under license issued by the city may continue to do business under such license, and all business done by such dealer under the permit issued pursuant to this chapter shall be considered as part of the retail or wholesale merchandise business of such permittee for the purpose of calculating the amount of license due.
(Code 1980, § 12-3.7-12; Ord. No. 80-201, § 12, 9-16-1980; Ord. No. 80-247, § 12, 11-4-1980)

Sec. 12-3.7-13. Permit not transferable.

No permit or license issued under this chapter shall be transferred, assigned or used by any person other than the one to whom it was issued.
(Code 1980, § 12-3.7-13; Ord. No. 80-201, § 13, 9-16-1980; Ord. No. 80-247, § 13, 11-4-1980)

Sec. 12-3.7-14. Exemptions.

(a) Bona fide retail or wholesale merchants of jewelry, gold or silver, or gold or silver objects, who are engaged in such business in the city or its police jurisdiction in a fixed place of business under a license or licenses issued by the city pursuant to the general business license code of the city, shall be exempt from the provisions of this chapter in regard to purchases of gold, silver, or gold or silver objects from persons known by such retail or wholesale merchants to be bona fide manufacturers or wholesalers of gold, silver or gold or silver objects.

(b) The provisions of this chapter shall not apply to any bank organized under the laws of the state or the United States of America.
(Code 1980, § 12-3.7-14; Ord. No. 80-201, § 14, 9-16-1980; Ord. No. 80-247, § 14, 11-4-1980)

CHAPTER 3.9. CABLE COMMUNICATIONS*

ARTICLE A. GENERAL PROVISIONS

Sec. 12-3.9-1. Title.

This chapter shall be known as the Birmingham Cable Communications Ordinance.
(Code 1980, § 12-3.9-1; Ord. No. 89-205, § 1, 8-22-1989)

Sec. 12-3.9-2. Purpose.

The purposes of this chapter are to provide for:

(1) The franchising and regulation of cable communications systems within the city;

(2) Cable communications systems that will meet the current needs of the city and that can be improved and upgraded to meet future needs taking into account the cost of those needs;

(3) The payment of fees and other valuable consideration to the city for the use of the public ways and for the privilege to construct and operate cable communications systems;

(4) The establishment of construction, maintenance, and operations standards to ensure the safety of the public;

(5) The regulation by the city of certain rates to be charged to subscribers for certain cable communications services as authorized by law;

(6) Provide for the widest possible diversity of information sources and services to the public;

(7) Equal opportunity employment and the encouragement of local business involvement in the construction, operation, and maintenance of cable communications systems; and

*__State law reference—__Municipal regulation of telecommunication services, Code of Ala. 1975, § 11-50B-1 et seq.

(8) Remedies for violation of this chapter and any franchise granted hereunder.

(Code 1980, § 12-3.9-2; Ord. No. 89-205, § 2, 8-22-1989)

Sec. 12-3.9-3. Applicability.

This chapter is applicable to any application for a cable franchise filed on or after July 1, 1986, and to any such franchise granted thereafter.
(Code 1980, § 12-3.9-3; Ord. No. 89-205, § 3, 8-22-1989)

Sec. 12-3.9-4. Definitions.

For the purpose of this chapter the following terms, phrases, words, and their derivations shall have the meanings given herein. When not inconsistent with the context, words used in the present tense include the future, words in the plural number include the singular number, and words in the singular number include the plural number. The word "shall" is mandatory and the word "may" is permissive. Words not defined shall be given their common and ordinary meanings.

Access channel means any channel set aside for public use, educational use, or governmental use without a channel usage charge pursuant to a franchise agreement.

Access user means any person or entity entitled to make use of an access channel consistent with the intended purpose of the channel.

Alternative renewal process means a renewal procedure afforded a franchising authority and cable operator under section 626(h) of the Cable Communications Policy Act of 1984, 47 USC 546(h).

Application means a proposal, and any amendments thereto, seeking authority to construct and/or operate a cable communications system within the city pursuant to this chapter.

Basic service means subscriber cable television services which include, but are not limited to, the delivery of a public broadcasting signal (PBS), any access channels and/or any local origination channels provided for in the franchise agreements that are covered by the regular monthly charge paid by all subscribers.

Cable communications system means a facility consisting of a set of closed transmission paths and associated signal generation, reception, and control equipment that is designed to provide cable service which includes video programming and which is provided to multiple subscribers within the city, but such term does not include:

(1) A facility or combination of facilities that serve only to retransmit the television signals of one or more television broadcast stations;

(2) A facility of a common carrier which is subject, in whole or in part, to the provisions of subchapter II of chapter 5 of title 47, USC (47 USC 201 et seq.), as the provisions thereof read on August 1, 2000, except that such facility shall be considered a cable system to the extent the facility is used in the transmission of video programming directly to subscribers, unless the extent of the use is solely to provide interactive on-demand services;

(3) An open video system that complies with the provisions of 47 USC 573, as the provisions thereof read on August 1, 2000; or

(4) Any facilities of any electric utility used solely for operating its electric utility system.

Cable television services means the one-way transmission over the cable communications system of video programming and associated nonvideo signals to subscribers together with subscriber interaction, if any, which is provided in connection with the video programming.

Channel means at least six MHz of bandwidth in the electromagnetic spectrum capable of carrying any type of transmission which the franchisee of a cable system is authorized to provide to its subscribers.

Commission, cable television commission and *Birmingham Cable Television Commission* mean the commission established by the city pursuant to title 2, chapter 5, article D, section 2-5-51 et seq.

Connection means the attachment of the drop to the radio or television set or other communications device of the subscriber.

Construction, construction is completed, construction has been completed and construction shall be completed mean that:

(1) Strand has been put up and all necessary cable (including trunk and feeder cable) has been lashed or, for underground construction, that all cable has been laid and trenches refilled, all road surfaces restored and, except as prevented by weather conditions or delayed because of seasons, landscaping restored;

(2) All amplified housing and modules have been installed (including modules for return path signals if proposed);

(3) Power supplies have been installed and all bonding and grounding has been completed;

(4) All necessary connectors, splitters and taps have been installed; that construction of the headends or hubs has been completed and all necessary processing equipment has been installed; and that any and all other construction necessary for the system to be ready to deliver cable service to subscribers in a safe and reliable manner has been completed consistent with the terms of the franchise and industry standards.

Proof that performance tests have been successfully conducted on each otherwise completed segment of the cable system shall be provided to the city before direct marketing of that segment begins. It is expected that segments of less than the entire system will be activated and proofed when completed. Construction of any segment or of the entire system will not be considered complete until proof that successful performance tests have been conducted on such segment (or in the case of the entire system, on all segments of the cable system) has been submitted to the city and any problems found during testing have been corrected. The term "completion of construction" does not include marketing and installation of subscriber service.

Converter means an electronic tuning device which converts transmitted signals to a frequency which permits their reception on an ordinary television receiver.

Dedication means those dedications and easements for public roadway and public utilities and other rights-of-way maintained for the benefit of the public and controlled by the city, the terms, conditions, or limitations of which are not inconsistent with the erection, construction, or maintenance of a cable communications system, its structures or equipment.

Drop means the cable that connects a subscriber's premises to the nearest feeder line of the cable communications system.

Easement means a right to use all public rights-of-way, including public utility easements.

Existing franchisee means any franchisee operating pursuant to a franchise within the city at the time it submits a renewal application.

Feeder line means the coaxial or fiber-optic cable running from the trunk line to line-extenders and taps for the purpose of the interconnection to individual subscribers.

FCC means the Federal Communications Commission or any legally appointed or designated agent or successor.

File means the delivery, by mail or otherwise, to the appropriate office, officer or agent of the city of any document or other thing which this chapter or the franchise agreement requires the franchisee to file with the city. The stamped date of receipt by the city shall be considered the file date. Unless specified to the contrary, the filing shall be with the city clerk.

Franchise means the nonexclusive right and authority to construct, maintain, and operate a cable communications system through use of the public streets, dedications, public utility easements, other public rights-of-way, or public places in the city pursuant to a contractual agreement executed by the city and a franchisee.

Franchisee or *grantee* refers to an entity authorized to construct and/or operate a cable commu-

nications system within the city pursuant to this chapter, including any lawful successor, transferee or assignee of the original franchisee.

Gross revenues means all cash, credits, or other monetary consideration received directly or indirectly by a franchisee, excluding vendor credits, arising out of the use and operation of the cable communications system within the city. The term "gross revenues" includes the amount of any federal excise tax, or any other tax imposed on sales by retailers or wholesalers, but shall not include the state sales tax levied pursuant to title 40, chapter 23, article 1, Code of Alabama 1975, and Jefferson County sales tax, levied pursuant to Act 387, 1965 Regular Legislative Session and Act 405, 1967 Regular Legislative Session, and city sales tax, levied pursuant to title 13, chapter 3, as now or hereafter amended. The term "gross revenues" includes all the gross revenues received from the cable communications system unless specifically or expressly excluded herein.

Installation means the connection of the system at the subscriber's premises.

Institutional services means one- and two-way nonentertainment transmission services for businesses, public agencies and community institutions. Such services include, but are not limited to, video transmission and voice and data communications.

Leased channel or *leased access channel* means any channel, or part of a channel, available for commercial use on a fee basis by persons or entities other than a franchisee.

Maintain or *maintenance* refers to the repair, restoration, replacement, renovation and testing of the cable communications system or components thereof so as to ensure that it operates in a safe and reliable manner and as required by the franchise agreement or this chapter.

Minority means or refers to African Americans, Hispanics and American Indians.

Private provider means any person, firm, partnership, corporation or association offering service, other than a municipality or municipal instrumentality.

Public provider means any municipality or municipal instrumentality.

School means any institution of the city public school system.

Service tier means a specific set of cable subscriber services which are made available as, and only as, a group for purchase by subscribers at a separate rate for the group.

Street or *public way* means the surface of and the space above and below any public street, road, highway, path, sidewalk, alley, court, or easement now or hereafter held by the city for the purpose of public travel or other public purposes.

Subscriber means a recipient of services provided over a cable communications system.

User means a party utilizing a cable communications system's facilities for purposes of production or transmission of material or information to subscribers.
(Code 1980, § 12-3.9-4; Ord. No. 89-205, § 4, 8-22-1989)

Secs. 12-3.9-5—12-3.9-20. Reserved.

ARTICLE B. AUTHORITY

Sec. 12-3.9-21. Requirement of a franchise.

It shall be unlawful to construct, install, maintain or operate a cable communications system or part of a cable communications system within the city without a valid franchise obtained pursuant to the provisions of this chapter.
(Code 1980, § 12-3.9-21; Ord. No. 89-205, § 5, 8-22-1989)

Sec. 12-3.9-22. General franchise characteristics.

Any franchise issued pursuant to the provisions of this chapter shall be deemed to:

(1) Authorize use of the public ways for installing and maintaining cables, wires, lines, and other facilities in a safe and reliable condition in order to operate a cable communications system, but shall neither expressly or implicitly be deemed to authorize the franchisee to provide

service to, or install cables, wires, lines or any other equipment or facilities upon private property or to utilize publicly or privately owned utility poles or conduits without the consent of the owner.

(2) Convey no property right to the franchisee.

(3) Convey no right to renewal of a franchise other than under those conditions, encumbrances and procedures prescribed by applicable law.

(4) Be nonexclusive.

a. The city reserves the right to grant franchises to operate one or more other cable communications systems throughout the city provided that any subsequent franchises are granted under terms that are no less stringent than those granted to existing franchisees. Notwithstanding the above, the city may grant franchises with less stringent terms in the following situations:

1. In the event the city, through lawful annexation, incorporates an area into the city limits which at the time of annexation is served by a cable operator that is operating under a franchise granted by the former governing body of said area, then such cable operator may continue to operate under the terms and conditions of such franchise.

2. If the city makes a written request of a franchisee to serve an area of the city which the franchisee is not required by this chapter or its franchise to serve and does not so serve, and 30 days after such written request the franchisee fails to agree, in writing, to provide service to such area within a period of two years, the city may grant a less stringent franchise for those areas.

3. Franchises and renewals granted pursuant to subsections (4)a.1 and 2 of this section shall be limited to the boundaries of the annexed area or the requested area of service.

b. In the event that the city is considering an application to grant another cable franchise to a private provider, except as provided in subsections (4)a.1 and 2 of this section, 45 days prior to the consideration of the franchise, the city shall provide all current franchisees with a copy of the proposed franchise agreement between the city and the proposed private provider franchisee. Within 30 days after receipt of such a proposed franchise agreement, all such franchisees shall notify the city, in writing, of any terms or conditions that they believe to be less stringent than the terms of their franchise agreements and their reasons therefor.

c. If the city, after receipt of such written notification by the current franchisees, enters into a franchise agreement with a private provider containing such less stringent terms or conditions, then the city and the current franchisees shall forthwith amend their franchise agreements to incorporate such less stringent terms and conditions or other reasonably comparable terms.

(Code 1980, § 12-3.9-22; Ord. No. 89-205, § 6, 8-22-1989)

Sec. 12-3.9-23. Applicable law.

A franchise agreement shall be construed under the laws of the state.

(Code 1980, § 12-3.9-23; Ord. No. 89-205, § 7, 8-22-1989)

Sec. 12-3.9-24. Subject authority.

(a) The ordinance from which this chapter is derived is adopted in compliance with the Cable Communications Policy Act of 1984, 47 USCA 521

et seq., 531 et seq., 541 et seq., 551 et seq., and 571 et seq., and all other applicable federal and state laws governing cable communications, in order to provide the full rights and benefits for the city and its citizens and a franchisee thereunder and to provide for the awarding and regulation of franchises.

(b) A franchisee shall, at all times during the life of a franchise, be subject to all lawful exercise of the police power by the city and to such lawful regulations as the city may exercise through ordinances of general applicability.

(c) The construction, operation and maintenance of the system shall also be in full compliance with all other applicable rules and regulations now in effect or hereafter adopted by the United States, the state or any agency of said governments.
(Code 1980, § 12-3.9-24; Ord. No. 89-205, § 8, 8-22-1989)

Sec. 12-3.9-25. No waiver of terms.

A franchisee shall not be excused from complying with any of the terms and conditions of this chapter or franchise agreement by any failure of the city upon any one or more occasions to insist upon or to seek compliance with any such terms or conditions. The city shall not, however, have the right to impose or assess penalties or other damages retroactively.
(Code 1980, § 12-3.9-25)

Secs. 12-3.9-26—12-3.9-30. Reserved.

ARTICLE C. FRANCHISE APPLICATIONS

Sec. 12-3.9-31. Filing of applications.

Applications for a cable franchise will be considered pursuant to the following procedures:

(1) An application may be filed at any time or pursuant to a request for proposals (RFP) issued by the city or in the case of an existing franchisee by utilization of the alternative renewal process described in section 12-3.9-35. The city reserves the right to require a person filing an unsolicited application to file another application pursuant to an RFP or provide such other information and material and in a format as the city may require. The city also reserves the right to amend the requirements of an RFP at any time to reflect information developed concerning community needs.

(2) All applications, whether submitted pursuant to an RFP or otherwise, shall be submitted to the city clerk. The city clerk shall forward such applications to the cable television commission within ten days of receipt of the application. The commission shall, within 30 days of receipt of the application from the city clerk, determine whether the application is in substantial compliance with the requirements of this chapter as set out in this section, section 12-3.9-32 or 12-3.9-35, or any applicable RFP, and shall notify the applicant within the same 30-day period whether its application has been accepted for filing.

(3) The city may request additional information from an applicant for a franchise at any time.

(4) All applications to be acceptable for filing must be accompanied by a nonrefundable filing fee of $20,000.00.

(Code 1980, § 12-3.9-31)

Sec. 12-3.9-32. Content of applications.

To be acceptable for filing, an application either must be filed pursuant to section 12-3.9-35, or conform to any applicable RFP and all the information specified therein, or contain at minimum the following information where an application is not filed pursuant to an RFP or pursuant to section 12-3.9-35:

(1) Identification of the ownership and management of the applicant, if not a natural person, including the names and addresses of all persons with one percent or more ownership interest and the ultimate controlling natural persons, and identification of all principals, officers and directors and any other primary business affiliation of each. If the applicant is a

subsidiary of another controlling entity, provide the information noted above for all controlling entities.

(2) An indication of whether the applicant, or any entity controlling the applicant, or any affiliate of said controlling entity, including any officer of a corporation or major stockholder thereof, has voluntarily filed for relief under any provision of the bankruptcy laws of the United States (title 11 of the U.S. Code), had an involuntary petition filed against it pursuant to the bankruptcy code, been the subject of any state law insolvency proceeding such as a transfer for the benefit of creditors, had a cable franchise revoked, or has been found guilty by any court or administrative agency in the United States of a violation of a security or antitrust law or a felony or any other crime involving moral turpitude. Identify any such person or entity and fully explain the circumstances.

(3) A demonstration of the applicant's technical, legal and financial ability to construct and operate the proposed cable facility, including a detailed and complete financial statement of the applicant, duly certified as true and correct by an executive officer of the company, for the fiscal year last preceding the date of the application hereunder, or a letter or other acceptable evidence in writing from a recognized lending institution or funding source, addressed to both the applicant and the governing body, setting forth the basis of a study performed by such lending institution or funding source, and a clear statement of its intent as a lending institution or funding source to provide whatever capital shall be required by the applicant to construct and operate the proposed system in the city, or a statement from an independent certified public accountant, certifying that the applicant has available sufficient free, net and uncommitted cash resources to construct and operate the proposed system in the city.

(4) A description of the physical facility proposed, including channel capacity (one-way and two-way if any), the area to be served, a summary of technical characteristics, and headend and access facilities, including a description of system architecture.

(5) A description, including a map of the entire proposed franchise area, of how any construction will be implemented, identification of areas having aboveground or belowground cable facilities, the proposed construction schedule by year, and a description (where appropriate) of how service will be converted from any existing facility to a new facility.

(6) A description of the services to be provided over the system, including identification of television signals (both broadcast and nonbroadcast) to be carried and all nontelevision services to be provided initially. Where service will be offered by tiers, identify the signals and/or services to be included on each tier.

(7) The proposed rates to be charged, including rates for each service tier, as appropriate, and charges for installation, converters, and other services.

(8) A demonstration of how the proposal is reasonable to meet the present and future cable-related community needs and interests of the community as well as describe how the diverse viewing interests of the community will be met. The applicant should also describe how the proposal will satisfy the needs of the community as analyzed in any needs assessment undertaken by the city.

(9) Pro forma financial projections for each year of the franchise term. The projections shall include a statement of income, expenses, revenue, balance sheet, statement of cash flow and schedule of capital additions. All significant assumptions, including depreciation schedules, shall be explained in notes or supporting schedules that accompany the projections.

(10) Projections, for each year of the franchise, of the number of subscribers and the rates which will be charged for all cable services.

(11) A copy of any service agreement to be entered into by the applicant and subscribers.

(12) Information as necessary to demonstrate compliance with all relevant requirements contained in this chapter.

(13) A complete list of all cable communications systems in which the applicant, controlling entity of the applicant, subsidiary or affiliate of the applicant or its controlling entity, or a principal thereof, currently holds an equity interest. For each system listed, provide the following information:

a. Franchise term;

b. Date of expiration;

c. Number of subscribers;

d. Number of homes passed;

e. Number of route miles;

f. Channel capacity;

g. Rate for basic service; and

h. Name of franchising authority, including the address, phone number, and name of the person responsible for oversight of the cable system.

If a cable system encompasses agreements with more than one franchising authority, provide the requested information for each franchising authority.

(14) For each cable communications system listed pursuant to subsection (13) of this section, indicate each instance where a public franchising authority, licensor, or contracting party asserted that the cable communications system was in violation of any provision of a franchise agreement or ordinance. Describe the circumstances which led to such assertions.

(15) For each of the cable communications systems listed pursuant to subsection (13) of this section, indicate and fully explain the circumstances for each instance where:

a. Fines, penalties, or other monetary assessments (liquidated damages or otherwise) were assessed and/or paid by the system; and

b. A letter of credit, construction bond, security bond, or any other type of security has been drawn upon by the franchising authority.

(16) Identify, for each cable communications system listed pursuant to subsection (13) of this section, any legal action brought by the franchising authority against the system, and any legal action brought by the system against the franchising authority. Explain in detail the nature, status, and outcome of each legal action, including any damages and costs assessed against either party, and include a copy of every order made by a court in connection with such legal action.

(17) A description of the potential market for cable services within the city. The city has been advised that the provision of cable service within the city may evidence economies of scale and scope associated with a natural monopoly and that therefore it appears that at present the public interest will be best served by the award of a single franchise for the entire area of the city rather than multiple or area-specific franchises. Applicants shall state whether they believe that the provision of cable service in the city evidences such economies of scale and/or scope and whether the public is better served by the award of one, multiple, or area-specific franchises. Applicants shall provide any documentation or other information which supports their views.

(18) Applicants shall review the provisions of this chapter and identify each and every provision the applicant believes violates any provision of:

a. The Cable Communications Policy Act of 1984, 47 USC 521 et seq., 531 et seq., 541 et seq., 551 et seq., and 571 et seq.;

b. Any other federal or state law;

c. Any city regulation; and

d. Any provision of the United States or state constitutions.

The applicant shall identify in writing the provision it believes is violated, including a detailed explanation supporting its opinion as well as proposed language which it believes will correct the asserted violation.

(19) Since the city may grant a franchise for a period of up to 15 years, an applicant should describe with particularity how it believes:

a. The technical provision of cable service is likely to change over the five-, ten-, or 15-year period of any franchise; and

b. How the demand for cable service in the city is likely to change over that same period.

(20) A demonstration that the proposal is designed to be consistent with all federal and state requirements.

(21) In the case of an application by an existing franchisee for a renewed franchise, a demonstration that said franchisee has substantially complied with the material terms of the existing franchise and with applicable law.

(22) An affidavit of the applicant or duly authorized officer thereof, certifying, in a form acceptable to the city, the truth and accuracy of the information contained in the application and acknowledging the enforceability of application commitments.

(Code 1980, § 12-3.9-32; Ord. No. 89-205, § 11, 8-22-1989)

Sec. 12-3.9-33. Applicant representatives.

Any person who files an application with the city for a cable television franchise shall at the time of application disclose to the city, in writing, the names, addresses and occupations of all persons who are authorized to represent or act on behalf of the applicant in those matters pertaining to the application. Each person so authorized shall be deemed to have the authority to make representations or act on behalf of the applicant with respect to all matters pertaining to the application unless otherwise limited in writing. The requirement to make such disclosure shall continue until the city shall have rejected an applicant's application or until an applicant withdraws its application.

(Code 1980, § 12-3.9-33; Ord. No. 89-205, § 12, 8-22-1989)

Sec. 12-3.9-34. Consideration of applications.

(a) The city will consider each application for a franchise where the application is found to be acceptable for filing and in substantial compliance with the requirements of this chapter and any applicable RFP if filed pursuant thereto. In evaluating an application the city will consider, among other things, the applicant's experience, character, background, and financial responsibility, the applicant's past service record in other communities, the nature of the proposed facilities and services, but without regard to the content of such services, proposed rates, and whether the proposal would adequately serve the public needs and the overall interests of the citizens of the city. Where the city finds that the public interest will be best served by the award of one or a limited number of franchises, and more applications have been filed than franchises will be awarded, the city shall award the franchise or franchises to the applicant(s) which will best serve the public needs and interests as determined by the city council.

(b) Where the application is for a renewal of a franchise, pursuant to an RFP or section 12-3.9-32, the city shall consider whether:

(1) The cable operator has substantially complied with the material terms of the existing franchise and with applicable law;

(2) The quality of the operator's service, including signal quality, response to consumer complaints, and billing practices (but without regard to the mix, quality, or level of cable services or other services provided over the system) has been reasonable in light of community needs;

(3) The operator has the financial, legal and technical ability to provide the services, facilities, and equipment as set forth in the operator's proposal; and

(4) The operator's proposal is reasonable to meet the future cable-related community needs and interests, taking into account the cost of meeting such needs and interests.

Consideration by the city of an application for a franchise renewal will not be based on comparison with any other applications received.

(c) Where the city determines that an applicant's proposal, including the proposed service area, would serve the public interest, it may grant a franchise to the applicant. The franchise agreement will constitute a contract, freely entered into, between the city and the franchisee. Said franchise agreement shall incorporate by reference the provisions of this chapter. Any such franchise must be approved by resolution of the city council.

(d) In the course of considering an application for a renewed franchise, the council shall hold a public hearing, following at least 14 days' prior notice, in which the public and the franchisee seeking renewal shall be offered an opportunity to speak, offer evidence and question witnesses. A transcript or recording shall be made of such hearing. Based on the record of such hearing and the application (including any negotiations relative thereto), the council shall determine whether to grant a renewed franchise and shall issue a written opinion stating the reasons for its decision.
(Code 1980, § 12-3.9-34; Ord. No. 89-205, § 13, 8-22-1989)

Sec. 12-3.9-35. Alternative renewal process.

Notwithstanding any other provision contained herein, an existing franchisee may at any time submit a proposal for the renewal of a franchise pursuant to the provisions of section 626(h) of the Cable Communications Policy Act of 1984, 47 USC 546(h); and the city may, after affording the public adequate notice and opportunity for comment, grant or deny such proposal at any time (including before or after the issuance of a request for proposal pursuant to this article).
(Code 1980, § 12-3.9-35; Ord. No. 89-205, § 14, 8-22-1989)

Sec. 12-3.9-36. Acceptance.

A franchise and its terms and conditions shall be accepted by a franchisee by written instrument, in a form acceptable to the city attorney, and filed with the city within 30 days after the granting of the franchise by the city. The acceptance shall be executed in the name and on behalf of a franchisee by an officer of franchisee duly authorized thereunto, and with his or her signature as such officer acknowledged by a notary public. A duplicate executed copy of such written acceptance shall be filed with the director of finance of the city and a third executed copy with the city engineer.
(Code 1980, § 12-3.9-36; Ord. No. 89-205, § 15, 8-22-1989)

Secs. 12-3.9-37—12-3.9-40. Reserved.

ARTICLE D. FRANCHISE CONDITIONS

Sec. 12-3.9-41. Franchise term.

The term of a franchise shall be as specified in the franchise agreement, but it shall not exceed 20 years.
(Code 1980, § 12-3.9-41; Ord. No. 89-205, § 16, 8-22-1989)

Sec. 12-3.9-42. Franchise fee.

(a) A franchisee, in consideration of the privilege granted under a franchise for the use of public ways and the privilege to construct and operate a cable communications system, shall pay to the city five percent of its annual gross revenues during the period of its operation under a franchise.

(b) A franchisee shall file with the city, by the end of each fiscal year, a revenue statement showing the gross revenues received by franchisee during the preceding 12 months. A franchisee shall pay the annual franchise fee to the city on or

before the time such revenue statement is due to be filed. A franchisee shall also file, no later than 90 days after the end of its fiscal year, the franchisee's revenue statements for the preceding year, audited by an independent public accountant certified in the state, which shall affirmatively state that the revenue statement is based on gross revenues as defined herein. A franchisee shall bear the cost of such an audit. Any franchisee fee payment or reimbursement that adjusts for any shortfall or overpayment of the total payment for the year shall be made at that time.

(c) The city shall have the right to inspect all relevant revenue records and records pertaining to the number of subscribers, services received by subscribers, and rates charged for services provided in the city. The city shall have the right to conduct any audits of the franchisee's revenue statements necessary to determine or verify and to recompute, if necessary, any amounts determined to be payable to the city. The city shall bear the cost of such an audit.

(d) In the event that any franchise payment is not received by the city on or before the applicable dates, the franchisee shall pay a late charge of five percent of the amount of such payment when the payment is more than 45 days overdue; 15 percent of the amount of such payment when the payment is more than 75 days overdue; and 25 percent of the amount of such payment when the payment is more than 105 days overdue.

(e) In the event a franchise is revoked or otherwise terminated prior to its expiration date, a franchisee shall file with the city, within 90 days of the date of revocation or termination, an audited financial statement showing the gross revenues received by the franchisee since the end of the previous year and shall make adjustments at that time for the franchise fees due up to the date of revocation or termination.

(f) Nothing in this chapter shall limit the city's authority to tax a franchisee.
(Code 1980, § 12-3.9-42; Ord. No. 89-205, § 17, 8-22-1989)

Sec. 12-3.9-43. Publication costs.

A franchisee shall be responsible for all costs of publication of this chapter, its franchise and any lawful amendments thereto to the extent required by state law.
(Code 1980, § 12-3.9-43; Ord. No. 89-205, § 18, 8-22-1989)

Sec. 12-3.9-44. Insurance, bonds, letters of credit, indemnity.

(a) *General provisions.* Either prior to or immediately following the granting of a franchise, a franchisee shall obtain and maintain, at all times during the term of the franchise and including operation under the supervision of a bankruptcy trustee or receiver and including the time for removal of facilities, in full force and effect and for the full amount prescribed, all insurance, letters of credit, and bonds as required herein. All required certificates of insurance policies, letters of credit and bonds shall be filed with the city clerk. No policy, letter of credit or bonds shall expire without having a replacement bond, letter of credit, or policy in force and effect and on file with the city clerk. Each policy, letter of credit, or bond so required must contain an endorsement providing that 30 days' prior written notice shall be given to the city, by filing the same with the city clerk, of any alteration, change, substitution, nonrenewal or cancellation thereof.

(b) *Indemnity.* A franchisee, at its sole cost and expense, shall fully defend, indemnify and save the city, its officials, boards, commissions, agents and employees, harmless from any and all third party claims, suits, causes of action, proceedings, liability, penalties, and judgments for relief or damages of any kind whatsoever, including, but without limitation, all damages, costs, expenses, reasonable attorney's fees and interest (all hereinafter "third party claims"):

(1) Based upon allegations relating in any way to the construction, operation or maintenance of the cable communications system in the city by the franchisee, or the franchisee's officers, agents, employees, contractors, or subcontractors, whether or

not any act or omission complained of was authorized, allowed, or prohibited by the franchisee; or

(2) Based upon allegations that any action by the city, or any action by a city employee or official acting on behalf of the city (and not for any personal or private reasons), in the course of, arising out of, or relating in any way to, the award or renewal process for that franchisee's franchise, was in any way unlawful.

The foregoing indemnity shall be subject to the following terms and conditions: The city shall give the franchisee reasonably prompt notice of any third party claims (but, in any event, no less than ten days' notice) after the city (or the defendant, city, official, board, commission, agent or employee) receives service thereof; provided, however, that failure to give the requisite ten days' notice shall not affect the indemnification hereunder except to the extent that the franchisee shall have been actually prejudiced as a result of such failure. In the event a default is taken against the city prior to the city's notifying a franchisee of the claim, the city shall be responsible for having the default set aside. If a default is set aside without any prejudice to the city or franchisee, then the franchisee's obligations under this indemnity shall continue and remain in full force and effect. In the event the default is not set aside, then the franchisee shall be relieved of its obligations hereunder. Receipt of service by a franchisee of a third party claim against the city shall also be deemed notice from the city to the franchisee. The franchisee, with counsel of its own selection, shall be entitled to assume and control the defense of any third party claim; provided, however, that the city shall have the right to approve any compromise or settlement providing for injunctive or declaratory relief, which approval shall not be unreasonably withheld. The franchisee shall represent the city's best interests in the defense of all third party claims. The franchisee shall be obligated, at the request of the city, to appeal from any order, ruling, or judgment which awards declaratory or injunctive relief against the city; and this indemnity shall fully apply to any such appeal. The franchisee shall keep the city attorney informed of the progress and status of any third party claims.

(c) *Insurance.* The franchisee shall, at franchisee's sole expense, maintain a general comprehensive public liability insurance policy, from a company authorized to do business in the state and in a form satisfactory to the city attorney, that indemnifies, defends and saves harmless the city, including its officials, boards, commissions, agents and employees, against liability for loss or damage for personal injury, bodily injury, death and property damage occasioned by the operations of the franchisee. Said insurance shall be in the minimum amount of $2,000,000.00 per any one occurrence, combined single limit liability, or such other coverage as may be agreed to in writing by the city and franchisee.

(d) *Construction bond.* If a franchisee undertakes any construction of a cable communications system in excess of 25 miles of trunk or $300,000.00 of new construction costs, then the franchisee shall maintain, at its sole cost and expense, a corporate surety bond for said construction issued by a surety company authorized to do business in the state and the city and acceptable to the city. Said construction bond shall ensure the city of recovery of any and all damages, losses, costs, and expenses sustained or suffered by the city as a result of the failure of franchisee to satisfactorily and timely complete its planned construction. In no event shall the amount of the construction bond be construed to limit any liability of the franchisee. The amount of the construction bond shall be 100 percent of the estimated cost of the planned construction. When the planned construction is completed to the satisfaction of the city and written notice of such satisfaction has been received by the franchisee, the construction bond need no longer be maintained.

(e) *Franchise bond and letter of credit.*

(1) The franchisee shall, at franchisee's sole expense, obtain either a franchise bond or a letter of credit as provided herein and in the franchise agreement.

(2) The franchise bond shall be in a form acceptable to and approved by the city attorney (which approval shall not be

unreasonably withheld) with a responsible company licensed to do business in the state in an amount agreed to in the franchise agreement. The franchise bond shall be renewable annually, and conditioned upon the faithful performance of the franchisee, and upon the further condition that in the event the franchisee shall fail to comply with any one or more of the lawful provisions of this chapter or a franchise granted thereunder, there shall be recoverable jointly and severally from the principal and surety of such bond any damages or loss suffered by the city as a result thereof, including but not limited to any damages, claims, liens, liquidated damages, taxes, delinquent franchise fees, compensation and costs of repairing or completing the cable communications system or removing abandoned property, and compensation and costs of repairing streets and other public or private improvements, plus a reasonable allowance for attorney's fees and costs, up to the full amount of the bond, said condition to be a continuing obligation for the duration hereof and thereafter until the franchisee has liquidated all of its obligations with the city that may have arisen from the acceptance of this franchise by the franchisee or from its exercise of any privilege or right herein granted. The bond shall provide that at least 30 days' prior written notice of intention not to renew, cancellation or material change be given to the city by filing the same with the city clerk.

(3) At its option and as provided in the franchise agreement, the city may require of the franchisee to deposit with the city at its sole cost and expense, an irrevocable documentary letter of credit from a financial institution approved by the city as stated in the franchise agreement. The form, instructions and consent of such letter of credit shall be approved by the city attorney (which approval shall not be unreasonably withheld). The letter of credit shall be for the purpose of insuring the faithful performance by a franchisee of all provisions of its franchise agreement and this chapter, and upon the further condition that in the event a franchisee shall fail to comply with any one or more of the provisions of this chapter or the franchise agreement, there shall be recoverable any damages or losses suffered by the city as a result thereof including but not limited to any damages, claims, liens, liquidated damages, taxes, delinquent franchise fees, compensation and costs of repairing or completing the cable communications system or removing abandoned property, and compensation and costs of repairing streets and other public or private improvements, plus a reasonable allowance for attorney's fees and costs, up to the full amount of the letter of credit.

(4) The obligation to provide either a franchise bond or a letter of credit as provided for herein and in the franchise agreement shall be a continuing obligation for the duration of any franchise granted hereunder and thereafter until the franchisee has liquidated all of its obligations with the city that may have arisen by reason of the construction, operation, or maintenance of a system or breach or termination of the franchise.

(5) The city may draw against either the franchise bond or the letter of credit for any unpaid liquidated damages, as provided in section 12-3.9-46, franchise fees or other amounts owing to it under a franchise which are 30 days or more past due. The city shall notify the franchisee in writing before calling the franchise bond or drawing upon the letter of credit.

(Code 1980, § 12-3.9-44; Ord. No. 89-205, § 19, 8-22-1989)

Sec. 12-3.9-45. Liquidated damages.

(a) Because a franchisee's failure to comply with the provisions of this chapter and its franchise agreement will result in damage to the city and because it will be impractical to determine the actual amount of such damages, the city and any franchisee shall agree upon and specify in the

franchise agreement the amount of liquidated damages that represent both parties' best estimate of the damages.

(b) A franchise agreement shall include, at a minimum, liquidated damages for violations as provided in this section. Assessment for liquidated damages shall not constitute a waiver by the city of any other right or remedy it may have under this chapter or applicable law.

(1) Failure to complete system construction or reconstruction in a timely fashion as provided in a franchise agreement granted pursuant to this chapter unless the council specifically approves such delay by resolution;

(2) Failure to maintain in full force and effect and on file in the office of the city clerk any bond, indemnity, letter of credit or insurance policy as required herein;

(3) Failure to timely file any reports as required herein; and

(4) Failure to test the performance of the system as required herein.

(c) If the city determines that a franchisee is liable for liquidated damages pursuant to this chapter and any franchise granted thereunder, the city shall notify the franchisee by certified mail that the franchise is subject to liquidated damages and the reasons and the amount per day thereof. The full amount of such damages shall be paid or a written appeal to the cable commission filed within ten days of the date of such notice. If a franchisee does not file an appeal and has not paid the accrued liquidated damages within the time allowed, the city may call against the franchise bond or draw against the letter of credit for any unpaid liquidation damages owing to it which are 30 days or more past due. The city shall notify the franchisee in writing before calling the franchise bond or drawing on the letter of credit. If appealed, the cable commission shall hear the franchisee's appeal within 21 days of the date of appeal. The commission shall issue its decision in writing. A decision of the cable commission shall not affect the right of the city or a franchisee, at their option, to seek a de novo judicial determination as to whether the franchisee is liable for liquidated damages. If the commission and, if a judicial determination is sought, a court of competent jurisdiction, determines the franchisee to be in violation of this section, the franchisee shall pay the full amount of the damage assessment within five working days thereafter or the city may secure the amount of such damages from the franchise bond or letter of credit posted by the franchisee.

(d) Such damages shall continue to accrue until such time as the violation complained of is corrected.

(e) No liquidated damages shall be assessed if the violation occurs without the fault of a franchisee or occurs as a result of circumstances beyond a franchisee's control. A franchisee shall not be excused by mere economic hardship nor by nonfeasance or malfeasance of its directors, officers, agents, subcontractors or employees; provided, however, that damage to equipment causing service interruption shall be deemed to be the result of circumstances beyond a franchisee's control if it is caused by any negligent act or unintended omission of its employees (assuming proper training), subcontractors or agents (assuming reasonable diligence in their selection), or sabotage or vandalism or malicious mischief by its employees, subcontractors or agents. A franchisee shall bear the burden of proof in establishing the existence of such conditions.
(Code 1980, § 12-3.9-45; Ord. No. 89-205, § 20, 8-22-1989)

Sec. 12-3.9-46. Forfeiture and termination.

(a) In addition to all other rights and powers retained by the city under this chapter and any franchise agreement issued pursuant thereto, the council reserves the right to forfeit and terminate a franchise and all rights and privileges of a franchisee in the event of a material and substantial breach of its terms and conditions, including, but not limited to, the following:

(1) The appointment of a receiver or trustee in bankruptcy to take over and conduct the business of a franchisee unless such receivership or trusteeship is vacated prior to the expiration of 120 days;

(2) A failure to begin or substantially complete any cable communications system construction or cable communications system extension within the time required by the franchise agreement;

(3) An unjustified failure to restore cable television services after ten days of no transmission of these services to the franchisee's subscribers;

(4) Any material misrepresentation of fact in the application for a franchise; or

(5) A failure to provide insurance, bonds, or letters of credit as required by this chapter and the franchise agreement.

(b) A material and substantial breach shall not be construed from a violation that occurs without the fault of a franchisee or occurs as a result of circumstances beyond a franchisee's control. A franchisee shall not be executed by mere economic hardship nor by nonfeasance or malfeasance of its directors, officers, agents, subcontractors or employees; provided, however, that damage to equipment causing service interruption shall be deemed to be the result of circumstances beyond a franchisee's control if it is caused by any negligent act or unintended omission of its employees (assuming proper training), subcontractors or agents (assuming reasonable diligence in their selection), or sabotage or vandalism or malicious mischief by its employees, subcontractors or agents. A franchisee shall bear the burden of proof in establishing the existence of such conditions.

(c) The city shall make a written demand by certified mail that a franchisee comply with any such provision, rule, order, or determination under or pursuant to a franchise. If the violation by a franchisee continues for a period of 45 days following such written demand without written assurances satisfactory to the city that the corrective action has been taken or is being actively and expeditiously pursued, the city council may consider terminating its franchise in accordance with the following procedure:

(1) After the expiration of the 45-day notice period, the cable commission shall hold a hearing to review the alleged violation. The cable commission shall notify the city council in writing of its findings and recommendation.

(2) The city council shall hold a public hearing within 21 days of the receipt of the cable commission's recommendation wherein a franchisee shall be given the opportunity to appear and present its arguments, including the right to introduce evidence and to question witnesses. A transcript or recording of the proceeding shall be made.

(3) Upon conclusion of such hearing, the city council shall make a determination as to whether there are grounds for termination of the franchise and whether the franchise shall be terminated. The council may adopt a resolution which terminates the franchise and which shall include therein its findings of fact and conclusions. Unless stayed by judicial review as provided herein, the effective date of termination shall be such date as is prescribed by the city council, within its sole discretion, in the resolution.

(4) Within 120 days of the council's resolution, the franchisee may seek judicial review as to whether a material and substantial breach of the terms and conditions of this chapter have occurred and as to whether forfeiture or termination of the franchise is legally permissible. For purposes of judicial review of the issue, the city council's resolution shall not be given the weight of an administrative ruling nor shall review of the matter be limited to the evidence submitted to the city council. A submission of the controversy for judicial review shall stay the city council's termination or revocation of a franchise until a final judicial determination on the matter.

(Code 1980, § 12-3.9-46; Ord. No. 89-205, § 21, 8-22-1989)

Sec. 12-3.9-47. Foreclosure.

Upon the foreclosure or other judicial sale or voluntary transfer to another party of all or a

substantial part of the cable communications system facilities, a franchisee shall notify the city of such fact, and such notification or the occurrence of such terminating events shall be treated as a notification that a change in control of the franchisee has taken place; and the provisions of section 12-3.9-50 governing the consent of the city to such change in control of the franchisee shall apply.
(Code 1980, § 12-3.9-47; Ord. No. 89-205, § 22, 8-22-1989)

Sec. 12-3.9-48. Receivership.

A franchisee shall immediately notify the city in writing if it:

(1) Files a voluntary petition in bankruptcy, a voluntary petition to reorganize its business, or a voluntary petition to effect a plan or other arrangement with creditors;

(2) Files an answer admitting the jurisdiction of the court and the material allegations of an involuntary petition filed pursuant to the bankruptcy code, as amended; or

(3) Is adjudicated bankrupt, makes an assignment for the benefit of creditors, or applies for or consents to the appointment of any receiver or trustee of all or any part of its property, including all or any part of its cable system.

(Code 1980, § 12-3.9-48; Ord. No. 89-205, § 23, 8-22-1989)

Sec. 12-3.9-49. Removal of cable communications system.

At the expiration of the term for which a franchise issued hereunder is granted, if such franchise is not renewed, or upon its termination as provided herein, a franchisee shall forthwith, upon notice by the city, remove at its own expense all designated portions of the cable communications system from all streets and public ways within the city and shall restore said streets and public ways to their former condition; provided, however, that the franchisee shall have the right to sell its physical plant to another cable operator who has been franchised by the city, in which case said plant need not be removed. Otherwise, if the franchisee fails to remove its facilities upon request, the city may perform the work at the franchisee's expense. The requirements of this section shall not apply to underground cable that has been de-energized and for which a map has been provided to the city describing in detail the location of such cable; except that the city may continue, in its sole discretion, to require removal where necessary to avoid congestion or, at its option and cost, to remove such cable.
(Code 1980, § 12-3.9-49; Ord. No. 89-205, § 24, 8-22-1989)

Sec. 12-3.9-50. Transfer of ownership or control.

(a) A franchise issued pursuant to this chapter shall not be sold, assigned, transferred, leased, pledged or disposed of either in whole or in part, either by involuntary sale or by voluntary sale, merger or consolidation, nor shall controlling interest in any corporation holding a franchise hereunder be changed, without the prior consent of the city council. The consent of the city council shall not be unreasonably withheld. In exercising the foregoing approval authority, the city may reasonably consider only the relevant qualifications of the proposed purchaser, transferee, or assignee, i.e., its financial, legal and technical ability to provide the services, facilities and equipment as set forth in this chapter as it exists on the date of the transferring party's acceptance of a franchise from the city and the terms of the transferring party's franchise agreement. The city may not impose any additional terms or conditions, or require the transferee to file an initial application pursuant to article C of this chapter, as a prerequisite to approval. Every change or transfer of control of a franchise shall make that franchise subject to termination pursuant to the procedures set forth in section 12-3.9-46 unless and until the city shall have consented thereto.

(b) No such consent shall be required for a transfer in trust, mortgage, or hypothecation of franchise assets as a whole or in part to secure an indebtedness.

(c) A franchisee shall promptly notify the city within 60 days of any proposed change in control of the franchisee, including prior notice of foreclosure, voluntary or involuntary bankruptcy, judicial sale or receivership.

(d) For the purpose of determining whether it shall consent to such change, transfer, or acquisition of control, the city may inquire into the proposed transferee's relevant qualifications as set forth in subsection (a) of this section.

(e) The transferee must agree to comply with all of the provisions of this chapter existing as of the date of the transferring party's acceptance of its franchise and with all of the terms and provisions of the transferring party's franchise agreement.
(Code 1980, § 12-3.9-50; Ord. No. 89-205, § 27, 8-22-1989)

Secs. 12-3.9-51—12-3.9-60. Reserved.

ARTICLE E. SUBSCRIBER FEES AND RECORDS

Sec. 12-3.9-61. Subscriber fees and rates.

(a) The initial fees to be charged to subscribers for all services, including installation fees and other one-time charges, shall be specified in any franchise agreement issued pursuant hereto.

(b) Rates and charges may be changed by a franchisee following a minimum 30 days' prior written notice to the city and each subscriber.

(c) The city reserves the right to regulate rates, and to establish procedures for regulation of rates, for any service pursuant to changes in federal or state law which would authorize rate regulation. Those fees and charges subject to regulation by the city pursuant to this provision shall not be increased without prior approval of the city; provided, however, that such approval shall not be denied if a franchisee demonstrates to the reasonable satisfaction of the city that a rate increase is necessary to ensure a franchisee a rate of return on investment that is no less than the average rate of return on investment in the cable industry.

(d) Unless lower rates are charged by a competing cable operator who is not serving the entire franchise territory, rates shall not give preference or advantage to any subscriber or class of subscribers, except that a franchisee may offer promotional rates to any class of subscribers, and discounted rates to senior citizen subscribers. In no event, however, shall a franchisee's rate structure violate state or federal law.
(Code 1980, § 12-3.9-61; Ord. No. 89-205, § 26, 8-22-1989)

Sec. 12-3.9-62. Reports.

To facilitate timely and effective enforcement of this chapter and any franchise agreement granted pursuant thereto, and to develop a record for purposes of determining whether to renew any cable communications franchise, the city requires reports as specified in this section.

(1) *Annual report.* No later than March 31 of each year, a franchisee shall file a written report with the city, which shall include:

a. A summary of its previous calendar year's activities in development of the system, including program services begun or dropped, number of subscribers (including gains and losses), homes passed, miles of cable distribution plants in service and the total number of utilization hours of access channels.

b. If the franchisee is a corporation, a list of the following: officers and members of the board, the officers and board members of any parent corporation, all partners or stockholders holding one percent or more ownership interest and any stockholders holding at least ten percent of the voting stock of any parent corporation.

c. A copy of all the franchisee's written rules and regulations, if any, applicable to subscribers and users of the cable system.

d. An audited revenue statement with the city director of finance. The statement shall specify that the revenue statement is based on gross revenues as defined herein. The city shall have the right to independently audit a franchisee's financial statement at the city's expense.

(2) *Other reports.*

a. A franchisee shall file unaudited revenue statements with the city clerk and the city director of finance within 30 days of the end of each fiscal quarter of the franchisee.

b. A franchisee shall report monthly to the commission information concerning the increase or decrease in the number and percentage of subscribers and the percentage rate at which subscribers disconnect basic service.

c. All purchasing, training and employment reports required by section 12-3.9-96.

(Code 1980, § 12-3.9-62; Ord. No. 89-205, § 27, 8-22-1989)

Sec. 12-3.9-63. Records.

(a) The books and records required by this chapter and the franchise agreement, including those necessary to support the information contained in the reports, shall be available for the city's inspection during normal business hours and upon reasonable notice. If said books and records are not available in the city, the franchisee shall bear the cost of either:

(1) Bringing them to the city within 30 days; or

(2) The necessary and reasonable expenses of a city representative to travel to the place where such books and records are maintained.

(b) The city shall have the right to inspect and copy, at its cost, these books and records.
(Code 1980, § 12-3.9-63; Ord. No. 89-205, § 28, 8-22-1989)

Sec. 12-3.9-64. Filings.

Upon written request of the city, a franchisee shall mail or deliver a copy of all of the filings that it makes with the Federal Communications Commission, the Securities and Exchange Commission, or any other agency with regulatory authority over cable television to the city clerk within 30 business days after the city's request.
(Code 1980, § 12-3.9-64; Ord. No. 89-205, § 29, 8-22-1989)

Secs. 12-3.9-65—12-3.9-70. Reserved.

ARTICLE F. MINIMUM SYSTEM STANDARDS

Sec. 12-3.9-71. System technical standards.

The cable communications system to be installed by a franchisee shall comply in all respects with the technical performance requirements set forth in the application, part 76 of the FCC's Rules and Regulations or any other FCC guidelines and the franchise agreement. The city reserves the right to adopt adequate technical standards in the event it has the legal authority to promulgate such standards; provided, however, that such standards shall not be applied to franchises existing at such time.
(Code 1980, § 12-3.9-71; Ord. No. 89-205, § 30, 8-22-1989)

Sec. 12-3.9-72. Access and local programming.

(a) The city believes that local programming can play a distinctive, valuable, and essential role as part of a cable communications system. The city further believes that local origination and access programming can substantially enhance the quality of life throughout the community by providing an opportunity for the dissemination of a diverse range of programming and information heretofore unavailable. Access and local programming proposed by an applicant shall be subject to the following:

(1) A franchisee shall have no control over the content of access programs.

(2) Any public access channel shall be made available to any member of the public on a nondiscriminatory basis at no charge for channel or equipment use.

(3) Any education access channel shall be made available free of charge for the transmission of local educational programming.

(4) Any local government access channel shall be made available free of charge for the transmission of government-related programming.

(5) A franchisee shall provide for a training program for access users reasonably sufficient to meet the demand for such a program.

(b) Channel capacity dedicated to access use may be used by a franchisee when it is not being used for access purposes as set out in its franchise agreement.
(Code 1980, § 12-3.9-72; Ord. No. 89-205, § 31, 8-22-1989)

Sec. 12-3.9-73. Leased access.

Consistent with the city's desire that a cable system promote the availability of diverse information and programming to the community, a franchisee shall make channels available for leased or commercial use to the extent specified in its franchise agreement.
(Code 1980, § 12-3.9-73; Ord. No. 89-205, § 32, 8-22-1989)

Sec. 12-3.9-74. Public drops.

A franchisee shall provide, upon written request, without charge within the franchise area one drop activated for basic subscriber cable television service to each fire station, public school, college building, police station, public library, city, state, county, and federal office building, city park and recreation building, city housing authority community center, Jefferson County Committee for Economic Opportunity Neighborhood and Community Service Center, Cooper Green County Hospital, and other such buildings used for public purposes or by nonprofit organizations as designated in its franchise agreement. No monthly customer service fee shall be charged for basic service to such places. A franchisee shall be permitted to recover, at the franchisee's normal service charge, for any additional converters required and, when requested to do so, more than one outlet, or concealed inside wiring, or that portion of drop cable which exceeds 1,500 feet of drop cable.
(Code 1980, § 12-3.9-74; Ord. No. 89-205, § 33, 8-22-1989)

Sec. 12-3.9-75. Parental control.

A franchisee shall provide subscriber controlled lockout devices (audio and visual) to subscribers upon their request. These devices should allow parental discretion and control over both the audio and video portions of all programming. A franchisee shall notify all subscribers in writing of the availability of these devices within 60 days after the effective date of the franchise, and future subscribers upon the initiation of service, and then at least on an annual basis. Such notice may be given on the monthly statement of charges for service.
(Code 1980, § 12-3.9-75; Ord. No. 89-205, § 34, 8-22-1989)

Sec. 12-3.9-76. Institutional services.

The city believes that institutional services are an integral component of a cable system necessary to meet the diverse needs of the city. A franchisee, therefor, is encouraged to provide institutional services for both video and nonvideo uses over the cable system subject to the terms specified in its franchise agreement.
(Code 1980, § 12-3.9-76; Ord. No. 89-205, § 35, 8-22-1989)

Sec. 12-3.9-77. Standby power.

A franchisee shall maintain equipment capable of providing standby power for the headends for a minimum of eight hours, and transportation and trunk amplifiers for a minimum of four hours. The standby power equipment shall be constructed so as to revert automatically to the standby mode when alternating current power returns. A franchisee shall comply with all safety regulations to prevent standby generators from powering the "dead" utility line.
(Code 1980, § 12-3.9-77; Ord. No. 89-205, § 36, 8-22-1989)

Sec. 12-3.9-78. Emergency override.

A franchisee shall incorporate into its cable communications system the capability which will permit the city, in times of emergency, to override the audio portion of all channels simultaneously by telephone or other communicating medium to be provided by the franchisee. A franchisee shall designate a channel which will be used for both audio and video emergency broadcasts. A franchisee shall cooperate with the city in the use and operation of the emergency alert override system.
(Code 1980, § 12-3.9-78; Ord. No. 89-205, § 37, 8-22-1989)

Secs. 12-3.9-79, 12-3.9-80. Reserved.

ARTICLE G. SYSTEM CONSTRUCTION AND INSTALLATION

Sec. 12-3.9-81. Construction standards.

(a) Any cable system constructed within the city shall meet or exceed all technical standards consistent with this chapter and any franchise agreement granted pursuant thereto.

(b) A franchisee shall conduct proof of performance tests at least once each calendar year (at intervals not to exceed 14 months), shall provide a copy of each final report to the city within five working days of completion of such reports, and shall maintain the resulting test data on file at its local office for at least five years. Such tests shall be conducted with a minimum of 20 locations throughout the service area. At least eight of these locations shall be at the far end of the distribution trunk cables. If more than ten percent of the locations tested fail to meet the performance standards, the franchisee shall be required to indicate what corrective measures have been taken; and the entire test shall be repeated for at least 20 different locations. The city subsequently may require a full report on any deficiencies as disclosed by the proof of performance test within such reasonable period of time as it may designate.

(c) The city may require performance tests within 90 days of the completion of the construction of a new system or the upgrading or reconstruction of an existing system. The tests and verification shall be at the expense of a franchisee.

(d) A franchisee shall file with the city a copy of all maps and/or charts of cable locations prepared by or for the franchisee during the duration of this franchise.
(Code 1980, § 12-3.9-81; Ord. No. 89-205, § 38, 8-22-1989)

Sec. 12-3.9-82. Construction and installation work.

(a) With the exception of work deemed by franchisee to be of an emergency nature, franchisee shall not undertake any construction of trunk or feeder cable without the prior approval of the city engineer. In the case of emergency repairs, the franchisee shall obtain said approval as soon as reasonably possible after the emergency situation has ended.

(b) All construction shall be completed according to schedules agreed to in a franchise agreement, or, if the construction project is initiated at a later date, the schedule agreed to at that time.

(c) All construction, installation and maintenance must comply with the National Electrical Safety Code, the National Electrical Code, the Bell System Code of Pole Line Construction, all lawful state regulations, this Code, heretofore or hereafter amended, and all other municipal codes, including but not limited to, building, electrical, fire and others, as amended, and good and accepted industry practices.

(d) The city shall have the right to inspect, at its expense, all construction and installation work performed by a franchisee subject to this chapter as it shall find necessary to ensure compliance with the specified governing federal, state and local codes and the franchise agreement.
(Code 1980, § 12-3.9-82; Ord. No. 89-205, § 39, 8-22-1989)

Sec. 12-3.9-83. Location of structures, lines and equipment.

(a) A franchisee shall utilize existing poles, conduits and other facilities whenever possible. No poles, conduits, or other facilities shall be

erected by the franchisee without prior approval of the city with regard to method of installation, location, height, type of fixtures and appurtenances and any other pertinent aspect. The location of any pole or wire-holding structure by a franchisee shall not constitute a vested interest; and such poles, structures, or facilities shall be removed, replaced or modified by a franchisee at its own expense whenever the council or other governmental authority determines that the public interest or safety so necessitates.

(b) All transmission and distribution structures, lines, and equipment installed by a franchisee within the city shall be located so as to cause minimum interference with the proper use of streets, alleys and other public ways and places and to cause minimum interference with the rights or reasonable convenience of property owners who adjoin any of the streets, alleys or other public ways or places and where they will not interfere with any gas, electric, telephone, water or other preexisting utility facility.

(c) All such poles and other fixtures in any street or public way shall be placed in accordance with this Code, as heretofore or hereafter amended.

(d) Upon written request the city shall have the right, during the term of a franchise, to install and maintain free of charge upon the poles of the company any wire and pole fixtures and appurtenances that do not unreasonably interfere with the operations of a franchisee.

(e) In those areas of the city where both the electric and telephone utility lines have been placed underground, a franchisee shall place its lines and installations underground. In areas where either telephone or electric facilities are above ground at the time of installation, a franchisee may install its service above ground provided that at such time as both of those other facilities are placed underground, the franchisee shall forthwith place its facilities underground, and the cost of such shall be borne by the franchisee. In new housing developments, a franchisee may install distribution cables at the same time utility facilities are being installed.

(f) On request of any person who is authorized to perform work on any public right-of-way that has been used by a franchisee for erection of a cable communications system, a franchisee shall provide information regarding the type, location, height, and other pertinent information of poles, conduits, and other structures which the franchisee has placed on said right-of-way. The person requesting such information shall pay the franchisee's cost of providing it and the franchisee may require such payment in advance.
(Code 1980, § 12-3.9-83; Ord. No. 89-205, § 40, 8-22-1989)

Sec. 12-3.9-84. Replacement of paving.

A franchisee at its own cost and expense and in the manner approved by the city shall replace and restore all paving, sidewalks, driveways, or surface of any street or alley disturbed, in accordance with drawings and specifications as established by the city engineer for replacement of paving which are on file in the office of the city engineer. A franchisee shall comply with all applicable provisions of this Code, as amended or as may hereafter be amended, including but not limiting the generality thereof, sections 4-5-131 and 4-5-132, and shall comply with all other applicable building or construction codes of the city now in force and effect or as may hereafter be adopted, and shall obtain all permits required by such city codes or ordinances to be obtained from the city engineer and/or from the office of buildings and inspection services and/or any other department or officer of the city. Failure of a franchisee to replace or restore such paving, sidewalk, driveway or street surface within 48 hours after completion of work shall authorize the city to cause the proper restoration to be made at the franchisee's expense.
(Code 1980, § 12-3.9-84; Ord. No. 89-205, § 41, 8-22-1989)

Sec. 12-3.9-85. Alteration of streets by city.

If the city shall lawfully decide, in the public interest or safety, to engage in any public street improvements which shall require the alteration, relocation, change in grade or removal of any street, alley or other public way, a franchisee, upon reasonable written notice by the city, shall,

in a timely manner as requested by the city, remove and relocate its poles, wires, cables, underground conduits, and other facilities at its own expense.
(Code 1980, § 12-3.9-85; Ord. No. 89-205, § 42, 8-22-1989)

Sec. 12-3.9-86. Moving of buildings.

A franchisee shall, on the request of any person holding a valid house-moving permit, temporarily raise or lower its wires or cables to permit the moving of buildings or other large objects. The expense of such temporary raising or lowering of wires shall be paid by the person making the request, and a franchisee shall have the authority to require such payment in advance. A franchisee shall be given not less than 48 hours' advance notice to arrange for such temporary wire changes.
(Code 1980, § 12-3.9-86; Ord. No. 89-205, § 43, 8-22-1989)

Sec. 12-3.9-87. Trimming trees.

A franchisee shall have the authority to trim trees on public property or which overhang streets, alleys, sidewalks and public places of the city so as to prevent the branches of such trees from coming in contact with wires and cables and other television conductors and fixtures of the franchisee.
(Code 1980, § 12-3.9-87; Ord. No. 89-205, § 44, 8-22-1989)

Secs. 12-3.9-88—12-3.9-90. Reserved.

ARTICLE H. SYSTEM OPERATION

Sec. 12-3.9-91. Provision of service.

A franchisee shall provide subscriber service on the following basis:

(1) A franchisee shall not deny service access, or otherwise discriminate against any person, including subscribers and users, on the basis of race, color, religion, national origin, age, sex, or physical or mental handicap.

(2) In providing service a franchisee shall:

a. Operate an office within the city open during normal business hours Monday through Saturday, excluding legal holidays.

b. Provide a local toll-free telephone service capable of receiving subscriber service complaints, on a seven days a week, 24 hours a day basis.

c. Provide service for new installations to subscribers who can be served from an existing plant within 30 days of receipt of such requests, and within ten days of receipt of requests for reconnections and relocations.

d. Establish a maintenance service capable of promptly locating and correcting system malfunctions. Service trucks shall be equipped for voice communication with the franchisee's dispatcher. In order to permit a rapid response to any system-wide outage, the franchisee shall have service trucks available for emergency duty to repair system outages during nonbusiness hours.

e. Make every attempt to respond to customer complaints upon receipt, but in no case later than the next working day.

f. Restore interruptions within 24 hours, if reasonably possible. In those cases where service is not restored within 24 hours due to unusual circumstances, the reasons for the delay shall be fully documented. Such documentation shall be available for inspection by the city and shall be maintained for a period not less than two years. If, after 48 continuous hours, service is not restored to a subscriber, a franchisee shall, upon subscriber request, provide a refund or credit to such subscriber in a pro rata amount of the monthly charge for each tier of service and each premium service which was unavailable to the subscriber.

g. Bill subscribers on a monthly basis. Billing complaints shall be responded to promptly and in no event later than seven days of receipt.

h. Make no charge for the disconnection of any installation or outlet.

i. In the event that a subscriber fails to pay as properly due and owing a fee or charge, a franchisee may disconnect the subscribers' service provided that such disconnection shall not be effected until 30 days after the due date of the monthly subscriber fee or charges and after having given the subscriber not less than ten days' written notice thereof.

j. Provide relevant information to the city, upon its reasonable request, pertaining to specific customer complaints.

k. A franchisee shall keep a continuing record for at least two years of all billing and service complaints received by the franchisee from subscribers or from individuals including those who reside within the city. This record shall identify the name and address and telephone number of the subscriber, individual or entity making the complaint, the date, time and nature of the complaint, and the disposition of the complaint. This record shall be available for inspection by authorized city representatives at the local office of the company during regular office hours.

(3) As subscribers are connected or reconnected to the system or upon subscriber request, a franchisee shall, by appropriate means such as a card or brochure, furnish general subscriber information (including but not limited to terms of service, procedures for making inquiries or complaints, including the name, address, and local telephone number of the employee or employees or agent to whom such inquiries or complaints are to be addressed) and furnish information concerning the city office responsible for the administration of the franchise, including the address and telephone number of said office. In addition, such subscriber information on procedures for making inquiries and complaints, including the appropriate names, addresses and telephone numbers, shall be sent to all subscribers at least once each calendar year.

(4) When similar complaints have been made by several subscribers, or where other substantial evidence exists which, in the judgment of the city, casts doubt on the reliability or quality of the cable service, the city shall have the right and authority to require that the franchisee test, analyze, and report on the performance of its system. A franchisee shall fully cooperate with the city in performing such testing and shall prepare a written report of the results, if requested, within 30 days after notice. Costs of such testing shall be borne by the franchisee. If a franchisee refuses to perform such testing, the city may conduct such tests; and the franchisee shall pay the full cost of tests conducted by the city pursuant to this section.

(Code 1980, § 12-3.9-91; Ord. No. 89-205, § 45, 8-22-1989)

Sec. 12-3.9-92. Refunds and service terminations.

(a) A franchisee shall establish and conform to the following policy regarding refunds to subscribers and users:

(1) If a franchisee collects a deposit or advance charge on any service or equipment requested by a subscriber or user, the franchisee shall provide such service or equipment within 30 days of the collection of the deposit or charge or it shall refund such deposit or charge, upon request, within five business days thereafter. If any subscriber terminates, for any reason, any monthly service prior to the end of a prepaid period, a pro rata portion of the prepaid service fee, using the number of days as a basis, shall be refunded to the subscriber by the franchisee. Nothing in

this section shall be construed to relieve a franchisee of any responsibility it may have under separately executed contracts or agreements with subscribers or users or to limit a franchisee's liability for damages, if any, because of its failure to provide the service for which the deposit or charge was made.

(2) Whenever a subscriber shall terminate service, any advance charges and deposits shall be refunded to such subscriber no later than 30 days after the time of service termination.

(b) All cable communications equipment shall be removed within a reasonable time from a subscriber's property upon the subscriber's request, such time not to exceed 30 days from the date of request.
(Code 1980, § 12-3.9-92; Ord. No. 89-205, § 46, 8-22-1989)

Sec. 12-3.9-93. Service area.

(a) A franchisee shall offer full cable communications service throughout the city in accordance with the following criteria:

(1) To all residential dwellings which exist and are within the city on the date a franchise is awarded.

(2) To all other residential dwellings where there is a density of seven or more dwellings per one-quarter route mile of cable. Where there are fewer residences than seven dwellings per one-quarter route mile of cable, a franchisee may provide service upon request of a subscriber but may require reimbursement from such subscriber for the additional cost in providing such service. In such circumstances a franchisee shall bear the prorated cost of construction based on the number of subscribers per quarter mile of cable divided by seven. The remaining construction cost will be borne on a pro rata basis by each subscriber requesting service. If, within a two-year period, additional subscribers request service, the sharing of costs between a franchisee and subscribers shall be recalculated in accordance with the formula described in this subsection. The franchisee shall be responsible for making refunds to subscribers occasioned by this recalculation.

(3) To all nonresidential buildings located in the downtown revitalization area or adjacent to residential areas or where there are 25 or more nonresidential subscribers per one-quarter route mile of cable. Where more than 50 feet of drop cable is required for any such connection, a franchisee may charge a nonresidential subscriber for the additional cost incurred by a franchisee in providing a drop of more than 50 feet. Where a nonresidential subscriber requests service and such subscriber is not located either in the downtown revitalization area nor adjacent to a residential area and there are not 25 or more nonresidential subscribers per one-quarter mile of a cable, a franchisee may provide service but may require such subscriber to reimburse a franchisee for the additional cost of providing service, in which case a franchisee shall bear a pro rata cost of construction based on the number of nonresidential subscribers per one-quarter mile divided by 25. A franchisee may require the subscriber to reimburse a franchisee for the remaining costs.

(4) A franchisee may seek a waiver of the requirements of the provisions of subsections (a)(1) and (2) of this section by submitting a written request to the cable commission. The commission may seek information from any party, including any franchisee, in order to properly evaluate such waiver request.

(5) The cable commission may relieve a franchisee of its obligation to provide service where such service is being provided by another franchisee and the commission determines that requiring a franchisee to provide additional cable service is not in the public interest.

(b) A franchisee shall keep a record for at least the previous two years of all requests for service in the city received by the franchisee. This record

shall be available for inspection by authorized city representatives in the local office of the company during regular office hours.
(Code 1980, § 12-3.9-93; Ord. No. 89-205, § 47, 8-22-1989)

Sec. 12-3.9-94. Continuity of service.

(a) Where a franchisee overbuilds, rebuilds, modifies or sells its system, it shall ensure that all subscribers receive continuous, uninterrupted service regardless of the circumstances, unless expressly authorized by the council.

(b) As long as it is entitled to revenues from the operation of the cable system, a franchisee shall maintain continuity of service during any temporary transition in a franchise.
(Code 1980, § 12-3.9-94; Ord. No. 89-205, § 48, 8-22-1989)

Sec. 12-3.9-95. Transitional operation.

In the event a franchisee continues to operate the system in a transitional period, with city acquiescence, following the expiration, revocation or other termination of a franchise, it shall be bound by all the terms, conditions and obligations of the franchise as if it were in full force and effect.
(Code 1980, § 12-3.9-95; Ord. No. 89-205, § 49, 8-22-1989)

Sec. 12-3.9-96. Purchasing, training and employment requirements.

(a) *Legislative findings.* Due to historical patterns and practices of racial discrimination, minorities and women have been at a disadvantage when entering the marketplace. Though past official policies of overt discrimination have now ceased, the existing policies and programs of the city have not effectively eliminated the lingering present effects of this past discrimination. The city has a substantial interest in eradicating the present effects of past discrimination, and in promoting equality of economic opportunity among and between all of its citizens. Because approximately 50 percent of the city's citizens are racial minority citizens and approximately 50 percent of the city's citizens are women, the economic improvement and advancement of the minority community is vital to the economic health of the community as a whole and promotes the general health and welfare of all citizens of the city. The purpose of this article is therefore to encourage, facilitate and effect greater participation by minorities and women in the economic life of the city through affirmative action in employment in the cable industry and the provisions of goods, materials, and services by businesses owned by minorities and women.

(b) *Employment of city residents encouraged.* To the extent permitted by law, a franchisee shall establish and shall encourage its subcontractors to establish a policy of employing, whenever reasonably possible, city residents within its own operations, and of utilizing city-based firms for purchases and construction subcontracts. A franchisee shall provide the city with a written report of local purchasing and hiring achievements at least annually for the duration of the franchise.

(c) *Equal employment opportunity and affirmative action programs.* Throughout the term of the franchise, a franchisee shall encourage its subcontractors to conduct their business as equal employment opportunity/affirmative action employers. In addition, throughout the term of the franchise, the franchisee shall maintain a policy that all employment decisions, practices, and procedures are based on merit and ability without discrimination in violation of state or federal law on the basis of an individual's race, color, religion, age, sex, national origin, or physical or mental handicap. The franchisee's policy shall apply to all employment actions, including advertising, recruiting, hiring, promotion, transfer, remuneration, selection for training, company benefits, disciplinary action, layoffs, and termination. The franchisee shall carry out this policy through continued dedication to a determined and sustained effort to provide equal employment opportunities to all by taking affirmative action to employ and advance in employment qualified women, minorities, persons who are physically or mentally handicapped, and veterans. The franchisee shall provide to the city a written affirmative action program to carry out this policy no later than 60 days after the effective date of granting a franchise. The affirmative action program shall provide that the franchisee will make reasonable

and good-faith efforts to achieve a goal during the franchise term to have 50 percent of its work force consisting of minorities, and 50 percent of its work force consisting of women. After the second year of the franchise, the franchisee shall submit annual reports on the percentage of minorities and females in the franchisee's work force. Assurance of equal employment opportunity and promotion of effective affirmative action shall be the responsibility of each manager and supervisor within the franchisee's organization. All officers, executives, managers, and administrative and supervisory personnel of the franchisee shall be directed to take affirmative action in the continuing implementation of this policy.

(d) *Notice.* A franchisee shall post in conspicuous places, available to employees and applicants for employment, notices setting forth the provisions of the nondiscrimination requirement described in subsection (c) of this section. A franchisee shall, in all solicitations or advertisements for employees placed by or on behalf of the franchisee, state that all qualified applicants will receive consideration for employment without regard to race, creed, color, national origin, gender, or physical or mental handicap.

(e) *Employment training programs.* A franchisee shall, during the entire term of the franchise, conduct an aggressive training program to train its employees, particularly the unskilled and semiskilled, for employment with the cable company.

(f) *Minority business enterprise participation policy.* A franchisee shall make reasonable and good-faith efforts to attain a goal of not less than 35 percent qualified minority business enterprise (MBE) use on an annual basis during the term of the franchise. That is, the franchisee shall endeavor to procure from qualified MBEs, as defined below, 35 percent of the total dollar amount of any and all contracted expenditures by the franchisee, including, without limitation, contracts for the acquisition of goods, services, materials, supplies, and equipment used in the construction, maintenance and operation of its cable communications system. A "minority business enterprise" means a business at least 50 percent of which is owned by minorities or women, in the case of a publicly owned business, at least 51 percent of the stock of which is owned by minorities or women and whose management and daily business operations are controlled by one or more such individuals.

(1) The MBE goal is not designated or intended to prevent or preclude MBE competitive participation in the remainder of the franchisee's contracts.

(2) The franchisee shall submit to the city an annual report reflecting the level of MBE participation for the previous year.

(g) *Compliance with other laws.* A franchisee shall immediately comply with all lawful federal, state and local equal opportunity employment requirements and practices.

(h) *Annual reports required.* Each year prior to the anniversary of the effective date of the franchise, a franchisee shall provide to the city a detailed report regarding implementation of its affirmative action program, employment training programs, local purchasing and hiring policy, and minority business enterprise participation.

(i) *Material provisions of franchise.* The provisions of this section shall be considered material provisions of the franchise. The specific designation of the provisions of this section as material provisions of the franchise shall not be construed to indicate that other provisions of this franchise not so specifically designated are not material provisions.

(Code 1980, § 12-3.9-96; Ord. No. 89-205, § 50, 8-22-1989)

CHAPTER 3.10. STANDARDS FOR SMALL CELL FACILITIES

Sec. 12-3.10-1. Purpose and scope.

(a) The purpose of this chapter is to reasonably regulate, to the extent permitted under state and federal law, the installations, operations, collocations, modifications, replacements and removals of small cell facilities in the City of Birmingham, recognizing the benefits of wireless communications while reasonably protecting other important city interests, including the

public health, safety and welfare, aesthetics and local property values. It is the intent of these regulations to promote the health, safety and general welfare of the citizens of the city by establishing an orderly process for regulating the siting of small cell facilities while balancing the need for adequate service levels. In furtherance of these purposes, the city shall give consideration to the comprehensive plan and framework plans, the city's zoning code maps, existing land uses, and environmental, residential, historic and other sensitive areas in approving the location and siting of small cell facilities.

(b) It is the further intent of this chapter to address the aesthetic effect of small cell facilities on landscapes in the city, the visual impact of small cell facilities on surrounding property owners, citizens' demands for these services, and the needs of service providers to close coverage gaps in service and provide greater capacity by implementing the following objectives:

(1) Prevent interference with use of streets, sidewalks, alleys, parkways, and other public ways and places;

(2) Prevent the creation of visual and physical obstructions and other conditions that are hazardous to vehicular and pedestrian traffic;

(3) Prevent interference with the facilities and operations of facilities lawfully located in rights-of-way or public property;

(4) Protect against environmental damage, including damage to trees;

(5) Preserve neighborhood harmony and preserve and protect the character of the neighborhoods in which small cell facilities are installed, as indicated in the comprehensive plan of the city;

(6) Promote the siting of small cell facilities in a manner such that potential adverse effects to the city and its residents are minimal in order to ensure harmony and compatibility with surrounding land uses;

(7) Promote the location of small cell facilities in areas where the adverse impact on the community is minimal;

(8) Establish a fair and efficient process for review and approval of wireless communication facility applications on both public and private property to ensure that applications for small cell facilities are reviewed and acted upon within a reasonable period of time or any specific period of time required by law;

(9) Facilitate an integrated, comprehensive review for deployment of small cell facilities to provide the benefits of advanced wireless services and to ensure the protection of the health, safety and welfare of the citizens of the city;

(10) Encourage the location and collocation of small cell facilities on existing structures, thereby minimizing adverse new visual, aesthetic, and public safety impacts, and to reduce the need for additional antenna-supporting structures through appropriate design, screening and location standards; and

(11) Facilitate rapid deployment of small cell small cell facilities to provide the benefits of advanced wireless services, which include a competitive array of options for consumers and businesses.

(c) It is not the purpose or intent of this chapter to: prohibit or have the effect of prohibiting wireless communication services; unreasonably discriminate among providers of functionally equivalent wireless communication services; regulate the placement, construction or modification of small cell facilities on the basis of the environmental effects of radio frequency emissions where it is demonstrated that the wireless communications facility does or will comply with applicable FCC regulations; or prohibit or effectively prohibit collocations or modification that the city must approve under state or federal law.

(d) The provisions of this chapter are in addition to, and do not replace, any obligations an applicant may have under any franchises, licenses, encroachments, or other permits issued by the city. Nothing herein is intended or shall operate to waive or limit the city's right to enforce, or condition approval on, compliance with all gener-

ally applicable building, structural, electrical, and safety codes and with other laws codifying objective standards reasonably related to health and safety.
(Ord. No. 20-68, § 1, 5-1-2020)

Sec. 12-3.10-2. Definitions.

The terms below have the following meanings for purposes of this chapter. When not inconsistent with the context, words used in the singular number shall include the plural number, and words in the plural number shall include the singular. The word "shall" is always mandatory and not merely permissive. Terms not defined herein shall have the meaning given them elsewhere in the City Code, other published rules or guidelines of the city, in Sections 1.6001 et seq. or 1.6100 et seq. of the FCC's rules, or their common and ordinary meaning.

(1) *"Abandonment"* or *"abandon(s)"* means that, following the placement of small cell facilities (and associated accessory equipment) or support structures in the city pursuant to a permit issued to an applicant, any of the following has occurred: (a) for any reason the small cell facilities cease to be used to transmit signals, data or messages or otherwise be used for their intended purposes for a period of 90 days; (b) the city revokes the permit for placement and use of those facilities due to nonpayment of applicable fees, the failure of the applicant to comply with conditions in the permit or in this chapter concerning them, or other valid reason; or (c) the applicant fails to perform any of its responsibilities, obligations and requirements in this chapter or in a permit that relate to the installation, construction, maintenance, use or operation of the small cell facilities, accessory equipment or support structures, and that breach remains uncured for a period of 60 days after the city provides written notice of the breach to the applicant.

(2) *"Accessory equipment"* or *"equipment"* means any equipment other than an antenna that is used in conjunction with small cell facilities. This equipment may be attached to or detached from a small cell support structure, and includes, but, is not limited to, cabinets, optical converters, power amplifiers, radios, DWDM and CWDM multiplexers, micro facilities, radio units, fiber optic and coaxial cables, wires, meters, pedestals, power switches, and related equipment on or in the immediate vicinity of a support structure. The term does not include the attachments, equipment, or facilities of an electric utility that is regulated by the Alabama Public Service Commission (or such electric utility's parents, affiliates, or subsidiaries).

(3) *"Annual license fee"* means the rental amount and annual rate described in section 12-3.10-4 of this chapter.

(4) *"Antenna"* means an apparatus, device, system of electrical conductors or other communications equipment that transmits and/or receives electromagnetic radio signals, electromagnetic waves, radio or other wireless signals used in the provision of personal wireless services, and is attached to a small cell support structure. Where the context permits, use of the term 'antenna' may also refer to the antenna concealment enclosure when such concealment enclosure is required by the applicable design standards. A concealment element otherwise will not count against the volumetric cap for an emitting device when determining if a facility qualifies as a "small cell facility" under this article.

(5) *"Applicable codes"* means uniform building, fire, electrical, plumbing, or mechanical codes adopted by a recognized national code organization or local amendments to those codes to the extent not inconsistent with the terms in this chapter and to the extent such codes have been adopted by the city, including any amendments adopted by the city, or are otherwise applicable in the city. The term includes the regulations of the FCC and the Occupational Safety and Health

Administration, as well as any local standards or regulations governing the use of rights-of-way.

(6) *"Applicant"*, whether singular or plural, means a wireless service provider, a wireless infrastructure provider such as an entity that is authorized by a wireless service provider to apply for or receive a permit to install, construct, modify or maintain a small cell facility and related accessory equipment or support structure in the city, an entity certificated by the Alabama Public Service Commission to provide telecommunication service or the applicant's successors-in-interest and any person owning and maintaining the wireless facilities. For purposes of this chapter, "applicant" shall refer to those applying and the actions required upon issuance of a permit.

(7) *"Application"* means a request submitted by an applicant (i) for a permit to collocate small cell facilities and accessory equipment; or (ii) to approve the installation or modification of a utility pole or small cell support structure.

(8) *"Application fee"* means a permit application fee assessed pursuant to section 12-3.10-4 of this chapter for city staff review of a small cell site application.

(9) *"Authority"* means the city, county, state or any agency, district or subdivision thereof or any instrumentality of the same.

(10) *"City"* means the City of Birmingham, Alabama.

(11) *"City code"* means The General Code of the City of Birmingham Alabama, as currently in effect or hereafter amended.

(12) *"City council"* means the city council of the City of Birmingham, Alabama.

(13) *"City-owned facility"* or *"city-owned structure"* means any facility, structure or infrastructure to which the city holds title, easement, or a leasehold interest, including, but not limited to, communications facilities, utility poles, city-owned poles, towers, buildings, and communications infrastructure, regardless of whether located within or outside the rights-of-way.

(14) *"City-owned pole"* means (i) a utility pole owned or operated by the city in the right-of-way, including a utility pole that provides lighting or traffic control functions, including light poles, traffic signals, and structures for signage, and (ii) a pole or similar structure owned or operated by the city in the right-of-way that supports only wireless facilities.

(15) *"Collocation"* means the placement or installation of a new small cell wireless facility or related accessory equipment on an existing pole or other support structure that is owned, controlled or leased by a utility, the city, or other person or entity, including applicant; and/or the modification of such a structure for the purpose of such placement or installation.

(16) *"Comprehensive plan"* means the long-range vision planning and master plan document for the city as now in effect or as hereafter amended.

(17) *"Day"* means a calendar day.

(18) *"Director"* means the director of the department of planning, engineering and permits, or any successor department, of the city.

(19) *"Distributed antenna system" or "DAS"* means a network or facility that distributes radio frequency signals to provide personal wireless services, as defined in 47 U.S.C. 332, and consisting of: (1) remote antenna nodes deployed throughout a desired coverage area; (2) a high-capacity signal transport medium connected to a central hub site; and, (3) equipment located at the hub site to process or control the radio frequency signals through the antennas which meets the height and size characteristics of a small cell facility.

(20) *"Eligible facilities request"* means any request for modification of an existing support structure that involves: collocation of new small cell facilities or wireless facilities, or the replacement of small cell facilities or wireless facilities, provided that such modification does not substantially change the physical dimensions of such tower or base station.

(21) *"Emergency"* means a condition that (1) constitutes a clear and immediate danger to the health, welfare, or safety of the public, or (2) has caused or is likely to cause substantial damage to the right-of-way or to facilities in the right-of-way.

(22) *"FCC"* means the Federal Communications Commission of the United States.

(23) *"Framework plans"* are future planning documents adopted by the city council that provide direction on land use, new development, transportation, housing, parks, trails and open space, utilities and economic development and are used by elected officials and city staff as a guide for making short and long range policy and investment decisions regarding land use development, zoning, transportation improvements, parks, trail, housing issues, and economic development.

(24) *"Make-ready work"* means work that an authority reasonably determines to be required to accommodate a wireless provider's installation on a city-owned pole or structure under this chapter and to comply with all applicable standards. The work may include, but is not limited to, repair, rearrangement, replacement and construction of poles; inspections; engineering work and certification; permitting work; tree trimming (other than tree trimming performed for normal maintenance purposes); site preparation; and electrical power configuration. The term does not include a wireless provider's routine maintenance.

(25) *"Micro wireless facility"* or *"micro facility"* means a small wireless facility that (a) is not larger in dimension than 24 inches in length, 15 inches in width, and 12 inches in height; and (b) has an exterior antenna no longer than 11 inches.

(26) *"Occupy"* or *"use"* means, with respect to a right-of way, to place a tangible thing in such right-of-way, including attaching to existing or new small cell support structures for the purposes of offering or providing personal wireless services as defined in 47 U.S.C. 332, including, but not limited to, constructing, repairing, maintaining, or operating lines, poles, pipes, conduits, ducts, equipment, or other structures, appurtenances, or small cell facilities necessary for the delivery of any services provided by wireless provider. The term does not include the business activities of an electric utility that is regulated by the Alabama Public Service Commission, or of any parent, affiliate, or subsidiary thereof, when placing a tangible thing in the right-of-way.

(27) *"Permit"* means a written authorization required by an authority to perform an action or initiate, continue, or complete the deployment of small cell facilities.

(28) *"Person"* means any natural or corporate person, business association or other business entity including, but not limited to, a partnership, sole proprietorship, political subdivision, public or private agency of any kind, utility, successor or assign of any of the foregoing, or any other legal entity.

(29) *"Point of demarcation"* means the point of where the transmission media of small cell equipment terminates and interconnects with broadband backhaul transmission facilities, which is the point that the small cell connects into fiber or other wired mediums to transmit or assist in the transmission of data, whether provided by landline or wireless communications infrastructure.

(30) *"Private property"* means real property located in the city that does not lie within the right-of-way, including such appurtenant or easements attached to or

associated with such property, and that is not owned by the city, state, or other public body.

(31) *"Replacement"* means installing a new small cell support structure of comparable or smaller proportions and of comparable or shorter height to a preexisting small cell support structure in order to accommodate collocation of small cell facilities, and the associated removal of the preexisting wireless facilities or small cell support structure. To qualify as a replacement, the replacement pole must be installed no more than five feet of the location of the existing pole that it will replace.

(32) *"Right(s)-of-way"*, whether singular or plural, means the surface and space in, upon, above, along, across, over, and below any public streets, avenues, highways, roads, courts, lanes, alleys, boulevards, ways, sidewalks, and bicycle lanes, as the same now or may hereafter exist, that are within the city's corporate boundaries and under the jurisdiction of the city that is not inclusive of the police jurisdiction of the city. This term does not include county, state, or federal rights-of-way or any property owned by any person or entity other than the city, except as provided by applicable laws or pursuant to an agreement between the city and any such person or entity.

(33) *"Small cell facility(ies)"* or *"facilities"*, whether singular or plural, means and includes the following types of facilities: (a) antenna; and (b) associated accessory equipment that, individually and collectively, are part of a system that meets the following qualifications: (1) each antenna associated with the deployment, excluding associated antenna equipment, is no more than three cubic feet in volume; (2) all other wireless facilities associated with the structure, including the wireless facilities associated with the antenna and any pre-existing associated equipment on the structure, is no more than 28 cubic feet in volume; and (3) the facilities are mounted on structures 50 feet or less in height including their antennas, or are mounted on structures no more than ten percent taller than other adjacent structures, or do not extend existing structures on which they are located to a height of more than 50 feet or by more than ten percent, whichever is greater. Accessory equipment is not to be included in the calculation of equipment volume and may be located outside the equipment enclosure. The term includes micro wireless facilities, DAS and other wireless technologies meeting the above qualifications and may be referred to as a "node(s)" when referencing the numbers of small cell facilities per application or elsewhere in this chapter.

(34) *"Small cell support structure"* or *"support structure"*, whether singular or plural, means a freestanding structure designed or used to support, or capable of supporting, small cell facilities, including, but not limited to, towers, electric utility distribution poles, street light poles, traffic signal structures, rooftops, attics, or other enclosed or open areas of a building or accessory structure, a sign, or a flag pole. These terms do not include the city's decorative and architecturally significant street light poles, as those decorative lights are inappropriate for use as a support structure, and replacement or make ready use for these decorative and architecturally significant poles may be limited or declined, unless otherwise agreed in writing by the city. These terms also do not include city-owned buildings or other city-owned structures located outside the rights-of-way unless and until the party desiring access to that property first enters into a lease agreement with the city for use of that property. These terms also do not include electric utility transmission poles.

(35) *"Stealth technology"* or *"stealth"* means a method(s) of concealing or minimizing the visual impact of a small cell facility (and associated accessory equipment) and

support structure by incorporating features or design elements which either totally or partially conceal such small cell facilities or accessory equipment. The use of these design elements is intended to produce the result of having such facilities, equipment and associated structures blend into the surrounding environment and/or disguise, shield, hide or create the appearance that the small cell facilities are an architectural component of the support structure.

(36) *"Substantially change(s)"* means, in the context of an eligible support structure, a modification of an existing support structure where any of the following criteria is met:

(i) For a support structure not located in the rights-of-way:

(a) The height of the support structure is increased by (i) more than ten percent, or

(ii) By the height of one additional antenna array with separation from the nearest existing antenna not to exceed 20 feet, whichever is greater; or

(a) There is added an appurtenance to the body of the support structure that would protrude from the edge of the support structure by (i) more than 20 feet, or (ii) more than the width of the support structure at the level of the appurtenance, whichever is greater.

(b) Changes in height should be measured from the original support structure in cases where deployments are or will be separated horizontally, such as on buildings' rooftops; in other circumstances, changes in height should be measured from the dimensions of the support structure, inclusive of originally approved appurtenances and any modifications that were approved prior to the passage of the Spectrum Act (P.L. 112-96);

(iii) For a support structure located in the right-of-way:

(a) The height of the support structure is increased to a height of more than 50 feet or by more than ten percent, whichever is greater; or

(b) There is added an appurtenance to the body of that structure that would protrude from the edge of that structure by more than six feet; or

(c) It involves the installation of ground cabinets that are more than ten percent larger in height or overall volume than any other ground cabinets associated with the structure; or

(d) It involves the installation of any new equipment cabinets on the ground if there is no pre-existing ground cabinet associated with that structure.

(iv) For any eligible support structure:

(a) It involves the installation of more than the standard number of new equipment cabinets for the technology involved, but not to exceed four cabinets; or

(b) There is entailed in the proposed modification any excavation or deployment outside of the current site of the support structure; or

(c) The proposed modification would cause the concealment/camouflage elements of the support structure to be defeated; or

(d) The proposed modification would not comply with the conditions associated with the prior siting approval of

construction or modification of the support structure, unless the non-compliance is due to an increase in height, increase in width, addition of cabinets, or new excavation that does not exceed the corresponding thresholds in this section.

(v) To measure changes in height for the purposes of this section, the baseline is:

(a) For deployments that are or will be separated horizontally, measured from the original support structure;

(b) For all others, measured from the dimensions of the support structure, inclusive of originally approved appurtenances and any modifications that were approved by the city prior to February 22, 2012.

(37) *"System"* means one or more of the protocol-agnostic, fiber-based optical networks which may incorporate small cell facilities and equipment that may be owned, leased, or controlled by the wireless infrastructure provider or third parties and is provided by the wireless infrastructure provider to wireless service providers or to a wireless service provider's customer.

(38) *"Transmission media"* refers to the point which the waves from small cell facilities are guided along a physical path; examples of guided media include phone lines, twisted pair cables, coaxial cables, and optical fibers.

(39) *"Utility pole"* means a pole or similar structure that is used in whole or in part to provide communications services or for electric distribution, street lights or other lighting, cable television, traffic control, signage, or a similar function. The term includes the vertical support structure for traffic lights but does not include a horizontal structure to which signal lights or other traffic control devices are attached, and does not include a pole or similar structure 15 feet in height or less unless an authority grants a waiver for such use.

(40) *"Wireless facility"* or *"wireless facilities"* means equipment at a fixed location which is used to offer or provide personal wireless services as defined in 47 U.S.C. 332, including radio transceivers, antennas, distributed antenna systems ("DAS"), wires, coaxial or fiber-optic cable or other cables, regular and backup power supplies, and comparable equipment, regardless of technological configuration, and equipment associated with wireless communications. The term includes small cell facilities but does not include: (a) the structure or improvements on, under, within, or adjacent to the structure on which the equipment is collocated; (b) wireline backhaul facilities; or (c) coaxial or fiber-optic cable that is between wireless structures or utility poles or that is otherwise not immediately adjacent to or directly associated with a particular antenna.

(41) *"Wireless service provider"* means a person that provides personal wireless services, as defined in 47 U.S.C. 332, to the public or citizens of the city on a commercial basis and is authorized by the FCC to provide those services. The term does not include an electric utility that is regulated by the Alabama Public Service Commission or such electric utility's parents, affiliates, or subsidiaries when they are acting in supporting of the electric utility.

(42) *"Wireless infrastructure provider"* means any person, including a person authorized to provide telecommunications service in the state, that builds or installs wireless communication transmission equipment, wireless facilities or support structures, but that is neither a personal wireless services provider nor an electric utility that is regulated by the Alabama Public Service Commission (or any parent, affiliate, or subsidiary of such electric utility).

(43) *"Wireless provider"* means a wireless infrastructure provider or a wireless service provider.

(Ord. No. 20-68, § 2, 5-1-2020)

Sec. 12-3.10-3. Grant of authority.

The city may grant a non-exclusive franchise or license to construct, maintain and operate small cell facilities within the city to any person who agrees to comply with the requirements of this chapter and acceptable terms as negotiated by the city. This grant of authority will be administered through an annual licensing process that will allow annual renewals pursuant to the terms of this chapter. Approval of installation of facilities at specific location(s) or on specific support structure(s) will be administered through the permit process set forth in this chapter.

(Ord. No. 20-68, § 3, 5-1-2020)

Sec. 12-3.10-4. Permitted use: Application and fees.

(a) *In general, application and permit required.* Any person desiring to obtain a permit to locate, place, attach, install, operate, maintain, control, remove, reattach, reinstall, relocate and replace small cell facilities within the right-of-way, on city-owned structures or facilities, utility poles, or any private property within the corporate limits of the city, must file an application, pay the required fees, and obtain the permit, except as otherwise provided in this chapter.

(b) *Application required for each small cell facility and equipment.* A permit application must be submitted for each small cell facility and accessory equipment on a form, paper or electronic, provided by the city. If any information is deemed proprietary or confidential, then the applicant must mark each page accordingly. An application packet will be maintained by the city engineer.

(c) *Pre-application review.* Prior to the submission of an application, the applicant is strongly encouraged to have a voluntary pre-application meeting with the director, or his/her designee(s), to review preliminary documents and graphic exhibits of the proposed facilities and discuss the application, location and design requirements for the proposed facilities. The primary purposes of the review are to streamline applications and reduce site plan and design revisions, as well as the multiple reviews associated therewith. Any applicant desiring a pre-application review will agree in writing that the applicable time-line for application review, as set forth in section 12-3.10-8, will be tolled during such review period.

(d) *Consolidation application permitted.* Up to 30 nodes or small cell facilities may be included in a single application.

(e) *Application fees.* Unless otherwise provided by law, all applications for permits pursuant to this chapter shall be accompanied by a nonrefundable fee for actual, direct, and reasonable costs incurred by the city to process and review the application, in the following amounts:

(1) Five hundred dollars for an application seeking up to five small cell facilities attached to existing support structures, with an additional $100.00 for each attached small cell facility in excess of five; or

(2) For an application to construct or install a new pole or support structure (i.e., not a collocation), a one-time fee of $1,000.00.

(f) *Annual license fee.* An annual license fee of $270.00 is assessed per node in the right-of-way.

(g) *Removal fee may be applicable.* A fee for removal of small cell facilities and/or their respective equipment may be applicable and is hereby authorized as necessary unless the fees described in subsections (e) and (f) above have already been tendered for the year in which the removal will occur, the removal does not hinder an ongoing city project or improvement, and the city incurs no additional cost to ensure safe removal.

(h) *Additional cost for make-ready work for attachment to city-owned poles and structures.* Applicant may be required to bear additional costs for any necessary make-work estimate or construction as provided in section 12-3.10-12(c).

(i) *No application or permit fee required for eligible facilities requests.* Provided that the applicant gives notice to the director of the work to be undertaken in the right-of-way and obtains street barricade or any other applicable permit

required by the city, a permit or application fee shall not be required for: (i) routine maintenance or repairs of wireless facilities; (ii) the replacement or modification of a small cell facility that results in a facility of substantially similar or smaller size, weight, and height; or (iii) micro wireless facilities installations.

(j) *Escalation of fees.* The fees required under subsections (e) and (f) of this section 12-3.10-4 may be adjusted (1) to recover a reasonable approximation of the increase in the city's actual and reasonable costs in administering and overseeing the small cell facilities, accessory equipment and support structures installed pursuant to this chapter, or (2) as otherwise permitted by applicable laws and regulations.
(Ord. No. 20-68, § 4, 5-1-2020)

Sec. 12-3.10-5. Notice of transfer, sale or assignment of assets in right-of-way.

(a) *Compliance required.* If an applicant transfers, sells or assigns its assets, the transferee, buyer or assignee shall be obligated to comply with the terms of this chapter.

(b) *Notice.* Written notice of any such transfer, sale or assignment shall be provided to the city within 30 days after the effective date of the transfer, sale or assignment.
(Ord. No. 20-68, § 5, 5-1-2020)

Sec. 12-3.10-6. Placement and maintenance of facilities in rights-of-way.

(a) *Administrative review.* The city shall utilize an administrative application review process as described herein for applications for the placement of small cell facilities (including accessory equipment) and any support structure in the right-of-way.

(b) *Departmental review.* To ensure the public health and safety, the written recommendations for the addition of small cell facilities and accessory equipment will be required after submission of the permit application from the following departments:

(1) Planning, engineering and permits.

(2) Transportation.

(c) *Review by director.* The director or his/her designee(s) will review and administratively process any application to determine if the application is complete and consistent with applicable codes and whether a permit for the small cell facilities should be issued for the location and the manner requested by the applicant, consistent with this chapter.

(d) *Minimal physical installation.* The applicant's application shall demonstrate that the placement of the proposed small cell facilities and their associated accessory equipment or support structure on the right-of-way is the minimal physical intrusion and burden on the rights-of-way that will achieve the goal of enhancing the provision of personal wireless services when considering all pertinent factors contained in section 12-3.10-8.

(e) *Prohibitions.*

(1) No wireless facilities, accessory equipment or new support structure for such facilities or equipment may be installed in the city's right-of-way without (A) a license or franchise granted pursuant to section 12-3.10-3 hereof, and (B) a permit granted pursuant to sections 12-3.10-6 and 12-3.10-8 hereof. This prohibition shall not extend to a request by an electric utility that is regulated by the Alabama Public Service Commission to place or install a new utility pole where such request is not made to accommodate a small cell facility of a wireless service provider.

(2) No wireless facilities, other than small cell facilities and micro wireless facilities, may be installed within the right-of-way unless a waiver is granted by the city.

(3) No facility or equipment shall interfere with the safe operation of traffic control equipment, public safety communications equipment or street lights.

(4) No facility, equipment or new support structure shall interfere with sight lines

or clear zones for vehicular transportation, pedestrians, or public safety purposes.

(5) No facility, equipment or new support structure shall interfere with compliance with the Americans with Disabilities Act or similar federal or state standards regarding pedestrian access or movement.

(6) No facility, equipment or new support structure shall interfere or fail to comply with the Alabama Department of Transportation Utility Manual, as it may be applicable and as amended.

(7) No facility, equipment or new support structure shall fail to comply with the applicable codes.

(8) No facility, equipment or support structure shall be closer than five feet from the street curb or edge of pavement if no curb is present, unless otherwise approved by the city engineer.

(9) No facility or equipment shall be attached to a utility pole owned by any utility not owned or operated by the city unless a lease, license, permit, certificate of authority, express waiver or other similar documentation demonstrating authorization is provided from such owner.

(10) No facility or equipment shall be placed on any arms or any horizontal structure used to support or mount traffic control signals or other traffic control devices.

(11) No facility or equipment shall interfere with electrical lines, cable lines, or their associated equipment, in that wireless facilities must be placed at least ten feet away from energized electrical distribution lines, unless otherwise approved by the utility company.

(12) No wireless facility may be hung from energized electrical lines or mounted on poles to be removed in conjunction with the city's desire to utilize undergrounding of electrical utilities in a particular area.

(13) Facilities and equipment shall comply with the following spacing requirements:

a. Minimum spacing between proposed new (non-replacement) and existing privately-owned support structures:

1. The minimum horizontal distance between a new (non-replacement) support structure and associated small cell facilities and any other existing, or permitted but unconstructed, support structures and small cell facilities on the same side of the right-of-way at the time a complete application is filed with the city, irrespective of the owners/operators, shall be not less than 300 linear feet, as measured parallel to the right-of-way, unless a waiver is granted by the city based upon demonstrated need or other circumstances.

b. Spacing between proposed new (non-replacement) support structures and existing publicly owned support structures:

1. New support structures shall be located midway between the immediately adjacent existing publicly-owned support structures on either side of the proposed support structure to the maximum extent possible.

c. Multiple requests for installations at the same location:

1. If multiple requests are received and are pending at the same time to install support structures that would violate the applicable spacing requirements, or to collocate two or more small cell facilities on the same support structure, the city may resolve conflicting requests in a reasonable and nondiscriminatory manner.

(f) *Limitations.*

(1) If allowed, small cell facilities collocated on the same utility pole as a street light shall be on the same disconnect as the street light, where practicable.

(2) Small cell facilities shall be grounded and otherwise comply fully with all applicable codes.

(3) Whenever a conduit of small cell facilities crosses telephone or electric power wires, wires shall cross and be maintained in accordance with the National Electrical Code, the National Electrical Safety Code, and all applicable ordinances, codes and regulations of the city and all other applicable codes.

(4) Small cell facilities must comply with the applicable structural requirements with respect to wind speed.

(g) *Compliance with law.* Applicant shall at all times comply with and abide by all applicable provisions of state and federal law and city ordinances, applicable codes and regulations in placing and maintaining small cell facilities in the right-of-way.

(h) *Burden of proof.* The burden of proof shall at all times be on the applicant to establish compliance with requirements under this chapter and state and federal law.

(i) *Permit required; emergency.* Except in case of emergency, no placement or maintenance of small cell facilities or their operation thereof shall commence until all applicable permits are obtained. The city reserves the right to inspect all wireless facility work to ensure compliance with this chapter and applicable permits. Applicant shall provide a written notice and certification of compliance that the facilities were constructed in accordance with the approved specifications upon final completion of a wireless facility installation, and no operation shall occur unless the city has conducted a final inspection and issued a certificate of completion. Where a facility has been installed or operated without permit due to an emergency, a permit shall be required after-the-fact within 30 days if a permit would have originally been required to perform the work undertaken in the right-of-way in connection with the emergency. Once the emergency is abated, the small cell facilities in question must be removed unless permitted without the emergency as a basis.

(j) *Administrative review.* The director or his/her designee(s) will review and administratively process any application for a permit to determine whether, consistent with the requirements set forth in this chapter, a permit should be issued for the location and in the manner requested by the applicant. The permitting process will be administrative and not require the approval of the city council. The factors, requirements, and guidelines the director and/or subsequently, upon appeal, the city council, may consider and will apply when determining whether to issue a permit for placement of new support structures or small cell facilities and accessory structures on the right-of-way include the following:

(1) Whether denial of a permit to place the proposed structures at the requested location would prohibit or have the effect of prohibiting the provision of telecommunications or personal wireless service;

(2) The ability and specifications of the structures upon which the small cell facilities are placed to safely support those facilities;

(3) The visual impact of placing the support structures or small cell facilities in the subject area;

(4) The character of the area in which the structures are requested, including surrounding buildings, properties and uses;

(5) Whether the appearance and placement of the requested structures is consistent with the any uniform design guidelines hereafter adopted as provided in section 12-3.10-9(d)(2);

(6) Whether the structures are consistent with the historic nature and characteristics (if any) of the requested location, including but not limited to any uniform design guidelines hereafter adopted as provided in section 12-3.10-

9(d)(2), land use requirements of the city's commercial revitalization project areas and framework plan areas;

(7) All small cell facilities and support structures must (a) not obstruct the safe operation of traffic control equipment or street lights; (b) not interfere with driver or pedestrian sight lines or clear zones for transportation or pedestrians; (c) comply with applicable federal, state and city standards regarding pedestrian access and movement; (d) comply with applicable health and safety codes; (e) be constructed in a manner to minimize physical damage to private property; and (f) not include advertisements.

(8) Each antenna associated with a small cell facility:

a. When mounted at the top of a pole, whether or not enclosed,

1. An initial installation will not exceed six feet above the top of the pole, and

2. A collocated installation will be no taller than necessary to house the collocation;

b. When mounted at the top of a pole, a pole-top extension shall be no taller than necessary for separation from other attachments;

c. When mounted on a lateral standoff bracket on a pole, the antenna shall protrude no more than necessary to meet clearances;

d. When mounted on or within an existing or replacement decorative pole, shall conform to the design aesthetics of the original pole, including the design, style and color; and

e. When mounted on another structure, shall not impair the function of the structure.

(9) Wireless equipment associated with an antenna shall (a) when mounted on a pole other than at the top, be flush-mounted or as near to flush as possible; (b) when mounted on a pole other than at the top, provide a minimum of ten feet of clearance above streets, driveways and sidewalks; and (c) when located in a ground-mounted cabinet, meet design, style, color and material requirements per the city's lawful right-of-way regulations.

(10) Replacement poles shall be (a) installed within five feet of the location for the original pole; and (b) of a material and dimensions that matches as closely as feasible existing adjacent poles, or consistent with any published local standards for utility pole placements.

(11) New poles shall (a) be aligned with the predominant pattern of existing adjacent structures; and (b) not be located directly in front of storefront windows, primary walkways, primary windows, or primary egress points to buildings.

(12) To the extent feasible, cables and wires associated with a small cell facility shall be (a) installed within the pole; (b) flush-mounted to the pole where internal installation is not feasible; or (c) encased in a cover or conduit when flush-mounted to the pole.

(13) An electric meter, if required, will be pole-mounted where feasible to the extent authorized by the pole owner and electric provider.

(14) To the extent feasible, all small cell facilities and associated accessory equipment that are placed in the city shall be attached to a pre-existing support structure that is owned, controlled or leased by a utility, franchisee, the city or other entity. If the applicant demonstrates that (i) no reasonable collocation opportunities exist in the area where the small cell facility is proposed to be placed, or (ii) attachment to a new structure will provide a more visually appealing design, demonstrably more effective service coverage, or some other public benefit that would not be achieved by collocation, the applicant may request that a new pole or other support structure be installed in

that area for purposes of constructing the small cell facilities. Before any new support structure is permitted, each of the following must occur:

a. The applicant must have provided the city written evidence supporting a claim under subparagraph (j)(14)(i) or (ii) above. In the case of (i), this evidence shall include, but not be limited to, affidavits, correspondence, or other written information that demonstrates that the applicant has taken all commercially reasonable actions to achieve collocation in the requested location that the applicant has pursued but has received no response or has been denied access to all potential collocation sites in the subject area (and the reasons any such denial(s)), and otherwise show that the applicant is unable to co-locate on an existing support structure. In the case of (ii), the evidence required by the city may include, but is not be limited to, affidavits, correspondence, engineering report or other written information depicting the claimed more visually appealing design, demonstrating the claimed more effective service coverage, or demonstrating the claimed public benefit;

b. The city engineer must recommend the placement of a new support structure in the right-of-way; and

c. The director or his/her designee(s) must approve the recommendation of the city engineer to allow the issuance of a permit that includes placement of a new support structure in the right-of-way.

(15) If a facility is attached to a utility pole or other support structure in the right-of-way, no antenna or other part of the facility shall extend more than ten feet above the height of that structure; provided that, in the event that the applicant demonstrates that National Electric Safety Code, National Electric Council, or International Code regulations (as maintained and adopted by the city) or other factors create an undue hardship in complying with this height requirement, the director may permit a facility to extend up to 15 feet above the height of such support structure, unless it creates a life safety issue;

(16) The accessory equipment shall, if reasonably possible, be placed at least eight feet above the ground;

(17) The color of antenna and accessory equipment shall be compatible with that of the support structure;

(18) The facility (including the accessory equipment) shall not be illuminated unless required by federal regulations;

(19) Whether the proposed installation could cause harm to the public or poses any undue risk to public safety;

(20) Whether the proposed installation may interfere with vehicular traffic, passage of pedestrians, or other use of the right-of-way by the public;

(21) If the proposed installation will disturb conditions on the right-of-way, whether the applicant can demonstrate its ability and financial resources to restore the subject area to its pre-existing condition following installation; and

(22) If the proposed new pole will be compatible with the design and character of the surrounding neighborhood.

(k) *Under-served areas.* As the city recognizes that a lack of competitive land-based internet access options may exist for certain underserved residential areas (which means an area with fewer than two options via coaxial cable, copper lines, fiber, or other land-based internet), the director may consider whether a permit application offers increased service coverage in an underserved residential area in deciding whether to permit the installation of a new support structure in the rights-of-way pursuant to subparagraph (j)(14). This provision shall not be

a cause for denial of a permit or placement by a wireless service provider or wireless infrastructure provider.
(Ord. No. 20-68, § 6, 5-1-2020)

Sec. 12-3.10-7. Reserved.

Sec. 12-3.10-8. Application review; decisions; time-frames.

(a) *Standards for review.* Review of applications shall be in light of its conformity with applicable regulations of this chapter and shall be issued on a nondiscriminatory basis.

(b) *Review for completeness; notice of deficiency.* In the case of a small cell facility application, the director will, within ten days after receiving the application, determine and notify the applicant by electronic mail to the email address provided in the application whether the application is complete. An application shall not be deemed complete until the applicant has submitted all documents, information, forms and fees specifically enumerated in this chapter that pertain to the location, construction, or configuration of the small cell facilities or support structures at the requested location(s). If an application is deemed materially incomplete, the city must specifically identify (i) the missing documents or information and (ii) the specific rule, regulation or code provision creating the underlying obligation to provide same. If the applicant makes a supplemental submission to address or provide the missing information or documents identified by the city within 60 days of the notice sent by the city, the city shall have ten days from receipt of such supplemental submission to verify that the application is complete and, if not, notify the applicant in writing that the supplemental submission was not sufficient to render the application complete and specifically identify the missing documents or information that still need to be submitted pursuant to the city's original notice. The additional documents or information provided in the supplemental submission shall be limited to the deficiencies cited in the original notice from the city and no material changes shall be made to the original application other than those necessary to cure any identified deficiencies. If a supplemental submission includes material changes to the proposed small cell facilities identified in the original application, proposes or requests a small cell facility not identified in the original application, or otherwise includes or makes a material change to the original application other than as necessary to cure the deficiencies identified by the city, such supplemental submission shall be deemed a new application. If an applicant fails to submit sufficient documents or information to render the application complete within 60 days of the notice sent by the city, the original notice sent by the city shall serve as written notice of the denial of the application, and the application shall be deemed denied.

(c) *Timeline for action on applications.* The director will approve or deny an application for a permit within the applicable time period set forth in this subsection (c)(1), plus any tolling period(s) pursuant to subsection (c)(2).

(1) *General time period for action on application.* Subject to the tolling provisions set forth below, the city, by and through the director, or his/her designee(s), will make its final decision to approve or deny the application(s) within the following time periods, unless the director and the applicant agree to toll the applicable deadline:

a. For an application(s) to collocate a small cell facility on an existing structure, within 60 days of receipt of such application(s); or

b. For an application(s) to deploy a small cell facility on a new structure, within 90 days of receipt of such application(s); or

c. For multiple applications or a single, consolidated application for a small cell facility network project which seeks approval of a mix of collocated small cell facilities and new structures (i.e., one or more of the applications is for a new structure), within 90 days of receipt of such applications.

(2) *Tolling period.* Unless otherwise agreed to in writing by the applicant and the city, the tolling period for an application, if any, shall be as follows:

a. If within ten days of receipt of an application for a permit to install a small cell facility in the right-of-way, the director notifies the applicant that an application is materially incomplete and specifically identifies (i) the missing documents or information and (ii) the specific rule, regulation or code provision creating the obligation to submit same to the city, the time period for action on an application shall reset and not begin until the applicant submits all of the documents and information identified by the director to render the application complete (i.e., the date the applicant submits all of the documents and information identified by the city in the deficiency notice is day zero).

b. For all other initial applications, the tolling period shall be the number of days from:

1. The day after the date the city sends written notice to the applicant that the application is incomplete in accordance with subsection (b) of this section, until:

2. The date the applicant submits all the documents and information identified by the city in such notice to render the application complete.

c. For resubmitted applications (or supplemental submissions) following a notice of deficiency from the city pursuant to subsection (b) of this section, the tolling period shall be the number of days from:

1. The day after the date the city sends written notice to the applicant that the applicant's supplemental submission was not sufficient to render the application complete and specifically identifies the missing documents or information that need to be submitted based on the city's original notice under subsection (b) of this section, until

2. The date the applicant submits all the documents and information identified by the city to render the application complete, provided that such notice regarding the insufficiency of the supplemental submission is sent by the city to the applicant within ten days following the city's receipt of the supplemental submission in response to the city's original notice under subsection (b) of this section.

(3) *Final decision.* The director will inform the applicant in writing of its final decision and, if such final decision is to deny the application, provide the basis for such denial, including identifying the specific city rule, regulation or code provision or other applicable law on which the denial was based.

(4) *Effect of timelines.* The city's failure to issue a final decision within the processing timelines set forth in subsections 12-3.10-8(c)(1) and (2) shall not constitute, or be construed to constitute, a grant of an applicant's application(s). Upon expiration of these timelines, applicant may pursue whatever remedies are available to it under applicable law.

(d) *Consolidated applications.* An applicant may file a consolidated application and receive a single permit for approval of up to 30 small cell facilities. If the application includes multiple facilities, then the city may separately address each facility for which incomplete information has been received or for which the application is denied.

(e) *Appeal of decision by director or director's designee(s).* Upon denial by the director or director's designee(s), the applicant may, at its option, either seek review in a court of competent jurisdiction or file a written appeal to the city clerk within 15 days for reconsideration by the city council and placement on the next regularly scheduled agenda of the city council. If the applicant appeals to the city council, it may seek review of an adverse council decision in a court of competent jurisdiction.
(Ord. No. 20-68, § 8, 5-1-2020)

Sec. 12-3.10-9. Application requirements and process.

(a) *Approval required.* Except as otherwise provided, a permit to construct or install small cell facilities shall not be granted under this chapter except upon approval by the director or director's designee(s), city council, or as otherwise designated by resolution or ordinance to consider application under this chapter, in which applicant must sufficiently describe the manner, form, design, placement, its effect and impact, and other pertinent information with regard to placement and maintenance of small cell facilities in the right-of-way and/or on private property.

(b) *Application.* An application must be submitted for every small cell facility, equipment or support structure.

(c) *Application requirements.* At a minimum every application should include, as follows:

(1) a. The applicant's name, address, telephone number, and e-mail address; and

b. The names, addresses, telephone numbers, and e-mail addresses of all consultants, if any, acting on behalf of the applicant with respect to the filing of the application;

(2) A general description of the proposed work and the purposes and intent of the small cell facility. The scope and detail of such description shall be appropriate to the nature and character of the work to be performed, with special emphasis on those matters likely to be affected or impacted by the work proposed;

(3) Site plan and engineering design and specifications, including engineering drawings to scale, of the proposed small cell facilities and related structures, including the location of radios, antenna facilities, transmitters, equipment shelters, cables, conduit, point of demarcation, backhaul solution, electrical distribution panel, electric meter, and electrical conduit and cabling, and support structure(s);

(4) Design documents should include photo(s) of the existing pole, and a photo simulation of the pole with attached equipment. Where applicable, the design documents should include specifications on stealth design, pole modification, and ADA compliance;

(5) Map(s) designating with specificity the location(s) of the requested facilities; The geographic coordinates (GIS) of all antenna and other proposed facilities;

(6) For city traffic light poles, verification that the pole is eligible for attachment;

(7) A load bearing study that determines whether the pole requires re-enforcement or replacement in order to accommodate attachment of small cell facilities and/or equipment. If pole re-enforcement or replacement is warranted, the design documents should include the proposed pole modification;

(8) Copy of the manufacturer's detailed specifications for small cell equipment and antennas, including photographs or illustrations and a complete description of all pertinent physical and electrical characteristics;

(9) Supporting information if stealth modifications are required in order to comply with the design standards (i.e. to blend with the character and style of the surrounding area) or criteria for installations;

(10) Supporting information if the application seeks approval of a new pole, including design and specification drawings for the new pole, and a statement regarding the reasons for and what other alternatives, if any, were identified but not utilized, and why;

(11) Applicable design and specification drawings if the proposed installation will require re-enforcement or replacement of an existing pole;

(12) The number, size, type and proximity to the small cell facilities of all communications conduit(s) and cables to be installed;

(13) Description of the utility services required to support the small cell facilities to be installed;

(14) If the small cell facilities will be located on a support structure on the right-of-way that is owned by any entity other than the city or the applicant, a copy of any permit, license, lease, agreement, letter of authorization, or other documentation evidencing that the owner of that support structure authorizes the facilities to be attached thereto or agrees in principle to authorize that attachment (which documentation may be redacted as to business terms including rent or other fee or payment information); provided that, if the city issues the requested permit but it is subsequently determined that the applicant lacked such authority, the subject permit may be revoked and any license to use that part of the right-of-way be rescinded;

(15) All permits and letters of authorization; Valid FCC license, where applicable or other appropriate certificates or permits as required;

(16) List of the contractors and subcontractors, and their contact information, authorized to work on the project;

(17) A certification from a licensed engineer that the small wireless facility, associated equipment, and any associated new or replacement support structure shall comply with all applicable codes and FCC rules and regulations; and

(18) A declaration signed by an authorized representative of the applicant stating that the information in the application is true and accurate and that the small wireless facility and (if applicable) associated pole will be built in conformance with the specifications set forth in the application.

(d) *Objective design guidelines; other requirements.*

(1) *Similar character and style of area required.* Applicant shall use best efforts to provide a reasonable location, context, color, stealth and concealment necessary to maintain the character and style of the surrounding areas so as to minimize the visibility and environmental impact.

(2) *Design guidelines.* The director is authorized to adopt reasonable design guidelines addressing aesthetics requirements provided such design guidelines they are no more burdensome than those applied to other types of infrastructure deployments, objective and are published in advance.

(3) *New structures; availability of alternatives.* No new utility pole, pole-type structure, or other freestanding structure shall be allowed in the right-of-way unless the applicant demonstrates and the director or his/her designee(s) and/or city council (when applicable) determines that no existing structure in the right-of-way can accommodate the applicant's proposed facility or antenna, or that attachment to a new structure will provide a more visually appealing design, more effective coverage, or some other public benefit that would not be achieved by collocation.

(4) *Limitations: No property right.* A permit from the city constitutes authorization to undertake only certain activities in rights-of-way in accordance with this chapter

and does not create a property right or interest in the right-of-way or grant authority to impinge upon the rights of others who may have an interest in the rights-of-way.

(5) *Limitations: Use of city-owned poles or structures.* City-owned structures or poles for attachment or collocation may not be available where the city determines that an additional attachment or collocation is detrimental to public safety or welfare, and such decisions will be final. Availability will be on a first-come, first-served basis, and if the city determines collocation on such city-owned poles or structures has reached is maximum, is unsafe or should otherwise not be permitted, the city may propose alternative collocations to the applicant.

(6) *Coordination of work.* Upon request of the city, applicant may be required to coordinate placement or maintenance activities under a permit with any work, construction, installation or repairs that may be occurring or scheduled to occur within a reasonable time frame in the subject rights-of-way and applicant may be required to reasonably alter its placement or maintenance schedule as necessary to minimize disruptions.

(7) *Zoning.* Any applicant that seeks to construct or modify a wireless facility or support structure on private property shall be subject to applicable zoning requirements.

(8) *Undergrounding provisions.* From time to time, as both residential and commercial developments continue within the city, new regulations relating to undergrounding utilities and their placement may require relocation of small cell facilities or replacement thereof to deploy stealth design of facilities to camouflage with the undergrounding of utilities including relocation of equipment to enhance compatibility and blend into the character and style of a the surrounding area in a manner that reduces visibility. Applicant shall comply with nondiscriminatory undergrounding requirements that prohibit electric utilities, telecommunications or cable providers from installing structures in the rights-of-way without prior zoning approval in areas zoned for single family residential use, provided such requirements shall not prohibit the replacement of, or collocation on, existing structures.

(9) *Conditional use of public right-of-way.*

a. The city shall retain the right, without limitation, to alter, change, or cause to be changed, the grading, installation, relocation or width of the rights-of-way within the limits of the city. Neither the issuance of a permit nor any provision set forth in this chapter shall affect the city's authority to add, modify, vacate or abandon rights-of-way.

b. If an applicant desires to use any of its small cell facilities for the purpose of providing any other services other than the provision of communications service, including utility or non-utility services to existing or potential consumers or resellers, or by providing any other use to existing or potential consumers, an applicant shall seek such additional and separate authorization from the city and other authority as may be required by applicable law.

c. An applicant, or any person that leases or otherwise uses the small cell facilities of an applicant, which has been issued a permit or that has otherwise been authorized to place a small cell facility in the rights-of-way of the city shall not take any action against the city that will impede the lawful exercise of the city's rights, including without limitation the city's right to require the removal or relocation of such facilities from the rights-of-way of the city, notwithstanding the effect

of same on applicant's ability to place or maintain small cell facilities in rights-of-way of the city.

(10) *All rights of city reserved.* Notwithstanding any provision of this section or the city's issuance of a permit or other authorization to place a small cell facility in the right-of-way, the city may place and maintain, grant utility easements for, or otherwise permit the placement and maintenance of other utilities in the rights-of-way, including, water, sewer, electric, gas, storm drainage, telecommunications, traffic, and other utilities and facilities, cables or conduit, including underground and overhead installations, in rights-of-way occupied by the applicant. Applicant may allow city facilities to be collocated within rights-of-way through the use of a joint trench during applicant's construction project. Such joint trench projects shall be negotiated in good faith by separate agreement between applicant and city and may be subjected to other city rights-of-way requirements. The city further reserves without limitation the right to alter, change, or cause to be changed, the grading, installation, relocation or width of the rights-of-way within the city.

(11) *Restoration of right-of-way.* The area disturbed by the construction or maintenance of a small cell facility in the right-of-way shall be kept to a minimum. The applicant shall, at its own expense, restore all right-of-way to a condition equal to or better than the condition existing prior to such construction or maintenance activities. Restoration methods and any work required to repair the right-of-way shall be performed in accordance with articles G, H and I of title 4, chapter 5 of the City Code or other city-adopted standards and specifications applicable to the construction of city improvements within the right-of-way. All repairs and restoration work must be approved by the city engineer and final completion of any such work is subject to the reasonable approval of the city engineer. If necessary, unsatisfactory restoration work shall be corrected by the applicant, or by the city with all costs billed to the applicant.

(12) *Maintenance.* Applicant shall at all times keep the small cell facility authorized by the permit in a good state of repair from the standpoint of both structure and appearance.

(13) *Scheduling.* In the interest of the public's health, safety and welfare, upon request of the city, an applicant shall coordinate placement or maintenance activities under a permit with any other work, construction, installation or repairs that may be occurring or scheduled to occur within a reasonable timeframe in the subject rights-of-way. The city may require an applicant to alter reasonably its placement or maintenance schedule for permitted work as necessary so as to minimize disruptions and disturbance in the rights-of-way. The city may provide a more definite time frame based on specific city construction or maintenance schedules.

(14) *Applicant's liability and risk.* The city makes no warranties or representations regarding the fitness, suitability or availability of rights-of-way for the applicant's small cell facilities and any performance of work or costs incurred by applicant or provision of services shall be at applicant's sole risk. Nothing in this chapter shall affect the city's authority to add, vacate or abandon rights-of-way and city makes no warranties or representations regarding the availability of any added, vacated or abandoned rights-of-way for small cell facilities. Notwithstanding any requirements or conditions, the city engineer may impose in order to protect the public from injury and the right-of-way from damage, an applicant shall be solely responsible for the adequacy and safety of the engineering of its facilities and the operations authorized by the permit. Construction performed to place or maintain an applicant's small cell facili-

ties shall not interfere, displace, damage or destroy any other utilities or facilities, including but not limited to, sewers, gas or water mains, storm drains, pipes, cables or conduits of the city or any other person's facilities lawfully occupying the rights-of-way of the city.

(15) *Inspection.* The city shall have the right to make such inspections of facilities placed or maintained in rights-of-way as it finds necessary to ensure compliance with this section. In the event the city determines that a violation exists with respect to applicant's placement or maintenance of facilities in the rights-of-way that is not considered to be an emergency or danger to the public health, safety or welfare, the city will provide applicant written notice setting forth the violation and requesting correction.

(16) *As-built plans.* An application for a small cell facility right-of-way placement permit, including an application to replace an existing small cell facility in the right-of-way, shall include plans showing the location of the proposed installation of facilities in the rights-of-way. If the plans so provided require revision based upon actual installation, the applicant shall promptly provide revised plans. Further, the applicant shall provide "as-builts" upon completion of any installation or construction. The plans shall be in a digitized format showing the two-dimensional location of the facilities based on the city's geographical database, or other format acceptable to the city. The applicant shall provide such plans at no cost to the city.

(17) *Cooperation.* Subject to applicable law, an applicant shall, on the request of any person holding a permit issued by the city, temporarily support, protect, raise or lower its small cell facilities to permit the work authorized by the permit. The expense of such temporary support, protection, raising or lowering of facilities shall be paid by the person requesting the same, and the applicant shall have the authority to require such payment in advance. The applicant shall be given not less than 30 days' advance written notice to arrange for such temporary measures. If the city requests the temporary support, protection, raising or lowering of a facility for a public purpose, the city shall not be charged for the temporary support, protection, raising or lowering of the facility.

(18) *Signage.*

a. No signage, logos, symbols, or any messages of a commercial or noncommercial nature are permitted on any small cell facility, accessory equipment, support structure, or security fencing. This prohibition does not include the information sign permitted in the following subsection.

b. One small sign measuring no more than two feet by three feet that contains wireless provider information, emergency telephone numbers, and any other information required by local, state, and federal regulations governing small cell facilities is permitted. Such signage shall not include commercial advertising and is subject to approval by the city.

c. Submission of application. Upon meeting the requirements as listed herein and submitting the application, the city shall review and issue permits within the timeframes and processes provided herein.

(Ord. No. 20-68, § 9, 5-1-2020)

Sec. 12-3.10-10. Removal, relocation or modification of small cell facility in the right-of-way.

(a) *Ninety-day notice to remove, relocate or modify.* Whenever the city determines that the relocation is needed as described below, then within 90 days following written notice from the city, the applicant shall, at its own expense, protect, support, temporarily or permanently disconnect, remove, relocate, change or alter the

position of any small cell facilities within the rights-of-way whenever the city has determined that such removal, relocation, change or alteration, is necessary for (excluding beautification only projects), as follows:

(1) The construction, repair, maintenance, or installation of any city improvement in or upon, or the operations of the city in or upon, the rights-of-way; and/or

(2) If required for the construction, completion, repair, relocation, or maintenance of a city improvement or project in or upon, or the operations of the city in or upon, the rights-of way; and/or

(3) Because the small cell facility or its related equipment is interfering with or adversely affecting proper operation of any city-owned light poles, traffic signals, public safety communications or other equipment in the right-of-way; and/or

(4) To protect or preserve the public health or safety.

In any such case, the city shall use its best efforts to afford applicant a reasonably equivalent alternate location. If applicant shall fail to relocate any equipment as requested by the city within a reasonable time under the circumstances in accordance with the foregoing provision, the city shall be entitled to relocate the equipment at applicant's sole cost and expense, without further notice to applicant. Decorative streetlight poles may be required by the city in the future in the place of initially-installed standard-design streetlight poles, in which replacement of the applicant's facilities and equipment on decorative streetlights that were initially installed standard-design streetlight poles shall be solely at applicant's cost. Further, in such instances and at such time as replacement poles are installed, the city may reasonably require that the configuration and/or location of ground furniture (which references any equipment on the ground that is needed to supply power or backhaul services to the small cell facility) and/or pole-mounted equipment or equipment cages be changed (such as changing from pole-mounted equipment cages to ground furniture), in the discretion of the city.

(b) *Emergency removal or relocation of facilities.* The applicant or its successor(s) must remove the small cell facilities at any time if warranted by public health or safety, or in the event of an emergency, as determined by the city. The city will provide as much notice as reasonably possible under the circumstances. In non-emergency situations, the city will provide at least 60 days' notice. The city retains the right and privilege to cut or move any small cell facility or related structure located within the rights-of-way of the city, as the city may determine to be necessary, appropriate or useful in response to any public health or safety emergency. If circumstances permit, the city shall notify the applicant and provide the applicant an opportunity to move its own facilities, if possible, prior to cutting electrical service or removing a facility and shall notify the personal wireless services provider after cutting or removing a small cell facility.

(c) *Abandonment of facilities.* If an applicant abandons any facility (including the accessory equipment) or an associated support structure (collectively "abandoned facilities" for purposes of this section) that is located on the right-of-way, the following rights and obligations shall exist. The city may require the applicant, at applicant's expense, to remove and reclaim the abandoned facilities within 60 days from the date of written notice of abandonment given by the city to the applicant and to reasonably restore the property at which the abandoned facilities are located to the condition existing before the abandoned facilities were installed. If the wireless provider or applicant fails to remove and reclaim its abandoned facilities within such 60-day period and the abandoned facilities are located on the right-of-way, the city shall have the rights to (a) remove the abandoned facilities and charge its expense of any such removal operation to the account of the wireless services provider or applicant, (b) purchase all abandoned facilities at the subject location from the wireless services provider or applicant in consideration for $1.00, (c) at the city's discretion, either resell the abandoned facilities to a third party or dispose and salvage them; provided that the net proceeds of any resale of abandoned facilities by the city to a third party shall be credited to the

account of the applicant that used those abandoned facilities before the abandonment, and (d) charge any expense incurred by the city to restore the right-of-way to the account of the wireless services provider or applicant.
(Ord. No. 20-68, § 10, 5-1-2020)

Sec. 12-3.10-11. Annual license.

(a) *Term of license.* The license granted pursuant to section 12-3.10-3 hereof shall be valid for a period of one year. Annual license renewal may occur automatically if licensee has paid all required fees by December 31 and complied with requirements of this chapter.

(b) *Use of right-of-way authorized.* Provided the applicant agrees to comply with the requirements in this chapter and as negotiated by the city, a license authorizes entry upon and use of the right-of-way and/or attachment to city-owned structures in the right-of-way for the purposes of installing and operating small cell facilities, including the right to draw electricity for the operation of its small cell facilities from the power source (if any) that is made available for that support structure at the sole cost of applicant.

(c) *Limitation.* A license granted pursuant to section 12-3.10-3 does not create a property right or grant the licensee authority to impinge upon the rights of others who have a right to use the rights-of-way.

(d) *Revocation.* The city may revoke a license if, after reasonable notice and opportunity to cure is given to licensee, the licensee fails to comply with any provision of this chapter.
(Ord. No. 20-68, § 11, 5-1-2020)

Sec. 12-3.10-12. Effect of permit.

(a) *Authority granted; no property right or other interest created.* A permit from the city authorizes an applicant to undertake only certain activities in accordance with this chapter and creates a license only. A permit does not create a property right or grant authority to the applicant to impinge upon the rights of others who may already have an interest in the rights-of-way.

(b) *Duration.*

(1) *For use in general.* No permit issued to conduct construction, installation or other activities in the right-of-way shall be valid for a period greater than one year.

(2) *Limitations on construction.* When the application is approved to undertake the activities described in this chapter, every permit issued shall become invalid unless the work on the site authorized by such permit is completed within 180 days after its issuance, or if the work authorized on the site by such permit is suspended or abandoned for a period of 180 days after the time the work is commenced. The director is authorized to grant, in writing, one or more extensions of time, for periods not more than 180 days each, provided that the extension shall be requested in writing with justifiable cause demonstrated, such that: (i) if no request for extension is received, then the permit will become invalid; (ii) if construction has not commenced by the 180th day of permit issuance or by the one year anniversary of the application approval, then the applicant must re-apply and be subject to the same provisions as if the applicant is applying for the first time; and (iii) no portion of this section shall be construed to give applicant a period for use of the right-of-way greater than 12 months without applying for a new permit.

(c) *Make-ready work for collocation.*

(1) For a city-owned pole or structure that does not support an aerial facility used to provide electric service, the applicant seeking to collocate a small cell facility shall provide a make-ready estimate of the costs, at the applicant's expense, for the work necessary to support the facility, including pole replacement, and the applicant shall perform the make-ready work. If pole replacement is required, the scope of the make-ready estimate is limited to the design, fabrication, and installation of a utility pole that is substantially similar in color and composi-

tion. The city shall not condition or restrict the manner in which the applicant obtains, develops, or provides the estimate or conducts the make-ready work subject to usual construction restoration standards for work in the right-of-way. The replaced or altered utility pole shall remain the property of the city.

(2) The city shall not require more make-ready work than is required to meet applicable codes or industry standards.

(3) If the city performs the make-ready work, the fees for make-ready work shall not include costs related to preexisting damage or prior noncompliance. Such fees for make-ready work, including any pole replacement, shall not exceed actual costs or the amount charged to communication service providers other than personal wireless services providers for similar work and shall not include any consultant fee or expense in excess of the actual, reasonable and necessary costs of the consultant.

(4) Fees for make-ready work performed by the city, must be paid to the city, even if they exceed the applicant's estimate, before the wireless facilities may be operational, unless otherwise agreed.

(d) *No warranties.* The city makes no warranties or representations regarding the fitness, suitability, or availability of the city's right-of-way, city-owned structures, and city-owned real property for the facilities or any performance of work, costs incurred, or services provided by applicant is at their sole risk.

(e) *Suspension or revocation of permits.*

(1) a. The director may immediately suspend a permit for work in the right-of-way for one or more of the following reasons or the permission of a wireless provider to make new or additional small cell facilities if: (i) the applicant materially fails to comply with the terms of its franchise, permit or license; (ii) the director believes that the applicant or the wireless communication facility is in violation of this chapter, or other applicable city ordinances, codes or regulations governing placement or maintenance of small cell facilities in rights-of-way; or (iii) the applicant fails to properly relocate or remove facilities as may be lawfully required by the city. Written notice of the alleged violation shall be mailed to the wireless provider and the property owner (if different) by certified mail, return receipt requested. This notice shall identify the reasons why the director believes that a violation as enumerated above has occurred. If the wireless provider fails to cure the violation on or before the 60th day after receipt of the notice, or if it is established that there was misrepresentation or fraud by the applicant in application to the city, the director may revoke the wireless provider's permit. Written notice of revocation will be sent to the wireless provider via certified mail, return receipt requested.

b. An applicant shall immediately begin removal of its small cell facilities after revocation of its permit. Unless the city grants an extension of time, a wireless provider must remove all small cell facilities not later than the 60th day after the effective date of revocation.

c. After revocation of an applicant's permit, the applicant must comply with the terms of this chapter, the wireless provider's franchise, permit, license, or other authority until all small cell facilities are removed.

d. An applicant may appeal the revocation of its permit to the city council. While an appeal is pending, an applicant may continue to use its existing facilities but may not make, change, move, rearrange, construct, or install an additional facility.

(2) Upon receipt of a notice of appeal, the city shall schedule a hearing before the city council, and notify the applicant and any current users of the specific small cell facility occupied by, or proposed to be occupied by, the applicant of the time and date of the hearing by certified mail, return receipt requested, at least ten days before the date of the hearing.

(3) The applicant has the burden of proof to establish that the decision being appealed is incorrect and in the case of a decision requiring discretion or judgment, that the decision is an abuse of discretion. At the hearing, the applicant may be represented by an attorney, present evidence and call witnesses in support of its case.

(4) If the city council determines to uphold the revocation of the permit, the reasons for its action shall be set forth in the written minutes of the meeting.

(5) A decision by the city council to uphold the revocation of the permit may be appealed to the circuit court of Jefferson County. An appeal must be filed with the circuit court clerk and with the city within 21 days of the council's decision.

(f) *Other penalties.* Revocation is separate from any other penalties that may be imposed by the director. A revocation will not preclude the prosecution of any civil or equitable remedy that may be available to the director.
(Ord. No. 20-68, § 12, 5-1-2020)

Sec. 12-3.10-13. Insurance required at all times small cell facilities or equipment are in operation and/or use in right-of-way.

(a) *Coverages and amounts.* Prior to the commencement of any work under this chapter or the installation of any small cell facilities or support structures, the applicant shall provide the city with a certificate(s) of insurance, or self-insurance approved by the director, evidencing that it has obtained and will maintain the following types of insurance, or self-insurance, in connection with its operations on or use of the right-of-way: (i) general liability coverage insuring the risk of claims for damages to persons or property arising from or related to the installation, construction, maintenance, operation or any use of facility or support structure placed on or along the right-of-way by the applicant (or any of their contractors) with minimum limits of $1,000,000.00 per occurrence and $2,000,000.00 in the aggregate, which shall include coverage for bodily injury, broad form property damage (including completed operations coverage), personal injury (including coverage for contractual and employee acts), blanket contractual, independent contractors, products, and completed operations; and (ii) workers compensation insurance as required by statute.

(b) *General liability coverage requirements.* The general liability coverage shall list the city as an additional insured, and may be provided through a combination of a primary and umbrella policies. All insurance policies shall be furnished by insurers who are reasonably acceptable to the city and authorized to transact business in the State of Alabama.

(c) *Confirmation of coverage.* On an annual basis following initial installation, the applicant also shall furnish the city a certificate indicating that the above-noted coverage, or self-insurance, remains and will remain in effect.

(d) *Notice of cancellation.* Upon receipt of notice from its insurer, the applicant will provide the city with 30 days prior written notice of cancellation.

(e) *Replacement coverage.* Within 30 calendar days of suspension, cancellation or non-renewal of coverage, the applicant shall provide a replacement certificate of insurance and applicable endorsements to the city. The city shall have the option to suspend the applicant's performance should there be a lapse in coverage at any time during the permit. Failure to provide insurance shall be a material breach of the applicant's agreement to place small cell facilities on the right-of-way in the city.

(f) *Surety bond may be required by director.* The director or his/her designee(s) may require a surety bond be issued by applicant if it is determined that the construction and placement of the small cell facilities by the applicant would interfere or disturb a sidewalk, street or streetscape, or property belonging to or under the control of the city. The purposes of the bond are to maintain the overall design aesthetics of the area in which the small cell facilities are proposed to be located, which will be reviewed on a case-by-case basis; to provide for the removal of abandoned or improperly maintained facilities, including those that the city determines need to be removed as provided in section 12-3.10-10; or to recoup fees that have not been paid by the applicant, provided that applicant has received at least 60 days' notice of non-compliance from the city with respect to such matters and a reasonably opportunity to cure. "Interfere or disturb" means movement of earth such that the sidewalk or street or streetscape has to be dug up and either replaced or repaired from the work by applicant to bring its small cell facilities and equipment online. If required, the applicant shall obtain and maintain at its sole cost a corporate surety bond securing performance of its obligations and guaranteeing the faithful adherence to the requirements under this chapter. The surety bond must be for:

(1) In the amount not less than $75,000.00;

(2) Issued by a surety company licensed to do business in the State of Alabama;

(3) Under terms and conditions reasonably acceptable to the city attorney; and

(4) Obtained no later than the 30th day following the effective date of any license or franchise agreement consistent with the terms of this chapter. The rights reserved to the city under this bond are in addition to all other rights. No action proceeding or exercise of a right regarding the bond shall affect the city's right to demand full and faithful performance under the franchise or license agreement or limit the applicant's liability for damages.

(Ord. No. 20-68, § 13, 5-1-2020)

Sec. 12-3.10-14. Compliance with laws.

(a) *Compliance with laws.* All small cell facilities and associated support structures shall be installed, erected, maintained and operated in compliance with applicable federal and state laws and regulations, including, but not limited to, regulations of the FCC.

(b) *Engineer's certification.* Following the installation of any small cell facilities and associated support structures, the applicant, upon reasonable request and for good cause, shall furnish the director, or his/her designee(s), a written certification from a licensed professional engineer qualified to practice in the State of Alabama stating that those structures have been inspected and are being maintained, operated and used in compliance with all applicable laws and regulations, including those of the FCC that pertain to the transmission of wireless communication signals. For purposes of this provision, "good cause" shall mean circumstances have arisen that indicate the small cell facilities and associated support structures have been damaged, are not functioning in compliance with applicable laws and regulations, or otherwise pose a hazard to the public. If those support structures should fail at any time to comply with applicable laws and regulations, the applicant, at its expense, shall cause those structures to be brought into compliance with such laws and regulations within 15 days of the date of any written notice to them from the director or his/her designee(s) of noncompliance, or cease all personal wireless service operations related to those structures until the applicant comes into full compliance with such laws and regulations. (Ord. No. 20-68, § 14, 5-1-2020)

Sec. 12-3.10-15. Applicability.

(a) *Amendments.* The city may further amend this chapter as it shall find necessary in the lawful exercise of its police powers and in the management of the rights-of-way. The provisions hereof shall be applicable to all small cell facilities placed in the rights-of-way on or after the effective date of the ordinance adopting or amending these provisions, as applicable. Further, to the full extent permitted by state and federal

law, the provisions hereof shall be applicable to all existing small cell facilities placed in the rights-of-way prior to the effective date of the ordinance adopting or amending these provisions, as applicable, except that any provision of this chapter regarding the design, size, composition, or location of small cell facilities shall not apply to any facilities lawfully placed within any right-of-way prior to the effective date of the ordinance from which such provision is derived.

(b) *Exemptions and non-applicability.* This chapter regulates the placement of small cell facilities (and associated accessory equipment) on or in the immediate vicinity of support structures that are located or proposed to be located on the right-of-way. This chapter does not apply to the placement of such facilities on city-owned property not located within the right-of-way, which placement will be allowed only through a lease or similar agreement with the city. The placement of an antenna(s), facilities or equipment related to the following types of wireless communication services are exempt from regulation under this chapter: (a) amateur radio service that is licensed by the FCC if the facilities related thereto are not used or licensed for any commercial purpose; and (b) facilities used by any federal, state or local government or agency to provide safety or emergency services. Further, the provisions in this chapter are not intended to alter, affect or modify the provisions in title 12, chapter 3.9. "cable communications" and appendix D, article VI, section 18 "wireless communications facilities." No provision in this section or elsewhere in this chapter is intended to permit, regulate or authorize the placement by a wireless provider or applicant of fiber optic lines, coaxial cable, switches, pedestals or networking equipment of any type that is used to transport telecommunication signals, data or messages between support structures or between any other points on the right-of-way. In the event any such wireless provider or applicant desires to place telecommunications equipment or small cell facilities along the right-of-way at points not regulated by this chapter, the city may enter into franchise or similar agreement that authorize, govern and apply to such use of other locations on or along the right-of-way. The applicant for a permit to place small cell facilities and associated support structures on the right-of-way shall pay the following types of fees pursuant to this chapter or its franchise agreement:

(1) A permit application and review fee to be paid when an application is submitted; and

(2) An annual license fee per each small cell facility or support structure on the right-of-way pertaining to the ongoing use of public property.

Further, if a wireless provider has an existing franchise agreement, lease, right-of-way use agreement or other similar agreement with the city that addresses the placement of small cell facilities, support structures, and/or accessory equipment that was in effect prior to the enactment of this chapter ("existing agreement"), the existing agreement shall remain in force for its remaining term (but not for any extension or renewal thereof), and its provisions shall control over any conflicting provisions of this chapter, unless the wireless provider and the city otherwise agree in writing. Thereafter, the wireless provider's small cell facilities, support structures, and/or accessory equipment shall be regulated by this chapter.

(c) (1) This chapter does not apply to any poles, attachments, equipment, facilities, business activities, or structures of an electric utility that is regulated by the Alabama Public Service Commission. This chapter also does not apply to any attachments, equipment, easements, facilities, or business activities of such electric utility's parents, affiliates, or subsidiaries when they are acting in support of the electric utility.

(2) Nothing in this chapter shall affect or alter, or be construed to affect or alter, the terms of any pole attachment agreement entered into between or among a wireless service provider and an electric utility that is regulated by the Alabama Public Service Commission.

(3) When a wireless provider collocates, installs, or mounts a small wireless

facility pursuant to a pole attachment agreement with an electric utility that is regulated by the Alabama Public Service Commission, the applicable sections of this chapter shall apply to the wireless service provider.

(Ord. No. 20-68, § 15, 5-1-2020)

Sec. 12-3.10-16. Enforcement.

Any violation of this chapter will be enforced by the director and any facility or structure located on private property shall be enforced by the city's zoning administrator. Each unauthorized wireless communication facility or use is a separate offense. Each day a violation of this chapter continues is a separate offense. The remedies and penalties set forth herein are nonexclusive and the exercise of one or more of such remedies or penalties shall not preclude the exercise of another. In addition to the other remedies previously set forth herein, violations of the provisions of this chapter shall be enforced, prosecuted and punished in the same manner as set forth in the city code. Additionally, the city may take all necessary civil action to enforce the provisions hereof and may seek appropriate legal or equitable remedies or relief, including injunctive relief. The remedies set forth for in this section are in addition to and cumulative of all other remedies provided by law.

(Ord. No. 20-68, § 16, 5-1-2020)

CHAPTER 4. CEMETERIES*

ARTICLE A. GENERAL PROVISIONS

Sec. 12-4-1. Establishment or enlargement.

It shall be unlawful for any person to establish or enlarge any cemetery within the city otherwise than in conformity with the zoning ordinance, which is set forth in appendix D to this Code, and Code of Ala. 1975, § 22-20-4.

(Code 1964, § 13-1; Code 1980, § 12-4-1)

*__State law references__—Authority of municipalities with regard to cemeteries and burial grounds, Code of Ala. 1975, § 11-47-41 et seq.; location and extension of cemeteries, Code of Ala. 1975, § 22-20-4.

Sec. 12-4-2. Permit to bury, etc.

It shall be unlawful to bury, cremate or otherwise dispose of the body of a deceased human being in the city or to disinter or to remove such a body from the city, or from any place or location to another within the city, without first obtaining a permit from the health officer or from a registrar or other person legally designated for that purpose. Cemetery authorities shall refuse interment, as well as disinterment, for the body of any person in any cemetery within the city, unless such permit has been issued and delivered to them.

(Code 1964, § 13-2; Code 1980, § 12-4-2)

Sec. 12-4-3. Burials to be in cemetery.

It shall be unlawful to bury or inter the body of a human being on or about any lot, place or premises in the city, except in a cemetery or public burial ground duly established and maintained for that purpose.

(Code 1964, § 13-3; Code 1980, § 12-4-3)

Sec. 12-4-4. Depth of graves.

It shall be unlawful to bury or inter the body of a human being in a grave or other excavation in the city which is less than 4½ feet in depth, except graves for infants, which may be four feet deep. Every body or casket containing the same shall be covered with soil to a depth of not less than two feet below the natural level of the surface of the surrounding ground at the edges of the excavation.

(Code 1964, § 13-4; Code 1980, § 12-4-4)

Sec. 12-4-5. Use of streets.

The streets in cemeteries in the city are not public thoroughfares, and it shall be unlawful for any person to use any of these streets as a public thoroughfare for passage through any cemetery. It shall also be unlawful for any person to use any such street except in attendance on funerals, memorial occasions, visits to graves or cemetery lots and other similar uses and purposes.

(Code 1964, § 13-5; Code 1980, § 12-4-5)

Sec. 12-4-6. Entrance and exit at gates only.

It shall be unlawful for any person to climb over, go through or under any wall, fence, hedge or similar barrier enclosing any lawfully-established cemetery in the city, or to enter or leave the same at any place, except at a regularly established gateway or entrance.
(Code 1964, § 13-6; Code 1980, § 12-4-6)

Sec. 12-4-7. Shooting.

It shall be unlawful for any person to shoot in or through any cemetery, except in honor of the dead.
(Code 1964, § 13-9; Code 1980, § 12-4-7)

Sec. 12-4-8. Rules and regulations.

The following rules and regulations shall govern the conduct and management of cemeteries in the city:

(1) *Notice of interment.* Notice to the sexton or superintendent of an interment shall be accompanied by directions as to the lot, and the particular spot on the lot where the grave is to be opened, and this notice shall be presented eight working hours before the interment.

(2) *Monument foundations.* All monument foundations shall be placed on solid masonry or concrete. All such foundation work shall be under the control and direction of the sexton or superintendent.

(3) *Work orders.* No person shall erect any monument or do any work in any cemetery without presenting a written order from the lot owner to the sexton or superintendent.

(4) *Removal of earth or rubbish.* All earth or rubbish accumulated by proprietors of lots or their workmen shall be by them removed from any cemetery as soon as pos-

sible; otherwise, it will be done by the sexton or superintendent at the expense of the lot owner.

(5) *Cultivation of trees, shrubs and plants.* The proprietor of each lot in any cemetery shall have the right to cultivate trees, shrubs and plants in the same, except as prohibited in this chapter or as may be prohibited or regulated by the established rules and regulations of the governing body of the cemetery.

(6) *Removal of trees or shrubs.* If any trees or shrubs situated in any lot shall, by means of their roots, branches or otherwise, become detrimental to the adjacent lots or avenues, or dangerous, unsightly, diseased or inconvenient to passengers, the cemetery authorities shall have the right, at their option, to enter such lot and remove such trees or shrubs or any part thereof that may be necessary, but no removals shall be made except by consent of the governing body of the cemetery.

(7) *Removal of monuments or other structures.* If any monument, effigy or enclosure or any structure placed in or upon any lot in any cemetery shall be offensive or improper or become unsightly or unsafe, the sexton or superintendent shall have the right to enter upon such lot and remove such object.

(8) *Fences, walls or curbs around lots.* It shall be unlawful for any lot owner to erect any fence, wall or curb around any lot. Any fence, wall or curb erected in violation of this rule shall be removed.

(9) *Burial permit.* It shall be the duty of the family or friends of any person about to be buried in any cemetery to furnish a proper burial permit and give the place of birth, age, residence at the time of death, sex, color, date of death and cause of death of such person as far as known.

(10) *Fences or steps extending into streets or walks.* It shall be unlawful for any person to cause, permit or suffer the erection of any brick wall, iron fence or steps around or leading to any private lot in any cemetery of the city, which wall, fence or steps extend into the streets or walks of such cemetery.

(11) *Dogs.* It shall be unlawful for any person to have or carry any dog into the enclosure of any cemetery, and it shall be the duty of the sexton or superintendent of the cemetery to take up and confine all dogs found therein, and deliver the same to the city pound to be dealt with as is provided for by law in the case of dogs running at large.

(12) *Driving or riding on walks.* It shall be unlawful for any person to drive any vehicle, horse or other animal on any of the walks in any cemetery.

(13) *Riding animals faster than at a walk.* It shall be unlawful for any person to drive any horse, mule or other animal faster than a walk within the enclosure of any cemetery.

(14) *Unattended or unhitched animals.* It shall be unlawful for any person to leave unattended or unhitched any horse, mule or other animal in any cemetery.

(15) *Removal of weeds or trash by sexton.* The sexton, or any person under his or her direction, or any person under direction of the city council, shall have the right to go to any lot and cut down and remove any and all weeds, underbrush, trash, etc., or to proceed in any other manner as deemed fit to put such lot in good condition and to render the same sightly.

(Code 1964, § 13-11; Code 1980, § 12-4-8)

Secs. 12-4-9—12-4-20. Reserved.

ARTICLE B. OAK HILL CEMETERY

Sec. 12-4-21. Public cemetery.

The parcel of land now used as a cemetery in the city and which has heretofore been estab-

lished and known as Oak Hill Cemetery, is a public burying ground, subject to the rules and regulations set forth in this chapter.
(Code 1964, § 13-12; Code 1980, § 12-4-21)

Sec. 12-4-22. Oak Hill Memorial Association—Control, etc., of cemetery.

The Oak Hill Memorial Association shall have the right, perpetually, to beautify, care for, improve, manage, control and adopt reasonable rules and regulations for the care, protection and maintenance of Oak Hill Cemetery.
(Code 1964, § 13-13; Code 1980, § 12-4-22)

Sec. 12-4-23. Same—Privileges.

The Oak Hill Memorial Association shall have the right to dig graves, construct vaults and do all work which is done in Oak Hill Cemetery, and to collect therefor such compensation as is or may be fixed by the code of rules and regulations of the association. Such association shall also have the right to charge and collect fair and reasonable compensation for all work not covered by the schedule of fees set out in such rules and regulations, all such charges to constitute a lien against the lots on which the work has been done, and the association may refuse to allow interment to be made in such lots until past due claims or liens thereon have been paid.
(Code 1964, § 13-14; Code 1980, § 12-4-23)

Sec. 12-4-24. Code of rules and regulations.

(a) The code of rules and regulations of the Oak Hill Cemetery prepared and proposed by the board of trustees of the Oak Hill Memorial Association and identified by the certificate of the secretary and treasurer of such association, dated July 22, 1939, is adopted as the code of rules and regulations of Oak Hill Cemetery of the city.

(b) The original of the code of rules and regulations of Oak Hill Cemetery shall be certified by the city clerk to be such original and to have been adopted, and such original shall be filed with and kept by the city clerk and shall be open to the inspection of the public.

(c) The secretary and treasurer of the Oak Hill Memorial Association shall keep posted in the office of such association a copy of the code of rules and regulations of Oak Hill Cemetery and shall also keep in such office a sufficient number of copies for inspection by the public and for distribution.
(Code 1964, §§ 13-15—13-17; Code 1980, § 12-4-24)

Sec. 12-4-25. Receipts and disbursements by association.

For the purpose of receiving and expending the money which the Oak Hill Memorial Association is authorized to receive from the city, directly and indirectly, the association shall be the agent of the city and shall make quarterly reports in writing to the council of all sums received by it from the city and also the manner and the purposes for which the money was expended, and all of the money so received shall be expended by the association in the improvement, maintenance and upkeep of Oak Hill Cemetery, except the pauper section thereof.
(Code 1964, § 13-18; Code 1980, § 12-4-25)

Sec. 12-4-26. Permanent improvements.

Any part of the money regularly received by the Oak Hill Memorial Association from the city may be expended in making permanent improvements in Oak Hill Cemetery, provided the current annual expense and upkeep of the cemetery shall have been provided for.
(Code 1964, § 13-19; Code 1980, § 12-4-26)

Sec. 12-4-27. Perpetual care fund.

There shall be maintained a perpetual care fund of such amount as will enable the Oak Hill Memorial Association perpetually to care for, improve, beautify and maintain Oak Hill Cemetery in good condition, without other or further expenditures by the city than those provided for by contract. The principal of all money received by the association for the perpetual care of lots shall be invested, held and managed as a trust fund and only the income therefrom shall be used by the association.
(Code 1964, § 13-20; Code 1980, § 12-4-27)

Sec. 12-4-28. City's right to take charge of cemetery.

If the Oak Hill Memorial Association should at any time fail or neglect to keep the cemetery in good condition, the city shall have the right to take back the management of the Oak Hill Cemetery, in which event the city shall have the right, by application to a court having jurisdiction, to have the association removed as trustee of the trust funds in its custody, and to have a responsible bonded corporation appointed as trustee to take charge of the trust fund in the custody of the association. The trust fund shall then be invested, managed and controlled by such trustee, and the income therefrom shall be paid over for the perpetual care of lots in Oak Hill Cemetery.
(Code 1964, § 13-21; Code 1980, § 12-4-28)

Sec. 12-4-29. Sufficient employees and implements to be provided; sexton.

The Oak Hill Memorial Association shall provide sufficient employees, implements, etc., to improve, care for and beautify the cemetery and keep the same in good condition and shall keep at Oak Hill Cemetery a superintendent or sexton, with a force sufficient to provide for the digging of graves and for the interment of remains in the cemeteries by parties rightly entitled to have burials made in such cemetery. The employees shall perform the duties usual or customary in cemeteries pertaining to the interment of remains.
(Code 1964, § 13-22; Code 1980, § 12-4-29)

Sec. 12-4-30. Powers of city.

The city shall have the right at all times to visit and inspect Oak Hill Cemetery, and to inspect all books, papers and vouchers of the Oak Hill Memorial Association, pertaining in any manner to its management of the cemetery, and shall have the right to annul all agreements if the amount appropriated by the city is not used properly and in accordance with agreed terms.
(Code 1964, § 13-23; Code 1980, § 12-4-30)

Sec. 12-4-31. Entrances to Oak Hill Cemetery.

The driveway and footway gates on 19th Street, opposite the end of Huntsville Avenue, as now located, are the established and only established entrances into Oak Hill Cemetery.
(Code 1964, § 13-24; Code 1980, § 12-4-31)

CHAPTER 5. DEMONSTRATIONS, PARADES, AND EMERGENCIES

ARTICLE A. GENERAL PROVISIONS

Secs. 12-5-1—12-5-20. Reserved.

ARTICLE B. PERMITS FOR DEMONSTRATIONS, SPECIAL EVENTS AND RUNS

Sec. 12-5-21. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Assembly occupancy means the use of a building or structure, or any portion thereof, for the gathering of persons for purposes such as civic, social or religious functions or for recreation, or for food or drink consumption or awaiting transportation; including, but not limited to amusement park buildings, auditoriums, churches, dance halls, gymnasiums, restaurants that accommodate 100 or more persons, motion picture theaters, museums, passenger depots, public assembly halls, recreation halls, stadiums and grandstands, tents for assembly and theaters for stage productions.

Charitable includes any function, whether a demonstration, special event or race, organized by a charitable organization as qualified under the Internal Revenue Service Code and regulations as a 501(c)(3) corporation or such Internal Revenue Code section subsequently enacted or regulation passed pursuant thereto which shall regulate such nonprofit organizations or entities, and from which all the income from the demon-

stration, special event or race is used for eleemosynary purposes, and from which no personal income is derived to the person organizing, holding or promoting the function.

City-owned property means property owned by the city, including that which is operated, managed or administered by the park and recreation board of the city, but is not limited to, the following: public buildings, developed parking malls, plazas, piazzas and parking areas under bridges and overpasses, specifically excluding city hall, and which is not controlled by other boards, agencies or other governmental entities.

Demonstration means any demonstration, picketing, pamphleteering, leafletting, parade, or other event organized or held for political, religious or other First Amendment related purposes involving two or more persons acting in concert.

Educational occupancy means the use of a building or structure, or any portion thereof, by six or more persons at any one time for educational purposes through the 12th grade; child care facilities which accommodate six or more children of any age less than 24 hours per day; parts of buildings for congregating or gathering 100 or more persons in one room in an assembly occupancy regardless of instruction; schools for business or vocational training which do not otherwise exceed occupancy classification of the fire safety standards.

Emergency medical services (*EMS*) means those services rendered for the provision of on scene emergency medical care for the participants of events and public in attendance.

For-profit includes any function whether special event or race from which any income is derived for any purpose other than for charitable purposes, by any person, other than a person qualifying as a 501(c)(3) nonprofit entity under the Internal Revenue Code or such Internal Revenue Code section subsequently enacted or regulation passed pursuant thereto which shall regulate such nonprofit organizations or entities.

Nonprofit includes any function whether a demonstration, special event or race from which no income is derived for personal benefit for the person organizing, holding or promoting the event, or which income is used for charitable or public purposes.

Other property means any real property not city-owned property located within the city limits which is not a private residence, or owned and/or operated by the state or the federal government.

Race means an organized event whether or not a contest of speed or rivalry, including, but not limited to those which use bicycles, motorized and nonmotorized vehicles, or any other means of transportation organized to follow a predetermined course; included within the definition are runs, walks, parades and marches.

Residential zoned district means any area designated as E-1, R-1, R-2, R-3, R-4, R-4A, R-5, R-6, R-7 or R-8 zoning according to the city zoning district map.

Sound amplification system means any radio, tape player, compact disc player, loudspeaker or other electronic device used for the amplification of sound.

Special event means any parade, festival, display or occurrence other than a demonstration or run, held for the purpose of amusement, education or entertainment of the participants or the public or to aid an organization or commemorate an event or occasion; but specifically precluding those events held for the primary purpose of promoting a commercial product which is prohibited hereunder.

(Code 1980, § 12-5-21; Ord. No. 86-278, 12-30-1986; Ord. No. 89-103, § 1, 6-6-1989; Ord. No. 95-23, 1-24-1995; Ord. No. 04-99, § 1(12-5-21), 9-14-2004)

Sec. 12-5-22. Permit required.

(a) It shall be unlawful for any person to organize or hold, assist in organizing or holding or to take part or participate in any nonprofit or charitable demonstration, special event or race on:

(1) The streets or other public ways of the city used for vehicular traffic unless a permit therefor has been obtained from the city traffic engineer or his or her designated representative;

(2) City-owned property as defined herein, unless a permit therefor has been obtained from the city traffic engineer or the director of park and recreation or designated representative, as applicable;

(3) Any other property, not owned by the state or federal government, within the city limits unless a permit therefor has been obtained from the city traffic engineer or his or her designated representative; or

(4) Public sidewalks or other public ways unless a permit therefor has been obtained from the city traffic engineer or his or her designated representative; provided, however, that no permit shall be required for a demonstration, as defined herein, wherein there is not more than one demonstrator per ten linear feet in front of any single business or public facility at any one time and that such demonstration shall be spaced in such a manner so as not to obstruct the ingress and egress to such business or facility, not to obstruct passage along such sidewalk, or congregate in numbers greater than three, around any persons entering or leaving, such business or facility.

Nothing in this section shall be construed as allowing physical or verbal harassment of any persons or violation of any municipal, state or federal ordinance, statute or law. A maximum of six persons shall be allowed to demonstrate in front of any single business or public facility regardless of the linear feet frontage.

(b) It shall be unlawful for any person for-profit or from which income is anticipated to be derived or from which income or a thing of value is a purpose;

(1) To organize or hold, assist in organizing or holding, or to take part or participate in any special event held for the purposes of amusement, education or entertainment of the participants or the public or to publicize; or,

(2) To aid in organization of or to commemorate an event or occasion held for the purposes of amusement, education or entertainment of the participants or the public or to aid publicizing same; and

(3) To which tickets, donations, or invitations are issued and for which an admission, donation, or collection of any item of value is required of any of the participants or members of the public as a condition of participation or, attendance without a permit for such special event or race having been obtained as provided hereunder.

(c) It shall be unlawful to use any street, public way or other public property for such nonprofit or charitable or for-profit demonstration, special event or race other than those streets, public ways or public property, city-owned property or other property set out in the permit; and it shall be unlawful to conduct such nonprofit or charitable demonstration, special event or race other than on the date and during the times as set forth in the permit.

(d) No permit shall be required for gatherings of less than 5,000 persons at a private residence or other property.

(e) It shall be unlawful to conduct any nonprofit or charitable or for-profit demonstration, special event or race at which any sound amplification system is used without a permit for such demonstration, special event or race having been obtained as provided hereunder.
(Code 1980, § 12-5-22; Ord. No. 86-278, 12-30-1986; Ord. No. 89-103, § 1, 6-6-1989; Ord. No. 95-23, 1-24-1995; Ord. No. 04-99, § 1(12-5-22), 9-14-2004)

Sec. 12-5-23. Application for permit for nonprofit or charitable demonstration, special event or race.

(a) To secure a permit required by this article, for nonprofit or charitable demonstrations, special events or races conducted on streets or other public ways, written application shall be made to the city traffic engineer on forms provided by the traffic engineering department, setting forth:

(1) The name, address and telephone number of the responsible person or entity seeking to conduct such nonprofit or charitable demonstration, special event or race;

(2) The date and time when it is to be conducted;

(3) The probable number of persons, vehicles and animals which will be involved;

(4) The purpose for which it is to be held;

(5) The streets or other public ways or areas over, along or in which it is desired to be held;

(6) Whether any sound amplification system will be used during the event and the manner and the purpose of the amplification; and

(7) The name, address and telephone number of the individual responsible in the case that a policing, fire safety, EMS or other emergency should arise.

(b) To secure a permit required by this article for nonprofit or charitable demonstrations, special events or races conducted on city-owned property or other property located within the city limits, written application shall be made to the city traffic engineer on forms provided by the traffic engineering department setting forth:

(1) The name, address and telephone number of the responsible person or entity seeking to conduct such nonprofit or charitable demonstration, special event or race in the case a policing, fire safety, EMS or other emergency arises;

(2) The date and time when it is to be conducted;

(3) The probable number of persons involved;

(4) The purpose for which it is to be held;

(5) Whether any sound amplification system will be used during the event and the manner and the purpose of the amplification; and

(6) The name, address and telephone number of the individual responsible in the case that a policing, fire, safety, EMS or other emergency should arise.

For any such event to be held on city-owned property operated, managed or administered by the park and recreation board, application shall be made to the director of the park and recreation board or designated representative.

(c) Each application shall have the written procedures of the applicable department for nonprofit or charitable demonstrations, special events and races attached thereto. The nonprofit or charitable demonstration shall have an emergency plan for policing, fire safety and EMS personnel filed with the application before approval may be granted.

(Code 1980, § 12-5-23; Ord. No. 86-278, 12-30-1986; Ord. No. 95-23, 1-24-1995; Ord. No. 04-99, § 1(12-5-23), 9-14-2004)

Sec. 12-5-23.1. Application for permit for special event or race for-profit.

(a) To secure a permit required by this article for a special event or race for-profit conducted on streets or public ways, city-owned property or other property within the city, a written application shall be made to the city traffic engineer on forms provided by that department, setting forth:

(1) The name, address or entity seeking to conduct such special event or race;

(2) The date and time when it is to be conducted;

(3) The probable number of persons and vehicles which will be involved;

(4) The purpose for which it is to be held;

(5) The streets or other public ways or areas over, along or in which it is desired to be held or which will be otherwise affected by such event;

(6) Whether sound amplification system will be used during the event and the manner and the purpose of the amplification; and

(7) An emergency plan for policing, fire safety and EMS personnel shall also be filed with the application before approval may be granted.

(b) Each application shall have the written procedures of all applicable departments for for-profit special event and races attached thereto.

(Code 1980, § 12-5-23.1; Ord. No. 95-23, 1-24-1995; Ord. No. 04-99, § 1(12-5-23.1), 9-14-2004)

Sec. 12-5-24. Requirements for permit.

For a permit to be granted under this article for nonprofit or charitable demonstrations, special events or races or for-profit special events or races conducted on streets or other public ways, city-owned property or other property the following requirements must be met:

(1) Nonprofit or charitable demonstrations on streets or other public ways:

a. An application must be submitted to the city traffic engineer a minimum of three working days prior to the demonstration.

b. A fee of $25.00, to cover the expenses incident to processing, shall be paid by the person applying for the permit, at the time of the filing of the application.

(2) Nonprofit or charitable special events on streets or other public ways:

a. An application must be submitted to the city traffic engineer a minimum of 15 working days prior to the event;

b. A fee shall be paid at the time of filing the application by the person applying for the permit for conducting the special event or race:

1. If from setup to takedown consists of a total period of eight hours or less, then the cost of $100.00 shall be paid for the permit;

2. If from setup to takedown consists of more than eight hours total duration, then the cost of $25.00 shall be paid for the permit plus the cost of policing, fire safety, and emergency paramedical personnel for the event consistent with the plan for policing, fire safety, and for emergency medical care for the event shall be at their own expense; or

3. Proof that payment of all costs connected with the event have been provided for shall be submitted to the city traffic engineer prior to the issuance of the permit, but not later than ten working days in advance of the date of the special event or race and the plan shall be subject to approval of the chief of police or chief of the fire department and the city traffic engineer, respectively, as provided hereunder, prior to the permit being granted.

(3) For any nonprofit race on streets or other public ways:

a. An application shall be made at least 30 calendar days prior to the event;

b. A person at the time of making application for a permit for such race:

1. Of five miles or less shall pay a fee of $150.00 shall be paid by the person applying for the permit at the time of the filing of the application; or

2. For a permit for such race of over five miles shall pay a fee or $25.00 and shall provide police coverage, fire safety and emergency paramedical coverage for the event consistent with the emergency plans approved hereunder at their expense; and

c. The plan for policing, fire safety, and emergency medical care shall be submitted to the city traffic engineer at least ten working days in advance of the date of the race evidencing approval by the chief of police and fire chief prior to the permit being granted, and subject to the provisions of section 12-5-30 when applicable.

d. Proof that payment of all costs connected with the event have been provided for shall be submitted to the city traffic engineer prior to the issuance of the permit, but not later than ten working days in advance of the date or the special event or race

and the plan shall be subject to approval of the chief of police, fire chief and the city traffic engineer, respectively, as provided hereunder, prior to the permit being granted.

(4) Nonprofit demonstration or special event on city-owned property:

a. An application must be submitted to the city traffic engineer, or the director of the park and recreation board when applicable, a minimum of ten working days prior to the event.

b. A fee shall be paid by the person applying for the permit at the time of the application as follows:

1. $25.00 for a nonprofit demonstration;

2. $100.00 for a nonprofit special event.

c. The plan for policing, fire safety, and emergency medical care shall be submitted to the city traffic engineer at least ten working days in advance of the date of the race evidencing approval by the chief of police and fire chief prior to the permit being granted, and subject to the provisions of section 12-5-30, when applicable.

(5) Nonprofit demonstration or special event on other property for events with attendance of 5,000 or more:

a. An application must be made to the city traffic engineer a minimum of ten working days prior to the event.

b. A plan for policing, fire safety and emergency medical care shall be submitted to the city traffic engineer ten working days in advance of the date of the event evidencing approval by the chief of police and fire chief prior to the permit being granted, and subject to the provisions of section 12-5-30, when applicable.

(6) For-profit special events or race on street or public ways within the city limits:

a. An application for any for-profit special event must be filed with the city traffic engineer at least 15 working days prior to the event; for a race at least 30 calendar days prior to the event.

b. A fee shall be paid by the person applying for the permit at the time of filing of the application:

1. If from setup to takedown will require at least a total period of eight hours or less a fee of $1,500.00; or

2. If from setup to takedown will require at least a total period of greater than eight hours a fee of $1,500,00, for the first eight hours and $750.00 for each eight-hour period thereafter, shall be paid.

c. A copy of the written application evidencing the approval of the emergency plan by the chief of police and the fire chief of the plan for policing, fire safety, and paramedical services for the event shall be provided to the city traffic engineer ten working days in advance of the date of the special event prior to the permit being granted.

d. Proof that payment for policing, fire safety and paramedical personnel for the event consistent with the emergency plan developed for that event has been provided for.

(7) For-profit special event on other property.

a. An application for any for-profit special event must be filed with the city traffic engineer at least 15 working days prior to the event;

b. A copy of the written application evidencing the approval of the emergency plan by the chief of police and the fire chief of the plan for policing, fire safety, and paramedical services

for the event shall be provided to the city traffic engineer ten working days in advance of the date of the special event prior to the permit being granted.

c. Proof that payment for policing, fire safety and paramedical personnel for the event consistent with the emergency plan developed for that event has been provided for.

(8) The mayor may grant in-kind services upon due consideration of the cost of police, fire safety and paramedical personnel and other services related to any special event, race, parade or demonstration as well as the benefit to the community of such event provided for in subsections (2) through (6) of this section, when the mayor deems it to be in the best interest of the community after a permit has been granted hereunder.

(9) For any event involving the use of a sound amplification system.

a. A fee of $25.00 shall be paid at the time of filing the application by the person applying for the permit for conducting the demonstration, special event or race at which any sound amplification system is to be used.

b. The use of any sound amplification system for any event permitted pursuant to this article and occurring within 50 feet of a residential zoned district shall be allowed only between the hours of 8:00 a.m. and 10:00 p.m.

(Code 1980, § 12-5-24; Ord. No. 86-278, 12-30-1986; Ord. No. 95-23, 1-24-1995; Ord. No. 98-140, § I, 8-18-1998; Ord. No. 00-145, § I, 9-5-2000; Ord. No. 04-99, § 1(12-5-24), 9-14-2004)

Sec. 12-5-25. Grant of permit; denial or modification of permit; appeal.

(a) *Granting of permit for nonprofit or charitable demonstration, special event or race.*

(1) Upon the filing of an application as provided in this article and the payment of fees required and in accordance with the written procedures of the traffic engineering department, the city traffic engineer or designated representative shall grant a written permit for functions conducted on the streets and other public ways and may, in consideration of safety, health, and welfare of the general public in the use of the streets and other public ways, prescribe the streets or other public ways which may be used for such event, as provided hereinbelow.

(2) Upon the filing of an application and the payment of fees required as provided in this article and in accordance with the written procedures of the city traffic engineer or his or her designee, for functions conducted on city-owned property or other property located within the city limits or the director of park and recreation board for city-owned property operated, managed and administered by the park and recreation board, the said director or designated representative, as applicable, shall grant a written permit in accordance with the written procedures of that department or board in consideration for the safety, health and welfare of the general public in the use of city-owned property and may prescribe the street, other public way or city-owned property which may be used for such event, as provided hereinbelow.

(b) *Granting of permit for for-profit special event or race.* Upon the filing of the written procedures of the traffic engineering department, or director of park and recreation when applicable, or designated representative, shall grant a written permit for a for-profit special event or race or functions conducted upon street or public ways, on city-owned property or other property located within the city limits, and may inconsideration of safety, health, and welfare of the general public in the use of street, public ways or city-owned property therein, and prescribe the street, other public ways, city-owned property or other property which may be used for such event, as provided hereinbelow.

(c) *Denial or modification.*

(1) During times of great public crisis, where, because of natural or other disaster, epidemic disease, rioting, violent civil disorder, or threatened imminent lawless action constituting a substantial and present danger to the lives, safety, health and welfare of the citizens of the city, public safety officials of the city cannot maintain public order or afford adequate protection for the lives, safety, health, welfare or property of the general public in or near the area in which any demonstration, special event or race is proposed, or within the city in general, the traffic engineer, the director of park and recreation, police chief, or the fire chief may deny such permit, or may modify, alter or restrict the route of the demonstration, special event or race in a manner which will enable public safety officials to adequately protect the lives, safety, health, welfare or property of the general public. In no instance shall a permit be denied based solely on the subject matter of the demonstration.

(2) The city traffic engineer, the director of park and recreation board when applicable, or designated representative may deny a permit, or modify, alter or restrict the location, route or time of the demonstration, special event or race, if, prior to making application, a permit has previously been applied for and granted for another demonstration, special event or race at substantially the same time and/or location, or if the number or size of scheduled events would cause the city to be, by reason thereof, without sufficient police manpower, fire safety, or paramedical personnel to adequately protect the lives, safety, health, welfare or property of the general public.

(3) Any denial or relocation, and the reasons therefor, shall be issued in writing to the applicant at the earlier of the following:

a. Ten days after the application is submitted; or

b. 48 hours prior to the time requested for a demonstration, seven days prior to the time requested for a special event, or 25 days prior to the time requested for a race.

(d) *Appeal.* If the person organizing or holding a demonstration, special event or race shall be denied a permit for any of the reasons cited in this article, or the written procedures of the traffic engineering department or the park and recreation board, the person or entity shall have an appeal to the presiding judge of municipal court, or in his or her absence, another municipal judge provided such appeal as follows:

(1) In an appeal of a nonprofit demonstration:

a. Notice of appeal must be in writing;

b. Must be filed with the municipal court clerk for the city at least 36 hours prior to the time requested for a nonprofit demonstration.

(2) In an appeal of a nonprofit special event or race:

a. Notice of appeal must be in writing;

b. Must be filed with the municipal court clerk for the city at least five working days prior to the time requested for the special event, or 20 working days prior to the time requested for a race.

(3) In an appeal of a for-profit special event or race:

a. Notice must be in writing;

b. Must be filed with the municipal court clerk for the city at least five days working prior to the time requested for the special event, or 20 working days prior to the time requested for a race.

(4) On receiving the appeal the municipal judge shall within 24 hours hold a hearing on the appeal and render an opinion.

(Code 1980, § 12-5-25; Ord. No. 86-278, 12-30-1986; Ord. No. 89-103, § 1, 6-6-1989; Ord. No. 95-23, 1-24-1995; Ord. No. 04-99, § 1(12-5-25), 9-14-2004)

Sec. 12-5-26. Funeral procession.

The provisions of this article shall not be construed to apply to vehicular funeral processions.
(Code 1980, § 12-5-26; Ord. No. 86-278, 12-30-1986; Ord. No. 89-103, § 1, 6-6-1989)

Sec. 12-5-27. Waiver of liability.

(a) The person organizing or holding a race shall obtain a written waiver of liability from each participant releasing the city, its agents, servants and employees, from any liability arising out of said participation. This release may be contained in a general release on the application form for the race.

(b) The person organizing or holding a special event or race shall, prior to the granting of the permit, provide to the city a hold-harmless agreement.

(c) The person organizing or holding any special event or race for-profit must obtain and file with the application a certificate of insurance in an amount sufficient to insure against any liability for physical injury or property damage arising from or in association with the special event or race and listing the city as a named insured.
(Code 1980, § 12-5-27; Ord. No. 86-278, 12-30-1986; Ord. No. 95-23, 1-24-1995)

Sec. 12-5-28. Demonstrations at the city jail.

(a) It shall be unlawful for more than ten persons to participate in any demonstration within the curtilage of the city jail as defined in section 9-2-7. The curtilage shall include the area surrounding the jail, up to and abutting those public sidewalks surrounding the jail, and shall include those parking areas, sidewalks and other public spaces established to serve the jail facilities.

(b) The chief of police, if he or she reasonably believes a threat to the security of the city jail is present, may order any such demonstrators to move or disperse; and it shall be unlawful to refuse to obey such order.
(Code 1980, § 12-5-28; Ord. No. 89-103, § 1, 6-6-1989)

Sec. 12-5-29. Residential picketing prohibited.

No person, firm or corporation shall engage in picketing or any similar or related activity before or about the residence or dwelling of any individual in the city or its police jurisdiction.
(Code 1980, § 12-5-29; Ord. No. 89-192, 8-1-1989)

Sec. 12-5-30. Minimum policing and paramedical personnel for attendance of 15,000 or more persons.

(a) The application must include a plan for policing, paramedical and fire safety plan for a special event or race on the street or public ways of the city, upon city-owned property or other property within the city limits in which the anticipated attendance or participation by the public and the capacity of the facility to be used or area set apart for the special event or race exceeds 15,000 persons which provides for on-site EMS personnel. The fire and rescue service for the city shall be the sole source for providing on-site EMS personnel at any special event or race under this section. The promoter shall pay the cost for additional policing, fire safety and/or paramedical personnel which will be provided by the city pursuant to the current fee schedule and/or the guidelines for mass gatherings which shall be posted in the office of the city clerk and in each appropriate department.

(b) Where the fire chief determines that the gathering of persons in places, other than assembly occupancy and educational occupancy, at special events or races within the city limits presents unusual and significant impact on public safety or fire safety, the fire chief shall have the authority to require on-site EMS personnel. All costs for any services and supplies provided under this section shall be paid to the city, except as otherwise provided in section 12-5-25.
(Code 1980, § 12-5-30; Ord. No. 95-23, 1-24-1995)

ARTICLE C. STATE OF EMERGENCY

Sec. 12-5-31. State of emergency; curfew authorized.

(a) A state of emergency shall be deemed to exist whenever, during times of great public crisis caused by disaster, rioting, civil disorder, catastrophe, or similar public emergency, for any reason, municipal public safety authorities are unable to maintain public order or afford adequate protection for lives and property.

(b) In the event of an existing or threatened state of emergency endangering the lives, safety, health and welfare of the people within the city, or threatening damage to or destruction of property, the mayor of the city is hereby authorized and empowered to issue public proclamation declaring to all persons the existence of such a state of emergency, and, in order to more effectively protect the lives and property of people within the city, to place in effect any or all of the restrictions hereinafter authorized.

(c) During the existence of a proclaimed state of emergency, the mayor may impose by proclamation any or all of the following restrictions:

(1) Prohibit or regulate the possession off one's own premises of explosives, firearms, ammunition, or dangerous weapons of any kind, and prohibit the purchase, sale, transfer or other disposition thereof;

(2) Prohibit or regulate the buying or selling of beer, wine, or intoxicating beverages of any kind, and their possession or consumption off one's own premises;

(3) Prohibit or regulate any demonstration, parade, march, vigil, or participation therein from taking place on any of the public ways or upon any public property;

(4) Prohibit or regulate the sale of gasoline, kerosene, naphtha, or any other explosives or inflammable fluids or substances;

(5) Prohibit or regulate travel upon any public street, alley, or roadway or upon any other public property, except by those in search of medical assistance, food, or other commodity or service necessary to sustain the well-being of themselves or their families or some member thereof;

(6) Prohibit or regulate the participation in or carrying on of any business activity, and prohibit or regulate the keeping open of places of business, places of entertainment, and any other places of public assembly.

(d) The mayor is hereby authorized and empowered to limit by the proclamation the application of all or any part of such restrictions to any area specifically designated or described within the corporate limits of the city and to specific hours of the day or night; and to exempt from all or any part of such restrictions law enforcement officers, firefighters and other public employees; doctors, nurses, employees of hospitals and other medical facilities; on-duty military personnel whether state or federal; on-duty employees of public utilities, public transportation companies, and newspaper, magazine, radio broadcasting, and television broadcasting corporations; and such other classes of persons as may be essential to the preservation of public order and immediately necessary to serve the safety, health, and welfare needs of the citizens of the city.

(e) Any proclamation may be extended, altered, or repealed in any particular during the continued or threatened existence of a state of emergency by the issuance of a subsequent proclamation.

(f) The mayor shall proclaim the end of such state of emergency or all or any part of the restrictions imposed as soon as circumstances warrant or when directed to do so by the council of the city.

(g) During the existence of a proclaimed state of emergency, it shall be unlawful for any person to violate any provisions of any restriction imposed by any proclamation authorized by this section. (Code 1964, art. III, ch. 14; Code 1980, § 12-5-31; Ord. No. 79-135, 8-21-1979)

ARTICLE D. LARGE GROUP CHARITABLE FOOD SERVICES

Sec. 12-5-32. Purpose.

The general purpose of this article is to authorize the use of the city's public rights-of-way and city-owned property for charitable food service events by creating a permitting process that includes reasonable guidelines and regulations that promote the health, safety, comfort, convenience, prosperity, and general welfare of the citizens of Birmingham; and to regulate the flow of pedestrian and vehicular traffic; and to encourage the safe, convenient and sanitary use of the city's public rights-of-way and city-owned property.
(Ord. No. 14-113, § 1, 8-8-2014)

Sec. 12-5-33. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

"Applicant" means any person or business that applies for a permit or renews a permit under the provisions of this article.

"Charitable food services" means providing food without charge, payment or other compensation to benefit large groups of people at an outdoor location not owned, leased or controlled by the individual or organization providing the food. Charitable food services shall not be conducted when an admission, donation or collection of any item of value is required of any of the participants or members of the public as a condition of participation or attendance.

"Charitable food site" is an area designated by the Traffic Engineer for the specific operation of charitable food service events within the public rights-of-way or city-owned property.

"Charitable food service event" means each instance in which charitable food services are provided by the permittee within the public rights-of-way or on city-owned property that are intended to attract, attracting, or likely to attract 25 or more people, including distributors and servers.

"City-owned property" means property owned by the city, including any property which is operated, managed or administered by the park and recreation board of the city, (not limited to, the following) public buildings, developed parking decks, plazas, piazzas and parking areas under bridges and overpasses.

"Health department" shall mean a county health department. Such term shall be construed to include the Jefferson County Health Department and any officer or agent of a department authorized to act for and on behalf of the department.

"Permit or charitable food service permit" means a written authorization issued by the traffic engineer to conduct a charitable food service event within the public rights-of-way of the City of Birmingham or city-owned property.

"Permittee" a person has been granted a permit by the traffic engineer to conduct charitable food service events within the rights-of-way of the city or on city-owned property.

"Person" means any natural person, firm, partnership, association, charitable organization or corporation. Whenever the word "person" is used in any section in this article prescribing a penalty or fine as applied to a partnership or association, the word shall include the partners or members thereof; such word as applied to corporations shall include the officers, agents, or employees thereof who are responsible for any violation of such section.
(Ord. No. 14-113, § 1, 8-8-2014)

Sec. 12-5-34. Use of the rights-of-way or city-owned property without a permit is prohibited.

The use of the City rights-of-way or city-owned property to conduct a charitable food service event without a permit is prohibited, except for activities of a volunteer emergency first responders or governmental agency, including, but not limited to the Red Cross, FEMA, and similar organizations within the scope of its governmental authority, or by declarations of a

state of emergency by the Governor or Mayor, unless specifically permitted to do so by a permit or approval issued pursuant to this Chapter.

1) It shall be unlawful for any person to hold any charitable food service event within the public rights-of-way or on city-owned property without a permit issued by the City's Traffic Engineer or his/her designee.

2) Written approval by the Director of the Park and Recreation Board or his/her designated representative shall be required for any charitable food service event to be held on city-owned property operated, managed or administered by the park and recreation board.

(3) Unless another location is approved by the traffic engineer, charitable food service events shall be allowed only at the following locations:

Weekdays and Weekends: Open lot on NW corner of 16th Street N and 7th Avenue N (700 16th Street N).

Weekdays only: North side of Park Place, first parking space east of 20th Street N (Parking Meter #38).
North side of Park Place, first parking space west of 20th Street N (Parking Meter #37).

Weekends only: Municipal Court Parking Lot: NE corner of 17th Street N and Rev. Abraham Woods Jr. Blvd. N (801 17th Street N).
City Hall Parking Lot: SW corner of 19th Street N and Rev. Abraham Woods Jr. Blvd. N (718 19th Street N).

(Ord. No. 14-113, § 1, 8-8-2014)

Sec. 12-5-35. Term of permit.

A large group feeding permit shall be valid for six months from the date of issuance.
(Ord. No. 14-113, § 1, 8-8-2014)

Sec. 12-5-36. Application for large group feeding for charitable food services.

(1) To secure a permit, written application shall be made to the city traffic engineer on forms provided by the traffic engineering department, setting forth:

(a) The name, address and telephone number of the person seeking to conduct such or charitable food service event and of the primary contact person;

(b) The name, address and telephone number of the individual responsible in case a policing, fire safety, E.M.S., or other emergency should arise.

(2) A signed statement that the applicant shall hold harmless the city and its officers and employees, and shall indemnify the city, its officers, employees and agents for any claims for damage to property or injury to persons which may be occasioned by any activity carried on under the terms of the permit.

(3) An application must be submitted to the city traffic engineer a minimum of seven days prior to the event.
(Ord. No. 14-113, § 1, 8-8-2014)

Sec. 12-5-37. Appeal procedure.

Any applicant shall have the right to appeal the denial, revocation or suspension of a permit by appealing the decision to the city council. The appeal to city council shall be taken by the applicant within five days after receipt of the notice of denial by filing a written notice with the city clerk with a copy to the traffic engineer. The city council shall consider the appeal at the next regularly scheduled meeting following receipt by the city clerk of the notice of appeal.
(Ord. No. 14-113, § 1, 8-8-2014)

Sec. 12-5-38. Reserving a charitable food site.

A permit number shall be required to reserve a charitable food site online at informationbirmingham.gov. A maximum of two permittees shall be authorized to conduct charitable food service events, per authorized location, during

the available time slots. The permit shall be subject to additional imitations on hours and days of operation that the city determines are appropriate to prevent conflict with special events. The traffic engineer may designate alternate locations to prevent conflicts with special events. (Ord. No. 14-113, § 1, 8-8-2014)

Sec. 12-5-39. General rules and regulations.

(1) No persons conducting a charitable food service event on private property shall be permitted to operate in the following manner:

(a) The charitable food service event may not obstruct the use of any street intersection or pedestrian crosswalk.

(b) The charitable food service event shall not impede or obstruct the ingress or egress to the driveway of adjoining owner's.

(c) The charitable food service event shall not obstruct pedestrian traffic on the public rights-of-way.

(d) The charitable food service event shall not impede or obstruct the ingress or egress of any building on adjoining property.

(e) Amplified sound or sound equipment must comply with the City of Birmingham Noise Ordinance (§ 11-8-21 et seq. of the General Code of the City of Birmingham, 1980, as now or hereafter amended.)

(f) Any and all signage must be contained on the private property. At no time shall any signage be placed within the public rights-of-way.

(2) The permit shall be subject to additional limitations on hours and days of operation that the city determines are appropriate to prevent conflict with special events. Examples of special events include, but are not limited to, construction, parades, sponsored marathons and blocked streets to allow licensed events.

(3) No charitable food service event shall cause congestion that impedes pedestrian or vehicle traffic or interfere with the city or public's use of any public rights-of-ways. This shall include but is not limited to activity of customer queues, table, chairs and other accessories, or signage that in any way impedes or impairs access to adjacent parking, pedestrian or vehicle traffic.

(4) No permittee shall provide charitable food service to occupants of vehicles in the public rights-of-way.

(5) Charitable food service event equipment shall not be left unattended or stored at any time on the charitable food site when a charitable food service event is not taking place.

(6) Any power required for the permittee located on a public right-of-way shall be self-contained. The permittee shall not draw its power from utilities location in the public rights-of-way. No power cable or equipment shall be extended at grade or overhead across any public street, alley or sidewalk.

(7) The permittee shall comply with all applicable laws including but not limited to the Americans with Disabilities Act.

(8) Any charitable food service being provided from a mobile food vehicle in the right-of-way shall only occur from the side of a food vehicle that is parked facing the curb.

(9) No permittee shall have a drive-through service within the right-of-way.

(10) A permittee operating at any unauthorized location or beyond the hours for which the operation has been permitted shall be deemed operating without a permit in violation of this section and may be subject to enforcement.

(11) The city council shall, in the best interest of the city, have the authority to reduce the size and/or location of a charitable food site at a later date, when doing so is necessary to protect the public health and safety.

(12) The permittee shall not dump or allow the dumping of grease or other food service equipment on any street, sidewalk, right-of-way, streetscape or landscape area.

(13) Permittee shall cooperate with the traffic engineer in the scheduling and siting of food service events, with the goal of maximizing the benefit of such charitable food services to the needy.

(14) It is unlawful to fail to produce and display the charitable food service permit during or after a charitable food service event, while still on site, to a law enforcement officer upon demand. It is an affirmative defense to this violation if the offender can later produce, to the city prosecutor or the court, a charitable food service permit issued to the offender, which was valid at the time of the event.

(15) Permittee agrees to provide adequate personnel, trash receptacles, and trash containment and removal measures to contain all trash, refuse, and litter on the charitable food site during a charitable food service event. Permittee shall be responsible for cleaning of the charitable service site and all areas affected by the assembly at the charitable service event, including all parks, closed streets, sidewalks, rights-of-way, hardscape and landscape areas, and to remove all trash, refuse, litter and unused foods from the charitable food site at the conclusion of the food service event within a reasonable time not to exceed three hours of the end of the event, unless such time period is modified by the traffic engineer.

(Ord. No. 14-113, § 1, 8-8-2014)

Sec. 12-5-40. Enforcement.

(1) Enforcement. The provisions of this article or any rules and regulations shall be enforceable by the Birmingham Police Department and the traffic engineering department.

(2) Fine for violation. Any permittee in violation of any provision of this article shall be subject to a fine of up to $500.00 per violation. Each violation shall constitute a separate and distinct offense. Each day shall be considered a separate offense.

(3) Any permit holder charged with a violation of any section of this article, may be issued a summons or citation.

(Ord. No. 14-113, § 1, 8-8-2014)

Sec. 12-5-41. Revocation of permit.

(1) The city council may revoke a charitable food service permit granted to any person found in violation of any provisions of this article.

(2) The city council shall set a time for a public hearing on the matter of the revocation of any permit issued pursuant to this article, and notice of the date and time of such hearing will be given to the permittee in writing by the city clerk not less than seven days prior to such hearing. Such notice shall state the reason for the hearing and shall advise the permittee that he may appear in person and/or by attorney and that he may present his position, arguments and contentions in writing and/or orally, and that he may present evidence in his behalf and examine witnesses appearing for and against him. The city council shall receive any relevant evidence and hear any relevant testimony on the matter of revocation prior to making its decision on such matter.

(3) The permittee or any of its principals fails to satisfy any qualification or requirement imposed by this article, or other local, state or federal laws or regulations that pertain to the particular permit; or

(4) The permittee or any of its principals has been convicted of a crime as a result of having perpetrated deceptive practices upon the public within the last ten years; or

(5) The application contains material omissions or false, fraudulent, or deceptive statements; or

(6) The charitable food service event is operated in such a manner as constituting a public nuisance per the Birmingham City Code or state statutes; or

(7) The permittee or his agents or employees interfere with an inspection of the permittee by a health department inspector.

The provisions of this article are not exclusive. This article shall not preclude the enforcement of any other provisions of local, state and federal laws and regulation, including those imposed by a county health department to protect against health hazards related to charitable food service events.
(Ord. No. 14-113, § 1, 8-8-2014)

CHAPTER 6. DETECTIVE AGENCIES*

Sec. 12-6-1. Business license required.

No person shall engage in the business of a private detective, detective agency, investigation

*__State law reference—__State license tax imposed on detective agencies, Code of Ala. 1975, § 40-12-93.

bureau or other similar enterprise without having obtained a license therefor pursuant to the provisions of the license code of the city, except that any person who is employed as a private detective by any person, firm or corporation and who is subject to the occupation tax of the city as such employee shall not be required to obtain a business license.
(Code 1964, § 15-1; Code 1980, § 12-6-1; Ord. No. 82-62, 3-30-1982; Ord. No. 83-89, 6-7-1983)

Sec. 12-6-2. Permit—Required.

No person shall be engaged in business as a private detective, including any person employed as a private detective by any person, firm or corporation, without first having obtained a permit to do so from the city.
(Code 1964, § 15-2; Code 1980, § 12-6-2; Ord. No. 82-62, 3-30-1982; Ord. No. 83-90, 6-7-1983; Ord. No. 88-88, § I, 6-21-1988)

Sec. 12-6-3. Same—Application.

(a) Any person desiring a permit required by this chapter shall file an application therefor with the chief of police on a form approved by the chief of police. Such application shall include the following information:

(1) The complete name and vital statistics of the applicant;

(2) A complete outline of the applicant's education, giving all schools and colleges attended and dates thereof;

(3) A brief personal history of the applicant, together with a detailed statement for the preceding five years showing each business activity and employment during such period;

(4) A complete list of arrests, including traffic offenses, showing the date, place and disposition of each such charge lodged against the applicant; and

(5) Such additional information as may be reasonably required to substantiate or verify the data called for in subsections (a)(1) through (4) of this section.

(b) An application for a permit under this chapter shall be accompanied by the affidavits of three freeholders, citizens of the city, each of whom shall have known the applicant for a period of at least two years, testifying to the integrity, sobriety and good moral character of the applicant.

(c) An application for a permit under this chapter shall be accompanied by a set of fingerprints of the applicant.
(Code 1964, §§ 15-3—15-5; Code 1980, § 12-6-3; Ord. No. 82-62, 3-30-1982)

Sec. 12-6-4. Application fee.

No application for a permit under this chapter shall be considered until a fee of $100.00 shall have been paid to the director of finance to help defray the cost of processing and investigating the application. Such fee shall in no instance be refunded.
(Code 1963, § 5; Code 1980, § 12-6-4; Ord. No. 82-62, 3-30-1982; Ord. No. 83-91, 6-7-1983)

Sec. 12-6-5. Investigation of application; public hearing before city council; grant or denial of permit.

(a) The chief of police or his or her designee shall investigate all applications for permits and shall, based upon the chief's findings, approve or disapprove the granting of the permit within 28 days of the filing of the application.

(b) The chief of police or his or her designee may disapprove the application if the applicant or any officer, agent or employee of the applicant has violated or failed to comply with any provisions of this chapter.

(c) The chief of police or his or her designee may disapprove the application if the applicant or any officer, agent or employee of the applicant:

(1) Knowingly and willfully has given any false information of a material nature in connection with the application for a permit or in connection with the issuance or denial of such permit.

(2) Has been convicted of violating any federal or state law or municipal ordinance which reasonably relates to the appli-

cant's character, fitness and business responsibility for engaging in the business of a private detective, detective agency, investigation bureau or other similar enterprise in a manner consistent with the public safety.

The chief of police or his or her designee shall, in regard to any such conviction, consider the nature and seriousness of the offense; the circumstances surrounding the offense; the number of such offenses; the amount of time that has elapsed since the offense was committed; the age of the applicant at the time of the offense; and any evidence of rehabilitation.

(d) If consideration of all evidence relevant to the application results in approval, the permit shall be issued upon the expiration of a time period of 28 days from the date of approval unless a written letter of appeal of such approval has been filed with the city clerk by anyone having an interest in the application. When consideration of all evidence relevant to the application results in disapproval, the permit shall be denied upon the expiration of a time period of 28 days from the date of disapproval, unless a written letter of appeal of such disapproval has been filed with the city clerk by anyone having an interest in the application.

(e) Upon appeal of the police chief's or his or her designee's decision pursuant to the provisions of this chapter, the city clerk shall set the matter down for a hearing at a regular meeting of the council within 28 days of the filing of the letter of appeal and promptly forward written notification to the council, the applicant and any party who filed a written letter of appeal of the time, date and place of the hearing. Upon the time and date of the hearing, or at any continuance thereof, the council shall, after considering any relevant evidence offered by any person concerned, act to grant or deny the permit.

(f) All private detective permits shall be valid for a period of two years from the date of issuance. All such permits must be renewed by filing an application for renewal on forms approved by the chief of police, and all renewed permits shall be valid for a period of two years. All of the provisions of this chapter pertaining to issuance of private detective permits shall be applicable to the renewal of such permits, including the payment by the applicant of a nonrefundable application fee of $100.00.

(Code 1964, §§ 15-7, 15-8; Code 1980, § 12-6-5; Ord. No. 82-62, 3-30-1982; Ord. No. 83-92, 6-7-1983; Ord. No. 86-222, 10-7-1986; Ord. No. 88-89, § I, 6-21-1988; Ord. No. 94-244, § 1, 11-22-1994)

Sec. 12-6-6. Revocation of permit.

(a) The city council may revoke any permit issued pursuant to the provisions of this chapter for any of the reasons set forth in section 12-6-5.

(b) The city council shall set a time for a public hearing on the matter of the revocation of any permit issued pursuant to this chapter and notice of the date and time of such hearing will be given to the permittee in writing by the city clerk not less than seven days prior to such hearing. Such notice shall state the reason for the hearing and shall advise the permittee that he or she may appear in person and/or by attorney and that he or she may present his or her position, arguments and contentions in writing and/or orally and that he or she may present evidence in his or her behalf and examine witnesses appearing for and against him or her. The city council shall receive any relevant evidence and hear any relevant testimony on the matter of revocation prior to making its decision on such matter.

(Code 1980, § 12-6-6; Ord. No. 82-62, 3-30-1983)

Sec. 12-6-7. Misrepresentations, etc., in applications.

No person, whether granted a permit under this chapter or not, shall misrepresent the capacity under which he or she acts or make any false or untrue statement of fact in his or her application for a permit.

(Code 1964, § 15-9; Code 1980, § 12-6-7; Ord. No. 82-62, 3-30-1982)

Sec. 12-6-8. Bond.

Each person granted a permit under this chapter shall file and maintain with the city clerk an indemnity bond in the amount of $10,000.00, executed by such person, as principal, and by a surety company authorized to do business in the

state, as surety, payable to the city, and stipulating that any person who is injured by any wrongful act committed by such principal, arising out of his or her conduct of the business for which a permit is required, shall have a right of direct action against the principal or surety or both.
(Code 1980, § 12-6-8; Ord. No. 82-62, 3-30-1982)

CHAPTER 7. EMPLOYMENT AGENCIES*

Sec. 12-7-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Private employment agency means a person engaged in the business of procuring or assisting in procuring employment for persons for compensation or reward.
(Code 1964, § 17-1; Code 1980, § 12-7-1)

Sec. 12-7-2. License—Required.

No person shall operate a private employment agency without first having obtained a license to do so, as provided in this chapter and in the license code of the city, set forth in title 13, chapter 1.
(Code 1964, § 17-2; Code 1980, § 12-7-2)

Sec. 12-7-3. Same—Moral character of applicants.

The director of finance shall not issue a license to any person to operate a private employment agency unless the director of finance finds that the applicant, if an individual, possesses good moral character; if a partnership, that all the members of the partnership possess good moral character, and if a corporation, that the managing officers thereof possess good moral character. It shall be the duty of any such applicant to furnish such evidence of good moral character as the director of finance may reasonably require.
(Code 1964, § 17-3; Code 1980, § 12-7-3)

*__State law reference__—State licensing requirements, Code of Ala. 1975, § 34-10-1 et seq.

Sec. 12-7-4. Same—Financial interests of applicants; contents of application; person becoming partner, etc., after filing of application.

Each applicant for a license to operate a private employment agency shall annually file with the director of finance a written statement showing whether or not such applicant, any member of an applying partnership or any officer of an applying corporation is financially interested in any other business of like nature, and if so, specifying such interest. Each application shall list every person financially interested in the business to be carried on under the license when issued. If the applicant is a partnership, the application shall contain the names and addresses of each member thereof, and if the applicant is a corporation, the application shall contain the names and addresses of all officers thereof. After filing an application for a license to operate a private employment agency, no person shall permit any person not named in such application to become a partner or an officer of the corporation, if such agency is a corporation, unless the written approval of the director of finance shall first be obtained. Such approval may be denied on any ground for denial of original application.
(Code 1964, § 17-4; Code 1980, § 12-7-4)

Sec. 12-7-5. Same—Revocation.

The council shall have power to revoke the license of any private employment agency whenever in its judgment, after hearing, any such private employment agency shall have been found to have violated any of the provisions of this chapter or of any ordinance which may be hereafter adopted in regulation of private employment agencies.
(Code 1964, § 17-5; Code 1980, § 12-7-5)

Sec. 12-7-6. Inspection of books, records, etc.

The director of finance or his or her authorized deputy shall have free access at all reasonable times to the places of business of private employment agencies, together with the right to inspect the books, records, documents, papers and files of such private employment agencies relating to the conduct and operation of such business.
(Code 1964, § 17-6; Code 1980, § 12-7-6)

Sec. 12-7-7. Schedule of fees; compliance.

Each applicant for a license to operate a private employment agency shall annually file with the application a schedule of fees, charges and commissions proposed to be charged and collected for procuring employment. No other exaction of any kind shall be made and it shall also be unlawful for any licensee to collect any fee, charge or commission in excess of that specified on such schedule. Each licensee shall keep posted in a conspicuous place in each room or office of the licensee a correct copy of such filed schedule printed in not less than 30-point boldface type. No change in such schedule shall be made without first filing written notice thereof with the director of finance.
(Code 1964, § 17-7; Code 1980, § 12-7-7)

Sec. 12-7-8. Memorandum to be given persons seeking employment; acknowledgment of reference.

It shall be the duty of each private employment agency to give to each person seeking employment a written memorandum of the name and address of each employer to whom such person is referred to obtain employment, which memorandum shall be dated and signed by the person giving the memorandum. The person seeking employment shall at the same time, if requested to do so by the person giving the memorandum, acknowledge in writing to the private employment agency that such reference has been made.
(Code 1964, § 17-8; Code 1980, § 12-7-8)

Sec. 12-7-9. Availability of employment.

It shall be unlawful for any private employment agency to refer any person seeking employment to any employer unless such employment agency has on hand an unfilled and uncanceled request from such employer for a person to fill an opening of the kind for which such person seeking employment has applied.
(Code 1964, § 17-9; Code 1980, § 12-7-9)

Sec. 12-7-10. When fee earned.

Subject to the provisions of section 12-7-11, no fee or compensation shall be deemed to be earned by a private employment agency within the meaning of this chapter until such agency has actually secured, or assisted in procuring, bona fide employment for a person seeking employment and the person seeking employment has been permitted by his or her employer to work at least one day in such employment.
(Code 1964, § 17-10; Code 1980, § 12-7-10)

Sec. 12-7-11. Registration charges.

Each private employment agency is authorized to receive and retain a registration charge of not more than $1.00 from each person seeking employment and only one such registration charge shall be required of any such person so seeking employment within any period of 12 months.
(Code 1964, § 17-11; Code 1980, § 12-7-11)

Sec. 12-7-12. Advertising.

It shall be unlawful for any private employment agency to advertise in any manner whatever that there is open or at its disposal any position or place of employment unless there has prior thereto been made known to such agency through some authorized person that there is available such position or place of employment.
(Code 1964, § 17-12; Code 1980, § 12-7-12)

CHAPTER 8. ESCORT SERVICES

Sec. 12-8-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Escort service means a service provided for hire or for a charge or fee, whether on a daily, hourly or other basis, whereby a person over 18 years of age may be furnished or provided social accompaniment, whether such accompaniment is for the purpose of guiding or escorting such person on a trip or tour, for a social date or engagement, for social entertainment or as a social escort or guest.
(Code 1964, § 17A-1; Code 1980, § 12-8-1)

Sec. 12-8-2. Escort license—Required; age qualification.

(a) No person shall hire out or become employed as an escort who is not at least 21 years of age and who shall be licensed as provided herein.

(b) It shall be unlawful for any owner or operator of an escort service licensed under this chapter to permit or allow an employee or other person acting under his or her direction or control to provide any escort services as defined herein who is not licensed under the provisions of this chapter.

(Code 1964, § 17A-2; Code 1980, § 12-8-2)

Sec. 12-8-3. Same—Application; filing; contents; fee.

An application for an escort's license as required by section 12-8-2 shall be filed with the city police department on forms provided by the police department. Such application shall be verified under oath and shall contain the following information concerning the applicant:

(1) Full name;

(2) Current residence, giving street number;

(3) How long resided at current residence;

(4) Place of residence for two years immediately preceding taking up residence at current address;

(5) Age, sex, color and height;

(6) Color of eyes and hair;

(7) Place of birth;

(8) All places of previous employment, if any, for the past three years;

(9) Marital status;

(10) Whether applicant has within five years been convicted of a felony or misdemeanor and the nature of the felony or misdemeanor, together with the date and place of each such conviction;

(11) Whether applicant has previously been licensed elsewhere as an escort and whether any such license has been revoked and for what cause;

(12) The name and address of the employer or operator for whom the applicant expects to be employed as an escort;

(13) At the time of filing such application, the applicant shall furnish or permit the city to produce a full set of applicant's fingerprints;

(14) At the time application is filed, the applicant shall pay to the city the sum of $5.00, which shall not be returnable whether or not the license is issued;

(15) Written verification by a licensed physician, bearing a date not more than 20 days prior to the date of application evidencing that the applicant is free of any contagious, infectious or communicable disease; and

(16) An affidavit from each of three freeholders who are citizens of the city and each of whom shall have known the applicant for a period of at least two years, attesting to the integrity, sobriety and good moral character of the applicant.

(Code 1964, § 17A-3; Code 1980, § 12-8-3)

Sec. 12-8-4. Same—Investigation; issuance of temporary permit; approval; appeal on denial.

(a) The chief of police or his or her designee shall conduct an investigation of each applicant for an escort license and a report of such investigation and a copy of the police record of the applicant, if any, shall be attached to the application.

(b) The chief of police, upon consideration of the application and the supporting information or documentation required to be attached thereto and any information obtained by the investigation, shall approve or deny the application within 15 days after the date of the filing thereof or the chief of police may, when an investigation cannot be completed within 15 days, issue a temporary permit to the applicant to expire 15 days from the date of issuance, whereupon the chief of police shall then approve or deny the application. The chief of police shall approve an application unless he or she shall find from such application, reports,

certificates, affidavits or other supporting information supplied by the applicant that it is in the best interest of the public's safety, health, morals and general welfare that the application be denied. If the application is denied, the applicant may appeal such denial within ten days thereafter in writing, such appeal to be filed with the city clerk. Thereafter, the council shall at a regular or adjourned meeting of the council hear such appeal and any relevant evidence which the applicant shall wish to present, which hearing shall be conducted not later than 21 days from the filing of such appeal with the clerk.
(Code 1964, § 17A-4; Code 1980, § 12-8-4)

Sec. 12-8-5. Same—Issuance; renewal.

Upon approval of an application for an escort license either by the chief of police or the council, the director of finance shall be authorized to issue a license for the current license year to the applicant, which license shall contain the license number, name, address, age, sex, signature and a passport-type photograph of at least two inches by two inches in size made within 90 days of the application and furnished to the chief of police by the applicant or made by the city at the request of the applicant. Any reissue or renewal of such license shall be at the then prevailing rate as prescribed by the city license code or such other ordinance as shall be applicable. Any application for a renewal of a license as required by section 12-8-2, shall be accompanied by the written verification of a licensed physician as required by section 12-8-3(14). An applicant shall also furnish or have made by the city a passport-type photograph as described herein. Upon the issuance of any renewal, the applicant shall surrender the old license or shall provide the city with an affidavit that such license is either lost or destroyed.
(Code 1964, § 17A-5; Code 1980, § 12-8-5)

Sec. 12-8-6. Same—Display; mutilation, etc.

(a) Every employee or escort licensed under the provisions of this chapter, while engaged in any activity licensed as herein required, shall at all times carry upon his or her person the license issued under this chapter and shall exhibit such license to any client or customer upon request or to any police officer of the city or any license or health inspector.

(b) It shall be unlawful for any person to change, alter, deface, tear or mutilate any license issued under this chapter except after the license year for which such license was issued or is otherwise invalidated. The licensee shall provide a suitable holder with transparent glass or celluloid front for holding such license for display.
(Code 1964, § 17A-6; Code 1980, § 12-8-6)

Sec. 12-8-7. Service license—Required.

No escort service shall be opened or made available to members of the public or operated for any other purpose without the owner thereof first having obtained a license therefor from the city.
(Code 1964, § 17A-7; Code 1980, § 12-8-7)

Sec. 12-8-8. Same—Fees.

Every owner, proprietor or operator of an escort service which provides services for a fee, hire or reward shall obtain a license therefor from the city based upon gross receipts as follows:

(1) On annual gross receipts less than $10,000.00, the sum of $100.00 per year.

(2) On annual gross receipts in excess of $10,000.00, the sum of $100.00, plus three percent of all sums in excess of $10,000.00.

(3) In addition to the license payment enumerated in subsections (1) and (2) of this section, there shall be paid annually to the city for each individual escort or employee the sum of $50.00 for each license year or part thereof during which such escort or employee shall be employed to perform licensed services.

(Code 1964, § 17A-8; Code 1980, § 12-8-8)

Sec. 12-8-9. Employees having prior conviction for prostitution.

It shall be a violation of this chapter for any proprietor or operator licensed hereunder to employ any escort or employee who has within the

past 24 months been convicted for prostitution, which conviction is not at the time of such employment pending final adjudication on appeal.
(Code 1964, § 17A-9; Code 1980, § 12-8-9)

Sec. 12-8-10. Records.

(a) It shall be the duty of each proprietor or operator of any escort service licensed under this chapter to keep at his or her place of business a permanently bound book, with pages therein numbered by the manufacturer, in which he or she shall enter or cause to be entered in writing the date, the name or names of each and every person or persons for which service is provided, whether such services are for hire, barter, exchange or gift, and the time such service is rendered as well as the time such services were terminated. Each proprietor or his or her designated manager or operator shall also enter into such book the residence address, city and state of the person or persons for whom such services were performed. It shall be unlawful for any such proprietor, operator or licensee to remove or permit to be removed any page or part of any page from such book or to erase or obliterate or permit to be erased or obliterated any entry made upon any page thereof. Such book shall be kept and maintained for a period of two years from the date of the last entry therein.

(b) Each proprietor or operator of an escort service, during any hour of business, when requested by the director of finance, chief of police or other police officer of the city, shall submit and exhibit such book or books as required in this section to the inspection of the director of finance, chief of police or other police officer of the city in his or her place of business.
(Code 1964, § 17A-10; Code 1980, § 12-8-10)

CHAPTER 9. HOTELS, MOTELS AND TRANSIENT LODGING FACILITIES*

Sec. 12-9-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Hotel or *motel* means any establishment where sleeping or sleeping and eating accommodations are advertised or held out to be available to transients, whether the establishment be known as a hotel, apartment hotel, inn, tavern, club, resort, tourist home, tourist court, motel, court, motor court, motor lodge or by other like term and regardless of the number of rooms, suites or cabins available; but this term shall not be construed to include apartments, clubs, trailer courts, boardinghouses, roominghouses or portions thereof where single night accommodations are not advertised or held out to be available.
(Code 1980, § 12-9-1)

Sec. 12-9-2. Registration of patrons—Generally.

(a) Every person, proprietor, owner, operator, lessee or his or her agent, conducting any hotel or motel in the city shall at all times keep and maintain at the main or central entrance or office thereof a book or register in which every person or patron occupying any room or accommodations therein shall inscribe with ink or indelible pencil the name, age and home address of every patron or person occupying any such room or accommodations in any such place. Such book or register shall be signed at the main or central entrance or office of any such hotel or motel, and not elsewhere on the premises, by each patron or person occupying any room or accommodations of any sort in any of the above-named places. The proprietor, owner, operator or lessee of any such hotel or motel or his or her agent shall thereupon write opposite such name so registered, the license number and make of automobile in which such

*__State law references__—Hotels, inns and other transient lodging places, Code of Ala. 1975, § 34-15-1 et seq.; state license tax on innkeepers and hotels, Code of Ala. 1975, § 40-12-115.

patron or person traveled to such hotel or motel, the date and hour of arrival and the room or quarters rented or assigned to such patron or person.

(b) Until all of such entries have been made in such book or register at the main or central entrance or office of any such hotel or motel, no patron or person shall occupy or be suffered, permitted or allowed to occupy privately any room, garage, driveway or other accommodations in such hotel or motel.

(c) When the patron or occupant of each room or accommodations so rented or occupied shall quit, surrender or check out of same, the proprietor of such hotel or motel or his or her agent shall enter the time of departure of such patron or occupant in such book or register opposite the name of such patron or occupant.

(d) The book or register of any such hotel or motel shall be open to inspection at all times by the chief of police or any police officer of the city on duty at the time of any such inspection for a period of two years after the making of each entry in such book or register.
(Code 1980, § 12-9-2)

Sec. 12-9-3. Same—Fictitious names.

It shall be unlawful for any person or occupant of any room or accommodations in any hotel or motel in the city to write or cause to be written or knowingly permit to be written, in any book or register in any such hotel or motel, any other or different name or designation than the true name of the person or occupant registering therein or the true name by which such person or occupant is generally known.
(Code 1980, § 12-9-3)

Sec. 12-9-4. Renting, etc., by minor child.

It shall be unlawful for any minor child to rent, lease, use or occupy any room or other accommodations in any hotel or motel in the city, at any time, unless in the company and presence of the parent, guardian or legal custodian of such minor child. It shall be unlawful for any proprietor, his or her agent, servant, employee or lessee of any such place to permit or allow any room or accommodations in any such place to be rented, leased, used or occupied by any minor child, except in the company and presence of the parent, guardian or other legal custodian of such minor child. In the event that any minor child not in the company or presence of the parent, guardian or other legal custodian of such minor child should rent, lease, use or occupy any room or accommodations in any such place, the proprietor, his or her agent, servant, employee or lessee of any such place shall immediately report to the chief of police the name, age, sex and home address of any such minor child thus renting, leasing, using or occupying any room or accommodations in any such place.
(Code 1980, § 12-9-4)

State law reference—Person reaches age of majority and is relieved from disabilities of minority at 19 years of age, Code of Ala. 1975, § 26-1-1(a).

Sec. 12-9-5. Renting more than once between 9:00 p.m. and 6:00 a.m.; renting for less than 12 hours.

(a) It shall be unlawful for any proprietor or any servant, agent, employee or lessee of any proprietor of any hotel or motel in the city to rent, lease, let or permit to be used any room or other accommodations in any such tourist camp, hotel or motel more than once between the hours of 9:00 p.m. and 6:00 a.m. in the morning of the next or succeeding day to any person or occupant except bona fide travelers with baggage.

(b) No room or accommodations in any such place shall be rented, leased, let or permitted to be used by any person or occupant for any period of time less than 12 hours in any consecutive period of time.
(Code 1980, § 12-9-5)

Sec. 12-9-6. Bed linens and towels; clean and sanitary condition of rooms.

It shall be unlawful for the proprietor, owner, manager, operator, lessee or his or her agent of any hotel or motel in the city to rent, let, lease or permit to be used or occupied by any person or occupant any room or other accommodations in any such place unless all bed linens and towels have been changed and the room or accommodations cleaned up since the last rental, use or

occupancy of such room or accommodations and unless such room or accommodations are in a clean and sanitary condition.
(Code 1964, § 26-20; Code 1980, § 12-9-6)

Sec. 12-9-7. Liability of owner or manager for allowing prostitution.

(a) No person owning, maintaining, operating or managing any hotel shall knowingly or negligently permit, cause or allow any room or portion thereof in any such building to be used, visited, rented, leased or possessed for the purpose of prostitution.

(b) It shall be unlawful for the owner, manager or employee of any hotel to register any person known by him or her to be a prostitute.
(Code 1980, § 12-9-7)

State law reference—"Red Light Abatement Act" prohibiting public nuisance through the use or occupation of an establishment for the conduct or maintenance of lewdness and/or prostitution, Code of Ala. 1975, § 6-5-140 et seq.

Sec. 12-9-8. Violation of chapter.

In addition to any other penalties imposed, violation of any provision of this chapter by any proprietor, owner, operator, manager or lessee or his or her agent of any hotel or motel, shall constitute grounds for revocation by the council of the license of any such proprietor, owner, operator, manager or lessee of any such hotel or motel to do and engage in such business in the city.
(Code 1964, § 26-21; Code 1980, § 12-9-8)

CHAPTER 10. INTOXICATING LIQUORS*

ARTICLE A. GENERAL PROVISIONS

Sec. 12-10-1. Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

Alcoholic beverages means any alcoholic, spirituous, vinous, fermented or other alcoholic beverage, or combination of liquors and mixed liquor, a part of which is spirituous, vinous, fermented or otherwise alcoholic, and all drinks or drinkable liquids, preparations or mixtures intended for beverage purposes, which contain one-half of one percent or more of alcohol by volume, and shall include liquor, beer, and wine, both fortified and table wine.

Beer licensed place means a place at which malt or brewed beverages are licensed by the state alcoholic beverage control board to be so sold or served.

Beer licensee means a person licensed by the state alcoholic beverage control board to sell or serve malt or brewed beverages to consumers.

Liquor licensed place means a place at which liquor is licensed by state alcoholic beverage control board to be so sold or served.

Liquor licensee means a person licensed by the state alcoholic beverage control board to sell or serve liquor to consumers.

Liquor, wine, malt beverage, brewed beverages, state liquor store have the same meanings, respectively, as are assigned to them in the Code of Ala. 1975, § 28-3-1.

Secular day means every day other than Sunday.

State alcoholic beverage control laws means the alcoholic beverage control laws of the state as set forth in Code of Ala. 1975, title 28 and the rules and regulations promulgated thereunder by the state alcoholic beverage control board (ABC board), as such laws may be amended or superseded from time to time.
(Code 1964, § 28-1; Code 1980, § 12-10-1; Ord. No. 13-35, § 1, 3-19-2013)

Sec. 12-10-1.1. ABC board rules and regulations adopted by reference.

(a) It shall be unlawful for any person to do anything or commit any act or omission constituting a misdemeanor under the state alcoholic beverage control laws, which includes rules or regulations promulgated by the ABC board, the violation of which have been identified by Code of Ala.

*__State law references—__Intoxicating liquor, malt beverages and wine, generally, Code of Ala. 1975, title 28; power of municipalities to adopt ordinances to promote temperance and to suppress intemperance, Code of Ala. 1975, § 11-47-112.

1975, § 28-3-20, as constituting a misdemeanor, which laws are incorporated herein by reference as if fully set forth herein.

(b) Where the state alcoholic beverage control laws described in subsection (a) of this section refer to a state license, class of license, licensee, or licensed premises, the terms shall also mean and include a city license, class of license, licensee, or licensed premises.

(c) Subject to the provisions of any existing or future city ordinance governing the operation of alcoholic beverage licensed premises, where the aforementioned state alcoholic beverage control laws, which includes Code of Ala. 1975, § 28-3A-25, establish unlawful acts or offenses relative to state licensees, their servants, agents, or employees, or to state-licensed premises, in such case city licensees, their servants, agents, or employees, and city-licensed premises, shall be subject to the same requirements, and failure to comply with the same shall be a violation of this section.
(Ord. No. 13-35, § 2, 3-19-2013)

Sec. 12-10-2. Persons who may sell liquor or wine.

It shall be unlawful for any person, other than a liquor licensee or a state liquor store, to sell or offer for sale or have in possession or custody for sale or to serve or dispense for reward or have in possession or custody for serving or dispensing for reward, any liquor or wine at any place in the city, except however, the foregoing shall not apply to the sale of wine by any person, licensed by the state to sell wine containing 14 percent alcohol or less by volume for off-premises consumption.
(Code 1964, § 28-2; Code 1980, § 12-10-2)

Sec. 12-10-2.1. Review of permit.

(a) Any person desiring the consent of the city to the issuance by the state alcoholic beverage control board of any alcoholic beverage related license or permit, or to any change or other action regarding such license or permit, shall file a request for consent thereto with the chief of police. The request shall contain such information as the chief of police shall reasonably prescribe.

(b) The chief of police shall cause an investigation to be made of the character and fitness of the applicant and the character and suitability of the proposed location for which the license or permit is sought. The findings of said investigation shall be submitted to the council within 28 days of the date of the application and shall be referred by the council president to an appropriate council committee for review and recommendation.

(c) The council committee shall set a date and time for its investigation of the application and shall afford the applicant and interested parties reasonable and timely notice thereof. The applicant and such interested parties shall, in the course of the committee's investigation, be given the opportunity to offer testimony and evidence in support of their respective positions and may have counsel present to so represent them. At the conclusion of the committee's investigation, the committee shall vote to recommend its approval or disapproval of the application to the council. In the event the committee finds itself unable to recommend either approval or disapproval of the application, it shall so advise the council. The committee shall thereupon advise the applicant and other interested parties appearing before it of the committee's decision and shall further inform the applicant and such interested parties of the date of the council meeting at which the application will be on the council agenda for a public hearing at which all such parties will have the opportunity to be heard in person or by counsel. The public hearing before the council shall be set within 21 days following the conclusion of the committee's investigation.

(d) At the public hearing before the council, or at any continuance thereof, the council shall, after hearing any testimony and considering any evidence offered by any person concerned or such person's counsel, vote to approve or deny the application.
(Code 1980, § 12-10-2.1; Ord. No. 80-188, 9-2-1980; Ord. No. 89-65, 4-18-1989)

Sec. 12-10-3. Disposition of seized liquor, wine, malt beverage or brewed beverage.

Whenever any person shall have been convicted in the municipal court of possession or

custody of any liquor, wine, malt beverage or brewed beverage, contrary to the provisions of this chapter, and it shall appear that the police department has seized such liquor, wine, malt beverage or brewed beverage and has the same in custody as evidence or otherwise, the municipal court shall enter an order declaring such seized liquor, wine, malt beverage or brewed beverage to be contraband and ordering the chief of police to destroy the same or to sell the same to the state alcoholic beverage control board for account of the city, as the mayor may determine in the light of the quantity and marketability of such liquor, wine, malt beverage or brewed beverage. An appeal from any conviction upon which any such order depends shall carry with it an appeal from such order.
(Code 1964, § 28-3; Code 1980, § 12-10-3; Ord. No. 77-248, § 1, 12-2-1977)

State law reference—Power of municipalities to provide for destruction of contraband liquors and beverages, Code of Ala. 1975, § 11-47-112.

Sec. 12-10-4. Places in which liquor or wine may be sold.

It shall be unlawful for any person, whether a liquor licensee or not, to sell or offer for sale or have in possession or custody for sale, or to serve or dispense for reward or have in possession or custody for serving or dispensing for a reward, any liquor or wine at any place in the city other than in a liquor licensed place, which shall include outdoor cafes authorized for the sale of alcoholic beverages by resolution of the city council; except however, the foregoing shall not apply to any place where wine containing 14 percent alcohol or less by volume is sold for off-premises consumption pursuant to a retail wine license issued by the state.
(Code 1964, § 28-4; Code 1980, § 12-10-4; Ord. No. 91-105, 5-28-1991)

Sec. 12-10-5. Persons who may sell malt or brewed beverages.

It shall be unlawful for any person, other than a beer licensee, to sell or offer to sell to a consumer, or to serve or dispense for reward to a consumer or offer to serve or dispense for reward to a consumer, or to have in possession or custody for any such purpose, any malt or brewed beverage at any place in the city.
(Code 1964, § 28-5; Code 1980, § 12-10-5)

Sec. 12-10-6. Places in which malt or brewed beverages may be sold.

It shall be unlawful for any person, whether a beer licensee or not, to sell or offer to sell to a consumer or to serve or dispense for reward to a consumer or offer to serve or dispense for reward to a consumer, or to have in possession or custody for any such purpose, any malt or brewed beverage at any place in the city other than in a licensed beer place, which shall include outdoor cafes authorized for the sale of alcoholic beverages by resolution of the city council.
(Code 1964, § 28-6; Code 1980, § 12-10-6; Ord. No. 91-104, 5-28-1991)

Sec. 12-10-7. When sales prohibited.

(a) It shall be unlawful for any person to sell, offer for sale or to serve or dispense for reward or offer to serve or dispense for reward, any liquor, wine, malt beverage or brewed beverage in any place licensed for on-premises consumption of liquor, wine, malt beverage or brewed beverage in the city within Jefferson County at any time between the hours of 2:00 a.m. and 10:00 a.m. on Sunday; except that sales may be made during such time on Sunday by bona fide private clubs and in hotel or motel guest rooms where permitted by state alcoholic beverage control board regulations.

(b) It shall be unlawful for any person, whether a liquor, wine or beer licensee or not, to sell, offer for sale or to serve or dispense for reward or offer to serve or dispense for reward, any liquor, wine, malt beverage or brewed beverage in any place not licensed for on-premises consumption or elsewhere in the city at any time between 2:00 a.m. and 12:00 p.m. on Sunday; except that sales may be made during such time on Sunday by bona fide private clubs and in hotel or motel guest rooms where permitted by state alcoholic beverage control board regulations.

(c) Nothing in this section shall be construed as affecting the sale and distribution of alcoholic beverages in the city within Shelby County, which are governed by Ala. Const. Shelby County § 0.50 (Al. Const. Amend. No. 893).
(Code 1964, § 28-7; Code 1980, § 12-10-7; Ord. No. 80-242, 10-28-1980; Ord. No. 18-51, § 1, 4-10-2018)

Sec. 12-10-8. Regulation of sales to certain persons.

(a) It shall be unlawful for any person to sell, offer for sale or serve any liquor, wine or beer to any person visibly intoxicated, to any insane person or to any habitual drunkard.

(b) If not otherwise unlawful, it shall be permissible to sell or serve any liquor, wine or brewed beverage to any person who is not seated at a table.
(Code 1964, § 28-8; Code 1980, § 12-10-8)

Sec. 12-10-9. Drinking in public.

(a) It shall be unlawful for any person to drink or have in open or unconcealed possession or custody for drinking any liquor or wine, at or in any public place in the city other than a licensed liquor place, which shall include outdoor cafes authorized for the sale of alcoholic beverages by resolution of the city council.

(b) It shall be unlawful for any person to drink, or have in open or unconcealed possession or custody for drinking, any malt beverage or brewed beverage at or in any public place in the city other than a licensed beer place or licensed liquor place, which shall include outdoor cafes authorized for the sale of alcoholic beverages by resolution of the city council.
(Code 1964, § 28-9; Code 1980, § 12-10-9; Ord. No. 91-103, 5-28-1991)

Sec. 12-10-10. Definitions; visiting illegal drinking place unlawful.

(a) The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Illegal drinking place means any place wherein liquor, wine, malt or brewed beverages are sold without a license duly issued therefor by the state alcoholic beverage control board.

(b) It shall be unlawful for any person to visit or resort to an illegal drinking place for the purpose of buying any liquor, wine, malt or brewed beverage.

(c) Proof that a person is present in or at an illegal drinking place at the time any liquor, wine, malt or brewed beverages are sold therein shall be prima facie evidence that such person was visiting or resorting to such place for the purpose of buying liquor, wine, malt or brewed beverages.

(d) Any person convicted of a violation of this section shall be punished by a fine only not to exceed $50.00 and costs.
(Code 1964, § 28-10; Code 1980, § 12-10-10)

Sec. 12-10-11. Dancing and lights in liquor or beer licensed places.

(a) It shall be unlawful for any person to engage in dancing in any liquor or beer licensed place, other than a place holding a valid and unrevoked permit permitting dancing therein issued under the provisions of sections 12-3-11 and 12-3-18.

(b) It shall be unlawful for any liquor or beer licensee to allow or permit any dancing in any liquor or beer licensed place in his or her charge or control, other than a place holding a valid and unrevoked permit permitting dancing therein issued under the provisions of section 12-3-11.

(c) It shall be unlawful for any liquor or beer licensee to permit or allow any liquor or beer licensed place in his or her charge or control to be so insufficiently lighted while any patrons are therein that an ordinary newspaper cannot be readily read by one with normal vision at every place therein open to occupancy by patrons.
(Code 1964, § 28-11; Code 1980, § 12-10-11)

Sec. 12-10-12. Liquor not sold by alcoholic beverage control board.

It shall be unlawful for any person to sell, offer for sale, serve, dispense or have in possession or custody for any purpose, any liquor which has not been sold by the state alcoholic beverage control board; except that possession or custody, for consumption only, of not more than one quart

of liquor purchased pursuant to the laws of a foreign state shall not be unlawful. The provisions of this section shall not apply to the possession of, or to any other act above set forth relating to such liquor under circumstances which constitute a felony under the law or laws of the state.
(Code 1964, § 28-13; Code 1980, § 12-10-12)

Sec. 12-10-13. Sale, etc., of denatured intoxicating concoction, etc.

It shall be unlawful for any person to buy, sell, give away or otherwise dispose of for drinking purposes, any intoxicating concoction, mixture, compound, liquid or fluid that has been denatured.
(Code 1964, § 28-14; Code 1980, § 12-10-13)

Sec. 12-10-14. Liquor nuisance—Definition; prohibited.

(a) The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Liquor nuisance means any place used for the selling, serving or dispensing of liquor for reward contrary to the provisions of this chapter shall be deemed to constitute a liquor nuisance.

(b) It shall be unlawful for any person to maintain or aid or abet in maintaining any liquor nuisance.

(Code 1964, §§ 28-15, 28-16; Code 1980, § 12-10-14)

State law reference—Nuisance defined and the power of an individual or the municipality to commence an action to abate or enjoin any such nuisance, Code of Ala. 1975, § 6-5-120 et seq.

Sec. 12-10-15. Same—Abatement; appeal.

(a) On complaint in writing, under oath, being made by any person, alleging that a certain other person or certain other persons, naming them, are guilty of maintaining or aiding or abetting in maintaining a liquor nuisance, describing the place and giving the location thereof, the municipal judge shall appoint a day for the hearing of such complaint and shall issue his or her warrant commanding the chief of police or any police officer to have such person before the municipal judge on such appointed day to answer such complaint. If, upon trial of such complaint, the municipal judge finds the person complained of to be guilty of maintaining or aiding or abetting in maintaining a liquor nuisance, it shall be the duty of the municipal judge to render judgment to that effect and to make an order requiring the person so found guilty to abate such nuisance and abandon such place within 48 hours, and he or she shall cause the complaint, warrant and judgment to be recorded by the clerk of his or her court. If the person so found guilty shall refuse or fail to abate such nuisance and vacate such place before the expiration of 48 hours, it shall be the duty of the municipal judge in whose court such cause is tried to make an order requiring the chief of police to put such person so found guilty, and any movable property used by them in any manner in connection with the maintenance of such nuisance, out of such place, and the chief of police shall forthwith execute, or cause to be executed, such order, and it shall be unlawful for any person so put out of such place to return thereto within three months thereafter.

(b) When any person found guilty by the municipal judge of maintaining or aiding or abetting in maintaining a liquor nuisance in violation of the provisions of this chapter takes an appeal from such conviction in the manner provided by law, such appeal shall operate to suspend the proceedings for the abatement of such nuisance until the determination of the cause in the circuit court to which such appeal is taken.

(Code 1964, §§ 28-17, 28-18; Code 1980, § 12-10-15; Ord. No. 77-248, §§ 2, 3, 12-2-1977)

Sec. 12-10-16. Obscene, lewd, indecent conduct in liquor, wine, beer licensed places prohibited.

It shall be unlawful for any person, club, firm or corporation or the officers, members, agents, servants or persons in charge thereof at any private club or at any other place in the city to which the public generally resorts or is admitted, which is either a liquor, wine or beer licensed place, or any combination thereof, to permit, allow, conduct or condone any of the following listed behavior:

(1) Topless or bottomless dancers or performers, or any lewd or indecent conduct;

(2) Performance of acts of or acts which simulate sexual intercourse, masturbation, sodomy, bestiality, oral copulation, flagellation, or any sexual acts which are prohibited by law;

(3) Performance of acts including the caressing or fondling of the breasts, buttocks, anus or genitals; and

(4) Performance of acts involving the displaying of the anus, vulva, or genitals.

(Code 1980, § 12-10-16; Ord. No. 82-205, 12-14-1982)

Sec. 12-10-17. Investigation fee.

Any person or other lawful entity desiring the consent of the city to the issuance by the state alcoholic beverage control board of any alcoholic beverage related license or permit, or to any change or other action regarding such license or permit for places of business located outside the corporate limits of the city but situated within the police jurisdiction thereof, shall pay to the director of finance a nonrefundable investigation fee of $300.00, such payment to be made prior to the police investigation of the application. This fee shall not be required of any person or entity also required on approval of the requested license to purchase a city business license.
(Code 1980, § 12-10-17; Ord. No. 86-175, 7-22-1986; Ord. No. 93-42, 2-23-1993)

Secs. 12-10-18—12-10-30. Reserved.

ARTICLE B. MINORS

Sec. 12-10-31. Definitions.

For the purposes of this article, the following words and phrases shall have the meanings respectively ascribed to them by this section:

Club means any club, society or association organized for social or literary purposes under the provisions of any section of the Code of Alabama or any act of the state legislature or any other association of individuals organized for pleasure or recreation, or for social or literary purposes.

Minor means any person under the age of 21 years.
(Code 1980, § 12-10-31)

Sec. 12-10-32. Employment.

It shall be unlawful for any person or for any employee, servant or agent of any person to hire, employ or allow any person under 19 years of age to serve, handle or dispense liquor, wine or beer at any place within the city; provided, however, that the provisions of this section shall not apply to the handling or possession of malt or brewed beverages in unopened containers by an employee of an off-premises beer licensee while such employee is engaged in the line and scope of his or her employment.
(Code 1980, § 12-10-32)

Sec. 12-10-33. Possession, etc., by minor.

It shall be unlawful for any minor to receive or have in his or her possession or custody any liquor, wine, malt or brewed beverages upon any street or park, in any place of business, in any state liquor store, in any public building or upon the premises of any club in the city; provided, however, that the provisions of this section shall not apply to the handling or possession of malt or brewed beverages in unopened containers by an employee of an off-premises beer licensee while such employee is engaged in the line and scope of his or her employment.
(Code 1964, § 28-21; Code 1980, § 12-10-33)

Sec. 12-10-34. Sales, etc., to minor.

It shall be unlawful for any person to give, sell or to place in the possession of any minor any liquor, wine, malt or brewed beverage upon any street or park, in any place of business, in any state liquor store, in any public building or upon the premises of any club in the city; provided, however, that the provisions of this section shall not apply to the handling or possession of malt or brewed beverages in unopened containers by an employee of an off-premises beer licensee while such employee is engaged in the line and scope of his or her employment.
(Code 1964, § 28-22; Code 1980, § 12-10-34)

Secs. 12-10-35—12-10-39. Reserved.

ARTICLE C. REGULATIONS FOR THE OPERATION OF LIQUOR-LICENSED ESTABLISHMENTS

Sec. 12-10-40. Short title.

This article shall be known as the Kelvyn Felder Ordinance.
(Ord. No. 13-74, § 1(12-10-40), 5-21-2013; Ord. No. 13-86, § 1, 6-4-2013)

Sec. 12-10-41. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Adequately lighted means ambient lighting that is adequate for the purposes of observing the operation of or patrons within the premises, but which does not include as a light source lighting that emanates from a screen or theatrical lighting directed toward the staging area.

Club means a bona fide organization which fully complies with the definition of the term "club" as prescribed by state laws relating to alcoholic beverage licensing and the regulations of the Alabama Alcoholic Beverage Control Board.

Entertainment means sporting events and live or taped shows or performances, such as plays, motion pictures, concerts, music venues, circuses and dance routines, performed or conducted by actors, dancers, musicians, disc jockeys or other performers.

Licensed dinner entertainment establishment means a restaurant that is a licensed entertainment establishment.

Licensed entertainment establishment means an establishment that sponsors, provides or has entertainment, which activity may or may not require privilege licensure, and that is licensed to sell alcoholic beverages for on-premises consumption.

Non-licensed means an establishment or club that is not licensed for the on-premises sale of alcoholic beverages, whether or not privilege licensure is obtained or required for other activity.

Non-licensed area means an area, including a performance area, that is within the same building and that is under common ownership, possession and control as a licensed entertainment establishment, but which is not licensed to sell alcoholic beverages for on-premises consumption.

Non-licensed club means any private or public social club or any other establishment which charges a membership fee, door charge, gate fee, cover charge or any other like or similar type fee that is collected one time, annually, semi-annually, quarterly, monthly, weekly, daily, or in any other manner.

Non-licensed entertainment establishment means an establishment, which may or may not serve food or meals prepared on the premises, that sponsors, provides or has entertainment, which activity may or may not require privilege licensure, and that is not licensed to sell alcoholic beverages for on-premises consumption.

Open-air performance area means a performance area that is in an outdoor amphitheater, park or other open space, and which may be covered by a temporary tent or enclosure for protection from the elements.

Performance area means that portion of the establishment where entertainment is provided and shall include without limitation the staging or screening area and the seating section or other area where patrons view the entertainment. The term shall not include areas or rooms separated from the performance area by a wall or partition which cannot be reached or accessed except through a door or doors.

Private parties means parties, shows, receptions, weddings or other events which are not open to the general public or are by invitation only and which are sponsored, conducted or held by persons that do not receive any form of compensation therefore, except for voluntary donations or gratuitous gifts.

Restaurant means that portion of an establishment:

(1) That is licensed as a restaurant according to state and local alcoholic beverage licensing; or

(2) That is licensed to sell beer or table wine for on premises consumption and which meets the definition of a restaurant under the state and local alcoholic beverage control laws except that it is not licensed to sell liquor or fortified wine for on-premises consumption.

Sporting event means live or taped sporting events including without limitation athletic competitions, team sports, sporting exhibitions, equestrian events, and figure skating.

Staging area means that part of a performance area that is used to present or contain the entertainment such as stages, rings, rinks and band stands.
(Ord. No. 13-74, § 1(12-10-41), 5-21-2013)

Sec. 12-10-42. Persons under 21 prohibited from premises; non-licensed sales of alcoholic beverages prohibited.

(a) It shall be unlawful for any person or licensee of a licensed entertainment establishment, either directly or indirectly, or by the servants, agents, or employees of the same, or for any servant, agent or employee of the same to admit within the performance area of a licensed entertainment establishment as a patron a person under 21 years of age.

(b) It shall be unlawful for any person or licensee of a licensed entertainment establishment, either directly or indirectly, or by the servants, agents, or employees of the same, or for any servant, agent or employee of the same to sell, provide, serve or allow consumption of alcoholic beverages within any areas of the establishment, including without limitation performance areas, that are not licensed for the on-premises consumption of alcoholic beverages. Private parties that are held within a licensed entertainment establishment where alcoholic beverages are served shall be held within areas of the establishment licensed for the on-premises sale of alcoholic beverages and the licensee shall be responsible for the provision of alcoholic beverages.

(c) It shall be unlawful for any person, either directly or indirectly, or by the servants, agents, or employees of the same, or for any servant, agent or employee of the same to sell, provide, serve or allow consumption of alcoholic beverages on the premises of a non-licensed entertainment establishment or a non-licensed club.
(Ord. No. 13-74, § 1(12-10-42), 5-21-2013)

Sec. 12-10-43. Exemption for certain secured areas.

(a) *Secured areas.* Subject to state and local laws concerning alcoholic beverages and minors, the prohibition of section 12-10-42(a) shall not apply to performance areas of licensed entertainment establishments that:

(1) Have adequate security measures in place for the policing and enforcement of alcoholic beverage control laws, which measures shall include but are not necessarily be limited to:

a. Adequately lighted performance areas where alcoholic beverages are sold, served or consumed;

b. Tamper proof measures that identify persons of legal drinking age; and

c. Provision of a sufficient number of security personnel based on the size or anticipated size of the audience or based on a prior history for an event; and

(2) Do not have stadium or row seating in the performance area, except for open-air performance areas.

(b) *Civic centers, stadiums and sports arenas.* Subject to state and local laws concerning alcoholic beverages and minors, the prohibition in section 12-10-42(a) shall not apply to performance areas of civic center arenas or stadiums, including without limitation sports stadiums, that have adequate security measures in place for the policing and enforcement of alcoholic beverage control laws, which measures shall include but are not necessarily limited to:

(1) Adequately lighted performance areas where alcoholic beverages are sold, served or consumed or, in the alternative, segregated sections within performance areas for the selling, serving or consuming of alcoholic beverages which sections are limited to persons 21 years of age and above;

(2) Tamper-proof measures that identify persons of legal drinking age; and

(3) Provision of a sufficient number of security personnel based on the size or anticipated size of the audience or based on a prior history for an event.

(Ord. No. 13-74, § 1(12-10-43), 5-21-2013)

Sec. 12-10-44. Applicability.

(a) The prohibition in section 12-10-42(a) shall not apply to a non-licensed entertainment establishment or a non-licensed club that conducts, holds or leases space for private parties provided that there is no cover charge, admittance fee or other form of remuneration charged to or paid by attendees or invitees, and further provided that there is no charge for the provision of alcoholic beverages; provided, however, persons under 21 years of age shall not be admitted to any non-licensed establishment or non-licensed club conducting, holding or leasing space for a private party where alcohol is served or consumed unless:

(1) The area where the party is held is adequately lighted;

(2) Alcoholic beverages are furnished by the host of the party; and

(3) The establishment or club provides a sufficient number of security personnel based on the number or anticipated number of attendees or based on prior history.

(b) It shall be unlawful for any entertainment establishment or club to allow the consumption, sale, service, or dispensing of alcoholic beverages at events, public or private, where a cover charge, admittance fee or other form of remuneration is charged or paid by attendees or invitees, or where there is a charge for the provision of alcoholic beverages, without first obtaining the proper licenses from the city and the state alcoholic beverage control board.

(Ord. No. 13-74, § 1(12-10-44), 5-21-2013)

Sec. 12-10-45. Provision of free or discounted alcoholic beverages unlawful; exception.

It shall be unlawful for any licensed entertainment establishment or club to sell or deliver any alcoholic beverage to any patron where the sale or delivery is directly or indirectly related to the payment of any admission or cover charge. It shall also be unlawful for any licensee to give any alcoholic beverage to any patron without monetary consideration according to the restrictions provided in this article. No alcoholic beverage shall be sold, served or delivered to any patron for less than the entire cost of the ingredients of the beverage to the licensee; and no licensee shall reduce the cost of any beverage at any time to less than 50 percent of the regular, established and posted price; however, this section shall not be construed to prohibit the practice by licensees wherein patrons are admitted on December 31 of each year for New Year's Eve celebrations, wherein for a stated fee, meals, drinks and entertainment are provided.

(Ord. No. 13-74, § 1(12-10-45), 5-21-2013)

Sec. 12-10-46. Entertainment establishments and clubs to comply with applicable laws and ordinances; written safety plan required.

(a) All entertainment establishments and clubs must comply with all applicable laws and ordinances, including but not limited to zoning, building codes, health and safety regulations and must obtain approval from the proper departments.

(b) The term "written safety plan" means a written document produced by an entertainment establishment or club operator that includes at minimum the following information about the establishment:

(1) The number and location of all security personnel;

(2) The occupancy load of the establishment, average patron attendance, and the type of entertainment/events held at the establishment;

(3) The establishment identification checking and patron search procedures;

(4) Procedures for ensuring that only persons 21 years or older are served alcohol;

(5) The establishment's procedures for handling violent incidents, other emergencies, and calling the police department;

(6) A description of the training provided or completed by security and other personnel, including conflict de-escalation training;

(7) The establishment's procedures for crowd control and preventing overcrowding;

(8) The establishment's plan for maintaining order upon the accessory premises or open space adjacent to such premises;

(9) Current contact information for the person or position responsible for addressing safety, security, or city Code related complaints by patrons or neighborhood residents; and

(10) Show proof that security officers employed or contracted by the club are licensed by the state security regulatory board or that they are exempted from such licensing by state law. Notwithstanding the foregoing provision, all security officers are subject to city business licensing and/or occupational tax.

(c) Written safety plan required.

(1) Every entertainment establishment and club operator shall prepare a written safety plan.

(2) For existing establishments, safety plans shall be filed with the chief of police and the chairman of the public safety committee of the city council or their designees within 45 days of the effective date of the ordinance from which this article is derived. New establishments shall file safety plans at the time they make application with the department of finance and shall be included with the applicant's information provided to the chief of police and the public safety committee of the city council.

(3) Establishments subject to this article shall have an updated copy of their safety plan reviewed by personnel employed by the establishment. The safety plan shall be made available upon request by a police officer or other designated city enforcement personnel, patron or neighborhood residents.

(4) Establishment operators shall file an updated written safety plan annually with the chief of police. If there have been no material changes to a establishment's programming, operation, ownership, or size, the updated written safety plan may take the form of a letter from the establishment operator to the chief of police certifying that there have been no material such changes.

(5) Written security plans shall provide for compliance with the minimum requirements of section 12-10-52.

(Ord. No. 13-74, § 1(12-10-46), 5-21-2013)

Sec. 12-10-47. Information required from employment applicants; certificate required.

(a) Every person seeking employment as a manager of an establishment subject to this article shall, prior to accepting employment, file with the city and with his or her employer a certificate on forms made available by the city containing the following information and statements:

(1) The name, age, place of birth and place of residence of the applicant during the preceding three years.

(2) If the applicant has during the three years immediately preceding the date of such application had a license for the sale of intoxicating beverages issued by the state alcoholic beverage control board revoked.

(3) If the applicant has been convicted within three years prior to the date of such certificate of:

a. A felony;

b. Any law of the state or provision of this article or other ordinance of the city regulating or controlling intoxicating beverages;

c. Solicitation;

d. Illegally using, carrying or possessing a pistol or other dangerous weapon;

e. Making or possessing burglar's instruments;

f. Buying or receiving stolen property;

g. Theft of property;

h. Unlawful entry of a building;

i. Unlawful breaking and entry of a motor vehicle;

j. Unlawfully possessing or distributing habit forming narcotic drugs;

k. Vagrancy;

l. Violating any law or ordinance prohibiting sale or possession of obscene literature or material;

m. Indecent exposure; or,

n. Prostitution.

(b) Every person seeking employment as a hostess, cashier, bartender, waiter, waitress, or in any job category the duties of which require direct contact with customers in the establishment shall file the same certificate required of managers with the licensee and no such person or manager shall be employed who answers affirmatively to questions given in subsections (a)(2) or (3) of this section, unless they shall have first obtained the written consent of the city council.
(Ord. No. 13-74, § 1(12-10-47), 5-21-2013)

Sec. 12-10-48. Employment without certificate unlawful.

It shall be unlawful for any licensee to employ any person from whom a certificate is required under section 12-10-47 without first obtaining the required certificate.
(Ord. No. 13-74, § 1(12-10-48), 5-21-2013)

Sec. 12-10-49. False responses unlawful.

It shall be unlawful for any person to answer falsely the certificate required by section 12-10-47.
(Ord. No. 13-74, § 1(12-10-49), 5-21-2013)

Sec. 12-10-50. Certificate to be maintained on premises of establishment.

The certificate required by section 12-10-47, or a copy thereof, shall be maintained on the premises of an establishment for current employees at all times and shall be available for inspection by any authorized representative of the city at any time while the establishment is open for business.
(Ord. No. 13-74, § 1(12-10-50), 5-21-2013)

Sec. 12-10-51. Manager required to be on premises during business hours.

(a) It is unlawful for a licensed entertainment establishment or licensed club to remain open for business unless the licensee, a manager or a person in charge, as defined by ABC regulations, is on the premises. The name of the responsible person shall be posted in a public area of the establishment, readily available to ABC board personnel and the police department, in letters not less than one inch in size, during the time he is in charge.

(b) The licensee shall be responsible for the provision of alcoholic beverages at all licensed entertainment establishments and licensed clubs.
(Ord. No. 13-74, § 1(12-10-51), 5-21-2013)

Sec. 12-10-52. Interior security personnel required at certain times; security camera systems required; premises to remain clean and free of trash and debris.

(a) After 10:00 p.m. and while open to the public, all establishments and clubs shall provide minimum interior security personnel of a number equaling one security person per each occupancy level, as established according to the city's technical codes, as amended, city's fire marshal of 150 occupants, or any portion thereof. For example, if the occupancy level of an establishment is 500, at least four interior security personnel are required. If the occupancy level is 50, at least one interior security person is required.

(b) All establishments shall maintain a security camera system capable of recording and retrieving video images. Cameras must be equipped with a timestamp set to the correct date and time and must be activated and recording video during all hours of operation. These cameras shall, at a minimum, continuously capture interior and exterior images of the entrance and exit doors.

Cameras shall be located at all pedestrian and employee entry and exit points. These cameras shall be of high enough quality to capture and record facial-quality identification in low light or dimly lit areas or environments. These cameras shall also have capabilities of capturing and recording the same facial-quality identification in normal or daylight situations. This camera system must also be capable of recording and storing the video images for a length of time or no less than 30 days. This camera system must also have the capabilities of downloading these saved images to an external device when needed for review by law enforcement. Each business shall have at least one employee trained on the operation and downloading features of the system and must be able to respond to the business as needed for video or image review or downloading In the event of an incident involving injury or death to a patron, member of the public or employee of the establishment, video images recorded for the day of and at the time of the incident shall be stored for a minimum of 30 days. Each establishment required to have cameras pursuant to this provision shall prominently display signage on the premises to notify patrons of the presence and use of security cameras. Existing establishments shall comply with security camera system requirements within 45 days of the effective date of the ordinance from which this article is derived. New establishments shall have compliant, operational security camera systems upon opening.

(c) All establishments and clubs shall maintain their premises, and all accessory premises such as parking lots or open space adjacent to such premises, clean and free from trash and debris at all times.
(Ord. No. 13-74, § 1(12-10-52), 5-21-2013)

Sec. 12-10-53. Duty of manager to maintain order on premises; duty to report incidents.

(a) It shall be the duty of each owner, and of each manager or supervisor at any time charged with the management and supervision of any retail liquor or retail malt or brewed beverage licensed premises, or any other type of establishment where intoxicating beverages are sold or provided for on-premises consumption, while open to the public, to maintain order upon the premises and to exclude from the premises any person who is drunk and disorderly or who commits any breach of the peace, or who uses offensive, disorderly, threatening, abusive or insulting language, conduct or behavior with the intent to provoke a breach of the peace, or whereby a breach of the peace might be occasioned.

(b) It shall be the duty of each owner, and of each manager or supervisor at any time charged with the management and supervision of any retail liquor or retail malt or brewed beverage licensed premises, or any other type of establishment where intoxicating beverages are sold or provided for on-premises consumption, while open to the public, to maintain order upon the accessory premises such as parking lots or open space adjacent to such premises, to control crowds, admittance lines and patrons congregating at the property to prevent nuisance to adjacent residents and businesses, and to exclude from the accessory premises any person who is drunk and disorderly or who commits any breach of the peace, or who uses offensive, disorderly, threatening, abusive or insulting language, conduct or behavior with the intent to provoke a breach of the peace, or whereby a breach of the peace might be occasioned.

(c) It shall be the duty of each officer, owner, manager or person in charge of any retail liquor or retail malt or brewed beverage premises, or any other type of establishment where intoxicating beverages are sold or provided for on-premises consumption, within the city to immediately make an appropriate report by telephone to the police division of each assault, assault and battery, or affray occurring on the licensed premises while such premises are open for business. It shall further be the duty of the person to make a written report of such incidents to the police department within 36 hours. Failure to make either report shall be grounds for revocation or suspension of the license for the operation of the establishment.

(d) Habitual breaches of the peace, affrays, assaults, assaults and batteries, and the continued and habitual presence of disorderly persons upon the premises of a licensee shall be grounds

for revocation or suspension of the license for the operation of the establishment. In addition, repeated and habitual incidents of vandalism, breaches of the peace, disorderly conduct or other violations of state and local laws and ordinances, including violations of title 11, chapter 8, pertaining to noise, which unreasonably interfere with the peace, quiet, comfort and repose of persons of ordinary sensibilities in the neighborhood where such incidents may be attributable to the presence in the neighborhood of the licensed establishment shall also be grounds for revocation and suspension of the license of the establishment.
(Ord. No. 13-74, § 1(12-10-53), 5-21-2013)

Sec. 12-10-54. Compliance with local or state alcoholic beverage control laws required.

Nothing in this article shall be construed to allow activity which is contrary to state or local alcoholic beverage control laws including without limitation laws regulating minors and laws regulating admittance by persons under 19 years of age to establishments defined as and licensed as lounges according to state beverage control board regulations.
(Ord. No. 13-74, § 1(12-10-54), 5-21-2013)

Secs. 12-10-55—12-10-64. Reserved.

ARTICLE D. ENTERTAINMENT DISTRICTS

Division 1. Generally

Sec. 12-10-65. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Alcoholic beverage control board or ABC board or ABC means the Alabama Alcoholic Beverage Control Board.

District means an entertainment district established by the city council pursuant to this article. District boundaries may not exceed one-half mile by one-half mile in area, but may be irregularly shaped.

Licensed premises means any business within a district that holds a valid ABC retail license authorizing the sale of alcoholic beverages for on-premises consumption, issued pursuant to Code of Ala. 1975, § 28-1-6(a), and a valid city business license.

Licensee means any person holding an ABC retail license authorizing the sale of alcoholic beverages for on-premises consumption within a district.

Liquor license means any retail license authorized by Code of Ala. 1975, title 28, chapter 3A, which allows the licensee to sell alcoholic beverages for consumption on the licensed premises.
(Ord. No. 13-118, § 1(1), 10-1-2013)

Sec. 12-10-66. Entertainment district regulations.

(a) Any licensee who receives an entertainment district designation for its on-premises retail license from the ABC board or who otherwise holds a valid license from the ABC board to sell alcoholic beverages for consumption on the licensed premises shall comply with all laws, rules, and regulations which govern its license type, except that the patrons, guests or members of that licensee may exit that licensed premises with open containers of alcoholic beverages and consume alcoholic beverages anywhere within the confines of the entertainment district, but may not enter another licensed premises with open containers or closed containers of alcoholic beverages acquired elsewhere.

(b) Beverages sold for removal from the licensed premises shall be dispensed only in a paper cup bearing the commercially printed name and/or logo of the designated licensee. No beverages shall be removed from the licensed premises in glass bottles or containers.

(c) The days and hours of operation of an entertainment district shall be established by the council in the ordinance designating each specific district. No licensee shall allow the

removal of alcoholic beverages from the licensed premises other than during the hours established for the operation of the specific entertainment district. No one shall possess alcoholic beverages for consumption within the district outside of the licensed premises other than during the hours of operation as an entertainment district. No alcoholic beverages shall be possessed or consumed in any entertainment district between the hours of 2:00 a.m. and 12:00 p.m. on Sundays, except within the licensed premises of establishments validly licensed as private clubs by the ABC board. Possession or consumption of alcoholic beverages within or upon any parking lot or parking facility within the district shall be prohibited.

(d) Nothing in this article shall be construed to allow the sale of alcohol to minors. The council may establish strict curfews for minors within the entertainment district as needed to control the availability of alcoholic beverages to minors.

(e) No licensee within the district shall be required to allow removal of beverages to be consumed outside the licensed premises. Any licensee that does not desire to allow removal of beverages from its licensed premises shall clearly post notice that no open containers of alcoholic beverages may be removed from the premises. Such notice shall be posted at least at the exits and where beverages are dispensed within the premises.

(f) This article shall not be construed to prohibit the sale of alcoholic beverages in their original, unopened containers for off-premises consumption by any establishment authorized by the ABC board to make such sales. However, consumption of alcoholic beverages sold in original, unopened containers for off-premises consumption shall not be allowed in any public area of the entertainment district.

(g) All licensees within an entertainment district shall comply with all laws, ordinances, and regulations relating to having adequate security measures in place for the policing and enforcement of alcoholic beverage control laws, which measures shall include but are not necessarily limited to:

(1) Adequately lighted areas where alcoholic beverages are sold, served or consumed;

(2) Tamper proof measures that identify persons of legal drinking age; and

(3) Provision of a sufficient number of security personnel as provided in article C of this chapter.

(h) The provisions of title 11, chapter 8, article B, pertaining to noise, shall apply in all entertainment districts, including but not limited to requirements for amplified sound and for noise permits as provided in chapter 5 of this title.

(i) Special events within the district must be coordinated through the appropriate responsible merchants' association or organization responsible for the operation of the district. Events that involve such activities as the sale of alcoholic beverages outside of licensed premises, street closures, entertainment using amplified sound, or other regulated activities must comply with all laws, ordinances or regulations governing such activities.

(j) The city's prohibition against drinking in public, as set forth in section 12-10-9, shall not apply within the boundaries of a designated entertainment district during the approved hours of operation for the district.
(Ord. No. 13-118, § 1(2), 10-1-2013)

Sec. 12-10-67. Offenses.

(a) It shall be unlawful:

(1) For any retail licensee to sell alcoholic beverages in other than open containers for consumption on premises where sold, or to permit a patron to leave the premises with an alcoholic beverage which was dispensed and sold on the premises.

(2) For patrons to enter licensed premises with alcoholic beverages acquired at another licensed premises or outside the district.

(3) For patrons to exit licensed premises with open glass containers of any type of alcoholic beverages.

(4) For any person to enter into a designated entertainment district with alcoholic beverages purchased outside of the district, except as otherwise permitted

by the state alcoholic beverage control board and in compliance with all applicable laws, ordi-

nances, rules and regulations governing the sale, possession or consumption of alcoholic beverages.

(5) For any person purchasing alcoholic beverages for on-premises consumption to remove such beverages from the premises from which they were sold for consumption or to remove the container in which the alcoholic beverage was sold for on-premises consumption, except from the premises of those licensees who receive an entertainment district designation in an entertainment district.

(6) For any person to refill a cup from a licensed premises with alcoholic beverages not purchased at a licensed premises within the district.

(7) For any person to exit a designated entertainment district with alcoholic beverages purchased in an open container for consumption within the district.

(8) For any person to consume alcoholic beverages in a motor vehicle parked or in motion within the district, with the exception of a common carrier vehicle licensed by the ABC board to serve alcoholic beverages.

(b) Any violation of the offenses set forth in subsection (a) of this section shall be punishable by a fine of not less than $100.00 nor in excess of $500.00 per violation.

(c) The city council may consider suspension or revocation of the business license of any licensee who violates any provision of this article. (Ord. No. 13-118, § 1(3), 10-1-2013)

Sec. 12-10-68. Signage designating entertainment district.

(a) No signs are permitted at any time on public property such as a city street right-of-way or a utility pole, except for signs, specifically permitted, in designated entertainment districts. Entertainment district signs mean any on-premises sign which is not affixed to real property in such a manner that its removal would cause serious injury or material damage to the property.

(1) Businesses that wish to participate in the entertainment district privileges must display participation banners, flags or other type of signage near the entrance to the establishment. The signage shall be unified in the district with regard to content, size, color, material and method of attachment to the building. The signage shall be fixed to the building during district hours of operation and no less than five feet from the door. Signage shall be located at each principal public entrance. Such signs shall be located on or adjacent to the subject public entrance.

(2) Businesses within an entertainment district that do not wish to participate in the privileges must display signage noting the exception in accordance with section 12-10-66(e). These signs shall be unified within the entertainment district with regard to size and content. Sign content shall include: the entertainment district name; hours of operation; establishment name; and that alcoholic beverages may not leave the premises. Business not participating shall be prohibited from serving beverages in containers similar to those used by participating licensees and described in section 12-10-66(b).

(3) Parking areas within entertainment district with more than 20 parking spaces or in excess of 5,000 square feet shall have fixed signage located at each pedestrian and vehicular entrance and exit denoting the rules and regulations for the district. Signage shall be unified within the district in regards to size, color, content and placement.

(4) The boundary to the entertainment district shall be clearly marked with fixed signage at all entrances/exits. Signs for pedestrians entering the site shall display the entertainment district name and the hours of operation. Signs for pedestrians leaving the area shall indicate the prohibition on removing beverages from the area.

(b) Entertainment district signs shall be approved by the design review committee of the city and permitted by the department of planning, engineering and permits. Approval must also be obtained from the respective district merchants' association, when applicable. A copy of the permit guidelines and restrictions shall be available from the office of the city clerk or on the website for the department of planning, engineering and permits' urban design division. (Ord. No. 13-118, § 1(4), 10-1-2013)

Sec. 12-10-69. Entertainment district designation.

(a) The council may create a district whenever it finds that the proposed district meets the minimum qualifications of the Act and this article, and that creation of a district is in the best interest of the public and the specific geographic area to be served. In making its determination, the council shall take into account all relevant information, including the following:

(1) A description of the proposed district;

(2) Plan for security, parking and other operational criteria within the district;

(3) How the proposed district will complement the city's economic development goals, comprehensive plan, the planning neighborhood district in which it is located, and the surrounding area.

(b) The council may establish up to five districts as provided by Alabama Act 2012-438, as now or hereafter amended, or up to the maximum number allowed by any other applicable state law in effect at the time.

(c) District boundaries must conform to the requirements of state law, currently no larger than one-half mile by one-half mile in area, but may be irregularly shaped.

(d) To be established as a district, the area making the request must have an established and active merchants' association or other organization or association of businesses with authority to speak for the businesses in the affected area.

(e) The merchants' association or other authorized organization representing the businesses in an area that meets the requirements of Alabama Act 2012-438, as now or hereafter amended, may request to be designated as an entertainment district by submitting an application and a receipt from the finance director or his or her designee for the payment of a nonrefundable application fee in the amount of $500.00 to the city clerk. Upon receipt of application and proof of payment of the fee, the city clerk shall forward a copy to the director of the department of community development, the economic development director, the director of the department of planning, engineering and permits, the traffic engineer, the finance director, the chief of police, and the fire chief, or their respective designees, by electronic or other means. The application shall include, but not be limited to, all of the following:

(1) The identity of the applying organization and the businesses it is authorized to represent;

(2) A map delineating the boundaries of the district;

(3) Evidence that the area meets the requirements for the number of ABC board licensees to qualify for an entertainment district designation;

(4) The proposed days and hours that the area will operate as an entertainment district;

(5) Plans to provide for adequate security and/or police protection for the area while operating as an entertainment district;

(6) Plans for adequate parking for persons visiting the district. To the extent possible, parking shall be located at the perimeter or outside the boundaries of the district. Parking lots within the district must provide for compliance with prohibitions on alcohol brought into the district and provide for the safety and security of patrons of the district;

(7) Plans for maintaining the appearance and sanitation of the district;

(8) Plans for the designation of the district, including signs, entry points and the means to define the boundaries of the district so that patrons are clearly informed of the limits of the districts;

(9) Such other additional information that the director of community development may deem necessary to allow city staff and the council to evaluate the suitability of the area for an entertainment district designation.

(f) Upon receipt of the notification or completed application, the director of the department of community development, the economic development director, the director of the department of planning, engineering and permits, the traffic engineer, the finance director, the chief of police and the fire chief, or their respective designees, shall review the application for completeness and for compliance with this and other applicable city ordinances. The applicant may consult with these reviewing departments in developing the plan prior to submitting the application or during the review as needed due to address traffic, safety and other concerns for the benefit of the public and to ensure consistency with design review standards where applicable.

(g) Within ten days of receipt of the application, the director of the department of community development shall set a meeting with the other reviewing departments' designees to consider whether the application is complete and ready for final review or whether additional information is necessary. The director of the department of community development or his or her designee shall notify the applicant within five days of that meeting as to whether the review shall proceed on the application as submitted or whether additional information and consultation is needed to proceed with the review. The reviewing departments shall report to the director of community development on their findings within 45 days of receiving a final, complete application. The reports and findings shall be submitted to the city clerk by each department or the director of the department of community development may receive reports from the other departments and forward them collectively to the city clerk within 45 days of having received the final complete application.

(h) The city clerk shall forward the application and the reports of the reviewing departments to the public safety committee of the city council no later than five days after receipt of the departmental reports. The public safety committee shall consider the application at its next regularly scheduled meeting and shall request the city council to set a public hearing not less than 21 days but not more than 35 days from the committee's consideration of the application. The application shall be available in the clerks' office for at least 21 days prior to the hearing for public review.

(i) At the public hearing, the city council shall hear any person who desires to be heard on any issue relevant to the designation of the area as an entertainment district.

(j) After such hearing, the council shall consider the application, the reports from the reviewing city departments, any relevant evidence offered by any party at the public hearing and such other information it may have bearing upon such application and the ability of the applicant and affected businesses to operate the district in the best interest of the public health, safety and welfare.

(k) If the city council finds that the designation of the district complies with all applicable ordinances and state law and that the creation of the district is in the best interest of the public, it shall adopt an ordinance setting out:

(1) The findings upon which the designation is based;

(2) A map delineating the boundaries of the district;

(3) Effective dates for the district;

(4) The days and hours that the area shall be allowed to operate as an entertainment district; and

(5) Such additional operational rules and criteria the council deems appropriate to meet the goals and objectives of that particular district.

(l) The council may amend, modify or revoke the designation of any area as an entertainment district upon finding that the operation of the district has become a nuisance or is otherwise not being operated in the best public interest, including a lack of adequate security. The council shall conduct the proceedings for the amendment, modification or revocation of the designation in the same manner as provided for the revocation of a business license pursuant to the ordinances of the city. The council may require the district to provide additional security at the district's expense.

(1) No church, school or religious institution shall be considered part of a designated district. Boundaries shall specifically exclude the property and premises of any such institution.

(2) The council reserves the right to modify or repeal this article, and any district designation created there under at any time. Nothing in this article shall be construed to create any right or entitlement to an entertainment district designation.

(Ord. No. 13-118, § 1(5), 10-1-2013)

Sec. 12-10-70. Management of entertainment district.

The director of community development is authorized to implement regulations, and controls, with the assistance of the economic development director and director of finance, for the purpose of managing the entertainment district which will be specific for each entertainment district. Such regulations and controls may include but are not limited to the following:

(1) *Entrance requirement.* Entertainment district wristbands may be required to indentify all persons who have attained the age of 21 years and who are legally authorized to purchase and consume alcoholic beverages. Displaying of the wristband does not relieve any establishment from verifying the age of any person who is seeking to purchase alcoholic beverages.

(2) *Restrictions.* No licensee shall issue a district wristband to any person entering the establishment with weapons, alcoholic beverages, and other items which may be dangerous, disruptive, or inconvenient in crowded conditions.

(3) *Sale of wristbands.* Only authorized licensees, merchants associations or designated entities may sell or distribute wristbands. Wristbands shall be obtained from the finance department according to regulations established by the finance director and the director of community development.

(4) *Financial requirement and auditing responsibilities.* Any organization designated and authorized to collect fees and generate revenues from the public in connection with the entertainment district, on an annual basis, shall provide to the finance director, a comprehensive report that provides a full accounting of all revenues and expenditures associated with the sale of the wristbands. The designated organization shall make all pertinent books, accounts, or other records accessible to the finance director and the organization shall maintain accounting procedures adequate to fully document the use of all funds received and/or paid by the organization in connection with the sale of the wristbands.

(Ord. No. 13-118, § 1(6), 10-1-2013)

Secs. 12-10-71—12-10-80. Reserved.

Division 2. Uptown Entertainment District

Sec. 12-10-81. Established.

Subject to the provisions of Ala. Act No. 2012-438 and Ordinance No. 13-118, there is hereby established an entertainment district that shall be known as the "Uptown Entertainment District", as generally described below and which is also shown on a map on file in the office of the city clerk and incorporated herein by reference.

(Ord. No. 15-35, § 1, 3-18-2015)

Sec. 12-10-82. District boundaries.

The Uptown Entertainment District shall generally consist of facilities and property of the Birmingham-Jefferson Civic Center Complex (BJCC), including the Sheraton and Westin Hotels, the restaurant and bar facilities to the east of the Westin Hotel and Uptown Park but excluding parking lots and parking decks. The district shall also exclude the BJCC Theatre, Concert Hall, Arena, Exhibition Halls and Meeting Rooms, and the Forum Building, Alabama Sports Hall of Fame, and SEC Headquarters Buildings. The boundaries of the district are designated as follows:

"Commence at the right of way line of the Northeast corner of the intersection of 19th Street North and 9th Avenue North; thence run east along the North ROW Line of 9th Avenue North for a distance of 385.2 feet; thence angle left and run North 21 feet to the POB.

Beginning at a point situated 21 feet from the BJCC property line along the SW corner of the Exhibition Hall, thence angle left and run West 128 feet parallel with 9th Avenue North to a point situated on the East curbline of the 9th Avenue parking lot driveway; thence angle right and run North 113.5 feet to the corner of the Arena steps, thence run 73.4 feet up the Arena steps; thence angle left and run West 10 feet; thence angle right and run North 47 feet; thence angle right and run East 45.9 feet; thence angle right and run South 21.5 feet; thence angle right and run East 3 feet; thence angle left and run North 3.5 feet; thence angle right and run East 38 feet; thence angle right and run South 3.5 feet; thence angle right and run East 2.7 feet, thence angle left and run Northeasterly, North, Northwesterly and West 620 feet along the contour of said Arena building to a point situated 153 feet East of the 19th Street North BJCC property line and located at the South corner of the CTO Screening Area; thence angle right and run North 176 feet to a point situated at the South wall of the Mechanical Plant and lying at the North end of the CTO Screening; thence angle right and run 47.5 feet Southeasterly to the Western wall of the Theatre; thence angle right and run South, East, Northeasterly, and North along the contour of said Theatre building to a point situated 123 feet South of the South ROW line of 11th Avenue North and lying at the Western end screening area; thence angle right and run east 73 feet to a point situated at the Northwest wall of the Concert Hall; thence angle right and run Southwesterly, South, Southeasterly, East, Northeasterly, North, and Northwesterly 1,417 feet along the contours of the Concert Hall, the east Exhibition Hall, RAJ Parking and the Ticket Office to a point situated at the Southeast corner of the Alabama Sports Hall of Fame Building; thence angle left and run 42 feet Northeasterly to a point situated at the Southeast corner of said Alabama Sports Hall of Fame Building; thence angle right and run East 40 feet to a point situated on the 22nd Street Northwest curbline approximately 47 feet North of the Northline of 22nd Street Crosswalk; thence angle right and run South 47 feet to a point situated on the Northline of the 22nd Street Crosswalk; thence angle left and run East 52 feet across said Crosswalk to a point situated on the East curbline of 22nd Street North, thence angle left and run North 130 feet to a point situated on the East curbline of 22nd Street North; thence angle right and run East following the contour of Uptown Park 450 feet to a point situated at the West curbline of 23rd Street North and 138 feet North of Raj Blvd.; thence angle right and run South 111 feet to the SE corner of the Uptown Park; thence angle left and run East 85.5 feet to a point situated at the SW corner of Parking Lot #9 (NE corner of the 23rd Street North/Raj Blvd. Intersection); thence angle right and run South 48.5 feet to the South curbline of Raj Blvd. and proceed South around the curbline 4 feet; thence angle left and run Southeasterly 23 feet around the said curbline; thence angle left and run East 394 feet to a point situated on the West curbline at the intersection of 24th Street North and Raj Blvd., thence angle right and run South 248 feet to a point situated at the Southeast corner of the Uptown Greenspace; thence angle right and run West 96.5 feet to a point situated at the Southern BJCC property line;

thence angle left and run South 16 feet; thence angle right and run West 294.5 feet to 23rd Street, thence angle right and run Northwesterly to a point situated at the SE corner of the Westin Hotel, thence angle left run West along the contour of the Southern wall of said hotel 321.5 feet to a point situated at the SW corner of said hotel; thence angle right and run North 237 feet to the NW corner of the said hotel; thence angle left and run South 69 feet to the corner of the SEC Building; thence angle left and run Southwest 17.5 feet to a point situated at the Northwest corner of said SEC Building; thence angle right and run West 91 feet across 22nd Street North to a point situated at the NE corner of the first floor of the Medical Forum Building and situated 27 feet from the Curbline of Raj Blvd.; thence proceeding Westerly and Southwesterly 432 feet around the contour of the said building and continuing around the contour of the Sheraton Hotel to a point situated North of the SW corner of the Sheraton Hotel; thence angle right and run West 152 feet across Raj Blvd. to a point situated at the East wall of the North Exhibition Hall; thence angle right and run North, Northwesterly, West, Southwesterly and South 1,410 feet along the contour of said building North Exhibition Hall to the point of beginning.

In the event there is a conflict in the district boundary lines as set forth above and the map on file in the office of the city clerk, the boundary lines depicted on the map on file in the office of the city clerk and as designated by signage and markers in the district shall govern.
(Ord. No. 15-35, § 1, 3-18-2015)

Sec. 12-10-83. Effective dates for the district.

This designation of the district shall be effective on March 20, 2015, and when published as required by law. The designation shall continue until modified, suspended or revoked by the city council.
(Ord. No. 15-35, § 1, 3-18-2015)

Sec. 12-10-84. Operating hours.

The regular operating hours for the district shall be:

Thursday and Friday—5:00 p.m. to 11:00 p.m.

Saturday and Sunday—12:00 p.m. (noon) to 11:00 p.m.

The BJCC executive director or his or her designee may reduce or restrict the regular hours of operation when necessary for the best interest of the BJCC and the district.

The BJCC authority may designate "special district events" at times other than the regular operating hours authorized by this division. Special district events shall be conducted in accordance with all laws and regulations authorizing and establishing the entertainment district. No outside vendors of alcoholic beverages shall be allowed to participate in a special district event. The BJCC shall notify the chief of police or his or her designee no later than two weeks prior to the special district event.

Notwithstanding any provision to the contrary, any permanent change to the regular operating hours of the district shall be by amendment of this division.

Any event to be held within the district boundaries at any time in which outside vendors of alcoholic will participate must be licensed in accordance with Alabama Alcoholic Beverage Control Board rules and regulations.
(Ord. No. 15-35, § 1, 3-18-2015)

Sec. 12-10-85. Signage.

District signs and markers shall conform to the plan submitted by BJCC and approved by the design review committee and which is on file in the office of the city clerk. Notwithstanding any provision of Ordinance No. 13-118 to the contrary, the regular operating hours of the district shall not be required to be posted on the district signs and markers at the perimeter and entrances to the district. The regular hours shall be posted on signs at the licensed premises of the retail licensees in the district. The BJCC authority shall be responsible for communicating the

hours for special district events to its tenant licensees participating in the district and to the public.
(Ord. No. 15-35, § 1, 3-18-2015)

Sec. 12-10-86. Containers.

Cups for consumption of alcoholic beverages in the outdoor portions of the district shall comply with Ordinance No. 13-118. After a patron exits a licensed premises with a carry-out cup, the cup shall not be carried back into the premises where purchased or into any other licensed premises within the district.
(Ord. No. 15-35, § 1, 3-18-2015)

Sec. 12-10-87. Acceptable identification required.

Each vendor within the district shall ensure that all of its employees comply with and adhere to Ala. Admin. Code r. 20-X-5-.09, "Minors", and that each employee is trained on the acceptable identification required to purchase alcoholic beverages.
(Ord. No. 15-35, § 1, 3-18-2015)

Division 3. Pepper Place Entertainment District

Sec. 12-10-88. Established.

Subject to the provisions of Ala. Act No. 2012-438 and Ordinance No. 13-118, there is hereby established an entertainment district that shall be known as the "Pepper Place Entertainment District", as generally described below and which is also shown on a map on file in the office of the city clerk and incorporated herein by reference.
(Ord. No. 19-1, § 1, 1-23-2019)

Sec. 12-10-89. District boundaries.

The Pepper Place Entertainment District shall generally consist of facilities and property located in that area of the Lakeview Business District known as "Pepper Place". The boundaries of the district are designated as follows:

Southeast corner of the intersection of 27th Street South and 2nd Avenue South; thence run east along the South ROW Line of 2nd Avenue South to the Southwest Corner of the intersection of 31st Street South and 2nd Avenue South; thence angle right and run south along the West ROW Line of 31st Street South to the Northwest Corner of the intersection of 31st Street South and 3rd Avenue South; thence angle right and run west along the North ROW Line of 3rd Avenue South to the Northeast Corner of the intersection of 27th Street South and 3rd Avenue South; thence angle right and run North along the East ROW Line of 27th Street South.

In the event there is a conflict in the district boundary lines as set forth above and the map on file in the office of the city clerk, the boundary lines depicted on the map on file in the office of the city clerk and as designated by signage and markers in the district shall govern.
(Ord. No. 19-1, § 1, 1-23-2019)

Sec. 12-10-90. Parking lots.

Parking lots within the block of the district located between 27th and 28th Streets South and 2nd and 3rd Avenues South shall be excluded from the district. Signs shall indicate that consuming alcoholic beverages is not allowed in these lots. Parking lots located in the portion of the district between 28th and 31st Streets South and 2nd and 3rd Avenues South shall not be specifically excluded but signs shall be posted with provisions limiting the consumption of alcoholic beverages within those parking lots as set forth in this division.
(Ord. No. 19-1, § 1, 1-23-2019)

Sec. 12-10-91. Effective dates for the district.

This designation of the district shall be effective on February 1, 2019 and when published as required by law. The designation shall continue until modified, suspended or revoked by the city council.
(Ord. No. 19-1, § 1, 1-23-2019)

Sec. 12-10-92. Operating hours.

The regular operating hours for the district shall be:

Monday through Friday - 4:30 p.m. to 11:00 p.m.

Saturday and Sunday - 10:00 a.m. to 11:00 p.m.

The Lakeview Business Association may vest the chairman of the Association with authority to reduce or restrict the regular hours of operation when necessary for protection of the health, safety and welfare for businesses and visitors to the district.

Any event to be held within the district boundaries at any time in which outside vendors of alcoholic will participate must be licensed in accordance with Alabama Alcoholic Beverage Control Board rules and regulations.

The Lakeview Business Association may designate "special district events" at times other than the regular operating hours authorized by this ordinance. Special district events shall be conducted in accordance with all laws and regulations authorizing and establishing the entertainment district. No outside vendors of alcoholic beverages shall be allowed to participate in a special district event. The Lakeview Business Association shall notify the chief of police or his or her designee no later than two weeks prior to the special district event.

Notwithstanding any provision of this division to the contrary, any permanent change to the regular operating hours of the district shall be by amendment of this division.
(Ord. No. 19-1, § 1, 1-23-2019)

Sec. 12-10-93. Signage.

District signs and markers shall conform to the plan submitted by Lakeview Business Association and approved by the design review committee and which is on file in the office of the city clerk. Notwithstanding any provision of Ordinance No. 13-118 to the contrary, the regular operating hours of the district shall not be required to be posted on the district signs and markers at the perimeter and entrances to the district. The regular hours shall be posted on signs at the licensed premises of the retail licensees in the district. The Lakeview Business Association shall be responsible for communicating the hours for special district events to its tenant licensees participating in the district and to the public.
(Ord. No. 19-1, § 1, 1-23-2019)

Sec. 12-10-94. Containers.

Cups for consumption of alcoholic beverages in the outdoor portions of the district shall comply with Ordinance No. 13-118. After a patron exits a licensed premises with a carry-out cup, the cup shall not be carried back into the premises where purchased or into any other licensed premises within the district.
(Ord. No. 19-1, § 1, 1-23-2019)

Sec. 12-10-95. Minors.

Each vendor within the district shall ensure that all of its employees comply with and adhere to Ala. Admin. Code r. 20-X-6-.09, "Minors", and that each employee is trained on the acceptable identification required to purchase alcoholic beverages.
(Ord. No. 19-1, § 1, 1-23-2019)

Sec. 12-10-96. Parking lots.

The parking lots located in the district within the blocks between 28th and 31st Streets South are not specifically excluded from the district. During the farmers market and other events where those lots are used as event space rather than parking, consumption of alcoholic beverages purchased from district participating licensees may be consumed in those lots by event participants. When the parking lots are in use for vehicle parking, district visitors may pass through the lots with alcoholic beverages but must not refill district cups with beverages stored in vehicles or sit in vehicles to consume beverages. The inclusion of these lots in the district is to facilitate pedestrian traffic but shall not authorize congregating or loitering to consume alcoholic beverages in the parking lots.
(Ord. No. 19-1, § 1, 1-23-2019)

Division 4. Five Points South Entertainment District

Sec. 12-10-97. Established.

Subject to the provisions of Ala. Act No. 2012-438, as amended, and Ordinance No. 13-118,

there is hereby established an entertainment district that shall be known as the "Five Points South Entertainment District", as generally described below and which is also shown on a map on file in the office of the city clerk and incorporated herein by reference.
(Ord. No. 19-199, § 1, 12-26-2019)

Sec. 12-10-98. District boundaries.

The Five Points South Entertainment District shall generally consist of facilities and property located in that area of the City of Birmingham known as "Five Points South". The boundaries of the district are designated as follows, which shall generally consist of the 20th Street corridor stretching from 10th Ave South to 13th Ave South, with short boundary extensions down 11th Ave S/Magnolia Ave and 12th Ave S/Highland Ave:

The boundaries shall:

Begin at the Southeast Corner of the intersection of 10th Avenue South and 19th Street, Alley, South; thence run southerly along the easterly right-of-way line of 19th Street Alley, South for a distance of 240 feet, more or less; thence angle left and run easterly along the northerly right-of-way line of 10th Avenue Alley, South for a distance of 197.5, feet, more or less, to a point on the westerly right-of-way line of 20th Street South; thence angle right and run southerly for 20 feet along the westerly right-of-way line of 20th Street South, thence angle right and run westerly along the southerly right-of-way line of 10th Avenue Alley, south for 151 feet, more of less, thence angle left and run southerly for 85 feet, more or less; thence angle right and run westerly for 125 feet, more or less, to a point on the easterly right-of-way line of 19th Street Alley, South; thence angle left and run southerly for 15 feet, more or less, thence angle right and run westerly for 140 feet, more or less, to a point on the easterly right-of-way line of 19th Street South; thence angle left and run southerly along the easterly right-of-way line of 19th Street South for 347.3 feet, more or less; thence angle left and run easterly for 115 feet, more or less; thence angle left and run northerly for 147.3 feet, more or less, to a point on the southerly right-of-way line of 11th Avenue South; thence angle right and run easterly along the southerly right-of-way line of 11th Avenue South for 85 feet, more or less; thence angle right and run southerly for 50 feet, more or less; thence angle left and run easterly for 93.5 feet, more or less; thence angle right and run southerly for 171.6 feet, more or less; thence angle right and run westerly for 57 feet, more or less; thence angle left and run southerly for 99.2 feet, more or less; to a point on the northerly right-of-way line of 12th Avenue South; thence angle left and run easterly along the northerly right-of-way line of 12th Avenue South for 37.2 feet, more or less; thence angle right and run southerly for 160 feet, more or less; thence angle right and run westerly for 20 feet, more or less, thence angle left and run southerly for 92.5 feet, more or less; thence angle right and run westerly for 14.5 feet, more or less; thence angle left and run southerly for 140 feet, more or less; to a point on the northerly right-of-way line of 13th Avenue South; thence angle left and run easterly along the northerly right-of-way line of 13th Avenue South for 53 feet, more or less, to the northwest corner of the intersection of 13th Avenue South and 20th Street South; thence angle right and continue easterly for 82.5 feet, more or less, to the northeast corner of the intersection of 13th Avenue South and 20th Street South; thence angle right continue easterly along the northerly right-of-way line of 13th Avenue South for 75 feet, more or less; thence angle left and run northerly for 103.5 feet, more or less; thence angle left and run westerly for 75 feet, more or less; to a point on the easterly right-of-way line of 20th Street, South; thence angle right and run northerly along the easterly right-of-way line of 20th Street South for 61.5 feet, more or less; thence angle right and run easterly for 192.4 feet, more or less; thence angle left and run northerly for 164.2 feet, more or less, to a point on the southerly right-of-way line of Highland Avenue South; thence angle right and run northeasterly for 100.2 feet, more or less, to a point on the northerly right-of-way line of Highland Avenue South; thence angle left and run westerly along the northerly right-of-way line of

Highland Avenue South for 126.58 feet to the point of curvature of a curve to the right; thence run westerly, northwesterly and northerly along the arc of said curve for 135.55 feet to the point of tangency of said curve; thence run northerly along a line tangent to said curve, said tangent line also being the easterly right-of-way line of 20th Street South, for 138.4 feet, more or less; thence angle right and run easterly for 192 feet, more or less, thence angle left and run northerly for 95.8 feet, more or less, to a point on the southerly right-of-way line of 11th avenue south; thence angle right and run easterly for 214.4 feet, more or less, to a point on the westerly right-of-way line of Richard Arrington Jr. Blvd. South; thence angle left and run northerly along the westerly right-of-way line of Richard Arrington Jr. Blvd South for 130.7 feet, more or less; thence angle left and run westerly for 91.9 feet, more or less, thence angle right and run northerly for 24.1 feet, more or less; thence angle left and run southwesterly for 60.1 feet, more or less; thence angle left and run southerly for 43.5 feet, more or less, to a point on the northerly right-of-way line of 11th Avenue South; thence angle right and run westerly along the northerly right-of-way line of 11th Avenue South for 186.7 feet; thence angle right and run northerly along easterly right-of-way line of 20th Street South for 47.9 feet; thence angle right and run northeasterly along the southeasterly right-of-way line of Magnolia Avenue South for 169.3 feet, more or less; thence angle left and run northerly for 406.0 feet, more or less, to a point on the southerly right-of-way line of 10th Avenue South; thence angle left and run westerly along the southerly right-of-way line of 10th Avenue South for 492.2 feet, more or less to the point of beginning.

In the event there is a conflict in the district boundary lines as set forth above and the map on file in the office of the city clerk, the boundary lines depicted on the map on file in the office of the city clerk and as designated by signage and markers in the district shall govern.
(Ord. No. 19-199, § 1, 12-26-2019)

Sec. 12-10-99. Reserved.

Sec. 12-10-100. Parking deck.

Entertainment district drink containers containing alcoholic beverages shall not be allowed in the public parking deck at 2012 Magnolia Avenue. Signs shall be posted at the entrances to inform the public that open containers and drinking are not allowed within the parking deck.
(Ord. No. 19-199, § 1, 12-26-2019)

Sec. 12-10-101. Effective dates for the district.

This designation of the district shall be effective on _____, 2019 and when published as required by law. The designation shall continue until modified, suspended or revoked by the city council.
(Ord. No. 19-199, § 1, 12-26-2019)

Sec. 12-10-102. Operating hours.

The regular operating hours for the district shall be:

Thursday - 5:00 p.m. to 11:00 p.m.

Friday - 5:00 p.m. to Midnight (12:00 a.m.)

Saturday and Sunday - 10:00 a.m. to Midnight (12:00 a.m.)

The Five Points Alliance may vest the chairman of the Association with authority to reduce or restrict the regular hours of operation when necessary for protection of the health, safety and welfare for businesses and visitors to the district.

Any special event to be held within the district boundaries at any time in which outside vendors of alcoholic beverages will participate must be licensed in accordance with Alabama Alcoholic Beverage Control Board rules and regulations.

The Five Points Alliance may designate "special district events" at times other than the regular operating hours authorized by this ordinance. Special district events shall be conducted in accordance with all laws and regulations authorizing and establishing the entertainment district. No outside vendors of alcoholic beverages shall be allowed to participate in a special district

event. The Five Points Alliance shall notify the chief of police or his or her designee no later than two weeks prior to the special district event.

Notwithstanding any provision of this division to the contrary, any permanent change to the regular operating hours of the district shall be by amendment of this division.
(Ord. No. 19-199, § 1, 12-26-2019)

Sec. 12-10-103. Signage.

District signs and markers shall conform to the plan submitted by the Five Points Alliance and approved by the design review committee and which is on file in the office of the city clerk. Notwithstanding any provision of Ordinance No. 13-118 to the contrary, the regular operating hours of the district shall not be required to be posted on the district signs and markers at the perimeter and entrances to the district. The regular hours shall be posted on signs at the licensed premises of the retail licensees in the district. The Five Points Alliance shall be responsible for communicating the hours for special district events to its tenant licensees participating in the district and to the public.
(Ord. No. 19-199, § 1, 12-26-2019)

Sec. 12-10-104. Containers.

Cups for consumption of alcoholic beverages in the outdoor portions of the district shall comply with Ordinance No. 13-118. After a patron exits a licensed premises with a carry-out cup, the cup shall not be carried back into the premises where purchased or into any other licensed premises within the district.
(Ord. No. 19-199, § 1, 12-26-2019)

Sec. 12-10-105. Minors.

Each vendor within the district shall ensure that all of its employees comply with and adhere to Ala. Admin. Code r. 20-X-6-.09, "Minors", and that each employee is trained on the acceptable identification required to purchase alcoholic beverages.
(Ord. No. 19-199, § 1, 12-26-2019)

Division 5. Avondale Entertainment District

Sec. 12-10-106. Established.

Subject to the provisions of Ala. Act No. 2012-438, as amended, and Ordinance No. 13-118, there is hereby established an entertainment district that shall be known as the "Avondale Entertainment District", as generally described below and which is also shown on a map on file in the office of the city clerk and incorporated herein by reference.
(Ord. No. 20-107, § 1, 6-29-2020)

Sec. 12-10-107. District boundaries.

The Avondale Entertainment District shall generally consist of facilities and property located in that area of the City of Birmingham known as "Avondale". The boundaries of the district are designated as follows:

The boundaries shall:

Begin at the northwest corner of the intersection of the north right-of-way line of 2nd Avenue South with the west right-of-way line of 40th Street South; thence run east along the north right-of-way line of 2nd Avenue South for a distance of 355.0 feet; thence angle left and run north for 140.0 feet to a point on the south right-of-way line of 1st Avenue Alley South; thence angle right and run east along the south line of 1st avenue alley south and the extension thereof for 195.0 feet to the southeast corner of the intersection of the south line of 1st Avenue Alley South with the east line of 41st Street South; thence angle right and run south along the east line of 41st Street South for 140.0 feet to the northeast corner of the intersection of the east line of 41st Street South with the north line of 2nd Avenue South; thence angle left and run east along the north line of 2nd Avenue South for 150.0 feet; thence angle left and run north for 140.0 feet; thence angle right and run east for 100.00 feet; thence angle right and run south for 140.0 feet to a point on the north line of 2nd Avenue South; thence angle left and run east along the north line of 2nd Avenue South for 230.0 feet to a point on the east line of 42nd Street South; thence angle right and run

south along the east line of 42nd Street South for 380.0 feet to a point on the north line of 3rd Avenue South; thence angle right and run west along the north line of 3rd Avenue South for 480.0 feet to a point on the east line of 41st Street South; thence angle left and run south along the east line or 41st Street South for 330.0 feet; thence angle left and run east for 100.0 feet; thence angle right and run south for 225.0 feet; thence angle right and run west for 100.0 feet to a point on the east line of 41st Street South; thence angle left and run south along the east line of 41st Street South for 205.0 feet to the northeast corner of the intersection of the east line of 41st Street South with the north line of 5th Avenue South; thence angle right and run west along the north line of 5th Avenue South for 240.0 feet; thence angle right and run north for 140.0 feet to a point on the south right-of-way line of 4th Avenue Alley South; thence angle right and run east along the south line of 4th Avenue Alley South for 150.0 feet to a point on the west line of 41st Street South; thence angle left and run north along the west line of 41st Street South for 780.0 feet to a point on the north right-of-way line of 2nd Avenue Alley South; thence angle left and run west along the north line of 2nd Avenue Alley South for 100.0 feet; thence angle right and run north for 140.0 feet to a point on the south line of 2nd Avenue South; thence angle left and run west along the south line of 2nd Avenue South for 360.0 feet; thence angle right and run north for 80.0 feet, more of less, to the point of beginning.

In the event there is a conflict in the district boundary lines as set forth above and the map on file in the office of the city clerk, the boundary lines depicted on the map on file in the office of the city clerk and as designated by signage and markers in the district shall govern.
(Ord. No. 20-107, § 1, 6-29-2020)

Sec. 12-10-108. Parking.

The parking lot located in the portion of the district on 3rd Avenue South between 41st Street South and 42nd Street South shall not be specifically excluded from the district, but signs shall be posted with provisions specifically restricting the consumption of alcoholic beverages within that parking lot. Parking lots located at restaurants and other establishments are not specifically excluded from the district, but the district and the businesses responsible for those lots shall ensure that patrons comply with the regulations set out in sections 12-10-66 and 12-10-67 of the General Code of the City of Birmingham. This shall not prohibit the use of parking areas to extent service premises for ABC-licensed establishments pursuant to a special event license or emergency regulation of the Alabama ABC Board.
(Ord. No. 20-107, § 1, 6-29-2020)

Sec. 12-10-109. Effective dates for the district:

This designation of the district shall be effective on July 1, 2020 and when published as required by law. The designation shall continue until modified, suspended or revoked by the city council.
(Ord. No. 20-107, § 1, 6-29-2020)

Sec. 12-10-110. Operating hours.

The regular operating hours for the district shall be:

Thursday - 5:00 p.m.—1:00 a.m.

Friday - 5:00 p.m.—2:00 a.m.

Saturday - 11:00 a.m.—2:00 a.m.

The Avondale Merchants Association may vest the chairman of the association with authority to reduce or restrict the regular hours of operation when necessary for protection of the health, safety and welfare for businesses and visitors to the district.

Any special event to be held within the district boundaries at any time in which outside vendors of alcoholic beverages will participate must be licensed in accordance with Alabama Alcoholic Beverage Control Board rules and regulations.

The Avondale Merchants Association may designate "special district events" at times other than the regular operating hours authorized by this division. Special district events shall be

conducted in accordance with all laws and regulations authorizing and establishing the entertainment district. No outside vendors of alcoholic beverages shall be allowed to participate in a special district event. The Avondale Merchants Association shall notify the chief of police or his or her designee no later than two weeks prior to the special district event.

Notwithstanding any provision of this division to the contrary, any permanent change to the regular operating hours of the district shall be by amendment of this division.
(Ord. No. 20-107, § 1, 6-29-2020)

Sec. 12-10-111. Signage.

District signs and markers shall conform to the plan submitted by the Avondale Merchants Association and approved by the design review committee and which is on file in the office of the city clerk. Notwithstanding any provision of Ordinance No. 13-118 to the contrary, the regular operating hours of the district shall not be required to be posted on the district signs and markers at the perimeter and entrances to the district. The regular hours shall be posted on signs at the licensed premises of the retail licensees in the district. The Avondale Merchants Association shall be responsible for communicating the hours for special district events to its tenant licensees participating in the district and to the public.
(Ord. No. 20-107, § 1, 6-29-2020)

Sec. 12-10-112. Containers.

Cups for consumption of alcoholic beverages in the outdoor portions of the district shall comply with Ordinance No. 13-118. After a patron exits a licensed premises with a carry-out cup, the cup shall not be carried back into the premises where purchased or into any other licensed premises within the district.
(Ord. No. 20-107, § 1, 6-29-2020)

Sec. 12-10-113. Minors.

Each vendor within the district shall ensure that all of its employees comply with and adhere to Ala. Admin. Code r. 20-X-6-.09, "Minors", and that each employee is trained on the acceptable identification required to purchase alcoholic beverages.
(Ord. No. 20-107, § 1, 6-29-2020)

CHAPTER 11. JUNK DEALERS AND SCRAP METAL PROCESSORS*

ARTICLE A. GENERAL PROVISIONS

Sec. 12-11-1. Findings of fact.

It is hereby found and determined that:

*__Editor's note—__Acts 1957, p. 1112 (Act No. 716) is a local act from the Alabama legislature regulating junk dealers and scrap metal processors in Jefferson County and the municipalities located therein. Although the Act supersedes any municipal ordinances existing at the time of enactment, it does, however, allow a city to enact ordinances regulating this subject matter which are not in conflict with the provisions of the Act. The Act was saved from general repeal and remains in full force and effect through Code of Ala. 1975, § 11-3A-7. Furthermore, Code of Ala. 1975, § 11-3A-2(e) provides that a county may not exercise the powers granted under the local acts saved from repeal inside the corporate limits of any municipality except by contract with the municipality.

__State law reference—__State licensing requirements, Code of Ala. 1975, § 40-12-116.

(1) Damaged, worn out, scrapped, or discarded materials or objects such as, inter alia, automobiles, building materials, machinery, metal, wastepaper, rags, glassware, tinware and other scrap or junk as hereinafter defined may be stored in a dangerous or unsanitary manner in yards or other places within the city;

(2) The places in which damaged, worn out, scrapped, or discarded materials or objects or other scrap or junk are stored, or in the future may be stored, tend to become overgrown with weeds, littered with rubbish and debris and infested with rats, mice, insects, reptiles and other vermin;

(3) Such conditions tend to attract children and endanger their lives and health, spread disease, invite plundering, attract vagrants, create fire hazards and other safety and health hazards, create, extend and aggravate urban blight, interfere with the enjoyment of and reduce the value of private property and interfere with the comfort and well-being of the public;

(4) Thieves and receivers of stolen property frequently attempt to dispose of stolen property by representing it to be legitimately acquired junk or scrap; and

(5) Adequate protection of the public health, safety and welfare requires that the business of handling and dealing with junk and scrap metal be regulated and controlled.

(Code 1964, § 29-1; Code 1980, § 12-11-1)

Sec. 12-11-2. Definitions.

The following words and phrases shall have the following meanings in this chapter:

Automobile graveyard means any establishment or place of business which is maintained, used or operated for storing, keeping, buying or selling wrecked, ruined or dismantled motor vehicles or parts thereof.

Chief of police means the chief of police of the city.

Industrial consumers includes well-established and recognized foundries, mills, smelters, refiners and manufacturers.

Itinerant junk dealer or junk peddler means an individual (natural person) who buys, sells, collects or delivers scrap or junk within the city as a business or employment, but who is not an operator of a junkyard or a scrap metal processor within the city or an employee of such an operator or processor.

Junk dealer includes any person who is engaged in the business of buying and selling scrap or junk who has an established or fixed place of business in the city and who is not a scrap metal processor, as hereinabove defined, and, without limiting the generality of the foregoing, includes any person who maintains or operates an automobile graveyard as herein defined, and any person engaged in the buying or selling of secondhand refrigerators, stoves, washing machines and other appliances, or any parts thereof, which he or she stores or keeps outside of a building or structure.

Junkyard means any establishment or place of business which is maintained, operated or used for storing, keeping, buying or selling junk or scrap, or for the maintenance or operation of an automobile graveyard or the storage outside of a building or structure of secondhand refrigerators, stoves, washing machines or other appliances, or parts thereof, but shall not include the place of business or premises of a "scrap metal processor" as herein defined.

Retail source means any source other than a wholesale source.

Sale or *sell* includes any transfer of possession and the term "purchase" includes any acquisition of possession, whether by sale, barter, gift, bailment or otherwise, but shall not include the leaving of scrap on the yard or premises of a junk dealer or scrap metal processor where payment of the purchase price has not been made but awaits only an inspection or the expiration of the required time interval after notice of intention to make a retail purchase.

Scrap or *junk* includes all metals, whether ferrous or nonferrous, whether in pig or other

form, when sold as scrap, junk or salvage, to or by any junk dealer or scrap metal processor; old cordage, ropes, rags, fibers or fabrics; old rubber; old bottles or other glass, bones, wastepaper and other waste or discarded material which might be prepared to be used again in some form; without limiting the generality of the foregoing, scrap or junk shall include any used or secondhand part of railroad car, street car, locomotive, rails, railroad equipment, railroad journals, knuckle pins, railroad brasses, machinery, plumbing fixtures or parts thereof, building materials, parts of an automobile, bus or motorcycle, gas or electric fixtures or appliances or parts thereof, household hardware, wire, cable, sewer manhole covers, stormwater inlet covers, bearings, valves, pipe fittings or other used or secondhand metal articles sold or delivered as junk or salvage, including motor vehicles to be used for scrap metal or stripping of parts; and secondhand refrigerators, stoves, washing machines and other appliances, or any parts thereof, which are stored or kept outside of a building or structure.

Scrap metal processor includes any person who:

(1) Is engaged in the purchase and sale of scrap;

(2) Regularly purchases scrap in carload lots or other large shipments, directly from wholesale sources (as hereinafter defined) having a value of at least 50 percent of his or her total purchases;

(3) Owns and operates at a fixed or established place of business in the county at least four separate classes of the following enumerated classes of equipment, necessary for the sorting, grading, cutting, preparing, processing and refining of scrap for direct shipment to industrial consumers, such enumerated classes of equipment being: torch, crane, magnet, shears, breaking ball, press, melting pot (furnace or crucible) and railroad siding and loading facilities; and

(4) Has annual gross receipts from the sale of scrap of not less than $100,000.00 a year.

Wholesale source includes scrap metal processors, junk dealers, railroads, mines, well established and recognized industries, public utilities, licensed plumbers, licensed electricians, licensed automobile sales agencies, licensed automobile wreckers, and other licensed and established businesses, federal government installations and agencies, states, counties, municipalities and other public bodies.
(Code 1964, § 29-2; Code 1980, § 12-11-2)

Secs. 12-11-3—12-11-10. Reserved.

ARTICLE B. JUNK DEALERS AND ITINERANT JUNK DEALERS

Sec. 12-11-11. Notice; opportunity and request for inspection.

No junk dealer shall purchase from a retail source any pig iron, railroad material, whether ferrous or nonferrous, cast iron pipe or fittings, tuyere metals, bulldozers, roadscrapers, plumbing fixtures, office equipment, electric motors or any parts of any of the foregoing, without first mailing a notice of intention to purchase, properly addressed to the chief of police at least 48 hours before such proposed sale. Saturdays, Sundays and legal holidays shall be excluded in computing such 48 hours. Such notice shall describe the scrap to be purchased and give the name and address of the proposed seller. In the event that any junk dealer shall have reasonable cause to believe that any person offering any scrap for sale to him or her, whether from a wholesale source or a retail source, is not the lawful owner of such scrap or that such person does not have lawful authority to sell such scrap, he or she shall notify the chief of police and the scrap shall be inspected by a police officer of the city before the junk dealer shall have the right to purchase such scrap. Whether a junk dealer shall have reasonable cause or any cause whatsoever to believe that the person offering any scrap for sale to him or her is not the owner or does not have lawful authority to sell such scrap, he or she may, at his or her option, and without in any way implying any impropriety to the person offering to sell such scrap and with or without the consent of such person, advise the chief of police of the proposed sale, and he or she may also request an inspection thereof by a police officer of the city. No junk dealer shall be liable for

any action taken by a police officer as a result of any such notice or any such inspection provided for in this section.
(Code 1964, § 29-3; Code 1980, § 12-11-11)

Sec. 12-11-12. Purchases which may be made without notice and inspection.

It shall be lawful for any junk dealer to purchase any scrap direct from any wholesale source and also any scrap other than pig iron, aluminum pigs, railroad material, whether ferrous or nonferrous, cast iron pipe or fittings, tuyere metals, bulldozers, roadscrapers, plumbing fixtures, office equipment, electric motors or parts of any of the foregoing, from any retail source, without any prior notice of such purchase to or opportunity to inspect the same by any law enforcement officer except as otherwise provided in the fourth sentence of section 12-11-11.
(Code 1964, § 29-4; Code 1980, § 12-11-12)

Sec. 12-11-13. Record of purchases.

Every junk dealer shall keep a complete record of each purchase of scrap metal or junk, whether from a wholesale source or a retail source. The record shall include a complete description of the scrap or junk purchased, the purchase price, the time when purchased, and the name and address, license number and other available identification of the person from whom purchased. Such record shall be kept on forms approved by the chief of police. Such record shall be retained for at least one year following the date of purchase and shall be available at all reasonable times for inspection by the chief of police or other police officer of the city.
(Code 1964, § 29-5; Code 1980, § 12-11-13)

Sec. 12-11-14. Daily report of purchases.

Every junk dealer who shall purchase any scrap from any retail source shall mail each day to the chief of police a daily report of all purchases made during such day from retail sources and the same information concerning such scrap as is required by section 12-11-13 to be kept as a record.
(Code 1964, § 29-6; Code 1980, § 12-11-14)

Sec. 12-11-15. Sale or other disposition of scrap.

No junk dealer shall sell any scrap purchased from a retail source or permit any of his or her scrap purchased from a retail source to be sold until the expiration of 48 hours after he or she shall have mailed his or her daily report required by section 12-11-14 properly addressed to the chief of police. Saturdays and Sundays and legal holidays shall be excluded in computing such 48-hour notice. It shall be lawful for any junk dealer to sell or otherwise dispose of any scrap to an industrial consumer or to a junk dealer who is licensed by the city or to a scrap metal processor who is licensed by the city, or to sell any article for use for the purpose originally intended though sold as salvage or secondhand merchandise without notice to or the opportunity to inspect the same by any law enforcement officer, except as otherwise provided in case of notice to the chief of police or other law enforcement officer of the city in section 12-11-17.
(Code 1964, § 29-7; Code 1980, § 12-11-15)

Sec. 12-11-16. Melting pot or furnace; melting or alteration of scrap.

It shall be unlawful for any junk dealer to own, possess or operate or cause to be operated, at any junkyard or elsewhere, in connection with any junk business, any melting pot or furnace, or to melt or permit to be melted any scrap or junk purchased by him or her in his or her possession or in his or her junkyard or place of business.
(Code 1964, § 29-8; Code 1980, § 12-11-16)

Sec. 12-11-17. Authority of chief of police to require inspection of scrap prior to sale.

The chief of police shall have authority to prohibit the sale of all or any designated part of the purchases or any designated items of the scrap of any junk dealer purchased by him or her from a retail source or from another junk dealer or scrap metal processor for such reasonable periods not exceeding ten days or until inspection thereof can be made by such chief of police as he or she shall by written notice to such junk dealer prescribe in those cases where the chief of police

shall have reasonable cause to believe that such items have been stolen or sold without authority of the owner thereof. Upon receipt of such written notice any junk dealer shall set aside and hold for such reasonable time as designated or until inspection shall have been completed the scrap therein designated. It shall be the duty of the chief of police to see that scrap so designated for inspection is inspected at the earliest practicable time.
(Code 1964, § 29-9; Code 1980, § 12-11-17)

Sec. 12-11-18. Right of inspection.

The chief of police, or any police officer designated by the chief of police, or any other chief law enforcement officer of the county in which the junk dealer's business is situated, shall have the right to inspect any scrap on the yard or premises of any junk dealer at all reasonable times and if, upon any such inspection, such police officer shall have probable cause to believe that any of such scrap found on such premises is stolen property, it shall be his or her duty to segregate the articles which he or she shall have probable cause to believe are stolen, and it shall thereupon be unlawful for any person to remove the same or dispose of, mutilate, melt, disfigure or interfere with the property so segregated until the lapse of ten days from date of such inspection and not then if within such time it is determined that such scrap is stolen property.
(Code 1964, § 29-10; Code 1980, § 12-11-18)

Sec. 12-11-19. Purchases from minors.

It shall be unlawful for any junk peddler or junk dealer to buy or receive any scrap from any person under the age of 18 years.
(Code 1964, § 29-11; Code 1980, § 12-11-19)

Sec. 12-11-20. Unlawful to buy, sell or possess scrap otherwise than as permitted by chapter.

(a) It shall be unlawful for any junk peddler, junk dealer or itinerant junk dealer, to purchase, buy, obtain, sell or otherwise dispose of any scrap or junk otherwise than as permitted by this chapter.

(b) It shall be unlawful for any junk peddler, junk dealer or itinerant junk dealer to possess any junk or scrap which was obtained by him or her in violation of any provisions of this chapter for which any report relating to such junk or scrap required by this chapter was not made.

(c) It shall be unlawful for any junk dealer or itinerant junk dealer to fail to comply with any requirement prescribed by this chapter to be complied with in the operation of his or her business licensed hereunder or to violate any provision of this chapter relating to the operation of such business.
(Code 1964, § 29-12; Code 1980, § 12-11-20)

Sec. 12-11-21. Business hours.

It shall be unlawful for any person engaged in operating a junkyard or engaged in the business of buying or selling scrap or junk to purchase, sell, barter, exchange, receive or accept delivery of, or deliver any scrap or junk to or from a retail source at any time other than between the hours of 6:00 a.m. and 8:00 p.m.
(Code 1964, § 29-13; Code 1980, § 12-11-21)

Sec. 12-11-22. Concealment.

It shall be unlawful for any junk dealer, or junk peddler, to conceal any scrap or junk in any residence or house or by burying it in the ground or by concealing it in any place whatsoever where the same is not open for inspection; provided that this section shall not be construed to prohibit ordinary safekeeping or storage of items for protection where such items are made available for inspection upon request of a police officer.
(Code 1964, § 29-14; Code 1980, § 12-11-22)

Sec. 12-11-23. Shipping.

It shall be unlawful for any junk dealer or junk peddler to deliver to any railroad, or common carrier for transportation to another city or state or to any point outside of the city, or to transport upon the streets of the city or cause to be transported in or over the streets of the city for such purpose any scrap or junk required to have been inspected under section 12-11-11 unless such scrap or junk shall have been so inspected.
(Code 1964, § 29-15; Code 1980, § 12-11-23)

Sec. 12-11-24. Display of information on vehicles.

It shall be unlawful for any junk dealer or peddler to buy or transport any scrap or junk in any truck, wagon, handcart, hand wagon or other vehicle in the city unless such person shall have printed on such vehicle in large letters of not less than six inches in height, the name of such junk dealer or peddler operating the same and the number of the license of such junk dealer or junk peddler; provided that this section shall not apply to the transportation of motor vehicle parts where made in passenger cars.
(Code 1964, § 29-16; Code 1980, § 12-11-24)

Sec. 12-11-25. Employment of persons under 18.

It shall be unlawful for any junk dealer, or peddler, to employ, apprentice, engage or to suffer, cause or allow any person under the age of 18 years to be employed, apprenticed or engaged to work in his or her junkyard or on his or her junk wagon or other vehicle as driver, buyer or in any other capacity in connection with the junk or scrap metal business.
(Code 1964, § 29-17; Code 1980, § 12-11-25)

Sec. 12-11-26. Public ways.

It shall be unlawful for any junk dealer or junk peddler, or any person operating or in charge of a junkyard or automobile graveyard to store, leave, park or permit any scrap or junk owned by or in the possession of him or her, or it, to be on or open upon any public street, alleyway or other public property in the city.
(Code 1964, § 29-18; Code 1980, § 12-11-26)

Sec. 12-11-27. License—Required.

(a) It shall be unlawful for any person to act as a junk dealer or operate a junkyard in the city whether personally, by agents or employees, singly, or along with some other business or enterprise, without first having obtained a license therefor from the council in accordance with the provisions of this article. A junk dealer or other person who operates more than one junkyard within the city shall be required to have in effect a separate license for each yard.

(b) It shall be unlawful for any individual to act as an itinerant junk dealer in the city without first having obtained a license therefor from the council in accordance with this article.
(Code 1964, § 29-19; Code 1980, § 12-11-27)

Sec. 12-11-28. Same—Application.

An applicant for a license under this article shall file with the city clerk a written application signed by himself or herself, if an individual; by all partners, if a partnership; and by the president or chief officer of a corporation or other organization, if a corporation or other organization, upon forms provided by the city clerk, together with six copies of such application. The application shall be sworn to by each of its signers before a notary public or other officer authorized by law to administer oaths and shall include the following information and materials:

(1) *Junk dealer applications.*

a. Name, residence address and telephone number of each individual owner, partner, or, if a corporation or other organization, each officer and director.

b. Trade names used during the previous five years by the applicant and each person signing the application, along with the locations of prior establishments.

c. Names and addresses of employers of each person signing the application during the previous five years.

d. The trade name and address of the business on behalf of which application is made and its telephone number, if assigned.

e. The name, residence address and telephone number of each person employed or intended to be employed in the business as of the time the application is filed.

f. Exact address or location of the place where the business is or is proposed to be carried on, plus a sketch of the actual premises to be used in connection with the business, giving dis-

tances in feet and showing adjoining roads, property lines, buildings and uses.

g. A description of the materials with which any buildings to be used in connection with the licensed business are, or are to be made; a sketch giving distances, showing the location of such buildings on the business premises; and a diagram or plan giving distances and heights, showing floors, exits, entrances, windows, ventilators and walls. Such sketch and description of materials shall also show and describe the location of the fence or wall surrounding or to surround the junkyard (if a junkyard is to be operated), its height, type of construction and the materials of which constructed or to be constructed.

h. Such other information as the city clerk, the chief of police, the fire chief, the health officer or the chief of inspection services shall find reasonably necessary to effectuate the purposes of this chapter and to enable the council to arrive at a fair determination of whether or not such license should be granted.

(2) *Itinerant junk dealer applications.*

a. Name, residence address and telephone number.

b. Trade names and exact locations and descriptions of any businesses operated by applicant presently and during the past five years.

c. Names and addresses of employees of applicant presently and during the past five years.

d. Names and addresses of two persons, residents of the county other than employees or relatives, who know the applicant personally.

e. A statement as to whether or not the applicant has been convicted of any crime, misdemeanor or violation of any municipal ordinance; the nature of the offense, the date of its commission; and the punishment or penalty assessed therefor.

f. A photograph of the applicant, taken within 60 days immediately prior to the date of the filing of the application, which shall be two inches by two inches showing the head and shoulders of the applicant in a clear and distinguishing manner.

g. Trade name, business address and telephone number of applicant or any employee of applicant in connection with his or her activities as an itinerant junk dealer; and a description of such activities.

h. Such other information as the city clerk or chief of police shall find reasonably necessary to effectuate the purposes of this chapter and to enable the council to arrive at a fair determination of whether or not such license should be granted.

(Code 1964, § 29-20; Code 1980, § 12-11-28)

Sec. 12-11-29. Investigation, approval and issuance of license—Junk dealers.

(a) Upon receipt of an application for a junk dealer's license as provided for herein, the city clerk shall furnish a copy of such application to the chief of police, the chief of inspection services, the health officer and the fire and rescue chief for their recommendations.

(b) The chief of police shall recommend the approval of the application only if he or she finds that the applicant's business responsibility and moral character are satisfactory and that all agents or officers of applicant, if any, who will take part in the operation of such business are of good character and reputation and capable of operating the business in a manner consistent with public health, safety and good morals.

(c) The chief of inspection services shall recommend the approval of the application only if he or she finds that any proposed or existing buildings

or equipment with which the junkyard is being or is to be operated conform to the requirements of the building code, the requirements of this chapter and other applicable codes and ordinances of the city and laws of the state and also that such business is or will be situated in an area or district of the city which is zoned so as to permit the operation of a junkyard therein.

(d) The health officer shall recommend approval of the application only if he or she finds that the proposed or existing premises and equipment conform to the requirements of this chapter and all applicable health laws, ordinances and regulations.

(e) The fire and rescue chief shall recommend approval of the application only if he or she finds that the proposed or existing premises and equipment conform to the requirements of this chapter and all applicable fire prevention laws, ordinances, codes and regulations.

(f) The chief of police, chief of inspection services, health officer and fire and rescue chief shall within a reasonable time after receipt of an application, but not in excess of 30 days, each make their recommendation in writing to the city clerk, together with the findings upon which such recommendation is based.

(g) Upon receipt of all such recommendations, the city clerk shall submit the application, together with such recommendations to the council. The council shall set a public hearing to be held on such application before the council at a regular or special meeting to be held within 45 days after submission of the application to the council by the city clerk. The city clerk shall notify the applicant of the time and place of such public hearing. The council may, however, prior to such public hearing, upon written request therefor, grant a temporary junk dealer's permit for a term of 30 days, but in no event to extend beyond any denial by the council of an application for a regular junk dealer's license, as provided for in this section.

(h) At such public hearing or any adjournment thereof, the council shall hear any person who desires to be heard on any issue relevant to the granting or refusal of the license applied for.

(i) After such hearing the council may at such meeting or any other regular or special meeting consider such application, the recommendations required to be submitted to it, relevant evidence offered by any party at the public hearing, including the applicant and such other information and knowledge it may have bearing upon such application and if it determines that the applicant's business responsibility and moral character are satisfactory and that all agents or officers of applicant, if any, who will take part in the operation of such business are of good character and reputation and capable of operating the business in a manner consistent with public health, safety and good morals and the operation of such business will be in accordance with and in compliance with the requirements of this chapter and all other applicable laws, ordinances, codes and regulations of the city, county board of health, and the state, then in such event it shall grant such application, otherwise the application shall be denied. In the granting or refusal of such application the council shall be deemed to act in a judicial capacity.
(Code 1964, § 29-21; Code 1980, § 12-11-29; Ord. No. 03-24, 2-25-2003)

Sec. 12-11-30. Same—Itinerant junk dealers.

(a) Upon receipt of an application for an itinerant junk dealer's license as provided for herein the city clerk shall furnish a copy of the same to the chief of police who shall cause an investigation to be made of the applicant's business responsibility and moral character within 30 days after receipt of such application make a recommendation in writing to the city clerk, together with his or her findings upon which such recommendation is based.

(b) Upon receipt of the recommendation of the chief of police as to an application for an itinerant junk dealer's license, the city clerk shall submit the same to the council and the council shall set and hold a public hearing thereon, all within the time periods and as prescribed for a junk dealer's license under section 12-11-29.

(c) After the public hearing on an application for an itinerant junk dealer's license, the council may at such meeting or any other regular or

special meeting consider such application, the recommendations required to be submitted to it, relevant evidence offered by any party at the public hearing including the applicant and such other information and knowledge it may have bearing on such application and if it determines that the applicant's business responsibility and moral character are satisfactory and that the operation of such business will be in accordance with and in compliance with the requirements of this chapter, and all other applicable laws, ordinances, codes and regulations of the city, county board of health and the state and otherwise in a safe manner and so as not to become a nuisance or street obstruction, then in such event it shall grant such application, otherwise the application shall be denied. In granting or refusing such application, the council shall be deemed to act in a judicial capacity.
(Code 1964, § 29-22; Code 1980, § 12-11-30)

Sec. 12-11-31. License—Period.

(a) The applications provided for in this article shall be sufficient to cover the license in question from year to year, unless the council shall have reasonable cause to believe that the conditions found upon the last application shall have changed, in which event the council may, by resolution, require such applicant or licensee to present a new application to be considered by the council under the same requirements as an original application and either granted or refused under the same provisions as applicable to an original application.

(b) Failure of a licensee to present a new application as required hereunder within 30 days after demanded to do so by the council shall have the effect of terminating the license theretofore granted by the council or any predecessor governing body. Denial by the council of any such new application shall have the effect of terminating as of 30 days after the date of such denial the existing license theretofore granted by the council or any predecessor governing body of the city.
(Code 1964, § 29-23; Code 1980, § 12-11-31)

Sec. 12-11-32. Same—Bond required; tax.

(a) Before any license is issued to operate a junkyard or otherwise to a junk dealer, the operator of such yard or place shall execute a bond payable to the city in the penal sum of $5,000.00 with two or more good and sufficient personal sureties, or in lieu of such personal sureties, a surety company authorized to do business in the state, conditioned to pay to the owner such sums as shall be necessary to replace, in its pre-theft condition, any property which may be stolen from such owner and which the operator of such junkyard or other place may purchase or receive contrary to or in violation of any provision of this chapter or any other law of the city or the state.

(b) Each such applicant shall pay to the director of finance, for the use of the city, a license tax for the privilege of engaging in such business in the amount specified in the then-current license code and shall each year thereafter pay to the director of finance such amount as is specified for such business in the then-current license code so long as his or her license is in effect.
(Code 1964, § 29-24; Code 1980, § 12-11-32)

Sec. 12-11-33. Same—Issuance and form.

Whenever the council shall have approved the grant of a license under this article and upon presentation to the city clerk of the bond provided in section 12-11-32, the director of finance, upon payment of the sum so fixed, shall issue to such person a license on which shall be stamped a provision that the license shall be subject to revocation in the event of the conviction of the licensee of buying, receiving or concealing stolen property.
(Code 1964, § 29-25; Code 1980, § 12-11-33)

Sec. 12-11-34. Effect of conviction of licensee, etc., for violation of chapter.

Upon the conviction of any junk dealer or junk peddler licensed under this article in the municipal court or any other court of the state of the offense of buying, receiving or concealing stolen property, the license issued to such person may be canceled and annulled after notice and hearing before the council. The conviction in the municipal court of any junk dealer or junk peddler, licensed under this article or of any agent, servant or employee of such licensee while such servant, agent or employee was acting within the line and scope of his or her employment in the

licensee's business, for the violation of any of the provisions of this chapter, shall be cause, after due notice from and hearing before the council, to cancel and annul the license issued to such junk dealer or junk peddler.
(Code 1964, § 29-26; Code 1980, § 12-11-34)

Sec. 12-11-35. License nontransferable.

No license issued under this article shall be transferred or assigned or used by any person other than the one to whom it was issued and no junk dealer's license shall be used at any location other than the one described in the application upon which it was issued.
(Code 1964, § 29-27; Code 1980, § 12-11-35)

Sec. 12-11-36. General operating requirements.

(a) In addition to any other provision or provisions of this chapter, the following general operating requirements shall apply to all junk dealers licensed under this article:

(1) The license issued pursuant to this article shall be plainly displayed on the business premises.

(2) The junkyard, together with things kept therein, shall at all times be maintained in a sanitary condition.

(3) No space not covered by the license shall be used in the licensed business.

(4) No water shall be allowed to stand in any place on the premises, in such manner as to afford a breeding place for mosquitoes.

(5) Weeds and vegetation on the premises, other than trees and cultivated shrubs shall be kept at a height of not more than four inches.

(6) No garbage or other waste liable to give off a foul odor or attract vermin shall be kept on the premises other than in garbage cans or containers meeting the requirements of this Code; nor shall any other refuse of any kind be kept on the premises, unless such refuse is junk or scrap as defined herein and is in use in the licensed business.

(7) No scrap or junk shall be allowed to rest upon or protrude over any public street, walkway or curb or become scattered or blown off the business premises.

(8) Scrap or junk shall be stored so as to permit easy access to all such scrap or junk for firefighting purposes.

(9) No combustible material of any kind not necessary or beneficial to the licensed business shall be kept on the premises nor shall the premises be allowed to become a fire hazard.

(10) Gasoline shall be removed and kept free from any scrapped engines or vehicles on the premises.

(11) No junk or other material shall be burned on the premises in any incinerator not meeting the requirements of the building code and the fire prevention code and other applicable ordinances of the city; and no junk or other material shall be burned on the premises in the open except in accordance with and as permitted by the code and ordinances of the city relating to fire prevention.

(12) No noisy processing of scrap or junk or other noisy activity shall be carried on in connection with the licensed business on Sunday, Christmas Day, Thanksgiving Day or at any time between the hours of 6:00 p.m. and 7:00 a.m.

(13) Every junkyard where scrap or junk is kept (other than indoors) shall be enclosed, except for entrances and exits with a solid or otherwise nontransparent, vertical wall or fence of a minimum height of eight feet measured from ground level. Entrances and exits shall not be wider or more numerous than reasonably necessary for the conduct of the licensed business; provided that the council may waive or modify the requirement of this subsection when it finds as to a particular junkyard that:

a. It is or will be adequately screened by natural objects, plantings, fences or other appropriate means so as not

to be visible from adjacent public ways opened to travel and there is no adjacent residentially occupied land; or

b. A fence of less than eight feet in height or of a different type of construction at a particular location will adequately screen the junkyard so as not to be visible from adjacent public ways open to travel and will be adequate to discourage trespasses by children and vagrants and ingress and egress thereto and therefrom by rats, mice, reptiles and other vermin; and provided further that the council may waive the requirements for a fence along a railroad right-of-way when it finds that to require such fence at the particular location is not reasonably necessary to further the purposes of this subsection.

(14) The licensee shall permit at any reasonable time inspection of the business premises by the chief of police, any police officer of the city and by any other officer or employee of the city authorized by the mayor to make any such inspection.

(15) No junkyard shall be allowed to become a nuisance; nor shall any junkyard be operated in such a manner as to become injurious to the health, safety or welfare of the community or any residents close by.

(b) In addition to any other provision or provisions of this chapter, the following general operating requirements shall apply to all itinerant junk dealers licensed under this article:

(1) The licensee shall have the license issued to him or her under this article in his or her immediate possession at all times when he or she is acting as an itinerant junk dealer in the city and shall exhibit it to any person upon request.

(2) He or she shall not purchase or receive any scrap or junk from any person under the age of 19 years.

(3) He or she shall record in English in a permanent type register each acquisition of scrap or junk within the city, giving the name and residence address of the person from whom the acquisition was made, a description of the scrap or junk acquired and report such acquisition together with the above information to the chief of police within 12 hours after such acquisition.

(4) In the acquisition of scrap or junk by purchase or otherwise and in the sale or other disposal thereof an itinerant junk dealer shall observe and comply with each and every provision of this chapter which would be applicable to such acquisition or disposal had such been made by a junk dealer instead of an itinerant junk dealer.

(Code 1964, § 29-28; Code 1980, § 12-11-36)

Sec. 12-11-37. Revocation and suspension of license.

In addition to any other provision of this article providing for the termination, cancellation or invalidation of any license issued hereunder when the council determines that the public interest so requires, it shall revoke or suspend the license of any junk dealer or itinerant junk dealer if it finds, after due investigation, that:

(1) The junk dealer, or any agent or officer of such dealer who takes part in the operation of the licensed business, or the itinerant junk dealer is not of good character or reputation or is not capable of operating the licensed business or carrying on the licensed activity in a manner consistent with public health, safety and good morals;

(2) The junk dealer has failed to comply with the provisions of this chapter or any provision of law applicable to the premises, equipment or operation of the licensed business or the itinerant junk dealer has failed to comply with any provision of this chapter or any provision of law applicable to his or her equipment or licensed operations;

(3) The licensee has obtained his or her license through any fraud or misstatement;

(4) The licensed business or activity is being conducted in a manner detrimental to the health, safety or general welfare of the public, or is a nuisance, or is being operated or carried on in any unlawful manner; or

(5) The licensed business or activity is no longer being operated or carried on.

(Code 1964, § 29-29; Code 1980, § 12-11-37)

Secs. 12-11-38—12-11-50. Reserved.

ARTICLE C. SCRAP METAL PROCESSORS

Sec. 12-11-51. Findings of fact.

It is hereby found and determined that:

(1) The business of acquiring, grading, cutting, preparing, processing and refining scrap metal for industrial consumption by scrap metal processors (as herein defined), has become one of the important businesses in the city, conducted in the same manner as other large businesses and with the same necessity for accurate business records and prompt decisions and actions;

(2) Persons qualifying as scrap metal processors are engaged in an essential business, important in our economy and necessary for the manufacture of important industrial products;

(3) Scrap metal processors conduct their business and affairs in a manner different from that of junk dealers and automobile wrecking yards; and

(4) Adequate protection of the public health, safety and welfare requires that the business of handling and dealing with scrap metal be regulated and controlled.

(Code 1964, § 29-31; Code 1980, § 12-11-51)

Sec. 12-11-52. Notice, opportunity and request for inspection.

No scrap metal processor shall purchase from a retail source any pig iron, railroad material, whether ferrous or nonferrous, cast iron pipe or fittings, tuyere metals, bulldozers, roadscrapers, plumbing fixtures, office equipment, electric motors or any parts of any of the foregoing, without first mailing a notice of intention to purchase properly addressed to the chief of police or other chief law enforcement officer of the city at least 48 hours before such proposed sale. Saturdays, Sundays and legal holidays shall be excluded in computing such 48 hours. Such notice shall describe the scrap to be purchased and give the name and address of the proposed seller. In the event that any scrap metal processor shall have reasonable cause to believe that any person offering any scrap for sale to him or her, whether from a wholesale source or a retail source, is not the lawful owner of such scrap or that such person does not have the lawful authority to sell such scrap, he or she shall notify the chief of police or other chief law enforcement officer of the city and the scrap shall be inspected by a police officer of the city before the scrap metal processor shall have the right to purchase such scrap. Whether a scrap metal processor shall have reasonable cause or any cause whatsoever to believe that the person offering any scrap for sale to him or her is not the owner or does not have lawful authority to sell such scrap, he or she may, at his or her option, and without in any way implying any impropriety to the person offering to sell such scrap and with or without the consent of such person, advise the chief of police or other chief law enforcement officer of the city of the proposed sale, and he or she may also request an inspection thereof by a police officer of the city. No scrap metal processor shall be liable for any action taken by a police officer as a result of any such notice or any such inspection provided for in this section.

(Code 1964, § 29-32; Code 1980, § 12-11-52)

Sec. 12-11-53. Purchases which may be made without notice and inspection.

It shall be lawful for any scrap metal processor to purchase any scrap direct from any wholesale

source and also any scrap other than pig iron, aluminum pigs, railroad material, whether ferrous or nonferrous, cast iron pipe or fittings, tuyere metals, bulldozers, roadscrapers, plumbing fixtures, office equipment, electric motors or parts of any of the foregoing, from any retail source without any prior notice of such purchase to, or opportunity to inspect the same by any law enforcement officer except as otherwise provided in the fourth sentence of section 12-11-52.
(Code 1964, § 29-33; Code 1980, § 12-11-53)

Sec. 12-11-54. Record of purchases.

Every scrap metal processor shall keep a complete record of each purchase of scrap metal, whether from a wholesale source or a retail source. The record shall include a complete description of the scrap purchased, the purchase price, the time when purchased, and the name and address, license number and other available identification of the person from whom purchased. Such record shall be kept on forms approved by the chief of police or other chief law enforcement officer of the city. Such record shall be retained for at least one year following the date of purchase and shall be available at all reasonable times for inspection by the chief of police or other police officer of the city authorized by the chief of police.
(Code 1964, § 29-34; Code 1980, § 12-11-54)

Sec. 12-11-55. Daily report of purchases.

Every scrap metal processor who shall purchase any scrap from any retail source shall mail to the chief of police a daily report of all purchases from retail sources and the same information concerning such scrap as is required by section 12-11-54 to be kept as a record.
(Code 1964, § 29-35; Code 1980, § 12-11-55)

Sec. 12-11-56. Sale or other disposition of scrap.

No scrap metal processor shall sell any scrap purchased from a retail source or permit any of his or her scrap purchased from a retail source to be sold until the expiration of 48 hours after he or she shall have mailed his or her daily report required by section 12-11-55 properly addressed to the chief of police. Saturdays and Sundays and legal holidays shall be excluded in computing such 48-hour notice. It shall be lawful for any scrap metal processor to sell or otherwise dispose of any scrap to an industrial consumer, or to a scrap metal processor who is licensed by the city or to a junk dealer who is licensed by the city, or to sell any article for use for the purpose originally intended though sold as salvage or secondhand merchandise without notice to or the opportunity to inspect the same by any law enforcement officer, except as otherwise provided in cases of notice by the chief of police in section 12-11-58.
(Code 1964, § 29-36; Code 1980, § 12-11-56)

Sec. 12-11-57. Melting pot or furnace; melting or alteration of scrap.

It shall be lawful for any scrap metal processor to own or operate as a part of his or her processing equipment any melting pot, furnace or crucible. No scrap metal processor shall melt, alter, change or deface or permit to be melted, altered, changed or defaced any scrap purchased from a retail source until the expiration of 48 hours after he or she shall have mailed his or her daily report required by section 12-11-55, properly addressed to the chief of police. Saturdays, Sundays and legal holidays shall be excluded in computing such 48 hours. No notice of or waiting period for any such melting, alteration, change or defacement by a scrap metal processor of scrap purchased from a wholesale source shall, however, be required.
(Code 1964, § 29-37; Code 1980, § 12-11-57)

Sec. 12-11-58. Authority of chief of police to require inspection of scrap prior to sale.

The chief of police shall have authority to prohibit the sale of all or any designated part of the purchases or any designated items of the scrap of any scrap metal processor purchased by him or her from a retail source or from another scrap metal processor or from a junk dealer for such reasonable periods not exceeding ten days or until inspection thereof can be made by such chief of police as he or she shall by written notice to such scrap metal processor prescribe, in those cases where the chief of police shall have reasonable cause to believe that such items have been

stolen or sold without authority of the owner thereof. Upon receipt of such written notice any scrap metal processor shall set aside and hold for such reasonable time as designated or until inspection shall have been completed the scrap therein designated. It shall be the duty of the chief of police to see that scrap so designated for inspection is inspected at the earliest practicable time.
(Code 1964, § 29-38; Code 1980, § 12-11-58)

Sec. 12-11-59. Right of inspection.

The chief of police, any police officer designated by the chief of police, or any other chief law enforcement officer of the county in which the scrap metal processor's is situated, shall have the right to inspect any scrap in the yard or premises of any scrap metal processor at all reasonable times.
(Code 1964, § 29-39; Code 1980, § 12-11-59)

Sec. 12-11-60. Purchases from minors.

It shall be unlawful for any scrap metal processor to buy or receive any scrap from any person under the age of 18 years.
(Code 1964, § 29-40; Code 1980, § 12-11-60)

Sec. 12-11-61. Stolen property.

If upon any inspection the inspecting officer shall have reasonable cause to believe that any of the material inspected is stolen property, it shall be his or her duty to segregate the articles which he or she shall have probable cause to believe are stolen and it shall thereupon be unlawful for any person to remove the same or dispose of, mutilate, melt, disfigure or interfere with the property so segregated until the lapse of ten days from the date of such inspection and not then if within such time it is determined that such scrap is stolen property.
(Code 1964, § 29-41; Code 1980, § 12-11-61)

Sec. 12-11-62. Business hours.

It shall be unlawful for any person engaged in operating a scrap metal processing yard or engaged in the business of buying or selling scrap to purchase, sell, barter, exchange, receive or accept delivery of or deliver any scrap to or from a retail source at any time other than between the hours of 6:00 a.m. and 8:00 p.m.
(Code 1964, § 29-42; Code 1980, § 12-11-62)

Sec. 12-11-63. Concealment.

It shall be unlawful for any scrap metal processor to conceal any scrap as is described in this chapter in any residence or house or by burying it in the ground or in any other place where the same is not open for inspection; provided that this section shall not be construed to prohibit ordinary safekeeping of items for protection where such items are made available for inspection upon request of a police officer.
(Code 1964, § 29-43; Code 1980, § 12-11-63)

Sec. 12-11-64. Foundries.

It shall be unlawful for any person operating a brass or copper foundry or any machine shop or foundry or furnace to place in any such furnace or in a melting pot to be melted and disfigured, rendered unrecognizable or more difficult of identification, any scrap purchased from a retail source unless such person shall have complied with the requirements of sections 12-11-52, 12-11-54, 12-11-55, 12-11-56, 12-11-58, 12-11-59, 12-11-60 and 12-11-61; and the chief of police or any police officer shall have the right to enter at any reasonable time any such brass or copper foundry, machine shop, foundry or furnace and the premises used in connection therewith for the purpose of inspecting any scrap located on such premises, and if, upon any such inspection, such police officer shall have probable cause to believe that any of such scrap found on such premises is stolen property, it shall be his or her duty to segregate the articles which he or she shall have probable cause to believe are stolen, and it shall thereupon be unlawful for any person to remove the same or dispose of, mutilate, melt, disfigure or interfere with the property so segregated until the lapse of ten days from date of such inspection and not then if within such time it is determined that such scrap is stolen property.
(Code 1964, § 29-44; Code 1980, § 12-11-64)

Sec. 12-11-65. License—Required.

It shall be unlawful for any person to engage in the business of a scrap metal processor in the city without obtaining a license therefor from the council in accordance with the provisions of this article.
(Code 1964, § 29-45; Code 1980, § 12-11-65)

Sec. 12-11-66. Same—Application.

An applicant for a license under this article shall file with the city clerk a written application signed by himself or herself, if an individual; by all partners. if a partnership; and by the president or chief officer of a corporation or other organization, if a corporation or other organization, upon forms provided by the city clerk, together with six copies of such application. The application shall be sworn to by each of its signers before a notary public or other officer authorized by law to administer oaths and shall include the following information or materials:

(1) Name, residence address, and telephone number of each individual owner, partner or, if a corporation or other organization, each officer and director.

(2) Trade names used during the previous five years by the applicant and each person signing the application, along with the locations of prior establishments.

(3) Names and addresses of employers of each person signing the application during the previous five years.

(4) The trade name and address of the business on behalf of which application is made and its telephone number, if assigned.

(5) The name, residence address and telephone number of each person employed or intended to be employed in the business as of the time the application is filed.

(6) Exact address or location of the place where the business is or is proposed to be carried on, plus a sketch of the actual premises to be used in connection with the business, giving distances in feet and showing adjoining roads, property lines, buildings and uses.

(7) A description of the materials with which any buildings to be used in connection with the licensed business are, or are to be made; a sketch giving distances, showing the location of such buildings on the business premises; and a diagram or plan giving distances and heights, showing floors, exits, entrances, windows, ventilators and walls. Such sketch and description of materials shall also show and describe the location of the fence or wall surrounding or to surround the junkyard or automobile wrecking yard (if a junkyard is to be operated), its height, type of construction and the materials of which constructed or to be constructed.

(8) Such other information as the city clerk, the chief of police, the fire and rescue chief, the health officer or the chief of inspection services shall find reasonably necessary to effectuate the purposes of this chapter and to enable the council to arrive at a fair determination of whether or not such license should be granted.

(Code 1964, § 29-46; Code 1980, § 12-11-66)

Sec. 12-11-67. Same—Investigation, approval and issuance.

(a) Upon receipt of an application for a scrap metal processor's license as provided for herein the city clerk shall furnish a copy of such application to the chief of police, the chief of inspection services, the health officer and the fire and rescue chief for their recommendations.

(b) The chief of police shall recommend the approval of the application only if he or she finds the applicant's business responsibility and moral character are satisfactory and that all agents or officers of applicant, if any, who will take part in the operation of such business are of good character and reputation.

(c) The chief of inspection services shall recommend the approval of the application only if he or she finds that any proposed or existing buildings or equipment with which the scrap yard is being

or is to be operated conform to the requirements of the building code, the requirements of this chapter and other applicable codes and ordinances of the city and laws of the state and also that such business is or will be situated in an area or district of the city which is zoned so as to permit the operation of a scrap yard therein.

(d) The health officer shall recommend approval of the application only if he or she finds that the proposed or existing premises and equipment conform to the requirements of this chapter and all applicable health laws, ordinances and regulations.

(e) The fire and rescue chief shall recommend approval of the application only if he or she finds that the proposed or existing premises and equipment conform to the requirements of this chapter and all applicable fire prevention laws, ordinances, codes and regulations.

(f) The chief of police, chief of inspection services, health officer and fire and rescue chief shall within a reasonable time after receipt of an application, but not in excess 30 days, each make their recommendation in writing to the city clerk, together with the findings upon which such recommendation is based.

(g) Upon receipt of all of such recommendations, the city clerk shall submit the application, together with such recommendation, to the council. The council shall set a public hearing to be held on such application before the council at a regular or special meeting to be held within 21 days after submission of the application to the council by the city clerk. The city clerk shall notify the applicant of the time and place of such public hearing.

(h) At such public hearing or any adjournment thereof, the council shall hear any person who desires to be heard on any issue relevant to the granting or refusal of the license applied for.

(i) After such hearing the council may at such meeting or any other regular or special meeting consider such application, the recommendations required to be submitted to it, relevant evidence offered by any party at the public hearing, including the applicant and such other information and knowledge it may have bearing upon such application and if it determines that the applicant's business responsibility and moral character are satisfactory and that all agents or officers of applicant, if any, who will take part in the operation of such business are of good character and reputation, and capable of operating the business in a manner consistent with public health, safety and good morals and the operation of such business will be in accordance with and in compliance with the requirements of this chapter and all other applicable laws, ordinances, codes and regulations of the city, county board of health, and the state, then in such event it shall grant such application; otherwise, the application shall be denied. In the granting or refusal of such application, the council shall be deemed to act in a judicial capacity.
(Code 1964, § 29-47; Code 1980, § 12-11-67)

Sec. 12-11-68. Same—Term.

(a) The application provided for in this article shall be sufficient to cover the license in question until the council shall have reasonable cause to believe that the conditions found upon the last application shall have changed, in which event the council may, by resolution, require such applicant or licensee to present a new application to be considered by the council under the same requirements as an original application and either granted or refused under the same provisions as are applicable to an original application.

(b) Failure of a licensee to present a new application as required hereunder within 30 days after demanded to do so by the council shall have the effect of terminating the license theretofore granted by the council or any predecessor governing body. Denial by the council of any such new application shall have the effect of terminating as of 30 days after the date of such denial the existing license theretofore granted by the council, or any predecessor governing body of the city.
(Code 1964, § 29-48; Code 1980, § 12-11-68)

Sec. 12-11-69. Same—Payment of license tax.

Each such applicant shall pay to the director of finance, for the use of the city, a license tax for the privilege of engaging in such business in the amount specified in the then current license code

and shall each year thereafter pay to the director of finance such amount as is specified for such business in the then current license code so long as his or her license is in effect.
(Code 1964, § 29-49; Code 1980, § 12-11-69)

Sec. 12-11-70. Same—Issuance; form.

Whenever the council shall have determined to grant a license as authorized by this article, the director of finance, upon payment of the sum so fixed, shall issue to such person a license.
(Code 1964, § 29-50; Code 1980, § 12-11-70)

Sec. 12-11-71. Same—Effect of conviction of licensee, etc., for violation of chapter.

Upon the conviction of any scrap metal processor licensed under this article in the municipal court or any other court of the state of the offense of buying, receiving or concealing stolen property, the license issued to such person may be canceled and annulled after notice and hearing before the council. The conviction in the municipal court of a scrap metal processor licensed under this article, or of any agent, servant or employee of such licensee while such servant, agent or employee was acting within the line and scope of his or her employment in the licensee's business, for the violation of any of the provisions of this chapter, may be cause, after due notice from and hearing before the council to cancel and annul the license issued to such scrap metal processor.
(Code 1964, § 29-51; Code 1980, § 12-11-71)

Sec. 12-11-72. Same—Nontransferable.

No license issued under this article shall be transferred or assigned or used by any person other than the one to whom it was issued and no scrap metal processor's license shall be used at any location other than the one described in the application upon which it was issued.
(Code 1964, § 29-52; Code 1980, § 12-11-72)

Sec. 12-11-73. Same—Presently operating scrap metal processors.

Any scrap metal processor as herein defined who was operating a scrap metal processing business within the city on and prior to August 1, 1969, shall be granted a license by the city without complying with the provisions of sections 12-11-66 and 12-11-67; however, such scrap metal processor shall abide by and comply with all other applicable provisions of this chapter and such license may be revoked by the council as if such license were granted under sections 12-11-66 and 12-11-67.
(Code 1964, § 29-53; Code 1980, § 12-11-73)

CHAPTER 12. MASSAGE PARLORS*

ARTICLE A. GENERAL PROVISIONS

Sec. 12-12-1. "Massage parlor" defined.

For the purposes of this chapter, a "massage parlor" is hereby defined to mean any building, room, place or establishment other than a regularly licensed hospital, clinic or dispensary, where nonmedical, nonsurgical, nonosteopathic or nonchiropractic manipulative exercises, massages or procedures are practiced upon the human body or any part thereof for other than cosmetic or beautifying purposes, with or without the use of mechanical or other devices, by anyone not a physician, surgeon, osteopath, chiropractor, nurse or other person of a similarly registered status.
(Code 1964, § 31A-1; Code 1980, § 12-12-1)

Sec. 12-12-2. Display of sign.

Every massage parlor shall display a legible sign not larger than permitted by the city zoning ordinance, upon which sign the words "licensed masseur" or "licensed masseuse" or both shall conspicuously appear thereon. Such sign shall contain letters no less than three inches in height and shall be displayed in such a manner that the words "licensed masseur" or "licensed masseuse"

*__State law references__—Alabama Massage Therapy Licensure Act, Code of Ala. 1975, § 34-43-1 et seq.; municipality has power to enact local regulations regarding zoning and occupational license tax regarding massage therapists and massage therapy establishments as long as regulations are not inconsistent with the Act, Code of Ala. 1975, § 34-43-19.

may be readily observed or read by persons upon entering the premises occupied by any massage parlor.
(Code 1964, § 31A-2; Code 1980, § 12-12-2)

Sec. 12-12-3. Compliance with specifications of license.

(a) No massage parlor shall operate under any name or conduct its operation under any designation not specified in its license issued by the city in accordance with this chapter.

(b) No massage shall be administered or applied by any masseur or masseuse licensed hereunder except upon the premises of the regular place of business for which a license to operate a massage parlor has been duly issued by the city.
(Code 1964, § 31A-3; Code 1980, § 12-12-3)

Sec. 12-12-4. Compliance with health regulations and inspections.

Any massage parlor licensed under the provisions of this chapter shall at all times comply with all health regulations, rules and requirements as shall now or hereafter be promulgated by the county department of health. Any premises used for the purposes of a massage parlor shall during all hours of operation be made open and available to inspection by the county department of health for the purpose of assuring compliance with such health rules, regulations and requirements.
(Code 1964, § 31A-4; Code 1980, § 12-12-4)

Sec. 12-12-5. Cleanliness.

(a) No towels, wash cloths or other linen items that have not been boiled and laundered since last used shall come in contact with the body or any part thereof of any customer or patron at a massage parlor.

(b) Every person applying or administering massages shall cleanse his or her hands thoroughly by washing same with soap and hot water before attending or massaging any person.

(c) Any person while applying or administering massages shall be clothed from the shoulders to the knees by a robe, smock or other opaque apparel so that the person of the customer shall be protected from bodily contact with the person applying or administering the massage except for the hands and arms of such person applying or administering such massage.

(d) Any massage parlor licensed pursuant to this chapter shall be equipped with running hot and cold water and with all appliances, furnishings and materials as may be necessary to enable persons employed in and about such massage parlor to comply with the provisions of this chapter.
(Code 1964, § 31A-5; Code 1980, § 12-12-5)

Sec. 12-12-6. Employees having prior conviction for prostitution.

It shall be a violation of this chapter for any licensee hereunder to employ any operator, attendant, masseur, masseuse or other employee to perform or administer massages who has within the past 24 months been convicted for prostitution.
(Code 1964, § 31A-6; Code 1980, § 12-12-6)

Sec. 12-12-7. Manner of administering massages generally.

No masseur, masseuse or other employee or attendant in any massage parlor shall apply or administer any massage or other treatment to any person behind locked doors nor shall he or she at any time massage, manipulate, fondle or otherwise touch or have physical contact with the genitals or private parts of any patron, client or other person in any massage parlor. No customer, patron, client or other person shall at any time while in any massage parlor disrobe completely or become nude or expose his or her genitals or buttocks while in the presence of any other person of either sex.
(Code 1964, § 31A-7; Code 1980, § 12-12-7)

Sec. 12-12-8. Use as dormitory.

No massage parlor shall be used as and for a dormitory or place of sleep nor shall any licensee under this chapter permit any massage parlor to be so used.
(Code 1964, § 31A-8; Code 1980, § 12-12-8)

Secs. 12-12-9—12-12-20. Reserved.

ARTICLE B. LICENSES

Sec. 12-12-21. Health examinations.

No applicant for a license to conduct or operate a massage parlor nor any applicant for a masseur or masseuse license as hereinafter required shall be granted same unless he or she shall first present for inspection to the city a written verification by a licensed physician, bearing a date not more than 20 days prior to the date of application, evidencing that such applicant is free of any contagious, infectious or communicable disease. No masseur, masseuse or other employee or attendant applying or administering massages shall be employed in any massage parlor without first having obtained a license as provided in this article.
(Code 1964, § 31A-9; Code 1980, § 12-12-21)

Sec. 12-12-22. Defacing licenses prohibited.

It shall be unlawful for any person except the director of finance to change, amend or deface any license issued under this article, except upon the expiration of the license period shown.
(Code 1964, § 31A-10; Code 1980, § 12-12-22)

Sec. 12-12-23. Revocation.

Any license issued pursuant to this article, both as originally adopted or as amended, whether to an owner, operator or proprietor or any masseur, masseuse or attendant, may be revoked by the city upon the violation of any section, requirement or provision of this chapter by any such licensee or his or her agent, attendant or employee; provided that such licensee shall first be notified of such violation and be afforded a hearing before the council. Written notice of any violation hereunder and any hearing thereon before the council may be given to the licensee by delivering such notice by hand to the licensee or, if the licensee be an owner, operator or proprietor of a massage parlor , to any adult person employed by the licensee at the licensed premises or the deposit of such notice, postage prepaid, with the United States Postal Service and addressed to the licensee at the licensed premises, not less than ten days prior to such hearing before the council. The licensee may present such relevant evidence and such witnesses as he or she shall wish to call before the council. In the event of any revocation of a license for the operation of a massage parlor in accordance with this section, such licensee shall not be entitled to the issuance of a subsequent license by the city within 12 months following the date of any revocation hereunder.
(Code 1964, § 31A-11; Code 1980, § 12-12-23)

Sec. 12-12-24. Business license required; contents; fees.

(a) No massage parlor shall be opened to members of the public or operated for any other purpose without the owner thereof first having obtained a business license as hereinafter provided from the city, which such business license shall contain thereon the name of each masseur, masseuse or attendant employed for such purpose by such licensed business.

(b) Every owner, proprietor or operator of a massage parlor which applies manual, mechanical or other massages to the human body, truck or limbs for a fee, hire, reward or without such fee, hire or reward and applies or administers such manual, mechanical or other massages to members of the public generally or to other persons, shall pay a license fee therefor to the city based upon gross receipts as follows:

(1) On annual gross receipts less than $10,000.00, the sum of $100.00 per year.

(2) On annual gross receipts in excess of $10,000.00, the sum of $100.00 plus three percent of all sums in excess of $10,000.00.

(3) In addition to the above license payment and any other license payments provided for herein, such owner, proprietor or operator shall pay annually to the city for each individual masseur or masseuse or other attendant who shall be employed at any time during a license year by such licensee for the purpose of applying or administering massages, the sum of $50.00.

(Code 1964, §§ 31A-12, 31A-13; Code 1980, § 12-12-24)

Sec. 12-12-25. Masseur, masseuse and attendant licenses—Applications.

(a) All applications for a masseur, masseuse or other attendant's license shall be filed with the police department, shall be verified by the applicant under oath and shall contain the following information about the applicant:

(1) Full name;

(2) Present address;

(3) How long resided at present address;

(4) Address for previous two years;

(5) Age, sex and height;

(6) Color of eyes and hair;

(7) All places of previous employment, if any, for the past three years;

(8) Whether the applicant has previously been licensed elsewhere as a masseur or masseuse and whether any such license has been revoked and for what cause; and

(9) The name and address of the employer or operator for whom the applicant expects to be employed as a masseur or masseuse.

(b) At the time of filing such application, the applicant shall furnish or permit the city to produce a full set of applicant's fingerprints.

(c) At the time any application is filed hereunder, the applicant shall pay to the city the sum of $5.00 which shall not be returnable whether or not the license is issued.
(Code 1964, § 31A-14; Code 1980, § 12-12-25)

Sec. 12-12-26. Same—Qualifications of applicant.

Any applicant for a masseur, masseuse or attendant license shall at the time of applying therefor present at least two persons to the city chief of police or such other person as he shall designate who are over 21 years of age and who both have a residence and business address in the city who shall attest under oath in writing or orally or both, as the chief of police or his designee may direct, to the good character of the applicant and to the fact that the applicant is a person qualified and skilled as a bona fide masseur or masseuse who is trained, experienced and knowledgeable in the art of kneading, massaging and striking the muscular parts of the human body and that the applicant is learned and expert in his or her knowledge of the human anatomy as well as the circulatory and nervous system of the human body.
(Code 1964, § 31A-15; Code 1980, § 12-12-26)

Sec. 12-12-27. Same—Investigation of applicant; approval, etc., of application.

(a) The chief of police or his or her designee shall conduct an investigation of each applicant for a masseur or masseuse license and a report of such investigation and a copy of the police record of the applicant, if any, shall be attached to the application.

(b) Should the chief of police or his designee, after considering the applicant's application together with the sworn statements submitted on behalf of such applicant, determine that the applicant is not in fact a person possessing the training, skills and knowledge required of a bona fide masseur or masseuse or that the applicant does not in good faith intend to pursue the art, trade or occupation of a masseur or masseuse, the chief of police or his designee shall disapprove such application within 15 days after the date of the filing thereof or the chief of police may, when an investigation cannot be completed within 15 days, issue a temporary permit to the applicant to expire 15 days from the date of issuance, whereupon the chief of police shall then approve or deny the application. If the application is denied, the applicant may appeal such denial in writing within ten days thereafter, which such appeal shall be filed with the city clerk. Thereafter the council shall, at a regular or adjourned meeting of the council, hear such appeal and the applicant shall be permitted to present such relevant evidence as the applicant shall wish for consideration by the council. Such appeal hearing shall be held not later than 21 days from the filing thereof with the city clerk.
(Code 1964, § 31A-16; Code 1980, § 12-12-27)

Sec. 12-12-28. Same—Issuance; renewal.

Upon approval of an application for a masseur or masseuse license either by the chief of police or

the council, the city's director of finance shall be authorized to issue upon payment by the applicant of the sum of $50.00 a license for the current license year to such applicant, which license shall contain a license number together with the applicant's name, address, age, sex, name of employer, place of employment, signature and a passport-type photograph of at least two inches by two inches in size made within 30 days of the application and furnished to the chief of police by the applicant or made by the city at the request of the applicant. Any application for reissue of a license as hereinafter required or for the renewal of any license required hereunder for a subsequent license year shall be accompanied by the written verification of a licensed physician as required by section 12-12-21 and by duplicate photographs as heretofore described in this section. Upon any application for a license reissue or any renewal, the applicant shall surrender the old license or shall provide the city with a written affidavit that such license is either lost or destroyed together with the details of such loss or destruction.
(Code 1964, § 31A-17; Code 1980, § 12-12-28)

Sec. 12-12-29. Massage therapists licenses—Display.

Every masseur or masseuse licensed in accordance with this article, while engaged in any activity licensed herein, shall at all times carry upon his or her person such license or any reissue thereof and shall exhibit same to any client or customer upon request or to any police officer of the city or any license or health inspector or other similar official.
(Code 1964, § 31A-18; Code 1980, § 12-12-29)

Sec. 12-12-30. Same—Change of place of employment.

(a) Upon any change of employer or place of employment of any licensee under this article, such licensee shall apply to the director of finance of the city for a reissue of the existing license which such reissued license shall show upon its face the name and business address of the new employer of such licensee as well as applicant's address, age, sex and signature, for which reissue the licensee shall pay to the city the sum of $5.00. Under any such reissue such licensee shall surrender his or her replaced or old license.

(b) No masseur or masseuse shall work for any owner, operator or proprietor whose name and business address is not identical to that shown upon such masseur's or masseuse's license issued hereunder.
(Code 1964, § 31A-19; Code 1980, § 12-12-30)

CHAPTER 12.5. MOBILE HOMES AND MOBILE HOME PARKS*

ARTICLE A. GENERAL PROVISIONS

Sec. 12-12.5-1. Definitions.

For the purposes of this chapter, the following words and phrases shall be defined as follows:

ANSI standard A119.1 means the American National Standards Institute Standard No. A119.1.

Dependent unit means a mobile home not having a bathtub or shower, or any mobile home not providing a plumbing system suitable for connection to a water and sewage system, or any independent mobile home which is not connected to a water and sewage system.

Independent unit means a mobile home having a toilet and bathtub or shower and providing a plumbing system suitable for connection to a water and sewage system. Any independent mobile home that is not connected to a water and sewage system shall be deemed a dependent mobile home.

License means the business license issued by the finance department of the city.

Mobile home means any mobile home, house trailer, travel trailer, camping trailer, or any vehicle or structure so designed or constructed as to permit occupancy thereof for sleeping quarters for one or more persons or any of the above which

*__State law references__—Manufactured buildings generally, Code of Ala. 1975, § 24-4A-1 et seq.; The Uniform Standards Code for Mobile Homes Act, Code of Ala. 1975, § 24-5-1 et seq.; Uniform Code for the Anchoring of Mobile Homes Act, Code of Ala. 1975, § 24-5-30 et seq.

are parked and used for an office or for the storage of materials in connection with any business, profession, occupation or trade, and so designed that it is or may be mounted on wheels and used as a conveyance on highways or city streets and drawn by its own or other motive power, except pickup truck campers, and recreational vehicles and vans of a size comparable to a pickup truck camper, unless such are used for sleeping quarters.

Mobile home park means any site, lot, field, parcel or tract of land designed, maintained and intended for the purpose of supplying a location or accommodations for mobile homes as defined herein, and upon which mobile homes are parked, and shall include all buildings used or intended for use as part of the equipment thereof whether a charge is made for the use of the mobile home park and its facilities or not. The term "mobile home park" does not include automobile or trailer sales lots on which unoccupied trailers are parked for the purposes of inspection and sales.

NFPA 501D means the National Fire Protection Association Pamphlet No. 501D.

Park means a mobile home park.

Unit means a mobile home.

Unit site means a parcel of ground in a mobile home park designed for the location of a single mobile home as defined in this section, and containing a minimum of 3,000 square feet with a width of at least 30 feet.

(Code 1980, § 12-12.5-1)

State law reference—The Alabama Manufactured Housing Commission authorized to promulgate rules and regulations setting uniform standards for the manufacture and installation of ground anchors and blocking of mobile homes compatible with ANSI No. A119.1/NFPA 501B, Code of Ala. 1975, § 24-5-32(c).

Secs. 12-12.5-2—12-12.5-15. Reserved.

ARTICLE B. MOBILE HOME PARKS

Sec. 12-12.5-16. Compliance with article.

It shall be unlawful for any person to operate a mobile home park or occupy any unit in any such park within the city, except in compliance with this article.

(1) A permit shall be obtained from the Jefferson County Health Department.

(2) Roads within a mobile home park shall be not less than 24 feet wide and shall be well drained. Such roads shall be clearly marked and adequately lighted at night, and easily accessible to all units. Unit sites shall be indicated with corner markers, and each unit site shall be identified by a clearly visible number.

(3) Every unit site shall be furnished with a water service and backflow protected outlet capable of supplying all units with potable water at not less than 14 gallons per minute and not less than eight pounds per square inch pressure at the highest water outlet in each unit supplied when the park water system is under maximum demand.

(4) Every unit site shall be furnished with a properly connected house trap (four-inch running trap) with a cleanout on the inlet side and vented on the outlet side as provided in the plumbing code for fixture traps. Such trap shall be properly connected to an approved site sanitary sewer which is constructed in accordance with applicable provisions of the plumbing code of the city [see section 7-1-5]. Every independent unit shall be connected to the house trap with materials which meet requirements of the plumbing code for drainage waste and vents.

(5) All waste or sewage from showers, water closets, laundries, lavatories or other plumbing fixtures shall be wasted into a sewer connected with the city sanitary sewer system as required for building sewers in the plumbing code of the city.

(6) All sanitary facilities in any unit which are not connected with the city sewer system by means of rigid pipe connections shall be sealed, and their use is hereby declared unlawful.

(7) No wastewater shall be thrown or discharged upon the surface of the ground or disposed of by means other than as herein provided.

(8) All units connected to the park drainage or water supply system shall be in accordance with the applicable ordinances of the city, and all units connected to the park drainage (sewage) or water supply system shall bear certification of compliance with A.N.S.I. Standard A119.1/NFPA 501D.

(9) No unit shall be connected to any sewer or water supply system other than in accordance with the requirements of this article or other applicable ordinances of the city.

(10) Every park accommodating dependent units shall have erected thereon at a distance not greater than 200 feet from any dependent unit a suitable building for housing toilet facilities required by this article. Such building shall be known as the "service building."

(11) Each service building shall be equipped with and provide the following:

a. Separate toilet rooms for each sex with elongated water closets provided with an adequate water supply in separate compartments having a minimum width of two feet, six inches, and shall be provided for each sex in the ratio of one water closet for each sex per each eight units or fraction thereof. Every male toilet room shall have on urinal for each two or less required water closets, but in no case shall any male toilet be without one urinal. Toilet rooms shall contain lavatories with hot and cold water in the ratio of one lavatory to every two or less water closets.

b. Separate bathing facilities for each sex shall be provided with one shower enclosed in a compartment having a floor area of not less than nine square feet and with the least dimension being not less than 36 inches, for each eight units or fraction thereof. Each shower compartment shall be supplemented by an individual dressing compartment of at least 12 square feet.

c. Laundry facilities shall be provided in the ratio of one properly connected double laundry tub or one clothes washing machine and one clothes dryer for each ten units.

d. The above accommodations shall be based on the total camp capacity according to accepted plans.

e. Floors of toilet rooms, shower rooms and the laundry room shall be of concrete, tile or similar material impervious to water and easily cleaned and pitched to a floor drain.

f. For use of registered guests, each service building shall have not less than one backflow protected wall-mounted hydrant on each side of the building which faces an access drive or paved walkway.

(Code 1980, § 12-12.5-16; Ord. No. 81-210, art. I, § I, 12-8-1981)

Sec. 12-12.5-17. Approval by zoning board of adjustment.

No person shall operate a mobile home park within the city unless prior approval of the zoning board of adjustment is obtained. The zoning board of adjustment shall not approve any application to establish or maintain a mobile home park except in conformance with the provisions of the zoning ordinance of the city.

(Code 1980, § 12-12.5-17; Ord. No. 81-210, art. I, § II, 12-8-1981)

Sec. 12-12.5-18. Inspection and approval of premises and plan.

No person shall operate or maintain a mobile home park in the city until after said park and

plan of construction are inspected and approved in writing by the department of buildings and inspections.
(Code 1980, § 12-12.5-18; Ord. No. 81-210, art. I, § III, 12-8-1981)

Sec. 12-12.5-19. Management.

In every mobile home park there shall be an office building in which shall be located the office of such camp. A copy of the park license and of this article shall be posted therein.
(Code 1980, § 12-12.5-19; Ord. No. 81-210, art. I, § IV, 12-8-1981)

Sec. 12-12.5-20. Register of guests.

(a) The holder of a mobile home park license shall keep at all times a register of all guests in the office of the park which shall contain:

(1) Names and addresses of persons leasing unit sites;

(2) Dates of entrance and departures;

(3) License numbers of all trailers and towing automobiles or other towing vehicles;

(4) State issuing such licenses;

(5) Place of last location, and length of stay;

(6) Unit site identification number.

(b) Such register shall be open at all times to inspection by state and federal officers and officers of the city.
(Code 1980, § 12-12.5-20; Ord. No. 81-210, art. I, § V, 12-8-1981)

Sec. 12-12.5-21. Fire extinguishers.

The operator of such park shall maintain in convenient places, approved by the fire department, hand fire extinguishers in the ratio of one to each eight unit sites.
(Code 1980, § 12-12.5-21; Ord. No. 81-210, art. I, § VI, 12-8-1981)

Secs. 12-12.5-22—12-12.5-31. Reserved.

ARTICLE C. MOBILE HOMES LOCATED OUTSIDE MOBILE HOME PARKS

Sec. 12-12.5-32. Regulated.

(a) It shall be unlawful for any person to park any mobile home on any lot, parcel or tract of land, whether occupied or unoccupied, within the city, except as provided herein.

(b) A mobile home may be parked or occupied for no more than a total of seven days, whether consecutive or not, during any six-month period on any lot or parcel of land within the city other than a mobile home park; except that the parking of only one mobile home in an accessory private garage building or in the rear yard in any district shall be permitted provided that such mobile home is not occupied for living quarters or conducting a business, including related storage, and is not connected to any public utility during the period of parking.

(c) A mobile home may be temporarily used for an office or for storage in connection with a construction project or development, provided same is located on the construction site after appropriate building permits have been obtained from the department of buildings and inspections of the city. Such mobile homes shall be removed upon completion of the project or development. Such completion date shall be determined by the department of buildings and inspections of the city.

(d) The temporary occupancy or use of a trailer for an office or storage which does not adversely affect the health, welfare or safety of the surrounding properties may be permitted by the department of buildings and inspections outside a mobile home court after appropriate building permits have been obtained from the department of buildings and inspections of the city, when reasonably necessary due to the enlargement, renovation or alteration of an existing plant, business, office or commercial building, subject to the following conditions:

(1) To be used as a private office or for storage only.

(2) Such mobile home shall be placed on footings and foundation approved by the

department of buildings and inspections and shall have tie-downs approved by said department.

(3) Such temporary use shall be limited to 12 months from date of approval or completion of work, whichever comes first.

(4) Site, foundation and tiedown plans must be submitted to and approved by the department of buildings and inspections and building permits obtained.

(5) All steps, landings and handrails must comply with all applicable provisions of the building code of the city (see section 7-1-1).

(6) Before any independent mobile home is removed from such site, a sewer plug permit shall be obtained as required for buildings and structures under the plumbing code of the city [see section 7-1-5].

(7) Any refusal by the department of buildings and inspections to approve the temporary use of a mobile home for office or storage under this section or any approval of such use may be appealed by any party aggrieved to the board of adjustments and appeals as provided by the building code of the city.

(Code 1980, § 12-12.5-32; Ord. No. 81-210, art. II, 12-8-1981)

CHAPTER 13. PAWNBROKERS AND SECONDHAND DEALERS*

ARTICLE A. GENERAL PROVISIONS

Sec. 12-13-1. Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

Pawnbroker means any person engaged in the business of lending money on the security of pledged goods left in pawn, or in the business of purchasing tangible personal property to be left in pawn on the condition that it may be redeemed or repurchased by the seller for a fixed price within a fixed period of time.

Personal identification card means a driver's license or identification card issued by the Department of Public Safety or a similar card issued by another state, a military identification card, a passport, or an appropriate work authorization issued by the U.S. Citizenship and Immigration Services of the Department of Homeland Security.

Secondhand dealer means any person operating any store, shop or place of business where secondhand goods are bought, sold, exchanged or bartered; provided that this definition shall not include a "secondhand tire dealer," as defined in section 12-13-31.

Secondhand goods means any property of any kind or description which has been used or which has been transferred from the manufacturer, producer or wholesale or retail distributor to a third party prior to such property being sold, exchanged or bartered to or at such store, shop or place of business as mentioned in the foregoing definition of secondhand dealer; provided that furniture and automobiles shall not be considered secondhand goods within the meaning of this definition.

(Code 1964, § 38-1; Code 1980, § 12-13-1; Ord. No. 12-24, § 1(12-13-1), 2-21-2012)

Sec. 12-13-2. Records to be kept.

(a) It shall be the duty of each secondhand dealer and each pawnbroker to keep at his or her place of business a record of all transactions of pledged or secondhand goods, involving all pledged or secondhand goods bought, sold or exchanged, and all personal property received on pledge or deposit or by purchase, at his or her place of business. Each secondhand dealer and pawnbroker shall require the presentation of personal identification at the time of each transaction for pawned or secondhand goods.

(b) The record kept at the place of business shall contain the information required by state law for pawn tickets which information shall be entered at this time any such personal property is

*__State law references__—Alabama Pawnshop Act, Code of Ala. 1975, § 5-19A-1 et seq.; state license tax, Code of Ala. 1975, § 40-12-138.

received on pledge or deposit or by purchase, or such secondhand goods are brought, sold or exchanged.

(c) It shall be unlawful for any such secondhand dealer or pawnbroker to falsify, obliterate, destroy, or remove, any part of such records or permit to be falsified, obliterated, destroyed, or removed any portion of such records.
(Code 1964, § 38-2; Code 1980, § 12-13-2; Ord. No. 12-24, § 1(12-13-2), 2-21-2012)

Sec. 12-13-3. Inspection of records.

Each secondhand dealer and each pawnbroker, during the ordinary hours of business, when requested by the mayor, the chief of police or other police officer of the city, shall submit and exhibit such records as are provided for in section 12-13-2 to the inspection of the mayor, chief of police or other police officer, and upon demand shall exhibit any goods (whether new or secondhand) or personal property which may be in the place of business of such secondhand dealer or pawnbroker or which may have been bought or received in pledge by such secondhand dealer or pawnbroker and which may be kept by him or her at any place.
(Code 1964, § 38-3; Code 1980, § 12-13-3; Ord. No. 12-24, § 1(12-13-3), 2-21-2012)

Sec. 12-13-4. Daily report to police.

(a) It shall be the duty of every pawnbroker and every secondhand dealer to furnish to the police department by 12:00 noon on a daily basis, transaction data transmitted to a place and in a manner and format designated by the chief of police. This data shall include a complete description of all secondhand goods bought or exchanged and all personal property or other thing of value received during the preceding day. The daily reports should also include the name, sex, race, apparent age, personal identification card number, and place of residence of the person selling or exchanging any such secondhand goods or depositing or pledging such personal property, together with the hour such goods or property was received, purchased, pledged or exchanged and any other data which the chief of police may reasonably and from time to time require. If the day the report is required to be made hereunder is a legal holiday and the pawnbroker or secondhand dealer required to make the report is not doing business on that day, then the required report may be made by noon on the next business day following such holiday.

(b) Reports as required hereunder may only be made to the police department using the methods and formats designated by the chief of police.
(Code 1964, § 38-4; Code 1980, § 12-13-4; Ord. No. 94-182, 8-9-1994; Ord. No. 05-47, 4-5-2005; Ord. No. 12-24, § 1(12-13-4), 2-21-2012)

Sec. 12-13-5. Resale of goods.

(a) It shall be unlawful for any pawnbroker or secondhand dealer to resale, exchange or remove from the pawnbroker or secondhand dealer's his or her place of business any of the goods or personal property received, bought or exchanged by the pawnbroker or secondhand dealer for a period of 15 business days after the goods or personal property have been bought, sold or exchanged. Automobiles, trucks, and similar vehicles shall be maintained on the premises for 21 calendar days.

(b) Upon the request, in writing, of any pawnbroker or secondhand dealer to the chief of police that the chief of police inspect any personal property or secondhand goods, it shall be the duty of the chief of police to inspect, or to cause some police officer to inspect, such personal property or secondhand goods within three days from the service of such request upon the chief of police.
(Code 1964, § 38-5; Code 1980, § 12-13-5; Ord. No. 12-24, § 1(12-13-5), 2-21-2012)

Sec. 12-13-6. Dealing with minors.

It shall be unlawful for any pawnbroker or secondhand dealer to buy or receive, whether in pledge or otherwise, any tangible personal property from any person under the age of 19 years.
(Code 1964, § 38-6; Code 1980, § 12-13-6; Ord. No. 87-73, 4-7-1987)

Secs. 12-13-7—12-13-20. Reserved.

ARTICLE B. DEALERS IN SECONDHAND AUTOMOBILES

Sec. 12-13-21. Report to police of secondhand automobiles purchased.

It shall be the duty of every dealer in secondhand automobiles to furnish to the chief of police, at his or her office on each day, a complete description, in writing, of all automobiles bought by such dealer during the preceding day, together with the name, apparent age, sex, color, residence and general description of the person selling to such dealer any secondhand automobile or leaving or depositing a secondhand automobile with such dealer for the purpose of sale or exchange. Such report shall state the make, year, model, type and motor number of any such secondhand automobile and also the date and hour of the sale of the same to such dealer. This section shall not apply to any person engaged in the business of lending money on the security of a pledge of a secondhand automobile deposited with or otherwise actually delivered into the possession of the person lending the money, or any person in the business of purchasing secondhand automobiles on the condition that it may be redeemed or repurchased by the seller for a fixed price within a fixed period of time.
(Code 1964, § 38-7; Code 1980, § 12-13-21)

Sec. 12-13-22. Reports to police by auctioneers of automobiles offered for auction.

Any person acting as auctioneer of secondhand automobiles shall furnish the description referred to in section 12-13-21 with respect to any automobile offered by him or her for sale at auction, whether such automobile is sold at auction or not.
(Code 1964, § 38-8; Code 1980, § 12-13-22)

Secs. 12-13-23—12-13-30. Reserved.

ARTICLE C. SECONDHAND TIRE DEALERS

Sec. 12-13-31. Definitions.

For the purposes of this article, the following terms shall have the meanings respectively ascribed to them by this section:

Secondhand inner tube means any automobile or motorcycle inner tube which has been used prior to such inner tube being sold, exchanged, bartered or given to, or at, such store, shop or place of business as aforesaid; provided that when an inner tube is sold as a part of or contemporaneously with an automobile or motorcycle, it shall not be considered a secondhand inner tube within the terms of this definition.

Secondhand tire means any automobile or motorcycle tire which has been used prior to such tire being sold, exchanged, bartered or given to, or at, such store, shop or place of business as aforesaid; provided that when a tire is sold as a part of, or contemporaneously with, an automobile or motorcycle, it shall not be considered a secondhand tire within the terms of this definition.

Secondhand tire dealer means a person operating any store, shop or place of business where secondhand tires are bought, sold, exchanged or bartered.
(Code 1964, § 38-9; Code 1980, § 12-13-31)

Sec. 12-13-32. Records to be kept.

(a) It shall be the duty of each secondhand tire dealer to keep at his or her place of business a permanently bound book, with the pages therein numbered by the manufacturer, in which he or she shall enter or cause to be entered, in writing, a minute description of each secondhand tire received in his or her place of business, through purchase, exchange, barter or gift, and the time when it was received, making particular mention of any prominent or descriptive marks on the same, including the size, the ply, the serial number and any other identifying numbers, the color and the name of the manufacturer or producer of said tire. Each such secondhand tire dealer shall also enter in such book the name and residence of the person from whom such tire was received.

(b) It shall be unlawful for any such secondhand tire dealer to remove, or permit to be removed, any page or part of page from such book or to erase or obliterate, or permit to be erased or obliterated, any entry made upon any page thereof.
(Code 1964, § 38-10; Code 1980, § 12-13-32)

Sec. 12-13-33. Inspection of records.

Each secondhand tire dealer, during his or her legal hours of business, when requested by the

mayor, the chief of police or other police officer of the city, shall submit and exhibit such book as is provided for in section 12-13-32, to the inspection of the mayor, chief of police or other police officer of the city, and shall similarly exhibit any automobile or motorcycle tire, whether new or secondhand, in his or her place of business.
(Code 1964, § 38-11; Code 1980, § 12-13-33)

Sec. 12-13-34. Daily report.

It shall be the duty of each secondhand tire dealer to make out and deliver at the office of the chief of police, to the chief of police or desk sergeant or police officer on duty, upon forms provided for that purpose, every day before the hour of 12:00 noon, a legible and correct copy of the description required to be entered in such book as is described in section 12-13-32, showing the secondhand tires received during the preceding day, together with the time (meaning the hour) they were received and a description of the person from whom such secondhand tires were received.
(Code 1964, § 38-13; Code 1980, § 12-13-34)

Sec. 12-13-35. Purchases from minors; tires without serial numbers.

It shall be unlawful for any secondhand tire dealer to purchase or receive any secondhand tire or inner tube from any minor, but this provision shall not apply to a minor whose disabilities of nonage have been removed. It shall also be unlawful for any secondhand tire dealer to receive or dispose of any secondhand tire which does not bear a serial number thereon.
(Code 1964, § 38-13; Code 1980, § 12-13-35)

Sec. 12-13-36. Responsibility for violations.

The person actually conducting or in charge of a secondhand tire dealer's business shall be responsible for any violation of the provisions of this article committed in the conduct of such business.
(Code 1964, § 38-14; Code 1980, § 12-13-36)

Secs. 12-13-37—12-13-50. Reserved.

ARTICLE D. JEWELERS

Sec. 12-13-51. Report of purchases.

Every jeweler in the city who purchases any article of jewelry from any individual, other than an individual known by such jeweler to be a bona fide wholesaler of jewelry or the representative of a bona fide wholesaler of jewelry, shall furnish to the chief of police on the day following such purchase, upon forms provided for that purpose, a complete description of the jewelry so bought, together with the name, sex, color, print of right thumb, apparent age and general description and place of residence of the person from whom such jewelry was purchased.
(Code 1964, § 38-15; Code 1980, § 12-13-51)

CHAPTER 14. PEDDLERS AND SOLICITORS*

ARTICLE A. GENERAL PROVISIONS

Sec. 12-14-1. Regulation of pushcarts and peddlers; where allowed.

Except as provided for under written contract with the city, it shall be unlawful for any peddler or any person in charge or control of any vehicle, pushcart or other device in which wares or goods are sold, offered for sale or kept or exposed for sale to engage in the business of selling or to permit or suffer such vehicle, pushcart or other device to operate such on the public streets and sidewalks within the study area designated under the Master Plan for Downtown Birmingham, namely, that area bounded on the north by 12th Avenue North, on the east by Red Mountain Expressway and 26th Street North, on the south by Highland Avenue South and 12th Avenue South and on the west by I-65, and the streets and sidewalks within neighborhood retail business districts within the city.
(Code 1964, § 39-1; Code 1980, § 12-14-1; Ord. No. 83-34, 3-15-1983; Ord. No. 83-37, 3-15-1983)

*__State law reference—__Peddlers and itinerant vendors license tax, Code of Ala. 1975, §§ 40-12-139, 40-12-172 and 40-12-174.

Sec. 12-14-2. Regulations on movement of peddlers.

(a) Except as herein provided, it shall be unlawful for any peddler, while engaged in the business of peddling, or any person in charge or control of any vehicle, pushcart or other device in which wares or goods are sold, offered for sale, or kept or exposed for sale, to stop or stand or permit or suffer such vehicle, pushcart or other device to stop or stand upon any street of the city except during such period as a sale of wares or goods is being negotiated and is in actual progress; provided, however, that any peddler or person in charge or control of any such vehicle, pushcart or device shall not be or remain upon any such street or sidewalk longer than is reasonable to conduct such sale, and in no event shall such person be or remain upon any street or sidewalk within 400 feet of any given point therein for a longer continuous period than 30 minutes.

(b) Pushcarts within the study area (see section 12-14-1) shall operate in accordance with guidelines and standards as approved and adopted by the downtown master plan implementation board.

(Code 1964, § 39-2; Code 1980, § 12-14-2; Ord. No. 83-35, 3-15-1983; Ord. No. 83-38, 3-15-1983)

Sec. 12-14-3. Loop area; solicitation of orders for future delivery of goods, magazines, etc., prohibited.

It shall be unlawful for any person while upon the public streets or sidewalks within the loop area, as defined by section 1-1-2, to engage in the solicitation of contracts or orders for future delivery of goods, or subscriptions for books, magazines or publications, if such solicitation involves or contemplates the execution or making upon such streets or sidewalks of any printed or written contract, application or receipt.

(Code 1964, § 39-3; Code 1980, § 12-14-3)

Sec. 12-14-4. Sale of personal property; exceptions.

It shall be unlawful for any person while upon the public streets or sidewalks within the downtown study area (see section 12-14-1) and upon the public streets or sidewalks within neighborhood retail business districts within the city to sell, offer for sale or display for sale any goods or personal property of any character whatsoever, with the exception of the following:

(1) Newspapers or magazines delivered contemporaneously with the sale thereof;

(2) Goods or property sold for or on behalf of a charitable, philanthropic or patriotic organization or association, or by blind persons, provided that a permit is obtained pursuant to section 12-14-21 et seq.;

(3) Paintings, sculpture, artwork, handicrafts, antiques, precious and semi-precious stones and rocks, geological artifacts, vegetables and farm products, food and beverages, and other special merchandise or products when sold as a part of a special sidewalk or street sale operated by a nonprofit organization or merchants association for a limited number of days not to exceed seven, provided that a permit is issued by the mayor or under his or her directions;

(4) Notwithstanding section 4-5-25, goods, products and services and food and beverages when sold as a part of a special sidewalk or street sale operated by a nonprofit organization or merchants association and wherein all participants in said sale must have a current, applicable city business license and provided that such events shall not be conducted more than twice a calendar year in each contained retail business district and provided that each such event shall not exceed seven days, further provided that a permit is issued by the mayor or under his or her direction; and

(5) Peddlers and pushcarts as provided in section 12-14-1.

(Code 1964, § 39-4; Code 1980, § 12-14-4; Ord. No. 83-36, 3-15-1983, Ord. No. 83-39, 3-15-1983)

Sec. 12-14-5. Uninvited solicitations at private residences by peddlers, hucksters or vendors.

No hucksters, solicitors, peddlers, itinerant merchants or transient vendors shall enter on the

premises of any private residence or ring any doorbells or knock at any door of any private residence in the conduct of the huckster business when notice is conspicuously posted at or on such premises that no trespassing or no soliciting is allowed or when such notice is personally communicated.
(Ord. No. 93-128, 6-8-1993; Code 1980, § 12-14-5)

Sec. 12-14-6. Selling in city-owned parking lots regulated.

It shall be unlawful for any person to assemble with one or more persons, or park a vehicle, cart, erect a table, platform, or use any designated parking space or any portion of a parking lot owned by the city or one of its boards or agencies for the purpose of selling, or offering for sale, or displaying for sale, or bartering, any personal property, goods, wares, merchandise to members of the general public or any private individual unless said individual shall first secure a written permit from the mayor of Birmingham. Written application shall be made to the mayor setting forth the name, address and telephone number of the person seeking to conduct such sale, etc., as enumerated above, the date and time it is to be conducted, the probable number of persons involved, the purpose for which it is to be held or had. The application must be submitted to the mayor a minimum of three working days prior to the time of the sale, etc., as enumerated above.
(Code 1980, § 12-14-6; Ord. No. 82-147, 8-24-1982)

Editor's note—Ord. No. 82-147, adopted Aug. 24, 1982, did not specifically amend this Code; hence inclusion as section 12-14-6 was at the discretion of the editor.

Secs. 12-14-7—12-14-10. Reserved.

ARTICLE B. SOLICITATION OF FUNDS

Division 1. General Provisions

Sec. 12-14-11. Begging.

It shall be unlawful for any person to beg, ask or solicit alms or financial assistance, including money and other things of value:

(1) In an aggressive manner in or upon any public street or way or public or private place in the city from any person, including sidewalks, streets, alleys driveways, parking lots, parks, plazas, buildings, doorways and entrances to buildings and the grounds enclosing buildings;

(2) On private property without the written consent of the owner;

(3) In any public transportation vehicle or at any bus or train station or stop;

(4) Within 30 feet of any public restroom, automatic teller machine (ATM), night bank deposit receptacle, pay telephone, licensed street vendor or vending machine, or entrance or exit to any business establishment;

(5) From any operator or occupant of a motor vehicle that is in traffic on a public street, alley, roadway, or entrance or exit ramp thereto;

(6) From any operator or occupant of a motor vehicle on a public street in exchange for blocking, occupying or reserving a public parking space or directing the occupant to a public parking place;

(7) From any person in exchange for cleaning motor vehicle windows while the vehicle is in traffic on a public street;

(8) From any person in exchange for protecting, watching, washing, cleaning, repairing or painting a motor vehicle or bicycle while it is parked on a public street;

(9) By using profane or abusive language, either during the solicitation or following a refusal;

(10) By begging in a group of two or more persons;

(11) By any statement, physical action, gesture, or other communication which would place a reasonable person in fear of physical injury, or injury to property; or

(12) By subjecting the person solicited to physical contact.

(Code 1964, § 39-5; Code 1980, § 12-14-11; Ord. No. 96-188, § 1, 11-5-1996)

Sec. 12-14-12. Causing children to beg.

It shall be unlawful for any person, guardian, or person in charge, to cause, allow, or procure such minor to beg, ask or solicit alms or financial assistance in or upon any public street, highway, right-of-way or public or private place in the city from any person, whether under the guise or cloak of selling any article or commodity or of furnishing entertainment or otherwise.
(Code 1980, § 12-14-12; Ord. No. 96-188, § 1, 11-5-1996)

Sec. 12-14-13. Begging after sunset or before sunrise.

In addition to the limitations as set forth herein, any person who begs, or causes another person to beg after sunset or before sunrise is in violation of this article.
(Code 1980, § 12-14-13; Ord. No. 96-188, § 1, 11-5-1996)

Sec. 12-14-14. Giving false information while begging.

It shall be unlawful and a violation of this article for any person to knowingly make any false, or misleading representation in the course of soliciting alms or financial assistance. False or misleading representations include, but are not limited to the following:

(1) Stating that the donation or financial assistance is needed to meet a specific need, when the solicitor already has sufficient funds to meet the need and does not disclose that fact.

(2) Stating that the donation or financial assistance is needed to meet a need which does not exist.

(3) Stating that the solicitor is from out of town and stranded, when that is not true.

(4) Wearing a military uniform or other indication of military service, when the solicitor is neither a present or former member of the service indicated.

(5) Wearing or displaying an indication of physical disability, when the solicitor does not suffer the disability indicated.

(6) Use of any makeup or device to simulate a deformity.

(7) Stating that the solicitor is homeless, when he or she is not.

(8) Offering to sell newspapers, magazines, periodicals, or pamphlets for a price, when such are offered free-of-charge to the general public.

(Code 1980, § 12-14-14; Ord. No. 96-188, § 1, 11-5-1996)

Sec. 12-14-15. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Aggressive manner means:

(1) Approaching, speaking to, or following a person in a manner as would cause a reasonable person to fear bodily harm, or to fear for the safety of one's personal possessions;

(2) Touching another person in the course of asking for alms;

(3) Continuously asking, begging, or soliciting alms from a person after the person has made a negative response; or

(4) Intentionally blocking or interfering with the safe and free passage of a person by any means, including unreasonably causing a person to take evasive action to avoid physical contact.

Ask, beg or solicit alms includes the spoken, written, or printed word or such other act conducted with the purpose of obtaining money or a thing of value.

Beg means to ask for money or goods as a charity, whether by words, bodily gestures, signs, or other means.

Intimidate means to engage in conduct which would make a reasonable person fearful or feel compelled.

Public place means an area generally visible to public view and includes alleys, bridges, build-

ings, driveways, parking lots, parks, plazas, sidewalks, and streets open to the general public including those that serve food or drink or provide entertainment, and the doorways and entrances to buildings or dwellings and the grounds enclosing them.
(Code 1980, § 12-14-15; Ord. No. 96-188, § 1, 11-5-1996)

Sec. 12-14-16. Exclusion.

(a) The activities of begging do not include a person who passively stands or sits with a sign or other indication that one is seeking donations, without addressing any solicitation to any specific person other than in response to an inquiry by that person. This exclusion does not apply to section 12-14-11(2), (4), (5), (6) and (10), and sections 12-14-12, 12-14-13 and 12-14-14.

(b) Nothing in this section shall abrogate, or abridge provisions of division 2 of this article, solicitation of funds for charitable, educational, etc., purpose, or as amended, or the laws of state and federal government, or those laws regulating nonprofit, religious, educational, civic or benevolent organizations.
(Code 1980, § 12-14-16; Ord. No. 96-188, § 1, 11-5-1996)

Secs. 12-14-17—12-14-20. Reserved.

Division 2. For Charitable, Educational, Etc., Purpose

Sec. 12-14-21. Permit required; exceptions.

It shall be unlawful for any person to solicit money, donations of money, property or financial assistance of any kind, or to sell or offer to sell any article, publication, ticket or subscription, on the statement or representation that such sale or solicitation is for charitable, educational, patriotic or philanthropic purposes, either in person or by telephone or in any other manner in the city, unless such person shall hold a valid permit issued by the mayor as provided in this division; provided that this section shall not apply to solicitation at the regular exercises or services of any church, religious society, lodge, benevolent order or fraternity, nor shall it apply to solicitations by any city employees' groups from other city employees when such solicitations are authorized by resolution of the council.
(Code 1964, § 39-6; Code 1980, § 12-14-21; Ord. No. 78-213; Ord. No. 78-227)

Sec. 12-14-22. Religious, educational or charitable institutions.

It shall be unlawful for any person representing or claiming to represent any church, school, eleemosynary, charitable, social service or public institution of any kind to solicit subscriptions from the general public or to sell tickets or to canvass for advertising space on any program, booklet, pamphlet or other printed matter for the benefit or for the alleged benefit of any such institution without first obtaining a written permit from the mayor.
(Code 1964, § 39-7; Code 1980, § 12-14-22)

Sec. 12-14-23. Application for permit.

Any person desiring a permit as required by this division shall file with the mayor an application, duly sworn to by someone duly authorized and having knowledge of the facts, containing the following information:

(1) The name of the person or the organization applying for permission to solicit; and the names of the officers of such organization, if any.

(2) The purpose for which a solicitation permit is requested.

(3) The time for which the permit is requested, and the methods to be used in carrying on the solicitation.

(4) The amount of any wages, fees, commissions or emoluments to be expended in connection with such solicitation and the names of all individuals authorized to receive money.

(5) A full statement of the character and extent of the charitable, religious or philanthropic work being done by the applicant within the city.

(6) Such other information as the mayor may require.

(Code 1964, § 39-8; Code 1980, § 12-14-23)

Sec. 12-14-24. Granting of permits.

Upon the filing of an application for a permit under this division, the mayor shall have the power to grant the permit applied for if the information contained in such application does not endanger the public safety, health, or welfare of the citizens of the city.

(Code 1964, § 39-9; Code 1980, § 12-14-24)

Sec. 12-14-25. Appeal in case of denial of permit.

Whenever a permit required by this division is denied to an applicant by the mayor, such applicant shall have the right to appeal to the council within five days from such denial.

(Code 1964, § 39-10; Code 1980, § 12-14-25)

Sec. 12-14-26. Carrying on person; contents.

A permit granted pursuant to this division shall be carried by each person soliciting. Such permit shall show the name of the person entitled to solicit, the name of the person for whose benefit the solicitation is made and bear the signature of the mayor.

(Code 1964, § 39-11; Code 1980, § 12-14-26)

Sec. 12-14-27. Term and renewal of permit.

No permit required by this division shall be issued for a longer period than 30 days, including Sundays and legal holidays. Any such permit may be renewed by the mayor.

(Code 1964, § 39-12; Code 1980, § 12-14-27)

Sec. 12-14-28. Revocation of permit.

(a) The mayor may revoke any permit granted pursuant to this division if it appears to him or her that the holder of such permit has violated any provisions of this chapter, or has misrepresented or made untrue statements in connection with the solicitation.

(b) Such a permit shall be revoked by the mayor if it appears that the permit is used directly or indirectly as an endorsement of the solicitation.

(c) Whenever a permit is revoked by the mayor, the person aggrieved may appeal to the council from such revocation within five days thereafter.

(Code 1964, § 39-13; Code 1980, § 12-14-28)

Sec. 12-14-29. Misrepresentation of facts.

It shall be unlawful for any person, on his or her own behalf or as the representative of another, to swear falsely to any facts contained in the application for a permit required by this division or to file or cause to be filed any false affidavit.

(Code 1964, § 39-14; Code 1980, § 12-14-29)

Secs. 12-14-30—12-14-40. Reserved.

ARTICLE C. MOBILE FOOD SERVICE TEMPORARY VENDORS*

Sec. 12-14-41. Purpose.

The general purpose of this article is to promote the health, safety, comfort, convenience, prosperity, and general welfare of the citizens of the city by establishing reasonable guidelines and regulations for mobile food vehicles and pushcarts to encourage the safe and convenient use of the city's public rights-of-way.

(Ord. No. 14-128, § 1(1), 9-12-2014)

Sec. 12-14-42. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings

*__Editor's note—__Ord. No. 14-128, § 1, adopted September 12, 2014, did not specifically amend the Code. Therefore, such ordinance has amended article C in its entirety to read as herein set out, at the editor's discretion. Former article C, §§ 12-14-41—12-14-54, pertained to mobile food vehicles and pushcarts. See Code Comparative Table for complete derivation.

ascribed to them in this section, except where the context clearly indicates a different meaning:

Applicant means any person or business that applies for a permit or renews a permit under the provisions of this article.

Birmingham City Council, council, city council. The words "council" or "city council" shall mean the Council of the City of Birmingham.

BPD means the Birmingham Police Department.

Business licenses means the licenses required of any business to operate within the city pursuant to the city license code.

City center includes the territory and boundaries as generally described in the amended Urban Renewal and Urban Redevelopment Plan for Downtown Birmingham as established by the Birmingham City Council in Resolution No. 2166-9, also known as the "master plan."

Commissary means a permitted food establishment to which a mobile food establishment, pushcart or transportation vehicle returns daily for such things as discharging liquid or solid wastes, refilling water tanks and ice bins, and boarding food.

Food zone means an area approved by the Birmingham City Council for the specific operation of mobile food vehicles and/or pushcarts within the public rights-of-way.

General area means any location within the public rights-of-way of the City of Birmingham not within the premier area.

Health department shall mean a county health department. Such terms shall be construed to include the Jefferson County Health Department and any officer or agent of the department authorized to act for and on behalf of the department with respect to the enforcement and administration of this Code and other city ordinances.

Hours of operation are the designated time frame mobile food vehicles are authorized to operate within the city rights-of-way.

Mobile food vehicle means, except for pushcarts but including ice cream trucks and lunch wagons, a unit mounted on or pulled by a self-propelled vehicle where food, including prepackaged foods, for individual portion service is prepared, or dispensed; is self-contained with its own drinking water tank and wastewater tank; is designed to be readily movable; and is moved daily to return to its commissary. For the purposes of this article, ice cream trucks are defined as units mounted on a self-propelled vehicle.

Mobile food services temporary vendor shall mean any person who does not possess an annual business license for a mobile food vehicle and/or pushcart, who is selling or providing food or food services from a mobile food vehicle or pushcart which is not located in the public rights-of-way or on any city-owned property and is conducting such business at one or more events which do not exceed 30 days per event.

Operator is the entity that is legally responsible for the operation of the mobile food vehicle such as the permittee, the permittee's agent, or other person; and possesses a valid permit to operate a mobile food vehicle.

Pedestrian is a person who is walking or otherwise traveling in the public rights-of-way.

PEP means the department of planning, engineering and permits.

Permit means a written authorization to operate a mobile food vehicle or pushcart within the public rights-of-way of the City of Birmingham.

Permittee means a person who has been granted a permit by the Birmingham City Council to operate one or more mobile food vehicles upon the streets of the city.

Person means any natural person, firm, partnership, association, or corporation. Whenever the word "person" is used in any section in this article prescribing a penalty or fine as applied to a partnership or association, the word shall include the partners or members thereof; such word as applied to corporations shall include the officers, agents, or employees thereof who are responsible for any violation of such section.

Premier area includes that section of the city center beginning at the corner of 8th Avenue North and 18th Street North; proceeding southerly on 18th Street North, converting to 18th Street South to the corner of 10th Avenue South; then easterly on 10th Avenue South to the corner of 22nd Street South; then northerly on 22nd Street South, converting to 22nd Street North to the corner of 8th Avenue North; then westerly on 8th Avenue North to the point of beginning.

Pushcart means a non-self-propelled mobile food unit that is lightweight enough, designed, and intended to be moved by one person. A pushcart shall be used to prepare and serve only:

(1) Potentially non-hazardous foods such as popcorn, lemonade, hot dogs or flavored ice; or

(2) Foods pre-wrapped at the commissary and maintained at the required temperatures per the county health department regulations.

Restaurant means a brick and mortar establishment where meals are generally served and eaten on premises or prepares and serves food and/or drink to customers for consumption on the premises in return for money, either paid before the meal, after the meal, or with a running tab. A restaurant does not include a food service that is delivery only.

Rotation cycle. A rotation cycle requires a mobile food vehicle to rotate in sequential order to different food zones within the premier area of the city center. Participants shall begin with the last position created and is measured based on the time it takes to revolve to first food zone created. Applicants operating within the premier area shall rotate one food zone in numeric order each day.

*Example:

MONDAY

Zone	*Location*	*Vendor*
1	Corner of 8th Avenue North and 18th Street North	Chicken Mobile Food Vehicle
2	Corner of 7th Avenue South and 20th Street South	Taco Mobile Food Vehicle
3	Corner of 4th Avenue South and 16th Street South	Burger Mobile Food Vehicle
4	Corner of 9th Avenue South and 21st Street South	**Fish Mobile Food Vehicle**

TUESDAY

Zone	*Location*	*Vendor*
1	Corner of 8th Avenue North and 18th Street North	Taco Mobile Food Vehicle
2	Corner of 7th Avenue South and 20th Street South	Burger Mobile Food Vehicle
3	Corner of 4th Avenue South and 16th Street South	**Fish Mobile Food Vehicle**
4	Corner of 9th Avenue South and 21st Street South	Chicken Mobile Food Vehicle

***Locations above are shown for demonstrative purposes only.**

Temporary event is any parade, festival, display or occurrence held for the purpose of amusement, education or entertainment of the participants or the public or to aid an organization or commemorate an event or occasion.

Vending is the business of selling or causing to be sold any of the following items: food products, produce, prepared foods and beverages, prepackaged foods and non-alcoholic beverages from a mobile food vehicle and/or pushcart.
(Ord. No. 14-128, § 1(2), 9-12-2014)

Sec. 12-14-43. Mobile food vendors committee.

(a) There shall be established by this article a mobile food vendors committee consisting of representatives from each of the following:

(1) Traffic engineering department;

(2) Planning engineering and permits department;

(3) Police department;

(4) Mayor's office of economic development;

(5) REV, Inc.; and

(6) A member of the Greater Birmingham Street Food Coalition.

(b) The mobile food vendors committee shall review and recommend all applications based on the guidelines established by this article.

(c) The mobile food vendors committee shall meet as required. A special meeting may be called by any of the committee members.
(Ord. No. 14-128, § 1(3), 9-12-2014)

Sec. 12-14-44. Permit required for food zone operation.

(a) All mobile food vehicles and pushcarts must obtain a permit to operate within the city's rights-of-way. Mobile food vehicles that are granted a permit to operate within the premier area of the city center shall be subject to a rotation cycle, as defined by this article. Pushcarts are not subject to a rotation cycle.

(b) Any mobile food vehicle and/or pushcart that shall operate solely on private property shall not be required to apply for a permit. They shall, however, be required to obtain a business license and decal from the revenue department.
(Ord. No. 14-128, § 1(4), 9-12-2014)

Sec. 12-14-45. Approval process.

(a) Any person or company desiring a permit to operate a mobile food vehicle or pushcart within the public rights-of-way of the Birmingham city limits must first submit an online application to the traffic engineering department along with a $150.00 application fee for mobile food vehicles or $40.00 application fee for pushcarts. Application fees are non-refundable. Each application shall be date and time stamped to be processed in the order it is received. All applications shall then be submitted to and reviewed by the mobile food vendors committee. The application fee shall be applied to the cost of an approved permit.

(b) The mobile food vendors committee shall review each application for the suitability of the proposed location(s) for which the permit is sought. The mobile food vendors committee shall then submit a recommendation to the public safety committee within 28 days from the date of the application for review and recommendation to the city council.

(c) The public safety committee shall set a date and time for its review of the application and shall afford the applicant and interested parties reasonable and timely notice thereof. The applicant and such interested parties, in the course of the committee's review, shall be given the opportunity to offer testimony and evidence in support of their respective positions and may have counsel present to so represent them. At the conclusion of the public safety committee review, the public safety committee shall vote to recommend its approval or disapproval of the application to the city council. The public safety committee shall thereupon advise the applicant and other interested parties appearing before it of the committee's decision and shall further inform the applicant and such interested parties of the date of the council meeting at which the application will be on the council agenda.
(Ord. No. 14-128, § 1(5), 9-12-2014)

Sec. 12-14-46. Creation of food zone.

(a) Food zones are created at the request of the applicant.

(b) A food zone must be approved and established by the city council in order for the applicant to operate within the City of Birmingham's rights-of-way.

(c) Applicants may request up to three food zones per application, listed in order of preference. Only one food zone shall be approved per application. The application will proceed with the first location approved by the mobile food vendors committee. If none of the requested locations are approved, a new application shall be required.

(d) Food zones within the premier area of the city center shall be numbered in the order it was approved by the city council.

(e) Once a new food zone is approved and established, the applicant shall be allowed to:

(1) Operate at a fixed location within the general rights-of-way; or

(2) Enter the rotation cycle within the premier area of the city center, beginning with the location for which they were newly approved.

Applicants shall be granted one food zone per truck within the premier area.

(f) Each permit issued under this article shall be displayed at all times on the rear of the mobile food vehicle and conspicuously on the pushcart.

(g) If an existing mobile food zone is no longer in compliance with the requirements set forth in this article due to changing conditions, the mobile food vendors committee shall make a recommendation to the public safety committee on the feasibility to issue a new permit when the existing permit expires.

(h) The Birmingham City Council reserves the right to limit the number of designated food zones within the city center, to address the health, safety, comfort, convenience, prosperity and general welfare of the citizens of Birmingham. (Ord. No. 14-128, § 1(6), 9-12-2014)

Sec. 12-14-47. Application for permit.

(a) Permit applications shall be processed in the order received. Each online application submitted shall be date and time stamped. Each application shall require the following:

(1) Payment of application fee. Such fee shall apply to cost of the permit for approved applications. The balance of the permit fee shall be due after council approval.

(2) A valid copy of all required licenses/permits of a health department, as applicable, for each mobile food vehicle and/or pushcart.

(3) The applicant's full name, signature, address and whether the applicant is an individual, firm, or corporation, and, if a partnership, the names of the partners, together with their addresses.

(4) The address of its commissary.

(5) A photograph of the applicant (e.g., driver's license, passport or similar).

(6) Each applicant must attest that they are in compliance with the Hammon-Beason Alabama Taxpayer and Citizen Protection Act.

(b) Applicants applying to vend on private property must supply the following:

(1) A valid copy of executed leases or letters of consent from property owner(s) or proof of ownership of the property for each private site.

(2) Written approval from the city's zoning division of P.E.P. for each private site.

(3) A site plan including photos of the site and a detailed layout noting truck orientation and service plan is required for each private site.

(c) Applicants may request up to three food zones per application, listed in order of preference. The application will proceed with the first location approved by the mobile food vendors committee. If none of the requested locations are approved, a new application shall be required. Only one food zone shall be approved per application.

(d) An accurate description of the mobile food vehicle and/or pushcart shall be provided, including the following data for mobile food vehicles: the make, model and type of body; the number of cylinders; the vehicle identification number or any other identifying number as may be required by the mobile food vendors committee.

(e) The operator shall provide the manufacturer's specs on decibels range generated by his particular generator. The decibel levels for any generator(s) used shall not exceed 80 dBA.

(f) A statement that the applicant has not been convicted of any crime that involves any local, state or federal law or regulation during the operation of a similar business.

(g) A statement that the applicant has not been convicted of a crime as a result of having perpetrated deceptive practices upon the public within the last ten years.

(h) The applicant shall notify the traffic engineering department within 15 days after any changes to application information.

(i) A signed statement that the applicant shall hold harmless the city and its officers and employees, and shall indemnify the city, its officers and employees for any claims for damage to property or injury to persons which may be occasioned by any activity carried on under the terms of the permit.

(j) The permittee shall furnish and maintain such public liability, food products liability, and property damage insurance as will protect the vendor, property owners, and the city from all claims for damage to property or bodily injury, including death, which may arise from the operations under the permit or in connection therewith. Such insurance shall provide coverage of not less than $100,000.00 per person and $300,000.00 per accident or occurrence. The policy shall further provide that it shall not be cancelled except upon 30 days' written notice served upon the City of Birmingham, Office of the City Clerk, 3rd Floor, 710 North 20th Street, Birmingham, AL 35203. A permit issued pursuant to the provisions of this section shall be invalid at any time the insurance required herein is not maintained and evidence of continuing coverage is not filed with the city clerk. Proof of insurance must be shown on each mobile food vehicle and pushcart in operation.
(Ord. No. 14-128, § 1(7), 9-12-2014)

Sec. 12-14-48. Fees.

(a) Upon approval of an application for a general area permit of the city's rights-of-way, the annual fee shall be $300.00 for a mobile food vehicle and $80.00 for a pushcart.

(b) Upon approval of an application to operate within both the premier area of the city center and the general area of the rights-of-way, the annual permit fee shall be $500.00 for a mobile food vehicle and $100.00 for a pushcart.

(c) There shall be a one-time initial cost of $250.00 to establish new food zones for mobile food vehicles and $60.00 for pushcarts. Said cost is to cover any administrative services and alterations needed in preparing the food zones. Some examples include, but are not limited to, the removal of parking meters, the pouring of concrete, and the cost of the signage. This one-time fee is separate of any permit fee.

(d) The annual permit fees set forth in this section shall bill on a calendar year from January 1 to December 31. The fees shall be prorated bi-annually as follows:

(1) From January 1 to June 30:

a.	Food truck general area	$300.00
b.	Food truck premier area	$500.00
c.	Pushcart general area	$80.00
d.	Pushcart premier area	$100.00

(2) From July 1 to December 31:

a.	Food truck general area	$150.00
b.	Food truck premier area	$250.00
c.	Pushcart general area	$40.00
d.	Pushcart premier area	$50.00

(e) The $150.00 application fee for mobile food vehicles and the $40.00 application fee for pushcarts shall be applied to approved applications. The remaining balance, if any, must be paid after council approval before the permit will be issued by the traffic engineering department.

(f) A duplicate permit may be issued with the payment of a fee of $25.00. Contact the traffic engineering department should a permit become lost or destroyed.

(g) A permit can be renewed up to 30 calendar days prior to the expiration date. Any permit applied for after 16 calendar days of such expiration date shall incur a late fee of $25.00 in addition to the annual fees stated above. A new application shall be required 32 calendar days

following the expiration date of the existing permit or the permittee shall lose its claim to any particular food zone and/or its place in the rotation cycle of the premier area.
(Ord. No. 14-128, § 1(8), 9-12-2014)

Sec. 12-14-49. General rules and regulations.

(a) No person or business entity, including religious or charitable organizations, shall operate a mobile food vehicle and/or pushcart upon the public rights-of-way within the city without a permit.

(b) It shall be unlawful for any vehicle to park in an area designated as a food zone without a permit and/or proper authorization.

(c) The grant of a permit hereunder shall not be deemed to authorize the operation of a mobile food vehicle and/or pushcart without obtaining a business license, as may be required under the current business license code. A permittee must subsequently obtain a business license from the revenue division of the finance department, or be subject to a fine as defined in section 12-14-52(e) for each day the permittee is in violation of this section.

(d) Persons conducting business from a mobile food vehicle or pushcart on private property:

(1) Must provide to the city a lease or the written expressed consent from the owner to use the business property on which they propose to operate.

(2) Must have a valid city business license unless otherwise exempted by city ordinance.

(3) Shall be responsible for properly disposing of such refuse, trash, and litter from the food vending operation as would any business, and shall not place it in any public trash container, or in any private container without proper permission.

(4) The food vending operation must be a use that is otherwise allowed within the zoning district in which the vendor proposes to operate.

(e) Persons conducting business from a mobile food vehicle on private property shall not be permitted to operate in the following manner:

(1) Vending may not obstruct the use of any street intersection or pedestrian crosswalk.

(2) Vending shall not impede the ingress or egress of any driveway.

(3) Vending shall not obstruct pedestrian space.

(4) Shall not impede or obstruct the ingress or egress of any building.

(5) Any power sources must be depicted on the site plan and must meet all applicable electrical code standards.

(6) Vending structures shall not be left unattended or stored at any time on the open vending site when vending is not taking place or during restricted hours of operation.

(7) Amplified sound or sound equipment must comply with the City of Birmingham Noise Ordinance.

(8) Any and all signage must be contained on the private property. At no time shall any signage be placed within the public rights-of-way.

(f) Hours of operation within the public rights-of-way shall be as follows:

(1) City center permits: Monday through Friday, 6:00 a.m. to 6:00 p.m.

(2) General permits: Monday through Sunday, 6:00 a.m. to 2:00 a.m.

(g) All locations are subject to the regulations and other requirements established by the health department. It shall be unlawful for any person to prepare, sell, offer or expose for sale, exchange, give away, deliver, dispose of or have in possession, custody or control, in the city, with intent to sell, offer or expose for sale, exchange, gift or delivery, any meat, prepared food, vegetable, beverage, liquid or other article used or intended for use as food for human beings, without a valid,

unsuspended and unrevoked permit issued by the health officer, pursuant to regulations of the state board of public health.

(h) It shall be unlawful to leave any mobile food vehicle and/or pushcart unattended on public rights-of-way, or to remain on public rights-of-way outside of the allowed hours of operation.

(i) Vendors shall be allotted 30 minutes setup and 30 minutes breakdown before and after the stated operating hours.

(j) No mobile food vehicle and/or pushcart shall operate within 150 feet of the front door of any restaurant in current operation. Distance shall be measured to the nearest public entrance for any indoor food court.

(k) No mobile food vehicle and/or pushcart vending within the city's rights-of-way shall operate within 500 feet of any fair, stadium, carnival, circus, festival, special event, civic event, entertainment district or other like-sponsored event that is licensed or authorized by the city, unless they are authorized by the sponsor to be participants in such event.

(l) It shall be unlawful to operate a mobile food vehicle and/or pushcart within the city's rights-of-way, within 150 feet of any primary or secondary school within Birmingham's city limits. Distance shall be measured to the nearest lot line of the school's campus.

(m) Any applicant that desires to operate concurrent food zones shall pay the general permit fee for each food zone it creates within the rights-of-way.

(n) The permittee shall be granted a single food zone permit for each vehicle added to the rotation cycle within the premier area of the city center.

(o) The permit shall be subject to additional limitations on hours and days of operation that the city determines are appropriate to prevent conflict with special events. Examples of special events include, but are not limited to, construction, parades, sponsored marathons and blocked streets to allow licensed events. The city shall not be required to provide alternate food zones for operation during the actuation of any of the special events.

(p) No mobile food vehicle and/or pushcart shall use or maintain any outside sound amplifying equipment, lights, or noisemakers, such as bells, horns or whistles, or similar devices to attract customers. A mobile food vehicle and/or pushcart may use battery-operated lights with appropriate protective shields for the purpose of illuminating merchandise, so long as it is not a distraction to passing motorists. The decision of such distractions shall be determined by the BPD.

(q) No mobile food vehicle and/or pushcart operating within the city shall cause congestion that impedes pedestrian or vehicle traffic or interfere with the city or public's use of any public rights-of-way. This shall include but is not limited to activity of customer queues, accessory units, or signage that in any way invades or impairs access to adjacent parking, pedestrian or vehicle traffic.

(r) No mobile food vehicle and/or pushcart shall make or solicit any sales to occupants of vehicles or engage in any activities which impede vehicular traffic.

(s) Any power required for the mobile food vehicle and/or pushcart located on a public way shall be self-contained. The mobile food vehicle and pushcart shall not draw its power from the public rights-of-way. No power cable or equipment shall be extended at grade or overhead across any public street, alley or sidewalk.

(t) Mobile food vehicles and/or pushcarts shall be responsible to provide and maintain their own trash receptacles. Permittee shall contain all refuse, trash, and litter within the mobile food vehicle or a small moveable trash can maintained by the permittee, and located adjacent to the mobile food vehicle and/or pushcart in such a manner as not to block or otherwise obstruct pedestrian or vehicular traffic. The permittee of the mobile food vehicle and/or pushcarts shall be responsible for properly disposing of such refuse, trash, and litter as would any business, and

shall not place it in any public trash container, or in any private container without proper permission.

(u) The proposed mobile food vehicle and/or pushcart vending activity shall comply with all applicable laws including but not limited to the Americans with Disabilities Act.

(v) Mobile food vending in the rights-of-way shall only occur from the side of a food vehicle that is parked abutting and parallel to the curb.

(w) Pushcarts shall have overhead protection, such as an umbrella, to cover the food area.

(x) No mobile food vehicle shall have a drive-through service.

(y) The decibels levels for any generator(s) used shall not exceed "80dBA". The operator shall provide the manufacturer's specs on decibels range generated by his particular generator.

(z) Any mobile food vehicle and/or pushcart being operated without a valid permit issued by the City Council shall be deemed a public safety hazard and may be ticketed and impounded.

(aa) No mobile food vehicle and/or pushcart shall be parked on the street overnight, or left unattended and unsecured at any time. Any mobile food vehicle and/or pushcart which is found to be unattended shall be considered a public safety hazard and may be ticketed and impounded.

(bb) A mobile food vehicle and/or pushcart operating at any unauthorized location or beyond the hours for which the operation has been permitted shall be deemed operating without a permit in violation of this section and may be subject to enforcement.

(cc) Any new business that opens or moves near an existing mobile food vehicle and/or pushcart food zone shall be deemed to have accepted the proximity of the existing mobile food vehicle and/ or pushcart in operation.

(dd) The city council shall, in the best interest of the city, maintain the authority to regulate uses of the public rights-of-way and reduce the size and/or location of a food zone at a later date. (Ord. No. 14-128, § 1(9), 9-12-2014)

Sec. 12-14-50. Temporary food zone permit.

(a) A temporary food zone permit allows mobile food vehicles and pushcarts the opportunity to serve specific events located within the public rights-of-way for one calendar day. This permit is allowed only when the timing and place of said activity does not conflict with the city's desire to protect the safe and convenient use of public rights-of-way. It is the city's intent to control the pedestrian and street congestion as it relates to the operation of mobile food businesses and the proximity to established brick and mortar businesses. This permit is primarily used to grant permission to operate in locations within the rights-of-way that have not been designated as food zones.

(b) The city shall offer a temporary permit twice a year to mobile food vehicles and pushcarts providing them the opportunity to test two different locations for a period of one month. The operator must apply at a minimum of 30 days in advance for this temporary permit.

(c) The temporary food zone vending permit shall be issued under the following conditions:

(1) The applicant must first possess a current mobile food vendor or pushcart permit.

(2) An application must be submitted to the city traffic engineering department a minimum of three working days prior to the event.

(3) A fee of $25.00 shall be paid by the person applying for the one day permit at the time of the filing of the application. The permit shall be effective for no more than one day during a calendar year. Each day shall require a separate permit.

(4) A fee of $60.00 shall be paid by the person applying for a one month temporary permit at the time of the filing of the application. The permit shall be issued once in May and again in October by the traffic engineer.

(5) The temporary food zone permit shall only be issued for an event abutting a

curb space in the rights-of-way. It shall not apply to operation on private property.

(6) The permittee shall obtain and display the temporary food zone permit at the vending site in a manner established by the traffic engineering department.

(7) The temporary food zone permit shall be subject to the rules and regulations of the primary permit issued.

(8) The traffic engineer department shall approve or deny the issuance of a temporary food zone permit based on the same criteria used to establish all food zones.

(9) If the proposed temporary food zone will occur within 200 feet of a park, the traffic engineer shall approve or deny the temporary food zone based on the following considerations:

a. Public safety concerns; or

b. Access to the entrances and exits of the park; or

c. Conflicts with existing businesses and concessionaires, permitted events, or other special activities occurring in the park.

(d) Any applicant that wishes to operate in non-designated locations for two or more consecutive days shall either apply for a special events business license or must submit an application to the mobile food vendors committee through the traffic engineering department requesting a new food zone to be created.

(e) The city shall provide to the permittee evidence of its authorization for a temporary food zone. It shall be the responsibility of the permittee to secure any temporary zone that has been authorized by the traffic engineering department. The city shall not be held liable for the failure of the permittee to secure the temporary zone once approval is provided.
(Ord. No. 14-128, § 1(10), 9-12-2014)

Sec. 12-14-51. Mobile food services temporary vendors.

A mobile food services temporary vendor may, in lieu of purchasing an annual mobile food services business license, purchase a mobile food services temporary vendor license for temporary events. Each event requires a separate license, and the mobile food service temporary vendor shall be limited to no more than four mobile food services temporary vendor licenses for each temporary event, per calendar year.
(Ord. No. 14-128, § 1(11), 9-12-2014)

Sec. 12-14-52. Written application for transfer of permit required.

(a) Ownership of a permit issued under this article shall not be reassigned by the permittee. The city council is hereby authorized to transfer any valid permit from one entity to another. No transfer shall be made to an entity that would not have been eligible to receive the permit originally.

(b) Any permittee desiring a transfer of a permit shall file an application with the mobile food vendors committee prior to the date ownership of the business is transferred or conferred to another legal entity.

(c) No permit shall be transferred except with the consent of the city council.

(d) Nothing is this section shall prohibit the city from requiring a new application and permit approval.
(Ord. No. 14-128, § 1(12), 9-12-2014)

Sec. 12-14-53. Enforcement.

(a) It shall be unlawful for any person to vend or operate without a duly issued permit or in violation of any of the provisions of this article.

(b) Enforcement. The provisions of this section or any rules and regulations shall be enforceable by the Birmingham Police Department and the Traffic Engineering Department.

(c) Fine for violation. Any mobile food vehicle and/or pushcart in violation of any provision of this article shall be subject to a fine of up to

$500.00 per violation. Each violation shall constitute a separate and distinct offense. Each day shall be considered a separate offense.

(d) Any permit holder found in violation of any section of this article may be issued a ticket for violation and the mobile food vehicle and/or pushcart may be impounded.
(Ord. No. 14-128, § 1(13), 9-12-2014)

Sec. 12-14-54. Denial, revocation, suspension of permit.

(a) An application or approved permit may be denied, revoked, suspended, or not renewed for any of the following reasons:

(1) Revocation, suspension, modification. A permit may be revoked, suspended, modified, or not renewed by the city council for failure to comply with the provisions of this article, or of any provision of this Code or other ordinance of the city enacted in the exercise of its police power. A permit may also be revoked whenever, in the judgment of the city council when it deems it necessary for the protection of the public good or for the prevention of disorders; provided, however, that the city council shall first give reasonable notice to the permittee of a public hearing on the matter of such revocation. The permittee shall have the right to counsel as well as the right to present and cross examine witnesses at such hearing;

(2) The permittee or any of its principals fails to satisfy any qualification or requirement imposed by this article, or other local, state or federal laws or regulations that pertain to the particular license;

(3) The permittee or any of its principals is or has engaged in a business, trade or profession without having obtained a valid license, permit or work card when such applicant or principal knew or reasonably should have known that one was required; or

(4) The permittee or any of its principals has been subject, in any jurisdiction, to disciplinary action of any kind with respect to a license, permit or work card to the extent that such disciplinary action reflects upon the qualification, acceptability or fitness of the applicant or principal to conduct such a business; or

(5) The permittee or any of its principals has been convicted of any crime that involves any local, state or federal law or regulation arising out of the operation of a similar business; or

(6) The permittee or any of its principals has been convicted of a crime as a result of having perpetrated deceptive practices upon the public within the last ten years; or

(7) The motor food vehicle and/or pushcart on which the business is conducted does not satisfy all local, state or federal laws or regulations which relate to the activity that is to be licensed after a notice and opportunity to cure; or

(8) The permittee or any of its agents is in default on any payments owed to the city; or

(9) The application contains material omissions or false, fraudulent, or deceptive statements; or

(10) The motor food vehicle and/or pushcart is operated in such a manner as constituting a public nuisance per the Birmingham City Code or state statutes; or

(11) The proposed operation is in violation of any federal, state, or local laws including, but not limited to, the provisions of this Ordinance pertaining to public health or safety.

(12) The permittee or his agents or employees interfere with an inspection of the mobile food vehicle and/or pushcart by a Health Department inspector; or

13) The permittee or his agents have repeatedly violated applicable portions of this article; or

(14) There are repeated violations of federal or state food laws or laws regulating mobile food vehicles and/or pushcarts; or

15) The county health department denies, revokes or suspends the license of the mobile food vehicle and/or pushcart; or

(16) There is a violation of any section of this article.

The provisions of this section are not exclusive. This section shall not preclude the enforcement of any other provisions of this article or local, state and federal laws and regulations. A county health department may impose additional requirements to protect against health hazards related to the operation of a mobile food vehicle and/or pushcart.
(Ord. No. 14-128, § 1(14), 9-12-2014)

Sec. 12-14-55. Ice cream trucks.

(a) All ice cream trucks are required to purchase a business license.

(b) An ice cream truck shall not be required to apply for a permit, unless and except it wishes to operate within a food zone. Ice cream trucks are subject to the regulations of this article only when operating in a food zone. Ice cream trucks that do not operate in a food zone are exempt from the regulation of this article with the exception of subsection (c) of this section.

(c) Except as herein provided, it shall be unlawful for any ice cream truck, while engaged in the business of selling, to stop or stand or permit or suffer any vehicle to do so upon any street of the city except during the actual sale of its ice cream product. In no event shall an ice cream truck be or remain upon any street or sidewalk longer than is reasonable to conduct a sale; such time not to exceed 30 minutes.
(Ord. No. 14-128, § 1(15), 9-12-2014)

CHAPTER 15. SALES

ARTICLE A. BANKRUPTCY OR CLOSING-OUT SALES*

Sec. 12-15-1. License required.

(a) It shall be unlawful for any person to conduct at retail any sale of goods, wares or merchandise advertised in any manner, including advertisement by radio or television, either expressly or by implication, as a distress merchandise sale as hereinafter defined or a going out of business sale as hereinafter defined, without first obtaining from the director of finance a special license therefor; provided that this section shall not be construed to apply to any of the circumstances of sales exempted under state law.

(b) A distress merchandise sale within the meaning of this section is defined as follows: any offer to sell to the public, or a sale to the public of

*__State law references__—Going out of business or distress merchandise sales generally, Code of Ala. 1975, § 8-13-1 et seq.; going out of business or distress merchandise sales statute is inapplicable to sales made within the incorporated limits or police jurisdiction of city under a license granted by such city pursuant to the provisions of a valid ordinance of such city similar to the provisions of that chapter, Code of Ala. 1975, § 8-13-23(6); unlawful to falsely represent that a person is going out of business, Code of Ala. 1975, § 8-19-5(16).

goods, wares or merchandise on the implied or direct representation that such sale is being held other than in the ordinary course of business, and not otherwise defined herein. Without limiting the generality of subsection (a) of this section, the term "distress merchandise sales" includes, but is not limited to, any sale advertised either specifically or in substance to be any one of the following:

(1) Fire sale;

(2) Smoke or water damage sale;

(3) Bankrupt stock sale;

(4) Adjustment sale;

(5) Insurance salvage sale;

(6) Mortgage sale;

(7) Adjuster's sale;

(8) Reorganization sale; or

(9) Other terminology of similar intent to any in this subsection (b).

(c) A going out of business sale within the meaning of this section is defined as follows: any offer to sell to the public or a sale to the public of goods, wares or merchandise on the implied or direct representation that such sale is in anticipation of the termination of a business at its present location or that the sale is being held other than in the ordinary course of business. Without limiting the generality of subsection (b) of this section, the term "going out of business sales" includes, but is not limited to, any sale advertised either specifically or in substance to be any one of the following:

(1) A sale because the seller is going out of business;

(2) A sale because the seller is liquidating;

(3) A sale because the seller is selling his or her entire stock or selling out to the bare walls;

(4) A sale because the applicant has lost his or her lease;

(5) A sale because the applicant is selling out his or her interest in the business establishment;

(6) A sale because everything in the store or establishment must be sold;

(7) Trustee's sale;

(8) Bankrupt sale;

(9) Save us from bankruptcy sale;

(10) Insolvent sale;

(11) Assignee's sale;

(12) Must vacate sale;

(13) Quitting business sale;

(14) Receiver's sale;

(15) Loss of lease sale;

(16) Forced out of business sale;

(17) Removal sale;

(18) Liquidation sale;

(19) Executor's sale;

(20) Administrator's sale;

(21) Warehouse removal sale;

(22) Branch store discontinuance sale;

(23) Creditor's committee sale;

(24) Adjustment sale;

(25) Defunct business sale;

(26) Selling out interest sale; or

(27) Other terminology of similar intent to any in this subsection (c).

(Code 1964, § 46-1; Code 1980, § 12-15-1)

State law reference—Categories of sales that are exempted from requirements of the "going out of business or distress merchandise sales" chapter, Code of Ala. 1975, § 8-13-23.

Sec. 12-15-2. Filing and contents of application.

Any person desiring to secure a license as required in section 12-15-1 shall make application therefor to the director of finance. Such application shall state the name and address of the person applying for the same, and shall specify the place and the period of time during which the sale will continue. It shall further state the particular kind of sale to be conducted and advertised, and, as far as possible, the names of persons

from whom the goods, wares and merchandise to be sold were obtained, and the reasons why the sale is to be conducted.
(Code 1964, § 46-2; Code 1980, § 12-15-2)

Sec. 12-15-3. Inventory to accompany application; inventory, etc., to be under oath.

An application filed as provided in section 12-15-2 shall have attached to it an inventory containing a complete and accurate list of the goods, wares and merchandise, on hand and on order, to be sold, together with the wholesale price or the purchase price thereof as well as the name of the supplier from whom each item was acquired. The inventory or list shall be signed and sworn to by the applicant, or by a resident agent thereunto authorized, who shall also make oath that the statements contained in such application are known by the signer to be true and correct.
(Code 1964, § 46-3; Code 1980, § 12-15-3)

Sec. 12-15-4. Falsification of application.

It shall be unlawful for any person to make any false statement in any application filed as provided in section 12-15-2. It shall be unlawful for any person, firm or corporation to conduct a going out of business sale and represent directly or by implication that he or she or it is going out of business, and then fail to go out of business as advertised.
(Code 1964, § 46-4; Code 1980, § 12-15-4)

Sec. 12-15-5. Limitation on term of license; renewal.

No license required by this article shall be issued for more than 30 days, but such license may be granted an extension of 30 days by the director of finance upon good cause shown by the licensee, the payment of the additional fees provided for in the then current license code of the city, and by the filing of another application and inventory of the stock remaining unsold in the manner provided for the filing of the first application and inventory.
(Code 1964, § 46-5; Code 1980, § 12-15-5)

Sec. 12-15-6. Adding to inventoried stock; selling goods not on inventory.

It shall be unlawful for any person conducting any sale pursuant to a license required by this article to add any goods to the stock listed in the inventory referred to in section 12-15-3 or to sell any goods except those included in such inventory. Each sale of goods not so inventoried shall constitute a separate offense.
(Code 1964, § 46-6; Code 1980, § 12-15-6)

Secs. 12-15-7—12-15-20. Reserved.

ARTICLE B. AUCTIONS AND AUCTIONEERS*

Division 1. General Provisions

Sec. 12-15-21. Auctions on streets.

It shall be unlawful for auctioneers to sell wares or articles of any kind or description on the streets of the city, or to store or place the same on such streets.
(Code 1964, § 46-7; Code 1980, § 12-15-21)

Sec. 12-15-22. Bidding on behalf of auctioneer.

It shall be unlawful for any auctioneer to employ, induce or knowingly permit any person to bid at any public auction sale of property upon behalf of the auctioneer or seller, or to knowingly accept a bid from such person made on behalf of the auctioneer or seller.
(Code 1964, § 46-8; Code 1980, § 12-15-22)

Sec. 12-15-23. Misrepresentations at auction sales.

It shall be unlawful for any person to represent falsely any article sold at an auction sale in the city as an article pledged or pawned, or as an unredeemed pledge.
(Code 1964, § 46-9; Code 1980, § 12-15-23)

Secs. 12-15-24—12-15-30. Reserved.

*__State law references__—Public auctions, generally, Code of Ala. 1975, § 8-14-1 et seq.; Auctioneers License Act, Code of Ala. 1975, §§ 34-4-1 et seq., 34-4-20 et seq., and 34-4-50 et seq.

Division 2. Gold, Silver, Precious Stones, Watches, Jewelry, Etc.

Sec. 12-15-31. Auction sales prohibited; exceptions.

It shall be unlawful for any person to sell or dispose of or offer for sale, in the city, at public auction, or to cause or permit to be sold, disposed of or offered for sale in the city, at public auction, any gold, silver, plated ware, precious stones, watches, clocks, jewelry, bric-a-brac, china or glassware, whether the same shall be his own property or whether he or she sells the same at auction, as agent or employee of others; provided that this section shall not apply to judicial sales or sales by executors or administrators, or to sales by or in behalf of licensed pawnbrokers of unredeemed pledges in the manner provided by law, or to sales at public auction of any stock on hand of any person, who shall, for the period of one year next preceding such sale, have been continuously in business in the city as a retail or wholesale merchant of gold or silver, plated ware, precious stones, watches, clocks, jewelry, bric-a-brac, china or glassware; provided that such retail or wholesale merchant shall first obtain a license therefor, as provided in this division.
(Code 1964, § 46-10; Code 1980, § 12-15-31)

Sec. 12-15-32. License required.

No person shall conduct any sales permitted by this division by auction unless a license is first obtained therefor, as provided in this division.
(Code 1964, § 46-11; Code 1980, § 12-15-32)

Sec. 12-15-33. Application for license; filing and contents.

(a) Any person desiring a license as required by this division shall file an application therefor with the director of finance. Such application shall set forth the following:

(1) The name, residence, address and business address of the applicant.

(2) The character of the business the applicant has engaged in during the two years prior to the application.

(3) Whether the proposed auction is to be held at the applicant's existing regularly established place of business, and wherein his regular business has been operated for at least one year prior to the application.

(4) The name and address and occupational history of each person who will participate in conducting the sale by auction.

(5) Whether the applicant will be present at and in continuous attendance at the proposed sale by auction.

(6) Whether any additions to the stock of merchandise proposed to be sold at such sale by auction have been made within a period of 60 days prior to the date of such application, and if so, he shall furnish a separate inventory thereof containing all details as in the regular inventory required.

(7) Whether, after filing such application and until the end of such sale by auction, the applicant will make any additions or permit any additions to be made to the stock of merchandise described in the required inventory.

(8) Whether the applicant has conducted or caused to be held any sales by auction within a period of five years prior to such application, and if so, a brief description as to the character of such other auctions and a statement of the times when held and the places where held.

(9) Whether the applicant has owned or conducted within one year prior to the application, any other store or place of business than the one mentioned as his regular place of business in the application, and if so, where such other stores or places of business were located and the character of business operated in each.

(10) Whether he will himself, and whether he will require all others participating in the conducting of such proposed sale by auction, to truly and correctly represent at all

times to all persons attending such auction, the actual facts in respect to the quality and manufacture.

(11) Whether he has attached to such application a true and correct detailed inventory, item by item, and article by article, of the stock of goods, wares and merchandise proposed to be sold at such sale by auction. Whether he caused each separate article in such inventory to be given a number, and whether he agrees in case a license is granted, to attach to each article, a card or ticket with the number of such article endorsed thereon corresponding to the inventory number.

(12) Whether the applicant will keep adequate records of his inventory as specified in the applicant's application and will submit such records for inspection at any time subsequent to the date of the filing of the application, so that such records may be checked against the inventory and stock on hand of the applicant.

(13) Whether the applicant or any person he proposed to use as auctioneer or other employee at the proposed auction sale has been convicted of any violation of this section within five years prior to such application.

(b) Should the person filing the application, as provided in subsection (a) of this section be an individual, then the application shall be filed in the name of such individual. Should such person be a partnership, then the application shall be filed in the name of the partnership, duly verified by one of the partners. Should such person be a corporation, then the application shall be filed by the resident officer of such corporation or the executive officer of such corporation or, in the event the business is operated by a manager other than an officer of the corporation, then such application shall be filed by such manager. In each instance, the application shall be verified by the proper officer or alter ego of the corporation.
(Code 1964, § 46-12; Code 1980, § 12-15-33)

Sec. 12-15-34. Application to be made by owner of property.

The applicant for a license required by this division shall be the owner of the property which is desired to be sold at auction.
(Code 1964, § 46-13; Code 1980, § 12-15-34)

Sec. 12-15-35. Inventory—Required.

Any person desiring to sell or dispose of or offer for sale, in the city, at public auction, or to cause or permit to be sold, disposed of or offered for sale in the city, at public auction, any gold, silver, plated ware, precious stones, watches, clocks, jewelry, bric-a-brac, china or glassware, whether the same shall be such person's own property or whether the person sells the same at auction, as agent or employee of others shall file with the city director of finance a true and correct detailed inventory, item by item, and article by article, listing each of the articles proposed to be sold at the sale in question by auction and shall cause each separate article in such inventory to be given a number.
(Code 1964, § 46-14; Code 1980, § 12-15-35)

Sec. 12-15-36. Same—Verification.

Upon the filing of the inventory with the director of finance, as provided in section 12-15-35, the merchant or auctioneer shall duly verify the inventory by personal oath or affirmation.
(Code 1964, § 46-15; Code 1980, § 12-15-36)

Sec. 12-15-37. Limitation on grant of license to person previously receiving license.

No license required by this division shall be granted to any person or to any agent or affiliate or assignee of, or to any person acting for any such person within a period of two years after the termination of sale by auction by such person licensed under this division.
(Code 1964, § 46-16; Code 1980, § 12-15-37)

Sec. 12-15-38. Issuance of license.

In the event a license required by this division shall be granted, such license shall be issued by the director of finance upon the payment of the

license fee designated in the current license code. No such license shall be issued until the applicant has complied with all of the requirements of this division for furnishing information and the filing of an application.
(Code 1964, § 46-17; Code 1980, § 12-15-38)

Sec. 12-15-39. Revocation of license.

Any license issued pursuant to this division shall be subject to revocation by the council for the violation by the licensee of any provision of this division relating to the auction for which such license is issued and shall also be subject to revocation by the council if the licensee, under color of such license, violates or aids or abets in violating or knowingly permits or suffers to be violated any penal provision of this Code or other ordinance of the city.
(Code 1964, § 46-18; Code 1980, § 12-15-39)

Sec. 12-15-40. Limitation on term of sale.

No sale by auction for which a license is required by this division shall be licensed for a period of more than 30 consecutive days within a period of one year, Sundays and legal holidays excepted.
(Code 1964, § 46-19; Code 1980, § 12-15-40)

Sec. 12-15-41. Labeling of articles offered for sale; warranties.

(a) It shall be unlawful for any person who has filed a sworn inventory with the director of finance pursuant to this division to offer for sale by auction any article to which there is not attached a card or ticket or label containing a true and correct statement plainly written or printed in English specifying the kind and quality of the metal of which such article is made or composed, or the percentage of karat or purity of such metals. If such articles are plated or overlaid, then such tag or label shall contain a true statement of the kind of plate. When precious stones are for sale or sold by auction as such, or as a part of an article of jewelry, such written statement shall state the true name, weight and quality of such stones. When semiprecious stones are offered for sale or sold by auction as such, or as a part of an article of jewelry, such written statement shall set forth the true name of such stones. When imitations of precious or semiprecious stones are offered for sale or sold by auction as such, or as part of an article of jewelry, such imitations shall be described or defined as synthetic or imitations of such stones as they purport to represent. When watches and clocks are sold, the true names of the manufacturers shall be stated in writing and no parts of the movements or mechanism thereof shall be substituted or contain false and misleading names or trademarks. Such tag or label shall remain securely attached to any such article or merchandise, shall be delivered to the purchaser as a true and correct description and representation of the article sold.

(b) Any such person shall, in describing the goods in question, be truthful with respect to the character, quality, kind and description of such goods. For the purpose of this division, such descriptions shall be considered as warranties.
(Code 1964, § 46-20; Code 1980, § 12-15-41)

Sec. 12-15-42. False affidavits, etc.

It shall be unlawful for any person knowingly and willfully to make any false written affidavit, certificate or statement as to the amount of stock on hand or number of employees used, and to file such affidavit or certificate with the director of finance for the purpose of defrauding the city by procuring a license required by this division by the affiant or his or her principal.
(Code 1964, § 46-21; Code 1980, § 12-15-42)

Sec. 12-15-43. Numbering of articles to correspond to inventory.

Before the beginning of the sale by auction, the merchant, auctioneer or agent shall attach to each article a card or ticket with the number of the article set forth in the inventory endorsed thereon so that the number of each article described and set opposite the description of the respective article corresponds to the number designated on the inventory filed.
(Code 1964, § 46-22; Code 1980, § 12-15-43)

Sec. 12-15-44. Restoration of stock.

At any sale regulated by this division by auction of stock on hand by such merchant, there

shall be no replenishment of stock in anticipation of such auction sale or pending or during such auction sale, and nothing shall be offered for sale or sold at any such sale by auction which is in addition to the stock of merchandise described in such inventory filed with the director of finance. The inventory, stock and records of the merchant or auctioneer shall be subject to inspection at all times subsequent to the date of filing the required inventory with the director of finance.
(Code 1964, § 46-23; Code 1980, § 12-15-44)

Sec. 12-15-45. Limitations as to persons convicted of violating division.

No person who has been convicted of violating this division shall be granted a license required by this division or shall act as an auctioneer, or be employed in any manner at or in connection with any sale by auction for which a license is required under this division for a period of five years after such conviction.
(Code 1964, § 46-24; Code 1980, § 12-15-45)

Sec. 12-15-46. Hours when sale prohibited.

No sale by auction shall be conducted between the hours of 6:00 p.m. and 8:00 a.m.
(Code 1964, § 46-25; Code 1980, § 12-15-46)

Sec. 12-15-47. Limitation as to sales in December.

No sale by auction shall be conducted in the month of December prior to the day after Christmas.
(Code 1964, § 46-26; Code 1980, § 12-15-47)

Sec. 12-15-48. By-bidders, cappers, etc.; false bids, etc.

It shall be unlawful for any person to act as by-bidder, capper or booster at any auction held pursuant to a license required by this division, or to offer or make any false bid to buy or pretend to buy any article sold or offered for sale at any such auction sale.
(Code 1964, § 46-27; Code 1980, § 12-15-48)

State law reference—Similar provision, Code of Ala. 1975, § 8-14-22.

Sec. 12-15-49. Limitation as to place of sale.

No sale by auction shall be conducted except at the existing regularly established place of business of the merchant or auctioneer in question and at the place wherein his or her regular business has been operated for a period of at least one year prior to the filing of the auction inventory with the director of finance.
(Code 1964, § 46-28; Code 1980, § 12-15-49)

Sec. 12-15-50. Duty and responsibility of licensee at sale.

Wherever any sale by auction for which a license is required under this division is being conducted, the licensee in question shall remain in continuous attendance at all times while such sale is being conducted and shall be responsible for any violation of this division thereat or in connection therewith. The person who files the application as the owner or for the owner of the property, shall remain in continuous attendance at all times while such sale by auction is being conducted and shall be responsible for any violation of this division.
(Code 1964, § 46-29; Code 1980, § 12-15-50)

State law reference—Similar provision, Code of Ala. 1975, § 8-14-22.

Sec. 12-15-51. Sale by auctioneer of goods not on inventory and not owned by licensee; sale of property owned by auctioneer.

(a) No auctioneer or crier in conducting a sale by auction shall offer for sale or sell any goods, wares or merchandise regulated by this division not listed on the required inventory and owned by the merchant or auctioneer who filed the required inventory list.

(b) No auctioneer or crier may sell or offer for sale or cause to be sold or disposed of at public auction, any of the auctioneer's own goods, wares and merchandise regulated by this division unless he or she first has filed a required inventory with the director of finance as provided in this division.
(Code 1964, § 46-30; Code 1980, § 12-15-51)

Sec. 12-15-52. Evidence of ownership of business.

Maintenance of a place for the carrying on of a business, vocation, occupation or profession regulated by this division shall be prima facie evidence that the person so maintaining or in charge of such place, is carrying on the business, vocation, occupation or profession for the carrying on of which such place is maintained.
(Code 1964, § 46-31; Code 1980, § 12-15-52)

CHAPTER 16. TAXICABS AND VEHICLES FOR HIRE

ARTICLE A. GENERAL PROVISIONS

Sec. 12-16-1. Definitions.

Unless otherwise expressly provided, the following words for the purpose of this chapter shall have the meanings herein indicated:

"Accessible vehicle: A minivan, van or bus that meets the requirements of the Americans with Disabilities Act ("ADA") and equipped with the following:

(1) A lift mechanism capable of lifting a passenger in a wheelchair from street level into the vehicle or a ramp with a slope that is suitable for a wheelchair passenger to enter the vehicle safely,

(2) Headroom of sufficient capacity to accommodate wheelchair passengers comfortably, and

(3) Wheelchair tie-downs, but shall not include transportation of passengers in a recumbent position or on stretchers or beds.

Airport shuttle service: Transportation provided exclusively to or from the Birmingham Shuttlesworth International Airport by a minivan, van or minibus at flat rate per person fare. A vehicle operating under a "CPNC" to provide airport shuttle service is prohibited from providing any other service defined herein.

Automobile: A passenger car, minivan, sports utility vehicle (SUV) or station wagon designed to seat between five and nine persons.

Bus: A passenger vehicle designed to seat over 16 persons.

Bus terminus: A bus station serving as an end destination, which has bathroom facilities, and includes a ticket office and an ingress/egress area approved by the City of Birmingham Department of Traffic Engineering.

Business: Single act of transporting a passenger or passengers for hire.

Business licenses: The licenses required of any business to operate within the city by the license codes of the city.

Call or demand: Transportation arrangements made indiscriminately and instantaneously with a request for service which shall include, but shall not be limited to, the hailing of a taxicab, airport shuttle service vehicle, or courtesy vehicle or any other oral request for service from such vehicles made from a public street location, airport terminal roadway or public vehicular area as the pickup. No public service vehicle, other than a taxicab, airport shuttle service vehicle or courtesy car shall be operated on call or demand.

Certificate of public necessity and convenience (also referred to as "CPNC"): The authorization permitting an entity, person, company or corporation to operate one vehicle as a public service vehicle upon the streets of the city, which authorization shall be limited to one of the types of service defined hereinabove and which may also be limited as to the type of vehicle.

Chauffeur: A person employed to transport others by operating a vehicle for hire.

City: When referring to an entity, shall mean the City of Birmingham, Alabama, and, when referring to a geographic location, shall mean the City of Birmingham, Alabama, and the police jurisdiction thereof.

City Center: Formal boundaries as established by the City Center Master Plan.

City council or council: The Council of the City of Birmingham.

Commercial passenger vehicle: A vehicle for hire seating twenty-five (25) or more passengers.

Compensation: Any money, thing of value, payment, consideration, reward, tip, donation, gratuity or profit paid to, accepted or received by the driver or owner of any vehicle in exchange for transportation of a person, or persons, whether paid upon solicitation, demand or contract, or voluntarily, or intended as a gratuity or donation.

Cruising: Driving on, over or along city streets and around businesses soliciting passengers for hire or parking for the purpose of soliciting fares.

Courtesy vehicle service: Any vehicle used for public transportation which is not for hire which is owned or leased and operated for the purpose of transporting customers, clients, guests or any passengers in aid of or in connection with the permit holder's business situated in the State of Alabama. Such services shall be incidental and complimentary to the permit holder's primary business endeavor. A vehicle providing courtesy vehicle service is prohibited from charging a fee for any transportation provided and is prohibited from providing any other service defined herein.

Dispatch: To operate a scheduling service in which requests for vehicles for hire are received by phone, in person, by the internet, or by any other voice, data or electronic communication, and vehicles for hire are scheduled or routed by relaying information from the service to the vehicle for hire by radio or data device including but not limited to a device capable of any voice, data or electronic communication.

Driver: A person operating a vehicle for hire upon the public streets of the city.

E-Hail: The use of any electronic device in any manner, including e-mail, text message, push notification or application for the booking of, or request for, immediate or prearranged transportation services.

Economic need or economic necessity: Demand for a particular type of business as determined by factors including but not limited to statistical analysis, market factors, and individual or community need for a particular item or service.

Executive sedan service: A sedan-type, luxury automobile or SUV, such as a Cadillac, Lincoln, Lexus, Mercedes, Chevrolet Suburban, or Ford Expedition, or like vehicle with a passenger seating capacity not in excess of eight persons including the driver operating by prearrangement and furnished with a chauffeur. A vehicle operating under a "CPNC" to operate as an executive sedan service is prohibited from providing any other service defined herein.

Franchise bus service: All forms of buses which are operated under franchise, agreement, or contract with or from the city and are generally associated with or developed for mass surface transportation of the public. A franchise bus service does not require a "CPNC".

Ground transportation service: A service which utilizes vehicles for hire in the transportation of passengers from within the city and which includes, but is not limited to, horsedrawn carriage service, limousine service, pedicab service, tour service, charter service and taxicab service.

Group riding or car-pooling: An arrangement between individuals whereby they pool their private transportation resources, either by using the personal automobile of one member of the group with the others contributing to the cost of operating such automobile, or by rotating the use of their personal automobiles with joint contributions to the cost by the other members of the group, or when any employer provides transportation for his employees, and for none other, for a charge. The terms "group riding" and "car-pooling" shall not be deemed to include the operation of a taxicab, jitney or other vehicles for hire, or the commercial transportation of persons by public or private conveyances, whether on regular routes or special trips, between different localities or otherwise; and all such taxicab, jitney or other commercial operations shall continue to be subject to the existing ordinances applicable thereto.

High flagging: The use of a taxi to transport passengers without engaging the taxi meter.

Hired auto: A specialty limousine carrying a maximum of five individuals plus driver/chauffer, which is owned by a person or entity other than the business using it which otherwise meets the insurance and safety requirements as set out herein. A company utilizing a hired auto for passenger pick-ups within the corporate limits of the city must first notify the Birmingham Police Department 24 hours prior to such use.

Jitney service: A public service vehicle for hire which is a van, minibus or bus, not equipped with a taximeter, and which is driven or operated upon a fixed route or between fixed termini approved by the Council with a per passenger rate but which term does not include franchise buses or school buses. A vehicle operating under a "CPNC" to operate as a jitney service is prohibited from accepting or discharging passengers at any location other than locations on its approved fixed route and is prohibited from providing any other service defined herein.

Limousine: A motor vehicle furnishing transportation for hire in the city, not over fixed routes, operated by a chauffeur on a prearranged basis which meets the manufacturer's specifications for luxury limousine, with a minimum of six seats located behind the operator of the vehicle, with a designed seating capacity for no more than 14 passengers, and with a door at the rear of the vehicle designed to allow passenger entry or exit. Provided, however, the classification "limousine" shall not apply to any motor vehicle which is classified as a taxicab, executive sedan or shuttle vehicle as herein defined and is used exclusively by or under a written agreement with a hotel, motel, airport, hospital, club or other such entity for the transportation of its members, guests, patients or clients; and, provided, that each vehicle under such agreement will have the same distinctive visible outside painted appearance as each other vehicle under the agreement to any such hotel, motel, airport, hospital, club or other such entity or operated as a bus under a franchise granted by the city.

Limousine service: A public service vehicle for hire, furnished with a driver, which is not a van, minibus or bus, not equipped with a taximeter, which is engaged by prearrangement based on a fee determined by increments of time, and not driven or operated in regard to any fixed route nor in regard to definite termini. A vehicle operating under a "CPNC" to operate as a limousine service is prohibited from: (i) cruising, (ii) operating on call or demand, and (iii) providing any other service defined herein.

Limousine luxury bus service: A public service vehicle for hire, furnished with a driver and which is a bus seating 16 or more persons, not equipped with a taximeter, which is engaged by prearrangement based on a per person passenger fee, and not driven or operated in regard to any fixed route nor in regard to definite termini. A vehicle operating under a "CPNC" to operate as a limousine luxury bus service is prohibited from (i) cruising, (ii) operating on call or demand, and (iii) providing any other service defined herein.

Livery vehicle: A public six-passenger or less motor vehicle with driver included, for hire only by written agreement for exclusive use where the driver expects to receive compensation in the form of a fixed charge or donation.

Long hauling: The practice of a for-hire-transportation driver, taking a route other than the most direct or efficient route, in order to charge the customer a higher amount.

Low speed vehicle (LSV) service: A public service vehicle for use on roadways with speed limits of 35 miles per hour or less and in a manner that does not impede the normal and reasonable movement of traffic, having a regular seating capacity including the driver, of not more than eight adults and engaged in carrying passengers for hire. An LSV must meet all of the requirements of a taxicab unless otherwise stated in this chapter and shall not be capable of speeds greater than 25 miles per hour. Low speed vehicles must comply with the safety standards in 49 CFR 571.500.

Non-emergency medical transport service: A public service vehicle for hire:

(1) Which is engaged by prearrangement,

(2) Which is a van, minivan or bus or is an accessible vehicle, and

(3) Which provides non-emergency transportation service to ambulatory or wheelchair passengers to and from medical appointments.

Non-profit or not for profit vehicle: A public service vehicle which is provided as a free service and which is available for use by the general public.

Medical transport service: Includes services provided under the Alabama Medicaid Non-Emergency Transportation Program (NET) wherein vouchers are issued for the payment of these transportation services. A vehicle operating under a CPNC to operate as a medical transport service is prohibited from:

(1) Providing emergency medical transportation,

(2) Transporting passengers in a recumbent or prone position,

(3) Making intra-hospital facility transfers,

(4) Cruising,

(5) Operating on call or demand, or

(6) Providing any other service defined herein.

Nonprofit vehicles: Any vehicle owned or leased by a nonprofit or not-for-profit operating within the city.

On demand service: Any for-hire transportation provided with no advanced reservation, whose fee is based upon miles driven, not hours of use.

Operate: The picking up and/or dropping off of a passenger for hire within the city.

Operating authority: A person who is granted operating authority under this chapter to provide transportation-for-hire services either personally or through employees or contracted individuals.

Operating authority permit: The permit required by this chapter to provide transportation-for-hire services. Issuance of such a permit grants permission to the holder to provide transportation-for-hire services within the city.

Operator's permit: A permit issued by the chief of police or his designee for the operation of a vehicle for hire by an applicant therefore.

Owner: A person owning or operating one or more vehicles for hire and driving or causing any such vehicle to be driven upon the public streets for hire.

Passenger: A person other than the driver who is an occupant of a vehicle for hire. For the purpose of this chapter, any occupant of a vehicle for hire other than the driver shall be presumed to be for hire.

Pedal bus: A non-motorized bicycle with four or more wheels operated by one or more persons for the purpose of, or capable of, transporting additional passengers in seats or on a platform made a part of or otherwise attached to the pedal bus. For purposes of this chapter, "pedal bus" does not include a pedicab as defined herein.

Pedal bus service A service using a pedal bus for prearranged trips or tours within limited service areas.

Pedicab service: A bicycle that has three or more wheels that transports, or is capable of transporting, passengers on seats attached to the bicycle that is operated by an individual, and that is used for transporting passengers for receipt of any form of consideration; or a bicycle with a singular unarticulated frame, that pulls a device that transports, or is capable of transporting, passengers on seats attached to a passenger cab or similar device, that is operated by an individual, and that is used for transporting passengers for receipt of any form of consideration.

Person and/or applicant: An individual, partnership, firm, association, corporation or any other legal entity.

Prearranged service: Ground transportation service that is scheduled by an initial reservation a minimum of one-half hour in advance of the trip, excluding performance under a corporate contract.

Public service vehicle: Any motor vehicle for hire, furnished with a driver, which is made available to the public for the purpose of carrying passengers, including but not limited to all of

the services defined by this section except "franchise bus service" and "school bus service" and also including courtesy car service as defined herein. For the purpose of this chapter, a public service vehicle shall include a pedicab as defined herein.

Rideshare: The traveling of two or more persons by any mode of private passenger vehicle, including, but not limited to, carpooling, vanpooling, buspooling, to any location incidental to another purpose of the driver, for which compensation is neither accepted, collected, encouraged, promoted, or requested.

School bus service: A bus operated solely for the purpose of transporting school children to and from school and other school-related functions and which is regulated by the Alabama Board of Education by or under contract with the Birmingham Board of Education. School bus service does not require a "CPNC".

Sedan: Any vehicle which has a seating capacity for the driver and not more than five passengers.

Shuttle service: A business of offering or providing transportation for hire by a shuttle vehicle when:

(1) The driver is furnished as part of the service; and

(2) The service is offered on a prearranged basis, a preapproved regularly scheduled basis, or a preapproved route.

Shuttle vehicle: A van-type motor vehicle that has a manufacturer's seating capacity of not less than seven passengers and not more than 15 passengers and is used for the transportation of persons from a location within the city to another location either inside or outside the city. Provided, however, the classification "shuttle vehicle" shall not apply to any motor vehicle which is:

(1) Classified as a limousine, executive sedan or taxicab as herein defined.

(2) Used exclusively by or under a written agreement with a hotel, motel, airport, hospital, club or other such entity for the transportation of its members, guests, patients or clients; provided, that each vehicle under such agreement will have the same distinctive visible outside painted appearance as each other vehicle under the agreement to any such hotel, motel, airport, hospital, club or other such entity.

(3) Operated as a bus under a franchise granted by the city.

Software: The object code versions of any applications, programs, operating system software, computer software languages, utilities, other computer programs and related documentation in whatever form or media, including the tangible media upon which such applications, programs, operating system software, computer software languages, utilities, other computer programs and related documentation are recorded or printed, together with all corrections.

Specialty limousine: An antique or special interest vehicle which is maintained in excellent condition. "Antique vehicle" shall mean a vehicle that is 25 years old or older and recognized by the Antique Automobile Club of America. "Special interest vehicle" shall mean a vehicle that, due to limited production, outstanding design, unique character, and/or technical achievement, is of special interest, such as a Rolls Royce, Bentley or Excalibur Phaeton. A specialty limousine shall carry a maximum of five passengers plus driver/chauffeur. The determination of whether a vehicle qualifies as an antique, classic or special interest vehicle shall be made by the city.

Stand, closed: A place alongside the curb of a street or elsewhere in the city which has been designated by the city as reserved exclusively for the use of taxicabs of a particular holder of a certificate of public convenience and necessity.

Stand, open: A public place alongside the curb of a street or elsewhere in the city which has been designated by the city as reserved exclusively for the use of taxicabs.

Street legal: A vehicle that meets the requirements, safety standards, and any other measure of roadworthiness required of any typical motor vehicle used in normal day to day transportation upon public or private streets, roadways, or other thoroughfares.

Stretch luxury limousine: A custom-designed, extended-body type automobile, SUV, or pick-up truck which is luxurious in its appointments and accommodations, which has had its frame and body extended a minimum of 60 inches by conversion, and which is designed for a minimum seating capacity of five persons behind the driver.

Stretch luxury or specialty limousine service: A stretch luxury or specialty limousine:

(1) Which is driven by a uniformed chauffeur,

(2) Which is engaged by pre-arrangement the charges for the use of which are determined by agreement, mileage or by the length of time for which the vehicle is engaged, and

(3) Which is not driven or operated in regard to any fixed route or in regard to definite termini.

(4) A vehicle operating under a "CPNC" to operate as a stretch luxury or specialty limousine service is prohibited from: (i) cruising, (ii) operating on call or demand, and (iii) providing any other service defined herein.

Suburban jitney service: A jitney service, as defined herein, which receives passengers outside of the city for discharge within the city, or receives passengers within the city for discharge outside the city, but which does not receive passengers within the city for discharge within the city. A vehicle operating under a "CPNC" to operate as a suburban jitney service is prohibited from accepting or discharging passengers at any location other than the locations on its approved fixed route and is prohibited from providing any other service defined herein.

Taxicab service: A public service automobile or accessible vehicle for hire equipped with a taximeter which is not operated or driven in regard to any fixed route or in regard to definite termini. Taxicab service is allowed to engage in cruising and may be operated on call or demand.

Taxicab: A motor vehicle not operated over a fixed route furnishing transportation for hire within the city to passengers from points of origin to destinations as directed by the passengers. Provided, however, the classification "taxicab" shall not apply to any motor vehicle which is:

(1) Classified as a limousine, executive sedan or shuttle vehicle as herein defined.

(2) Used exclusively by or under a written agreement with a hotel, motel, airport, hospital, club or other such entity for the transportation of its members, guests, patients or clients; provided, that each vehicle under such agreement will have the same distinctive visible outside painted appearance as each other vehicle under the agreement to any such hotel, motel, airport, hospital, club or other such entity.

(3) Operated as a bus under a franchise granted by the city.

Taximeter: A device that automatically calculates, at a predetermined rate or rates, and displays the charge for hire of a vehicle.

Taxi stand: A reserved area where waiting taxicabs are parked.

Terminal: The fixed base of operations from which the applicant proposes to conduct his vehicle for hire business.

Third-party transportation app: A software application available to users for download onto a smartphone or other electronic device for vehicle transportation purposes.

Third-party transportation app company: An individual, firm, corporation, association, partnership, or cooperative that owns, controls and operates a third-party transportation app.

Transportation network application company: A company operating in the City of Birmingham, Alabama that uses a digital network or software application to connect a passenger to transportation network services provided by a transportation network operator.

Transportation network operator: An individual who operates a motor vehicle that is:

(a) Owned or leased by the individual;

(b) Not a commercial vehicle as defined by this Ordinance;

(c) Not licensed as a vehicle for hire under this Ordinance; and

(d) Used to provide transportation network services.

Transportation network services: Transportation of a passenger between points chosen by the passenger and that is prearranged by a transportation network application company.

Uniformed chauffeur: A driver of a stretch luxury or specialty limousine who shall wear a uniform or a dark blue or black business suit, or tuxedo, and a solid white or colored shirt.

Vehicle for hire (VFH): Any motor vehicle, animal-drawn vehicle, pedicab or other vehicle designed or used for the transportation of passengers for hire, the charges for the use of which are determined by agreement, mileage or by the length of time for which the vehicle is engaged. The following are excluded from the definition of vehicle for hire under this chapter:

(1) Limousines or any other vehicle owned solely by a funeral home and used for the performance of funeral services. However, if the limousine or other vehicle owned by a funeral home is used for other transportation-for-hire purposes for which a fee is charged, an operating authority permit and CPNC is required, regardless of the frequency at which the vehicle is used for transportation for hire purposes.

(2) Ambulance and other medical transport service vehicles

(3) Vehicles provided by an employer or an employee association for use in transporting employees back and forth between the employees' homes and to the employers' place of business, with employees reimbursing the employer or employee association in an amount calculated to offset the reasonable expenses of operating the vehicle.

(4) Vehicles owned and operated for the purpose of transporting the driver and/or others on a prearranged basis between their homes and places of employment or places of common destination and only charging a fee calculated to reasonably cover expenses (i.e. carpool, vanpool, etc.).

(5) Vehicles owned and operated by a person, corporation, or other entity under contract with the city for the purpose of providing a transportation service for the general public.

(6) Vehicles owned and operated by hotels/motels which provide free transportation service to guests.

However, vehicles operated by hotels/motels which provide transportation services for a fee are not excluded.

(Code 1964, § 51-1; Code 1980, § 12-16-1; Ord. No. 78-44, 3-10-1978; Ord. No. 80-84, 5-13-1980; Ord. No. 80-176, 9-2-1980; Ord. No. 81-16, 2-3-1981; Ord. No. 81-146, 8-18-1981; Ord. No. 81-211, 12-15-1981; Ord. No. 85-59, 4-2-1985; Ord. No. 86-42, 3-4-1986; Ord. No. 06-219, 11-21-2006; Ord. No. 07-76, 5-1-2007; Ord. No. 09-15, 2-6-2009; Ord. No. 09-80, § 1, 6-9-2009; Ord. No. 12-162, § 1(12-16-1), 12-18-2012; Ord. No. 14-5, § 1, 1-21-2014; Ord. No. 14-111, 8-8-2014; Ord. No. 17-15, § 1, 2-20-2017; Ord. No. 17-48, § 1, 5-3-2017)

Sec. 12-16-2. Vehicle permitting requirements.

Taxicabs shall be designated for single use only. A vehicle permitted as a taxicab shall not be used as a shuttle, nonemergency medical transport, limousine or as an executive sedan. A vehicle permitted as a shuttle, nonemergency medical transport, limousine or executive sedan shall not be used as a taxicab.

(Ord. No. 12-162, § 1(12-16-2), 12-18-2012)

Sec. 12-16-3. Vehicle requirements.

Every vehicle classified as a vehicle for hire under this chapter shall be kept clean, sanitary, fit, and of good appearance, and in a safe condition for the transportation of passengers and shall conform to the standards as set out in section 12-16-6. Additionally, vehicles for hire

must have an operational global positioning system (GPS) and two-way radio or cellular telephone in the vehicle while in operation.
(Ord. No. 12-162, § 1(12-16-3), 12-18-2012)

Sec. 12-16-4. Display of information on body of vehicles.

(a) *Taxicabs and shuttle vehicles.*

(1) The color scheme for taxicabs shall be the same as that proposed in the application an operating authority permit. All taxicabs owned or operated by a person licensed/permitted under this chapter shall have a uniform color scheme.

(2) No operating authority permit holder or driver shall operate or cause to be operated any taxicab within the city unless it is equipped with a stool light that is illuminated when the taxicab is vacant and available for hire. The stool light shall be controlled by the taximeter. When the taximeter is in the recording position, the stool light shall be off, and when the taximeter is not recording, the stool light shall be on and shall illuminate a "vacant" sign contained thereon.

(3) Each taxicab shall bear on each side, in painted letters not less than two and one-half inches in height, the name of the owner or the trade name under which the owner does business. Whenever the name of the owner or the trade name under which the owner does business does not include any one of the words "taxicab," "taxi," or "cab," then the word "Taxicab" shall be painted on each side of the taxicab immediately beneath the owner's name or trade name. A serial body number assigned by the owner to each taxicab shall be painted on each side and on the rear of the taxicab. All the foregoing mandatory lettering, wording and figures shall be of such color as will contrast distinctly with the color of the body of the taxicab.

(4) Posted inside each taxicab or shuttle vehicle on front passenger side dashboard immediately visible to a passenger shall be the following.

(5) The card issued to each taxicab or shuttle by the Tax and License Division of the finance department in accordance with section 12-16-16 bearing the words "certified taxicab or shuttle."

(6) The schedule of rates and charges.

(7) The company's telephone number.

(8) The driver's operator's permit.

(9) Each taxicab and shuttle shall have affixed to the rear windshield on the lower left (drivers) side a valid CPNC sticker issued by the chief of police or his designee showing the vehicle's CPNC number, VIN#, and the date of inspection.

(10) Each taxicab shall be equipped with a taximeter conforming to the provisions of section 12-16-7.

(11) It shall be unlawful for any person to transport or offer to transport passengers for hire in any taxicab or shuttle vehicle which does not have affixed to the rear windshield on the lower left (drivers) side a valid inspection sticker issued by the chief of police or his designee showing the vehicle's CPNC number, VIN#, and the date of inspection.

(12) Shuttle vehicles shall display not more than two signs, logos or other emblems, not to exceed 400 square inches each, which identify the person or organization making available the service and the persons to whom the service is made available. No additional signage or advertising is permitted.

(13) No vehicle shall be equipped with shades, curtains, or any other vision-obstructing device, excepting antique vehicles where originally equipped.

(14) Animal-drawn vehicles for hire shall each be identified with the name of the owner, operator or trade name and number of each vehicle with lettering of at least two

inches in height and numerals of at least three inches in height prominently displayed on each side or the rear of each vehicle.

(15) In the event a public service vehicle is removed from service for any reason, all body information as described by paragraphs (2) and (3) of this section shall immediately be removed from such vehicle.

(b) *Limousines and executive sedans.*

(1) It shall be unlawful for any person to transport or offer to transport any passenger or passengers for hire in any limousine or executive sedan which does not have affixed to the lower right-rear bumper a valid inspection sticker issued by the chief of police or his designee showing the vehicle's CPNC number, VIN#, and the date of its then most-recent inspection.

(2) No limousine or executive sedan shall be approved for service if it bears any advertising or other writing or emblem on the outside, except for license plates and inspection stickers.

(3) Each limousine and executive sedan shall have affixed to the upper right corner of the front windshield a then-current yearly insurance sticker.

All public service vehicles shall be designated for single use only. A vehicle permitted as a taxicab shall not be used as a shuttle vehicle or as a limousine or executive sedan. A vehicle permitted as a shuttle vehicle shall not be used as a taxicab or as a limousine or executive sedan. A vehicle permitted as a limousine shall not be used as a taxicab or as an executive sedan or shuttle vehicle.
(Ord. No. 12-162, § 1(12-16-4), 12-18-2012; Ord. No. 17-15, § 1, 2-20-2017)

Sec. 12-16-5. Vehicle insurance.

(a) Every vehicle classified as a vehicle for hire as defined herein under this chapter and operated within the city limits or police jurisdiction thereof shall be required to carry and maintain in effect a single limit policy of insurance issued by a company duly authorized to conduct business in the State of Alabama, by the provisions of which insurance policy the company promises and undertakes to pay in full all claims for damages to persons or property resulting from the operation of the vehicles for hire referred to in such application; provided, that the minimum amount for which liability shall be assumed for injury to or death of one or more persons and for which liability shall be assumed for injury to or destruction of property in any one accident shall be:

(1) Taxicabs, on demand service vehicles, services offered by third party transportation app services, pedicabs, specialty limousines and horse drawn carriages: $500,000.00. The applicant is required to have insurance coverage in the minimum amount of $500,000.00 for personal injury, property damage or advertising liability and is required to name the city as an additional insured.

(2) All other vehicles for hire: $1,000,000.00. The applicant is required to have insurance coverage in the minimum amount of $1,000,000.00 for personal injury, property damage or advertising liability and is required to name the city as an additional insured.

(b) No permit required by this chapter or business license shall be granted to any person to operate any vehicle for hire upon the streets or elsewhere in the city or its police jurisdiction until such person shall have first filed in person with the city clerk a current and valid copy of the certificate of the insurance requirements stated in paragraph (a) hereinabove, issued to such person by a public liability insurance company authorized to do business in the state, and excepting specialty limousines operated as hired autos, must denote the VIN# for each individual vehicle covered by the policy. In addition, each VIN# listed must correspond to the VIN# attached to each CPNC held by the business owner.

(c) Specialty limousine services may operate vehicles leased, hired, rented, or borrowed from private owners as hired autos under commercial hired auto liability insurance coverage, provided that:

(1) The vehicle is owned by, and possesses a current and valid vehicle registration to, a person or entity other than the business, its owner(s), employees, partners (if a partnership), members (if a limited liability company), or members of their households,

(2) The vehicle maintains a valid CPNC and complies with all requirements of this Chapter, including but not limited to the inspection requirements set forth in section 12-16-6.

(3) The business owner shall have first filed in person with the city clerk a copy of the vehicle registration and a current and valid certificate of commercial hired auto liability coverage, listing the business as the insured, and with a liability limit greater than or equal to the minimum limits of liability prescribed for specialty limousines in paragraph (a) hereinabove.

(4) All vehicles owned by, or registered to, the business or its owner(s), partners (if a partnership), or members (if a limited liability company) in operation and requiring a CPNC under this chapter are scheduled by VIN# on a commercial automobile single limit policy of insurance meeting the requirements prescribed by paragraph (a) hereinabove.

CPNCs issued to specialty limousine services for vehicles operated as hired autos shall be valid only while the vehicle is operated by the business named as the insured in item (3) hereinabove and covered by hired auto liability insurance, and may not be operated for hire within the city by any other person or business at any time.

(d) The insurance coverage required by this section shall at all times be maintained for the full amount. The certificate of each policy or policies of insurance required by this section to be filed with the city clerk shall contain a clause obligating the company issuing the same to give not less than 30 days' written notice to the city clerk's office before cancellation thereof. Notice of cancellation shall not relieve the company issuing such policy or policies of liability insurance for any injury or claim arising before the cancellation becomes effective. The cancellation of any such policy shall have the effect of suspending the permit of such person to operate vehicles for hire or business covered thereby until a new policy or policies complying with the provisions of this section is filed with the city clerk. If any such policy shall be allowed to lapse such that the insurance held does not meet the requirements set forth by this Code the CPNC's associated with said policy shall be revoked by the council following notice by the city clerk's office to the council transportation and communications committee.
(Ord. No. 12-162, § 1(12-16-5), 12-18-2012; Ord. No. 14-111, 8-8-2014)

Sec. 12-16-6. Vehicle inspection.

(a) Each vehicle for hire shall be inspected annually during the month of the expiration of the then-current inspection sticker issued by the chief of police or his designee to ensure compliance with the requirements of this section and for proper markings and display of information as required by this chapter. The inspection may be performed by: An American Advanced Technicians Institute ("AATI") or a National Institute for Automotive Service Excellence ("ASE") certified mechanic, a technician meeting the FMSCA Inspection qualifications of 49 C.F.R. § 396.19, an automobile technician at a licensed automobile repair shop, or any additional automobile repair shop otherwise approved by the city. Specialty limousine inspections may be performed by the owner or his or her employee, provided that the person performing the inspection holds an ASE certification in at least one area of A1-A9 or meets the above FMSCA qualifications. The operating authority permit holder shall maintain complete documentation of such inspection at least for the period the current inspection remains valid.

(b) The safety inspection shall cover the following equipment to ensure that each is intact and functioning properly:

(1) Foot brakes;

(2) Emergency brakes;

(3) Steering mechanism;

(4) Windshield;

(5) Rear window and other glass;

(6) Windshield wipers;

(7) Headlights;

(8) Tail lights;

(9) Turn indicator lights;

(10) Brake lights;

(11) Front seat adjustment mechanism;

(12) Doors, including handles, locks and window raisers;

(13) Horn;

(14) Speedometer;

(15) Bumpers;

(16) Muffler and exhaust system;

(17) Condition of tires, including tread depth;

(18) Interior and exterior rearview mirrors;

(19) Safety belts and air bags for driver and passenger(s);

(20) Air conditioning and heating systems, where installed; and,

(21) Exterior components, including splash shields, hubcaps, bumpers, fenders and vehicle frame.

The vehicle shall meet or exceed all applicable standards set forth by the FMCSA in 49 C.F.R. Chapter III Subchapter B Appendix G.

(c) With the exception of specialty limousines and horse drawn carriages, no operator shall drive or cause to be driven upon the streets of the city any vehicle that is more than ten years old. For purposes of this requirement, a vehicle will be considered to be ten years old on July 31st of the tenth year following the manufacturer's model year of the vehicle, regardless of the purchase date or the date it was originally placed into service.

(d) The chief of police or his designee may conduct random inspections of vehicles for hire at any time.

(1) A mechanic at the city garage will complete all random mechanical inspections at the city's expense. For specialty limousines, the mechanic may inspect visible components, but may not remove or disassemble components without the consent of the owner. Owners or operators of specialty limousines may be present for inspection.

(2) Any law enforcement officer can perform non-mechanical inspections to ensure compliance.

(e) If a vehicle for hire fails to pass the requirements of an inspection, the chief of police or his designee shall issue the driver a correction slip, giving the driver 15 days within which to correct all listed deficiencies. In such event, the chief of police or his designee shall forward to the CPNC holder a copy of the correction slip. If such deficiencies shall not have been corrected and if an inspection certificate shall not have been issued within such 15-day period, then such vehicle shall not be used thereafter as a vehicle for hire until a new inspection certificate shall have been issued.

The issuance of a city business license to the owner of such vehicles by the tax and license division of the finance department shall be conditioned upon the receipt by the chief of police or his designee of inspection certificate as well as positive inspection by chief of police or his designee, receipt of the insurance policies on said vehicles by the city clerk's office.

All vehicles for hire shall be inspected annually for proper markings and display information. All vehicles excepting those classified by this chapter as specialty limousines must have a sticker or plate, installed by the manufacturer that designates the seating capacity of the vehicle.

(f) The vehicle interior shall be in a clean condition, free of foreign matter and offensive odors. There shall be no litter in the vehicle or trunk. The seats shall be kept clean and without holes or large wear spots. The dashboard, upholstery, floor mats, head lining, door panels and the trunk compartment shall be inspected to determine whether they are clean, free of debris, free of tears, and that the trunk has sufficient space (within reason) for passengers' luggage. The vehicle shall contain a readily accessible UL approved fire extinguisher in operable condition at all times. If originally equipped, the vehicle shall contain a spare tire in good condition and a serviceable jack. The vehicle shall also contain a functional means of communication for limousines, executive sedans, shuttles, jitneys and taxicabs.

(g) The exterior of each vehicle shall be maintained in a clean condition. There shall be no tears or rust holes in the vehicle body. The paint shall not be peeling or in a faded condition. No loose pieces such as fenders, bumpers or trim shall be hanging from the vehicle body. There shall be no unrepaired body damage or any condition which would create a safety problem or interfere with the operation of the vehicle.
(Ord. No. 12-162, § 1(12-16-6), 12-18-2012; Ord. No. 14-5, § 1, 1-21-2014; Ord. No. 17-15, § 1, 2-20-2017)

Sec. 12-16-7. Taximeters.

(a) It shall be unlawful to own, operate or cause to be operated, any taxicab upon the streets or thoroughfares of the city, unless such taxicab is equipped with a taximeter that has been issued a certificate of conformance by the U.S. Department of Commerce, National Institute of Standards and Technology (NIST) and conforms to specifications and tolerances described in NIST Handbook 44.

(b) All taxicabs operated under the authority of this chapter shall be equipped with taximeters that have adequate provision shall be made for affixing wire seals to the taximeter so that no adjustments, alterations or replacement affecting in any way the accuracy or indications of the device or the assembly can be made without mutilating the seal or seals. The sealing means shall be such that it is not necessary to disassemble or remove any part of the device or of the vehicle to apply or inspect the seals. Each taximeter shall have thereon a device to activate the meter and shall have a lighted display clearly denoting when the vehicle is employed and when it is not employed; and it shall be the duty of the driver to throw the device of such taximeter into a non-recording position at the termination of each trip. The taximeter shall be subject to inspection from time to time by the chief of police or his or her designee. Any officer of the city police department is hereby authorized, either on complaint of any person or without such complaint, to inspect any meter and, upon discovery of any inaccuracy therein, to notify the person operating such taxicab to cease operation. Thereupon such taxicab shall be kept off the streets of the city until the taximeter is repaired and in the required working condition.

(c) It shall be unlawful for any person to operate a taxicab upon which has been placed tires of a smaller size than those which were on the taxicab at the time the taximeter on the taxicab was last sealed, without first having the taxicab inspected or giving notice requesting such inspection as provided for in section 12-16-6 at least 30 days previous to such operation. The operational tire pressure recommended by the manufacturer shall be maintained.

(d) Whenever a taximeter has been damaged, or repairs that might in any way affect the accuracy of its indications have been made, or any of the official security seals have been mutilated, such device shall not thereafter be used until it has been officially examined and reapproved by the chief of police or his or her designee or by a taximeter mechanic certified by a recognized taximeter company approved by the chief of police or his or her designee.
(Ord. No. 12-162, § 1(12-16-7), 12-18-2012)

Sec. 12-16-8. Rates of fare.

(a) *Taxicab rates.* No owner or driver of a taxicab shall charge a greater sum for the use of a taxicab than in accordance with the following rates as adjusted under paragraph (c) herein:

(1) Three dollars for the first one-fourth mile or fraction thereof, and $0.25 for each additional one-eighth mile or fraction thereof.

a. There shall be a charge for waiting on the basis of twenty-four dollars ($24.00) per hour, after the first five minutes.

b. There will be no charge for any bag, suitcase or ordinary light traveling baggage weighing not more than 50 pounds.

c. Contract rates: Any taxicab may transport packages not otherwise prohibited in this section, or passengers at a prearranged flat rate mutually agreeable to all parties to the agreement.

d. Taxicabs shall clearly display the rates of fare charged before transporting any passenger.

e. Prearranged transportation services shall provide passengers their rates prior to being engaged for service.

(2) Credit cards:

a. Every taxicab operating authority or other call or demand service shall require its drivers to accept all major credit, debit, and charge cards (collectively "credit cards") as payment for services rendered and shall accept any and all risk of nonpayment. No additional charge shall be levied against a passenger for use of credit cards, nor shall any passenger be refused service for their use of credit cards. Drivers shall not set a minimum or maximum charge for any credit card transactions. Drivers shall provide all credit card paying customers with a truncated copy of their sales draft or charge receipt clearly showing the amount and date of the transaction, company owner's name and telephone number, the driver's taxi number, and the transaction's authorization approval code. The truncated sales draft or receipt shall not include the credit card's expiration date or any more than the last four digits of the credit card's number.

b. Every taxicab or other call or demand vehicle shall be equipped with a fully-functioning wireless device that provides a secure credit card processing method, satisfies all payment card industry data security standard ("PCI DSS") requirements, and (i) encrypts any information transmitted to authenticate a credit card payment transaction for approval, (ii) generates a truncated printed sales draft or charge receipt, and (iii) accepts cards affiliated with all major Credit Card Associations including, but not limited to, MasterCard, Visa, American Express, and Discover Network. Manual imprinting machines are prohibited.

(b) *Limousine and executive sedan rates.* No owner or driver of a limousine or executive sedan shall charge sum for the use of a limousine or executive sedan other than in accordance with the following:

(1) Fares must be agreed upon at the time of the engagement of the vehicle.

(2) Shuttles, not to exceed $55.00 per hour, per vehicle. A shuttle service may not charge fares based upon fractions of an hour except after the first hour of service.

(3) Airport shuttles to/from the Birmingham Shuttlesworth International Airport to points in and beyond the downtown Birmingham area, so long as such points are within the legal limits of the city and its jurisdiction, shall not charge more than $20.00 per person.

(4) Fares must be agreed upon at the time of the engagement of the vehicle.

(5) Jitneys, not to exceed the per passenger rate approved by council for their respective routes.

(c) The rates established in section 12-16-8(a)(1) above may be adjusted annually to reflect changes in the cost of regular, unleaded gasoline over the prior year, as follows:

(1) For the year beginning January 2011 (the "base year"), the chief of police or his designee and the director of finance will review the cost of regular, unleaded gas during the preceding year by averaging the rack rate of regular, unleaded gasoline at a nearby distribution center on the last day of each month of that year (the "average price per month") and then averaging the 12 average prices per month to determine an average price per year.

(2) For the year beginning January 2012, (the "subject year") the chief of police or his designee and the director of finance will review the cost of regular, unleaded gas during the preceding year by averaging the rack rate of regular, unleaded gasoline at a nearby distribution center on the last day of each month of that year (the "average price per month") and then averaging the 12 average prices per month to determine an average price per year.

(3) If the average price per year for the subject year is less than or equal to the average price per year for the base year, the prices set out in section 12-16-8(a)(1) will not be adjusted for the subject year.

(4) In calculating the adjustment for each subsequent subject year, the new base year will be the next year following the prior base year. By way of example, for the adjustment in January 2012, the base year will be 2010 and the subject year will be 2011.

(5) The chief of police or his designee and director of finance will apply the formula in this paragraph (c) to determine whether to adjust the rates established in section 12-16-8(a)(1) in January 2009 and each January thereafter.

(6) If the average price per year for the subject year is greater than the average price per year for the base year, (the "price increase") the rates set out in section 12-16-8(a)(1) may be increased as follows:

a. If the price increase is less than $1.00, the rate will increase by $0.01 per one-sixth mile;

b. If the price increase is equal to or more than $1.00, and less than $2.00, the rate will increase by $0.02 per one-sixth mile;

c. If the price increase is equal to or more than $2.00, and less than $3.00, the rate will increase by $0.03 per one-sixth mile;

d. If the price increase is equal to or more than $3.00, and less than $4.00, the rate will increase by $0.04 per one-sixth mile;

(7) The chief of police or his designee and the director of finance will apply this formula to determine whether to adjust the taxicab rates set out in section 12-16-8(a)(1). In so doing they may exercise their discretion to avoid inequitable results.

They will notify the mayor and city clerk of their determination and the date on which it will become effective, which shall be no later than March 1.

(d) *Permit holder to report schedule of rates.* Each permit holder operating a public service vehicle for hire under this chapter shall file with the chief of police or his designee a schedule of rates to be charged; however, such rates shall not exceed the maximum rates allowed by this section. Such rates shall not be changed without five days written notice to the chief of police or his designee.

(Ord. No. 12-162, § 1(12-16-8), 12-18-2012; Ord. No. 17-15, § 1, 2-202-107)

Sec. 12-16-9. Operating authority permit required for business license.

Courtesy shuttles need not obtain a business license in order to obtain CPNC's. For vehicles characterized as "for hire", an operating authority permit shall be required prior to the issuance of a business license. A copy of the portion of the application stating the number and description of vehicles to be operated and granted CPNC's shall be provided to the tax and license division of the finance department prior to the issuance of a business license along with confirmation from the police department that the vehicle is in compliance with the inspection requirements provided herein.

(Ord. No. 17-15, § 1, 2-20-2017)

Editor's note—Ord. No. 17-15, §§ 1, 2, adopted February 20, 2017, repealed the former § 12-16-9, and enacted a new § 12-16-9 as set out herein. The former § 12-16-9 pertained to CPNCs required for business license and derived from Ord. No. 12-162, § 1(12-16-9), 12-18-2012.

Sec. 12-16-10. Required.

It shall be unlawful for any owner of any vehicle for hire as defined herein to operate or to permit the same to be operated on the streets of the city until a valid operating authority permit and a business license have been obtained therefore, as the case may be, as herein provided.

(Ord. No. 17-15, § 1, 2-20-2017)

Editor's note—Ord. No. 17-15, §§ 1, 2, adopted February 20, 2017, repealed the former § 12-16-10, and enacted a new § 12-16-10 as set out herein. The former § 12-16-10 pertained to CPNC and business license required and derived from Ord. No. 12-162, § 1(12-16-10), 12-18-2012; Ord. No. 14-111, 8-8-2014.

Sec. 12-16-11. Application for operating authority permit.

(a) Every person or company who desires an operating authority permit shall, prior to obtaining a business license from the tax and license division of the finance department, pay a filing fee of $100.00 and make a written application for an operating authority permit to the council upon forms to be furnished by the Birmingham Police Department verified under oath stating:

(1) The name and address of the applicant, specifying, in the case of any unincorporated association, partnership, firm or limited liability company, the names and addresses of each member thereof, and the quantum of interest of each member; and, in the case of any corporation, the names and addresses of each stockholder, officer and director thereof with the number of shares of stock owned or held by each of them.

(2) A complete statement by the applicant, specifying the amounts of all unpaid judgments against the applicant and each of the applicant's members, officers or directors, and the nature of the transaction or acts giving rise to the judgments and the name and location of the court in which, and the date on which, each was entered.

(3) All offenses, including traffic violations, of which the applicant has been arrested or convicted during the previous five years. For each conviction identified, the applicant shall also state the name and location of the court in which the conviction was rendered, the date of each such conviction, and the sentence or penalty imposed. For each arrest, the applicant shall also state the name and location of the agency (i.e., police department, sheriff's department, etc.) which made the arrest, the date of the arrest, and the outcome or status of the arrest or the resulting charge. Failure to properly identify all such arrests and convictions may result in denial of the application. If the applicant is an unincorporated association, partnership, firm, or limited liability company, then the applicant shall disclose arrests and convictions of all members and officers thereof. If the applicant is a corporation, then the applicant shall disclose arrests and convictions for all stockholders, officers, and directors thereof.

(4) The location of any and all depots and terminals proposed to be used by the applicant.

(5) The number of vehicles which the applicant wishes to operate, including a

description of each such vehicle, including the make, model, passenger seating capacity, year of manufacture, state license number, motor number or Vehicle Identification Number (VIN), and name and address of the owner.

(6) A description of the insignia, trade name and proposed color scheme for each vehicle for hire. Any trade name for taxicabs must contain the word "taxicab," "taxi" or "cab."

(7) Any other relevant information which the chief of police or finance director may require.

(8) That the applicant is at least 21 years of age.

(9) That the applicant is a citizen of the United States or an alien admitted for permanent residence that has otherwise been granted employment authorization by the United States Immigration and Naturalization Service.

(10) That the applicant has been a resident of the state and has been such for more than one year immediately preceding the date of application.

(11) That the applicant possesses and maintains a publicly listed telephone number.

(12) That the applicant must submit a drug testing policy for employees.

(b) After the application has been completed, the applicant shall return the application to the chief of police or his designee. The chief of police or his designee shall review the application and the information provided therein, and shall report to the council any information pertinent to the application or applicant. The council shall not consider any application until such time as the chief of police or his designee has issued its report to the council.

(Ord. No. 17-15, § 1, 2-20-2017)

Editor's note—Ord. No. 17-15, §§ 1, 2, adopted February 20, 2017, repealed the former § 12-16-11, and enacted a new § 12-16-11 as set out herein. The former § 12-16-11 pertained to application for CPNC and derived from Ord. No. 12-162, § 1(12-16-11), 12-18-2012.

Sec. 12-16-12. Reserved.

Editor's note—Ord. No. 17-15, § 2, adopted February 20, 2017, repealed § 12-16-12, which pertained to types, cost and number of CPNCs and derived from Ord. No. 12-162, § 1(12-16-12), 12-18-2012.

Sec. 12-16-13. Reserved.

Editor's note—Ord. No. 17-15, § 2, adopted February 20, 2017, repealed § 12-16-13, which pertained to finding of necessity required and derived from Ord. No. 12-162, § 1(12-16-13), 12-18-2012.

Sec. 12-16-14. Issuance of operating authority permit.

If the council determines that further vehicle for hire service is required by public necessity and convenience, and that the applicant is qualified and able to perform such service and to conform with the provisions of this chapter, then the council shall adopt a resolution granting an operating authority permit, and shall authorize the revenue division of the finance department to issue, upon payment of all required fees, a business license and at the same time, the chief of police or his designee to issue CPNC's for each vehicle, reflecting the expiration date and VIN# on each respective permit.

(Ord. No. 17-15, § 1, 2-20-2017)

Editor's note—Ord. No. 17-15, §§ 1, 2, adopted February 20, 2017, repealed the former § 12-16-14, and enacted a new § 12-16-14 as set out herein. The former § 12-16-14 pertained to issuance of CPNC and derived from Ord. No. 12-162, § 1(12-16-14), 12-18-2012.

Sec. 12-16-15. Factors for consideration in finding of necessity and convenience.

In making the findings of public necessity and convenience required by section 12-16-13, the council shall take into consideration the type of CPNC requested, number of vehicles for hire already in operation in the city, whether existing transportation is adequate to meet the public need, the probable effect of additional vehicles for hire on local traffic conditions and the character, experience and responsibility of the applicant and the adequacy of the service which the applicant proposes to give.

(Ord. No. 12-162, § 1(12-16-15), 12-18-2012)

Sec. 12-16-16. Reserved.

Editor's note—Ord. No. 17-15, § 2, adopted February 20, 2017, repealed § 12-16-16, which pertained to information prerequisite to CPNC issuance and derived from Ord. No. 12-162, § 1(12-16-16), 12-18-2012.

Sec. 12-16-17. Renewal.

Any operating authority permit issued under this chapter may be renewed annually for additional periods of one year each in December of each year upon payment of a $100.00 renewal fee and the certification under oath that there have been no changes in the information submitted as required by section 12-16-11, and upon purchase of the appropriate business license.

With each renewal application for CPNC's, the following will be submitted: the current MVR, criminal background records, and health and welfare status of drivers. Owners of CPNC's must at all times, maintain a current and complete list of all drivers and their MVR, criminal background records, and health and welfare status on record in the office of the chief of police or his designee.
(Ord. No. 12-162, § 1(12-16-17), 12-18-2012; Ord. No. 17-15, § 1, 2-20-2017)

Sec. 12-16-18. Nontransferable.

The operating authority permit issued hereunder shall not, at any time, be transferable to any company without prior approval of the council. CPNC's issued to the operating authority shall not be transferred to any other vehicle, unless otherwise provided herein.
(Ord. No. 12-162, § 1(12-16-18), 12-18-2012; Ord. No. 17-15, § 1, 2-20-2017)

Sec. 12-16-19. Procedure for additional permitted vehicles.

Every licensed/permitted vehicle for hire company under this chapter who shall desire to add to the number of vehicles for hire he or she wishes to operate shall make a written application to the chief of police or his designee, accompanied by a fee of $25.00, stating:

(1) The name and address of the applicant.

(2) A statement of whether any information furnished on the original application has changed, and if so, indicate the changes.

(3) A description of each such additional vehicle, including the make, model, passenger seating capacity, year of manufacture, state license number, motor number or Vehicle Identification Number (VIN), and name and address of the owner.

(4) Any other relevant information which the chief of police or tax and license division of the finance department may require.

(5) Any material change in the ownership, litigation or criminal background of the applicant or type of service to be provided shall require approval by the council.

(Ord. No. 12-162, § 1(12-16-19), 12-18-2012; Ord. No. 17-15, § 1, 2-20-2017)

Sec. 12-16-20. Suspension or revocation.

(A) An operating authority permit issued under the provisions of this chapter may be revoked or suspended by the council if the holder thereof has:

(1) Violated any of the provisions of this chapter;

(2) Discontinued operations for more than 60 days;

(3) Violated any of the ordinances of the city or the laws of the United States or of the State of Alabama; or

(4) In the event of recovery of any final judgment and termination of final appeal proceedings, if any, against the holder for damages on account of bodily injuries or death or for damage to property resulting from the ownership, maintenance or use of any vehicle for hire in the city and nonpayment thereof for a period of 30 days thereafter; provided, however, that such permitee has been given a ten-day written notice in person or addressed and mailed to him at the address furnished on his application.

(b) It shall be unlawful and cause for suspension or revocation of the applicable CPNC to fail to operate a vehicle for hire for a period of over 60 days; provided, however, a taxicab shall not be deemed to be out of operation for the purposes of this subsection for a period of 60 days from the date such taxicab failed to be certified as herein provided by the chief of police or his or her designee or as provided in section 12-16-12(c).
(Ord. No. 12-162, § 1(12-16-20), 12-18-2012; Ord. No. 17-15, § 1, 2-20-2017)

Sec. 12-16-21. Changes in license or permit information.

Any change in the information furnished in the application for an operating authority permit pursuant to this chapter, including the addition of vehicles, must be reported to the tax and license division of the finance department in writing within ten days of the change(s) in business license or permit information and failure to so report shall be cause for suspension or revocation of the license and operating authority permit, including any CPNC's held by the operating authority.
(Ord. No. 12-162, § 1(12-16-21), 12-18-2012; Ord. No. 17-15, § 1, 2-20-2017)

Sec. 12-16-22. Limitation on operating area.

Neither the granting of a business license or permit to operate a vehicle for hire under the terms of this chapter nor the exclusion from business license or permit requirements hereunder of certain vehicles described in the definitions of the terms "limousine," "executive sedan," "shuttle vehicle" and "taxicab" in section 12-16-3 shall constitute a grant of authority, per se, to pick up and discharge passengers at the Birmingham Shuttlesworth International Airport, in that the privilege of engaging in such conduct by limousines, executive sedans, shuttle vehicles, taxicabs, courtesy cars or any other commercial suppliers of ground transportation shall be subject to such restrictions and license or permit fees as may be imposed by separate contracts entered into between the city and any such commercial suppliers of ground transportation to and from the Birmingham Shuttlesworth International Airport.
(Ord. No. 12-162, § 1(12-16-22), 12-18-2012)

Sec. 12-16-23. Terminal.

Applicants for serve as the central dispatch location for said licensee/permitee. No licensee/permitee shall change his place of terminal without first providing the city with notice of the proposed location and verifying that the location meets all applicable city regulations, including zoning.
(Ord. No. 12-162, § 1(12-16-23), 12-18-2012; Ord. No. 17-15, § 1, 2-20-2017)

Sec. 12-16-24. Notification of sale of vehicle; removal of markings.

(a) Every licensee/permittee upon the sale or other disposition of a permitted vehicle for hire shall within 72 hours notify the city clerk of such sale or other disposition.

(b) All identification markings shall be removed prior to delivery of a vehicle for hire upon sale or other disposition thereof.
(Ord. No. 12-162, § 1(12-16-24), 12-18-2012)

Sec. 12-16-25. Real Interstate Driver Equity Act of 2002.

All vehicle for hire drivers engaging in interstate transportation shall meet the federal guidelines as stated in the Real Interstate Driver Equity Act of 2002 (RIDE). Passenger vehicles for hire involved in intrastate or interstate transportation must comply with all applicable USDOT and ALDOT regulations.
(Ord. No. 12-162, § 1(12-16-25), 12-18-2012)

Sec. 12-16-26. Temporary CPNCs.

The council may issue temporary CPNCs to qualified applicants for special events including but not limited to sporting events and conventions and other special needs, subject to the following restrictions:

(1) The temporary permit will be valid only for the time period of the event.

(2) The vehicles shall be properly licensed, registered, inspected and insured.

(3) Operators of such permitted vehicles shall themselves possess a valid state driver's license.

(4) For applicants not holding current CPNCs with the city, applications shall be made 60 days prior to the event.

(5) For companies that hold existing, valid and current CPNCs, applications shall be made as soon as practicable.

(6) A copy of such permits shall be kept within the vehicle.

(Ord. No. 12-162, § 1(12-16-26), 12-18-2012)

Sec. 12-16-27. Vehicle age limitations.

No vehicle for hire, as defined in section 12-16-1, with the exception of specialty limousines and horse-drawn carriages, can exceed a model year of more than ten years prior to the calendar year in which the CPNC is sought. Transfer of the CPNC to a newer vehicle must be approved by the chief of police or his or her designee.

(Ord. No. 12-162, § 1(12-16-27), 12-18-2012)

Sec. 12-16-28. Required.

No person shall operate a vehicle for hire upon the streets of the city and no person who owns or controls a vehicle for hire shall permit it to be so driven and no CPNCs by the city shall be so driven at any time for hire, unless the driver of such vehicle for hire shall have first obtained and shall have then in force an operator's permit issued under the provisions of this chapter.

(Ord. No. 12-162, § 1(12-16-28), 12-18-2012)

Sec. 12-16-29. Application and release.

(a) An application and release form for an operator's permit shall be filed with the chief of police or his or her designee on forms provided by the city. Such form shall be verified under oath subject to the penalty of perjury, and shall contain the following information:

(1) The applicant is a citizen of the United States or an alien admitted for permanent residence that has otherwise been granted employment authorization by the United States Immigration and Naturalization Service.

(2) The applicant is a resident of the state and has a current state driver's license.

(3) The applicant is able to speak, read, and write the English language.

(4) The applicant is 21 years of age or over.

(5) The applicant:

a. Does not have a record of driving violations or a record of convictions or offenses involving the operation of motor vehicles within the past three years, indicating an inability or unwillingness to safely operate a vehicle on the public streets;

b. Has not been convicted of any crime within the past five years involving a felony, a crime using force, or a crime involving moral turpitude;

c. Has not been convicted of an offense involving illegal possession or sale of alcoholic beverages or narcotic drugs or other substances defined as "controlled substances" within the past five years under the laws of the state;

d. Does not have a record of more than two at-fault traffic accidents within the three-year period preceding application with fault being determined by the chief of police or his or her designee from the applicant's required submission of accident reports generated as a result of those accidents;

e. Has not been convicted of driving violations amounting to more than 12 or more points for a period of three years prior to the date of application.

(b) Each application shall be accompanied by a set of the applicant's fingerprints, which fingerprints shall be taken by the chief of police or his or her designee.

(c) Each public service vehicle driver shall, initially and prior to the annual renewal of his or her public service vehicle driver's permit, have a physical and mental examination by a licensed physician, who shall certify whether such driver is physically and mentally qualified to safely operate a public service vehicle in accordance with standards established by federal motor carrier safety regulations: 49 CFR 391.41—391.49, NRS 706.8842, NAC 706.519.

(d) Each applicant for an operator's permit shall pay an application fee of $30.00 to the city police department. In addition the applicant must submit a money order in the amount of $25.00 to cover the cost of processing for the required fingerprint card. In the event of the loss of the operator's permit there shall be a replacement fee of $10.00. Each holder of operator's permit who applies to renew his or her permit shall pay a renewal fee of $10.00 biannually.
(Ord. No. 12-162, § 1(12-16-29), 12-18-2012)

Sec. 12-16-30. Reserved.

Sec. 12-16-31. Investigation of applicant.

When applying for an operator's permit under section 12-16-29, each applicant shall:

(1) Submit physician's certificate with two copies, from a physician who is licensed to practice medicine in the state (M.D. or D.O.). The physician shall issue the certificate if they find that a prospective driver meets health requirements established by federal motor carrier safety regulations: 49 CFR 391.41—391.49, NRS 706.8842, NAC 706.519.

(2) Provide, at the applicant's expense, a signed form requesting that a criminal history information record maintained by the Alabama Criminal Justice Information Center by the current procedures required by the Alabama Legislature and the Alabama Criminal Justice Information Center Commission from the Alabama Bureau of Investigation be provided to the chief of police or his or her designee along with a certified check or money order made payable to the Alabama Bureau of Investigation for the cost required by the state for such background check for the applicant, manager or any company official named in the application:

a. Any applicant for an operator's permit who has, during the five-year period prior to the application, been convicted for the violation of a criminal offense or placed on probation or parole, served time on a sentence for a criminal violation or forfeited a cash bond to appear in court to answer charges for a criminal offense shall be ineligible for a operator's permit. For purposes of this subsection, the term "criminal offense" includes all felonies or misdemeanors of the city, this state, any other state or the United States, and further, includes violations of local alcoholic beverage laws. If at any time during the application process the applicant is charged with any criminal offense, consideration of the application shall be suspended until entry of a judgment on or dismissal of the charge.

b. The applicant shall accompany the application and release form submitted to the chief of police or his or her designee with a certified cashier's check or money order payable to the Treasury of the United States in an amount sufficient to obtain a comprehensive criminal background check. the chief of police or his or her designee will mail the completed application and payment to ACJIC.

c. A referral letter from the vehicle for hire company currently licensed and permitted to operate in the city.

d. No taxi operator's permit will be issued to the applicant until the applicant has completed a taxi driver's training course, defensive driving course, and safety course approved by the chief of police or his or her designee. The cost of any

approved taxi driver's training courses will be at the expense of the applicant.

(Ord. No. 12-162, § 1(12-16-31), 12-18-2012)

Sec. 12-16-32. Operator to wear uniform or appropriate clothing.

Every driver of a public service vehicle, while operating the same within the city, shall wear clothing subject to guidelines outlined in this section as follows:

(1) All clothing worn by drivers shall be clean and sanitary, free of any rips or tears. Shirts shall be of a front button type (including "polo" shirts), and worn with all buttons buttoned except the top collar button, have sleeves and a full collar and shall be worn tucked inside trousers, provided, however, if the bottom hem of the shirt is straight cut (even around the hem) the shirt may be worn outside the trousers as long as the hem does not extend beyond the bottom edge of the trouser pocket. Trousers shall be worn to ankle length. Trousers shall be worn with the waist at the waist, no underwear showing. Shoes shall be worn and not be of a sandal or open toed type. Socks or hose shall be worn. Driver's with facial piercings shall not wear anything in such piercings provided that one earring may be worn in each ear provide the earring shall not exceed one inch measured in any direction.

(2) A public service vehicle operator's permit shall be displayed by taxi drivers at all times while operating a taxicab and by all other public service vehicle drivers, except limousine and executive sedan drivers. The badge shall be displayed and plainly visible at all times while the driver is operating a public service vehicle, on the front passenger side dashboard. For limousine drivers and executive sedan drivers shall carry their public service vehicle operator's permit on their person at all times while operating the limousine or sedan.

(Ord. No. 12-162, § 1(12-16-32), 12-18-2012)

Sec. 12-16-33. Renewal.

Operator's permits as provided in this chapter shall be issued yearly and shall be valid for a period of two years from the date of issuance. Applications for renewal thereof shall be filed with the chief of police or his or her designee at least 30 days prior to the expiration date of said permits. The cost and requirements for renewal are the same as set out in section 12-16-29.

(Ord. No. 12-162, § 1(12-16-33), 12-18-2012)

Sec. 12-16-34. Nontransferable.

No operator's permit shall be assigned or transferred to any other person. No CPNC shall be assigned or transferred to another vehicle unless otherwise authorized herein.

(Ord. No. 12-162, § 1(12-16-34), 12-18-2012; Ord. No. 17-15, § 1, 2-20-2017)

Sec. 12-16-35. Applicability.

The regulations in this chapter shall be observed in the operation and driving of every vehicle for hire upon the public streets of the city and its jurisdiction. It shall be unlawful for any person to violate the regulations in this chapter.

(Ord. No. 12-162, § 1(12-16-35), 12-18-2012)

Sec. 12-16-36. Fare to be standard.

No vehicle for hire owner or driver shall demand or suggest that any passenger or prospective passenger pay a fare in excess of that authorized.

(Ord. No. 12-162, § 1(12-16-36), 12-18-2012)

Sec. 12-16-37. Refusal to pay fare.

It shall be unlawful for a passenger to refuse to pay the agreed or established fare.

(Ord. No. 12-162, § 1(12-16-37), 12-18-2012)

Sec. 12-16-38. Drivers not to refuse service.

No vehicle for hire driver shall refuse or neglect to convey any orderly person upon request, unless previously engaged to full capacity or unless the transportation of such person shall substantially delay or inconvenience vehicle for hire passengers who already have engaged his or

her vehicle, or the driver determines the prospective passenger has no ability to pay or is under suspicious circumstances.
(Ord. No. 12-162, § 1(12-16-38), 12-18-2012)

Sec. 12-16-39. Number of passengers.

No vehicle for hire driver shall permit more persons to be carried in his or her vehicle than the suggested manufacturer's seating capacity.
(Ord. No. 12-162, § 1(12-16-39), 12-18-2012)

Sec. 12-16-40. Multiple passengers with multiple destinations.

If a vehicle for hire is carrying two or more persons to different destinations, the driver shall be the sole judge of the order in which such persons shall be delivered to their destination, and the shortest possible route to all destinations shall be followed.
(Ord. No. 12-162, § 1(12-16-40), 12-18-2012)

Sec. 12-16-41. Stopping en route to add passengers.

No vehicle for hire driver shall stop to pick up any additional passengers while proceeding to the destination of any passengers then occupying the vehicle for hire without the consent of all such passengers.
(Ord. No. 12-162, § 1(12-16-41), 12-18-2012)

Sec. 12-16-42. Waiting time.

No passenger in a taxi service for hire shall be kept waiting longer than five minutes before proceeding to his or her announced destination.
(Ord. No. 12-162, § 1(12-16-42), 12-18-2012)

Sec. 12-16-43. Placement and use of taxi stands.

(1) Transportation companies seeking the installation, construction, placement, or otherwise of a taxi stand must receive approval from the City of Birmingham Department of Traffic Engineering. The decision of the city traffic engineer shall be forwarded to the transportation and communications committee for the Council of the City of Birmingham for informational purposes.

(2) It shall be unlawful to occupy or park any vehicle except a taxicab duly permitted hereunder in a space established as a taxi stand as provided herein.
(Ord. No. 12-162, § 1(12-16-43), 12-18-2012; Ord. No. 14-111, 8-8-2014)

Sec. 12-16-44. Cruising.

No vehicle for hire driver shall cruise in search of passengers.
(Ord. No. 12-162, § 1(12-16-44), 12-18-2012)

Sec. 12-16-45. Preferences and soliciting of business.

It shall be unlawful for any cab starter, bell person, maitre d', or other person having the ability or authority to control the selection of taxicabs available for hire at any business premises to solicit a fee or other compensation or favor for the purpose of granting preference or priority rights to any taxi. The provisions of this section shall not be construed to prohibit the owner of business premises that maintains a private off-street cabstand area for the convenience of its patrons from entering into a written contract by which the owner receives compensation from one or more permittees in exchange for access to the premises' off-street cabstand area.
(Ord. No. 12-162, § 1(12-16-45), 12-18-2012; Ord. No. 14-111, 8-8-2014)

Sec. 12-16-46. Parking or standing on public street.

No vehicle for hire operated and permitted pursuant to this chapter shall park or stand on any public street or place other than a taxi stand, no parking zone, limited time parking zones, and passenger loading zones for the purpose of soliciting or accepting passengers. It shall be unlawful for any for-hire-vehicle to stop in driving lanes, even momentarily, to load or unload passengers.
(Ord. No. 12-162, § 1(12-16-46), 12-18-2012)

Sec. 12-16-47. Out-of-city vehicles.

Vehicles for hire having no city business license or CPNC and whose place of business is not in

the city may bring passengers into the city but may not pick up any passenger for any destination or accept any business within the city.
(Ord. No. 12-162, § 1(12-16-47), 12-18-2012)

Sec. 12-16-48. Cleanliness and safety of vehicle.

It shall be the duty of every person operating a vehicle for hire to keep and maintain any such vehicle at all times in accordance with section 12-16-6. The interior shall be thoroughly sprayed or wiped at least once during each 24-hour period with a liquid disinfectant of adequate strength and efficiency so that every portion of surface of the interior of the vehicle shall be covered or come in contact with such disinfecting fluid.
(Ord. No. 12-162, § 1(12-16-48), 12-18-2012)

Sec. 12-16-49. Lost property.

Taxicab drivers must conduct a search of the interior of their taxicabs at the termination of each trip. If the driver discovers any property of a passenger, the driver shall immediately report the property discovered to his or her employer and, as soon as practicable, deliver the property to their employer. The employer shall, when able, make every reasonable effort to notify passenger of recovery of lost property. The employer shall also maintain property in his or her possession in a secured location for a minimum of 30 days. A sign reflecting this policy shall be placed in each vehicle.
(Ord. No. 12-162, § 1(12-16-49), 12-18-2012)

Sec. 12-16-50. Penalties for violation of these provisions.

Any person who violates any provision of this chapter, or does any act made unlawful by this chapter shall upon conviction be punished as provided in section 1-1-6 of the General Code of the City of Birmingham.

A business license or permit granted pursuant to this chapter shall be subject to suspension or revocation if the holder fails to comply with the requirements of this chapter.

Additionally, any vehicle requiring a CPNC found to be operating a for-hire transportation service within the Birmingham city limits is subject to being impounded by the Birmingham Police Department until such time as the owner/operator of said vehicle comes into compliance with this chapter.
(Ord. No. 12-162, § 1(12-16-50), 12-18-2012; Ord. No. 14-111, 8-8-2014; Ord. No. 17-15, § 1, 2-20-2017)

Sec. 12-16-51. Possession and display of operator's permit.

No person shall drive a vehicle for hire upon the streets of the city unless he has in his immediate possession, on the front passenger dashboard in a manner in which it is clearly visible and can be readily observed by all passengers, a current Operator's Permit issued to him. An operator of a public service vehicle driver must have his or her valid Alabama driver's license in his or her immediate possession when driving a public service vehicle upon the streets of the city.
(Ord. No. 17-15, § 1, 2-20-2017)

Editor's note—Ord. No. 17-15, § 1, adopted February 20, 2017, amended § 12-16-51 in its entirety to read as herein set out. Former § 12-16-51, pertained to possession and display of driver's license, health and welfare certificate, and operator's permit, and derived from Ord. No. 12-162, § 1(12-16-51), 12-18-2012.

Sec. 12-16-52. Driver's behavior.

No driver of a vehicle for hire shall be impolite, discourteous, use vulgar, profane or obscene language, or use controlled substances (drugs) or drink intoxicating beverages while on duty.
(Ord. No. 12-162, § 1(12-16-52), 12-18-2012)

Sec. 12-16-53. Drivers not to sleep in vehicles.

No driver shall sleep or doze in any vehicle for hire in any public place in the city.
(Ord. No. 12-162, § 1(12-16-53), 12-18-2012)

Sec. 12-16-54. Trip log.

Each driver shall keep a written record of all trips which shall be retained by the licensee/permittee of each vehicle for hire for at least one

year, showing the vehicle registration certificate number, driver's permit number, name of driver, time on duty (a.m. to p.m.), time off duty (a.m. to p.m.), date, amount of fare collected, the time and place each passenger engaged such vehicle for hire and the time and place he or she left such vehicle for hire. Drivers who are able to maintain and preserve the information set forth in this section in an electronic format are exempt from having to maintain written trip logs.
(Ord. No. 12-162, § 1(12-16-54), 12-18-2012)

Sec. 12-16-55. No trailers.

No trailer or semitrailers shall be attached or secured to a vehicle for hire while it is being used to transport passengers.
(Ord. No. 12-162, § 1(12-16-55), 12-18-2012)

Sec. 12-16-56. Customer inspection of vehicle for hire.

Limousine and executive sedan vehicles for hire shall be made available for customer viewing and inspection prior to the trip event.
(Ord. No. 12-162, § 1(12-16-56), 12-18-2012)

Sec. 12-16-57. Reserved.

Sec. 12-16-58. Direct route.

A driver of any taxi for hire shall take the most direct route to a passenger's destination unless otherwise authorized or directed by the passenger. Long hauling shall be unlawful.
(Ord. No. 12-162, § 1(12-16-58), 12-18-2012)

Sec. 12-16-59. Discrimination.

No vehicle for hire driver shall refuse to accept a passenger solely on the basis of age, race, color, national origin, religious belief, sex, sexual orientation or physical disability. For the purposes of this section, the term "sexual orientation" means the state of being heterosexual, homosexual or bisexual.
(Ord. No. 12-162, § 1(12-16-59), 12-18-2012)

Sec. 12-16-60. Driving practices.

It shall be unlawful for a vehicle for hire driver:

(1) To operate his or her vehicle in a manner which threatens the life, health, and safety of the passenger or the public, or threatens damage or destruction of property; or

(2) To discharge any passenger before reaching the passenger's destination unless the driver has reasonable belief that the passenger is dangerous or unless street conditions do not permit a safe discharge.

(Ord. No. 12-162, § 1(12-16-60), 12-18-2012)

Sec. 12-16-61. Televisions or DVD players in vehicles for hire.

No television or DVD player visible to the driver of a vehicle for hire may be operated in a moving vehicle.
(Ord. No. 12-162, § 1(12-16-61), 12-18-2012)

Sec. 12-16-62. Receipts.

The driver of any vehicle for hire shall, upon demand by the passenger, render to such passenger a receipt for the amount charged, on which shall be the name of the company, the vehicle registration certificate number, name and permit number of the driver, trip origin and destination, amount of charges and date of transaction.
(Ord. No. 12-162, § 1(12-16-62), 12-18-2012)

Sec. 12-16-63. Smoking.

It shall be unlawful for the driver of any vehicle for hire operated upon the streets of the city to smoke or allow any other person to smoke in such vehicle.
(Ord. No. 12-162, § 1(12-16-63), 12-18-2012)

Sec. 12-16-64. Radio.

It shall be unlawful for the driver of any vehicle for hire operated upon the streets of the city to play a radio, or any other form of music player if objected to by a passenger.
(Ord. No. 12-162, § 1(12-16-64), 12-18-2012)

Sec. 12-16-65. Prohibition against transport of hazardous materials or medical specimens.

Vehicles for hire are for the transportation of the public and shall not be used to transport hazardous materials, medical specimens or any biohazardous material of any kind. Violations of this section will result in revocation of the CPNC.
(Ord. No. 12-162, § 1(12-16-65), 12-18-2012)

Secs. 12-16-66—12-16-100. Reserved.

ARTICLE B. BUSES

Sec. 12-16-101. Terminals for commercial transportation vehicles.

No operator of a commercial transportation vehicle shall receive or discharge any passenger within the corporate limits of the City otherwise than at a fixed-route-stop or terminal, approved by the City of Birmingham Department of Traffic Engineering, provided for the receipt and discharge of passengers outside of any street or alley of the City.
(Ord. No. 14-111, 8-8-2014)

Editor's note—Ord. No. 14-111, adopted August 8, 2014, amended § 12-16-101 in its entirety to read as herein set out. Former 12-16-101, pertained to terminals for interurban buses and suburban jitneys, and derived from Ord. No. 12-162, § 1(12-16-101), 12-18-2012.

Sec. 12-16-102. Where buses to stop for loading and unloading.

It shall be the duty of drivers of any commercial transportation vehicle, when stopping for the purposes of receiving or discharging passengers at intersections to stop at the right-hand curb line at such intersection; except, that where there has been established and marked a bus loading zone, it shall be the duty of such drivers to stop adjacent to such bus loading zone for the receipt or discharge of passengers therein.
(Ord. No. 12-162, § 1(12-16-102), 12-18-2012; Ord. No. 14-111, 8-8-2014)

Sec. 12-16-103. Doors of buses to be kept closed.

It shall be the duty of operators of buses operated for hire to keep the doors of such buses closed at all times while in motion and at all other times when not actually engaged in the reception or discharge of passengers and when the driver is not absent from such bus in the performance of some duty enjoined by law or actual necessity.
(Ord. No. 12-162, § 1(12-16-103), 12-18-2012)

Sec. 12-16-104. Receiving or discharging passengers in closed-door zone.

(a) It shall be unlawful for any operator or driver of any suburban jitney to receive or discharge any passengers within the zone of the city bounded on the north by Eighth Avenue North; on the east by Twenty-sixth Street; on the south by Second Avenue South; and on the west by Fourteenth Street, called the closed-door zone, except at a terminal specified in the applicable permit or as set out in subsection (b) of this section.

(b) The operator or driver of any suburban jitney may receive or discharge passengers in specified curb-loading zones inbound and outbound on Eighteenth Street at Morris Avenue.
(Ord. No. 12-162, § 1(12-16-104), 12-18-2012)

Sec. 12-16-105. Time limit in bus stands.

It shall be unlawful for any person in charge or control of any person in charge or control of any suburban jitney to permit or allow such jitney to occupy any lawfully established bus stand for a longer aggregate time than 15 minutes in any period of one hour.
(Ord. No. 12-162, § 1(12-16-105), 12-18-2012)

Sec. 12-16-106. Receiving or discharging passengers to points within city.

It shall be unlawful for any operator or driver of any suburban jitney to receive at such terminal

or elsewhere within the city any passenger for a destination within the city or to discharge within the city any passenger received within the city.
(Ord. No. 12-162, § 1(12-16-106), 12-18-2012)

Secs. 12-16-107—12-16-120. Reserved.

ARTICLE C. RENTAL VEHICLES

Sec. 12-16-121. Renting motor vehicles to minor.

It shall be unlawful for any person to rent a motor vehicle to any minor on any plan by which the service or use of such motor vehicle is allowed such minor and no driver is furnished, without the written consent of the parent or guardian of such minor.
(Ord. No. 12-162, § 1(12-16-121), 12-18-2012)

Sec. 12-16-122. Tampering or interfering with speedometer.

When any motor vehicle has been rented to any person for hire, it shall be unlawful for that person or for any other person to remove or attempt to remove, or tamper with or attempt to tamper with, or in any way interfere with the speedometer or other mechanical device attached to such motor vehicle for the purpose of registering the distance such motor vehicle travels.
(Ord. No. 12-162, § 1(12-16-122), 12-18-2012)

Sec. 12-16-123. False impersonation or representations.

It shall be unlawful for any person, in making application to rent a motor vehicle, to make any false impersonation of another, or to make any false or fraudulent statement or representation in writing, or to subscribe his or her name or the name of another to any false or fraudulent statement or representation
(Ord. No. 12-162, § 1(12-16-123), 12-18-2012)

Sec. 12-16-124. Failure to pay hire.

When any person has rented a motor vehicle for hire, it shall be unlawful for such person to fail or refuse to pay the lawful charges for the hire of such motor vehicle immediately upon the termination of the hire of such motor vehicle, unless a later time of payment be mutually agreed upon prior to the renting of such motor vehicle.
(Ord. No. 12-162, § 1(12-16-124), 12-18-2012)

Sec. 12-16-125. Abandonment or failure to redeliver.

When any person has rented a motor vehicle under a contract to redeliver such motor vehicle to the person from whom it was rented, it shall be unlawful for the person to whom such motor vehicle was rented to abandon or willfully refuse or neglect to redeliver the motor vehicle to the person from whom it was rented, without the consent of the person from whom such motor vehicle was rented.
(Ord. No. 12-162, § 1(12-16-125), 12-18-2012)

Sec. 12-16-126. Permitting others to drive rented car.

It shall be unlawful for any person to whom a motor vehicle has been rented to permit any other person to operate or drive such motor vehicle without first securing the consent of the person from whom such motor vehicle was rented.
(Ord. No. 12-162, § 1(12-16-126), 12-18-2012)

Secs. 12-16-127—12-16-140. Reserved.

ARTICLE D. HORSE-DRAWN CARRIAGES

Sec. 12-16-141. Health of the animal.

No animal shall be permitted to pull any carriage unless the animal is in good health and meets at least the following requirements:

(1) The animal must be at least 30 months old.

(2) The animal must weigh at least 900 pounds.

(3) The animal has no open sores or wounds, is not lame nor has any other ailment. Any animal found to have an ailment shall not be used without the approval of a veterinarian licensed in the State of Alabama.

(4) The hoofs of the animal must be properly shod and trimmed.

(5) The animal must be groomed daily and not have fungus, dandruff or a poor or dirty coat.

(6) The animal must have adequate flesh and muscle tones and ribs showing must be no deeper than one-fourth inch.

(7) The animal must be no more than six months pregnant.

(8) A certified copy of a current veterinary health certificate shall be filed with the Chief of Police or his designee annually. The certificate shall state that a veterinarian licensed in the State of Alabama has given the animal a complete physical examination, including a Coggins test, and declares that the results of the Coggins test were negative and that the animal is fit for carriage service.

(Ord. No. 12-162, § 1(12-16-141), 12-18-2012; Ord. No. 17-15, § 1, 2-20-2017)

Sec. 12-16-142. Animal working conditions.

No animal shall be worked under any of the following conditions, and any owner or operator who permits or allows these conditions to exist shall be in violation of this section:

(1) No animal or combination of animals shall pull any combined weight; including carriage, passengers and driver in excess of two times the animal's body weight.

(2) The animal shall work no more than ten hours in any 24-hour period and shall have at least one 20-minute or two ten-minute rest breaks per hour during the shift.

(3) The animal pulling a carriage shall be moved at a speed faster than a slow trot.

(4) The animal shall work no more than 50 hours in any seven-day period and shall not work more than five consecutive days.

(5) The animal shall not be worked with equipment causing an impairment of vision other than normal blinders.

(6) The animal shall not be subject to any condition or treatment which will impair the good health and physical condition of the animal.

(7) Harnesses must be properly fitted and maintained, kept free of wire or other harmful devices and be oiled and cleaned so as to be soft at all times.

(8) All bits shall be smooth and shall not cut the animal's mouth.

(9) No driver shall whip an animal with more than a light touch by a light whip.

(10) No animal shall be worked without proper fitting shoes on each properly trimmed hoof. Should an animal throw a shoe during the shift, the driver shall remove any nails from the hoof immediately. If such hoof has grown up at least one-fourth-inch from the quick, the animal may complete the shift provided that the animal shall be reshod prior to the next shift; otherwise the animal shall not be worked.

(11) Adequate water shall be provided in the stables at all times and in the working areas as often as needed, as climate and working conditions require.

(Ord. No. 12-162, § 1(12-16-142), 12-18-2012)

Sec. 12-16-143. Vehicle specifications.

Animal-drawn vehicles which are for hire shall conform to the following specifications:

(1) The wheelbase shall be equal to or less than 14 feet.

(2) The total overall length of vehicle shall be equal to or less than 28 feet.

(3) The maximum overall width of vehicle shall be equal to or less than 78 inches.

(4) The tires shall be rubber or other resilient material. Metal tires shall be prohibited.

(5) The vehicle right turn radii shall not be greater than 12 feet for the right rear wheel and 24 feet for the left front wheel.

(6) The vehicle shall be drawn by no more than two animals.

(7) Carriages must be properly lubricated and wheels must spin freely.

(Ord. No. 12-162, § 1(12-16-143), 12-18-2012)

Sec. 12-16-144. Diapers.

All animals shall be equipped with diapers which are properly fitted and constructed of sturdy material to ensure comfort to the animal and complete waste disposal. Failure to comply with the provisions of this section shall be grounds for suspension or revocation of the public service vehicle permit.

(Ord. No. 12-162, § 1(12-16-144), 12-18-2012)

Sec. 12-16-145. Drivers of animal-drawn vehicles.

Drivers of animal-drawn vehicles must have a working knowledge and general experience involving horses and animal-drawn vehicles.

(Ord. No. 12-162, § 1(12-16-145), 12-18-2012)

Sec. 12-16-146. Animal-drawn vehicle operating specifications.

Animal-drawn vehicles shall adhere to the following operating specifications during the hours of operations:

(1) Vehicles shall travel in the curb lane except when passing parked vehicles or other obstructions which prevent use of the curb lane.

(2) Vehicles shall not travel on streets with grades equal to or greater than ten percent without approval of the director of traffic engineering.

(3) Vehicles shall not stop within the roadway other than at designated loading and unloading areas except when necessary to avoid conflict with other traffic or in compliance with the directions of the police or a traffic control sign or signal.

(4) Vehicles shall observe all applicable rules of the road.

(Ord. No. 12-162, § 1(12-16-146), 12-18-2012)

Sec. 12-16-147. Insurance requirements.

Any animal-drawn vehicle company operating under this chapter shall execute an agreement holding the city, its officers, agents, servants and employees, harmless against any and all liability, loss, damages or expense which may accrue to the city by reason of negligence, default or misconduct of the company in connection with the rights granted to such company hereunder. Nothing in this chapter shall be considered to make the city, its officers, agents, servants or employees liable for damages because of any negligent act or omission or commission by any animal-drawn vehicle company, its servants, agents, drivers or other employees, during the operation by the company of the animal-drawn vehicle business or service, either in respect to injury to persons or with respect to damage to property which may be sustained. In addition to the insurance requirements under section 12-16-5, each animal-drawn vehicle insurance policy shall include the city as a named insured.

(Ord. No. 12-162, § 1(12-16-147), 12-18-2012)

Secs. 12-16-148—12-16-160. Reserved.

ARTICLE E. PEDICAB SERVICES

Sec. 12-16-161. Application and licensing process.

(a) Any person or business desiring to obtain a CPNC to operate a pedicab service shall follow the guidelines established in section 12-16-11.

(b) Any person desiring to drive a pedicab vehicle shall follow the guidelines established in section 12-16-29.

(Ord. No. 12-162, § 1(12-16-161), 12-18-2012)

Sec. 12-16-162. Business license, annual permit and financial responsibility.

(a) No pedicab service vehicle shall operate upon the streets of the city unless a business license for the then current license year shall have first been issued by the director of finance. The director of finance shall not issue such

license until and unless the applicant has been granted current, valid CPNC and filed insurance as required by this chapter.

(b) No pedicab service vehicle shall operate upon the streets of the city unless a yearly permit and decal for such calendar year shall have first been authorized by the chief of police or his or her designee. Each permit and decal is valid only for the pedicab vehicle for which it is issued.

(c) The chief of police or his or her designee shall not authorize the issuance of such annual permit and decal until and unless the application hereinafter required shall have been submitted along with the latest safety and soundness inspection report, proof of insurance and all other reports required by this chapter.
(Ord. No. 12-162, § 1(12-16-162), 12-18-2012)

Sec. 12-16-163. Pedicab passenger services.

(a) Each pedicab service CPNC holder shall file with the chief of police or his or her designee a schedule of rates to be charged. Such schedule of rates shall not be changed without five days' written notice having been given to the chief of police or his or her designee.

(b) Every pedicab vehicle shall have permanently affixed to the outside thereof, in a place readily seen by passengers, a frame covered with clear plastic, or similar material, enclosing a card upon which shall be printed in plain, legible letters the schedule of rates authorized for carriage in such pedicab. The pedicab companys name and telephone number shall be listed on the rate sheet.

(c) If requested by the passenger, the pedicab driver shall provide a legible receipt, containing the name of owner, the listing of all charges, the date, and total amount paid.

(d) Service refusal.

(1) Every CPNC holder under this chapter shall accept for transportation any orderly person requesting exclusive service anywhere in the approved pedicab service area.

(2) Provided, however, that the licensee/permittee or its driver has the right to request a passenger to pay an estimated fare prior to transporting the passenger. If prepayment is refused the licensee/permittee or its drivers may refuse service.

(3) It shall be unlawful to refuse any person transportation in an unoccupied pedicab to any place of destination within the approved pedicab service area, unless such pedicab is on its way to pick up a passenger or otherwise out of service or unless the person to be served uses profane or abusive language in attempting to contract for service.

(Ord. No. 12-162, § 1(12-16-163), 12-18-2012)

Sec. 12-16-164. Pedicabs and equipment requirements.

Every pedicab vehicle providing service in the city shall:

(1) Be maintained to assure that it is mechanically dependable, clean, and safe.

(2) Have a battery-operated headlight capable of projecting a beam of white light for a distance of 300 feet. The headlight shall be permanently affixed to the pedicab. Such lights may be removable and recharged.

(3) Have taillights permanently affixed on the right and the left at the same level on the rear exterior of the passenger compartment. Taillights shall be red in color and plainly visible from all distances within 500 feet to the rear of the pedicab. Such light may be removable and recharged.

(4) Have turn signal indicators.

(5) Provide a seat belt for every passenger.

(6) Be designed and manufactured so every passenger may enter and exit without crossing any interior barriers.

(7) Have the name of the pedicab company and its telephone number posted on both

sides of the pedicab vehicle in letters of a contrasting color and not less than two inches height.

(Ord. No. 12-162, § 1(12-16-164), 12-18-2012)

Sec. 12-16-165. General operation.

(a) All pedicabs shall operate according to the provisions in this chapter, the applicable provisions of this Code and state laws governing the operation of bicycles, and all other applicable state and federal laws and regulations. No pedicab shall be operated in weather conditions that pose an unreasonable safety risk to the drivers or passengers of the pedicab, or to other motorists or pedestrians. No pedicab shall be operated during a level 3 ozone alert declared by the Jefferson County Health Department for the city.

(b) Every pedicab operating under this chapter must be inspected by an authorized bicycle repair facility recognized by the manufacturer of the bicycle being used as a pedicab or at an authorized bicycle repair facility approved by the chief of police or his or her designee, at such intervals as may be established by the chief of police or his or her designee, but no less than once annually, to ensure the continued maintenance of safe operating conditions. Such pedicabs shall be maintained in working order and good repair. Maintenance and repair records for each pedicab shall be retained for at least one year after such maintenance and repair has been completed, and such records shall be made available to the city upon request.

(c) For the purposes of immediately loading or unloading passengers, a pedicab may remain standing upon a street if the pedicab is in any legal parking stall or space, designated loading zone or any other location that does not impede pedestrian or vehicular traffic. Otherwise, a pedicab may not be left parked or standing in specifically designated spaces, such as those for taxis, buses, handicapped drivers, and the like. The department of traffic engineering may set forth specific additional locations where pedicabs are allowed to park or stand. No pedicab, while in operation for the solicitation or transportation of passengers, shall be left unattended by the pedicab driver for a period of more than 15 minutes at a time unless parked in one of those specific locations identified by the department of traffic engineering.

(d) Pedicab owners shall maintain an operational log for each pedicab owned and operated under that owner's CPNC permit. The operational log shall list the dates and times of the operation of each pedicab, as well as the name of any pedicab driver operating the pedicab during those dates and time.

(e) It shall be unlawful for any pedicab owner, driver or operator to drive or operate a pedicab, or allow a pedicab to be driven or operated, on the following streets or highways: University Boulevard; First Avenue North; Tallapoosa Street; East Lake Boulevard; U.S. Highway 280; U.S. Highway 11; U.S. Highway 31; U.S. Highway 78 (Crestwood Blvd.); any one-way street; and any other street with a speed limit greater than 30 mph. A pedicab operator or driver may cross a prohibited street or highway for the purpose of accessing an approved street or highway.

(f) The chief of police or his or her designee, in conjunction with the department of traffic engineering, may propose other times of operation and locations where pedicabs may not be driven and operated within the city. Any such rules or restrictions shall be adopted by council ordinance to be effective.

(g) Pedicab drivers shall abide by the appearance and conduct standards for public service vehicles as outlined in this chapter, except for the clothing requirement. Pedicab owners shall submit, for the chief of police or his or her designee's approval, a clothing or uniform scheme for their drivers.

(Ord. No. 12-162, § 1(12-16-165), 12-18-2012)

Sec. 12-16-166. Insurance requirements and hold harmless agreement.

(a) Any pedicab company operating under this chapter shall maintain the insurance requirements for public service vehicles as outlined under section 12-16-5, and each pedicab company insurance policy shall include the city as a named insured.

(b) Any pedicab company operating under this chapter shall execute an agreement holding the city, its officers, agents, servants and employees, harmless against any and all liability, loss, damages or expense which may accrue to the city by reason of negligence, default or misconduct of the company in connection with the rights granted to such company hereunder. Nothing in this chapter shall be considered to make the city, its officers, agents, servants or employees liable for damages because of any negligent act or omission or commission by any pedicab company, its servants, agents, drivers or other employees, during the operation by the company of the pedicab business or service, either in respect to injury to persons or with respect to damage to property which may be sustained.
(Ord. No. 12-162, § 1(12-16-166), 12-18-2012)

ARTICLE F. RESERVED*

ARTICLE G. LOW SPEED VEHICLE SERVICE

Sec. 12-16-180. Low speed vehicle services; permit required.

(a) Unless otherwise stated herein low speed vehicle services (LSV) shall comply with the provisions of title 12, chapter 16 of the general City Code and with all applicable rules of the road and traffic statutes and ordinances.

(b) A person shall not operate a LSV company in the city without having first obtained business license from the city.
(Ord. No. 17-38, § 1, 4-6-2017)

Sec. 12-16-181. Storage of low speed vehicles.

The storage site for LSV must comply with all zoning regulations and restrictions.
(Ord. No. 17-38, § 1, 4-6-2017)

*__Editor's note—__Article F is entirely pre-empted by Alabama Act 2018-127, Sec. 17 codified at Ala. Code, 1975, 32-7C-36.

Sec. 12-16-182. Inspection and required equipment.

(a) Prior to being permitted to operate within the city, LSV must be inspected by the chief of police or his designee and must have the following equipment installed and in proper working order:

(1) Headlamps;

(2) Front and rear turn signal lamps;

(3) Tail lamps;

(4) Stop lamps;

(5) Reflex reflectors, one red on each side as far to the rear as practicable and one red on the rear;

(6) An exterior mirror mounted on the driver's side of the vehicle and either an existing mirror mounted on the passenger side of the vehicle or an internal mirror;

(7) A parking brake;

(8) A windshield that conforms to the Federal Motor Vehicle Safety Standard on glazing materials (49 CRF 571.205);

(9) A VIN that conforms to federal requirements for vehicle identification numbers;

(10) A Type 1 or Type 2 seatbelt assembly conforming to Federal Motor Vehicle Safety Standards (49 CFR 571.209) must be installed at each designated seating position;

(11) Rear visibility requirements specified under 49 CFR 571.111;

(12) An alert sound as required by 49 CFR 571.141;

(13) A valid State of Alabama license plate.

(b) Each LSV shall be inspected during the month of the expiration of then current specification sticker issued by the police department.

(c) The city police department may conduct random safety inspections of LSVs permitted under this section at any time.

(1) A mechanic at the city's garage will complete all such mechanical inspections at the city's expense;

(2) Any law enforcement officer can perform non-mechanic inspections to insure compliance.

(d) If a LSV fails to pass the requirements of an inspection, the police department shall issue the owner a correction slip giving the owner 15 days within which to correct all listed deficiencies. If such deficiencies are not corrected and if an inspection certificate has not been issued within such 15-day period, then such vehicle shall not be used thereafter until a new inspection certificate is issued.
(Ord. No. 17-38, § 1, 4-6-2017)

Sec. 12-16-183. Low speed vehicle identification.

(a) Each LSV shall bear on each side in letters of not less than two-inches in height, the name of the company, phone number of the company, a unit number, and may, in addition, include an identifying design which has been approved by the city with the application for an operating authority permit.

(b) The LSV must have proper markings prior to being permitted to operate on city streets and markings will be inspected during annual mechanic inspection of the LSV.
(Ord. No. 17-38, § 1, 4-6-2017)

Sec. 12-16-184. Conduct of drivers.

A driver of LSV shall at all times:

(a) Act in a reasonable, prudent, safe and courteous manner;

(b) Not permit a person not possessing a vehicle for hire driver's permit to operate the LSV or exercise control over the LSV;

(c) Not permit more passengers to be carried in an LSV than the number of approved seatbelts installed in the LSV, and at no time shall the driver allow passengers to ride in any area of the LSV not specifically designed or designated as a seat;

(d) Not permit any passenger 12 years of age or younger to ride in the LSV unaccompanied by an adult;

(e) Travel only roads with speed limits that do not exceed 35 mph;

(f) Not operate an LSV in excess of 25 mph;

(g) Not operate an LSV while under the influence of intoxicating beverages or drugs;

(h) Observe and obey all state and local traffic laws and regulations;

(i) Not permit a passenger to stand or ride on any part of the LSV other than the designated seating area while the LSV is motion, and to advise the passengers that they must be seated except when loading or unloading;

(j) Wear a seatbelt at all times the LSV is operation;

(k) Not operate outside the area of operation authorized by the city traffic engineer or anywhere that the operation of such vehicles would violate state law;

(l) Not permit the consumption of alcohol, or possession of open containers by passengers.
(Ord. No. 17-38, § 1, 4-6-2017)

Sec. 12-16-185. Driver's permit required.

No person shall operate a LSV unless they have obtained a public service vehicle operator's permit pursuant to this chapter.
(Ord. No. 17-38, § 1, 4-6-2017)

Sec. 12-16-186. Area of operation; receiving and discharging passengers.

(a) An LSV shall operate only on routes approved by the city traffic engineer. Approval of a route shall not authorize the operation of a LSV anywhere that the operation of the vehicle is prohibited by state law.

(b) On multi-lane roadways, LSV shall operate in the far right lane to the extent practicable, except when necessary to move to the left lane or turn lane to execute a left turn. On one-way streets, an LSV shall operate to the far-right or far-left to the extent practicable to not impede traffic and to provide for safe discharge and receipt of passengers.

(c) Drivers shall not receive or discharge passengers upon the roadway, but shall use appropriately designated and signed loading zones to receive or discharge passengers.

(d) Drivers shall not stop to load or unload passengers or their belongings in the intersections of any street, crosswalks or in any manner or other location that would be considered unsafe. No LSV shall load or unload in any such manner that will in any way impede or interfere with the orderly flow of traffic on the streets.

(e) LSV drivers shall not allow additional passengers to board the LSV while the vehicle is in motion.

(f) Passenger loading zones shall be used to receive and discharge passengers. The city traffic engineer may designate zones for use by LSV, if needed.

(g) LSV shall not stop, stand or park in a bus stop or taxicab stand when any such stop or stand has been officially designated and appropriately signed, except that the driver of an LSV may temporarily stop therein for the purpose of and while actually engaged in loading or unloading passengers when that stopping does not interfere with any bus or taxicab waiting to enter or about to enter that zone.
(Ord. No. 17-38, § 1, 4-6-2017)

Sec. 12-16-187. Fares; refusal to pay legal fare.

(a) Any fare charged by a LSV shall be on a per person, per ride basis and shall be clearly posted.

(b) It is unlawful for any person to refuse to pay the legal fare of any LSV for the services mentioned in this chapter after having hired the same and it is unlawful for any person to hire any such vehicle with intent to defraud the person hired of the value of such service.
(Ord. No. 17-38, § 1, 4-6-2017)

Secs. 12-16-188, 12-16-189. Reserved.

ARTICLE H. PEDAL BUS SERVICE

Sec. 12-16-190. License; permit.

(a) Unless otherwise stated herein, pedal bus services shall comply with the provisions of this chapter.

(b) A person shall not operate a pedal bus service company in the city without having first obtained business license from the city.

(c) No pedal bus shall be used or operated on a for hire basis by any person within the city without an owner or operator having first obtained an operating authority permit and obtaining CPNC permits for each vehicle.

(d) It shall be unlawful for any person to transport or offer to transport passengers in any pedal bus which does not have affixed to the pedal bus a valid CPNC sticker issued by the chief of police or his or her designee.

(e) CPNC's shall not be transferred, sold or given from one owner to another including the sale of one pedal bus company in its entirety to another.
(Ord. No. 17-48, § 2, 5-3-2017)

Sec. 12-16-191. Limitation of pedal bus services.

(a) In granting an operating authority permit, the council shall, at a minimum, take into consideration the number of pedal buses already in operation, whether existing service is adequate to meet the public need; the character, experience, financial condition and responsibility of the applicant. If the council finds that further or additional pedal bus service in the metropolitan government area is required by the public convenience and necessity and that the applicant is fit, willing and able to provide such service and to conform to the provisions of this chapter, the council may issue a certificate of public convenience and necessity, stating the name and address of the applicant, the number of vehicles authorized upon such certificate and the date of issuance.

(b) The council may limit the number of pedal bus services or pedal bus CPNC's if the council finds that that the number of pedal buses interferes with traffic flow.
(Ord. No. 17-48, § 2, 5-3-2017)

Sec. 12-16-192. Driver.

A driver shall at all times:

(1) Act in a reasonable, prudent, safe, and courteous manner;

(2) Not permit a person not possessing a pedal bus driver's permit to exercise control over the operation of a pedal bus;

(3) Not permit more passengers to be carried in a pedal bus than for which there is proper seating, and at no time shall the driver allow any passenger to ride in any area of the pedal bus not specifically designed or designated as a seat;

(4) Not allowing any passenger under 18 years of age to ride in a pedal bus;

(5) Travel only roads with speed limits that do not exceed 35 miles per hour and approved by city traffic engineer for use by pedal buses.

(6) Not operate a pedal bus in excess of 15 miles per hour;

(7) Not operate a pedal bus while under the influence of intoxicating beverages or drugs;

(8) Not operate a pedal bus while possessing a lighted cigarette, cigar, or pipe at any time;

(9) Observe and obey all state and local traffic laws and regulations;

(10) Not permit a passenger to stand or ride on any part of the pedal bus other than the designated seating area while the pedal bus is in motion and to advise the passengers that they must be seated except when loading or unloading.

(Ord. No. 17-48, § 2, 5-3-2017)

Sec. 12-16-193. Alcoholic beverages on pedal bus.

(a) Passengers on a pedal bus may consume alcoholic beverages, subject to the following:

(1) Passengers may bring only beer or wine in unopened, non-breakable, individual serving containers on board the pedal bus for consumption while on the vehicle. No glass containers shall be allowed on board a pedal bus in any case.

(2) While within a designated entertainment district of the city, a passenger may possess and consume a beverage purchased from an authorized licensee within the district in compliance with the city's entertainment district ordinance.

(3) Alcoholic beverages shall not be removed from a pedal bus and consumed along the route unless it is within a designated entertainment district of the city and during the approved hours of operation of the district.

(4) It shall be unlawful for a pedal bus service or its drivers to sell, serve or dispense alcoholic beverages unless a valid license has been obtained from the Alabama Alcoholic Beverage Control Board with the approval of the city council.

(5) It shall be unlawful for the driver/operator of any pedal bus to consume alcoholic beverages while driving or operating a pedal bus.

(b) The provisions of section 12-10-9, "Drinking in public", of this Code shall not apply to passengers consuming alcoholic beverages while on board a pedal bus and in compliance with subsection (a) of this section.
(Ord. No. 18-3, § 1, 1-4-2018)

Editor's note—Ord. No. 18-3, § 1, adopted January 4, 2018, amended § 12-16-193 in its entirety to read as herein set out. Former § 12-16-193, pertained to no alcoholic beverages on pedal bus, and derived from Ord. No. 17-48, § 2, 5-3-2017.

Sec. 12-16-194. Violation of noise ordinance.

No music or amplified sound shall be played, nor yelling or conversation be conducted, on a pedal bus in such a manner that it would violate the city's noise ordinance.
(Ord. No. 17-48, § 2, 5-3-2017)

Sec. 12-16-195. Minimum specifications of pedal bus.

Each pedal bus in operation must meet the following minimum specifications:

(1) Unibody frame construction;

(2) Four wheels;

(3) Rubber on all wheels;

(4) A fully operational horn or bell;

(5) Headlights that have a beam of at least 300 feet;

(6) Flashing taillights that are visible from at least five hundred feet;

(7) Mirror(s) affixed to the pedal bus to reflect to the driver a view of at least 200 feet from the rear of the pedal bus;

(8) Turn signals affixed to the front and rear of the vehicle;

(9) Working running lights along the outermost parts of the front, sides, and rear of the vehicle so as to make the vehicle clearly visible to motorists at night;

(10) Hydraulic, mechanical disk, or drum brakes that are unaffected by wet conditions and that control the front and rear of the pedal bus;

(11) Trailers are prohibited from being attached to pedal buses;

(12) Body painted with bright, reflective paint;

(13) Clean and maintained in a good state of repair. All pedal buses shall be maintained by the certificate holder so as to be well painted and have a damage or deterioration free appearance, and in safe operational condition; and

(14) If electric motor assistance is installed, it must meet all manufacturer standards and be inspected by a certified mechanic on an annual basis.

(Ord. No. 17-48, § 2, 5-3-2017)

Sec. 12-16-196. Vehicle to display company name, color scheme insignia and numbering—Restrictions.

(a) Each pedal bus shall bear on the rear of the vehicle, above the taillights, in letters not less than two inches in height, the name of the company, phone number of the company, and may, in addition, bear an identifying design which has been approved by the city.

(b) No pedal bus covered by the terms of this chapter shall be licensed which bears a color scheme, identifying design, monogram or insignia which, in the opinion of the city, conflicts with or imitates any color scheme, identifying design, monogram or insignia used by another pedal bus company in such manner as to be misleading or such that it tends to deceive or defraud the public.

(c) If, after a certificate of public convenience and necessity has been issued for a pedal bus under this chapter, the color scheme, identifying design, monogram or insignia thereof is changed so as to be, in the opinion of the city, in conflict with or imitate any color scheme, identifying design, monogram or insignia used by any other person, owner or operator, in such manner as to be misleading or such that it tends to deceive the public, the certificate of or certificate covering such pedal bus shall be suspended or revoked.

(d) Each pedal bus shall bear on the rear, a CPNC inspection sticker issued by the city.

(Ord. No. 17-48, § 2, 5-3-2017)

Sec. 12-16-197. Inspection and maintenance of vehicles—Compliance required.

(a) Prior to the use and operation of any pedal bus under the provisions of this chapter, such vehicle shall be thoroughly examined and inspected by the certificate holder and found to comply with this article. Every pedal bus operating under this chapter shall be periodically inspected by the certificate holder to ensure the continued maintenance of safe operating conditions. A certificate holder, owner or driver shall make the pedal bus available for inspection at such place within the metropolitan area as the police chief or his designee may direct. If, upon inspection, the police chief or his designee determines that a pedal bus is not in compliance with this article, the police chief or his designee shall, based upon the condition noted, order the pedal bus be removed from service or that the vehicle be brought into compliance within a reasonable period of time and require it to be re-inspected.

(b) Every pedal bus operating under this article shall be kept in a clean, sanitary and satisfactory condition.

(c) Every pedal bus operating under this chapter shall annually undergo a detailed inspection conducted by an approved mechanic to determine if the vehicle conforms to the standards set out by this article. A safety certificate form, when completed by an approved mechanic, shall be provided to the police chief or his designee within 30 days of the inspection.

(Ord. No. 17-48, § 2, 5-3-2017)

Sec. 12-16-198. Rate schedule for pedal buses.

(a) Pedal buses shall be operated for prearranged tours and shall not accept passengers on demand.

(b) Passengers shall be informed of the rate for the tour service prior to embarking.

(Ord. No. 17-48, § 2, 5-3-2017)

Sec. 12-16-199. Pedal bus equipment.

(a) An owner, operator, or driver of a pedal bus shall daily inspect all pedal buses and all equipment at the time of departure from and return to the service's place of business.

(b) No pedal bus engaged in the pedal bus business shall be driven or operated on a public street or byway of the city unless the owner or operator of the pedal bus has obtained a valid identification card issued in accordance with this chapter.

(c) A pedal bus used in passenger transportation service shall:

(1) Have a valid permit conspicuously displayed on the vehicle at all times;

(2) Be maintained in a safe and sanitary condition;

(3) Not drive or transport more passengers than there are proper seating for, excluding the driver of the vehicle. At no time shall the driver allow any passenger to ride in any area of the vehicle that was not specifically designed as a seat. In no event shall the number of passengers on a pedal bus exceed 16;

(4) Display the name and telephone number of the pedal bus company with two inch letters on the rear of the vehicle. These signs must be displayed at all times that the vehicle is operating for business unless the vehicle is being used for a special event, such as a wedding or parade;

(5) Reflectors must be affixed to the front and each of the rear wheels;

(6) Be equipped with head lights and taillights;

(7) A fully charged backup battery must be readily available and a pedal bus cannot operate without proper lights.

(d) If, upon any inspection, a pedal bus is found to be unsafe, unclean or unsightly, police chief or designee, may direct that the vehicle be taken out of service until such condition is corrected. Such vehicle shall be re-inspected and approved by the police chief or designee before returning to service.
(Ord. No. 17-48, § 2, 5-3-2017)

Sec. 12-16-200. Duty to render service—Business requirements.

All persons engaged in any pedal bus service shall maintain a fixed, central place of business, as indicated in their application for a certificate of public convenience and necessity.
(Ord. No. 17-48, § 2, 5-3-2017)

Sec. 12-16-201. Operating area.

(a) Pedal buses shall operate only upon the streets on routes or zones, and within hours of operation, approved by the city traffic engineer. Any deviation from these approved routes, zones, or hours of operation must be approved by the city traffic engineer. Any approved deviation must be reported to the city traffic engineer prior to beginning of operations.

(b) On multi-lane roadways, pedal buses shall operate in the far right lane, except when necessary to move to the left lane or turn lane to execute a left turn. On one-way streets, a pedal bus shall operate in either the far right-lane or far left-lane as necessary to follow the route and planned turns.
(Ord. No. 17-48, § 2, 5-3-2017)

Sec. 12-16-202. Records and reports.

(a) Each pedal bus service shall maintain at a single location business records of its pedal bus business. The records must contain the following information:

(1) An identification of the pedal buses in operation;

(2) An identification of the drivers operating the pedal buses each day and a statement of the hours each driver operated the vehicle each day; and

(3) A log of each trip, including any safety-related incident, including, but not limited to, any accidents, injuries or altercations, occurring during any trip.

(b) A certificate holder shall make its records available for inspection by police chief, his/her designee or other designated officials, including, but not limited to, the city traffic engineer or finance director or their designees.
(Ord. No. 17-48, § 2, 5-3-2017)

Sec. 12-16-203. Accidents.

(a) All accidents arising from or in connection with the operation of a pedal bus shall be reported within 72 hours from the time of occurrence to the police chief and traffic engineer or their designees if the accident results in:

(1) Death or bodily injury to any person, or

(2) Damage to any vehicle, or to any property in an amount exceeding the sum of $250.00.

(b) A pedal bus damaged in an accident, but still operable without placing the driver or passengers at risk, must be repaired within two weeks of the accident or removed from operation until repaired and inspected.
(Ord. No. 17-48, § 2, 5-3-2017)

Sec. 12-16-204. Passengers—Receiving and discharging by drivers.

(a) Drivers shall not receive or discharge passengers upon the roadway, but shall use appropriately designated and signed loading zones to receive or discharge passengers.

(b) Drivers shall not stop to load or unload passengers or their belongings in the intersections of any street, crosswalks or in any manner or other location that would be considered unsafe. No pedal bus shall load or unload in any such manner that will in any way impede or interfere with the orderly flow of traffic on the streets.

(c) Pedal bus drivers shall not allow additional passengers to board the pedal bus after the vehicle has left its fixed starting point.

(d) The city traffic engineer may designate specific areas of the roadway for use as a loading/unloading zone for pedal buses.

(e) Pedal buses shall not stop, stand or park in a bus stop or taxicab stand when any such stop or stand has been officially designated and appropriately signed, except that the driver of a pedal bus vehicle may temporarily stop therein for the purpose of and while actually engaged in loading or unloading passengers when that stopping does not interfere with any bus or taxicab waiting to enter or about to enter that zone.
(Ord. No. 17-48, § 2, 5-3-2017)

Sec. 12-16-205. Passengers—Refusal to pay legal fare.

It is unlawful for any person to refuse to pay the legal fare of any pedal bus for the services mentioned in this chapter after having hired the same and it is unlawful for any person to hire any such vehicle with intent to defraud the person hired of the value of such service. A driver shall have the right to demand payment in advance for pre-arranged tours.
(Ord. No. 17-48, § 2, 5-3-2017)

Sec. 12-16-206. Disposition of disorderly passengers.

Drivers shall act in a reasonable and professional manner in dealing with disorderly passengers. A pedal bus service shall have a plan and train all drivers for the management of disorderly passengers endangering the safety and well-being of other passengers and the public.
(Ord. No. 17-48, § 2, 5-3-2017)

Sec. 12-16-207. Application of Code provisions regarding bicycles.

(a) Pedal buses shall not be driven on sidewalks under any circumstances.

(b) Pedal buses shall not be operated within designated bicycle lanes, but shall instead move with traffic like motor vehicles.

(c) Pedal buses are prohibited from parking on the sidewalk or from being secured to publicly owned poles.

(d) Except to the extent otherwise provided in this chapter, pedal buses shall comply with all provisions of title 12, chapter 16 of the general City Code and with all applicable rules of the road and traffic statutes and ordinances.
(Ord. No. 17-48, § 2, 5-3-2017)

Sec. 12-16-208. Compliance with other laws.

It shall be a violation of this chapter for a pedal bus service or driver to violate any other applicable federal, state or local law or regulation in offering or providing pedal bus services.
(Ord. No. 17-48, § 2, 5-3-2017)

CHAPTER 17. WRECKER SERVICE*

Sec. 12-17-1. Dispatching wrecker when information intercepted from police radio calls.

It shall be unlawful for any person to send, operate or direct a motor vehicle wrecker to the location or scene of an accident or disabled vehicle in the city if information as to such accident or disabled vehicle is obtained directly or indirectly from city police by short-wave radio calls or transmissions; provided that this section shall not apply to information obtained from calls made by the police department of the city or a police officer thereof directly to a particular wrecker service or business requesting a wrecker be sent by such service or business to the scene of an accident or disabled motor vehicle.
(Code 1964, § 58-1; Code 1980, § 12-17-1)

Sec. 12-17-2. Radio tuned to police short-wave band.

It shall be unlawful for any person, firm or corporation operating a motor vehicle wrecker service or business in the city, or any employee of such service or business, to permit any radio at such place of business or in any vehicle used in such business to be tuned to the city police department short-wave radio band or otherwise tuned or set so as to intercept or receive police short-wave radio calls or transmissions.
(Code 1964, § 58-2; Code 1980, § 12-17-2)

Sec. 12-17-3. Soliciting business at scene of accident.

It shall be unlawful for any person engaged in operating a motor vehicle wrecker service or business or any employee of such service or business to solicit patronage for such wrecker service or business at the scene of a motor vehicle accident in the city within one hour after the occurrence of such accident.
(Code 1964, § 58-3; Code 1980, § 12-17-3)

Sec. 12-17-4. Dispatching wrecker to scene of accident without request by owner of vehicle involved; unlawful to remove vehicle without furnishing police with required information.

It shall be unlawful for any person, firm or corporation to send, operate or direct a motor vehicle wrecker to the location, or the scene of an accident or disabled vehicle in the city unless requested to do so by the owner or person in charge or possession of such vehicle and after obtaining the name and residence address of such owner or person in charge or possession thereof. It shall be unlawful for any person in charge of or operating a wrecker to remove a disabled motor vehicle from the scene of an accident without furnishing a police officer at such scene the name and address of the person requesting the removal of the disabled motor vehicle when requested by the officer to do so.
(Code 1964, § 58-4; Code 1980, § 12-17-4)

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*__State law references__—Power of municipality to tax and collect reasonable privilege license fees or taxes from any motor carrier where such motor carrier does business in said municipality by receiving freight for transportation for hire between said city or town and another point in Alabama; said privilege license or tax shall not exceed $300.00 in incorporated cities or towns of over 100,000 inhabitants, Code of Ala. 1975, § 37-3-33.

Sec. 12-17-5. Exceptions from certain provisions of chapter for companies having contracts with city.

The provisions of sections 12-17-1, 12-17-2 and the first sentence of section 12-17-4 shall not apply to a wrecker service or business under written contract with the city to furnish wrecker service to the city at the request of the police department thereof.
(Code 1964, § 58-5; Code 1980, § 12-17-5)

Sec. 12-17-6. Revolving amber lights on wreckers.

(a) It shall be unlawful for any person to operate a wrecker or towing service vehicle upon the streets or public ways of the city unless such vehicle is equipped with a revolving amber light in good repair which shall be mounted in such a position so as to be visible throughout an arc of 360 degrees, which amber light shall be in operation at all times while a vehicle is in tow.

(b) No person shall operate a wrecker or towing service vehicle upon the city streets with the amber light operating unless the wrecker or towing service vehicle has a vehicle in tow or is within 200 feet of such vehicle to be towed and is preparing to tow such vehicle.

(c) No person shall operate the amber light on such vehicle while en route to the location from which a tow-in is to be made.

(d) Upon conviction for any violation of this section, such offender may be fined not less than $10.00 nor more than $100.00.
(Code 1964, § 58-6; Code 1980, § 12-17-6)

Sec. 12-17-7. Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

Person means any person driving or operating a wrecker or towing service vehicle upon the streets of the city.

Wrecker or *towing service vehicle* means a vehicle designed to be used for hauling or towing motor vehicles from one place to another, by use of a flatbed, towbar, dolly or other device, including any truck, automobile or other vehicle adapted to that purpose. This definition specifically does not include vehicles designed to transport four or more vehicles.
(Code 1964, § 58-7; Code 1980, § 12-17-7; Ord. No. 93-49, 3-23-1993)

Sec. 12-17-8. Charges made by wrecker service under contract with city.

Any wrecker service or business which is under written contract with the city to furnish wrecker service and storage to the city shall charge members of the public for similar services and storage rendered inside the city at the same rates as established in section 10-14-6 provided the services and storage rendered is in response to a request by a member of the police department of the city.
(Code 1964, § 58-7.1; Code 1980, § 12-17-8; Ord. No. 80-274, 12-16-1980; Ord. No. 83-207, 12-13-1983)

CHAPTER 18. MISCELLANEOUS REGULATIONS

Sec. 12-18-1. Business establishments; information cards to be placed on ground level doors; duty to respond to emergencies; penalties.

(a) Every owner of a business establishment in the city or its police jurisdiction, including every owner or corporate manager of a multi-tenant building, whether commercial or residential, equipped with one or more exterior ground level or street level doors shall place and maintain at all times in a conspicuous location at the exterior face of every such door, an information plate or card containing the name, address and telephone number of two persons to be notified in the event of fire, burglary or other emergency affecting such establishment which persons shall be ones who are responsible for control of the premises, capable of controlling any alarm system, and are capable of responding to the premises in no more than 60 minutes at all times.

(b) It shall be unlawful for such business owner or owner or corporate manager of any commercial or residential multi-tenant building to fail to have conspicuously affixed at all times on or adjacent to the entrances on the exterior of the building, structure or facility the name and telephone number of two persons who are currently; responsible for control of the premises, capable of controlling any alarm system and are capable of responding to the premises in no more than 60 minutes at all times.

(c) It shall be the responsibility of the business owner or the owner or corporate manager of any commercial or residential multi-tenant building to ensure that either they or their designated representative respond to check the premises with the responding officers within one hour after the police officers or fire officials contact the person listed on the required information plate or card notifying them that an apparent or actual emergency affecting the establishment has occurred.

(d) Violations of this section shall be punishable by a minimum fine of:

(1) $100.00 for the first offense within a 12-month period;

(2) $250.00 for the second offense within a 12-month period; and

(3) $500.00 for the third and any subsequent offence within any 12-month period.

(Code 1964, § 36-11; Code 1980, § 12-18-1; Ord. No. 00-73, § 1, 5-9-2000)

Sec. 12-18-2. Cleaning and pressing shops and laundries; records; marking of articles received.

(a) Every person to whom a license is issued to engage in or carry on the business of cleaning or pressing men's or women's wearing apparel shall be required to keep a record of each day's business in books or on cards or paper printed or written in a legible hand to be preserved for at least six months after date of each record, which record shall, among other things, show the names of every person from whom any wearing apparel is received, together with the time of such receipt and a brief description of such wearing apparel, together with any valuables of any description which may be found thereon or therein. Any police officer, upon showing his or her authority, shall have access to such records in any such place of business at any time for the purpose of locating lost or stolen garments or any valuables which may be left in or pinned on the same.

(b) The chief of police shall have authority to assign to each cleaning and pressing shop and laundry a guide number, and it shall be the duty of the assignee of such number to cause such number to be permanently inscribed upon each article of clothing received by such assignee. Nothing herein shall be construed to prohibit the use of invisible ink in the making of such inscription.

(Code 1964, § 36-12; Code 1980, § 12-18-2)

Sec. 12-18-3. Vending machines for the sale of newspapers, magazines, etc.

(a) Any person operating vending machines from which are sold magazines, newspapers or other publications upon any sidewalk or other public area situated in the Birmingham Green Project Area, which is defined as 20th Street from the railroad underpass to 7th Avenue North, 1st, 2nd and 3rd Avenues North from 20th Street to 21st Street, shall provide and maintain in a good condition enclosures, containers or outer covers for such vending machines which shall be of a type, size, color and design as prescribed by a design and specifications on file in the office of the city engineer.

(b) Any person operating vending machines from which are sold magazines, newspapers or other publications upon any sidewalk or other public area situated in the retail district, which is defined as 19th Street from 1st Avenue North to 4th Avenue North and 2nd, 3rd and 4th Avenues North from 18th Street to 20th Street, shall provide and maintain in good condition vending machines of a type, size, color and design as prescribed by a design and specifications established by the city engineer and maintained on file in his or her office.

(c) Vending machines shall be located so as to avoid interference with pedestrian traffic, handicapped access ramps, bus stops, and fire

hydrants. Vending machines shall be aligned contiguously in a neat fashion and shall not be attached to street lights, signs, etc. The city engineer shall have the authority to order that vending machines which do not comply with these requirements be removed from the public right-of-way within five days of written notice to the vendor or his or her authorized representative.

(d) Any failure to comply with this section shall be punishable as provided by section 1-1-6.
(Code 1964, § 36-68; Code 1980, § 12-18-3; Ord. No. 85-25, 2-19-1985)

Sec. 12-18-4. Money lenders.

Whenever any person engaged in the business of a money lender in the city or any other person who lends money in the city above the legal rate of interest, shall loan money to any person and such person shall make a payment thereon, either upon the principal or upon the interest upon such principal, it shall be the duty of the party lending the money, at the time of receiving such payment, to enter upon the note or other paper evidencing the debt the date and true amount of such payment and at the same time give to the borrower a receipt showing amount of payment, date and debt on which such payment is made, how the same is to be applied, and the balance owing.
(Code 1964, § 36-38; Code 1980, § 12-18-4)

Sec. 12-18-5. Real estate sales agreements; zoning districts and floodplain designations to be included.

(a) It shall be unlawful for any owner of real estate situated in the city or any other person claiming to own an interest or right therein, his or her agent, representative or attorney-in-fact, when entering upon any agreement, contract or memorandum in writing for the sale or transfer of such real estate or interest therein to another, to fail to write into the agreement, contract or memorandum the name or designation of the zoning classification or district of the property to be sold and whether the real estate is situated in a floodplain as designated on the floodplain district map, as described in section 11 of article XXIII of appendix D to this Code.

(b) Any person who shall violate any provision of this section shall, upon conviction thereof, be punished by a fine not exceeding $100.00.
(Code 1980, § 12-18-5)

Sec. 12-18-6. Nude modeling.

(a) No owner, manager, operator or employee of any studio, school or other business which offers to the public any human model for sketching, drawing, sculpturing or painting shall offer or permit any nude model, as herein defined, to be sketched, drawn, sculptured or painted except from a platform or stage, the nearest edge of which shall be not less than four feet from any person sketching, drawing, sculpturing or painting such model. Such model shall be deemed, for the purposes of this section, to be nude if any genital, sexual part or breast of any female model is exposed to view, whether such exposure results from the lack of clothing or the transparency of any clothing worn by such model. A female breast shall be considered exposed when any portion thereof below the top of the nipple shall be visible.

(b) All models in any studio, school or other business, as defined in subsection (a) of this section, who pose or model nude, as defined in subsection (a) of this section, shall do so in a common or single room or enclosure, set aside for such purpose; and no screens, curtains, blinds, partitions or other obstructions shall be placed within such room or enclosure. A clear view of the entire interior of such room or enclosure from any place within such room or enclosure shall be maintained at all times; and no model shall at any time be nude, as defined herein, except in such common or single room or enclosure. All customers, while waiting to be provided a model, shall be and remain seated in a common or single room as described herein.

(c) No provision of this section shall apply to any owner, manager, operator or employee of any bona fide art school having a regularly enrolled student body, or to any artist operating or using

an art studio wherein models are employed by such artist in order that such artist may produce or create works of art.

(d) Any person convicted of violating any provision of this section shall be punished as provided in section 1-1-6.
(Code 1980, § 12-18-6)

Sec. 12-18-7. Shoeshine service establishments; conduct of patrons receiving or waiting to receive service; clear view of interior required.

(a) It shall be unlawful for any person, or the agent, servant or employee of such person, who shall operate or hold himself or herself out to the public or to others as operating or conducting a shoeshine service of any type, to permit any person, while receiving or waiting to receive a shoeshine or other shoe service, to lie or recline upon any bed, sofa, couch, cot, bench, table, reclining chair or any horizontal surface, while upon the premises whereon the shoeshine or other shoe service shall be rendered or offered.

(b) It shall be unlawful for any customer, patron or other person upon the premises of any shoeshine service establishment to lie or recline upon any bed, sofa, couch, cot, bench, table, reclining chair or any horizontal surface while receiving or waiting to receive a shoeshine or other shoe service.

(c) Any waiting for services by customers, patrons or other invitees of any shoeshine business or establishment and any shoeshine performed by such establishment shall be done in a common or single room or enclosure, and no screens, curtains, blinds, partitions or other obstructions shall be placed between the entrance of the room or enclosure where the waiting area or shoeshine services are provided and the back or rear wall of the room or enclosure. A clear view of the entire interior of the room or enclosure from the entrance thereof to the rear of the room or enclosure shall be maintained at all times.

(d) None of the provisions of this section shall be applicable to any shoeshine business or operation performed or conducted within any duly licensed barbershop, any bona fide shoe repair service establishment where shoes are resoled, half soled, heeled or otherwise serviced by skilled and qualified shoe repair personnel or any bus, rail or air transportation depot or terminal station.

(e) Any person convicted for the violation of any provision hereof shall be punished as provided in section 1-1-6.
(Code 1980, § 12-18-7)

Sec. 12-18-8. Daily racetrack admission fee.

(a) Under and by virtue of the authority granted in Code of Ala. 1975, § 11-65-33, there is hereby imposed a fee of $0.25 on the admission of each person each day to a racetrack meeting except as hereinafter provided in subsection (d) of this section.

(b) The $0.25 admission fee herein imposed shall be collected and paid over to the city by the licensed operator of the racetrack.

(c) The licensed operator of the racetrack is permitted to add the $0.25 fee hereby imposed to the amount charged for the ticket of admission.

(d) Excepted from the provisions of this section are persons holding valid permits issued by the city racing commission and actually employed at the racetrack in the capacities for which such permits were issued, and spectators holding complimentary passes issued by an operator.
(Code 1980, § 12-18-8; Ord. No. 87-6, §§ 1—4, 1-20-1987)

State law reference—Horse racing and greyhound racing in class 1 municipalities, Code of Ala. 1975, § 11-65-33.

CHAPTER 19. TOWING AND VEHICLE IMMOBILIZATION SERVICES

ARTICLE A. GENERAL PROVISIONS

Sec. 12-19-1. Declaration of policy and findings of Council.

It is the policy of the city to provide for the protection of the public safety and interest as it relates to the parking of vehicles on parking lots and to the impoundment of those vehicles by

applying a boot to a vehicle or towing without the consent of the vehicle owner or operator. The council further declares that it is in the interest of public safety to provide for licensing and certain regulation of all towing services within the city. To this end, this ordinance provides for the regulation of vehicle immobilization service and towing services, to be administered in a manner that protects the public health and safety and promotes the public convenience and necessity.
(Ord. No. 13-81, § 2(12-19-1), 5-28-2013)

Sec. 12-19-2. Definitions.

For the purposes of this ordinance, the following words and phrases shall have the meanings respectively ascribed to them by this section:

Barrier gate means an automated gate at each entrance to a parking lot to regulate vehicular entry to the parking lot. Parking lots designed for employee parking shall not be required to provide a ticket or receipt and parking lots designed and/or operated for profit shall provide a ticket for entry or a receipt for payment of parking fees.

Boot, booting or vehicle immobilization means the act of placing on a parked motor vehicle a lockable vehicle wheel clamp or similar device that is designed to be placed on a parked vehicle to prevent the operation of the vehicle until the device is unlocked and removed. The term "boot" shall include the devices used for this purpose. Such devices shall be a high-visibility color, such as yellow, orange or red. No cables, chains, ropes or other similar means of vehicle immobilization shall be allowed.

Chief of police shall mean the Chief of Police of the City of Birmingham or his or her designee.

Commercial parking motor parking services shall mean private property that is used, wholly or in part, for storage or parking of motor vehicles for a fee or the provision of such services for a fee where payment for the parking is made:

(a) At the time of parking and to a pay station or a uniformed parking lot attendant; or,

(b) Pursuant to a long-term (monthly or longer) parking agreement whereby a decal, hang-tag or other form of written authorization is issued to be displayed in or on the vehicle allowed to be parked on the property according to the terms of the agreement.

Such lots must comply with all City of Birmingham zoning, business licensing and operating requirements for commercial parking lots.

Consent of a parking lot owner shall mean that the vehicle is authorized to park on the property through payment of the proper fee to a pay station or uniformed parking lot attendant, by contract or permit issued by the parking lot owner or through other direct permission of the parking lot owner.

Day shall mean a 24-hour period commencing from the time a vehicle is booted.

Director of finance shall mean the director of the department of finance of the City of Birmingham or his or her designee.

Immobilize means to place a boot on a parked vehicle to prevent the operation of the vehicle until the boot is unlocked and removed. The term includes any installation or adjustment of a boot.

Impound shall mean any means to prohibit a motor vehicle's usual manner of movement or operation, either by the installation of vehicle immobilization device or by towing.

Nonconsensual tower shall mean any person who performs "police directed tows" or "private property impounds" as defined herein.

Owner/operator for the purposes of this section, an owner/operator is defined as a person other than the lien holder, possessing or holding title to a vehicle. The term includes a person entitled to the use and possession of a vehicle which can be subject to the business or commercial interest of another, permission, rental, lease, or security interest in another person or entity.

Parking lot means any commercial or private parking lot as defined herein.

Parking attendant means an individual who, on behalf of a parking lot general manager, collects a parking fee from motor vehicle operators as payment to park in a parking lot.

Parking lot owner means a person, or the person's agent or lessee, who holds legal title, deed, or right of occupancy to a parking lot. The term includes an agent authorized to operate or manage the parking lot but does not include a vehicle immobilization service licensee or an employee or representative of a vehicle immobilization service licensee.

Pay station means a booth or box, whether attended or not, situated at or on a parking lot where payment of the hourly, daily, or monthly parking fee for that parking lot is made or deposited.

Person shall mean any natural person, firm, partnership, association, corporation or other entity of any kind whatsoever.

Police directed tow shall mean the removal and storage of wrecked or disabled vehicles at the direction of police/law enforcement from an accident scene.

Private parking lot means private property that is used, wholly or in part, for parking or storing motor vehicles for the residents, tenants, employees, customers, members or guests of an establishment such as, but not limited to, a multi-family dwelling complex, business, or church.

Private property impound shall mean towing or removal of a vehicle without the consent of the vehicle's owner or operator, when the vehicle is parked on private real property.

Reasonable notice as used herein means at least 24 hours' notice.

Special event means any sporting event, concert, or gathering attracting 50 or more individuals and sponsored by any individual, partnership, corporation or governmental entity.

Storage fee means the compensation payable for the storage of a towed motor vehicle that has been stored at or in a facility owned, operated, leased or used by a tow truck service or any other business entity which owns or operates a tow truck.

Towing fee means the compensation payable for the towing of a motor vehicle.

Tow, tows, or towing means the act of removing, by tow truck, a motor vehicle from privately-owned property within the city where it is parked. The preparation, maneuvering, attachment and or loading onto the towing and recovery operator's tow truck for removal does, for purposes of this ordinance, constitute a "tow" or "towing."

Towing and recovery service means:

(a) A person, business or any other entity engaged in the business of (1) removing disabled vehicles, parts of vehicles, their cargoes, and other objects to facilities for repair or safekeeping and (2) restoring to the highway or other location where they either can be operated or removed to other locations for repair or safekeeping (3) vehicles that have come to rest in places where they cannot be operated. The term includes any employee, authorized agent or legal representative of such individual or entity.

(b) Any person, business or any other entity who in any way advertises, portrays, acts, claims or holds themselves out to be a towing and recovery operator or in any way conveys the impression that they are engaged in services of providing towing and recovery of vehicles shall be deemed to be engaged in towing and recovery services.

(c) Any business, corporation, individual or any other person or entity who is not engaged in the primary business of towing vehicles but who either owns, rents or utilizes a tow truck, whether licensed by the city or not, for the purpose of removing or towing vehicles from private property, including their own and removing such vehicles to place or places owned,

controlled, leased, rented by such individual, business or entity or by agreement with another.

Towing service vehicle or wrecker means a vehicle designed to be used for hauling or towing motor vehicles from one place to another, by use of a flatbed, tow-bar, dolly or other device, including any truck, automobile or other vehicle adapted to that purpose.

Unauthorized vehicle means a vehicle parked, stored, or located on a parking lot without the consent of the parking lot owner.

Vehicle shall mean an automobile, truck, bus, trailer, semitrailer, truck tractor semitrailer combination, recreational unit primarily designed as temporary living quarters which either has its own motive power or is mounted on or drawn by another vehicle, or any other mobile item using wheels and being operated on the roads of the City of Birmingham, Alabama, which is used to transport persons or property and is propelled by power other than muscular power; provided, however, that the term does not include bicycles, mopeds, traction engines, road rollers or vehicles which run only upon a track.

Vehicle weight classifications:

(a) Small vehicle shall mean any motor vehicle with a gross vehicle weight of 10,000 pounds or less.

(b) Large vehicle shall mean any motor vehicle with a gross vehicle weight of more than 10,000 pounds.

Vehicle immobilization operator shall mean any person operating vehicle immobilization devices for a vehicle immobilization service or directing others to install or attach vehicle immobilization devices.

Vehicle immobilization service or service shall mean a person, including a sole proprietor, independent contractor, corporation, partnership or similar business entity, offering services anywhere in the territorial limits of the city whereby vehicles are immobilized by the installation of a vehicle immobilization device.
(Ord. No. 13-81, § 2(12-19-2), 5-28-2013; Ord. No. 15-42, § 1, 4-14-2015)

Sec. 12-19-3. Applicability.

This article applies to:

(1) The immobilization of vehicles without the consent of the vehicle owner or driver and the fees charged to remove vehicle immobilization devices;

(2) The towing, by a towing and recovery operator, of motor vehicles from privately-owned property within the city without the consent of the vehicle owner or driver and the fees that are charged for:

a. Such towing of vehicles; and

b. The storage and retrieval of such towed vehicles.

(3) The licensing and general regulation of towing services for public safety concerns. The recordkeeping and fee limitations for towing services requirements of this article do not apply to the consensual towing of motor vehicles; or to towing from public streets and other locations that is performed pursuant to a contract with the city; nor to towing for the lawful repossession of vehicles pledged as collateral for a security interest on a debt; nor to the storage of such vehicles.
(Ord. No. 13-81, § 2(12-19-3), 5-28-2013)

Sec. 12-19-4. Alteration, etc.

It shall be unlawful for any person to change, alter, deface or destroy any license or permit issued under this chapter.
(Ord. No. 13-81, § 2(12-19-4), 5-28-2013)

Sec. 12-19-5. Transferability.

No license or permit is transferable.
(Ord. No. 13-81, § 2(12-19-5), 5-28-2013)

Sec. 12-19-6. Violations.

Except as otherwise specifically provided, any violation of this article is unlawful and punishable pursuant to section 1-1-6.
(Ord. No. 13-81, § 2(12-19-6), 5-28-2013)

Sec. 12-19-7. Review by council.

(a) The operation of this article shall be reviewed by the public safety committee of the city council at six months and 12 months after its adoption to evaluate its effect in reducing the problems stated in the preamble to this article. The public safety committee may designate an advisory committee consisting of representatives of other parties interested in the operation of the ordinance, including vehicle immobilization services and operators, parking service operators, merchants and property owners, citizens, the police department, the law department and other city staff to assist in the evaluation.

(b) The chief of police shall provide to the public safety committee a monthly summary of complaints, incidents, violations, citations and/or arrests generated from the operation of this article.

(c) After the second review, the public safety committee shall determine whether additional regular review of the operation of the ordinance is necessary. If the committee decides that additional routine review is not needed, additional review and amendment will be made as circumstances demand.
(Ord. No. 13-81, § 2(12-19-7), 5-28-2013)

Sec. 12-19-8. Fee review.

Any company or companies performing, either alone or together, performing, either alone or together, 50 percent or more of the non-consensual tows or vehicle immobilizations during the preceding calendar year may petition the council in writing to review the service fee limitation imposed by this article. The request must identify the specific fees requested to be reviewed and shall include the recommended fee adjustments and all financial information necessary for review. The council may request additional information it deems necessary to review the request. The council shall set a public hearing on the request within 30 days of receipt of the request.
(Ord. No. 13-81, § 2(12-19-8), 5-28-2013)

Secs. 12-19-9, 12-19-10. Reserved.

ARTICLE B. LICENSES AND PERMITS

Division 1. General Provisions

Sec. 12-19-11. Compliance with chapter; license required.

(a) It shall be unlawful for any towing or vehicle immobilization service, tow truck driver, or vehicle immobilization service operator to operate within the city without first having obtained a license pursuant to this article.

(b) It shall be unlawful for any person to immobilize, boot or tow any vehicle within the territorial limits of the city without first complying with all applicable provisions of this article.

(c) Existing services:

(1) Any person issued a license by the council under Ord. No. 04-96 prior to the effective date of the ordinance from which this article is derived to engage in the business of a vehicle immobilization service, which license was still in force and effect on such date, shall not be required to file a further application for a license to operate such business so long as such license is not terminated, annulled, canceled, revoked or suspended, but such license shall be subject to the provisions of this chapter and the licensed business shall be operated in all respects as if such license were granted hereunder by the council subsequent to the effective date of the ordinance from which this article is derived, and shall be governed by the provisions of this article. Any person licensed under Ord. No. 04-96 and acting as a vehicle immobilization service within the city on June 1, 2013 shall have a period of 60 days thereafter to comply with the general operating requirement provisions of this article.

(2) Any person acting as a vehicle immobilization service within the city on June 1, 2013 but who has not been issued a license by the council under Ord. No. 04-96 shall have a period of 30 days thereafter to file an application as

provided in this article for such license and to comply with the general operating requirement provisions of this article.

(3) Any person acting as a towing service within the city on June 1, 2013 shall have a period of 30 days thereafter to file an application for a license as provided in this article.

(4) Any person acting as a vehicle immobilization operator or towing service driver on June 1, 2013 but who has not previously been issued a permit shall have a period of 30 days thereafter to file an application for a permit as provided in this article.

(Ord. No. 13-81, § 2(12-19-11), 5-28-2013)

Sec. 12-19-12. Compliance with state and municipal licensing requirements.

All services, drivers and operators engaged in business in the city shall comply with licensing requirements imposed by the state and the city, and shall provide evidence of such upon request by any representative of the city authorized to enforce the provisions of this chapter.

(Ord. No. 13-81, § 2(12-19-12), 5-28-2013)

Secs. 12-19-13—12-19-20. Reserved.

Division 2. Qualifications

Sec. 12-19-21. General requirements for applicants for a license or permit.

(a) To qualify for a vehicle immobilization service license, towing service license, tow truck driver permit or vehicle immobilization operator permit an applicant must:

(1) Be at least 19 years of age;

(2) Possess a current, valid State of Alabama driver's license or state issued identification as provided by the laws of the state;

(3) Be a citizen of the United States or an alien admitted for permanent residence or who has otherwise been granted employment authorization by the U.S. Immigration and Naturalization Service;

(4) Be able to read, write and speak English and be familiar with the monetary system of the United States;

(5) Not having been convicted, for a period of five years prior to the date of application of:

a. Any felony related to the operation of a motor vehicle;

b. Any Class A felony;

c. Any felony involving Danger to the Person (Code of Ala. 1975, § 13A-6-1 et seq.);

d. Any misdemeanor or felony involving prostitution;

e. Any felony in which the applicant herein was armed during the commission of the offense; or

f. Any felony involving Controlled Substances (Code of Ala. 1975, § 13A-12-201 et seq.).

(6) Not having been convicted of driving violations amounting to 12 or more points for a period of two years prior to the date of application;

(7) Be subject to no outstanding warrants of arrest; and

(8) Not employ any person who is not qualified under this subsection.

(b) An applicant who has been convicted of, or who employs a person who has been convicted of, an offense listed in subsection (a)(5) of this section, for which the required time period has elapsed since the date of conviction, may qualify for a license or permit only if the council determines that the applicant, or the employee, is presently fit to engage in the business for which the application is made. In determining present fitness under this section, the council shall consider the following:

(1) The extent and nature of the applicant's, or employee's, past criminal activity;

(2) The age of the applicant, or employee, at the time of the commission of the crime;

(3) The amount of time that has elapsed since the applicant's, or employee's, last criminal activity;

(4) The conduct and work activity of the applicant, or employee, prior to and following the criminal activity;

(5) Evidence of the applicant's, or employee's, rehabilitation or rehabilitative effort while incarcerated or following release; and

(6) Other evidence of the applicant's, or employee's, present fitness, including letters of recommendation from prosecution, law enforcement, and correctional officers who prosecuted, arrested, or had custodial responsibility for the applicant, or employee; the sheriff and chief of police in the community where the applicant, or employee, resides; and any other persons in contact with the applicant, or employee.

(c) All applicants shall furnish all data, information and records relevant to their application requested of them by the police chief or his designee. Failure to furnish requested data, information and records within 30 days from the date of the request shall automatically result in the dismissal, with prejudice, of the application. Applicants, by filing an application, agree to produce for oral interrogation any person who is under the applicants' control requested by the police chief or his designee or the city attorneys' office, who possesses or may possess knowledge of facts relevant to the application. The failure to produce a person within 30 days after being requested to do so shall result in an automatic dismissal of the application. Persons under an applicant's control are the partners of the applicant if the applicant is a partnership, the officers of the applicant if the applicant is a corporation, and/or employees, officers or agents of the applicant. It is the responsibility of the applicant, to the extent possible, to secure and provide to the police chief or his or her designee the evidence required to determine present fitness under subsection (b) of this section.

(d) Should any person with a license or permit obtained pursuant to this article be charged with committing any crime as described in subsection (a) of this section, then such charge shall constitute the basis for suspension of the license pending resolution of the criminal charge. However, this section shall not deprive the council of the right to revoke any license for cause. A license issued pursuant to this chapter shall be revoked if the licensee has been convicted of any crime as described in subsection (a) of this section.

(e) No license or permit shall be issued to any person who does not meet the qualifications set out in this section. Any applicant for a tow truck driver or vehicle immobilization service operator whose application is rejected by the chief of police under this subsection shall have the right to appeal that rejection to the city council as provided in this article.

(f) It shall be unlawful for any person to procure a license or a permit as provided in this article by fraudulent conduct or a false statement of a material fact.
(Ord. No. 13-81, § 2(12-19-21), 5-28-2013)

Division 3. Service Licenses

Sec. 12-19-22. Towing service or vehicle immobilization service license application; generally; contents of application.

(a) Application for a license to be issued hereunder shall be submitted to the chief of police or his/her designee upon blank forms prepared and made available by the chief of police. The application shall contain in writing:

(1) The full name and address of the applicant if an individual proprietorship; full name and address of all partners if the applicant is partnership; full name and address of the corporation, LLP or LLC if the applicant is a corporation, LLP or LLC;

(2) The business telephone number and mailing address (if different from the physical address) of the applicant;

(3) The legal name of the company and the trade name of the company (name under which the service will be operated) if different than the legal name;

(4) The full name of all company officials and the amount of stock, if any, held by such officials, and/or the full name of all persons having a proprietary or profit interest in the business that is the subject of the application, managers or other persons primarily responsible for the operation of the business;

(5) Whether the applicant, manager or any company official has been convicted of any federal or state crime, or a violation of any city ordinance, the disposition of same and the place of conviction, if any and whether the applicant, manager or any company official has any felony charge pending at the time of application, the charge and the jurisdiction where the charge has been made;

(6) A list, to be kept current of all parking lots where the applicant has been authorized to perform vehicle immobilization services or non-consensual towing. This list must be accompanied by a copy of the written contract or authorization by the owner or authorized agent of the parking lot allowing the applicant to tow or immobilize vehicles on the property. If no contracts are in place at the time of application, the information regarding lots where the applicant will operate shall be provided to the chief of police within five days of entering any contract to provide services;

(7) The charges to be imposed for various services;

(8) A list of what methods of payment the applicant will accept from a vehicle owner or operator to redeem a towed vehicle or for removal of a boot, including proof that the applicant is capable of accepting payment of service fees by major credit card;

(9) Proof of the insurance coverage required by this chapter;

(10) A list, to be kept current, of the number and type of boots utilized by the vehicle immobilization service, including the make, model, and identification number;

(11) A list, to be kept current, of the owners and management personnel of the service, and of all employees who will participate in towing or vehicle immobilization, including names, dates of birth, state driver's license numbers, and vehicle immobilization operator's permit numbers;

(12) A signed form requesting that a criminal history information record maintained by the Alabama Criminal Justice Information Center by the current procedures required by the Alabama Legislature and the Alabama Criminal Justice Information Center Commission from the State of Alabama Bureau of Investigation be provided to the police department along with a certified check or money order made payable to the Alabama Bureau of Investigation for the cost required by the state for such background check for the applicant, manager or any company official named in the application;

(13) A statement as to whether the applicant, manager or any company official who will be a vehicle immobilization service operator for the service has had any moving traffic violations in the past five years, the date and place of each violation;

(14) A list, to be kept current, of the vehicles to be used to assist in the vehicle immobilization service;

(15) A list, to be kept current, of the towing service vehicles or wreckers to be used by the service;

(16) Receipt from the director of finance showing payment of the application fees required by this chapter;

(17) Sample notice sticker or warning decal that the applicant intends to place upon a vehicle that has been immobilized by booting;

(18) Such other information as the chief of police shall find reasonably necessary to effectuate the purpose of this chapter

and to arrive at a fair determination of whether the terms of this chapter have been complied with; and

(19) Shall be sworn by the applicant or authorized agent thereof.

(b) A person or entity operating both vehicle immobilization and towing operations may file a single application for approval by the council; however, an applicant wishing to pursue both vehicle immobilization and towing must purchase a separate license for each business activity. A person or entity that provides only vehicle immobilization or towing services may subsequently purchase a business license to engage in the other activity without a new application to the council, provided that the new license is purchased within a year of the council's initial approval and there have been no material changes in the name, ownership of the business, location or criminal history provided in the original application and that information regarding the equipment used, employees and the locations where vehicle immobilization or nonconsensual towing will be performed shall be provided to the chief of police before the new operations begin. A material change of ownership of a vehicle immobilization or towing service or addition of a second line of service more than one year after initial approval shall require the filing and approval of a new application by the council.
(Ord. No. 13-81, § 2(12-19-22), 5-28-2013)

Sec. 12-19-23. Vehicle immobilization service license; investigation and recommendation of chief of police; hearing and action by council.

(a) The chief of police shall conduct a review of each application for a service license. After reviewing all information provided, the chief of police shall recommend approval or disapproval, giving reasons therefore to the public safety committee of the city council not later than 30 days after the date of filing of the application. An application will not be considered as filed unless and until all information requested in section 12-19-12 has been received.

(b) The public safety committee of the city council shall review the application and recommendation of the chief of police, and shall refer the matter to the full council for a public hearing within 21 days of receipt of the recommendations from the chief of police, recommending the grant or denial of such license.

(c) After a public hearing on the application, the council may at such meeting or any other regular or special meeting, consider such application, the recommendations required to be submitted to it, relevant evidence offered by any party at the public hearing, including the applicant and such other information and knowledge it may have bearing upon such application. If the council determines that the applicant's business responsibility and qualifications are satisfactory and that all agents or officers of applicant, if any, who will take part in the operation of such business are qualified and capable of operating the business in a manner consistent with the public health, safety and welfare, and the operation of such business will be in accordance with and in compliance with the requirements of this chapter and all other applicable laws, ordinances, codes and regulations, then in such event it shall grant such application, otherwise the application shall be denied. In the granting or refusal of such application the council shall be deemed to act in a judicial capacity.
(Ord. No. 13-81, § 2(12-19-23), 5-28-2013)

Sec. 12-19-24. Insurance.

No license shall be issued to any service applicant and no service operations shall commence until the applicant deposits with the city clerk a certificate of insurance, binder or a certified copy of a policy of insurance written by an insurance company qualified to do business in the state, providing coverage as follows:

(1) The insured provisions of the policy must name the city and its officers and employees as additional insureds. The coverage provisions must provide coverage for any loss or damage that may arise to any person or property by reason of the operation of a vehicle immobilization service by the licensee, including but not limited to damage to an immobilized

vehicle caused directly or indirectly by improper installation or removal of a boot.

(2) General liability insurance providing liability coverage for property damage or personal injury in an amount not less than $100,000.00 covering damages caused by the client business, vehicle immobilization service, or any of their employees or agents in the course of conducting vehicle immobilization services for the client business.

(3) Automobile liability insurance with minimum coverage of $100,000.00 to any one person, $300,000.00 for any one accident and $100,000.00 for property damage for each vehicle used in the service, provided that an applicant may comply with this subsection by providing a comprehensive automobile liability policy with a single limit of $500,000.00 in addition to any other applicable insurance requirements of this section.

(4) In addition to the insurance required by subsection (c) of this section, any towing service that is for hire and tows vehicles not owned by said service shall also a garage keeper's legal liability policy covering vehicles stored by the applicant, for the perils of fire, theft, explosion, vandalism, malicious mischief and riots while in the care, custody or control of the applicant, in the minimum amount of $45,000.00; in addition, garage keeper's legal liability policy collision coverage, subject to $500.00 deductible, with a minimum limit of $45,000.00, provided that an applicant may comply with this subsection by providing a comprehensive automobile liability policy with a single limit of $500,000.00 in addition to the required garage keeper's legal liability policy.

(5) The insurance required under this section must include a clause obligating the company issuing the same to give not less than 30 days' written notice to the city clerk before canceling, failing to renew, or making a material change to the insurance policy. Notice of cancellation shall not relieve the company issuing such policy of liability for any injury or claim arising before the cancellation becomes effective.

(6) The insurance shall cover all tow trucks, wrecker, boots and other immobilization equipment that are operated under the license. The policy shall state, in terms and with sufficient detail as required by the insurer, descriptions of the vehicles and equipment covered under the policy.

(7) No license shall be granted in any case if the applicant has not filed the required proof of insurance with the city clerk within 30 days of council approval. The city clerk or his or her designee shall notify the chief of police and the director of finance if proof of insurance has not been filed within 30 days of council approval of the license.

(8) Failure of a licensee to meet or maintain the insurance requirements of this section shall be grounds for suspension or revocation of the license. The city clerk shall place the matter of suspending or revoking the license on the city council agenda upon cancellation, lapse or failure to renew the required insurance. A person shall not operate a towing service or vehicle immobilization service while a license is suspended under this section whether or not the action is appealed.

(9) Reinstatement on proof of insurance: A $100.00 fee must be paid to the director of finance and proof of this payment and the required insurance provided to the city clerk before a license suspended or revoked under this section will be reinstated. The city clerk shall place the matter of rescinding the revocation or suspension on the next available council agenda following production of the proof of insurance and payment of the reinstatement fee. If the license remains suspended

or revoked under this subsection for more than six months, a new application and investigation shall be required.

(Ord. No. 13-81, § 2(12-19-24), 5-28-2013)

Sec. 12-19-25. Standards for issuance.

The chief of police or his/her designee shall recommend issuance of a license hereunder when he finds:

(1) That insurance policies as required in this article have been procured;

(2) That the applicant and all employees are qualified pursuant to the requirements of this chapter to conduct or work in the proposed business; and

(3) That the requirements of this article and all other governing laws and ordinances have been met.

(Ord. No. 13-81, § 2(12-19-25), 5-28-2013)

Sec. 12-19-26. Registration of tow trucks and vehicles used by a vehicle immobilization service.

It shall be unlawful for any person, either as principal, agent or employee, to use or to operate within the city any vehicle assisting in the operation of a vehicle immobilization service or tow truck without first having filed a registration for such vehicle with the city's police department upon forms to be furnished by the department. All registrations for each vehicle utilized shall expire on December 31st of each year and shall be renewed between December 1st and December 31st of each year. The information for registration shall contain the following:

(1) The make, model and manufacturer's serial number of the vehicle;

(2) Date the vehicle was put into service to assist in the operation of a vehicle immobilization service;

(3) The driver's license numbers of operators of the vehicle;

(4) The name of the insurance company with which the owner of the vehicle and all operators have liability insurance coverage with respect to the operation of the vehicle, as required by law;

(5) The permit number of each operator who shall drive or operate the vehicle on behalf of the vehicle immobilization service; and

(6) Such other information related to the vehicle as may be required by the police chief.

(Ord. No. 13-81, § 2(12-19-26), 5-28-2013)

Sec. 12-19-27. Application and fees.

(a) Upon the filing of a completed application, the non-refundable application processing fee for all applicants seeking a service license shall be $200.00. This application fee shall be paid to the director of finance and proof of payment thereof submitted with the application to the chief of police.

(b) Upon approval of an application for a service license, the annual renewal application fee shall be $100.00.

(c) A registration fee of $15.00 for each tow truck, wrecker or vehicle assisting in the operation of a vehicle immobilization service to be operated by the applicant fee shall be paid to the director of finance and proof of payment thereof submitted with the application to the chief of police.

(d) Any renewal license must be applied for not later than five working days following the expiration date of an existing license, and for any such license applied for after such expiration date there shall be a late fee of $5.00 in addition to the annual fees stated above.

(Ord. No. 13-81, § 2(12-19-27), 5-28-2013)

Sec. 12-19-28. Revocation; vehicle immobilization service license.

The council shall revoke a license issued hereunder after due notice and public hearing when it finds any of the following grounds:

(1) The license was procured by fraudulent conduct or false statement of a material fact or that a fact concerning the applicant was not disclosed at the time of his making application and such fact would have constituted just cause for refusal to issue such license.

(2) The licensee has violated any of the requirements of this article or any of the rules and regulations as established or approved by the council.

(3) The licensee, his agent, servant, or employee has operated the business in such a manner as to be detrimental to the public health, safety or welfare or so as to constitute a nuisance.

(4) The chief of police may request the revocation or suspension of any vehicle immobilization service license for the following:

a. Failure or refusal to comply with any provision of this chapter; or

b. Conviction for the commission of any crime or offense that would disqualify a licensee under the provisions of this chapter.

(Ord. No. 13-81, § 2(12-19-28), 5-28-2013)

Secs. 12-19-29, 12-19-30. Reserved.

Division 4. Operator's Permits

Sec. 12-19-31. Permit required.

(a) It shall be unlawful for a person to immobilize a vehicle or drive a tow truck in the city unless such person shall have in force a valid vehicle immobilization operator's or tow truck driver's permit or provisional permit under the provisions of this article.

(b) It shall be unlawful for a licensee to employ or otherwise allow a person to immobilize a vehicle using a boot or other vehicle immobilization equipment owned, controlled, or operated by the licensee or to operate a tow truck owned by the licensee unless the person has in force a valid vehicle immobilization operator's permit or valid tow truck driver's permit under the provisions of this article.

(c) A driver or operator performing both towing and vehicle immobilization for the same business may apply.

(Ord. No. 13-81, § 2(12-19-31), 5-28-2013)

Sec. 12-19-32. Application; provisional/conditional driver's or operator's permit.

(a) Every tow truck driver or vehicle immobilization operator desiring to obtain a permit required by this article shall file an application with the chief of police or his or her designee upon blank forms prepared and made available by the chief of police. The application shall contain in writing:

(1) Applicant's full name;

(2) Current residence, giving street number, and telephone number;

(3) Place of residence for two years immediately preceding taking up residence at current address;

(4) Age, sex, weight and race;

(5) Color of eyes and hair;

(6) Date of birth;

(7) Place of citizenship and if not a U.S. citizen proof of permanent residence or employment authorization granted by the U.S. Immigration and Naturalization Service;

(8) All places of employment during the past five years;

(9) A statement of the true, correct and complete criminal court record of convictions, including both felonies and misdemeanors, within the past five years,

the nature of the crime or offense, and date and place of each conviction and any pending felony arrests;

(10) Driver's license number;

(11) Whether the applicant has previously been licensed or permitted for any occupation and whether any such license or permit has been revoked, and for what cause;

(12) The name of the towing service or immobilization service the applicant expects to work for, if known;

(13) Character references from three reputable persons not related to the applicant;

(14) A signed form requesting that his criminal history information record maintained by the Alabama Criminal Justice Information Center by the current procedures required by the Alabama Legislature and the Alabama Criminal Justice Information Center Commission from the State of Alabama Bureau of Investigation be provided to the police department along with a certified check or money order made payable to the Alabama Bureau of Investigation for the cost required by the state for such background check;

(15) A statement signed and notarized by the applicant that the applicant agrees that if he/she makes a false statement on the application or if the criminal history information record check returned from the Alabama Criminal Justice Information Center reveals a conviction that would disqualify the applicant, the permit shall be denied without a prior hearing;

(16) A statement as to whether the applicant has had any moving traffic violations in the past five years, the date and place of each violation;

(17) Receipt from the director of finance showing payment of the application fees required by this chapter;

(18) Such other information as may be required by the police chief;

(19) Statement as to which service or services (vehicle immobilization, towing, or both) the applicant will perform; and

(20) Shall be sworn by the applicant.

(b) Provisional/conditional driver's or operator's permit. The chief of police shall review and investigate each application for a tow truck driver's or vehicle immobilization service operator's permit and, pending the receipt of the criminal history record information being received from the state, a provisional permit may be issued to an applicant by the chief of police if the chief of police receives evidence sufficient to demonstrate that the applicant meets the qualifications described in section 12-19-11 and also receives information necessary to demonstrate compliance with criminal history requirements. Any criminal history information provided must be by a private agency which regularly provides background checks and shall be submitted directly from such agency to the police chief. In conducting such investigation, the investigator for the chief of police may consider any relevant evidence and such other information and knowledge he/she may have bearing on such application. Such provisional license shall be approved or disapproved not less than 15 days after all information necessary to evaluate a provisional license is received. The applicant and the permit holder stipulated in subsection (a)(6) of this section shall be notified in writing of such approval or disapproval within such 15-day period.

A provisional permit shall be conditioned upon receipt of the correct criminal history information record for the applicant. The provisional permit will be valid until the police department receives the criminal history record of the applicant from the Alabama Bureau of Investigation or until it is revoked as provided hereinbelow. Upon receipt of information from the Alabama Bureau of Investigation, the police chief will either issue a regular permit to the applicant or notify the operator and the licensed service with which he is affiliated that it is revoking the provisional tow truck driver's or vehicle immobilization service operator's permit and denying the regular permit because the chief has determined that the applicant is not qualified to

receive a regular permit. Any provisional permit granted by the chief of police may be revoked by the chief for any of the following:

(1) Failure or refusal to comply with any provision of this chapter;

(2) Arrest or conviction for the commission of any crime or offense listed in subsection (a)(10) of this section;

(3) If such permittee makes any false statement on his application or has failed to give full information to any question on the application;

There is no appeal for revocation of a provisional operator's permit.
(Ord. No. 13-81, § 2(12-19-32), 5-28-2013)

Sec. 12-19-33. Appeals of regular driver's or operator's permit denial; suspension or revocation.

(a) Any applicant who has been denied a tow truck driver's or vehicle immobilization service operator's permit may appeal such denial to the city council. Such appeal shall be made in writing to the chief of police within 14 days of the date of the written notice of denial.

(b) The chief of police shall forward to the public safety committee any appeal of denial of the regular driver's or operator's permit, a copy of the application, all information in connection with such application, and the reasons for denial.

(c) The public safety committee shall review the appeal of denial, the application and decision of the police chief, and shall refer the matter to the full council for a public hearing within 21 days of receipt of the appeal from the police chief.

(d) The chief of police may request the revocation or suspension of any vehicle immobilization service operator's permit for the following:

(1) Failure or refusal to comply with any provision of this article;

(2) Conviction for the commission of any crime or offense listed in section 12-19-11;

(3) If such permittee makes any false statement on his application or has failed to give full information to any question on the application.

(e) The chief of police may suspend a driver's or operator's permit for any of the reasons listed hereinabove for a period not to exceed ten days. Notice shall be given in writing to the driver or operator and the service license holder with which he is affiliated by U.S. mail to the address of record of the permit and license holders or by personal delivery. Such written notice shall set out the offense or violation giving rise to the suspension or revocation and request for suspension or revocation and a date, time and location to appear before the public safety committee of the city council not less than 15 days from the date from the date of written notice to the permit holder. Appeals shall be conducted in the manner provided for appeals of the denial of a permit as provided in this section.

(f) The council, in hearing appeals from denials of tow truck driver's or vehicle immobilization operator's permits and recommendations for suspension or revocation of said permits involving as cause criminal convictions, shall consider the relationship of the crime to the performance of the service of a vehicle immobilization service operator and the health, safety and welfare of the public, the date of the commission of the crime, and the extent of rehabilitation.

(g) The council upon finding due cause, may uphold the denial or suspension of the permit or suspend or revoke the permit of the holder thereof.

(h) No tow truck driver or vehicle immobilization service operator whose permit has been revoked or suspended shall operate in the city during such period of revocation or suspension.

(i) Upon suspension or revocation of a permit, the permittee shall immediately turn in the permit and identification card to the chief of police; and such permit shall not be returned to the permittee until the expiration of the suspension period or the rescission of the revocation.

(j) Two suspensions within any 24-month period shall constitute cause for license revocation.

(k) Following any appeal as provided in subsection (b) of this section, the council's decision shall be final, but an unsuccessful appellant may reapply for a permit after one year. The permit of any successful appellant shall be restored to him forthwith.
(Ord. No. 13-81, § 2(12-19-33), 5-28-2013)

Sec. 12-19-34. Driver's or operator's permit; contents and display; renewal.

(a) Upon approval of an application for a driver's or operator's permit, the chief of police shall, upon proof of payment of the application fee required in section 12-19-26(a), issue a permit identification card to the applicant. The identification card shall be in the format designated by the chief of police and shall contain the operator's name and signature, the permit number, company name, issuance and expiration dates and a current color photo at least one by 1½ inches in size, laminated in a suitable holder provided therefore in a location approved by the chief of police.

(b) Once issued, permittees shall carry with them their permit at all times when they are towing, immobilizing or releasing vehicles and shall prominently display their identification cards on their person, clipped to the front pocket, shirt collar or the front of the shirt at chest level so that the identifying information is displayed to the public. In any event, the permittee shall identify him/herself upon request by any person.

(c) Such permit shall be valid for one year from the date of issuance, and for each renewal the applicant shall pay a fee of $100.00.
(Ord. No. 13-81, § 2(12-19-34), 5-28-2013)

Sec. 12-19-35. Application, license and permit fees.

(a) The non-refundable application fee for all applicants seeking a driver's or operator's permit shall be $50.00.

(b) Any duplicate driver's or operator's permit may be issued upon payment of a fee of $20.00 should a permit be lost or destroyed.

(c) Any renewal permit must be applied for not later than five working days following the expiration date of an existing operator's permit, and for any such permit applied for after such expiration date there shall be a late fee of $5.00 in addition to the annual fees stated above.
(Ord. No. 13-81, § 2(12-19-35), 5-28-2013)

Secs. 12-19-36—12-19-40. Reserved.

ARTICLE C. OPERATING REGULATIONS

Division 1. General Licensee and Operator Regulations

Sec. 12-19-41. Licensee's and operator's duty to comply.

(a) In the operation of a towing service or a vehicle immobilization service, a licensee shall comply with this chapter and all other laws, rules or regulations applicable to the operation of such service.

(b) While on duty, a tow truck driver or vehicle immobilization operator shall comply with this chapter, all other laws, rules or regulations applicable to the operation of a towing service or vehicle immobilization service, and orders issued by the service employing the driver or operator in connection with the licensee's discharging of its duty under its permit and this article.
(Ord. No. 13-81, § 2(12-19-41), 5-28-2013)

Sec. 12-19-42. Licensee's duty to enforce compliance by operators.

(a) A licensee shall establish policy and take action to discourage, prevent, or correct violations of this chapter by tow truck drivers or vehicle immobilization operators who are employed by the licensee.

(b) A licensee shall not permit a tow truck driver or vehicle immobilization operator who is employed by the licensee to tow or immobilize a vehicle if the licensee knows or has reasonable

cause to suspect that the operator has failed to comply with this chapter and all other laws, rules or regulations applicable to the operation of a vehicle immobilization service.
(Ord. No. 13-81, § 2(12-19-42), 5-28-2013)

Sec. 12-19-43. Information to be supplied upon request of police chief; semiannual reports.

(a) Upon request of the chief of police, a licensee shall submit to the chief of police the following information:

(1) For vehicle immobilization services:

a. A current consolidated list of vehicle immobilization equipment.

b. Names of current officers, owners, and managers.

c. A list of current vehicle immobilization operators employed by the licensee, with their vehicle immobilization operator's permits indicated.

d. A current list of parking lot owners with which the licensee has a written agreement to immobilize vehicles and the parking lot locations where vehicle immobilization is authorized to be performed under the written agreement.

(2) For tow services:

a. A current consolidated list of tow trucks used by the service.

b. Names of current officers, owners, and managers.

c. A list of current tow truck drivers employed by the licensee, with their tow truck driver's permits indicated.

d. A current list of parking lot owners with which the licensee has a written agreement to perform non-consensual tows and the parking lot locations where the non-consensual tows are authorized to be performed under the written agreement, if any.

(b) The information enumerated in subsection (a) of this section shall, in any case, be provided to police chief on a semiannual basis. These reports shall be due on or before June 31 and December 31 of each calendar year.
(Ord. No. 13-81, § 2(12-19-43), 5-28-2013)

Sec. 12-19-44. Vehicle immobilization and non-consensual towing service records.

(a) Vehicle immobilizations.

(1) For each vehicle immobilized, each operator or driver shall maintain a log that records, but is not limited to, the following information:

a. A physical description of the vehicle, including the make, model, color, state license plate number, and vehicle identification number of the vehicle.

b. The location at which the vehicle was immobilized.

c. The date and time of immobilization.

d. The reason for immobilization of the vehicle.

e. The date and time at which the operator was called to release the vehicle.

f. The date and time at which the vehicle was released.

g. The number of the receipt issued for payment for release of the vehicle.

(2) A log shall be kept by the person monitoring the 24-hour, 365-day a year phone number maintained for receiving calls to release vehicles from immobilization devices. Such log shall contain:

a. The date and time that the call to remove the device was received.

b. The location where the vehicle was immobilized.

c. The description and license plate number provided by the person requesting release of the vehicle.

d. The name of the operator dispatched to release the vehicle and the date and time at which the dispatch was made.

(3) The information for vehicle immobilizations required by subsections (a) and (b) of this section may be kept in a single combined log when the operator and the person monitoring the 24-hour, 365-day a year phone number are the same individual. Separate logs must be maintained if the operator and the person monitoring the phone are different individuals.

(4) Each operator while engaged in vehicle immobilization services shall maintain a binder in his vehicle containing:

a. A copy of the vehicle immobilization service license;

b. A copy of the operator's permit;

c. A copy of the business license for each parking lot for which the vehicle immobilization service has a contract.

(5) It shall be unlawful for an operator to fail to produce the binder or required information upon the request of any police officer inspecting the service or investigating any complaint about the operation of the service.

(b) Non-consensual towing. Every towing service performing non-consensual tows in the city shall maintain a record of the following information for each motor vehicle that it has towed without the owner's consent from a location within the city:

(1) A physical description of the vehicle, including the make, model, color, state license plate number, and vehicle identification number of the vehicle.

(2) The date and time that the vehicle was towed.

(3) The address of the property from which the vehicle was removed.

(4) The reason for the tow, including the name and address of the person who authorized the tow.

(5) The date and time the vehicle entered the facility at which it was placed for storage.

(6) The towing and storage fees actually charged.

(7) The date and time the vehicle was reclaimed.

(8) The name and address of the person to whom the vehicle was released.

(c) Licensees shall retain the applicable records required by subsections (a), (b) and (c) of this section, as well as:

(1) Any photographs or video taken of the immobilized or non-consensually towed vehicle, whether taken by the operator or driver or by the owner of the property where the vehicle was parked.

(2) A copy of the written authorization by the parking lot owner for the vehicle to be immobilized or towed by the licensee or a current written immobilization agreement between the parking lot owner and the licensee, as required by this article.

(3) A copy of the receipt issued by the licensee or permittee to a vehicle owner or operator upon removal of a release of the vehicle.

(4) Log or report of maintenance and repair for the vehicles operated for the service for the prior calendar year.

(d) The licensee shall retain the records required by subsections (a), (b) and (c) of this section, and any other records required by this chapter for not less than two years after the date of immobilization or non-consensual towing of the vehicle. The licensee shall make the records available for inspection by the police chief upon reasonable notice.

(e) A service shall keep copies of permits issued to its operators or drivers under this chapter at their place of business so that they may be inspected by any law enforcement officer or licensing official for the city.
(Ord. No. 13-81, § 2(12-19-44), 5-28-2013)

Sec. 12-19-45. Apparel to be worn by tow truck drivers or vehicle immobilization operators.

(a) A licensee shall specify and require an item of apparel or an item placed on the apparel to be worn by vehicle immobilization operators employed by the licensee, which item must be of such distinctive and uniform design as to readily identify the licensee's vehicle immobilization service and must bear the name of the licensee's vehicle immobilization service. The item specified by each licensee must be approved by the police chief to ensure that operators of one licensee may be easily distinguished from operators of another.

(b) While on duty, a vehicle immobilization operator shall wear the item specified by the licensee who employs the operator and shall comply with such other identification regulations prescribed by the vehicle immobilization service license.

(c) Every vehicle immobilization service shall have company dress standards for vehicle immobilization operators employed by the licensee. These standards must be kept on file with the police chief and must include the following:

(1) While on duty, an operator may not wear:
   a. Apparel with offensive or suggestive language;
   b. Cut offs; or
   c. Tank tops or halter tops.

(2) Shoes must be worn at all times in the manner for which they were designed. A vehicle immobilization operator may not wear beach or shower thongs.

(3) A vehicle immobilization operator and the operator's clothing must conform to basic standards of hygiene and be neat, clean, and sanitary at all times.

(Ord. No. 13-81, § 2(12-19-45), 5-28-2013)

Sec. 12-19-46. Requirements for tow trucks and vehicles assisting in the operation of a vehicle immobilization service; lettering on vehicles.

(a) The chief of police shall issue to each license holder a sticker for each tow truck or vehicle assisting in the operation of a vehicle immobilization service operated by such license holder, which sticker shall at all times be prominently displayed on the passenger side of the rear windshield of each tow truck or vehicle assisting in the operation of a vehicle immobilization service. Such sticker may be of any design or form as the chief of police may direct.

(b) It shall be unlawful for any person, either as principal, agent or employee, to operate within the territorial limits of the city any tow truck or vehicle to assist in the operation of a vehicle immobilization service unless the vehicle shall have displayed on each side in plain view clear identification showing the name of the licensed service, the address from which the service is operating and the telephone number of the licensed service. The lettering shall be in a contrasting color to the color of the vehicle; the name of the service shall be in letters at least four inches high and the other information shall be in letters at least 2½ inches in height.

(c) Each license holder shall notify the chief of police in writing of any changes in the number or description of tow trucks or vehicles assisting in the operation of a vehicle immobilization service operated by him, with a complete description and identification thereof. The chief of police shall issue a new sticker for any additional tow trucks or vehicles assisting in the operation of a vehicle immobilization service acquired by a license holder subsequent to the issuance of a license hereunder when a request in writing is received by him accompanied by the application fee of $15.00 for each such vehicle.

(d) Stickers shall be returned to the chief of police upon the removal of a vehicle from the operation of the licensed service.
(Ord. No. 13-81, § 2(12-19-46), 5-28-2013)

Sec. 12-19-47. Display of sticker by other than permittee.

It shall be unlawful for any person to display any sticker issued by the chief of police on any vehicle assisting in the operation of a vehicle immobilization service unless the owner thereof is a license holder under the provisions of this chapter.
(Ord. No. 13-81, § 2(12-19-47), 5-28-2013)

Secs. 12-19-48—12-19-50. Reserved.

Division 2. Signs Required

Sec. 12-19-51. Requirements for posting entrance signs.

(a) It shall be unlawful for any person to immobilize or cause the immobilization of a vehicle on a parking lot without signs being posted and maintained on the parking lot in accordance with this section at the time of immobilization and/or towing. Such signs must have been continuously maintained on the property for not less than 24 hours prior to the immobilization, towing or removal of any vehicles.

(b) Except as otherwise provided in this chapter, at least one sign as described in subsection (d) of this section must be placed prominently and conspicuously on the right or left side of each driveway access, curb cut allowing access or other access to the parking lot within five feet of the public right-of-way line. If curbs, access barriers, landscaping, or driveways do not establish definite vehicle entrances onto the parking lot from a public roadway, or if the width of an entrance exceeds 35 feet, signs must be placed at intervals along either the entrance or the boundary of the parking lot so that no entrance is farther than 25 feet from a sign. At least one additional sign as described in section 12-19-52 must be placed on the interior or the boundary of the parking lot. Another additional sign as described in section 12-19-53 must be posted at any commercial parking lot. The chief of police may require one additional interior sign as described in sections 12-19-52 and 12-19-53 to be posted for each 50 parking spaces over 150 contained on the lot.

(c) For parking areas without clearly identifiable boundaries from the public right-of-way, property owners shall consult with the police department to determine appropriate locations for signage as described herein. If the parking area subject to booting or towing cannot be distinguished from public roads, alleys or parking spaces in the public right-of-way, or from spaces in an adjacent parking lot, public or private, a fence, barrier or other means of clearly defining the boundaries of the area subject to booting or towing must be provided. Fencing must be appropriate to the surrounding environment such as bollards, bollards and chains, plantings of a height to shield car bumpers but maintain visibility into and out of the parking area, low "pipe" rails, etc. For corner lots, lots adjacent to public sidewalks, or lots in locations of high public visibility, the following must be met: landscaped perimeters not to exceed 3 feet in height; fencing appropriate to the surrounding environment such as decorative metal/wrought iron fencing, which may include pillars/posts, bollards, bollards and chains; black vinyl coated chain link fencing or chainlink fencing painted black may be permitted if used in conjunction with low plantings and do not exceed five feet in height.

(d) Each sign required by subsection (b) of this section to be posted at the parking lot entrances must:

(1) Be approved by the chief of police or his or her designee;

(2) Be unobstructed by vegetation or any other obstruction;

(3) Use light reflective letters on a contrasting light reflective background. Letters shall be in Highway Gothic font. Lettering and background colors shall be as described below.

(4) Contain, at a minimum:

a. The words "TOW AWAY ZONE" at the top in white letters at least four inches high on a bright red background;

b. Immediately below the words "TOW AWAY ZONE", in black letters at least three inches high on a white background, the terms of parking stated sufficiently to inform the public of what is required for permission to park on the lot (for example, "PAID PARKING ONLY"; "PERMIT PARKING ONLY"; "TENANT PARKING ONLY"; etc.);

c. Immediately below the terms of parking, the words "VIOLATORS BOOTED OR TOWED AT OWNER'S EXPENSE" in black letters at least two inches high on a white background;

d. The following information on the bottommost portion of the sign in black letters at least one inch high on a white background:

(i) The name of the vehicle immobilization service or towing service;

(ii) A telephone number answered 24 hours a day, seven days a week, at which a vehicle owner or operator may obtain information to have the boot removed from the vehicle or obtain information on how to redeem a vehicle that has been towed;

(iii) If the vehicle immobilization service and towing service are different, the above information for both services must be included on the sign;

(5) Be no smaller than 24 inches tall and 18 inches wide and constructed of a rigid weather-resistant metal;

(6) Be light reflective and must be illuminated if out of headlight range;

(7) Be permanently mounted on a pole, post, permanent wall, or permanent barrier, but shall not be attached to utility poles or structures not owner of the parking lot property without the written permission of the owner of the pole or other structure;

(8) Be readable day and night;

(9) Be permanently installed on the parking lot in a manner and location approved by the director so that the sign is facing and conspicuous to any person entering the lot; and

(10) Be posted at a height in accordance with the latest "Manual on Uniform Traffic Control Devices" standards.

(e) A person commits an offense if, on the same parking lot, he posts or allows the posting of a sign or signs indicating the name of more than one vehicle immobilization service used for booting or more than one towing service used for towing services. This provision shall not apply to the listing of one company for vehicle immobilization services with a different company for towing services.

(f) A person commits an offense if he removes or obstructs or allows the removal or obstruction of a sign required by this section to be posted on a parking lot. It is a defense to prosecution under this subsection that the removal or obstruction was caused by:

(1) A city employee in the performance of official duties; or

(2) The parking lot owner or vehicle immobilization service licensee or operator authorized by the parking lot owner for the purpose of:

a. Repairing or maintaining the sign;

b. Complying with this chapter or a rule or regulation promulgated under this chapter; or

c. Terminating a vehicle immobilization service agreement for the parking lot.

(g) The requirements of this section are minimum standards; however, a minor variation of a required or minimum height of a sign or lettering is not a violation of this chapter. At lots where signs cannot be placed in strict conformity with subsections (b) or (c) of this section, sign must be placed so as to provide adequate notice to anyone entering or intending to park on the lot that they may booted or towed unless authorized to park on that lot. Where strict conformity with subsections (b) or (c) of this section cannot be achieved, the chief of police or his designee is authorized to review and approve the proposed placement of signs to carry out the purpose and intent of this section.

(h) Upon discontinuation of booting or towing operations at a property, the signs required by this section shall be removed immediately. No person shall post or allow the presence of warning signs as described in this section on any property not covered by a booting or towing operation agreement. The licensee, the property owner and the property manager shall be jointly and severally responsible for compliance with this subsection.
(Ord. No. 13-81, § 2(12-19-51), 5-28-2013)

Sec. 12-19-52. Requirements for posting interior signs.

It shall be unlawful for either a vehicle immobilization service, an operator or a towing service to immobilize or tow vehicles at any parking lot unless, at the time the vehicle is to be immobilized and for at least 24 hours prior to immobilization a sign is posted and maintained on the parking lot that:

(1) Is conspicuous to any person parking on the lot (at commercial lots, at least one sign must be posted at the location on the lot where payment is made);

(2) Contains the following information:

a. The name of the towing or vehicle immobilization service and the phone number to call to obtain information on boot removal or redeeming a towed vehicle;

b. The fee for removal of a boot and/or to redeem a towed vehicle;

c. If booted, the vehicle immobilization service operator must:

1. Arrive on site within 30 minutes of being contacted by the owner, driver or person in charge of the vehicle for removal of the boot;

2. Provide a signed receipt for payment of the fee for boot removal;

3. (i) Accept payment for boot removal by cash, check, credit card, or debit card and cannot require cash-only payments;

(ii) Accept payment for redeeming a towed vehicle by cash, traveler's check, money order, insurance company check, or debit, credit or charge card; and

d. The following city phone numbers to call with complaints regarding booting or towing at the parking lot:

1. BPD - (phone number to be provided by BPD);

2. 311 - City of Birmingham 311 Call Center.

(3) Is unobstructed by vegetation or any other obstruction;

(4) Uses light reflective letters on a contrasting light reflective background. Letters shall be in Highway Gothic font. The name and phone number of the service to contact to reclaim a booted or towed vehicle shall be in letters at least three inches high;

(5) Be no smaller than 24 inches tall and 18 inches wide and constructed of a rigid weather-resistant metal;

(6) Be light reflective and must be illuminated if out of headlight range;

(7) Be permanently mounted on a pole, post, permanent wall, or permanent barrier,

but shall not be attached to utility poles or structures not owner of the parking lot property without the written permission of the owner of the pole or other structure;

(8) Be readable day and night.

(Ord. No. 13-81, § 2(12-19-52), 5-28-2013)

Sec. 12-19-53. Requirements for posting additional interior sign at commercial parking lots.

It shall be unlawful for either a vehicle immobilization service, an operator or a towing service to immobilize or tow vehicles at any commercial parking lot unless, at the time the vehicle is to be immobilized and for at least 24 hours prior to immobilization:

(1) A sign that is posted and maintained on the parking lot that:

a. Is located at the location on the lot where payment for parking is made and that is conspicuous to any person parking on the lot; and

b. Informs drivers of the terms and conditions of parking on the property by:

(i) Displaying all parking rates, including special event rates, charged by the parking lot owner, along with any corresponding day, time, and event for which the rates are charged; and

(ii) Stating how and where the parking fees are to be paid, whether to a pay station or attendant. If fees are to be paid to an attendant, that attendant must be attired in a uniform and display an identification badge that clearly indicates the person is employed by the parking lot owner and is authorized to collect fees for parking at that lot;

(2) All numbered parking spaces in the parking lot are correctly numbered and easily readable both day and night and, if a pay station is used, correspond to numbered slots on the pay station;

(3) The parking lot is in compliance with all city ordinances applicable to parking lots; and

(4) Such sign shall:

a. Be unobstructed by vegetation or any other obstruction;

b. Use light reflective letters on a contrasting light reflective background. Letters shall be in Highway Gothic font;

c. Be no smaller than 24 inches tall and 18 inches wide and constructed of a rigid weather-resistant metal;

d. Be light reflective and must be illuminated if out of headlight range;

e. Be permanently mounted on a pole, post, permanent wall, or permanent barrier, but shall not be attached to utility poles or structures not owner of the parking lot property without the written permission of the owner of the pole or other structure;

f. Be readable day and night.

(Ord. No. 13-81, § 2(12-19-53), 5-28-2013)

Sec. 12-19-54. Requirements for notice of policies for tenant or resident parking.

Vehicle immobilization used at non-commercial lots for enforcement of employee or tenant/resident parking policies shall not be deemed a violation of this ordinance only if the following conditions are met:

(1) The employer or property manager clearly communicates in writing the terms and restrictions of the parking policy, including the use of boots, to each person subject to complying with the policy;

(2) A record of the written communication and the employee's/tenant's/resident's acknowledgment of receipt and understanding of the policy is retained;

(3) Parking is gated with access limited only to persons with a card, key, combination code or other means to limit access only to authorized users or the policy restricts parking to a designated space or area and the authorized location in which the vehicle permitted to park is clearly identified by sticker, hangtag or other visible permit on the vehicle;

(4) Vehicle immobilization is not used against visitors to the property unless access to the property is fully restricted by gated access limited to persons with key, card, combination or other means to limit access, authorized vehicles are clearly identified by sticker, hangtag or other visible permit, and notice is prominently posted at the gated entry stating that parking is limited to employees/tenants/residents and that unauthorized vehicles will be subject to vehicle immobilization/booting; and,

(5) The vehicle immobilization service and operators are properly licensed and permitted under the provisions of this ordinance.

(Ord. No. 13-81, § 2(12-19-54), 5-28-2013)

Secs. 12-19-55—12-19-60. Reserved.

Division 3. Additional Operating Standards for Vehicle Immobilization Services and Operators

Sec. 12-19-61. Vehicle immobilization equipment.

(a) Each boot used by a vehicle immobilization service must:

(1) Not be modified from the manufacturer's design;

(2) Be maintained in a safe and good working condition; and

(3) Reasonable and necessary repairs to maintain a boot in safe and good working condition or to restore it from damage shall not be deemed to be modifications from the manufacturer's design.

(b) The chief of police or his or her designee may, at any reasonable time, inspect a boot or other equipment used by a licensee for vehicle immobilization to determine whether the equipment complies with this section.

(c) A licensee or permittee commits an offense if he, either personally or through an employee or agent, immobilizes a vehicle with a boot that has not been reported to the city under the requirements of this chapter.

(Ord. No. 13-81, § 2(12-19-61), 5-28-2013)

Sec. 12-19-62. Requirements for vehicle immobilization; removal of immobilization device.

(a) It shall be unlawful for either a vehicle immobilization service or an operator to pay in the form of a gratuity any person who does not own or operate a parking lot for information as to illegally parked vehicles.

(b) It shall be unlawful for either a vehicle immobilization service or an operator to immobilize any vehicle located on any portion of a public street within the city without the authorization of the mayor or chief of police.

(c) It shall be unlawful for any person, his agent or employee, to:

(1) Engage in vehicle immobilization service on any property other than a parking lot, as defined by this chapter, within the city;

(2) Engage in vehicle immobilization service within the city without a valid vehicle immobilization service license approved by the council under this chapter;

(3) Cause a vehicle to be immobilized within the city by a vehicle immobilization service that does not hold a valid vehicle immobilization service license under this chapter; or

(4) Employ or contract with a vehicle immobilization service not licensed under this chapter for the purpose of having a vehicle immobilized within the city.

(d) It shall be unlawful for any person to immobilize a vehicle unless the boot is installed on a tire located on the driver's side of the vehicle.

(e) It shall be unlawful for either a vehicle immobilization service or an operator to immobilize vehicles at any parking lot as defined in this chapter without having a valid written contract specifically for such services entered into with the private property owner or lawful lessee thereof and a valid license to operate at said location. A licensee shall conduct booting operations exclusively on private property, and only pursuant to a written agreement with the owner or manager of the property. Said contract must indicate the length of the term of the contract, including the dates that services are to begin and end, and a copy must be available for the operator to produce at the request of any police officer when booting is occurring at the location.

(f) A vehicle immobilization service must maintain a 24-hour a day, 365 days per year phone number that is staffed by a live operator to communicate immediately with a driver of vehicle that has been immobilized by the vehicle immobilization service.

(g) Immediately after a vehicle is booted, the person booting such vehicle shall affix at the rear-most portion of the window adjacent to the driver's seat of such vehicle a sequentially numbered notice sticker or decal measuring no less than eight by four inches containing a warning that any attempt to move the vehicle may result in damage to the vehicle, and stating the date and time the vehicle was booted; the name, business address and the permit number of the person who booted such vehicle; the business telephone number which will facilitate the dispatch of personnel responsible for removing the boot; the make, model, color and license tag number of the immobilized vehicle; the reason for immobilization; and the immobilization device number. Provided that the sticker may be affixed in a location that is immediately and reasonably visible to the operator of a motor vehicle if there is no window adjacent to the driver's seat. Such sticker shall be a high-visibility color, such as yellow or orange and lettering shall be black. The chief of police may prescribe the basic design and format of the notice.

(h) It shall be unlawful for a vehicle immobilization service or operator to fail to arrive on the site where the vehicle was immobilized within 30 minutes of being contacted by the owner, driver or person in charge of the vehicle.

(i) It shall also be unlawful for either a vehicle immobilization service or an operator to fail to immediately release vehicles from immobilization after receipt of payment of the fee for removal from the owner, driver or person in charge of a vehicle that has been immobilized by a vehicle immobilization device. It shall be a defense to this subsection if the immediate release cannot be achieved due to a mechanical failure of the device that is outside the control of the vehicle immobilization service or operator.

(j) It shall be unlawful for a vehicle immobilization service or operator to fail to provide a signed receipt of payment of the booting fee to the owner, driver or person in charge of a vehicle. Such receipt shall be individually and sequentially numbered and state the name, business address, business telephone number and license number of the person who has booted such vehicle as such information appears on the license to engage in booting, the amount of money received, the method of payment, the location, time of release and identifying information for the vehicle booted, the name of the person from whom the payment was received and shall be signed by the operator receiving such payment. Such receipt shall also include a telephone number for the office within the police department responsible for receiving complaints with respect to booting licensees. The chief of police may prescribe the basic design and format of the receipt. A copy of the signed receipt shall be retained by the vehicle immobilization service.

(k) It shall be unlawful for either a vehicle immobilization service or an operator to charge fees in excess of those set out in section 12-19-49 or to demand payment for any service or for any other reason than boot removal.

(l) In the event that the application of a vehicle immobilization device damages a vehicle, then the vehicle immobilization service is responsible for the cost of repairs for that damage as well as any damages arising out of said immobilization. Any damage done to a vehicle by a vehicle immobilization device shall be reported to the chief of police or his designee and returned to the file of the operator which will be maintained by the chief of police or his designee.

(m) In the event that the owner or operator of a vehicle, to which an immobilization device has been applied, attempts to operate said vehicle or remove the device, then the vehicle immobilization service is not liable for any damage to that vehicle. Additionally, the driver or person in charge of the vehicle will be liable to the vehicle immobilization service for the cost of damage to the vehicle immobilization device where the device is rendered unusable; mere cosmetic damage to the device shall not impose liability for the purposes of this section. Any such damage must be reported to the chief of police. However, liability may not be imposed when the immobilization device is not readily visible to the driver of the vehicle and/or the sticker notice has not been properly affixed to the rear-most portion of the window adjacent to the driver's seat of the vehicle or other location where the sticker is immediately and reasonably visible to the operator of the vehicle. This subsection shall not be construed to create the right to collect for damage to any immobilization device at the time of the immobilization and it shall be unlawful to require payment for any such damage as a prerequisite to removal of the immobilization device.

(n) No release or waiver of any kind purporting to limit or avoid liability for damages to a vehicle that has been booted shall be valid.

(o) No person who is not an employee, manager or official of the vehicle immobilization service shall accompany the vehicle immobilization service operator or ride in the registered vehicle during immobilization operations.

(p) A vehicle immobilization service that operates at more than one parking lot within the city shall be required to have in effect a separate business license for each location in addition to the regulatory license required by this article. It shall be unlawful for any officer, agent, or employee of the service to fail to immediately show proof of such license to any police officer or agent of the city's director of finance upon being so requested by such agent or officer.
(Ord. No. 13-81, § 2(12-19-62), 5-28-2013)

Sec. 12-19-63. Financial interests of parking lot owner and licensee prohibited.

(a) It shall be unlawful for a licensee or officer, shareholder, member or other person with a proprietary or profit interest in the licensed business to, either personally or through an employee or agent:

(1) Make any payment to an owner, employee, agent or a person in possession of a commercial parking lot in excess of the reasonable and customary fee ordinarily charged by the owner or person in possession of the parking lot for parking thereon, such payment shall be considered a kickback;

(2) Have a direct or indirect monetary interest in a parking lot on which the licensee, for compensation, immobilizes or causes the immobilization of an unauthorized vehicle;

(3) It shall be unlawful for vehicle immobilization services or operators, to have means of access to move or remove money from any unmanned pay station in a parking lot.

(b) It shall be unlawful for a parking lot owner to, either personally or through an employee or agent:

(1) Accept any payment to an owner, employee, agent or a person in possession of a commercial parking lot in excess of the reasonable and customary fee ordinarily charged by the owner or person in possession of the parking lot for parking thereon, such payment shall be considered a kickback; or

(2) Have a direct or indirect monetary interest in a vehicle immobilization service

that, for compensation, immobilizes or causes the immobilization of an unauthorized vehicle on the parking lot.

(c) It is a defense to prosecution under subsection (a)(2) of this section that:

(1) The licensee is an owner or employee of the parking lot on which the vehicle is immobilized; and

(2) The licensee's vehicle immobilization service does not charge any vehicle immobilization fee authorized under this chapter or any other fee, fine, or penalty to a vehicle owner or operator for removal of a boot; except that, the licensee may collect any outstanding parking fee due, not including any fine or penalty, for unauthorized parking under the terms for use of the parking lot.

(d) It is a defense to prosecution under subsection (b)(2) of this section that:

(1) The parking lot owner is an owner or employee of a licensed vehicle immobilization service; and

(2) The vehicle immobilization service in which the parking lot owner has a financial interest does not charge any vehicle immobilization fee authorized under this chapter or any other fee, fine, or penalty to a vehicle owner or operator for removal of the boot; except that, the parking lot owner may collect any outstanding parking fee due for unauthorized parking under the terms for use of the parking lot, not including any fine or penalty, from the vehicle owner or operator.

(Ord. No. 13-81, § 2(12-19-63), 5-28-2013)

Sec. 12-19-64. Fees charged by vehicle immobilization service.

(a) Any vehicle immobilization service engaged in the business of the immobilization of vehicles shall not charge the owner of any immobilized vehicle or personal property in excess of $65.00 per day for the removal of the vehicle immobilization device or devices. The $65.00 fee shall be all-inclusive; no additional fees may be charged for using other equipment or for any other reason.

(b) Fees may be paid by cash, check, credit card, or debit card at no additional charge and the vehicle immobilization service may not require that fees be paid only in cash. Proof of the ability to accept these forms of payment must be submitted prior to obtaining a license. At each and every location where a booting operation is conducted, the licensee shall have available means of collecting any fees via cash, check, credit card and debit card.

(c) If the means to accept any one form of payment is unavailable at the time of immobilization or release of the vehicle, any immobilized vehicles must be released without charge.
(Ord. No. 13-81, § 2(12-19-64), 5-28-2013)

Sec. 12-19-65. Service calls.

It shall be unlawful for any vehicle immobilization service, or the vehicle immobilization service's agent, representative, employee or operator to go to any place and immobilize a vehicle unless the vehicle immobilization service has a written contract to immobilize illegally parked cars at a specific parking lot.
(Ord. No. 13-81, § 2(12-19-65), 5-28-2013)

Sec. 12-19-66. City employees soliciting business.

It shall be unlawful for any city employee to solicit business for any vehicle immobilization service owner or operator.
(Ord. No. 13-81, § 2(12-19-66), 5-28-2013)

Sec. 12-19-67. Solicitation of vehicle immobilization work.

It shall be unlawful to drive along any street within the city and solicit vehicle immobilization work. Solicitation of work by the operator or the occupant of a vehicle used to carry on the business of a vehicle immobilization service is prohibited. An operator shall not proceed to a specific parking lot without complying with section 12-19-23.
(Ord. No. 13-81, § 2(12-19-67), 5-28-2013)

Sec. 12-19-68. Vehicle not immobilized upon operator of vehicle returning.

(a) The operator of any vehicle immobilization service shall not immobilize a vehicle and shall not charge a fee if the driver of the vehicle returns before the installation of the vehicle immobilization device or tow device is complete.

(b) It shall be unlawful to immobilize any motor vehicle occupied by a live person. However, the person occupying the unauthorized vehicle shall either pay the appropriate fee for the privilege of parking at the location or immediately remove the vehicle from the lot. Payment must be made to the pay station or uniformed parking lot attendant. The vehicle immobilization service operator shall not be authorized to accept payment of the parking fee.

(c) The operator shall immediately notify the police department of the immobilization of any vehicle occupied by an incapacitated person or a live animal.
(Ord. No. 13-81, § 2(12-19-68), 5-28-2013)

Sec. 12-19-69. Properly parked vehicles.

It shall be unlawful to place an immobilization device upon any motor vehicle parked in accordance with the terms of use for the subject property. Provided that vehicles may be immobilized by a vehicle immobilization service with a current contract for services including, but not limited to, the enforcement of valid laws for the prevention of driving under the influence/driving while intoxicated and for the prevention of theft by the owner of the vehicle.
(Ord. No. 13-81, § 2(12-19-69), 5-28-2013)

Sec. 12-19-70. Reserved.

Division 4. Additional Requirements for Non-Consensual Towing Services

Sec. 12-19-71. Removal of trespassing motor vehicles.

The owner, operator, or lessee, or authorized agent thereof, of any property, may have any vehicle occupying the property without the permission of its owner, operator, lessee, or authorized agent thereof, removed by towing to a storage facility until reclaimed by the owner or his agent provided the provisions of state law and this article are complied with, as well as the following:

(1) Signs shall be posted and affixed on the property as required by sections 12-19-50 through 12-19-52.

(2) The foregoing requirement for signs shall not apply on any parcel of property used at the time of removal for one single-family residence or one two-family residence;

(Ord. No. 13-81, § 2(12-19-71), 5-28-2013)

Sec. 12-19-72. Authorization for non-consensual tow.

The towing and recovery operator performing the tow shall comply with the following:

(1) Authorization of the owner, operator, or lessee of the property from which the vehicle is towed, or the authorized agent thereof. For the purposes of this subsection, "authorized agent" shall not include a representative of the towing and recovery operator. This subsection shall not apply to parking lots for the exclusive use of residents or tenants of the property served by the parking lot where authorized vehicles are clearly identified by decal, hangtag or other visible permit. This exception shall not apply to commercial parking lots as defined in this chapter.

a. The tow operator shall receive a signed authorization from the property owner or their agent prior to the towing of the vehicle and the property owner or their agent must also be present when the vehicle is towed.

b. The towing and recovery operator, and the owner, operator, or lessee of the property, shall maintain for inspection by the police chief or other city official at its business offices, and at the property, respectively, copies of all documents

which authorized the operator to tow any motor vehicle from the property.

(2) For the purposes of this subsection, "authorized agent" may include a representative of the towing and recovery operator. The owner, operator, lessee or authorized agent of the property shall obtain and retain the following:

a. Photographs or videos of the vehicle in the location from which the vehicle is being towed;

b. Photographs or videos of the condition of the vehicle prior to the tow; and

c. To the extent available, other documentary evidence substantiating the reason for the removal.

(3) The tow truck used to perform the tow shall include the name, street address, and telephone number of the towing and recovery operator in a conspicuous location on the exterior of the truck.

(4) Immediately subsequent to a trespassing vehicle being removed or towed as permitted by this article, notice of this action shall be provided by telephone call by the towing and recovery operator to the non-emergency phone number designated by the police department to receive such information. Such notice shall include the following information:

a. The name of the towing and recovery operator removing vehicle;

b. A description of the vehicle towed including year, make, model, color and if visible and present on the vehicle the vehicle identification number (VIN), license plate number, decal number and year; the location of trespassing vehicle and the date and time of the tow;

c. The location of the storage facility to which the vehicle was towed; and

d. The name and address of the individual and/or entity that authorized the tow.

(5) Within 24 hours of the tow, mail written notice by regular mail to the last known address of the registered owner, if ascertainable. The notice shall include the information required above for notice to the police subsequent to the tow. Additionally, the notice to the owner shall provide the schedule of fees for reclaiming the vehicle at the listed storage facility.

(6) Failure by a towing and recovery operator to report such tow as required by this section shall be punishable by a fine of not more than $100.00. Such failure to report shall limit the amount which may be charged for the storage and safekeeping of the towed vehicle to an amount no greater than that charged for one day of storage and safekeeping.

(Ord. No. 13-81, § 2(12-19-72), 5-28-2013)

Sec. 12-19-73. Storage facilities.

(a) All towing and recovery operators engaged in towing vehicles without the consent of their owners shall conspicuously display at their main place of business and at any other storage facilities where towed vehicles may be reclaimed, in locations readily visible to those reclaiming vehicles, signs that clearly and legibly provide the following information:

(1) A comprehensive list of all their fees for towing, recovery, and storage services as related to the charges allowed by this article. Charges in excess of those posted shall not be collectable from any motor vehicle owner whose vehicle is towed or stored without his consent;

(2) The maximum fees permitted to be charged by this article;

(3) That payment may be made by cash, traveler's check, money order, insurance company check, or debit, credit or charge card;

(4) That a receipt shall be provided;

(5) That the vehicle owner shall have the opportunity to inspect the exterior of the vehicle for damage prior to leaving the premises and a tow company or tow truck operator shall not require a vehicle owner to sign any waiver of the owner's right to receive compensation for damages to the owner's vehicle as a condition of the vehicle's release;

(6) The non-emergency telephone number of the police for reporting towing complaints; and

(7) The non-emergency 311 complaint call center number.

(b) The fees authorized by this article shall be the maximum allowed and an additional fee for use of a debit, credit or charge card, or other form of payment, other than a normal convenience fee required by a credit company, shall not be permitted.

(c) Towing and recovery operators shall make change, up to $100.00, for those who pay in cash for towing and storage charges applicable to vehicles towed under the provisions of this article.

(d) Storage facilities to which vehicles are towed under the provisions of this article shall provide for the release of any vehicle towed to said facility 24 hours a day.

(e) Storage facilities to which vehicles are towed under the provisions of this article shall be located within the city and shall comply with all zoning regulations and other ordinances and regulations of the city.

(f) In the event that a vehicle is towed from the city and stored in or released from a location in another locality, the provisions of this ordinance shall apply.
(Ord. No. 13-81, § 2(12-19-73), 5-28-2013)

Sec. 12-19-74. Receipt required.

At the time a vehicle owner or agent reclaims a towed vehicle, the towing and recovery operator shall provide a written receipt that contains the following information:

(1) The name and address of the towing and recovery operator;

(2) The address from which the vehicle was towed;

(3) The date and time that the vehicle was towed;

(4) The date and time that the vehicle entered the facility at which it was placed for storage;

(5) An itemized list of all the fees that are being charged; and

(6) A signature of an authorized representative of the towing and recovery operator.

In addition to the required receipt, the towing and recovery operator shall provide to the vehicle owner or agent an information sheet or card supplied by the city regarding information about how to file a complaint with the city.
(Ord. No. 13-81, § 2(12-19-74), 5-28-2013)

Sec. 12-19-75. Fees.

(a) Charges imposed for the towing, storage, and safekeeping of any vehicle removed, towed, or stored without the consent of its owner shall not be in excess of the maximum charges provided for in this section.

(b) The maximum fees that may be charged for the towing of motor vehicles and for the storage of such towed vehicles are as follows:

(1) For the towing of a small vehicle, as defined in section 12-19-2(27)(a), the maximum fee shall not exceed $160.00.

(2) For the towing of a large vehicle, as defined in section 12-19-2(27)(b), the maximum fee shall not exceed $300.00.

(3) For the storage of a towed motor vehicle, the maximum fee for each 24-hour period of storage or portion thereof shall be $10.00; provided, that no storage fee may be charged for the first 24 hours of storage, or any portion thereof, following the arrival of a towed vehicle at the tow operator's storage facility storage yard. The storage fee shall only apply if the vehicle has been located on the tow operator's storage yard at the address and location that is subject to the annual inspection by the police department and

likewise listed on the tow operator's business license at its principal place of business for more than 24 hours.

(4) If in the opinion of the tow operator and or its agent, the driver or the operator of the vehicle, whether the owner or agent thereof, appears to be impaired or potentially intoxicated to the extent that they may not be able to safely operate a vehicle, the tow operator and or its agent shall contact the police department and the responding officers shall, upon investigation and observation of the driver, owner, agent of the owner or party seeking the release of the vehicle, determine if the vehicle is to be released to the driver, owner, agent of the owner or party seeking its release. In the event that the officer shall determine in their opinion that the driver, owner, agent of the owner or party seeking the vehicle's release is impaired to such an extent that they cannot safely operate a vehicle, the vehicle shall not be released and the officer shall document that the tow operator and or its agent complied with the requirements of this article. In such event the tow operator and or its agent may charge the $10.00 storage fee provided that the vehicle has been stored for longer than 24 hours at the storage yard at the address and location that is subject to the annual inspection by the police department and likewise listed on the tow operator's business license as its principal place of business.

(c) Except for fees authorized by this article, no other fees or charges shall be imposed during the first 24-hour period. No fee or other penalty shall be charged for parking on the lot from where the vehicle was towed once the trespassing vehicle has been towed. It shall be unlawful to use the threat of towing by blocking, lifting, loading or otherwise connecting the vehicle for towing in order to coerce the payment of a disputed parking fee.

(d) If the owner of a motor vehicle or agent thereof is present and capable of removing the vehicle before the towing of said vehicle has transpired, the vehicle shall not be towed and no fee shall be charged. However, if the owner of a motor vehicle or agent thereof is present after the owner's motor vehicle has been:

(1) Actually and physically moved and or maneuvered from its parking place by placing a vehicle or vehicles on two or more go jacks, provided that the tow operator has a wrecker or tow truck located and present on scene that can immediately tow each such vehicle or vehicles. It shall be unlawful to place any vehicle or multiple vehicles on go jacks and hold or withhold the vehicle or vehicles from their owner or agent if each vehicle cannot be immediately towed by a tow truck or wrecker present on scene or until a tow truck or wrecker is available to tow them;

(2) Lifted by tow line or cable;

(3) Loaded onto the towing and recovery operator's tow truck.

One-half the rate of the maximum fee for the vehicle's weight classification allowed by subsection (b) of this section shall apply. However the mere arrival of the tow operator's truck or vehicle and/or employee shall not be considered as acts, circumstances or justification to tow the vehicle. The placement of obstacles either in front or the rear of the vehicle and or blocking the removal of the vehicle with the operator's tow truck or any other vehicle or blocking the removal of the vehicle by the tow operator, its officers, agents, servants or employees, shall not be considered as acts, circumstances or justification to tow the vehicle if the owner or operator is present and willing to remove the trespassing vehicle and the engagement or use of any such acts shall be unlawful.

(e) It shall be unlawful for any tow operator its officers, agents, servants or employees to disable or immobilize any vehicle prior to towing the vehicle to prevent the owner from removing the vehicle solely so that it can be towed. This subsection shall not apply if the vehicle was booted pursuant to the policy and notice for the parking lot and the owner has not returned or requested removal of the boot within two hours

of the placement of the boot. If a booted vehicle has been towed without the owner's return or request for removal of the boot, no boot removal shall be charged in addition to the towing fees authorized by this article.

(f) No storage fees shall be charged if the tow operator its officers, agents, servants or employees have entered into any agreement with any party to lease or to otherwise use any parcel of property or land for the purpose of towing vehicles to places or locations other than the tow operators storage yard as identified in subsection (b)(2) of this section in order to temporarily store or park vehicles regardless of the hour of day or night. A tow operator may not use any public right-of-way for the purpose of temporarily storing or parking towed vehicles for the purpose of removing multiple vehicles from locations in an attempt to save time from towing vehicles to the tow operator's storage yard.

(g) Any vehicle towed pursuant to this article shall be released by the tow operator within one hour or less when contacted by the owner of any such vehicle towed and payment of the charges due pursuant to this section subject however to the provisions of subsection (b)(3) of this section.
(Ord. No. 13-81, § 2(12-19-75), 5-28-2013)

Sec. 12-19-76. Manner of payment.

Towing and recovery operators shall accept payment for towing fees, storage fees, retrieval fees and the "in lieu of towing" fee provided for in this chapter in each of the following ways:

(1) Cash in United States currency;

(2) Insurance company check;

(3) Travelers' checks or money orders payable in United States currency; and

(4) Any debit, credit or charge card that the towing and recovery operator is authorized by the issuing credit or charge card company to accept, and that is accepted by the towing and recovery operator in the ordinary course of business.

(Ord. No. 13-81, § 2(12-19-76), 5-28-2013)

Sec. 12-19-77. Financial interests of parking lot owner and licensee prohibited.

The provisions of 12-19-63 shall apply to the activity of non-consensual towing as well as the activity of booting.
(Ord. No. 15-42, § 2, 4-14-2015)

Secs. 12-19-78—12-19-80. Reserved.

ARTICLE D. REQUIREMENTS FOR PARKING LOTS THAT USE BOOTING OR TOWING TO ENFORCE AGAINST UNAUTHORIZED VEHICLES IN THE LOT

Sec. 12-19-81. Application.

The provisions of this article shall apply to parking lots that use booting or towing to enforce against unauthorized vehicles in the lot.
(Ord. No. 13-81, § 2(12-19-81), 5-28-2013)

Sec. 12-19-82. Entry powers of city officials.

It shall be the duty of any parking lot manager to allow immediate access by any police officer or building official to any portion of the premises of the parking lot for the purpose of inspection of such premises and vehicle immobilization services for compliance with this article.
(Ord. No. 13-81, § 2(12-19-82), 5-28-2013)

Sec. 12-19-83. Compliance with other laws.

Compliance with the requirements of this article does not excuse compliance with any other provisions of state law or the General City Code relating to parking regulations or parking lots.
(Ord. No. 13-81, § 2(12-19-83), 5-28-2013)

Sec. 12-19-84. Enforcement.

The director of the department of planning, engineering and permits or his designee or any police officer is authorized to enforce the provisions of this article.
(Ord. No. 13-81, § 2(12-19-84), 5-28-2013)

Sec. 12-19-85. Registration of parking lot operating companies.

(a) It shall be unlawful for any person to operate a parking lot for profit in the city that has not been issued a registration compliance certificate as required by this section.

(b) A parking lot general manager may apply for a registration compliance certificate for each parking lot under his management by paying a fee of $50.00 per lot to the director of finance and providing the chief of police or his designee the following information regarding each parking lot:

(1) The name, telephone number, and business address of the parking lot operating company;

(2) The name, telephone number, facsimile number, and business or residence address, including street name and number, city, state and zip code, of the parking lot general manager; and

(3) The street address, days and hours of operation of the parking lot.

(4) Receipt of payment of the $50.00 fee from the director of finance.

The use of a public or private post office box or other similar address shall not be sufficient for the purposes of complying with this subsection.

(c) Upon receipt of an application for a registration compliance certificate, the chief of police or his designee will perform an inspection of the parking lot to make a determination as to whether the lot is in violation of any requirements of this article. Upon completion of the inspection the chief of police shall either:

(1) Provide to the parking lot general manager a registration compliance certificate and decal to be posted as instructed by the Chief of Police; or

(2) Advise the parking lot general manager in writing that the parking lot is in violation of this article, pointing out the deficiencies and requiring that they be remedied within ten calendar days. The chief of police or his designee shall re-inspect the parking lot pursuant to this subsection upon receipt of a written request for re-inspection and payment of a re-inspection fee of $50.00 to be paid to the director of finance. Proof of payment of the fee shall be provided to the chief of police prior to the re-inspection of the lot.

(d) Any change in the information required in subsection (b) of this section shall require the new parking lot general manager to file updated registration information with the chief of police and to pay a registration update fee of $10.00 shall be paid to the director of finance within 30 days of the effective date of the change. A prior parking lot general manager shall advise the chief of police or his designee that he no longer manages the property.

(e) The parking lot general manager of a newly constructed or established parking lot shall comply with the provisions of this section not later than the 30th day following completion of construction or new opening of the parking lot, whichever occurs first.

(f) A parking lot general manager shall annually renew the registration for each parking lot under his management by paying an annual fee of $50.00 per parking facility to the director of finance who will issue a receipt to be presented to the chief of police or his designee, who shall verify that each parking facility is still in compliance with this article.
(Ord. No. 13-81, § 2(12-19-85), 5-28-2013; Ord. No. 15-42, § 3, 4-14-2015)

Sec. 12-19-86. Vehicle booted.

It shall be unlawful for a parking lot general manager to have a vehicle booted for any reason (e.g., being parked on or across the parking space lines, on or across areas marked with hash marks, in driving lanes or in other unauthorized areas on the parking lot) other than non-payment of a parking fee.
(Ord. No. 13-81, § 2(12-19-86), 5-28-2013)

Sec. 12-19-87. Attendant requirements.

It shall be the duty of any owner or manager of a parking lot to ensure that no individual at

any time performs as a parking lot attendant unless the individual meets each of the requirements of this section. Each parking lot attendant shall:

(1) Be 16 years of age or older;

(2) Wear a picture ID, name tag with the employee's first name and employee identification number, and shirt, jacket or vest with the name and logo of the parking lot operating company;

(3) If the parking lot general manager intends to have vehicles immobilized ("booted") or towed for non-payment of parking fees, provide a written receipt to the operator of a vehicle parked on the parking lot with the name and logo of the parking lot, the street address of the parking facility, the parking space number if the parking lot utilizes "pay by space," and the date and time parking fees were paid; and

(4) Perform his duties in a courteous and professional manner.

(Ord. No. 13-81, § 2(12-19-87), 5-28-2013)

Sec. 12-19-88. Closure of parking lot entrances.

(a) The parking lot operator or manager of a parking lot operated for profit that is closed for business shall barricade all entrances to and exits from the parking lot by means of a barrier gate, chain, or other durable barrier equipment.

(b) The use of caution tape, plastic tape, rope, or other such non-durable equipment to indicate the closure of entrances and exits is prohibited.

(c) Barriers shall not be attached to signage, trees, or any such object in the public right-of-way.

(Ord. No. 13-81, § 2(12-19-88), 5-28-2013)

Sec. 12-19-89. Video audits; parking fee receipts.

This section shall apply to commercial parking lots where towing or vehicle immobilization is used to enforce payment of a fee to park.

(1) Video audits.

a. Video audits shall be required when excessive complaints of booting or non-consensual towing after payment has been made to unmanned pay stations are received by the Birmingham Police Department. For the purposes of this section, excessive complaints shall be three or more such complaints at a specific commercial parking lot within a 30-day period.

b. Upon receiving a second complaint of booting or non-consensual towing after proper payment has been made at the same lot within a 30 day period, the chief of police shall notify the parking lot owner, operator and the vehicle immobilization service licensee in writing that an additional complaint within the 30 day period will require the use of a video audit procedure for a following 30 day period.

c. Upon receiving a third complaint of booting or non-consensual towing after proper payment has been made at the same lot within a 30 day period, the chief of police shall notify the parking lot owner or operator and the vehicle immobilization service licensee in writing that video audit procedures shall be required for a following 30 day period. The notice shall state the date on which the audit procedures must be initiated and the ending date of the 30-day period.

d. The parking lot owner and operator, vehicle immobilization service licensee and permittee, and towing or recovery operator shall comply with the following minimum standards for the video audit procedure:

1. The video audit procedure must be conducted by a person who does not collect or otherwise have access to any money inside the parking lot pay station.

2. The names and employers of the person conducting a video audit procedure and the permittee installing the boot or towing the vehicle (if different from the person conducting the video audit procedure) must be identified on each video recording made during the video audit procedure.

e. Each video recording made during a video audit procedure must be a digital image of sufficient clarity, quality, and detail as to clearly depict:

1. The parking lot location;

2. The unauthorized vehicle both before and after the boot is installed or the vehicle is towed, including the number of the parking space in which the vehicle is parked;

3. The outside of the pay station showing that the payment slots are correctly and clearly numbered; and

4. The inside of the pay station showing:

(i) The payment slot that corresponds to the parking space in which the unauthorized vehicle is parked; and

(ii) Each payment slot adjacent to the slot that corresponds to the parking space in which the unauthorized vehicle is parked.

f. Each video camera used in a video audit procedure must display the date and time of each video recording.

g. Within a reasonable time after being requested, a copy of the video recording made during the video audit procedure must be provided to the owner or operator of the immobilized vehicle that is the subject of the recording.

(2) Parking fee receipts.

a. Parking fee receipts shall be required when more than six video audits have been required in a 12 month period at a specific commercial parking lot. Upon notifying the parking lot owner or operator and the vehicle immobilization service licensee of the need for a sixth video audit in a 12-month period, the chief of police shall notify the parking lot owner, operator and vehicle immobilization service licensee that triggering a seventh video audit within the 12-month period will require the parking lot owner and operator to provide parking fee receipts to persons parking at the lot.

b. Commercial parking lots that voluntarily provide parking fee receipts shall not be subject to the video audit procedure in subsection (1) of this section.

c. If a parking lot owner or operator provides a parking fee receipt, voluntary or as required by this subsection, the parking lot owner or operator shall provide the receipt by either an electronic pay station or a uniformed parking lot attendant, and the receipt must indicate:

1. The amount paid to park the vehicle by the vehicle owner or operator;

2. The date and time the parking fee was received from the vehicle owner or operator;

3. The time when authorization for the vehicle to be parked on the parking lot expires; and

4. The location of the parking lot on which the vehicle is parked.

(Ord. No. 13-81, § 2(12-19-89), 5-28-2013)

Sec. 12-19-90. Parking for special events.

The owner or operator of any on-site or off-site parking lot which is used or available for parking during special events as defined in section 12-19-2 herein must continuously provide a uniformed attendant for a time period to begin one hour before the start of the special event until one hour after the conclusion of the special event. The attendant must provide a receipt to any patron using the parking lot.
(Ord. No. 15-42, § 4, 4-14-2015)

Sec. 12-19-91. Parking lots using honor boxes.

Any parking lot which uses an honor box for the collection or receipt of parking fees must locate said honor box in a location visible from any point in the parking lot. If the said parking lot is operated at night, the honor box must be illuminated in such a manner as to be clearly visible by the lots patrons.
(Ord. No. 15-42, § 4, 4-14-2015)

CHAPTER 20. DRIVER'S TRAINING SCHOOLS*

Sec. 12-20-1. Purpose of chapter.

It is declared to be the purpose of this chapter to provide regulations governing the business or profession of conducting motor vehicle driver's training schools in the city in order to protect the public against inefficient instructions and to promote safety in the city.
(Code 1964, § 34-184; Code 1980, § 10-16-1)

Sec. 12-20-2. Permit to operate—Required; prerequisites to issuance; insurance.

It shall be unlawful to engage in the business of conducting a driver's training school without first obtaining a permit. The permit shall be in addition to the requirement of a license from the director of finance. All applications for a permit under this chapter shall be filed with the chief of police and shall contain that information as he or she shall reasonably prescribe. No permit shall be issued by the chief of police until he or she or his or her designee shall have examined carefully each motor vehicle used or proposed to be used in the driver's training school and has determined that the vehicle is in good and sound mechanical condition and has approved all equipment used or to be used by the applicant in giving driver instructions. No such permit shall be issued by the chief of police until the applicant shall have filed with the city clerk a liability and property damage insurance policy issued to such applicant by a public liability insurance company authorized to do business in the state, indicating that each vehicle owned or registered in the name of the applicant or controlled by the applicant or to be used by the applicant in any manner for the purpose of giving driving instructions is covered by liability insurance in the amount of $100,000.00 for personal injury to or death of any one person, $200,000.00 for personal injury to or death of any number of persons involved in any one accident and $20,000.00 for property damage in any one accident resulting from the negligence of the applicant or any agent, employee or student of the applicant. The liability insurance policy shall contain a clause binding the company issuing the policy to give not less than 30 days' written notice to the city clerk prior to any cancellation thereof. The cancellation of any such policy shall have the effect of suspending the permit of the insured to operate a driver's training school until the time as a new policy complying with the provisions of this section shall be filed with the city clerk.
(Code 1964, § 34-185; Code 1980, § 10-16-2)

Sec. 12-20-3. Same—Conditions precedent to issuance.

(a) It shall be a condition precedent to the granting of any permit to any person engaged in the business of conducting a driver's training school that the chief of police shall first obtain the fingerprints and photograph and check the police record of the applicant and all employees of the applicant who will be instructors. A $5.00 fee shall be paid to the chief of police by each applicant and each employee who will be an instructor, which shall be payable upon filing of the application and shall not be refundable.

*__State law reference—__Driver Training School License Act, Code of Ala. 1975, § 32-14-1 et seq.

(b) Every person in order to qualify as an instructor for a driver's training school shall meet the following requirements:

(1) Must be of good moral character.

(2) Must present evidence of credit in driver education and safety from an accredited college or university equivalent to credits in those subjects which are required of instructors in state public schools or have a valid state teachers certificate coded for driver education.

(3) Be physically able to operate safely a motor vehicle and to train others in the operation of motor vehicles.

(4) Provide a certificate of health from a licensed physician stating that the applicant is free from a communicable or contagious disease.

(5) Hold a valid current state driver's license.

(c) Nothing in this section shall apply to any accredited grade school, high school, junior college or college conducting a driver's training course, nor to any driver's training and improvement school operated by the city or any agency thereof.
(Code 1964, § 34-186; Code 1980, § 10-16-3)

Sec. 12-20-4. Same—Refusal to issue and revocation.

The chief of police shall have the discretion and authority to deny the application of any person for a permit or to revoke the permit required by section 10-16-2 if he or she determines that:

(1) Any requirement of this chapter has not been complied with;

(2) Such applicant has made a material false statement or concealed a material fact in connection with his or her application;

(3) Such applicant or any officer, director, partner or other person directly interested in the business was the former holder or was an officer, director or partner in a corporation or partnership which was the former holder of a drivers' school license which was revoked by the chief of police;

(4) Such applicant or any officer, director, partner or employee or any other person directly interested in the business has been convicted of a felony or any crime involving moral turpitude, violence, dishonesty, deceit, indecency or degeneracy;

(5) The applicant has failed to furnish satisfactory evidence of good character, reputation and fitness;

(6) The applicant does not have a place of business in the city;

(7) The applicant is not the true owner of the driver's school;

(8) The applicant is not qualified by experience and training to conduct satisfactory instructional exercises;

(9) The applicant fails to keep all motor vehicles used in any manner for the purpose of giving driving instruction in good mechanical condition; or

(10) The applicant uses any motor vehicle or equipment that has not been approved by the chief of police.

(Code 1964, § 34-187; Code 1980, § 10-16-4)

Sec. 12-20-5. Instructors to have driver's permit.

No person shall engage in any instructional activities involving the use of a motor vehicle in connection with the instructions unless he or she shall produce satisfactory proof that he or she has a current permit from the state to operate a motor vehicle upon the streets and highways of the state.

(Code 1964, § 34-188; Code 1980, § 10-16-5)

Sec. 12-20-6. Authority of chief of police, etc., to inspect vehicles, etc.

The chief of police or his or her authorized representative shall have the right to inspect any and all motor vehicles or other equipment of the person holding a permit issued pursuant to this chapter at any time.

(Code 1964, § 34-189; Code 1980, § 10-16-6)

Sec. 12-20-7. Licensees to file student contractual agreements with chief of police.

It shall be the duty of the permit holder under this chapter to file with the chief of police a copy of all agreements or contracts that the person will use in his or her contractual relationship with students or enrollees for driving instructions.

(Code 1964, § 34-190; Code 1980, § 10-16-7)

Sec. 12-20-8. Advertising that taking course will result in obtaining driver's license.

No permit to operate the business regulated by this chapter shall advertise publicly or imply it in advertisements or statements of any kind that the obtaining of a driver's license is guaranteed as a result in taking any such driving course.

(Code 1964, § 34-191; Code 1980, § 10-16-8)

CHAPTER 21. LICENSING OF SOLID WASTE FACILITIES

Sec. 12-21-1. Findings of fact.

It is hereby found and declared that the collection, disposal and utilization of solid waste is a matter of grave concern to all citizens and is an activity thoroughly affected with the public interest and that the health, safety and welfare of the citizens require efficient and safe solid waste collection and disposal and efficient utilization of such waste and all processes associated therewith. The council further finds that the requirements codified in this chapter promote and protects the health, safety and welfare of the citizens of the city.

(Code 1980, § 4-3-31; Ord. No. 93-221, § 1, 9-14-1993)

Sec. 12-21-2. Definitions.

The following words and phrases shall have the meanings ascribed herein unless the context clearly indicates otherwise:

Applicant means any person applying for a permit to operate and/or construct a commercial

nonhazardous solid waste management facility or commercial hazardous waste management facility.

Business concern means any corporation, association, firm, partnership, trust, joint venture or other form of commercial organization.

Commercial solid waste facility means a site or facility receiving solid waste, as defined herein, not generated on site, for treatment, utilization, recycling, processing, transportation or disposal of solid waste, including transfer stations, transfer facilities, incinerators, sanitary or other landfill facilities, facilities for separating and preparing solid waste for reuse, facility for converting solid waste to energy or other facilities necessary or desirable in connection therewith, and to which a fee is paid or other consideration given for such treatment, utilization, recycling, processing, transportation or disposal.

Key employee means any person employed by an applicant in a management capacity and empowered to make operational or financial management decisions with respect to solid waste or hazardous waste management operations of the business concern, but shall not include employees primarily engaged in the physical or mechanical treatment, processing, storage or disposal of solid or hazardous waste. In this chapter information requested related to key employees shall also include information from any period such key employee was employed or engaged in any significant capacity in the waste industry for an entity other than the applicant.

Person means any person, firm, partnership, corporation or organization of any kind, excluding the United States Government, the state, Jefferson County and the city, but not excluding contractors of such entities.

Solid waste means any garbage, rubbish, putrescible waste, offal, dead animals, demolition materials, refuse or sludge from a water treatment plant, water supply treatment plant or air pollution control facility, discarded materials, including solid, liquid, semisolid or contained gaseous material resulting from industrial, commercial, mining, medical and agricultural operations, including hazardous, infectious and toxic materials or waste, discarded materials from community and household activities and other like matter or materials.

Solid waste facility or *facility* means any land, building, plant, system, facility, trucks and other motor vehicles, equipment or other property, whether real, personal or mixed, or any combination of either thereof, used or useful or capable of future use in connection with the treatment, utilization, recycling, processing, transporting or disposal of solid waste, including a transfer facility or station, incinerators, sanitary or other landfill facilities, facilities for separating and preparing solid waste for reuse, facilities for converting solid waste to energy or other facilities necessary or desirable in connection therewith.

Transfer facility means a facility which receives and temporarily stores solid waste at a location other than the generation site, and which facilitates the bulk transfer of accumulated solid waste to a facility for further processing or disposal. The term includes land affected during the lifetime of the operations, including, but not limited to, areas where storage or transfer actually occurs, support facilities, borrow areas, offices, equipment sheds, air and water pollution control and treatment systems, access roads, associated on-site or contiguous collection and transportation facilities, closure and postclosure care and maintenance activities, and other activities in which the natural surface has been disturbed as a result of or incidental to operation of a transfer station. A facility is a transfer facility regardless of whether it reduces the bulk or volume of waste. The term does not include portable storage containers used for the collection of municipal waste other than special handling waste.
(Code 1980, § 4-3-32; Ord. No. 93-221, § 2, 9-14-1993)

Sec. 12-21-3. License required.

It shall be unlawful for any person to operate any commercial solid waste facility or transfer station, to change or expand the location or use of any existing facility without first having obtained a license therefor from the council in accordance with the provisions of this chapter.
(Code 1980, § 4-3-33; Ord. No. 93-221, § 3, 9-14-1993)

Sec. 12-21-4. Application for license.

An applicant for a license or renewal thereof under this chapter shall file with the city clerk a written application signed by himself or herself, if an individual; by all partners, if a partnership; or by the president or chief officer if a corporation or other organization, together with four copies of such application, sworn to by each of its signees, before a notary public or other officer authorized by law to administer oaths which shall include the following current information and materials:

(1) Applicant data.

a. If the applicant is an individual, the full name, business address, home address, date of birth an Social Security number of the applicant; or

b. If the applicant is a business concern, the full name, business address, date of establishment, and federal employer identification number of the business concern, and the full names, business addresses, home addresses, dates of birth and Social Security numbers of any officers, directors, partners and key employees thereof and all persons or business concerns holding an equity or debt liability of that business concern, or if the business concerns is a publicly traded corporation, an individual holding more than five percent or individuals related within third degree holding a cumulative of five percent or business concerns holding more than five percent of the equity in or debt liability of that business concern, except where the equity or debt liability is held by an investment company which is publicly traded or a chartered lending institution, in which case the applicant need only supply the name and business address of the investment company or lending institution.

(2) The full names, business addresses, home addresses, dates of birth and Social Security numbers of all officers, directors, key employees and partners of any business concern disclosed in the statement and the name and addresses of all persons holding any equity in or debt liability of any business concern so disclosed, if the business concern is a publicly traded corporation, an individual holding more than five percent or individuals related within third degree holding a cumulative total of five percent or business concerns holding more than five percent of the equity in or debt liability of that business concern, except where the equity or debt liability is held by an investment company which is publicly traded or a chartered lending institution, in which case the applicant need only supply the name and business address of the investment company or lending institution.

(3) The full name and business address of any company which collects, transports, treats, processes, stores or disposes of solid or hazardous waste in which the applicant, a parent corporation or subsidiary corporation holds an equity interest of five percent or more.

(4) A description of the business experience and credentials, including any past or present permits or licenses for the treatment, processing, storage or disposal of solid or hazardous waste possessed by the applicant, or if the applicant is a business concern, by the key employees, officers, directors and partners thereof.

(5) A listing of and copy of:

a. Any criminal convictions, civil penalties, bond forfeitures, judicial orders, verdicts, or other judgments that have been obtained against the applicant or against any principal, partner, associate, officer, key employee, parent corporation or subsidiary corporation of the applicant, under the Hazardous Wastes Management and Minimization Act (Code of Ala. 1975, § 22-30-1 et seq.), the Alabama Water Pollution Control Act (Code of Ala. 1975, § 22-22-1 et seq.), the Alabama Safe Drinking

Water Act of 1977 (Code of Ala. 1975, § 22-23-30 et seq.), the Solid Wastes Disposal Act (Code of Ala. 1975, § 22-27-1 et seq.), the Alabama Air Pollution Control Act of 1971 (Code of Ala. 1975, § 22-28-1 et seq.), the Alabama Underground Storage Tank and Wellhead Protection Act (Code of Ala. 1975, § 22-36-1 et seq.), the Alabama Hazardous Substance Cleanup Fund (Code of Ala. 1975, § 22-30A-1 et seq.), the Alabama Environmental Management Act (Code of Ala. 1975, § 22-22A-1 et seq.), or any other federal or state statute relating to environmental protection or to the protection of the public health, safety or welfare;

b. Any felony convictions that have been obtained against the applicant or permittee, or against any principal, partner, associate, officer, key employee, parent corporation or subsidiary corporation of the applicant or permittee, under any federal or state statute and the restitution or reparations ordered and made to the victims of said felony;

c. Any actions that have been taken to suspend or revoke any permit or license of the applicant or permittee, or of any principal, partner, associate, officer, key employee, parent corporation or subsidiary corporation of the applicant by any federal, state or local agency responsible for environmental protection;

d. Any notices of violation that have been sent to the applicant, or to any principal, partner, associate, officer, key employee, parent corporation or subsidiary corporation, of the applicant, from any federal, state or local agency responsible for environmental protection;

e. Any administrative orders that have been issued against the applicant or against any principal, partner, associate, officer, key employee, parent corporation or subsidiary corporation, of the applicant, by any federal, state or local agency responsible for environmental protection;

f. Any civil penalties that have been assessed against the applicant or against any principal, partner, associate, officer, key employee, parent corporation or subsidiary corporation, of the applicant, by any federal or state agency responsible for environmental protection;

g. Any consent orders, consent adjudications, consent decrees or settlement agreements that have been entered into by the applicant, or by any principal, partner, associate, officer, key employee, parent corporation or subsidiary corporation of the applicant, to which any federal or state agency responsible for environmental protection was a party;

h. Any court proceedings which relate to those laws identified in subsection (5)a of this section that the applicant, or any principal, partner, associate, officer, key employee, parent corporation or subsidiary corporation of the applicant is or has been a party to, and the disposition of such court proceedings;

i. For purposes of this section, the principals of a corporate applicant shall include the following: corporate officers, members of the board of directors, principal stockholders who own, hold or control stock of five percent or more of a publicly held corporation or ten percent or more of a privately held corporation, and key employees.

(6) Operating plan for proposed facility.

a. An application to operate a facility shall contain a narrative description of the general operating plan for the proposed facility, including the origin, composition and weight or volume of solid waste that is proposed

to be received at the facility, the process to be used at the facility, the daily operational methodology of the proposed process, the loading rate, the proposed capacity of the facility and the expected life of the facility.

b. An application shall contain a plan for an alternative waste handling or disposal system during periods when the proposed facility is not in operation, including procedures to be followed in case of equipment breakdown. Procedures may include the use of standby equipment, extension of operating hours and contractual agreements for diversion of waste to other facilities.

c. An application shall contain a plan for hiring and training equipment operators and other personnel concerning the operation and approved design of the facility.

d. An application shall contain a plan for assuring that solid waste received at the facility is not hazardous waste as defined by state law, as it may be amended.

e. An application shall contain the proposed operating hours of the proposed facility.

f. The application shall contain complete information on transportation modes of assembling garbage at the facility which said modes shall not be changed unless approved by the council.

(7) An application shall contain a topographic map of the proposed licensed area and adjacent area, including necessary narrative descriptions, which shows the following:

a. Boundaries and names of present owners of record of land, both surface and subsurface, and including easements, rights-of-way and other property interests, for the proposed licensed area and adjacent area; the boundaries of the land within the proposed licensed area; and a description of title, deed or usage restrictions affecting the proposed licensed area.

b. The boundaries of the land to be affected over the estimated total life of the proposed facility.

c. The location and name of surface water bodies, such as springs, streams, lakes, ponds, wetlands, construction or natural drains and irrigation ditches that are located on the proposed licensed area and adjacent area.

d. The location and name of public and private water supplies that are located on the proposed licensed area and adjacent area.

e. The location of rights-of-way for high-tension power lines, pipelines, railroads and public and private roads within 300 feet of the proposed facility.

f. The location of buildings currently in use by a person within 2,500 feet of the proposed facility.

g. The anticipated location of water quality monitoring points.

h. The boundaries of land within the proposed licensed area or adjacent area identified as areas where facilities are prohibited.

i. The municipalities in which the licensed area is proposed to be located.

j. The location of the 100-year floodplain boundaries.

k. The location of access roads to and within the proposed licensed area, including slopes, grades and lengths of the roads.

l. The location of barriers, fences and similar facilities.

m. The water diversion, collection, conveyance, erosion and sedimentation control, treatment, storage and discharge facilities.

n. The solid waste storage or loading areas.

o. The location and use of buildings and related facilities which will be used in the operation.

p. Maps, aerial photographs; location of scales and weigh stations; benchmark; access roads with load limits.

1. The location of scales and weigh stations to be used in the operation.

2. An application shall also contain a United States Department of Agriculture Soil Conservation Service soils map, for aerial photographs where current soils maps are unavailable, for the proposed licensed area and adjacent area showing the side boundaries and soil types.

3. The applicant shall also show the location of a permanent benchmark for horizontal and vertical control.

(8) The application shall contain designs, cross sections and specifications for access roads, including load limits.

(9) Management of surface water and erosion control.

a. The applicant shall submit a plan to manage surface water and control erosion during the phases of construction and operation on the permit area. The plan shall be based on the applicable state and federal requirements. Calculations indicating water quantities shall be based on the 24-hour precipitation event in inches to be expected once in 25 years.

b. The plan shall include fully dimensioned diversion ditches, indicating length, gradient and cross section for configuration by reach and capacities for ditch volume by reach. Calculations which are necessary to support design and siting shall be included in the plan.

c. The application shall also contain a plan for the collection, disposal or treatment of rinse water and leachate from the facility.

d. The provisions of this subsection (9) shall not be applicable to the extent such requirements are complied with under the city's erosion control ordinance.

(10) Monitoring plans.

a. The applicant shall submit a groundwater monitoring plan to detect degradation or pollution of groundwater from the facility.

b. The applicant shall submit a soil monitoring plan, capable of detecting soil contamination from the facility.

(11) The application shall be accompanied by a check for $500.00 payable to the city as an investigation fee.

(Code 1980, § 4-3-34; Ord. No. 93-221, § 4, 9-14-1993)

Sec. 12-21-5. Investigation, approval and issuance of license.

(a) Upon receipt of an application for a solid waste facility license, as provided for herein, the city clerk shall furnish a copy of such application to the director of planning, engineering, and permits, the director of the department of public works, and the city attorney for their investigations.

(b) Appropriate city departments shall investigate and report to the city clerk within 60 days of receipt of the application whether the proposed or existing solid waste facility confirms to the requirements of the building code, zoning code, solid waste management plan and other applicable codes and ordinances of the city and laws of

the state and the United States. The city attorney shall report on the civil and criminal history of persons named in the application.

(c) Upon receipt of these reports the city clerk shall submit the application together with such reports to the council. The council shall set a public hearing on such application to be held within 42 days of receipt thereof. The city clerk shall notify the applicant of the time and place of said hearing, and the applicant shall thereupon cause publication of such hearing and the purpose thereof in a newspaper of general circulation at least 14 days prior to the hearing.

(d) At such public hearing or any adjournment thereof, the council shall, after hearing any testimony and considering any evidence offered by any concerned person, their counsel, or representative, vote to approve or deny the application.
(Code 1980, § 4-3-35; Ord. No. 93-221, § 5, 9-14-1993)

Sec. 12-21-6. License not transferable.

No license issued under this chapter shall be transferred or assigned or used by any other person than the one to whom it was issued, and no solid waste facility license shall be used at any location other than the one described in the application upon which it was issued.
(Code 1980, § 4-3-36; Ord. No. 93-221, § 6, 9-14-1993)

Sec. 12-21-7. General operating requirements and limitations.

In addition to any other provision or provisions of this chapter, the following general operating requirements shall apply to all solid waste facilities:

(1) The license issued pursuant to this chapter shall be plainly and conspicuously displayed on the business premises.

(2) The solid waste facility shall comply with the solid waste management plans adopted by the city and the state.

(3) No water shall be allowed to stand in any place on the premises in such manner as to afford a breeding place for mosquitoes or other insects.

(4) The licensee shall permit at any time during business hours inspection of the premises by the director planning, engineering, and permits, the director of the department of public works or their designees.

(5) No solid waste facility shall be allowed to become a nuisance, nor shall it be operated in such a manner to become injurious to the health, safety or welfare of the community or nearby residents.

(6) The solid waste shall not be burned on the premises or in any incinerator not meeting the requirements of the building code, the fire prevention codes, and other applicable ordinances, laws and regulations.

(7) Except for the areas that were operating prior to September 14, 1993, no transfer facility or commercial solid waste facility may be operated:

a. In the 100-year floodplain of waters in the city, unless the city council approves in the license a method of protecting the facility from a 100-year flood.

b. In or within 300 feet of an important wetland.

c. Within 1,000 feet measured horizontally from an occupied dwelling, an operating restaurant, a school, a church, or hospital, unless the current occupant and owner has provided a written waiver consenting to the facility being closer than 1,000 feet. The waiver shall be knowingly made and separate from a lease or deed unless the lease or deed contains an explicit waiver from the current owner.

d. Within 100 feet of a perennial stream.

e. Within 50 feet of a property line unless the operator demonstrates that actual processing of waste is not occurring within that distance.

(8) Barrier required; maintained.

a. A gate or other barrier shall be maintained at potential vehicular access points to block unauthorized access to the site when an attendant is not on duty.

b. The operator shall construct and maintain a fence or other suitable barrier around the site sufficient to prevent unauthorized access.

(9) Access road.

a. An access road shall be designed, constructed and maintained to prevent erosion to the maximum extent possible and to prevent contributions of sediment to streams or runoff outside the site.

b. An access road shall have a drainage system that is compatible with the natural drainage system, structurally stable and which will pass safely the peak flow from a 25-year, 24-hour precipitation event. The drainage system shall include sloped or crowned road surfaces, cross drains or culverts, stabilized ditches, erosion-resistant surfacing, sediment traps and other appropriate sediment control measures.

c. An access road shall be paved or surfaced with asphalt, gravel, cinders or other equivalent material. The maximum sustained grade of an access road may not exceed 12 percent.

d. An access road negotiable by loaded collection vehicles shall be provided from the entrance gate of the area to unloading areas, treatment facilities or impoundments.

e. All roads shall be constructed on a base that is capable of withstanding anticipated loads.

f. Disturbed areas adjacent to a road shall be vegetated or otherwise stabilized to prevent erosion.

(10) Solid waste delivered to the facility shall be accurately weighed or otherwise accurately measured prior to unloading.

(11) Enclosed building required for loading, unloading, storage and compaction; maintenance of equipment.

a. Loading, unloading, storage, compaction and related activities shall be conducted in an enclosed building, unless otherwise approved by the city in the license.

b. The operator shall maintain on the site equipment necessary for operation of the facility under the license. The equipment shall be maintained in an operable condition.

c. Standby equipment shall be located on the site or at a place where it can be available within 24 hours. If a breakdown of the operator's equipment occurs, the operator shall utilize standby equipment as necessary to comply with the act, the environmental protection acts, this article and its license conditions.

d. Equipment shall be operated and maintained to prevent solid waste from being unintentionally removed from the intended area.

e. Equipment used to handle putrescible solid waste with which operations personnel are in direct contact shall be cleaned at the end of each working date or every 24 hours. Other equipment shall be cleaned at frequencies specified in the license based on scheduled or emergency maintenance periods.

(12) Approach and unloading areas.

a. The approach and unloading areas shall be adequate in size and design to facilitate the rapid unloading of solid waste from the collection vehicles and the unobstructed maneuvering of the vehicles and other equipment.

b. The loading areas and unloading areas shall be constructed of impervious material which is capable of being cleaned by high-pressure water spray and shall be equipped with drains or sumps connected to a sanitary sewer system or treatment facility to facilitate the removal of water. Such areas shall be cleaned daily at the end of the working period.

c. If the facility has an unloading pit, the facility shall have in place truck wheel curbs and tie-downs that are sufficient to prevent trucks from backing into the pit or falling into the pit while unloading.

d. An attendant or clearly marked signs shall direct vehicles to the unloading area.

e. The operator shall ensure that collection vehicles unload waste promptly in unloading areas.

f. Solid waste shall be confined to the unloading area and the approved storage areas.

(13) Cleanliness requirements.

a. Areas within the building shall be kept clean.

b. The operator may not allow putrescible waste to remain at the transfer facility at the end of the day or for more than 12 hours.

c. Plumbing shall be properly maintained, and the floors shall be well drained.

d. Macerators, hammer mills and grinders shall be cleanable and shall be equipped with drains that connect to a sanitary sewer system or approved treatment facility.

e. Provision shall be made for the routine operational maintenance of the facility.

(14) Air pollution control measures; open burning prohibited.

a. The operator shall implement fugitive dust control measures, and shall otherwise prevent and control air pollution.

b. No person may cause or allow open burning at the facility.

(15) Attraction, harboraging of pests, etc., conditions that create safety hazards, noise and other public nuisances prohibited.

a. The operator may not cause or allow the attraction, harborage or breeding of pests, rats, insects or other uncontrolled vermin.

b. The operator may not cause or allow conditions not otherwise prohibited by this subchapter that are harmful to the environment or public health, or which create safety hazards, odors, noise, unsightliness or other public nuisances.

(16) Salvaging of materials permitted in certain areas only.

a. Salvaging of materials may not be conducted unless salvaging is controlled by the operator to prevent interference with prompt and sanitary operations and is conducted to prevent a health hazard or nuisance.

b. Salvaged materials shall be promptly removed from the unloading area and either stored in an approved area or removed.

(17) Litter control.

a. The operator may not allow litter to be blown or otherwise deposited offsite.

b. Fences or other barriers sufficient to control blowing litter shall be located in the area immediately downwind from the unloading area, unless operations are conducted within an enclosed building or the solid waste being transferred cannot create blowing litter.

c. Litter shall be collected daily from fences, roadways, tree line barriers and other barriers and disposed of.

(18) Soil, surface water and groundwater contamination prohibited; exception with license.

a. The operator may not cause or allow a point or non-point-source discharge of pollution from or on the facility to surface waters of the city.

b. A transfer facility shall be operated to prevent and control water pollution. An operator shall operate and maintain necessary surface water and groundwater treatment facilities until surface water or groundwater pollution from or on the facility has been permanently abated.

c. The operator may not cause or allow a discharge of a contaminant into groundwater except as authorized by a license from the department.

d. The operator may not cause contamination of soil on or off the site.

(19) The operator shall manage surface water and control erosion and sedimentation to accomplish the following:

a. Divert surface water away from the storage area with measures and structures necessary to handle surface water flows based on a 25-year, 24-hour precipitation event, and supported by written calculations.

b. Prevent erosion to the maximum extent possible, including where possible, using revegetation.

(20) The operator shall conduct soil and groundwater monitoring. The monitoring shall continue for the period of the license validity and one year thereafter.

(21) A facility shall be designed, constructed, maintained and operated to prevent and minimize the potential for fire, explosion or release of solid waste constituents to the air, water or soil of the city that could threaten public health or safety, public welfare or the environment.

(22) Emergency equipment required; exception.

a. Except as provided in subsection (22)b of this section, a person operating a facility shall have available in proper working condition the following equipment at the immediate operating area of the facility:

1. An internal communications or alarm system capable of providing immediate emergency instruction by voice or signal to facility personnel.

2. A communications system capable of summoning emergency assistance from local police, fire departments, emergency medical services and from state and local emergency response agencies.

3. Portable fire extinguishers, fire control equipment, spill control equipment, decontamination equipment and self-contained breathing apparatus. For fire control equipment requiring water, the facility shall have a water supply of adequate quantity and pressure to supply the equipment.

b. The council may waive or modify the requirements in subsection (22)a of this section if the operator demonstrates to the council's satisfaction that the requirements are not necessary to protect public health and safety, public welfare and the environment.

c. Equipment and material required by this section shall be tested and maintained so that it is operable in time of emergency.

d. Adequate space shall be maintained to allow the unobstructed movement

of emergency personnel and equipment to operating areas of the facility.

(23) Implementation of approved contingency plan.

a. The operator of a facility shall immediately implement the applicable provision of the approved contingency plan whenever there is an emergency. For the purposes of this section, the term "emergency" includes a fire, spill or other hazard that threatens public health and safety, public welfare or the environment or personal injury.

b. During an emergency, the operator shall:

1. Assess actual or potential hazards to public health and safety, public welfare and the environment that are occurring or may occur.

2. Ensure that fires, spills or other hazards do not occur, reoccur or spread to other solid waste at the facility.

3. Immediately telephone the fire department and emergency management agency, and report the following information:

(i) Name of the person reporting the incident and telephone number where that person can be reached.

(ii) Name, address and permit number of the facility.

(iii) Date, time and location of the emergency.

(iv) A brief description of the nature of the emergency, the type and quantity of the solid waste involved and what dangers to public health and safety, public welfare and the environment exists.

(v) The nature of injuries.

(vi) Parts of the contingency plan being implemented to alleviate the emergency.

c. After an emergency, the operator of the facility shall:

1. Clean up the area affected by the emergency and treat, store or dispose of recovered solid waste, contaminated soil, contaminated water or dispose of recovered solid waste, contaminated soil, contaminated water or other material in a manner required by law or regulation or in default thereof in a safe and effective manner.

2. Prevent processing or storage of solid waste in the area affected by the emergency until the operator has cleaned up the area, and the city has inspected and approved the cleanup.

(24) Daily operations record.

a. A person that operates a facility shall make and maintain an operational record for each day that waste is received, processed or transported off-site.

b. The daily operational record shall include the following:

1. The type and weight or volume of the solid waste received.

2. The city and county in which the solid waste was originated, or if the waste originated outside of Alabama, the state.

3. The transporters of the solid waste.

4. The destination of the solid waste, including the facility name, the county and state in which it is located, and the type and weight or volume of waste transported.

5. The type and weight or volume of materials which are recycled.

6. A description of waste handling problems or emergency disposal activities.

7. A record of deviations from the approved design or operational plans.

8. A report of actions taken to correct violations of the environmental protection acts and this chapter.

c. The operator shall maintain accurate operational records sufficient to determine whether waste is being stored in accordance with all applicable laws and regulations.

(25) Annual operations report.

a. A person that operates a facility shall submit to the city council an annual operation report on or before June 30 of each year.

b. The annual operating report shall include the following:

1. The weight or volume of each type of solid waste received.

2. The city and county in which the solid waste originated, or if the waste originated outside of the state.

3. The transporters of the solid waste.

4. The weight or volume of each material recycled or marketed.

5. The destination of the solid waste, including the facility name, the county and state in which it is located and the type and weight or volume of waste transported.

6. A current certificate of insurance evidencing continuous coverage for public liability insurance.

7. Changes in the previous year concerning the information required for an original application for license. The report shall state if no changes have occurred.

8. A change in the ownership of the land upon which the facility is located or a change in a lease agreement for the use of the land that may affect or alter the operator's rights upon the lands.

9. A description of emergency disposal areas or methods approved by the city and used by the operator which are not described in the approved design and operational plan or permit for the facility.

10. An analysis of waste received at the facility in the previous year.

11. The annual operation report shall be accompanied by a nonrefundable annual permit administration fee of $500.00 in the form of a check payable to the city.

12. Available alternate permitted solid waste processing or disposal facility.

(i) An alternate permitted solid waste processing or disposal facility shall be available for use if the facility is shut down for a period that extends beyond the permitted storage capacity of the facility. The city may waive this requirement if the facility has a second processing line that can be used if the first processing line is shut down or an approved plan for temporary shutdown.

(ii) If the transfer station is out-of-service for a longer period than the storage ca-

pacity of the site will allow, solid waste shall be removed from the site.

13. Removal of solid waste and structures upon cessation of processing operations.

    (i) Upon cessation of processing operations at the facility, the operator shall immediately remove solid waste and structures or other materials which contain or are contaminated with solid waste, and shall provide for the processing or disposal of the waste or material in accordance with the environmental protection acts, regulations and this chapter.

    (ii) An operator required to conduct soil monitoring may discontinue soil monitoring upon cessation of processing operations and removal of all waste.

    (iii) An operator required to conduct groundwater monitoring may discontinue groundwater monitoring after cessation of processing operations and cleanup only upon written approval by the city. In deciding whether to allow discontinuance of monitoring, the city will consider the operation history of the facility, the likelihood that groundwater degradation will manifest itself in the future and other relevant factors.

(Code 1980, § 4-3-37; Ord. No. 93-221, § 7, 9-14-1993)

Sec. 12-21-8. Grant or denial, revocation, suspension.

The council shall revoke, suspend or deny the license required hereunder if the city attorney notifies the council that:

(1) Any individual or business concern required to be listed in the application has been convicted of a felony under any federal or state statute relating to environmental protection or the protection of public health, safety or welfare.

(2) Any individual or business concern required to be listed in the application has been convicted of any felony under any other federal or state statute, and the applicant has failed to provide satisfactory proof that all restitution or reparations have been made to the victim thereof.

(3) The applicant or licensee, or any partner, associate, officer, key employee, parent corporation or subsidiary corporation of the applicant or licensee, has failed or continues to fail to comply with the provisions of the Hazardous Wastes Management and Minimization Act (Code of Ala. 1975, § 22-30-1 et seq.), the Alabama Water Pollution Control Act (Code of Ala. 1975, § 22-22-1 et seq.), the Alabama Safe Drinking Act of 1977 (Code of Ala. 1975, § 22-23-30 et seq.), the Solid Wastes Disposal Act (Code of Ala. 1975, § 22-27-1 et seq.), the Alabama Air Pollution Control Act of 1971 (Code of Ala. 1975, § 22-28-1 et seq.), the Alabama Underground Storage Tank and Wellhead Protection Act (Code of Ala. 1975, § 22-36-1 et seq.), or as those statutes may from time to time be amended; or with the provisions of any federal or state statute relating to environmental protection or to the protection of the public health, safety or welfare; or with any rule or regulation of the United States Environmental Protection Agency or of the department; or with any order of the U.S. Environmental Protection Agency or the department; or with any condition

of any permit issued by the U.S. Environmental Protection Agency or the department.

(4) In addition to any other provision of this chapter, any license hereunder may be revoked or suspended by the council if it is determined after due investigation that:

a. The solid waste facility has failed to comply with the provisions of this chapter or any provision of law or regulation applicable to the operation of a solid waste facility.

b. The licensee has obtained the license through any fraud or misstatement or the application containing any fraud or misstatement.

c. The solid waste facility is being conducted in a manner detrimental to the health, safety or general welfare of the public, constitutes a nuisance or is being operated in an unlawful manner.

d. The solid waste facility is no longer being operated.

(5) If after investigation it is determined that a solid waste facility license is subject to suspension or revocation, a hearing shall be set and the city clerk shall notify the licensee of such hearing. Such notice shall set out the offense or violation giving rise to the suspension or revocation, and the date, time and location of such hearing. Such notice shall be sent by certified mail to the address of record of the licensee or by personal delivery at least 14 days prior to the scheduled hearing.

(6) At such public hearing or any adjournment thereof, the council shall, after hearing any testimony and considering any evidence offered by any concerned person, their counsel or representative, vote to revoke, suspend or continue the solid waste facility license.

(7) Any solid waste facility which continues to operate after revocation of its license or during a period of suspension of its license shall be in violation of this chapter and deemed a public nuisance.

(8) Any person as owner, operator or manager of a solid waste facility who operates a solid waste facility after a revocation of the facility's license or during a period of suspension shall be in violation of this chapter.

(9) Any individual or business concern required to be listed in the application may present evidence of full rehabilitation or pardon from any effects of civil or criminal violations which shall be considered by the city council in possible mitigation.

(Code 1980, § 4-3-38; Ord. No. 93-221, § 8, 9-14-1993)

Sec. 12-21-9. Term.

Licenses shall be valid for a term of five years unless revoked or suspended as hereinafter described. No less than six months before the expiration of a license, an application for renewal, meeting the requirements of a new license, shall be filed.

(Code 1980, § 4-3-39; Ord. No. 93-221, § 9, 9-14-1993)

Sec. 12-21-10. Present existing solid waste facilities.

(a) All solid waste facilities shall apply for the license required herein.

(b) Any solid waste facility legally operating as of June 9, 1993, shall be required to apply for a license as provided hereinabove, but such facility shall be allowed to continue in operation during the time necessary to prepare, file and review such license application but not later than March 31, 1997.

(Code 1980, § 4-3-40; Ord. No. 93-221, § 10, 9-14-1993; Ord. No. 95-54, 3-21-1995; Ord. No. 95-119, 6-27-1995; Ord. No. 95-169, 10-3-1995; Ord. No. 96-6, 1-2-1996; Ord. No. 96-89, 4-9-1996; Ord. No. 96-173, 10-1-1996)

Sec. 12-21-11. Other laws and regulations.

Any laws or regulations enacted, existing or approved by the United States or the state shall supersede any conflicting requirement in this chapter unless the requirements of this chapter are more stringent, in which case, this chapter shall apply, provided that, if required by law, such United States or state laws or regulations shall supersede the applicable requirements of this chapter and the portion of this chapter that remains shall continue effective.
(Code 1980, § 4-3-42; Ord. No. 93-221, § 12, 9-14-1993)

Sec. 12-21-12. Appeals.

In the event that any provision hereof shall be unnecessary or illegal, or constitute an undue burden, applicant may appeal said provision to the city council, which, if it finds, after consideration of all the evidence, that the public health, safety, or welfare is not substantially damaged, may grant said applicant a partial or total waiver of the provision which is the subject of the appeal.
(Code 1980, § 4-3-43; Ord. No. 93-221, § 13, 9-14-1993)

CHAPTER 22. SHARED MICROMOBILITY DEVICE SYSTEMS

Sec. 12-22-1. Purpose.

The purpose of this chapter is to establish the permitting process, and regulate the operation of shared micromobility systems in the City of Birmingham, Alabama in accordance with Code of Ala. 1975, § 32-19-2, as created by Act No. 2019-437.
(Ord. No. 20-24, § 2, 2-12-2020)

Sec. 12-22-2. Applicability.

The provisions of this chapter shall apply to shared micromobility device systems. For the purpose of this chapter, an applicant, a managing agent or system operator, and/or owner of a shared micromobility device system shall be jointly and severally liable for complying with the provisions of this chapter and this chapter, any other applicable ordinance and the system permit granted for the operation of the shared micromobility device system.
(Ord. No. 20-24, § 2, 2-12-2020)

Sec. 12-22-3. Definitions.

For the purpose of this chapter, the following words shall have the meanings indicated:

Bicycle shall have the meaning ascribed by Code of Ala. 1975, § 32-1-1.1.

Corral means shared micromobility device parking facilities that can accommodate a group of shared micromobility devices. A corral is typically installed on-street in lieu of a single vehicle parking space.

Customer or *user* means the individual who rents or uses a shared micromobility device provided by a system operator.

Director means the director of the City of Birmingham Department of Transportation, or any successor department.

Electric bicycle, also known as electric-assist or e-bike, means a bicycle equipped with a battery and an electric motor that is activated by pedaling and deactivates when not in use.

Geofencing means the use of GPS or RFID technology to create a virtual geographic boundary, enabling software to trigger a response when a mobile device enters or leaves a particular area.

Rack means a stationary fixture designed for securely attaching bicycles or shared micromobility devices when they are not in use.

Rebalancing means the process by which shared micromobility devices are redistributed to ensure availability throughout a service area and to prevent excessive buildup of shared micromobility devices at locations throughout the city by moving shared micromobility devices from an area of low demand to an area of high demand.

Service area means the geographical area within the City of Birmingham, as defined by the system permit, where the shared micromobility device system is authorized to offer service for its users/customers.

Shared micromobility device shall have the meaning ascribed by Code of Ala. 1975, § 32-1-1.1.

Shared micromobility device system shall have the meaning ascribed by Code of Ala. 1975, § 32-1-1.1.

System operator means any entity that owns, operates, redistributes, or rebalances shared micromobility devices and services a shared micromobility device system.

System permit means a franchise granted by the city to a system operator in order to operate a shared micromobility device system in the public rights-of-way or on permitted public property.
(Ord. No. 20-24, § 2, 2-12-2020)

Sec. 12-22-4. Shared micromobility device system permitting.

(1) *Unlawful to operate without authorization:* It shall be unlawful for a system operator to provide or operate a shared micromobility device system within the city without first obtaining a system permit which has been authorized as provided in this chapter, and any required business license.

(2) *Authorization:* A system operator shall apply for a system permit between April 1 and June 30 of any year by submitting to the city a verified application to provide a shared micromobility device system in the city limits and describing the proposed service area. The applicant must be the person who will own, control, or operate the proposed shared micromobility device system. The application, the form of which shall be approved by the director, must be accompanied by proof that a $500.00 application fee has been paid to the finance department and include these items:

(a) The form of business of the applicant and, if applicable, a copy of the documents establishing the business and the name and address of each person with an ownership interest in the business;

(b) Each address of the fixed facilities to be used by the business in the operation and the address of the applicant's corporate headquarters;

(c) Images and description of the shared micromobility devices and mobile application;

(d) Size of fleet at launch, and any planned fleet expansions during the system permit period;

(e) Service area at launch, including any planned expansions during the system permit period;

(f) A written plan for educating users on proper shared micromobility device operation and parking;

(g) A written plan for providing equitable access in neighborhoods and to communities and users that are underserved by mobility and transportation options, as described in section 12-22-6(d) of this chapter;

(h) A routine maintenance plan schedule and shared micromobility device charging plan for the electric batteries;

(i) The applicant's proposed pricing structure;

(j) The applicant's proposed rebalancing plan;

(k) A statement that neither the applicant, nor any entity affiliated with the applicant, including but not limited to parent companies or subsidiaries, has been subject to the revocation or termination of any permit, franchise, agreement or any other authorization to operate a micromobility or bike-share system in any other municipality or county in the United States within two years prior to the date of application or, if so, an explanation of the circumstances of such revocation or termination;

(l) A statement that neither the applicant nor any entity affiliated with the applicant, including but not limited to parent companies or subsidiaries, within two years prior to the date of application, has participated in any deployment or

transportation launches of micromobility or bike-share systems without proper authorization of the appropriate governing authority or, if so, an explanation of the circumstances thereof;

(m) A statement that the applicant has never terminated or cancelled a permit, franchise, agreement or any other authorization to operate a micromobility or bike-share system prior to the expiration thereof;

(n) A statement that the applicant has at least three years of experience operating micromobility or bike-share systems including fleet sizes of at least 250 devices in a United States municipality or county;

(o) Any other plans, documentation or information specified in this chapter;

(p) The verified signature of the applicant;

(q) Any other information deemed necessary by the director.

Any changes to the information provided in the system permit application must be reported to the director, in the manner prescribed by the director, within ten days following the change. Any change in ownership must be reported to the department of finance tax and license division within ten days following the change. Material changes in ownership and/or operations may require additional approvals, including a new application.

(3) Granting of an initial system permit shall be subject to the approval of the city council by passage of an ordinance.

(4) All ordinances or notices of the substance of an ordinance granting a franchise shall be published at the expense of the system operator to whom the franchise is granted.

(5) An initial system permit shall be valid from the date of issuance through the following June 30. Thereafter, a system permit will be effective for a period of one year, from July 1 through June 30 of the following year. System operators may request up to two consecutive annual administrative renewals of the system permit by the director by submitting a renewal application to the director or his/her designee with a nonrefundable permit renewal fee of $500.00 at least 30 calendar days before the expiration date of the system permit. The renewal application shall be on a form prescribed by the director. System operators are not entitled to and have no automatic right to renewal of their system permit, and must comply with any and all ordinances, regulations or policies that are duly and lawfully adopted by the City of Birmingham after a system permit is approved.

(6) Following two consecutive annual administrative system permit renewals by the director as provided in subsection (5) above, a system operator shall be required to re-apply for and obtain approval of a system permit in accordance with the requirements of subsections (2) through (4) above for an initial system permit.

(7) System operator will pay an annual program administrative fee of $20.00 per shared micromobility device to the city to cover costs associated with management and oversight of the system operator. Payment is required upon approval of a system permit and prior to any shared micromobility devices being made available for use within the city pursuant to an initial system permit and at the time of a renewal application for each year thereafter. In the event that the city increases the number of shared micromobility devices the system operator is authorized to operate within the city, the system operator will provide payment for the fleet increase prior to making additional shared micromobility devices available for use within the city.

(8) A system operator shall provide the city at least 14 days' prior written notice before ceasing operations.

(9) System operators must, at a minimum, comply with the requirements of section 12-22-6 of this chapter.
(Ord. No. 20-24, § 2, 2-12-2020)

Sec. 12-22-5. Suspension or revocation of system permit.

(a) *Suspension.*

(1) The director may suspend a system permit for up to 90 days if he or she determines

that the system operator failed to comply with a request to remove a shared micromobility device or a request to rebalance shared micromobility devices issued by the city, within the time specified in the director's request. Written notice of suspension shall be made by the director to the system operator.

(2) Suspension of a system permit does not affect the expiration date of the system permit.

(3) An appeal to the city council from a suspension of more than ten days may be made by filing a letter with the city clerk requesting a public hearing within three days of receiving the suspension order. The hearing shall be set for the next council meeting following receipt of the appeal letter.

(b) *Revocation.* The city council shall revoke a system permit, after due notice and a hearing, if the council determines that the system operator has:

(1) Made a false statement as to a material matter in the application concerning the system permit;

(2) Failed to maintain the insurance required by this chapter;

(3) Failed to maintain the performance bond or irrevocable letter of credit required by this chapter;

(4) Operated shared micromobility devices that were not authorized by the system permit;

(5) Failed to pay a fee required by this chapter;

(6) Violated any of the requirements of this chapter or any of the rules and regulations as established or approved by the city council;

(7) Operated the shared micromobility device system in such a manner as to be detrimental to the public health, safety or welfare or so as to constitute a nuisance;

(8) Persisted in permitting system operator's shared micromobility devices to be operated in violation of any law or any section of this chapter, after notice of, and failure to correct, such illegal operation;

(9) Allowed any of system operator's equipment to become damaged, deteriorated or unclean to the extent that they are unsatisfactory for public use; or

(10) Failed to comply with applicable federal, state or local laws, ordinances or regulations.

(c) *Fleet reduction.* A system operator is subject to a fleet size reduction or total permit revocation, after notice to the system operator and a public hearing conducted by the city council, should the following occur:

(1) If violations of the regulations set forth in this chapter are not addressed in a timely manner; or

(2) Ten unaddressed violations of the regulations set forth by this chapter within a 30-day period; or

(3) Knowingly submitting inaccurate data with no corrective action by the system operator.

(d) In the event of a reduction or revocation, the city clerk shall provide written notice of the reduction or revocation via U.S. mail, informing the system operator of the reduction or system permit revocation.

(e) After revocation of a system permit, a system operator may not be eligible for another system permit for a period of at least six months, but not to exceed two years, depending on the severity of the violation resulting in the revocation.

(f) Any person whose application for a system permit, or renewal of a system permit, is denied, or whose system permit has been revoked or whose fleet has been reduced, may file an appeal as permitted by law.
(Ord. No. 20-24, § 2, 2-12-2020)

Sec. 12-22-6. Shared micromobility device system requirements.

(a) *General regulations pertaining to shared micromobility devices.*

(1) All bicycles utilized in a shared micromobility device system shall conform with the standards set forth in Title 16, Code of Federal Regulations, Chapter II, Subchapter C, Part 1512 - Requirements for Bicycles, the safety standards outlined in ISO 43.150 - Cycles, subsection 4210, and Alabama law, including but not limited to Code of Ala. 1975, § 32-5A-265.

(2) All electric bicycles utilized in a shared micromobility device system shall conform to the standards and equipment requirements set forth in the Code of Alabama for Bicycles and Electric Bicycles, Consumer Product Safety Commission (CPSC) Public Law 107-319 (low speed electric bicycles) and with this chapter or any other applicable city ordinance.

(3) All scooters utilized in a shared micromobility device system shall conform with the standards set forth in Code of Alabama, including but not limited to Code of Ala. 1975, § 32-1-1.1(60), as amended by Act No. 2019-437, Consumer Product Safety Commission (CPSC) Public Law 107-319 (low speed electric bicycles) and with this chapter or any other applicable city ordinance.

(4) The director is authorized to adopt safety standards to address other types of shared micromobility devices, including but not limited to non-electric types of powered shared micromobility devices, if he or she chooses to allow them.

(5) Unless otherwise authorized, system operators shall not allow a shared micromobility device to be operated in areas outside of the City of Birmingham public right-of-way.

(6) All shared micromobility devices utilized shall comply with the lighting standards set forth in the Code of Alabama, and shall be equipped with reflectors, lights, and reflective markings. Shared micromobility devices shall be equipped with a brake, a horn or bell or other such signaling device by which to audibly warn pedestrians, and, for those units that operate at nighttime, a front light that emits white light and a red light and reflector at the rear of the unit.

(7) All shared micromobility devices utilized shall include easily accessible and identifiable language that clearly directs users to customer support mechanisms, including but not limited to a customer service phone number, websites, and applications.

(8) Scooters and electric bicycles must have a top electric motor-powered speed of not more than 20 miles per hour on a paved level surface.

(9) Shared micromobility devices are to be operated at a user's own risk or the risk of the system operator, and no representation is being made by the city as to the condition of any street.

(10) All shared micromobility devices utilized shall include a marking legible and clearly visible to the public indicating that the vehicle is a shared micromobility device and identifying the system operator that was granted the system permit.

(11) All shared micromobility devices utilized shall have displayed thereon an easily accessible and legible unique identification number. The contact information of the system operator shall also be displayed on the shared micromobility device and easily accessible.

(12) All shared micromobility devices utilized shall be equipped with GPS or a comparable technology that can report the location of a unit at any time for the purposes of use, recovery, repair, data collection, and incident investigation.

(13) Shared micromobility devices shall employ tamper-resistant security hardware.

(14) A shared micromobility device shall not display third-party advertising.

(15) Shared micromobility devices must be high quality and sturdily built to withstand the effects of weather and constant use for five years.

(16) Shared micromobility devices must be well maintained and in good riding condition.

(17) All shared micromobility devices utilized must include a kickstand or mechanism capable of keeping the shared micromobility devices upright when not in use.

(18) System operators must include release language, consistent with the language below, in its shared micromobility device system's user sign-up process, and each user registered in the shared micromobility device system must affirmatively sign or check a box within the application notating consent to the release:

"For and in consideration of rental and use of the shared micromobility device, rider, for himself or herself and on behalf of rider's heirs, executors, administrators and assigns, forever releases and relinquishes and discharges the City of Birmingham and its elected and appointed officials, officers, employees, agents, contractors, and volunteers (collectively, the "city") from any and all claims, demands, disputes, losses, liabilities, debts, liens, charges, penalties, proceedings, causes of action and damages including for personal injury, wrongful death, property damage."

(19) If the city incurs any costs addressing or abating any violations of this section, or incurs any costs of repair or maintenance of public property, the system operator shall reimburse the city for the costs within 30 days of receiving written notice from the city.

(20) A system operator shall not adversely affect the property of any third parties during the use of city property or the public right-of-way.

(21) A system operator shall educate customers regarding the law applicable to riding, operating, and parking a shared micromobility device. A system operator's mobile application, website and written materials made available for public consumption, must provide information notifying the user that:

a. Users of a shared micromobility device must comply with the rules of the road applicable to bicycles and other vehicles;

b. Shared micromobility devices must be parked legally and properly;

c. Users of a shared micromobility device must yield to pedestrians on sidewalks and designated paths;

d. Use of helmets is strongly encouraged; and

e. Shared micromobility devices may not be ridden on sidewalks.

(22) System operators must acknowledge and agree that the city is not responsible for educating users regarding applicable laws. Neither shall the city be responsible for educating users on how or where to ride or operate a shared micromobility device.

(b) *Parking and right-of-way.*

(1) Use of public sidewalks for parking shared micromobility devices shall comply with state laws and city parking ordinances and must not:

a. Adversely affect traffic upon the streets or sidewalks;

b. Inhibit pedestrian movement;

c. Inhibit the ingress and egress of vehicles parked on- or off-street;

d. Create conditions which are a threat to public safety and security;

e. Obstruct any pedestrian pathway. Shared micromobility devices shall be parked in a manner as to afford the least obstruction to pedestrian traffic and shall in no event cause a

pedestrian pathway to have less than four feet of the pathway clear for pedestrian traffic.

(2) Shared micromobility devices shall not be parked in a way that impedes access to other transportation systems, bus stops or stands, parking spaces or lots, racks, corrals, other shared micromobility device systems or to any other business.

(3) Shared micromobility devices shall not be parked in the following restricted areas:

In the area within or immediately adjacent to:

a. Americans with Disabilities Act (ADA) accommodations including curb ramps, braille signs, railings and signal push buttons;

b. Sidewalk cafes or street patios;

c. Transit zones, including bus stops, shelters, passenger waiting areas, and bus layover and staging zones, except at existing bicycle racks;

d. On-street parking spots;

e. Loading zones;

f. Disabled parking zones or other facilities specifically designated for accessibility by persons with disabilities;

g. Street furniture that requires parking access (e.g., benches, pay stations);

h. Parklets;

i. Business or residential entryways;

j. Driveways;

k. Crosswalks;

l. In any travel lanes, bicycle lanes, crosswalks;

m. Within 15 feet of fire hydrants, drinking fountains, machines or equipment that requires pedestrian access, public art and any fixed regulatory or informational sign.

(4) Shared micromobility devices shall not be parked in a manner that in any way violates Americans with Disabilities Act (ADA) accessibility requirements.

(5) Shared micromobility devices shall always be parked upright.

(6) Geofenced areas may be defined by the system permit, or the city may create geofenced areas where shared micromobility devices either shall not be parked or must be parked. A system operator must have the technology available to operate these requirements upon request.

(7) The city may create designated parking zones in certain areas and install racks or corrals in such parking zones where shared micromobility devices shall be parked. Before the end of each calendar day, a system operator shall remove any of its shared micromobility devices not parked a designated parking zone.

(8) Upon issuance of a system permit, system operator shall pay to the city an annual fee of $100.00 for each such rack or corral installed by the city.

(9) Shared micromobility devices parked so as to obstruct vehicular or pedestrian traffic may be ticketed and/or removed by a law enforcement officer or other duly authorized city personnel and impounded or disposed of as abandoned property or unclaimed and surplus property. The system operator must pay the city a fee of up to $50.00 to obtain the return of each shared micromobility device impounded. The city may charge any unpaid impoundment fees against the system operator's performance bond provided in accordance with section 12-22-8.

(10) Shared micromobility devices that remain in one location, other than designated micromobility parking zones, for more than 72 consecutive hours without moving, may be ticketed and/or removed by a law enforcement officer or other duly authorized city personnel and impounded

or disposed of as abandoned property or unclaimed and surplus property. The system operator must pay the city a fee of up to $50.00 to obtain the return of each shared micromobility device impounded. The city may charge any unpaid impoundment fees against the system operator's performance bond provided in accordance with section 12-22-8.

(11) Bicycles, electric bicycles and scooters utilized by a system operator must have the capability of being locked from use when not in use.

(c) *Maintenance, operations, and fleet size.*

(1) A system operator shall not allow a shared micromobility device to be rented by a minor as defined by Code of Ala. 1975, § 26-1-1. No person shall allow a minor less than 19 years of age to operate a shared micromobility device, provided, however, that a 18-year old minor may operate a shared micromobility device rented by a parent or legal guardian only after such parent or guardian has named the minor and provided written permission for use by the minor to the system operator at the time of the short term rental.

(2) System operators must comply with Code of Ala. 1975, § 32-5A-284.

(3) Shared micromobility devices must only be available to customers at rates that are clearly and understandably communicated to the customer prior to use. Any changes in pricing structure shall be provided to users and to the city in writing at least 14 business days before the changes go into effect.

(4) System operators must provide details on how users can utilize the service without a smartphone.

(5) System operators participating in the shared micromobility device system must rebalance shared micromobility devices daily based on use within the designated service area as defined by the system permit.

(6) Shared micromobility devices that are inoperable/damaged or do not comply with other subsections of this Code must be removed by the system operator within one and one-half hours upon receipt of the complaint between the hours of 7:00 a.m. and 7:00 p.m., seven days per week and within three hours upon receipt of the complaint at all other times. An inoperable or damaged shared micromobility device is one that has non-functioning features (i.e., gear selectors, pedals, bell, lights, etc.) or is missing components (i.e., fenders, grips, chain guards, etc.) as applicable to that vehicle. A system operator whose shared micromobility device is inoperable or damaged or that has non-functioning features, and which is relocated or impounded is subject to all fines and costs set forth in section 12-22-6(b)(9) and (10) of this chapter or as otherwise provided by law. A shared micromobility device removed from the right-of-way in accordance with this subsection must be repaired before it is returned to revenue service.

(7) The system operator shall be capable of remotely disabling the use of a unit should it be reported or found to have a safety, maintenance or other hazardous condition. Shared micromobility devices that are reported as unsafe or non-functional shall be immediately deactivated for rental and removed from operations until sufficiently repaired.

(8) The mayor or any law enforcement officer or other duly authorized city personnel, at his or her discretion and without notice, may remove shared micromobility devices from the streets or rights-of-way if an emergency arises. In such instances, the city will attempt to notify the system operator as soon as reasonably practicable thereafter.

(9) System operators must detail a plan to relocate the shared micromobility devices to a safe, indoor facility within 24 hours in the result of a declared weather event. The plan must detail the amount of time it will take to remove all shared micromobility devices from circulation once a storm warning has been established.

(10) System operators must cooperate with the mayor's office, department of transportation, the department of public works, police department and any other relevant entity to ensure public safety during special events, construction, or emergency conditions. Cooperation to ensure public safety may include removing shared micromobility devices from a specific area, prohibiting riding and/or parking in certain areas, or establishing reduced speed zones. System operators may be invited to participate in special event planning and must be prepared to submit temporary operation plans to the city for special events, as requested.

(11) The city may have removed and stored, any shared micromobility device that is left parked at the same rack or corral location for seven or more consecutive days, if the city has sent the system operator a notification to rebalance the shared micromobility devices.

a. The system operator is responsible for removal and storage costs.

b. Any shared micromobility device that remains unclaimed with the city for 60 days is subject to sale or disposition as unclaimed and surplus property.

(12) The system operator's phone application must clearly direct users to customer support mechanisms, including but not limited to phone numbers or websites.

(13) The system operator must provide a staffed, toll-free customer service line which must provide support 24 hours per day, 365 days per year. The customer service center must be capable of accepting calls/re-routed information from the city's 311 service or its equivalent.

(14) The system operator must provide a direct and local customer service or operations staff contact to the city.

(15) A system operator's initial fleet must be a minimum of 100 shared micromobility devices. System operator's initial fleet may not exceed more than 500 shared micromobility devices. System operators may request an increase to their initial shared micromobility device mobility fleet size following 90 days after initial agreement, each request shall include a rationale and analysis to justify the additional fleet size. Authorization of additional shared micromobility devices is at the discretion of the mayor or the city council to the extent provided in the system permit. The city will review average daily trips for each device, determined by monthly usage. The city may require a portion of the units to be relocated or removed if average usage is determined to be too low.

(16) The city desires that system operators provide a variety of shared mobility devices to accommodate a range of users and serve a variety of transportation needs. Accordingly, a system operator's fleet of shared micromobility devices must maintain a ratio of one bicycle or electric bicycle for every two scooters operated under one brand and available to users under one mobile application. The director is authorized to adopt additional fleet composition requirements to address other types of shared micromobility devices added to a system operator's fleet.

(17) System operators shall ensure that on a regular basis, but no less than monthly, and weekly for heavily used devices, that all shared micromobility devices are inspected, maintained, and replaced as necessary by properly trained, insured staff or contractors. System operator must identify and provide address for a loca-

tion within the city limits which serves as the operations and charging facility. System operator must provide a routine maintenance schedule and shared micromobility device charging plan for the electric batteries as part of the system permit. Shared micromobility devices shall be inspected when removed from routine service, to ensure that all of its components are present and functioning properly.

(18) System operators deploying electric-assist units shall have a program to ensure proper recycling of batteries and disposal of these batteries under universal waste battery disposal standards under Title 40 of the Code of Federal Regulations 28 (CFR) in part 273.

(19) The city council, at its discretion, reserves the right to cap the total number of shared micromobility devices permitted to operate within city limits.

(20) Shared micromobility devices, except bicycles, shall not be enabled for public use between the hours of 11:00 p.m. to 6:00 a.m. The city, at its discretion, may adjust the hours of operation based on local conditions. A system operator must have the ability to implement any modifications to hours of operation within 48 hours of written or emailed notice.

(d) *Equity.*

(1) System operators must provide service in all service areas as identified by the system permit. This includes rebalancing shared micromobility devices as needed in order to maintain a reasonable level of convenience in renting a shared micromobility device.

(2) System operator shall submit with its application to the city plans for allowing use by customers without a bank account or credit card.

(3) System operator shall submit with its application to the city plans for allowing access to shared micromobility devices by customers with disabilities.

(4) System operators shall have a plan to provide equitable access in neighborhoods and to communities and users that are underserved by mobility and transportation options.

(5) Permitted system operators are encouraged to:

a. Provide pricing options that address the needs of low-income residents; and

b. Provide discount programs to low-income individuals.

(e) *Data sharing.*

(1) All permitted system operators shall provide the City of Birmingham with the following data on a monthly basis in PDF and Excel format or through a real time cloud-based data dashboard:

a. Anonymized aggregated data showing the number of shared micromobility devices in circulation;

b. Number of daily, weekly, and monthly riders;

c. Total number of miles traveled by users (daily, monthly, quarterly, annually);

d. Average time each shared micromobility device spends available (not in use);

e. Number of rides per user per day;

f. Number of rides per shared micromobility device per day;

g. Duration of rides per rider per day as well as rides per shared micromobility device;

h. Average duration of ride per day of the week;

i. Anonymized aggregated monthly data of shared micromobility device distribution and GPS-based natural movement in heat map format;

j. Anonymized aggregated monthly data specifics on origin/destination data points of the shared micromobility devices;

k. Summary of fleet numbers lost to the vandalism;

l. Summary of customer comments/ complaints, resolution to, and time it took to resolve each complaint;

m. Summary of repairs per shared micromobility device per month.

(2) All permitted system operators shall provide to the city the following data within 14 days following the end of each calendar quarter, in ESRI ArcGIS .shp format, or other format specified in the system permit:

Field Name	Format	Description
Operator Name	Operator Name	n/a
Type of vehicle	Bike, E-Bike, Scooter	n/a
Trip record number	xxx0001, xxx0002, ...	3-letter Operator acronym +consecutive trio #
Trip duration	MM:SS	n/a
Trip distance	Feet	n/a
Start date	MM, DD, YYYY	n/a
Start time	HH:MM:SS {00:00:00-23:59:59)	n/a
End date	MM,DD,YYYY	n/a
End time	HH:MM:SS (00:00:00—23:59:59)	n/a
Start location	Latitude; Longitude	n/a
End Location	Latitude; Longitude	n/a
ID number	xxxx1, xxxx2 ...	Unique identifier for each Shared Micromobility Device
User Home Zip Code	33301 (example)	Home zip code of User (can be credit card-based)

(3) All permitted system operators shall distribute a quarterly customer satisfaction survey, the summary and raw results of which shall be provided to the city.

(4) All permitted system operators shall provide real-time or semi-real-time shared micromobility device location data via a publicly accessible API in mobility data specification (MDS) format and guidelines. The city reserves the right to post this information through a publicly available portal.

(5) System operator shall keep a record of reported collisions in a format as determined by the director.

(6) System operator shall keep a record of maintenance activities which includes the device or unit identification number and maintenance performed.

(7) System operator shall be responsible for implementing and submitting to the city a privacy policy that safeguards users' information, including personal, financial, and travel information.

(8) System operator shall not require users or customers to grant location services to use the system operator's shared micromobility device system, while the application is not in use. All other private data belonging to the user, including but not limited to contacts, photos and files, shall not be required to be shared in order to use the system operator's shared micromobility device system.

(9) All system operators handling users credit card data should be compliant with payment card industry data security standards (PCI DSS).

(10) System operator shall not require users or customers to share their private data with third parties in order to use the system operator's shared micromobility device system.

(11) System operator may allow users or customers to opt-in (not opt-out) to providing access to their contacts, photos, files,

other private data and third party data sharing only with clear notice to the customer.

(12) System operator shall provide the director with updates to the terms of service, including but not limited to the privacy policy, terms and conditions of use, and the end user license agreement (EULA) published on the system operator's website and app and agrees to provide all customers and the city any changes to the terms of service immediately upon adoption.

(13) On a monthly basis, all system operators shall provide to the city a complaint history report including the number of complaints, the nature of the complaints, and the time it took to remedy the complaint.

(14) On a monthly basis, all system operators shall provide to the director a collision history report including the number, severity, location and time of crash, in a format as determined by the director.

(15) The system operator shall provide the director or a city-authorized third party, with real-time and historical information for their entire fleet through a documented web-based application programming interface (API). The system operator is directly responsible for providing the API key to the director and shall not refer the city to another subsidiary or parent company representative for API access. The API shall deliver data according to the most current city authorized specifications, in a manner that protects individual user privacy.

(16) A system operator found to be submitting incomplete or inaccurate data, such as underrepresenting the total number of units in service, shall have its system permit revoked.

(Ord. No. 20-24, § 2, 2-12-2020)

Sec. 12-22-7. Indemnification and insurance.

(a) As a condition of the grant of a system permit the system operator shall agree to indemnify, hold harmless and defend the City of Birmingham, its representatives, employees, and elected and appointed officials, from and against all liability, claims, damages, suits, losses, and expenses of any kind, including reasonable attorney's fees and costs for appeal, associated with or arising out of, or from the system permit, the use of the streets, rights-of way or city-owned property for the shared micromobility device system operations or arising from any negligent act omission or error of the system operator, owner or, managing agent, its agents or employees or from the failure of the system operator, its agents or employees, to comply with each and every requirement of this chapter or with any other federal, state, or local traffic law, ordinance or any combination of same.

(b) The system operator shall provide and maintain such public liability and property damage insurance to protect the City of Birmingham, its representatives, employees, and elected and appointed officials, from all claims and damage to property or bodily Injury, including death, which may arise from any aspect of the shared micromobility device system or its operation. Such insurance shall be provided from an insurance company with an AM Best rating of not less than "A" and a financial strength rating of not less than "VII," acceptable to the city and shall provide commercial general liability insurance coverage with a limit of no less than $1,000,000.00 for each occurrence and $3,000,000.00 aggregate. Such insurance shall be without prejudice to coverage otherwise existing and shall name as additional insured the city, its officers and employees, and shall further provide that the policy shall not terminate or be canceled prior to the termination of the system permit without 30 days' written notice prior to the termination to the city, filed with the city clerk, at the address shown in the system permit.

(c) If a system operator will utilize motor vehicles in its operations, the business automotive liability insurance must cover owned, hired, and non-owned vehicles, with a combined single limit for bodily injury (including death) and property damage of $500,000.00 per occurrence.

(d) In addition to the requirements of subsection (a), (b) and (c), the system operator shall provider workers' compensation coverage as

required by law and shall provide additional insurance and comply with any revised indemnification provision specified in the system permit.

(e) The system operator shall provide proof of all required insurance prior to receiving a system permit for a share micromobility device system and upon each renewal thereafter.

(f) A system operator may not be self-insured.

(g) Any insurance policy required by this chapter must be on file with the city within 45 days following the issuance of the initial operating system permit, and thereafter within 45 days following the expiration or termination of a previously issued policy.
(Ord. No. 20-24, § 2, 2-12-2020)

Sec. 12-22-8. Performance bond.

Before issuance of a system permit, the system operator shall give the city a performance bond approved as to form by the city attorney. system operator shall have a performance bond of $100.00 per unit. The form of the bond shall also be approved by the city. These funds shall be accessible to the city for future public property repair and maintenance costs that may be incurred, removing and storing units improperly parked, if a company is not present to remove units if its system permit is terminated or to recover damages, fees, fines, or penalties due from the system operator for violation of any provision of this chapter or the system permit. If a system operator increases the size of its fleet, the performance bond shall be adjusted appropriately before deploying additional units.
(Ord. No. 20-24, § 2, 2-12-2020)

Sec. 12-22-9. Use of fees.

All fees paid to the city pursuant to this chapter are intended to be used by the city for costs associated with administration of system permits and the shared micromobility device program, enforcement of this chapter, oversight, construction and maintenance of shared micromobility device parking, active transportation maintenance activities, and/or active transportation street, sidewalk, or bike path improvements or studies.
(Ord. No. 20-24, § 2, 2-12-2020)

Sec. 12-22-10. Penalties.

Any violation of this chapter shall be unlawful and subject to the penalties imposed pursuant to section 1-1-6 of the General Code of the City of Birmingham.
(Ord. No. 20-24, § 2, 2-12-2020)

Sec. 12-22-11. Interpretation.

References in this chapter to any statute, code section or ordinance shall be deemed to refer to such statute, code section or ordinance as currently in effect or as amended from time to time and to any rules or regulations promulgated thereunder.
(Ord. No. 20-24, § 2, 2-12-2020)

Title 13

RESERVED

Title 14

MUNICIPAL FEES

(RESERVED)

THE GENERAL CODE

OF THE CITY OF

BIRMINGHAM, ALABAMA

VOLUME II

Published in 2017 by Order of the City Council
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municode

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OFFICIALS

of the

CITY OF

BIRMINGHAM, ALABAMA

AT THE TIME OF THIS RECODIFICATION

William A. Bell, Sr.
Mayor

Maxine Herring Parker, District 4, Council President
James "Jay" Roberson, Jr., District 7, Council President Pro Tempore
Lashunda Roberts-Scales, District 1
Kimberly S. Rafferty, District 2
Valerie A. Abbott, District 3
Johnathan F. Austin, District 5
Sheila Tyson, District 6
Stephen W. Hoyt, District 8
Marcus Lundy, Jr., District 9
City Council

Thomas Bentley, III
Acting City Attorney

Lee Frazier
City Clerk

PREFACE

This Code constitutes a recodification of the general and permanent ordinances of the City of Birmingham, Alabama.

Source materials used in the preparation of the Code were the 1980 Code, as updated through October 1, 2013, and ordinances subsequently adopted by the city council. The source of each section is included in the history note appearing in parentheses at the end thereof. The absence of such a note indicates that the section is new and was adopted for the first time with the adoption of the Code. By use of the comparative tables appearing in the back of this Code, the reader can locate any section of the 1980 Code, as updated, and any subsequent ordinance included herein.

The various sections within each title have been catchlined to facilitate usage. Notes which tie related sections of the Code together and which refer to relevant state law have been included. A table listing the state law citations and setting forth their location within the Code is included at the back of this Code.

Title, Chapter and Section Numbering System

The title, chapter and section numbering system used in this Code is the same system used in many state and local government codes. Each section number consists of three parts separated by a hyphen. The figure before the first hyphen refers to the title number, the figure after the first hyphen refers to the chapter number, and the figure after the second hyphen refers to the position of the section within the title and chapter. Thus, the first section of chapter 1 in title 1 is numbered 1-1-1, and the second section of chapter 1 in title 1 is 1-1-2. Under this system, each section is identified with its title and chapter, and at the same time new sections can be inserted in their proper place by using decimals for amendments. For example, if new material consisting of one section that would logically come between sections 1-1-1 and 1-1-2 is desired to be added, such new section would be numbered 1-1-1.1. New articles and new divisions may be included in the same way or, in the case of articles, may be placed at the end of the chapter embracing the subject, and, in the case of divisions, may be placed at the end of the article embracing the subject. The next successive number shall be assigned to the new article or division. New titles may be included by using one of the reserved title numbers.

Page Numbering System

The page numbering system used in this Code is a prefix system. The letters to the left of the colon are an abbreviation which represents a certain portion of the volume. The number to the right of the colon represents the number of the page in that portion. In the case of a title of the Code, the number to the left of the colon indicates the number of the title. In the case of an appendix to the Code, the letter immediately to the left of the colon indicates the letter of the appendix. The following are typical parts of codes of ordinances, which may or may not appear in this Code at this time, and their corresponding prefixes:

MAYOR-COUNCIL ACT MCA:1
MAYOR-COUNCIL ACT COMPARATIVE TABLE MCACT:1
CODE OF ORDINANCES CD1:1
CODE APPENDIX CDA:1
CODE COMPARATIVE TABLES CCT:1
STATE LAW REFERENCE TABLE SLT:1
MAYOR-COUNCIL ACT INDEX MCAi:1
CODE INDEX CDi:1

Indexes

The indexes have been prepared with the greatest of care. Each particular item has been placed under several headings, some of which are couched in lay phraseology, others in legal terminology, and still others in language generally used by local government officials and employees. There are numerous cross references within the indexes themselves which stand as guideposts to direct the user to the particular item in which the user is interested.

Looseleaf Supplements

A special feature of this publication is the looseleaf system of binding and supplemental servicing of the publication. With this system, the publication will be kept up to date. Subsequent amendatory legislation will be properly edited, and the affected page or pages will be reprinted. These new pages will be distributed to holders of copies of the publication, with instructions for the manner of inserting the new pages and deleting the obsolete pages.

Keeping this publication up to date at all times will depend largely upon the holder of the publication. As revised pages are received, it will then become the responsibility of the holder to have the amendments inserted according to the attached instructions. It is strongly recommended by the publisher that all such amendments be inserted immediately upon receipt to avoid misplacing them and, in addition, that all deleted pages be saved and filed for historical reference purposes.

Acknowledgments

This publication was under the direct supervision of Jim Jenkins, Senior Code Attorney, and Beth Tattershall, Editor, of the Municipal Code Corporation, Tallahassee, Florida. Credit is gratefully given to the other members of the publisher's staff for their sincere interest and able assistance throughout the project.

The publisher is most grateful to Mr. Thomas Bentley, III, Acting City Attorney, Ms. Julie Barnard, Assistant City Attorney, and Mr. Sonny Bass, former Assistant City Attorney, for their cooperation and assistance during the progress of the work on this publication. It is hoped that their efforts and those

of the publisher have resulted in a Code of Ordinances which will make the active law of the city readily accessible to all citizens and which will be a valuable tool in the day-to-day administration of the city's affairs.

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MAXINE HERRING PARKER
1944 - 2013



In November 2005, Maxine Herring Parker was elected to serve as the Birmingham City Council representative for District 4. During the election, Councilwoman Parker's platform focused on bettering the quality of life for citizens in her District. In August 2013, she was re-elected to a third term, and by a unanimous vote, her colleagues selected her President of the 2013-2017 City Council. Throughout her tenure on the Council, she promoted economic and community development as well as championed environmental issues, which led to passage of a Vehicular/Pedestrian Bridge on F.L. Shuttlesworth Drive and Environmental Protection Agency investigations into hazards plaguing District 4 residents.

Parker retired as a 41-year employee of Talladega College, Alabama's oldest historically Black College; it was founded in 1867. She served as the Executive Assistant for the President and was delighted to have served for 27 years as Secretary to the Talladega College Board of Trustees. Her 41-year tenure at Talladega afforded her the opportunity to serve under the administration of six Presidents and six Board of Trustee Chairpersons.

She was a lifelong member of Oak Street Baptist Church where she actively engaged in all facets of the church. She served as the Clerk-Secretary, was a member of the Flora Herring Mission and Women's Sunday School Bible Class. Her life's goal was epitomized by the words, "If I can help somebody as I pass along, then my living shall not be in vain."

Councilor Maxine Herring Parker transitioned from this life on Tuesday, November 12, 2013.

MIRIAM DENISE WITHERSPOON
1960 - 2009



In November 2005, Miriam Denise Witherspoon was elected to serve as the Birmingham City Council representative for District 7. During the election, Councilwoman Witherspoon's platform focused on the elderly, physically challenged and children.

Ms. Witherspoon, a Mobile native, made history when she became Birmingham's first wheelchair-bound person to win a seat on the Council. Her leadership was immediately evident as she was voted President Pro Tempore by her colleagues.

Injured near the end of her junior year in law school in a car accident while on a school break, her spinal cord was severed in the accident, leaving her paralyzed but not defeated. Witherspoon was an honors graduate who majored in Political Science and History at Alabama A&M University.

She graduated Magna Cum Laude and second in her class from Miles Law School. She passed the bar after the first test and practiced law beginning in 1990. She was named Miss Wheelchair Alabama 1989-1990.

Council President Pro Tempore Witherspoon transitioned from this life on Tuesday, April 21, 2009.

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***Editor's note—**Part 2 of this volume is a compilation of the Mayor-Council Act of 1955, adopted as Act No. 452 on page 1004 of the Alabama Session Laws of 1955. Amendments are indicated by parenthetical history notes following amended provisions. The title, enactment, severability, repealer, transitional, ratification, publication and effective date provisions have been omitted, and where a section has been amended or repealed by a later provision, only the current language has been printed. Any material in brackets has been added for purposes of clarity.

At the end of each section appears a historical note reference to the base act and amendatory acts, if any. The absence of amendatory references in a history note indicates that the provision remains unchanged from the base act. The editor has added section numbers and catchlines to facilitate use of this compilation and indexing; however, formal citations should be to the original act, and not to this compilation. Obvious misspellings and punctuation errors have been corrected without notation. For stylistic purposes, headings and catchlines have been made uniform, and the same system of capitalization, citation to state statutes, and expression of numbers in text as appears in the Code of Ordinances has been used.

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ARTICLE I. ADOPTION OF MAYOR-COUNCIL FORM OF GOVERNMENT, ELECTION, AND TERM OF COUNCIL

Sec. 1.01. Cities to which Act applies.

Any city in the State of Alabama, which has a population of more than 300,000, according to the last federal census, or which may hereafter have such population according to any federal census that may be taken hereafter, may adopt the mayor-council form of government by proceeding in the manner hereinafter in this Act provided.
(Acts 1961, p. 1617 (Act No. 1030), § 2; Acts 1965, p. 197 (Act No. 131), § 1)

Sec. 1.02. Petition for election.

The filing of a petition signed by ten percent or more of the qualified electors of such city, asking that the proposition of the adoption of the mayor-council form of government for such city be submitted to the qualified voters thereof, with the judge of probate of the county in which such city is located, shall mandatorily require an election to be held as herein provided. Whenever such a petition purporting to be signed by at least ten percent of the qualified voters of such city shall be presented to such judge of probate, he shall examine such petition and determine whether or not the same is signed by at least ten percent of the qualified voters of such city, and if such petition is signed by the requisite number of voters to require such an election, he shall within 15 days from the receipt of such petition certify such fact to the mayor or other chief executive officer of the city for which such election is so petitioned, and the certificate of the judge of probate as to the sufficiency of said petition shall be final.

Sec. 1.03. Call of election by mayor.

The mayor or other chief executive officer of such city shall immediately upon receipt of such certificate from the probate judge, by proclamation, submit the question of the adoption of the mayor-council form of government for such city, under this Act, at a special election to be held at a time specified in such proclamation, not less than 40 days and not more than 60 days after the receipt of said certificate from said probate judge, unless a general or regular election is to be held within 90 days after receipt of such certificate, in which event the special election herein provided for shall be held at the same time as such general or regular election. Should the election not be called by proclamation within ten days after receipt of his certificate, the judge of probate shall call such election by order at a time specified therein but not less than 40 days and not more than 60 days after the receipt by said mayor or other chief executive officer of the said certificate of the probate judge.

Sec. 1.04. Second election not called within two years.

If the mayor-council form of government is not adopted at the special election so called, the question of adopting such form of government shall not be resubmitted to

the voters of such city for adoption within two years thereafter, and then the question of adopting said form of government may be resubmitted in the manner above provided.

Sec. 1.05. Proposition submitted; form of ballot.

At such election the proposition to be submitted shall be printed in plain prominent type on ballots separate and distinct from ballots used for any other office or question, and shall read as follows:

"Shall the mayor-council form of government, as provided by the Mayor-Council Act of 1955, be adopted for the City of _____?

"Yes ____.

"No ____."

The voter shall mark his ballot with a cross mark before or after the word which expresses his choice. No other proposition shall be submitted to the voters of such city upon this ballot. If voting machines are used at any voting place in such election, the above proposition may at the discretion of the election commission or other body or official having charge of the conduct of municipal elections in such city, be submitted as a separate proposition on voting machines so used.

Sec. 1.06. Conduct, canvassing and declaration of result of election.

The election thereupon shall be conducted, the vote canvassed and the result declared in the same manner as provided by law in respect to other city elections in such city. If the majority of the votes shall be "yes" or in favor of such proposition, the provisions of this Act shall thereby be adopted for such city, and the election commission or other canvassing board or official shall transmit to the governor, to the secretary of state, to the judge of probate of the county and to the chief executive officer of the city, a certificate stating that such proposition was adopted by such city.

Sec. 1.07. Election of first council and first mayor; term of office.

Immediately upon the adoption of such form of government, the probate judge of the county with whom the petition was filed shall call an election to be held under and to be governed by this Act not less than 90 days nor more than 120 days after the date of such call, the expense thereof to be paid by such city, for the election at large of nine councilmen and a mayor by the qualified voters of such city. The nine candidates for the council receiving a majority of the votes cast in said election shall be elected to the council; and in the event that nine candidates should fail to receive such a majority, then and in that event those candidates for the council receiving a majority shall be elected, and another election shall be held upon the same day of the week four weeks thereafter to be called and held in the same mode and manner and under the same rules and regulations. In the second election there shall be two candidates for each

place upon the council to be filled in such second election; and these candidates shall be the ones who received the highest number of votes but who were not elected at the first election. The candidate or candidates for the council receiving the highest number of votes cast in the second election shall be elected, so that in the first and second elections only nine councilmen shall be elected. The terms of office of such candidates so elected shall commence immediately upon their election and qualification. The four such councilmen so elected receiving the largest number of votes in the first election, if at least four councilmen are elected thereat, shall hold office until the second Tuesday in November of that year ending in an odd number which would give them a term of office most closely approximating four years and until their successors are elected and qualify. If four councilmen are not elected at the first election, then those who are elected at such second election and the councilmen receiving the highest vote at the second election sufficient to bring the total number of such councilmen to four, shall hold office as provided in the preceding sentence. The remaining five such councilmen so elected shall hold office until the second Tuesday in November of that year ending in an odd number which would give them a term of office most closely approximating two years and until their successors are elected and qualify. The candidate for mayor receiving the largest number of votes for the office at the first election shall be elected thereto, provided such candidate receives a majority of all votes cast for such office. If at the first election no candidate received a majority of the votes cast for the office of mayor at such election, then another election shall be held upon the same day of the week four weeks thereafter to be called and held in the same mode and manner and under the same rules and regulations. In the second election there shall be two candidates for the office of mayor; and these candidates shall be the two who received the highest number of votes for said office at the first election. In the election of the first council and first mayor and all subsequent elections held under the provisions of this Act, no vote shall be permitted by writing in a person's name on the ballot and, further, no name shall appear upon the ballot as a candidate for election except the names of such persons as have become candidates according to the provisions of this Act.
(Acts 1973, p. 307 (Act No. 275), § 1)

Sec. 1.08. The council.

The councilmen provided for in this [article] shall be known collectively as the council of the City of (name of said city to be inserted) and shall have the powers and duties hereinafter provided. The councilmen first elected shall qualify and take office in the manner hereinafter prescribed on the second Monday following the date the election of all nine councilmen is completed, and thereupon such city shall at that time and thereby be and become organized under the mayor-council form of government provided under this Act, and shall thereafter be governed by the provisions of this Act.

ARTICLE II. LEGAL STATUS; FORM OF GOVERNMENT; POWERS

Sec. 2.01. Legal status.

Any such city which adopts the mayor-council form of government shall continue its existence as a body corporate under the name of "City of" (inserting the name of such

city). The word "city" as hereinafter used shall mean and refer to any city which has adopted the mayor-council form of government. The city shall continue as a municipal corporation, within the corporate limits as then established, and as thereafter fixed in the manner prescribed by law, subject to all the duties and obligations then pertaining to or incumbent upon it as a municipal corporation and shall continue to enjoy all the rights, immunities, powers and franchises then enjoyed by it, as well as those that may thereafter or hereinafter be granted to it.

Sec. 2.02. Form of government.

The municipal government of any such city proceeding under this Act shall be known as the "mayor-council form of government." Pursuant to the provisions and limitations of this Act and subject to the limitations imposed by the Constitution of Alabama and its laws, all powers of the city shall be vested in the council elected as herein provided and hereinafter referred to as "the council," which shall enact ordinances, adopt budgets and determine policies. All powers of the city shall be exercised in the manner prescribed by this Act, or if the manner be not prescribed, then in such manner as may be prescribed by law or by ordinance.

Sec. 2.03. Powers of city.

The city shall have all the powers granted to municipal corporations and to cities by the constitution and laws of this state together with all the implied powers necessary to carry into execution all the powers granted. The city may acquire property within or without its corporate limits for any city purpose, in fee simple or any lesser interest or estate, by purchase, gift, devise, lease or condemnation, and may sell, lease, mortgage, hold, manage and control such property as its interests may require; and, except as prohibited by the constitution of this state or restricted by this Act, the city shall and may exercise all municipal powers, functions, rights, privileges and immunities of every name and nature whatsoever. The enumeration of particular powers by this Act shall not be deemed to be exclusive, and in addition to the powers enumerated therein or implied thereby, or appropriate to the exercise of such powers, it is intended that the city shall have and may exercise all powers which, under the constitution of this state, it would be competent for this Act specifically to enumerate.

ARTICLE III. THE COUNCIL

Sec. 3.01. Number, election, term.

The council shall have nine members elected from single member districts pursuant to section 2 of Ordinance 89-46, adopted pursuant to section 11-43-63 of the Code of

Alabama 1975. The district council members elected pursuant to section 2 of Ordinance 89-46, adopted pursuant to section 11-43-63 of the Code of Alabama 1975, shall take office on the fourth Tuesday in October of the year of election.
(Act No. 84-625, p. 1273, § 1, Act No. 85-919, p. 197, § 1; Act No. 2012-223(SB104), § 2)

Editor's note—Pursuant to the authority granted it by Act No. 87-191, Code of Ala. 1975, § 11-43-63, the council voted by adoption of Ordinance No. 89-46 on March 28, 1989, to go to nine single-member council districts and the initial election of all nine members of the council from each of the districts to take place October 10, 1989. The persons so elected shall each have terms of four years as will persons elected every four years thereafter. Ordinance No. 89-46 is set forth in its entirety in Part 2, the Code of General Ordinances, § 2-2-51 et seq. The regular general municipal election dates appearing in § 3.01 were changed by Ordinance No. 09-36, adopted February 24, 2009, in order to comply with state and federal requirements regarding absentee and provisional balloting. See 42 USC 15301 et seq. (Pub. L. 107-252 Help America Vote Act of 2002); Code of Ala. 1975, § 11-46-5 (Date of elections in certain municipalities); Alabama Acts No. 2006-354 and No. 2006-570. Section 1 of Ordinance No. 09-36 changed the regular general municipal election date to the fourth Tuesday in August 2009 and quadrennially thereafter, and, when necessary, any second or runoff election would be held on the sixth Tuesday next thereafter following the regular election. The ordinance further provided that the term of office for the council members so elected would commence on the fourth Tuesday in November following their election. Section 2 of Ordinance No. 09-36 changed the regular general municipal election date for mayor in 2011 to the fourth Tuesday in August and quadrennially thereafter, and, when necessary, any second or runoff election would be held on the sixth Tuesday next thereafter following the regular election. Section 2 further provided that the term of the mayor so elected would commence on or before the fourth Tuesday of November of the year of such election.

Sec. 3.02. Statement of candidacy.

Any person desiring to become a candidate in any election for the office of councilman may become such candidate by filing in the office of the judge of probate of the county in which such city is situated, a statement in writing of such candidacy and an affidavit taken and certified by such judge of probate or by a notary public that such person is duly qualified to hold the office for which he desires to be a candidate. Such statement shall be filed at least 45 days before the day set for such election and shall be substantially the following form:

> State of Alabama, _____ County. I, the undersigned, being first duly sworn, depose and say that I am a citizen of the City of _____ in said State and County, and reside at _____ in said City of _____, that I desire to become a candidate for office as a member of the city council, district number ____, in said City at the election for said office to be held on the ____ day of August next and that I am duly qualified to hold said office if elected thereto and I hereby

request that my name be printed upon the official ballot at said election. Signed _____; Subscribed and sworn to before me by said _____ on this ____ day of _____, 2____, and filed in this office for record on said day. _____, Judge of Probate.

Said statement shall be accompanied by a qualifying fee in the amount of $50.00, which fee shall be paid over by the judge of probate to the general fund of the city. At every such election all ballots to be used by voters shall be printed and prepared by the election commission or other body or official charged by law with the duty of conducting elections and at the expense of said city, and shall contain the names of all candidates directly underneath the words "For members of the council." No name shall appear upon said ballot as a candidate for election except the names of such persons as have become candidates according to provisions as above set forth; no ballot shall be used at any such election except the official ballot prepared by the election commission or other body or official charged by law with the duty of conducting elections, except that the names of candidates may be suitably placed on voting machines if such machines are used to conduct such election. No primary election shall be held for the nomination of candidates for the office of councilman and candidates shall be nominated only as hereinabove provided.
(Acts 1965, p. 198 (Act No. 131), § 1; Act No. 2012-223(SB104), § 3)

Editor's note—Alabama Acts 1969, p. 966 (Act No. 507), § 2, amended section 3.02 of the Mayor-Council Act by adding language that required the candidate seeking election for the office of councilman to state their party affiliation. However, the amendatory language of the 1969 act has not been included in the reprinting of this section since the 1969 act was not pre-cleared by the U.S. Attorney General when submitted under Section 5 of the Voting Rights Act of 1965 requirements.

Sec. 3.03. Qualification.

Every person who shall be elected or appointed to the office of member of the council shall, on or before the fourth Tuesday of November of the year of his or her election or before the Tuesday next following the date of his or her appointment, qualify by making oath that he is eligible for said office and will execute the duties of same according to the best of his knowledge and ability. Said oath may be administered by any person authorized to administer an oath under the laws of Alabama.
(Act No. 84-625 p. 1273, § 2; Act No. 85-919, p. 198, § 2)

Sec. 3.04. Eligibility.

Councilmen shall be qualified electors of the city, at least 21 years of age at the time of their election, and shall hold no other public office except that of notary public or member of the National Guard or naval or military reserve. If a councilman shall cease to possess any of these qualifications or shall be convicted of [a] crime involving moral turpitude, his office shall immediately become vacant.
(Acts 1975, p. 315 (Act No. 85), § 1)

Sec. 3.05. Compensation.

The council shall receive such salary which shall be effective on such date as the council may by resolution or ordinance prescribe; provided, however, no councilman, other than the president of the council, shall receive a salary in excess of $15,000.00 per annum. The council may provide by ordinance or resolution for the office of the president of the council compensation in addition to the compensation such president will be entitled to receive as a councilman, which additional compensation shall not exceed the additional amount of $2,400.00 per annum, making the total maximum compensation which a member of the council may receive while serving as president thereof, $17,400.00 per annum. Such salary shall be payable in monthly installments at the end of each month, said installments to be paid at the same rate for any portion of the month during which each such councilman shall hold office at the rate provided.

(Acts 1965, p. 193 (Act No. 128) § 1; 1965 Cum. Supp. to Vol. 14, p. 964, § 1615(5); Acts 1967, p. 1448 (Act No. 637), § 1; Acts 1973, p. 727 (Act No. 495), § 2; Act No. 81-1159, p. 438, § 1; Act No. 87-797, p. 1570, § 1)

Editor's note—Act No. 1117, 1981, section 1, amended article VI, section 19 of Act No. 929, 1951, allowing retirees who have been elected to city office to continue to receive retirement benefits rather than compensation for the office to which elected. Act No. 129, 1965, section 1, granted members of the governing body for expenses incurred in attending business of the city within its corporate limits, not exceeding a total amount of $1,000.00. This act was superseded by Act No. 188, 1982, section 1 of which allowed a maximum expense allowance of $300.00 per month for council members and $350.00 for the president or chairman, and section 2 of which allowed members elected after Nov. 1981 to receive an additional maximum of $200.00 per month, with no such additional allowance paid after Nov. 15, 1985. Act No. 87-798, section 1, increased the allowance to $500.00 per month for council members and $550.00 per month for the president or chairman; and section 2 allowed an additional allowance for members elected for a term commencing in 1985 of a maximum of $475.00 per month, with no such additional expense paid after Nov. 15, 1989. Ord. No. 94-122, sections 1 through 5, adopted June 7, 1994, provided the following:

"1. Under authority of Act No. 94-715 of the Legislature of Alabama of 1994, there is hereby established an additional amount of money to be paid monthly by the

city, to each council member of the City of Birmingham, for expenses incurred by the members when attending to the business of the municipality within its corporate limits, in the amount of $333.33 each, per month.

2. No reports of expenditures or records of expenses shall be required in connection with this in-city expense allowance.

3. This expense allowance shall not reduce or limit any other salary or allowance now paid to members of the council.

4. This allowance shall be interpreted and administered in full compliance with Act No. 94-715 of the Legislature of Alabama of 1994.

5. This payment shall commence as of July 1, 1994, and continue until changed by this council."

Sec. 3.06. Presiding officer.

At the first meeting, which shall be held immediately following the effective date of the act adding this amendatory language, and then subsequently at the first meeting held after the election of the council after the effective date of the act adding this amendatory language and every two years thereafter, the council shall elect an officer of the city who shall have the title of president of the council and shall preside at meetings of the council and a president pro tem, who shall act as president of the council during the absence or disability of the president. The terms of office of the president and the president pro tem shall be two years and until successors are elected and qualified. If a vacancy shall occur in the office of president of the council, the council shall elect a successor for the completion of the unexpired term. Both the president of the council and the president pro tem shall be elected from among the councilmen.

(Acts 1967, p. 1449 (Act No. 637), § 2; Act No. 2016-277(HB515), § 1)

Sec. 3.07. Powers.

Except those powers specifically granted by this part to the mayor or as otherwise granted to the mayor by law, all powers of the city, including all powers vested in it by this Act, by the laws, general and local, of the state, and the determination of all matters of policy, shall be vested in the council. Without limitation of the foregoing, the council shall have power to:

(1) Adopt the budget of the city.

(2) Authorize the issuance of bonds or warrants.

(3) Inquire into the conduct of any office, department or agency of the city and make investigations as to municipal affairs.

(4) Except as otherwise provided by law or this amendatory act, appoint the members of all boards, commissions or other bodies authorized hereunder or by law. This provision for appointment of members of boards, commissions or other bodies authorized hereunder or by law shall supersede any different

provision for appointment of such members contained in any statute or ordinance in effect at the time of adoption by the city of the mayor-council form of government set up by this Act, and shall include power to remove any member of any board, commission or body to the same extent as might be done by the governing body of the city at the time of adoption by the city of the mayor-council form of government set up by this Act and to appoint another in his stead. And wherever in any statute in effect at the time of adoption by the city of said mayor-council form of government the chief executive officer of the city is designated to act in any capacity ex officio, the mayor shall act. This subdivision shall not override the express terms of the Lewis Spratt Act, Subpart 1, commencing with Section 45-37A-50, Part 1 of this article.

(5) Succeed to all the powers, rights and privileges conferred upon the former governing body of the city by statutes in effect at the time of adoption by the city of the mayor-council form of government and not in conflict with this Act.

(6) Levy property and license taxes and local improvement assessments.

(7) Employ for and on behalf of said city such employees as the council may deem necessary to assist the council and perform such duties relating to the work of the council as the president of the council may assign. Each such employee shall serve at the pleasure of the council at such compensation as the council may set, and shall not be under any merit or civil service system. Each such employee shall by reason of such employment become a member of the pension system covering the general employees of such city, if there be such a system, to the same extent and in the same manner as other general employees of the city; provided, application for such inclusion in such pension system be made to the board or other authority administering such pension system within 30 days of this act's becoming law, or, thereafter, within 30 days of their appointment. If no such application be made within such time, such council employees shall not hereafter be a member of such system.

(Acts 1973, p. 726 (Act No. 495), § 1; Act No. 84-439, p. 1018, § 1; Act No. 84-629, p. 1279, § 1; Act No. 2016-277(HB515), § 1)

Editor's note—The substantive text under MCA § 3.07 ("Powers") has been reprinted verbatim from Code of Ala. 1975 § 45-37A-52.56 ("Powers"). The subsection numbering scheme in this provision reflects the numbering scheme used in the Alabama 1975 Code rather than the original section numbering as depicted in the Lewis Spratt Act.

Sec. 3.08. Council not to interfere in appointments or removals.

Neither the council nor any of its members shall direct or request the appointment of any person to, or his removal from, office or position by the mayor or by any of his subordinates, or in any manner take part in the appointment or removal of

officers and employees in the administrative service of the city. Except for the purpose of inquiry, the council and its members shall deal with the administrative service solely through the mayor and neither the council nor any member thereof shall give orders to any subordinates of the mayor, either publicly or privately. Any councilman violating the provisions of this section, or voting for a resolution or ordinance in violation of this section, shall be guilty of a misdemeanor and upon conviction thereof shall cease to be a councilman.

Sec. 3.09. Vacancies in council.

Vacancies in the council shall be filled by the council at the next regular meeting or any subsequent meeting of the council, the person so elected to hold office only until the next election of any kind in which the voters of the city to which this Act applies are qualified electors, at which time said unexpired terms shall be filled by said electors in accordance with all provisions of law applicable to such city; in any event, the person elected shall hold office until his successor is elected and qualified.
(Acts 1965, p. 191 (Act No. 123), § 1)

Editor's note—Alabama Acts 1969, p. 967 (Act No. 507), § 3, amended section 3.09 of the Mayor-Council Act by adding language regarding the method of filling vacancies on the city council. However, the amendatory language of the 1969 act has not been included in the reprinting of this section since the 1969 act was not pre-cleared by the U.S. Attorney General when submitted under Section 5 of the Voting Rights Act of 1965 requirements.

Sec. 3.10. Creation of new departments or offices; change of duties.

Upon the written approval of the mayor, the council by ordinance may create, change, and abolish offices, departments or agencies, other than the offices, departments and agencies established by this Act. Upon the written approval of the mayor, the council by ordinance may assign additional functions or duties to offices, departments or agencies established by this Act, but may not discontinue or assign to any other office, department or agency any function or duty assigned by this Act to a particular office, department or agency.
(Act No. 2016-277(HB515), § 1)

Sec. 3.11. City clerk.

If the city clerk of any city which adopts the mayor-council form of government holds office subject to any civil service or merit system, such clerk shall continue to be the city clerk under the mayor-council form of government of such city, and his successor shall be selected and hold office subject to the provisions of such civil service or merit system. If the city clerk of any city which adopts the mayor-council form of government does not hold office subject to any civil service or merit system, the council shall elect the city clerk. The city clerk shall give notice of special or called meetings of the council, shall keep the journal of its proceedings, shall

authenticate by his signature and record in full in a book kept for the purpose all ordinances and resolutions and shall perform such other duties as shall be required by this Act or by ordinance, and such duties as are imposed by general law of Alabama upon city clerks and as to which other provisions are not made in this Act.

Sec. 3.12. Meetings of council.

The first meeting of each newly elected council shall be held on the fourth Tuesday in October of the year of its election, after which the council shall meet regularly at such times as may be prescribed by its rules, but not less frequently than once a week. All meetings of the council shall be open to the public.
(Act No. 84-625, p.1275, § 3, Act No. 85-919, p. 199, § 3; Act No. 2012-223(SB104), § 4)

Sec. 3.13. Council to be judge of qualifications of its members.

The council shall be the judge of the election and qualifications of its members and for such purpose shall have power to subpoena witnesses and require the production of records, but the decision of the council in any such case shall be subject to review by the courts.

Sec. 3.14. Rules of procedure; journal.

The council shall determine its own rules and order of business. It shall keep a journal of its proceedings and the journal shall be open to public inspection.

Sec. 3.15. Meetings, passage of ordinances, etc.

(a) *Meetings, passage of ordinances by council.* The council shall hold regular public meetings on Tuesday of each and every week at a regular hour to be fixed by the order of said council from time to time and publicly announced; it may hold such adjourned, called, special or other meetings as the business of the city may require. The president of the council, when present, shall preside at all meetings of said council. Five members of the council shall constitute a quorum for the transaction of any and every power conferred upon said council, and the affirmative vote of at least four members of the council provided such four constitute a majority of those voting shall be sufficient for the passage of any resolution, bylaw or ordinance, or the transaction of any business of any sort by the said council or the exercise of any of the powers conferred upon it by the terms of this Act or by law, or which may hereafter be conferred upon it. No resolution, bylaw or ordinance granting any franchise, appropriating any money for any purpose, providing for any public improvements, any regulation concerning the public health, or of any other general or permanent nature, except the proclamation of quarantine, shall be enacted except at a regular public meeting of said council or an adjournment thereof. Every ordinance introduced at any and every such meeting shall be in writing and read before any vote thereon shall be taken, and the yeas and nays thereon shall be recorded; provided that if the vote of all councilmen present be unanimous, it may be so stated in the journal without recording the yeas and nays. A record of the proceedings of every meeting of the council shall be kept, and every resolution or ordinance passed by the council must be recorded and the record of the proceedings of the meeting shall, when approved by the council, be signed by the president of the council and the city clerk. Such record shall be kept available for inspection by all citizens of such city at all reasonable times. No ordinance of permanent operation shall be passed at the meeting at which it was introduced except by unanimous consent of all members of the council present, and such unanimous consent shall be shown by the yea and nay votes entered upon the minutes of said meeting; provided, however, that if all members of the council present vote for the passage of the ordinance and their names are so entered of record as voting in favor thereof, it shall be construed as giving unanimous consent to the action upon such ordinance at the meeting at which it is introduced. Publication of ordinances shall be governed by Alabama Code of 1940, section 462, as amended, Title 37. Provided all ordinances or resolutions, after having been passed by the council, shall by the clerk be transmitted within 48 hours after their passage to the mayor for his consideration, who, if he shall approve thereof, shall sign and return the same to the clerk, who shall publish them, if publication thereof is required, and such ordinances and resolutions shall thereupon become effective and have the force of law. Delivery to the office of the mayor shall constitute delivery to the mayor. An ordinance or resolution may be recalled from the mayor at any time before it has become a law, or has been acted on by him, by a resolution adopted by a majority of the members elected to the council, in regular or special session. If the mayor shall disapprove of

any ordinance or resolution transmitted to him as aforesaid, he shall, within ten days of the time of its passage by the council, return the same to the clerk with his objections in writing, and the clerk shall make report thereof to the next regular meeting of the city council; and if two-thirds of the members elected to the said council shall at said meeting adhere to said ordinance or resolution, notwithstanding said objections, said vote being taken by yeas and nays and spread upon the minutes, then, and not otherwise, said ordinance or resolution shall after publication thereof, if publication is required, have the force of law. If publication of said ordinance or resolution is not required, it shall take effect upon its passage over such veto. The failure of the mayor to return to the city clerk an ordinance or resolution with his veto within ten days after its passage by the council shall operate and have the same effect as an approval of the same, and the city clerk, if publication is required, shall publish the same as is herein provided for the publication of laws and ordinances of said city. And if no publication is required, the ordinance or resolution shall become effective upon the expiration of said ten days. Anything in this section to the contrary notwithstanding, the mayor shall not have the power of veto over appointments of the council, or over any action of the council relating to an investigation as provided for in section 8.03.

(b) *Adoption of ordinances by initiative and referendum.* Any proposed ordinance may be submitted to the council by petition signed by ten percent or more of the qualified electors of such city. All petitions circulated with respect to any proposed ordinance shall be uniform in character and shall contain the proposed ordinance in full, and have printed thereon the names and addresses of at least five electors who shall be officially regarded as filing the petition and shall constitute a committee of the petitioners for the purposes hereinafter named. Each signer of a petition shall sign his name and shall have placed on the petition after his name his place of residence by street and number, if there be such street and number. The signatures to any such petition need not all be appended to one paper, but to each such paper there shall be attached an affidavit by the circulator thereof stating the number of signers to each part of the petition and that each signature appended to the paper is the genuine signature of the person whose name it purports to be, and was made in the presence of the affiant. All papers comprising a petition shall be assembled and filed with the probate judge of the county in which said city is situated as one instrument. Within seven days from the filing of a petition with him, the probate judge shall ascertain whether it is signed by the required number of qualified electors. Upon completion of his examination, the probate judge shall endorse upon the petition a certificate of the result thereof. If the certificate of the probate judge shows that the petition is insufficient, he shall at once notify each member of the committee of the petitioners herein before provided for, and the petition may be amended at any time within ten days from the date of the probate judge's certificate of examination by filing with the probate judge an additional petition in the same manner as provided for the original petition. Upon the filing of such amendment, the probate judge shall notify each

member of the committee of that fact. The final finding of the insufficiency of a petition shall not prejudice the filing of a new petition for the same purpose. When the certificate of the probate judge shows the petition to be sufficient, he shall submit the proposed ordinance to the council at its next regular meeting. Such council shall either pass and adopt said ordinance without alterations within 20 days after attachment of the probate judge's certificate to the accompanying petition, or within said time cause to be transmitted the papers and petition to the election commission, which shall call a special election unless a general municipal election is fixed within 20 days thereafter, and at such special or general election if one is so fixed, such ordinance shall be submitted without alteration to the vote of the electors of said city. The ballots used when voting upon said ordinance shall contain these words, "for the ordinance" (stating the nature of the proposed ordinance) and "against the ordinance" (stating the nature of the proposed ordinance), and the voter shall express his choice by a cross mark. If the majority of the qualified electors voting on the proposed ordinance shall vote in favor thereof, such ordinance shall thereupon become valid and binding ordinance of the city, and any ordinance proposed by petition and which shall be adopted by vote of the people cannot be repealed or amended except by a vote of the people. Any number of proposed ordinances may be voted upon at the same election in accordance with the provisions of this section, but there shall not be more than one special election in any period of six months for such purpose. A proposal for the repeal of such ordinance or for amendments thereto may in like manner be submitted to be voted upon and adopted at any succeeding election. Whenever any ordinance is required by this section to be submitted to the voters of the city at any election, such ordinance if adopted by the electorate shall be published in the same manner as ordinances regularly adopted by the council and shall become effective from the date of publication.

[(c)] *Elections to comply with general election laws.* The election to be held under this section shall be in accordance with general election laws governing elections in such city and all laws governing elections generally applicable to such city shall be applicable to elections held hereunder.

(Acts 1965, p. 195 (Act No. 130), § 1; Acts 1965, p. 410 (Act No. 294), § 2)

Editor's note—Although not specifically amendatory of this act, Act No. 294, 1965, section 2, has been included as subsection (b) of this section, with the existing provisions being designated subsection (a). For convenience' sake, italicized subcatchlines have been added.

Sec. 3.16. Granting of franchises.

No resolution or ordinance, granting to any person, firm or corporation any franchise, lease or right to use the streets, public highways, thoroughfares, or public ways of any city organized under the provisions of this Act, either in, under, along, through, or over same shall take effect and be enforced until 30 days after the final enactment of same by the council and publication of said resolution or ordinance in

full once a week for three consecutive weeks in some daily newspaper published in said city, which publication shall be made at the expense of the person, firm or corporation applying for said grant. Pending the passage of any such resolution or ordinance or during the time intervening between its final passage, and the expiration of the 30 days during which publication shall be made as above provided, the legally qualified voters of said city may, by written petition or petitions addressed to said council, object to such grant, and if during such period such written petition or petitions signed by at least five percent of the legally qualified voters of the city shall be filed with said council, said council shall forthwith order an election, which shall be conducted by the election commission of the city or other body or official charged with the duty of conducting elections therein, at which election the legally qualified voters of said city shall vote for or against the proposed grant as set forth in the said resolution or ordinance. In the call for said election, the said resolution or ordinance making such grant shall be published at length and in full at the expense of the city in at least two newspapers published in said city by one publication. If a majority of the votes cast at such election shall be against the passage of said resolution or ordinance, then and in those events, said resolution or ordinance shall not become effective nor shall it confer any rights, powers or privileges of any kind; otherwise, said resolution or ordinance and said grant shall thereupon become effective as fully and to the same extent as if said election had not been called or held. If, as the result of said election, said resolution or ordinance shall not become effective, then it shall be the duty of said council, after the results of said election shall be determined, to pass a resolution or ordinance to that effect. No grant of any franchise or lease or right of user, or any other right, in, under, upon, along, through, or over the streets, public highways, thoroughfares or public ways of any such city, shall be made or given nor shall any such rights of any kind whatever be conferred upon any person, firm or corporation, except by resolution or ordinance duly passed by the council at some regular or adjourned regular meeting and published as above provided for in this subsection; nor shall any extension or enlargement of any such rights or powers previously granted be made or given except in the manner and subject to all the conditions herein provided for as to the original grant of same. It is expressly provided, however, that the provisions of this subsection shall not apply to the grant of side track or switching privileges to any railroad or street car company for the purpose of reaching and affording railway connections, and switch privileges to the owners or users of any industrial plant, store or warehouse; provided, further, that said side track or switch shall not extend for a greater distance than 1,320 feet.
(1965 Cum. Supp. to Vol. 14, p. 967, § 1615(16))

Sec. 3.17. Codification authorized.

The council may provide at any time it may deem proper, for the revision and codification of its ordinances, bylaws, and permanent resolutions, or for the adoption of a code or codes by ordinance. Such code or codes and the revisions or amendments thereof may relate to the whole system of city bylaws, ordinances and permanent

resolutions, or may relate to that portion of such ordinances, bylaws and permanent resolutions which relate to, affect or purport to govern any particular subject or subjects or subdivisions of municipal legislation. The council shall have full power and authority to prescribe the manner in which said code or codes, revisions or amendments thereto, shall be made public, whether by proclamation of any officer or officers of said city by posting or by publication, one or all, but it shall not be necessary unless so prescribed by the council for such code or codes, revisions or amendments thereto, to be published in a newspaper or newspapers. Nor shall it be necessary that such code or codes, revisions or amendments thereto, be spread at length upon the minutes. The council may prescribe that such code or codes, revisions or amendments thereto may be certified by and filed with the city clerk, or other corresponding officer, in lieu of spreading the same on the minutes; and the council may prescribe the manner in which copies of such code or codes, revisions, or amendments thereto, may be officially certified for use by the inhabitants or by the courts. The council may adopt and provide for the maintenance in a designated office of the city of a comprehensive zone map of the city open for inspection by the public at all reasonable times, and may make such zone map a part of any ordinance by reference thereto in such ordinance and without publication of such zone map in any newspaper. Such zone map need not be in one piece but may for convenience be in sections. A zone map of territory newly added to the city shall be treated as a comprehensive zone map of the city for purposes of application of the provisions of the next preceding sentence.

Sec. 3.18. Examination of books and publication of accounts.

The council shall each month print in pamphlet form a detailed statement of all receipts and expenses of the city, and a summary of its proceedings during the preceding month, and furnish printed copies thereof to the daily newspapers of the city and to persons who apply therefor. At the end of each year, the council shall cause a full and complete examination of all the books and accounts of the city to be made by a certified public accountant, or by the state department of examiner of public accounts, and shall cause the result of such examination to be published in the manner above provided for publication of statements of monthly expenditures. Such examination shall not be made more than three years in succession by the same accountant.
(Act No. 79-257, p. 397, § 1)

ARTICLE IV. MAYOR

Sec. 4.01. The mayor, election, term, qualification.

The first mayor shall be elected at the same election at which the councilmen are elected under the provisions of section 1.07 of this Act and shall hold office until the second Tuesday in November of that year ending in an odd number which would give him a term of office most closely approximating four years and until his successor is

elected and qualified. The first mayor shall qualify and take office in the manner hereinafter prescribed on the second Monday following the date the election of all nine councilmen is completed or on the second Monday following the election of such mayor whichever last occurs. The regular election for mayor shall be held on the second Tuesday in October of the year during which the term of the first mayor elected hereunder terminates and every four years thereafter. The mayor elected at any such regular election shall, on or before the fourth Tuesday of November of the year of such election, qualify by making oath that he is eligible for said office and will execute the duties of same according to the best of his knowledge and ability. Said oath may be administered by any person authorized to administer an oath under the laws of Alabama. At any election for mayor, the candidate receiving the highest number of votes for the office shall be elected thereto, provided such candidate receives a majority of all votes cast for such office. If at the first election a majority is not received by any candidate for the office of mayor, then a second election shall be held on the third Tuesday thereafter in the same mode and manner and under the same rules and regulations provided in section 1.07 hereof with respect to the election of the first mayor.

(Act No. 84-625, p. 1275, § 4; Act No. 85-919, p. 199, § 4)

Editor's note—The regular general municipal election dates appearing in § 4.01 were changed by Ordinance No. 09-36, adopted February 24, 2009, in order to comply with state and federal requirements regarding absentee and provisional balloting. See 42 USC 15301 et seq. (Pub. L. 107-252 Help America Vote Act of 2002); Code of Ala. 1975, § 11-46-5 (Date of elections in certain municipalities); Alabama Acts No. 2006-354 and No. 2006-570. Section 2 of Ordinance No. 09-36 changed the regular general municipal election date for mayor in 2011 to the fourth Tuesday in August and quadrennially thereafter, and, when necessary, any second or runoff election would be held on the sixth Tuesday next thereafter following the regular election. Section 2 further provided that the term of the mayor so elected would commence on or before the fourth Tuesday of November of the year of such election.

Sec. 4.02. Statement of candidacy.

Any person desiring to become a candidate at any election for the office of mayor may become such candidate by filing in the office of the judge of probate of the county in which such city is situated, a statement in writing of such candidacy, accompanied by an affidavit taken and certified by such judge of probate or by a notary public that such person is duly qualified to hold the office for which he desires to be a candidate. Such statement shall be filed at least 45 days before the day set for such election and shall be in substantially the following form:

> "State of Alabama, _____ County. I, the undersigned, being first duly sworn, depose and say that I am a citizen of the City of _____, in said State and County, and reside at _____ in said City of _____, that I desire to become a candidate for the office of mayor in said city at the election of said office to be held

on the ____ day of August, next and that I am duly qualified to hold said office if elected thereto, and I hereby request that my name be printed upon the official ballot at said election. Signed _____; Subscribed and sworn to before me by said _____, on this ____ day of _____, 2____, and filed in this office for record on said day. _____, Judge of Probate."

Said statement shall be accompanied by a qualifying fee in an amount equal to $300.00 which qualifying fee shall be paid over by the judge of probate to the general fund of the city. At every such election all ballots to be used by voters shall be printed and prepared by the election commission or other body or official charged by law with the duty of conducting elections and at the expense of said city, and shall contain the names of all candidates directly underneath the words "For Mayor." No names shall appear upon said ballot as a candidate for election except the names of such persons as have become candidates according to provisions as above set forth; no ballot shall be used at any such election except the official ballot prepared by the election commission or other body or official charged by law with the duty of conducting elections, except that the names of candidates may be suitably placed on voting machines if such machines are used to conduct such election.
(Acts 1965, p. 197 (Act No. 131), § 1; Act No. 2012-223(SB104), § 5)

Editor's note—Alabama Acts 1969, p. 964 (Act No. 507), § 4, amended section 4.02 of the Mayor-Council Act by adding language that required the candidate seeking election for the office of mayor to state their membership in a political party or status as an independent. However, the amendatory language of the 1969 act has not been included in the reprinting of this section since the 1969 act was not pre-cleared by the U.S. Attorney General when submitted under Section 5 of the Voting Rights Act of 1965 requirements.

Sec. 4.03. Eligibility.

The mayor shall be a qualified elector of the city, at least 25 years of age at the time of his election and shall hold no other public office.

Sec. 4.04. Compensation.

The mayor shall receive an annual salary payable in monthly installments at the end of each month, said installments to be paid at the same rate for any portion of the month during which the mayor shall hold the office at the rate hereinafter provided. The annual salary which the mayor shall receive shall be $68,000.00 annually.
(Acts 1964, p. 112 (Act No. 78), § 1; Acts 1973, p. 742 (Act No. 503), § 1; Act No. 87-800, p. 1573, § 1)

Editor's note—Act No. 76, 1964, sections 2—5, authorized the mayor to provide himself with a passenger automobile equipped with radio receiving and sending equipment, to be owned, operated and maintained for the use of the mayor, all at the expense of the city. Act No. 77, 1964, section 1, provided for a monthly allowance for

the mayor of $300.00 for which no accounting is required. Sections 1, 2 of Act No. 772, 1973, increased the allowance to $500.00, $200.00 of which requires an accounting with the $200.00 increase terminating on the second Monday in Nov. 1975. Act No. 618, 1984, section 1, increased the allowance to $1,000.00, for which the mayor should not be required to file an accounting.

The 1964 act provided additional compensation to the mayor in the form of a monthly allowance of $300.00 for expenses incidental to the position of mayor. In addition, the mayor was not required to provide an accounting for expenditures of this additional compensation allowance. The 1973 amendment to the act increased the allowance by $200.00 for a total of $500.00 per month, but terminated the $200.00 increase on the second Monday in November of 1975. The 1984 amendment to the act increased the total amount of the allowance to $1,000.00 per month. This provision was enacted by the legislature without a specific section number or placement relative to the other local laws enacted under the "mayor-council form of government" acts.

Sec. 4.05. Vacancy in office of mayor.

Whenever any vacancy in the office of mayor shall occur by reason of death, resignation, removal or any other cause, the president of the council shall assume the duties of the office of mayor effective on the date such vacancy occurs and shall serve as acting mayor until a new mayor is elected and qualified as hereinafter provided. The acting mayor shall receive no compensation, expenses or allowances as a member of the city council while acting as mayor, but shall receive the same rate of pay and allowances provided for the mayor whose vacated office he or she fills, and the compensation received for days of service as acting mayor shall not be counted in determining the maximum annual per diem compensation permitted council members. While the president of the council is serving as acting mayor he or she shall not sit with the council or vote on any matters before the council. The election commission of the city, if there be one, and if not then the council thereof, shall within 30 days of the occurrence of a vacancy in the office of the mayor call a special election to fill such vacancy, such election to be held on the second Tuesday of the month not less than 70 days and not more than 90 days from the occurrence of such vacancy; provided, however, if a regular or special election is scheduled or required to be held within 120 days after the occurrence of such vacancy, then the vacancy in the office of mayor shall be filled at such regular or special election. Notice of such election shall be given at the expense of the city by one publication at least 18 days in advance of the same in one or more newspapers published in such city. Any person desiring to become a candidate at the election to fill the vacancy in the office of mayor may become a candidate by filing his or her statement in writing with the judge of probate and paying the qualifying fee as provided in section 4.02. The method, procedure and requirements of qualifying, voting upon, and determining the successful candidate shall otherwise be the same as provided herein relative to the election of the mayor at regular elections. The successor to the mayor chosen at any such election shall qualify for office as soon as practical thereafter, and shall be clothed with and assume the duties, responsibil-

ities and powers of such office immediately upon such qualification, and shall hold office for the unexpired term of his or her predecessor and until a successor is elected and qualified.
(Acts 1965, p. 200 (Act No. 133), § 1; Act No. 2012-223(SB104), § 6)

Sec. 4.06. The mayor; powers and duties.

The mayor shall be the head of the administrative branch of the city government. He shall not sit with the council nor shall he have a vote in its proceedings and he shall have the power and duties herein conferred. He shall be responsible for the proper administration of all affairs of the city and, subject to the provisions of any civil service or merit system law applicable to such city and except as otherwise provided herein, he shall have power and shall be required to:

(1) Enforce all law and ordinances.

(2) Appoint and, when necessary for the good of the service, remove all officers and employees of the city except as otherwise provided by this Act and except as he may authorize the head of a department or office to appoint and remove subordinates in such department or office; provided that he shall not appoint or remove officers and employees of:

a. Any board of the city having control over any park, recreation facility, fair or exhibit, or any library board of the city;

b. Any municipally-owned public utility, including electric, gas and water systems, while such utility is operating under a board constituted by law or required by the terms of any indenture, mortgage or deed of trust providing for employment by other authority;

c. Any nonelected school board of the city;

d. Any planning board or zoning board of the city.

(3) Exercise administrative supervision and control over all departments created by this Act or by law or hereafter created by the council except those enumerated in subdivisions a. to d., inclusive, of subsection (2) of this section, and except those otherwise given independent status under this Act.

(4) Shall keep the council fully advised as to the financial conditions and needs of the city; prepare and submit the budget annually to the council and be responsible for its administration after its adoption; prepare and submit, as of the end of the fiscal year, a complete report on the financial and administrative activities of the city for such year and prepare a detailed report within ten days of the council's request except the mayor shall have an extension of five additional days if the information is not readily available.

(5) Recommend to the council such actions as he may deem desirable.

(6) Prepare and submit to the council such reports as may be required of him.

(7) Perform such other duties as may be prescribed by this Act.

(8) Fix the salaries or compensation of all officers and employees of the city who are appointable by him, subject, however, to the provisions of any civil service or merit law applicable to the city.

(9) Employ as members of his staff such employees as the mayor may deem necessary for and on behalf of said city to assist the mayor and perform such duties relating to the mayor as the mayor may assign. Each such employee shall serve at the pleasure of the mayor [at] such compensation as the mayor may set. Such staff members shall not be under any merit or civil service system, but, should a member of the classified service under any merit or civil service system applicable to the city be appointed hereunder, the provisions of this section notwithstanding, he may be paid at the salary established for his classification at the time of appointment; and such person shall not lose any rights under such merit or civil service system by reason of his appointment hereunder, and shall, upon termination of service on the mayor's staff, have the right to return to the classified service, with full credit for time served on the mayor's staff, at the same or higher classification as that held upon appointment hereunder. Each such employee shall by reason of such employment become a member of the pension system covering the general employees of the city, if there be such a system, to the same extent and in the same manner as other general employees of the city, provided such employee apply to the board or other authority administering such pension system within 30 days of appointment; otherwise, such employee shall not be a member of the system. This section shall not limit the authority of the mayor to appoint other staff under the merit system or as otherwise authorized by law. No person employed in one of these staff positions shall run for elected office while so employed.

(10) Retain the services of outside counsel and other professional services, to the extent that it is in the budget, and will not impact the budget, to meet the needs of the city when, in the opinion of the mayor, such action would best serve the interests of the city.

(Acts 1973, p. 1964 (Act No. 1168), § 1; Act No. 82-336, p. 465, § 1; Act No. 84-626, p. 1276, § 1; Act No. 2016-277(HB515), § 1)

Editor's note—Section 1 of Act No. 502, 1973, authorized the appointment by the mayor of a chief administrative assistant to the mayor, not subject to the provisions of any merit system, with a maximum annual salary of $21,500.00. Section 1 of Act No. 484, 1982, increased the maximum salary to $39,500.00 annually, and provided that such employee should not be subject to any merit system while serving on the mayor's staff but be a member of any pension system applicable to merit system employees if application be made within 30 days of appointment.

Sec. 4.07. Administrative departments.

There shall be a department of finance, and such other departments as may be established by ordinance upon the recommendation of the mayor.

Sec. 4.08. Directors of departments.

At the head of each department there shall be a director, who shall be an officer of the city and shall have supervision and control of the department subject to the mayor.

Two or more departments may be headed by the same individual, the mayor may head one or more departments, and directors of departments may also serve as chiefs of divisions.

Sec. 4.09. Departmental divisions.

The work of each department may be distributed among such divisions thereof as may be established by ordinance upon the recommendation of the mayor. Pending the passage of an ordinance or ordinances distributing the work of departments under the supervision and control of the mayor among specific divisions thereof, the mayor may establish temporary divisions.

ARTICLE V. BUDGET

Sec. 5.01. Fiscal year.

The fiscal year of the city government shall begin on July 1 and shall end on June 30 of each calendar year. Such fiscal year shall also constitute the budget and accounting year. As used in this Act, the term "budget year" shall mean the fiscal year for which any particular budget is adopted and in which it is administered.

Notwithstanding any provision herein, the council may enact an ordinance declaring that the city adopts a fiscal year that begins on October 1 and ends on September 30 of the following calendar year. The ordinance shall become effective on the first day after the expiration of any fiscal year ending June 30 in which the ordinance is adopted. The ordinance shall provide that in order to change from a July 1 to June 30 fiscal year to an October 1 to September 30 fiscal year, the city shall, on a one-time basis, utilize a transitional financial reporting period that extends, at the council's election, for a three-month period beginning on July 1 and ending September 30 of that same calendar year, or for a 15-month period beginning on July 1 and ending on September 30 of the following calendar year.
(Acts 1973, p. 1207 (Act No. 792), § 1; Act No. 2013-376(HB 523), § 2(5.01))

Sec. 5.02. Submission of budgets.

On a day to be fixed by the council but in no case later than May 20 in each year, the mayor shall submit to the council:

(a) A separate current revenue and expense budget for the general operation of the city government, to be known as the "general fund budget";

(b) A budget for each public utility owned and operated by such city;

(c) A capital budget; and

(d) A budget message.

When submitting the budgets to the council, the mayor shall submit his or her recommendation of new sources of revenue or manner of increasing existing sources of revenue, sufficient to balance the budgets, if such additional revenue is necessary to accomplish that purpose.

If the council enacts the ordinance authorized by section 5.01, the mayor shall submit proposed budgets to the council no later than August 20 of any period in which the city's fiscal year is October 1 to September 30, or the August 20 immediately preceding the expiration of the transitional financial reporting period selected by the council pursuant to section 5.01.
(Acts 1973, p. 1207 (Act No. 792), § 2; Act No. 2013-376(HB 523), § 2(5.02))

Sec. 5.03. Preparation of budgets.

It shall be the duty of the head of each department, and each other office or agency supported in whole or in part by the city, to file with the director of finance, at such time as the mayor may prescribe, estimates of revenue and expenditure for that department, office or agency for the ensuing fiscal year. Such estimates shall be submitted on the forms furnished by the director of finance and it shall be the duty of the head of each such department, office or agency, to supply all the information which the director of finance may require to be submitted thereon. The director of finance shall assemble and compile these estimates and supply such additional information relating to the financial transactions of the city as may be required by the mayor in the preparation of the budgets. The mayor shall hold such hearings as he may deem advisable and with the assistance of the director of finance shall review the estimates and other data pertinent to the preparation of the budgets and make such revisions in such estimates as he may deem proper, subject to the laws of the State of Alabama and any municipal ordinance relating to obligatory expenditures for any purpose.

Sec. 5.04. Scope of general fund budget.

The general fund budget shall include only the net amounts estimated to be received from or to be appropriated to each public utility. The general fund budget shall be prepared in accordance with accepted principles of municipal accounting and budgetary procedure and techniques, and shall show:

(a) Such portion of the general fund cash surplus as it is estimated will exist, at the end of the current fiscal year, and is proposed to be used for meeting expenditures in the general fund budget for the ensuing year;

(b) An estimate of the receipts from current ad valorem taxes on real estate and tangible personal property during the ensuing fiscal year, assuming that the percentage of the levy collected be no greater than the average percentage of the levy collected in the last three completed tax years;

(c) An estimate of receipts from all other sources of revenue, provided that the estimated receipts from each such source shall not exceed the percentage of

estimated revenue in the current fiscal year from the same source, over the amount of the revenue received from the same source, in the last completed fiscal year, unless a law or ordinance under which revenue from any source is derived, has been amended or a new source of revenue has been provided by law or ordinance, in the course of the current year, in which case the estimated receipts from that source may be fixed by the mayor. If additional revenue is to be derived from the state, the amount fixed by the mayor shall not exceed the amount which the proper state official shall certify in writing to be the reasonable expectation of receipts from such source;

(d) A statement to be furnished by the director of finance of the debt service requirements for the ensuing year;

(e) An estimate of the general fund cash deficit, if any, at the end of the current fiscal year and of any other obligations required by law to be budgeted for the ensuing fiscal year;

(f) An estimate of expenditures and appropriations for all other purposes to be met from the general fund in the ensuing fiscal year. All the estimates shall be in detail showing receipts by sources and expenditures by operating units, character and object, so arranged as to show receipts and expenditures as estimated for the current fiscal year and actual receipts and expenditures for the last preceding fiscal year, in comparison with estimated receipts and recommended expenditures for the ensuing fiscal year.

Sec. 5.05. A balanced budget.

In no event shall the expenditures recommended by the mayor in the general fund budget exceed the receipts estimated, taking into account the estimated cash surplus or deficit at the end of the current fiscal year, as provided in the preceding section, unless the mayor shall recommend an increase in or levy of new or increased, taxes or licenses within the power of the city to levy and collect in the ensuing fiscal year, the receipts from which, estimated on the basis of the average experience with the same or similar taxes during the three full tax years last past, will make up the difference. If estimated receipts exceed estimated expenditures, the mayor may recommend revisions in the tax and license ordinances of the city in order to bring the general fund budget into balance. The same balanced budget restrictions shall apply in the adoption of any public utility budget.

Sec. 5.06. The budget message.

The budget message shall contain the recommendations of the mayor concerning the fiscal policy of the city, a description of the important features of the budget plan, an explanation of all salient changes in each budget submitted, as to estimated

receipts and recommended expenditures as compared with the current fiscal year and the last preceding fiscal year, and a summary of the proposed budget showing comparisons similar to those required by section 5.04 above.

Sec. 5.07. Availability of budgets for inspection and publication of the budget message.

The mayor shall cause the budget message to be printed, mimeographed or otherwise reproduced for general distribution at the time of its submission to the council, and sufficient copies of the proposed general fund, public utility and capital budgets to be made, to supply copies to each member of the council and each daily newspaper of general circulation published in the city, and two copies to be deposited in the office of the city clerk where they shall be open to public inspection during regular business hours.

Sec. 5.08. Publication of notice of public hearing.

At the meeting of the council at which the budget and budget message are submitted, the council shall determine the place and time of the public hearing on the budget, and shall cause to be published a notice of the place and time, not less than seven days after the date of publication, at which the council will hold a public hearing. Publication shall be made at least once in a newspaper published in and having general circulation in the city. At the time and place so advertised, or at anytime and place to which such public hearing shall from time to time be adjourned, the council shall hold a public hearing on the budget as submitted, at which any citizen of the city shall be given an opportunity to be heard, for or against the estimates or any item thereof.
(Act No. 2013-376(HB 523), § 2(5.08))

Sec. 5.09. Action by the council on the general fund budget.

After the conclusion of the public hearing, the council, by an affirmative vote of five members and only if approved in writing by the mayor, may insert new items of expenditures or may increase, decrease or strike out items of expenditure in the general fund budget, except that no item of expenditure for debt service, or any other item required to be included by this Act or other provision of law, shall be reduced or stricken out. The council shall not alter the estimates of receipts contained in the said budget except to correct omissions or mathematical errors and it shall not cause the total of expenditures as recommended by the mayor to be increased without a public hearing on such increase, which shall be held not less than three days after notice thereof by publication in a newspaper of general circulation published in the city. The council shall in no event adopt a general fund budget in which the total of expenditures exceeds the receipts and available surplus, estimated as provided in section 5.04 of this Act, unless at the same time it adopts

measures for providing additional revenue in the ensuing fiscal year, estimated as provided in sections 5.02 and 5.05 of this Act, sufficient to make up the difference.
(Act No. 2016-277(HB515), § 1)

Sec. 5.10. Adoption of general fund budget.

Not later than June 20 of the current fiscal year, the council by a majority vote shall adopt the general fund budget, and such ordinances providing for additional revenue as may be necessary to put the budget in balance. If for any reason the council fails to adopt the general fund budget on or before such day, the general fund budget of the current fiscal year shall be the general fund budget for the ensuing year, until such time as a newly revised budget shall be adopted by the council, and, until such time, shall have full force and effect to the same extent as if the same had been adopted by the council, notwithstanding any thing to the contrary in this Act.

If the council enacts the ordinance authorized by section 5.01, the council shall adopt the general fund budget by September 20 of any period in which the city's fiscal year is October 1 to September 30, or the September 20 immediately preceding the expiration of the transitional financial reporting period selected by the council pursuant to section 5.01.
(Acts 1973, p. 1207 (Act No. 792), § 3; Act No. 2013-376(HB 523), § 2(5.10))

Sec. 5.11. Effective date of budget; certification; copies made available.

Upon final adoption, the budget shall be in effect for the budget year. A copy of the budget, as finally adopted, shall be certified by the mayor and city clerk and filed in the office of the director of finance. The budget so certified shall be printed, mimeographed or otherwise reproduced and sufficient copies thereof shall be made available for the use of all offices, departments and agencies and for the use of citizens of the city who request a copy.

Sec. 5.12. Utility budgets.

Separate budget estimates for any public utilities owned and operated by the city shall be submitted to the director of finance at the same time as the budget estimates of other departments, and in the form prescribed by the director of finance. The mayor shall prepare and present to the council a budget for the utility operation, itemizing the receipts and expenditures in manner and form as is generally provided for in section 5.04 of this Act as being applicable to the general fund budget. The action of the council on any utility budget thus submitted shall be governed by the same provision as provided in this Act with reference to the consideration and adoption of the general fund budget.

Sec. 5.13. Work plan and allotments.

After the current expense budgets have been adopted and before the beginning of the fiscal year the head of each department, office, and agency, shall submit to the mayor in such form as he shall prescribe a work program which shall show the requested allotments of the appropriations for such department, office or agency for the entire fiscal year by monthly or quarterly periods as the mayor may direct. Before the beginning of the fiscal year the mayor shall approve, with such amendments as he shall determine, the allotments for each such department, office, or agency, and shall file the same with the director of finance who shall not authorize any expenditure to be made from any appropriation except on the basis of approved allotments, provided that such allotments shall be in conformity with the salaries established by ordinance, the provisions of any merit or civil service system applicable to such city, the laws of the State of Alabama and any municipal ordinances of such city relating to obligatory expenditures for any purpose. The aggregate of such allotments shall not exceed the total appropriation available to each such department, office, or agency for the fiscal year. An approved allotment may be revised during the fiscal year in the same manner as the original allotment was made. If at any time during the fiscal year the mayor shall ascertain that the revenue cash receipts of the general fund or any public utility for the year plus any cash surplus available from the preceding year, will be less than the total appropriations to be met from such receipts and cash surplus, he shall reconsider the work programs and allotments of the departments, offices, and agencies, and, subject to the laws of the State of Alabama and any municipal ordinances of the city relating to obligatory expenditures for any purpose, revise the allotments so as to forestall the incurring of a deficit; provided, however, that there shall be no reduction in salaries except by order of the council, or as authorized by law.

Sec. 5.14. Transfers of appropriations.

The mayor may at any time authorize, at the request of any department, office, or agency, the transfer of any unencumbered balance or portion thereof in any general fund or utility appropriation from one classification of expenditure to another within the same department, office, or agency, provided that for this purpose the water, gas and electric utilities shall be deemed to be separate departments. At the request of the mayor, the council may by resolution transfer any unencumbered balance or portion thereof in any general fund appropriation from one department, office, or agency to another.

Sec. 5.15. Additional appropriations.

Appropriations in addition to those contained in the original general fund budget ordinance, may be made by the council by not less than five affirmative votes, but only on the recommendation of the mayor in writing, copies of which he or she shall provide to the director of finance, and only if the director of finance certifies in

writing that there is available in the general fund a sum unencumbered and unappropriated sufficient to meet such appropriation. Additional appropriations may be made by the council, by not less than five affirmative votes, from the funds of any utility for the operation of that utility, but only if the director of finance certifies in writing that there is available in the funds of the utility, a sum unencumbered and unappropriated sufficient to meet such appropriation.
(Act No. 2016-277(HB515), § 1)

Sec. 5.16. Emergency appropriations.

At any time in any budget year, the council may, pursuant to this section, make emergency appropriations to meet a pressing need for public expenditures, for other than a regular or recurring requirement, to protect the public health, safety or welfare. Such appropriation may be made by the council, by not less than five affirmative votes, but only on the recommendation of the mayor. The total amount of all emergency appropriations made in any budget year shall not exceed five per centum of the total general fund operating appropriations made in the budget for that year.

Sec. 5.17. Appropriations to lapse.

Any portion of an appropriation remaining unexpended and unencumbered at the close of the fiscal year, shall lapse.

Sec. 5.18. Capital budget.

At the same time that he submits the general fund budget, the mayor shall submit to the council a capital improvement program covering all recommended capital improvement projects, for the ensuing fiscal year and for the four fiscal years thereafter, with his recommendations as to the means of financing the improvements proposed for the ensuing fiscal year. The council shall have power to accept with or without amendments or reject the proposed program and proposed means of financing for the ensuing fiscal year; and may from time to time during the fiscal year amend by ordinance adopted by at least five affirmative votes, the program previously adopted by it, or the means of financing the whole or any part thereof or both, provided that the amendment shall have been recommended by the mayor, and further, provided such additional funds are available in the general fund or in any other fund of the city available therefor. The council shall adopt a capital budget prior to the beginning of the fiscal year in which the budget is to take effect. No appropriations for a capital improvement project contained in the capital budget shall lapse until the purpose for which the appropriation was made shall have been accomplished or abandoned, provided that any project shall be deemed to have been abandoned if three fiscal years lapse without any expenditure from or encumbrance of the appropriation therefor. Any such lapsed appropriation shall be applied to the payment of any indebtedness incurred in financing the project concerned and if there be no such indebtedness shall be available for appropriation.

Sec. 5.19. Certification of funds; penalties for violation.

No payment shall be made and no obligation incurred by or on behalf of the city except in accordance with an appropriation duly made and no payment shall be made from or obligation incurred against any allotment or appropriation unless the director of finance shall first certify that there is a sufficient unexpended and unencumbered balance in such allotment or appropriation to meet the same; provided that nothing

herein shall be taken to prevent the advance authorization of expenditures for small purchases as provided in subsection (e) of section 6.04 of this Act. Every expenditure or obligation authorized or incurred in violation of the provisions of this Act shall be void. Every payment made in violation of the provisions of this Act shall be deemed illegal and every official who shall knowingly authorize or make such payment or knowingly take part therein and every person who shall knowingly receive such payment or any part thereof shall be jointly and severally liable to the city for the full amount so paid or received. If any officer, member of a board, or employee of the city, shall knowingly incur any obligation or shall authorize or make any expenditure in violation of the provisions of this Act or knowingly take part therein such action shall be cause for his removal. Nothing in this section contained, however, shall prevent the making of contracts of lease or for services providing for the payment of funds at a time beyond the fiscal year in which such contracts are made, provided the nature of such transactions will reasonably require the making of such contracts.

Sec. 5.20. Reserve for permanent public improvements.

The council may by ordinance establish a reserve fund for permanent public improvements and may appropriate thereto any portion of the general fund cash surplus not otherwise appropriated at the close of any fiscal year. Appropriations from the said fund shall be made only to finance improvements included in the capital budget.

Sec. 5.21. Budget continuation.

Any officially adopted budget in existence at the time that the council is first organized, shall continue in force and effect during the balance of the city's then fiscal year, or until such time as the mayor may submit to the council and the council adopts, an amended, altered or revised budget for the balance of said fiscal year.

Sec. 5.22. Budget summary.

At the head of the budget there shall appear a summary of the budget, which need not be itemized further than by principal sources of anticipated revenue, stating separately the amount to be raised by property tax, kinds of expenditures itemized according to departments, doing so in such a manner as to present to the taxpayers a simple and clear summary of the detailed estimates of the budget.

ARTICLE VI. DEPARTMENT OF FINANCE

Sec. 6.01. Director of finance; appointment.

There shall be a department of finance, the head of which shall be the director of finance, who shall be appointed by the mayor, subject to the provisions of any merit or civil service system which is applicable to such city. He shall be the chief financial

officer of the city. The chief financial officer of any city which adopts the mayor-council form of government who holds office under any civil service or merit system applicable to such city shall be the first director of finance under the mayor-council form of government.

Sec. 6.02. Director of finance; qualifications.

The director of finance shall be a person skilled in municipal accounting, taxation and financial control.

Sec. 6.03. Director of finance; surety bond.

The director of finance shall provide a bond with such surety and in such amount as the council may require by resolution or ordinance. The premium on said bond shall be paid by the city.

Sec. 6.04. Director of finance; powers and duties.

The director of finance shall have general management and control of the several divisions and units of the department of finance. He shall have charge, subject to the direction and control of the mayor, of the administration of the financial affairs of the city, and to that end shall have authority and be required to:

(a) Cooperate with the mayor in compiling estimates for the general fund, public utility, and capital budgets.

(b) Supervise and control all encumbrances, expenditures and disbursements to insure that budget appropriations are not exceeded.

(c) Prescribe and install systems of accounts for all departments, offices and agencies of the city and provide instructions for their use; and prescribe the form of receipts, vouchers, bills or claims to be used and of accounts to be kept by all departments, offices and agencies of the city.

(d) Require daily, or at such other intervals as he may deem expedient, a report of receipts from each of such departments, offices and agencies, and prescribe the time and the manner in which moneys received by them shall be paid to the office of the director of finance or deposited in a city bank account under his control.

(e) Examine all contracts, purchase orders and other documents, except bonds and notes which create financial obligations against the city, and approve the same only upon ascertaining that money has been appropriated and allotted therefor and that an unexpended and unencumbered balance is available in such appropriation and allotment to meet the same, provided that the director of finance may give advance authorization for the expenditure from any appropriation for the purchase of supplies, materials, or equipment of such sum, within the current allotment of such appropriation as he may deem necessary

during a period of not to exceed the ensuing three calendar months for the purchase of items not to exceed in cost $50.00 for any one item, and immediately encumber such appropriation with the amount of such advance authorization, and thereafter, within the period specified, purchase orders for such items, to an aggregate not exceeding such authorization, shall be valid without the prior approval of the director of finance endorsed thereon, but each such purchase order shall be charged against such authorization and no such purchase order, which together with all such purchase orders previously charged within the period specified shall exceed the amount of such authorization, shall be valid.

(f) Have custody of all public funds belonging to or under the control of the city, or any office, department or agency of the city government, and deposit all funds coming into his hands in such depositories as may be designated by resolution or ordinance of the council, or, if no such resolution or ordinance be adopted, by the mayor, subject to the requirements of law as to surety and the payment of interest on deposits. All such interest shall be the property of the city and shall be accounted for and credited to the proper account. He shall not be liable for any loss sustained as to funds of the city that are on deposit in such a designated bank.

(g) Audit and approve before payment, all bills, invoices, payrolls and other evidences of claims, demands or charges against the city government and with the advice of the department of law, determine the regularity, legality and correctness of such claims, demands or charges.

(h) Have custody of all investments and invested funds of the city or in its possession in a fiduciary capacity, unless otherwise provided by this Act or by law, ordinance or the terms of any trust, and the safekeeping of all bonds and notes of the city and the receipt and delivery of city bonds and notes for transfer, registration and exchange.

(i) Have supervision over the preparation of bond ordinances, bonds, advertisements for sale of bonds, preparation of bond prospectuses, conduct of sale of bonds, and delivery of bonds, all subject to provisions of law and municipal ordinances, applicable thereto. Bonds shall be authenticated by the manual signature of the director of finance and shall bear the facsimile signature of the mayor and a facsimile of the seal of the city. Interest coupons transferable by delivery shall be attached to the bond and shall be authenticated by the facsimile signature of the director of finance.

(j) Supervise and direct the placing of all types of insurance carried by the city where the premiums in whole or in part are paid by the city, or the premiums in whole or in part are withheld through the payrolls; the amount of all types of insurance on which the city pays the premiums in whole or in part shall be determined by the council after a recommendation by the mayor.

(k) Submit to the mayor for presentation to the council not later than the 12th day of each month, a statement showing in reasonable detail the revenues received by the city during the preceding month, the revenues received during that fiscal year up to and through the end of the preceding month, the expenditures made during the preceding month, and the accumulated expenditures made during that fiscal year up to and through the end of the preceding month, together with a comparison of said items with the budget estimates.

(l) Furnish to the head of each department, office and agency of the city a copy of that portion of the statement as required in item (k) of this section, as same is related to his department, office or agency.

(m) Prepare and submit to the mayor at the end of each fiscal year, for the preceding year, a complete financial statement and report of the financial transactions of the city.

(n) Designate, with the approval of the mayor, and subject to the provisions of any merit or civil service system applicable to such city, an employee of the department of finance as deputy director of finance who during the temporary absence or incapacity of the director of finance shall have and perform all the powers and duties conferred or imposed upon the director of finance.

(o) Protect the interests of the city by withholding the payment of any claim or demand by any person, firm or corporation against the city until any indebtedness or other liability due from such person, firm or corporation shall first have been settled and adjusted.

(p) Collect all special assessments, license fees and other revenues of the city for whose collection the city is responsible and receive all money receivable by the city from the county, state or federal government, or from any court, or from any office, department or agency of the city.

(q) With approval of the mayor to inspect and audit any accounts or records of financial transactions which may be maintained in any office, department or agency of the city government apart from or subsidiary to the accounts kept in his office.

(r) Supervise through the division of purchases as provided for in section 6.07 of this Act, and be responsible for the purchase, storage and distribution of all supplies, materials, equipment and other articles used by any office, department or agency of the city government.

Sec. 6.05. When contracts and expenditures prohibited.

No officer, department or agency shall, during any budget year, expend or contract to expend any money or incur any liability, or enter into any contract which by its terms involves the expenditure of money, for any purpose, in excess of the amounts appropriated for that general classification of expenditure pursuant to this Act. Any

contract, verbal or written, made in violation of this Act shall be null and void. Any officer or employee of the city who shall violate this section shall be guilty of a misdemeanor and, upon conviction thereof, shall be punishable as in case of misdemeanor conviction and shall also cease to hold his office or employment. Nothing in this section contained, however, shall prevent the making of contracts or the spending of money for capital improvements to be financed in whole or in part by the issuance of bonds, nor the making of contracts of lease or for services for a period exceeding the budget year in which such contract is made, when such contract is permitted by law.

Sec. 6.06. Fees shall be paid to city government.

All fees received by any officer or employee of the city, shall belong to the city government and shall be paid daily to the department of finance.

Sec. 6.07. Division of purchases.

There shall be established in the department of finance a division of purchases, the head of which shall be the city purchasing agent. The purchasing agent, pursuant to rules and regulations established by resolution or ordinance, shall contract for, purchase, store and distribute all supplies, materials and equipment required by any office, department or agency of the city government. The purchasing agent shall also have power and shall be required to:

1. Establish and enforce specifications with respect to supplies, materials, and equipment required by the city government;
2. Inspect or supervise the inspection of all deliveries of supplies, materials and equipment, and determine their quality, quantity and conformance with specifications;
3. Have charge of such general storerooms and warehouses as the council may provide by resolution or ordinance;
4. Transfer to or between offices, departments or agencies, or sell surplus, obsolete, or unused supplies, material and equipment;
5. Perform such other duties as may be imposed upon him by resolution or ordinance.

Sec. 6.08. Competitive bidding.

Before the purchasing agent makes any purchase of or contract for supplies, materials or equipment, he shall give ample opportunity for competitive bidding, under such rules and regulations, and with such exceptions, as the council may prescribe by resolution or ordinance, provided, however, that the council shall not except individual contracts, purchases, or sales from the requirement of competitive bidding.

Sec. 6.09. Contracts for city improvements.

Any city improvement costing more than $2,000.00 shall be executed by contract except where such improvement is authorized by the council to be executed directly by a city department in conformity with detailed plans, specifications and estimates. All such contracts for more than $2,000.00 shall be awarded to the lowest responsible bidder after such public notice and competition as may be prescribed by resolution or ordinance, provided the mayor shall have the power to reject all bids and advertise again. Alterations in any contract may be made when authorized by the council upon the written recommendation of the mayor.

Sec. 6.10. Accounting control of purchases.

All purchases made and contracts executed by the purchasing agent shall be pursuant to a written requisition from the head of the office, department or agency whose appropriation will be charged, and no contact or order shall be issued to any vendor unless and until the director of finance certifies that there is to the credit of such office, department or agency, a sufficient unencumbered appropriation balance to pay for the supplies, materials, equipment or contractual service for which the contract or order is to be issued.

Sec. 6.11. Borrowing in anticipation of revenues.

In any budget year, in anticipation of the collection or receipt of revenues of the budget year, the council may by resolution authorize the borrowing of money by the issuance of negotiable notes of the city, each of which shall be designated "revenue note for the year 19____ (stating the budget year)." Such notes may be renewed from time to time; but all such notes, together with the renewals thereof, shall mature and be paid not later than the end of the fiscal year after the budget year in which the original notes have been issued. Such borrowing shall be subject to any limitation on amount provided by statute.

Sec. 6.12. Borrowing to meet emergency appropriations.

In the absence of unappropriated available revenues to meet emergency appropriations under the provisions of section 5.16, the council may by resolution authorize the issuance of notes, each of which shall be designated "emergency note" and may be renewed from time to time, but all such notes of any fiscal year and any renewals thereof shall be paid not later than the last day of the fiscal year next succeeding the budget year in which the emergency appropriation was made.

Sec. 6.13. Notes redeemable prior to maturity.

No notes shall be made payable on demand, but any note may be made subject to redemption prior to maturity on such notice and at such time as may be stated in the note.

Sec. 6.14. Sale of notes; report of sale.

All notes issued pursuant to this Act may be sold at not less than par and accrued interest at private sale without previous advertisement.

ARTICLE VII. SUCCESSION IN GOVERNMENT

Sec. 7.01. Rights of officers and employees preserved.

Nothing in this Act contained, except as specifically provided, shall affect or impair the rights or privileges of officers or employees of the city or of any office, department or agency existing at the time when this Act shall take effect, or any provision of law in force at the time when the mayor-council form of government shall be adopted and not inconsistent with the provisions of this Act, in relation to the personnel, appointment, ranks, grades, tenure of office, promotion, removal, pension and retirement rights, civil rights or any other rights or privileges of officers or employees of the city or any office, department or agency thereof.

Sec. 7.02. Continuance of present officers.

All persons holding administrative office at the time the mayor-council form of government is adopted shall continue in office and in the performance of their duties until provision shall have been made in accordance therewith for the performance of such duties or the discontinuance of such office. The powers conferred and the duties imposed upon any office, department or agency of the city by the laws of the State shall, if such office, department or agency, be abolished by this Act, or under its authority, be thereafter exercised and discharged by the office, department or agency designated by the council unless otherwise provided herein.

Sec. 7.03. Status of officers and employees holding positions when the mayor-council form of government is adopted.

Any person holding an office or position in the classified service of the city under any civil service or merit system applicable to the city when the mayor-council form of government shall be adopted shall be continued as such officer or employee in the classified service of the city under the mayor-council form of government and with the same status, rights and privileges and subject to the same conditions under such applicable civil service or merit system as if the mayor-council form of government had not been adopted.

Sec. 7.04. Transfer of records and property.

All records, property and equipment whatsoever of any office, department or agency or part thereof, all the powers and duties of which are assigned to any other office, department or agency by this Act, shall be transferred and delivered to the office, department or agency to which such powers and duties are so assigned. If part of the

powers and duties of any office, department or agency or part thereof are by this Act assigned to another office, department or agency, all records, property and equipment relating exclusively thereto shall be transferred and delivered to the office, department or agency to which such powers and duties are so assigned.

Sec. 7.05. Continuity of offices, departments or agencies.

Any office, department or agency provided for in this Act with a name or with powers and duties the same or substantially the same as those of an office, department or agency heretofore existing shall be deemed to be a continuation of such office, department or agency and, until otherwise provided, shall exercise its powers and duties in continuation of their exercise by the office, department or agency by which the same were heretofore exercised and, until otherwise provided, shall have power to continue any business, proceeding or other matter within the scope of its regular powers and duties commenced by an office, department or agency by which such powers and duties were heretofore exercised. Any provision in any law, rule, regulation, contract, grant or other document relating to such a formerly existing office, department or agency, shall, so far as not inconsistent with the provisions of this Act, apply to such office, department or agency provided for by this Act.

Sec. 7.06. Continuance of contracts and public improvements.

All contracts entered into by the city, or for its benefit, prior to the adoption by such city of the mayor-council form of government, shall continue in full force and effect. Public improvements for which legislative steps have been taken under laws existing at the time of the adoption of the mayor-council form of government may be carried to completion as nearly as practicable in accordance with the provisions of such existing laws.

Sec. 7.07. Pending actions and proceedings.

No action or proceeding, civil or criminal, pending at the time of the adoption of the mayor-council form of government, brought by or against the city or any office, department or agency or officer thereof, shall be affected or abated by the adoption of the mayor-council form of government or by anything therein contained in this Act; but all such actions or proceedings may be continued notwithstanding that functions, powers and duties of any office, department or agency or officer party thereto may by or under this Act be assigned or transferred to another office, department or agency or officer, but in that event the same may be prosecuted or defended by the head of the office, department or agency to which such functions, powers and duties have been assigned or transferred by or under this Act.

Sec. 7.08. Pension and relief funds.

Except as expressly provided by this part, all laws and parts of laws relating to pension, retirement and relief funds for policemen, firemen and other employees of the city, contained in the general or local laws of the state or in title 62 of the Code of Alabama, as amended, as the same may apply and be in effect with respect to any city at the time when such city shall elect to be governed by the provisions of this Act, shall continue in full force and effect, and without interruption or change as to any rights which have been acquired thereunder, after adoption of the mayor-council form of government by such city.
(Act No. 2016-277(HB515), § 1)

Sec. 7.09. Park, play ground and fairground authority.

All laws and parts of laws relating to establishment of an authority for fairgrounds, parks, exhibits, exhibitions and other installations, facilities and places for the amusement, entertainment, recreation and cultural development of the citizens of a city, and for the powers, authority, mode of financing and conduct of the same, contained in the general or local laws of the state or in title 62 of the Code of Alabama, as amended, as the same may apply and be in effect with respect to any city at the time when such city shall elect to be governed by the provisions of this Act, shall continue in full force and effect, and without interruption or change as to the establishment or conduct of any authority created thereunder, after adoption of the mayor-council form of government by such city.

Sec. 7.10. When provisions take effect.

For the purpose of nominating and electing members of the council and the mayor, the provisions of this Act shall become applicable to any city adopting the mayor-council form of government upon the filing of the certificate of adoption by the judge of probate with the mayor or other chief executive office of the city as provided for in section 1.06 hereof. For all other purposes the provisions of this Act shall become applicable to said city at the time when the first council of such city elected under the provisions hereof takes office and qualifies.

Sec. 7.11. Continuance of ordinances and resolutions.

To the extent consistent with the terms of this part, all ordinances and resolutions of the city in effect at the time of adoption by the city of the mayor-council form of government herein set up shall continue in effect unless and until changed or repealed by the council. To the extent any current or future ordinance or resolution of the city is inconsistent with the express terms of this part, the ordinance or resolution shall be void and of no effect to the extent of its inconsistency.
(Act No. 2016-277(HB515), § 1)

ARTICLE VIII. GENERAL PROVISIONS

Sec. 8.01. Removal of officers and employees.

Subject to the provisions of any civil service or merit system applicable to the city, any officer or employee to whom the mayor, or a head of any office, department or agency, may appoint a successor, may be removed by the mayor or other appointing officer at any time, and the decision of the mayor, or other appointing officer, shall be subject to appeals therefrom, if any, provided by applicable law.

Sec. 8.02. Right of mayor and other officers in council.

The mayor, the heads of all departments, and such other officers of the city as may be designated by the council, shall be entitled to attend meetings of the council, but shall have no vote therein. The mayor shall have the right to take part in the discussion of all matters coming before the council, and the directors and other officers shall be entitled to take part in all discussions of the council relating to their respective offices, departments or agencies.

Sec. 8.03. Investigations by council or mayor.

The council, the mayor, or any person or committee authorized by either of them, shall have power to inquire into the conduct of any office, department, agency or officer of the city and to make investigations as to municipal affairs, and for that purpose may subpoena witnesses, administer oaths, and compel the production of books, papers and other evidence. Failure to obey such subpoena or to produce books, papers or other evidence as ordered under the provisions of this section shall constitute a misdemeanor and shall be punishable by a fine not to exceed $100.00 or by imprisonment not to exceed six months, or both.

Sec. 8.04. Contracts extending beyond one year.

No contract involving the payment of money out of the appropriation of more than one year shall be made for a period of more than five years, nor shall any such contract be valid unless made or approved by resolution or ordinance.

Sec. 8.05. Publicity of records.

All records and accounts of every office, department or agency of the city shall be open to inspection by any citizen, any representative of a citizens' organization or any representative of the press at all reasonable times and under reasonable regulations established by the mayor, except records and documents the disclosure of which would tend to defeat the lawful purpose which they are intended to accomplish.

Sec. 8.06. Officers and employees not to be privately interested in city's contracts.

No member of the council, officer or employee elected or appointed shall be interested, directly or indirectly, in any contract for work or material, or the profits thereof, or services to be furnished or performed for the city, and no such member of the council, officer or employee shall be interested, directly or indirectly, in any contract for work or material, or the profits thereof, or services to be furnished or performed for any person, firm or corporation operating interurban railway, street railway, gas works, electric light or power plant, heating plant, telegraph line or telephone exchange within the territorial limits of said city. No such member of the council, officer or employee of such city shall be interested in or an employee or

attorney of any corporation operating any public service utility within said city. No such member of the council, officer or employee shall accept or receive, directly or indirectly, from any person, firm or corporation operating within the territorial limits of said city any interurban railway, railway, street railway, gas works, water works, electric light or power plant, heating plant, telegraph line, or telephone exchange, or other business using or operating under a public franchise, any frank, free pass, free ticket or free service, or accept or receive, directly or indirectly, from any such person, firm or corporation any gift or other thing of value, or any service upon terms more favorable than are granted to the public generally. Any violation of the provisions of this section shall be a misdemeanor, and upon conviction thereof, the guilty person shall be punished by a fine of not less than $100.00 nor more than $300.00, and may be imprisoned in the county jail for not more than 90 days. Every such contract or agreement shall be voidable by the mayor or the council. Such prohibition of free transportation shall not apply to policemen or firemen in uniform nor to policemen in the discharge of their duty; nor shall service to city officials in their official capacity heretofore provided by any franchise or ordinance be affected by this section.

Editor's note—The provisions of the 1962 act did not amend the conflict of interest provisions found in the original Mayor-Council Act of 1955. Instead, the 1962 act was enacted as an additional prohibition against any conflict of interests by the city's governing body. In addition, the repealing subsection enacted with the 1962 act makes it clear that they will prevail in the event of any conflict of law occurring between it and another section.

Sec. 8.07. Official bonds.

The director of finance, and such other officers or employees as the council may by general ordinance require so to do, shall give bond in such amount and with such surety as may be approved by the council. The premiums on such bonds shall be paid by the city.

Sec. 8.08. Oath of office.

Every officer of the city shall, before entering upon the duties of his office, take and subscribe to the following oath or affirmation, to be filed and kept in the office of the city clerk:

> "I solemnly swear (or affirm) that I will support the Constitution and will obey the laws of the United States and of the State of Alabama, that I will, in all respects, observe the provisions of the ordinances of the city of _____ and will faithfully discharge the duties of the office of _____."

ARTICLE IX. ABANDONMENT OF MAYOR-COUNCIL FORM OF GOVERNMENT

Sec. 9.01. Abandonment of the mayor-council plan.

No city may change from the mayor-council form of government within two years after the adoption thereof. At the end of such period, or at any time thereafter, the city may change its form of municipal government, either to:

(a) The form of municipal government applicable to the city prior to its adoption of the mayor-council form of government, or to

(b) The council-manager form of municipal government provided by Act Number 518 of the 1953 session of the Legislature of Alabama,

(c) One of the commission forms of municipal government provided by Title 37, Alabama Code of 1940, as amended and supplemented.

Sec. 9.02. Petition for change of form of government.

Such change shall, however, first be initiated by petition and submitted to a vote of the qualified electors at an election and shall receive at such election a majority of the votes "yes" or in favor thereof in the same manner and subject to the same requirements as provided in sections 1.02 to 1.05 of this Act except that the proposition on the ballot shall be changed to reflect the proposed form of municipal government to be submitted to the vote of the qualified electors. The officers and members of the governing body of such newly adopted form of municipal government shall be elected as soon as may be under the provisions of law applicable thereto; and upon their election and qualification for office the term of office of all members of the council under the mayor-council form of government shall terminate.

Sec. 9.03. No election on change more often than two years.

No election on the abandonment of the mayor-council form of government shall be held within two years after any other election thereon.

ARTICLE X. GENERAL STATUTORY PROVISIONS

Sec. 10.01. Effect of this Act on existing law.

Except as otherwise provided by this part, all laws and parts of laws, general, local or special, relating to or affecting the city, its powers, functions, duties and property, in force when this Act shall take effect, are hereby continued in effect; but all such laws relating to the exercise of powers, functions and duties by the

commission or council-manager or some other form of government shall be superseded to the extent that the same are inconsistent with the provisions of this Act.
(Act No. 2016-277(HB515), § 1)

Sec. 10.02. Separability clause.

If any section or part of section of this Act shall be held invalid by a court of competent jurisdiction such holding shall not affect the remainder of this Act nor the context in which such section or part of section so held invalid may appear, except to the extent that an entire section or part of section may be inseparably connected in meaning and effect with the section or part of section to which such holding shall directly apply.

Sec. 10.03. Short title.

This act shall be known and may be cited as the "Mayor-Council Act of 1955."

MAYOR-COUNCIL ACT COMPARATIVE TABLE

ACTS

This table shows the location of the sections of the basic Mayor-Council Act and any amendments thereto.

Acts No./Year Ord. No.	Page	Act No.	Section	Section this Mayor-Council Act
1961	1617	1030	2	1.01
1964	112	78	1	4.04
1965	191	123	1	3.09
	193	128	1	3.05
	195	130	1	3.15
	197	131	1	1.01
				4.02
	198	131	2	3.02
	200	133	1	4.05
	410	294	2	3.15
1965 (Cum. Supp. V. 14)	964		1615(5)	3.05
	967		1615(16)	1.01
1967	1448	637	1	3.05
	1449	637	2	3.06
1973	307	275	2	1.07
	726	495	1	3.07
	727	495	2	3.05
	742	503	1	4.04
	1207	792	1	5.01
			2	5.02
			3	5.10
	1964	1168	1	4.06
1975	315	85	1	3.04
79-257	397		1	3.18
81-1159	438		1	3.05
82-336	465		1	4.06
84-439	1018		1	3.07
84-625	1273		1	3.01
			2	3.03
	1275		3	3.12
			4	4.01
84-626	1276		1	4.06
84-629	1279		1	3.07
85-919	197		1	3.01
	198		2	3.03
	199		3	3.12
			4	4.01
87-797	1570		1	3.05
87-800	1573		1	4.04
2012-223		SB104	2	3.01

Acts No./Year Ord. No.	Page	Act No.	Section	Section this Mayor-Council Act
			3	3.02
			4	3.12
			5	4.02
			6	4.05
2013-376		HB523	2(5.01)	5.01
			2(5.02)	5.02
			2(5.08)	5.08
			2(5.10)	5.10
2016-277		HB515	1	3.06, 3.07
				3.10
				4.06
				5.09
				5.15
				7.08
				7.11
				10.01

PART 3

APPENDICES

Appendix A

SCHEDULE OF BUSINESS LICENSES*

Article I. Schedule of Business Licenses

NAICS 111. NAICS Title—Crop Production.
NAICS 112. NAICS Title—Animal Production.
NAICS 113. NAICS Title—Forestry and Logging.
NAICS 114. NAICS Title—Fishing, Hunting and Trapping.
NAICS 115. NAICS Title—Support Activities for Agriculture and Forestry.
NAICS 211. NAICS Title—Oil and Gas Extraction.
NAICS 212. NAICS Title—Mining (Except Oil and Gas).
NAICS 213. NAICS Title—Support Activities for Mining.
NAICS 221. NAICS Title—Utilities.
NAICS 236. NAICS Title—Construction of Buildings.
NAICS 237. NAICS Title—Heavy and Civil Engineering Construction.
NAICS 238. NAICS Title—Specialty Trade Contractors.
NAICS 311. NAICS Title—Food Manufacturing.
NAICS 312. NAICS Title—Beverage and Tobacco Product Manufacturing.
NAICS 313. NAICS Title—Textile Mills.
NAICS 314. NAICS Title—Textile Product Mills.
NAICS 315. NAICS Title—Apparel Manufacturing.
NAICS 316. NAICS Title—Leather and Allied Product Manufacturing.
NAICS 321. NAICS Title—Wood Product Manufacturing.

***Editor's note—**The provisions of this appendix are derived from Ord. No. 97-183, art. I, §§ 1—3, adopted December 23, 1997, as amended by the following ordinances: Ord. No. 98-106, § 1, adopted 6-30-1998; Ord. No. 00-207, § 1, adopted 12-12-2000; Ord. No. 02-173, § 1, adopted 12-10-2002; Ord. No. 03-133, § 1, adopted 8-26-2003; Ord. No. 07-17, § 1, adopted 1-30-2007; Ord. No. 07-233, § 1, adopted 12-18-2007; Ord. No. 08-241, § 1, [adopted] 12-22-2008; Ord. No. 10-181, § 1, adopted 12-7-2010; Ord. No. 10-182, § 1, adopted 12-7-2010; Ord. No. 11-1, § 1, adopted 1-4-2011; Ord. No. 11-141, § 1, adopted 11-15-2011. The ordinance has been set out as enacted and amended, including the numbering system, with only minor changes made for the purpose of stylistic consistency. Editorial changes made for the purpose of clarity are included as bracketed text [ ]. As amendatory legislation is adopted, it will be incorporated into this appendix with a history note identifying the source of the amendment.

NAICS 322. NAICS Title—Paper Manufacturing.
NAICS 323. NAICS Title—Printing and Related Support Activities.
NAICS 324. NAICS Title—Petroleum and Coal Products Manufacturing.
NAICS 325. NAICS Title—Chemical Manufacturing.
NAICS 326. NAICS Title—Plastics and Rubber Products Manufacturing.
NAICS 327. NAICS Title—Nonmetallic Mineral Product Manufacturing.
NAICS 331. NAICS Title—Primary Metal Manufacturing.
NAICS 332. NAICS Title—Fabricated Metal Product Manufacturing.
NAICS 333. NAICS Title—Machinery Manufacturing.
NAICS 334. NAICS Title—Computer and Electronic Product Manufacturing.
NAICS 335. NAICS Title—Electrical Equipment, Appliance, and Component Manufacturing.
NAICS 336. NAICS Title—Transportation Equipment Manufacturing.
NAICS 337. NAICS Title—Furniture and Related Product Manufacturing.
NAICS 339. NAICS Title—Miscellaneous Manufacturing.
NAICS 421. NAICS Title—Wholesale Trade, Durable Goods.
NAICS 422. NAICS Title—Merchant Wholesalers, Nondurable Goods.
NAICS 441. NAICS Title—Motor Vehicle and Parts Dealers.
NAICS 442. NAICS Title—Furniture and Home Furnishings Stores.
NAICS 443. NAICS Title—Electronics and Appliance Stores.
NAICS 444. NAICS Title—Building Material and Garden Equipment and Supplies Dealers.
NAICS 445. NAICS Title—Food and Beverage Stores.
NAICS 446. NAICS Title—Health and Personal Care Stores.
NAICS 447. NAICS Title—Gasoline Stations.
NAICS 448. NAICS Title—Clothing and Clothing Accessories Stores.
NAICS 451. NAICS Title—Sporting Goods, Hobby, Book, and Music Stores.
NAICS 452. NAICS Title—General Merchandise Stores.
NAICS 453. NAICS Title—Miscellaneous Store Retailers.
NAICS 454. NAICS Title—Nonstore Retailers.
NAICS 481. NAICS Title—Air Transportation.
NAICS 482. NAICS Title—Rail Transportation.
NAICS 483. NAICS Title—Water Transportation.
NAICS 484. NAICS Title—Truck Transportation.
NAICS 485. NAICS Title—Transit and Ground Passenger Transportation.
NAICS 487. NAICS Title—Scenic and Sightseeing Transportation.
NAICS 492. NAICS Title—Couriers and Messengers.
NAICS 493. NAICS Title—Warehousing and Storage.
NAICS 511. NAICS Title—Publishing Industries (Except Internet).
NAICS 512. NAICS Title—Motion Picture and Sound Recording Industries.
NAICS 515. NAICS Title—Broadcasting (Except Internet).
NAICS 516. NAICS Title—Internet Publishing and Broadcasting.
NAICS 517. NAICS Title—Telecommunications.

NAICS 519. NAICS Title—Other Information Services.
NAICS 522. NAICS Title—Credit Intermediation and Related Activities.
NAICS 523. NAICS Title—Securities, Commodity Contracts, and Other Financial Investments and Related Activities.
NAICS 524. NAICS Title—Insurance Carriers and Related Activities.
NAICS 525. NAICS Title—Funds, Trusts, and Other Financial Vehicles.
NAICS 531. NAICS Title—Real Estate.
NAICS 532. NAICS Title—Rental and Leasing Services.
NAICS 541. NAICS Title—Professional, Scientific, and Technical Services.
NAICS 551. NAICS Title—Management of Companies and Enterprises.
NAICS 561. NAICS Title—Administrative and Support Services.
NAICS 562. NAICS Title—Waste Management and Remediation Services.
NAICS 611. NAICS Title—Educational Services.
NAICS 621. NAICS Title—Ambulatory Health Care Services.
NAICS 622. NAICS Title—Hospitals.
NAICS 623. NAICS Title—Nursing and Residential Care Facilities.
NAICS 624. NAICS Title—Social Assistance.
NAICS 711. NAICS Title—Performing Arts, Spectator Sports, and Related Industries.
NAICS 712. NAICS Title—Museums, Historical Sites, and Similar Institutions.
NAICS 713. NAICS Title—Amusement, Gambling, and Recreation Industries.
NAICS 721. NAICS Title—Accommodation.
NAICS 722. NAICS Title—Food Services and Drinking Places.
NAICS 811. NAICS Title—Repair and Maintenance.
NAICS 812. NAICS Title—Personal and Laundry Services.
NAICS 920. NAICS Title—Public Administration.
NAICS 923. NAICS Title—Administration of Human Resource Programs.
NAICS 924. NAICS Title—Administration of Environmental Quality Programs.
NAICS 925. NAICS Title—Administration of Housing Programs, Urban Planning, and Community Development.
NAICS 926. NAICS Title—Administration, Inspection and Regulation of Economic, Transportation, Communications Programs, and Miscellaneous Commercial Sectors.
NAICS 927. NAICS Title—Space Research and Technology.
NAICS 928. NAICS Title—National Security and International Affairs.
NAICS 999. NAICS Title—Unclassified Establishments (General Category).

ARTICLE I. SCHEDULE OF BUSINESS LICENSES

The following is hereby declared to be the schedule of licenses for the calendar year commencing January 1, 2009, and for each subsequent year thereafter, for diverse businesses, vocations, occupations and professions engaged in or carried on, in the City of Birmingham in said calendar year, and each and every person, firm, company or corporation engaged in any business, vocation, occupation or profession enumerated herein in said calendar year shall pay and take out such licenses in such sums as are herein provided; and every taxpayer required to purchase a business license under this ordinance shall purchase a business license under one or more of the following 2002 North American Industrial Classification System (NAICS) sectors and applicable subsectors, industry groups, industries and U.S. industries hereunder. The North American Industrial Classification System (NAICS) identification (sector/subsector) numbers are required as a part of the periodic reporting requirements for every business. For municipal business license purposes, each taxpayer must be minimally classified as required by State Code Sec. 11-51-90B. The descriptions listed below each NAICS code incorporate examples of each category; however these examples are not all-inclusive. A business is classified and licensed based upon the business activity or activities which it conducts within the City. Each business will be placed in the NAICS sector/subsector which best matches its activity or activities and shall pay a license tax based upon the corresponding schedule assigned to its description unless otherwise specified. The City may assign additional digits of each NAICS code for reporting purposes and proper administration of this ordinance.

In the event a person who is required to purchase a license is engaged in activity that does not meet the particular criteria of any classifications in this Section 1, then the Finance Department shall assign such person to the classification provided in this Section 1 that is the most similar to the activity in which the person is engaged. The procedure and criteria for such assignment shall be as follows:

1. The proper classification for the activity in which the person is engaged shall be identified.
2. Some schedules may use the first three digits of the NAICS classification that best describes the activity may be used to identify a classification in this Section 1 that has the same first three NAICS digits, and the person shall be assigned to that classification in Section 1. Other schedules may us the first four digits of the NAICS classification that best describes the activity may be used to identify a classification in this Section 1 that has the same first four NAICS digits, and the person shall be assigned to that classification in Section 1.
    i. In the event this procedure results in more than one applicable classification from this Section 1, and if the payment schedules for the applicable classifications are the same, then the Finance Department may use its discretion in making the assignment.

ii. In the event this procedure results in more than one applicable classification from this Section 1, and if the payment schedules for the applicable classifications are different, then the revenue department shall assign the person to the classification with the highest applicable payment schedule.

3. In the event the person cannot be classified using this procedure, then the person shall be assigned the license classification 999, Unclassified.

The index in this section is a tool for classification, not a limitation on businesses subject to a license tax. The department shall determine the proper class for a business according to the applicable NAICS.
(Ord. No. 13-143, § 1, 11-12-2013)

NAICS/NAICS TITLE/LICENSE SCHEDULE/LICENSE DESCRIPTION

NAICS 111. NAICS TITLE—CROP PRODUCTION.

Industries in the Crop Production subsector grow crops mainly for food and fiber. The subsector comprises establishments, such as farms, orchards, groves, greenhouses, and nurseries, primarily engaged in growing crops, plants, vines, or trees and their seeds.

The industries in this subsector are grouped by similarity of production activity, including biological and physiological characteristics and economic requirements, the length of growing season, degree of crop rotation, extent of input specialization, labor requirements, and capital demands. The production process is typically completed when the raw product or commodity grown reaches the "farm gate" for market, that is, at the point of first sale or price determination.

Establishments are classified to the crop production subsector when crop production (i.e., value of crops for market) accounts for one-half or more of the establishment's total agricultural production. Within the subsector, establishments are classified to a specific industry when a product or industry family of products (i.e., oilseed and grain farming, vegetable and melon farming, fruit and tree nut farming) account for one-half or more of the establishment's agricultural production.

SCHEDULE 107. FRUITS AND VEGETABLES—WHOLESALE.

(a) Each person engaged as an agent, dealer, factor or commission merchant in the business of buying, selling, or delivering fruits or vegetables at wholesale, shall pay a license of two-tenths of one percent of gross receipts of said business from the year preceding with a minimum license of: $200.00.

(b) This license shall permit the owner of said business to use one truck-owned or operated by him in supplying said established place of business with said merchandise from a point without the city to his regular established place of business within

the city, for which the license has been paid. The finance department must be advised in advance by the operator of the established place of business, giving a full description of the one truck owned and/or operated by said licensee.

(c) On all trucks over and above one, whether owned or operated or not by said licensee supplying such products to the regularly established place of business above referred to, shall pay a license on each truck as is provided for in schedule 108.

(d) Wholesale dealers in fruit and/or vegetables making sales and/or deliveries from trucks or vehicles, not on orders previously taken, shall pay a license of $150.00 on each truck or vehicle so used. This subsection shall apply only to sales made from vehicles on public streets or highways.

No vending is allowed on sidewalks, streets, highways, or roadways located within the study area designated under the Master Plan for Downtown Birmingham, namely that area bounded on the north by 12th Avenue North, on the east by Red Mountain Expressway and 26th Street North, on the south by Highland Avenue South and 12th Avenue South and on the west by I-65, and the streets and sidewalks within neighborhood retail business districts within the city without authorization. Such authorization must be obtained in addition to a business license.

(Note: Anyone wishing to peddle in the Study Area should contact Operation New Birmingham (ONB).)

The issuance of a business license under this schedule does not permit or authorize any activity which is prohibited by Title 12, Chapter 14, Article A of the General Code of the City of Birmingham 1980, as amended and as it may be amended.

SCHEDULE 108. FRUITS AND VEGETABLES (UNDRIED).

Each wholesale dealer in undried fruits and/or vegetables engaged in selling and/or delivering the same by truck or other vehicle to a point within the city shall pay a license on each vehicle or truck used in said business of: $200.00.

The licensee must furnish the motor and state tag number when applying for said license.

No vending is allowed on sidewalks, streets, highways, or roadways located within the study area designated under the Master Plan for Downtown Birmingham, namely that area bounded on the north by 12th Avenue North, on the east by Red Mountain Expressway and 26th Street North, on the south by Highland Avenue South and 12th Avenue South and on the west by I-65, and the streets and sidewalks within neighborhood retail business districts within the city without authorization. Such authorization must be obtained in addition to a business license. (Note: Anyone wishing to peddle in the Study Area should contact Operation New Birmingham (ONB).)

The issuance of a business license under this schedule does not permit or authorize any activity which is prohibited by Title 12, Chapter 14, Article A of the General Code of the City of Birmingham 1980, as amended and as it may be amended.

SCHEDULE 191. PEANUT DEALERS.

Where principal business, a license of two-tenths of one percent of the gross receipts from said business from the previous year with a minimum license in any case of: $120.00.

No license will be issued until applicant has obtained and presented to the Revenue Division at the time of application a current, valid Health Department Permit.

SCHEDULE 253. WATERMELONS.

Each person, firm or corporation whose principal business at any one place is the wholesaling of watermelons: $100.00.

Each retail peddler selling watermelons: $30.00.

NAICS 112. NAICS TITLE—ANIMAL PRODUCTION.

Industries in the Animal Production subsector raise or fatten animals for the sale of animals or animal products. The subsector comprises establishments, such as ranches, farms, and feedlots primarily engaged in keeping, grazing, breeding, or feeding animals. These animals are kept for the products they produce or for eventual sale. The animals are generally raised in various environments, from total confinement or captivity to feeding on an open range pasture.

The industries in this subsector are grouped by important factors, such as suitable grazing or pasture land, specialized buildings, type of equipment, and the amount and types of labor required. Establishments are classified to the Animal Production subsector when animal production (i.e., value of animals for market) accounts for one-half or more of the establishment's total agricultural production.

SCHEDULE 204. POULTRY AND EGGS, WHOLESALE—RETAIL.

Where principal business, $200.00 on the first $100,000.00 or less of gross receipts from said business for the year next preceding, plus an amount equal to two-tenths of one percent on all gross receipts from said business for the year next preceding the current license year in excess of $100,000.00. The above license shall apply only to those who regularly maintain within the city an established place of business from which is delivered the majority of their sales, or to those persons who maintain or store within the city a stock of poultry products or eggs, either in the shell or in dehydrated or powdered form, for delivery, sale or distribution.

SCHEDULE 205. POULTRY AND EGGS, WHOLESALE.

Each person, firm or corporation engaged in such business, shall pay a license on gross receipts of $50,000.00 or less $200.00 plus two-tenths of one percent of gross receipts in excess of $50,000.00.

SCHEDULE 299. ANIMAL PRODUCTION.

Each person, firm or corporation engaged in the sale of animals or animal products shall pay a license tax of two-tenths of one percent of the gross receipts from said business from the previous year with a minimum license of: $200.00.

NAICS 113. NAICS TITLE—FORESTRY AND LOGGING.

Industries in the Forestry and Logging subsector grow and harvest timber on a long production cycle (i.e., of ten years or more). Long production cycles use different production processes than short production cycles, which require more horticultural interventions prior to harvest, resulting in processes more similar to those found in the Crop Production subsector. Consequently, Christmas tree production and other production involving production cycles of less than ten years are classified in the Crop Production subsector.

Industries in this subsector specialize in different stages of the production cycle. Reforestation requires production of seedlings in specialized nurseries. Timber production requires natural forest or suitable areas of land that are available for a long duration. The maturation time for timber depends upon the species of tree, the climatic conditions of the region, and the intended purpose of the timber. The harvesting of timber (except when done on an extremely small scale) requires specialized machinery unique to the industry. Establishments gathering forest products, such as gums, barks, balsam needles, rhizomes, fibers, Spanish moss, and ginseng and truffles, are also included in this subsector.

SCHEDULE 301. FORESTRY AND LOGGING.

Each person, firm or corporation who is engaged in growing and harvesting timber, tree production or production of seedlings, cutting timber, transporting timber, logging, stump removal in field or log harvesting shall pay a license tax of two-tenths of one percent of the gross receipts from said business from the previous year with a minimum license of: $200.00.

NAICS 114. NAICS TITLE—FISHING, HUNTING AND TRAPPING.

Industries in the Fishing, Hunting, and Trapping subsector harvest fish and other wild animals from their natural habitats and are dependent upon a continued supply of the natural resource. The harvesting of fish is the predominant economic activity of this subsector and it usually requires specialized vessels that, by the nature of their size, configuration and equipment, are not suitable for any other type of production, such as transportation.

Hunting and trapping activities utilize a wide variety of production processes and are classified in the same subsector as fishing because the availability of resources and the constraints imposed, such as conservation requirements and proper habitat maintenance, are similar.

SCHEDULE 102. FISH AND OYSTER PEDDLER.

Each person, firm or corporation who is engaged in bringing fish, oysters, or other seafood into the city without regularly maintaining a place of business in the city shall pay, for each truck or vehicle used in said business, a license of: $200.00.

No license will be issued until applicant has obtained and presented the following to the Revenue Division at the time of application:

(1) A valid, current Health Department Permit;

(2) A valid, current, photo identification, issued by a state, for each applicant.

No vending is allowed on sidewalks, streets, highways, or roadways located within the "Study Area" designated under the Master Plan for Downtown Birmingham, namely that area bounded on the north by 12th Avenue North, on the east by Red Mountain Expressway and 26th Street North, on the south by Highland Avenue South and 12th Avenue South and on the west by I-65, and the streets and sidewalks within neighborhood retail business districts within the City without authorization. Such authorization must be obtained in addition to a business license.

(Note: Anyone wishing to peddle in the "Study Area" should contact Operation New Birmingham (ONB).)

The issuance of a business license under this schedule does not permit or authorize any activity which is prohibited by Title 12, Chapter 14, Article A of the General Code of the City of Birmingham 1980, as amended and as it may be amended.

SCHEDULE 300. FISHING, HUNTING AND TRAPPING.

Each person, firm or corporation who is engaged in harvesting of fish, fishing, hunting and trapping fish and other wild animals primarily for commercial purposes, operating game preserves, or hunting preserves by taking them from their natural habitat shall pay a license of two-tenths of one percent of the gross receipts from said business from the previous year with a minimum of: $300.00.

NAICS 115. NAICS TITLE—SUPPORT ACTIVITIES FOR AGRICULTURE AND FORESTRY.

Industries in the Support Activities for Agriculture and Forestry subsector provide support services that are an essential part of agricultural and forestry production. These support activities may be performed by the agriculture or forestry producing establishment or conducted independently as an alternative source of inputs required for the production process for a given crop, animal, or forestry industry. Establishments that primarily perform these activities independent of the agriculture or forestry producing establishment are in this subsector.

SCHEDULE 302. SUPPORT ACTIVITIES FOR AGRICULTURE AND FORESTRY.

Each person, firm or corporation who is engaged in support activities for growing crops and providing support activities for agricultural and forestry production shall pay a license of two-tenths of one percent of the gross receipts from said business from the previous year with a minimum of: $300.00.

NAICS 211. NAICS TITLE—OIL AND GAS EXTRACTION.

Industries in the Oil and Gas Extraction subsector operate and/or develop oil and gas field properties. Such activities may include exploration for crude petroleum and natural gas; drilling, completing, and equipping wells; operating separators, emulsion breakers, desilting equipment, and field gathering lines for crude petroleum and natural gas; and all other activities in the preparation of oil and gas up to the point of shipment from the producing property. This subsector includes the production of crude petroleum, the mining and extraction of oil from oil shale and oil sands, and the production of natural gas, sulfur recovery from natural gas, and recovery of hydrocarbon liquids.

SCHEDULE 303. OIL AND GAS EXTRACTION.

Each person, firm or corporation engaged in the business of operating and developing oil and gas field properties and establishments primarily engages in recovering liquid hydrocarbons from oil and gas field gases shall pay a license equal to 6/20 of one percent of the gross receipts from said business from the previous year with a minimum of: $1,000.00.

NAICS 212. NAICS TITLE—MINING (EXCEPT OIL AND GAS).

Industries in the Mining (except Oil and Gas) subsector primarily engage in mining, mine site development, and beneficiating (i.e., preparing) metallic minerals and nonmetallic minerals, including coal. The term "mining" is used in the broad sense to include ore extraction, quarrying, and beneficiating (e.g., crushing, screening, washing, sizing, concentrating, and flotation), customarily done at the mine site.

Beneficiation is the process whereby the extracted material is reduced to particles which can be separated into mineral and waste, the former suitable for further processing or direct use. The operations that take place in beneficiation are primarily mechanical, such as grinding, washing, magnetic separation, centrifugal separation, and so on. In contrast, manufacturing operations primarily use chemical and electrochemical processes, such as electrolysis, distillation, and so on. However some treatments, such as heat treatments, take place in both stages: the beneficiation and the manufacturing (i.e., smelting/refining) stages. The range of preparation activities varies by mineral and the purity of any given ore deposit. While some minerals, such as petroleum and natural gas, require little or no preparation, others are washed and screened, while yet others, such as gold and silver, can be transformed into bullion before leaving the mine site.

SCHEDULE 304. MINING.

Each person, firm or corporation engaged in the business of mining, mine site development and beneficiating shall pay a license based on less than $30,000.00: $300.00.

Plus an amount equal to 8/10 of one percent of gross receipts in excess of $30,000.00.

NAICS 213. NAICS TITLE—SUPPORT ACTIVITIES FOR MINING.

Industries in the Support Activities for Mining subsector group establishments primarily providing support services, on a contract or fee basis, required for the mining and quarrying of minerals and for the extraction of oil and gas. Establishments performing exploration (except geophysical surveying and mapping) for minerals, on a contract or fee basis, are included in this subsector. Exploration includes traditional prospecting methods, such as taking core samples and making geological observations at prospective sites.

SCHEDULE 305. SUPPORT ACTIVITIES FOR MINING.

Each person, firm or corporation engaged in the business of mining support services for minerals which includes taking core samples, making geological observations, excavating, drilling redrilling, cementing wells, shooting wells, perforating well casing, acidizing, chemically treating wells, and swabbing wells shall pay a license based on two-tenths of one percent of the gross receipts from said business from the previous year with a minimum of: $300.00.

Mining Engineers are classified under Schedule 098.

NAICS 221. NAICS TITLE—UTILITIES.

Industries in the Utilities subsector provide electric power, natural gas, steam supply, water supply, and sewage removal through a permanent infrastructure of lines, mains, and pipes. Establishments are grouped together based on the utility service provided and the particular system or facilities required to perform the service.

SCHEDULE 095. ELECTRIC LIGHT AND POWER COMPANY.

Each person, firm or corporation engaged in the business of selling electrical current, an amount equal to three percent of the gross receipts derived during the preceding calendar year from the sale of electrical current to consumers, users and/or distributors thereof residing or having a place or places of business in the City of Birmingham when such current, after the sale thereof at any place, is consumed or used in the City of Birmingham by such consumers or users, or is distributed from any point or points in the City of Birmingham by such distributors.

Each person, firm, company, association or corporation engaging in or carrying on any business, vocation, occupation or profession hereinabove enumerated outside the corporate limits of the City of Birmingham, but within the police jurisdiction thereof, shall take out a license and pay therefor an amount equal to one-half percent the amount of license tax to which he, she or it would be subject where such business vocation, occupation or profession engaged in or carried on within the corporate limits of the City of Birmingham.

SCHEDULE 117. GAS COMPANIES.

Each person, firm or corporation engaged in the business of distributing gas at retail within the city, shall pay a license in an amount equal to three percent of the gross receipts of such business for the year next preceding.

SCHEDULE 227. STEAM HEAT.

Each person, firm or corporation engaged in the business of supplying steam, hot or chilled water for the purpose of heating or cooling buildings or any other use shall pay a license in the amount of three percent of the gross receipts from said business for the year next preceding.

SCHEDULE 252. WATER WORKS COMPANIES.

Each person, firm or corporation engaged in the business of supplying water, for public domestic purposes, three percent of the gross receipts of such business for the preceding year.

NAICS 236. NAICS TITLE—CONSTRUCTION OF BUILDINGS.

The Construction of Buildings subsector comprises establishments primarily responsible for the construction of buildings. The work performed may include new work, additions, alterations, or maintenance and repairs. The on-site assembly of precut, panelized, and prefabricated buildings and construction of temporary buildings are included in this subsector. Part or all of the production work for which the establishments in this sector have responsibility may be subcontracted to other construction establishments usually specialty trade contractors.

Establishments in this subsector are classified based on the types of buildings they construct. This classification reflects variations in the requirements of the underlying production processes.

SCHEDULE 068. CONTRACTORS (GENERAL).

Each person engaged in the business of constructing houses or buildings on contract, or who constructs two or more houses a year, whether on contract or otherwise, or who maintains an office in Birmingham used in connection with such construction services outside of Birmingham, where gross receipts for services performed inside the City of Birmingham from the previous year are:

Less than $50,000	$250.00
$50,000 and less than $70,000	$350.00
$70,000 and less than $110,000	$500.00
$110,000 and less than $160,000	$750.00
$160,000 and less than $210,000	$850.00
$210,000 and less than $260,000	$975.00
$260,000 and less than $300,000	$1,100.00

$300,000 and less than $500,000	$1,150.00
$500,000 and less than $750,000	$1,200.00
$750,000 and less than $1,000,000	$1,300.00
$1,000,000 and less than $1,500,000	$1,400.00
$1,500,000 and less than $2,000,000	$1,500.00 Plus an amount equal to 1/10 of 1% of annual gross receipts in excess of $2,000,000.00 not to exceed a license tax amount of $25,000.00.

Contractor's gross receipts will be determined based upon work done in the City limits of the City of Birmingham. This includes any work performed in the City of Birmingham for projects outside of the City. It does not include gross receipts for work performed outside of the City. For purposes of this schedule, the gross receipts shall be reduced by the amounts of gross receipts taxable by taxing authorities outside of the City of Birmingham City limits. Contractors gross receipts shall also exclude (i.e. deduct) the amount of payments made to sub-contractors for services performed by said sub-contractors, regardless of the sub-contractor's office location.

*Example: Contractor has a construction project in Huntsville for a total contract amount of $1,000,000.00 (1 million dollars). $950,000.00 of the construction work is performed by the Contractor solely in Huntsville and $50,000.00 of the construction work (drafting, home office p.m., etc.) is performed by the Contractor solely in the Birmingham office. The amount of revenue to be include in "gross receipts" for the purpose of the Contractor's Birmingham license tax would be $50,000.00.**

**In this example, the contractor is not claiming any exemptions (i.e. any payments to any sub-contractors).*

Businesses located within the City limits: The herein referenced business license tax schedule is applicable to businesses (taxpayers) qualifying under this business license schedule whose businesses and/or business office(s) are physically located within the City limits of Birmingham, Alabama, and perform the herein described contractor services within the City of Birmingham. The initial business license tax required under this schedule is subject to the Annualization of Business License (Ordinance No. 97-183, Article II, Section 21.1, as amended).

Businesses located outside the City limits, including the police jurisdiction: For businesses (taxpayers) not physically located within the City limits of Birmingham or its police jurisdiction, but that qualify for this business license schedule and perform the herein described contractor services within the City limits of the City of Birmingham, shall be required to purchase a business license and the business license shall be purchased in advance. The business license shall be based on the

actual contract amount (i.e. gross receipts) for the total work to be performed within the city, and the business license amount shall be determined by the rates specified herein. If the construction project, for which the license specified herein was obtained, continues into subsequent business license tax year(s), a business license in only the minimum amount shall be required to be purchased in each such subsequent year(s). Amendments or revisions to the original contract amount upon which this license is based shall result in additional business license taxes becoming due. Any amendments to contract amounts resulting in a decreased business license amount shall require the business (taxpayer) petition the City of Birmingham for a refund of all overpayments pursuant to the business license code (Ordinance No. 97-183, as amended, Article II, Section 10).

Additional business license requirements: Any licensed contractor shall furnish the Director of Finance (or the Director's designee), within fifteen (15) days of the request thereof, a written summary of the following for each sub-contractor performing, any work or service for the said contractor: (1) sub-contractor's name (including the d/b/a); (2) sub-contractor's business/mailing addresses; (3) sub-contractor's contact telephone number(s); (4) sub-contractor's contract amount(s); (5) sub-contractor's specialty classification(s) (i.e. masonry, concrete finishing, plumbing, etc.); and (6) sub-contractor's City taxpayer identification numbers (if known by the contractor). If a sub-contractor does not provide the contractor a City of Birmingham taxpayer identification number, the Contractor shall notify the City in the required summary. This summary information shall be provided for each sub-contractor performing work on a project in the City. These requirements are pursuant to the City of Birmingham Business License Ordinance No. 97-183, Article II, Section 35, as amended.

NAICS 237. NAICS TITLE—HEAVY AND CIVIL ENGINEERING CONSTRUCTION.

The Heavy and Civil Engineering Construction subsector comprises establishments whose primary activity is the construction of entire engineering projects (e.g., highways and dams), and specialty trade contractors, whose primary activity is the production of a specific component for such projects. Specialty trade contractors in Heavy and Civil Engineering Construction generally are performing activities that are specific to heavy and civil engineering construction projects and are not normally performed on buildings. The work performed may include new work, additions, alterations, or maintenance and repairs.

Specialty trade activities are classified in this subsector if the skills and equipment present are specific to heavy or civil engineering construction projects. For example, specialized equipment is needed to paint lines on highways. This equipment is not normally used in building applications so the activity is classified

in this subsector. Traffic signal installation, while specific to highways, uses much of the same skills and equipment that are needed for electrical work in building projects and is therefore classified in Subsector 238, Specialty Trade Contractors.

Construction projects involving water resources (e.g., dredging and land drainage) and projects involving open space improvement (e.g., parks and trails) are included in this subsector. Establishments whose primary activity is the subdivision of land into individual building lots usually perform various additional site-improvement activities (e.g., road building and utility line installation) and are included in this subsector.

Establishments in this subsector are classified based on the types of structures that they construct. This classification reflects variations in the requirements of the underlying production processes.

SCHEDULE 067. CONTRACTORS, EXCAVATORS, PAVERS, VIADUCT, UNDERPASS, and SEWER BUILDERS OR CONCRETE WORK.

(a) Each person engaged in carrying on excavating, paving, viaduct installation, sewer building or concrete work or services within the City of Birmingham, where the annual gross receipts for the next preceding year is:

Less than $50,000	$250.00
$50,000 and less than $70,000	$350.00
$70,000 and less than $110,000	$500.00
$110,000 and less than $160,000	$750.00
$160,000 and less than $210,000	$850.00
$210,000 and less than $260,000	$975.00
$260,000 and less than $300,000	$1,100.00
$300,000 and less than $500,000	$1,150.00
$500,000 and less than $750,000	$1,200.00
$750,000 and less than $1,000,000	$1,300.00
$1,000,000 and less than $1,500,000	$1,400.00
$1,500,000 and less than $2,000,000	$1,500.00
Plus an amount equal to 1/10 of 1% of annual gross receipts in excess of $2,000,000.00 not to exceed a license tax amount of $25,000.00.	

(b) Where only an office is maintained in the City of Birmingham . . . $350.00

Contractor's gross receipts will be determined based upon work done in the City limits of the City of Birmingham. This includes any work performed in the City of Birmingham for projects outside of the City. It does not include gross receipts for work performed outside of the City. For purposes of this schedule, the gross receipts shall be reduced by the amounts of gross receipts taxable by taxing authorities outside of the City of Birmingham City limits. Contractors gross receipts shall also

exclude (i.e. deduct) the amount of payments made to sub-contractors for services performed by said sub-contractors, regardless of the sub-contractor's office location.

*Example: Contractor has a construction project in Huntsville for a total contract amount of $1,000,000.00 (1 million dollars). $950,000.00 of the construction work is performed by the Contractor solely in Huntsville and $50,000.00 of the construction work (drafting, home office p.m., etc.) is performed by the Contractor solely in the Birmingham office. The amount of revenue to be include in "gross receipts" for the purpose of the Contractor's Birmingham license tax would be $50,000.00.**

**In this example, the contractor is not claiming any exemptions (i.e. any payments to any sub-contractors).*

Businesses located within the City limits: The herein referenced business license tax schedule is applicable to businesses (taxpayers) qualifying under this business license schedule whose businesses and/or business office(s) are physically located within the city limits of Birmingham, Alabama, and perform the herein described contractor services within the City of Birmingham. The initial business license tax required under this schedule is subject to the Annualization of Business License (Ordinance No. 97-183, Article II, Section 21.1, as amended).

Businesses located outside the City limits, including the police jurisdiction: For businesses (taxpayers) not physically located within the city limits of Birmingham or its police jurisdiction, but that qualify for this business license schedule and perform the herein described contractor services within the City limits of the City of Birmingham, shall be required to purchase a business license and the business license shall be purchased in advance. The business license shall be based on the actual contract amount (i.e. gross receipts) for the total work to be performed within the city, and the business license amount shall be determined by the rates specified herein. If the construction project, for which the license specified herein was obtained, continues into subsequent business license tax year(s), a business license in only the minimum amount shall be required to be purchased in each such subsequent year(s). Amendments or revisions to the original contract amount upon which this license is based shall result in additional business license taxes becoming due. Any amendments to contract amounts resulting in a decreased business license amount shall require the business (taxpayer) petition the City of Birmingham for a refund of all overpayments pursuant to the business license code (Ordinance No. 97-183, as amended, Article II, Section 10).

Additional business license requirements: Any licensed contractor shall furnish the Director of Finance (or the Director's designee), within fifteen (15) days of the request thereof, a written summary of the following for each sub-contractor performing, any work or service for the said contractor: (1) sub-contractor's name (including the d/b/a); (2) sub-contractor's business/mailing addresses; (3) sub-contractor's contact telephone number(s); (4) sub-contractor's contract amount(s);

(5) sub-contractor's specialty classification(s) (i.e. masonry, concrete finishing, plumbing, etc.); and (6) sub-contractor's City taxpayer identification numbers (if known by the contractor). If a sub-contractor does not provide the contractor a City of Birmingham taxpayer identification number, the Contractor shall notify the City in the required summary. This summary information shall be provided for each sub-contractor performing work on a project in the City. These requirements are pursuant to the City of Birmingham Business License Ordinance No. 97-183, Article II, Section 35, as amended.

NAICS 238. NAICS TITLE—SPECIALTY TRADE CONTRACTORS.

The Specialty Trade Contractors subsector comprises establishments whose primary activity is performing specific activities (e.g., pouring concrete, site preparation, plumbing, painting, and electrical work) involved in building construction or other activities that are similar for all types of construction but that are not responsible for the entire project. The work performed may include new work, additions, alterations, maintenance, and repairs. The production work performed by establishments in this subsector is usually subcontracted from establishments of the general contractor type or operative builders but, especially in remodeling and repair construction, work also may be done directly for the owner of the property. Specialty trade contractors usually perform most of their work at the construction site, although they may have shops where they perform prefabrication and other work. Establishments primarily engaged in preparing sites for new construction are also included in this subsector.

There are substantial differences in types of equipment, work force skills, and other inputs required by specialty trade contractors. Establishments in this subsector are classified based on the underlying production function for the specialty trade in which they specialize. Throughout the Specialty Trade Contractors subsector, establishments commonly provide both the parts and labor required to complete work. For example, electrical contractors supply the current-carrying and noncurrent-carrying wiring devices that are required to install a circuit. Plumbing, Heating and Air-Conditioning contractors also supply the parts required to complete a contract.

Establishments that specialize in activities primarily related to heavy and civil engineering construction that are not normally performed on buildings, such as the painting of lines on highways are classified in Subsector 237, Heavy and Civil Engineering Construction.

Establishments that are primarily engaged in selling construction materials are classified in Sector 42, Wholesale Trade, or Sector 44-45, Retail Trade, based on the characteristics of the selling unit.

SCHEDULE 069. CONTRACTORS (HVAC).

Each person contracting for or engaged in the business of installing or repairing air conditioning, furnaces, making furnace repairs, doing sheet and tin metal work, steam heating, hot water heating, and steam fitting, any one or all, where gross receipts for services performed within the City of Birmingham from the previous year are:

Less than $50,000	$250.00
$50,000 and less than $70,000	$350.00
$70,000 and less than $110,000	$500.00
$110,000 and less than $160,000	$750.00
$160,000 and less than $210,000	$850.00
$210,000 and less than $260,000	$975.00
$260,000 and less than $300,000	$1,100.00
$300,000 and less than $500,000	$1,150.00
$500,000 and less than $750,000	$1,200.00
$750,000 and less than $1,000,000	$1,300.00
$1,000,000 and less than $1,500,000	$1,400.00
$1,500,000 and less than $2,000,000	$1,500.00
Plus an amount equal to 1/10 of 1% of annual gross receipts in excess of $2,000,000.00 not to exceed a license tax amount of $25,000.00.	

NO LICENSE WILL BE ISSUED to any heating and air conditioning contractor until applicant has obtained, and presented to the Revenue Division at the time of application or renewal, a current, valid State of Alabama Permit issued by the Certification Board of Heating and Air Conditioning Contractors.

Contractor's gross receipts will be determined based upon work done in the City limits of the City of Birmingham. This includes any work performed in the City of Birmingham for projects outside of the City. It does not include gross receipts for work performed outside of the City. For purposes of this schedule, the gross receipts shall be reduced by the amounts of gross receipts taxable by taxing authorities outside of the City of Birmingham City limits. Contractors gross receipts shall also exclude (i.e. deduct) the amount of payments made to sub-contractors for services performed by said sub-contractors, regardless of the sub-contractor's office location.

*Example: Contractor has a construction project in Huntsville for a total contract amount of $1,000,000.00 (1 million dollars). $950,000.00 of the construction work is performed by the Contractor solely in Huntsville and $50,000.00 of the construction work (drafting, home office p.m., etc.) is performed by the Contractor solely in the Birmingham office. The amount of revenue to be include in "gross receipts" for the purpose of the Contractor's Birmingham license tax would be $50,000.00.**

**In this example, the contractor is not claiming any exemptions (i.e. any payments to any sub-contractors).*

Businesses located within the City limits: The herein referenced business license tax schedule is applicable to businesses (taxpayers) qualifying under this business license schedule whose businesses and/or business office(s) are physically located within the City limits of Birmingham, Alabama, and perform the herein described contractor services within the City of Birmingham. The initial business license tax required under this schedule is subject to the Annualization of Business License (Ordinance No. 97-183, Article II, Section 21.1, as amended).

Businesses located outside the City limits, including the police jurisdiction: For businesses (taxpayers) not physically located within the City limits of Birmingham or its police jurisdiction, but that qualify for this business license schedule and perform the herein described contractor services within the City limits of the City of Birmingham, shall be required to purchase a business license and the business license shall be purchased in advance. The business license shall be based on the actual contract amount (i.e. gross receipts) for the total work to be performed within the city, and the business license amount shall be determined by the rates specified herein. If the construction project, for which the license specified herein was obtained, continues into subsequent business license tax year(s), a business license in only the minimum amount shall be required to be purchased in each such subsequent year(s). Amendments or revisions to the original contract amount upon which this license is based shall result in additional business license taxes becoming due. Any amendments to contract amounts resulting in a decreased business license amount shall require the business (taxpayer) petition the City of Birmingham for a refund of all overpayments pursuant to the business license code (Ordinance No. 97-183, as amended, Article II, Section 10).

Additional business license requirements: Any licensed contractor shall furnish the Director of Finance (or the Director's designee), within fifteen (15) days of the request thereof, a written summary of the following for each sub-contractor performing, any work or service for the said contractor: (1) sub-contractor's name (including the d/b/a); (2) sub-contractor's business/mailing addresses; (3) sub-contractor's contact telephone number(s); (4) sub-contractor's contract amount(s); (5) sub-contractor's specialty classification(s) (i.e. masonry, concrete finishing, plumbing, etc.); and (6) sub-contractor's City taxpayer identification numbers (if known by the contractor). If a sub-contractor does not provide the contractor a City of Birmingham taxpayer identification number, the Contractor shall notify the City in the required summary. This summary information shall be provided for each sub-contractor performing work on a project in the City. These requirements are pursuant to the City of Birmingham Business License Ordinance No. 97-183, Article II, Section 35, as amended.

SCHEDULE 070. CONTRACTORS, HOUSE MOVERS AND/OR HOUSE WRECKERS.

Each person, firm or corporation contracting for or engaged in the business of moving houses or other similar structures and/or engages in demolition of houses, buildings, or other structures, whether actually doing the work or making contracts for the work to be done either by himself or by others where gross receipts for services performed within the City of Birmingham from the previous year are:

Less than $50,000	$250.00
$50,000 and less than $70,000	$350.00
$70,000 and less than $110,000	$500.00
$110,000 and less than $160,000	$750.00
$160,000 and less than $210,000	$850.00
$210,000 and less than $260,000	$975.00
$260,000 and less than $300,000	$1,100.00
$300,000 and less than $500,000	$1,150.00
$500,000 and less than $750,000	$1,200.00
$750,000 and less than $1,000,000	$1,300.00
$1,000,000 and less than $1,500,000	$1,400.00
$1,500,000 and less than $2,000,000	$1,500.00
Plus an amount equal to 1/10 of 1% of annual gross receipts in excess of $2,000,000.00 not to exceed a license tax amount of $25,000.00.	

(b) Where only an office is maintained in the City of Birmingham . . . $350.00

Contractor's gross receipts will be determined based upon work done in the City limits of the City of Birmingham. This includes any work performed in the City of Birmingham for projects outside of the City. It does not include gross receipts for work performed outside of the City. For purposes of this schedule, the gross receipts shall be reduced by the amounts of gross receipts taxable by taxing authorities outside of the City of Birmingham City limits. Contractors gross receipts shall also exclude (i.e. deduct) the amount of payments made to sub-contractors for services performed by said sub-contractors, regardless of the sub-contractor's office location.

*Example: Contractor has a construction project in Huntsville for a total contract amount of $1,000,000.00 (1 million dollars). $950,000.00 of the construction work is performed by the Contractor solely in Huntsville and $50,000.00 of the construction work (drafting, home office p.m., etc.) is performed by the Contractor solely in the Birmingham office. The amount of revenue to be include in "gross receipts" for the purpose of the Contractor's Birmingham license tax would be $50,000.00.**

**In this example, the contractor is not claiming any exemptions (i.e. any payments to any sub-contractors).*

Businesses located within the City limits: The herein referenced business license tax schedule is applicable to businesses (taxpayers) qualifying under this business license schedule whose businesses and/or business office(s) are physically located

within the City limits of Birmingham, Alabama, and perform the herein described contractor services within the City of Birmingham. The initial business license tax required under this schedule is subject to the Annualization of Business License (Ordinance No. 97-183, Article II, Section 21.1, as amended).

Businesses located outside the City limits, including the police jurisdiction: For businesses (taxpayers) not physically located within the City limits of Birmingham or its police jurisdiction, but that qualify for this business license schedule and perform the herein described contractor services within the City limits of the City of Birmingham, shall be required to purchase a business license and the business license shall be purchased in advance. The business license shall be based on the actual contract amount (i.e. gross receipts) for the total work to be performed within the City, and the business license amount shall be determined by the rates specified herein. If the construction project, for which the license specified herein was obtained, continues into subsequent business license tax year(s), a business license in only the minimum amount shall be required to be purchased in each such subsequent year(s). Amendments or revisions to the original contract amount upon which this license is based shall result in additional business license taxes becoming due. Any amendments to contract amounts resulting in a decreased business license amount shall require the business (taxpayer) petition the City of Birmingham for a refund of all overpayments pursuant to the business license code (Ordinance No. 97-183, as amended, Article II, Section 10).

Additional business license requirements: Any licensed contractor shall furnish the Director of Finance (or the Director's designee), within fifteen (15) days of the request thereof, a written summary of the following for each sub-contractor performing, any work or service for the said contractor: (1) sub-contractor's name (including the d/b/a); (2) sub-contractor's business/mailing addresses; (3) sub-contractor's contact telephone number(s); (4) sub-contractor's contract amount(s); (5) sub-contractor's specialty classification(s) (i.e. masonry, concrete finishing, plumbing, etc.); and (6) sub-contractor's City taxpayer identification numbers (if known by the contractor). If a sub-contractor does not provide the contractor a City of Birmingham taxpayer identification number, the Contractor shall notify the City in the required summary. This summary information shall be provided for each sub-contractor performing work on a project in the City. These requirements are pursuant to the City of Birmingham Business License Ordinance No. 97-183, Article II, Section 35, as amended.

SCHEDULE 071. CONTRACTORS, HOUSE PAINTERS, ROOFERS, SIGN PAINTERS, CARDWRITING, DECORATIONS, PLASTERERS, PAPER HANGERS, LATHERS, CABINET OR CARPENTER SHOP, AUTOMOBILE PAINTING, BUILDING SIDING AND/OR BUILDING INSULATION.

Each person Each person, firm or corporation engaged in any of the foregoing businesses whether actually doing the work or making contracts for the work to be done either by himself or by others, shall pay a license as follows:

Where only one worker	$75.00
Where two and less than six workers	$250.00

Persons, firms or corporations exceeding five workers on any contract shall be required to purchase a General Contractors license in accordance with all taxes and requirements as referenced in the City of Birmingham Business License Code, 97-183, as amended.

Any claimed exemptions (i.e. gross receipts from work performed outside the City) and all other claimed exemption(s) from the gross receipts calculations must be presented to the City of Birmingham Department of Finance in compliance with the provisions of Article II, Section 2.3 of this Business License Code.

Businesses located within the City limits: The herein referenced business license tax schedule is applicable to businesses (taxpayers) qualifying under this business license schedule and have their business and/or business office(s) located within the City limits of Birmingham, Alabama.*

Businesses located outside the City limits, including the police jurisdiction: For businesses (taxpayers) that do not have their business and/or offices located within the City limits of Birmingham, Alabama or its police jurisdiction, however qualify for this business license schedule and perform the herein described contractor services within the City of Birmingham City limits shall purchase a business license in advance. The advance business license purchase amount will be based on the actual number of workers for the contract (i.e. gross receipts) of work performed within the city limits. Additional business license taxes shall become due with increase(s) to the number of workers on a certain contract.

Additional business license requirements: Any licensed contractor shall furnish the Director of Finance (or the Director's designee,) within 15 days of the request thereof, all of the following: A written summary of the names, business/mailing addresses, telephone numbers, contract amounts, City taxpayer identification numbers, and specialty classifications (i.e. masonry, concrete finishing, plumbing, etc.) of each subcontractor performing any work or service for said contractor in the City, pursuant to Section 35 of this Business License Code. If a business does not have a City taxpayer identification number, the Contractor shall notify the City in the required summary.

SCHEDULE 096. ELECTRICIANS.

Each person, firm or corporation doing business within the City of Birmingham, or soliciting electric work:

Where one master or journeymen electrician is employed	$75.00
Where two and less than three.....	$180.00
Where three and less than six	$250.00

Persons, firms or corporations exceeding five (5) workers on any contract shall be required to purchase a General Contractors license in accordance with all taxes and requirements as referenced in the City of Birmingham Business License Code, 97-183, as amended.

The average number of master or journeymen electricians employed in the preceding year shall afford the basis for computing the tax due hereunder which average number shall be determined as outlined in Schedule 201 of this Business License Code.

NO LICENSE WILL BE ISSUED until the following has been obtained and presented to the Revenue Division at the time of application and/or renewal:

(1) A current, valid City of Birmingham Master Electrician's Certification Card.

(2) A bond in the amount of $10,000.00 executed on a bond form provided by the City of Birmingham Finance Department.

Businesses located within the City limits: The herein referenced business license tax schedule is applicable to businesses (taxpayers) qualifying under this business license schedule whose businesses and/or business office(s) are physically located within the City limits of Birmingham, Alabama, and perform the herein described services within the City of Birmingham. The initial business license tax required under this schedule is subject to the Annualization of Business License (Ordinance No. 97-183, Article II, Section 21.1, as amended).

Businesses located outside the City limits, including the police jurisdiction: For businesses (taxpayers) not physically located within the City limits of Birmingham or its police jurisdiction, but that qualify for this business license schedule and perform the herein described services within the City limits of the City of Birmingham, shall be required to purchase a business license and the business license shall be purchased in advance. The business license shall be based on the actual contract amount (i.e. gross receipts) for the total work to be performed within the City, and the business license amount shall be determined by the rates specified herein. If the construction project, for which the license specified herein was obtained, continues into subsequent business license tax year(s), a business license in only the minimum amount shall be required to be purchased in each such subsequent year(s). Amendments or revisions to the original contract amount upon which this license is based shall result in additional business license taxes becoming due. Any amendments to contract amounts resulting in a decreased business license amount, the business (taxpayer) shall petition the City of Birmingham for a refund of all overpayments pursuant to the business license code (Ordinance No. 97-183, as amended, Article II, Section 10).

SCHEDULE 097. ELEVATORS.

Each person, firm or corporation selling or installing hydraulic, steam, electric or hand power elevators or repairing or maintaining same, either as principal or agent, shall pay a license of two-tenths of one percent of the gross receipts from said business from the previous year with a minimum license of: $200.00.

SCHEDULE 104. FLOOR DRESSERS.

Each person, firm or corporation, operating one or more floor dressing machines and engaged in dressing, selling or installing flooring shall pay a license of two-tenths of one percent of the gross receipts from said business from the previous year with a minimum license of: $150.00.

SCHEDULE 201. PLUMBING, GAS FITTERS.

Each person, firm or corporation engaged in the business of plumbing, gas fitting, and/or steam/hot water heating, any one or all, where the number of master or journeyman workers retained or used is:

Where less than 3	$180.00
Where 3 and less than 5	$240.00
Where 5 and less than 10	$360.00
Where 10 and less than 15	$480.00
Where 15 and over	$600.00

No license will be issued until applicant has obtained and presented the following to the Revenue Division at the time of application:

(1) A current, valid Master Plumbers/Gas Fitters card issued by the State of Alabama Licensing Board for Plumbers and Gas Fitters.

(2) Surety Bond in the amount of $10,000.00, payable to the City of Birmingham, and executed on bond form provided by the City.

Where plumbing equipment or supplies or other merchandise is sold and not installed by the plumber, a merchandise license shall be paid as provided for in Schedule 165 of this Business License Code.

For the purpose of computing the amount of license tax due under this schedule, the average number of master or journeyman workers retained or used in the year immediately preceding the year for which the license tax is paid shall afford the basis of computation. The average number of master or journeyman workers shall be the quotient derived through dividing by four the sum of the largest number of master or journeyman workers retained or used during the months of January, April, July and October of the year immediately preceding; provided, however, if the licensee were not engaged in business during the entire preceding year the average number of master or journeymen workers shall be determined on the basis of the highest number of master or journeyman workers retained or used during any one or more of the months of January, April, July and October, during which such licensee was engaged in business.

SCHEDULE 010B. BURGLAR/FIRE ALARM COMPANIES (INSTALLATION AND MAINTENANCE ONLY).

Each person, firm, partnership or corporation engaged in the business of installation, maintenance, service or repair, alteration, or moving of alarm systems, in or on any building or structure shall pay a license as follows: Where gross annual business from said business from the previous year is:

Less than $5,000.00	$60.00
$5,000.00 and less than $10,000.00	$100.00
$10,000.00 and less than $15,000.00	$150.00
$15,000.00 and less than $20,000.00	$200.00
Plus an amount equal to 2/10 of one percent of gross annual business in excess of $20,000.00.	

It shall be unlawful for any person or entity engaged in the business of installing alarms to install an alarm designed to provoke police or emergency response unless such person possesses a current valid city business license and is knowledgeable and competent to make such installation (Ord. No. 86-266).

Effective January 1, 1998, no license will be issued to installers until applicant has obtained a State license issued by the Alabama Electronic Security Board of Licensure (Title 34, Chapter 1A, Code of Alabama 1975).

SCHEDULE 017A. AUTOMATIC SPRINKLERS, INSIDE.

Each person, firm, or corporation engaged in the business of selling, or installing automatic sprinkler systems inside buildings, shall pay a license of two-tenths of one percent of the gross receipts from said business from previous year with a minimum license of: $120.00.

NAICS 311. NAICS TITLE—FOOD MANUFACTURING.

Industries in the Food Manufacturing subsector transform livestock and agricultural products into products for intermediate or final consumption. The industry groups are distinguished by the raw materials (generally of animal or vegetable origin) processed into food products.

The food products manufactured in these establishments are typically sold to wholesalers or retailers for distribution to consumers, but establishments primarily engaged in retailing bakery and candy products made on the premises not for immediate consumption are included.

Establishments primarily engaged in manufacturing beverages are classified in Subsector 312, Beverage and Tobacco Product Manufacturing.

SCHEDULE 029. BAKERY.

Each person conducting a bakery and in connection operates a vehicle on street shall pay a license of two-tenths of one percent of the gross receipts from said business from the previous year with a minimum license of: $200.00.

Where no vehicle owned by the business is operated on the streets in connection with said business and gross receipts are:

Less than $50,000.00	$120.00
$50,000.00 and not more than $100,000.00	$200.00
Plus an amount equal to 2/10 of one percent of gross receipts in excess of $100,000.00.	

The aforesaid schedule of license shall also apply to the making of donuts where the same are sold at wholesale only.

No license will be issued until applicant has obtained and presented to the Revenue Division at the time of application a current, valid Health Department Permit.

SCHEDULE 030. BAKERY GOODS, INCLUDING DONUTS.

Each retail dealer in bakery goods and/or donuts where principal business, shall pay a license of two-tenths of one percent of the gross receipts from said business from the previous year with a minimum license of: $120.00.

No license will be issued until applicant has obtained and presented to the Revenue Division at the time of application a current, valid Health Department Permit.

SCHEDULE 046. CANDY, PROCESSING OR MANUFACTURING, CANNING, PRESERVING, AND/OR PEANUT BUTTER PROCESSING OR MANUFACTURING.

Each person, firm or corporation engaged in the business of making, processing or manufacturing candy, canning, processing, or preserving farm produce and/or making, processing or manufacturing peanut butter and similar products shall pay a license of two-tenths of one percent of the gross receipts from said business from the previous year with a minimum license of: $120.00.

No license will be issued until applicant has obtained and presented to the Revenue Division at the time of application a current, valid Health Department Permit.

SCHEDULE 080. CREAMERY, BUTTER FACTORY, MILK PASTEURIZATION PLANT, OLEO MARGARINE PLANT, INCLUDING THE SALE OF CHOCOLATE MILK, OR OTHER SIMILAR PRODUCTS.

Each person, firm or corporation so engaged shall pay a license of two-tenths of one percent of the gross receipts from said business from the previous year with a minimum license of: $200.00.

Where there is no pasteurization plant, and buttermilk is manufactured from powder a license of two-tenths of one percent of the gross receipts, less returned goods, from said business from the previous year with a minimum license of: $60.00.

No license will be issued until applicant has obtained and presented to the Revenue Division at the time of application a current, valid Health Department Permit.

SCHEDULE 122. GRAIN OR FLOUR DEALER, AGENT OR BROKER, GRAIN PROCESSOR, GRIST MILLS, WHOLESALE DEALER IN POWDERED MILK.

Each person engaged in any of the aforesaid types of businesses, shall pay a license on the first $100,000.00 of the gross receipts from said business from the previous year of: $200.00.

Plus an amount equal to 2/20 of one percent of gross receipts in excess of $100,000.00.

No license will be issued until applicant has obtained and presented to the Revenue Division at the time of application a current, valid Health Department Permit.

SCHEDULE 220. SAUSAGE FACTORY.

Each person, firm or corporation conducting, where principal business, shall pay a license of two-tenths of one percent of the gross receipts from said business from the previous year with a minimum license of: $200.00.

No license will be issued until applicant has obtained and presented to the Revenue Division at the time of application a current, valid Health Department Permit.

SCHEDULE 229. SYRUP, MANUFACTURER, AGENT, DEALER OR BROKER.

Each wholesale manufacturer, agent or dealer, or broker for Coca Cola, Celery Cola, Chero-Cola, Root Beer, or any similar compound syrup used in compounding drinks where principal business, in addition to bottlers license, shall pay a license of two-tenths of one percent of the gross receipts from said business from the previous year with a minimum license of: $200.00.

No license will be issued until applicant has obtained and presented to the Revenue Division at the time of application a current, valid Health Department Permit as needed.

NAICS 312. NAICS TITLE—BEVERAGE AND TOBACCO PRODUCT MANUFACTURING.

Industries in the Beverage and Tobacco Product manufacturing subsector manufacture beverages and tobacco products. The industry group, Beverage manufacturing, includes three types of establishments: (1) those that manufacture nonalcoholic beverages; (2) those that manufacture alcoholic beverages through the fermentation process; and (3) those that produce distilled alcoholic beverages. Ice manufacturing, while not a beverage, is included with nonalcoholic beverage manufacturing because it uses the same production process as water purification.

In the case of activities related to the manufacture of beverages, the structure follows the defined productive processes. Brandy, a distilled beverage, was not placed under distillery product manufacturing, but rather under the NAICS class for winery

product manufacturing since the productive process used in the manufacturing of alcoholic grape-based beverages produces both wines (fermented beverage) and brandies (distilled beverage).

The industry group, Tobacco manufacturing, includes two types of establishments: (1) those engaged in redrying and stemming tobacco and, (2) those that manufacture tobacco products, such as cigarettes and cigars.

SCHEDULE 039. BOTTLERS, MANUFACTURING.

Each person, firm or corporation engaged in the manufacturing, producing, or bottling, in bottles or other containers, soda water, carbonated drinks, fruit juices or imitations thereof, and any preparations known as soft drinks of any description, shall pay a license of two-tenths of one percent of the gross receipts from said business from the previous year with a minimum license of: $200.00.

SCHEDULE 040. BOTTLED WATERS AND/OR FRUIT DRINKS.

(a) Each retail dealer in aerated waters, carbonated waters, fruit drinks, or soft drinks of any description, where not principal business: $24.00.

(b) Where principal business, each retail dealer shall pay a license of $24.00 on the first $5,000.00 of gross receipts, plus $24.00 on each additional $5,000.00 or fractional part thereof of gross receipts from said business from the previous year.

(c) No person, firm, or corporation conducting restaurant, cafe or lunch stand as the principal business, shall pay the license provided by this schedule, but shall include gross receipts from such bottled waters and fruit drinks as part of gross receipts of such restaurant, cafe or lunch stand and pay under Schedule 216 of this Code.

SCHEDULE 132. ICE FACTORY.

Each person, firm or corporation manufacturing, selling or delivering ice within the City's jurisdiction, shall pay a license at the rate of $9.60 per ton based on the daily machine capacity of each factory producing ice that is sold within the City, provided each operator manufacturing or delivering ice within the City's jurisdiction, shall pay a rate of not less than $400.00, multiplied by the number of factories used in producing ice for sale within the City's jurisdiction.

No license will be issued until applicant has obtained and presented to the Revenue Division at the time of application a current, valid Health Department Permit.

SCHEDULE 150. ALCOHOLIC BEVERAGES, LIQUOR, BEER, WINE.

The following is hereby declared to be the schedule of licenses for Alcoholic Beverages. Liquor, Beer, Wine for the calendar year commencing January 1, 2008, and for each subsequent year thereafter, for businesses who shall engage in the alcoholic beverage, liquor, beer or wine business in or carried on in the City of Birmingham in

said calendar year, and each and every firm, company or corporation engaged in any such business enumerated herein, in said calendar year shall pay and take out such licenses in such sums as are herein provided:

Definitions. In the construction of this subsection, the following words or phrases shall, unless the context clearly indicates otherwise, have the meanings ascribed to them as follows:

(a) "Board." The Alcoholic Beverage Control Board of the State of Alabama.

(b) "City." The City of Birmingham, Alabama.

(c) "Code." The Code of Alabama, 1975.

(d) "Corporate Limits." The corporate limits of the City of Birmingham, Alabama.

(e) "Engaged in Business." A person shall be deemed engaged in business within the corporate limits if that person has a fixed place of business within said corporate limits, or if, pursuant to agreement of sale, express or implied, that person delivers any alcoholic beverage or liquor, beer, or wine within said corporate limits, or if that person within said corporate limits, shall do any act authorized to be done only by the holder of any license issued by the board.

(f) "Fixed Place of Business." Any place where any alcoholic beverage, liquor, wine, or beer is kept or stored for sale or delivery.

(g) "Person." Any legal entity, including, but not limited to, natural persons, associations and corporations, but excluding the State of Alabama and the Board.

(h) The terms "Alcoholic Beverage," "Beer," "Brewpub," "Club," "Importer," "Liquor," "Manufacturer," "Restaurant," "Retailer," "Sale or Sell," "Wholesaler," "Wine," "Fortified Wine," and "Table Wine" shall have the same meaning as ascribed to them by the Alabama Alcoholic Beverage Licensing Code, Title 28, Code of Alabama 1975, and as interpreted by the regulations of the Board.

SCHEDULE 150A. MANUFACTURER.

Each person licensed by the Board as a manufacturer under Section 28-3A-6 of the Code, who manufactures, or otherwise distills, produces, ferments, brews, bottles, rectifies, or compounds alcoholic beverages shall pay an annual license fee of: $500.00.

SCHEDULE 150B. IMPORTER.

Each person licensed by the Board as an importer under Section 28-3A-7 of the Code shall pay an annual license fee of: $500.00.

Provided that, if such importer can only import table wine the license fee shall be: $250.00.

SCHEDULE 150C. LIQUOR WHOLESALER.

Each person licensed by the Board as a liquor wholesaler under Section 28-3A-8 of the Code, shall pay an annual license fee of: $500.00.

SCHEDULE 150D. BEER WHOLESALER.

Each person licensed as a beer wholesaler under Section 28-3A-9 of the Code shall pay an annual license fee of: $275.00.

SCHEDULE 150E. WINE WHOLESALER.

Each person licensed as a wine wholesaler under Section 28-3A-9 of the Code shall pay an annual license fee of: $150.00.

SCHEDULE 150F. BEER AND WINE WHOLESALER.

Each person licensed as a beer and wine wholesaler under Section 28-3A-9 of the Code shall pay an annual license fee of: $375.00.

SCHEDULE 150G. WAREHOUSE.

Each person licensed by the Board to operate an alcoholic beverage warehouse under Section 28-3A-10 of the Code, shall pay an annual license fee of: $200.00.

SCHEDULE 150H. LOUNGE RETAIL LIQUOR. CLASS I (ON-PREMISES CONSUMPTION).

Each person licensed by the Board to operate a retail liquor lounge under Section 28-3A-11 of the Code, shall pay an annual license fee of: $500.00.

SCHEDULE 150I. RESTAURANT RETAIL LIQUOR.

Each person licensed by the Board to sell alcoholic beverages in connection with the operation of a hotel, restaurant, civic center authority or dinner theater under Section 28-3A-13 of the Code, shall pay an annual license fee of: $500.00.

SCHEDULE 150J. CLUB LIQUOR. CLASS I.

Each person licensed by the Board to operate a club under Section 28-3A-12 of the Code, shall pay an annual license fee of: $500.00.

SCHEDULE 150K. RETAIL TABLE WINE (OFF-PREMISES CONSUMPTION).

Each person licensed by the Board to sell table wine at retail for off-premises consumption under Section 28-3A-15 of the Code, shall pay an annual license fee of: $40.00.

SCHEDULE 150L. RETAIL TABLE WINE (ON-PREMISES AND OFF-PREMISES CONSUMPTION).

Each person licensed by the Board to sell table wine at retail for on-premises and off-premises consumption under Section 28-3A-14 of the Code, shall pay an annual license fee of: $100.00.

SCHEDULE 150M. RETAIL BEER (ON-PREMISES AND OFF-PREMISES CONSUMPTION).

Each person licensed by the Board to sell beer for on-premises and off-premises consumption under Section 28-3A-16 of the Code, shall pay an annual license fee of: $40.00.

SCHEDULE 150N. RETAIL BEER (OFF-PREMISES CONSUMPTION).

Each person licensed by the Board to sell beer for off-premises consumption under Section 28-3A-17 of the Code, shall pay an annual license fee of: $40.00.

SCHEDULE 150O. SPECIAL RETAIL; MORE THAN 30 DAYS.

Each person who shall be granted a special retail license by the Board under Section 28-3A-19 Code of Alabama 1975, which is valid for more than 30 days, and renewable annually shall pay a license fee of: $250.00.

SCHEDULE 150P. SPECIAL EVENTS RETAIL. LESS THAN SEVEN DAYS.

Each person licensed by the Board to sell alcoholic beverages under Section 28-3A-20 of the Code, which is valid for a period not to exceed seven consecutive calendar days shall pay to the City a license fee of $50.00. Such license issued by the City is nonrenewable.

SCHEDULE 150Q. SPECIAL RETAIL; LESS THAN 30 DAYS.

Each person who shall be granted a special retail license by the Board under Section 28-3A-19, which is valid for a period of more than seven days but not to exceed 30 days shall pay to the City a license of $150.00. Such license issued by the City is nonrenewable.

SCHEDULE 150R. BREWPUB.

Each person licensed by the Board as a Brewpub under Chapter 4A, Title 28 Code of Alabama 1975, the "Alabama Brewpub Act," shall pay an annual license fee of $500.00. In addition each person licensed as a Brewpub, shall also be required to be licensed under the provisions of Schedule 150-I (Restaurant Retail Liquor).

SCHEDULE 150S. LOUNGE RETAIL LIQUOR—CLASS II. OFF-PREMISES (PACKAGE STORES).

Each person licensed by the Board to operate an off-premises retail liquor lounge (package store) under Section 28-3A-11 of the Code, shall pay an annual license fee of: $500.00.

SCHEDULE 150T. CLUB LIQUOR—CLASS II.

Each person licensed by the Board to operate a club under Section 28-3A-12 of the Code, shall pay an annual license fee of: $500.00.

SCHEDULE 150Y. MONTHLY THREE PERCENT LIQUOR TAX.

On or before the 15th of the calendar month next succeeding the period of the license issued each such person shall pay to the City for the privilege of so engaging in such business an additional license tax of three percent of the gross receipts of such business derived from the sale of alcoholic beverages other than table wine and malt or brewed beverages during such license period.

SCHEDULE 150Z. MONTHLY ONE TENTH OF ONE PERCENT LIQUOR TAX.

On or before the 15th day of the calendar month next succeeding each separate calendar month, each such person shall also pay to the City, for the privilege of so engaging in such business in such immediately next preceding month, an additional license tax of one-tenth of one percent of the gross receipts of such business received during such immediately next preceding month which said gross receipts were derived only from the sale of alcoholic beverages other than table wine and malt or brewed beverages.

SCHEDULE 400. WINE WHOLESALER.

Monthly Wine Tax ($.07/liter)—Schedule 400. On or before the 15th day of the calendar month next succeeding each separate calendar month, each such person shall also pay to the City, for the privilege of so engaging in such business in such immediately preceding month, an additional license tax of $.07 per liter of table wine sold within the City during the preceding month. (Section 28-7-16, Code of Alabama 1975).

Sec. 1.1. Issuance of alcoholic beverage licenses. No alcoholic beverage licenses shall be issued for use within the City of Birmingham (a Class 1 municipality) without prior approval by the Birmingham City Council. All other provisions of law, rules or regulations to the contrary notwithstanding, the Alabama Alcoholic Beverage Control Board shall have absolutely no authority to issue any form of license in the City of Birmingham (a Class 1 municipality) including, but not limited to, off-premise consumption licenses, restaurant licenses, or club licenses, for the retail sale of any form of intoxicating beverages, including, but not limited to, malt liquor, beer, wine, liquor, or other alcoholic beverage regulated by the board, unless one of the following requirements are satisfied:

1. The application has first been approved by the Birmingham City Council.
2. The denial of a liquor license application by the Birmingham City Council has been set aside by order of the circuit court of the county in which the site is situated on the ground that the municipal approval was arbitrarily or capriciously denied without a showing of one of the following:
    i. The creation of a nuisance.
    ii. Circumstances clearly detrimental to or which would adversely affect the public health, safety, and welfare of the adjacent residential neighborhoods.

iii. A violation of applicable zoning restrictions or regulations.

Sec. 1.2. Schedule of city liquor licenses. Each person licensed by the Board, who shall engage in the alcoholic beverage, liquor, beer or wine business within the corporate limits, shall, prior to engaging in such business, pay to the City for the privilege of so engaging in business, an annual license fee and further license fees as established below.

Sec. 1.3. City liquor license conditions and special provisions.

(A) *Deduction for Beer and Wine Tax.* For the purpose of this Schedule 150, gross receipts from the sale of table wine, which are taxed under Chapter 7, Title 28 Code of Alabama 1975, the "Alabama Table Wine Act," and gross receipts from the sale of beer on which the uniform State Tax is paid, shall be deducted from the amount considered gross receipts hereunder.

(B) *City License Amount One-Half of State License Fee For Specific License Schedules.* Notwithstanding any other provision of this Schedule 150, no license or privilege tax, or other charge for the privilege of doing business as a beer wholesaler, importer, or retailer, shall be collected by the City which shall exceed one-half of the amount of the state license fee collected by the Board for like privilege.

(C) *No Proration of Liquor License Fee.* There shall be no proration of any license fee because of having operated only a part of a calendar year, except as provided in State law.

(D) *Due Date of Annual Liquor License Fee; Due Date of Monthly Liquor Taxes; Penalty for Late Payment.* The stated annual license fee levied by this Schedule 150 shall be due January 1 of each year and shall be delinquent after January 15 of the year for which such license is due, and a penalty of 15 percent shall be collected on or after January 16th of such year. All additional license fees levied by this Schedule 150, shall be due on the 15th day of the calendar month specified in each levy and shall be delinquent if not paid by such day and a penalty of 15 percent shall be collected after such day of each month.

(E) *Unlawful to Sell or Dispense Alcoholic Beverages Without a License.* It shall be unlawful for any person, firm, or corporation to engage in the sale of any alcoholic beverage in the City of Birmingham without having first procured a license for such sale. It shall also be unlawful for any current licensee to continue to sell any alcoholic beverages after the expiration of a license previously issued, without obtaining a new license. Each day during which such business is so engaged shall constitute a separate offense punishable as outlined in Section 44 of this ordinance, which punishment may include fine and/or arrest and imprisonment.

(F) *Recordkeeping Requirements for Liquor Licensees.*

(1) It shall be the duty of every person, firm, corporation, club, association of persons, receiving, storing, selling or handling alcoholic beverages enumerated

in this schedule in any manner whatsoever to keep and preserve all invoices, books, papers, canceled checks or other memoranda touching the purchase, sale, exchange or receipt of any and all such alcoholic beverages for a period of five years.

(2) All such invoices, books, papers canceled checks or other memoranda shall be subject to audit and inspection by the department at any and all times upon written notice by the department.

(3) Any person, firm, corporation, club or association of persons who fails or refuses to keep and preserve the records as required by this section or who, upon written request by the department, fails or refuses to allow an audit or inspection of records as provided in this ordinance shall be guilty of a misdemeanor and shall, upon conviction, be punished by a fine of not less than $50.00 nor more than $500.00, or by imprisonment for a period not to exceed six months for each offense. Each occurrence of such failure or refusal shall constitute a separate offense and shall also constitute grounds for revocation of any license issued under this Schedule 150.

(4) Additional requirements are outlined in Article II, Section 9, of this Business License Code.

(G) *Liquor License / Tax Returns to be Filed; Return to be filed though No Tax May Be Due.* The person liable for any license tax imposed by this Schedule shall file with the Director of Finance on or before the final date on which the license tax may be paid without a penalty, such report or reports and in such form as the Director may prescribe evidencing the amount of business done and the amount of license due thereon. A return should be filed for each reporting period, as provided in this Section 1, even though no tax may be due.

(H) *Appeal from the Denial of Liquor License Application.* Any person aggrieved by any decision of the Director in the enforcement of this subdivision, may appeal there from to the Council of the City of Birmingham by filing with the City Clerk, within five days of such decision, a letter addressed to the Council, protesting such decision, and contemporaneously delivering a copy of such protest to the Director of Finance and thereafter appearing and prosecuting such protest at the regular meeting of the Council next following the filing of such protest. Failure to thus appeal shall constitute acceptance of such decision and assent to the correctness thereof.

Where a matter has been properly appealed to the Birmingham City Council and resulted in the denial of approval of a license application, the applicant may appeal to the circuit court. Proceedings in the circuit court to review the denial of approval of a license application shall be commenced within 14 days of the action by the Birmingham City Council. The circuit court shall hear the appeal according to its own rules and procedures within 30 days thereafter.

(I) *City Liquor License Must Be Obtained for Each ABC Board License Held; License Must Be Displayed.* A City license shall be obtained for each ABC Board license held. Every license issued under this ordinance shall be constantly and conspicuously displayed on the licensed premises.

(J) *Approval of Liquor License Applicant and Business Location Required.* No license will be issued until requirements mandated by the City of Birmingham Department of Planning, Engineering and Permits (Zoning), the City of Birmingham Fire and Rescue Service Department, and the Jefferson County Health Department have been met, and the applicant and the location have been approved by the City Council.

(K) *Liquor Licenses May Not Be Assigned or Transferred Without Approval.* As provided in Section 28-3A-23(j) Code of Alabama 1975, licenses issued under this Schedule 150 may not be assigned. The City is hereby authorized to transfer any license from one person to another or from one place to another within its governing jurisdiction or both upon submission of such application for transfer to the Finance Department and approval of same by the Council of the City of Birmingham. Under no circumstances may a license issued pursuant to this section be transferred more than once in a calendar year. No transfer shall be made to a person who would not have been eligible to receive the license originally nor for the transaction of business at a place for which the license could not originally have been issued lawfully.

(L) *Written Application for Transfer of Liquor License Required.* Every applicant desiring a transfer of a license shall file a written application with the Director of Finance prior to the date ownership of the business is legally transferred or conferred to another legal entity. No license shall be transferred except with the consent of the council or other governing body of the municipality or of the director of finance or other chief revenue officer or his or her designee, and no license shall be transferred to reflect a physical change of address of the taxpayer within the municipality more than once during a license year and never from one taxpayer to another. Provided that a mere change in the name or ownership of a taxpayer that is a corporation, partnership, limited liability company or other form of legal entity now or hereafter recognized by the laws of Alabama shall not constitute a transfer for purposes of this ordinance, unless:

(1) The change requires the taxpayer to obtain a new federal employer identification number or City of Birmingham identification number; or

(2) In the discretion of the city, the subject license is one for the sale of alcoholic beverages. Nothing is this section shall prohibit the city from requiring a new business license application and approvals for an alcoholic beverage license.

(M) *License Immediately Terminated in the Event of Bankruptcy or Insolvency.* Pursuant to Section 28-3A-23(m) Code of Alabama 1975, in the event that any person to whom a license shall have been issued under the terms of this ordinance shall

become insolvent, make an assignment for the benefit of creditors, be adjudicated a bankrupt by either voluntary or involuntary action, the license of such person shall immediately terminate and be canceled without any action on the part of the City Council, and there shall be no refund made, or credit given, for the unused portion of the license fee for the remainder of the license year for which said license was granted. Thereafter, no license shall be issued by the Finance Department for the premises, wherein said license was conducted, to any assignee, committee, trustee, receiver, or successor of such licensee until a new application for license has been approved by the City Council. In all such cases, the City Council shall have sole and final discretion as to the propriety of the issuance of a license for such premises, and the time it shall issue, and the period for which it shall be issued, and shall have the further power to impose conditions under which said licensed premises shall be conducted.

(N) *License Immediately Terminated Upon Termination of State License, Including Termination For Failure to Timely Renew State License.* In the event that any person to whom a license shall have been issued under the terms of this ordinance has a State alcoholic beverage license terminate, including as a result of their failure to timely renew the State alcoholic beverage license, the equivalent City of Birmingham alcoholic beverage license shall terminate and be canceled without any action on the part of the City Council, and there shall be no refund made, or credit given for the unused portion of the license fee for the remainder of the license year for which said license was granted. Thereafter, a new City of Birmingham alcoholic beverage license shall be required in order to continue the sale of any alcoholic beverage within the City, and a new application must be filed and a new license issued in the manner prescribed by this ordinance and by State law before continuation of the business activity. In all such cases, the Council of the City of Birmingham shall have sole and final discretion as to the propriety of the issuance of a new license for such premises, and shall have the further power to impose conditions under which said licensed premises shall be conducted.

NAICS 313. NAICS TITLE—TEXTILE MILLS.

Industries in the Textile Mills subsector group establishments that transform a basic fiber (natural or synthetic) into a product, such as yarn or fabric, that is further manufactured into usable items, such as apparel, sheets, towels, and textile bags for individual or industrial consumption. The further manufacturing may be performed in the same establishment and classified in this subsector, or it may be performed at a separate establishment and be classified elsewhere in manufacturing.

The main processes in this subsector include preparation and spinning of fiber, knitting or weaving of fabric, and the finishing of the textile. The NAICS structure follows and captures this process flow. Major industries in this flow, such as preparation of fibers, weaving of fabric, knitting of fabric, and fiber and fabric

finishing, are uniquely identified. Texturizing, throwing, twisting, and winding of yarn contains aspects of both fiber preparation and fiber finishing and is classified with preparation of fibers rather than with finishing of fiber.

SCHEDULE 306. TEXTILE MILLS.

Each person, firm or corporation engaged in the business of the main processes of preparation and spinning of fiber, knitting or weaving of fabric, and the finishing of the textile shall pay a license of two-tenths of one percent of the gross receipts from said business from the previous year with a minimum license of: $300.00.

NAICS 314. NAICS TITLE—TEXTILE PRODUCT MILLS.

Industries in the Textile Product Mills subsector group establishments that make textile products (except apparel). With a few exceptions, processes used in these industries are generally cut and sew (i.e., purchasing fabric and cutting and sewing to make nonapparel textile products, such as sheets and towels).

SCHEDULE 341. MANUFACTURING TEXTILE PRODUCTS.

Each person, firm or corporation engaged in the business of manufacturing textile products, woven, tufted, including carpets, rugs, curtains and draperies shall pay a license of two-tenths of one percent of the gross receipts from the previous year with a minimum license of: $300.00.

NAICS 315. NAICS TITLE—APPAREL MANUFACTURING.

Industries in the Apparel Manufacturing subsector group establishments with two distinct manufacturing processes: (1) cut and sew (i.e., purchasing fabric and cutting and sewing to make a garment), and (2) the manufacture of garments in establishments that first knit fabric and then cut and sew the fabric into a garment. The Apparel Manufacturing subsector includes a diverse range of establishments manufacturing full lines of ready-to-wear apparel and custom appeal: apparel contractors, performing cutting or sewing operations on materials owned by others; jobbers performing entrepreneurial functions involved in apparel manufacture; and tailors, manufacturing custom garments for individual clients are all included. Knitting, when done alone, is classified in the Textile Mills subsector, but when knitting is combined with the production of complete garments, the activity is classified in Apparel Manufacturing.

SCHEDULE 090. APPAREL MANUFACTURING.

Each person, firm or corporation engaged in the business weaving, or knitting fabric, making garments from purchased fabric shall pay a license of two-tenths of one percent of the gross receipts with a minimum license of: $100.00.

No license will be issued unless business location is approved by the City of Birmingham Department of Planning, Engineering and Permits as having met zoning requirements.

NAICS 316. NAICS TITLE—LEATHER AND ALLIED PRODUCT MANUFACTURING.

Establishments in the Leather and Allied Product Manufacturing subsector transform hides into leather by tanning or curing and fabricating the leather into products for final consumption. It also includes the manufacture of similar products from other materials, including products (except apparel) made from "leather substitutes," such as rubber, plastics, or textiles. Rubber footwear, textile luggage, and plastics purses or wallets are examples of "leather substitute" products included in this group. The products made from leather substitutes are included in this subsector because they are made in similar ways leather products are made (e.g., luggage). They are made in the same establishments, so it is not practical to separate them.

The inclusion of leather making in this subsector is partly because leather tanning is a relatively small industry that has few close neighbors as a production process, partly because leather is an input to some of the other products classified in this subsector and partly for historical reasons.

SCHEDULE 126. HIDES.

Each person, firm or corporation dealing with hides, tallow, ginseng, beeswax, or purchasing and receiving or collecting waste grease and animal by-products for rendering or recycling (Act 99-526) shall pay a license of two-tenths of one percent of the gross receipts from said business from the previous year with a minimum license of: $200.00.

NAICS 321. NAICS TITLE—WOOD PRODUCT MANUFACTURING.

Industries in the Wood Product Manufacturing subsector manufacture wood products, such as lumber, plywood, veneers, wood containers, wood flooring, wood trusses, manufactured homes (i.e., mobile home), and prefabricated wood buildings. The production processes of the Wood Product Manufacturing subsector include sawing, planing, shaping, laminating, and assembling of wood products starting from logs that are cut into bolts, or lumber that then may be further cut, or shaped by lathes or other shaping tools. The lumber or other transformed wood shapes may also be subsequently planed or smoothed, and assembled into finished products, such as wood containers. The Wood Product Manufacturing subsector includes establishments that make wood products from logs and bolts that are sawed and shaped, and establishments that purchase sawed lumber and make wood products. With the exception of sawmills and wood preservation establishments, the establishments are grouped into industries mainly based on the specific products manufactured.

SCHEDULE 152A. LUMBER AND/OR BUILDING MATERIAL MANUFACTURER AND/OR DEALER.

Each person, firm or corporation shall pay a license of two-tenths of one percent of the gross receipts less returned goods, for said business for the previous year with a minimum license of: $200.00.

NAICS 322. NAICS TITLE—PAPER MANUFACTURING.

Industries in the Paper Manufacturing subsector make pulp, paper, or converted paper products. The manufacturing of these products is grouped together because they constitute a series of vertically connected processes. More than one is often carried out in a single establishment. There are essentially three activities. The manufacturing of pulp involves separating the cellulose fibers from other impurities in wood or used paper. The manufacturing of paper involves matting these fibers into a sheet. Converted paper products are made from paper and other materials by various cutting and shaping techniques and includes coating and laminating activities.

SCHEDULE 307. PAPER MANUFACTURING.

Each person, firm or corporation engaged in the business of manufacturing pulp, paper, or converted paper products shall pay a license of two-tenths of one percent of the gross receipts from said business for the previous year with a minimum license of: $300.00.

NAICS 323. NAICS TITLE—PRINTING AND RELATED SUPPORT ACTIVITIES.

Industries in the Printing and Related Support Activities subsector print products, such as newspapers, books, labels, business cards, stationery, business forms, and other materials, and perform support activities, such as data imaging, plate making services, and bookbinding. The support activities included here are an integral part of the printing industry, and a product (a printing plate, a bound book, or a computer disk or file) that is an integral part of the printing industry is almost always provided by these operations.

Processes used in printing include a variety of methods used to transfer an image from a plate, screen, film, or computer file to some medium, such as paper, plastics, metal, textile articles, or wood. The most prominent of these methods is to transfer the image from a plate or screen to the medium (lithographic, gravure, screen, and flexographic printing). A rapidly growing new technology uses a computer file to directly "drive" the printing mechanism to create the image and new electrostatic and other types of equipment (digital or no impact printing).

In contrast to many other classification systems that locate publishing of printed materials in manufacturing, NAICS classifies the publishing of printed products in

Subsector 511, Publishing Industries (except Internet). Though printing and publishing are often carried out by the same enterprise (a newspaper, for example), it is less and less the case that these distinct activities are carried out in the same establishment. When publishing and printing are done in the same establishment, the establishment is classified in Sector 51, Information, in the appropriate NAICS industry even if the receipts for printing exceed those for publishing.

This subsector includes printing on clothing because the production process for that activity is printing, not clothing manufacturing. For instance, the printing of T-shirts is included in this subsector. In contrast, printing on fabric (or grey goods) is not included.

SCHEDULE 208. PRINTING, ENGRAVING, PHOTOENGRAVING, MULTIGRAPH, MIMEOGRAPH, LINOTYPE, BOOKBINDING OR RULING.

Each person, firm or corporation operating a job printing office or linotype machine with or without printing press or bookbinding shall pay a license of two-tenths of one percent of the gross receipts from said business from the previous year with a minimum license of: $96.00.

This license to be paid in addition to the other licenses provided for in this Code where merchandise, stationery, and office supplies, etc., are sold.

NAICS 324. NAICS TITLE—PETROLEUM AND COAL PRODUCTS MANUFACTURING.

The Petroleum and Coal Products Manufacturing subsector is based on the transformation of crude petroleum and coal into usable products. The dominant process is petroleum refining that involves the separation of crude petroleum into component products through such techniques as cracking and distillation.

In addition, this subsector includes establishments that primarily further process refined petroleum and coal products and produce products, such as asphalt coatings and petroleum lubricating oils. However, establishments that manufacture petrochemicals from refined petroleum are classified in Industry 32511, Petrochemical Manufacturing.

SCHEDULE 115. GAS COMPANIES—TRANSPORTATION OF NATURAL GAS.

Each person, firm or corporation engaged in the transportation and wholesale distribution of natural gas, which maintains its principal executive or administrative office within the city, shall pay a license computed as follows:

When it employs in such office not more than 250 persons	$6,000.00
When it employs between 251 and 500	$10,000.00
When it employs 501 to 750	$15,000.00
When it employs more than 750	$20,000.00

This schedule shall not apply to any gas company whose principal business in the city is the retail distribution of gas.

SCHEDULE 119. GASOLINE STORAGE.

(a) Each person, firm or corporation engaged in the business of receiving and/or storing gasoline for others shall pay a license in an amount equal to $0.02 per gallon on all gasoline so received and/or stored during the full calendar year immediately preceding; plus $200.00, provided, however, that if said person, firm or corporation engaged in such storage business did not conduct said business for the full period of said preceding year $2,000.00 shall be paid as a deposit against this license until the end of the current calendar year at which time an adjustment shall be made on the basis of $0.01 per gallon for all gasoline so received and/or stored during the said current calendar year.

This license of $0.01 per gallon shall not apply where satisfactory proof is made to the Director of Finance that the City's current license tax, as provided for in Ordinances 598-F and 599-F has been paid on the gasoline that is being stored.

(b) Each person, firm or corporation engaged in the business of renting tanks or other storage space to others for the purpose of storing gasoline, shall pay a license of: $4,000.00.

This license shall not apply where satisfactory proof is made to the Director of Finance that the City's gallonage license tax as provided for in Ordinances 598-F and 599-F, has been paid on the gasoline stored in such space.

SCHEDULE 182. OILS.

Each wholesale dealer, broker, or commission merchant, where not principal business and sold in connection with other wholesale business, shall pay a license in an amount equal to 6/20 of one percent of gross receipts from sales of such business during the year next preceding, with a minimum license, in addition to all other licenses, of: $120.00.

SCHEDULE 183. OILS.

Each person, firm or corporation selling as agent, lubricating, illuminating, fuel, gasoline, benzol, benzol products or other oil products, shall pay for the privilege of engaging in such business within the corporate limits a privilege tax at the rate of $100.00 per annum for each truck used in said business, whether said truck be owned by such agent or not.

SCHEDULE 230. MANUFACTURERS OR DISTRIBUTORS OF CHEMICALS, CHEMICAL GAS, POWDER OR OTHER EXPLOSIVES, TAR OR ASPHALT PRODUCTS.

Each person, firm or corporation engaged in the business of manufacturing, distributing, or who maintains a sales office in the City shall pay a license of two-tenths of one percent of the gross receipts from said business from the previous year with a minimum license of: $200.00.

SCHEDULE 260. OIL, GASOLINE AND DIESEL FUEL DELIVERY.

Each person as principal or agent engaged in distributing or making deliveries, by its own employees or by contract carrier, public or private, or otherwise, of oil, gasoline, kerosene, diesel fuel (other than aviation fuels) or lubricating products, and/or automobile tires and accessories, to one or more service stations, retailers, businesses or other consumers which are located in the city, whether or not such delivery or distribution is made from a place of business within or outside of the city's corporate limits, shall pay an amount of license equal to 6/20 of one percent of the gross receipts from such deliveries or distribution during the next preceding license year, provided, that the tax hereby levied shall not apply to gross receipts of any delivery upon which a license tax levied pursuant to Ordinances 598F or 599F, or Schedules 180 or 182 of this Code has been paid.

The term gross receipts as used in this schedule shall mean the entire receipts from all such deliveries and distribution, not including federal, state and local government taxes on the products so delivered or distributed, and if there are no actual receipts, shall be deemed to be not less than the wholesale value of the products so delivered or distributed.

SCHEDULE 598F. OFF ROAD DIESEL FUEL—SALES OR DISTRIBUTION.

Every distributor or seller of off road diesel fuel or diesel oil shall pay a monthly license tax in an amount equal to $0.02 on each and every gallon of diesel fuel or diesel oil sold or delivered within the corporate limits of the City for use other than in the operation of any motor vehicle upon the public roads and public streets.

For the purposes of this schedule, "diesel fuel" or "diesel oil" shall not be held to apply to those products known commercially as "fuel oil" or "crude oil" when said products are used for lighting or space heating purposes. The term "distributor or seller" shall include every person, as defined in Article II, Section 1 of this business license code, who shall engage in selling or delivering diesel fuel or diesel oil within the corporate limits of the City of Birmingham for use other than in the operation of any motor vehicle upon public highways, public roads and public streets.

Due Date and Penalty. Each and every distributor and seller, shall, on or before the 25th day of each month, file with the Director of Finance a sworn, written statement, which shall be a full, true, accurate and correct statement of the amount and quantity of all diesel fuel or diesel oil sold or delivered by such distributor or seller within the corporate limits of said City during the preceding month. Any person failing or refusing to pay said license within the time specified shall be guilty of any offense against said City, and such offense shall be a continuing offense, and each day during

which said business or occupation is engaged in during such default shall constitute a separate offense; and, in addition, such license tax shall be increased by the addition of a penalty of 20 percent thereon.

SCHEDULE 599F. OFF ROAD DIESEL FUEL—STORAGE OR WITHDRAWALS.

Every storer of off road diesel fuel or diesel oil shall pay a monthly license tax in an amount equal to $0.02 on each and every gallon of diesel fuel or diesel oil stored and/or withdrawn from storage within the corporate limits of the City for use other than in the operation of any motor vehicle upon the public roads and public streets.

For the purposes of this schedule, "diesel fuel" or "diesel oil" shall not be held to apply to those products known commercially as "fuel oil" or "crude oil" when said products are used for lighting or space heating purposes. The term "storer" shall include any person, as defined in Article II, Section 1 of this ordinance, who ships or causes to be shipped or receives diesel fuel or diesel oil into the City of Birmingham and stores the same in any manner and/or withdraws or uses the same for any purpose other than the operation of any motor vehicle upon public highways, public roads and public streets or for resale or reshipment.

Due Date and Penalty. Each and every storer, shall, on or before the 25th day of each month, file with the Director of Finance a sworn, written statement, which shall be a full, true, accurate and correct statement of the amount and quantity of all diesel fuel or diesel oil withdrawn from storage by such storer within the corporate limits of said City during the month. Any person failing or refusing to pay said license within the time specified shall be guilty of any offense against said City, and such offense shall be a continuing offense, and each day during which said business or occupation is engaged in during such default shall constitute a separate offense; and, in addition, such license tax shall be increased by the addition of a penalty of 20 percent thereon.

NAICS 325. NAICS TITLE—CHEMICAL MANUFACTURING.

The Chemical Manufacturing subsector is based on the transformation of organic and inorganic raw materials by a chemical process and the formulation of products. This subsector distinguishes the production of basic chemicals that comprise the first industry group from the production of intermediate and end products produced by further processing of basic chemicals that make up the remaining industry groups.

This subsector does not include all industries transforming raw materials by a chemical process. It is common for some chemical processing to occur during mining operations. These beneficiating operations, such as copper concentrating, are classified in Sector 21, Mining. Furthermore, the refining of crude petroleum is included in Subsector 324, Petroleum and Coal Products Manufacturing. In addition, the manufacturing of aluminum oxide is included in Subsector 331, Primary Metal Manufacturing; and beverage distilleries are classified in Subsector 312, Beverage and Tobacco

Product Manufacturing. As in the case of these two activities, the grouping of industries into subsectors may take into account the association of the activities performed with other activities in the subsector.

SCHEDULE 114. GAS-BUTANE OR PROPANE.

Each person or agent for same, engaged in manufacturing or distributing butane or propane gas, shall pay a license of two percent of gross receipts from said business from the previous year with a minimum license of: $200.00.

No license will be issued until applicant posts a $2,500.00 bond with the Director of Finance.

NAICS 326. NAICS TITLE—PLASTICS AND RUBBER PRODUCTS MANUFACTURING.

Industries in the Plastics and Rubber Products Manufacturing subsector make goods by processing plastics materials and raw rubber. The core technology employed by establishments in this subsector is that of plastics or rubber product production. Plastics and rubber are combined in the same subsector because plastics are increasingly being used as a substitute for rubber; however the subsector is generally restricted to the production of products made of just one material, either solely plastics or rubber.

Many manufacturing activities use plastics or rubber, for example the manufacture of footwear, or furniture. Typically, the production process of these products involves more than one material. In these cases, technologies that allow disparate materials to be formed and combined are of central importance in describing the manufacturing activity. In NAICS, such activities (the footwear and furniture manufacturing) are not classified in the Plastics and Rubber Products Manufacturing subsector because the core technologies for these activities are diverse and involve multiple materials.

Within the Plastics and Rubber Products Manufacturing subsector, a distinction is made between plastics and rubber products at the industry group level, although it is not a rigid distinction, as can be seen from the definition of Industry 32622, Rubber and Plastics Hoses and Belting Manufacturing. As materials technology progresses, plastics are increasingly being used as a substitute for rubber; and eventually, the distinction may disappear as a basis for establishment classification.

SCHEDULE 308. PLASTIC AND RUBBER MANUFACTURING.

Each person, firm or corporation engaged in the business of manufacturing plastic or rubber products such as lamination of plastics film as well as the production of bags from plastics shall pay a license of two-tenths of one percent of the gross receipts from said business from the previous year with a minimum license of: $300.00.

NAICS 327. NAICS TITLE—NONMETALLIC MINERAL PRODUCT MANUFACTURING.

The Nonmetallic Mineral Product Manufacturing subsector transforms mined or quarried nonmetallic minerals, such as sand, gravel, stone, clay, and refractory materials, into products for intermediate or final consumption. Processes used include grinding, mixing, cutting, shaping, and honing. Heat often is used in the process and chemicals are frequently mixed to change the composition, purity, and chemical properties for the intended product. For example, glass is produced by heating silica sand to the melting point (sometimes combined with cullet or recycled glass) and then drawn, floated, or blow molded to the desired shape or thickness. Refractory materials are heated and then formed into bricks or other shapes for use in industrial applications. The Nonmetallic Mineral Product Manufacturing subsector includes establishment that manufacture products, such as bricks, refractories, ceramic products, and glass and glass products, such as plate glass and containers. Also included are cement and concrete products, lime, gypsum and other nonmetallic mineral products including abrasive products, ceramic plumbing fixtures, statuary, cut stone products, and mineral wool. The products are used in a wide range of activities from construction and heavy and light manufacturing to articles for personal use.

Mining, beneficiating, and manufacturing activities often occur in a single location. Separate receipts will be collected for these activities whenever possible. When receipts cannot be broken out between mining and manufacturing, establishments that mine or quarry nonmetallic minerals, beneficiate the nonmetallic minerals and further process the nonmetallic minerals into a more finished manufactured product are classified based on the primary activity of the establishment. A mine that manufactures a small amount of finished products will be classified in Sector 21, Mining. An establishment that mines whose primary output is a more-finished manufactured product will be classified in the Manufacturing Sector.

Excluded from the Nonmetallic Mineral Product Manufacturing subsector are establishments that primarily beneficiate mined nonmetallic minerals. Beneficiation is the process whereby the extracted material is reduced to particles that can be separated into mineral and waste, the former suitable for further processing or direct use. Beneficiation establishments are included in Sector 21, Mining.

SCHEDULE 042. BRICK MANUFACTURERS.

Each person, firm or corporation engaged in the business of brick yards, dealers in brick, slag or cement block manufacturers and/or dealers, cement or metal vault manufacturers and/or dealers, and/or cement ornament manufacturers shall pay a license of two-tenths of one percent of the gross receipts from said business from the previous year with a minimum license in any case of: $200.00.

SCHEDULE 058. COAL, COKE & CHARCOAL YARDS.

A "coal yard" as used herein shall mean a place of business where there is stored or kept an average stock of coal and/or coke or charcoal of not less than 250 tons on the first day of each calendar month of next preceding calendar year.

Each person, firm or corporation engaging in selling or delivering, either at wholesale or retail, coal and/or coke or charcoal who regularly maintains a coal yard, which includes the privilege of weighing at such yard, in the City of Birmingham as herein defined, shall pay an amount equal to two-tenths of one percent of the gross receipts, less adjustments, on deliveries made during the next preceding calendar year, with a minimum license of: $144.00.

SCHEDULE 059. COAL, COKE & CHARCOAL—"NO YARD."

Each person, firm or corporation engaging in selling or delivering, distributing, hauling or soliciting orders either at wholesale or retail, coal and/or coke or charcoal, where no "coal yard" as defined in Schedule 058 is maintained in the City, but where deliveries are made by railroad cars, shall pay an amount equal to two-tenths of one percent of the gross receipts, less adjustments, on deliveries made within the City of Birmingham during the next preceding calendar year with a minimum license in any case of: $200.00.

Each such person, firm or corporation so engaged and who maintains an office in the City of Birmingham, shall pay a license under this schedule, based on the gross receipts from all sales made and delivered within the City of Birmingham.

SCHEDULE 060. COAL AND COKE. DELIVERY.

Each person, firm or corporation engaged in selling or delivering coal or coke within the City of Birmingham, not maintaining a "coal yard" as defined in Schedule 058, and selling or delivering coal or coke other than from railroad cars within the City of Birmingham, shall pay an amount equal to $90.00 upon each motor vehicle used in making such deliveries whether such motor vehicles are owned and operated by such person, firm or corporation or not.

SCHEDULE 237. TILE MANUFACTURING. CONTRACTOR OR DEALER.

Each person, firm or corporation engaged in manufacturing or dealing in tile products, including the laying of tile, shall pay a license in an amount equal to two-tenths of one percent of the gross receipts from said business for the year next preceding, with a minimum license in any case of: $120.00.

NAICS 331. NAICS TITLE—PRIMARY METAL MANUFACTURING.

Industries in the Primary Metal Manufacturing subsector smelt and/or refine ferrous and nonferrous metals from one, pig or scrap, using electrometallurgical and other process metallurgical techniques. Establishments in this subsector also manufacture metal alloys and super alloys by introducing other chemical elements to pure

metals. The output of smelting and refining, usually in ingot form, is used in rolling, drawing, and extruding operations to make sheet, strip, bar, rod, or wire, and in molten form to make castings and other basic metal products.

Primary manufacturing of ferrous and nonferrous metals begins with ore or concentrate as the primary input. Establishments manufacturing primary metals from ore and/or concentrate remain classified in the primary smelting, primary refining, or iron and steel mill industries regardless of the form of their output. Establishments primarily engaged in secondary smelting and/or secondary refining recover ferrous and nonferrous metals from scrap and/or dross. The output of the secondary smelting and/or secondary refining industries is limited to shapes, such as ingot or billet, which will be further processed. Recovery of metals from scrap often occurs in establishments that are primarily engaged in activities, such as rolling, drawing, extruding, or similar processes.

Excluded from the Primary Metal Manufacturing subsector are establishments primarily engaged in manufacturing ferrous and nonferrous forgings (except ferrous forgings made in steel mills) and stampings. Although forging, stamping, and casting are all methods used to make metal shapes, forging and stamping do not use molten metals and are included in Subsector 332, Fabricated Metal Product Manufacturing. Establishments primarily engaged in operating coke ovens are classified in Industry 32419, Other Petroleum and Coal Products Manufacturing.

SCHEDULE 106. FOUNDRY, BRIDGE BUILDING PLANT, BOILER WORKS, MACHINE SHOP, METAL FINISHING, PLATING OR TREATING PLANT, NUT OR BOLT FACTORY, PIPE SHOP, RADIATOR PLANT, BUILDING BRIDGES OR ERECTING STEEL OR OTHER METAL FRAME FOR BUILDINGS, OR REPAIRING AND CONSTRUCTING COKE OVENS.

Each person engaged in carrying on in the City of Birmingham any foundry, bridge building plant, boiler works not connected with a railroad, machine shop, metal finishing, plating or treating plant, nut or bolt factory, pipe or valve shop, or radiator plant, or engaged in building bridges or in erecting steel or other metal framework for buildings or other structures, or repairing and constructing coke ovens, shall pay a license in an amount equal to two-tenths of one percent of the gross receipts from said business from the previous year with a minimum license of: $200.00.

SCHEDULE 120. GOLD AND SILVER.

Each person, firm or corporation engaging in the business of buying gold or silver or gold or silver objects shall pay a license of two-tenths of one percent of gross receipts from said business from the previous year with a minimum license of: $200.00. No license will be issued unless and until applicant has obtained the permit required pursuant to chapter 3.7 of title 12, as amended and as it may be amended.

SCHEDULE 142. JUNK BROKERS AND/OR SCRAP METAL BROKERS.

Each person, firm or corporation engaged in the business of buying or selling or buying and selling, for account of another, junk or scrap metal or junk and scrap metal or otherwise engaged in the business of a broker in junk or scrap metal or junk and scrap metal shall pay a license equal to one percent of the gross brokerage fees and commissions of such business for the next preceding year with a minimum license in any case of: $400.00.

A broker for the purpose of this schedule is one who for a commission or fee buys or sells or buys and sells junk or scrap metal or junk and scrap metal without having possession of such junk or scrap metal or who negotiates such transactions between buyer and seller without having possession of such junk or scrap metal.

No license will be issued until applicant has been approved by the City Council and the City of Birmingham Department of Planning, Engineering and Permits as having met zoning requirements.

SCHEDULE 144. ITINERANT JUNK DEALERS.

Each person, firm or corporation acting as an itinerant junk dealer engaged in the business of buying or selling junk or scrap metal shall, for each automobile or truck used in said business, pay a license of: $480.00.

No license will be issued until and unless applicant has met the requirements outlined in Article B, Sections 12-11-11 through 12-11-50, General Code of the City of Birmingham, and has been approved by the City Council and has also received written verification from the City of Birmingham Department of Planning, Engineering and Permits indicating that all zoning requirements have been met.

License stickers issued by the department shall be prominently displayed on any automobile or truck used in connection with said business operating within the City of Birmingham. It shall be unlawful to operate any automobile or truck that is subject to the provisions of this section within the City of Birmingham without having met all of the requirements outlined in this section.

SCHEDULE 145. JUNK YARDS, JUNK DEALERS AND/OR SCRAP METAL DEALERS.

Each person, firm or corporation engaged in the business of operating a junk yard and/or of buying or selling junk or scrap metal shall pay a license of: $480.00.

Plus an amount equal to two-tenths of one percent of gross receipts from the previous year in excess of $100,000.00 with a minimum license of $480.00 in any case.

No license will be issued until and unless applicant has met the requirements outlined in Article B, Section[s] 12-11-11 through 12-11-50, General Code of the City of Birmingham, 1980, and has been approved by the City Council and has also received written verification from the City of Birmingham Department of Planning, Engineering and Permits indicating that all zoning requirements have been met.

SCHEDULE 217. ROLLING MILLS.

Each person, firm or corporation, or who maintains their principal office in the City of Birmingham, who are engaged in the manufacturing and rolling steel rails, plates, and/or other iron and steel products, including the manufacture and sale of pig iron, shall pay a license of two-tenths of one percent of the gross receipts from said business from the previous year with a minimum license of: $1,200.00.

NAICS 332. NAICS TITLE—FABRICATED METAL PRODUCT MANUFACTURING.

Industries in the Fabricated Metal Product Manufacturing subsector transform metal into intermediate or end products, other than machinery, computers and electronics, and metal furniture or treating metals and metal formed products fabricated elsewhere. Important fabricated metal processes are forging, stamping, bending, forming, and machining, used to shape individual pieces of metal; and other processes, such as welding and assembling, used to join separate parts together. Establishments in this subsector may use one of these processes or a combination of these processes.

The NAICS structure for this subsector distinguishes the foregoing and stamping processes in a single industry. The remaining industries, in the subsector, group establishments based on similar combinations of processes used to make products.

The manufacturing performed in the Fabricated Metal Product Manufacturing subsector begins with manufactured metal shapes. The establishments in this sector further fabricate the purchased metal shapes into a product. For instance, the Spring and Wire Product Manufacturing industry starts with wire and fabricates such items.

SCHEDULE 309. FABRICATED METAL PRODUCT MANUFACTURING.

Each person, firm or corporation engaged in manufacturing fabricated metal transformed into intermediate or end products by forging, stamping, bending, forming and machining shall pay a license in an amount equal to two-tenths of one percent of the gross receipts from said business for the year next preceding, with a minimum license in any case of: $300.00.

NAICS 333. NAICS TITLE—MACHINERY MANUFACTURING.

Industries in the Machinery Manufacturing subsector create end products that apply mechanical force, for example, the application of gears and levers, to perform work. Some important processes for the manufacture of machinery are forging, stamping, bending, forming, and machining that is used to shape individual pieces of metal. Processes, such as welding and assembling are used to join separate parts together. Although these processes are similar to those used in metal fabricating establishments, machinery manufacturing is different because it typically employs

multiple metal forming processes in manufacturing the various parts of the machine. Moreover, complex assembly operations are an inherent part of the production process.

In general, design considerations are very important in machinery production. Establishments specialize in making machinery designed for particular applications. Thus, design is considered to be part of the production process for the purpose of implementing NAICS. The NAICS structure reflects this by defining industries and industry groups that make machinery for different applications. A broad distinction exists between machinery that is generally used in a variety of industrial applications (i.e., general purpose machinery) and machinery that is designed to be used in a particular industry (i.e., special purpose machinery). Three industry groups consist of special purpose machinery—Agricultural, Construction, and Mining Machinery Manufacturing; Industrial Machinery Manufacturing; and Commercial and Service Industry Machinery Manufacturing. The other industry groups make general-purpose machinery: Ventilation, Heating, Air Conditioning, and Commercial Refrigeration Equipment Manufacturing; Metalworking Machinery Manufacturing; Engine, Turbine, and Power Transmission Equipment Manufacturing; and Other General Purpose Machinery Manufacturing.

SCHEDULE 154. MACHINERY DEALER.

Each dealer in new or second-hand machinery shall pay a license computed as follows:

Where gross sales from said business from the previous year were:	
Less than $30,000.00	$60.00
$30,000.00 and less than $60,000.00	120.00
$60,000.00 and less than $90,000.00	180.00
$90,000.00 and less than $100,000.00	200.00
Plus an amount equal to 2/10 of one percent of gross sales in excess of $100,000.00.	

NAICS 334. NAICS TITLE—COMPUTER AND ELECTRONIC PRODUCT MANUFACTURING.

Industries in the Computer and Electronic Product Manufacturing subsector group establishments that manufacture computers, computer peripherals, communications equipment, and similar electronic products, and establishments that manufacture components for such products. The Computer and Electronic Product Manufacturing industries have been combined in the hierarchy of NAICS because of the economic significance they have attained. The design and use of integrated circuits and the application of highly specialized miniaturization technologies are common elements in the production technologies of the computer and electronic subsector. Convergence of technology motivates this NAICS subsector. Digitalization of sound recording, for example, causes both the medium (the compact disc) and the equipment to resemble

the technologies for recording, storing, transmitting, and manipulating data. Communications technology and equipment have been converging with computer technology. When technologically-related components are in the same sector, it makes it easier to adjust the classification for future changes, without needing to redefine its basic structure. The creation of the Computer and Electronic Product Manufacturing subsector will assist in delineating new and emerging industries because the activities that will serve as the probable sources of new industries, such as computer manufacturing and communications equipment manufacturing, or computers and audio equipment, are brought together.

SCHEDULE 310. COMPUTER AND ELECTRONIC PRODUCT MANUFACTURING.

Each person, firm or corporation engaged in the manufacture of computer and electronic products shall pay a license of two-tenths of one percent of the gross receipts from said business from the previous year with a minimum license of: $300.00.

NAICS 335. NAICS TITLE—ELECTRICAL EQUIPMENT, APPLIANCE, AND COMPONENT MANUFACTURING.

Industries in the Electrical Equipment, Appliance, and Component Manufacturing subsector manufacture products that generate, distribute and use electrical power. Electric Lighting Equipment Manufacturing establishments produce electric lamp bulbs, lighting fixtures, and parts. Household Appliance Manufacturing establishments make both small and major electrical appliances and parts. Electrical Equipment Manufacturing establishments make goods, such as electric motors, generators, transformers, and switchgear apparatus. Other Electrical Equipment and Component Manufacturing establishments make devices for storing electrical power (e.g., batteries), for transmitting electricity (e.g., insulated wire), and wiring devices (e.g., electrical outlets, fuse boxes, and light switches).

SCHEDULE 342. ELECTRICAL EQUIPMENT, APPLIANCE AND COMPONENT MANUFACTURING.

Each person, firm or corporation engaged in the manufacture of electrical equipment, appliance or component manufacturing of products that generate, distribute and use electrical power shall pay a license of two-tenths of one percent of the gross receipts from said business from the previous year with a minimum license of: $300.00.

NAICS 336. NAICS TITLE—TRANSPORTATION EQUIPMENT MANUFACTURING.

Industries in the Transportation Equipment Manufacturing subsector produce equipment for transporting people and goods. Transportation equipment is a type of machinery. An entire subsector is devoted to this activity because of the significance of its economic size in all three North American countries.

Establishments in this subsector utilize production processes similar to those of other machinery manufacturing establishments: bending, forming, welding, machining, and assembling metal or plastic parts into components and finished products. However, the assembly of components and subassemblies and their further assembly into finished vehicles tend to be a more common production process in this subsector than in the Machinery Manufacturing subsector.

NAICS has industry groups for the manufacture of equipment for each mode of transport: road, rail, air and water. Parts for motor vehicles warrant a separate industry group because of their importance and because parts manufacture requires less assembly, and the establishments that manufacture only parts are not as vertically integrated as those that make complete vehicles.

Land use motor vehicle equipment not designed for highway operation (e.g., agricultural equipment, construction equipment, and materials handling equipment) is classified in the appropriate NAICS subsector based on the type and use of the equipment.

SCHEDULE 009. AIRCRAFT.

Each person, firm or corporation engaged in the manufacture and/or sale of aircraft and/or the alteration or repairing of same, shall pay a license of two-tenths of one percent of the gross receipts from said business from the previous year with a minimum license of: $200.00.

SCHEDULE 047. CAR BUILDERS, MANUFACTURERS, OR FABRICATORS (RAILROAD).

Each person, firm or corporation engaged in the business of building, manufacturing, fabricating, altering or repairing railroad cars, shall pay a license of two-tenths of one percent of the gross receipts from said business from the previous year with a minimum of: $200.00.

SCHEDULE 248. WAGON, CARRIAGE OR AUTOMOBILE BODY BUILDERS.

Each person, firm or corporation engaged in the business of building, manufacturing, fabricating, wagons, carriages or automobiles, shall pay a license of two tenths of one percent of the gross receipts from said business from the previous year with a minimum of: $360.00.

NAICS 337. NAICS TITLE—FURNITURE AND RELATED PRODUCT MANUFACTURING.

Industries in the Furniture and Related Product Manufacturing subsector make furniture and related articles, such as mattresses, window blinds, cabinets, and fixtures. The processes used in the manufacture of furniture include the cutting, bending, molding, laminating, and assembly of such materials as wood, metal, glass, plastics, and rattan. However, the production process for furniture is not solely

bending metal, cutting and shaping wood, or extruding and molding plastics. Design and fashion trends play an important part in the production of furniture. The integrated design of the article for both esthetic and functional qualities is also a major part of the process of manufacturing furniture. Design services may be performed by the furniture establishment's work force or may be purchased from industrial designers.

Furniture may be made of any material, but the most common ones used in North America are metal and wood. Furniture manufacturing establishments may specialize in making articles primarily from one material. Some of the equipment required to make a wooden table, for example, is different from that used to make a metal one. However, furniture is usually made from several materials. A wooden table might have metal brackets, and a wooden chair a fabric or plastics seat. Therefore, in NAICS, furniture initially is classified based on the type of furniture (application for which it is designed) rather than the material used. For example, an upholstered sofa is treated as household furniture, although it may also be used in hotels or offices.

When classifying furniture according to the component material from which it is made, furniture made from more than one material is classified based on the material used in the frame, or if there is no frame, the predominant component material. Upholstered household furniture (excluding kitchen and dining room chairs with upholstered seats) is classified without regard to the frame material. Kitchen or dining room chairs with upholstered seats are classified according to the frame material.

SCHEDULE 343. FURNITURE AND RELATED PRODUCT MANUFACTURING.

Each person, firm or corporation engaged in the business of manufacturing furniture including furniture parts and frames and related articles such as mattresses, window blinds, cabinets, and fixtures shall pay a license of two-tenths of one percent of gross receipts from said business from the previous year with a minimum license of: $300.00.

NAICS 339. NAICS TITLE—MISCELLANEOUS MANUFACTURING.

Industries in the Miscellaneous Manufacturing subsector make a wide range of products that cannot readily be classified in specific NAICS subsectors in manufacturing. Processes used by these establishments vary significantly, both among and within industries. For example, a variety of manufacturing processes are used in manufacturing sporting and athletic goods that include products, such as tennis racquets and golf balls. The processes for these products differ from each other, and the processes differ significantly from the fabrication processes used in making dollars or toys, the melting and shaping of precious metals to make jewelry, and the bending, forming, and assembly used in making medical products.

The industries in this subsector are defined by what is made rather than how it is made. Although individual establishments might be appropriately classified elsewhere in the NAICS structure, for historical continuity, these product-based industries were maintained. In most cases, no one process or material predominates for an industry.

Establishments in this subsector manufacture products as diverse as medical equipment and supplies, jewelry, sporting goods, toys, and office supplies.

SCHEDULE 008. MANUFACTURER OF ARTIFICIAL LIMBS OR PROSTHESES, AWNINGS OR TENT, BAG, BASKET, BOX, AND/OR CRATE FACTORY, COFFINS, FURNITURE OR FIXTURES, DRESSES, UNDERWEAR, SHIRTS, OTHER CLOTHING, DOLLS, MATTRESSES INCLUDING MATTRESS RENOVATION, AND CLEANING.

Each person, firm or corporation shall pay a license of two-tenths of one percent of the gross receipts from said business from the previous year with a minimum license of: $200.00.

SCHEDULE 044. BROOM AND/OR MOP FACTORIES.

Each person, firm or corporation shall pay a license of two-tenths of one percent of the gross receipts from said business from the previous year with a minimum license of: $150.00.

SCHEDULE 086. DENTAL DEPOT OR LABORATORY.

Each person, firm or corporation operating a dental depot or dental laboratory shall pay a license of 6/20 of one percent of the gross receipts from said business from the previous year with a minimum license of: $120.00.

SCHEDULE 156. MANUFACTORY, FABRICATING, PROCESSING PLANT.

Each person, firm or corporation or association engaged in the business of manufacturing, fabricating, and/or processing by hand, machinery or otherwise, wares or material of any kind, shall pay a license equal to 1/10 of 1% of the gross receipts from sales or stock transfers thereof, less adjustments and returned goods, from said business from the previous year with a minimum license of: $240.00.

SCHEDULE 219. RUBBER STAMPS OR STENCILS.

Each person, firm or corporation manufacturing or making, where gross receipts from said business for the year immediately next preceding were:

Less than $5,000.00	$60.00
$5,000.00 and less than $10,000.00	$80.00
$10,000.00 and less than $20,000.00	$120.00
$20,000.00 and less than $30,000.00	$160.00

$30,000.00 and over	$200.00

NAICS 421. NAICS TITLE—WHOLESALE TRADE, DURABLE GOODS.

Industries in the Merchant Wholesalers, Durable Goods subsector sell capital or durable goods to other businesses. Merchant wholesalers generally take title to the goods that they sell; in other words, they buy and sell goods on their own account. Durable goods are new or used items generally with a normal life expectancy of three years or more. Durable goods merchant wholesale trade establishments are engaged in wholesaling products, such as motor vehicles, furniture, construction materials, machinery and equipment (including household-type appliances), metals and minerals (except petroleum), sporting goods, toys and hobby goods, recyclable materials, and parts.

SCHEDULE 185. OPTICIAN, WHOLESALE.

Each person engaged in the wholesale business of manufacturing optical lenses or grinding lenses and dealings in optical goods or supplies, where principal business, shall pay a license of two-tenths of one percent of the gross receipts from said business from the previous year with a minimum license in any case of: $200.00.

NAICS 422. NAICS TITLE—MERCHANT WHOLESALERS, NONDURABLE GOODS.

Industries in the Merchant Wholesalers, Nondurable Goods subsector sell nondurable goods to other businesses. Nondurable goods are items generally with a normal life expectancy of less than three years. Nondurable goods merchant wholesale trade establishments are engaged in wholesaling products, such as paper and paper products, chemicals and chemical products, drugs, textiles and textile products, apparel, footwear, groceries, farm products, petroleum and petroleum products, alcoholic beverages, books, magazines, newspapers, flowers and nursery stock, and tobacco products.

The detailed industries within the subsector are organized in the classification structure based on the products sold.

Business to business electronic markets, agents, and brokers primarily engaged in wholesaling nondurable goods, generally on a commission or fee basis, are classified in Subsector 425, Wholesale Electronic Markets and Agents and Brokers.

SCHEDULE 180. OILS, WHOLESALE.

Each dealer in lubricating, illuminating, fuel, linseed or turpentine oils, gasoline (other than any gasoline or any substitute therefor which is consumed as aviation fuel), benzol and benzol products, and/or automobile tires and accessories, one or more, shall pay an amount equal to 6/20 of one percent of the gross receipts from any such business less returned goods, for the year next preceding the current license year with a minimum license in any case of: $240.00.

Receipts above mentioned are to include along with the regular and ordinary receipts, all deliveries made from a wholesale stock to a retail stock department, regardless of the fact that the same party owns and operates, either in whole or part, both the wholesale and retail business. Receipts for such deliveries shall be deemed to be not less than the wholesale value of such oil or product in the event there is no actual receipt.

Nothing contained in this Code shall be construed to alter or repeal any provision of Ordinances 598F and 599F, but, upon the contrary, said ordinances shall remain in full force and effect.

The term "gross receipts" as used in this schedule shall mean the entire receipts of said business and said term "gross receipts" shall not include federal, state and local government taxes collected by said dealer from purchases in connection with said business, whether said dealer be acting as agent or otherwise, in the collection of said taxes.

SCHEDULE 188. PACKING HOUSE COMPANIES, WHOLESALE MEAT DEALERS, RETAIL MEAT MARKETS, AND/OR PACKING HOUSE PRODUCTS.

Each person, firm or corporation operating a retail meat market and/or a packing house, or selling or delivering into the City of Birmingham packing house products to include meat, meat products, poultry, poultry products, cured meats or canned meats shall pay a license of one-tenth of one percent of the gross receipts from said business from the previous year with a minimum license of: $200.00.

No license will be issued until applicant has obtained and presented to the Revenue Division at the time of application a current, valid Health Department Permit.

NAICS 441. NAICS TITLE—MOTOR VEHICLE AND PARTS DEALERS.

Industries in the Motor Vehicle and Parts Dealers subsector retail motor vehicles and parts from fixed point-of-sale locations. Establishments in this subsector typically operate from a showroom and/or an open lot where the vehicles are on display. The display of vehicles and the related parts require little by way of display equipment. The personnel generally include both the sales and sales support staff familiar with the requirements for registering and financing a vehicle as well as a staff of parts experts and mechanics trained to provide repair and maintenance services for the vehicles. Specific industries have been included in this subsector to identify the type of vehicle being retailed.

Sales of capital or durable nonconsumer goods, such as medium and heavy-duty trucks, are always included in wholesale trade. These goods are virtually never sold through retail methods.

SCHEDULE 018. AUTOMOBILE MERCHANT, MOTOR VEHICLE MERCHANT OR DEALER.

Each person, firm or corporation engaged in the sale or purchase for resale of new or used automobiles, trucks, or other self-propelled vehicles not specifically licensed under any other license schedule shall pay a license of two-tenths of one percent of the gross receipts, less credit for vehicles taken as trade-in, from said business from the previous year with a minimum license of: $200.00.

[The term] "gross receipts," as used in this schedule, shall include receipts from the sale of parts, tires, accessories, and labor and/or service charges derived from the operation of a shop for the care and service of automobiles, trucks, or other self-propelled vehicles in connection with said merchant's or dealer's operation or dealership.

No license shall be issued to an automobile or motor vehicle dealer unless and until applicant has obtained and presented to the Revenue Division at the time of application, a valid State of Alabama Motor Vehicle Dealer's Regulatory License pursuant to Title 40, Chapter 12, Article 8, Code of Alabama 1975.

SCHEDULE 019. AUTOMOBILE TIRES AND ACCESSORIES (OTHER THAN FILLING STATIONS).

Each dealer, either retail or wholesale, in automobile tires, accessories, including batteries, one or all, shall pay a license as follows: Where principal business, and where gross receipts from said business from the previous year were:

Less than $25,000.00	$100.00
$25,000.00 and not more than $50,000.00	$150.00
$50,000.00 and not more than $100,000.00	$200.00
Plus an amount equal to 2/10 of one percent of gross receipts in excess of $100,000.00.	

SCHEDULE 021. AUTOMOBILE OR OTHER TRAILERS.

Each person, firm or corporation engaged in the business of buying or selling automobile, semi-travel, utility, or other trailers, or manufactured homes, either new or secondhand, tires or accessories, and/or operating a shop for the care and service of such trailers or manufactured homes, shall pay a license of two-tenths of one percent of the gross receipts from said business from the previous year with a minimum license of: $200.00.

SCHEDULE 169. MOTORCYCLE DEALERS.

Each person, firm or corporation engaged in the selling or servicing of motorcycles, shall pay a license of two-tenths of one percent of the gross receipts from said business from the previous year with a minimum license of: $200.00.

SCHEDULE 170A. MOTOR VEHICLES-CARRYING GOODS, FREIGHT OR OTHER MATERIAL FOR HIRE OR REWARD.

(a) Where coal, coke or charcoal is hauled from a point outside the City of Birmingham to a point within the City, a license shall be paid as provided in Schedule 060 of this Code.

(b) Where lumber or building material is hauled from a point outside the City of Birmingham to a point within the City, a license shall be paid as provided in Schedule 152C of this Code.

(c) Each and every person, firm or corporation operating or causing to be operated within the City of Birmingham any motor truck or other vehicle for the carriage of goods, freight, or other material of any kind or description from one location in said City to another location in said City [other than that provided for in Subdivision (a) or (b) hereof] for hire or reward shall pay, for the operation of each such motor vehicle of not more than 12,000 pounds gross vehicle weight: $24.00.

12,001 to 42,000 pounds gross vehicle weight	$48.00
Over 42,000 pounds of gross vehicle weight	$60.00

For the purpose of this subsection, gross vehicle weight shall mean the empty weight of the truck or truck tractor plus the heaviest load to be carried.

Where a trailer is used, an additional license shall be paid equal to one-half of the amount due to be paid on the vehicle to which the trailer is attached.

SCHEDULE 158. MARBLE OR STRUCTURAL STONE DEALERS.

Each person, firm or corporation where gross receipts, less returned goods, for the year next preceding were:

Less than $20,000.00	$120.00
$20,000.00 and less than $50,000.00	$180.00
$50,000.00 and less than $75,000.00	$240.00
$75,000.00 and less than $100,000.00	$300.00
$100,000.00 and over	$360.00

Where the applicant for the license does not maintain within the City of Birmingham a marble or structural stoneyard, a minimum license of $300.00 shall be paid.

SCHEDULE 187. ORE, STONE, (OTHER THAN MARBLE OR STRUCTURAL STONE FOR WHICH A LICENSE IS REQUIRED BY SCHEDULE 158), SLAG, CONCRETE, SEWER, PIPE, GRAVEL AND SOIL OR IRON PIPE. INCLUDING ALL BY PRODUCTS.

Each person, firm or corporation or association engaged in the business of selling either at wholesale or retail or both, any or all of the aforementioned commodities shall pay an amount equal to two-tenths of one percent of the gross receipts, less adjustments, and returned goods, for the year next preceding the current license tax year, from all commodities delivered within the City of Birmingham from plants or places without the City of Birmingham and from all commodities delivered within or

without the City of Birmingham from plants or places within the City of Birmingham. For the purposes of this schedule, the plural includes the singular, and a "Plant" or "Place" shall be deemed within the City of Birmingham if a part thereof lie within and a part without the corporate limits of said City. If the amount of tax thus computed does not amount to as much as $120.00, or if an office be maintained within said City for the transaction of such business any where, a minimum license of $120.00 shall be paid.

SCHEDULE 050. CEMENT, LIME, SAND AND/OR SEWER PIPE.

Each person, firm or corporation engaged in selling, or delivering pursuant to an agreement of sale, cement, lime, sand and/or sewer pipe, maintaining an office in the City of Birmingham but not having a plant located therein: $600.00.

SCHEDULE 152B. LUMBER WHOLESALER AND/OR BROKER.

Each person, firm or corporation engaged in the business of selling and/or soliciting wholesale orders for lumber, and/or building materials, whose sole business is selling to and/or soliciting wholesale orders from duly licensed retail lumber and/or retail building material dealers, and/or industrial and manufacturing consumers, which industrial and manufacturing consumers use said purchases only in the process of their business or for manufacturing the same into finished products, shall pay a license two-tenths of one percent of the gross receipts less returned goods, for said business for the previous year with a minimum license of: $200.00.

No person, firm or corporation shall be deemed to be an industrial and manufacturing consumer, as defined herein, who purchases and uses such lumber or building material for the purpose of fulfilling contracts made by such person, firm or corporation to build and/or repair houses, buildings or structures of any kind or character for the improvement of real property.

SCHEDULE 152C. LUMBER DEALER WITH NO LUMBER YARD OR MANUFACTORY INSIDE THE CITY.

Each person, firm or corporation engaged in the business of manufacturing or selling lumber or building materials, who maintains no lumber yard or manufactory within the City, but who makes or engages in the business of making sales, solicitations of sales, and/or deliveries in the City, and also every itinerant dealer, or seller of lumber or building materials, selling, trading in, and/or soliciting orders for the sale of lumber or building materials to other than licensed lumber dealers in the City; and each agent, broker, solicitor, or employee of such person, firm, corporation, seller, trader, trader or seller, who sells, solicits orders and/or makes deliveries of lumber or building materials to other than licensed lumber dealer's place of business shall pay a license of two-tenths of one percent of the gross sales or deliveries from said business from the previous year with a minimum of: $200.00.

NAICS 442. NAICS TITLE—FURNITURE AND HOME FURNISHINGS STORES.

Industries in the Furniture and Home Furnishings Stores subsector retail new furniture and home furnishings from fixed point-of-sale locations. Establishments in this subsector usually operate from showrooms and have substantial areas for the presentation of their products. Many offer interior decorating services in addition to the sale of products.

SCHEDULE 311. FURNITURE AND HOME FURNISHINGS STORES.

Each person engaged in the business of offering for sale, taking or soliciting orders for sale, or selling merchandise from a showroom, including any such products stored in a warehouse for sale, distribution or delivery, whether as owner, dealer, agent or consignee, shall pay a license as follows: Where gross receipts, less returned goods, for the year next preceding, were:

(a) $30,000.00 or less: $120.00.

(b) Where gross receipts as above defined exceed $30,000.00, the annual license fee shall be two-tenths of one percent of all gross receipts, with a minimum license of $120.00 in any case.

NAICS 443. NAICS TITLE—ELECTRONICS AND APPLIANCE STORES.

Industries in the Electronics and Appliance Stores subsector retail new electronics and appliances from point-of-sale locations. Establishments in this subsector often operate from locations that have special provisions for floor displays requiring special electrical capacity to accommodate the proper demonstration of the products. The staff includes sales personnel knowledgeable in the characteristics and warranties of the line of goods retailed and may also include trained repair persons to handle the maintenance and repair of the electronic equipment and appliances. The classifications within this subsector are made principally on the type of product and knowledge required to operate each type of store.

SCHEDULE 312. ELECTRONICS AND APPLIANCE STORES.

Each person engaged in the business of offering for sale, taking or soliciting orders for sale, or selling electronics and appliance merchandise from a showroom, including any such products stored in a warehouse for sale, distribution or delivery, whether as owner, dealer, agent or consignee, shall pay a license as follows: Where gross receipts, less returned goods, for the year next preceding, were:

(a) $30,000.00 or less: $120.00.

(b) Where gross receipts as above defined exceed $30,000.00, the annual license fee shall be two-tenths of one percent of all gross receipts, with a minimum license of $120.00 in any case.

NAICS 444. NAICS TITLE—BUILDING MATERIAL AND GARDEN EQUIPMENT AND SUPPLIES DEALERS.

Industries in the Building Material and Garden Equipment and Supplies Dealers subsector retail new building material and garden equipment and supplies from fixed point-of-sale locations. Establishments in this subsector have display equipment designed to handle lumber and related products and garden equipment and supplies that may be kept either indoors or outdoors under covered areas. The staff is usually knowledgeable in the use of the specific products being retailed in the construction, repair, and maintenance of the home and associated grounds.

SCHEDULE 313. BUILDING MATERIAL AND GARDEN EQUIPMENT AND SUPPLIES DEALERS.

Each person, firm or corporation engaged in the business of building material and garden equipment and supplies dealers that handle lumber and related material shall pay a license of two-tenths of one percent of gross receipts from said business from the previous year with a minimum license of: $300.00.

NAICS 445. NAICS TITLE—FOOD AND BEVERAGE STORES.

Industries in the Food and Beverage Stores subsector usually retail food and beverages merchandise from fixed point-of-sale locations. Establishments in this subsector have special equipment (e.g., freezers, refrigerated display cases, refrigerators) for displaying food and beverage goods. They have staff trained in the processing of food products to guarantee the proper storage and sanitary conditions required by regulatory authority.

SCHEDULE 123. RETAIL FOOD STORE.

Each person, firm or corporation engaged in the business of selling at retail those products ordinarily sold in retail food stores, including, but not limited to, canned goods, vegetables, fruits, condiments, sugar, coffee, tea, dairy products, bakery goods, meats, soft drinks, tobaccos, and prepared foods for off-premises consumption, shall pay a license on the first $20,000.00 or less of gross receipts from said business for the year next preceding of: $150.00.

Plus an amount equal to two-tenths of one percent of all gross receipts in excess of $20,000.00.

No license will be issued until applicant has obtained and presented to the Revenue Division at the time of application:

(1) A current, valid Health Department Permit.

(2) A current, valid permit issued by the Alabama Alcoholic Beverage Control Board (ABC Board), pursuant to Title 28, Chapter 11, Code of Alabama 1975. Permits are required for all establishments selling tobacco products.

SCHEDULE 130. ICE CREAM, FROZEN YOGURT, OR ICE SNOWBALLS.

Each dealer whose principal business is the retailing of ice cream, frozen yogurt or ice snowballs, except restaurants serving meals and/or where sold in a drug store, shall pay a license as follows:

Where gross receipts are less than $20,000.00	$60.00
$20,000.00 and not more than $30,000.00	$100.00
$30,000.00 and not more than $40,000.00	$150.00
$40,000.00 and over	$200.00
Where not principal business	$24.00

No license will be issued until applicant has obtained and presented to the Revenue Division at the time of application a current, valid Health Department Permit.

SCHEDULE 190. PEANUTS AND POPCORN.

Where peanuts and popcorn are prepared and sold at retail direct to the trade, where gross receipts are:

Less than $2,000.00	$36.00
$2,000.00 and less than $5,000.00	$60.00
$5,000.00 and less than $8,000.00	$84.00
$8,000.00 and over	$120.00
A minimum license of $36.00 shall be paid in any case.	

This license is to be paid in addition to all other licenses that the operator thereof, may otherwise be paying.

No license will be issued until applicant has obtained and presented to the Revenue Division at the time of application a current, valid Health Department Permit.

NAICS 446. NAICS TITLE—HEALTH AND PERSONAL CARE STORES.

Industries in the Health and Personal Care Stores subsector retail health and personal care merchandise from fixed point-of-sale locations. Establishments in this subsector are characterized principally by the products they retail, and some health and personal care stores may have specialized staff trained in dealing with the products. Staff may include pharmacists, opticians, and other professionals engaged in retailing, advising customers, and/or fitting the product sold to the customer's needs.

SCHEDULE 033. BARBER AND/OR BEAUTY SUPPLY HOUSE.

Each person, firm or corporation shall pay a license of two-tenths of one percent of the gross receipts, less sale price of returned goods and amount of adjustment on sales, from said business from the previous year with a minimum license in any case of: $200.00.

SCHEDULE 093. DRUG STORE.

Each person, firm or corporation engaged in the operation of a business where drugs are carried for the purpose of retail sales and where a registered pharmacist is employed in connection therewith, and which is more commonly known as a drug store, shall pay a license as follows: Where the gross receipts from said business from the previous year are: less than $30,000.00: $200.00, plus an amount equal to two-tenths of one percent of gross receipts in excess of $30,000.00.

SCHEDULE 184. OPTICIAN. RETAIL.

Each person, firm or corporation acting as Optician or engaged in the business of retailing spectacles and related products shall pay a license on the first $30,000.00 of gross receipts from said business for the year next preceding of: $200.00, plus an amount equal to two-tenths of one percent of all gross receipts in excess of $30,000.00.

For each place at which said business or occupation is carried on, a separate license fee and tax shall be paid.

NAICS 447. NAICS TITLE—GASOLINE STATIONS.

Industries in the Gasoline Stations subsector group establishments retailing automotive fuels (e.g., gasoline, diesel fuel, gasohol) and automotive oils and retailing these products in combination with convenience store items. These establishments have specialized equipment for the storage and dispensing of automotive fuels.

SCHEDULE 118. FILLING STATIONS. GASOLINE OR COMPRESSED NATURAL GAS.

(a) Each person, firm or corporation whose business is the selling of gasoline or compressed natural gas at retail, including fleet sales, for motor vehicle use, and including lubricating oil, shall pay a license as follows: Where the gross receipts from said business for the year next preceding were less than $20,000.00: $120.00, plus an amount equal to 6/20 of one percent of gross receipts in excess of $20,000.00.

(b) Gross receipts from the sale of automobile tires and accessories and related services such as lubricating, automatic car washing, and repairing of automobiles are to be included as a measure of tax.

(c) Where automobiles or trucks are sold in connection with such business an additional license, as provided by Schedule 018 of this license code, must be procured.

(d) The term "gross receipts," as used in this schedule, shall mean the entire receipts of said business and shall not include federal, state and local government taxes collected by said person, firm or corporation from purchasers in connection with said business, whether said person, firm or corporation be acting as agent or otherwise in the collection of said taxes, pursuant to Section 40-23-130, Code of Alabama 1975.

(e) Nothing contained in the Code shall be construed to alter or repeal any provision of Ordinances 598-F and 599-F.

NAICS 448. NAICS TITLE—CLOTHING AND CLOTHING ACCESSORIES STORES.

Industries in the Clothing and Clothing Accessories Stores subsector retailing new clothing and clothing accessories merchandise from fixed point-of-sale locations. Establishments in this subsector have similar display equipment and staff that is knowledgeable regarding fashion trends and the proper match of styles, colors, and combinations of clothing and accessories to the characteristics and tastes of the customer.

SCHEDULE 091. DRESS SHOPS; MENSWEAR SHOPS; BOUTIQUES.

Each person, firm or corporation engaged in the business of selling at retail ready-to-wear clothing, millinery, men's clothing, hats, hosiery, specialty items, and shoes, any or all of said items, where gross receipts from said business from the previous year were:

Less than $50,000.00	$120.00
$50,000.00 and not exceeding $100,000.00	$200.00
Plus an amount equal to 2/10 of one percent of gross receipts in excess of $100,000.00.	

NAICS 451. NAICS TITLE—SPORTING GOODS, HOBBY, BOOK, AND MUSIC STORES.

Industries in the Sporting Goods, Hobby, Book, and Music Stores subsector are engaged in retailing and providing expertise on use of sporting equipment or other specific leisure activities, such as needlework and musical instruments. Book stores are also included in this subsector.

SCHEDULE 314. SPORTING GOODS, HOBBY, BOOK, AND MUSIC STORES.

Each person, firm or corporation engaged in the business of selling sporting goods, hobby or leisure activities, books, music or musical instruments whether as owner, dealer, agent or consigner shall pay a license as follows: Where gross receipts, less returned goods, for the year next preceding, were:

(a) $30,000.00 or less: $120.00.

(b) Where gross receipts as above defined exceed $30,000.00, the annual license fee shall be two-tenths of one percent of all gross receipts, with a minimum license of $120.00 in any case.

NAICS 452. NAICS TITLE—GENERAL MERCHANDISE STORES.

Industries in the General Merchandise Stores subsector retail new general merchandise from fixed point-of-sale locations. Establishments in this subsector are unique in that they have the equipment and staff capable of retailing a large variety of goods from a single location. This includes a variety of display equipment and staff trained to provide information on many lines of products.

SCHEDULE 103. FIVE, TEN, TWENTY-FIVE CENT AND ONE DOLLAR STORES.

Each person, firm or corporation operating a five, ten, twenty-five cent and/or one dollar store, shall pay a license of two-tenths of one percent of the gross receipts from said business from the previous year with a minimum license of: $120.00.

SCHEDULE 165. MERCHANDISE RETAIL, WHOLESALE OR OTHERWISE—GENERAL.

(Not to include any business for which license is specifically required by another Schedule of this Code). Each person engaged in the business of offering for sale, taking or soliciting orders for sale, or selling merchandise of any description, including any such products stored in a warehouse for sale, distribution or delivery, whether as owner, dealer, agent or consignee, shall pay a license as follows:

Where gross receipts, less returned goods, for the year next preceding, were:

(a) $30,000.00 or less: $60.00.

(b) Where gross receipts as above defined exceed $30,000.00, the annual license fee shall be two-tenths of one percent of all gross receipts, with a minimum license of $60.00 in any case.

NAICS 453. NAICS TITLE—MISCELLANEOUS STORE RETAILERS.

Industries in the Miscellaneous Store Retailers subsector retail merchandise from fixed point-of-sale locations (except new or used motor vehicles and parts; new furniture and house furnishings; new applicants and electronic products; new building materials; and garden equipment and supplies; food and beverages; health and personal care goods; gasoline; new clothing and accessories; and new sporting goods, hobby goods, books, and music). Establishments in this subsector include stores with unique characteristics like florists, used merchandise stores, and pet and pet supply stores as well as other store retailers.

SCHEDULE 055. CIGARETTES—RETAIL.

Each person, firm, partnership, corporation, association, or other organized group engaged in selling cigarettes at retail, after having met all of the requirements outlined in this section, shall pay a annual license, in any case, of: $300.00.

[The term] "cigarette" means a roll of finely cut tobacco or any substitutes therefor enclosed in paper prepared for smoking by individuals.

No license will be issued until applicant has obtained and presented the following to the Revenue Division at the time of application:

(1) A current, valid permit issued by the Alabama Alcoholic Beverage Control Board (ABC Board), pursuant to Title 28, Chapter 11, Code of Alabama 1975. Permits are required for all establishments selling tobacco products.

SCHEDULE 105. FLORIST.

Each person engaged in the floral trade, where gross receipts from said business from the previous year were:

Less than $5,000.00	$60.00
$5,000.00 and less than $10,000.00	$100.00
$10,000.00 and less than $15,000.00	$150.00
$15,000.00 and less than $20,000.00	$200.00
Plus an amount equal to 2/10 of one percent of gross receipts in excess of $20,000.00.	

The license required by this schedule shall be paid in addition to any other license imposed on licensee for engaging in some business other than the sale of flowers.

SCHEDULE 196. PET SHOPS.

Including the sale of cats, dogs, birds, etc., each person, firm or corporation operating: $60.00.

SCHEDULE 238. TOBACCO PRODUCTS. RETAIL.

Each retail dealer engaged in the sale of tobacco products, whether or not principal stock in trade, and not including cigarettes, shall pay a license in an amount equal to two-tenths of one percent of gross receipts from said business from the previous year with a minimum license in any case of: $300.00.

[The term] "tobacco products" means all products containing any quantity of tobacco in any form, including but not limited to cigars, cheroots, stogies, smoking tobacco, smokeless tobacco, snuff, chewing tobacco, or any substitute therefor.

No license will be issued until applicant has obtained and presented to the Revenue Division at the time of application:

(1) A current, valid permit issued by the Alabama Alcoholic Beverage Control Board (ABC Board), pursuant to Title 28, Chapter 11, Code of Alabama 1975. Permits are required for all establishments selling tobacco products.

SCHEDULE 239. TOBACCO PRODUCTS, WHOLESALE.

Each person, firm or corporation engaged in wholesaling cigarettes and other products containing tobacco in any of its various forms shall pay a license from said business from the previous year.

On the first $20,000,000.00: two tenths of one percent of gross receipts.

Plus, On next $10,000,000.00: one tenth of one percent of gross receipts.

Plus, On next $10,000,000.00: $^{2}/_{40}$th of one percent of gross receipts.

Plus, $40,000,000.00 and over: $^{1.5}/_{100}$th of one percent of gross receipts.

With a minimum license in any case of: $2,000.00.

Provided, however, that deliveries made from a wholesale stock to a retail stock or department owned or controlled in whole or in part by the same person, firm or corporation, are to be included as taxable receipts.

[The term] "tobacco products" means all products containing any quantity of tobacco in any form, including but limited to cigars, cheroots, stogies, smoking tobacco, smokeless tobacco, snuff, chewing tobacco, or any substitute therefor.

No license will be issued until applicant has obtained and presented to the revenue division at the time of application:

(1) A current, valid permit issued by the state alcoholic beverage control board (ABC board), pursuant to Title 28, Chapter 11, Code of Alabama 1975. Permits are required for all establishments selling tobacco products.

SCHEDULE 054. CIGARETTE VENDING MACHINES.

Each person, firm, partnership, corporation, association, or other organized group engaged in selling cigarettes through vending machines operated by more than $1.01, or operating, maintaining, or providing space for same shall pay a license per machine of: $200.00.

No license will be issued until applicant has obtained and presented the following to the Revenue Division at the time of application:

(1) A current, valid permit issued by the Alabama Alcoholic Beverage Control Board (ABC Board), pursuant to Title 28, Chapter 11, Code of Alabama 1975. Permits are required for all establishments selling tobacco products.

SCHEDULE 082A. CURB MARKET, COVERED.

Any person, firm, corporation or association who (or which) is in charge or control of any building, shed, tent or other structure or any group of buildings, sheds, tents or other structures situated upon a contiguous area of land the ground story or stories of which is or are designated or used for the contemporaneous conduct of four or more separate businesses of the class herein described, and who (or which) is engaged in the business of granting to others, for compensation, rights to use ground floor space in or under any such shelter or structure for the purpose of there keeping or displaying

poultry, game, eggs, butter, cheese, fruits, vegetables and/or other farm or garden products, for sale, shall pay for the privilege of so engaging in the business of granting such rights, an amount equal to 2 16/10 cents per square foot of ground area sheltered by such structure or structures, but in no case less than: $120.00.

No license will be issued until applicant obtains and presents to the Revenue Division at the time of application, a current, valid Health Department Permit.

SCHEDULE 082B. CURB MARKET, OPEN.

Any person in charge or control of any open air contiguous area of land, who shall engage in the business of granting to others, for compensation, rights to occupy open air space in or upon such area for the purpose of there keeping or displaying either upon vehicles, stands, or otherwise, poultry, game, eggs, butter, cheese, fruits, vegetables, and/or farm or garden products, for sale, shall pay, for the privilege of so engaging in the business of granting such rights an amount equal to 8/10 of one cent per square foot of ground within the limits set aside for, or devoted to, such occupancy, but in no case less than: $120.00.

No license will be issued until applicant obtains and presents to the Revenue Division at the time of application a current, valid Health Department Permit.

SCHEDULE 100. FIRE, SMOKE OR WATER DAMAGE SALE, DISTRESSED MERCHANDISE SALE, BANKRUPT SALE, OR GOING-OUT-OF-BUSINESS SALE.

Including all sales provided for by [Title 12,] Chapter 15, Article A of the General Code of the City of Birmingham, as amended, and as it may be amended.

(a) Where any person, firm or corporation has paid the current year's regular city license covering the sale of merchandise, and was the bona fide owner of the merchandise prior to it becoming fire, smoke or water damaged, distressed or bankrupt stock, or where said person, firm or corporation elects to go out of business, said, person, firm or corporation may conduct a special Fire, Smoke or Water Damage Sale, Distressed Merchandise Sale, Bankrupt Sale, or Going-Out-Of-Business Sale, by complying with [Title 12,] Chapter 15, Article A of the General Code of the City of Birmingham, as amended, and as it may be amended, and upon payment of an additional license of $50.00 for the first 60 days or less of said sale. Said sale may be extended for one additional period of not in excess of 60 days upon filing a renewal application and payment of an additional license of: $500.00.

The above described sales shall include only such merchandise as was originally purchased by said owner for the sole purpose of reselling it in the ordinary regular manner of merchandising, and shall not include merchandise that was at the time of purchase fire, smoke or water damaged, distressed or bankrupt stock, or stock from a going-out-of-business sale.

(b) Where any person, firm or corporation has purchased merchandise that is fire, smoke or water damaged, distressed or bankrupt stock, and said person, firm or corporation is advertising or offering said merchandise for sale, said person, firm or corporation shall obtain a license for each offering for sale for 60 days or fractional part thereof (in addition to all other licenses that may be due) in the amount of $50.00 for each offering. If the merchandise offered is fire, smoke or water damaged, distressed or bankrupt stock that fact shall be affirmatively stated in all advertisements or offers for sale. Provided further, no inventory shall be required for sales licensed under this subsection (b) as required by Section 12-15-5 of the General Code of the City of Birmingham.

(c) The special sale as heretofore described in paragraph (b) above may be extended for one additional period of not in excess of 60 days upon payment of twice the amount heretofore provided by paragraph (b).

No license will be issued until applicant complies with the requirements of Sections 12-15-1 to 12-15-20 of the General Code of the City of Birmingham, as amended and as it may be amended.

NAICS 454. NAICS TITLE—NONSTORE RETAILERS.*

Industries in the Nonstore Retailers subsector retail merchandise using methods, such as the broadcasting of infomercials, the broadcasting and publishing of direct-response advertising, the publishing of paper and electronic catalogs, door-to-door solicitation, in-home demonstration, selling from portable stalls and distribution through vending machines. Establishments in this subsector include mail-order houses, vending machine operators, home delivery sales, door-to-door sales, party plan sales, electronic shopping, and sales through portable stalls (e.g., street vendors, except food). Establishments engaged in the direct sale (i.e., nonstore) of products, such as home heating oil dealers and newspaper delivery are included in this subsector.

SCHEDULE 083. DELIVERY.

A taxpayer that otherwise meets the criteria for the purchase of a delivery license is not required to purchase a delivery license or a regular business license if the following criteria apply:

1. The taxpayer's gross receipts that are derived from within the City of Birmingham or its police jurisdiction does not exceed $10,000.00 during the year; and
2. The taxpayer has no other physical presence within the city or its police jurisdiction during the year.

***Editor's note—**Ord. No. 13-143, § 1, adopted by the council on Nov. 5, 2013, and approved by the mayor on Nov. 12, 2013, repealed Schedule 131, Ice Cream Peddler, which derived from Ord. No. 97-183, art. I, §§ 1—3, adopted Dec. 23, 1997.

The purchase of a delivery license or exemption from the license pursuant to the above criteria shall not, in and of itself, establish nexus between said person and the City of Birmingham for purposes of the taxes levied by or under the authority of Title 40 of the Code of Alabama or other provisions of law, nor does the purchase of a delivery license conclusively determine that nexus does not exist between said person and the City of Birmingham.

No delivery license shall be required of a common carrier or similar motor carrier licensed under the Alabama Motor Carrier Act.

(a) Each and every person having no physical presence within the City of Birmingham, for the limited privilege of delivering and requisite setup and installation, by the person's employees or agents, of merchandise within the city by means of delivery vehicles owned, leased or contracted by the person, where the gross receipts derived from such sale, and any requisite setup and/or installation are in excess of $10,000.00 and does not exceed $75,000.00 during the calendar year, shall pay a fixed license amount of: $100.00

(b) If at any time during the current calendar year, the person derives gross receipts in excess of $75,000.00 in connection with the activities described in (a) above or otherwise ceases to meet the criteria described in (a) above, then within 45 days thereafter, such person shall purchase all applicable and appropriate business licenses for the entire license year without regard to the provisions of this schedule and may be subject to a penalty not to exceed $10.00.

(c) Gross receipts derived from any sale and delivery accomplished by means of a common carrier shall be counted against the $75,000.00 limitation prescribed in subsection (b) if the taxpayer also during the same license year sells and delivers into the taxing jurisdiction using a delivery vehicle other than a common carrier. Provided that the dollar limitation prescribed shall be increased, but not decreased, every five years under the standards prescribed by section 11-51-90 with respect to the uniform license issuance fee and may be increased up to $150,000.00 by adoption of an ordinance.

(d) A common carrier, contract carrier, or similar delivery service making deliveries on behalf of others shall not be entitled to purchase a delivery license hereunder.
(Ord. No. 13-175, § 1, 12-26-2013; Ord. No. 18-13, § 1, 1-29-2018)

SCHEDULE 128. ICE DEALER.

Each ice dealer, other than where the regular ice factory license is paid, for each separate place so operated, whether operated by an ice manufacturer or other party shall pay a license for each place so operated: $12.00.

No license will be issued until applicant has obtained and presented to the Revenue Division at the time of application a current, valid Health Department Permit.

SCHEDULE 129. ICE PEDDLER.

Each truck: $40.00.

No license will be issued until applicant has obtained and presented to the Revenue Division at the time of application a current, valid Health Department Permit.

SCHEDULE 179. NOVELTIES.

Each vendor of novelties shall pay a license, for each site or location, of: $200.00.

For purposes of this schedule, "site or location" shall be defined as a place, booth, slot, kiosk, station, locality, or similar physical location, position, or portion thereof. In

circumstances where tables are used as a means of designating a site or location, no more than two tables shall constitute a single "site or location," as herein defined. A separate license shall be required for each "site or location."

A sales tax deposit may be required.

The license required under this Section shall be exhibited and immediately available for inspection by the department's designated agent, pursuant to Article II, Section 32, of this Business License Code.

No vending is allowed on sidewalks, streets, highways, or roadways located within the "Study Area" designated under the Master Plan for Downtown Birmingham, namely that area bounded on the north by 12th Avenue North, on the east by Red Mountain Expressway and 26th Street North, on the south by Highland Avenue South and 12th Avenue South and on the west by I-65, and the streets and sidewalks within neighborhood retail business districts within the City without authorization. Such authorization must be obtained in addition to a business license.

(Note: Anyone wishing to peddle in the "Study Area" should contact Operation New Birmingham (ONB).)

The issuance of a business license under this schedule does not permit or authorize any activity which is prohibited by Title 12, Chapter 14, Article A of the General Code of the City of Birmingham, as amended and as it may be amended.

SCHEDULE 192. PEDDLERS.

Each peddler, including any flea market vendor, whether on foot, or in vehicle, who sells or takes orders for evening dresses, gowns, underwear, hosiery, silk lingerie, battenburg face work, Mexican drawn work, furs, clothes, cloaks, or other kind of clothing, rugs, jewelry, furniture, clocks, etc., whether sale is made outright or whether title is retained by seller or only conditional sales made, each peddler or flea market vendor: $180.00.

A sales tax deposit of $300.00 may be required.

A current, valid photo identification, issued by a state, is required of each applicant.

The license required under this Section shall be exhibited and immediately available for inspection by the department's designated agent, pursuant to Article II, Section 32, of this Business License Code.

No vending is allowed on sidewalks, streets, highways, or roadways located within the "Study Area" designated under the Master Plan for Downtown Birmingham, namely that area bounded on the north by 12th Avenue North, on the east by Red Mountain Expressway and 26th Street North, on the south by Highland Avenue South and 12th Avenue South and on the west by I-65, and the streets and sidewalks within neighborhood retail business districts within the City without authorization. Such authorization must be obtained in addition to a business license.

(Note: Anyone wishing to peddler in the "Study Area" should contact Operation New Birmingham (ONB).)

The issuance of a business license under this schedule does not permit or authorize any activity which is prohibited by Title 12, Chapter 14, Article A of the General Code of the City of Birmingham, as amended and as it may be amended.

SCHEDULE 193. PEDDLERS.

Each canvasser employed by installment merchant: $36.00.

Said license to be issued in the name of the salesman, as agent or salesman for the person by whom such salesman is employed.

The license required under this Section shall be exhibited and immediately available for inspection by the department's designated agent, pursuant to Article II, Section 32, of this Business License Code.

SCHEDULE 194. PEDDLERS ON FOOT.

Each person on foot who sells bottled drinks, ice cream, fruit, lunches or tobacco in any of its forms, any or all of said articles, shall pay a license on each article sold as specifically otherwise provided for in this Code; provided, however, that the minimum license in any case shall be: $30.00.

The license required under this Section shall be exhibited and immediately available for inspection by the department's designated agent, pursuant to Article II, Section 32, of this Business License Code.

SCHEDULE 195. PEDDLERS.

Each fruit, produce or vegetable peddler, or any other peddler not covered by some specific schedule of this Code, whether with one- or two-horse wagons or vehicles of any kind, to include deliveries in the City on telephone orders received outside of the City, each wagon or vehicle: $100.00.

Where bakery goods are included and are not principal business: $120.00.

The license required under this Section shall be exhibited and immediately available for inspection by the department's designated agent, pursuant to Article II, Section 32, of this Business License Code.

SCHEDULE 245. VENDING MACHINES AND/OR COIN-OPERATED MACHINES. NOT TO INCLUDE TABLES ON WHICH THE GAME OF POOL OR BILLIARDS MAY BE PLAYED OR COIN OPERATED FILM MACHINES.

Each person operating or maintaining service or merchandise vending machines or providing space for same, which is being operated through the use of a coin or coins, or other legal tender inserted in a slot device, shall pay a license on each machine so operated as follows:

(a) If the machine is operated through the use of not more than two pennies, or where the machine vends peanuts, peanut butter sandwiches and peanut products ONLY, regardless of coin value, or where the machine is used in operating public pay toilets, luggage storage lockers, and radios in hotel rooms, the license shall be: $2.00.

(b) If the machine is operated through the use of coin or coins of greater value than $0.02 and not more than $0.10, except as otherwise provided; or where the machine is for the operation of television, the license shall be: $10.00.

(c) If the machine is operated through the use of coin or coins of greater value than $0.10, or where the machine plays music, the license fee shall be: $24.00.

(d) If the person operating or maintaining for operation by others any automatic vending machine as here in above described, qualifies for an occupational license (ordinarily termed Industrial Location), as provided for in Section 11-51-98 Code of Alabama 1975, a license shall be paid in an amount equal to two-tenths of one percent of the first $100,000.00 or less of gross receipts received from the operation of each such machine in the year next preceding.

In respect to machines vending aerated or carbonated waters or soft drinks, a license is hereby fixed at a percentage rate of the gross receipts, (the rate to be determined by the Director of Finance) in such an amount that will provide a license of not less than $10.00 for each machine so used.

(e) There shall be no proration of any coin operated machine license. This schedule shall not apply to any coin operated gas meter or telephone, or to any machine vending postage stamps or other necessary articles on a non-profit basis for emergency use only by employees of any person. It shall be unlawful for any person to permit the use or operation, or the maintenance for use or operation, in their place of business, unless the license required by this schedule shall have been paid. Failure to have permanently and securely affixed on said machine a sticker or decal furnished by the Director of Finance's office, or other tangible evidence supporting the payment of said license, shall be prima facie evidence that a license on said machine has not been paid.

(f) Where sticker or decal is furnished by the License Department, the entire sticker or decal must be visible and posted in a conspicuous place. Stickers shall be permanently and securely affixed as provided in Article II, Section 32.2 of this ordinance.

(g) Where dry cleaning service is provided through what is commonly known as "Self-Service Dry Cleaning" with the machines providing that service having constant ownership supervision, each machine so operated: $30.00.

Where two or more compartments are combined in one machine or unit, each compartment: $30.00.

SCHEDULE 010A. BURGLAR/FIRE ALARM COMPANIES (SALES, INSTALLATION, AND MONITORING).

Each person, firm, partnership or corporation engaged in the business of selling and installing, replacing, monitoring, servicing, repairing, altering, maintaining, and/or leasing, any alarm system, or causing any alarm system to be sold and installed, replaced, monitored, serviced, repaired, altered, maintained, and/or leased, in or on any building or structure shall pay a license as follows: Where gross annual business from said business from the previous year is:

Less than $5,000.00	$60.00
$5,000.00 and less than $10,000.00	$100.00
$10,000.00 and less than $15,000.00	$150.00
$15,000.00 and less than $20,000.00	$200.00
Plus an amount equal to 2/10 of one percent of gross annual business in excess of $20,000.00.	

It shall be unlawful for any person or entity engaged in the business of installing alarms to install an alarm designed to provoke police or emergency response unless such person possesses a current, valid city business license and is knowledgeable and competent to make such installation. (Ord. No. 86-266)

Effective January 1, 1998, no license will be issued to installers until applicant has obtained a State license issued by the Alabama Electronic Security Board of Licensure (Title 34, Chapter 1A, Code of Alabama 1975).

SCHEDULE 015. AUCTION SALES.

Each person, firm, partnership, association or corporation conducting or holding an auction sale of inanimate tangible personal property, whether as owner of such property or as agent or owner thereof, shall pay a license in the amount of $100.00 for each calendar three month period or fractional part thereof in which such auction sales are conducted. This schedule (015) shall not apply to auction sales conducted by or under the direction of any public authority or pursuant to any judicial order or decree specifically exempting licensure. This license is not required of any auctioneer who has been licensed and bonded under Title 34 Chapter 4.

Such auction sales must be conducted by a State-licensed auctioneer pursuant to Section 34-4-21, Code of Alabama 1975.

SCHEDULE 4545. SPECIAL SMALL VENDORS.

Each Special Small Vendor shall include curb market vendors and street vendors (except food) and each Special Small Vendor shall pay an annual license of..... $25.00*

In addition to this license, the Special Small Vendor shall remit and provide the following:

a. A letter of permission from the property owner of each location where the business activity will be conducted.

The Special Small Vendor license will be valid from the date of issuance until the end of the current calendar year (December 31), whichever comes first.

*In addition to the annual license required under this schedule, Special Small Vendors shall remit a $300.00 sales/occupational tax deposit for each event conducted during a calendar year. If the Special Small Vendor conducts business activity at multiple locations, a $300.00 sales/occupational tax deposit shall be required in addition to a business license, for each event at each location where the Special Small Vendor's business activity is conducted during a calendar year.

Sales/Occupational Tax Deposit:

From the $300.00 sales/occupational tax deposit, the City will withhold the following:

1. A sales tax of four percent (4%) of the reported sales; and

2. An occupational license tax of one percent (1%) of the gross wages paid to any employees working for the special small vendor while conducting business in the City of Birmingham (if applicable).

Special Small Vendor Report of Calendar Year Business Activity:

A Special Small Vendor may request a refund of any excess sales tax deposit by completing the top portion of the "Special Small Vendor Report of Calendar Year Business Activity" ("Special Small Vendor Report" or "Report"), which will be provided to the Special Small Vendor upon the issuance of the business license required under this schedule. To obtain the refund, this report must be fully completed and returned to the Director of Finance by the last business day of February in the calendar year following the expiration of the Special Small Vendor business license. If at the time of filing the Special Small Vendor Report, additional taxes are due to the City, the additional taxes may be remitted at the time of filing the report. Any additional taxes due that are not remitted to the City with a timely filed report will be billed and may become subject to additional penalties and interest. Any additional taxes due and remitted to the City with a report filed after the aforementioned deadline will be billed and shall become subject to additional penalties and interest.

If the Special Small Vendor Report is not submitted to the Director of Finance by the aforementioned date, the sales/occupational tax deposit shall be forfeited and no refund shall be issued.

NAICS 481. NAICS TITLE—AIR TRANSPORTATION.

Industries in the Air Transportation subsector provide air transportation of passengers and/or cargo using aircraft, such as airplanes and helicopters. The subsector distinguishes scheduled from nonscheduled air transportation. Scheduled air carriers fly regular routes on regular schedules and operate even if flights are only partially loaded. Nonscheduled carriers often operate during nonpeak time slots at busy airports. These establishments have more flexibility with respect to choice of airport, hours of operation, load factors, and similar operational characteristics. Nonscheduled carriers provide chartered air transportation of passengers, cargo, or specialty flying services. Specialty flying services establishments use general-purpose aircraft to provide a variety of specialized flying services.

SCHEDULE 315. AIR TRANSPORTATION.

Each person, firm or corporation engaged in the City of Birmingham in the business of operating air transportation of freight and passengers, one or both, to and from other points in the State of Alabama keeping an office or place of business in the City of Birmingham: $2,000.00.

Where only freight is transported: $1,000.00.

NAICS 482. NAICS TITLE—RAIL TRANSPORTATION.

Industries in the Rail Transportation subsector provide rail transportation of passengers and/or cargo using railroad rolling stock. The railroads in this subsector primarily either operate on networks, with physical facilities, labor force, and equipment spread over an extensive geographic area, or operate over a short distance on a local rail line.

Scenic and sightseeing rail transportation and street railroads, commuter rail, and rapid transit are not included in this subsector but are included in Subsector 487, Scenic and Sightseeing Transportation, and Subsector 485, Transit and Ground Passenger Transportation, respectively. Although these activities use railroad rolling stock, they are different from the activities included in rail transportation. Sightseeing and scenic railroads do not usually involve place-to-place transportation; the passenger's trip typically starts and ends at the same location. Commuter railroads operate in a manner more consistent with local and urban transit and are often part of integrated transit systems.

SCHEDULE 210. RAILROADS.

Each person, firm or corporation engaged in the City of Birmingham in the business of operating a railroad or railway trains for transportation of freight and passengers, one or both, to and from other points in the State of Alabama keeping an office or place of business in the City of Birmingham: $2,000.00.

Where only freight is transported: $1,000.00.

NAICS 483. NAICS TITLE—WATER TRANSPORTATION.

Industries in the Water Transportation subsector provide water transportation of passengers and cargo using water craft, such as ships, barges, and boats.

The subsector is composed of two industry groups: (1) one for deep sea, coastal, and Great Lakes; and (2) one for inland water transportation. This split typically reflects the difference in equipment used.

Scenic and sightseeing water transportation services are not included in this subsector but are included in subsector 487, Scenic and Sightseeing Transportation. Although these activities use water craft, they are different from the activities included in water transportation. Water sightseeing does not usually involve place-to-place transportation; the passenger's trip starts and ends at the same location.

SCHEDULE 316. WATER TRANSPORTATION.

Each person, firm, or corporation engage in water transportation shall obtain a license as follows: Where gross annual business from said business from the previous year is:

Less than $5,000.00	$60.00
$5,000.00 and less than $10,000.00	$100.00
$10,000.00 and less than $15,000.00	$150.00
$15,000.00 and less than $20,000.00	$200.00
Plus an amount equal to 2/10 of one percent of gross annual business in excess of $20,000.00.	

NAICS 484. NAICS TITLE—TRUCK TRANSPORTATION.

Industries in the Truck Transportation subsector provide over-the-road transportation of cargo using motor vehicles, such as trucks and tractor trailers. The subsector is subdivided into general freight trucking and specialized freight trucking. This distinction reflects differences in equipment used, type of load carried, scheduling, terminal, and other networking services. General freight transportation establishments handle a wide variety of general commodities, generally palletized, and transported in a container or van trailer. Specialized freight transportation is the transportation of cargo that, because of size, weight, shape, or other inherent characteristics require specialized equipment for transportation.

Each of these industry groups is further subdivided based on distance traveled. Local trucking establishments primarily carry goods within a single metropolitan area and its adjacent nonurban areas. Long distance trucking establishments carry goods between metropolitan areas.

The Specialized Freight Trucking industry group includes a separate industry for Used Household and Office Goods Moving. The household and office goods movers are separated because of the substantial network of establishments that has developed to deal with local and long-distance moving and the associated storage. In this area, the same establishment provides both local and long-distance services, while other specialized freight establishments generally limit their services to either local or long-distance hauling.

SCHEDULE 317. FREIGHT LINES/TRUCK TRANSPORTATION.

(a) Each person engaged in the business of receiving freight for transportation by motor vehicles for hire either from the City of Birmingham to another point in Alabama, or from other points in Alabama to the City of Birmingham. On each car or truck so used in said service: $60.00. On each trailer used in said service: Additional: $30.00.

The maximum license tax which may be charged under authority of this subsection (a) shall not exceed the sum of $300.00 (Section 37-3-33, Code of Alabama 1975).

When the car or truck is used in the transportation of merchandise other than baggage in passenger transportation, the applicant for license shall furnish the Director of Finance with a sworn affidavit as to whom is the owner, in whole or in part, of the car or truck for which application for license is made.

NAICS 485. NAICS TITLE—TRANSIT AND GROUND PASSENGER TRANSPORTATION.

Industries in the Transit and Ground Passenger Transportation subsector include a variety of passenger transportation activities, such as urban transit systems; chartered bus, school bus, and interurban bus transportation; and taxis. These activities are distinguished based primarily on such production process factors as vehicle types, routes, and schedules.

In this subsector, the principal splits identify scheduled transportation as separate from nonscheduled transportation. The scheduled transportation industry groups are Urban Transit Systems, Interurban and Rural Bus Transportation, and School and Employee Bus Transportation. The nonscheduled industry groups are the Charter Bus Industry and Taxi and Limousine Service. The Other Transit and Ground Passenger Transportation Industry group includes both scheduled and nonscheduled transportation.

Scenic and sightseeing ground transportation services are not included in this subsector but are included in Subsector 487, Scenic and Sightseeing Transportation. Sightseeing does not usually involve place-to-place transportation; the passenger's trip starts and ends at the same location.

SCHEDULE 045. BUS LINES, BUS COMPANIES AND FREIGHT LINES.

(a) Each person engaged in the business of receiving passengers or fright for transportation by motor vehicles for hire either from the City of Birmingham to another point in Alabama, or from other points in Alabama to the City of Birmingham, and not engaged in the business of operating passenger buses for the carrying of passengers between locations within said City of Birmingham, On each car or truck so used in said service: $60.00. On each trailer used in said service: Additional: $30.00. The maximum license tax which may be charged under authority of this subsection (a) shall not exceed the sum of $300.00 (Section 37-3-33, Code of Alabama 1975).

When the car or truck is used in the transportation of merchandise other than baggage in passenger transportation, the applicant for license shall furnish the Director of Finance with a sworn affidavit as to whom is the owner, in whole or in part, of the car or truck for which application for license is made.

(b) No person operating passenger buses for the carriage of passengers between locations within the City of Birmingham along fixed public transportation routes under franchise granted by said City shall be required to pay a license therefor under this license code for any such operating subsequent to June 30, 1970.

(c) Each person engaged in the business of operating buses for the carriage of school children to and from school and other school related functions within the City of Birmingham on each bus so used in said service: $60.00.

The maximum license tax which may be charged under authority of this subsection (c) shall not exceed the sum of $300.00 (Section 37-3-33, Code of Alabama 1975).

SCHEDULE 141. JITNEYS.

Each jitney with a seating capacity of five or less: $60.00.

Each jitney with a seating capacity of more than five: $240.00.

Plus an additional $64.00 for each seat in excess of five.

Each suburban jitney: $60.00.

No license will be issued unless and until applicant has obtained a Certificate of Public Necessity and Convenience (CPNC) pursuant to the requirements of Sections 12-16-31 and 12-16-41, General Code of the City of Birmingham, as amended and as it may be amended.

License stickers issued by the department shall be prominently displayed on any jitney operating within the City of Birmingham. It shall be unlawful to operate any jitney within the City of Birmingham without having met the requirements outlined in this section.

SCHEDULE 233. TAXICABS.

Each person, firm or corporation operating automobiles or motor vehicles commonly called and known as taxicabs (but not including jitneys and regularly established interurban bus lines), for each car so operated: $60.00.

No license will be issued until applicant has obtained a Certificate of Public Necessity and Convenience (CPNC) pursuant to the requirements of Sections 12-16-31 and 12-16-41, General Code of the City of Birmingham, as amended and as it may be amended.

License stickers issued by the department shall be prominently displayed on any taxicab or limousine operating within the City of Birmingham. It shall be unlawful to operate any taxicab or limousine within the City of Birmingham without having met the requirements outlined in this section.

SCHEDULE 247. VEHICLE IMMOBILIZATION SERVICES (BOOTING).

(a) Each and every person, firm or corporation engaged in the business of providing vehicle immobilization services shall pay a license of two-tenths of one percent of gross receipts of the preceding year with a minimum license of: $200.00.

(b) Pursuant to Ordinance No. 04-96, as it may be amended, a "vehicle immobilization service" is defined as, "A person, including a sole proprietor, independent contractor, corporation, partnership or similar business entity, offering services anywhere in the territorial limits of the City whereby vehicles are immobilized by the installation of a vehicle immobilization device."

(c) Additional requirements for vehicle immobilization services are outlined in Ordinance No. 04-96, as it may be amended, including but not limited to, requirements for insurance, registration of vehicles to be used in any vehicle immobilization service, as well as permit requirements for operators.

(d) In the event of a conflict between the provisions of this license schedule 247 and those of Ordinance No. 04-96 with respect to (i) the license fee provided for in (a) above, (ii) the due date of the license fee, provided for in Article II, Section 5.2(e) of this Business License Code, and/or (iii) the penalty amount, provided for in Article II, Section 5.3(e) of this Business License Code, the provisions of this Ordinance No. 97-183, as amended, "The Business License Code of the City of Birmingham," shall, in each case, prevail.

(e) It shall be unlawful for any operator or vehicle immobilization service to operate within the city without complying with all of the provisions of this schedule. Any operator or vehicle immobilization service dealing or engaging in two or more of

the businesses, vocations, callings or professions enumerated in Section 1, Article I of this Business License Code, and for which a license is required of each, such person shall pay for and take out a license for (i) each line of business, vocation, calling or profession, and for (ii) each separate place or location of business, as provided in Article II, Section 30 of this Business License Code.

No license shall be issued for vehicle immobilization services until and unless the applicant has been approved by the City Council and has met the requirements outlined in Ordinance No. 04-96, as it may be amended.

SCHEDULE 4853. TAXI, LIMOUSINE AND OTHER TRANSIT AND GROUND PASSENGER TRANSPORTATION DRIVER.

Each individual who primarily engages in providing passenger transportation services, as a driver of an automobile or van, or provides an array of specialty and luxury passenger transportation services via limousine or luxury sedans as a driver, generally on a reserved basis and not operated over regular routes and on regular schedules shall pay a license in the amount of..... $30.00*

Drivers obtaining this license schedule shall obtain all required permits.

The initial and annual license renewals are subject to provisions as provided in the City of Birmingham Business License Ordinance No. 97-183, as amended, Article II.

Additional License Requirements:

TNC Drivers shall be required to be in actual physical possession of the TNC Driver's current business license while providing TNC services and shall allow any passenger or law enforcement officer to examine said business license upon request.

NAICS 487. NAICS TITLE—SCENIC AND SIGHTSEEING TRANSPORTATION.

Industries in the Scenic and Sightseeing Transportation subsector utilize transportation equipment to provide recreation and entertainment. These activities have a production process distinct from passenger transportation carried out for the purpose of other types of for-hire transportation. This process does not emphasize efficient transportation; in fact, such activities often use obsolete vehicles, such as steam trains, to provide some extra ambience. The activity is local in nature, usually involving a same-day return to the point of departure.

The Scenic and Sightseeing Transportation subsector is separated into three industries based on the mode: land, water, and other.

Activities that are recreational in nature and involve participation by the customer, such as whitewater rafting, are generally excluded from this subsector,

unless they impose an impact on part of the transportation system. Charter boat fishing, for example, is included in the Scenic and Sightseeing Transportation, Water industry.

SCHEDULE 318. SCENIC AND SIGHTSEEING TRANSPORTATION.

(a) Each person engaged in the business of receiving passengers for transportation by motor vehicles for recreational activities for hire from the City of Birmingham to another point in Alabama, or activity that is local in nature. On each form transportation equipment used whether bus, car or truck so used in said service: $60.00.

No license will be issued unless and until applicant has obtained a Certificate of Public Necessity and Convenience (CPNC) pursuant to the requirements of Sections 12-16-31 and 12-16-41, General Code of the City of Birmingham, as amended and as it may be amended.

License stickers issued by the department shall be prominently displayed on any jitney operating within the City of Birmingham. It shall be unlawful to operate any jitney within the City of Birmingham without having met the requirements outlined in this section.

NAICS 492. NAICS TITLE—COURIERS AND MESSENGERS.

Industries in the Couriers and Messengers subsector provide intercity and/or local delivery of parcels. These articles can be described as those that may be handled by one person without using special equipment. This allows the collection, pick-up, and delivery operations to be done with limited labor costs and minimal equipment. Sorting and transportation activities, where necessary, are generally mechanized. The restriction to small parcels partly distinguishes these establishments from those in the transportation industries. The complete network of courier services establishments also distinguishes these transportation services from local messenger and delivery establishments in this subsector. This includes the establishments that perform intercity transportation as well as establishments that, under contract to them, perform local pick-up and delivery. Messengers, which usually deliver within a metropolitan or single urban area, may use bicycle, foot, small truck, or van.

SCHEDULE 166. MESSENGER SERVICE.

Operating as messenger service in delivering messages only: $48.00.

Where engaged in package delivery, the licensee shall pay under Schedule 170.

NAICS 493. NAICS TITLE—WAREHOUSING AND STORAGE.

Industries in the Warehousing and Storage subsector are primarily engaged in operating warehousing and storage facilities for general merchandise, refrigerated

goods, and other warehouse products. These establishments provide facilities to store goods. They do not sell the goods they handle. These establishments take responsibility for storing the goods and keeping them secure. They may also provide a range of services, often referred to as logistics services, and related to the distribution of goods. Logistics services can include labeling, breaking bulk, inventory control and management, light assembly, order entry and fulfillment, packaging, pick and pack, price marking and ticketing, and transportation arrangement. However, establishments in this industry group always provide warehousing or storage services in addition to any logistic services. Furthermore, the warehousing or storage of goods must be more than incidental to the performance of services, such as price marking. Bonded warehousing and storage services and warehouses located in free trade zones are included in the industries of this subsector.

SCHEDULE 092. DISTRIBUTION WAREHOUSE—WHOLESALE.

Each person, firm, or corporation engaged in the business of offering for sale, taking or soliciting orders for sale, or selling of merchandise of any description at wholesale, including any such products stored in its own warehouse for sale, distribution or delivery, whether as owner, dealer, agent, or consignee, such business operating from a single site distribution facility located within the City of Birmingham, shall pay a license on the gross receipts from said business from the previous year as follows:

On the first $50,000,000.00: two-tenths of one percent of gross receipts;

Plus, on next $50,000,000.00. $100,000,000.00: 2/20 of one percent of gross receipts;

Plus, on next $100,000,000.00. $250,000,000.00: 2/50 of one percent of gross receipts;

Plus, on the next $250,000,000.00 and over: 2/100 of one percent of gross receipts.

With a minimum license in any case of: $6,000.00.

Where said business engages in retail sales of merchandise of any description, a separate license must be purchased under Schedule 165 of this Business License Code.

This license schedule shall not apply to cooperative grocers associations which maintain warehouses for the purpose of distributing groceries to member retail grocery stores.

SCHEDULE 249. WAREHOUSE, INCLUDING COTTON AND FURNITURE.

(a) Each person engaged in warehousing other than cold storage warehousing, shall pay a license as follows: Where total floor space in said warehouse is 20,000 square feet or less: $180.00.

(b) Where square footage exceeds 20,000 square feet, the license shall be $180.00, plus an amount equal to 6/10 of one cent per square foot for any footage in excess of 20,000 square feet.

(c) This Schedule 249 and Schedule 250 below shall be the sole applicable and governing provisions of the License Code of the City of Birmingham under which licenses are required and license fees are imposed for a cooperative grocers association which maintains a warehouse whether cold storage or otherwise, for the purpose of distributing groceries to member retail grocery stores.

SCHEDULE 250. WAREHOUSE, COLD STORAGE.

(a) Each person engaged in cold storage warehousing shall pay a license fee as follows: Where total space in said warehouse is less than 100,000 cubic feet: $120.00.

(b) Plus, for each additional 100,000 cubic feet, or fraction part thereof, an additional license of $120.00 shall be paid.

(c) This Schedule 250 and Schedule 249 above shall be the sole applicable and governing provisions of the License Code of the City of Birmingham under which licenses are required and license fees are imposed for a cooperative grocers association which maintains a warehouse whether cold storage or otherwise, for the purpose of distributing groceries to member retail grocery stores.

SCHEDULE 4931. FUEL PIPELINE FACILITY

A facility primarily engaged in operating a pipeline facility and providing logistic services for refined petroleum products that are not owned by or titled to the refined petroleum pipeline facility shall pay an annual license of..... $5,000.00

NAICS 511. NAICS TITLE—PUBLISHING INDUSTRIES (EXCEPT INTERNET).

Industries in the Publishing Industries (except Internet) subsector group establishments engaged in the publishing of newspapers, magazines, other periodicals, and books, as well as directory and mailing list and software publishing. In general, these establishments, which are known as publishers, issue copies of works for which they usually possess copyright. Works may be in one or more formats including traditional print form, CD-ROM, or proprietary electronic networks. Publishers may publish works originally created by others for which they have obtained the rights and/or works that they have created in-house. Software publishing is included here because the activity, creation of a copyrighted product and bringing it to market, is equivalent to the creation process for other types of intellectual products.

In NAICS, publishing the reporting, writing, editing, and other processes that are required to create an edition of a newspaper is treated as a major economic activity in its own right, rather than as a subsidiary activity to a manufacturing activity, printing. Thus, publishing is classified in the Information sector; whereas, printing remains in the NAICS Manufacturing sector. In part, the NAICS classification reflects the fact that publishing increasingly takes place in establishments that are physically separate from the associated printing establishments. More crucially, the NAICS classification of book and newspaper publishing is intended to portray their roles in a modern economy, in which they do not resemble manufacturing activities.

Music publishers are not included in the Publishing Industries (except Internet) subsector, but are included in the Motion Picture and Sound Recording Industries subsector. Reproduction of prepackaged software is treated in NAICS as a manufacturing activity; on-line distribution of software products is in the Information sector, and custom design of software to client specifications is included in the Professional, Scientific, and Technical Services sector. These distinctions arise because of the different ways that software is created, reproduced, and distributed.

The Publishing Industries (except Internet) subsector does not include establishments that publish exclusively on the Internet. The Publishing Industries (except Internet) subsector also excludes products, such as manifold business forms. Information is not the essential component of these items. Establishments producing these items are included in Subsector 323, Printing and Related Support Activities.

SCHEDULE 088. DIRECTORY.

Each person or firm making, compiling, selling or offering for sale: $240.00.

SCHEDULE 174. NEWS DEALER.

Each person, firm or corporation whose principal business is the selling of magazines, periodicals, or other publications including books, whether at wholesale or retail, shall pay a license of two-tenths of one percent of the gross receipts from said business from the previous year with a minimum license of: $200.00.

Where not principal business: $24.00.

SCHEDULE 175. NEWSPAPERS—DAILY.

(Where not less than five issues made in any one week). Each person, firm or corporation issuing a daily newspaper, shall pay a license of two-tenths of one percent of the gross receipts from said business from the previous year with a minimum license of: $200.00.

Provided, however, that a separate license is to be paid on a morning and afternoon paper, although owned and controlled by the same person, firm or corporation.

In addition to the license required by this schedule, there shall be paid an additional license of $200.00 where newspapers are sold on the public streets, sidewalks or other public property where such sales are made by individuals.

SCHEDULE 176. NEWSPAPERS AND MAGAZINES.

(Other than the kind described in the subsection immediately preceding). Each person, firm or corporation issuing any kind of a general newspaper or magazine shall pay a license on the following basis: Where gross receipts from said business the previous year were:

Less than $25,000.00	$60.00
$25,000.00 and less than $60,000.00	$120.00
$60,000.00 and less than $100,000.00	$200.00
Plus an amount equal to 2/10 of one percent of all gross receipts, including advertising receipts, in excess of $100,000.00.	

In addition to the license required by this schedule, there shall be paid an additional license of $200.00 where newspapers are sold on the public streets, sidewalks or other public property where such sales are made by individuals.

SCHEDULE 177. NEWSPAPER DISTRIBUTORS.

Each person, firm or corporation engaged in the business of selling newspapers in the City of Birmingham, either at retail or wholesale, except the publisher of the newspapers sold and except newsboys or others whose sales consist only of house delivery sales, shall pay a license as follows:

Where gross annual receipts during the next preceding year were:	
Less than $10,000.00	$50.00
$10,000.00 and less than $15,000.00	$100.00
$15,000.00 and over	$150.00

There shall be no liability for the license imposed under this Schedule 177 where a license has been paid under Schedule 175 or 176 of this Code. The license levied under this Schedule 117 shall not apply to those persons whose only business is the delivering of newspapers to homes.

SCHEDULE 178. NEWSBOYS.

Each person selling newspapers on the public streets for which no privilege license is paid by the person, firm or corporation conducting such newspaper: $60.00.

NAICS 512. NAICS TITLE—MOTION PICTURE AND SOUND RECORDING INDUSTRIES.

Industries in the Motion Picture and Sound Recording Industries subsector group establishments involved in the production and distribution of motion pictures and sound recordings. While producers and distributors of motion pictures and sound

recordings issue works for sale as traditional publishers do, the processes are sufficiently different to warrant placing establishments engaged in these activities in a separate subsector. Production is typically a complex process that involves several distinct types of establishments that are engaged in activities, such as contracting with performers, creating the film or sound content, and providing technical postproduction services. Film distribution is often to exhibitors, such as theaters and broadcasters, rather than through the wholesale and retail distribution chain. When the product is in a mass-produced form, NAICS treats production and distribution as the major economic activity as it does in the Publishing Industries subsector, rather than as a subsidiary activity to the manufacture of such products.

This subsector does not include establishments primarily engaged in the wholesale distribution of videocassettes and sound recordings, such as compact discs and audio tapes; these establishments are included in the Wholesale Trade sector. Reproduction of videocassettes and sound recordings that is carried out separately from establishments engaged in production and distribution is treated in NAICS as a manufacturing activity.

SCHEDULE 171. MOVING PICTURES, THEATERS OR OPERA HOUSE.

(a) Each person engaged in conducting either one or more of the aforesaid types of business shall pay a license of one percent of the first $100,000.00 or less of gross receipts from said business in the year immediately next preceding plus ¾% of one percent on all receipts in excess of $100,000.00 from said business for the year immediately next preceding, with a minimum license of $240.00 per year in any case.

(b) Where moving pictures are shown by the use of a coin or coins in a slot, for each machine: $240.00.

NAICS 515. NAICS TITLE—BROADCASTING (EXCEPT INTERNET).

Industries in the Broadcasting (except Internet) subsector include establishments that create content or acquire the right to distribute content and subsequently broadcast the content. The industry groups (Radio and Television Broadcasting and Cable and Other Subscription Programming) are based on differences in the methods of communication and the nature of services provided. The Radio and Television Broadcasting industry group includes establishments that operate broadcasting studios and facilities for over the air or satellite delivery of radio and television programs of entertainment, news, talk, and the like. These establishments are often engaged in the production and purchase of programs and generating revenues from the sale of air time to advertisers and from donations, subsidies, and/or the sale of programs. The Cable and Other Subscription Programming industry group includes establishments operating studios and facilities for the broadcasting of programs that are typically narrowcast in nature (limited format, such as news, sports, education, and youth-oriented programming) on a subscription or fee basis.

The distribution of cable and other subscription programming is included in Subsector 517, Telecommunications. Establishments that broadcast exclusively on the Internet are included in Subsector 516, Internet Publishing and Broadcasting.

SCHEDULE 258. CABLE TELEVISION.

Each person, firm or corporation engaged in the business of providing audio, video, digital or other forms of electronic or electrical signals which are transmitted to subscribing members of the public shall pay a license in an amount equal to: $100.00.

NAICS 516. NAICS TITLE—INTERNET PUBLISHING AND BROADCASTING.

Industries in the Internet Publishing and Broadcasting subsector group establishments that publish and/or broadcast content exclusively for the Internet. The unique combination of text, audio, video, and interactive features present in informational or cultural products on the Internet justifies the separation of Internet publishers and broadcasters from more traditional publishers included in subsector 511, Publishing Industries (except Internet) and subsector 515, Broadcasting (except Internet).

SCHEDULE 257. INTERNET PUBLISHING AND BROADCASTING.

Each person, firm or corporation engaged in the business of publishing and/or broadcasting content on the internet exclusively shall pay a license in an amount of two-tenths of one percent of the gross receipts from said business from the previous year with a minimum license of: $200.00.

NAICS 517. NAICS TITLE—TELECOMMUNICATIONS.

Industries in the Telecommunications subsector include establishments providing telecommunications and the services related to that activity. The Telecommunications subsector is primarily engaged in operating, maintaining, and/or providing access to facilities for the transmission of voice, data, text, sound, and video. A transmission facility may be based on a single technology or a combination of technologies. Establishments primarily engaged as independent contractors in the maintenance and installation of broadcasting and telecommunications systems are classified in Sector 23, Construction.

SCHEDULE 234. TELEPHONE COMPANIES. EXCHANGE.

Each person, firm or corporation operating or conducting a telephone exchange or exchanges: $12,000.00.

SCHEDULE 235. TELEPHONE COMPANIES. LONG DISTANCE.

Each person, firm or corporation operating a long distance telephone or telephones, doing an intrastate business: $3,000.00.

SCHEDULE 236. TELEGRAPH COMPANIES.

Each person, firm or corporation commercially engaged in business in this City and sending messages from the City to any part of the State or from any part of the State to the City (it is not the purpose hereof to tax interstate or foreign messages or any United States business): $750.00.

NAICS 519. NAICS TITLE—OTHER INFORMATION SERVICES.

Industries in the Other Information Services subsector group establishments supplying information, storing information, providing access to information, and searching and retrieving information. The main components of the subsector are news syndicates, libraries, and archives.

SCHEDULE 085. DATA PROCESSING SERVICE.

Each person, firm, or corporation engaged in the business of a data processing service or bureau, whether principal business or not, shall pay a license in an amount equal to two-tenths of one percent of the gross receipts from said business from the previous year with a minimum license of: $100.00.

NAICS 522. NAICS TITLE—CREDIT INTERMEDIATION AND RELATED ACTIVITIES.

Industries in the Credit Intermediation and Related Activities subsector group establishments that (1) lend funds raised from depositors; (2) lend funds raised from credit market borrowing; or (3) facilitate the lending of funds or issuance of credit by engaging in such activities as mortgage and loan brokerage, clearinghouse and reserve services, and check cashing services.

SCHEDULE 162. MERCANTILE OR COMMERCIAL AGENCIES.

Each person, firm or corporation or association whose principal business is inquiring into and reporting upon the credit or standing of persons, firms or corporations: $360.00.

SCHEDULE 167. MONEY BROKER.

Each person, firm or corporation conducting or engaging in the money broker business shall pay an annual license equal to 6/8 of one percent of the gross interest or gross brokerage fees collected from said business during the year immediately preceding, with a minimum license in any case of: $600.00.

This schedule shall not apply to pawn brokers, banks or trust companies, or real estate mortgage loans.

A money broker is hereby defined to be any person, firm, corporation or association who either as principal or agent or broker does any of the following:

(1) Engages in the business of lending money other than on real estate mortgages; or

(2) Buys personal property under agreement whereby the seller is granted the right or option to repurchase, or who;

(3) Trades in or who takes or buys assignments of wages already earned by any other person or persons employed or to be employed by any other person, firm or corporation, or who;

(4) Engages in the business of lending money on wages, salaries, personal property, (other than stocks and bonds) or on endorsements or personal security where such loan is to be repaid on the installment plan, with payments to be made periodically over a period of months or years, or who;

(5) Engages in the business of buying conditional sale contracts, or purchase money notes on automobiles, or rent notes, or who;

(6) Engages in the discounting of contractors notes, any one or all of the aforementioned acts.

SCHEDULE 168. MORTGAGE LOANS.

Each person, firm or corporation either as principal or agent, engaged in the business of lending money on notes, secured by mortgage on real estate situated within the State of Alabama, an amount equal to 6/8 of one percent on the gross brokerage, commission, and fees (but not including interest participation or compensation for servicing mortgages) received during the next preceding year with a minimum license in any case of: $120.00.

SCHEDULE 189. PAWN BROKERS OR PAWN BROKER'S AGENT.

Each person, firm or corporation doing business as pawn brokers or pawn broker's agents shall pay a license of two-tenths of one percent of gross receipts with a minimum license in any case of: $900.00.

SCHEDULE 259. COMMERCIAL AND INDUSTRIAL FINANCE.

Each person, firm or corporation conducting or engaging in secured transactions only in commercial and industrial finance shall pay an annual license equal to 6/8 of one percent of the gross interest or gross brokerage collected from said business during the year immediately preceding, with a minimum license in any case of: $600.00 and a maximum license of $5,000.00.

This schedule shall not apply to pawnbrokers, banks or trust companies, or real estate mortgage loans.

A commercial and industrial finance company is hereby defined to be any person, firm, corporation or association who either as principal or agent or broker does any of the following:

Engages in the business of:

(1) Financing of the purchase of income-producing equipment and inventory exclusive of motor vehicles; or

(2) Lending money whereby a security interest is given in accounts receivable and/or specifically described personal property, other than consumer goods or motor vehicles, which security interest is perfected by filing with the appropriate authorities of the county or state, the payments of such loans to be made periodically over a period of months or years.

NAICS 523. NAICS TITLE—SECURITIES, COMMODITY CONTRACTS, AND OTHER FINANCIAL INVESTMENTS AND RELATED ACTIVITIES.

Industries in the Securities, Commodity Contracts, and Other Financial Investments and Related Activities subsector group establishments that are primarily engaged in one of the following: (1) underwriting securities issues and/or making markets for securities and commodities; (2) acting as agents (i.e., brokers) between buyers and sellers of securities and commodities; (3) providing securities and commodity exchange services; and (4) providing other services, such as managing portfolios of assets; providing investment advice; and trust, fiduciary, and custody services.

SCHEDULE 043. BROKERS OR DEALERS IN STOCKS, BONDS, SECURITIES OR COMMODITIES.

Each person, firm, partnership, corporation or other organized group engaged in the business of acting as broker or dealer in stocks, bonds or other securities, or in commodities (other than cotton), or in the business of lending money on stocks, bonds, or other securities, or on commodities (other than cotton) shall pay a license of: $480.00.

SCHEDULE 074. COTTON BUYER.

Each cotton buyer, broker, agent or branch office maintaining office and executing future contracts on any cotton exchange for the general public, which shall include the right to buy and sell spot cotton: $600.00.

Where no private or leased telegraph wires and/or tickers are maintained: $180.00.

SCHEDULE 164. MERCHANDISE BROKER OR AGENT.

(a) Each merchandise broker, or agent for the sale thereof compensated wholly on a fee or commission basis, shall pay a license computed as follows: Where gross commissions or fees for previous year were $10,000.00 or less, the minimum license fee shall be: $100.00; plus an amount equal to 6/20 of one percent on gross commissions or fees in excess of $10,000.00.

(b) A merchandise broker is one who for a commission buys or sells goods, or who negotiates such transactions between buyer and seller, without having custody of, or title, to the property.

SCHEDULE 241. TRADING STAMPS, COUPONS, ETC.

(a) Each person engaged in the business of selling, issuing, or otherwise distributing any trading stamps, coupons, certificates or other similar devices redeemable, or purporting to be redeemable, in partial or full payment for goods, wares, merchandise, services or other thing of value shall pay a license of 6/10 of one percent of the gross receipts from said business from the previous year with a minimum license of: $1,200.00.

(b) In addition to the above license there shall be paid a license on each location at which trading stamps, coupons, certificates or similar devices are redeemed for goods or services in the amount of two-tenths of one percent of the gross receipts from said business from the previous year with a minimum license of: $200.00.

The term "gross receipts" in this schedule shall mean the retail market value of goods or services so redeemed.

SCHEDULE 031A. BANK AND/OR SAVINGS AND LOAN ASSOCIATION.

Where capital, surplus, reserve and undivided profits are:

Less than $50,000	$10.00
$50,000 and less than $100,000	$20.00
$100,000 and less than $150,000	$30.00
$150,000 and less than $200,000	$40.00
$200,000 and less than $250,000	$50.00
$250,000 and less than $300,000	$60.00
$300,000 and less than $350,000	$70.00
$350,000 and less than $400,000	$80.00
$400,000 and less than $450,000	$90.00
$450,000 and less than $500,000	$100.00
$500,000 and less than $600,000	$110.00
$600,000 and over	$125.00

In addition, a license must be obtained for each branch of such association or bank of $10.00, as set forth in Code of Ala. 1975, § 11-51-130.

The term "undivided profits", as used in this section, shall be construed to mean the undivided profits as shown by the books of the operator.

The correction of the fixed license tax shall be retroactive to January 1, 2009 and apply to any registered businesses under Schedule 031A. If a business is currently registered under Schedule 031A and is delinquent due to failure to pay the appropriate business license tax, that registered business is required to pay all applicable penalties and interest on the corrected license tax with the City of Birmingham and as required by City of Birmingham Business License Code, as adopted by Ordinance 97-183, as amended. If a business paid a business license tax at the previous rates.

NAICS 524. NAICS TITLE—INSURANCE CARRIERS AND RELATED ACTIVITIES.

Industries in the Insurance Carriers and Related Activities subsector group establishments that are primarily engaged in one of the following: (1) underwriting (assuming the risk, assigning premiums, and so forth) annuities and insurance policies or (2) facilitating such underwriting by selling insurance policies, and by providing other insurance and employee-benefit related services.

SCHEDULE 001. ABSTRACT OF TITLE AND TITLE INSURANCE.

Each person, firm, or corporation making abstracts of title and providing title insurance, shall pay a license of two-tenths of one percent of the gross receipts from said business from the previous year with a minimum license of: $500.00.

Where no abstracts of title are furnished and only title insurance is provided the license shall be two-tenths of one percent of the gross receipts from said business from the previous year with a minimum license of: $200.00.

SCHEDULE 136. INSURANCE COMPANIES.

Each insurance company other than fire, marine and fraternal, shall pay a license of $50.00, plus $1.00 on each $100.00 and major fraction thereof, of gross premiums, less returned premiums on policies issued during the preceding year to citizens of the City of Birmingham, provided that in case such company shall not have conducted business for the full period of said preceding year, it shall pay, $50.00 plus one percent of that amount which bears the same relationship to the gross amount of premiums, less returned premiums on policies issued during said preceding year as 365 bears to number of days during which business was conducted in such preceding year. Companies commencing business after the first of the current license tax year shall pay $50.00, plus $1.00 on each $100.00 and major fraction thereof, of gross premiums, less returned premiums on policies issued during the said current year to citizens of the City of Birmingham. Such new companies shall pay a flat minimum license of $100.00 at the time of commencement of business upon which there shall be an adjustment at the end of the year upon the basis herein provided for new companies.

Licenses issued under this schedule and the next succeeding schedule, shall be deemed delinquent the fourth day of March, following January first of each year.

Upon demand from the Director of Finance each principal agent representing an insurance company, which company has an established office in the City of Birmingham, shall furnish the Director of Finance from time to time with a complete schedule of all subagents, together with their address, soliciting or selling insurance for said company within the City of Birmingham.

SCHEDULE 137. INSURANCE COMPANIES, FIRE OR MARINE.

(a) Each Fire or Marine Insurance Company shall pay a license of $2.50 on each $100.00 of gross premiums received during the preceding year on policies issued during said year on property located in the City of Birmingham, including renewals, provided that in case such company shall not have conducted business in the City of Birmingham during the entire period of the preceding year, it shall pay 2½ percent of that amount which bears the same relationship to the gross amount of premiums, less returned premiums, received on policies issued during the said preceding year on property located in said City as 365 bears to the number of days during such preceding year during which such company conducted business in said City. Companies commencing business after the first of the current license tax year shall pay $2.50 on each $100.00 of gross premiums, less returned premiums, received on policies issued during the said current year on property located in the City of Birmingham. Such new companies shall pay a flat minimum license of $100.00 at the time of the commencement of business upon which there shall be an adjustment at the end of the year upon the basis herein provided for such new companies.

Upon demand from the Director of Finance each principal agent representing an insurance company, which company has an established office of the City of Birmingham, shall furnish the Director of Finance from time to time with a complete schedule of all subagents, together with their address, soliciting or selling insurance for said company within the City of Birmingham.

(b) Each Fire and Marine Insurance Company, in addition to the license required by subsection (a) hereof, shall also pay an additional license tax of $1.50 on each $100.00 of gross premiums received during the preceding year on policies issued during said year on property located in the City of Birmingham, including renewals, provided that in case such company shall not have conducted business in the City of Birmingham during the entire period of the preceding year, it shall pay under the provisions of this subsection (b) 1½ percent of that amount which bears the same relationship to the gross amount of premiums, less returned premiums, received on policies issued during the said preceding year on property located in said City as 365 bears to the number of days during such preceding year during which such company conducted business in said City. Companies commencing business after the first of the current license tax year shall pay under the provisions of this subsection (b) $1.50 on each $100.00 of gross premiums, less returned premiums, received on policies issued during the said current year on property located in the City of Birmingham. Any provision of this subsection (b) to the contrary notwithstanding each Fire or Marine Insurance Company shall be entitled to a reduction in the amount of additional license tax due under this subsection (b) equal to the amount due and paid during the same year by such company to the Firemen's Pension and Relief Fund of the City of Birmingham under the provisions of Section 1477 Appendix, Volume 14, Code of Alabama, Recompiled 1958 (Section III of Act Number 307 of the 1943 Regular Session of the Legislature of Alabama).

SCHEDULE 138A. INSURANCE AGENTS.

Each person, firm or corporation engaged in the business of acting as agent for fire and marine insurance companies shall pay a license of two-tenths of one percent of the gross receipts from said business from the previous year with a minimum license in any case of: $30.00.

SCHEDULE 138B. INSURANCE ADJUSTERS.

Each person, corporation or where a firm, each member of the firm where gross receipts from services rendered within the City of Birmingham during the year next preceding are:

Less than $5,000	$60.00
$5,000 and less than $10,000	$100.00
$10,000 and less than $15,000	$150.00
$15,000 and less than $20,000	$200.00
$20,000 and less than $25,000	$250.00
$25,000 and less than $30,000	$300.00
Plus an amount equal to 4/10 of 1% of subject gross receipts in excess of $30,000.	

**Any claimed exemptions (i.e. gross receipts from work performed or services rendered outside the City) and all other claimed exemption(s) from the gross receipts calculations must be presented to the City of Birmingham Department of Finance in compliance with the provisions of Article II, Section 2.3 of this Business License Code.*

Services rendered in this schedule shall include all services that are physically performed within the City irrespective of the client's residence/location. Nothing in this section shall limit the definition of gross receipts as previously defined in City of Birmingham Ordinance 97-183, Article II, Section 1(n).

SCHEDULE 138C. INSURANCE AGENTS (AUTOMOBILE RENTAL ONLY).

Each person, firm, or corporation engaged in the business of offering or selling insurance in connection with and incidental to the rental of vehicles, as provided in Schedule 024 of this Business License Code, whether at the rental office or by preselection of coverage in a master, corporate, individual, or group rental agreement, in any of the categories listed below, shall pay a license of two-tenths of one percent of the gross receipts from said business from the previous year with a minimum license in any case of: $60.00.

(1) Personal accident insurance covering the risks of travel, including, but not limited to, accident and health insurance that provides coverage, as applicable, to renters and other rental vehicle occupants for accidental death or dismemberment and reimbursement for medical expenses resulting from an accident that occurs during the rental period.

(2) Liability insurance, including uninsured and underinsured motorist coverage whether offered separately or in combination with other liability

insurance, that provides coverage, as applicable, to renters and other authorized drivers of rental vehicles for liability arising from the operation of the rental vehicle.

(3) Personal effects insurance that provides coverage, as applicable, to renters and other vehicle occupants for the loss of, or damage to, personal effects that occurs during the rental period.

(4) Roadside assistance and emergency sickness protection programs.

(5) Any other travel or auto-related coverage that a rental company offers in connection with and incidental to the rental of vehicles.

As provided in Section 27-7-5.1 Code of Alabama 1975, no insurance may be issued by a limited licensee except subject to the conditions outlined in said section, including but not limited to, the provision that the rental period of the rental agreement shall not exceed 90 consecutive days.

NAICS 525. NAICS TITLE—FUNDS, TRUSTS, AND OTHER FINANCIAL VEHICLES.

Industries in the Funds, Trusts, and Other Financial Vehicles subsector are comprised of legal entities (i.e., funds, plans, and/or programs) organized to pool securities or other assets on behalf of shareholders or beneficiaries of employee benefit or other trust funds. The portfolios are customized to achieve specific investment characteristics, such as diversification, risk, rate of return, and price volatility. These entities earn interest, dividends, and other property income, but have little or no employment and no revenue from the sale of services. Establishments with employees devoted to the management of funds are classified in Industry Group 5239, Other Financial Investment Activities.

Establishments primarily engaged in holding the securities of (or other equity interests in) other firms are classified in Sector 55, Management of Companies and Enterprises.

SCHEDULE 319. FUNDS, TRUSTS, AND OTHER FINANCIAL VEHICLES.

Each person, firm, partnership, corporation or other organized group engaged in the business of pooling securities or other assets on behalf of shareholders or beneficiaries where interest, dividends, and other property income is earned shall pay a license of: $480.00. Plus an amount equal to two-tenths of one percent of gross revenue in excess of $100,000.00.

NAICS 531. NAICS TITLE—REAL ESTATE.

Industries in the Real Estate subsector group establishments that are primarily engaged in renting or leasing real estate to others; managing real estate for others; selling, buying, or renting real estate for others; and providing other real estate

related services, such as appraisal services. Index includes reception hall, dance hall, banquet hall rental or leasing, concert hall, conference center, meeting hall, convention center with no promotion of events, mall property operations, shopping center rental, office building, flea market space, nonresidential building (except mini-warehouse) rental and leasing. Establishments primarily engaged in subdividing and developing unimproved real estate and constructing buildings for sale are classified in Subsector 236, Construction of Buildings.

Establishments primarily engaged in subdividing and improving raw land for subsequent sale to builders are classified in Subsector 237, Heavy and Civil Engineering Construction.

Real Estate Investment Trusts (REITS) are classified in Subsector 525, Funds, Trusts, and Other Financial Vehicles, because they are considered investment vehicles.

SCHEDULE 213A. REAL ESTATE AGENTS AND/OR BROKERS.

(a) Each person, firm or corporation engaged in the business of a real estate broker shall pay an annual license amount of $50.00, plus $50.00 annually for each salesperson, finder, broker or agent employed or engaged in such licensed business other than the one licensed real estate broker in whose name such business may be conducted, whether or not such person is called a "qualifying or designated" broker. The names of all such persons engaged in any such business for which a license is required under this Schedule 213, including the licensed broker under whose name such business is conducted shall be given to the City's Finance Director and shall be shown on the license receipt before it is issued. Each owner, partner or stockholder, who engages in or assists in the conduct of such business shall be counted for the purpose of determining the amount of annual license due hereunder, except the aforesaid one licensed real estate broker, but bookkeepers, secretaries, clerical personnel, maintenance workers and other employees whose services are only incidental to conducting or transacting such business shall not be so counted.

Each person, firm or corporation engaged in the business of a real estate broker in respect to real property located within the City shall pay a license as herein set out even though the office or principal place of business may be outside the City.

For the purpose of this Schedule 213 the term "business of a real estate broker" shall mean and include any person, firm or corporation doing or engaged in a business for which a real estate broker's license is required under Chapter 27, Title 34, Code of Alabama 1975. Qualification by any person as a real estate broker under the Alabama Real Estate License Law of 1951, or as same may be amended, shall be prima facie evidence of such person's liability under this Schedule 213.

The $50.00 license hereinabove levied shall not be due for those salespersons, finders, brokers or agents for whom the tax levied under the provision of Ordinance No. 97-184 is withheld by the licensee.

(b) The license provided in Schedule 213 shall not include the doing of business as a real estate appraiser for others where fees or compensation is received for such services. Such services shall be licensed as provided by Schedule 214 of this License Code.

(c) A license issued under this Schedule shall not permit the holder of such license to rent or lease any area of less than 500 square feet for the purpose of storage or parking of motor vehicles. A license for such purpose shall be obtained under Schedule 020 of the Code.

(d) The license issued under this Schedule shall not include the renting or leasing of real property owned by the broker or for which contracted with the owner or another person, firm, or corporation, of said property including, but not limited to apartments and buildings. Such services shall be licensed as provided by Schedule 213B of this License Code "Real Estate Lease or Rental."

(e) The license issued under this Schedule shall not include the managing of real property owned by another person as prescribed and licensed under Schedule 213C "Real Estate Management."

SCHEDULE 213B. REAL ESTATE LEASE OR RENTAL; SELFSTORAGE.

(a) Each person, firm or corporation engaging in the business of renting or leasing real property, said property including but not limited to, apartment building or space, building for industry, dwelling, cottages, houses, mobile home, single-family house, town house, banquet hall, conference center, concert hall, mall property operation, motel building, office building, shopping center, theater, mini-warehouse rental, self storage units, flea market space, lot rental or other similar activity which is located within the City of shall pay a license as follows:

Where the gross rental receipts from such real property during the preceding calendar year was:	
Less than $5,000.00	$100.00
$5,000.00 and less than $10,000.00	$150.00
$10,000.00 and less than $15,000.00	$200.00
$15,000.00 and less than $20,000.00	$250.00
Plus an amount equal to 2/10 of one percent of gross annual business in excess of $20,000.00.	

SCHEDULE 213C—REAL ESTATE MANAGEMENT.

Each person, firm or corporation engaged in the business of managing real property owned by another person, said property including, but not limited to, apartments and buildings for industry, storage, business or office space; and, providing services including, but not limited to, collecting lease or rent payments, coordinating maintenance needs, and/or screening tenants, shall pay a license as follows:

Where the gross receipts from managing such real property during the preceding calendar year were:	
Less than $5,000.00	$100.00
$5,000.00 and less than $10,000.00	$150.00
$15,000.00 and less than $20,000.00	$250.00
Plus an amount equal to 2/10 of one percent of gross receipts in excess of $20,000.00.	

SCHEDULE 214. REAL ESTATE APPRAISERS.

Each person, firm or corporation engaged in the business of appraising the value of lands and buildings, or either, and receiving compensation therefore, where gross receipts* from services rendered within the City of Birmingham during the year next preceding are:

Less than $5,000	$60.00
$5,000 and less than $10,000	$100.00
$10,000 and less than $15,000	$150.00
$15,000 and less than $20,000	$200.00
$20,000 and less than $25,000	$250.00
$25,000 and less than $30,000	$300.00
Plus an amount equal to 4/10 of 1% of subject gross receipts in excess of $30,000.	

**Any claimed exemptions (i.e. gross receipts from work performed or services rendered outside the City) and all other claimed exemption(s) from the gross receipts calculations must be presented to the City of Birmingham Department of Finance in compliance with the provisions of Article II, Section 2.3 of this Business License Code.*

Services rendered in this schedule shall include all services that are physically performed within the City irrespective of the appraised land, building or property. Nothing in this section shall limit the definition of gross receipts as previously defined in City of Birmingham Ordinance 97-183, Article II, Section 1(n).

NAICS 532. NAICS TITLE—RENTAL AND LEASING SERVICES.

Industries in the Rental and Leasing Services subsector include establishments that provide a wide array of tangible goods, such as automobiles, computers, consumer goods, and industrial machinery and equipment, to customers in return for a periodic rental or lease payment.

The subsector includes two main types of establishments: (1) those that are engaged in renting consumer goods and equipment and (2) those that are engaged in leasing machinery and equipment often used for business operations. The first type typically operates from a retail-like or store-front facility and maintains inventories of goods that are rented for short periods of time. The latter type typically does not operate from retail-like locations or maintain inventories, and offers longer term

leases. These establishments work directly with clients to enable them to acquire the use of equipment on a lease basis, or they work with equipment vendors or dealers to support the marketing of equipment to their customers under lease arrangements. Equipment lessors generally structure lease contracts to meet the specialized needs of their clients and use their remarketing expertise to find other users for previously leased equipment. Establishments that provide operating and capital (i.e., finance) leases are included in this subsector.

Establishments primarily engaged in leasing in combination with providing loans are classified in Sector 52, Finance and Insurance. Establishments primarily engaged in leasing real property are classified in Subsection 531, Real Estate. Those establishments primarily engaged in renting or leasing equipment with operators are classified in various subsectors of NAICS depending on the nature of the services provided (e.g., Transportation, Construction, and Agriculture). These activities are excluded from this subsector since the client is paying for the expertise and knowledge of the equipment operator, in addition to the rental of the equipment. In many cases, such as the rental of heavy construction equipment, the operator is essential to operate the equipment. Likewise, since the provision of crop harvesting services includes both the equipment and operator, it is included in the agriculture subsector. The rental or leasing of copyrighted works is classified in Sector 51.

SCHEDULE 024. AUTOMOBILE RENTAL. DRIVE-IT-YOURSELF CARS, TRUCKS AND TRAILERS.

(a) Each person, firm or corporation engaged in the business of what is commonly known as a "Drive-it-Yourself Business," operating automobiles, trucks, and trailers, as livery or rental cars, or on any plan by which persons pay for their service or use. (Not to include jitneys, taxi-cabs, or sightseeing buses.) For long-term leasing, see Schedule 212.

1 unit and not more than 5 units	$200.00
6 units and not more than ten units	$400.00
11 units and not more than 25 units	$800.00
26 units and not more than 50 units	$1,200.00
51 units and not more than 100 units	$1,600.00
101 units and not more than 250 units	$2,000.00
251 units and over	$2,400.00

(b) Where the offering and selling of certain insurance coverages is engaged in as an adjunct to operating a business under the provisions of this schedule, a separate license shall be obtained under Schedule 138C, of this Business License Code.

SCHEDULE 212. RENTING AND/OR LEASING.

Each person, firm or corporation engaged in the business of renting and/or leasing personal property to others, including, but not limited to office equipment, office

furniture, machines, machinery, equipment, and aircraft, shall pay a license of two-tenths of one percent of the gross receipts from said business from the previous year with a minimum license in any case of: $60.00.

Any person, firm or corporation, when engaged in a business covered under another schedule of this Code where gross receipts from rental and/or leasing are included as a measure of tax and both are operated from the same location, shall not be considered as engaging in the business of renting and/or leasing.

SCHEDULE 240. TOILET OR LINEN SUPPLY COMPANY.

Each person, firm or corporation who is engaged in furnishing a toilet or linen supply service and who operates within the City of Birmingham shall pay a license for the operation of said business as follows:

Where the gross receipts from said business from the previous year were:	
Less than $50,000.00	$120.00
$50,000.00 and not more than $100,000.00	$200.00
Plus an amount equal to 6/8 of one percent of gross receipts in excess of $100,000.00.	

(Ord. No. 13-176, § 1, 12-26-2013)

NAICS 541. NAICS TITLE—PROFESSIONAL, SCIENTIFIC, AND TECHNICAL SERVICES.

Industries in the Professional, Scientific, and Technical Services subsector group establishments engaged in processes where human capital is the major input. These establishments make available the knowledge and skills of their employees, often on an assignment basis, where an individual or team is responsible for the delivery of services to the client. The individual industries of this subsector are defined on the basis of the particular expertise and training of the services provider.

The distinguishing feature of the Professional, Scientific, and Technical Services subsector is the fact that most of the industries grouped in it have production processes that are almost wholly dependent on worker skills. In most of these industries, equipment and materials are not of major importance, unlike health care, for example, where "high tech" machines and materials are important collaborating inputs to labor skills in the production of health care. Thus, the establishments classified in this subsector sell expertise. Much of the expertise requires degrees, though not in every case.

SCHEDULE 002. ADVERTISING CONTRACTORS.

Each person, firm or corporation contracting either for advertising in street cars, motor vehicles or through the use of film displays in theaters, or in moving picture

houses, or who does bill posting, sign tacking, distributing advertising matter and/or is engaged in the business of window dressing for hire, other than on regular salary, where gross annual business is:

Less than $5,000.00	$120.00
$5,000.00 and less than $10,000.00	$240.00
$10,000.00 and less than $15,000.00	$360.00
$15,000.00 and less than $20,000.00	$480.00
$20,000.00 and less than $25,000.00	$600.00
$25,000.00 and less than $30,000.00	$720.00
$30,000.00 and less than $35,000.00	$840.00
$35,000.00 and less than $40,000.00	$960.00
$40,000.00 and over	$1,080.00

SCHEDULE 003. ADVERTISING SOLICITATION.

Each person, firm or corporation who solicits within the City of Birmingham intrastate advertising to be done for persons, firms or corporations having places of business in the City of Birmingham by means of radio broadcasting or televising through radio or television stations situated in Jefferson County, Alabama, shall pay a license of: $600.00.

It is intended that no license shall be levied by this schedule upon interstate radio broadcasting, televising and/or advertising solicitation.

SCHEDULE 004. ADVERTISING VEHICLES.

Each person, firm or corporation operating a vehicle on or over any public street or sidewalk of the City of Birmingham primarily as an instrument for advertising in the aid of a business enterprise, shall first secure from the Director of Finance a permit covering the operation of such vehicle, to be paid for at the following rate:

Per vehicle, per annum	$240.00
Per vehicle, per week	$30.00
Per vehicle, per day	$6.00

The foregoing permit fees are to be paid in addition to any and every occupational license fee that may be due on the business that is being advertised.

SCHEDULE 006. ADVERTISING AGENTS.

Each person, firm or corporation engaged in contracting for advertising or conducting an advertising bureau or agency, where gross annual business is:

Less than $5,000.00	$60.00
$5,000.00 and less than $10,000.00	$120.00
$10,000.00 and less than $15,000.00	$180.00
$15,000.00 and less than $20,000.00	$240.00

$20,000.00 and over	$300.00

SCHEDULE 012. ARCHITECTS.

Each person, firm, partnership, or corporation, including any such business in which more than one person is so engaged, each person shall pay a license as follows: Where gross annual business is:

Less than $5,000.00	$60.00
$5,000.00 and less than $10,000.00	$100.00
$10,000.00 and less than $17,500.00	$150.00
$17,500.00 and less than $25,000.00	$200.00
$25,000.00 and less than $32,500.00	$250.00
$32,500.00 and less than $40,000.00	$300.00
$40,000.00 and less than $50,000.00	$400.00
$50,000.00 and less than $75,000.00	$500.00
$75,000.00 and less than $100,000.00	$600.00
$100,000.00 and less than $125,000.00	$700.00
$125,000.00 and less than $150,000.00	$800.00
$150,000.00 and less than $175,000.00	$900.00
$175,000.00 and less than $200,000.00	$1,000.00
$200,000.00 and less than $250,000.00	$1,100.00
$250,000.00 and less than $300,000.00	$1,200.00
$300,000.00 and less than $400,000.00	$1,400.00
$400,000.00 and less than $500,000.00	$1,600.00
$500,000.00 and less than $600,000.00	$1,800.00
$600,000.00 and less than $800,000.00	$2,000.00
$800,000.00 and less than $1,000,000.00	$2,400.00
$1,000,000.00 and less than $1,400,000.00	$2,800.00
$1,400,000.00 and less than $2,000,000.00	$3,600.00
$2,000,000.00 and less than $2,600,000.00	$4,400.00
$2,600,000.00 and less than $3,200,000.00	$4,800.00
$3,200,000.00 and over	$5,000.00

SCHEDULE 014. ATTORNEYS.

(a) Each person, or where a partnership (but not including associations as defined in subsection (b) herein), each member of partnership, where gross receipts* for services rendered within the City of Birmingham during the year next preceding are:

Less than $5,000	$60.00
$5,000 and less than $10,000	$100.00
$10,000 and less than $15,000	$150.00
$15,000 and less than $20,000	$200.00

$20,000 and less than $25,000	$250.00
$25,000 and less than $30,000	$300.00
Plus an amount equal to 4/10 of 1% of subject gross receipts in excess of $30,000.	

**Any claimed exemptions (i.e. gross receipts from work performed outside the City) and all other claimed exemption(s) from the gross receipts calculations must be presented to the City of Birmingham Department of Finance in compliance with the provisions of Article II, Section 2.3 of this Business License Code.*

Services rendered shall include all services that are physically performed within the City irrespective of a client's residence or the jurisdiction that litigation may be filed. Nothing in this section shall limit the definition of gross receipts as previously defined in City of Birmingham Ordinance 97-183, Article II, Section 1(n).

(b) Each professional member or associate of an unincorporated association (as defined by Title 10, Chapter 10, Code of Alabama 1975), where the gross receipts for services rendered within the City of Birmingham during the year next preceding, or a professional corporation (as defined by Title 10, Chapter 4, Article 19, Code of Alabama 1975), where the gross receipts of services rendered within the City of Birmingham during the year next preceding was:

Less than $5,000	$60.00
$5,000 and less than $10,000	$100.00
$10,000 and less than $15,000	$150.00
$15,000 and less than $20,000	$200.00
$20,000 and less than $25,000	$250.00
$25,000 and less than $30,000	$300.00
Plus an amount equal to 4/10 of 1% of gross receipts in excess of $30,000.	

The gross remuneration of such professional member or associate, for the purpose of this section, shall be computed by dividing the gross receipts* from services rendered within the City of Birmingham of such unincorporated association by the total number of professional members or associates of such unincorporated association.

**Any claimed exemptions (i.e. gross receipts from work performed outside the City) and all other claimed exemption(s) from the gross receipts calculations must be presented to the City of Birmingham Department of Finance in compliance with the provisions of Article II, Section 2.3 of this Business License Code.*

Services rendered shall include all services that are physically performed within the City irrespective of a client's residence or the jurisdiction that litigation may be filed. Nothing in this section shall limit the definition of gross receipts as previously defined in City of Birmingham Ordinance 97-183, Article II, Section 1(n).

SCHEDULE 016. AUDITORS, ACCOUNTANTS AND BOOKKEEPERS.

(a) Each person, or where a partnership (but not including associations as defined in subsection (b) herein), each member of partnership, where gross receipts* from services rendered within, the City of Birmingham during the year next preceding are:

Less than $5,000	$60.00
$5,000 and less than $10,000	$100.00
$10,000 and less than $15,000	$150.00
$15,000 and less than $20,000	$200.00
$20,000 and less than $25,000	$250.00
$25,000 and less than $30,000	$300.00
Plus an amount equal to 4/10 of 1% of subject gross receipts in excess of $30,000.	

**Any claimed exemptions (i.e. gross receipts from work performed outside the City) and all other claimed exemption(s) from the gross receipts calculations must be presented to the City of Birmingham Department of Finance in compliance with the provisions of Article II, Section 2.3 of this Business License Code.*

Services rendered shall include all services that are physically performed within the City irrespective of a client's residence. Nothing in this section shall limit the definition of gross receipts as previously defined in City of Birmingham Ordinance 97-183, Article II, Section 1(n).

(b) Each professional member or associate of an unincorporated association (as defined by Title 10, Chapter 10, Code of Alabama 1975), or a professional corporation (as defined by Title 10, Chapter 4, Article 19, Code of Alabama 1975), where the total remuneration for services rendered within the City of Birmingham during the year next preceding are:

Less than $5,000	$60.00
$5,000 and less than $10,000	$100.00
$10,000 and less than $15,000	$150.00
$15,000 and less than $20,000	$200.00
$20,000 and less than $25,000	$250.00
$25,000 and less than $30,000	$300.00
Plus an amount equal to 4/10 of 1% of gross receipts in excess of $30,000.	

The gross remuneration of such professional member or associate, for the purpose of this section, shall be computed by dividing the gross receipts* from services rendered within the City of Birmingham of such unincorporated association by the total number of professional members or associates of such unincorporated association.

**Any claimed exemptions (i.e. gross receipts from work performed outside the City) and all other claimed exemption(s) from the gross receipts calculations must be presented to the City of Birmingham Department of Finance in compliance with the provisions of Article II, Section 2.3 of this Business License Code.*

Services rendered shall include all services that are physically performed within the City irrespective of a client's residence. Nothing in this section shall limit the definition of gross receipts as previously defined in City of Birmingham Ordinance 97-183, Article II, Section 1(n).

SCHEDULE 036. BLUEPRINTS.

Each person, firm or corporation dealing in or making blueprints or developing the same from tracings or drawings, where gross annual business is:

Less than $7,500.00	$120.00
$7,500.00 and less than $10,000.00	$180.00
$10,000.00 and less than $15,000.00	$240.00
$15,000.00 and over	$300.00

SCHEDULE 053. CHEMIST AND/OR METALLURGIST.

Each person, corporation, or where a partnership, each member of the partnership, where gross receipts from services rendered within the City of Birmingham during the year next preceding are:

Less than $5,000.00	$60.00
$5,000.00 and less than $10,000.00	$100.00
$10,000.00 and less than $15,000.00	$150.00
$15,000.00 and less than $20,000.00	$200.00
$20,000.00 and less than $25,000.00	$250.00
$25,000.00 and less than $30,000.00	$300.00
Plus an amount equal to 6/10 of one percent of subject gross receipts in excess of $30,000.00.	

SCHEDULE 098. ENGINEERS, CIVIL, MINING, CONSTRUCTION, ELECTRICAL, ESTIMATING, CONSULTING, INDUSTRIAL RADAR, OR MECHANICAL ENGINEER OR SURVEYOR.

(a) Each person, or where a partnership [but not including associations as defined in sub-section (b) herein], each member of partnership, where gross receipts from services rendered within the City of Birmingham during the year next preceding are:

Less than $5,000	$60.00
$5,000 and less than $10,000	$100.00
$10,000 and less than $15,000	$150.00
$15,000 and less than $20,000	$200.00
$20,000 and less than $25,000	$250.00
$25,000 and less than $30,000	$300.00
Plus an amount equal to 4/10 of 1% of gross receipts in excess of $30,000.	

(b) Each professional member or associate of an unincorporated association (as defined by Title 10, Chapter 10, Code of Alabama 1975), or a professional corporation (as defined by Title 10, Chapter 4, Article 19, Code of Alabama 1975), where the total remuneration for services rendered within the City of Birmingham during the year next preceding are:

Less than $5,000	$60.00
$5,000 and less than $10,000	$100.00
$10,000 and less than $15,000	$150.00
$15,000 and less than $20,000	$200.00
$20,000 and less than $25,000	$250.00
$25,000 and less than $30,000	$300.00
Plus an amount equal to 4/10 of 1% of those subject gross receipts in excess of $30,000.	

The gross remuneration of such professional member of associate, for the purpose of this section, shall be computed by dividing the gross receipts from services rendered within the City of Birmingham of such unincorporated association by the total number of professional members or associates of such unincorporated association.

**Any claimed exemptions (i.e. gross receipts from work performed or services rendered outside the City) and all other claimed exemption(s) from the gross receipts calculations must be presented to the City of Birmingham Department of Finance in compliance with the provisions of Article II, Section 2.3 of this Business License Code.*

Services rendered in this schedule shall include all services that are physically performed within the City irrespective of the client's residence/location. Nothing in this section shall limit the definition of gross receipts as previously defined in City of Birmingham Ordinance 97-183, Article II, Section 1(n).

SCHEDULE 133. INDUSTRIAL TRAFFIC MANAGER AND RATE INFORMATION BUREAU.

Each person, firm or corporation conducting such: $200.00.

SCHEDULE 135. INSPECTOR. ENGINEER.

Each person, firm or corporation engaged in the business of inspecting steel, steel products, concrete and concrete products:

Where only 1 inspector	$60.00
2 inspectors and less than 4	$120.00
4 inspectors and less than 6	$180.00
6 inspectors and less than 10	$240.00
10 inspectors and less than 15	$300.00
15 inspectors and less than 20	$360.00

20 inspectors and less than 25	$420.00
25 inspectors and over	$480.00

SCHEDULE 197. PHOTOGRAPHERS.

Each person, firm or corporation shall pay a license of two-tenths of one percent of the gross receipts from said business from the previous year with a minimum license in any case of: $84.00. Said license to include the developing of films, and the making of pictures on post cards.

This schedule does not cover the taking of photos, other than those taken within the studio.

TRANSIENT PHOTOGRAPHERS.

Each person, firm or corporation taking pictures from house to house or on the streets and sidewalks, shall pay at the rate of $20.00 per week for each machine used, with no license to be issued for a less period of time than five consecutive weeks.

No transient photographer's license is to be issued for the purpose of operating on the streets or sidewalks, within any of the restricted fire zones of the City.

SCHEDULE 246. VETERINARY SURGEON.

(a) Each person, or where a partnership but not including associations as defined in Sub-section (b) herein, each member of partnership where gross receipts from services rendered within the City of Birmingham during the year next preceding are:

Less than $5,000	$60.00
$5,000 and less than $10,000	$100.00
$10,000 and less than $15,000	$150.00
$15,000 and less than $20,000	$200.00
$20,000 and less than $25,000	$250.00
$25,000 and less than $30,000	$300.00
Plus an amount equal to 4/10 of 1% of subject gross receipts in excess of $30,000.	

(b) Each professional member or associate of an unincorporated association (as defined by Title 10, Chapter 10, Code of Alabama 1975) or a professional corporation (as defined by Title 10, Chapter 4, Article 19, Code of Alabama 1975), where the total remuneration of services rendered within the City of Birmingham during the year next preceding are:

Less than $5,000	$60.00
$5,000 and less than $10,000	$100.00
$10,000 and less than $15,000	$150.00
$15,000 and less than $20,000	$200.00

$20,000 and less than $25,000	$250.00
$25,000 and less than $30,000	$300.00
Plus an amount equal to 4/10 of 1% of those subject gross receipts in excess of $30,000.	

The gross remuneration of such professional member or associate, for the purpose of this section, shall be computed by dividing the gross receipts from services rendered within the City of Birmingham of such unincorporated association by the total number of professional members or associates of such unincorporated association.

**Any claimed exemptions (i.e. gross receipts from work performed or services rendered outside the City) and all other claimed exemption(s) from the gross receipts calculations must be presented to the City of Birmingham Department of Finance in compliance with the provisions of Article II, Section 2.3 of this Business License Code.*

Services rendered in this schedule shall include all services that are physically performed within the City irrespective of the client's (patient's) residence. Nothing in this section shall limit the definition of gross receipts as previously defined in City of Birmingham Ordinance 97-183, Article II, Section 1(n).

SCHEDULE 017B. OUTSIDE IRRIGATION SYSTEMS.

Each person, firm, or corporation engaged in the business of selling, or installing outside irrigation systems shall pay a license of two-tenths of one percent of the gross receipts from said business from the previous year with a minimum license of: $120.00.

SCHEDULE 037. BONDS. APPEARANCE AND APPEAL.

(a) Each person engaged in the business of becoming or procuring surety for any appearance in any court (including municipal, county, state and federal courts) of persons charged with any offense, where the gross annual business is:

Less than $3,000.00	$60.00
$3,000.00 and not more than $5,000.00	$96.00
$5,000.00 and not more than $7,500.00	$144.00
$7,500.00 and over	$200.00

Any person engaged in the business of becoming or procuring surety or sureties for appearances in any court, shall pay an additional license of $40.00 on each employee other than those employed fulltime as either bookkeepers or stenographers.

(b) It shall be unlawful for any person to become surety or to offer to become surety or to procure surety or offer to procure surety for appearance in any court, as aforesaid, when such license tax is delinquent or when that statement herein required to be furnished has not been furnished. The license of any person who files

a bond in any court while such person is delinquent with respect to the tax hereby levied, or with respect to furnishing the sworn statement herein required shall be subject to revocation.

(c) Where a person becomes surety or procures surety for appearance in any court, as above described, on more than five occasions during the calendar year shall be deemed to be engaged in the bonding business.

SCHEDULE 087A. DETECTIVE AGENCY.

Each person, firm or corporation operating a detective agency, or investigation bureau: $200.00.

No license will be issued unless and until applicant can show compliance with the permit requirements outlined in Title 12, Chapter 6, General Code of the City of Birmingham, as amended and as it may be amended.

SCHEDULE 087B. PATROL, SECURITY OR GUARD SERVICE.

Each person, firm or corporation operating a private police patrol, security or guard service:

Where only 1 worker	$60.00
Where 2 and less than 4 workers	$120.00
Where 4 and less than 7 workers	$180.00
Where 7 and less than 11 workers	$250.00
Where 11 workers	$300.00
Plus $20.00 for each worker in excess of 11.	

NAICS 551. NAICS TITLE—MANAGEMENT OF COMPANIES AND ENTERPRISES.

Industries in the Management of Companies and Enterprises subsector include three main types of establishments: (1) those that hold the securities of (or other equity interests in) companies and enterprises; (2) those (except government establishments) that administer, oversee, and manage other establishments of the company or enterprise but do not hold the securities of these establishments; and (3) those that both administer, oversee, and manage other establishments of the company or enterprise and hold the securities of (or other equity interests in) these establishments. Those establishments that administer, oversee, and manage normally undertake the strategic or organizational planning and decision making role of the company or enterprise.

SCHEDULE 007B. AGENTS, DEALERS, HOLDING COMPANIES. MAINTAINING AN OFFICE.

Any person, firm, or corporation, who shall maintain, keep in repair or otherwise man any office, store, warehouse, place of business, telephone wires, telegraph wires, right-of-way, easement, land or other facility or facilities situated in the City

of Birmingham in connection with any business, vocation, occupation or profession which is not subject to a license under any other schedule of this Code, or under Schedule 007A of this license code shall pay for the protection afforded by the laws, ordinances, rules and regulations of the City of Birmingham and its agencies to such person, firm or corporation in connection with the maintaining, keeping in repair or otherwise manning any such office, store, warehouse, place of business, telephone wires, telegraph wires, right-of-way, easement, land or other facility or facilities an annual license fee or tax as follows:

Where there was employed in connection with the maintaining, keeping in repair or otherwise manning any such office, store, warehouse, place of business, telephone wires, telegraph wires, right-of-way, easement, land or other facility or facilities during the next preceding calendar year in the City of Birmingham an average daily number of:

Less than 2 persons	$60.00
2 but less than 4 persons	$120.00
4 but less than 6 persons	$180.00
6 but less than 10 persons	$240.00
10 but less than 15 persons	$300.00
15 persons	$360.00
Plus $20.00 for each person in excess of 15.	

SCHEDULE 031B. BANK HOLDING COMPANIES.

Each person, firm or corporation engaged in the business of a bank holding company where management or administrative services are performed shall pay a license of: $1,000.00.

NAICS 561. NAICS TITLE—ADMINISTRATIVE AND SUPPORT SERVICES.

Industries in the Administrative and Support Services subsector group establishments engaged in activities that support the day-to-day operations of other organizations. The processes employed in this sector (e.g., general management, personnel administration, clerical activities, cleaning activities) are often integral parts of the activities of establishments found in all sectors of the economy. The establishments classified in this subsector have specialized in one or more of these activities and can, therefore, provide services to clients in a variety of industries and, in some cases, to households. The individual industries of this subsector are defined on the basis of the particular process that they are engaged in and the particular services they provide.

Many of the activities performed in this subsector are ongoing routine support functions that all businesses and organizations must do and that they have

traditionally done for themselves. Recent trends, however, are to contract or purchase such services from businesses that specialize in such activities and can, therefore, provide the services more efficiently.

The industries in this subsector cannot be viewed as strictly "support." The Travel Arrangement and Reservation Services industry group, includes travel agents, tour operators, and providers of other travel arrangement services, such as hotel and restaurant reservations and arranging the purchase of tickets, serves many types of clients, including individual consumers. This group was placed in this subsector because the services are often of the "support" nature (e.g., travel arrangement) and businesses and other organizations are increasingly the ones purchasing such services.

The administrative and management activities performed by establishments in this sector are typically on a contract or fee basis. These activities may also be performed by establishments that are part of the company or enterprise. However, establishments involved in administering, overseeing, and managing other establishments of the company or enterprise, are classified in Sector 55, Management of Companies and Enterprises. These establishments normally undertake the strategic and organizational planning and decision making role of the company or enterprise. Government establishments engaged in administering, overseeing and managing governmental programs are classified in Sector 92, Public Administration.

SCHEDULE 079. COURT REPORTING.

Each person, firm or corporation engaged in the business of court reporting, where gross receipts from services rendered within the City of Birmingham during the year next preceding are:

Less than $5,000	$60.00
$5,000 and less than $10,000	$100.00
$10,000 and less than $15,000	$150.00
$15,000 and less than $20,000	$200.00
$20,000 and less than $25,000	$250.00
$25,000 and less than $30,000	$300.00
Plus an amount equal to 4/10 of 1% of subject gross receipts in excess of $30,000.	

**Any claimed exemptions (i.e. gross receipts from work performed or services rendered outside the City) and all other claimed exemption(s) from the gross receipts calculations must be presented to the City of Birmingham Department of Finance in compliance with the provisions of Article II, Section 2.3 of this Business License Code.*

Services rendered in this schedule shall include all services that are physically performed within the City irrespective of the client's residence/location. Nothing in this section shall limit the definition of gross receipts as previously defined in City of Birmingham Ordinance 97-183, Article II, Section 1(n).

SCHEDULE 089. DISINFECTANTS, INSECTICIDES AND/OR EXTERMINATOR.

Each person, firm or corporation shall pay a license of two-tenths of one percent of the gross receipts, less returned goods, from said business from the previous year with a minimum license of: $120.00.

No license will be issued until applicant obtains and presents at the time of application and renewal a current, valid State of Alabama Permit issued by the Alabama Department of Agriculture and Industries.

SCHEDULE 146. LABOR AGENT OR EMPLOYMENT AGENCY; TEMPORARY EMPLOYMENT SERVICES OR AGENCIES.

Each person, firm or corporation operating as a labor agent or as employment agency shall pay a license computed as follows:

Where gross fees or service charges for the year next preceding were:	
Less than $10,000.00	$400.00
Plus an amount equal to 2/10 of one percent of gross annual business in excess of $20,000.00.	

SCHEDULE 148. LANDSCAPE GARDENERS.

Each person, or where a partnership, each member of firm where gross annual business is:

Less than $3,000.00	$60.00
$3,000.00 and less than $5,000.00	$96.00
$5,000.00 and less than $7,500.00	$144.00
$7,500.00 and over	$200.00

No license will be issued until applicant obtains and presents to the Revenue Division at the time of application and renewal a current, valid State of Alabama Permit issued by the Alabama Department of Agriculture and Industries.

SCHEDULE 242. TREE PRUNING AND TREE SURGERY.

Each person, firm and corporation engaged in doing tree pruning or tree surgery:

Where only 1 worker	$60.00
Where 2 or less than 4 workers	$120.00
Where 4 or less than 6 workers	$180.00
6 workers and over	$240.00

SCHEDULE 255. JANITORIAL SERVICE.

Each person, firm or corporation engaged publicly in the business of clearing plate glass windows, janitorial service and/or house cleaning, where:

Only 1 worker	$60.00
2 workers and less than 4 workers	$120.00

4 workers and less than 6 workers	$180.00
6 workers and less than 10 workers	$240.00
10 workers and less than 15 workers	$300.00
15 workers and over	$360.00

NAICS 562. NAICS TITLE—WASTE MANAGEMENT AND REMEDIATION SERVICES.

Industries in the Waste Management and Remediation Services subsector group establishments engaged in the collection, treatment, and disposal of waste materials. This includes establishments engaged in local hauling of waste materials; operating materials recovery facilities (i.e., those that sort recyclable materials from the trash stream); providing remediation services (i.e., those that provide for the cleanup of contaminated buildings, mine sites, soil, or groundwater); and providing septic pumping and other miscellaneous waste management services. There are three industry groups within the subsector that separate these activities into waste collection, waste treatment and disposal, and remediation and other waste management.

Excluded from this subsector are establishments primarily engaged in collecting, treating, and disposing waste through sewer systems or sewage treatment facilities that are classified in Industry 22132. Also, there are some activities that appear to be related to waste management, but that are not included in this subsector. For example, establishments primarily engaged in providing waste management consulting services are classified in Industry 54162, Environmental Consulting Services.

SCHEDULE 211. SOLID WASTE FACILITIES, TRANSFER OR RECYCLING FACILITY.

Each person, firm or corporation approved by permit to operate and/or construct a commercial nonhazardous solid waste management facility or commercial hazardous waste management facility for the purpose of receiving, for treatment, utilization, recycling, processing, transporting, or disposal of solid waste shall pay a license where gross annual business from the previous year is:

Less than $5,000.00	$60.00
$5,000.00 and less than $10,000.00	$100.00
$10,000.00 and less than $15,000.00	$150.00
$15,000.00 and less than $20,000.00	$200.00
Plus an amount equal to 2/10 of one percent of annual business in excess of $20,000.00.	

It shall be unlawful for any person to operate any commercial solid waste facility or transfer station, to change or expand the location or use of any existing facility without first having obtained approval therefor from the City Council in accordance with the provisions of Ordinance No. 93-221.

No license issued under this article shall be transferred or assigned or used by any other person than the one to whom it was issued and no solid waste facility license shall be used at any location other than the one described in the application upon which it was issued.

NAICS 611. NAICS TITLE—EDUCATIONAL SERVICES.

Industries in the Educational Services subsector provide instruction and training in a wide variety of subjects. The instruction and training is provided by specialized establishments, such as schools, colleges, universities, and training centers.

The subsector is structured according to level and type of educational services. Elementary and secondary schools, junior colleges and colleges, universities, and professional schools correspond to a recognized series of formal levels of education designated by diplomas, associate degrees (including equivalent certificates), and degrees. The remaining industry groups are based more on the type of instruction or training offered and the levels are not always as formally defined. The establishments are often highly specialized, many offering instruction in a very limited subject matter, for example ski lessons or one specific computer software package. Within the sector, the level and types of training that are required of the instructors and teachers vary depending on the industry.

Establishments that manage schools and other educational establishments on a contractual basis are classified in this subsector if they both manage the operation and provide the operating staff. Such establishments are classified in the educational services subsector based on the type of facility managed and operated.

SCHEDULE 026. AVIATION SCHOOLS.

Each person conducting a school wherein instruction and training is given for navigating and/or flying airplanes shall pay a license of two percent of the gross receipts from said business from the previous year with a minimum of: $200.00.

SCHEDULE 221. SCHOOL, BEAUTY.

Each person, firm or corporation engaged in the business of operating a beauty school, where gross annual receipts from said business from the previous year were:

Less than $7,500.00	$60.00
$7,500.00 and less than $12,500.00	$100.00
$12,500.00 and less than $20,000.00	$150.00
Plus an amount equal to 6/8 of one percent of all gross annual receipts in excess of $20,000.00.	

Where merchandise and/or beauty supplies or products are sold in connection with said business, an additional license shall be required pursuant to Schedule 165 of this Business License Code.

SCHEDULE 222. SCHOOL.

Each person, firm or corporation conducting a school as a business other than aviation school and beauty school provided for by Schedule 026 and Schedule 221, respectively of this Code, shall pay a license as follows:

Where the gross receipts from said business from the previous year were:	
Less than $10,000.00	$50.00
$10,000.00 and less than $25,000.00	$80.00
$25,000.00 and less than $60,000.00	$120.00
$60,000.00 and less than $80,000.00	$160.00
$80,000.00 and less than $100,000.00	$200.00
Plus an amount equal to 2/10 of one percent of gross receipts in excess of $100,000.00.	

NAICS 621. NAICS TITLE—AMBULATORY HEALTH CARE SERVICES.

Industries in the Ambulatory Health Care Services subsector provide health care services directly or indirectly to ambulatory patients and do not usually provide inpatient services. Health practitioners in this subsector provide outpatient services, with the facilities and equipment not usually being the most significant part of the production process.

SCHEDULE 186. OPTOMETRIST.

Each person, firm, corporation, association, or where a partnership, each member of partnership, where gross receipts* from services rendered within the City of Birmingham during the year next preceding:

Less than $5,000	$60.00
$5,000 and less than $10,000	$100.00
$10,000 and less than $15,000	$150.00
$15,000 and less than $20,000	$200.00
$20,000 and less than $25,000	$250.00
$25,000 and less than $30,000	$300.00
Plus an amount equal to 4/10 of 1% of subject gross receipts in excess of $30,000.	

This license is not to include the business of manufacturing and/or grinding lenses or the selling of merchandise other than manufacturing, grinding of lenses or the selling or furnishing of merchandise by an optometrist in the exercise of his practice as an optometrist.

**Any claimed exemptions (i.e. gross receipts from work performed outside the City) and all other claimed exemption(s) from the gross receipts calculations must be presented to the City of Birmingham Department of Finance in compliance with the provisions of Article II, Section 2.3 of this Business License Code.*

Services rendered shall include all services that are physically performed within the City irrespective of a client's residence. Nothing in this section shall limit the definition of gross receipts as previously defined in City of Birmingham Ordinance 97-183, Article II, Section 1(n).

SCHEDULE 198. PHYSICIANS, SURGEONS, DENTISTS, PSYCHOLOGISTS, PSYCHIATRISTS, OSTEOPATHS, CHIROPRACTORS OR CHIROPODISTS.

(a) Each person, firm or corporation, or where a partnership, [but not including associations as defined in subdivision (b) herein], each member thereof, where gross receipts from professional services rendered or provided within the City of Birmingham during the year next preceding are:

Less than $5,000	$60.00
$5,000 and less than $10,000	$100.00
$10,000 and less than $15,000	$150.00
$15,000 and less than $20,000	$200.00
$20,000 and less than $25,000	$250.00
$25,000 and less than $30,000	$300.00
Plus an amount equal to 4/10 of 1% of those subject gross receipts in excess of $30,000.00.	

(b) Each professional member or associate of an unincorporated association (as defined by Title 10, Chapter 10, Code of Alabama 1975), or a professional corporation (as defined by Title 10, Chapter 4, Article 19, Code of Alabama 1975), where the gross receipts for services rendered within the City of Birmingham during the year next preceding are:

Less than $5,000	$60.00
$5,000 and less than $10,000	$100.00
$10,000 and less than $15,000	$150.00
$15,000 and less than $20,000	$200.00
$20,000 and less than $25,000	$250.00
$25,000 and less than $30,000	$300.00
Plus an amount equal to 4/10 of 1% of those subject gross receipts in excess of $30,000.00.*	

The gross receipts of such professional member or associate, for the purpose of this section shall be computed by dividing the gross receipts from services rendered within the City of Birmingham of such unincorporated association by the total number of professional members or associates of such unincorporated association.

**Any claimed exemptions (i.e. gross receipts from work performed outside the City) and all other claimed exemption(s) from the gross receipts calculations must be presented to the City of Birmingham Department of Finance in compliance with the provisions of Article II, Section 2.3 of this Business License Code.*

Services rendered in this schedule shall include all services that are physically performed within the City irrespective of a client's residence. Nothing in this section shall limit the definition of gross receipts as previously defined in City of Birmingham Ordinance No. 97-183, Article II, Section 1(n).

SCHEDULE 320. SPEECH THERAPISTS, AUDIOLOGISTS, MENTAL HEALTH PRACTITIONERS, FAMILY PLANNING CENTERS, OUTPATIENT MENTAL HEALTH, HMO MEDICAL CENTERS, SUBSTANCE ABUSE CENTERS, KIDNEY DIALYSIS CENTERS, MEDICAL AND DIAGNOSTIC LABS, DIAGNOSTIC IMAGING CENTERS OR HOME HEALTH CARE SERVICES.

Each person, firm or corporation primarily engaged in diagnosis and treatment, operating private or group practices, administering medically prescribed treatment where gross receipts from services rendered within the City of Birmingham during the year next preceding are:

Less than $5,000	$60.00
$5,000 and less than $10,000	$100.00
$10,000 and less than $15,000	$150.00
$15,000 and less than $20,000	$200.00
$20,000 and less than $25,000	$250.00
$25,000 and less than $30,000	$300.00
Plus an amount equal to 4/10 of 1% of subject gross receipts in excess of $30,000.00.	

**Any claimed exemptions (i.e. gross receipts from work performed or services rendered outside the City) and all other claimed exemption(s) from the gross receipts calculations must be presented to the City of Birmingham Department of Finance in compliance with the provisions of Article II, Section 2.3 of this Business License Code.*

Services rendered in this schedule shall include all services that are physically performed within the City irrespective of the client's (patient's) residence. Nothing in this section shall limit the definition of gross receipts as previously defined in City of Birmingham Ordinance 97-183, Article II, Section 1(n).

SCHEDULE 493. FREESTANDING AMBULATORY SURGICAL AND EMERGENCY CENTERS.

Each person, firm or corporation with physicians and other medical staff primarily engaged in (1) providing surgical services (e.g., orthoscopic and cataract surgery) on an outpatient basis or (2) providing emergency care services (e.g., setting broken bones, treating lacerations, or tending to patients suffering injuries as a result of accidents, trauma, or medical conditions necessitating immediate medical care) on an outpatient basis. Outpatient surgical establishments have specialized facilities, such as operating and recovery rooms, and specialized equipment, such as anesthetic or X-ray equipment. Gross receipts from the above services rendered within the City of Birmingham during the preceding year are:

Less than $5,000.00	$60.00
$5,000.00 and less than $10,000.00	$100.00

$10,000.00 and less than $15,000.00	$150.00
$15,000.00 and less than $20,000.00	$200.00
$20,000.00 and less than $25,000.00	$250.00
$25,000.00 and less than $30,000.00	$300.00
Plus an amount equal to 8/10 of one percent of subject gross receipts in excess of $30,000.00.	

SCHEDULE 498. ALL OTHER OUTPATIENT CARE CENTERS.

(a) Each person, firm or corporation with medical staff primarily engaged in providing general or specialized outpatient care (except family planning centers, outpatient mental health and substance abuse centers, HMO medical centers, kidney dialysis centers, and freestanding ambulatory surgical and emergency centers) and centers or clinics of health practitioners with different degrees from more than one industry practicing within the same establishment (i.e., Doctor of Medicine and Doctor of Dental Medicine) where gross receipts from services rendered within the City of Birmingham during the year next preceding are:

Less than $5,000.00	$60.00
$5,000.00 and less than $10,000.00	$100.00
$10,000.00 and less than $15,000.00	$150.00
$15,000.00 and less than $20,000.00	$200.00
$20,000.00 and less than $25,000.00	$250.00
$25,000.00 and less than $30,000.00	$300.00
Plus an amount equal to 3/10 of one percent of subject gross receipts in excess of $30,000.00.	

NAICS 622. NAICS TITLE—HOSPITALS.

Industries in the Hospitals subsector provide medical, diagnostic, and treatment services that include physician, nursing, and other health services to inpatients and the specialized accommodation services required by inpatients. Hospitals may also provide outpatient services as a secondary activity. Establishments in the Hospitals

subsector provide inpatient health services, many of which can only be provided using the specialized facilities and equipment that form a significant and integral part of the production process.

SCHEDULE 134. HOSPITALS.

Where:

Less than 20 rooms	$120.00
20 rooms and less than 35 rooms	$180.00
35 rooms and less than 50 rooms	$240.00
50 rooms and less than 75 rooms	$360.00
75 rooms and less than 100 rooms	$480.00
100 rooms and over	$600.00

All rooms, whether as wards for patients or bedrooms for others, to be liable for said license.

NAICS 623. NAICS TITLE—NURSING AND RESIDENTIAL CARE FACILITIES.

Industries in the Nursing and Residential Care Facilities subsector provide residential care combined with either nursing, supervisory, or other types of care as required by the residents. In this subsector, the facilities are a significant part of the production process and the care provided is a mix of health and social services with the health services being largely some level of nursing services.

SCHEDULE 321. INFIRMARIES, SANITARIUMS AND/OR SANATORIUMS.

Where:

Less than 20 rooms	$120.00
20 rooms and less than 35 rooms	$180.00
35 rooms and less than 50 rooms	$240.00
50 rooms and less than 75 rooms	$360.00
75 rooms and less than 100 rooms	$480.00
100 rooms and over	$600.00

All rooms, whether as wards for patients or bedrooms for others, to be liable for said license.

NAICS 624. NAICS TITLE—SOCIAL ASSISTANCE.

Industries in the Social Assistance subsector provide a wide variety of social assistance services directly to their clients. These services do not include residential or accommodation services, except on a short stay basis.

SCHEDULE 322. SOCIAL ASSISTANCE.

Each person, firm, or corporation who as principal, agent or in any other capacity shall engage in or transact any trade, business, commerce, occupation, vocation or profession relating to social assistance that have not specifically exempted by and Act of the Legislature from paying any municipal gross receipts taxes and municipal business license taxes shall pay a license as follows:

Where gross annual business from said business from the previous year is:	
Less than $5,000.00	$60.00
$5,000.00 and less than $10,000.00	$100.00
$10,000.00 and less than $15,000.00	$150.00
$15,000.00 and less than $20,000.00	$200.00
Plus an amount equal to 2/10 of one percent of gross annual business in excess of $20,000.00.	

NAICS 711. NAICS TITLE—PERFORMING ARTS, SPECTATOR SPORTS, AND RELATED INDUSTRIES.

Industries in the Performing Arts, Spectator Sports, and Related Industries subsector group establishments that produce or organize and promote live presentations involving the performances of actors and actresses, singers, dancers, musical groups and artists, athletes, and other entertainers, including independent (i.e., freelance) entertainers and the establishments that manage their careers. The classification recognizes four basic processes: (1) producing (i.e., presenting) events; (2) organizing, managing, and/or promoting events; (3) managing and representing entertainers; and (4) providing the artistic, creative and technical skills necessary to the production of these live events. Also, this subsector contains four industries for performing arts companies. Each is defined on the basis of the particular skills of the entertainers involved in the presentations.

The industry structure for this subsector makes a clear distinction between performing arts companies and performing artists (i.e., independent or freelance). Although not unique to arts and entertainment, freelancing is a particularly important phenomenon in this Performing Arts, Spectator Sports, and Related Industries subsector. Distinguishing this activity from the production activity is a meaningful process differentiation. This approach, however, is difficult to implement in the case of musical groups (i.e., companies) and artists, especially pop groups. These establishments tend to be more loosely organized and it can be difficult to distinguish companies from freelancers. For this reason, NAICS includes one industry that covers both musical groups and musical artists.

This subsector contains two industries for Industry Group 7113, Promoters of Performing Arts, Sports, and Similar Events, one for those that operate facilities and another for those that do not. This is because there are significant differences in cost structures between those promoters that manage and provide the staff to operate facilities and those that do not. In addition to promoters without facilities, other

industries in this subsector include establishments that may operate without permanent facilities. These types of establishments include: performing arts companies, musical groups and artists, spectator sports, and independent (i.e., freelance) artists, writers, and performers. Excluded from this subsector are nightclubs. Some nightclubs promote live entertainment on a regular basis and it can be argued that they could be classified in Industry Group 7113, Promoters of Performing Arts, Sports, and Similar Events. However, since most of these establishments function as any other drinking place when they do not promote entertainment and because most of their revenue is derived from sale of food and beverages, they are classified in Subsector 722, Food Services and Drinking Places.

SCHEDULE 056. CIRCUS.

Each person operating a circus shall pay a license fee of: $1,200.00.

This license tax includes the tax for a menagerie accompanying the circus.

No license will be issued until applicant has obtained a Mayor's Permit.

SCHEDULE 066. CONCERTS, SHOWS, DEBATES, AMUSEMENT AND ENTERTAINMENTS

Each person, firm or corporation engaged in the business of promoting, producing or presenting concerts, debates, musical shows, public lecture, amusement or entertainment other than provided in Schedule 034 of this Code, to which the public is invited and for which an admission fee is charged or a collection taken shall pay for each performance, production or presentation an amount of $200.00.

A sales tax deposit may be required.

There shall be no liability for the license hereby imposed, if the concert, debate, musical show, amusement or entertainment is promoted, produced or presented at or in place of business for which the license levied by Schedule 171(a) of the License Code has been secured and is in effect.

This license tax shall not be charged for any lecture course given as part of the course of instruction in any educational institution, or for exhibits held under the auspices of religious or charitable associations.

SCHEDULE 741. TRANSIENT DEALERS.

The following is hereby declared to be the schedule of licenses for Transient Dealers for the calendar year commencing January 1, 2008, and for each subsequent year thereafter, for businesses who shall engage in the Transient Dealer business in or carried on in the City of Birmingham in said calendar year, and each and every firm,

company or corporation engaged in any such business enumerated herein, in said calendar year shall pay and take out such licenses in such sums as are herein provided:

All transient dealers as hereinafter defined by paragraph (a) shall pay a license based on the following schedule:

If anticipated sales are:	
$10,000.00 or less	$200.00
More than $10,000.00 but less than $25,000.00	$400.00
More than $25,000.00 but less than $50,000.00	$600.00
More than $50,000.00 but less than $100,000.00	$800.00
Over $100,000.00	$1,000.00
Plus 2/10 of one percent of gross receipts, less returns, over $100,000.00.	

No proration of the amount thereof will be granted because said party does not continue in business the specified time stated in the application.

It shall be unlawful for any transient dealer, itinerant merchant or promoter to engage in any business activities (as hereinafter defined) within the City unless licensed to do so as herein provided. Any transient dealer who fails or refuses to obtain the license required by this section prior to engaging in business activities within the City shall be subject to the assessment of the penalties outlined in subsection (g)(6) of this section, in addition to the applicable remedies outlined in Article II of this ordinance.

(a) *Definitions.*

(1) The term "transient dealers," for the purpose of this section, shall mean and include all persons, partnerships, associations, corporations, or any other type of business, both principals and agents, whether a resident of the City of Birmingham or not, who engage or conduct in this City either in one locality or in traveling from place to place, temporary shows (including but not limited to, trade shows, festivals, fairs, arts and crafts shows, home shows, boat shows), temporary/seasonal business (a temporary business that does not intend to establish a permanent location such as temporary kiosks in malls, Christmas, summertime vendors, etc.), temporary or transient business of selling, or soliciting orders for the sale of, goods, wares, or merchandise with the intention of continuing in said business in said City for a period of not more than 180 days, and who rent, lease, use, occupy, either in whole or in part, for the purpose of carrying on such business use, any room (including public rooms or space in hotels or motels), building, area within the Birmingham-Jefferson Civic Center or other public or privately-owned building, any lot or parcel of land, any motor vehicle including trucks and semi-trailers, tent, booth, stand or other approved structures within the City, for the exhibition and sale of such goods, wares and merchandise.

(2) [The term] "temporary vending" from a shopping mall location, or from a public building, such as a motel or civic center, constitutes transient vendor activity and, therefore, requires full compliance with the provisions of this ordinance. Any business transient in nature desiring a permanent license in said City for a period of more than 180 days must be continually operating for the full term of 180 days before a permanent license will be issued in locations described under the transient ordinance requirements. Such transient license will be converted to a permanent or regular license based on actual revenue produced during the 180 day transient license period.

(3) The [term] "promoter," "sponsor" or other person, group of persons, association, partnership, firm or corporation organizing a convention, show, or sale which convention, show or sale includes ten or more transient and local vendors or exhibitors, who offers to any vendor, directly or indirectly, sales areas within a multiple-vendor area location for the purpose of using such area during the term of the multiple-vendors license for the purpose of selling, bartering, exchanging, trading, or displaying goods or services, shall pay a license based on the above schedule. Sales for the purpose of this subsection shall include all sales of all vendors included in the convention, show or sale, but may exclude sales made by participants who have a current, applicable City of Birmingham business license. At the time of applying for a license pursuant to this ordinance, the promoter shall submit a list of vendors participating at the event for which the license is sought; such list shall include the vendor's name, address, and business phone number, together with a general description of the goods and/or services offered by each vendor.

(b) *Tax collection and reporting responsibility.* It is the responsibility of the promoter/sponsor to insure [ensure] that all taxes are collected from all vendors. Upon collection, the taxpayer must remit the tax to the City at which time the sales tax deposit will be returned. The Director of Finance shall have authority to set reasonable regulations and to set reasonable application and reporting requirements to aid in the collection of all license fees and other taxes.

(c) *Exemption provisions.*

(1) The provisions of this schedule shall not apply to sales of food or agricultural produce, peddlers, or sales of novelties otherwise licensed under this Code and where stock or anticipated sales are valued or anticipated at $2,000.00 or less or to sales made to dealers by commercial travelers or selling agents in the usual course of business, nor to bona fide sales of goods, wares, or merchandise for future delivery in interstate commerce, where either no measurements or design specifications are made or prepared in the City, or where no payment or deposit is collected in the City as a condition for the placement of orders, or where no license may be collected in the City as a

condition for the placement of orders, or where no license may be collected under the provisions of the Constitution or laws of the United States, nor to any sales or goods, wares or merchandise on the grounds of any agricultural society during the continuance of any annual fair held by such society, nor any sales by societies acting for charities, religious or public purpose.

(2) Conventions or religious, civic, charitable or benevolent groups, non-profit trade associations, and cultural events shall be exempt from this schedule (and vendors participating therein) if such convention, show, or cultural events has anticipated sales of $25,000.00 or less, and the total number of participating vendors is less than ten. Transient vendors participating in a convention, show or sale shall not be required to have separate licenses if the promoter or sponsor of the convention, show, or sale has obtained a license therefor, pursuant to the requirements of this section. The Director of Finance shall have authority to set reasonable regulations and to set reasonable application and reporting requirements to aid in the collection of all license fees and other taxes.

(d) *Application.* At least seven days prior to holding of such sale or solicitation, every such transient dealer shall furnish to the Finance Director a verified license application setting forth the following:

(1) Name and address of the applicant and also the name of the true owner if the applicant is not such true owner of the goods, wares or merchandise to be sold;

(2) Name, location and time of the proposed sale or solicitation;

(3) General description of the type of goods, wares or merchandise, on hand and on order, which the applicant intends to offer for sale;

(4) A statement of the amount of gross receipts realized from each sale conducted in the City of Birmingham by applicant, and the date(s) thereof, if such sale was within the preceding five years;

(5) A valid driver's license or other photo identification, issued by a state, from the owner, major sponsor or promoter of the sales event;

(6) Corporations must provide the address of any permanent place of business in the State of Alabama, or, if there is no permanent place of business in the State of Alabama, a copy of a Certificate of Existence issued by the Secretary of the State of Alabama evidencing the fact that the dealer has qualified to do business in Alabama and the name and address of its agent for the service of process in the state;

(7) Such other information as the Director of Finance may prescribe.

(e) *Deposits and bond.*

(1) *First time transient vendors only:* First time transient vendors shall provide the City with a Deposit OR Bond as provided herein.

Applicants providing a bond for a first time transient dealer's license shall be required to provide a bond in an amount equal to four percent (4%) of anticipated sales, or a minimum of $5,000.00, whichever is greater. A bond shall be with a surety company authorized to do business in the State of Alabama, and shall be payable to the City of Birmingham to the extent that any taxes or fines as determined by the Director of Finance of the City to be due are not paid. Upon judicial determination, to those authorized to file suit thereunder, shall be conditioned upon faithful observance of all the conditions of this section, and the payment of city license, sales, use, income or occupational license taxes due or to be withheld and paid by the licensee hereunder, and shall indemnify any purchaser at such sale who suffers any loss by reason of defective merchandise or any misrepresentation in said sale. Said bond shall also provide that the City of Birmingham may file suit in their own name against the licensee and/or the surety on said bond for any taxes, fees or fines due from the licensee which are not paid within 30 days of the termination of the sale and that any purchaser at such sale may maintain an action against the licensee and/or said surety for claims arising from such sale. This bond shall also provide that it shall continue in effect for one year after the termination of the sale for which it is made and until all actions are concluded and the judgment or judgments, if any, have been paid and fully satisfied, or the amount of bond exhausted by such payments. This bond shall be in addition to all deposits required under other ordinances of the City, including but not limited to the sales and use tax ordinances.

Sales Tax Deposit: First time transient dealer applicants providing a sales tax deposit in lieu of a bond for a first time transient dealer's license shall provide a Sales tax deposit by cash, check or certified funds in an amount equal to $400.00 or four percent (4%) of anticipated sales, whichever is greater. The funds shall be deposited upon receipt. Upon the receipt of a fully completed "Transient Dealer Settlement Report", any refunds, determined by the City to be due to the transient dealer, will be processed and made by the Director of Finance within ten (10) days.

Occupational Tax Deposit: An occupational tax deposit of $50.00 or 1% of anticipated wages, salaries, or compensation paid to employees, temporary workers, etc. may be required.

(2) *Returning transient vendors only:* Returning transient vendors shall provide the City with a Deposit OR Bond as provided herein.

Bond: Applicants returning as a transient dealer shall purchase a transient dealer license and shall be required to provide a bond in an amount equal to

four percent (4%) of previous event sales, or a minimum of $5,000.00, whichever is greater. A bond shall be with a surety company authorized to do business in the State of Alabama, and shall be payable to the City of Birmingham to the extent that any taxes or fines as determined by the Director of Finance of the City to be due are not paid. Upon judicial determination, to those authorized to file suit thereunder, shall be conditioned upon faithful observance of all the conditions of this section, and the payment of city license, sales, use, income or occupational license taxes due or to be withheld and paid by the licensee hereunder, and shall indemnify any purchaser at such sale who suffers any loss by reason of defective merchandise or any misrepresentation in said sale. Said bond shall also provide that the City of Birmingham may file suit in their own name against the licensee and/or the surety on said bond for any taxes, fees or fines due from the licensee which are not paid within 30 days of the termination of the sale and that any purchaser at such sale may maintain an action against the licensee and/or said surety for claims arising from such sale. This bond shall also provide that it shall continue in effect for one year after the termination of the sale for which it is made and until all actions are concluded and the judgment or judgments, if any, have been paid and fully satisfied, or the amount of bond exhausted by such payments. This bond shall be in addition to all deposits required under other ordinances of the City, including but not limited to the sales and use tax ordinances.

Sales Tax Deposit: Returning Transient dealer applicants providing a sales tax deposit in lieu of a bond for a transient dealer's license shall provide a Sales tax deposit by cash, check or certified funds in an amount equal to $400.00 or four percent (4%) of any previous event sales, whichever is greater. The funds shall be deposited upon receipt. Upon the receipt of a fully completed "Transient Dealer Settlement Report", any refunds, determined by the City to be due to the transient dealer, will be processed and made by the Director of Finance within ten (10) days.

Occupational Tax Deposit: An occupational tax deposit of $50.00 or 1% of anticipated wages, salaries, or compensation paid to employees, temporary workers, etc. may be required.

(f) *Reports of sales.* All transient dealers shall make a verified report of sales, as required by City Ordinance [No.] 97-185. Such return shall be due within seven days of the close of business. Any transient dealer under an obligation to file the return herein provided who fails or refuses to file the return and/or to pay the tax, or to obtain the license required by this subsection within the time specified herein shall be assessed interest and/or penalties as provided in subsection (g) of this section.

(g) *Interest and penalties.* In addition the provisions for interest and penalties contained in this section, additional requirements are outlined in Section 13 of the applicable tax ordinances.

(1) *Failure To Timely File The Returns Required By This Section.* If a taxpayer fails, neglects, or refuses to file any return required to be filed with the department on or before the date prescribed therefor, determined with regard to any extension of time for filing granted by the Director of Finance, there shall be assessed, in addition to the tax due or the amount of tax herein required to be collected, a penalty of ten percent of the amount due or $50.00, whichever is greater, together with interest thereon at the rate of one percent per month, or fraction thereof, from the date at which the tax herein levied became due and payable, such penalty and interest to be assessed and collected as part of the tax.

(2) *Failure To Timely Pay Tax Required by This Section.* If a taxpayer fails, neglects, or refuses to pay to the department the amount of tax shown as due on a return required to be filed on or before the date prescribed for payment of the tax, determined with regard to any extension of time for payment granted by the Director of Finance, there shall be added, in addition to the tax due or the amount of tax herein required to be remitted; or for any tax for which a return is required, a penalty of ten percent of the unpaid amount shown as tax due on the return or the amount stated in the notice and demand, together with interest thereon at the rate of one percent per month or fraction thereof, from the date at which the tax became due and payable.

(3) *Penalty And Interest Assessed As Tax.* All penalties and interest, levied or assessed against a taxpayer and which are administered by the department shall be assessed and collected in the same manner as taxes.

(4) *Interest.* Interest shall be computed at rate of one percent per month or fraction thereof, and shall be added as provided herein to any tax or other amount due the department which is not paid by the due date. Interest on any delinquency or underpayment shall be charged from the due date of the tax.

(5) *Penalties Not Exclusive.* The penalties provided in this section for failure to timely file a return and failure to timely pay tax, as well as the penalties outlined in Section 13 of the applicable tax ordinances, may be asserted against the same taxpayer for the same tax period.

(6) *Penalty for Failure to Obtain the License Required by This Section.* If a taxpayer fails, neglects, or refuses to obtain the license required by this section, within the time specified in this section, there shall be assessed, in addition to the license tax due, a penalty of 30 percent.

(h) *Advertising.*

(1) A transient dealer shall not advertise, represent or hold forth a sale of goods, wares, or merchandise as an insurance, bankrupt, insolvent, assignee, trustee, estate, executor, administrator, receiver, manufacturer's wholesale, canceled order, misfit sale, close-out, or a sale of any goods damaged by smoke, fire, or water otherwise, unless before so doing the applicant shall state in writing under oath to the Director of Finance of the City of Birmingham at the time of application for a license all the facts relating to the reason and character of

such special sales, so advertised, held forth, or represented. A statement should be included of persons from whom said goods, wares, or merchandise were purchased, and the date of delivery of same to the person applying for license, the place where said goods, wares, or merchandise were taken last, and such details necessary to exactly locate and fully identify all goods, wares, or merchandise to be sold, and make such further disclosure to and give such information as may be required by Director of Finance of the City of Birmingham. And such transient dealer shall also include in said statement names and residences of the owners in whose interest the business is conducted and whether conducted as an individual, firm, association, or corporation.

(2) It shall be unlawful for any transient dealer to sell or exhibit for sale either at public or private sale any goods, wares, or merchandise without first complying with the provisions of this schedule, or to make any false statements in reference to the matter required in Subsection (b) above, or to fail or refuse to comply with the requirements of any of the provisions of this schedule. However, nothing contained in this section shall be construed as abridging or denying the right and power of the Council of the City of Birmingham to refuse or withhold the granting of any license or to revoke the same, if granted, to a transient dealer upon any hearing thereof when in the discretion of said Council on the basis of the disclosures as aforesaid, or from other information deemed by them sufficient, such action may be deemed necessary or proper to protect or safeguard the public from imposition, mischief or fraud.

(i) *Zoning.* Such activity for which application is made and any license issued shall only be lawful in a commercial zoning district in the City as determined by the official Zoning Ordinance of the City and the official Zoning Map. Failure to so locate same is a basis for denying or revoking a business or privilege license to conduct such activity.

(j) *General provisions.*

(1) The Director of Finance is hereby charged with the enforcement of the provision of this ordinance and he is hereby authorized and empowered to prescribe, adopt and enforce rules and regulations relating to the administration and enforcement of the provisions of this ordinance.

(2) Nothing herein contained shall be construed to relieve any person or other legal entity from any license fee liability, tax liability, interest, penalty or forfeiture incurred as of the effective date.

SCHEDULE 034. BASEBALL, BASKETBALL, FOOTBALL, HOCKEY, WRESTLING OR OTHER SPORTING EVENTS.

(a) *Annual License Fee. Professional.* Each person engaged in the business of professional baseball, basketball, football, hockey, wrestling or other sporting events where an admission is charged shall pay a license of ¾ of one percent of the gross receipts from said business from the previous year with a minimum license of: $400.00.

(b) *Transient Event License Fee.* Where any of the above enumerated events are transient in nature and such events will be for a period of less than five days in any calendar year, a license shall be paid in the amount of: $200.00.

A sales tax deposit may be required.

SCHEDULE 084D. DIVISION IV DANCING—DANCER, ENTERTAINER, MODEL, PERFORMER OR EXHIBITIONIST.

Each dancer, entertainer, model, performer, or exhibitionist shall pay a license of: $200.00.

No license shall be issued for dancing, modeling, entertaining, or otherwise performing in a Division II Adult Establishment until the applicant has been approved by the Birmingham Police Department, pursuant to Ordinance 96-211.

NAICS 712. NAICS TITLE—MUSEUMS, HISTORICAL SITES, AND SIMILAR INSTITUTIONS.

Industries in the Museums, Historical Sites, and Similar Institutions subsector engage in the preservation and exhibition of objects, sites, and natural wonders of historical, cultural, and/or educational value.

SCHEDULE 323. MUSEUMS, HISTORICAL AND CULTURAL SITES.

Each person, firm, or corporation engage in preservation and exhibition of objects, sites and natural historical, cultural and of an educational value shall pay a license as follows:

Where gross annual business from said business from the previous year is:	
Less than $5,000.00	$60.00
$5,000.00 and less than $10,000.00	$100.00
$10,000.00 and less than $15,000.00	$150.00
$15,000.00 and less than $20,000.00	$200.00
Plus an amount equal to 2/10 of one percent of gross annual business in excess of $20,000.00.	

NAICS 713. NAICS TITLE—AMUSEMENT, GAMBLING, AND RECREATION INDUSTRIES.

Industries in the Amusement, Gambling, and Recreation Industries subsector (1) operate facilities where patrons can primarily engage in sports, recreation, amusement, or gambling activities and/or (2) provide other amusement and recreation services, such as supplying and servicing amusement devices in places of business operated by others; operating sports teams, clubs, or leagues engaged in playing games for recreational purposes; and guiding tours without using transportation equipment.

This subsector does not cover all establishments providing recreational services. Other sectors of NAICS also provide recreational services. Providers of recreational services are often engaged in processes classified in other sectors of NAICS. For example, operators of resorts and hunting and fishing camps provide both accommodation and recreational facilities and services. These establishments are classified in Subsector 721, Accommodation, partly to reflect the significant costs associated with the provision of accommodation services and partly to ensure consistency with international standards. Likewise, establishments using transportation equipment to provide recreational and entertainment services, such as those operating sightseeing buses, dinner cruises, or helicopter rides, are classified in Subsector 48-49, Transportation and Warehousing.

The industry groups in this subsector highlight particular types of activities: amusement parks and arcades, gambling industries, and other amusement and recreation industries. The groups, however, are not all inclusive of the activity. The Gambling Industries industry group does not provide for full coverage of gambling activities. For example, casino hotels are classified in Subsector 721, Accommodation; and horse and dog racing tracks are classified in Industry Group 7112, Spectator Sports.

SCHEDULE 011. AMUSEMENT DEVICES—MUNICIPALLY OWNED PARKS.

Each person, firm or corporation operating in municipally-owned parks shall pay a license of two percent of the gross receipts from said business from the previous year with a minimum license of: $200.00.

SCHEDULE 041. BOWLING ALLEYS AND/OR SHUFFLEBOARDS.

Each alley or shuffleboard: $30.00.

SCHEDULE 048. CARNIVAL AND TENT SHOWS OTHER THAN REGULAR CIRCUSES.

(a) For each concession set up, whether operated or not, $10.00 but in no case shall the total license be less than $100.00 per week.

(b) Where such carnival and tent shows are operated at the same time in connection with the exhibition of agricultural, mineral and manufacturing exhibits, one or all, a license of $20.00 per week shall be paid, for each concession set up, whether operated or not.

(c) Where Carnival and Tent Shows other than regular Circuses are operated in connection with, and at the same time and on the same general grounds with the Annual Alabama State Fair, a license shall be required under the provisions of Schedule 741 of this Business License Code.

Permit to be obtained from Mayor's Office before issuance of license.

SCHEDULE 084A. DIVISION I DANCING.

Dancing by Patrons, Customers, or Guests, in establishments approved and licensed for the sale of alcoholic beverages: $200.00.

No license will be issued until applicant has been approved by City Council.

SCHEDULE 084B. DIVISION II DANCING.

Dance, performance, exhibition, or entertainment by a dancer other than Patrons or Customers of the General Public in an establishment with a current Beer and/or Liquor License as required under the current Business License Code: $200.00.

The grant of a permit is hereby made a prerequisite for the issuance of a Dance Division II license and such permit shall not be deemed to authorize the conducting of entertainment or performances or any other form of business without the payment of the fee for a Dance Division II License.

No license will be issued until applicant has been approved by City Council. (For clarification of Division II Permit requirements see Ordinance 96-212.)

SCHEDULE 084C. DIVISION III DANCING.

Masked Balls: $50.00.

No license will be issued until applicant has been approved by City Council.

SCHEDULE 202. POOL OR BILLIARD TABLES.

Each pool or billiard table either wholly or partially set up, whether operated or not: $120.00.

Each pool or billiard table where playing area is less than 4232 square inches and said table is activated by the insertion of a coin in a slot or mechanical device: $60.00.

NO LICENSE WILL BE ISSUED unless and until applicant has obtained a permit issued by the Chief of Police pursuant to Section 12-3-53, General Code of the City of Birmingham, as amended and as it may be amended, and approval of said permit by the Mayor's Office.

SCHEDULE 224. SHOOTING GALLERY.

Each: $120.00.

Shooting gallery, transients, per week: $24.00.

SCHEDULE 225. SKATING RINK.

Each: $240.00.

SCHEDULE 228. SWIMMING POOLS.

For each place so operated not in connection with a regular amusement park: $360.00.

SCHEDULE 245. VENDING MACHINES AND/OR COIN-OPERATED MACHINES. NOT TO INCLUDE TABLES ON WHICH THE GAME OF POOL OR BILLIARDS MAY BE PLAYED OR COIN OPERATED FILM MACHINES.

(g) If the machine is a video machine, air hockey game, skee ball game, basketball toss game, pinball machine, crane machine, or other like amusement machine or device, and is operated through the use of coin or coins, token or tokens, slide card or other similar method the license fee for each such game or machine shall be: $24.00.

Where the principal activity of the business involves operating a facility where video games, air hockey games, skee ball games, basketball toss games, pinball machines, or like machines, as defined in this schedule, are operated by or made available for use or operation by the general public, an additional license shall be required under Schedule 007A of this ordinance.

Important notice and disclaimer: Issuance of a City of Birmingham business license under Schedule 245(g) Video Games, does not validate or permit the use of any illegal devices, and any violation of State laws relating to gambling may result in arrest of any person and/or the confiscation of any devices that are deemed to be gambling devices that are in the possession or under the control of any person.

The granting of a license under any provision of this ordinance requires compliance with all applicable City of Birmingham Tax Code provisions, and State laws, as well as with all conditions set forth in any and all applicable City of Birmingham Laws, Ordinances, Rules and Regulations, and any failure or refusal to comply with said laws, ordinances, rules and regulations may result in the revocation of the license issued pursuant to this Schedule 245(g).

Pursuant to Section 29, Ordinance No. 97-183, as amended, all business locations are required to be approved by the Department of Planning, Engineering and Permits. Pursuant to Sections 2.5 and 2.6, Ordinance No. 97-183, as amended, the issuance of a business license does not authorize the licensee to operate the licensed business in an unlawful manner or on premises where such business activity is prohibited by law, ordinance, rule or regulation, including, but not limited to, zoning regulations.

NAICS 721. NAICS TITLE—ACCOMMODATION.

Industries in the Accommodation subsector provide lodging or short-term accommodations for travelers, vacationers, and others. There is a wide range of establishments in these industries. Some provide lodging only; while others provide meals, laundry services, and recreational facilities, as well as lodging. Lodging establishments are classified in this subsector even if the provision of complementary services generates more revenue. The types of complementary services provided vary from establishment to establishment.

The subsector is organized into three industry groups: (1) traveler accommodation, (2) recreational accommodation, and (3) rooming and boarding houses. The Traveler

Accommodation industry group includes establishments that primarily provide traditional types of lodging services. This group includes hotels, motels, and bed and breakfast inns. In addition to lodging, these establishments may provide a range of other services to their guests. The RV (Recreational Vehicle) Parks and Recreational Camps industry group includes establishments that operate lodging facilities primarily designed to accommodate outdoor enthusiasts. Included are travel trailer campsites, recreational vehicle parks, and outdoor adventure retreats. The Rooming and Boarding Houses industry group includes establishments providing temporary or longer-term accommodations, which for the period of occupancy, may serve as a principal residence. Board (i.e., meals) may be provided but is not essential.

Establishments that manage short-stay accommodation establishments (e.g., hotels and motels) on a contractual basis are classified in this subsector if they both manage the operation and provide the operating staff. Such establishments are classified based on the type of facility managed and operated.

SCHEDULE 127. HOTELS AND INNKEEPERS.

Each person, firm, or corporation keeping a public inn, hotel, or commercial lodging facility of five or more bedrooms where transient guests are lodged for pay is deemed to be engaged in the business of keeping a hotel. For each room used or designated as a bedroom for guests: $8.00.

This license does not include license for restaurants and other secondary businesses operated in connection with the renting of rooms. If meals, food, or refreshments are served to the general public and charged for, the additional license required of restaurants, cafes, lunch counters and public eating houses must also be paid. In addition, sales of merchandise shall be licensed in the category in which it falls. When cottages or annexes are operated in connection with or rented by the hotel, this license shall apply to the total of the rooms in the hotel, the cottages and annex (Section 40-12-115 Code of Alabama 1975).

SCHEDULE 151. LODGINGHOUSES.

For each room rented to transients: $8.00.

No license will be issued unless and until applicant has obtained (1) a Health Department Permit and (2) a Fire Inspection Report indicating compliance with all applicable fire safety laws and ordinances.

NAICS 722. NAICS TITLE—FOOD SERVICES AND DRINKING PLACES.

Industries in the Food Services and Drinking Places subsector prepare meals, snacks, and beverages to customer order for immediate on-premises and off-premises consumption. There is a wide range of establishments in these industries. Some provide food and drink only; while others provide various combinations of seating space, waiter/waitress services and incidental amenities, such as limited entertainment. The industries in the subsector are grouped based on the type and level of

services provided. The industry groups are full-service restaurants; limited-service eating places; special food services, such as food service contractors, caterers, and mobile food services; and drinking places.

Food services and drink activities at hotels and motels; amusement parks, theaters, casinos, country clubs, and similar recreational facilities; and civic and social organizations are included in this subsector only if these services are provided by a separate establishment primarily engaged in providing food and beverage services.

Excluded from this subsector are establishments operating dinner cruises. These establishments are classified in Subsector 487, Scenic and Sightseeing Transportation because those establishments utilize transportation equipment to provide scenic recreational entertainment.

SCHEDULE 216. RESTAURANTS, CAFES, LUNCH AND SANDWICH STANDS, INCLUDING LUNCHES AT SODA FOUNTAINS AND FOOD SERVICE CONTRACTORS.

(a) Each person, firm or corporation conducting a restaurant, cafe, lunch or sandwich stand, shall pay a license on each place so conducted as follows: Where the gross annual receipts during the next preceding year were less than $5,000 ..... $60.00

$5,000 and less than $10,000	$120.00
$10,000 and less than $15,000	$180.00
$15,000 and less than $20,000	$240.00
$20,000 and less than $30,000	$300.00
$30,000 and less than $40,000	$360.00
$40,000 and less than $50,000	$420.00
$50,000 and less than $60,000	$480.00
$60,000 and less than $70,000	$540.00
$70,000 and less than $80,000	$600.00
$80,000 and less than $90,000	$660.00
$90,000 and less than $100,000	$720.00

Where said gross receipts exceed $100,000.00 a license shall be paid in the amount of $720.00 plus 2/10 of 1% on all gross receipts in excess of $100,000.00.

Where a person does not conduct such a restaurant, cafe, lunch or sandwich stand as its principal business, but on the premises where it conducts another business, such person shall pay the license tax herein levied for the privilege of conducting such a restaurant, cafe, lunch or sandwich stand; and the receipts from such a restaurant, cafe, lunch or sandwich stand shall not be included in computing the amount of tax due for engaging in any other business or businesses at such location. Provided, however, that where a person conducts a lunch or sandwich stand in connection with

the operation of a soda fountain in a drug store, such person shall not be subject to the license tax herein levied where the total amount of gross receipts for the year next preceding received from such soda fountain and lunch or sandwich stand do not exceed $20,000.00, but such person shall include such receipts from such soda fountain and lunch or sandwich stand in computing the amount of license tax due by it for operating such drug store. Provided further, that where the amount of gross receipts from such soda fountain and lunch or sandwich stand for the year next preceding exceed $20,000.00, such person shall include $20,000.00 of such gross receipts in computing the amount of license tax for which it shall be liable for conducting such drug store, and shall pay a license tax for conducting such soda fountain and lunch stand, the amount of which shall be determined by applying the rates herein prescribed to all receipts from said soda fountain and lunch or sandwich stand in excess of $20,000.00.

The phrase "restaurant, cafe or lunch stand", as used in this schedule, shall include a restaurant, cafe or lunch stand conducted by, or upon the premises of a person, firm or corporation contemporaneously conducting a college or commercial or industrial enterprise, and whether such restaurant, cafe, lunch or sandwich stands be conducted for profit or not, and whether the service of such restaurant, cafe, lunch or sandwich stand be limited to students or employees of the person conducting such college or commercial or industrial enterprise or be not so limited.

NO LICENSE WILL BE ISSUED until the applicant has obtained and presented to the Tax and License Administrative Division at the time of application a current, valid Health Department Permit.

(b) Each person, firm or corporation primarily engaged in providing food services at institutional, governmental, commercial or industrial locations of others based on contractual agreements* with these type of organizations for a specified period of time that shall not exceed a maximum period of one year. The establishments of this industry will provide food services for the convenience of the contracting organization's customers. The contractual arrangement of these establishments may vary from type of facility operated (e.g. cafeteria, restaurant, fast-food eating places). These establishments may participate in revenue sharing, cost structure and providing personnel. These establishments shall pay a license as follows: Where gross receipts from services rendered within the City of Birmingham during the year next preceding are:

Less than $5,000	$ 60.00
$5,000 and less than $10,000	$120.00
$10,000 and less than $15,000	$180.00
$15,000 and less than $20,000	$240.00
$20,000 and less than $30,000	$300.00
$30,000 and less than $40,000	$360.00

$40,000 and less than $50,000	$420.00
$50,000 and less than $60,000	$480.00
$60,000 and less than $70,000	$540.00
$70,000 and less than $80,000	$600.00
$80,000 and less than $90,000	$660.00
$90,000 and less than $100,000	$720.00

Where said gross receipts exceed $100,000.00, a license shall be paid in the amount of $720.00 plus 2/10 of 1% on all gross receipts in excess of $100,000.00.

The 216(b) license will be active from the date of issuance however shall not exceed one year or the end of the current calendar year (December 31), whichever comes first. Any person, firm or corporation primarily engaged in providing food services under schedule 216(b) on December 31 and this date is prior to their contractual agreement end date, shall pay a renewal fee of $60.00. This fee shall cover the person, firm or corporation's business 216(b) license until the end of their contractual agreement provided the contractual agreement does not exceed one year.

*The agreements referenced in 216(b) shall not exceed one year. Consecutive or repetitive contractual agreements shall not be permitted under the 216(b) license schedule.

NO LICENSE WILL BE ISSUED until the applicant has obtained and presented to the Tax and License Administrative Division at the time of application a current, valid Health Department Permit.

In addition to this license, the food service contractor shall remit and provide the following:

- A copy of the lease with the lessor of each location where the business activity will be conducted.

SCHEDULE 7223. MOBILE FOOD SERVICES.

This industry comprises establishments primarily engaged in preparing and serving meals and snacks for immediate consumption from motorized vehicles or non-motorized carts. The establishment is the central location from which the caterer route is serviced, not each vehicle or cart. Included in this industry are establishments primarily engaged in providing food services from vehicles, such as hot dog carts and ice cream trucks.

(1) Mobile food service vendors: Each person, firm or corporation operating a mobile food vehicle, pushcart, ice cream truck, lunch wagon, mobile canteen, mobile refreshment stand, mobile snack stand and mobile food concession stand shall pay a license on each mobile food vehicle or pushcart operated as follows:

Where the gross annual receipts during the next preceding year were:	
Less than $5,000.00	$60.00
$5,000.00 and less than $10,000.00	$120.00
$10,000.00 and less than $15,000.00	$180.00
$15,000.00 and less than $20,000.00	$240.00
$20,000.00 and less than $30,000.00	$300.00
$30,000.00 and less than $40,000.00	$360.00
$40,000.00 and less than $50,000.00	$420.00
$50,000.00 and less than $60,000.00	$480.00
$60,000.00 and less than $70,000.00	$540.00
$70,000.00 and less than $80,000.00	$600.00
$80,000.00 and less than $90,000.00	$660.00
$90,000.00 and less than $100,000.00	$720.00
Where said gross receipts exceed $100,000.00, a license shall be paid in the amount of $720.00, plus 2/10 of one percent on all gross receipts in excess of $100,000.00.	

(2) Mobile food services temporary vendors:

a. A mobile food services temporary vendor may, in lieu of purchasing an annual mobile food services business license, purchase a mobile food services temporary vendor license for temporary vents. Each event requires a separate license, and the mobile food service temporary vendor shall be limited to no more than four mobile food services temporary vendor licenses for each temporary event, per calendar year.

b. Each temporary vendor may, in lieu of purchasing an annual mobile food services license, purchase a temporary vendor license for mobile food services for each event at which said business will be conducted. Each event requires a separate license, and the temporary vendor shall be limited to no more than four temporary vendor licenses per calendar year. The temporary vendor flat rate license shall be as follows:

Event one to four days	$150.00
Event four to eight days	$250.00
Event nine to 30 days	$350.00

c. All temporary vendor operators shall comply with all local ordinances and state laws applicable to the operation of its business and present proof of the permission from any property owner upon whose property said temporary vendor is to operate and a permit to operate or letter of "No permit required" issued by the Jefferson County Health Department prior to the issuance of the requested business license.

(3) No license will be issued until applicant has obtained and presented to the Revenue Division at the time of application a current, valid health department permit and has passed any city required inspections.

(4) The issuance of a business license under this schedule does not permit or authorize any activity which is prohibited by Title 12, Chapter 14, Article A of the General Code of the City of Birmingham 1980, as amended and as it may be amended.

NAICS 811. NAICS TITLE—REPAIR AND MAINTENANCE.

Industries in the Repair and Maintenance subsector restore machinery, equipment, and other products to working order. These establishments also typically provide general or routine maintenance (i.e., servicing) on such products to ensure they work efficiently and to prevent breakdown and unnecessary repairs.

The NAICS structure for this subsector brings together most types of repair and maintenance establishments and categorizes them based on production processes (i.e., on the type of repair and maintenance activity performed, and the necessary skills, expertise, and processes that are found in different repair and maintenance establishments). This NAICS classification does not delineate between repair services provided to businesses versus those that serve households. Although some industries primarily serve either businesses or households, separation by class of customer is limited by the fact that many establishments serve both. Establishments repairing computers and consumer electronics products are two examples of such overlap.

The Repair and Maintenance subsector does not include all establishments that do repair and maintenance. For example, a substantial amount of repair is done by establishments that also manufacture machinery, equipment, and other goods. These establishments are included in the Manufacturing sector in NAICS. In addition, repair of transportation equipment is often provided by or based at transportation facilities, such as airports, seaports, and these activities are included in the Transportation and Warehousing sector. A particularly unique situation exists with repair of buildings. Plumbing, electrical installation and repair, painting and decorating, and other construction-related establishments are often involved in performing installation or other work on new construction as well as providing repair services on existing structures. While some specialize in repair, it is difficult to distinguish between the two types and all have been included in the Construction sector.

SCHEDULE 023. AUTOMOBILE DETAILING AND/OR WASHING.

Where principal business: $150.00.

Where incidental business: $36.00.

No license will be issued without written verification from the Department of Planning, Engineering and Permits indicating compliance with all Building and Zoning Codes, Ordinances, and Regulations.

SCHEDULE 049. CARPET AND/OR RUG CLEANING.

Each person, firm or corporation operating a carpet or rug cleaning business, shall pay a license as follows:

Where gross receipts for the year next preceding were:	
Less than $6,000.00	$60.00
$6,000.00 and less than $12,500.00	$100.00
$12,500.00 and less than $20,000.00	$150.00
$20,000.00 and less than $30,000.00	$200.00
$30,000.00 and less than $40,000.00	$250.00
$40,000.00 and over	$300.00

SCHEDULE 181. OIL, AUTOMOBILE, RETAIL.

Each person, firm or corporation selling automobile oils at retail other than where sold at a gasoline filling station, shall pay a license in an amount equal to 6/20 of one percent of gross receipts from the sales of such business during the year next preceding, with a minimum license for each place where such oil is sold of: $120.00.

SCHEDULE 199. PIANO TUNER.

Each: $20.00.

Where pipe organs are tuned and repaired: Additional: $60.00.

SCHEDULE 215A. REPAIR SHOP (OTHER THAN AUTOMOTIVE).

Each person operating a repair shop (other than automotive), or engaged in the doing of repair work (other than automotive repair) shall, after having met all of the requirements of this section, pay a license as follows:

Where only 1 worker	$60.00
Where 2 but less than 4 workers	$120.00
Where 4 but less than 6 workers	$180.00
Where 6 but less than 10 workers	$240.00
Where 10 but less than 15 workers	$300.00
Where 15 and over	$360.00

No license will be issued without written approval or verification from the City of Birmingham Department of Planning, Engineering and Permits indicating that the business location meets all current Zoning Codes, Ordinances, and Regulations.

Where parts, accessories, tools, machines, equipment, jewelry, and the like are sold in connection with said business, an additional license shall be obtained under the provisions of Schedule 165 of this Business License Code.

SCHEDULE 215B. REPAIR SHOP (AUTOMOTIVE, PASSENGER AND NON-PASSENGER TRUCK, COMMERCIAL TRUCK, BUS, OR HEAVY DUTY EQUIPMENT, INSIDE OF BUILDING).

Each person engaged in the business of repairing automobiles, passenger and nonpassenger commercial trucks, buses, and heavy duty equipment, provided that the vehicle or equipment being repaired is placed completely within an enclosed building, with all work being performed within said building, shall pay a license as follows:

Where only 1 worker	$60.00
Where 2 but less than 4 workers	$120.00
Where 4 but less than 6 workers	$180.00
Where 6 but less than 10 workers	$240.00
Where 10 but less than 15 workers	$300.00
Where 15 and over	$360.00

Said license to include the equipping, servicing, repairing (including major engine overhaul) and inside storage of automobiles, passenger and non-passenger commercial trucks, buses, and heavy duty equipment; provided, however, said license shall not permit the storage of disabled vehicles on the property for more than 30 calendar days in the case of vehicles awaiting repair, nor more than 30 calendar days in the case of vehicles which have been repaired, and provided that in no case shall any vehicle be kept on the property in excess of 60 calendar days.

Provided, however, where automobile parts and accessories are sold in connection with automobile repairs, an additional license shall be obtained under the provisions of Schedule 019 of this Business License Code.

Where said person operates an automobile storing and/or parking area not in connection with the repair of any vehicle, an additional license shall be obtained under the provisions of Schedule 020 of this Business License Code.

For the purposes of this section, the term "enclosed building" means any structure having walls, a roof, and a closeable door or doors, that encloses a space used for sheltering any residential or commercial occupancy.

No license will be issued without written approval or verification from the City of Birmingham Department of Planning, Engineering and Permits indicating that the business location meets all current Zoning Codes, Ordinances, and Regulations.

SCHEDULE 215C. REPAIR SHOP (AUTOMOTIVE, PASSENGER AND NON-PASSENGER TRUCK, COMMERCIAL TRUCK, BUS, OR HEAVY DUTY EQUIPMENT. INSIDE AND/OR OUTSIDE OF BUILDING).

Each person engaged in the business of repairing automobiles, passenger and non-passenger commercial trucks, buses, and heavy duty equipment outside of an enclosed building, with all work being performed inside and/or outside of an enclosed building, shall pay a license as follows:

Where only 1 worker	$60.00
Where 2 but less than 4 workers	$120.00

Where 4 but less than 6 workers	$180.00
Where 6 but less than 10 workers	$240.00
Where 10 but less than 15 workers	$300.00
Where 15 and over	$360.00

Said license to include the equipping, servicing, repairing (including major engine overhaul) of automobiles, passenger and non-passenger commercial trucks, buses, and heavy duty equipment; provided, however, said license shall not permit the storage of disabled vehicles on the property for more than 30 calendar days in any case.

Provided, however, where automobile parts and accessories are sold in connection with automobile repairs, an additional license shall be obtained under the provisions of Schedule 019 of this Business License Code.

Where said person operates an automobile storing and/or parking area not in connection with the repair of any vehicle, an additional license shall be obtained under the provisions of Schedule 020 of this Business License Code.

For the purposes of this section, the term "enclosed building" means any structure having walls, a roof, and a closeable door or doors, that encloses a space used for sheltering any residential or commercial occupancy.

No license will be issued without written approval or verification from the City of Birmingham Department of Planning, Engineering and Permits indicating that the business location meets all current Zoning Codes, Ordinances, and Regulations.

SCHEDULE 251. WATCHMAKER AND REPAIR.

Each worker: $60.00.

Where watches, parts, accessories, tools, jewelry, and the like are sold in connection with said business, an additional license shall be obtained under the provisions of Schedule 165 of this Business License Code.

SCHEDULE 170B. WRECKERS.

(a) Each and every person, firm or corporation operating or causing to be operated within the City of Birmingham any wrecker for the towing of automotive vehicles within the City of Birmingham, or coming into the City of Birmingham to take a vehicle out, for hire or reward shall pay, for each wrecker of:

Not more than 12,000 pounds gross vehicle weight	$24.00
12,001 to 42,000 pounds of gross vehicle weight	$48.00
Over 42,000 pounds of gross vehicle weight	$60.00

For the purpose of this schedule, gross vehicle weight shall mean the empty weight of the wrecker plus the heaviest load to be carried.

(b) Where parking and/or storing of inoperable vehicles is engaged in as an adjunct to operating a business under the provisions of this schedule, a separate license shall be obtained under Schedule 020, Subsections (a) and (b) Schedule 145 (Junk Yards, Junk Dealers and/or Scrap Metal Dealers) of this Business License Code, subject to the provisions of the City of Birmingham's Zoning Ordinance, as well as approval of the City Council. No license will be issued unless and until applicant has met the following requirements:

(1) Approval by the Birmingham Police Department upon proof of compliance with all applicable laws and ordinances;

(2) Proof of proper insurance on file in the City Clerk's Office pursuant to Section 12-17-26, General Code of the City of Birmingham, as amended and as it may be amended;

(3) Vehicle Inspection by the Birmingham Police Department and approval thereof, upon compliance with applicable laws and ordinances; and

(4) Proper zoning of business location.

License stickers issued by the department shall be prominently displayed on any wrecker operating within the City of Birmingham. It shall be unlawful to operate any wrecker within the City of Birmingham without having met the requirements outlined in this section.

NAICS 812. NAICS TITLE—PERSONAL AND LAUNDRY SERVICES.

Industries in the Personal and Laundry Services subsector group establishments that provide personal and laundry services to individuals, households, and businesses. Services performed include: personal care services; death care services; laundry and dry-cleaning services; and a wide range of other personal services, such as pet care (except veterinary) services, photofinishing services, temporary parking services, and dating services.

The Personal and Laundry Services subsector is by no means all-inclusive of the services that could be termed personal services (i.e., those provided to individuals rather than businesses). There are many other subsectors, as well as sectors, that provide services to persons. Establishments providing legal, accounting, tax preparation, architectural, portrait photography, and similar professional services are classified in Sector 54, Professional, Scientific, and Technical Services; those providing job placement, travel arrangement, home security, interior and exterior house cleaning, exterminating, lawn and garden care, and similar support services are classified in Sector 56, Administrative and Support, Waste Management and Remediation Services; those providing health and social services are classified in Sector 62, Health Care and Social Assistance; those providing amusement and recreation services are classified in Sector 71, Arts, Entertainment and Recreation; those providing educational instruction are classified in Sector 61, Educational Services; those providing

repair services are classified in Subsector 811, Repair and Maintenance; and those providing spiritual, civic, and advocacy services are classified in Subsector 813, Religious, Grantmaking, Civic, Professional, and Similar Organizations.

SCHEDULE 020. AUTOMOBILE STORING OR PARKING.

Each person engaged in the business of storing and/or parking automobiles or other vehicles, whether operable or inoperable, whether attended or not, for a fee or other charge, and/or holding out space as available for such storing and/or parking, whether used or not, shall pay a license as follows:

(a) Where the space available for such parking and/or storing is 7,500 square feet or less: $200.00.

(b) Where space available exceeds 7,500 square feet, the license amount is $200.00 plus an amount calculated as follows: For each 3,000 square feet or fractional part thereof of space in excess of 7,500 square feet: $110.00.

(c) Where the area available for automobile parking is more than four times the ground area and where more than one-half of the parking spaces are available for transient parking (commonly known as a parking deck): $200.00.

(d) Where only trailers are parked (commonly known as house trailers), the license is to be one-fourth of the amount calculated using items (a) and (b) above, with a minimum license in any case for trailer parking of: $110.00.

The term "available space," as used in this schedule, means all floor or ground space, including driveways used in connection with said business, except ramps and/or elevators used in the movement of vehicles from one level to another, and which is held out as available for storing and/or parking automobiles or other vehicles, whether used or not.

No license will be issued unless the business location is approved by the City of Birmingham Department of Planning, Engineering and Permits as having met zoning requirements.

SCHEDULE 022. AUTOMOBILE PARKING—SPECIAL EVENTS/SPORTING EVENTS.

Each person engaged in the business of using a plot of land, lot, parcel, yard, enclosure, structure, or any portion thereof, to park, house or keep vehicles, and for which a charge is made, and which is customarily available during special events and/or sporting events of short duration which will occur, either wholly or partially, on City properties and/or rights-of-way, where the space available for such parking is greater than ten vehicles, the license fee is: $200.00.

Provided, however, that any person operating an automobile parking area where the space available for parking, housing or keeping vehicles is less than or equal to ten vehicles, shall be exempt from the payment of any license under this schedule.

SCHEDULE 032. BARBERSHOP.

For each shop operated, a license shall be paid upon the following basis or measurement:

For each chair set up in such shop whether being operated or not	$30.00
For each manicurist working in such shop	$30.00

SCHEDULE 038. BOOTBLACKING.

Each person, firm or corporation engaged in bootblacking shall pay an amount in dollars equal to nine multiplied by the number of patrons who can be accommodated at one time by the seating facilities provided for bootblacking purposes, but in no event less than: $18.00.

SCHEDULE 051. CEMETERY COMPANIES.

Each person, firm or corporation where gross annual business from said business from the previous year was:

Less than $10,000.00	$100.00
$10,000.00 and less than $20,000.00	$200.00
$20,000.00 and less than $40,000.00	$400.00
$40,000.00 and less than $60,000.00	$600.00
$60,000.00 and less than $80,000.00	$800.00
$80,000.00 and less than $100,000.00	$1,000.00
Plus an amount equal to 2/10 of one percent of gross annual business in excess of $100,000.00.	

SCHEDULE 094. DRY CLEANING.

Each person, firm or corporation engaged in the business of dry cleaning (other than rug cleaning) shall pay a basic license of $50.00, plus an additional amount to be determined as follows:

For each pick-up station operated in connection with said business	$40.00
Plus, for each vehicle, whether owned or not, and operated in connection with said business	$40.00

Each vehicle used in delivering or picking up dry cleaning whether such vehicle is owned or not by the licensee, but for whom business is being done, shall carry either a placard or other designation in some conspicuous place on the outside thereof easily readable at a distance of 50 feet, showing the name of the dry cleaning plant for which they are picking up or delivering dry cleaning.

SCHEDULE 124. HAIRDRESSERS OR BEAUTY PARLORS.

Each person, firm, or corporation engaged in the business of operating a beauty parlor or other place where hairdressing, hairstyling, facial treatment, or manicuring

is done shall pay a license based upon or determined by the number of persons working as operators therein as follows: Where only one person works therein as operator, whether such person be the proprietor or not: $30.00.

Where two or more persons work therein as operators, the owner or proprietor of such beauty parlor shall pay a license of $30.00 plus $30.00 for each additional operator in excess of one.

SCHEDULE 125. HAT CLEANING.

Each person, firm or corporation engaged in the business of hat cleaning:

Where only 1 worker	$60.00
Where 2 and less than 4 workers	$120.00
Where 4 and less than 6 workers	$180.00
Where 6 and less than 10 workers	$240.00
Where 10 and less than 15 workers	$300.00
Where 15 workers and over	$360.00

The term "worker" as herein used, means only those who are actually engaged either in part or whole time, in the actual process of cleaning hats.

SCHEDULE 149. LAUNDRIES.

Each person, firm or corporation operating a laundry shall pay a basic license of $200.00 plus an additional amount to be determined as follows:

For each pick-up station operated in connection with said business: $40.00.

Plus, for each vehicle, whether owned or not, and operated in connection with said business: $40.00.

Each vehicle used in delivering or picking up laundry, or dry cleaning, whether such vehicle is owned or not by the licensee, shall carry either a placard or other designation in some conspicuous place on the outside thereof easily readable at a distance of 50 feet, showing the name of the laundry, or dry cleaning plant for which they are picking up or delivering laundry and/or dry cleaning. This license not to include rug cleaning.

SCHEDULE 207. PRESSING CLUB.

Each person, firm or corporation operating by hand or machine a pressing shop, where:

Not more than 1 machine is installed	$60.00
2 or more machines	$84.00
3 or more machines	$120.00

The pressing club license will permit dry cleaning and pressing incidental thereto, when such dry cleaning business does not constitute more than 25 percent of the total gross business of the pressing club provided, however, that the owner or operator of

said pressing club posts in the office or the place of business in a conspicuous place where it can readily be seen by the public entering therein, a placard not less than eight inches by 15 inches in size, showing thereon the name of the cleaner for whom said pressing club is agent for the dry cleaning work done or stating on said placard that said dry cleaning is performed by the owner or operator in his own place of business. In the absence of such placard being posted as above provided, a dry cleaning license as otherwise provided in this Code shall be collected from such pressing club, doing any dry cleaning.

SCHEDULE 223. SHOE REPAIRING.

(a) Where machinery is used, to pay under Repair Shop Schedule 215. Where no machinery used, each worker: $18.00.

(b) Each pick-up station accepting shoes for repair at another location shall pay a license of $40.00 in addition to all other licenses.

SCHEDULE 231. TAILORING.

Each person, firm or corporation engaged in the business of tailoring wearing apparel or acting as agent for same or soliciting orders for same, whether the tailoring is done either within or without the City of Birmingham, shall pay a license as follows: Where gross receipts from the previous year were:

Less than $5,000.00	$60.00
$5,000.00 and less than $10,000.00	$100.00
$10,000.00 and less than $15,000.00	$150.00
$15,000.00 and less than $20,000.00	$200.00
Plus an amount equal to 2/10 of one percent of gross receipts in excess of $20,000.00.	

The above license is to include the rental of wearing apparel.

SCHEDULE 243. UNDERTAKERS.

(a) Each person where the gross annual business is $100,000.00 or less: $400.00.

(b) And for each $50,000.00 or fractional part thereof in excess of $100,000.00: $120.00.

SCHEDULE 245. VENDING MACHINES AND/OR COIN-OPERATED MACHINES. NOT TO INCLUDE TABLES ON WHICH THE GAME OF POOL OR BILLIARDS MAY BE PLAYED OR COIN OPERATED FILM MACHINES.

(h) If the machine is a washer, dryer, or like machine, and is operated through the use of coin or coins, token or tokens, the license fee shall be: $10.00.

NAICS 920. NAICS TITLE—PUBLIC ADMINISTRATION.

The Public Administration sector consists of establishments of federal, state, and local government agencies that administer, oversee, and manage public programs and have executive, legislative, or judicial authority over other institutions within a given area. These agencies also set policy, create laws, adjudicate civil and criminal legal cases, provide for public safety and for national defense. In general, government establishments in the Public Administration sector oversee governmental programs and activities that are not performed by private establishments. Establishments in this sector typically are engaged in the organization and financing of the production of public goods and services, most of which are provided for free or at prices that are not economically significant.

Government establishments also engage in a wide range of productive activities covering not only public goods and services but also individual goods and services similar to those produced in sectors typically identified with private-sector establishments. In general, ownership is not a criterion for classification in NAICS. Therefore, government establishments engaged in the production of private-sector-like goods and services should be classified in the same industry as private-sector establishments engaged in similar activities.

As a practical matter, it is difficult to identify separate establishment detail for many government agencies. To the extent that separate establishment records are available, the administration of governmental programs is classified in Sector 92, Public Administration, while the operation of that same governmental program is classified elsewhere in NAICS based on the activities performed. For example, the governmental administrative authority for an airport is classified in Industry 92612, Regulation and Administration of Transportation Programs, while operating the airport is classified in Industry 48811, Airport Operations. When separate records are not available to distinguish between the administration of a governmental program and the operation of it, the establishment is classified in Sector 92, Public Administration.

SCHEDULE 325. PUBLIC ADMINISTRATION.

No license is required for governmental agencies. If it is determined that the activity under this subsector requires a license, the license amount shall be as follows:

Less than 2 persons	$60.00
2 but less than 4 persons	$120.00
4 but less than 6 persons	$180.00
6 but less than 10 persons	$240.00
10 but less than 15 persons	$300.00
15 persons	$360.00
Plus $20.00 for each person in excess of 15.	

NAICS 923. NAICS TITLE—ADMINISTRATION OF HUMAN RESOURCE PROGRAMS.

The Administration of Human Resource Programs subsector groups government establishments primarily engaged in the administration of human resource programs.

SCHEDULE 331. ADMINISTRATION OF HUMAN RESOURCE GOVERNMENT PROGRAMS.

No license is required for governmental agencies. If it is determined that the activity under this subsector requires a license, the license amount shall be:

Less than 2 persons	$60.00
2 but less than 4 persons	$120.00
4 but less than 6 persons	$180.00
6 but less than 10 persons	$240.00
10 but less than 15 persons	$300.00
15 persons	$360.00
Plus $20.00 for each person in excess of 15.	

NAICS 924. NAICS TITLE—ADMINISTRATION OF ENVIRONMENTAL QUALITY PROGRAMS.

The Administration of Environmental Quality Programs subsector groups government establishments primarily engaged in the administration of environmental quality.

This industry comprises government establishments primarily engaged in one or more of the following: (1) the administration, regulation, and enforcement of air and water resource programs; (2) the administration and regulation of solid waste management programs; (3) the administration and regulation of water and air pollution control and prevention programs; (4) the administration and regulation of flood control programs; (5) the administration and regulation of drainage development and water resource consumption programs; (6) the administration and regulation of toxic waste removal and cleanup programs; and (7) coordination of these activities at intergovernmental levels.

SCHEDULE 333. ADMINISTRATION OF ENVIRONMENTAL QUALITY PROGRAMS.

No license is required for governmental agencies. If it is determined that the activity under this subsector requires a license, the license amount shall be:

Less than 2 persons	$60.00
2 but less than 4 persons	$120.00
4 but less than 6 persons	$180.00
6 but less than 10 persons	$240.00
10 but less than 15 persons	$300.00

15 persons	$360.00
Plus $20.00 for each person in excess of 15.	

NAICS 925. NAICS TITLE—ADMINISTRATION OF HOUSING PROGRAMS, URBAN PLANNING, AND COMMUNITY DEVELOPMENT.

The Administration of Housing Programs, Urban Planning, and Community Development subsector groups government establishments primarily engaged in the administration of housing, urban planning, and community development.

SCHEDULE 327. ADMINISTRATION OF HOUSING, URBAN PLANNING AND COMMUNITY DEVELOPMENT PROGRAMS.

Each person, firm or corporation operating as an administration housing program or urban planning or community development shall pay a license computed as follows:

Less than 2 persons	$60.00
2 but less than 4 persons	$120.00
4 but less than 6 persons	$180.00
6 but less than 10 persons	$240.00
10 but less than 15 persons	$300.00
15 persons	$360.00
Plus $20.00 for each person in excess of 15.	

NAICS 926. NAICS TITLE—ADMINISTRATION, INSPECTION AND REGULATION OF ECONOMIC, TRANSPORTATION, COMMUNICATIONS PROGRAMS, AND MISCELLANEOUS COMMERCIAL SECTORS.

This subsector comprises government establishments primarily engaged in the administration of economic programs.

SCHEDULE 328. ADMINISTRATION OF COMMERCIAL SECTORS.

Any person, firm, or corporation, who shall engage in the administration, promotion and development of economic resources, general statistical data and analyses, regulation, planning, inspection and investigation of transportation services and facilities, licensing and inspection of utilities, and coordination of agricultural programs for regulating and controlling the grading and inspection of food, plants and other agricultural products or facilities situated in the City of Birmingham in connection with any business, vocation, occupation or profession which is not subject to a license under any other schedule of this Code, or under Schedule 007A of this license code shall pay for the protection afforded by the laws, ordinances, rules and regulations of the City of Birmingham and its agencies to such person, firm or corporation in connection with the maintaining, keeping in repair or otherwise

manning any such office, store, warehouse, place of business, telephone wires, telegraph wires, right-of-way, easement, land or other facility or facilities an annual license fee or tax as follows:

Where there was employed in connection with the maintaining, keeping in repair or otherwise manning any such office, store, warehouse, place of business, telephone wires, telegraph wires, right-of-way, easement, land or other facility or facilities during the next preceding calendar year in the City of Birmingham an average daily number of:

Less than 2 persons	$60.00
2 but less than 4 persons	$120.00
4 but less than 6 persons	$180.00
6 but less than 10 persons	$240.00
10 but less than 15 persons	$300.00
15 persons	$360.00
Plus $20.00 for each person in excess of 15.	

NAICS 927. NAICS TITLE—SPACE RESEARCH AND TECHNOLOGY.

This subsector group comprises government establishments that conduct space research.

SCHEDULE 329. SPACE RESEARCH AND TECHNOLOGY.

Each person, firm or corporation operating as a space research and technology establishment shall pay a license computed as follows:

Where gross annual business from said business from the previous year is:	
Less than $5,000.00	$60.00
$5,000.00 and less than $10,000.00	$100.00
$10,000.00 and less than $15,000.00	$150.00
$15,000.00 and less than $20,000.00	$200.00
Plus an amount equal to 2/10 of one percent of gross annual business in excess of $20,000.00.	

NAICS 928. NAICS TITLE—NATIONAL SECURITY AND INTERNATIONAL AFFAIRS.

This subsector comprises government establishments primarily engaged in national security and international affairs such as military, national guard, immigration services peace corps, state departments and economic cooperation and development.

SCHEDULE 330. NATIONAL SECURITY AND INTERNATIONAL AFFAIRS.

No license is required for governmental agencies. If it is determined that the activity requires a license, the license amount shall be:

Less than 2 persons	$60.00

2 but less than 4 persons	$120.00
4 but less than 6 persons	$180.00
6 but less than 10 persons	$240.00
10 but less than 15 persons	$300.00
15 persons	$360.00
Plus $20.00 for each person in excess of 15.	

NAICS 999. NAICS TITLE—UNCLASSIFIED ESTABLISHMENTS (GENERAL CATEGORY).

Unclassified miscellaneous business and personal services not elsewhere classified.

SCHEDULE 007A. AGENTS, DEALERS OR OTHER BUSINESS.

Each person, firm, or corporation who as principal, agent or in any other capacity shall engage in or transact any trade, business, commerce, occupation, vocation or profession and for whom no other license is specifically required by the Code, shall pay a license as follows:

Where gross annual business from said business from the previous year is:	
Less than $5,000.00	$60.00
$5,000.00 and less than $10,000.00	$100.00
$10,000.00 and less than $15,000.00	$150.00
$15,000.00 and less than $20,000.00	$200.00
Plus an amount equal to 2/10 of one percent of gross annual business in excess of $20,000.00.	

SCHEDULE 813. RELIGIOUS, GRANTMAKING, CIVIC, PROFESSIONAL, AND SIMILAR ORGANIZATIONS.

Each person, firm or corporation primarily engaged in the Religious, Grantmaking, Civic, Professional, and Similar Organizations subsector group establishments that organize and promote religious activities; support various causes through grantmaking; advocate various social and political causes; and promote and defend the interests of their members shall pay a license in an amount equal to $200.00.

The industry groups within the subsector are defined in terms of their activities, such as establishments that provide funding for specific causes or for a variety of charitable causes; establishments that advocate and actively promote causes and beliefs for the public good; and establishments that have an active membership structure to promote causes and represent the interests of their members.

Establishments in this subsector may publish newsletters, books, and periodicals, for distribution to their membership.
(Ord. No. 97-183, art. I, §§ 1—3, 12-23-1997; Ord. No. 98-106, § 1, 6-30-1998; Ord. No. 00-207, § 1, 12-12-2000; Ord. No. 02-173, § 1, 12-10-2002; Ord. No. 03-133, § 1, 8-26-2003; Ord. No. 07-17, § 1, 1-30-2007; Ord. No. 07-233, art. I, 12-18-2007; Ord. No.

08-241, art. I, 12-22-2008; Ord. No. 09-184, § 1, 12-31-2009; Ord. No. 10-181, § 1, 12-7-2010; Ord. No. 10-182, § 1, 12-7-2010; Ord. No. 11-1, § 1, 1-4-2011; Ord. No. 11-141, § 1, 11-15-2011; Ord. No. 14-126, § 1, 9-12-2014; Ord. No. 15-50, § 1, 4-28-2015; Ord. No. 15-51, § 1, 4-28-2015; Ord. No. 15-52, § 1, 4-28-2015; Ord. No. 15-53, § 1, 4-28-2015; Ord. No. 15-54, § 1, 4-28-2015; Ord. No. 15-55, § 1, 4-28-2015; Ord. No. 15-56, § 1, 4-28-2015; Ord. No. 15-57, § 1, 4-28-2015; Ord. No. 15-58, § 1, 4-28-2015; Ord. No. 15-59, § 1, 4-28-2015; Ord. No. 15-60, § 1, 4-28-2015; Ord. No. 15-61, § 1, 4-28-2015; Ord. No. 15-62, § 1, 4-28-2015; Ord. No. 15-122, § 1, 8-25-2015; Ord. No. 15-145, § 1, 10-13-2015; Ord. No. 15-181, § 1, 12-23-2015; Ord. No. 15-182, § 1, 12-23-2015; Ord. No. 16-2, § 1, 1-20-2016; Ord. No. 16-3, § 1, 1-20-2016; Ord. No. 16-4, § 1, 1-20-2016; Ord. No. 16-36, § 1, 3-15-2016; Ord. No. 16-199, § 1, 11-2-2016; Ord. No. 17-24, § 1, 3-7-2017)

Appendix B

STORMWATER FEES*

*__Editor's note—__This provisions of this appendix are derived from Ord. No. 97-91, adopted by the city council on July 29, 1997, and approved by the mayor on July 30, 1997. The ordinance has been set out as enacted and amended, including the numbering system, with only minor changes made for the purpose of stylistic consistency. Obvious misspellings have been corrected without notation. Editorial changes made for the purpose of clarity are included as bracketed text [ ]. As amendatory legislation is adopted, it will be incorporated into this appendix with a history note identifying the source of the amendment.

ORDINANCE NO. 97-91

AN ORDINANCE TO LEVY STORMWATER FEES ON PARCELS OF PROPERTY LOCATED WITHIN THE CORPORATE LIMITS OF THE CITY OF BIRMINGHAM

BE IT ORDAINED by the City Council of the City of Birmingham, Alabama, as follows:

1. Under the authority of Act 95-775, the City of Birmingham hereby levies upon each parcel of real property or portion thereof located in the corporate limits of the City of Birmingham a fee to be determined as follows for the purposes of funding the stormwater program and to comply with the requirements NPDES Permit ALS000001 held by the city jointly with Jefferson County and other municipalities in Jefferson County;

2. Alternatively pursuant to the police power of the City of Birmingham, the City of Birmingham hereby levies upon each parcel of real property or portion thereof located in the corporate limits of the City a fee to be determined as follows for the purposes of funding the stormwater program and to comply with the requirements of NPDES Permit ALS000001 held by the city jointly with Jefferson County and other municipalities in Jefferson County:

A. The fee is levied on properties designated by the Jefferson County Tax Assessor pursuant to Amendment No. 325 to the Constitution of Alabama, 1901, and Sec. 40-8-1, Code of Alabama, 1975, as Class I and Class II land use classifications in the amount of $15 per parcel or portion thereof located in the corporate limits of the City of Birmingham.

B. The fee is levied on the properties designated by the Jefferson County Tax Assessor pursuant to Amendment 325 to the Constitution of Alabama, 1901, and Sec. 40-8-1, Code of Alabama, 1975, as Class III land use classification in the amount of $5 per parcel or portion thereof located in the corporate limits of the City of Birmingham.

C. There will be no exemptions for this fee on any parcels located within the City of Birmingham, regardless of whether ad-valorem taxes are exempted for such parcels, except for those parcels designated by the Jefferson County Tax Assessor as schools, churches or owner-occupied residences for which homestead exemption has been allowed by the Tax Assessor and for which the over age 65 exemption has been allowed by the Tax Assessor.

BE IT FURTHER ORDAINED that the Tax Assessor and Tax Collector of Jefferson County are hereby requested to implement procedures necessary and appropriate to assess and collect this fee.

BE IT FURTHER ORDAINED that the Mayor be and is hereby authorized to take whatever actions are necessary to implement the assessment and collection of this fee as authorized by law.

It is further the intention of this Council that each section of this ordinance be separate and severable and that, should any court of competent jurisdiction finally determine that any such section(s) is/are void or voidable that the remaining sections shall continue in full force and effect.

ORDINANCE NO. 15-95

AN ORDINANCE TO AMEND ORDINANCE NO. 97-91 TO LEVY STORMWATER FEES ON PARCELS OF PROPERTY LOCATED WITHIN THE CORPORATE LIMITS OF THE CITY OF BIRMINGHAM IN ACCORDANCE WITH ALABAMA ACT NO. 2014-439

WHEREAS, Alabama Act No. 95-775, as amended by Act No. 2014-439, authorizes municipalities to promote effective and efficient compliance with federal and state laws and regulations relating to stormwater discharges; and,

WHEREAS, the City of Birmingham operates a municipal separate stormwater system (MS4) subject to regulation and permitting under the federal. Clean Water Act and the Alabama Water Pollution Control Act; and,

WHEREAS, the Council of the City of Birmingham finds that it is in the public interest to amend its stormwater fees in accordance with Act No. 2014-439 to further improve the operation of the MS4 in compliance with federal and state laws and in the interest of the health, safety and welfare of the citizens of Birmingham.

SECTION 1. BE IT ORDAINED by the City Council of the City of Birmingham, Alabama, that Ordinance No. 97-91 is hereby amended as follows:

"1. Under the authority of Alabama Act No. 95-775, as amended by Act No. 2014-439, (Chapter 89C of Title 11, Code of Alabama, 1975) the City of Birmingham hereby levies upon each parcel of real property or portion thereof located in the corporate limits of the City of Birmingham a fee to be determined as follows for the purposes of funding the stormwater program and to comply with the requirements of the National Pollutant Discharge Elimination System (NPDES) Permit ALS000001 or any subsequent permit(s) held by the City separately or in conjunction with other municipalities or Jefferson County or any other county:

"2. Alternatively, pursuant to the police power of the City of Birmingham, the City of Birmingham hereby levies upon each parcel of real property or portion thereof located in the corporate limits of the City a fee to be determined as follows for the purposes of funding the stormwater program and to comply with the requirements of NPDES Permit ALS000001 or any subsequent permit(s) held by the City separately or in conjunction with other municipalities or Jefferson County or any other county:

"A. The fee is levied on properties classified or assessed by the Jefferson County Tax Assessor (Birmingham and Bessemer Divisions) and the Shelby County Property Tax Commissioner pursuant to Sec. 217 of Article XI of the Constitution of Alabama, 1901, as amended, and Sec. 40-8-1, Code of Alabama, 1975, as Class I and Class II land use classifications in the amount of one-half of one cent ($0.005) per square foot of commercial space on or within each parcel or portion thereof located in the corporate limits of the City of Birmingham, as long as the

levied fee calculated for the commercial space is equal to or less than three thousand dollars ($3,000.00) annually per parcel and unless expressly exempted by this ordinance or Act No. 2014-439. For the purpose of this ordinance, "commercial space" is defined as the total area of all impervious surfaces (i.e., surfaces which prevent or impede the natural infiltration of rainfall) associated with and located on commercial property including but not necessarily limited to base building area plus the paved area within a parcel. The total area of commercial space may be determined through any data collection methods reasonably calculated to provide current and precise measurements of the area of impervious surface on a parcel.

"B. The fee is levied on any single family owner-occupied residential properties, historic buildings, or other sites classified or assessed by the Jefferson County Tax Assessor (Birmingham and Bessemer Divisions) and the Shelby County Property Tax Commissioner pursuant to Sec. 217 of Article XI of the Constitution of Alabama, 1901, as amended, and Sec. 40-8-1, Code of Alabama, 1975, as Class III land use classification in the amount of $10.00 per parcel or portion thereof located in the corporate limits of the City of Birmingham, unless expressly exempted by this ordinance or Act No. 2014-439.

"C. There will be no exemptions for this fee on any parcels located within the City of Birmingham, regardless of whether ad-valorem taxes are exempted for such parcels, except for:

> "i. those parcels designated by the Jefferson County Tax Assessor (Birmingham and Bessemer Divisions) and Shelby County Property Tax Commissioner as schools, churches, cemeteries or owner-occupied residences of owners who are over age 65, blind, or permanently and totally disabled;
>
> "ii. any real property classified or assessed as agricultural or forest land as reflected by the Tax Assessor's or Tax Commissioner's record;
>
> "iii. any real property not previously developed and classified or assessed as undeveloped property as reflected by the Tax Assessor's or Tax Commissioner's record;
>
> "iv. any lands and/or facilities owned and/or operated by commission non-jurisdictional electric suppliers, as defined by Sec. 37-4-140, Code of Alabama 1975, by one or more entities under the jurisdiction and supervision of the Alabama Public Service Commission, or such entities' affiliates, provided the owner of said property submits proof that such land and/or facilities are under the jurisdiction of the Alabama Public Service Commission."

SECTION 2. BE IT FURTHER ORDAINED that the Jefferson County Tax Assessor and Tax Collector (Birmingham and Bessemer Divisions) and the Shelby County Property Tax Commissioner are hereby requested to implement procedures

necessary and appropriate to assess and collect these fees. Each county collecting such fee, charge, or assessment shall receive a one percent commission on all amounts collected which shall be deposited to the county general fund.

SECTION 3. BE IT FURTHER ORDAINED that the Mayor be and is hereby authorized to take whatever actions are necessary to implement the assessment and collection of these fees as authorized by law.

SECTION 4. SEVERABILITY. The provisions of this ordinance are severable. If any part of this ordinance is determined by a court of competent jurisdiction to be invalid, unenforceable or unconstitutional, such determination shall not affect any other part of this ordinance.

SECTION 5. EFFECTIVE DATE. This ordinance shall be effective January 1, 2016 and when published as required by law.

Appendix C

SUBDIVISIONS*

Article 1. General Provisions

Sec. 1.1. Title.
Sec. 1.2. Purpose.
Sec. 1.3. Authority.
Sec. 1.4. Authority of the subdivision committee.
Sec. 1.5. Jurisdiction and applicability.
Sec. 1.6. Interpretation, conflict and severability.
Sec. 1.7. Amendments.
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Article 3. Subdivision Approval Procedure

Sec. 3.1. Pre-application requirements.
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Sec. 3.9. Minor subdivisions and amended plats.
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***Editor's note—**Printed herein are the subdivision regulations of the City of Birmingham, as amended by the Birmingham Planning Commission on October 5, 2011. Amendments to the subdivision regulations are indicated by parenthetical history notes following amended provisions. The absence of a history note indicates that the provision remains unchanged from the original. Obvious misspellings and punctuation errors have been corrected without notation. For stylistic purposes, headings and catchlines have been made uniform and the same system of capitalization, citation to state statutes, and expression of numbers in text as appears in the Code of Ordinances has been used. Additions made for clarity are indicated by brackets.

Sec. 3.12. Criteria for approval or disapproval of a subdivision.
Sec. 3.13. Suspension or invalidation of final plat.
Sec. 3.14. Vacation of recorded plat.

Article 4. Plat Requirements

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Article 5. Design Standards

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Sec. 5.9. Layout patterns.
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Article 6. Completion of Required Improvements; Bond

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Sec. 6.2. Bond and surety: amount and release.
Sec. 6.3. Time limit on the construction of infrastructure improvements.
Sec. 6.4. Maintenance bond.
Sec. 6.5. Acceptance of dedicated streets, ways and grounds.

Article 7. Waivers, Exceptions and Appeals

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Sec. 7.2. Requests for waivers and exceptions; conditions of approval.
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Article 8. Vacation of Public Rights-of-Way

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Sec. 8.2. Investigation and recommendation.
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Sec. 9.2. Applicability.
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Sec. 9.9. Amendments.

Appendix A. Bylaws of the Birmingham Planning Commission

Art. I. General provisions.
Art. II. Membership.
Art. III. Officers and other appointed positions and their duties.
Art. IV. Nomination and election of officers.
Art. V. Committees.
Art. VI. Meetings.
Art. VII. Public hearings.
Art. VIII. Amendments.

Appendix B. Rules of Procedure of the Subdivision Committee of the Birmingham Planning Commission

Sec. I. Authority.
Sec. II. Membership.
Sec. III. Officers.
Sec. IV. Applications.
Sec. V. Meetings.
Sec. VI. Quorum.
Sec. VII. Minutes.

Appendix C. Birmingham Planning Commission

Appendix D

ARTICLE 1. GENERAL PROVISIONS

Sec. 1.1. Title.

These regulations shall hereafter be known, cited and referred to as the Subdivision Regulations of the City of Birmingham, Alabama.

Sec. 1.2. Purpose.

These regulations are adopted for the following purposes:

A. To protect and provide for the public health, safety, prosperity and general welfare of the municipality.

B. To guide the future growth and orderly development of the municipality in an efficient and economic manner, in accordance with the comprehensive plan for physical development, including, but not limited to, the future land use plan, community facilities plan, capital improvements plan, major streets plan, bicycle and pedestrian plan and related plans and programs of the city.

C. To provide for adequate light, air, and privacy; to secure safety from fire, accidents, flood, and other threats to life and property; and to prevent overcrowding of the land and undue congestion of population.

D. To protect and conserve the value of land, buildings and improvements, neighborhood amenities and the natural environment in all parts of the municipality; and to minimize conflicts among varied uses of land, buildings and the transportation network.

E. To provide the most beneficial and harmonious relationship between the uses of land and buildings and circulation of traffic throughout the municipality, in particular avoiding congestion on the streets, and providing safe bikeways and pedestrian routes appropriate to the surrounding building densities and land use patterns.

F. To promote the most suitable layout and use of land, according to its capacity for development, and susceptibility to erosion, subsidence or environmental risks; to protect life and property from injury or damage caused by flooding, unstable slopes, and other natural and man-made hazards; to preserve beneficial open space and greenways, and the natural character of the land.

G. To establish reasonable standards of design and procedures for subdivisions; to ensure that suitable roadways, pathways and utilities are constructed in an efficient manner, so as to minimize costs of public servicing and maintenance; and to ensure proper legal descriptions and monumenting of subdivided land.

H. To ensure that public services, such as police, fire protection, and facilities, including schools and parks, as well as water, sewers, varied utilities and related infrastructure are available within a timely period, and will have sufficient capacity to serve the proposed subdivision.

I. To provide for safe and effective traffic circulation, with interconnected streets, as well as appropriate accessibility for the surrounding neighborhoods.

J. To prevent the pollution of air, streams, and ponds; to ensure the adequacy of drainage facilities; to safeguard groundwater and water tables; and to encourage the wise use and management of natural resources throughout the municipality in order to preserve the integrity, stability, and special character of each community.

K. To preserve the natural beauty and distinctive topography of the municipality and to ensure the most appropriate and compatible development with regard to these features.

L. To provide for open spaces through the most efficient design and layout of the land, including the use of average density in providing for minimum width and area of lots, while preserving the density of development as established in the zoning ordinance.

M. To remedy problems associated with partial, incomplete or inappropriately subdivided lands, including isolated, inaccessible or substandard lots, rights-of-way, or lacking site or public improvements, particularly affecting property originally sold or subdivided prior to the effective date of these regulations.

Sec. 1.3. Authority.

Under the provisions of title 11, chapter 52 of the Code of Alabama 1975, as amended, which provisions are hereby made a part hereof, these regulations governing the subdivisions of land are hereby amended by the Birmingham Planning Commission, on October 5, 2011, which shall be published as an ordinance, and shall be certified to the probate judge of Jefferson County, and the probate judge of Shelby County, Alabama, and to the clerk of the City of Birmingham.

Sec. 1.4. Authority of the subdivision committee.

In all matters properly and legally before it relating to subdivision regulations, the subdivision committee shall have all the powers, duties and restrictions imposed or conferred by law and these regulations on the planning commission and the words "subdivision committee" shall be understood wherever the words "planning commission" shall appear in these regulations, except where issues may be appealed or referred for initial decision to the full planning commission.

Sec. 1.5. Jurisdiction and applicability.

A. Upon adoption and publication as required by law, these updated regulations shall govern every subdivision of land made within the corporate limits of the City of Birmingham, Alabama, as now or hereafter established. This amends and supplements the original Subdivision Regulations, City of Birmingham, Alabama, enacted on January 1, 1956, and amended in June 1962, and as further amended, which are hereby repealed and replaced on the effective date of adoption of these regulations.

B. Any owner of land within the limits of said subdivision jurisdiction wishing to subdivide land shall submit to the subdivision committee a plat of the subdivision which shall conform at least to the minimum requirements set forth in these regulations. No plat of a subdivision lying within such territory, or part thereof, shall be filed or recorded in the office of the probate judge of Jefferson County or of Shelby County, depending on location of the property, and no subdivider shall proceed with improvements of lots in a subdivision, until such plat has been approved by the subdivision committee.

C. In accordance with title 35, chapter 2, section 52 of the Code of Alabama 1975, as amended, it shall be the duty of the probate judge in every county to decline to receive for record in his office any map or plat of lands, in any city having more than 10,000 inhabitants, which include mapped streets, alleys or public ways unless said plat shall have noted thereon the approval of the governing body and the city engineer.

Sec. 1.6. Interpretation, conflict and severability.

A. The provisions of these regulations shall be held to be the minimum requirements for the promotion of public health, safety and general welfare, and shall be construed broadly in support of the purposes for which they are adopted. More stringent provisions may be applied where it is demonstrated that different circumstances require higher standards to achieve such protections.

B. Where there may be any conflict among the provisions herein, or where any provision of these regulations may impose different restrictions from those of any other applicable provision of law, the more restrictive provision, imposing higher standards, shall govern.

C. Should any section or provision of these regulations be for any reason held void or invalid, it shall not affect the validity of any other section or provision hereof which is not itself void or invalid.

Sec. 1.7. Amendments.

The planning commission may from time to time adopt amendments that will tend to increase the effectiveness of these regulations or expedite the approval of subdivi-

sion plats. These regulations and amendments thereto may be changed or amended by the planning commission after a public hearing by giving due notice as required by law.

Sec. 1.8. Enforcement, violations and penalties.

A. It shall be the duty of the city engineer to oversee the design and construction of all public facilities, utilities and site improvements, and the director to administer all platting requirements; each to enforce all requirements under their jurisdiction, and to refer any violations of these regulations to the city attorney for further legal disposition, if necessary.

B. In accordance with title 11, chapter 52, section 33 [of the] Code of Alabama [1975], as amended, the City of Birmingham may take legal action against any owner or agent of the owner of any land within this jurisdiction that agrees to transfer or sell any part of the parcel, whether by reference to a proposed subdivision or a metes and bounds description, before and until a final plat of the subdivision has been approved by the subdivision committee and recorded in the probate court of the county in which the property is located.

C. No permit shall be issued for the construction of any building, structure, public improvement or site preparation located on a lot or plat subdivided or sold in violation of these regulations, nor shall the municipality have any obligation to issue certificates of occupancy or to extend utility services for such illegal properties.

D. Any owner or agent thereof found in violation of these regulations may be punished by a fine of up to $500.00 or by imprisonment in the city jail for up to 180 days, or both, for each lot transferred, in accord with the City of Birmingham General City Code 1-1-6. Each day of violation constitutes a separate offense.

E. In addition, civil enforcement proceedings may be taken in law or in equity to prevent any violation or unlawful construction, to recover damages, to restrain, correct or abate a violation, and to prevent illegal occupancy or use of a building, structure or premises involved.

ARTICLE 2. DEFINITIONS

Sec. 2.1. Usage.

A. For the purpose of these regulations, certain words, terms and phrases shall be used, interpreted and defined as set forth in these regulations. Definitions not expressly prescribed herein are to be construed in accordance with customary usage in municipal planning, zoning and engineering practice.

B. Unless the context clearly indicates to the contrary, words used in the present tense include the future tense; words used in the plural number include the singular; "shall" and "will" are always mandatory and "may" is permissive.

Sec. 2.2. Words and terms defined.

AASHTO. American Association of State Highway and Transportation Officials.

ADA. Americans with Disabilities Act.

Adjacent property owner. Owner, as listed in the county tax assessor's office, of property which touches the subject property at any point, or if their boundaries would meet in the absence of intervening right-of-way.

Alley. A public right-of-way providing secondary access to the back or side of a premises, that has primary frontage on a street.

Applicant. The owner of land proposed to be subdivided, or the owners' authorized agent or representative. Written consent is required from all owners of the premises.

Architect. A registered professional architect in good standing with the Alabama Board for Registration of Architects, and licensed to do business in the City of Birmingham.

Bicycle plan. Approved routes, on-road and off-road, designated for bicycle facilities such as bicycle lanes, shared vehicular lanes, and separate paths, which are linked into a safe and convenient, interconnected bicycle mode of transportation. Such facilities may include but are not limited to signs, pavement markings and bicycle actuated traffic signals.

Block. A tract of land bounded by public streets, private roads, railroads, utility rights-of-way or other legal or physical barriers.

Building. Any structure having a roof supported by columns, enclosed by walls, designed for the support, shelter or protection of, or occupancy by, persons, animals, chattels, movable property or equipment, or for varied uses or activities.

Building setback. The line within a property which defines a minimum (and maximum when applicable) horizontal distance to be provided between a building and the adjacent property line.

City. The City of Birmingham, Alabama, a municipal corporation.

City agency. Any office under the mayor, city council, administrative departments, authorities, boards, commissions or courts of the City of Birmingham, Alabama.

City clerk. The duly designated clerk of the City of Birmingham, Alabama.

City council. The chief legislative body of the City of Birmingham, Alabama.

City engineer. The duly appointed city engineer for the City of Birmingham, Alabama, or in the absence of the city engineer, a designee, appointed by the director of planning, engineering and permits or the mayor. The city engineer, or appointed

designee, shall be a city employee and a licensed professional engineer, qualified in civil engineering, and in good standing with the Alabama State Board of Licensure for Professional Engineers and Land Surveyors.

Cluster design. Development allowing concentrated construction in more suitable locations in order to preserve usable open space and recreational amenities on a property, through reductions in street lengths and lot sizes, but entailing no increase in average density overall.

Commercial and industrial service streets. Any street that has a primary purpose of providing access to either commercial or industrial development.

Common areas. All portions of real estate that are designated for joint use or undivided ownership in perpetuity, which are subject to covenants and restrictions under the control of a private trust, a non-profit group, board, or owners association, of separate lands, lots or units within a subdivision.

Common elements. A part or parts of the condominium property as set forth in the declaration in which all of the unit owners have an undivided interest.

Common ownership subdivision. A subdivision of land containing property held in common ownership by a property owners association, that may include privately maintained access.

Complete streets. A set of design principles that accommodates all users (motorists, pedestrians, bicyclists and transit riders) when designing streets.

Comprehensive plan. The official comprehensive plan for the physical development of the City of Birmingham, adopted by the Birmingham Planning Commission, as authorized by title 11, chapter 52 of the Code of Alabama 1975, as amended. Based on a comprehensive survey of present conditions and future needs for harmonious and economical growth, it includes various geographic and functional elements, and implementation programs, such as the zoning ordinance, subdivision regulations, major street plan, public facilities plan and land use plan, as well as housing plans, urban renewal plans, economic development plans and the capital improvements program.

Condominium. The form of ownership of real or personal property or a combination thereof under a declaration providing for ownership of units of the property by one or more owners. Such units may consist of private elements together with an undivided interest in common and limited common elements.

Conservation easement. A legal interest in real property imposing limitations or affirmative obligations on owners, their heirs, assigns and successors, protecting natural, scenic or environmental values, and assuring availability for agricultural, silvicultural, recreational or open space uses, protecting or enhancing resources, habitat, air and water quality, or preserving historical, architectural, archeological or cultural aspects of the land.

Cul-de-sac. A short local street with only one outlet open for traffic, and having a circular or other appropriate terminal area on the closed end for the convenient reversal of vehicular traffic. The length is measured from the center of its turnaround to the point where its centerline crosses the centerline of the nearest intersecting multiple outlet or non-dead-ended street.

Developer. The owner of land proposed to be subdivided or developed or his/her authorized representative. Persons acting on behalf of land owners shall provide written authorization from all land owners to act on his/her behalf.

Detention facility. A structure designed to capture and store excess stormwater temporarily, and which will drain completely at a predetermined rate.

Director. The director of the Planning, Engineering and Permits Department of the City of Birmingham, or his designee, who acts as the secretary for the Birmingham Planning Commission, and maintains all official records for the commission and its committees.

Easement. A right given by the property owner for another person or entity to use a designated portion of property, described by metes and bounds or a plat, only for specific purposes, to run with the land, as recorded in probate court.

Engineer. A licensed professional engineer, qualified in civil engineering, in good standing with the Alabama State Board of Licensure for Professional Engineers and Land Surveyors, and licensed to do business in the City of Birmingham.

Exceptional circumstances. Federal Highway Administration requirements for "due consideration" of bicycle and pedestrian facilities cannot be exempted unless there are exceptional circumstances:

1) Roadway use prohibits bicyclists and pedestrians;

2) Cost of bicycle or pedestrian facilities would be excessively disproportionate to the need or probable use; or

3) Sparse population or other factors indicate an absence of existing or future needs.

Exceptions. Proposals of alternative means of meeting the intent of specific subsections pertaining to design standards in article 5 and related engineering requirements of these regulations, which may be considered by the subdivision committee in accord with article 7 herein.

Excessively disproportionate. Bicycle or pedestrian mode cost exceeding 20 percent of the cost of the large transportation project.

FEMA. The Federal Emergency Management Agency.

Final plat. A subdivision plat proposing to create new lots from a tract of land, parcels, or other lots, meeting the requirements of these regulations, to be considered for approval by the subdivision committee, and in form for recording in the office of the probate judge of the county where the property is located.

Grade. The slope of a road, street or other public way expressed in percentage terms, measured as the vertical change divided by the horizontal distance. The average level of the finished ground surface adjacent to the exterior wall of a building (for zoning purposes).

Grading. Any act by which earth, sand, rock or similar material is cleared, stripped, stockpiled, excavated, scarified, quarried, removed or used as fill, or any combination thereof.

Impervious man-made surface. A hard surface which causes water to run off more rapidly or in greater quantities than under natural conditions, before development occurred.

Intersection boundary line. The line used to measure distance between an intersection and either commercial or residential driveways is a clearly marked stop or yield line. If none exist, then the near side of the crosswalk is the intersection boundary line. If neither of those do not exist, then the edge of pavement is the intersection boundary line.

Landslide. The downward movement of earth, rock or artificial material on a slope, whether by slow soil creep or sudden avalanche.

Lot. A plot, unit, or other portion of land in a subdivision or plat of land, having its principal frontage on a street, separated from other such portions by description on a record of survey map, for the purpose of ownership, sale, occupancy, use, construction or development, separate from other lands.

Lot of record. A lot in a subdivision that has been recorded in the office of the probate judge in the county where it is located prior to the adoption of subdivision regulations. If a portion of a lot or parcel has been conveyed prior to adoption of subdivision regulations, the remaining portion of such lot shall also be considered a lot of record.

Maintenance bond. Financial security filed by the applicant with the city to assure the structural integrity of all required improvements and their proper functioning for an initial period of time.

Major street plan. The official major street plan of the City of Birmingham adopted, amended and recorded in accordance with the provisions of title 11, chapter 52 of the Code of Alabama 1975, as amended.

Major subdivision. Any subdivision determined to be of a complex nature by the city engineer or director that would require preliminary plan approval.

Master plan. The official comprehensive plan for the City of Birmingham, Alabama.

Minor subdivision. A small subdivision that is of such small size or contains so few lots as to present no engineering or planning problems, involving no road, sewer, utility or similar public improvements, but maintaining a density and lot sizes compatible with the surrounding vicinity.

Nonconforming lot. A lot or parcel which does not conform to current zoning or subdivision regulations.

Not-for-profit organization. A group organized for nonprofit purposes, where no part of income or profit is distributable to its members, directors and officers, in conformity with all provisions of the Alabama Nonprofit Corporation Act, title 10, chapter 3A, of the Code of Alabama 1975, as amended, or the Alabama Unincorporated Nonprofit Association Act, title 10, chapter 3B, of the Code of Alabama 1975, as amended.

Open space. Land not covered by man-made impermeable surfaces, parking or buildings, other than recreational structures, pools, or stormwater facilities, which may be landscaped or preserved in a natural state for private use of owners or guests, or for public access as may be required by the provisions of these regulations or the zoning ordinance.

Parcel of land. An ownership of real property identified by a county tax assessor for the purpose of collecting ad valorem taxes.

Permeable surface. A land area of porous natural or prepared material which allows a high percentage of stormwater absorption.

Planning commission. The Birmingham Planning Commission, a legal agency of the city, authorized to approve the city comprehensive plan, major street plan, recommend comprehensive zoning plan and amendments, to adopt subdivision regulations and approve subdivisions proposals, in accord with state enabling legislation.

Preliminary plan. A tentative plan of a proposed subdivision, indicating the layout of lots, access and any public improvements, designed for presentation to the subdivision committee for its consideration.

Probate judge. The judge of probate for a county court in Alabama, where property maps and legal transactions are recorded.

Public access development. A cluster subdivision which makes usable open space available for public use in exchange for proportionate increases in development density in a zoning district approved by the governing body.

Reservation. A lot, tract of land, or an easement held for future acquisition by a public agency, or by a nonprofit organization acting in the public interest, normally for a stated period of time.

Retention facility. A structure designed to capture and store excess stormwater runoff for an indefinite amount of time.

Right-of-way. A strip of land, air space, or subsurface area, separate from any private lots or separate ownership, occupied or intended to be used as a street, transit line, pedestrian walkway or bikeway, railroad, accessway, alley, watercourse, drainageway or other public use or utilities, accepted and maintained by the governing body, agency, authority or other entity having jurisdiction or owning such rights.

Roadway. That paved portion of a street right-of-way or roadway easement situated between the regularly established curb lines, or that part of the street or alley devoted to vehicular traffic.

Roundabout. A design to channel approximately equal volumes of cross traffic at an intersection into a counter clockwise direction around a central island, so that each vehicle must yield before entering, and only exits by turning to the right.

Sidewalk area. That portion of a street or other right-of-way not included in the roadway, and devoted in whole or in part to pedestrian traffic.

Street. A public right-of-way for movement of motor vehicles, pedestrians or non-motorized traffic, whether identified as a street, highway, thoroughfare, parkway, throughway, road, avenue, boulevard, lane, place, or however designated.

Street classifications:

Limited access highway. A freeway or expressway providing a trafficway for the highest volume, high-speed through traffic, to which owners or occupants of abutting property or lands, and the general public, or other persons, have no legal right of access into or from, except at such points and in such manner as may be allowed by the public authority having jurisdiction over such trafficway.

Major arterial. A street or highway of great continuity designed to accommodate high traffic volumes and longer trip desires. Serving abutting land uses is subordinate to provisions for heavy traffic movements. Major arterials carry substantial portions of vehicular trips entering, leaving, or bypassing the urban area.

Minor arterial. A street or highway of considerable continuity interconnecting with and augmenting the principle arterial system, providing service to medium length trips at a moderate level of mobility. These systems place more emphasis on land access, and distribute traffic to smaller geographic levels than higher capacity streets.

Collector. A street with moderate continuity that channels traffic between arterials, and from other collector streets to the arterial system. Such a street may support commercial establishments and community centers along its route and may carry relatively high traffic volumes, connecting neighborhoods and communities into the larger urban street network.

Local. A street not classified in a higher thoroughfare system, primarily providing right-of-way for public use, including vehicular and pedestrian access, and utilities serving abutting land, within a neighborhood. Such street offers the lowest level of mobility; with service to cut-through traffic and excessive speeds deliberately discouraged.

Stub-out. A short street extension in a subdivision that provides access to undeveloped adjacent land. It shall be aligned to connect with the surrounding layout and, where adjacent tracts are vacant, with the most advantageous location for future development.

Subdivider. Any individual, firm, association, syndicate, co-partnership, corporation, trust or any other legal entity commencing proceedings under these regulations to effect a subdivision of land, acting as owner thereof, or as authorized agent of all such owners.

Subdivision. The division of a lot, tract of land or parcel into lots, plats, units, sites or other divisions of land for the purpose, whether immediate or future, of sale, building development or other separate use.

Subdivision bond. Financial security filed by the applicant with the city to assure the acceptable completion of all required improvements by a specified time.

Subdivision committee. A committee composed of five members of the planning commission authorized to hear and decide upon applications for subdivision of land, and to advise the chief legislative body of the city on vacation of public land and new right-of-way dedications, all such actions to be taken on behalf of the planning commission.

Surety. A legally binding agreement with the city, by which a developer assures the construction of all improvements as required by these regulations.

Surveyor. A licensed professional land surveyor, qualified in land surveying, in good standing with the Alabama State Board of Licensure for Professional Engineers and Land Surveyors, and licensed to do business in the City of Birmingham.

Swale. A constructed watercourse graded in earth materials with vegetation or pervious pavers.

Tract. Acreage which has never been subdivided before.

Traffic engineer. The duly appointed traffic engineer for the City of Birmingham, Alabama, or in the absence of the traffic engineer, a designee, who is appointed by the mayor. The traffic engineer or appointed designee shall be a city employee and a licensed professional engineer, qualified in civil engineering, and in good standing with the Alabama State Board of Licensure for Professional Engineers and Land Surveyors.

Unit. The private elements of the condominium property together with the undivided interest in the common elements and limited common elements which are assigned thereto in the declaration or any amendment thereof.

Waivers. A waiver allows an applicant to forego compliance with a provision of these regulations, as outlined in article 7 herein.

Zoning ordinance. The zoning ordinance of the City of Birmingham, Alabama. (Amd. of 3-6-2013)

ARTICLE 3. SUBDIVISION APPROVAL PROCEDURE

Sec. 3.1. Pre-application requirements.

Prior to preparing the layout for a subdivision, the property owner or authorized agent should discuss with the staff of the director, or designated representative, the procedure and requirements for adoption of a subdivision plat, any potential vacation or dedication of rights-of-way, needed improvements, and the general layout of streets, blocks, lots or common areas, reservation of land, easements or covenants, drainage, sewerage, fire protection, and any special topographic or physical characteristics, flood areas and other related issues, as well as availability of existing public facilities and services, including distance to schools and parks. A general concept plan should be prepared for administrative review and evaluation.

This will enable staff of the director to expedite plat classification and routing by producing the following outcomes: 1) identify any potential deficiencies in the plat, 2) determine if the subdivision constitutes a major subdivision that would require preliminary plan approval, 3) determine if the subdivision should be presented to the Superintendent of Birmingham Schools and the director of the park and recreation board for the City of Birmingham, and 4) prepare staff to discuss alternative designs and optional procedures which could be available under certain situations, and advise the applicant to discuss the proposed subdivision with other officials and agencies which must eventually approve those aspects coming within their purview, such as building and fire codes, zoning, traffic, access, grading, drainage, utilities and other public facilities, services and site requirements.

Sec. 3.2. Application for review.

To obtain a hearing on a proposed subdivision, the subdivider shall submit all the following items to the staff of the director at least 14 days prior to a regular scheduled meeting of the subdivision committee:

A. Five copies of the preliminary plan or final plat, conforming to all provisions of articles 4 and 5 below;

B. Five copies of a vicinity sketch, indicating nearby properties and the surrounding street pattern;

C. List of owners of property adjoining the proposed subdivision, with names and addresses as shown in the county tax assessor's office;

D. Site plan for any proposed new development, and as-built surveyor's certificate for any existing structures to remain;

E. Signed and completed application, and, if necessary, copy of a contract signed by the owner authorizing applicant to act on his behalf;

F. Written petition, in accord with article 7, if any waiver, or exception from these regulations is to be requested;

G. Application fee; and

H. Any other supporting information or relevant documents deemed necessary by the staff of the director.

After preliminary review of the materials submitted and consultation with the city engineer, if the director finds that the proposed subdivision requires coordination with the location and construction of new public facilities such as schools and parks, or may conflict with or raise questions about the need for updating or revising any portions of the major street plan, future land use plan, community facilities plan or other elements of the city's comprehensive plan for future development, the initial hearing on the preliminary plan may be referred to the full planning commission.

The director shall refuse to place any requested item on the agenda of the subdivision committee or the planning commission until and unless all information and material has been presented by the established deadline to verify compliance with all provisions of these regulations (or requests for specific waivers or exceptions) and the Birmingham Zoning Ordinance.

Sec. 3.3. Preliminary fees and notice.

To defray the cost of filing said subdivision, notifying interested parties, investigation of, and holding a hearing upon the proposal, the City of Birmingham will require the following fees to be paid by the subdivider at the time of filing the application for approval of the preliminary plan:

A. $5.00 per lot;

B. $10.00 per acre or portion thereof;

C. Cost of certified mail notice to adjacent property owners; and

D. $100.00 per subdivision plat.

Notice by certified mail to the subdivider and adjacent property owners, advising of the time and place of said hearing shall be mailed not less than seven days before the scheduled public hearing.

Sec. 3.4. Preliminary plan approval.

The subdivision committee may view the premises, and shall hear all information and comments by the applicant, public officials and the general public at the regularly scheduled hearing of the subdivision committee. Unless the subdivider agrees to, and requests in writing, an extension of time for a specified period, the subdivision committee shall take action to approve, approve conditionally, or disapprove such preliminary plan within 30 days of the plan being submitted to the subdivision committee (the date of submission being the date that the application is first presented to the subdivision committee). If approved conditionally, the conditions and reasons therefor shall be stated, and if necessary the subdivision committee may require the subdivider to submit a revised preliminary plan. If any waivers or exceptions to these regulations are granted, the reasons for such shall be specified.

If the subdivision committee disapproves the preliminary plan, the reasons for such action shall be stated and, if possible, recommendations made on the basis of which the proposed subdivision might be approved. Requests with insufficient information to verify compliance with any provision of these regulations constitutes grounds for disapproval. Where the applicant requests any waiver or exception, or if there is any question of compliance, particularly concerning the purposes outlined in section 1, and the criteria for approval in section 3.11, a development plan may be required to resolve the issues. One copy of the preliminary plan as acted upon by the subdivision committee shall be retained in its office, one copy forwarded to the city engineer, and one copy returned to the subdivider.

Sec. 3.5. Effect of preliminary plan approval.

Receipt of the subdivision committee's resolution of approval, and an approved copy of the preliminary plan by the subdivider is authorization, subject to the issuance of proper permits, to proceed with the construction of any improvements under the direction and supervision of the city engineer or his designee, and with the staking of streets and lots in preparation for the final plat.

However, such approval shall not constitute acceptance of the "plat" of the proposed subdivision, but establishes the approved preliminary plan as the guide for preparation of the final plat, which can only be submitted subsequently for final approval after satisfaction of all conditions of the preliminary plan approval.

Sec. 3.6. Engineering requirements.

A. The subdivider shall furnish the city engineer all plans and information necessary for engineering consideration and approval for the construction of the proposed improvements. Such plans and information shall be furnished separately and apart from the preliminary plan and vicinity sketch, and shall be certified by a licensed professional engineer.

B. Before starting construction, necessary arrangements must be made between the subdivider and the city engineer for adequate testing, construction inspection and required fees, to ensure that the improvements shall comply with the standard specifications of the City of Birmingham.

Sec. 3.7. Final plat filing and fees.

In no event shall the preliminary plan be considered as a submission of a plat for approval or disapproval as specified in title 11, chapter 52, section 32 of the Code of Alabama 1975, as amended; only the date of initial subdivision committee or planning commission hearing on the final plat, or a later continued hearing date requested by the applicant, shall constitute the official date of submittal.

A. The subdivider shall file the final plat and five copies thereof, which copies shall be distributed as in section 3.2 of this article by the staff of the director of the department of planning, engineering and permits at least 14 days prior to the date of the next regular scheduled meeting of the subdivision committee.

B. All proposed final plats shall have been signed and executed by all owners and necessary attesters before being recorded.

C. In completion of the application for final plat approval, the subdivider shall pay additional fees to defray the expense of investigation and hearing, as follows:

1. $5.00 per lot;
2. $10.00 per acre or portion thereof;
3. Cost of certified mail notice to adjacent property owners;
4. $100.00 per subdivision plat;
5. $100.00 per request for right-of-way vacation;
6. Actual cost of recording; and
7. $100.00 for each condominium project or common ownership subdivision.

D. Notice of hearing shall be carried out in the same manner as required in section 3.3.

Sec. 3.8. Approval of final plat and recording.

A. Approval or disapproval of the final plat shall take place in accord with the procedures of section 3.4, within 30 days after the date of submittal to the subdivision committee, unless the subdivider agrees in writing to an extension of that time. If the final plat is disapproved, the grounds for refusal shall be stated in the records of the subdivision committee. The action of the subdivision committee or planning commission shall be shown on the final plat with the date of action shown over the signature of the director or his designee.

B. Only upon satisfaction of all requirements and any conditions of approval, shall the city, acting as agent for the owner, file the final plat for record in the office of the probate judge of the county where the subdivision lies.

C. Five copies shall be made showing the map book and page numbers where the final plat is recorded; two copies shall be sent to and filed by the engineering division of the department of planning engineering and permits, one copy to the department of public works, if necessary, and one copy shall be retained in the office of the staff of the director, where copies will be available for other agencies concerned. Said final plat shall then be returned to the subdivider.

Sec. 3.9. Minor subdivisions and amended plats.

A. Where the director and city engineer find that a proposed subdivision is of such small size or contains so few lots as to present no engineering problems or planning issues, filing of a preliminary plan may be waived by the director and city engineer, and an acceptable final plat can be submitted for hearing in accord with section 3.7 above. This procedure only applies to minor subdivisions which:

1. Require no construction of any road, storm sewer, utility or similar public facilities or site improvements; and
2. Maintains compatible lot sizes or density in relation to similarly situated properties in the surrounding vicinity.

B. Where an amendment of a recorded plat is proposed solely to correct omissions or errors in descriptions, dimensions or notations, and all owners of lots in the affected subdivision submit a written request or authorization for such application, the director and the city engineer, after finding that the amendment will not affect any public improvements, covenants or restrictions, nor have a material adverse effect on property rights of other owners of adjoining properties, may approve an amended final plat for immediate recording. The amending plat shall be clearly marked and annotated as follows:

Amending plat of *(Name of Plat)*. This plat amends the plat previously recorded in the plat and deed records of *(Name)* County, Map Book *(Page)*.

This plat includes amendments approved on *(Date)* by the Secretary of the Birmingham Planning Commission: *(Signature)*.

No notice or hearing is required for such amendment.

Sec. 3.10. Common ownership subdivision.

Some subdivisions may create special common areas for the benefit of all owners, either to satisfy governmental requirements for health and safety, to protect fragile lands from erosion, contamination or landslides, preserve forests and critical habitat, or to allow voluntary sharing of civic and cooperative purposes, including but not

limited to activities such as: private parks, gardens and recreational facilities, environmental protection, valuable amenities, flood prevention (including detention or retention ponds), access to lakes or other water features, sewage treatment plants or lagoons, garages, parking lots or decks, storage or warehouses, identification and beautification, plazas, fountains, historic or aesthetic monuments privacy buffers or screening, local traffic control, safety or security concerns, pedestrian walks, bikeways, equestrian paths or trails, nature conservation, landmarks or historic preservation, buildings with a party wall on the property line between separate lots, and other residential or nonresidential uses, structures and improvements.

A. Application for final plat hearings on a common ownership subdivision shall be filed with the staff of the director according to procedures in article 3 of these regulations. Plats and any public improvements shall comply with articles 4 through 6, and identify any common areas on the plat to be owned by all property owners of the subdivision, as well as all other areas or improvements to be shared by all property owners. Further documentation shall include:

1. Property owners association. Common ownership subdivisions require relevant deed restrictions and protective covenants to assure the continuing usefulness, maintenance, operation and financing of the commonly held property by an incorporated, unincorporated or nonprofit property owners association composed of all owners of lots in the subdivision.

2. The property owners association for each common ownership subdivision shall administer the terms of the covenants, and manage all aspects of the common property, including the following powers and duties:

   a). Election of a board of directors with contractual authority;

   b). As owner of common property, responsible for construction, maintenance and operation of improvements and facilities on common lots, including any private roads, ways, parks, accessory uses, utilities and easements;

   c). Designation of uses allowed and prohibited activities;

   d). Annual budget planning, with an adequate maintenance reserve fund, and legal authority for enforcement; and

   e). Voting procedures to amend articles, bylaws, and alter, add or dispose of common property, change its purposes and site improvements, or to terminate the common ownership community or the property owners association, as may be approved by the subdivision committee, consistent with these regulations.

3. In addition to all other requirements of these subdivision regulations, the uses and all improvements on common lots shall be subject to subdivision committee approval of a site development plan. Applicant must submit three copies of a detailed site development plan to scale, fully dimensioned that includes the following: all structures, all lots, all common areas, all

easements, principal uses, roads, all traffic control devices, sidewalks, lighting, parking spaces, service areas, trash receptacles, curbs, drainage, and signs; indicating relations among buildings, structures, utilities, site improvements and open spaces.

4. The final plat, and all deed conveyances, shall reference the recorded covenants affecting any common areas. The articles of incorporation and bylaws of the particular property owners association shall be reviewed in conjunction with approval of the final plat, and those court recorded citations shall be referenced on the plat of such subdivision prior to its recording.

B. Application, fees, notice and hearing. No application shall be accepted that does not conform to all zoning requirements. The subdivider shall pay an additional fee of $100.00 for the filing of each common ownership subdivision final plat application, as noted along with the normal subdivision fees listed in section 3.7; such charges to be paid upon submission of an acceptable application. The subdivision committee shall hold a public hearing on the subdivision proposal, following the same notice and procedures as established in article 3 of these regulations.

C. Private road subdivisions. A waiver of dedication of public street rights-of-way may be requested for proposed lots in a new subdivision or resubdivision of land. The subdivision committee may consider approval of lots having frontage on private roads only as a common ownership subdivision according to this article, through conveyance of the common area of all new private road areas to the property owners association. Approval will be subject to compliance with all standards of design and construction of the required improvements as set forth in articles 5, and 6, and any exceptions recommended in accord with article 7, plus any pertinent conditions necessary for compatibility with the surrounding area, taking into account provisions for health and safety, efficient and economical arrangement of streets and development, including the following circumstances:

1. Where the subdivision may be isolated by unusual terrain and physical barriers, but can be connected safely and conveniently into the existing public street system;

2. Where no future major highway, collector or local street will be needed for access by the general public, or for public street, sewer and utility connections into adjoining properties; and

3. Where it will not obstruct convenient and timely connections for traffic circulation, and access to the public street system, or impede access to schools, other public facilities and services in the surrounding vicinity, particularly for emergency responders.

The property owners association shall have the right to erect and operate guardhouses and gates as security check points on the common area at the entrances to public streets, if an adequate turnaround is provided through a general access easement within the subdivision. Any gate control shall provide an override system in case of power failure, with master key or gate code for the use of all emergency services, utilities, school district and law enforcement personnel.

D. Private road responsibilities. Private roads, alleys, other access ways, utilities and drainage improvements shall be constructed by the developer on the common area or private easements in the subdivision. An acceptable private road and sewer maintenance agreement shall be recorded, binding all current owners, their successors and assigns to full legal responsibility for all maintenance, repair and upkeep of any improvements in any common areas, private roads, utilities, drainage and other easements in the subdivision. The current owners of the affected property shall also record a covenant binding all subsequent owners in the subdivision to release, indemnify, defend and hold harmless the city, its officers, agents and employees, and also any other governmental entity, public or private utility, for any damages or injuries which may be occasioned by reasonable use or from conditions of the private road.

1. A general easement covering the area of all private roads and ways shall be granted to the city and utility providers for the unrestricted ingress/egress, use and maintenance of utilities and drainage systems. Water and sewer facilities may require specific rights-of-way. The easement shall also provide the city and other public agencies the right of access for any purposes related to exercise of a governmental service or function, or emergency response, including but not limited to fire and police protection, inspections and code enforcement and may include trash pickup.

2. The final plat and all property deeds shall clearly state that the "MAINTENANCE OF STREETS AND DRAINAGE IS A PRIVATE RESPONSIBILITY, AND PUBLIC MAINTENANCE IS PROHIBITED;" and that the city shall not accept said improvements for maintenance at a later date unless the property owners association provides documentation to the city engineer and traffic engineer that said improvements comply with the design standards of the subdivision regulations, and are in good physical condition, with no need for repairs, and provided further that said improvements shall be accepted by the city only upon a favorable recommendation by the city engineer and traffic engineer.

3. The developer, owners and association will also be responsible for installation and maintenance of traffic signals, directional markers, street signs

and lighting, as required by the city engineer and traffic engineer; however, no governmental, emergency, public service or utility vehicle, or personnel, shall be denied access at any time.

E. Construction of private roads and other improvements. In supplement to the regular procedures set forth in articles 3, 5 and 6, and any potential waiver or exception requests in conformity with article 7 herein, no private road subdivision can be recorded until all conditions of the subdivision committee's final plat approval have been met, including documentation filed with the city engineer, by a licensed civil engineer, verifying on-site inspection and certification that all required road, utility and drainage improvements have been installed and completed in accord with the design standards of these subdivision regulations.

Sec. 3.11. Procedure to approve or disapprove subdivision plans or plats; appeals to planning commission.

A. The subdivision committee will hold its meetings and conduct hearings as provided for in its Rules of Procedure (Appendix B), as amended, taking actions as required by these regulations, and maintaining all its records available to the public in the office of the director.

B. A quorum of the committee shall consist of three citizen appointed members; and an affirmative vote by a majority of the members present is necessary to take any action.

C. The subdivision committee will have the authority to grant requested waivers or exceptions in compliance with article 7, if favorably recommended in writing by either the director or the city engineer, but if either official recommends against such request, it can only be approved by unanimous consent of the committee members present.

D. Any applicant whose proposal to subdivide land is denied by the subdivision committee, shall have the right to appeal to the planning commission in accordance with the following procedures and requirements:

1. The applicant must file a written notice of appeal to the planning commission, specifying the decision from which the appeal is taken, and the grounds for any reversal or revision.

2. The applicant must file the appeal within 15 days from the date the application is denied by the subdivision committee, post a $100.00 fee and pay the cost of certified mail notice to adjacent property owners.

3. When an appeal is filed with the planning commission, the subdivision committee will submit all materials of record involved in the particular case and the subdivision committee will have no further jurisdiction in the case.

E. Any aggrieved party may also appeal as outlined in subsection D. above, and also transmit a copy of the appeal to the applicant by certified mail.

F. The city engineer, or the director, whenever aggrieved by any decision of the subdivision committee, may also, within 15 days thereafter, appeal to the planning commission by filing a written notice of appeal specifying the decision from which the appeal is taken, and sending by certified mail to the applicant a copy of said written notice of appeal.

G. The same notice of hearing as outlined in section 3.3 above shall also be given to all parties in interest, for the appeal hearing before the planning commission.

H. The planning commission shall conduct its hearings in accord with articles V and VII of its bylaws (Appendix A), as amended, consistent with these regulations on all subdivision cases; however in appeal cases, its review shall be limited to evaluation of the evidence submitted on the record, unless it determines by an affirmative vote of 12 members that additional facts may have relevance to the decision, whereupon the case shall be tried ab initio, allowing presentation of new evidence.

I. The planning commission has final jurisdiction on appeals, and shall have 45 days from receipt of the appeal in which to decide whether to uphold or reverse the original decision; and it may change any conditions of approval, or add new conditions; or disapprove the proposed subdivision, specifying the reasons therefor on the record.

J. In the process of such adjudication, the planning commission is empowered to rule on appeals of any administrative interpretation, and may grant requested waivers or exceptions in accord with article 7 herein.

Sec. 3.12. Criteria for approval or disapproval of a subdivision.

All decisions of the subdivision committee concerning proposed subdivisions must be based on factual evidence presented by the subdivider confirming the suitability of particular lands for proposed buildings, construction, access, type and intensity of development or other uses. No new lots shall be created which pose hazards to health, safety or the general welfare, or are not designed in character with existing surrounding subdivisions, or which are not developable or usable for some public purpose or private activities in accord with all applicable zoning provisions.

In accord with state enabling authority, and in pursuit of the goals set forth in the purposes of these regulations, the benefits and liabilities of all new subdivisions must be evaluated for consistency with Birmingham's Comprehensive Plan for physical development, including land use, transportation, capital improvements, community facilities, emergency and other public services, parks, schools, water, sewer, stormwater and utilities plans.

Each new subdivision shall comply with all design standards for public improvements, and site preparation, as specified in Article 5 of these regulations, and must be found to satisfy the following standards of acceptability:

A. Soils, topography, geological and hydrological hazards have been adequately investigated to ensure that all lots are developable for their designated purposes, particularly where there is evidence of potential risks from:

   1. Floodways and lands within the 100-year floodplain, water courses, wetlands, surface water or groundwater resources;

   2. Dumps, strip mines, buried brush and debris or sanitary landfills;

   3. Highly erodable soils, tailings or severe susceptibility to subsidence, sinkholes or landslides;

   4. Rock outcrops, or steep terrain with over 25 percent slopes; and

   5. Soils or water contaminated with industrial, chemical or toxic wastes.

B. Where construction limitations on less hazardous floodplains, isolated drainage basins, problem soils and subsurface conditions can be resolved through best management practices, mitigation measures must effectively reduce the risks for future owners in the subdivision and in the surrounding vicinity.

C. To prevent the increased severity and extent of flash floods and ponding, with resultant erosion, stream pollution and loss of groundwater, new construction should: minimize the amount of cut and fill; recycle top soil; retain maximum soil infiltration and maintain vegetation on permeable surfaces; avoiding rapid runoff of stormwater in order to diminish peak levels and duration of flooding.

D. Supporting information verifies that every new lot can be used safely for building purposes without danger to health or peril from fire, flood or other menace, having access to adequate transportation, emergency services and public facilities, including schools, parks, water, sewers and utilities.

E. The proposed development will not have detrimental impacts on the safety or viability of permitted uses and development of adjacent properties, but will maximize compatibility among varied activities, through separation of conflicting traffic modes, and utilization of effective landscape buffers and screening features.

F. When designing the layout of public streets, ways, lands, blocks, lots or common areas, priority should be given to preservation of natural amenities, significant landforms and environmentally sensitive areas. At a minimum, existing trees should be maintained or new shade and evergreen trees should be added to maximum extent possible.

G. The configuration of streets and easements facilitates pedestrian access and/or bikeway paths connecting into existing or planned schools, parks, open space, greenways, commercial or entertainment centers, employment destinations and transit corridors.

H. To prevent the possible resulting damage to new development or existing buildings in the landslide susceptibility zone, prior to development in these areas the developer will provide a completed Soil Erosion and Sedimentation Control Geotechnical Certification. The certification can be obtained from the land development engineer located on the 2nd floor of the Comer Building at 808 18th Street North, Birmingham, AL 35203.

Sec. 3.13. Suspension or invalidation of final plat.

Whenever it is found that any subdivider, heir, assigns or subsequent owners, failed to meet all conditions and requirements of final plat approval within the prescribed period, the director or his designee shall notify the subdivider/owner of their specific violation of these regulations. If no compliance actions are commenced within 30 days thereafter, the subdivision committee may recommend that the city attorney take appropriate enforcement action, and also prepare a document to be recorded with the probate judge of the county in which the subdivision is located, declaring that final approval for such subdivision is suspended, and that the further sale, lease, or development of property within that subdivision is prohibited until it is brought into compliance with all terms of said approval. However, this prohibition shall not apply to persons or parties who have acquired property from the subdivider, unless that person or party shares a legal interest in common with the subdivider.

If a court of competent jurisdiction invalidates the final plat approved for any subdivision or part thereof under its jurisdiction, the director shall record such document with the probate judge of the county in which the subdivision is located, declaring that the final plat for the subdivision is no longer valid, and that further activity under that subdivision is prohibited.

Sec. 3.14. Vacation of recorded plat.

The owner of a recorded subdivision may request that its plat be vacated before the sale of any lot therein and prior to improvement of any rights-of-way, utilities or easements, only through the same procedures required for vacations as described in article 8.

ARTICLE 4. PLAT REQUIREMENTS

Sec. 4.1. General.

All surveys and plats shall be prepared in accordance with the current edition of Standards and Practice for Land Surveying in Alabama, as adopted by the Alabama Society of Professional Land Surveyors.

Sec. 4.2. Preliminary plan.

A. The preliminary plan shall show the following:

1. Date.
2. North point (arrow).
3. Title of subdivision.
4. A vicinity sketch or key map of the surrounding area shall accompany the preliminary plan. This sketch or map shall show all existing subdivisions, streets, and tract lines of acreage parcels, and right-of-way width of all streets abutting the proposed subdivision. It shall also show how streets and alleys in the proposed subdivision may connect with existing and proposed streets and alleys in neighboring subdivisions or undeveloped property to produce the most advantageous development of the entire neighboring area.
5. A graphic scale not more than 60 feet to the inch unless the average lot contains one acre or more, but in no event more than 100 feet to the inch.
6. Topography:
    a). Based on City of Birmingham, Alabama; Geodetic, or U.S. Coast and Geodetic Sea Level Datum.
    b). Elevation contours shall be at one-foot intervals unless the grade has five percent to ten percent slopes, in which case contours shall be at no greater than two-foot intervals. Where grades exceed ten percent, the contours shall be no greater apart than five-foot intervals, while grades steeper than 25 percent shall have contours at no greater than ten-foot intervals.
7. Streets:
    a). Names (with a letter from the United States Postal Service stating that there is no duplication of proposed names within the metropolitan area of the city).
    b). Right-of-way, sidewalks and roadway widths.
    c). Approximate grades.
    d). Purposes.
8. Other rights-of-way or easements: locations, widths and purposes.
9. Utilities: location of those on or adjacent to the tract to be subdivided, including size and elevation.
10. Lot lines, lot and block numbers and approximate dimensions.
11. Names and addresses of all owners of the property, including the existing mortgagees, the subdivider, and the surveyor platting the tract.

12. Number of section, township and range with ties to all recognized existing quarter section corners within or close to the proposed subdivision.
13. Proposed location, size and type of streetlights and signs.
14. Proposed parks, school sites, or other public open spaces, or common areas on site.
15. Exact boundary lines of the tract indicated by a heavy line giving distances to the nearest hundredth of a foot and bearings to the nearest second of arc.
16. Floodway and floodway fringe boundaries within the subdivision. If within the 100-year floodplain the lowest allowable finished floor elevation for each lot, based on officially adopted floodplain regulations of the City of Birmingham in effect at the time the plat is recorded.
17. If any portion of the proposed subdivision is subject to other isolated causes of inundation by storm sewers or overflow or ponding of local stormwater, such fact and portion shall be clearly shown and identified.
18. Natural resources inventory: based on a topographic map to be imposed on the preliminary plan, the inventory shall include but not be limited to:
    a). Existing vegetation areas including forests and woodlands.
    b). Subwatershed boundaries and receiving waters.
    c). Slopes, Red Mountain slide zones, soils and groundwater characteristics.
    d). Existing lakes, streams, ponds and drainage swales.
    e). Delineated or designated wetlands and blue line streams.
19. Any other information that may be necessary for the full and proper consideration of the proposed subdivision.

B. Effective period of preliminary plan approval. The approval of a preliminary plan shall be effective for a period of two years, at the end of which time a final plat approval on the subdivision must have been obtained from the subdivision committee or planning commission, and recorded in the county in which the subdivision is located. Any preliminary plan not receiving a final plat approval covering at least 20 percent of its total lots or acreage within said time period shall be null and void, and the developer shall be required to resubmit a new plan for preliminary approval subject to all new zoning restrictions and subdivision regulations. However, the timely phasing of any such partial final plats shall extend the validity of the original preliminary plan approval for an additional one year.

Sec. 4.3. The final plat.

A. The final plat shall be an original drawing in ink, on reproducible media with dimensions no greater than 24" by 36", and shall be tied to an accepted corner based on the U.S. Government Survey of this area which shows the relationship to the

Huntsville Base Line and the Huntsville Meridian. A resurvey of a part of a subdivision may be tied to the original subdivision. The final plat shall also show the following:

1. Exact boundary lines of the tract indicated by a heavy line giving distances to the nearest hundredth of a foot and bearings to the nearest second of arc.
2. Right-of-way lines of streets, easements, and other rights-of-way.
3. Property lines of lots, with accurate dimensions, bearings, of deflection angles, radii, and central angles of all curves.
4. Name and right-of-way width of each street, width of sidewalk and/or designation of other right-of-way.
5. Location, dimensions, and purposes of any easements.
6. Number to identify each lot or site.
7. Purpose for which sites, other than residential lots, are dedicated or reserved, it being understood that any reservations of areas for other than residential purposes shall be subject to the proper zoning thereof.
8. Location and description of monuments.
9. Reference to recorded subdivision plats of adjoining platted land by map book volume and page number.
10. Title of subdivision, graphic scale, written scale, north arrow.
11. Name and license number of surveyor.
12. Date.
13. Quarter section or quarter sections in which the subdivision is located based on the government survey of that area.
14. Space for the approval of the city engineer and the Birmingham Planning Commission.
15. Floodway and floodway fringe boundaries within the subdivision. If within the 100-year floodplain the lowest allowable finished floor elevation for each lot, based on officially adopted floodplain regulations of the City of Birmingham in effect at the time the plat is recorded.

B. On all plats when there is no mortgagee, whether there is a dedication of property for street purposes or not, a certificate substantially in form as follows:

THE STATE OF ALABAMA

(insert name) COUNTY

The undersigned, (*insert surveyor's name*), surveyor and (*insert owner's name*), owner(s), hereby certify that this plat or map was made pursuant to a survey made by said surveyor and that said survey and this plat or map were made at the instance of

said owner(s); that this plat or map is a true and correct plat or map of lands shown therein and known or to be known as (*name of subdivision or resurvey*) showing the subdivisions into which it is proposed to divide said lands, giving the length and bearings of the boundaries of each lot and its number, showing the streets, alleys and public grounds, giving the bearings length, width and name of each Street, as well as the number of each lot and block and showing the relation of the lands to the government survey (or, if the plot is a resurvey of an existing recorded subdivision, "showing the relation of the lands to the survey of (*insert subdivision name*) as recorded in the Probate Office of *(insert NAME)* County in Map Book (insert number), Page (insert number)"); and that iron pins have been installed at all lot corners and curve points as shown and designated by small open circles on said plat or map. Said owner(s) also certifies (certify) that he (she, they, it) is (are) the sole owner(s) of said lands and that the same are not subject to any mortgage. Said owner(s) hereby irrevocably dedicates (dedicate) all new streets, alleys and public grounds, as well as easements for all utilities, as shown by said plat or map. Said owner(s) agrees (agree) that the City of Birmingham may at any time change the natural or existing grade of any Street, alley or public grounds, or any part thereof, from the natural or existing grade to the permanent grade without the payment of compensation or damages to the abutting owner; and this agreement shall be a covenant running with the lands. The undersigned appoints the City of Birmingham as agent for the purpose of filing said plat or map, together with this instrument, for record, and certify that we have full authority to execute this instrument and map.

Dated _____ 20____.

(Execution and Acknowledgment by Surveyor, Owner(s))

C. On any plats when there is a mortgagee, whether there is a dedication of property for street purposes or not, a certificate substantially in form as follows:

THE STATE OF ALABAMA

(insert name) COUNTY

The undersigned, (*insert surveyor's name*), Surveyor, and, (*insert owner's name*) owner(s), hereby certify that this plat or map was made pursuant to a survey made by said surveyor and that said survey and this plat or map were made at he instance of said owner(s); that this plat or map is a true and correct plat map of lands shown therein and known or to be known as *(name of subdivision or resurvey)* showing the subdivisions into which it is proposed to divide said lands, giving the length and bearings of the boundaries of each lot and its number showing the subdivision streets, alleys and public grounds, giving the bearings, length, width and name of each Street, as well as the number of each lot and block and showing the relation of the lands to the government survey (or, if the plot is a resurvey of an existing recorded subdivision "showing the relation of the lands to the survey of (*insert subdivision name*) as recorded in the Probate Office of *(insert name)* County in Map Book *(insert number),*

Page *(insert number)*"); and that iron pins be installed at all lot corners and curve points as shown and designated by small open circles on said plat or map. Said owner(s) also certifies (certify) that he (she, they, it) is (are) the sole owner(s) of said lands and that the same are not subject to any mortgage, except a mortgage or mortgages held by the following mortgagee(s): (*insert mortgagee name(s).* Said owner(s) and said mortgagee(s) hereby irrevocably dedicate all new streets, alleys and public grounds, as well as easements for all utilities, as shown by said plat or map. Said owner(s) and said mortgagee(s) agree that the City of Birmingham may at any time change the natural or existing grade of any Street, alley or Public grounds, or any part thereof, from the natural or existing grade to the permanent grade without the payment of compensation or damages to the abutting owner; and this agreement shall be a covenant running with the lands. The undersigned appoints the City of Birmingham as agent for the purpose of filing said plat or map, together with this instrument, for record, and certify that we have full authority to execute this instrument and map.

Dated _____ 20____.

(Execution and Acknowledgement by Surveyor, Owner(s) and Mortgagee(s))

D. Notary's acknowledgement of the certificate referred to in [subsection] (B) or (C) above, substantially in the form as follows:

STATE OF ALABAMA

(insert name) COUNTY

I, (*insert notary's name*), as Notary Public in and for said County and State, do hereby certify that (*insert surveyor's name*), whose name is signed to the foregoing certificate as Surveyor, and (*insert owner's name*), whose name is signed to same as Owner and (*insert mortgagee's name*), whose name is signed to same as Mortgagee), all of whom are known to me, acknowledged before me, on this date, that after having been duly informed of the contents of said certificate, they executed same voluntarily as such individuals (or in any other capacities) with full authority therefore.

Given under my hand and seal this ____ day of , 20____.

_____

Notary Public

E. On all plats where there is a dedication of land for street purposes, whether in the form of new streets, additional right-of-way for existing streets, or merely curve radii where there were angle corners formerly existing, a resolution substantially in form as follows:

1. Where the subdivision is subject to a performance bond in lieu of actual completion of all required improvements:

   BE IT RESOLVED By the Council of the City of Birmingham that this body hereby acknowledges reception of the owner(s) irrevocable offer of dedication of

the streets, alleys and Public grounds as shown on the plat or map of *(insert plat name*) which said plat or map is certified to have been made by (insert surveyor's name) a surveyor at the instance of *(insert owner's name)* as owner, and acknowledged by *(insert mortgagee(s) name, if any)* as mortgagee, and it has been exhibited to this Council; said plat or map being filed for future consideration by this Council, and signed by *(insert City Clerk's name*) City Clerk, of even date herewith. But this shall not be construed as an assumption of dominion over any new street, alley or public grounds shown on said plat or map or impose liability upon the City for the upkeep of same, until and unless all subdivision improvements and conditions have been completed to the satisfaction of the city engineer, as a prerequisite to adoption of an ordinance of acceptance by this Council.

2. Where all required improvements and conditions of approval for the subdivision have been completed, and subjected to any maintenance bond, to the satisfaction of the city engineer:

   BE IT ORDAINED By the Council of the City of Birmingham that after inspection of the plat or map entitled *(insert subdivision name),* which is proposed to be recorded in the office of the Judge of Probate of *(insert name)* County, and which is certified to be made by *(insert surveyor's name)* surveyor, at the instance of *(insert owner's name)* as owner, and acknowledged by *(name of mortgagee)*, as mortgagee, and giving due consideration to the offer of irrevocable dedication by said owner, and after notification that all required improvements and conditions of approval have now been completed to the satisfaction of the city engineer*, (insert name)*, this Council accepts the aforesaid offer, and hereby dedicates all new streets, alleys and Public grounds as shown on the aforesaid plat or map, being further identified by a recital of the approval of this Council signed by *(insert name of City Clerk),* City Clerk, of even date herewith.

3. Where a subdivision has been recorded as in paragraph 1 above, upon completion of all required improvements, the city engineer shall present to the city council for adoption, an ordinance substantially comparable to that in paragraph 2 above, citing the map book and page number where the plat has been recorded.

F. On all plats for subdivisions where there are sanitary sewer easements located in Jefferson County, a certificate shall be shown substantially in form as follows:

Jefferson County Environmental Services Department hereby approves this record map for sanitary sewer purposes only. Such approval indicates that easements have been dedicated for future Jefferson County sanitary sewers, however this does not mean sanitary sewers have been built or will be built in the future. Any change in the Right-of-Way or Easement Boundaries after this date may void this approval.

_____ Date: _____

Director of Environmental Services
APPROVED IN FORMAT ONLY

Where a different entity has jurisdiction over the site, a similar certificate shall be included concerning sanitary sewer easements by that agency or authority.

G. On all plats for property in Jefferson County, where the sanitary sewer will be located within a private roadway, a certificate shall be shown substantially in form as follows:

RESERVATION OF SANITARY SEWER EASEMENT

Jefferson County, a political subdivision of the State of Alabama, reserves a sanitary sewer easement within the entirety of the private roadways shown herein to enter upon, keep clear, cross over and under for the purposes of installing, maintaining and repairing a sanitary sewer pipeline, manholes and all appurtenances thereto within said easement. In the event that the private roadways shown herein shall become public roads in the future, the easement reserved herein shall not be altered, destroyed or revert to the fee owners, but shall remain in full force and effect. This reservation shall not affect any other sanitary sewer easement more specifically described herein nor is it intended to create a public roadway easement in the private roads shown herein or a duty to maintain said private roads by the county or city of Birmingham. The sole purpose of this reservation is to reserve a sanitary sewer easement in the private roadways shown herein.

Environmental Services Department approval indicates that easements have been dedicated for future Jefferson County sanitary sewers however this does not mean sanitary sewers have been built or will be built in the future. Any change in the right-of-way or easement boundaries after this date may void this approval.

_____ Date: _____

Director of Environmental Services
APPROVED IN FORMAT ONLY

If a different entity has jurisdiction over the site, a similar certificate shall be shown as required by such entity.

H. If a waiver from the requirement for sanitary sewer main extension to any lot is granted, a note shall be shown on the plat as listed in subsection 5.8D, prohibiting any building permit, except where an onsite sewage disposal system permit has been obtained from the authorized jurisdiction.

I. Where a street or alley has been vacated, a note on the plat indicating such and referring to the recorded instruments of vacation by deed book and page number.

J. If there are existing structures on land proposed to be subdivided or resubdivided or on immediately adjoining land in which the subdivider has or has had or will have an interest, three copies of a survey plot plan showing the exact locations of such structures with their relation to the proposed subdivision or resubdivision shall accompany the final plat, two of which shall be forwarded to the city engineer.

K. The final plat shall be accompanied by three copies of any protective covenants running with the land in form of recording.

L. Effective period of final plat approval. If the final plat, as approved by the subdivision committee or planning commission, is not recorded within one year of the date of final approval, the approval of such plat shall be deemed to have expired and the developer shall be required to resubmit a new plat for final approval.

ARTICLE 5. DESIGN STANDARDS

Sec. 5.1. Street plan.

A. All streets shall be platted along contour elevations, which will result in minimum steepness of street and lot grades and greatest visibility wherever practicable, with consideration given to the anticipated use of the land, taking all measures to avoid unnecessary street length, through careful layout of lots and by strategically planning for interconnectivity.

B. The proposed street layout shall be made according to good land planning practice for the type development proposed and shall be coordinated with the street systems of the surrounding areas. All streets must provide for the continuation or appropriate projection and dedication of principal streets into surrounding areas to provide reasonable means of ingress and egress for surrounding acreage tracts. Street patterns in all subdivisions shall be in conformity with the major street plan and bicycle plans of the City of Birmingham. Arterials and collector streets and planned bicycle routes should be consistent with the most current Birmingham Metropolitan Planning Organization's Regional Transportation Plan (RTP).

C. In subdivisions which border on or include within the proposed areas to be subdivided any expressway or major or minor arterial street, access to lots abutting such major traffic arteries shall be provided in a manner such that the individual lots shall not have direct access to such expressway or arterial streets. The subdivision committee may require parallel streets on each side as marginal access service roads. Where proposed residential lots need buffering from abutting traffic impacts, double frontage lots shall be aligned to back up to the major street, retaining a planting screen no less than 20 feet wide, with their access limited solely to parallel local roads or side crossing streets. Where the foregoing designs are not feasible, access to arterial or high-volume collector routes should be minimized by utilizing a shared driveway that is regulated by a covenant.

D. Except where buffers or screening may be needed for compatibility or aesthetics, reserve strips or "spite" strips, unduly restricting access needed for nearby properties are prohibited.

E. The geometric design of bicycle facilities on all roadways shall conform to the Guide for the Development of Bicycle Facilities, latest edition, published by AASHTO. Signs and pavement marking for bicycle facilities shall conform to The Manual on Uniform Traffic Control Devices, latest edition, published by the Federal Highway Administration or as modified by the traffic engineer.

F. Where practical, for traffic calming or to better manage high capacity street intersections, roundabout design shall be considered as an alternative to traffic light control signals or signage alone, to determine relative safety, efficiency and economy. All design of any proposed roundabout will be subject to the approval of the traffic engineer and city engineer.

G. Subdivisions will be designed with more than one means of ingress and egress.

H. All curb extensions and designated on-street parking design shall be reviewed and approved by the traffic engineer and the city engineer.

I. Subdivisions along existing or dedicated or platted streets where rights-of-way are inadequate shall provide additional rights-of-way to meet minimum standards for the topographic situation and category of traffic of such streets. Where a subdivision would include within its boundaries any link listed on the Birmingham Major Street Plan or Bicycle Plan for a new or widened street or other route, sufficient right-of-way shall be dedicated to serve its designed capacity, however the subdivider shall not be responsible for construction of such road beyond local street standards.

J. All driveways shall be installed in accordance with the provisions of article F [of chapter 5 of title 4] of the General Code of the City of Birmingham, Alabama, as amended.

K. All collector and local streets shall conform to the following intersection design standards:

Standard	*Topographic Gradients*		
	0—8%	*8.1—15%*	*Over 15%*
Clear horizontal sight distance (Length along each approach leg)	90 feet	90 feet	70 feet
Vertical alignment within 100 feet of the centerline of intersections	5%	5%	5%
The minimum centerline offset of adjacent street intersections shall be as follows:			
Local-Local	150 feet		
Local-Collector	150 feet		
Collector-Collector	200 feet		

L. Street alignment shall be designed to eliminate sharp curves and street jogs. Streets shall intersect at right angles if possible and in no case at an angle of less than 75 degrees.

M. Curb radii of collector and local streets shall be 25 feet.

N. Streets shall be aligned to connect with the surrounding layout and, where adjacent tracts are vacant, with the most advantageous location for future development. Stubbed streets 100 feet long or greater, ending at the edge of a subdivision, shall provide a temporary maneuver area for the reversal of vehicle direction within the right-of-way. A sign shall be erected at the entrance intersection to the no-outlet street, warning motorists of the lack of connection to other streets, in accord with the Manual on Uniform Traffic Control Devices, cited above.

O. Streets shall be graded to a minimum line of seven feet back of the curb line with a slope no greater than two percent measured from the top of curb.

P. Prior to applying the final seal coat in paving the streets, fire hydrants shall be installed in all locations necessary to protect every lot or proposed structure in accord with the requirements of the Birmingham Fire and Rescue Service.

Q. The provisions of article [section] 5.1 of these regulations shall be complied with, except that the subdivision committee will have the authority to grant requested waivers or exceptions in accord with article 7, if favorably recommended in writing by either the director or the city engineer; but if either official recommends against such request, it can only be approved by a unanimous vote of the subdivision committee members. Before granting any such waiver or exception of the provisions of article [section] 5.1, the subdivision committee must have considered a report, if any, from the traffic engineer regarding any proposed changes, as have been submitted to the staff of the director.

R. Street stub-outs shall be included every 400—1,300 feet in subdivisions to provide future connectivity to adjacent land. All street stub-outs must be named and terminate at the property line of the subdivision, and if adjacent land has a stub-out street, developer must connect new subdivision to it.

S. All streets shall conform at least to the following minimum standards, except as may be provided in this article under section 5.1.Q, and in article 7 of these regulations:

1. The geometric design of all roadways for streets classified as freeways, expressways, major arterial and minor arterial shall conform generally with A Policy on Geometric Design of Highways and Streets, latest edition, with consideration given to the principles outlined in A Guide for Achieving Flexibility in Highway Design, both published by AASHTO, including any

published supplements to those policies, and the principles within the United States Department of Transportation Policy Statement on Bicycle and Pedestrian Accommodation Regulations and Recommendations (see Appendix D).

Minimum Design Standards			
Roadway Type	*Minimum Right-of-Way*	*Minimum Pavement Width**	*Minimum Sidewalk Width*
Freeway and/or expressways	200 feet	——	——
Major arterial street	100 feet	67 feet	4 feet
Minor arterial street	80 feet	53 feet	4 feet
*measured at back-of-curb to back-of-curb			

a). Acceleration/deceleration lanes, left turn lanes and medians or other traffic control improvements may be required on arterial streets, by the traffic engineer and city engineer, where necessary to mitigate hazardous traffic movements at public intersections or entrances to private developments.

b). All driveways shall be designed to allow a vehicle to turn around on private property, so no vehicles need to back into the public street.

c). No driveway for a non-residential use shall be closer than 70 feet to the intersection boundary line and will be approved by the traffic engineer, and no driveway for a residential use shall be closer than 40 feet to the intersection boundary line.

d). Sidewalks shall be constructed along both sides of all major and minor arterials, paved at the same time as the streets, curbs and gutters are installed and shall have ADA compliant curb ramps at all intersections. Sidewalks shall not have a cross-slope greater than two percent.

2. Collector streets shall conform to the following standards:

Minimum Collector Street Design Standards			
Standard	*Topographic Gradients*		
	0—8%	*8.1—15%*	*Over 15%*
Right-of-way width (feet)	60	60	60
Pavement width (feet)*	37	37	37
Minimum sight distance (feet)	250	200	150
Maximum grade	12%	12%	12%
Minimum centerline radii (feet)	350	230	200
Sidewalks, residential (minimum width in feet)	4	4	4

Minimum Collector Street Design Standards			
Standard	*Topographic Gradients*		
	0—8%	*8.1—15%*	*Over 15%*
Sidewalks, commercial (minimum width in feet)	6	6	6
*measured at back-of-curb to back-of-curb			

a). The minimum distance between the back of the curb and the required sidewalk shall be three feet. The maximum distance shall be eight feet.

b). All curbs and gutters installed in conformity with these regulations shall be minimum six-inch vertical face with one foot of gutter or an overall width of combined curb and gutter of 18 inches.

c). No driveway for a non-residential use shall be closer than 70 feet to the intersection boundary line, and no driveway for a residential use shall be closer than 40 feet to the intersection boundary line.

d). The minimum spacing of collector street intersections along any major arterial or minor arterial street shall be 1,300 feet from centerline to centerline.

e). All commercial or industrial service streets shall be constructed to no less than the minimum collector street standards.

f). Acceleration/deceleration lanes, left turn lanes and medians or other traffic control improvements may be required by the traffic engineer and city engineer, where necessary to mitigate hazardous traffic movements at public intersections or entrances to private developments.

g). Where deemed necessary, the developer shall design and configure collector streets in a manner to discourage speeding traffic, and/or shall install traffic calming devices in accord with the general principles of the Manual on Uniform Traffic Control Devices, latest edition, published by the Federal Highway Administration. The location and design of particular systems shall be determined by the city engineer and traffic engineer.

h). Sidewalks shall be constructed along both sides of all collector streets, paved at the same time as the streets, curbs and gutters are installed, and shall have ADA compliant curb ramps at all intersections. Sidewalks shall not have a cross-slope greater than two percent.

3. Local streets shall conform to the following standards:

Minimum Local Street Design Standards			
Standard	*Topographic Gradients*		
	0—8%	*8.1—15%*	*Over 15%*
Right-of-way width (feet)	50	50	50
Pavement width (feet)*	28	28	28

Minimum Local Street Design Standards			
Standard	*Topographic Gradients*		
	0—8%	*8.1—15%*	*Over 15%*
Minimum sight distance (feet)	200	150	110
Maximum grade	15%	15%	15%
Maximum cul-de-sac length single-family lots (feet)	600	600	600
Maximum cul-de-sac length multifamily use (feet)	500	500	500
Minimum centerline radii (feet)	250	175	150
Sidewalks (minimum width in feet)	4	4	4
*measured at back-of-curb to back-of-curb			

a). The minimum distance between the back of the curb and the required sidewalk shall be three feet. The maximum distance shall be eight feet.

b). All cul-de-sacs shall terminate in a circle with a right-of-way radius of not less than 60 feet. The pavement radius of at least 50.5 feet shall be measured to the back of the curb, or outside edge of a valley gutter.

c). All curbs and gutters installed in conformity with these regulations shall be minimum six-inch vertical face with one foot of gutter, or an overall width of combined curb and gutter of 18 inches.

d). The city engineer may permit 30-inch (minimum width) valley gutters instead of standard curb and gutters only where residential lots have a width of 40 feet or less, measured at the street right-of-way line.

e). With subdivision committee approval, the city engineer may permit pervious swales (instead of standard or valley gutters) within E-1, A-1, A-2 and M-2 zoned districts when the roadway is designed with a concrete edge. Construction details of the concrete edging and swales shall be subject to the city engineer's approval.

f). Where deemed necessary by the city engineer and traffic engineer, the developer shall design and configure local streets in a manner to discourage excessive or speeding traffic, and/or shall install traffic calming devices in accord with the general principles of the Manual on Uniform Traffic Control Devices, latest edition, published by the Federal Highway Administration. The location and design of particular systems shall be approved by the city engineer and traffic engineer.

g). In general, sidewalks shall be constructed along both sides of all local streets at the same time as the streets, curbs and gutters are installed and shall have ADA compliant curb ramps at all intersections. Sidewalks shall not have a cross-slope greater than two percent. Except in E-1, all M and A zoning districts. Developers may make arrangements, prior to begin-

ning any construction, with the city engineer to allow homebuilders to install sidewalks on behalf of the developer. Certificates of occupancy will not be issued for new houses until the required sidewalks have been approved by the city engineer. It shall be the developer's responsibility to make homebuilders aware of this requirement. Sidewalks across lots that remain undeveloped or sidewalks that do not comply with the requirements of the City of Birmingham shall be completed or replaced by the developer at the direction and to the satisfaction of the city engineer before any of the required improvements will be accepted by the City of Birmingham for maintenance. Developers are responsible for the construction of all required improvements including sidewalks.

h). On corner lots driveway curb cuts must be a minimum of 40 feet from the side streets intersection boundary line.

T. To the maximum extent possible, complete street design principles shall be used to guide future street design for both new and retrofit projects, and any exception to this approach shall be appropriately justified. Appendix C contains names of publications that can be used as guidance.

Sec. 5.2. Streets and subdivision names.

A. Street names shall be coordinated with the U.S. Postal Service, and not be duplicative of other unrelated streets, and shall be subject to approval of the city engineer.

B. Subdivision names for plats shall be subject to the approval of the subdivision committee, and shall not duplicate the name of any other unrelated plat already recorded in a different part of Jefferson County or in Shelby County.

Sec. 5.3. Alleys, easements and half streets.

A. Alleys are encouraged in residential districts to provide access to parking and overhead utilities, and may be required in commercial or industrial districts if it is determined by the subdivision committee that conditions necessitate alleys in any such district. In no case shall alleys be less than 20 feet in right-of-way width with curb radii at street intersections of at least 15 feet.

B. Easements, except for sanitary sewers, shall not be less than ten feet in width except in cases of double tiered lots where a width of 7½ feet from each tier will be permitted. Developers are encouraged to place utilities at back of sidewalk. The width of sanitary sewer easements shall be determined by the Jefferson County Environmental Services Department, or the responsible entity for sites lying within a different jurisdiction.

C. Where there exists a stormwater ditch, drainageway, creek, perennial or intermittent stream, or any other watercourse, the easement shall be of sufficient width that such watercourse may be installed and maintained efficiently. The location of any such stormwater ditch, creek or watercourse shall not be changed without the approval of the subdivision committee upon a favorable recommendation from the director and the city engineer, in conjunction with any approvals required by the Federal Emergency Management Agency and the U.S. [Army] Corps of Engineers.

D. Half streets will not be permitted except in situations where necessary to complete an existing contiguous half street.

Sec. 5.4. Off-road bicycle and multi-use paths.

Off-road paths, when part of the approved bicycle plan routes, shall conform to the standards of the Guide for the Development of Bicycle Facilities, latest edition, published by AASHTO.

Sec. 5.5. Water drainage and flooded areas.

A. All subdivisions shall be provided with adequate storm sewers. The potential use of swales and natural detention and infiltration methods of reducing or slowing the flow, including porous surfaces should receive initial investigation. In cases where the size of such storm sewer would make the cost prohibitive in relation to the value of the land and the city council does not have sufficient funds allocated for such improvements to participate in such costs, these areas shall be planned and shown in dotted lines for future development but shall be excluded from the proposed subdivision.

B. The drainage plan should provide that the post-development runoff rate not exceed the pre-development runoff rate from a given site. Whenever possible, low impact development techniques (LID) should be utilized such that the post-development hydrology mimics the pre-development hydrology for the storm events defined in the Engineering Design Guidelines for Subdivision and Commercial Developments, latest edition.

C. Lakes, ponds, creeks and similar areas will be accepted for maintenance only if sufficient land is dedicated as a public recreation area or park, or if such area constitutes a necessary part of the drainage control system. Dedication of such areas is contingent on approval by the Birmingham Park and Recreation Board and acceptance by the city council.

D. Areas subject to periodic flooding caused by poor drainage facilities will not be accepted by the subdivision committee unless the subdivider makes necessary provisions to eliminate such flooding.

E. Storm sewer systems shall be developed in accordance with the City of Birmingham's Engineering Design Guidelines for Subdivisions and Commercial Developments, latest edition. Copies of this document are available from the office of the city engineer.

Sec. 5.6. Stormwater detention/retention facilities.

Stormwater detention/retention facilities shall be developed in accordance with the City of Birmingham's Engineering Design Guidelines for Subdivisions and Commercial Developments, latest edition. Copies of this document are available from the office of the city engineer. Prior to initiating each stage in the construction process, the subdivider shall be responsible for notifying the city engineer, so that an on-site inspection may be conducted by the city staff at each stage of construction, for appropriate soil and sedimentation controls.

Sec. 5.7. Soil and sedimentation control.

Prior to any land disturbance activity, the subdivider shall prepare and submit to the city engineer an erosion control plan consistent with the Soil Erosion and Sedimentation Control Ordinance of the City of Birmingham. Said plan must also include an acceptable structural controls maintenance plan. Development of the subdivision shall not proceed without approval from the city engineer. The plan shall be approved if it complies with all requirements of the zoning, subdivision, soil erosion and sediment control, and stormwater ordinances and regulations. Prior to initiating each stage in the construction process, the subdivider shall be responsible for notifying the city engineer so that an on-site inspection may be conducted at each stage of construction for appropriate soil and sedimentation controls.

Sec. 5.8. Sanitary sewers.

A. Sanitary sewer shall be provided to all lots in a subdivision except as noted in section 5.8D.

B. All proposed sanitary sewer systems shall be reviewed and approved by the entity having jurisdiction over the sanitary sewer system.

C. One set of approved sanitary sewer plans shall be provided to the city engineer before the final plat will be recorded.

D. Sanitary sewer alternatives. Sanitary sewer systems may not be readily available in isolated locations where it is found impractical or infeasible to extend existing sewer mains or create new central public or private collection and treatment facilities. An existing legally established onsite disposal system may be approved by the city engineer to serve a new lot only if the applicant provides satisfactory evidence that such system has adequate capacity for the size and physical character of all lots.

In lieu of providing a sanitary sewer main, the applicant may request an exception from this requirement in accordance with article 7 of these regulations. In considering any alternate proposal, the subdivision committee shall require the applicant to:

1. Provide adequate information as to the distance and estimated costs of extending existing sanitary sewer main lines to serve the lots; and

2. Provide evidence that no central public or private sanitary sewer system is planned to be operational within a one-half mile radius of the subdivision within the next ten years; and

3. Provide evidence that the Jefferson (or other county of location) Department of Health will approve an on-site sewage disposal system for each lot.

For each lot where a waiver from the requirement to extend a sanitary sewer main is granted by the subdivision committee, wording substantially in the form that follows shall be shown on the plat:

> No building permit for a structure containing plumbing will be issued for Lot _____, Block _____ without first obtaining an on-site sewage disposal system permit from the *(insert either* Jefferson County Department of Health *or* the Shelby County Health Department *or* other agency with jurisdiction, depending on location), or else extending a sanitary sewer main to serve the lot.

Sec. 5.9. Layout patterns.

A. *Blocks.*

1. The size and shape of blocks shall be laid out with special attention given to the natural terrain, drainage, and the type of use, development density and traffic access contemplated.

2. Length of blocks shall not exceed 1,300 feet along collector streets. Lengths along local streets in residential areas shall not be less than 400 feet, nor longer than 1,300 feet.

3. Blocks shall have sufficient width to provide for two tiers of lots of appropriate depths. However one tier of deep lots may be permitted in blocks adjacent to arterials and collectors, railroads or waterways.

4. A right-of-way or easement may be required for bike paths or pedestrian access, providing a minimum eight-foot-wide connection through the middle section of a block over 800 feet long, or extending from a cul-de-sac, through lots where needed for circulation or public access to schools, parks, shopping and similar destinations such as a transit facility or other public facility.

5. Blocks with lots having double frontage on streets shall be avoided.

B. *Lots.*

1. Each lot shall have a defined front yard on a public street and vehicular access to a public street, alley or an approved private road.

2. Lot sizes, shapes and locations shall be made with due regard to topographic conditions, physical constraints, drainage, access and type of traffic, proposed use, and the existing use and zoning in the surrounding area. A resubdivision, or a subdivision adjoining an area already subdivided, shall complement the established pattern, improving, rather than detracting from, the character of the surrounding neighborhood.

3. Where easements for public utilities, storm or sanitary sewers are contemplated, the lot lines shall be located in such a manner as to facilitate the construction of such improvements and the maintenance thereof.

4. Lot areas, widths and orientation shall meet or exceed minimum zoning and health standards; and the subdivision committee may impose greater requirements: in order to assure sufficient buildable or usable area, and all-weather accessibility for each lot; or if it is found that a particular configuration would interfere with the quiet enjoyment or potential development of surrounding or adjacent properties, depreciating values; or if a proposed design would impose an undue burden on the city in furnishing municipal services to the area.

5. Corner lots shall be made wider and larger than interior lots and shall provide at least the same minimum setback on the side street as required on the front by the zoning ordinance.

6. Lot lines shall be substantially at right angles to the streets except on curves where they shall be radial. Where the distance between rear lot corners on double tiered lots would be less than ten feet the radial lines shall be deviated so that the corners will be the same.

Sec. 5.10. Public areas.

A. In all new residential subdivisions containing 15 or more acres, suitable amounts of land may be evaluated for reservation as possible sites for park and recreation areas for possible acquisition by the Birmingham Park and Recreation Board. Any land required for park use must be identified by the Birmingham Park and Recreation Board prior to the approval of the preliminary plan.

B. In all new residential subdivisions containing 15 or more acres, suitable amounts of land may be evaluated for reservation as possible sites for educational purposes for the Birmingham Board of Education. Any land required for schools use must be identified by the Birmingham Board of Education prior to the approval of the preliminary plan.

C. In all areas where a developer is planning a residential subdivision of 15 or more acres, they shall present a waiver, to the staff of the director, signed by the park and recreation director and the Superintendent of Birmingham Schools stating that there is not a need for land to be reserved for parks or schools within the proposed development.

ARTICLE 6. COMPLETION OF REQUIRED IMPROVEMENTS; BOND

Sec. 6.1. Required improvements.

A. Prior to the approval of the final plat, the subdivider shall have installed, caused to be installed, or constructed (or posted bond as provided for in section 6.2 of this article) all required improvements, including the following:

1. All streets shall have been graded in conformity with all dimensional and design requirements set out in article 5, above.
2. On both sides of each street there shall have been constructed a standard curb and gutter or valley gutter in accord with standard details on file in the office of the city engineer.
3. On all streets, including side streets and alleys, a suitable hard surfaced permanent type of pavement shall be installed, meeting the requirements of the City of Birmingham standard specifications. The developer's engineer shall design a pavement buildup based on a 20-year design life, on existing soil conditions and anticipated traffic.
4. Any off-road bike paths and/or pedestrian ways shall have been paved with a suitable hard surfaced material meeting the requirements of the City of Birmingham Standard Specifications, latest edition.
5. All required utilities and service connections shall have been constructed prior to installation of paving with all mains being extended and all lots having sufficient utility service stub-outs to ensure no subsequent cutting of pavement. All required utilities, except storm and sanitary sewer systems, shall be constructed beyond the back of sidewalk. Where septic tanks are necessary, if required by the responsible county agency or other sewer authority, sanitary sewers shall also be installed and capped until such time as connection may be had with a sanitary sewer system.
6. All required sidewalks shall have been constructed.
7. Adequate storm sewers shall have been constructed, subject to the provisions of article 5.
8. Subdividers shall have installed or paid for street signs and streetlights, and traffic control signals or similar signage as approved by and at points designated by the traffic engineer.

9. All right-of-way grading and required public improvements, including necessary seeding, and removal of debris from all public areas, shall have been completed.

B. The owner(s) shall also submit an instrument, approved by the city attorney, in form for recording, which offers an irrevocable dedication of all lands and improvements into governmental ownership as needed and designated on the final plat for public use, including any streets, ways, easements, utilities, grounds and parks, in perpetuity.

Sec. 6.2. Bond and surety: amount and release.

A. In the event it is decided by the subdivision committee that the requirements set out in section 6.1A of this article need not be immediately met by the subdivider, the requirements may be deferred by temporary waiver, upon the execution of a subdivision improvement agreement with the subdivider, as approved by the city attorney, to run with the land, binding any future owners. That instrument shall require that all such improvements be installed and constructed within the length of time specified in section 6.3 of these regulations, and the subdivider shall maintain said improvements and shall guarantee the work to be free from defect of materials or workmanship for a period of one year following the acceptance of dedication by the city council. A performance bond shall be required by the city engineer to insure the fulfillment of such agreement, and shall be in cash, by certified or cashier's check, acceptable certificates of deposit, irrevocable letters of credit, or made by a surety company authorized to do business in the State of Alabama. Upon submission of satisfactory bond or surety to the city engineer, said surety and the subdivision improvement agreement, and the final plat can be recorded in probate court.

B. Such bond shall be in an amount equal to 115 percent of the estimated cost of the improvements. Bond amounts shall be reviewed annually and may be adjusted to ensure adequate funds are available for the completion of the remaining required improvements.

C. The surety shall not be released from said bond except by a release in writing from the city engineer.

D. In the event the developer does not cause to be installed the infrastructure improvements required by these regulations within two-years, of the approval of the final plat and a time extension is not granted by resolution of the subdivision committee, the city shall cause the improvements to be installed and shall pay for said improvements by redeeming the bond submitted by the developer as required by these regulations for the purpose of ensuring the installation of the required infrastructure improvements.

Sec. 6.3. Time limit on the construction of infrastructure improvements.

Any infrastructure improvements required by these regulations shall be completed within two-years of approval of the final plat, unless a time extension is granted by resolution of the subdivision committee.

Sec. 6.4. Maintenance bond.

A. When required improvements are completed, or else are assured of completion as provided in section 6.2 above, if the city engineer has reasonable doubts concerning the stability or proper construction of such improvements, he may require a maintenance bond in the amount of 100 percent of the estimated cost of said improvements. This shall extend for up to five years from the date of actual completion, or beyond the term secured by the performance bond, in order to cover any additional costs of street construction, repair and maintenance, and for one year beyond such completion dates for maintenance of sewer lines and other facilities. This bond shall be in cash, by certified or cashier's check, acceptable certificates of deposit, irrevocable letters of credit, or be made by a surety company authorized to do business in the State of Alabama, as may be approved by the city engineer.

B. The city engineer shall secure from all developers a letter or statement in which said developer shall agree to maintain the backfill and any improvements located thereon or therein of any ditch which has been dug in connection with the installation of such improvements and such letter or statement shall be binding on the developer for a period of one year after the acceptance of such improvements by the City of Birmingham.

C. Maintenance bond amounts shall be reviewed annually and may be adjusted to ensure adequate funds are available for the repair or replacement of any potential failure of required improvements.

Sec. 6.5. Acceptance of dedicated streets, ways and grounds.

After final completion of all required improvements, and receipt of the subdivider's one-year maintenance warranty, and submission of enforceable surety for any additional maintenance to the satisfaction of the city engineer, the city council may adopt an ordinance, prepared by the city attorney, accepting the dedication of all public streets, ways and public grounds as designated on the final plat for public right-of-way or other property to be owned by the City of Birmingham. Said ordinance shall be published as required by law, and recorded along with the owner's dedicatory instrument in the office of the probate judge of the county in which the subdivision is located.

ARTICLE 7. WAIVERS, EXCEPTIONS AND APPEALS

Sec. 7.1. Application of regulations in special situations.

A. The intent of these regulations is to promote a balanced and sustainable pattern of physical and economic development for the long term health, safety and general welfare of future lot owners in new subdivisions, as well as for the community at large.

In furtherance of the overall purposes noted in section 1.2, and the criteria for approval and disapproval of subdivisions listed in section 3.11, similarly situated lands shall be treated consistently within their appropriate context.

B. The uniform application of some provisions of these regulations to particular properties having peculiar shapes or physical features, or affected by special circumstances may occasionally incur undue hardships, practical difficulties, or actually fail to accomplish the differing aims of certain regulations. Relevant conditions may always be attached to the planning commission's or subdivision committee's approval of preliminary plans and final plats in the interest of fairness, efficacy and safety; and these are also the primary bases justifying the grant of any waivers or exceptions to the terms of these regulations.

Sec. 7.2. Requests for waivers and exceptions; conditions of approval.

A. A written petition for any desired waiver or exception to these regulations shall be included with the application for preliminary plan or final plat review, as noted in section 3.2. It shall be submitted on forms supplied by the staff of the director, who shall forward one copy of said petition to the city engineer, and one copy to the traffic engineer, immediately upon acceptance of a completed application, and prior to its inclusion on the agenda for the next regular scheduled meeting of the subdivision committee. The petition shall cite the applicable section from which relief is sought, and state fully the grounds in support of the requested waiver or exception, with all supporting facts relied upon by the petitioner. A request for a waiver must show why a required provision is not applicable or fully necessary in the particular situation. A request for an exception must show how the alternate proposal will accomplish the objectives as well as or better than the required provision.

B. In accord with Federal Highway Administration's guidance for "due consideration" of bicycle and pedestrian facilities, exceptional circumstances must be shown to justify an exemption from such requirements. The applicant must submit a written petition for waiver or exception to explain the exceptional circumstance. Exceptional circumstances are defined as:

1. Bicyclists and pedestrians are prohibited by law from using the roadway.

2. The cost of establishing bicycle or pedestrian facilities would be excessively disproportionate to the need or probable use (excessively disproportionate exceeds 20 percent of the larger transportation project).

3. Sparse population or other factors indicate an absence of existing or future needs. The planning commission should consider the context of the project setting, such as proximity to residential, retail areas, high employment areas, parks and greenways, schools, transit, and similar situations that would benefit by bicycle and pedestrian access and the approved bicycle route plan.

C. In granting any waiver or exception, the subdivision committee shall only approve the minimum necessary for the feasible and appropriate utilization or development of the property, and may attach such reasonable conditions as it deems necessary for the protection of the surrounding property, substantially maintaining the objectives of these regulations, in achieving the greater public interest.

D. Any condition shown on the plat or engineering plans or other information specified in article 3 or article 5 which would necessitate a waiver or exception, shall constitute grounds for disapproval of the plan or plat, if such relief is not applied for, justified and subsequently granted.

Sec. 7.3. Granting of waivers and exceptions.

A. If it is determined from all the evidence submitted, and a review of any recommendations by the traffic engineer, city engineer or director, that extraordinary and unnecessary hardships or practical difficulties would result from strict compliance with specific provisions as applied to particular locations or unusual situations, or that the aims and purposes of these regulations may be better served by an alternate proposal, then the subdivision committee or planning commission, upon a favorable recommendation by the city engineer, traffic engineer and the director may approve certain waivers or exceptions, attaching such conditions as may be found necessary. The granting of such relief shall comply with all of the following standards:

1. Not be detrimental to public safety, health or welfare; and
2. Not be injurious to other property in the vicinity; and
3. Not have the effect of nullifying or conflicting with the purposes and criteria cited in sections 1.2 and 3.11 of these regulations; and
4. Not be in conflict with the aims and goals of the zoning ordinance, the major street or bicycle plan, or any elements of the official comprehensive plan; and that
5. The factors of the public interest supported by the proposed waiver or exception outweighs the public interests served by the particular requirement involved; and also
6. The grant conforms to and supports the spirit and intents of these regulations.

B. However, if a requested waiver or exception has not received a favorable recommendation from the city engineer, traffic engineer and the director, then the subdivision committee or the full planning commission may nevertheless grant such waiver or exception, specifying the justifications therefor, only by a unanimous vote of members present at the subdivision committee and a three-quarters majority vote of members present at a full planning commission meeting. Definite provisions governing the grant of certain waivers and exceptions, under prescribed circumstances, are

detailed in several articles of these regulations. In all cases, requests for waivers or exceptions shall be interpreted as described below, with additional guidelines for approval as follows:

1. Waivers may set aside any provision, in whole or in part, affecting procedures or improvements, or postponing enforcement under particular contingencies, only if and when such a requirement is demonstrated to be unnecessary, inapplicable or of no public benefit, because of unique physical conditions, natural topographic conditions, surrounding development patterns, or other special circumstances affecting a particular subdivision proposal.

2. Exceptions may allow unusual or innovative development designs, methods, materials or types of improvements as an option, only if they meet or exceed normally required performance standards; and they should be encouraged where they support environmental quality, conservation, energy efficiency, historic preservation or other public benefits, particularly in conjunction with flexible zoning districts formulated to achieve compact, diverse and sustainable neighborhoods.

C. Evaluation of any requests requires that no waiver or exception shall be granted to:

1. Design standards in article 5, 6, 10 or related engineering requirements cited in section 3.6, unless the applicant demonstrates to the satisfaction of the city engineer, through technical documentation or studies based on generally accepted engineering principles, that the alternate proposal meets health, safety and reliability standards equal to or greater than the pertinent requirements herein; and

2. Any provisions of article 3 or the layout patterns in article 5, unless the applicant demonstrates to the satisfaction of the director, through technical documentation or investigative studies that the alternate development proposal does not pose a threat to health or safety, that it mitigates any deleterious effects, and it provides public benefits equal to or greater than the pertinent requirements herein.

Sec. 7.4. Appeals to the planning commission.

In accord with the notice and hearing procedures set forth in section 3.11, the planning commission shall hear and decide on all appeals by any party aggrieved or adversely affected, including governmental officials, or agencies of the City of Birmingham, where it is alleged that:

A. There is an error in any written order, requirement, decision, interpretation, or determination made by an official responsible for enforcing these regulations; or

B. Any particular provision of these regulations conflicts with another specified federal, state or local law; or

C. Any action by the subdivision committee to approve in whole or in part, to approve with conditions, or to disapprove any subdivision or any request for a waiver or exception, would injure the rights of the applicant, or owners of nearby property, or conflict with the duties of officials charged with protection of the public interest, including health, safety, transportation, utilities, environmental or natural resources, or other facilities or services.

ARTICLE 8. VACATION OF PUBLIC RIGHTS-OF-WAY

Sec. 8.1. Applications.

Where owners of property abutting any portion of a street, alley, or other public way within the City of Birmingham, may desire the vacation of such abutting right-of-way, to combine it with or add it into private property, they may request its annulment and vacation from public use and ownership by filing an application for hearing before the subdivision committee.

A. Applicants proposing to vacate any portion of the right-of-way of public streets, alleys, or public ways, shall apply in the office of the staff of the director, paying the $100.00 vacation application fee, and submitting five copies of a vicinity sketch showing the right-of-way proposed to be vacated. A completed declaration of vacation must be submitted, signed by all owners of property abutting the portion of right-of-way requested for vacation. A notification list must be furnished identifying the names and addresses, as shown in the county tax assessor's office, of all owners of property abutting the portion of right-of-way proposed for vacation, and all owners of property adjoining any right-of-way to remain in the same block or adjoining block face, where access rights may be affected.

B. Applicants for a vacation may, at the same time, apply for a resubdivision of the affected properties, submitting a final plat and five copies thereof, showing the old property lines being removed and new property lines as proposed to be established. Whether applying for final plat approval simultaneously or subsequently, all required fees, procedures and notices to owners of property adjoining the subdivision shall be followed in accord with the provisions of section [article] 3.

C. The staff of the director shall transmit the sketch, with a request for evaluation of impacts of the proposal on current and potential public needs, to the city engineer, traffic engineer, fire and rescue service and other public agencies and utilities which may have jurisdiction over the surrounding area, such as power and telecommunications companies, water works and sewer authorities, gas

companies, county engineers, traffic engineers, and any other organizations which may have existing improvements or subsidiary rights, easements, or responsibilities for exclusive or public access in the vicinity.

D. Neither the City of Birmingham, nor any officers, agent, or employee of the city acting in his official capacity, nor any agency of the city shall be required to pay a fee under this article.

E. Notice of the date, time and location for the hearing by the subdivision committee (or planning commission, if the proposal affects the major street plan or other elements of the city's comprehensive plan) shall be sent by certified mail to the applying owners, and any other owners of property abutting the subject street or way, as cited in subsection 8.1A. above, not less than seven days before the scheduled public hearing on the vacation request.

Sec. 8.2. Investigation and recommendation.

A. The staff of the director shall distribute copies of vicinity sketches and plats as provided in the case of regular subdivision applications. In addition to reviewing responses from owners of nearby properties, and various public and private agencies and utilities which might be affected, the staff shall investigate existing improvements or uses on the land proposed for vacation, and the surrounding environs, evaluating potential access needs or impacts on future plans in the vicinity. This background information shall be evaluated in preparing a draft report for consideration by the director and city engineer, whose written recommendations shall be submitted to the subdivision committee.

B. Any citizen aggrieved by the proposal may submit a written objection, and may request to be heard at the hearing. The vacation shall not deprive other property owners of any right they may have to convenient and reasonable means of ingress and egress to and from their property; and if that right is not afforded by the remaining streets and alleys, another street or alley segment must be dedicated to maintain such access.

C. Upon hearing the application, any public comments, and the recommendations from the director and city engineer, the subdivision committee shall make its recommendations to the city council as to whether said proposed vacation is in the best interest of the city.

Sec. 8.3. Procedure for city council hearing.

In accord with Ordinance No. 05-208, within ten days after receiving written notice of the subdivision committee's recommendation, the applicant shall submit both a $2,500.00 advertising fee and a vacation of right-of-way fee to the staff of the director, in order to proceed to a hearing before the city council.

A. The amount of the vacation of right-of-way fee shall be one-third of the combined value of the area to be vacated, as determined by multiplying the

assessed value per square foot of all subdivision lots or tracts abutting that portion of the street or public way proposed for vacation times the square foot area of the land to be added to the real property of each abutting landowner as a result of the vacation.

1. The council may reduce or waive this amount for businesses based on economic benefits to the city as described in section 4-5-84(c), of the General Code of the City of Birmingham; and
2. The vacation of right-of-way fee shall be waived for governmental agencies and not-for-profit organizations receiving exemption from state ad valorem taxes by the county tax assessor.

B. On receipt of all required fees, the staff of the director will send the subdivision committee's recommendations, the declaration of vacation, and a draft of the resolution of assent, to the city council, for its consideration at a public hearing to be held within the next 90 days.

1. Notice of the hearing shall be published in a newspaper of general circulation once a week for four consecutive weeks prior to the date of the hearing.
2. Written notice of the hearing shall also be mailed, at least 30 days prior to the hearing, to all utilities and owners of property abutting any portion of the street or way proposed for vacation, including any remaining portions, whether or not that part of the street is included in the vacation request.
3. A copy of the notice shall be posted on a bulletin board at the county courthouse.

C. If the council refuses assent to the vacation, the vacation of right-of-way fee shall be returned to the applicant.

D. If approved, assent to the vacation by the council shall be evidenced by a resolution, certified by the city clerk, and attached to the declaration of vacation for recording in probate court.

1. If the council sets a lower vacation of right-of-way fee than originally computed, the difference shall be refunded to the applicant.
2. Within 30 days after the council acts on the vacation, if actual costs for advertisement and notices are less than the set $2,500.00 fee, the city shall reimburse the overpayment to the applicant; if the actual costs are higher than said fee, the applicant shall reimburse the city for the shortage before the record plat can be recorded.
3. Notice of the council's action of the request shall be published once in a newspaper in the county no later than 14 days after its adoption.

4. The declaration of vacation and resolution of assent shall not be recorded in probate court until a final plat has been approved, incorporating the vacated land into the abutting lots.

Sec. 8.4. Final plat of resubdivision.

A. Since the effect of vacating public ways necessitates establishment of new property lines for abutting properties which incorporate portions of such vacated ways, the applicant shall, within three months after the passage of the resolution assenting to the vacation thereof by the council, submit a final plat, in accord with section [article] 3, removing old property lines and establishing new ones, for approval by the subdivision committee.

B. Entities with utility lines, equipment or facilities in place at the time of vacation, shall retain an easement thereon, to be noted on the plat, keeping the right to continue to maintain, extend, and enlarge their lines, equipment, or facilities to the same extent as if the vacation had not occurred.

C. Said final plat shall show the vacated land in dotted lines, with reference to the deed book and page where the instruments of vacation are recorded. And the final plat shall comply with all other applicable requirements of these regulations.

ARTICLE 9. CONDOMINIUM DEVELOPMENT

Sec. 9.1. Approval required.

No building or grading permit shall be issued for a new or expanded condominium, or conversion of an existing building for subdivision into separable residential or nonresidential ownership units, except in compliance with all provisions of this article.

Sec. 9.2. Applicability.

This article governs the subdivision of real or personal property into two or more units of property by one or more owners, in which owners of all individual units will share an undivided interest in the building, premises and all remaining common elements of the subdivided land.

Sec. 9.3. Application procedures.

Application for final plat hearings on a condominium subdivision and condominium plan shall be filed with the staff of the director according to procedures in article 3 of these regulations. Plats and any public improvements shall comply with articles 4 through 6, and identify each unit designated for individual ownership and exclusive

occupancy, as well as all undivided interests in common elements, limited common elements and other areas or improvements to be shared by all unit owners. Further documentation shall include:

A. Site development plan and condominium plan. Three copies of detailed plans, to scale, fully dimensioned showing all structures, principal uses, roads, all traffic control devices, recreational area, sidewalks, lighting, parking spaces, service areas, trash receptacles, curbs, drainage, signs and landscaping; indicating relations among buildings, structures, utilities, site improvements and open spaces.

B. Three sets of condominium architectural plans, to scale, fully dimensioned, keyed to legal descriptions, including elevations, cross sections; all units, their size and locations, typical separation of units; all common areas, with corridors, stairs, elevators, and main utilities; the proposed uses, such as office, meeting rooms, storage or maintenance for all portions of proposed buildings and structures. One set shall be referred to the inspection services division of the department of planning, engineering and permits for pre-review and recommendations by the assigned plans examiner.

C. If phased as part of a larger project, three copies of conceptual plans for the ultimate development of the entire property.

D. Three copies of the articles of incorporation, and the declaration of condominium, with bylaws, all protective covenants and restrictions, and subdivision plats, that comply with the guidelines of title 35, chapter 8A, the Alabama Uniform Condominium Act of 1991, as amended.

Sec. 9.4. Acceptance of application and filing fees.

No application shall be accepted which does not conform to all zoning requirements. The subdivider shall pay an additional fee of $100.00 for the filing of each condominium project application, as noted along with the normal final plat fees listed in section 3.7; such charges to be paid upon submission of an acceptable application.

Sec. 9.5. Hearing and notice.

On receipt of a completed application, the subdivision committee shall hold a public hearing on the subdivision and condominium plan, following the same notice and procedures as established in article 3 of these regulations.

Sec. 9.6. Evaluation and action on subdivision.

The staff of the director shall investigate and summarize the issues bearing on the proposal, attaching recommendations from the city engineer, traffic engineer, fire marshal, and chief of inspection services to the subdivision committee. After hearing, and review of all information by the applicant and public comments, the commission

shall approve, approve conditionally, or disapprove condominium plans and the final plat, noting the grounds therefore, in accord with articles 1 and 3 of these regulations.

Sec. 9.7. Effect of plan approvals, and recording.

A. Subdivision committee approval of the final plat shall be conditioned, at a minimum, on subsequent submission of surveyed final building and site plan. Approval of the condominium plans and final plat authorizes the issuance of building, grading and other permits in compliance therewith, and the construction of all improvements on the property.

B. After installation of any public improvements to the satisfaction of the city engineer; the completion of all construction, and filing of surveyed final building plans; and certification by the director as to compliance with all conditions; then the surveyed final building plans, site development plans and final plat shall be filed with the declaration of condominium, articles of incorporation of the property owners association, and bylaws, for recording in the office of the probate judge in the county where the property is located. This authorizes conveyance of the individual units.

Sec. 9.8. Expiration of approval.

Each approval or conditional approval authorized under the provisions of this article which is not acted upon, and actual construction has not commenced on the buildings, or structures involved, within 24 months from the date of its conditional final plat approval, shall become null and void. In the event substantial construction work has occurred, a 12-month extension may be granted by the director, and must be diligently continued to completion.

Sec. 9.9. Amendments.

Whenever the subdivision map and plans as required herein have been recorded, and where there are intended changes in size, shape or location of buildings, type of structures or uses, creation of additional units, expansion of the project, merger, consolidation, or termination of the condominium form of ownership, then an amendment to the recorded map shall be requested as a resubdivision or new subdivision in compliance with the same procedure as set forth in the filing and recording of the original application.

No new hearing will be required for small revisions in compliance with zoning, not requiring expansion of the building. Upon favorable recommendation by the chief of inspection services, the director may approve and record minor plat changes in boundaries between existing units involving no more than three additional units, when requested by the affected owners, and approved by the condominium unit owners association, amending their declaration of condominium.

APPENDIX A. BYLAWS OF THE BIRMINGHAM PLANNING COMMISSION

ADOPTED MAY 7, 2003

Art. I. General provisions.

a. *Title.* The organization to be governed by these bylaws shall be known as the Birmingham Planning Commission, hereinafter referred to as "commission."

b. *Authority.* The commission is established and operates under authority granted by the Alabama State Legislature as set forth in title 11, chapter 52, Code of Alabama 1975, as amended.

c. *Office of commission.* The office of the commission shall be located in Birmingham City Hall. Copies of all official documents, records, maps, tapes and other relevant information shall be filed and maintained in the city's department of planning, engineering and permits.

Art. II. Membership.

a. *Composition.*

The commission shall consist of 16 members. Twelve of the members shall be composed of citizens appointed by the Birmingham City Council. The four remaining members shall be ex officio members including: the mayor, an administrative officer selected by the mayor, and two members of the Birmingham City Council selected by said council.

In addition to regular members, the mayor and each of the city council members serving on the commission may appoint, from their administrative staffs exclusively, a supernumerary member who shall be authorized to act with all of the power and authority of a regular member whenever such municipal official is not in attendance.

b. *Qualifications.* Each appointed member shall be a resident of the City of Birmingham. The commission's appointed citizen members shall not be city employees or publicly elected officials.

c. *Terms of members.*

The term of each appointed member of the commission shall be six years or until a successor takes office. If a member resigns or is excused from the commission before the end of a term, the city council may appoint a substitute member to fill the vacancy for the duration of the vacated term. A member whose term expires may continue to serve until a successor is appointed. Members may be appointed for more than one term.

The term of the ex officio administrative member selected by the mayor shall end with the mayor's term of office or when the mayor designates a replacement. The

terms of the ex officio members selected by the city council shall end with their term as a member of the city council or when the city council designates different council representatives. The term of the mayor shall end with his/her term of office or upon a resignation from the office.

d. *Removal from office.* Appointed members may, following a public hearing, be removed by the city council for inefficiency, neglect of duty, or malfeasance in office. Vacancies occurring other than through the expiration of a term shall be filled for the unexpired term by the city council, with the exception of the mayor and the administrative member selected by the mayor.

e. *Compensation.* In accord with the provisions of Act No. 672 of the Alabama State Legislature, dated April 25, 1994, and City of Birmingham Ordinance No. 94-251, dated November 29, 1994, all appointed members of the commission shall be compensated $25.00 for each regular meeting of the commission or special committees attended, with each member being eligible to receive a maximum amount of no more than $50.00 per month.

f. *Attendance.*

Each citizen appointed commissioner shall attend at least 75 percent of all regularly scheduled meetings of the Birmingham Planning Commission, and also 75 percent of all regularly scheduled meetings of said commissioner's assigned standing committee (zoning advisory or subdivision committee). However, when any such commissioner attends a meeting of an unassigned standing committee where requested in order to establish a quorum, this attendance shall nullify an absence from an assigned standing committee meeting.

If any such commissioner shall miss two meetings of the planning commission or three meetings of an assigned standing committee within any six month period or less, the chairman, acting on behalf of the planning commission, shall advise said member of his or her attendance record in writing, counseling against excessive absences in the future. If within any 12-month period, any member shall miss four planning commission meetings or seven assigned standing committee meetings, the chairman, acting on behalf of the planning commission, shall submit a written recommendation to the city council, via the chairman of the council's planning and zoning committee, that the city council take appropriate action in accord with state law to remove said member.

Art. III. Officers and other appointed positions and their duties.

a. *Chairman.* A chairman shall be elected from the citizen appointed members by a majority of the members of the commission. The term of the chairman shall be for two years beginning with the date of election, with eligibility for re-election. The chairman shall preside at all meetings and hearings by the commission, decide all

points of order and procedures, call special meetings of the commission, assign commission or other members to special non-standing committees, and perform any duties required by law, these rules, or the commission.

b. *Vice-chairman.* The commission shall elect a vice-chairman from among its appointed citizen members in the same manner and for the same term as the chairman. The vice-chairman shall perform all of the duties of the chairman during the absence or disability of the chairman, and shall be eligible for re-election.

c. *Chairman pro tempore.*

The commission shall elect a chairman pro tempore from among its appointed citizen members in the same manner and for the same term as the chairman. The chairman pro tempore shall perform all of the duties of the chairman during the absence or disability of both the chairman and the vice chairman, and shall be eligible for re-election.

In the absence of all three commission officers, a member designated by a majority vote of the members present shall serve as interim chairman for that meeting.

d. *Other officers.* Other officers as may be appointed shall have such authority and perform such duties as, from time to time, may be assigned by the chairman.

e. *Vacancies.* If an elected office becomes vacant by reason of death, resignation, or any other reason, the commission shall elect, by a majority vote of the members present at the next regular meeting, a successor to hold office for the unexpired term.

f. *Secretary.* The director of the planning, engineering and permits department or his/her designee shall serve as secretary to the commission. The secretary shall perform the administrative and clerical functions of the commission and shall keep a record of each meeting as well as records of all resolutions, transactions, findings and determinations. The secretary shall also be responsible for handling all correspondence and notices for the commission and other administrative duties and responsibilities necessary for the commission to conduct its affairs.

Art. IV. Nomination and election of officers.

a. *Nominations.* Nominations of officers shall be made by a three-member nominating committee appointed biennially by the chairman at the commission's November meeting. The committee shall make its report and recommendations to the full commission at an organizational meeting to be held on the following December. In addition to the recommendations of the nominating committee, nominations may be made by any member at the organizational meeting. Candidates shall be limited to citizen appointed members of the commission.

b. *Election.* The election of the commission's officers shall immediately follow the nomination process. A candidate receiving a majority vote of the members present shall be declared elected and shall serve for a term of two years or until a successor takes office.

c. *Vacancies.* Vacancies in offices shall be filled by the election procedures described in the commission's bylaws.

d. *Resignations.* Resignations from the commission shall be in written form and transmitted to the chairman who will then forward the same to the chairman of the city council's planning and zoning committee.

Art. V. Committees.

Committees may be created from the commission's membership with such authority as shall be designated by the commission.

a. *Standing committees.* To assist the commission in the performance of its duties and responsibilities, specific standing committees shall be created to administer the affairs of the commission and to evaluate and render decisions on behalf of the full commission.

1. *Executive committee.* The executive committee shall be composed of the chairman, vice-chairman, chairman pro tempore, an at-large commission member appointed by the chairman, the chairman of the city council's planning and zoning committee or his/her designee, and the commission's secretary, who shall serve as a non-voting advisor to the committee. The committee shall act on all matters concerning administrative procedures, financial affairs, and personnel issues involving commission members.

2. *Zoning advisory committee.*

   The zoning advisory committee shall be composed of seven appointed members from the commission membership. The members shall be elected at a biennial organizational meeting to be held in December based on the election procedures outlined under article IV of these bylaws. Service on the committee shall be for two years with members being eligible for re-election. The committee shall elect its own officers and shall be governed by separate rules of procedure authorized under City Ordinance No. 1800-F, as amended by Ordinance No. 1817-F. The committee shall hold its meetings on the first and third Tuesday of each month in Birmingham City Hall unless rescheduled by a majority of the members present due to holiday conflicts or other circumstances. A quorum of the committee shall consist of four members. In the event that a quorum of the members cannot be present for a meeting, the chairman of the commission may designate a member from the subdivision committee to serve on the committee in order to establish a quorum for that meeting.

This committee is organized to advise the city council directly on all applications for changes in the zoning ordinance and the zoning district map as well as the review and approval of development plans. The committee is authorized to act on behalf of the commission, with no provisions for an appeal of its decisions to the full commission. All recommendations regarding the initial zoning of properties annexed into the City of Birmingham from unincorporated areas shall be the responsibility of the full commission.

3. *Subdivision committee.*

The subdivision committee shall be composed of five members from the commission's citizen appointed membership. The members shall be elected at a biennial organizational meeting to be held in December based on the election procedures outlined under article IV of these bylaws. The committee shall elect its own officers and shall be governed by separate rules of procedure authorized under the provisions of sections 30 through 36 of title 11, chapter 52 [of the Code of] Alabama 1975. Service on the committee shall be for one year with members being eligible for re-election.

The committee shall hold its meetings on the second and fourth Wednesday of each month in Birmingham City Hall, with the exception of the months of November and December when the committee shall meet on the third Wednesday of each month or unless rescheduled by a majority vote of the members present. A quorum of the committee shall consist of three members. In the event that a quorum of the members cannot be present for a meeting, the chairman of the commission may designate a member from the zoning advisory committee to serve on the committee in order to establish a quorum for that meeting.

This committee is organized to review proposals for subdividing land, combining lots, or vacating/dedicating public rights-of-way. While the committee has the authority to approve subdivisions, the vacation or dedication of public rights-of-way can only be approved by the city council. A case can be referred to the full commission by either the committee or through an appeal process by an applicant or an aggrieved party.

b. *Other committees.* Special committees may be appointed by the chairman for purposes and terms which the commission approves. At least three members of the commission shall constitute an appointed committee. The chairman may appoint non-commission members with specific knowledge and expertise in a subject area to serve with commission members on such committees. The committees may function for extended periods of time or may be terminated by the chairman once they have performed their functions.

1. *Project review committee.*

The project review committee shall be composed of the five commission members comprising the subdivision committee, as well as at least four

voting ex officio members appointed by the chairman which may include: the city engineer, the traffic engineer, the city architect, and the chairman of the city council's planning and zoning committee or his/her designee. A quorum of the committee shall consist of five members. The committee shall meet as needed on the second and fourth Wednesday of each month in Birmingham City Hall.

This committee is organized and authorized to review public facility proposals for recommendations to the full commission, and to review and approve on behalf of the commission minor additions, alterations or modifications to existing public facilities or utilities. Major public facility projects must be reviewed and approved by the commission. The decisions of the committee can be appealed to the full commission.

2. *Comprehensive planning committee.* The comprehensive planning committee shall be composed of the seven commission members comprising the zoning advisory committee. A quorum of the committee shall consist of four members. The committee shall meet as needed. This committee is organized to review in-depth elements of the city's comprehensive plan, neighborhood improvement plans, urban renewal and urban redevelopment plans, and other long-range plans, programs, or studies affecting the physical development of the city and to report its findings and recommendations to the full commission. The decisions of the committee are for advisory purposes only.

Art. VI. Meetings.

a. *Quorum.* A majority of the members of the planning commission (nine members) shall constitute a quorum for the beginning of a meeting and for the purpose of conducting business.

b. *Regular meetings.* Regular meetings of the commission shall be held on the first Wednesday of each month at 8:30 a.m. in the city council chamber in Birmingham City Hall. In the event of a conflict with holidays or other events, a majority vote of the members may change the time, date or place of the meeting, if so decided at the previous meeting.

c. *Pre-hearing meetings.* The commission may hold a meeting immediately preceding the regular meeting to discuss with staff the details of items scheduled to be considered. The public may attend such meetings based on the state's open meeting law, but may not participate in discussions.

d. *Special meetings.* Special or non-regularly scheduled meetings of the commission may be called at any time by the chairman or by a majority of the voting members of the commission present at a meeting. All members shall be notified in writing of the

purpose, time, date, and place of the meeting at least 72 hours in advance. At such special meetings no business shall be considered other than that designated in the notification.

e. *Work sessions.* The commission may hold work sessions with staff and others to discuss items of common concern, receive training, and review staff project assignments by the commission. The public may attend all work sessions but participation in discussion shall be by consent of the chairman. All members shall receive at least 72 hours advance notice of the purpose, time, date and place of the work session.

f. *Cancellation of meetings.* In instances where there are no applications, public hearings, cases or other business requiring consideration or action by the commission, the chairman, in consultation with commission staff, may dispense with a regular meeting by giving written or oral notice to all members.

g. *Conduct of meetings.* All meetings shall be open to the public. Robert's Rules of Order shall govern the commission and its committees.

h. *Order of business.* Unless otherwise determined by the chairman, the general order of business at regular meetings shall be:

1. Call to order.
2. Roll call (determination of quorum).
3. Approval of agenda.
4. Approval of minutes.
5. Committee/official reports.
6. Public hearings.
7. Other business.
8. Adjournment.

i. *Agenda.*

1. An agenda for each regular meeting of the planning commission shall be prepared by the secretary.
2. The agenda, along with information pertinent to each scheduled public hearing case and other business matters, shall be mailed to each planning commissioner at least five business days before the meeting, allowing sufficient opportunity for the commission to visit each site and review case files. All files and records of the commission shall be open and made available to the public.
3. A sufficient number of agendas shall be available to the public at the regular meeting.

4. Only those items on the regular meeting agenda shall be discussed during the meeting. However, any additional item may be placed on the agenda with the approval of the chairman. This provision does not apply to items where a public hearing and public notice is required by law.

j. *Voting.* A majority vote of the members present at a meeting and constituting a quorum shall be necessary to decide any item of business requiring action by the commission, with the exception of the adoption of the city's master plan or amendments to said plan which shall be approved by the affirmative vote of at least 12 members as required by state law (Code of Alabama 1975, § 11-52-10). The commission may be polled, at the discretion of the chairman, or upon the request of a commission member, on any controversial action. All decisions of the commission shall be shown in the record of the meeting as entered in the minutes of the commission. All ex officio members of the commission shall have full membership rights including: discussion, motions, and voting.

k. *Disqualification.* No member of the commission shall participate in a hearing as a commission member or vote as a commission member upon any matter in which he, or his immediate family, has a personal or financial interest, either direct or indirect in nature as defined by the Alabama Ethics Law (Act No. 95-194). In the event of such a conflict, a member should recuse himself from consideration of the item of business.

l. *Minutes and records.* Each action of the commission shall be recorded in the minutes and supporting documents maintained in the office of the City of Birmingham's Department of Planning, Engineering and Permits. Each meeting shall be tape recorded and the record retained a minimum of five years. All such records shall be available to the public.

Art. VII. Public hearings.

a. *General procedures.*

The commission shall hold public hearings prescribed by law in accordance with requirements set forth for such hearings in the Code of Alabama. In addition to required hearings, the commission may hold additional public hearings when it determines that such hearings will be in the interest of the public.

Any party may appear in person or be represented by an agent at the hearing. Witnesses may be called and factual evidence submitted. The commission may establish reasonable time limits for speakers, considering the time constraints of the meeting and the complexity of the issues. Equal time shall be granted to each side during rebuttal arguments.

b. *Order of public hearings.* Unless otherwise determined by the chairman, the general order for conducting public hearings shall be:

1. The chairman introduces each case by reading from the notice of public hearing;

2. Commission staff presents background information regarding the case, including a recommendation;
3. The applicant presents the case supporting the proposal;
4. Persons in favor of the proposal allowed to speak;
5. Persons in opposition to the proposal allowed to speak;
6. The applicant allowed to speak in summary or rebuttal;
7. The commission may question the applicant, staff or other speakers at any time;
8. The commission discusses the case and makes a decision;
9. The public hearing will be declared closed.

c. *Continued case.* A case may be continued at the request of the applicant or by a majority decision of the commission members present to a later meeting of the commission. If a public hearing case is continued beyond 90 days from the filing of the application, the case may not be heard nor a decision reached without due public notice being again provided in the same manner as for a first hearing.

d. *Rehearing.* An application for a rehearing may be made in the same manner as provided for in an original hearing. The application for rehearing shall be denied by a majority vote of the commission members present if from the record it shall appear that there has been no substantial change in facts, evidence, or conditions.

Art. VIII. Amendments.

a. *Adoption.* These bylaws/procedures shall become effective when adopted by the commission.

b. *Amendments.* These bylaws/procedures may, within the limits allowed by law, be amended at any meeting of the commission by a two-thirds vote of the voting membership of the commission, but only after the proposed change has been read and discussed at a previous regular meeting.

APPENDIX B. RULES OF PROCEDURE OF THE SUBDIVISION COMMITTEE OF THE BIRMINGHAM PLANNING COMMISSION

Sec. I. Authority.

The subdivision committee of the Birmingham Planning Commission is established under Section 799, Title 37, 1940 Alabama Code.

Robert's Rules of Order shall govern the order of business and conduct of meetings of the subdivision committee.

Sec. II. Membership.

Composition: The membership of the subdivision committee shall be composed of five members elected by the Birmingham Planning Commission from its appointed membership.

Terms of membership: Members duly elected to membership on the subdivision committee shall continue to serve on the committee as long as they are legally serving as members of the Birmingham Planning Commission or until replaced by election of the planning commission.

Replacement: Replacement for any member of the committee whose term of office on the Birmingham Planning Commission is terminated shall be by election from the appointed membership of the planning commission.

Sec. III. Officers.

Chairman: A chairman shall be elected by the members of the subdivision committee. His term shall be for one year beginning with the date of election, and he shall be eligible for reelection. The chairman shall decide upon all points of order and procedure, subject to these rules of procedure, unless directed otherwise by a majority of the committee in session at the time. The chairman may appoint any subcommittee deemed necessary to investigate any matter before the committee.

Vice-chairman: A vice-chairman shall be elected by the members of the subdivision committee in the same manner and for the same term as the chairman. He shall serve as acting chairman in the absence of the chairman, and at such times he shall have the same powers and duties as the chairman.

Secretary: The director of planning, engineering and permits or his designee shall perform the administrative and clerical functions of the subdivision committee. He shall keep all records and handle all correspondence and notices for the committee.

Sec. IV. Applications.

Subdivision applications shall be filed in accordance with the provisions of the City of Birmingham Subdivision Regulations.

Sec. V. Meetings.

Meeting place and time: Regular meetings of the subdivision committee shall be held in the council chambers of city hall, provided that if the committee chairman so directs, meetings may be held at any other location within city hall. The committee shall hold its meetings on the second and fourth Wednesday of each month, provided that in the event of legal holidays falling on these dates, the committee will select an alternative meeting date prior to the holiday.

Special meetings: Special meetings of the subdivision committee may be called at any time by the chairman. At least 48 hours written or oral notice of the time and place of a special meeting shall be given to each member of the committee.

Cancellation [of] meetings: Whenever there are no applications, public hearings, or other business of the subdivision committee, the chairman may dispense with a regular meeting by giving written or oral notice to all members no less than 48 hours prior to the time set for the meeting.

Conduct of meetings: All meetings shall be open to the public. The order of business at regular meetings shall be as follows:

a. Roll call.

b. Approval of minutes of previous meeting.

c. Hearing of cases.

d. Unfinished business.

e. New business.

Presentation or hearing of proposals: The following shall be the order of procedure for public hearings before the subdivision committee:

a. The chairman, or such person as he shall direct, shall give a preliminary introduction of the case.

b. The applicant shall present the proposal before the committee.

c. Any persons opposed to the application shall present the argument against the proposal.

d. Both sides will be permitted to present rebuttals to opposing testimony (at the discretion of the chairman).

Witnesses may be called and factual evidence may be submitted, but the committee shall not be limited to consideration of such evidence as would be admissible in a court of law. The committee may view the premises before arriving at a decision.

Disqualification from voting: No subdivision committee member shall take part in the hearing or decision of any case in which he shall be personally or financially interested. No committee member shall vote on any matter concerning a public hearing unless he shall have attended the public hearing.

Sec. VI. Quorum.

A quorum shall consist of three members of the subdivision committee. When less than three members are present for any hearing, then an appointed planning commission member who serves on a committee other than the subdivision committee

may serve as a subdivision committee member in order to obtain a quorum. If a quorum is not met, then those members present shall agree to and announce the time and place for a continued hearing.

Sec. VII. Minutes.

The minutes of every meeting of the subdivision committee shall be kept in a permanent file in the offices of the department of planning, engineering and permits and shall be a public record. These shall show the record of every action taken by the committee and the reason therefor. The names of members absent or abstaining from voting shall also be kept as part of the public record.

APPENDIX C. BIRMINGHAM PLANNING COMMISSION

CITY OF BIRMINGHAM

CERTIFIED COPY OF RESOLUTION

SUBJECT: A request for approval of a "Complete Streets" policy.

PREMISES: The City of Birmingham

COMMISSION ACTION

WHEREAS, "Complete Streets" are defined as streets that are designed to accommodate all users - motorists, pedestrians, bicyclists, and transit riders;

WHEREAS, "Complete Streets" can include a range of elements to accommodate all users, including, but not limited to, sidewalks, signage, paved shoulders, bicycle lanes, traffic lanes shared with motorists including sharrows and other bicycle pavement markings, crosswalks and other pavement markings for pedestrians, pedestrian control signalization, bicycle actuated traffic signals, bus pull outs, curb cuts, raised crosswalks, roundabouts, traffic islands and other traffic calming measures;

WHEREAS, "Complete Streets" principles should guide future street and transportation plans for both new and retrofit projects in the City of Birmingham, and any exception to this approach should be appropriately justified;

WHEREAS, "Complete Street's" application will vary depending on the surrounding land uses and densities and its general context; however street and transportation plans should always be guided by the principle that streets should promote multiple transportation options for all people;

WHEREAS, "Complete Streets" can spark economic development and community development by helping to create walkable, vibrant communities where businesses can thrive and be strong, livable neighborhoods for City of Birmingham residents;

WHEREAS, "Complete Streets" can play a role by reducing pedestrian and bicyclist injuries and deaths, reducing traffic congestion, improving air quality both by promoting alternative forms of transportation and by helping to improve traffic flow;

WHEREAS, the people of the City of Birmingham have expressed a strong desire for increased transportation options, including walking, cycling, and transit;

WHEREAS, the May 2011 edition of the *Transportation of America* pedestrian safety report entitled Dangerous Design, ranked Birmingham as the 16th most dangerous metro area for pedestrians; the *AARP Bulletin* released November 9, 2009 ranked Birmingham the ninth most dangerous metro area for walkers; and *Bicycling* magazine's May 2010 edition ranked Birmingham as one of the three "Worst Cities" in America for bicycling.

NOW, THEREFORE BE IT RESOLVED that the Birmingham Planning Commission strongly endorses a Complete Streets approach for the City of Birmingham to enhance transportation options and to improve quality of life for the residents of Birmingham as follows:

1. The City of Birmingham shall, to the maximum extent practical, scope, plan, design, construct, operate, and maintain all city streets to provide a comprehensive and integrated network of facilities for people of all ages and abilities traveling by foot, bicycle, automobile, public transportation, and commercial vehicle.

2. Such improvements shall be consistent with and supportive of the local community, and that early consideration shall be given to any project's land use and transportation context.

3. Facilities for all users shall be considered in the construction, reconstruction, retrofit, repaving, and rehabilitation of city streets, except under one or more of the following conditions:

    a. The project involves a roadway on which a specific use is prohibited by law.

    b. There is a documented absence by the City of Birmingham of existing bicycle or pedestrian activity and absence of future need recognized in approved Birmingham Transportation Plan elements.

    c. The subdivision regulations do not require sidewalks along the proposed street; however, some accommodations for bicycles may be needed depending on approved plans.

    d. The costs of providing accommodation are "excessively disproportionate" to the need or probable use, as recognized by the City of Birmingham. Excessively disproportionate is defined as exceeding 20 percent of the cost of the larger transportation project. This 20 percent figure should be used

in an advisory rather than an absolute sense. Claims of "excessively disproportionate" cost shall be submitted for review by the City of Birmingham.

4. The city shall, to the maximum extent practical, follow the latest adopted design standards when implementing this policy, including, but not limited to:
   a. Guidance issued by the:
      - American Association of State Highway Officials publications including *A Guide for Achieving Flexibility in Highway Design*
      - Institute of Transportation Engineers' Recommended Practice, "*Designing Walkable Urban Thoroughfares: A Context-Sensitive Approach*"
      - *Pedestrian Right-of-Way Accessible Guidelines* (PROWAG) from the Architectural & Transportation Barriers Compliance Board
      - National Association of City Transportation Officials' "*Urban Bikeway Design Guide*"
   b. Application of design standards shall be flexible, recognizing that all streets are not alike and that user needs should be balanced, and innovative or non-traditional design options shall be considered.
5. The city engineer and traffic engineer shall develop implementation strategies that include revising and updating processes, procedures, design and construction manuals, recommended traffic control devices, standard construction specifications and other guidance to assist in this resolution's implementation.

BE IT FURTHER RESOLVED that the planning commission urges the City of Birmingham to work with Jefferson County, the Birmingham Metropolitan Planning Organization, the Alabama Department of Transportation, related advisory committees, and community organizations to achieve the goals set forth in this complete streets policy.

BE IT FURTHER RESOLVED that the planning commission urges the Birmingham City Council, the mayor's office, and relevant governmental agencies to revise, adopt, and implement policies and practices to support the complete streets approach.

BE IT FURTHER RESOLVED that the planning commission urges the City of Birmingham to release annual reports on its progress in implementing this policy.

APPENDIX D

U.S. Department of Transportation

Federal Highway Administration

Alabama Division

500 Eastern Blvd., Suite 200

Montgomery, AL 36117-2018

June 12, 2009

Mr. D. J. McInnes

Director

Alabama Department of Transportation

Montgomery, Alabama

In Reply Refer To:

HDA-AL

Dear Mr. McInnes:

Subject: Consideration of Bicycle and Pedestrian Needs in Metropolitan Planning Organization (MPO) Long Range Transportation Plans (LRTPs)

As Alabama's MPOs are in the process of updating their current LRTPs, some points to consider in accommodating bicycle and pedestrians needs are identified below:

- 23 United States Code 217 states that "Bicyclists and pedestrians shall be given due consideration in the comprehensive transportation plans developed by each metropolitan planning organization and State."
- FHWA guidance on this issue states that "Due consideration" of bicycle and pedestrian needs should include, at a minimum, a presumption that bicyclists and pedestrians will be accommodated in the design of new and improved transportation facilities. In the planning, design and operation of transportation facilities, bicyclists and pedestrians should be included as a matter of routine, and the decision not to accommodate them should be the exception rather than the rule. There must be exceptional circumstances for denying bicycle and pedestrian access either by prohibition or by designing highways that are incompatible with safe, convenient walking and bicycling."

Exceptional circumstances are defined as:

- Bicyclists and pedestrians are prohibited by law from using the roadway, In this instance, an effort may be necessary to accommodate bicyclists and pedestrians elsewhere within the right-of-way or within the same transportation corridor.
- The cost of establishing bikeways or walkways would be excessively disproportionate to the need or probable use. Excessively disproportionate is defined as exceeding 20 percent of the cost of the larger transportation project. This 20 percent figure should be used in an advisory rather than an absolute sense.

- Where sparsity of population or other factors indicate an absence of existing and future need. For example, the Portland Pedestrian Guide requires "all construction of new public streets" to include sidewalk improvements on both sides, unless the street is a cul-de-sac with four or fewer dwellings, or the street has severe topographic or natural resource constraints.

In order to comply with these requirements, the updated MPO LRTPs must, at a minimum:

- Consider the context of the project setting. In other words, MPOs should consider whether the general project area includes features like neighborhoods, shopping, schools, transit, or other facilities likely associated with the needs of bicyclists or pedestrians;
- Consider any evidence of existing, informal bicycle-pedestrian activities. An example could be a worn, dirt path along an existing road;
- Consider any reference to bicycle or pedestrian needs in the planning process for the project area;
- Consider public, agency or other comments requesting such facilities;
- Include maps and other appropriate documentation; e.g., project listing tables, identifying specific bicycle-pedestrian projects proposed in the LRTP. The maps and documentation should be consistent with the treatment of traditional "highway" projects in the LRTP; and
- Include a policy statement that bicycling and walking facilities will be incorporated into all transportation projects unless exceptional circumstances exist. If you have any questions, please contact Dave Harris at 334.223.7830.

Sincerely yours,

/s/Dave Harris

for: Mark D. Bartlett, P.E.

Division Administrator

cc: Mr. Don Arkle, ALDOT Mr. Robert Ella, ALDOT

Mr. Jeffery Anoka, FTA Region IV, Alabama MPOs File 570 Reading

Andrews Capps Harris Dharris/ls 6/12/09

G:/Guidance-Policies-Procedures/Planning/Bicycle and pedestrian consideration in MPO LRTPs.doc

Appendix D

ZONING*

[Title 1. General Provisions]

[Article I.] Purpose

Sec. 1. Purpose.

[Article II.] Zoning Districts and Boundaries

Sec. 1. Establishment of districts.
Sec. 2. Zone map.

***Editor's note—**Printed herein is the city's zoning ordinance, Ord. No. 1809-F, as adopted and later amended by the city council. A uniform system of capitalization has been employed, catchlines have been added to individual sections where necessary and a frontal analysis has been added for the convenience of the user. Amendments are indicated by an historical citation following each amended section. Page numbers referenced herein are to page numbers of the original ordinance from which the provision was derived.

Pursuant to Ordinance No. 63-3, the term "City Commission" has been changed to "City Council" and the term "City Comptroller" has been changed to "Director of Finance." Also, for purposes of clarification, the word "chapter" has been changed to "ordinance."

State law reference—Zoning, Code of Ala. 1975, § 11-52-70 et seq.

Index

Ordinance No. 90-130	5-15-1990
Ordinance No. 90-137	5-29-1990
Ordinance No. 90-207	8- 7-1990
Ordinance No. 91-214	9-10-1991
Ordinance No. 94-66	4- 5-1994
Ordinance No. 94-255	11-29-1994
Ordinance No. 95-56	3-21-1995
Ordinance No. 97-16	1-28-1997
Ordinance No. 97-20	2-18-1997
Ordinance No. 97-21	2-18-1997
Ordinance No. 97-77	6-24-1997
Ordinance No. 00-142	9- 5-2000
Ordinance No. 01-25	3- 6-2001

Ordinance No. 02-44	4-23-2002
Ordinance No. 02-159	11- 5-2002
Ordinance No. 06-2	1- 3-2006
Ordinance No. 06-86	5-30-2006
Ordinance No. 07-33	2-13-2007
Ordinance No. 1858-G	7- 1-2008
Ordinance No. 08-237	11-25-2008
Ordinance No. 10-31	3- 2-2010
Ordinance No. 10-68	5-11-2010
Ordinance No. 10-111	8-24-2010
Ordinance No. 11-137	11- 8-2011
Ordinance No. 13-141	11- 5-2013
Ordinance No. 13-165	12-17-2013
Ordinance No. 13-178	12-26-2013

Sec. 3. District boundaries.

[Article III.] General Regulations

Sec. 1. Use of land.
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Sec. 5. Encroachment on or reduction of open spaces, etc.
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Sec. 7. Building to be on lots.
Sec. 8. Accessory buildings—Construction prior to construction of main building.
Sec. 9. Accessory buildings—Use for dwelling purposes.
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Sec. 3. R-2 Single-Family District.
Sec. 4. R-3 Single-Family District.
Sec. 5. R-4 Two-Family and Semi-Attached Dwelling District.
Sec. 6. R-4A Medium Density Residential District.
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Sec. 8. R-6 Multiple Dwelling District.
Sec. 9. R-7 Multiple Dwelling District.
Sec. 10. R-8 Planned Residential District.

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Sec. 3. B-3 Community Business District.
Sec. 4. B-4 Central Business District.
Sec. 5. B-5 Mixed Business District.
Sec. 6. B-6 Health and Institutional District.
Sec. 7. O&I Office and Institutional District.
Sec. 8. PRD Planned Recreational District.

[Article III. Industrial Classifications]

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Sec. 2. M-1A General Industrial District.
Sec. 3. M-2 Heavy Industrial District.
Sec. 4. M-3 Planned Industrial District.
Sec. 5. M-4 Special Mining and Lumbering District.

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Sec. 10. Floodplain zone districts.
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Sec. 12. "Q" Qualified Zone District.
Sec. 13. Additional height regulations in vicinity of municipal airport.
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Sec. 16. "C" Contingency Zone District.
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Appendix A

Appendix B

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Sec. 4. Hearing of appeals.
Sec. 5. Powers and duties.
Sec. 6. Appeals from action of the board.

[APPENDIX] Zoning Board of Adjustment Enabling Legislation

[TITLE 1. GENERAL PROVISIONS]

[ARTICLE I.] PURPOSE

Section 1. Purpose.

The zoning regulations and districts as herein established have been made in accordance with a comprehensive plan and designed to lessen congestion in the streets, to secure safety from fire, panic and other dangers; to promote health and the general welfare; to provide adequate light and air; to prevent the overcrowding of land; to avoid undue concentrations of population; to facilitate the adequate provision of transportation, water, sewerage, schools, parks, and other public requirements. The regulations have also been made with reasonable consideration, among other things, to the character of the district and its peculiar suitability for particular uses, and with a view to conserving the value of building and encouraging the most appropriate use of land throughout the city.

[ARTICLE II.] ZONING DISTRICTS AND BOUNDARIES

Section 1. Establishment of districts.

In order to carry out the intent and purpose of this ordinance, the City of Birmingham is hereby divided into the following districts; the location, boundaries, and area of which are and shall be as shown and depicted upon the zone map.

E-1	Estate District
R-1	Single-Family District
R-2	Single-Family District
R-3	Single-Family District
R-4	Two-Family and Semi-Attached Dwelling District
R-4A	Medium Density Residential District
R-5	Multiple Dwelling District
R-6	Multiple Dwelling District
R-7	Multiple Dwelling District
R-8	Planned Residential District
B-1	Neighborhood Business District
B-2	General Business District
B-3	Community Business District
B-4	Central Business District
B-5	Mixed Business District
B-6	Health and Institutional District
O&I	Office and Institutional District
PRD	Planned Recreational District

M-1	Light Industrial District
M-1A	General Industrial District
M-2	Heavy Industrial District
M-3	Planned Industrial District
M-4	Special Mining and Lumbering District
A-1	Agricultural District
A-2	Agricultural District
MXD	Mixed Used District

Section 2. Zone map.

The map hereto attached which is identified by the title "Zoning District Map, Birmingham, Alabama," and which, together with the legends, words, figures, symbols and explanatory matter thereon, is hereby declared to be a part of this ordinance, and shall be known as the "zone map" throughout this ordinance.
(Ord. No. 90-130, 5-15-1990; Ord. No. 1888-G, 5-11-2010)

Editor's note—The zone map as described in the above section is not set out herein, but is on file, together with all amendments thereto, in the office of the city clerk and the zoning office of the department of planning, engineering and permits.

Section 3. District boundaries.

The district boundary lines on said map are intended to follow either streets or alleys or lot lines, and where the districts designated on said map are bounded approximately by such streets, alleys or lot lines, the center line of the street or alley or the lot lines shall be the boundary of the district unless such boundary is otherwise indicated on the map. In all other cases, the district boundary lines shall be determined by use of the scale appearing on the zone map.

[ARTICLE III.] GENERAL REGULATIONS

Section 1. Use of land.

No land shall be used except for a use permitted in the district in which it is located, except as provided in articles VI and VIII and on page xiii (nonconforming uses).

Section 2. Use of structures.

No structure shall be erected, converted, enlarged, reconstructed, moved or structurally altered, nor shall any building or structure be used, except for a use permitted in the district in which such building is located, except as provided in articles VI and VIII and on page xiii (nonconforming uses).

Section 3. Height of structures.

No structure shall be erected, converted, enlarged, reconstructed, moved or structurally altered to exceed the height limit herein established for the district in which such structure is located, except as provided in article VI but not to exceed the height limit established by article VI, section 13.

Section 4. Dimensional regulations.

No structure shall be erected, converted, enlarged, reconstructed, moved or structurally altered except in conformity with the dimensional regulations of the district in which such structure is located, except as provided in article VI.

Section 5. Encroachment on or reduction of open spaces, etc.

The minimum yards, parking spaces, and open spaces, required by this ordinance for each structure existing at the time of passage of this ordinance, or for any structure hereafter erected or structurally altered, shall not be encroached upon or considered as part of the yard or parking space or open space required for any other structure, nor shall any lot area be reduced below the lot area per family requirements of this ordinance for the district in which such lot is located, except as provided in articles VI and VIII.

Section 6. Off-street parking and loading.

No building shall be erected, converted, enlarged, reconstructed or moved except in conformity with the off-street parking and loading regulations of articles V and VIII.

Section 7. Building to be on lots.

Every building hereafter erected, converted, enlarged, reconstructed, moved or structurally altered shall be located on a lot as herein defined, except as provided in articles VI and VII.

Section 8. Accessory buildings—Construction prior to construction of main building.

No accessory structure shall be constructed or moved upon a lot until the construction of the main building has actually been commenced.

Section 9. Accessory buildings—Use for dwelling purposes.

No accessory building shall be used for dwelling purposes other than by domestic servants entirely employed on the premises.

Section 10. More than one main building on one lot.

Except as provided in article VI, there shall not be more than one main building hereafter erected on one lot.

Section 11. Joint occupancy.

No structure shall be erected, structurally altered, or used as a single-family or two-family dwelling simultaneously with any other use, except to allow a residence unit for a watchman, custodian or caretaker employed on the premises in commercial or industrial districts and as permitted in the B-1 Neighborhood Business, B-2 General Business, B-3 Community Business, B-4 Central Business, and B-6 Health and Institutional District.

Section 12. Permits for construction.

No clearing, earthwork or other land disturbing activity shall be undertaken prior to all appropriate permits having been issued by the department of planning, engineering and permits in accordance with the Soil Erosion and Sediment Control Ordinance (Ord. No. 88-148). No excavation for foundations, nor any erection, or structural alteration of any structure shall be undertaken prior to appropriate permits having been issued by the department of planning, engineering and permits.

Section 13. Building material storage.

Building materials or temporary structures for construction purposes shall not be placed or stored on any lot or parcel of land located in a residential or business zone district before appropriate building permits have been issued by the department of planning, engineering and permits.

Section 14. Grading and clearing.

No lot shall be graded or cleared, nor shall the earth contained in the lot be altered before appropriate permits concerning grading and sedimentation control have been issued by the department of planning, engineering and permits.

[ARTICLE IV.] DEFINITIONS

Section 1. Generally.

For the purpose of this ordinance, certain terms and words are hereby defined. Words used in the present tense shall include the future; the singular number shall include the plural and plural the singular; the word "building" shall include the word "structure" and the word "shall" is mandatory and not directory.

1. *Accessory structure or use.* A subordinate structure or a portion of the main structure, the use of which is incidental to the main use of the premises. An accessory use is one which is incidental to the main use of the premises.

2. *Alley.* A public thoroughfare which affords only a secondary means of access to abutting property.

3. *Amortization.* The process by which nonconforming uses and structures must be discontinued or made to conform to requirements of the zoning ordinance at the end of a specified period of time.

3.5. *Amusement (indoor).* The provision of entertainment or games of skill to the general public and that is wholly enclosed in a building, such as bowling alleys, roller-skating or ice-skating, billiards and pool halls, motion picture theaters, and similar types of amusement operations.

3.6. *Amusement (outdoor).* The provision of entertainment or games of skill to the general public where any portion of the activity takes place outside of a building, such as a golf driving range, archery range, miniature golf course, or similar types of amusement operations. This use does not include a stadium, automotive or other types of race track, vehicular-related activities or similar or related activities, or any uses listed within the Planned Recreational District (PRD) zoning classification.

4. *Apartment building.* See *Dwelling, multiple.*

5. *Basement.* A story having a part but not more than one half of its height below grade. A basement is counted as a story for the purpose of height regulations.

6. *Billboard.* Any sign used as an outdoor display for the purpose of making anything known, the matter advertised or displayed being remote from its origin or point of sale.

7. *Building.* Any structure having a roof supported by columns or walls designed or built for the support, enclosure, shelter, or protection of persons, animals, chattels, or property of any kind.

8. *Building, height of.* The vertical distance from the grade to the highest point of the coping of a flat roof or to the deck line of a mansard roof, or to the average height between eaves and ridge for gable, hip and gambrel roofs.

9. *Buffer.* An area established to protect one type of land use from incompatible characteristics of another.

10. *Cellar.* That portion of a building between floor and ceiling which is wholly or partly below grade, and having more than one-half of its height below grade. A cellar is not counted as a story for the purpose of height regulations.

11. *Clinic.* A building or a portion of a building where patients are not lodged overnight, but are admitted for examination and treatment by a group of physicians or dentists practicing together.

12. *Club, private.* A building or portion thereof or premises owned or operated by a corporation, association, person or persons for a social, educational, or recreational purpose, but not primarily for profit nor to render a service which is customarily carried on as a business.

12.5. *Cold frame.* An unheated outdoor structure with a glass or clear plastic top, that protects seedlings and plants from the cold.

13. *Communal living facility.* The following buildings or structures in which four or more unrelated persons reside, in any dwelling unit. These types of facilities must not be closer than 1,000 feet from another communal living facility. Communal living facilities are not meant to include child foster care facilities nor facilities housing the mentally handicapped or mentally ill, where there are no more than ten such people plus two unrelated persons to either the occupants of the facility or to each other. (Code of Ala. 1975, § 11-52-75.1 and Zoning Board of Adjustment Case No. 84-95.)

    a. *Adult foster care homes.* Foster care homes are for four or more unrelated adults who are in need of residential care in a family setting but are not to include people in need of institutional care. These adults are unable to live in their own homes because of physical, mental or emotional limitations and cannot live with their families because of distance, ill health or estrangement, or family's inability to provide adequate care.

    b. *Boardinghouse.* A dwelling other than a hotel, where for compensation and by prearrangement for definite periods, meals, or lodging and meals, are provided for four or more persons.

    c. *Domiciliary care facility.* Homes for the aged, intermediate institutions, and related institutions, whose primary purpose is to furnish room, board, laundry, personal care, and other nonmedical services, regardless of what it may be named or called, for not less than 24 hours in any week, to four or more individuals not related by blood or marriage to the owner and/or administrator. This kind of care implies sheltered protection and a supervised environment for persons, who because of age or disabilities, are incapable of living independently in their own homes or a commercial room and board situation, yet who do not require the medical and nursing services provided in a nursing home. In these facilities, there might be available temporarily and incidentally the same type of limited medical attention as an individual would receive if he were living in his own home.

    d. *Fraternity.* A home for four or more unrelated male students who are members of a social organization except those located on college campuses.

    e. *Maternity facility.* An institution operated solely for the care and treatment of women during pregnancy, delivery, and/or within ten days subsequent to delivery. The term shall include any individual or institu-

tion providing such services within a period of one year to one or more women not related by blood or marriage to persons living in or operating such building or institution.

f. *Nursing home.* A home for the aged or infirm in which four or more persons not of the immediate family are received, kept or provided with food and shelter or care for compensation; but not including hospitals, clinics or similar establishments devoted primarily to the diagnosis and treatment of the sick or injured.

g. *Roominghouse.* A building other than a hotel where lodging for four or more persons not of the immediate family is provided for definite periods and for compensation and by prearrangement for definite periods.

h. *Sorority.* A home for four or more unrelated female students who are members of a social organization except those located on college campuses.

i. *Transitional home.* Any dwelling or similar facility operated for the provision of room and board in the rehabilitation, resocialization and/or adjustment of four or more individuals, patients or clients, excluding jails, prisons, and other correctional institutions.

j. *Other similar buildings, facilities, homes or structures.* Any home or facility similar in function to those listed above shall be deemed a communal living facility.

13.5. *Community garden.* A property that an individual, group of individuals or organization is utilizing for teaching/education or cultivation and harvesting, for useful and productive purposes, food crops and/or ornamental crops for personal use, donation or sale.

14. *Condominium.* A single real property parcel with all the unit owners having a right in common to use the common elements with separate ownership confined to the individual units.

15. *District.* A section or sections of the City of Birmingham for which the zoning regulations governing the use of buildings and premises, the height of buildings, the size of yards, and the intensity of use are uniform.

16. *Dwelling.* Any building or portion thereof which is used for residential purposes.

17. *Dwelling, single-family.* A building designed for or occupied exclusively by one family.

18. *Dwelling, single-family detached.* A building that is not connected to another primary structure and designed for or occupied exclusively by one family.

19. *Dwelling, single-family attached.* A building on its own recorded lot connected to another primary structure and designed for, or occupied exclusively by one family, that is attached by a common wall to more than one like building.

20. *Dwelling, single-family semi-attached.* A building on its own recorded lot connected to another primary structure and designed for, or occupied exclusively by one family that is attached by a common wall on only one side to a like building.

21. *Dwelling, two-family.* A building designed for or occupied exclusively by two families.

22. *Dwelling, multiple.* A building designed for or occupied exclusively by three or more families.

23. *Dwelling unit.* One or more rooms located within a building and forming a single habitable unit with facilities which are used or intended to be used for living, sleeping, cooking and eating purposes.

24. *Family.* One or more persons occupying a dwelling and living as a single housekeeping unit, all of whom or all but two of whom are related to each other by birth, adoption or marriage as distinguished from a group occupying a communal living facility.

25. *Floor area.* The gross horizontal areas of all floors, including penthouses (but not excluding such areas within a building which are used for parking) measured from the exterior faces of the exterior walls of a building. Basements and cellars shall not be included in the gross floor area.

26. *Frontage, street.* All the property on one side of a street between two streets which intersects such street (crossing or termination), measured along the line of the street, or if the street is dead ended, then all the property abutting on one side between a street which intersects such street and the dead end of the street.

27. *Garage, private.* An accessory building designed or used for the storage of motor-driven vehicles owned and used by the occupants of the building to which it is accessory.

28. *Garage, public.* A building or portion thereof, other than private, storage or parking garage, designed or used for equipping, servicing, repairing, hiring, selling or storing of motor-driven vehicles, but not including the storage of wrecked or junked vehicles.

29. *Garage, storage, or parking.* A building or portion thereof designed or used exclusively for storage of motor-driven vehicles, and within which motor fuels and oils may be sold, but no vehicles are equipped, repaired, hired or sold.

29.5. *Garden manager.* Individual that is responsible for the operation of community garden use. If the community garden is a group or organization, a responsible person (individual who has the authority to sign binding agreements for a group or organization) for that group or organization must be identified.

30. *Grade.* The average level of the finished ground surface adjacent to the exterior walls of the building.

30.5. *Greenhouse / hoophouse.* A temporary or permanent structure typically made of, but not limited to, wood, glass, piping, clear or translucent plastic or fiberglass where plants are cultivated.

31. *Home occupation.* Any occupation or activity which is clearly incidental to the use of the premises for dwelling purposes and which is carried on wholly within a main building or accessory building by a member of a family residing on the premises, in connection with which there is no advertising other than an identification sign of not more than one square foot in area which is neither illuminated or animated, and no other display or storage of materials or exterior identification of the home occupation or variation from the residential character of the premises; and in connection with which no person outside the family is employed and no equipment used other than that normally used in connection with a residence. A home occupation shall not include beauty parlors, barbershops or doctors' or dentists' offices for the treatment of patients.

32. *Hotel.* A building in which lodging, or boarding and lodging, are provided and offered to the public for compensation and in which ingress and egress to and from all rooms are made through an inside lobby or office supervised by a person in charge at all hours. A hotel is open to the transient public contradistinction to a boardinghouse, or a roominghouse which are herein separately defined.

32.5. *Indoor urban farm.* A commercial farm that produces and distributes food crops, ornamental crops and other agriculture products either for sale on site or off site utilizing hydroponics or aquaculture, and is completed enclosed within a building. Outside storage is prohibited.

33. *Institution.* The structure or land occupied by a group, cooperative, board, agency or organization created for the purpose of carrying on nonprofit functions of a public or semi-public nature, including but not limited to hospitals, schools, churches, fraternal orders and also including residential accessory uses, limited to rectories, parsonages, dormitories and dwellings for resident administrators, watchmen, custodians or caretakers.

34. *Junkyard, general.* A parcel and/or lot used for the outside storage or placement of used and/or damaged materials and items.

35. *Junkyard, vehicular.* A parcel and/or lot used for the outside placement, storage, parking, dismantling, or disassembling of any disabled or inoperable vehicles, or parts thereof, including, but not limited to motors, tires, wheels, axles, transmissions and other accessories.

36. *Kennel.* Any building(s) or land designated or arranged for the care of five or more dogs or cats belonging to the owner of the principal use kept for purposes of show, hunting, or as pets. A commercial kennel shall be defined as an establishment for the housing, grooming, breeding, boarding, training, or selling of animals, primarily, but not limited to domesticated dogs and cats. this definition shall not be applicable to veterinarians operating under license from the State of Alabama who board dogs or other pets in an enclosed structure.

37. *Loading space.* A space having a minimum dimension of 12 by 35 feet and a vertical clearance of at least 14 feet within the main building or on the same lot, providing for the standing, loading, or unloading of trucks.

38. *Lot.* Land occupied or intended for occupancy by a use including the yards and parking spaces required herein, and having its principal frontage upon a street.

39. *Lot, corner.* A lot abutting upon two or more streets at their intersection.

40. *Lot, through.* A lot other than a corner lot abutting two streets.

41. *Lot of record.* A lot which is part of a subdivision, the plat of which has been recorded in the office of the probate judge of Jefferson County, Alabama, or a parcel of land described by metes and bounds, the plat or description of which has been recorded in said office. If a portion of a lot or parcel has been conveyed at the time of the adoption of this ordinance, the remaining portion of said lot or parcel shall be considered a lot of record.

42. *Lot width.* The width of the lot at the front building setback line.

42.5. *Market manager.* Individual that is responsible for the operation of a farmer's and/or public market use. If the market is a group or organization, a responsible person (individual who has the authority to sign binding agreements for a group or organization) for that group or organization must be identified.

42.6. *Market stand.* A seasonal, temporary structure where crops grown at a community garden may be packaged and sold on site to consumers.

43. *Mini-warehouse.* A building or structure which is designed or used for the storage of goods, wares or merchandise, provided no display, sale or manufacture of such items are allowed on the premises and further provided such storage does not include perishable items or other items that may cause a health hazard or highly combustible, flammable or explosive products or

materials; said building or structure shall be limited to a maximum size of 20,000 square feet and be designed with cubicles or separate storage areas having a maximum size of 1,000 square feet and a maximum width of 25 feet.

44. *Motel.* A building or group of buildings used for the temporary occupancy of transients and containing no facilities for cooking in the individual units.

45. *Nonconforming use, legal.* The use of any building or land which was lawful at the time of passage of the ordinance from which this division is derived, or amendment thereto, but which use does not conform, after the passage of the ordinance from which this division is derived, or amendment thereto, with the use regulations of the district in which it is situated.

46. *Office.* The building, room, or space where clerical or administrative activities are performed.

47. *Opioid.* An opioid is a class of addictive narcotic drugs that are often prescribed for severe pain relief but also are frequently used (and abused) illegally to create euphoric states of consciousness. Common types of opioids are heroin, codeine, and morphine.

48. *Opioid replacement therapy treatment facility.* Any operation that has received a certificate of need from the State Health Planning and Development Agency of Alabama to operate a facility to prescribe and/or dispense opioid replacement drugs and offer therapy to individuals and groups as a part of a treatment program. These opioid replacement drugs generally include, but [are] not limited to, methadone, naloxone, naltrexone, and similar types of opioid receptor agonists. No opioid replacement therapy treatment facility may be located:

    a. Within 1,000 linear feet of the lot line of a E or R zoned property;

    b. Within 1,000 linear feet of the lot line of a church or other place of worship;

    c. Within 1,000 linear feet of the lot line of a public park;

    d. Within 1,000 linear feet of the lot line of a kindergarten, elementary, high school, college, university, or other similar type of school, whether public or private;

    e. Within 3,000 linear feet of the lot line of another opioid replacement therapy treatment facility;

    f. Within areas that are registered and listed on the National Register of Historic Places as historic districts, or areas within 1,000 linear feet of the lot line of those districts. The boundaries of said historic districts are on file in the department of planning, engineering and permits;

g. Within areas designated as commercial revitalization districts as established by the council of the City of Birmingham. The boundaries of such districts are on file in the department of planning, engineering and permits.

48.5. *Outdoor markets.*

a. *Farmers market.* Outdoor sales sanctioned by the State of Alabama Farmer's Market Authority, consisting of whole uncut produce, ornamental crops and value-added agricultural products such as baked goods, jams and jellies, pickles and relish, dried fruits, syrups and honey, eggs, meat, nuts (at least 75 percent of vendors) and handmade art and crafts (no more than 25 percent of vendors).

b. *Public market.* Outdoor sales consisting of whole uncut produce, ornamental crops, value-added agricultural products such as baked goods, jams and jellies, pickles and relish, dried fruits, syrups and honey, eggs, meat, nuts, handmade art and crafts and unique local goods. Twenty-five percent of all vendors at public markets must sell either produce or value-added agricultural products. Used clothing, mass-produced items and appliances are prohibited.

c. *Flea market.* Outdoor sales consisting of individual stalls used for selling various types of merchandise such as used household items, and cut-rate goods.

48.6. *Outdoor urban farm.* A commercial farm that produces and distributes food crops, ornamental crops and other agriculture products, such as honey and compost, either for sale on site or off site utilizing traditional farming methods, hydroponics or aquaculture.

49. *Parking area.* Land reserved for the parking of vehicles, including necessary maneuvering area.

50. *Parking lot.* An open area used exclusively for the temporary storage of motor vehicles and within which motor fuels and oils may be sold and fees charged, but no vehicles are to be equipped, repaired, rented or sold.

51. *Parking space, off-street.* An accessible space permanently reserved for the temporary storage of one vehicle, connected with a street by a driveway or an alley, having a minimum area of not less than 162 square feet, a minimum width of nine feet, and a minimum length of 18 feet, exclusive of driveways and maneuvering area.

52. *Premises.* A lot, together with all buildings and structures existing thereon.

53. *Self-storage structure.* A building or structure which is designed or used for the storage of surplus personal property accumulated in the maintenance or operation of a home, apartment, or dwelling, provided no display or sale of such

items are allowed on the premises and further provided such storage does not include highly combustible, flammable or explosive products or materials; said building or structure shall be limited to a maximum size of 10,000 square feet and shall be designed with cubicles or separate storage areas having a maximum size of 250 square feet and a maximum width of ten feet.

54. *Service station.* Any building, structure, or land used primarily for the dispensing, sale or offering for sale at retail of any automobile fuels, oils or accessories but not including major repair work such as motor overhaul, body and fender repair or spray painting.

55. *Sign.* A name, identification, description, display or illustration which is affixed to, painted, or represented, directly or indirectly upon a building, structure, parcel or lot and which directs attention to an object, product, place, activity, person, institution, organization or business located on the premises. The term sign shall not be deemed to include official court or government notices nor the flag, emblem or insignia of a nation, political unit, school or religion.

56. *Special exception.* A variation in the terms of the zoning ordinance where permission is given to establish a use normally associated with the applicable district but which requires special permission from the zoning board of adjustment for its creation.

57. *Story.* That portion of a building other than a cellar, included between the surface of any floor and the surface of the floor next above it, or, if there be no floor above it, then the space between the floor and the ceiling next above it.

58. *Story, half.* A space under a sloping roof which has the line of intersection of roof decking and wall face not more than three feet above the top floor level and in which space not more than two-thirds of the floor area is finished off for use. A half-story containing independent apartment or living quarters shall be counted as a full story.

59. *Street.* A public thoroughfare which afford the principal means of access to abutting property.

60. *Street line.* A dividing line between a lot, tract or parcel of land and a contiguous street.

61. *Structure.* Anything constructed or erected, the use of which requires a location on the ground, or attached to something having a location on the ground, including but not limited to buildings, signs, billboards, back stops for tennis courts, fences or radio towers.

62. *Structural alterations.* Any change in the supporting members of a building or structure, such as bearing walls, columns, beams or girders; provided, however, that the application of any exterior modernizing shall not be considered a structural alteration.

63. *Tourist home.* A dwelling in which accommodations are provided or offered for one or more transient guests for compensation.

64. *Townhouse.* See *Dwelling, single-family attached.*

65. *Trailer.* Any enclosure used for living, sleeping, business or storage purposes, having no foundation other than wheels, blocks, skids, jacks, horses, or skirtings and which has been, or reasonably may be equipped with wheels or other devices for transporting the enclosure from place to place, whether by motive power or other means. The term "trailer" shall include camp car, house car or mobile home.

66. *Trailer court.* An area containing one or more trailers used as living facilities, or an area containing one or more spaces designed or intended for parking of trailers to be used as living facilities.

67. *Wrecker service yard.* A parcel and/or lot used for the outside placement and/or storage of vehicles awaiting final disposition. Disabled vehicles may not be placed or stored on this lot unless the property is properly zoned and all pertinent licenses maintained. This definition shall not be applicable to junkyards as defined herein.

68. *Yard.* An open space between a building or use and the adjoining lot lines, unoccupied and unobstructed by any structure or use from the ground upward, except as otherwise provided in article VI. In measuring a yard for the purpose of determining the width of a side yard, the depth of a front yard, or the depth of a rear yard, the minimum distance between the lot line and the main building shall be used. A required yard shall mean a yard the depth of which is specified in the area and dimensional regulations pertaining to the district in which such yard is required to be provided.

69. *Yard, front.* A yard extending across the front of a lot between the side lot lines. On corner lots the front yard shall be considered as parallel to the street upon which the lot has its least dimension.

70. *Yard, rear.* A yard extending across the rear of a lot between the side lot lines. On all lots the rear yard shall be in the rear of the front yard.

71. *Yard, side.* A yard between the main building and the side lot line and extending from the required front yard to the required rear yard.

72. *Zone map.* The map referred to on page ii (zoning districts and boundaries) and article VI, section 11.

73. *Zoning district map.* The zone map.

(Ord. No. 11-137, § 1, 11-8-2011; Ord. No. 13-71, 5-7-2013; Ord. No. 13-141, § 1, 11-5-2013; Ord. No. 13-165, § 1, 12-17-2013)

[ARTICLE V.] LEGAL NONCONFORMING USES

Section 1. When continuance of use or location and/or height of structure is permitted.

Subsection 1. *Legal nonconforming use.* If the zoning classification of a property is changed so that the existing permitted use of that property is not in compliance with the new zoning classification, the existing use may continue as a legal nonconforming use, provided that the restriction and limitations listed within this article are met.

Subsection 2. *Legal nonconforming structure.* If the zoning classification of a property is changed so that the existing location or height of a structure is not in compliance with the new zoning classification, the existing location or height of the structure is allowed as a legal nonconforming structure, provided that the restriction and limitations listed within this article are met.
(Ord. No. 13-165, § 2, 12-17-2013)

Section 2. Restrictions and limitations of legal nonconforming uses and structures.

The following will affect the legal nonconforming status of a building, property or use:

A. *Loss of legal nonconforming use status because of change of use.* If the legal nonconforming use within a building or on a property is changed to a use that conforms to the current zoning classification of the property, the legal nonconforming use status of the property will be lost. If this occurs, a change of zoning of this property must be granted by the City Council before the previous use can be re-established on this property.

B. *Loss of legal nonconforming use status because of vacancy or inactivity.* If the legal nonconforming use within a building or on a property ceases for a period of time of two years or more, the legal nonconforming use status of the property will be lost. If this occurs, two possible options may be taken to resume the legal nonconforming use:

   i. A request to change the zoning classification to one that would allow the previous use; or

   ii. A request to resume the legal nonconforming use may be made to the Zoning Board of Adjustment in compliance with the requirements of Article 6, Section 5.6.

C. *Loss of a legal nonconforming use or structure status because of enlargement or extension.* A legal nonconforming use, structure, or premises may not be structurally altered, reconstructed, enlarged or extended without a variance granted by the Zoning Board of Adjustment. If that variance is not granted, a zoning change is required in order to bring the property into compliance.

D. *Loss of legal nonconforming status of a business use.* If a legal nonconforming business operation has a spacing or distance requirement, no new business license (for a new owner) may be issued for that specific location until and unless relief from said spacing or distance requirement is granted a variance by the Zoning Board of Adjustment.

(Ord. No. 13-165, § 2, 12-17-2013)

Section 3. Restoration of damaged buildings.

Subsection 1. Any residential building or structure damaged by explosion, fire, act of God, or public enemy, to the extent that the repair of that building or structure is valued at fifty (50%) percent or more of its current replacement value, shall not be restored except in conformity with the regulations of this Ordinance unless a variance is granted for this repair by the Zoning Board of Adjustment.

Subsection 2. Any commercial or industrial building or structure damaged by explosion, fire, act of God, or public enemy, to the extent that the repair of that building or structure is valued at fifty (50%) percent or more of its current assessed or appraised value, shall not be restored except in conformity with the regulations of this Ordinance unless a variance is granted for this repair by the Zoning Board of Adjustment.

(Ord. No. 13-165, § 2, 12-17-2013)

[ARTICLE VI.] ANNEXED PROPERTY

Any territory hereafter annexed to the City of Birmingham shall continue to be subject to the county, town or city zoning district classifications and regulations as such territory was subject to at the time of annexation. Said zoning classifications and regulations shall be enforced by the City of Birmingham, as if such classifications and regulations were its own, until initial zoning is placed on the territory by the city or until the territory is successfully rezoned by a person(s) or organization having standing to do so. If the territory is not zoned by any county, town or city classifications or regulations at the time of annexation into the City of Birmingham, the department of planning, engineering and permits shall move to initially zone the territory to a City of Birmingham classification within a reasonable time, not to exceed 90 days.

[TITLE 2. ZONE DISTRICTS]

[ARTICLE I. RESIDENTIAL CLASSIFICATIONS]

Section 1. E-1 Estate District.

Subsection 1. *Generally.* The regulations set forth in this section or set forth elsewhere in this ordinance, when referred to in this section, are the regulations in the E-1 Estate District.

Subsection 2. *Use regulations.* A building or premises shall be used only for the following purposes:

1. Single-family dwelling.
2. Nurseries or truck gardens; except, that no retail sales shall be made on the premises.
3. Noncommercial greenhouse; provided that no greenhouse heating plant shall be operated within 25 feet of any lot line.
4. Publicly owned or operated park, playground or community building, museum, library or art gallery; provided that any building shall be located not less than 25 feet from any side lot line.
5. Church or other place of worship; provided that any building shall be located not less than 25 feet from any side lot line.
6. Public school, elementary or high, or a parochial or private school having a curriculum including the same courses ordinarily given in a public school, but not providing residential accommodations for students; provided that any such building shall be located not less than 25 feet from any side lot line.
7. Golf club or golf course, except a par three golf course, miniature course or practice golf driving range operated for commercial purposes.
8. Home occupations.
9. Accessory structures and uses, not including accessory use child care centers.
10. A church or public building may have one bulletin board or one sign, located on the same lot as the main structure, said bulletin board or sign not to exceed 27 square feet in area nor to be animated or illuminated with intermittent light.
11. Temporary signs not exceeding a total of eight square feet in area located on the same lot pertaining to the lease, hire or sale of a building or premises.

12. A temporary sign not exceeding a total of eight square feet in area relating to the development, sale or lease of lots or houses in a subdivision containing not less than five lots, which sign shall not remain more than two years or after the sale of the last lot, whichever occurs first.

13. Family day/night care home.

14. Wireless communications facility, in accordance with article VI, section 18.

15. Community garden* provided that no residential structure is on the same property as the community garden, garden use excluding all accessory structures is allowed in any yard, market stands are allowed by special exception, on-site sales of produce grown at community garden are prohibited except when granted by special exception for a market stand, accessory structures limited to storage sheds, water cisterns, cold frames, hoophouses and greenhouses built of standard uniform materials that are either new or in sound condition not showing signs of decay, all compost and organic matter stored on site shall not cover more than ten percent of the total lot area and shall be screened from view of adjacent property and public right-of-way with fencing built of standard uniform materials that are either new or in sound condition not showing signs of decay or evergreen landscape buffer, shall be managed to prevent rodents and pests, shall be maintained to prevent odors and drainage from compost onto adjacent sites, all gardening equipment shall be limited to household gardening/lawn equipment, and a community garden permit is obtained from PEP that provides the following information:

    a. Name of all persons or entities that govern the garden.

    b. Name, signature and contact information of garden manager.

    c. Description of garden use and purpose.

    d. Detailed explanation of location of garden including address.

    e. Site plan that depicts all structures, compost piles, proposed screening and garden installations of the proposed garden.

    f. Results of soil testing for soil condition and contamination.

    If a garden is fallow or no longer useful or productive and is not maintained free from injurious, noxious or unsightly weeds, the lot will be deemed to be a nuisance and will be subject to code enforcement. If any accessory structure is not maintained in sound condition free from evidence of decay and can be seen from public right-of-way or an adjacent property, they will be considered a nuisance and will be subject to code enforcement.

    It is a requirement that soil testing be conducted prior to gardening activities. Test for both soil condition and possible soil contamination, to determine at

minimum constraints to food production, shall be conducted. Information on acquiring soil testing kits and analysis can be found in the appendix to the [this] City of Birmingham Zoning Ordinance.

16. Farmers market provided that [it] occurs only on lots where the primary use is a school, place of worship, a public park (provided that the City of Birmingham School Board or Park and Recreation Board has given written permission allowing the market to occur on their property) or on an abutting lot that is owned by one of the aforementioned primary uses, sales only occur on a temporary basis no more than 78 days per year and between the hours of 7:00 a.m. and 7:00 p.m., market can not operate for more than two consecutive days, market manager demonstrates that adequate parking is available on the lot being used by the market or a parking arrangement has been made for a nonresidential lot that is within 500 feet and is not in use during market hours, items made from kits, used or mass-produced items are prohibited, every vendor in any market shall, within one hour after the closing of the market, cause his or her provisions and vehicle to be removed from the vendor stall, and his or her stall thoroughly cleansed, and all rubbish to be removed from the vendor stall, an affidavit verifying landowners permission and identifying market manager is submitted to PEP, acknowledgement of applicable Jefferson County Health Department regulations, a farmers market permit, valid for one year, is obtained from PEP and a permit fee is paid to PEP that provides the following information:
    a. Name of all persons or entities that govern the market.
    b. Name, signature and contact information of market manager.
    c. List of all vendors and a list of items to be sold by vendor.
    d. Copy of State of Alabama Farmers Market Authority Certificate.
    e. List of market cleanup procedures.
    f. Detailed explanation of location of market and days/hours of operation.
    g. Address of the market location.
    h. Parking plan.
17. Apiary provided that it is accessory to a residential structure or community garden, located in a rear yard, hives are set back from property lines by 20 feet, a continuous water source is available, a flyway barrier (fence or dense evergreen shrub) is provided that is six feet high and extends three feet either side of the hive opening, hive opening faces the flyway barrier, two hives are allowed on lots less than 10,000 square feet and one additional hive per 4,000 square feet is allowed on lots larger than 10,000 square feet with a maximum of ten hives per lot.

(Ord. No. 94-66, § I, 4-5-1994; Ord. No. 97-77, § 1(art. 1, § 1(2)), 6-24-1997; Ord. No. 02-159, 11-5-2002; Ord. No. 13-71, 5-7-2013)

Subsection 3. *Area and dimensional regulations.* Except as provided in articles VI and VIII, the area and dimensional regulations set forth in the following table shall be observed:

Maximum Height of Structure [in] Feet	*Minimum Yards*			*Minimum Lot Area Per Family*	*Minimum Lot Width*
	Front	*Rear*	*Each Side (two required)*		
35 feet	40 feet	40 feet	15 feet	½ acre (21,780 sq. ft.)	100 feet

Subsection 4. *Parking regulations.* Off-street parking spaces shall be provided in accordance with the requirements for specific uses set forth in article V.

Section 2. R-1 Single-Family District.

Subsection 1. *Generally.* The regulations set forth in this section or set forth elsewhere in this ordinance, when referred to in this section, are the regulations in the R-1 Single-Family District.

Subsection 2. *Use regulations.* A building or premises shall be used only for the following purposes:

1. Any use permitted in the E-1 Estate District.

Subsection 3. *Area and dimensional regulations.* Except as provided in articles VI and VIII, the area and dimensional regulations set forth in the following table shall be observed:

Maximum Height of Structure [in] Feet	*Minimum Yards*		*Minimum Side Yards*		*Minimum Lot Area Per Family*	*Minimum Lot Width*
	Front	*Rear*	*One Side*	*Total (both sides)*		
35 feet	40 feet	40 feet	8 feet	18 feet	15,000 square feet	90 feet

Subsection 4. *Parking regulations.* Off-street parking spaces shall be provided in accordance with the requirements for specific uses set forth in Article V.

Section 3. R-2 Single-Family District.

Subsection 1. *Generally.* The regulations set forth in this section or set forth elsewhere in this ordinance, when referred to in this section, are the regulations in the R-2 Single-Family District.

Subsection 2. *Use regulations.* A building or premises shall be used only for the following purposes:

1. Any use permitted in the E-1 Estate District.

Subsection 3. *Area and dimensional regulations.* Except as provided in articles VI and VIII, the area and dimensional regulations set forth in the following table shall be observed:

Maximum Height of Structure [in] Feet	*Minimum Yards*		*Minimum Side Yards*		*Minimum Lot Area Per Family*	*Minimum Lot Width*
	Front	*Rear*	*One Side*	*Total (both sides)*		
35 feet	30 feet	35 feet	7 feet	16 feet	10,000 square feet	75 feet

Subsection 4. *Parking regulations.* Off-street parking spaces shall be provided in accordance with the requirements for specific uses set forth in article V.

Section 4. R-3 Single-Family District.

Subsection 1. *Generally.* The regulations set forth in this section or set forth elsewhere in this ordinance, when referred to in this section, are the regulations in the R-3 Single-Family District.

Subsection 2. *Use regulations.* A building or premises shall be used only for the following purposes:

1. Any use permitted in the E-1 Estate District.

Subsection 3. *Area and dimensional regulations.* Except as provided in articles VI and VIII, the area and dimensional regulations set forth in the following table shall be observed:

Maximum Height of Structure [in] Feet	*Minimum Yards*		*Minimum Side Yards*		*Minimum Lot Area Per Family*	*Minimum Lot Width*
	Front	*Rear*	*One Side*	*Total (both sides)*		
35 feet	25 feet	25 feet	5 feet	14 feet	6,000 square feet	50 feet

Subsection 4. *Parking regulations.* Off-street parking spaces shall be provided in accordance with the requirements for specific uses set forth in article V.

Section 5. R-4 Two-Family and Semi-Attached Dwelling District.

Subsection 1. *Generally.* The regulations set forth in this section or set forth elsewhere in this ordinance, when referred to in this section, are the regulations in the R-4 Two-Family and Semi-Attached Dwelling District.

Subsection 2. *Use regulations.* A building or premises shall be used only for the following purposes:

1. Any use permitted in the E-1 Estate District.
2. Two-family dwellings.
3. Semi-attached dwellings.

Subsection 3. *Area and dimensional regulations.* Except as provided in articles VI and VIII, the area and dimensional regulations set forth in the following table shall be observed:

<table>
<tr><th rowspan="2">Maximum Height of Structure [in] Feet</th><th colspan="2">Minimum Yards</th><th colspan="2">Minimum Side Yards</th><th rowspan="2">Minimum Lot Area Per Family</th><th rowspan="2">Minimum Lot Width</th></tr>
<tr><th>Front</th><th>Rear</th><th>One side</th><th>Total (both sides)</th></tr>
<tr><td rowspan="4">35 feet</td><td rowspan="4">25 feet</td><td rowspan="4">25 feet</td><td>5 feet</td><td>14 feet</td><td>5,000 square feet for single-family dwellings.</td><td rowspan="4">50 feet except that in semi-attached dwellings the minimum is 20 feet.</td></tr>
<tr><td colspan="2" rowspan="3">In semi-attached projects: none required for interior walls. Exterior side yards same as listed above.</td><td>3,000 square feet for two-family dwellings.</td></tr>
<tr><td>2,500 square feet per lot area for semi-attached dwellings.</td></tr>
</table>

Subsection 4. *Site plan.*

1. The site plan, when required, must show:
   a. The direction of north, appropriate scale and topography in not greater than two-foot contour intervals.
   b. The proposed location and heights of all structures.
   c. The use of all structures and premises.
   d. The areas and proportionate amount of parking to be developed.

e. The location of streets, driveways and walks.

f. All service and loading spaces.

g. Location and areas of illumination of all exterior lighting.

h. The location, size, number and character of all exterior signs.

i. The location, character and extent of landscaping, retaining and screen walls and other treatment for the protection of the adjoining property.

j. The facilities for surface drainage of the premises.

k. The proposed resubdivision of the subject property.

2. The deed restrictions and covenants must show the treatment of all land held in undivided common interest.

Subsection 5. *Parking regulations.* Off-street parking spaces shall be provided in accordance with the requirements for specific uses set forth in article V.

Subsection 6. *Other regulations.* Semi-attached dwellings must comply with the requirements set forth in article VI, section 15.

Section 6. R-4A Medium Density Residential District.

Subsection 1. *Generally.* The regulations set forth in this section or set forth elsewhere in this ordinance, when referred to in this section, are the regulations in the R-4A Medium Density Residential District.

Subsection 2. *Use regulations.* A building or premises shall be used only for the following purposes:

1. Any use permitted in the E-1 Estate District.

2. Two-family dwellings.

3. Semi-attached dwellings.

4. Attached single-family dwellings.

5. Multiple-family dwellings (limited to a maximum of four dwelling units per structure).

Subsection 3. *Area and dimensional regulations.* Except as provided in articles VI and VIII, the area and dimensional regulations set forth in the following table shall be observed:

<table>
<tr><th rowspan="2">Maximum Height of Structure [in] Feet</th><th colspan="2">Minimum Yards</th><th colspan="2">Minimum Side Yards</th><th rowspan="2">Minimum Lot Area Per Family</th><th rowspan="2">Minimum Lot Width</th></tr>
<tr><th>Front</th><th>Rear</th><th>One side</th><th>Total (both sides)</th></tr>
<tr><td rowspan="4">35 feet</td><td rowspan="4">25 feet</td><td rowspan="4">25 feet</td><td>5 feet</td><td>14 feet</td><td>5,000 square feet for single-family dwellings.</td><td rowspan="4">50 feet except that in attached and semi-attached dwellings the minimum is 18 feet, with an average of 20 feet in an attached row.</td></tr>
<tr><td colspan="2" rowspan="3">In attached and semi-attached dwellings, none required for interior walls; exterior side yards same as listed above.</td><td>3,000 square feet for two-family dwellings.</td></tr>
<tr><td>2,500 square feet for multi-family, limited to four dwelling units per structure.</td></tr>
<tr><td>2,000 square feet per lot area for attached and semi-attached dwellings.</td></tr>
</table>

Subsection 4. *Site plan.*

1. The site plan must show:
   a. The direction of north, appropriate scale and topography in not greater than two-foot contour intervals.
   b. The proposed location and heights of all structures.
   c. The use of all structures and premises.
   d. The areas and proportionate amount of parking to be developed.
   e. The location of streets, driveways and walks.
   f. All service and loading spaces.
   g. Location and areas of illumination of all exterior lighting.
   h. The location, size, number and character of all exterior signs.
   i. The location, character and extent of landscaping, retaining and screen walls and other treatment for the protection of adjoining property.
   j. The facilities for surface drainage of the premises.

k. The proposed resubdivision of the subject property.

2. The deed restrictions and covenants must show the treatment of all land held in undivided common interest.

Subsection 5. *Parking regulations.* Off-street parking spaces shall be provided in accordance with the requirements for specific uses set forth in article V.

Subsection 6. *Other regulations.* Attached and semi-attached dwellings must comply with the requirements set forth in article VI, section 15.

Note—When any lot having a width of less than 100 feet is used for a multiple-family dwelling, such multiple-family dwelling shall be constructed in a manner that the front of the structure and all front doors shall face and open toward a dedicated street and all rear doors shall face and open toward the rear yard, as defined in Article II, Section 56, Chapter 57, General Code, 1944, as amended.

Section 7. R-5 Multiple Dwelling District.

Subsection 1. *Generally.* The regulations set forth in this section or set forth elsewhere in this ordinance, when referred to in this section are the regulations in the R-5 Multiple Dwelling District.

Subsection 2. *Use regulations.* A building or premises shall be used only for the following purposes:

1. Any use permitted in the E-1 Estate District.
2. Two-family dwelling.
3. Multiple dwelling.
4. Attached and semi-attached single-family dwellings.
5. Condominiums (residential).
6. Religious, educational, charitable or public institution or building, except a penal or mental institution or a communal living facility. Permitted uses are schools, churches, and residential accessory uses limited to rectories, parsonages and dwellings for resident administrators, watchmen, custodians or caretakers. Other similar institutional uses not within 1,000 feet of such uses are permitted on appeal, subject to approval of the zoning board of adjustment.
7. Private club or lodge, excepting one, the chief activity of which is a service customarily carried on as a business.
8. Family group day/night care facility.
9. Accessory structures and uses, not including accessory use child care centers.
10. One name plate, to be lighted with only indirect nonintermittent light, not exceeding six square feet in area attached to the wall at an entrance.

(Ord. No. 94-66, § I, 4-5-1994)

Subsection 3. *Area and dimensional regulations.* Except as provided in articles VI and VIII, the area and dimensional regulations set forth in the following table shall be observed:

<table>
<tr><th rowspan="2">*Maximum Height of Structure [in] Feet*</th><th colspan="2">*Minimum Yards*</th><th colspan="2">*Minimum Side Yards*</th><th rowspan="2">*Minimum Lot Area Per Family*</th><th rowspan="2">*Minimum Lot Width*</th></tr>
<tr><th>*Front*</th><th>*Rear*</th><th>*One Side*</th><th>*Total Both Sides*</th></tr>
<tr><td rowspan="4">35 feet</td><td rowspan="4">25 feet</td><td rowspan="4">25 feet</td><td>5 feet</td><td>14 feet</td><td>5,000 square feet for single-family dwellings.</td><td rowspan="4">50 feet except that in attached and semi-attached dwellings the minimum lot width shall not be less than 16 feet with an average of 18 feet in an attached row.</td></tr>
<tr><td colspan="2" rowspan="3">In attached and semi-attached dwellings, none required for interior walls; exterior side yards same as listed above.</td><td>2,500 square feet for two-family dwellings.</td></tr>
<tr><td>2,000 square feet per lot area for semi-attached dwellings.</td></tr>
<tr><td>2,000 square feet per lot area for multiple dwellings.</td></tr>
</table>

Subsection 4. *Site plan.*

1. The site plan, when required, must show:
   a. The direction of north, appropriate scale and topography in not greater than two-foot contour intervals.
   b. The proposed location and heights of all structures.
   c. The use of all structures and premises.
   d. The areas and proportionate amount of parking to be developed.
   e. The location of streets, driveways and walks.
   f. All service and loading spaces.
   g. Location and areas of illumination of all exterior lighting.
   h. The location, size, number and character of all exterior signs.

i. The location, character and extent of landscaping, retaining and screen walls and other treatment for the protection of adjoining property.

j. The facilities for surface drainage of the premises.

k. The proposed resubdivision of the subject property.

2. The deed restrictions and covenants must show the treatment of all land held in undivided common interest.

Subsection 5. *Parking regulations.* Off-street parking spaces shall be provided in accordance with the requirements for specific uses set forth in article V.

Subsection 6. *Other regulations.* Attached and semi-attached dwellings must comply with the requirements set forth in article VI, section 15.

Note—When any lot having a width of less than 100 feet is used for a multiple-family dwelling, such multiple-family dwelling shall be constructed in a manner that the front of the structure and all front doors shall face and open toward a dedicated street and all rear doors shall face and open toward the rear yard, as defined in Article II, Section 56, Chapter 57, General City Code 1944, as amended.

Section 8. R-6 Multiple Dwelling District.

Subsection 1. *Generally.* The regulations set forth in this section or set forth elsewhere in this ordinance, when referred to in this section, are the regulations in the R-6 Multiple Dwelling District.

Subsection 2. *Use regulations.* A building or premises shall be used only for the following purposes:

1. Any use permitted in the R-5 Multiple Dwelling District.

Subsection 3. *Area and dimensional regulations.* Except as provided in articles VI and VIII, the area and dimensional regulations set forth in the following table shall be observed:

<table>
<tr><th rowspan="2">Maximum Height of Structure [in] Feet</th><th colspan="2">Minimum Yards</th><th colspan="2">Minimum Side Yards</th><th rowspan="2">Minimum Lot Area Per Family</th><th rowspan="2">Minimum Lot Width</th></tr>
<tr><th>Front</th><th>Rear</th><th>One side</th><th>Total both sides</th></tr>
<tr><td rowspan="4">45 feet
A structure may be erected to any height of not more than 80 feet whenever the structure is set back from the side and rear yards required for a 45 foot structure an additional distance of one foot for each four feet of structure height above 45 feet.</td><td rowspan="4">25 feet</td><td rowspan="4">25 feet</td><td>5 feet</td><td>14 feet</td><td>5,000 square feet for single-family dwellings.</td><td rowspan="4">50 feet except that in attached and semi-attached dwellings the minimum is 18 feet, with an average of 20 feet in an attached row.</td></tr>
<tr><td colspan="2" rowspan="3">In attached and semi-attached dwellings, none required for interior walls; exterior side yards same as listed above.2,500 square feet for two-family dwellings.</td><td>1,800 square feet for attached and semi-attached dwellings.</td></tr>
<tr><td>1,500 square feet for multiple-family dwellings.</td></tr>
<tr><td>1,000 square feet for multiple dwellings four stories or more.</td></tr>
</table>

Subsection 4. *Site plan.*

1. The site plan, when required, must show:
   a. The direction of north, appropriate scale and topography in not greater than two-foot contour intervals.
   b. The proposed location and heights of all structures.
   c. The use of all structures and premises.
   d. The areas and proportionate amount of parking to be developed.
   e. The location of streets, driveways and walks.
   f. All service and loading spaces.
   g. Location and areas of illumination of all exterior lighting.
   h. The location, size, number and character of all exterior signs.

i. The location, character and extent of landscaping, retaining and screen walls and other treatment for the protection of adjoining property.

j. The facilities for surface drainage of the premises.

k. The proposed resubdivision of the subject property.

2. The deed restrictions and covenants must show the treatment of all land held in undivided common interest.

Subsection 5. *Parking regulations.* Off-street parking spaces shall be provided in accordance with the requirements for specific uses set forth in article V.

Subsection 6. *Other regulations.* Attached and semi-attached dwellings must comply with the requirements set forth in article VI, section 15.

Note—When any lot having a width of less than 100 feet is used for a multiple-family dwelling, such multiple-family dwelling shall be constructed in a manner that the front of the structure and all front doors shall face and open toward a dedicated street and all rear doors shall face and open toward the rear yard, as defined in Article II, Section 56, Chapter 57, General Code, 1944, as amended.

Section 9. R-7 Multiple Dwelling District.

Subsection 1. *Generally.* The regulations set forth in this section or set forth elsewhere in this ordinance, when referred to in this section, are the regulations in the R-7 Multiple Dwelling District.

Subsection 2. *Use regulations.* A building or premises shall be used only for the following purposes:

1. Any use permitted in the R-5 Multiple Dwelling District.

Subsection 3. *Area and dimensional regulations.* Except as provided in articles VI and VIII, the area and dimensional regulations set forth in the following table shall be observed:

<table>
<tr><th rowspan="2">Maximum Height of Structure [in] Feet</th><th colspan="2">Minimum Yards</th><th colspan="2">Minimum Side Yards</th><th rowspan="2">Minimum Lot Area Per Family</th><th rowspan="2">Minimum Lot Width</th></tr>
<tr><th>Front</th><th>Rear</th><th>One side</th><th>Total Both Sides</th></tr>
<tr><td rowspan="5">45 feet
A structure may be erected to any height whenever the structure is set back from the side and rear yards required for a 45-foot structure an additional distance of one foot for each four feet of structure height above 45 feet.</td><td rowspan="5">25 feet</td><td rowspan="5">25 feet</td><td>5 feet</td><td>14 feet</td><td>5,000 square feet for single-family dwellings.</td><td rowspan="5">50 feet except that in attached and semi-attached dwellings the minimum lot width shall not be less than 16 feet.</td></tr>
<tr><td colspan="2" rowspan="4">In attached and semi-attached dwellings, none required for interior walls; exterior side yards same as listed above.</td><td>2,500 square feet for two-family dwellings.</td></tr>
<tr><td>1,600 square feet for attached and semi-attached dwellings.</td></tr>
<tr><td>1,000 square feet for multiple-family dwellings.</td></tr>
<tr><td>500 square feet for multiple dwellings four stories or more.</td></tr>
</table>

Subsection 4. *Site plan.*

1. The site plan, when required, must show:
   a. The direction or north, appropriate scale and topography in not greater than two-foot contour intervals.
   b. The proposed location and heights of all structures.
   c. The use of all structures and premises.
   d. The areas and proportionate amount of parking to be developed.
   e. The location of streets, driveways and walks.
   f. All service and loading spaces.
   g. Location and areas of illumination of all exterior lighting.
   h. The location, size, number and character of all exterior signs.

i. The location, character and extent of landscaping, retaining and screen walls and other treatment for the protection of adjoining property.

j. The facilities for surface drainage of the premises.

k. The proposed resubdivision of the subject property.

2. The deed restrictions and covenants must show the treatment of all land held in undivided common interest.

Subsection 5. *Parking regulations.* Off-street parking spaces shall be provided in accordance with the requirements for specific uses set forth in article V.

Subsection 6. *Other regulations.* Attached and semi-attached dwellings must comply with the requirements set forth in article VI, section 15.

Note—When a lot having a width of less than 100 feet is used for a multiple-family dwelling, such multiple-family dwelling shall be constructed in a manner that the front of the structure and all front doors shall face and open toward a dedicated street and all rear doors shall face and open toward the rear yard, as defined in Article II, Section 56, Chapter 57, General Code, 1944, as amended.

Section 10. R-8 Planned Residential District.

Subsection 1. *Generally.* The regulations set forth in this section or set forth elsewhere in this ordinance, when referred to in this section, are the regulations in the R-8 Planned Residential Dwelling District. The R-8 Planned Residential District allows the flexible and orderly arrangement of large planned residential areas designed as a single unit in a manner consistent with the provisions of this section. The owner or owners or a tract of land may submit a petition for the establishment of such a district provided the tract of land is five or more acres in area or less than five acres and is located within an urban renewal project area. The petitioner shall submit a plan for the development of the tract to the zoning advisory committee for review and approval in accordance with the provisions of this section.

Subsection 2. *Use regulations.* The use of each building and/or premises shall be in accordance with the development plan referred to in subsection 1, and shall be limited to the following:

1. Any use allowed in the E-1 Estate District.

2. Two-family dwelling.

3. Multiple dwelling; provided, however, that no building or accessory structure shall be located closer than 25 feet to any R-8 district boundary.

4. Attached and semi-attached single-family dwellings.

5. Condominiums (residential).

Subsection 3. *Area and dimensional regulations.* The area and dimensional regulations set forth in this section shall be observed:

1. *Maximum height of structures.* Except as provided in article VI, the maximum height of structures shall be 45 feet.
2. *Structure setback.* No building shall be closer to any abutting street than 25 feet.
3. *Open space between buildings.* Open space between buildings, measured at the closest point, shall not be less than 20 feet for one-story buildings, 30 feet when one or both are two-story buildings, or 40 feet when one or both are three-story buildings.
4. *Area per family.* The required average land area per family shall not be less than 3,750 square feet; except, that in attached and semi-attached single-family dwellings, the average land area per family shall not be less than 2,500 square feet.

Subsection 4. *Parking regulations.* Off-street parking shall be provided in accordance with the requirements for specific uses set forth in article V.

Subsection 5. *Development plan requirements.* In order to prevent adverse environmental impacts and to achieve a compatible relation among uses covered in subsection 2 above and with the land use suitability of surrounding properties and nearby zone districts, as well as the surrounding transportation network, and owners of lands included in this district shall concur in an overall site development plan to be reviewed and considered for approval by the planning commission or zoning advisory committee prior to any grading, clearing, site improvements or issuance of related permits. All owners of property petitioning for establishment of a new R-8 district shall submit an acceptable development plan for zoning advisory committee approval prior to adoption by the city council. Any district may be phased over a reasonable period of time. Final site development plans may be postponed for portions of the parcel scheduled for completion after the first five acres. However when phased, the whole district must be covered by a more generalized conceptual design for ultimate development which may be tentative, but must include a viable timetable for completion of each sector, with sufficient information to judge internal and external impacts. The site development plan shall include:

1. Maps indicating:
    a. The direction of north, appropriate scale and topography in not greater than two-foot contour intervals.
    b. The proposed location and height of all structures and site improvements.
    c. The use of all structures and premises.
    d. The areas and proportionate amount of parking to be developed.

e. The location of streets, driveways and walks, including all points of ingress and egress and access streets.

f. All service areas and loading spaces.

g. Location and areas of illumination of all exterior lighting.

h. The location, size, number and character of all exterior signs.

i. The location, character and extent of all recreation, open spaces, beautification features and landscaping, fences, retaining and screen walls and other treatment for the protection of adjoining property.

j. The facilities planned for sanitary sewers or treatment and surface drainage of the premises.

k. A grading plan showing original and finished slopes, means of stabilization and relation to floodplains, drainage ways, wetlands, subsurface conditions and soil suitability.

2. A traffic analysis indicating that the proposed development will be so related to streets and arteries that the traffic generated can be accommodated without causing excessive congestion or hazards or objectionable volumes of traffic on residential streets.

3. A comprehensive independent market analysis, if requested by the planning commission or zoning advisory committee, on the needs to be served and the general economic justification.

4. A copy of any proposed subdivision plats, new streets, other easements, and deed restrictions including any third party covenants to be recorded, and the legal treatment and responsibility for maintenance of any public or common grounds or spaces.

Subsection 6. *Review and approval of plans.* The zoning advisory committee shall review, approve in part or whole, or disapprove, setting forth its reasons therefor, all conceptual designs and any site development plans for R-8 districts initiated or recommended for adoption by the planning commission without an original plan, in the case of initial zoning of annexed territory. The zoning advisory committee shall also review, and approve or disapprove all other site development plans involved in rezoning requests or subsequent plan amendments. After due notice and hearing of all interested parties, and consideration of analyses or recommendations by its staff, the zoning advisory committee shall judge the acceptability of varied elements of the plan in close conformity with the following criteria to:

1. Minimize traffic congestion, conflicting movements, hazards, clutter or glare interfering with drivers' visibility of streets, drives and protecting pedestrian ways and avoiding the attraction of customer or truck traffic through local residential frontage streets;

2. Ensure long-term adequacy of grading, storm drainage, sanitary sewers, other utilities and improvements, particularly preventing landslides, erosion, sedimentation, flooding and similar problems on subject property and nearby parcels of land in accordance with the City of Birmingham Soil Erosion and Sediment Control Code;
3. Minimize activity conflicts, and environmental degradation, while maximizing a compatible interrelation of uses and economical development through shared access, parking utility easements, service areas, clustering, etc.;
4. Preserve historic or significant places, scenic features, steep slopes, or drainage ways, and create effective natural, planted and manmade buffers of sufficient height, density and width to screen objectionable on-site noise, vibration, smoke, dust, fumes, odor, heat, glare or visibility from adjacent less intensive uses and particularly residential development and zones.

Once a site development plan has been approved, no work shall be done and no permits shall be issued except in accordance with said plan. No certificate of occupancy shall be issued until all site improvements as required by an approved site development plan are completed.

Subsection 7. *Delay in construction.* In the event that construction in accordance with the originally approved development plan has not begun within two years from the date of its approval, the development plan shall expire and become null and void. If less than 25 percent of the site improvements have been installed within 18 months after issuance of a permit to begin construction, the site development plan shall expire and become null and void.

[ARTICLE II. COMMERCIAL CLASSIFICATIONS]

Section 1. B-1 Neighborhood Business District.

Subsection 1. *Generally.* The regulations set forth in this section or set forth elsewhere in this ordinance, when referred to in this section, are the regulations in the B-1 Neighborhood Business District.
(Ord. No. 07-33, § 1(1), 2-13-2007)

Subsection 2. *Use regulations.* A building or premises shall be used only for the following purposes:

1. Any use permitted in the R-5 Multiple Dwelling District.
2. Greenhouse having a retail outlet on the premises.
3. Bakery with sales of all bakery products at retail on the premises only; except, that catering services direct to consumer shall be permitted.
4. Barbershop, beauty shop, massage or similar personal service shops.

5. Catering shop, business, music, dancing, or similar school.
6. Dressmaking and tailoring; provided that all work is done for individuals, at retail only, and on the premises.
7. Drugstore limited to size to that which is of service to the immediately surrounding neighborhood only.
8. Dwelling, jointly with other uses or as a principal use.
9. Laundromat or shop for the delivery or picking up of laundry or dry cleaning.
10. Medical or dental office or clinic and other professional or business office.
11. Parking lot or parking garage.
12. Restaurant or coffee shop; provided that the serving of food or beverages to patrons waiting in parked automobiles shall not be permitted.
13. Retail store, limited in character and size to that which is of service to the immediately surrounding neighborhood only, except for any such use listed for the first time in the B-2 or B-3 districts.
14. Service station, except, no up shall be located within 50 feet of a dwelling district, nor any portion of a structure within 15 feet of a dwelling district.
15. Shoe repairing, repairing of household appliances and bicycles on an individual service call basis, and other uses of a similar character limited in size and nature to those which serve the immediately surrounding neighborhood.
16. Telephone exchange or outdoor public telephone booth.
17. Tourist home.
18. Utility installations.
19. Adult care facility or child care center.
20. Accessory structures and uses, including signs subject to the following conditions:
    a. Signs shall pertain to goods, products or services sold or offered on the premises.
    b. Signs shall be attached to a vertical surface of the building or extend not more than 18 inches therefrom.
    c. Such signs shall not exceed in the aggregate 40 square feet of gross surface area for any lot having 40 feet or less of street frontage. On lots having a frontage greater than 40 feet, such sign or signs shall not exceed in the aggregate one square foot in area for each linear foot of principal street frontage, but in no case shall the aggregate area of such sign or signs exceed 60 square feet, provided, however, in developments consist-

ing of two or more establishments each use shall be allowed signs not to exceed the frontage occupied by such establishment, but in no case to exceed 60 square feet.

21. Farmers market provided that sales only occur on a temporary basis no more than 78 days per year and between the hours of 7:00 a.m. and 7:00 p.m., market can not operate for more than two consecutive days, market manager demonstrates that adequate parking is available on the lot being used by the market or a parking arrangement has been made for a nonresidential lot that is within 500 feet and is not in use during market hours, items made from kits, used or mass-produced items are prohibited, every vendor in any market shall, within one hour after the closing of the market, cause his or her provisions and vehicle to be removed from the vendor stall, and his or her stall thoroughly cleansed, and all rubbish to be removed from the vendor stall, an affidavit verifying landowners permission and identifying market manager is submitted to PEP, acknowledgement of applicable Jefferson County Health Department regulations, a farmers market permit, valid for one year, is obtained from PEP and a permit fee is paid to PEP that provides the following information:

    a. Name of all persons or entities that govern the market.

    b. Name, signature and contact information of market manager.

    c. List of all vendors and a list of items to be sold by vendor.

    d. Copy of State of Alabama Farmers Market Authority Certificate.

    e. List of market cleanup procedures.

    f. Detailed explanation of location of market and days/hours of operation.

    g. Address of the market location.

    h. Parking plan.

22. Public market provided that 25 percent of vendors sell produce or value-added agricultural products, sales only occur on a temporary basis no more than 78 days per year and between the hours of 7:00 a.m. and 7:00 p.m., market can not operate for more than two consecutive days, market manager demonstrates that adequate parking is available on the lot being used by the market or a parking arrangement has been made for a non-residential lot that is within 500 feet and is not in use during market hours, used clothing, mass produced items and appliances are prohibited, every vendor in any market shall, within one hour after the closing of the market, cause his or her provisions and vehicle to be removed from the vendor stall, and his or her stall thoroughly cleansed, all rubbish to be removed from the vendor stall, an affidavit verifying landowners permission and identifying market manager is submitted to PEP,

acknowledgement of applicable Jefferson County Health Department regulations, and a public market permit, valid for one year, is obtained from PEP and a permit fee is paid to PEP that provides the following information:

a. Name of all persons or entities that govern the market.

b. Name, signature and contact information of market manager.

c. List of all vendors, the products they will sell and their grower's permits or City of Birmingham business licenses number.

d. List of market cleanup procedures.

e. Detailed explanation of location of market and days/hours of operation.

f. Parking plan.

23. Pay day (deferred presentment) and title loan operations.

(Ord. No. 94-66, § I, 4-5-1994; Ord. No. 07-33, § 1(2), 2-13-2007; Ord. No. 13-71, 5-7-2013; Ord. No. 13-178, § 1, 12-26-2013)

Subsection 3. *Area and dimensional regulations.* Except as provided in articles VI and VIII, the area and dimensional regulations set forth in the following table shall be observed:

<table>
<tr><th rowspan="2">Maximum Height of Structure in Feet</th><th colspan="3">Minimum Yards</th><th rowspan="2">Minimum Lot Area Per Family</th><th rowspan="2">Minimum Lot Width</th></tr>
<tr><th>Front</th><th>Rear</th><th>Side</th></tr>
<tr><td rowspan="4">35 feet, or the height of an abutting residential district whichever is least restrictive.</td><td rowspan="4">None, except where the frontage between two intersecting streets is partly in an E or R district, in which case the front yard requirements of the E or R district shall apply.</td><td rowspan="4">None, except on the rear of a lot abutting a dwelling district, in which case there shall be a rear yard of not less than 20 feet.</td><td rowspan="4">None, except on the side of a lot abutting a dwelling district, in which case there shall be a side yard of not less than 5 feet.</td><td>5,000 square feet for single-family dwellings.</td><td rowspan="4">50 feet when lot is used solely for dwelling purposes, except that in attached and semi-attached dwellings the minimum lot width shall be not less than 16 feet.</td></tr>
<tr><td>2,500 square feet for two-family dwellings.</td></tr>
<tr><td>1,800 square feet for attached and semi-attached dwellings.</td></tr>
<tr><td>1,000 square feet for multiple dwellings.</td></tr>
</table>

(Ord. No. 07-33, § 1(3), 2-13-2007)

Subsection 4. *Site development plan.*

1. Except for single-family and two-family dwellings, a site development plan is required in conjunction with all building permits for new construction and when a building or part thereof is enlarged or extended to at least 50 percent of its current floor area. At a minimum, the site development plan must show:
   a. The direction of north, appropriate scale and existing and finished topography in not greater than two-foot contour intervals.
   b. The proposed location including any easements that may exist on site and elevation drawings of all sides of each building prototype.
   c. The use of all structures and premises.
   d. The location of proposed driveways and marked off-street parking spaces.
   e. The edge of pavement for existing and proposed streets, driveways and walkways.
   f. All service and loading spaces as well as the location of solid waste containers. Also, provide enclosure details for large solid waste containers, including their access in compliance with article VI, section 5.
   g. Location and areas of illumination of all exterior lighting.
   h. The location, size, number and character of all exterior signs.
   i. The location, character and extent of landscaping, retaining and screen walls and other treatment for the protection of adjoining property or fences, and other measures for screening or buffering views from incompatible land uses. This includes detailed landscaping plans for structures and parking areas. The landscaping plan shall include plant location, corresponding plant schedule and planting instructions. In addition to landscape requirements for off-street parking as specified in article V, landscaping of the remainder of the lot, exclusive of areas occupied by structures and parking, shall not be less than five percent. Said landscaping shall include a combination of shrubs, trees and ground cover.
   j. Plans and facilities for stormwater drainage of the premises.
   k. Any proposed re-subdivision of the subject property; when applicable.
2. Any proposed condominium must also conform to article VIII of the Birmingham Subdivision Regulations. The deed restrictions and covenants must show the treatment of all land held in common interest.

(Ord. No. 07-33, § 1(4), 2-13-2007)

Subsection 5. *Parking and loading regulations.* Off-street parking and loading spaces shall be provided in accordance with the requirements for specific uses set forth in article V.

(Ord. No. 07-33, § 1(5), 2-13-2007)

Subsection 6. *Other regulations.* Attached and semi-attached dwellings must comply with the requirements set forth in article VI, section 15.
(Ord. No. 07-33, § 1(6), 2-13-2007)

Editor's note—The subdivision regulations referenced in subsection 4 of this section can be found in Appendix C to this Code.

Section 2. B-2 General Business District.

Subsection 1. *Generally.* The regulations set forth in this section or set forth elsewhere in this ordinance, when referred to in this section, are the regulations in the B-2 General Business District.
(Ord. No. 07-33, § 2(1), 2-13-2007)

Subsection 2. *Use regulations.* A building or premises shall be used only for the following purposes:

1. Any use permitted in the B-1 Neighborhood Business District; except that the limitations upon extent of service area shall not apply.
2. Signs or billboards.
3. Automobile or trailer display and sales room.
4. Public garage.
5. Amusement or recreation service except drive-in theater or practice golf driving range.
6. Business, dancing or music school.
7. Display room for merchandise to be sold at wholesale.
8. Dwellings, jointly with other uses or as a principal use.
9. Frozen food lockers.
10. Farm implement display and sales room.
11. Hotel, motel or motor court.
12. Hospital or clinic for animals, but not including open kennels.
13. Radio or television broadcasting station, studio or office.
14. Retail store or shop.
15. Self-storage structure.
16. Tavern or drive-in restaurant.
17. Undertaking establishment or mortuary.
18. Used car lot.
19. Bank or lending institution.

20. Utility service buildings.

21. Medical or dental laboratory.

22. The following uses provided all materials stored and all work done on the premises is done within a building:

    a. Dyeing and cleaning establishment or laundry; provided pickup or delivery of clothing is not made to other pickup points.

    b. Painting decorators.

    c. Radio or television repair shop.

    d. Dressmaking, millinery, or tailoring establishment.

    e. Upholstering shop, not involving furniture manufacturing.

    f. Plumbing and electrical shops.

    g. Any other general service or repair establishment of similar character.

23. A shopping center or facility composed of any one or more of the foregoing uses or any combination thereof.

24. Accessory structures and uses.

25. Indoor urban farm.

26. Amusement (indoor and outdoor). Except when the property abuts residential zoned property located within the city, amusement (outdoor) is only allowed by special exception granted by the zoning board of adjustment.

(Ord. No. 07-33, § 2(2), 2-13-2007; Ord. No. 13-71, 5-7-2013; Ord. No. 13-141, § 2, 11-5-2013)

Subsection 3. *Area and dimensional regulations.* Except as provided in articles VI and VIII, the area and dimensional regulations set forth in the following table shall be observed:

Maximum Height of Structure [in] Feet	*Minimum Yards*			*Minimum Lot Area Per Family*	*Minimum Lot Width*
	Front	*Rear*	*Side*		
75 feet	None, except where the frontage between two intersecting streets is partly in an E or R district, the front yard requirements of the E or R district shall apply to the B district.	None, except on the rear of a lot abutting a dwelling district, in which case there shall be a rear yard of not less than 20 feet.	None, except on the side of a lot abutting a dwelling district, in which case there shall be a side yard of not less than 5 feet.	5,000 square feet for single-family dwellings. 232.2576 square meters for two-family dwellings. 1,600 square feet for attached and semi-attached dwellings. 1,000 square feet for multiple dwellings.	50 feet, when lot is used solely for dwelling purposes, except that in attached and semi-attached dwellings the minimum lot width shall not be less than 16 feet.

(Ord. No. 07-33, § 2(3), 2-13-2007)

Subsection 4. *Site development plan.*

1. Except for single-family and two-family dwellings, a site development plan is required in conjunction with all building permits for new construction and when a building or part thereof is enlarged or extended to at least 50 percent of its current floor area. At a minimum, the site development plan must show:

   a. The direction of north, appropriate scale and existing and finished topography in not greater than two-foot contour intervals.

   b. The proposed location including any easements that may exist on site and elevation drawings of all sides of each building prototype.

   c. The use of all structures and premises.

   d. The location of proposed driveways and marked off-street parking spaces.

   e. The edge of pavement for existing and proposed streets, driveways and walkways.

f. All service and loading spaces as well as the location of solid waste containers. Also, provide enclosure details for large solid waste containers, including their access in compliance with article VI, section 5.

g. Location and areas of illumination of all exterior lighting.

h. The location, size, number and character of all exterior signs.

i. The location, character and extent of landscaping, retaining and screen walls and other treatment for the protection of adjoining property or fences, and other measures for screening or buffering views from incompatible land uses. This includes detailed landscaping plans for structures and parking areas. The landscaping plan shall include plant location, corresponding plant schedule and planting instructions. In addition to landscape requirements for off-street parking as specified in article V, landscaping of the remainder of the lot, exclusive of areas occupied by structures and parking, shall not be less than five percent. Said landscaping shall include a combination of shrubs, trees and ground cover.

j. Plans and facilities for stormwater drainage of the premises.

k. Any proposed re-subdivision of the subject property; when applicable.

2. Any proposed condominium must also conform to article VIII of the Birmingham Subdivision Regulations. The deed restrictions and covenants must show the treatment of all land held in common interest.

(Ord. No. 07-33, § 2(4), 2-13-2007)

Subsection 4 [5]. *Parking and loading regulations.* Off-street parking and loading spaces shall be provided in accordance with the requirements for specific uses set forth in article V.

(Ord. No. 07-33, § 2(4), 2-13-2007)

Subsection 5 [6]. *Other regulations.* Attached and semi-attached dwellings must comply with the requirements set forth in article VI, section 15.

(Ord. No. 07-33, § 2(5), 2-13-2007)

Section 3. B-3 Community Business District.

Subsection 1. *Generally.* The regulations set forth in this section or set forth elsewhere in the ordinance, when referred to in this section, are the regulations in the B-3 Community Business District.

Subsection 2. *Use regulations.* A building or premises shall be used only for the following purposes:

1. Retail store.

2. Restaurant (including drive-in restaurant) or tavern.

3. Automotive, farm implement or trailer display or sales.

4. Service station; except [that] no pump shall be located within 50 feet of a dwelling district or any portion of a structure within 15 feet of a dwelling district.
5. Hardware or building material sales.
6. Hotel or motel.
7. Amusement or recreation service, such as theater, dance hall or bowling alley.
8. Laundry, dry cleaning or dyeing plant.
9. Personal service shop, such as barbershop or beauty shop, photographic studio or massage establishment.
10. Business service shop, such as blueprinting, accounting, duplicating or employment agency.
11. Business, music or dancing school.
12. Office.
13. Repair service for such items as radios, televisions, shoes, watches or jewelry.
14. Bank or lending institution.
15. Parking lot or garage.
16. Automotive, farm implement or trailer repair or servicing.
17. Radio or television broadcasting station, studio or office.
18. Undertaking establishment or mortuary.
19. Wholesale establishment, including storage and display.
20. Carpentry, painting, plumbing, tinsmithing, and electrical shops; provided that all work on the premises is done within a building, and all materials are stored in a building.
21. Testing or research laboratory.
22. Millinery, dressmaking or tailoring.
23. On-premises signs.
24. Printing or engraving.
25. Light manufacturing limited to the following:
    a. Furniture.
    b. Jewelry.
    c. Cosmetics.
    d. Candy.
    e. Fur goods, except tanning or dyeing.
    f. Medical, dental, or drafting instruments.

g. Optical equipment, clocks, watches and similar precision instruments.

26. Other manufacturing, processing, fabricating or assembling operations which do not create any objectionable noise, vibrations, smoke, dust, odor, heat or glare, but only when the manufacturing, processing, fabricating or assembling is incidental to a retail business conducted on the premises.
27. Mini-warehouse.
28. Dwelling, jointly with other uses or as a principal use, including family day/night care or family group day/night care facilities.
29. Church, hospitals or other institutions, but not including mental hospitals or penal institutions.
30. Private club or lodge.
31. Public buildings.
32. Parks.
33. Telephone exchange or service buildings.
34. Utility installation or service building.
35. Adult care facility or child care center.
36. Wireless communications facility, in accordance with article VI, section 18.
37. Accessory structures and uses, including accessory use child care centers.
38. Community garden* provided that no residential structure is on the same property as the community garden, garden use excluding all accessory structures is allowed in any yard, market stands are allowed, on-site sales of produce grown at community garden are not prohibited, accessory structures limited to storage sheds, water cisterns, cold frames, hoophouses and greenhouses built of standard uniform materials that are either new or in sound condition not showing signs of decay, all compost and organic matter stored on site shall not cover more than ten percent of the total lot area and shall be screened from view of adjacent property and public right-of-way with fencing built of standard uniform materials that are either new or in sound condition not showing signs of decay or evergreen landscape buffer, shall be managed to prevent rodents and pests, shall be maintained to prevent odors and drainage from compost onto adjacent sites, all gardening equipment shall be limited to household gardening/lawn equipment, and a community garden permit is obtained from PEP that provides the following information:
    a. Name of all persons or entities that govern the garden.
    b. Name, signature and contact information of garden manager.
    c. Description of garden use and purpose.
    d. Detailed explanation of location of garden including address.

e. Site plan that depicts all structures, compost piles, proposed screening and garden installations of the proposed garden.

f. Results of soil testing for soil condition and contamination.

If a garden is fallow or no longer useful or productive and is not maintained free from injurious, noxious or unsightly weeds, the lot will be deemed to be a nuisance and will be subject to code enforcement. If any accessory structure is not maintained in sound condition free from evidence of decay and can be seen from public right-of-way or an adjacent property, they will be considered a nuisance and will be subject to code enforcement.

It is a requirement that soil testing be conducted prior to gardening activities. Test for both soil condition and possible soil contamination, to determine at minimum constraints to food production, shall be conducted. Information on acquiring soil testing kits and analysis can be found in the appendix to the [this] City of Birmingham Zoning Ordinance.

39. Farmers market provided that sales only occur on a temporary basis no more than 78 days per year and between the hours of 7:00 a.m. and 7:00 p.m., market can not operate for more than two consecutive days, market manager demonstrates that adequate parking is available on the lot being used by the market or a parking arrangement has been made for a nonresidential lot that is within 500 feet and is not in use during market hours, items made from kits, used or mass-produced items are prohibited, every vendor in any market shall, within one hour after the closing of the market, cause his or her provisions and vehicle to be removed from the vendor stall, and his or her stall thoroughly cleansed, and all rubbish to be removed from the vendor stall, an affidavit verifying landowners permission and identifying market manager is submitted to PEP, acknowledgement of applicable Jefferson County Health Department regulations, a farmers market permit, valid for one year, is obtained from PEP and a permit fee is paid to PEP that provides the following information:

a. Name of all persons or entities that govern the market.

b. Name, signature and contact information of market manager.

c. List of all vendors and a list of items to be sold by vendor.

d. Copy of State of Alabama Farmers Market Authority Certificate.

e. List of market cleanup procedures.

f. Detailed explanation of location of market and days/hours of operation.

g. Address of the market location.

h. Parking plan.

40. Public market provided that 25 percent of vendors sell produce or value-added agricultural products, sales only occur on a temporary basis no more than 78 days per year and between the hours of 7:00 a.m. and 7:00 p.m., market can not

operate for more than two consecutive days, market manager demonstrates that adequate parking is available on the lot being used by the market or a parking arrangement has been made for a nonresidential lot that is within 500 feet and is not in use during market hours, used clothing, mass-produced items and appliances are prohibited, every vendor in any market shall, within one hour after the closing of the market, cause his or her provisions and vehicle to be removed from the vendor stall, and his or her stall thoroughly cleansed, all rubbish to be removed from the vendor stall, an affidavit verifying landowners permission and identifying market manager is submitted to PEP, acknowledgement of applicable Jefferson County Health Department regulations, and a public market permit, valid for one year, is obtained from PEP and a permit fee is paid to PEP that provides the following information:

a. Name of all persons or entities that govern the market.

b. Name, signature and contact information of market manager.

c. List of all vendors, the products they will sell and their grower's permits or City of Birmingham business licenses number.

d. List of market cleanup procedures.

e. Detailed explanation of location of market and days/hours of operation.

f. Parking plan.

41. Indoor urban farm.

42. Apiary provided that it is accessory to a residential structure or community garden, located in a rear yard, hives are set back from property lines by 20 feet, a continuous water source is available, a flyway barrier (fence or dense evergreen shrub) is provided that is six feet high and extends three feet either side of the hive opening, hive opening faces the flyway barrier, two hives are allowed on lots less than 10,000 square feet and one additional hive per 4,000 square feet is allowed on lots larger than 10,000 square feet with a maximum of ten hives per lot.

43. Pay day (deferred presentment) and title loan operations.

44. Amusement (indoor and outdoor). Except when the property abuts residential zoned property located within the city, amusement (outdoor) is only allowed by special exception granted by the zoning board of adjustment.

(Ord. No. 94-66, § I, 4-5-1994; Ord. No. 97-77, § 1(title 2, art. II, § 3, subsec. 2), 6-24-1997; Ord. No. 07-33, § 3(2), 2-13-2007; Ord. No. 13-71, 5-7-2013; Ord. No. 13-141, § 3, 11-5-2013; Ord. No. 13-178, § 2, 12-26-2013)

Subsection 3. *Area and dimensional regulations.* Except as provided in articles VI and VIII, the area and dimensional regulations set forth in the following table shall be observed:

Maximum Height of Structure in Feet	*Minimum Yards*			*Minimum Lot Area Per Family*	*Minimum Lot Width*
	Front	*Rear*	*Side*		
None, except where Federal Aviation Administration (FAA) Restrictions apply, in which case a waiver must be granted by the FAA to exceed FAA limitations.	None	None	None	None	None

(Ord. No. 07-33, § 3(3), 2-13-2007)

Subsection 4. *Site development plan.*

1. Except for single-family and two-family dwellings, a site development plan is required in conjunction with all building permits for new construction and when a building or part thereof is enlarged or extended to at least 50 percent of its current floor area. At a minimum, the site development plan must show:
   a. The direction of north, appropriate scale and existing and finished topography in not greater than two-foot contour intervals.
   b. The proposed location including any easements that may exist on site and elevation drawings of all sides of each building prototype.
   c. The use of all structures and premises.
   d. The location of proposed driveways and marked off-street parking spaces.
   e. The edge of pavement for existing and proposed streets, driveways and walkways.
   f. All service and loading spaces as well as the location of solid waste containers. Also, provide enclosure details for large solid waste containers, including their access in compliance with article VI, section 5.
   g. Location and areas of illumination of all exterior lighting.
   h. The location, size, number and character of all exterior signs.
   i. The location, character and extent of landscaping, retaining and screen walls and other treatment for the protection of adjoining property or fences, and other measures for screening or buffering views from incompatible land uses. This includes detailed landscaping plans for structures and parking areas. The landscaping plan shall include plant location, corresponding plant schedule and planting instructions. In addition to

landscape requirements for off-street parking as specified in article V, landscaping of the remainder of the lot, exclusive of areas occupied by structures and parking, shall not be less than five percent. Said landscaping shall include a combination of shrubs, trees and ground cover.

j. Plans and facilities for stormwater drainage of the premises.

k. Any proposed re-subdivision of the subject property; when applicable.

2. Any proposed condominium must also conform to article VIII of the Birmingham Subdivision Regulations. The deed restrictions and covenants must show the treatment of all land held in common interest.

(Ord. No. 07-33, § 3(4), 2-13-2007)

Subsection 4 [5]. *Parking and loading regulations.* Off-street parking and loading spaces shall be provided in an amount equal to one-half the requirements of article V. Off-street loading shall be in accordance with the requirements of article V.
(Ord. No. 07-33, § 3(4), 2-13-2007)

Section 4. B-4 Central Business District.

Subsection 1. *Generally.* The regulations set forth in this section or set forth elsewhere in this ordinance, when referred to in this section, are the regulations in the B-4 Central Business District.
(Ord. No. 07-33, § 4(1), 2-13-2007)

Subsection 2. *Use regulations.* The use regulations are the same as those in the B-3 Community Business District.
(Ord. No. 07-33, § 4(2), 2-13-2007)

Subsection 3. *Area and dimensional regulations.* Except as provided in articles VI and VIII, the area and dimensional regulations set forth in the following table shall be observed:

Maximum Height of Structure in Feet	*Minimum Yards*			*Minimum Lot Area Per Family*	*Minimum Lot Width*
	Front	*Rear*	*Side*		
None, except where Federal Aviation Administration (FAA) Restrictions apply, in which case a waiver must be granted by the FAA to exceed FAA limitations.	None	None	None	None	None

(Ord. No. 07-33, § 4(3), 2-13-2007)

Subsection 4. *Parking and loading regulations.* Off-street parking is not required in the B-4 Central Business District. Off-street loading shall be provided in accordance with the requirements of article V.
(Ord. No. 07-33, § 4(4), 2-13-2007)

Section 5. B-5 Mixed Business District.

Subsection 1. *Generally.* The regulations set forth in this section or set forth elsewhere in this ordinance, when referred to in this section, are the regulations in the B-5 Mixed Business District. The B-5 Mixed Business District is provided in order to encourage orderly and convenient concentrations of office, retail, business and higher density residential complexes in highly accessible locations appropriate to the character of surrounding property and its future development. This district shall not be created on less than two acres or at least a half block containing all lot frontage on the same side of a street situated between two intersecting streets.

Subsection 2. *Use regulations.* A building or premises shall be used only for the following purposes:

1. Business office, professional office or medical clinic or laboratory.
2. Religious, educational, charitable, or public institution or civic club, including kindergartens but excluding a penal or mental institution, or communal living facility.
3. Family day/night care or family group day/night care facility, adult care facility, or child care center.
4. Wireless communications facility, in accordance with article VI, section 18.
5. Accessory structures and uses, including accessory use child care centers.
6. In addition, the following uses may also be permitted only in accordance with a site development plan approved as specified in subsections 5 and 6 of this section:
    a. Retail sales.
    b. Business or personal services.
    c. Restaurants, cafeterias.
    d. Service station, and automotive repair, but excluding truck stops, vehicle sales, outside repairs or storage of inoperable vehicles or other equipment.
    e. Hospital or nursing home.
    f. General shops and businesses similar to those above or ordinarily conducted in a shopping center or mall.
    g. Hotels, motels.
    h. Recreation, amusement or entertainment, but excluding adult establishments.

i. Multiple dwellings, attached and semi-attached dwellings and condominiums.

j. Other uses which are similar to those above or whose effects on surrounding areas are consistent with them.

k. Recreation, amusement (indoor and outdoor). Except when the property abuts residential zoned property located within the city, amusement (outdoor) is only allowed by special exception granted by the zoning board of adjustment or entertainment, but excluding adult establishments.

(Ord. No. 94-66, § I, 4-5-1994; Ord. No. 97-77, § 1(title 2, art. II, § 5, subsec. 2), 6-24-1997; Ord. No. 13-141, § 4, 11-5-2013)

Subsection 3. *Area and dimensional regulations.*

1. Except as provided in articles VI and VIII, the following area and dimensional regulations shall govern the location of all structures in this district.

Maximum Height of Structure [in] Feet	*Minimum Yards**			*Minimum Lot Width*
	Front	*Rear*	*Side*	
35 feet Any structure may be erected up to 100 feet, if it is setback from all required yards or other setbacks an additional distance of 1 foot for each 2 feet of structural height above 35 feet.	30 feet	25 feet	10 feet each, except no building shall be located closer than 25 feet to the perimeter boundary of this district.	100 feet

2. No building shall be constructed closer than 50 feet to the boundary of an A, E, or R district or any residential district zoning.

3. No building shall be located closer than 20 feet to another building; and no nonresidential building shall be located closer than 75 feet to a residential building, whether on the same or an adjoining lot.

4. Average density of all residential development shall not be less than 2,500 square feet per dwelling unit.

5. All structures and any impervious manmade surfaces shall cover no more than 75 percent of nonresidential development, nor more than 60 percent of a residential site; and the remaining areas shall be maintained in natural vegetation or landscaping.

Subsection 4. *Parking and loading regulations.* Off-street parking and loading spaces shall be provided in accordance with the requirements for specific uses as set forth in article V.

Subsection 5. *Development plan requirements.* In order to prevent adverse environmental impacts and to achieve a compatible relation among uses covered in subsection 2.6 above and with the land use suitability of surrounding properties and nearby zone districts, as well as the surrounding transportation network, any owners of lands included in this district shall concur in an overall site development plan to be reviewed and considered for approval by the planning commission or zoning advisory committee prior to any grading, clearing, site improvements or issuance of related permits. All owners of property petitioning for establishment of a new B-5 district shall submit an acceptable development plan for zoning advisory committee approval prior to adoption by the city council. Any district may be phased over a reasonable period of time. Final site development plans may be postponed for portions of the parcel scheduled for completion after the first two acres. However, when phased, the whole district must be covered by a more generalized conceptual design timetable for development which may be tentative, but must include a viable timetable for completion of each sector, with sufficient information to judge internal and external impacts. The site development plan shall include:

1. Maps indicating:
    a. The direction of north, appropriate scale and topography in not greater than two-foot contour intervals.
    b. The proposed location and height of all structures and site improvements.
    c. The use of all structures and premises.
    d. The areas and proportionate amount of parking to be developed.
    e. The location of streets, driveways and walks including all points of ingress and egress and access streets.
    f. All service areas and loading spaces.
    g. Location and areas of illumination of all exterior lighting.
    h. The location, size, number and character of all exterior signs.
    i. The location, character and extent of all recreation, open space, beautification features, and landscaping, fences, retaining and screen walls and other treatment for the protection of adjoining property.
    j. The facilities planned for sanitary sewers or treatment, and surface drainage of the premises.

k. A grading plan showing original and finished slopes, means of stabilization and relation to floodplains, drainage ways, wetlands, subsurface condition and soil suitability.

2. A traffic analysis indicating that the proposed development will be so related to streets and arteries that the traffic generated can be accommodated without causing excessive congestion or hazards or objectionable volumes of traffic on residential streets.

3. A comprehensive independent market analysis, if requested by the planning commission or zoning advisory committee, on the needs to be served and the general economic justification.

4. A copy of any proposed subdivision plats, new streets, other easements, and deed restrictions including any third party covenants to be recorded, and the legal treatment and responsibility for maintenance or any public or common grounds or spaces.

Subsection 6. *Review and approval of plans.* The zoning advisory committee shall review, approve in part or whole, or disapprove, setting forth its reasons therefore, all conceptual designs any site development plans for B-5 districts initiated or recommended for adoption by the planning commission without an original plan, in the case of initial zoning of annexed territory. The zoning advisory committee shall also review, and approve or disapprove all other site development plans involved in rezoning requests or subsequent plan amendments. After due notice and hearing of all interested parties, and consideration of analyses or recommendations by its staff, the zoning advisory committee shall judge the acceptability of varied elements of the plan in close conformity with the following criteria to:

1. Minimize traffic congestion, conflicting movements, hazards, clutter or glare interfering with drivers' visibility of streets, drives and sight lines around corners, also accommodating emergency vehicles, and protecting pedestrian ways and avoiding the attraction of customer or truck traffic through local residential frontage streets;

2. Assure long-term adequacy of grading, storm drainage, sanitary sewers, other utilities and improvements, particularly preventing landslides, erosion, sedimentation, flooding and similar problems on subject property and nearby parcels of land in accordance with the City of Birmingham Soil Erosion and Sediment Control Code;

3. Minimize activity conflicts, and environmental degradation, while maximizing a compatible interrelation of uses and economical development through shared access, parking, utility easements, service areas, clustering, etc.;

4. Preserve historic or significant places, scenic features, steep slopes, or drainage ways, and create effective natural, planted and manmade buffers of sufficient height, density and width to screen objectionable on-site noise, vibration, smoke, dust, fumes, odor, heat, glare of visibility from adjacent less intensive uses and particularly residential development and zones.

Once a site development plan has been approved, no work shall be done and no permits shall be issued except in accord with said plan. No certificate of occupancy shall be issued until all site improvements as required by an approved site development plan are completed.

Subsection 7. *Delay in construction.* In the event that construction in accordance with the originally approved development plan has not begun within two years from the date of its approval, the development plan shall expire and become null and void. If less than 25 percent of the site improvements have been installed within 18 months after issuance of a permit to begin construction, the site development plan shall expire and become null and void.

Section 6. B-6 Health and Institutional District.

Subsection 1. *Purpose.* The regulations set forth in this section, or elsewhere in this ordinance, when referred to in this section, are the regulations in the B-6 Health and Institutional District. The B-6 Health and Institutional District is provided for the orderly arrangement of buildings and uses on the campus of professional health care providers, hospitals, institutions of higher learning, including residential dwellings that are associated with such uses and are located on the same campus of the associated institution, as well as other uses that may from time to time be associated with, or accessory to, the aforementioned uses.

Subsection 2. *Use regulations.* A building or premises shall be used only for the following purposes:

1. All uses permitted under the O&I Office and Institutional District, except as provided herein.
2. Dwellings (as defined), dormitories, student residence halls, family day/night care, or family group day/night care facilities, provided that such dwellings and residential facilities are associated with or accessory to the primary institution, and wholly contained within the boundaries of the master plan of the designated campus.
3. All uses permitted under the B-1 Neighborhood Business District, provided such uses are associated with and/or located on the campus of the primary institution and these uses are designated on the approved master plan. When no approved master plan exists or if the B-1 uses are not so designated on an approved master plan, then the B-1 uses shall be located no closer than 500 feet to any residential zone district.
4. Fraternities, sororities, and other group dwellings that are recognized by, and/or associated with a college or university campus and so designated on an approved master plan. Provided, however, that no such fraternities, sororities, or other group dwellings may be located within 1,000 feet of a single-family residential zone district.

5. Other service uses, such as shipping and receiving, maintenance operations, and similar support functions, which are accessory to and in exclusive support of the operations of the primary institution and wholly contained within the boundaries of the institution's campus. These uses must be designated and identified on the approved master plan of the campus. These uses however, shall not be located in areas of the designated campus where they may create land use conflicts with off-campus uses.

Subsection 3. *Area and dimensional regulations.* Except as provided in articles VI and VIII, the area and dimensional regulations set forth in this subsection will be observed; or the area and dimensional requirements set forth pursuant to an approved master plan will be observed. Without an approved master plan, no building or structure shall have a height that exceeds 120 feet. Additionally no building or structure shall have a height that exceeds 45 feet when it is within 500 feet of a residential district (as measured from the building line). Without an approved master plan, the area and dimensional requirements are listed in the following table:

Maximum Height of Structure in Feet	*Minimum Yards*			*Minimum Lot Width*
	Front	*Rear*	*Side*	
120 feet, when 500 or more feet from a residential district, and 45 feet when within 500 feet of a residential district.	25 feet	20 feet	10 feet, except no building shall be located closer than 25 feet to a residential zone district.	50 feet

Subsection 4. *Parking and loading regulations.* Off-street parking and loading spaces shall be provided in accordance with the requirements for specific uses set forth in article V of the Zoning Ordinance of the City of Birmingham, or pursuant to an approved master plan. A parking plan must be an element of the approved master plan. When a master plan is submitted for review and approval, all parking spaces required herein may be provided on an aggregate basis. All required parking spaces must be located within the approved boundaries of the campus of the permitted institution and such parking must be approved as a part of the adopted master plan for the permitted institution. Required parking spaces shall be located on the same lot of the building/use or adjacent to the building/use that it serves except as provided below:

(a) 100 percent of the parking spaces must be located within 800 feet of the building line of the proposed building/use that the parking serves if it is not served by an approved bus/shuttle or other transport system.

(b) If serviced by an approved bus/shuttle or other transport system, at least 70 percent of the required parking shall be located within 1,200 feet of the building line of the proposed building/use that the parking serves. The

remaining 30 percent or less of the required parking may be located in remote parking lots, according to the approved parking plan, at a distance greater than 1,200 feet from the building line of the proposed building/use that the parking serves. When parking spaces are so provided, the approved master plan for the permitted institution must document that an adequate bus/shuttle or other transport system exists or will be established to support the parking during all work shifts and scheduled class times.

(c) Up to 50 percent of the parking spaces required for (a) arenas, sports venues, or auditoriums, that are primarily used during off peak hours, may be provided and jointly used by (b) uses. The (b) uses include: outpatient hospitals or clinics, banks, offices, retail stores, repair shops, service establishments, and other institutional or higher education facilities and similar uses that, in the opinion of the director are not normally open, used, or operated during the same hours as those uses listed in (a). In no event shall the parking spaces that are being jointly used be located further than 800 feet from the building line of the uses that they serve. To be eligible for jointly used parking, however, a written agreement assuring the parking spaces retention shall be properly drawn and executed by the parties concerned. This agreement must be approved as to form by the city attorney, recorded at the applicant's expense in the office of the judge of probate, and shall be in full force and effect until released by resolution of the zoning board of adjustment. Upon completion of the aforementioned, the agreement shall be filed with the application for a building permit.

Subsection 5. *Master plan information required.* A master plan will be required by the planning commission or zoning advisory committee as an aid in determining the merits of a re-zoning petition to establish a B-6 zone district. If a B-6 zone district is established as a result of initial zoning or a city-initiated comprehensive plan, the master plan will be required if the affected institution wishes to: avoid the required area, dimensional, height and setback regulations; take advantage of relaxed retail use restrictions; and provide required parking on an aggregate basis. A master plan shall include the following, subject to refinement on site development plans:

a. The direction of north and scale.

b. The proposed general location, approximate setbacks, and approximate height of all structures. These location and massing issues may be specified in the master plan by designated "geographic density zones" where similar development restrictions will uniformly apply.

c. The proposed uses of all buildings or premises shall be designated or, similar proposed uses of structures and premises may be grouped together in "geographic use zones."

d. The locations and proportionate amount of parking and loading spaces to be developed on site, and if applicable an aggregate campus parking plan, by "geographic use zones" or campus wide.

e. The location of lot lines, public street ROW, pavement edge.

f. An overall campus parking and traffic circulation plan. This must include a bus/shuttle or other transport system plan and pedestrian plan when parking spaces are proposed in locations more than 800 feet distant from the building, structures, or uses that they support.

g. Preliminary points of ingress and egress for vehicles to access parking for buildings or site.

h. Reasonable additional requirements may be recommended by the planning commission or zoning advisory committee as they relate to the protection of adjoining property.

Subsection 6. *Master plan approval and amendments.* A master plan together with any supplementary information, will be referred to the planning commission or zoning advisory committee for:

[a.] Study and recommendation to the city council on a petition for the establishment of a B-6 zone district, according to the procedure specified in article VII; or

[b.] Study and approval or disapproval when a B-6 zone district is established as a result of initial zoning or a city-initiated comprehensive plan.

Amendments to the approved master plan will be reviewed by the planning commission or the zoning advisory committee in accordance with the procedures outlined in this subsection and subsection 5.

Subsection 7. *Site development plan requirements.* Unless otherwise required by state law or other city ordinance, a site development plan will be required for review and approval by the staff of the department of planning, engineering, and permits, prior to the issuance of any permits for grading, clearing, site improvements or any other construction or building permits. Site plans not approved by staff may be appealed to the zoning board of adjustment in accordance with the regulations set forth in this zoning ordinance. In the review and approval of the development plans, consideration will be given to plans that have a goal of preventing adverse environmental impacts, to ameliorating land use conflicts, and to achieving a compatible relationship between surrounding land uses and zoning districts, and to improving parking, pedestrian, and transportation access.

A. With an approved master plan. A site development plan will be required for review as an aid in determining the consistency of the site development with the campus master plan, completeness of the application, and adherence to the

site development plan goals. Site development plans not in conformance with the master plan will not be considered by the planning commission or zoning advisory committee without an amendment to the approved master plan.

B. Without an approved master plan. A site development plan will be required for review as an aid in determining the consistency of the site development with the area and dimensional regulations, height and setback regulations, land use allowances, completeness of the application, and adherence to the site development plan goals.

C. Site development plans shall consist of the following:

a. All service, loading, and parking spaces.

b. Location and areas of illumination of all exterior lighting.

c. The location, size, number and character of all exterior signs.

d. The location, character and extent of, fences, retaining and screen walls, lighting and other treatment.

e. The facilities for surface drainage of the premises.

f. Location and screening of garbage disposal areas; and exterior mechanical and utility equipment.

g. The direction north, scale, and topography in no greater than two-foot contour intervals.

h. The proposed location, setback and height of all structures and site improvements.

i. The uses of all structures and premises.

j. The locations and proportionate amount of parking to be developed on site or adjacent to the site, or an explanation of how aggregate parking will serve the project.

k. The location of lot lines, street rights-of-way, street and sidewalk edge of pavement, proposed driveways and walks including all points of ingress and egress for vehicles and pedestrians.

l. Site landscaping plan including plant material schedule listing plant names, size, spacing and quantity, also including specific plant installation illustrations and instructions.

Section 7. O&I Office and Institutional District.

Subsection 1. *Purpose.* The regulations set forth in this section or elsewhere in this ordinance, when referred to in this section, are the regulations in the O&I Office and Institutional District. The O&I Office and Institutional District is provided for the orderly arrangement of institutional, clerical and administrative space.

Subsection 2. *Use regulations.* A building or premises shall be used only for the following purposes:

1. A public, semi-public, or private office:
   a. Sales office; provided that merchandise shall not be stored on the premises.
   b. Research or testing laboratories.
   c. Radio or television broadcasting studio or station.
   d. Cemetery, mortuary or funeral home.
2. A public or semi-public, religious, educational or charitable institution. Such use may include:
   a. A club, lodge, fraternity or sorority; provided that such establishments are not conducted primarily for financial gain.
   b. A clinic, sanitarium, convalescent home or hospital, except one principally used for the treatment of animals.
   c. Public and semi-public recreation, including but not limited to parks, golf, swimming, tennis, country and community clubs or associations; provided that such establishments are not conducted primarily for financial gain.
   d. Church, school or orphanage.
   e. Adult care facility or child care center.
3. Other uses not specifically listed above, but which are similar to those listed above or uses whose effects on surrounding areas are consistent with those listed above, are permitted on appeal, subject to the approval of the zoning board of adjustment. Such areas shall not include repair garages or storage yards for materials, vehicles or equipment, warehouses, buildings and other facilities having commercial or industrial characteristics and buildings used or intended to be used as communal living facilities, detention, correctional, or penal institutions.
4. Wireless communications facilities, in accordance with article VI, section 18.
5. Accessory structures and uses including accessory use child care center and commercial uses which are clearly incidental to the permitted use of the premises and which are carried on wholly within a main building or accessory building. Such uses may include:
   a. Drugstore limited in size to that which is of service to the principal use of the premises.
   b. Restaurant or coffee shop; provided that the serving of food or beverages to patrons waiting in parked automobiles shall not be permitted.
   c. Retail sales and service shops limited in character and size to that which is of service to the principal use of the premises.

d. On-premises signs shall be in accordance with the regulations set forth in the B-1 Neighborhood Business District.

(Ord. No. 94-66, § I, 4-5-1994; Ord. No. 97-77, § 1(title 2, art. II, § 6), 6-24-1997)

Subsection 3. *Area and dimensional regulations.*

1. Except as provided in articles VI and VIII, the area and dimensional regulations set forth in this subsection shall be observed:

Maximum Height of Structure [in] Feet	*Minimum Yards**			*Minimum Lot Width*
	Front	*Rear*	*Side*	
The height regulations for this district are the same as for the R-7 Multiple Dwelling District.	25 feet	20 feet	10 feet, except no building shall be located closer than 25 feet to a residential district.	50 feet

2. Open space between buildings. Open spaces between buildings, measured at the closest point between buildings, shall not be less than 20 feet for buildings 35 feet or less in height and 45 feet when one or both buildings are 35 feet or higher in height.

Subsection 4. *Parking and loading regulations.* Off-street parking and loading spaces shall be provided in accordance with the requirements for specific uses set forth in article V.

Subsection 5. *Plan and other information may be required.* A development plan may be required by the planning commission at its discretion as an aid in determining the merits of a petition to establish an O&I zone district. If such a zone district is established partially on the basis of an approved development plan, building permits will be issued only for structures which are in general conformity with said plan. Said plan shall include the following:

a. The direction of north, scale and topography in not greater than two-foot contour intervals.

b. The proposed location and height of all structures and site improvements.

c. The use of structures and premises.

d. The areas and proportionate amount of parking to be developed.

e. The location of streets, driveways and walks, including all points of ingress and egress.

f. All service and loading spaces.

g. Location and areas of illumination of all exterior lighting.

h. The location, size, number and character of all exterior signs.

i. The location, character and extent of landscaping, fences, retaining and screen walls, and other treatment for the protection of adjoining property.

j. The facilities for surface drainage of the premises.

k. Location of garbage disposal areas.

Subsection 6. *Review and approval of plan.* A development plan, together with any supplementary information, shall be referred to the planning commission for study and recommendation before any action is taken on petition for establishment of an O&I zone district. Reasonable additional requirements may be recommended by the planning commission for the protection of adjoining property. The planning commission shall report its recommendations and reasons therefor to the city council for action according to the procedure specified in article VII. Any subsequent amendments in the required plan shall be reviewed by the planning commission in accordance with the procedure outlined in subsections 5 and 6 of this section.

Subsection 7. *Delay in construction.* If construction, in accordance with a required development plan, has not begun within two years from the date of approval of zone district amendment by the city council, the development plan shall expire and become null and void.

Section 8. PRD Planned Recreational District.

Subsection 1. *Generally.* The regulations set forth in this section or elsewhere in this ordinance, when referred to in this section, are the regulations in the PRD Planned Recreational District. The PRD Planned Recreational District is provided for the orderly arrangement of recreational facilities and associated commercial uses.

Subsection 2. *Application—Review and approval.* A petition for the establishment of a PRD Planned Recreational District on a tract of land containing a minimum of 20 acres may be submitted by:

1. The owner(s) of the subject land; or

2. The zoning advisory committee of the Birmingham Planning Commission, the Birmingham Planning Commission or the council of the City of Birmingham to assure the compatibility of uses within a PRD Planned Recreational District.

The petitioner shall submit a plan for the development of the property for review and approval in accordance with the provisions of subsection 7 of this section before any action is taken upon the petition. The zoning advisory committee or the Birmingham Planning Commission shall determine that each approved use is compatible with other uses within, adjacent to, and in the vicinity of the PRD Planned Recreational District. The development plan and application shall be submitted to the zoning advisory committee of the Birmingham Planning Commission for rezoning considerations or to the Birmingham Planning Commission for initial zoning considerations.

Subsection 3. *Compliance with article.* The PRD Planned Recreational district shall be laid out, developed and used only in accord with a plan prepared and approved in compliance with the provisions of this section.

Subsection 4. *Use regulations.* The use of each building and/or premises shall be in accordance with the plan referred to in subsection 7 of this section. The zoning advisory committee and the Birmingham Planning Commission shall determine that each approved use is compatible with other uses within, adjacent to and in the vicinity of the PRD Planned Recreational District. The uses listed below are permitted in this district only when approved, which uses shall be limited to:

1. Archeries.
2. Amusement parks.
3. Athletic fields and stadiums (baseball, football, tennis, etc.).
4. Carnivals.
5. Circuses.
6. Drive-in or enclosed theaters (excluding adult entertainment).
7. Fairgrounds.
8. Golf courses (full size, miniature and putting greens).
9. Merry-go-rounds.
10. Miniature railroads.
11. Picnic or camp grounds including mobile home parks. All sanitary facilities must be in conformity with the provision of chapter 12.5 [of title 12], General Code of the City of Birmingham, as amended, with the density and location subject to the approval of the zoning board of adjustment.
12. Pony riding tracks.
13. Practice golf driving range.
14. Race tracks (automobile, stock cars, motorcycles, horses and dogs).
15. Riding stables and trails.
16. Roller and ice-skating rinks.
17. Skeet, rifle or trap shooting ranges, provided that such use is not located nearer than 1,000 feet to any residence other than owner or lessor of the site or such facility is totally enclosed with materials to contain any munitions discharged therein.
18. Sport arenas.
19. Swimming pools, boating or water parks.
20. Theme parks.

21. Zoos.
22. Other similar recreational or tourist facilities.
23. Wireless communications facilities, in accordance with article VI, section 18.
24. Accessory structures and uses, including but not limited to apartments and/or dormitories, but not including family day/night care or family group day/night care facility.
25. Associated commercial activities excluding adult establishments, and including but not limited to, the following:
    a. Ambulance or helistops for emergency service only.
    b. Banks.
    c. Hotels-motels.
    d. Office buildings.
    e. Restaurants with or without tavern combinations.
    f. Service stations.
    g. Veterinary establishments.
    h. Adult care facilities, child care center and accessory use child care centers.

(Ord. No. 94-66, § I, 4-5-1994; Ord. No. 97-77, § 1(title 2, art. II, § 8, subsec. 4), 6-24-1997)

Subsection 5. *Area and dimensional regulations.* The area and dimensional regulations set forth in this subsection shall be observed:

1. *Maximum height of structures.* Except as provided in articles VI and VIII, the maximum height of buildings shall be 100 feet, and no structure shall exceed 200 feet in height.
2. *Minimum structure setbacks.*
    a. *Front yard.* No building or structure shall be closer than 50 feet to any abutting street.
    b. *Side yards.* No building or structure shall be closer than 25 feet to any adjoining side property line, except as provided in item "d" below.
    c. *Rear yard.* No building or structure shall be closer than 50 feet to any rear property line, except as provided in item "d" below.
    d. *District setback.* No building or structure shall be closer than 100 feet to a PRD Planned Recreational District boundary line.
3. *Open space between buildings.* Open space between buildings, measured at the closest point, shall not be less than 25 feet for one-story buildings, 35 feet when one or both are two-story buildings, and 50 feet when one or both are three-story or taller buildings.

4. *Residential structures.* The area and dimensional requirements for residential uses shall comply with article I, section 7, R-5 Multiple Dwelling District, but shall be permitted as accessory to the principal use of the site. This shall not prohibit a dwelling for a resident watchman, custodian or caretaker employed full-time on the premises.

5. *Buffers.* Additional setbacks, buffers or restraints may be required where determined necessary.

Subsection 6. *Off-street parking and loading regulations.* Off-street parking and loading shall be provided as required in article V.

Subsection 7. *Development plan and other information—Contents.* The development plan and application shall be submitted to the zoning advisory committee of the Birmingham Planning Commission for rezoning considerations or to the Birmingham Planning Commission for initial zoning considerations, for review and approval in accordance with the provisions of this section before any action is taken upon the petition. Building permits will be issued only for structures which are in strict conformity with the development plan. Said plan shall comply with all requirements of this section and shall be accompanied by evidence concerning the feasibility of the project, the relationship of the proposed development on surrounding property and other physical conditions. When required by the planning commission, said plan and supporting evidence may include each of the following:

1. A site plan defining the areas wherein buildings may be constructed; the locations and extent of parking and the proportionate amount thereof; the location of all roads, driveways and walks and the points of ingress and egress, including access streets where required; the location, height and character of walls, fencing or other forms of screening; the location, size, character and number of signs excluding trailer or portable signs of any type; the location and character of exterior lighting; and the character and extent of landscaping, planting and other treatment for protection of adjoining properties.

2. A drainage and grading plan including an environmental analysis of the site and its environs.

3. A copy of any acceptable deed restrictions intended to be recorded.

4. A professional economic analysis on the needs and extent of the market to be served, and general economic justification and impact.

5. A professional traffic analysis indicating the effect of the proposed development on existing adjacent streets specifying the direction and amount of traffic flow to and from the development. Said analysis of any project shall include:

    a. Traffic congestion or causes;

    b. Projected volumes of traffic in adjacent residential areas; and

c. Adequate improvements to accommodate the projected volumes, determined necessary by the Birmingham Planning Commission or the zoning advisory committee as a part of the development plan required herein.

6. A professional land use study of the existing and proposed land uses in the area surrounding the subject property and projection of the relationship of proposed development to existing and future uses.

7. Schematic drawings of buildings and other improvements that illustrate the character of development shall be submitted for review and approval. The commission or committee may request that said plans be reviewed by and receive recommendation from the design review committee or any such body empowered by statute to consider or advise the city on architectural design.

In addition to the above, the design and land development controls should be addressed by the plan in areas surrounding the proposed facility and particularly its major access ways to assure a high level of quality not just for the proposed facility but for the journey to and from the facility and for spin-off or associated development that the major facility spawns.

Subsection 8. *Recommendation to city council.* The Birmingham Planning Commission or zoning advisory committee may approve the development plan and recommend to the city council the rezoning based on conditions requiring the applicant to submit sufficient information addressing problems relative to requirement of subsection 7, subject to final approval by the Birmingham Planning Commission or zoning advisory committee following the establishment of the district.

Subsection 9. *Delay in construction.* In the event that construction has not begun within two years from the date of approval by the city council, said development plan shall become null and void; in accordance with the required development plan; provided, however, that such expiration shall not be applicable to land acquired by the City of Birmingham for the purpose of public development.

Subsection 10. *Amendments to plan.* After the adoption of a PRD Planned Recreational District, amendments or changes to the development plan shall be submitted to the zoning advisory committee of the Birmingham Planning Commission for approval or disapproval. Such submission shall include the same plans or studies required for the initial application. Any change in the development plan that includes changes in the approved uses of the district shall also be approved to assure the compatibility of the changed use with other uses within, adjacent to and in the vicinity of the PRD Planned Recreational District.

[ARTICLE III. INDUSTRIAL CLASSIFICATIONS]

Section 1. M-1 Light Industrial District.

Subsection 1. *Generally.* The regulations set forth in this section or set forth elsewhere in this ordinance, when referred to in this section, are the regulations in the M-1 Light Industrial District.
(Ord. No. 07-33, § 1(1), 2-13-2007)

Subsection 2. *Use regulations.* A building or premises shall be used only for the following purposes:

1. Any use permitted in the R-7 Multiple Dwelling District or the B-3 Community Business District.
2. Contractor's or construction equipment dealer's yard.
3. Grain and feed storage.
4. Heating fuel or building material storage or wholesaling; provided that the materials shall not be extracted or processed on the premises.
5. Lumber yard.
6. Truck terminal.
7. Railroad installation.
8. Warehouse.
9. Dairy, veterinary clinics, kennels, dog training and boarding facilities.
10. Assembly of parts for production of finished equipment.
11. Manufacturing, fabricating, processing, or assembling uses which do not create any objectionable noise, vibration, smoke, dust, odor, heat or glare, such as the following:
    a. Boats (less than five tons.)
    b. Bolts, nuts, screws, washers, rivets, nails, brads, tacks, spikes, staples and similar items.
    c. Clothing.
    d. Food.
    e. Pharmaceuticals.
    f. Furniture and wood products.
    g. Glass products, but not including glass manufacture.
    h. Hand tool and hardware products.
    i. Ice.
    j. Musical instruments, games or toys.

k. Office machines.

l. Plastic products, not including processing of raw materials.

m. Plating of silverware or utensils.

n. Signs.

o. Sporting goods.

p. Other similar uses.

12. Accessory structures and uses:

a. Except that no outside storage of materials shall be permitted, when adjacent to a residential or agricultural zone district, except through grant of a special exception by the zoning board of adjustment. Said board may limit the type, area and height, and require enclosure by walls, fences, berms, shrubs, or trees, pre-existing or newly planted, sufficient to substantially screen its effects or visibility from nearby streets and any residential or agricultural zone districts;

b. Including outside kennels or dog runs subject to submission of an overall site development plan to be reviewed and approved by the zoning advisory committee prior to any grading, clearing, site improvements or issuance of related permits; provided, however, that no outside kennels or dog runs shall be permitted when within 1,000 feet of a residential zone district. The zoning advisory committee will require enclosure by walls, fences, berms, shrubs or trees, pre-existing or newly planted, and may limit the type, area and height to sufficiently screen its effects or visibility from nearby streets and any adjacent uses.

13. Outdoor urban farm* provided all compost and organic matter stored on site is screened from adjacent lots and is more than 1,000 feet from any adjacent residential dwelling, which shall not cover more than ten percent of the total area, shall be managed to prevent rodents and pests, prevent odors and drainage from compost onto adjacent sites, all farming equipment shall be screened from view with fencing or landscaping of adjacent lots, accessory structures are limited to storage sheds, greenhouses, hoophouses, cold frames and cisterns built of standard uniform materials that are either new or in sound condition not showing signs of decay, apiaries are set back from property lines by 25 feet and 50 feet from any adjacent residential lots, a continuous water source is available, one hive allowed per 2,500 square feet with maximum of 40 hives.

If any accessory structure is not maintained in sound condition free from evidence of decay and can be seen from the public right-of-way or an adjacent property, they will be considered a nuisance and will be subject to code enforcement.

It is a requirement that soil testing be conducted prior to gardening activities. Test for both soil condition and possible soil contamination, to determine at minimum constraints to food production, shall be conducted. Information on acquiring soil testing kits and analysis can be found in the appendix to the [this] City of Birmingham Zoning Ordinance.

14. Flea market.

(Ord. No. 07-33, § 1(2), 2-13-2007; Ord. No. 13-71, 5-7-2013)

Subsection 3. *Area and dimensional regulations.* Except as provided in articles VI and VIII, the area and dimensional regulations set forth in the following table shall be observed.

Maximum Height of Structure [in] Feet	*Minimum Yards*			*Minimum Lot Area Per Family*	*Minimum Lot Width*
	Front	*Rear*	*Side*		
100 feet Where a structure is located upon a lot abutting any dwelling district, then any structure exceeding 35 feet shall be set back from the required yards abutting the dwelling district an additional distance of one foot for each foot of structure height above 35 feet.	None, except where the frontage between two intersecting streets is located partly in an E or R district and partly in an M district, the front yard requirements of the E or R district shall apply to the M district.	None, except on the rear of a lot abutting a dwelling district, in which case there shall be a rear yard not less than 25 feet.	None, except on the side of a lot abutting a dwelling district, in which case there shall be a side yard not less than 10 feet.	None	None

(Ord. No. 07-33, § 1(3), 2-13-2007)

Subsection 4. *Site development plan.*

1. Except for single-family and two-family dwellings, a site development plan is required in conjunction with all building permits for new construction and when a building or part thereof is enlarged or extended to at least 50 percent of its current floor area. At a minimum, the site development plan must show:
   a. The direction of north, appropriate scale and existing and finished topography in not greater than two-foot contour intervals.
   b. The proposed location including any easements that may exist on site and elevation drawings of all sides of each building prototype.
   c. The use of all structures and premises.
   d. The location of proposed driveways and marked off-street parking spaces.
   e. The edge of pavement for existing and proposed streets, driveways and walkways.
   f. All service and loading spaces as well as the location of solid waste containers. Also, provide enclosure details for large solid waste containers, including their access in compliance with article VI, section 5.
   g. Location and areas of illumination of all exterior lighting.
   h. The location, size, number and character of all exterior signs.
   i. The location, character and extent of landscaping, retaining and screen walls and other treatment for the protection of adjoining property or fences, and other measures for screening or buffering views from incompatible land uses. This includes detailed landscaping plans for structures and parking areas. The landscaping plan shall include plant location, corresponding plant schedule and planting instructions. In addition to landscape requirements for off-street parking as specified in article V, landscaping of the remainder of the lot, exclusive of areas occupied by structures and parking, shall not be less than five percent. Said landscaping shall include a combination of shrubs, trees and ground cover.
   j. Plans and facilities for stormwater drainage of the premises.
   k. Any proposed re-subdivision of the subject property; when applicable.
2. Any proposed condominium must also conform to article VIII of the Birmingham Subdivision Regulations. The deed restrictions and covenants must show the treatment of all land held in common interest.

(Ord. No. 07-33, § 1(4), 2-13-2007)

Subsection 5. *Parking and loading regulations.* Off-street parking and loading spaces shall be provided in accordance with the requirements for specific uses set forth in article V.

(Ord. No. 07-33, § 1(5), 2-13-2007)

Subsection 6. *Attached and semi-attached dwellings.* Attached and semi-attached dwellings must comply with the requirements set forth in article VI, section 15. (Ord. No. 07-33, § 1(6), 2-13-2007)

Section 2. M-1A General Industrial District.

Subsection 1. *Generally.* The regulations set forth in this section or set forth in this ordinance, when refereed to in this section, are the regulations of the M-1A General Industrial District. This district aims to accommodate wholesaling and manufacturing uses.

Subsection 2. *Use regulations.* A building or premises shall be used only for the following purposes:

1. Business and professional offices.
2. Religious, educational or charitable institutions.
3. Retail sales or business services.
4. Recreation, amusement or entertainment.
5. Automotive, farm implements, trailer, or heavy equipment sales, services and repair, including truck stops and terminals.
6. Repair or modification services for major appliances and electrical machinery.
7. Wholesale, distribution or warehousing operation.
8. Testing or research laboratory.
9. Contractor's or construction equipment dealer's yard or utilities' yards.
10. Lumber yard, temporary storage of nontoxic natural resources or nonhazardous materials.
11. Bottling plant, canning and preserving of fruits or vegetables.
12. Furniture, wood and paper products.
13. Printing, book binding.
14. Veterinary clinics, kennels, dog training and boarding facilities.
15. Assembly of parts for production of finished goods.
16. Other manufacturing, fabricating, processing or assembling uses and activities which do not create any danger to health or safety, air or water pollution either on or off site, nor any objectionable noise, vibration, smoke, dust, fumes, odor, heat or glare in any abutting zone (excepting an M-2 or similar heavy industrial district), such as the following:
    a. Textile mills, fabrics, clothing, leather or fur goods.
    b. Grain mill products, bakery, pharmaceuticals.
    c. Electrical appliances, equipment, instruments.

d. Motor vehicles, aircraft and boats less than five tons.

e. Professional, scientific instruments, office machines.

f. Jewelry, glass, optical goods, plastic ware.

g. Musical instruments, toys, sporting goods, hardware, utensils.

h. General industrial equipment.

i. Stone, clay and cement products.

17. Adult care facility or child care center.

18. Wireless communications facilities, in accordance with article VI, section 18.

19. Accessory structures and uses:

a. Except that no outside storage of materials shall be permitted, when adjacent to a residential or agricultural zone district, except through grant of a special exception by the zoning board of adjustment. Said board may require enclosure by walls, fences, berms, shrubs, or trees, pre-existing or newly planted, and limit the type, area and height, to substantially screen its effects or visibility from nearby streets and any residential or agricultural zone districts;

b. Including outside kennels or dog runs subject to submission of an overall site development plan to be reviewed and approved by the zoning advisory committee prior to any grading, clearing, site improvements or issuance of related permits; provided, however, that no outside kennels or dog runs shall be permitted when within 1,000 feet of a residential zone district. The zoning advisory committee will require enclosure by walls, fences, berms, shrubs or trees, pre-existing or newly planted, and may limit the type, area and height to sufficiently screen its effects or visibility from nearby streets and any adjacent uses.

20. None of the above activities shall involve resource production, foundries, processing or refining of raw materials such as ore, metals, rubber, plastic, fuel, petroleum, nor storage or disposal of hazardous chemicals or wastes.

21. Outdoor urban farm* provided all compost and organic matter stored on site is screened from adjacent lots and is more than 1,000 feet from any adjacent residential dwelling, which shall not cover more than ten percent of the total area, shall be managed to prevent rodents and pests, prevent odors and drainage from compost onto adjacent sites, all farming equipment shall be screened from view with fencing or landscaping of adjacent lots, accessory structures are limited to storage sheds, greenhouses, hoophouses, cold frames and cisterns built of standard uniform materials that are either new or in sound condition not showing signs of decay, apiaries are set back from property

lines by 25 feet and 50 feet from any adjacent residential lots, a continuous water source is available, one hive allowed per 2,500 square feet with maximum of 40 hives.

If any accessory structure is not maintained in sound condition free from evidence of decay and can be seen from public right-of-way or an adjacent property, they will be considered a nuisance and will be subject to code enforcement.

It is a requirement that soil testing be conducted prior to gardening activities. Test for both soil condition and possible soil contamination, to determine at minimum constraints to food production, shall be conducted. Information on acquiring soil testing kits and analysis can be found in the appendix to the [this] City of Birmingham Zoning Ordinance.

22. Flea market.

23. Farmers market provided that; sales only occur on a temporary basis no more than 78 days per year and between the hours of 7:00 a.m. and 7:00 p.m., market can not operate for more than two consecutive days, market manager demonstrates that adequate parking is available on the lot being used by the market or a parking arrangement has been made for a nonresidential lot that is within 500 feet and is not in use during market hours, items made from kits, used or mass-produced items are prohibited, every vendor in any market shall, within one hour after the closing of the market, cause his or her provisions and vehicle to be removed from the vendor stall, and his or her stall thoroughly cleansed, and all rubbish to be removed from the vendor stall, an affidavit verifying landowners permission and identifying market manager is submitted to PEP, acknowledgement of applicable Jefferson County Health Department regulations, a farmers market permit, valid for one year, is obtained from PEP and a permit fee is paid to PEP that provides the following information:

    a. Name of all persons or entities that govern the market.

    b. Name, signature and contact information of market manager.

    c. List of all vendors and a list of items to be sold by vendor.

    d. Copy of State of Alabama Farmers Market Authority Certificate.

    e. List of market cleanup procedures.

    f. Detailed explanation of location of market and days/hours of operation.

    g. Address of the market location.

    h. Parking plan.

24. Public market provided that; 25 percent of vendors sell produce or value-added agricultural products, sales only occur on a temporary basis no more than 78 days per year and between the hours of 7:00 a.m. and 7:00 p.m., market can not operate for more than two consecutive days, market manager demonstrates

that adequate parking is available on the lot being used by the market or a parking arrangement has been made for a nonresidential lot that is within 500 feet and is not in use during market hours, used clothing, mass-produced items and appliances are prohibited, every vendor in any market shall, within one hour after the closing of the market, cause his or her provisions and vehicle to be removed from the vendor stall, and his or her stall thoroughly cleansed, all rubbish to be removed from the vendor stall, an affidavit verifying landowners permission and identifying market manager is submitted to PEP, acknowledgement of applicable Jefferson County Health Department regulations, and a public market permit, valid for one year, is obtained from PEP and a permit fee is paid to PEP that provides the following information:

a. Name of all persons or entities that govern the market.
b. Name, signature and contact information of market manager.
c. List of all vendors, the products they will sell and their grower's permits or City of Birmingham business licenses number.
d. List of market cleanup procedures.
e. Detailed explanation of location of market and days/hours of operation.
f. Parking plan.

25. Pay day (deferred presentment) and title loan operations.
26. Amusement (indoor and outdoor). Except when the property abuts residential zoned property located within the city, amusement (outdoor) is only allowed by special exception granted by the zoning board of adjustment.

(Ord. No. 94-66, § I, 4-5-1994; Ord. No. 97-77, § 1(title 2, art. III, § 2, subsec. 2), 6-24-1997; Ord. No. 13-71, 5-7-2013; Ord. No. 13-141, § 5, 11-5-2013; Ord. No. 13-178, § 3, 12-26-2013)

Subsection 3. *Area and dimensional regulations.*

1. Except as provided in articles VI and VIII, the area and dimensional regulations set forth in the following table shall be observed:

Maximum Height of Structure in Feet	*Minimum Yards*			*Minimum Lot Width*
	Front	*Rear*	*Side*	
None, except on a lot abutting an A, E or R district or any residential zone, then any structure exceeding 35 feet shall be setback from said district an additional one foot for each additional one foot of height above 35 feet.	40 feet	25 feet	15 feet each	80 feet

2. In addition no building shall be located closer than 75 feet to any agricultural or residential zoning district.
3. All structures and any impervious manmade surfaces shall cover no more than 80 percent of the land on any lot, and the remaining area shall be maintained in natural vegetation or landscaping.

Subsection 4. *Parking and loading regulations.* Off-street parking and loading spaces shall be provided in accordance with the requirements for specific uses set forth in article V.

Section 3. M-2 Heavy Industrial District.

Subsection 1. *Generally.* The regulations set forth in this section or set forth in this ordinance, when referred to in this section, are the regulations of the M-2 Heavy Industrial District.

Subsection 2. *Use regulations.* A building or premises shall be used only for the following purposes:

1. Any use permitted in the M-1 Light Industrial District; except that no dwelling other than that for a resident watchman, custodian or caretaker employed on the premises shall be permitted, nor may any dwelling be used for any family day/night care or family group day/night care facility.
2. A junkyard, or junkyard use, is permitted provided that this use is granted the appropriate license for operation by the city council and a nontransparent fence, as described herein, is erected along the entire perimeter of the site. The wall or fence (including gates) shall be of sound construction and approved by the director (or designee) of the department of planning, engineering, and permits. Walls shall be solidly constructed of block, brick, stone, concrete, or similar materials as approved by the director. Fences shall be constructed of manufactured metal sheeting material, reasonably smooth and uniform wood materials, or similar materials upon approval of the director. All materials used for wall or fence construction (including gates) shall be of sound and good condition, shall be protected against decay by the use of paint or other preservatives, and shall be uniform in height throughout. The wall or fence (including gates) may be required to be erected higher than eight feet if the adjacent property is zoned residential or if the topography of the surrounding and nearby properties enable the junk and/or scrap materials to be readily viewed. The fence requirement may be further modified by the director if the property's location, or location of the use on the property, is such that the site will not be viewable by the public or structures and/or dense vegetation is adequate to prevent viewing of the site by the public. All properly permitted and licensed junkyards existing at the enactment of this section shall conform to the requirements of this section within two years of the adoption of this section by the city council.

3. Any other use not in conflict with any other ordinances of the City of Birmingham regulating nuisances and approved by the director of planning,

engineering, and permits; provided, further, that the uses listed below may not be operated, placed, or established on a property until and unless the use shall be approved by the city council after report from the planning division of the department of planning, engineering, and permits:

a. Abattoir.

b. Acid manufacture.

c. Atomic power plant or reactor.

d. Explosives manufacture or inside storage.

e. Fat, grease, lard or tallow rendering or refining.

f. Glue or size manufacture.

g. Garbage, offal or dead animal reduction or dumping.

h. Petroleum refining.

i. Stockyard or slaughter of animals.

j. Hazardous waste or toxic disposal.

k. Medical and infectious materials disposal.

(Ord. No. 94-66, § I, 4-5-1994)

Subsection 3. *Area and dimensional regulations.* Except as provided in articles VI and VIII, the area and dimensional regulations set forth in the following table shall be observed:

Maximum Height of Structure in Feet	*Minimum Yards*		
	Front	*Rear*	*Side*
None, except where a structure is located on a lot abutting any dwelling district, then any structure exceeding 35 feet shall be set back from the required yards abutting the dwelling district an additional distance of one foot for each foot of structure height above 35 feet.	None, except where the frontage between two intersecting streets is located partly in an E or R district and partly in an M district, the front yard requirements of the E or R districts shall apply to the M district.	None, except where the rear of a lot is abutting a dwelling district, in which case there shall be a rear yard of not less than 25 feet.	None, except on the side of a lot abutting a dwelling district in which case there shall be a side yard of not less than 10 feet.

Subsection 4. *Parking and loading regulations.* Off-street parking and loading spaces shall be provided in accordance with the requirements for specific uses set forth in article V.

Section 4. M-3 Planned Industrial District.

Subsection 1. *Generally.* The regulations set forth in this section or set forth elsewhere in this ordinance, when referred to in this section, are the regulations in the M-3 Planned Industrial District. The M-3 Planned Industrial District is provided to encourage the orderly arrangement of high quality industrial development designed for maximum compatibility internally and with surrounding environs. This district shall not be established on less than six acres; however, this may be reduced to one acre, or a half block consisting of all lot frontage between two intervening streets, if such property is situated within or adjacent to a B or M zoning district or else abuts on a street having at least four moving lanes.

Subsection 2. *Use regulations.*

1. Any use permitted in the O&I Office and Institutional District.
2. No other grading, construction, site improvement or use, temporary or otherwise, shall be permitted except in accord with an approved site development plan as specified in subsections 5 and 6. Where such plan has been approved it may also designate the following additional uses as being permitted:
    a. Business offices or services.
    b. Wholesale or distribution operations.
    c. Printing or engraving plant.
    d. Radio or television broadcasting station or studio, including towers.
    e. Office-warehouse combinations and related facilities, but no separate truck stops or terminals.
    f. Manufacturing, fabricating, assembling, or processing of the following:
        (1) Electrical or electronic equipment.
        (2) Jewelry, cosmetics.
        (3) Bakery.
        (4) Pharmaceuticals.
        (5) Medical, dental or drafting instruments.
        (6) Musical instruments, games or toys.
        (7) Optical equipment, clocks, watches or similar precision instruments, office machines, photographic equipment.
        (8) Clay, leather, fabric, metal, wood, or glass product of a handcraft nature.
        (9) Clothing and other fabrics.

(10) Fur goods, except tanning or dyeing.

(11) Sporting goods, hand tools, hardware, home appliances and utensils.

(12) Furniture, wood and paper products.

(13) Plastic products, not including processing of raw materials.

g. Other uses which are similar in type to those listed above or the environmental impacts of which in surrounding areas are consistent with those listed above and which would not create any danger to health and safety, and which do not create any objectionable noise, vibration, smoke, dust, odor, heat, or glare in a surrounding area and that are specified on an approved development plan and are consistent with the "conceptual design" for the particular district.

h. Accessory structures and uses, except that all outside storage shall consist of finished or packaged goods and must be enclosed by walls, fences, berms, shrubs or trees, pre-existing or newly planted, sufficient to substantially screen it from nearby streets and residential zone districts.

i. None of the above uses or activities shall involve resource production, foundries, processing or refining of raw materials, such as ore, metals, rubber, plastic, fuel, petroleum, nor storage or disposal of hazardous chemicals or wastes.

Subsection 3. *Area and dimensional regulations.*

1. Except as provided in articles VI and VIII, the following area and dimensional regulations shall govern the location of all structures in this district.

Maximum Height of Structure	*Minimum Yards*			*Minimum Lot Width*
	Front	*Side*	*Rear*	
45 feet Any structure may be erected up to 100 feet high if it is setback from required yards or other setbacks an additional one foot for each additional one foot of structural height above 45 feet.	30 feet	25 feet	15 feet each, except no building shall be located closer than 35 feet to the perimeter boundary of this district.	150 feet

2. No building shall be constructed closer than 75 feet to the boundary of an A, E or R district or any residential zoning district. No building shall be located closer than 20 feet to another building.
3. All structures and any impervious manmade surfaces shall cover no more than 70 percent of the land on any lot, and the remaining area shall be maintained in natural vegetation or landscaping.

Subsection 4. *Parking and loading regulations.* Off-street parking and loading spaces shall be provided in accordance with the requirements for specific uses as set forth in article V.

Subsection 5. *Development plan requirements.* In order to prevent adverse environmental impacts and to achieve a compatible relation among uses covered in subsection 2.2 above and with the land use suitability of surrounding properties and nearby zone districts, as well as the surrounding transportation network, any owners of lands included in this district shall concur in an overall site development plan to be reviewed and considered for approval by the planning commission or zoning advisory committee prior to any grading, clearing, site improvements or issuance of related permits. All owners of property petitioning for establishment of a new M-3 district shall submit an acceptable development plan for zoning advisory committee approval prior to adoption by the city council. Any district may be phased over a reasonable period of time. Final site development plans may be postponed for portions of the parcel scheduled for completion after the first six acres. However, when phased, the whole district must be covered by a more generalized conceptual design for ultimate development which may be tentative, but must include a viable timetable for completion of each sector, with sufficient information to judge internal and external impacts. The site development plan shall include:

1. Maps indicating:
    a. The direction of north, appropriate scale and topography in not greater than two-foot contour intervals.
    b. The proposed location and height of all structures and site improvements.
    c. The use of all structures and premises.
    d. The areas and proportionate amount of parking to be developed.
    e. The location of streets, driveways and walks including all points of ingress and egress and access streets.
    f. All service areas and loading spaces.
    g. Location and areas of illumination of all exterior lighting.
    h. The location, size, number and character of all exterior signs.
    i. The location, character and extent of all recreation, open space, beautification features, and landscaping, fences, retaining and screen walls, and other treatment for the protection of adjoining property.

j. The facilities planned for sanitary sewers or treatment, and surface drainage of the premises.

k. A grading plan showing original and finished slopes, means of stabilization and relation to floodplains, drainage ways, wetlands, subsurface conditions and soil suitability.

2. A traffic analysis indicating that the proposed development will be so related to streets and arteries that the traffic generated can be accommodated without causing excessive congestion or hazards, or objectionable volumes of traffic on residential streets.

3. A comprehensive independent market analysis, if requested by the planning commission or zoning advisory committee, on the needs to be served and the general economic justification.

4. A copy of any proposed subdivision plats, new streets, other easements, and deed restrictions including any third party covenants to be recorded, and the legal treatment and responsibility for maintenance of any public or common grounds or spaces.

Subsection 6. *Review and approval of plans.* The zoning advisory committee shall review, approve in part or whole, or disapprove, setting forth its reasons therefore, all conceptual designs and any site development plans for M-3 districts initiated or recommended for adoption by the planning commission without an original plan in the case of initial zoning of annexed territory or zoning in accordance with a comprehensive plan. The zoning advisory committee shall also review, and approve or deny all other site development plans involved in rezoning requests or subsequent plan amendments. After due notice and hearing of all interested parties, and consideration of analyses or recommendations by its staff, the zoning advisory committee shall judge the acceptability of varied elements of the plan in close conformity with the following criteria to:

1. Minimize traffic congestion, conflicting movements, hazards, clutter or glare interfering with drivers' visibility of streets, drives and sight lines around corners, also accommodating emergency vehicles, and protecting pedestrian ways and avoiding the attraction of customer or truck traffic through local residential frontage streets.

2. Ensure long-term adequacy of grading, storm drainage, sanitary sewers, other utilities and improvements, particularly preventing landslides, erosion, sedimentation, flooding and similar problems on subject property and nearby parcels of land in accordance with the City of Birmingham Soil Erosion and Sediment Control Code.

3. Minimize activity conflicts, and environmental degradation, while maximizing a compatible interrelation of uses and economical development through shared access, parking, utility easements, service areas, clustering, etc.

4. Preserve historical or significant places, scenic features, steep slopes or drainage ways, and create effective natural, planted and manmade buffers of sufficient height, density and width to screen objectionable on-site noise, vibration, smoke, dust, fumes, odor, glare or visibility from adjacent less intensive uses and particularly residential development and zones.

Once a site development plan has been approved, no work shall be done and no permits shall be issued except in accord with said plan. No certificate of occupancy shall be issued until all site improvement as required by an approved site development plan are completed.

Subsection 7. *Delay in construction.* In the event that construction in accordance with the originally approved development plan has not begun within the two years from the date of its approval, the development plan shall expire and become null and void. If less than 25 percent of the site improvements have been installed within 18 months after issuance of a permit to begin construction, the site development plan shall expire and become null and void.

Section 5. M-4 Special Mining and Lumbering District.

Subsection 1. *Generally.* The regulations set forth in this section or set forth elsewhere in this ordinance, when referred to in this section, are the regulations in the M-4 Special Mining and Lumbering District.

Subsection 2. *Use regulations.* A building or premises shall be used only for the following purposes:

1. Any use permitted in the A-1 Agricultural District.
2. Mining, quarrying, extracting, or other removal by open pit, strip, shaft, slope, drift or any other method of removal of all mineral or other earth products of every kind, as hereinbelow restricted.
3. Timbering, logging, saw milling, extraction of timber products; and processing, distilling, manufacturing and treating of all such products. Reforestation shall require no permit.
4. The right to erect, maintain, alter, enlarge, use and operate structures, building, machinery, housing, roads, railroads, transmission lines, right-of-way, and all other facilities of every kind accessory or appropriate to the conduct of such above permitted uses.
5. The right to dump soil, tailings and other waste and to use so much of said district as may be required for such purposes, and such other rights as may be incidental or accessory to such permitted uses, provided such spoil, tailings and other waste is disposed of in a manner that pollution of streams or lakes are controlled in conformance of the Environmental Protection Agency and the Alabama Department of Environmental Management.

Subsection 3. *Area and dimensional regulations.* Except as provided in articles VI and VIII, the area and dimensional regulations set forth in the following table shall be observed:

Maximum Height of Structure in Feet	*Minimum Yards*		
	Front	*Rear*	*Side*
None, except where a structure is located upon a lot abutting any dwelling district, then any structure exceeding two stories or 35 feet shall be set back from the required yards abutting the dwelling district an additional distance of one foot for each foot of structure height above 35 feet.	None, except where the frontage between two intersecting streets is located partly in an E or R district, the front yard requirements of the E or R districts shall apply to the M district.	None, except on the rear of a lot abutting a dwelling district, in which case there shall be a rear yard of not less than 25 feet.	None, except on the side of a lot abutting a dwelling district, in which case there shall be a side yard of not less than 10 feet.

Areas and dimensional regulations for residential uses shall conform to the area and dimensional regulations of the A-1 Agricultural District.

Subsection 4. *Parking and loading regulations.* Off-street parking and loading spaces shall be provided in accordance with the requirements for specific uses set forth in article V.

Subsection 5. *Permit, operation and reclamation regulations.*

1. Before any permits may be used or work begins for strip or surface mining, the owner or operator must have applied for and received a clearing and earthwork permit and/or a permit from the city engineer of the City of Birmingham as herein provided. Any person lawfully engaged in strip or surface mining shall immediately secure such permit or cease operation of such strip mine. Applicants for a permit shall file an application with the city engineer which shall contain the following information and comply with the Soil Erosion and Sediment Control Code of the City of Birmingham:

    a. The name of applicant and whether individual, partnership, corporation or other legal entity.

    b. Legal address of the applicant for process of legal service or notice and the address of each mining operation.

c. The name and address of the agent, subsidiaries or independent contractors who may be engaged in strip surface mining on behalf of the applicant on the land or premises to be affected. Any agent, subsidiary or independent contractor engaged by the applicant subsequent to issuance of a permit shall be identified by written notice to the city engineer within 30 days of such engagement; however such engagement shall not relieve the permittee of responsibility hereunder.

d. A statement of whether the applicant, any subsidiary, affiliate or persons controlled by or under common control with the applicant, has ever had a strip or surface mining permit suspended or revoked by the City of Birmingham, Jefferson County, the State of Alabama, or any other state, or has ever had a surface mining bond, or security deposited in lieu of bond, forfeited.

e. All names under which the applicant previously operated or is now engaging in surface mining within the City of Birmingham.

f. A legal description of the land or premises upon which the applicant proposes to engage in strip or surface mining including a map at a suitable scale noting the date prepared and showing:

(1) The areas of proposed operation under the said permit, if issued.

(2) The names of owners of surface and mineral rights.

(3) The location of all existing and proposed structures.

(4) A 200-foot setback line or buffer from all adjacent property, public road rights-of-way, rivers, streams, or public lakes. The 200-foot setback from an adjacent property may be excepted provided the adjacent property has a legally existing strip or surface mine in operation thereon or provided the owner(s) of the surface rights to such adjacent property has provided the applicant with written consent for such mining.

(5) The total acreage of land or premises proposed for strip or surface mining.

(6) The existing and proposed surface drainage plans for the area of land or premises proposed for strip or surface mining noting approvals or requirements by the Alabama Department of Environmental Management, the Environmental Protection Agency or other governmental agencies. If said plans have been approved by said agencies, they shall be sufficient.

(7) A land surveyor registered in the State of Alabama certification which shall read as follows: ("I (land surveyor's name and State of Alabama registration number), hereby certify that this is a true and accurate map and shows to the best of my knowledge and according

to my survey all information required by Appendix D, General Code of the City of Birmingham, Alabama (Zoning Ordinance)." The certification shall be signed and notarized. The failure to include the required certificate shall void said application for permit.

(8) A statement by the applicant that he has obtained, or before commencing mining will obtain, from the surface and mineral owners, the legal right to mine by strip or surface mining methods, the land to be affected by each permittee and if not already obtained, a statement of intent, from the legal surface and mineral owner, to deliver said rights upon issuance of said permit.

(9) Evidence of permits under the current Alabama Surface Mining Act.

(10) Evidence of liability insurance in the amount required herein.

(11) Evidence of reclamation bond in the amount required herein.

(12) Evidence that the affected lands or premises are zoned M-4 Special Mining and Lumbering District in the form of a zoning certificate issued by the appropriate agency of the City of Birmingham.

g. The fee for a permit shall be in accordance with the Erosion Control Code and shall be submitted with the application. All sums received through payment of application fees shall be paid through the city engineer.

h. If a permittee succeeds another at any uncompleted operation by sale, assignment, lease, or otherwise, the city engineer may release the first permittee from all liability requirements of this regulation after the successor has filed a completed application, and the successor permittee assumes full liability for mining, conservation, and reclamation procedures established therein. Any agent, subsidiary or independent contractor engaged by the applicant or permittee subsequent to issuance of a permit shall be identified to the city engineer within 30 days of its engagement. The utilization of an agent, subsidiary or subcontractor shall not relieve the permittee of its responsibility hereunder except as hereinabove provided.

i. Each permit shall remain in effect for 12 months unless previously revoked or otherwise terminated as provided herein. Request for additional permits or extensions of permits shall be submitted in the same manner as the first application.

2. Operational regulations. The regulations set forth in this subsection or set forth elsewhere in this section, when referred to in this section, are the operational regulations of subsection 2, Sections 2 and 5 of this article.

a. No pit, spoil, tailings, waste or material incidental or accessory to surface mining shall be located closer to adjacent property lines, public road rights-of-way, lakes or rivers than 200 feet, and not closer than 500 feet to

a private residence or public building. This setback may be excepted provided the adjacent property has a legally existing strip or surface mine in operation thereon and further provided the owner(s) or the surface mineral rights has provided the operator or permittee with a consent for same in writing.

b. The operator or permittee shall divert water from the active pit areas in a manner designed to reduce siltation, erosion or other damage to streams and natural watercourses. As mining begins, all drainage ways which flow from the active pit areas must be protected.

c. All roads must be maintained in a manner approved by the city engineer to reduce dust.

d. The general operation of the dumping of pit, soil, tailings, waste or other materials, shall be in a manner that pollution of streams or lakes are controlled in conformance with regulations of the Environmental Protection Agency and the Alabama Department of Environmental Management.

e. The use of explosives for the purpose of blasting in connection with surface mining shall be done in accordance with the rules, regulations, and standards as set forth by the U.S. Bureau of Mines, the coal mining laws of the State of Alabama and the open pit and quarry safety rules of the State of Alabama. No blasting shall be performed after sunset or before sunrise, except as required, to comply with the above regulations.

f. The city engineer or any member of his staff, or a person designated by the City of Birmingham, may enter upon the affected lands at any reasonable time for the purpose of inspection to determine whether the provisions of this section are being complied with.

3. Insurance and bonds.

a. The application for permit shall be accompanied by a certificate of insurance certifying that the applicant has in force a public liability insurance policy issued by an insurance company authorized or licensed to do business in the State of Alabama covering all strip or surface mining operation of the applicant on lands or premises affected by such application and affording personal injury and property damage protection. The insurance shall cover the operator, all of its agents and employees, and shall not be less than $1,000,000.00 for personal injury and $1,000,000.00 for property damage. The city engineer may waive the provisions of this subsection upon the operator posting securities, in the amount of $1,000,000.00, of the same type and in the same manner as specified in this section.

b. Each application for a permit shall be accompanied by a bond in accordance with the Soil Erosion and Sediment Control Code per acre of affected land. State bonding requirements shall be credited toward the bond per acre required herein. No bond however, shall be for less than $5,000.00. Any bond herein required to be filed with the city engineer by the applicant shall be payable to the City of Birmingham for the surface mining and reclamation fund and conditioned that the operator shall faithfully perform all applicable requirements of the permit. Such bonds shall be signed by the operator, as principal, and by a good and sufficient corporate surety authorized or licensed to do business in the State of Alabama, as surety.

c. In lieu of the hereinabove required bond, the operator may elect to submit to the city engineer cash or negotiable bonds of the United States government, or the State of Alabama, or any municipality within the state. The amount of cash or market value of such securities shall be equal at least to the amount of the bond. The city engineer shall, upon receipt of any such cash or securities, immediately deposit the same with the finance director of the City of Birmingham, whose duty it shall be to receive and hold the same in the name of the City of Birmingham, in trust, for the purposes for which such a deposit is made. The finance director shall at all times be responsible for the custody and safekeeping of such deposits. The operator making the deposit of securities shall be entitled from time to time to demand and receive from the finance director, on the written order of release of the city engineer, the whole or any portion of any securities so deposited, upon depositing with the city engineer in lieu thereof cash or other negotiable securities of the classes herein specified having a market value at least equal to the sum of said securities; provided, however, that where securities, deposited as aforesaid, mature or are called, the finance director, at the request of the operator, shall convert such securities into such other negotiable securities of the classes herein specified as may be designated by the operator. The total coverage of the bond or amount of cash and securities shall be increased or reduced from time to time as land is added or withdrawn from the area covered by the permit as provided in this section.

d. Whenever an operator shall have completed all applicable requirements under the permit for part or all of the affected land, he shall notify the city engineer thereof. The bond may be released as specified in the Soil Erosion and Sediment Control Code.

e. A bond filed as above prescribed shall be conditioned so that it cannot be canceled by the surety with less than 90 days' written notice to the city engineer. If a bond is canceled after such notice, the operator shall on or before the effective date of such cancellation, substitute another bond or cash or securities as provided herein.

f. If the authorization or license to do business with the State of Alabama of any surety upon a bond filed with the city engineer pursuant to this ordinance shall be suspended or revoked, the operator, shall substitute for such surety a good and sufficient corporate surety licensed to do business in the State of Alabama, or another bond, or cash or securities in lieu thereof as provided hereinabove.

g. The failure of the operator to make substitution of surety bond, cash or securities, as provided above, shall result in the suspension of the permit of the operator to conduct any operation on the affected land in such permit in accordance with this section. If such permit is revoked, the operator shall not conduct further mining of the affected land or premises until substitution as provided hereinabove has been made.

h. All sums received through the forfeiture of bonds, the recovery of civil penalties, or otherwise for the reclamation of disturbed lands shall be placed in the general fund of the City of Birmingham and credited to an account designated as the surface mining and reclamation fund. This fund, which is hereby established, shall be available to the council of the City of Birmingham for expenditures only for the purpose of reclamation and revegetation of the land affected, subsequent to the enactment of this section. Defaulted bond funds shall be first applied to reclaiming the lands covered by the surface mining and reclamation fund of the City of Birmingham.

4. Reclamation. The permittee shall notify the city engineer within 30 days after termination of the operation, or prior to the termination at any time, and shall reclaim the affected lands in accordance with the following provisions:

a. The operator or permittee shall backfill the final pit by sloping the last spoil pile toward the high wall to a minimum depth of seven feet above the bottom mineral seam.

b. If any of the affected lands are toxic, deficient in plant nutrients, composed of sand, gravel, shale or stone to such extent as to prohibit plant growth, the applicant shall be required to cover such area with overburden material or fertilizers to promote revegetation. To establish the condition of soil or affected lands, the city engineer may require the permittee or operator to submit test results or documentation.

c. A permittee with legal title or right may construct dams of earth or other materials in cuts of all operations when lakes may be formed, and cause lakes to be formed, provided that the formation of said lakes will not interfere with underground or other mining operations or cause damage to adjoining property, or establish a stagnant lake or pond. If permittee elects to form lakes or ponds as part of his reclamation efforts, he shall

cover any toxic seam on the bottom of the open pit to a depth of two feet. The permittee is encouraged to make such lake or pond accessible to wildlife.

d. The permittee may elect to reclaim the affected land for range, agricultural or horticultural, homesite, recreational, industrial or commercial uses but no such election shall result in grading to a lesser extent than set forth in this subsection or establish a vested interest to a rezoning for such uses.

e. The permittee shall complete the contouring of all spoil piles within 12 months from the date of expiration of the surface mining operations.

f. The permittee shall perform planting and revegetation during the first planting season after regrading is complete; however, the outer slope shall be revegetated as soon as possible to provide quick growth cover and reduce erosion.

g. The operator or permittee shall cover the face of any toxic material left exposed in the bottom of the pit by surface mining with overburden material to a depth of two feet.

h. The operator or permittee shall eliminate all high walls except the final high wall of each pit and construct two access ways to the area above the high wall for each horizontal mile of said final high wall.

i. When final reclamation is assumed, if affected lands are being developed for forestry, the operator will, in addition to trees, establish a protective covering of some other type plant, such as grass, to assist in preventing excessive erosion pending the development of forest tree seedlings into trees.

5. Revocation of permits.

a. The city engineer may revoke any permit upon:

(1) Revocation of state permit.

(2) Expiration or cancellation of liability insurance.

(3) Expiration or cancellation of reclamation bond.

(4) Violation of any regulation herein provided; however, no permit shall be revoked until the city engineer shall, in writing, advise the permittee of the reason for such revocation, and allow such permittee or operator a reasonable period of time not exceeding 60 days to correct such violation or other defect. If after this period, the permittee or operator so notified remains in violation, the city engineer may cause to have issued and served upon the permittee or operator alleged to be committing such violation, a written notice which shall require the permittee or operator so complained against to answer the charges of such formal complaint at a hearing before

the city engineer at a time not less than ten days nor more than 30 days after the service of such notice. The charged permittee or operator may appear in person or by representative or counsel at such hearing. After such hearing the city engineer shall enter such order as deemed appropriate on the basis of the facts presented and forthwith mail a copy thereof to the charged permittee or operator or its attorney of record and to the council of the City of Birmingham. If such order of the city engineer is not complied with and is then not the subject of an appeal to the council of the City of Birmingham or appropriate court as herein provided, the city engineer may cause to have instituted a civil action in any court of a competent jurisdiction to forfeit the bond of the permittee or operator as to land affected by the permittee or operator's violation of this regulation, or for injunctive or other appropriate relief to prevent any further or continued violation of such final order.

b. Any permittee or operator may appeal any order of the city engineer to the council of the City of Birmingham and hence, to the Circuit Court of Jefferson County as prescribed by law. During the period of appeal by such permittee or operator, the city engineer shall not commence separate legal proceedings as herein authorized nor shall any permit be revoked until final adjudication of the appeal.

c. Nothing in this regulation shall prevent the city engineer from making efforts to obtain voluntary compliance through warning, conference or any other appropriate means. This regulation specifically directs and encourages the city engineer to exhaust conciliatory efforts before taking formal action against permittee or operator as provided herein.

Subsection 6. *Exceptions.* The provisions of this section shall not apply to any surface mining activities of the State of Alabama incidental to their activities in construction, repairing, and maintaining the public road system in the City of Birmingham. The provisions of this section shall also extend to any person, firm, or corporation contracting with the State of Alabama, to construct, repair and maintain public roads, provided such contracts contain standards for the reclamation of all affected surface mining areas in accordance with the surface mining laws of the State of Alabama.

[ARTICLE IV. OTHER CLASSIFICATIONS]

Section 1. A-1 Agricultural District.

Subsection 1. *Generally.* The regulations set forth in this section or set forth elsewhere in this ordinance, when referred to in this section, are the regulations in the A-1 Agricultural District.

Subsection. 2. *Use regulations.* A building or premises shall be used only for the following purposes:

1. Any use permitted in the E-1 Estate District.
2. Poultry farm.
3. Rabbit and other animal farms except as prohibited by [section 6-1-4 of this Code].
4. Apiary (bee hives)
5. Greenhouse and nursery.
6. Dog kennel.
7. General farming.
8. Truck farming.
9. Dairy.
10. Ranching.
11. Removal of chert (temporary use only) maximum six months.
12. Recreational camp, river camps, etc.
13. Family group day/night care facility, adult care facility, or child care center.
14. All surface support facilities shall be permitted for subsurface or underground mining; provided that these support facilities are located no closer than 200 feet to property lines, which constitute the boundaries of this use, right-of-way, roads or public easements. The underground mining operation must conform in every respect with the state and federal law governing such operation.
15. Accessory structures and uses including but not limited to the following:
    a. Chicken (fowl) houses or pens; provided that the minimum setback from adjoining property lines shall be 100 feet and from street right-of-way lines shall be 300 feet. No chicken (fowl) house shall be built closer than 300 feet to the nearest adjacent residence.
    b. Livestock barns; provided that the minimum setback from adjoining property lines shall be 100 feet and from street right-of-way lines shall be 300 feet. No livestock barns shall be built closer than 300 feet to the nearest adjacent residence.
    c. Accessory use child care center.
16. Any of the above uses may be combined with a single-family dwelling if separate structures and/or facilities are provided for each use.

(Ord. No. 94-66, § I, 4-5-1994)

Subsection 3. *Area and dimensional regulations.* Except as provided in articles VI and VIII, the area and dimensional regulations set forth in the following table shall be observed:

Maximum Height of Structure in Feet	*Minimum Yards*			*Minimum Lot Area Per Family*	*Minimum Lot Width*
	Front	*Rear*	*Each Side (two required)*		
35 feet	40 feet	40 feet	15 feet	1 acre (43,560 sq. ft.)	100 feet

Subsection 4. *Parking regulations.* Off-street parking spaces shall be provided in accordance with the requirements for specific uses set forth in article V.

Section 2. A-2 Agricultural District.

Subsection 1. *Generally.* The regulations set forth in this section or set forth elsewhere in this ordinance, when referred to in this section, are the regulations in the A-2 Agricultural District.

Subsection 2. *Use regulations.*

A. A building or premises shall be used only for the following purposes:

1. Any use permitted in the E-1 Estate District.
2. Accessory structures and uses including but not limited to the following:
   a. One horse shall be permitted on any parcel, tract or lot containing a minimum area of 43,560 square feet (one acre). For each additional one acre of land contained in such parcel, tract or lot, one additional horse shall be allowed. No horse shall be allowed on any parcel, tract or lot except in accordance with the following provisions:
      (1) All barns, stables, etc. shall be located at least 70 feet from side lot lines and 35 feet from rear property line.
      (2) All animals are to be housed, fed, watered and pastured at least 150 feet from any adjacent residential structure.
      (3) All animals shall be housed and fed in the rear of the owner's residence.
   b. Rabbits and other small animals (maximum of 20) shall be housed not less than 150 feet from any adjacent residential structure with a minimum of 35 feet from any property line.
   c. Poultry or fowl raising where poultry is used only for personal family consumption; the total flock shall not exceed 25 grown chickens, with not more than two roosters permitted. Poultry, or fowl houses shall not be closer than 15 feet to a property line or 100 feet to the nearest adjacent residential structure.

d. Accessory use child care center.

B. No building or premises shall be used for the storage or housing of the following:

1. Commercial poultry or fowl raising.

2. Cows.

3. Goats.

4. Swine.

C. Family group day/night care facility, adult care facility or child care center.
(Ord. No. 94-66, § I, 4-5-1994)

Subsection 3. *Area and dimensional regulations.* Except as provided in articles VI and VIII, the area and dimensional regulations set forth in the following table shall be observed:

Maximum Height of Structure in Feet	*Minimum Yards*			*Minimum Lot Area Per Family*	*Minimum Lot Width*
	Front	*Rear*	*Each Side (two required)*		
35 feet	35 feet	35 feet	15 feet	15,000 sq. ft.	75 feet

Subsection 4. *Parking regulations.* Off-street parking spaces shall be provided in accordance with the requirements for specific uses set forth in article V.

Section 3. MXD Mixed Use District.

Subsection 1. *Generally.* The regulations set forth in this section are the regulations for the MXD Mixed Use District. This district is established to provide for a compatible and complementary mixture of residential, office, commercial, cultural, institutional, governmental, and industrial uses. The purpose of this section is:

(1) To encourage flexible, creative and imaginative approaches to a range of urban development opportunities;

(2) To provide flexible and creative solutions to transportation and parking problems, public or private, motorized and pedestrian;

(3) To promote citizen interaction and a sense of community;

(4) To provide opportunities for affordable housing;

(5) To provide economic, convenient and efficient provision of sufficient public services;

(6) To ensure the provision of public spaces and activities;

(7) To preserve significant natural features of the land; and

(8) To develop in a manner complementary with other land in the vicinity.

Subsection 2. *Mixed use district definitions.* For the purposes of this section the following words, terms and phrases shall have the meaning ascribed to them as specified herein.

A. *Civic use areas.* Land areas intended to contain public/quasi-public buildings and uses (such as churches, schools, libraries, fire stations, and other similar uses) for the use, enjoyment and benefit of the public.

B. *Common open space.* The land area which is accessible and available to all occupants of specific dwellings or subdivisions for whose use the space is intended and reserved. This space is owned and managed by a property owners' association.

C. *Conceptual plan.* A plan consisting of several maps and narratives laying out existing conditions and proposing MXD subareas and a general land use group plan for an MXD or phase thereof.

D. *Development guidelines.* Regulations for development within an MXD which are established by the developer and approved by the director of the department of planning, engineering and permits that govern location, character, and extent of proposed site plans and design features.

E. *Development plans.* Detailed maps and narratives, based on approved conceptual plans and development guidelines, delineating a proposed development or phase of development and providing the basis for a preliminary subdivision.

F. *Golf courses, private.* Golf courses privately owned and not open to the general public.

G. *Golf courses, public.* Golf courses owned by a government agency or privately owned but open to the general public on a daily fee basis.

H. *Gross land area.* Total land area of a site or district inclusive of dedicated street rights-of-way, civic use area and open space area.

I. *Land use groups.* Uses permitted in varying proportions under the MXD subarea plans.

J. *Mixed Use District (MXD).* A mixed use district is a zone district wherein a compatible mixture of office, commercial, residential, industrial and civic uses and open space may be combined.

K. *MXD subareas.* Areas enumerated below which may be developed under an MXD zoning classification. The boundaries of these areas are required to be delineated on conceptual plans.

1. *Mixed Use District/Residential (MXD/R).* A mixed use development subarea comprehensively planned for residential community development.

2. *Mixed Use District/Employment (MXD/E).* A mixed use development subarea comprehensively planned for employment based development.

3. *Mixed Use District/Village Center (MXD/VC).* A mixed use development subarea comprehensively planned to concentrate civic, cultural, commercial, residential and employment activities into a cohesive center.

L. *Net acres.* The total land area of a site less proposed public rights-of-way, easements, required civic use area and required open space.

M. *Performance bonus.* A method for allowing additional land use options and/or densities when the development plan's net acres establish additional open space beyond that required.

N. *Property owners' association.* A private corporation or other legal entity established by the developer to provide for the ownership, maintenance, and management of the common open space areas, and other community area improvements of a development, as well as enforcement of its covenants.

O. *Public open space.* Land dedicated for leisure and/or recreation, including but not limited to: pedestrian paths, parks, athletic fields and courts assigned to a public agency which is responsible for its operation and maintenance.

P. *Required open space.* Percentage of a proposed development that must be restricted to common and/or public open space as specified in the area, dimensional, and design requirements.

Q. *Steering committee.* A committee which may include private sector and governmental representatives which may be formed to provide oversight to a development.

R. *Required civic use space.* Percentage of a proposed development that must be dedicated to publicly owned civic use activities as specified in the area, dimensional and design requirements.

Subsection 3. *Submittal requirements for MXD zoning and conceptual plan approval.*

A. *Process for rezoning to MXD (owner/developer initiated).*

1. The minimum gross land area required for an application for rezoning to MXD is 40 acres. Smaller areas may be considered for rezoning to MXD when contiguous to a larger tract of land that is already zoned MXD and is under the same ownership as the larger tract and using the same development guidelines.

2. The applicant shall submit six copies of a "draft" conceptual plan, with payment of the rezoning fee. The department of planning, engineering and permits shall schedule a pre-application conference within 15 days to review the draft proposal. This informal conference may include the

applicant, department of planning, engineering and permits, traffic engineering department, and other private and public entities which may have interests in the vicinity of the project.

3. The applicant should incorporate staff recommended changes to the "draft" conceptual plan. Upon the applicant submitting six copies of a completed conceptual plan, the department of planning, engineering and permits shall process a rezoning case and request the zoning advisory committee to hold a public hearing at their next meeting.

4. After the zoning advisory committee public hearing, the department of planning, engineering and permits will set a public hearing for rezoning with the city council.

B. *Process for conceptual plan approval in an existing MXD zone (where zoning has been established by the city in accordance with a comprehensive plan).*

1. Six copies of a "draft" conceptual plan shall be submitted to the urban planning department which will convene a pre-application conference within 15 days. This conference will be lead by the chairman of the steering committee, should one exist, for the area in which the MXD zone is being implemented, or by the director of the department of planning, engineering and permits where such a steering committee is not in place.

2. After the pre-application conference, the applicant should incorporate staff recommended changes to the "draft" conceptual plan. Upon applicant submitting six copies of a completed conceptual plan, the department of planning, engineering and permits shall process public hearings before the zoning advisory committee and city council.

C. *Requirements for a conceptual plan submittal.* The conceptual plan submittal shall consist of maps and written material as detailed below. Maps should include title block and include date, north arrow, legend, and scale. Scale should be compatible between comparable maps and large enough to fully understand the proposed development concept.

1. *Existing environmental features map.*

a. Geologic features.

b. Soils map.

c. Topographic features (with contour intervals not greater than five feet).

d. Flood maps (showing Federal Emergency Management Act floodways and 100-year floodplains).

e. Wetlands identification where U.S. Army Corps of Engineers approvals are required.

f. Large tree stands, water features, significant scenic areas or identified endangered species habitat.

2. *Existing manmade features map.*

a. Location of existing land uses on site and within 500 feet of the site boundaries.

b. Location of existing roads and rights-of-way and the volume/capacity ratios of existing contiguous freeways, arterial, and major collector roadways.

c. Location and size of existing accessible water lines and sanitary sewer lines, their rights-of-way or easements and their capacities and current demand.

d. Location of other utilities and their rights-of-way or easements such as natural gas, electrical, telephone, and cable television.

e. Historical sites listed or eligible for National Register listing.

3. *Existing legal features map.*

a. Existing zoning on site and within 500 feet of site boundaries.

b. Property lines and dimensions of site.

c. Municipal and county jurisdictional boundaries, where applicable.

4. *Conceptual plan map.*

a. Boundaries of the proposed MXD zone and proposed boundaries of MXD subareas (for example, residential, employment, village center).

b. Proposed on-site arterial and collector street system showing approximate locations and access to off-site roadways.

c. General location and size of projected water lines and sanitary sewer lines, their rights-of-way or easements and their capacities and point of connection.

d. Generalized location of proposed land use groups including required open space and required civic use areas.

5. *Conceptual plan written submittal.*

a. A narrative discussing how the proposed project addresses the eight purposes of an MXD zone outlined in subsection 1 of this section (pages 4—5).

b. Projected built-out resident population and employment population.

c. Quantitative geographic data in acres:

(1) Gross land area;

(2) Net land area;

(3) Approximate acreage of areas dedicated to various land use groups within each proposed MXD subarea including approximate percentages of each;

(4) Approximate acreage of open space area, (including acres for public or private golf courses, public open space, common open space), including approximate percentages of each;

(5) Approximate acreage of civic use areas, including approximate percentages.

d. Estimates of demands and provisions for supplying adequate drinking water and sanitary sewage disposal to meet the needs of a projected built-out population per phase.

e. A traffic impact analysis indicating that the traffic generated when each phase of the proposed project is built out can be accommodated without causing excessive congestion or safety hazards on existing or proposed roads.

D. *Minor amendments to conceptual plans.* Any minor or nonsubstantive change in the approved conceptual plan may be made after approval of such change by the director of the department of planning, engineering and permits. Any proposed change in an approved conceptual plan shall be clearly portrayed on all copies of the approved plan and submitted to the director of the department of planning, engineering and permits for review and determination. At his or her discretion, the proposed change may be referred to a steering committee for review or to the zoning advisory committee and city council for a public hearing and action. No amendment shall be made without public hearings which would cause any of the following to occur:

1. Proposed changes in MXD subarea boundaries which increase the acreage of more intense subareas by more than five percent of the council approved conceptual plan.

2. Proposed land use group changes which could increase the overall densities or intensity of uses by more than ten percent of the council approved conceptual plan.

3. Proposed land use group changes which could alter the MXD's relationships to adjacent developed property or relationships to planned uses.

4. Any reduction in the total acreage of required open space or required civic use space or any reduction of ten percent or more of the total acreage of open space or civic use areas in the city council approved conceptual plan.

5. Major realignment of arterial or collector streets.

Subsection 4. *Development requirements.*

A. *Development guidelines.* The applicant shall submit six draft copies of development guidelines to the department of planning, engineering and permits for

review. Within 30 days after receiving said documents, the director of the department of planning, engineering and permits shall call a meeting with the applicant and a steering committee, where applicable, to discuss staff comments. If agreement cannot be reached on the sufficiency of this submittal, appeals may be filed with the zoning board of adjustment. Proposed development guidelines shall include minimum standards for site and project development and amendment procedures, subject to the approval of the director of the department of planning, engineering and permits and a steering committee, where applicable. These guidelines shall include but are not limited to, the following:

1. Area, dimensional, and design requirements of this ordinance as baseline standards.
2. Building materials and colors and architectural features.
3. Buffers and screening requirements between different land use groups and between different land use groups and existing residentially zoned districts.
4. Landscaping for off-street parking lots, solid waste and recycling containers, utility equipment, and for the development as a whole.
5. Pedestrian amenities and pedestrian circulation plans and requirements, such as for bikelanes, equestrian trails, sidewalks or pedestrian paths as appropriate.
6. Building and parking lot setback lines.
7. Methods to limit the number of parking lot access points to public streets and to link parking areas with adjacent properties.
8. Fences and walls including size, material and placement.
9. Public right-of-way amenity plans, including street trees, street furniture, lighting and landscaping.
10. Overhead utility location and height.
11. Site clearing and preservation procedures for trees and other natural vegetation.
12. Signs.
13. Exterior lighting.
14. Zero lot line housing layout and design features.
15. Design guidelines for MXD/VC subareas, in addition to the above, shall address the following design features:
    a. Vehicular and pedestrian circulation systems that promote a comfortable and pleasant walkway environment, including materials, landscaping, lighting, street furniture, and permitted parking lot layouts and location;

b. Village center open space plan, showing how required village square and other open space amenities relate to other activities to promote a village atmosphere;

c. Building placement, facade design, entrance and window location and placement, provisions for any visible utilities or accessory structures, heights, materials, colors, signage and lighting.

16. Right-of-way improvement standards where not in compliance with city subdivision regulations and where modification of these regulations are expected to be requested of the subdivision committee.

B. *Development plans.* Development plans in an approved MXD subarea must be: (1) submitted to the department of planning, engineering and permits and (2) conform to the approved conceptual plan and development guidelines and (3) consist of mapped or plotted information and written information. The department of planning, engineering and permits and other city staff as well as a project steering committee, where applicable, shall review these plans and respond to the applicant within 15 days with comments. The applicant, after consideration of staff comments, will make appropriate revisions, if necessary, and submit the development plans for the approval of the director of the department of planning, engineering and permits. Appeals of any provisions on the development plan approval may be filed with the zoning board of adjustment.

1. *Development plan maps.* Detailed development plans shall be prepared at a scale sufficient for detailed review and delineate: (1) MXD subareas for the development; (2) land use groups for all parcels; (3) required open space and civic use area; (4) additional open space which is proposed, if applicable; (5) phasing of development. In addition, data should be submitted delineating conformance with the development guidelines as well as the following:

a. Topographic contours not greater than two-foot intervals.

b. Approximate height of all buildings.

c. Use(s) of all buildings.

d. Approximate location of all utilities.

e. Approximate total site acreage.

f. Approximate total site impervious (manmade) surfaces.

g. Lot lines within 100 feet of development site boundaries.

h. Location of all structures within 100 feet of site, their use and heights.

i. Location of all private roads, drives, and parking lots within 100 feet.

j. Buffer and screening provisions.

k. Parking lot design specifying layout and landscaping in detail.

l. All walls and fences.

m. Lighting plan.

2. *Development plan written submittal.*

a. Legal description of project property.

b. Quantitative geographic data in acres:

(1) Gross land area;

(2) Net land area;

(3) Areas dedicated to various land use groups within each proposed MXD subarea including percentages of each;

(4) Open space area, (including acres for public or private golf courses, public open space, common open space, and required open space including percentages of each);

(5) Civic use areas, including percentages.

c. Documentation from developer committing provision of adequate drinking water and sanitary sewage disposal to meet the need of the projected built-out population.

d. A traffic impact analysis indicating how each phase of the proposed development will relate to streets and roadways and that the traffic generated when built out can be accommodated without causing excessive congestion, hazards, or objectionable volumes of traffic on existing or proposed roads.

C. *Preliminary subdivisions and draft covenants.* Preliminary subdivisions in an approved MXD subarea must be submitted to the department of planning, engineering and permits, conform to the approved conceptual plan, development guidelines and development plans and consist of mapped or plotted information and written information, including draft covenants, where applicable, governing relationships between the developer and property owners. The department of planning, engineering and permits and other city staff as well as a project steering committee, where applicable, shall review these plans and respond to the applicant within 15 days with comments. The applicant, after consideration of staff comments, will make appropriate revisions, if necessary, and submit the following:

1. *Preliminary subdivision plats.* Preliminary subdivision plats shall be submitted as provided for in the city's subdivision regulations for subdivision committee review and action. (See subdivision regulations, available from the department of planning, engineering and permits.)

2. *Covenants.* Covenants shall be between applicant and deed holders of all property in the area covered by this application. Covenants shall include articles which include, but are not limited to the following:
    a. Articles of incorporation and bylaws for a property owners' association.
    b. Provision for the establishing of a procedure for turning over management of open space and other amenities from applicant to the property owners' association.
    c. Provision for an account to fund maintenance and operational expenses of common or open public space.

D. *Covenants and final subdivision plat.* After receiving approval of the development guidelines, the development plan and preliminary subdivision plat, the applicant shall submit final covenants and file an application with subdivision committee for approval of a final plat. Upon approval of the final covenants by the director of the department of planning, engineering and permits, the final plat will be submitted as provided for in the city's subdivision regulations for subdivision committee review and action. After the final plat has been recorded, building permits may be applied for at the department of buildings and inspection. A condition of building permit issuance is review and approval by the director of the department of planning, engineering and permits for compliance with the approved plans. Appeals of the decision on compliance by the director of the department of planning, engineering and permits are to the zoning board of adjustment.

Subsection 5. *Permitted uses, use groups, and use percentages.*

A. *Permitted uses.* Any use not specifically listed in these land use groups, including accessory structures and uses, but excluding, except as herein provided, accessory use child care centers, may be allowed in groups with similar uses as determined by the director of the department of planning, engineering and permits. Uses specifically listed for the first time in a less restrictive land use group cannot be interpreted to be allowed in a more restrictive land use group.

B. *Use groups.*
    1. *Open space uses.* Except as noted these uses are allowed in all subareas:
        a. Parks.
        b. Athletic fields and courts.
        c. Pedestrian paths (See subsection 6.A.3).
        d. Golf courses, boat clubs, marinas, and swimming pools.
        e. Natural undisturbed areas.
        f. Public recreation centers.

g. Village greens and town squares.

h. Natatorium, gymnasium, velodrome.

i. Stadiums and athletic coliseums (permitted in MXD/E subareas only).

j. Other like uses.

2. *Civic uses.* Except as noted these uses are allowed in all subareas:

a. Library.

b. School, grades K—9.

c. Municipal services and buildings.

d. Police and fire stations.

e. Post offices.

f. Child care centers or adult care facilities.

g. Nonprofit civic or cultural societies (no office buildings).

h. Churches, synagogues, and other places of worship.

i. High schools, grades 9—12, colleges, and universities (not allowed in MXD/R).

j. Museums and art galleries (not allowed in MXD/R).

k. Music center, symphony halls, and amphitheater (not allowed in MXD/R).

l. Performing arts theater (not allowed in MXD/R).

m. Hospitals (not allowed in MXD/R).

n. Public conference center (not allowed in MXD/R).

o. Other like uses.

3. *Residential use groups.*

Residential Use Group 1	Single-family detached dwelling units not to exceed seven dwelling units per net acre
Residential Use Group 2	All uses allowed in Residential Use Group 1 and single-family attached and semi-attached dwelling units, single-family detached zero lot line dwellings and multi-family units not to exceed 12 dwelling units per net acre.
Residential Use Group 3	All uses allowed in Residential Use Group 2 and multifamily dwelling units not to exceed 29 dwelling units per net acre and Communal Living Facilities with Zoning Board of Adjustment approval.

4. *Commercial use groups.*

Commercial Use Group 1. Neighborhood business uses.

a. All uses allowed in Residential Use Group 2.
b. Residential uses in mixed use building.
c. Artist studio.
d. Greenhouse.
e. Restaurants without drive through or drive-in capabilities.
f. Offices not exceeding 5,000 square feet per building.
g. Neighborhood retail, sales and services not exceeding 5,000 square feet per building.
h. Auto service station limited to one facility per intersection.
i. Private club or lodge.
j. Commercial health club, spa or recreation facility.
k. Tourist home.
l. Other like uses.

Commercial Use Group 2. General commercial uses.

a. All uses allowed in Residential Use Group 3.
b. All uses allowed in Neighborhood Business, Commercial Use Group 1.
c. General office.
d. Retail sales and services.
e. Restaurants.
f. Hotels or motels.
g. Conference centers.
h. Nonindustrial research and development.
i. Parking garages.
j. Cinemas.
k. Taverns.
l. Funeral homes.
m. Other like uses.

Commercial Use Group 3. Commercial/limited industrial use.

a. All uses allowed in Commercial Use Group 2, except residential uses.
b. Building contractors.
c. Light industrial use; provided uses do not create any danger to health or safety in surrounding areas and which do not create

any objectionable noise, vibration, smoke, dust, odor, heat or glare, or release any pollutant which would require a permit from a state or federal agency.

d. Wholesale sales.

e. Shipping/receiving, warehousing and self storage.

f. Auto repair.

g. Auto sales, new or used.

h. Animal hospitals and veterinarians.

i. Broadcasting stations.

j. Other like uses.

5. *Special exception uses (with zoning board of adjustment approval).*

a. Public utilities (with adequate screening provision).

b. Outdoor storage (in MXD/E only, finished or packaged goods only and with adequate screening provisions).

c. Horse stables, barns and corrals (only when contiguous to equestrian trails, on ten-acre sites or larger and adequately buffered from neighboring uses).

d. Cemeteries.

e. Family day/night care facility, or accessory use child center.

f. Appeals for more intensive uses than are allowed under proposed land use groups.

6. *Wireless communications facilities.* In accordance with article VI, section 18.

C. *Use percentages.* The following sets forth the proportions of permitted uses for arranging acreages of MXD subareas. Unless otherwise noted, all MXD zones have provisions for required open space and civic use areas. (See area, dimensional and design regulations).

1. MXD/R residential uses with complementing commercial uses.

a. Sites less than 20 net acres.

i. Allowed uses and proportions:

Residential Use Group 1 - maximum 100 percent.

Residential Use Group 2 - maximum 10 percent.

ii. Performance bonus. Allowed uses and proportions:

Residential Use Group 1 - maximum 100 percent.

Residential Use Group 2 - an additional 1.5 percent for every one percent of additional open space up to a maximum of 25 percent.

b. Sites between 20 to 40 net acres.

i. Allowed uses and proportions:

Residential Use Group 1 - maximum 90 percent.

Residential Use Group 2 - maximum 15 percent.

Commercial Group 1 - maximum 5 percent.

ii. Performance bonus: Allowed uses and proportions:

Residential Use Group 1 - maximum 90 percent.

Residential Use Group 2 - an additional 1.5 percent for every one percent of additional open space up to a maximum of 30 percent.

Commercial Use Group 1 - maximum 5 percent.

c. Sites over 40 net acres.

i. Allowed uses and proportions:

Residential Use Group 1 - maximum 80 percent.

Residential Use Group 2 - maximum 25 percent.

Residential Use Group 3 - maximum five percent.

Commercial Use Group 1 - maximum five percent.

Commercial Use Group 2 - maximum two percent.

ii. Performance bonus. Allowed uses and proportions:

Residential Use Group 1 - maximum 80 percent.

Residential Use Group 2 - an additional one percent for every one percent of additional open space up to a maximum of 35 percent.

Residential Use Group 3 - an additional one-half percent for every one percent up to a maximum of ten percent.

Commercial Use Group 1 - maximum five percent.

Commercial Use Group 2 - maximum three percent.

2. MXD/E with complementary commercial and residential uses. Applications may be made for sites of over ten net acres.

a. Allowed uses and proportions:

Commercial Use Group 2 - maximum 90 percent.

Commercial Use Group 3 - maximum 40 percent.

b. Performance bonus. Allowed uses and proportions:

Commercial Use Group 2 - maximum 90 percent.

Commercial Use Group 3 - two percent for every one percent of additional open space up to a maximum of 60 percent.

3. MXD/VC village center uses with complementing residential and commercial uses arranged and located in a manner to provide a defined and

pedestrian oriented business and service center for a larger MXD area. Application may be made for the MXD/VC subarea designation, where part of a larger MXD zoned property, for sites between ten and 80 net acres. Allowed uses and proportions:

Residential Use Group 1 - maximum 30 percent.

Residential Use Group 2 - maximum 30 percent.

Residential Use Group 3 - maximum 25 percent.

Commercial Use Group 1 - combined maximum 50 percent.

Commercial Use Group 2 - combined maximum 50 percent.

(Ord. No. 94-66, § I, 4-5-1994; Ord. No. 97-77, § 1(title 2, art. IV, § 3, subsec. 5), 6-24-1997)

Subsection 6. *Area, dimensional and design requirements.*

A. MXD overall minimum standards.

1. *Required open space.* The minimum requirement for open space in the conceptual plan shall be 15 percent of the gross land area. Each development plan submittal shall include a minimum of five percent of the gross area as open space or the amount of open space approved in the corresponding conceptual plan, whichever is greater. Not more than 75 percent of the required open space may be satisfied by the provision of public golf courses and not more than 50 percent of the required open space may be satisfied by the provision of private golf courses. All other listed public or common open space uses may count 100 percent toward satisfying this requirement.

2. *Required civic uses.* A minimum percentage depending on subarea designation of the proposed development uses shall be dedicated to listed publicly owned civic uses. This minimum requirement shall be three percent for MXD/R and MXD/E and five percent for MXD/VC.

3. *Pedestrian paths.* A pedestrian pathway system generally continuous throughout the district, is required and shall consist of dedicated public rights-of-way or easements, which may include bike lanes or equestrian trails. The path system specifications must be included as a part of the development guidelines submittal.

B. Within MXD/R and MXD/E subareas the following requirements shall apply:

1. *Height.*

a. Residential Use Groups 1 and 2 shall have a maximum height of 35 feet.

b. Residential Use Group 3 shall have a maximum height of 75 feet.

c. Commercial Use Group 1 shall have a maximum height of 35 feet in MXD/R and 75 feet in MXD/E.

d. Commercial Use Group 2 shall have a maximum height of 35 feet in MXD/R and 75 feet in MXD/E.

e. Commercial Use Group 3 shall have a maximum height of 75 feet.

2. *Separation of residential buildings.* Unless provided for in approved development guidelines, the minimum separation for residential buildings (except accessory structures) shall be:

40 feet front of one building to back of another building.

25 feet front of one building to side of another building.

35 feet front of one building to front of another building.

30 feet back of one building to back of another building.

20 feet side of one building to back of another building.

15 feet side of one building to side of another building.

For all buildings exceeding 35 feet in height, the minimum separation between buildings shall increase one additional foot for each additional foot the building exceeds 35 feet in height.

3. *Impervious surfaces.* The maximum manmade impervious surfaces (roof top, paved parking, and like surfaces) for parcels of property shall depend on its use as specified below. Interpretation of a use as it applies to impervious surface ratios shall be made by the director of the department of planning, engineering and permits with appeals of this decision to zoning board of adjustment.

Retail sales or services and light industrial or warehousing, maximum 80 percent.

Office or research, maximum 65 percent.

All other uses, maximum 50 percent. (For attached single-family dwellings this ratio shall apply to the composite site, not each individual parcel.)

C. Within MXD/VC subarea the following requirements apply:

1. Height - the maximum height for all structures is 45 feet.

2. Open space - a minimum of one village green or town square between one and five acres shall be provided.

3. All utilities shall be underground.

4. Off-street parking shall be prohibited at street intersections.

5. Off-street parking shall be in the rear or side of buildings unless special Development Guidelines are established.

Subsection 7. *Parking requirements.*

A. *Off-street parking requirements.* Off-street parking spaces shall be provided in accordance with the requirements for specific uses set forth in article V.

B. *On-street parking.* Generally continuous parallel or angle parking shall be provided along streets where commercial uses are predominant. Except where narrower streets are provided through Subdivision Variance, parallel parking is permitted along all other neighborhood streets.

[ARTICLE V. OFF-STREET PARKING AND LOADING REQUIREMENTS]

Section 1. Parking requirements—Specified uses.

The following are the off-street parking standards for the City of Birmingham, except as modified in the B-3 Community Business District and the B-4 Central Business District.

1. *Appliance store, hardware store, clothing or shoe repair or service shop.* Two parking spaces plus one additional parking space for each 300 square feet of floor area over 1,000.
2. *Bowling alley.* Four parking spaces for each alley.
3. *Business, professional or public office building, studio, bank, medical or dental clinic.* Three parking spaces plus one additional parking space for each 400 square feet of floor area over 1,000.
4. *Church or place of worship.* One parking space for each eight seats in the main auditorium.
5. *College or high schools.* One parking space for each eight seats in the main auditorium or five spaces for each classroom, whichever is greater.
6. *Commercial outdoor, recreational and amusement facilities.* The number of parking spaces shall be determined by the zoning board of adjustment, but no fee is to be required or provided as in article VIII.
7. *Community center, library, museum or art gallery.* Ten parking spaces plus one additional space for each 400 square feet of floor area in excess of 2,000 square feet.
8. *Dance hall, assembly or exhibition hall without fixed seats.* One parking space for each 100 square feet of floor area used therefor.
9. *Dwelling.*
    a. *Single-family detached.* One parking space per dwelling unit.
    b. *Two-family dwelling.* One parking space per dwelling unit.

c. *Multifamily dwellings.* 1½ parking spaces for each unit with one bedroom, two spaces for each unit with two bedrooms or more.

d. *Townhouse dwellings.* When all parking is within each unit's recorded lot, one space per dwelling; and, when parking is within a common parking lot, 1½ parking spaces per dwelling unit.

10. *Fraternity or sorority associated with a college.* One parking space for each resident member.

11. *Furniture, machinery or equipment sales or services.* Two spaces plus one parking space for every 1,000 square feet of floor area.

12. *Golf club.* One parking space for each five members.

13. *Hospital.* One parking space for each four beds.

14. *Hotel.* One parking space for each three sleeping rooms, suites or dwelling units, plus one space for each 4,000 square feet of commercial or office floor area contained therein.

15. *Manufacturing or industrial establishment, public utility service building, research or testing laboratory, creamery, bottling plant, wholesale warehouse, urban farm, indoor urban farm or similar establishment.* One parking space for every three employees on the maximum working shift, plus space to accommodate all trucks and other vehicles used in connection therewith.

16. *Mortuary or funeral home.* One parking space for each 50 square feet of floor space in slumber rooms, parlors or individual funeral service rooms.

17. *Printing or plumbing shop or similar service establishment.* One parking space for each three persons employed therein; plus space to accommodate all trucks and other vehicles used in connection therewith.

18. *Private club or lodge.* One parking space for each 100 square feet of nonstorage and nonservice floor area.

19. *Restaurant, nightclub, cafe or similar recreation or amusement establishment.* One parking space for each 100 square feet of floor area.

20. *Retail store or personal service establishment, except as otherwise specified herein.* One parking space for each 250 square feet of floor area.

21. *Roominghouse or boardinghouse.* One parking space for each two sleeping rooms.

22. *Sanitarium, convalescent home, home for the aged or similar institution.* One parking space for each six beds.

23. *School, middle or elementary.* One parking space for each ten seats in the auditorium or main assembly room, or one space for each classroom, whichever is greater.

24. *Sports arena, stadium or gymnasium, except school.* One parking space for each five sets or seating spaces.
25. *Theater or auditorium, except school.* One parking space for each five seats or seating spaces.
26. *Tourist home, motel or motor court.* One parking space for each sleeping room or suite.
27. *Adult care center.* One parking space for each employee and one space for every six adult patrons.
28. *Child care center.* One parking space for each employee and one space for every six children of Department of Human Resources, Jefferson County licensed capacity.
29. *Family group day/night care.* Three parking spaces, inclusive of required spaces for the dwelling.

(Ord. No. 94-66, § I, 4-5-1994; Ord. No. 13-71, 5-7-2013)

Section 2. Rules in applying standards.

In applying the standards of section 1 of this article, the following rules shall apply:

1. [The term] "floor area" shall mean the gross floor area of the specified use.
2. Where fractional spaces result, the parking spaces required shall be construed to be the next highest whole number.
3. The parking space requirement for a use not specifically mentioned herein shall be the same as required for a use of similar nature.
4. In the case of mixed or joint uses, the parking spaces required shall equal the sum of the requirements of the various uses computed separately.
5. These standards shall apply fully to uses and buildings established after the effective date of this ordinance.
6. These standards shall apply fully to all additions, expansions, enlargements or reconstructions on the basis of the addition, expansion, enlargement or reconstruction only.
7. Whenever any use or building established prior to the effective date of this ordinance is enlarged or expanded to the extent of twice the size of said use or building existing at the time of enactment of this ordinance, then these standards shall apply fully.

Section 3. Location of required spaces.

All parking spaces required herein shall be located on the same lot with the building or use served. However, when an increase in the number of spaces is required by a change of use or enlargement of the building, or where such spaces are provided

collectively or used jointly by two or more buildings or establishments, the required spaces may be located and maintained not to exceed 300 feet from an institutional building served, and not to exceed 500 feet from any other nonresidential building served.

1. Up to 50 percent of the parking spaces required for (a) theaters, public auditoriums, bowling alleys, dance halls, nightclubs or cafes, and up to 100 percent of the parking space required for a church auditorium may be provided and jointly used by (b) banks, offices, retail stores, repair shops, service establishments and similar uses not normally open, used or operated during the same hours as those listed in (a); provided, however, that written agreement hereto is properly executed and filed as specified below.
2. In any case where the required parking spaces are not located on the same lot with the building or use served, or where such spaces are collectively or jointly provided and used, a written agreement thereby assuring their retention for such purposes shall be properly drawn and executed by the parties concerned, approved as to form by the city attorney and shall be filed with the application for a building permit, recorded at the applicant's expense in the office of the judge of probate, and shall be in full force and effect until released by resolution of the zoning board of adjustment.
3. No off-street parking shall be permitted in the required front yard of any E or R districts except upon a driveway providing access to a garage, carport, or parking area for a dwelling.
4. All parking spaces required herein, except for urban farms and farmers markets, including adequate driveways and maneuvering areas shall be improved with a suitable hard surface permanent type of pavement.
5. All parking spaces required herein for urban farms including adequate driveways and maneuvering areas shall be improved with a suitable permanent porous surface or suitable hard surface.

(Ord. No. 13-71, 5-7-2013)

Section 4. Loading requirements—Specified uses.

The following are the off-street loading regulations of the City of Birmingham:

1. A building whose dominant use in handling and selling goods at retail shall provide spaces in relation to the total floor area used for retail purposes as follows:

Area	*Spaces Required*
5,000—10,000 square feet	1
10,000—20,000 square feet	2
20,000—30,000 square feet	3

Area	*Spaces Required*
Over 30,000 square feet	4

2. Manufacturing, repair, wholesale or warehouse uses shall provide spaces in relation to the GFA as follows:

Area	*Spaces Required*
5,000—40,000 square feet	1
40,000—100,000 square feet	2
Each 75,000 square feet over 100,000 square feet	1 additional

3. Other buildings not listed above shall provide spaces in relation to the GFA as follows:

Area	*Spaces Required*
5,000—50,000 square feet	1
50,000—100,000 square feet	2
100,000-200,000 square feet	3
Over 200,000 square feet	4

4. Urban farm uses shall provide loading spaces in relation to the production area as follows:

Area	*Spaces Required*
50,000—200,000 square feet	1
Over 200,000 square feet	2

(Ord. No. 13-71, 5-7-2013)

Section 5. Rules in applying standards.

In applying the requirements of section 4 of this article, the following rules shall apply:

1. These requirements shall apply fully to all buildings erected after the effective date of this ordinance and all enlargements, expansions, or reconstructions thereof.

2. No building or part thereof in the O&I, B-1 and B-2 districts, heretofore erected, shall hereafter be enlarged or extended to the extent of 50 percent or more in floor area or ground area used unless off-street loading space is provided in accordance with the provisions of this article.

3. No building or part thereof in the B-3, B-4, B-6, PRD, M-1, M-1A, M-2, M-3 and M-4 districts heretofore erected shall hereafter be enlarged or extended to provide an additional floor area of 25,000 square feet or more, or to provide a total gross floor area of 40,000 square feet or more, unless off-street loading space is provided in accordance with the provisions of this article.

Section 6. Commercial parking lots and off-street parking areas.

Before any parking lot or area can be constructed, established or set aside, a permit must be obtained from the department of planning, engineering and permits, which permit shall only be issued provided the following requirements shall have been complied with by the applicant:

1. Off-street parking spaces, lots and areas where vehicles will be parked, displayed, sold, serviced, stored, loaded or unloaded, containing more than 4,000 square feet in area shall have not less than five percent of the gross land area, exclusive of area occupied by structures, developed as landscaped areas.
2. A detailed plan, sketch, or layout or layout of any area mentioned in subsection 1 containing more than 4,000 square feet must first be submitted to and approved by the department of planning, engineering and permits. Such plan, sketch, or layout shall show the location and dimensions of all entrances and exits and shall also show the manner in which the landscaped area is to be developed, including the approximate number, size and type of trees, shrubs or other plants to be planted and maintained in such areas. Off-street parking areas and lots shall also show the manner in which vehicles shall be parked.
3. Areas of less than 4,000 square feet that are enlarged at a later time to more than 4,000 square feet shall comply with the requirements of this section for both the old and new areas.
4. Areas that exceed 10,000 square feet shall contain landscaped islands within the interior of the area, which shall not be less than one-half the required landscaped area.
5. The required planting shall be completed prior to final inspection by the department of buildings and inspections.
6. No driveway or building permit shall be issued until after compliance with subsection 2 of this section.

[ARTICLE VI. SUPPLEMENTARY REGULATIONS AND MODIFICATIONS]

Section 1. Purpose.

The regulations set forth in the article supplement or modify the district regulations appearing elsewhere in this ordinance. These regulations shall not be construed to modify the regulations set forth in article VI, section 13.

Section 2. Use modifications.

[Subsection] 1. Temporary structures for use incidental to construction work may be permitted in any district during the period that construction work is in progress, but such temporary buildings shall be removed upon completion or abandonment of the construction work.

[Subsection] 2. Utility structures, including, but not limited to poles, wires, cross arms, transformers attached to poles, guy wires, insulators, conduits and other facilities necessary for the transmission or distribution of electric power or to provide telephone or telegraph service and pipe lines, vents, valves, hydrants, regulator, meters and other facilities necessary for the transmission or distribution of gas, oil, water or other fluids, may be constructed, erected, repaired, maintained or replaced within any district within the City of Birmingham. This is not to be construed to include the erection or construction of buildings or electric substations.

[Subsection] 3. Railroad facilities, including main line tracts, switching spurs, control signals, poles, and wires or similar facilities (but not yards or service facilities) needed for operating railroad trains, may be constructed, repaired, maintained or replaced in any E, R or B-1 district, and these as well as terminal facilities, including passenger or freight stations, team tracts and storage yards are permitted in the B-2, B-3 and B-4 districts.

[Subsection] 4. Use of lots and structures in all residential districts for garage sales or rummage sales as herein defined, subject to the limitations and conditions set out herein:

a. A garage sale is the sale of surplus or unwanted personal property accumulated in the maintenance or operation of a home or dwelling;

b. A rummage sale is the sale of personal property belonging to a religious, charitable, civic or service organization;

c. No such sale shall be conducted without a permit first being issued by the director of the department of planning, engineering and permits, an application for which shall be made in writing to said director accompanied by a fee of $5.00 and by a list of all owners of property participating in the sale;

d. No person or organization shall conduct such a sale more than once during any six consecutive months;

e. No garage or rummage sale shall continue for more than three consecutive days;

f. All such sales shall be conducted by the permittee who shall be one of the owners of property offered for sale;

g. All garage sales shall be conducted at the residence of the permittee; all rummage sales shall be conducted at the site of a religious, charitable, civic or service organization, or such other place as shall be designated in the permit;

h. No advertisement of any garage or rummage sale shall be permitted on public property;

i. No yard sign having an area of more than six square feet shall be permitted, nor shall any illuminated or animated sign be displayed. No sign shall be displayed prior to the date of sale, and all such signs shall be removed no later than the day following the last day of such sale.

(Ord. No. 10-31, § 1(2), 3-2-2010)

Section 3. Height modifications.

[Subsection] 1. Chimneys, cooling towers, elevator bulkheads, head houses, fire towers, gas tanks, lighthouses, steeples, penthouses, stacks, stage towers or scenery lofts, tanks, water towers, ornamental towers and spires, where permitted, may be erected to any height not in conflict with existing or hereafter adopted ordinances of the City of Birmingham; except that were permitted in connection with residential uses, such structures shall be limited to a height of 25 feet above the maximum height of structures permitted in that district. Said exception relative to residential uses shall become effective immediately for new structures, and within one year after its adoption in relation to structures existing at the time of the adoption of this ordinance. The provisions of section 18 of this article shall govern the heights of wireless communications facilities.

[Subsection] 2. The limitation on number of stories shall not apply to buildings used exclusively for storage purposes, provided such buildings do not exceed the height in feet permitted in the district in which located.

[Subsection] 3. Public, semipublic or public service buildings, including but not limited to hospitals, schools and churches, when permitted in a district with height limitations of less than 60 feet, may be erected to a maximum height of 60 feet, provided side yards are increased by one foot for each foot of additional building height above the height limitation for the district in which the building is located.

(Ord. No. 97-77, § 1(title 2, art. VI, § 3), 6-24-1997)

Section 4. Area modification for lots of record.

Where a lot of record at the time of the effective date of this ordinance had less area or less width than herein required for the district in which it is located, said lot may nonetheless be used for a single-family dwelling.

Section 5. General yard modifications.

[Subsection] 1. Every part of a required yard shall be open to the sky unobstructed by any structure or part hereof, and unoccupied for storage, servicing or similar use except as provided herein.

[Subsection] 2. Sills, belt courses or ornamental features may project into any yard not to exceed six inches.

[Subsection] 3. Cornices or eaves may project into any required yard not to exceed 18 inches.

[Subsection] 4. Terraces, uncovered porches, underground fallout shelters or ornamental features which do not extend more than five feet above grade may project into a required yard, provided such projections shall not be closer than two feet to any lot line.

[Subsection] 5. More than one multiple dwelling, institutional, commercial or industrial building may be located upon a lot or tract, but such buildings shall not encroach upon the front, side and rear yards required by the district regulations. For multiple dwellings the open space between buildings measured at the closest point shall not be less than 20 feet for one-story buildings, 30 feet when one or both are two-story buildings, and 40 feet when one or both are three or more story buildings.

[Subsection] 6. Where an open space is more than 50 percent surrounded by residential or institutional buildings, the minimum width of the open space shall be at least 20 feet for one-story buildings, 30 feet when one or both are two-story buildings, and 40 feet when one or both are three or more story buildings.

[Subsection] 7. In residential districts, no required yard except the rear yard shall be used for the location of a private swimming pool, and if constructed, said pool shall be enclosed by a fence of not less than four feet in height. No mechanical appurtenance or pool shall be within ten feet of any lot line.

[Subsection] 8. The minimum dimension of a yard upon which any entrance or exit of a multiple dwelling faces shall be 20 feet.

[Subsection] 9. Wherever yards are provided between commercial or industrial structures, they shall have a minimum width of not less than six feet.

[Subsection] 10. As an additional limitation of an accessory use, the following shall apply:

a. For the purposes of this subsection 10, the term "disabled motor vehicle" shall refer to any motor vehicle regardless of size which is incapable or being self-propelled upon the public streets of the City of Birmingham, or when such motor vehicle cannot safely be moved on any public street under its own power, or which does not meet the requirement for operation upon the public streets.

b. Disabled motor vehicles shall not be permitted in a front or side yard in a residential district; provided, however, that on a driveway crossing the front or side yard of a lot in a residential zone district, one disabled motor vehicle may be parked for a reasonable time to allow for the servicing or removal of said disabled vehicle, but in no case shall a disabled vehicle be allowed to remain on a driveway crossing a front or side yard for a period exceeding five days from the time the vehicle became disabled.

c. One disabled motor vehicle may be permitted in a rear yard in a residential district as an accessory use to the main use of the lot; provided that such vehicle is not located in any open space required by this article. Service and repair work may be performed on such vehicle, and parts, tools, and equipment incidental to such service and repair thereto may be stored and used; provided, however, that a disabled vehicle shall not be permitted to remain outside of a building for a period in excess of 30 days on any lot regardless of how zoned, except a lot upon which is operating a junk dealer or scrap metal processor in compliance with the requirements of the General City Code, or on that portion of any lot within 20 feet of an abutting lot used or zoned for residential purposes.

d. Storage, service and repair in a residential district of a disabled motor vehicle which is conducted entirely within the confines of a completely enclosed garage (not to include open carports) shall be permitted, provided that such vehicle is the property of the owner or occupier of the lot and that such use is not a commercial use of the property.

e. It shall be the responsibility of the owner of a disabled vehicle, the person in possession of property or the property owner on whose property a disabled vehicle is located to meet the requirements of this subsection 10.

[Subsection] 11. New and expanded structures shall provide an area for solid waste containers adequate to house garbage and any other type of waste on site; not in the public right-of-way. The container must be located on the same lot as the principle building and no closer than 25 feet to dwellings off-site. Except for uses within M-2 and M-4 zoned districts and uses having small containers serviced by the City of Birmingham's Public Works Department, solid waste containers also must be:

(1) In rear or side yards or within the principal building; and

(2) Exterior sites must be below grade or have a solid opaque screening walls or gate on all sides made of concrete, masonry material and/or wood at a height taller than the container (when residential the enclosure must have a veneer similar to the dwelling's veneer); and

(3) When a proposed use includes a food service establishment enclosure must be compliant with county health department regulations.

(Ord. No. 07-33, § 1(art. VI, § 5), 2-13-2007)

Section 6. Front yard modifications.

The required front yards heretofore established shall be modified in the following cases:

1. Where 40 percent or more of the frontage on the same side of a street between two intersecting streets is presently developed or may hereafter be developed with buildings that have (with a variation of five feet or less) a front yard

greater or lesser in depth than herein required, new buildings shall not be erected closer to the street than the average front yard so established by the existing buildings.

2. Where 40 percent or more of the frontage on one side of a street between two intersecting streets is presently developed or may hereafter be developed with buildings that do not have a front yard as described above, then:
   a. Where a building is to be erected on a parcel of land that is within 100 feet of existing buildings on both sides, the minimum front yard shall be a line drawn between the two closest front corners of the adjacent building; or
   b. Where a building is to be erected on a parcel of land that is within 100 feet of an existing building on one side only, such building may be erected as close to the street as the existing adjacent building.
3. Through lots shall provide the required front yard on both streets.
4. Corner lots shall provide a front yard on each street side. However, the buildable width of a lot of record need not be reduced to less than 28 feet; provided that the side yards shall in no case be reduced to less than that otherwise required for the zone district. No accessory building shall project into the front yard on either side.
5. Permitted signs attached to buildings may extend into a front yard of the required yard abutting a side street not to exceed 18 inches.
6. Service station pumps and pump islands may be located with a required front yard, but in no case shall they be closer than 15 feet to any street line.

Section 7. Rear and side yard modifications.

The rear or side yards heretofore established shall be modified in the following cases:

1. Where a lot abuts upon an alley, one-half of the alley width may be considered as part of the required rear or side yard for building purposes; however, the minimum yard abutting an alley shall be three feet.
2. An unenclosed balcony, porch steps or fire escape may project into a rear yard for a distance not exceeding ten feet.
3. Accessory buildings and structures may be built in a rear yard, but such accessory buildings and structures shall not occupy more than 30 percent of the required rear yard and shall not be nearer than three feet to any side or rear lot line, except that when a garage is entered from an alley it shall not be located closer than five feet to the alley line.
4. Satellite antennas shall be permitted in the rear yard only. The zoning board of adjustment may grant variances to this provision only for rear yards whose

topography or dimensions will not permit the physical placement of these structures. Such limitations shall not include placement of satellite dishes because of problems associated with reception of satellite signals.

Section 8. Walls and fences.

Subsection 1 *Definitions.* The definitions listed within this section are intended for this section only and do not apply to any other section of the zoning ordinance.

1. *Abuts.* Lying contiguous with another property line. For the purpose of this section, property is considered to be abutting only when property lines are contiguous.

2. *Feature.* In regard to a fence or wall, a feature is any item, such as an accessory or ornamental item, which is added or incorporated into the top portion of the fence or wall. Fencing materials, such as lattice or similar items, or any material that could normally be used as a fence, is not considered to be a feature. A feature item would be included in the overall height of a fence or wall.

3. *Fence* or *wall.* A structure, solid or otherwise, erected, placed, or constructed on a property, which is intended to be a barrier, boundary, enclosure, privacy feature, or decorative item. It is characteristic of such an item that it is normally a separate "stand-alone" structure, erected along the perimeter (or close to the perimeter) of a property.

4. *Height.* A measurement made from the ground directly adjacent to the fence or wall (or supports, gates, and other features) perpendicular upward to the utmost part of the fence, wall, supports, gates, and other features of a fence or wall.

5. *Height of fence erected atop a retaining wall.* The average least dimension of a retainer wall, measured from the top of the retainer wall to the nearest ground level, will be included in the height limits of a fence or wall, provided that the least dimension does not vary more than six inches for its entire length. If a retaining wall's least dimension varies more than six inches, the permitted height of a fence erected atop a retainer wall will be determined by the staff of the department of planning, engineering, and permits based on a review and/or interpretation by the director of the department of planning, engineering, and permits.

6. *Retaining wall.* A structure, normally constructed of block, brick or stone that is erected to retain soil upon a specific property, or to prevent soil from encroaching upon a specific property.

7. *Supports.* Posts or similar items that are erected vertically and perpendicular to the ground for the purpose of supporting the main sections or portions of a fence structure. The portion of a support that extends above the height of the fence material must be of a decorative and/or finished type material.

8. *Yards.* For irregular and/or unusually shaped lots, the exact location of a particular yard will be determined by the staff of the department of planning, engineering, and permits based on a review and/or interpretation by the director of the department of planning, engineering, and permits. For a standard type of lot, the following will be used.

    a. *Complete front yard.* The area extending from the exterior wall of a structure to the front property line, and located between the side lot lines. On a corner lot, the front yard also includes the area extending from the side exterior wall of a structure to the property line that adjoins a dedicated street, then continuing to a rear or side lot line. This area is to be included as a front yard whether the adjoining street is open or not. [On a vacant lot, the front yard area shall be as defined in the definitions section of this ordinance and in article VI, section 6. The dimensions of this yard (setbacks) shall be determined by the zoning classification.]

    b. *Side yard.* The area extending from the exterior sidewall of a structure to a side property line. [On a vacant lot, the side yard shall be as defined in the definitions section of this ordinance and in article VI, section 7. The dimensions of this yard (setbacks) shall be determined by the zoning classification.]

    c. *Rear yard.* The area extending from the exterior rear wall of a structure to the rear property line, including the area between the side lot lines. On a corner lot, the rear yard shall be as described except that the boundary on the side adjacent to the street shall be a straight line parallel to the street extending from the exterior rear corner of the structure (nearest to the street) to the rear property line. [On a vacant lot, the rear yard shall be as defined in the definitions section of this ordinance and in article VI, section 7. The dimensions of this yard (setbacks) shall be determined by the zoning classification.]

Subsection 2. *Permits.* A zoning permit is required before any fence or wall can be erected or placed upon any property within the City of Birmingham.

Subsection 3. *Residential[ly] zoned property.* Upon any E or R zoned property, a wall or fence may be erected or placed in accordance with the following:

1. *Complete front yard.* No wall or fence within a front yard area shall exceed a height of four feet and supports and other features shall not exceed a height of five feet, except as required for wireless communication installations as listed in section 18 of this article.

2. *Side and rear yard.*

   a. Within a side or rear yard, a wall or fence may be erected or placed to a height of eight feet, and the supports and other features may be erected or placed at a height of nine feet, provided that any structure that allows residential occupancy on an adjacent property is setback a minimum of five feet from the side and/or rear lot line.

   b. If an existing dwelling unit on an adjacent property is setback less that five feet from a side or rear lot line, a portion (or all) of the wall or fence erected adjacent to that structure may be required to be of a "see through" type of material, such as chainlink, so that adequate light and ventilation may be provided. This determination will be made by staff as a result of an on site field inspection. The overall height of the fence or wall will be as detailed in the previous item (A).

Subsection 4. *Nonresidentially zoned property.*

A. On nonresidentially zoned property, the fence and/or wall height restrictions listed within this section will apply, except as required for wireless communication installations as listed in section 18 of this article, provided that property:

   (1) Lies within the same block face, between two intersecting streets, with residentially zoned property; or

   (2) Abuts residentially zoned property as defined in this section. In that case, the height restrictions listed in the previous section will be the same.

B. On other nonresidentially zoned property, the height of a fence or wall will be determined by administrative review of staff of the department of planning, engineering, and permits.

Subsection 5. *Visibility.* No fence, wall, or planting, shall be erected, placed, or constructed so that it obstructs visibility of traffic and thereby creates a "line of sight" problem as determined by a review by the traffic engineering department. The reconfiguration and/or repositioning of such a fence or wall shall be completed in compliance with the recommendation of the traffic engineering department.
(Ord. No. 97-77, § 1(title 2, art. VI, § 8), 6-24-1997)

Section 9. Sign regulations.

Subsection 1. *Purpose and scope.* The purpose of this section is to establish regulations for the erection and maintenance of signs. It is determined that, while signs are a proper commercial use of private property in certain areas of the city and under certain zoning classifications and are entitled to the protection of the law, such signs should be reasonably regulated in the interest of the public safety and welfare and to safeguard and promote the aesthetic quality of the city by the establishment of standards for the number, size, height, spacing and illumination of such signs. The

regulations herein contained shall govern all signs presently existing or hereafter erected or displayed, but shall neither waive nor repeal additional requirements of other applicable ordinances not inconsistent herewith. However, these requirements shall not apply to signs necessary to the discharge of governmental functions, such as traffic control signals and devices, street signs, public notices and various court or postal requirements.

Subsection 2. *Definitions.* For the purpose of this section the following words, terms and phases shall have the meaning ascribed to them as specified herein. When not inconsistent with the context, words used in the present tense shall include the future tense, words in the plural number shall include the singular number, and words in the singular number shall include the plural number.

1. *Areas of special aesthetic concern.* Any area of the city established by resolution of the city council as a community renewal project area, a commercial revitalization project area, a neighborhood revitalization and improvement project area, an urban renewal and urban redevelopment project area and the downtown master plan project area; and, also, historic districts, scenic corridors, and B-3 Community Business Districts, wherein city policy is seeking to upgrade both the quality and amount of private investment through public support and wherein the improvement of aesthetic quality is a principle factor for the general welfare.

2. *Back-to-back signs.* Signs erected with faces oriented in opposite directions and separated by no more than four feet.

3. *Illuminated sign.* A sign illuminated by the following types of lighting:

    a. *Indirect.* A sign reflecting light from a separate outside source aimed toward it.

    b. *Direct.* A sign emitting light from a source within or affixed to the sign face, and beaming outward from it.

    c. *Intermittent.* A sign containing any flashing light, including arrangements that spell messages, simulate motion or form various symbols or images.

4. *Maintenance.* Any cleaning, painting, copy changes, poster panel replacement, or bulb replacement, which does not alter the basic design, structure, size or electrical service to the sign.

5. *Monument sign.* A permanent sign mounted on the ground in such a manner that the sign face is attached to the ground either directly or in a landscaped setting wherein the bottom edge of the sign face shall be less than four feet above the ground level.

6. *Off-premises sign.* Any permanent sign which directs the attention of the general public to a business, service, product or activity not conducted, offered or sold as a major portion of business upon the premises where such sign is located. None of the following shall be deemed an off-premises sign:
   a. Directional and other official signs authorized by law.
   b. Signs advertising the sale or lease of property upon which they are located.
   c. On-premises signs.
7. *On-premises sign.* A permanent sign erected upon, and maintained in conjunction with the use of a specific parcel of property identifying the name of the place, persons or organizations occupying the premises or designating the principal use or activity or the principal product or service available on the premises.
8. *Pole sign.* A permanent sign mounted on a pole or poles wherein the bottom edge of the sign shall be at least four feet above the ground level.
9. *Portable sign.* Any sign, whether on its own trailer, wheels or otherwise, which is designed to be transported from one place to another. It is characteristic of a portable sign that the space provided for advertising messages may be changed at will by the replacement of lettering or symbols.
10. *Product advertising sign.* A permanent sign erected and maintained in conjunction with the use of a specific parcel of property identifying the name of the place, persons or organization occupying the premises and designating a product or service available on the premises, which is not a principal use, activity, or product sold on the premises.
11. *Projecting sign.* A sign located off the ground, affixed to an exterior building wall, and extending beyond it more than one foot.
12. *Roof sign.* A sign attached or affixed in any manner to the top of any building roof.
13. *Scenic corridor.* A travelway corridor which is determined by the city to be important for the general welfare by promoting investment and reinvestment in businesses and tourism through creating a favorable impression on the traveling public by reducing visual clutter and enhancing the visual clarity and aesthetic quality along such travelways; which corridor shall consist of the paved roadway and right-of-way and an area 300 feet from either side of and parallel to the street right-of-way.
14. *Sign.* Any solid or flexible material, structure, or combination thereof, including supporting apparatus, containing lettered, symbolic or graphic matter, or similar eye-attracting devices or light systems, attached to, resting on or

painted upon a building or structure or erected or placed on premises, and designed to be visible from off the premises, provided, however, that this shall not include hand-painted window signs of less than 70 square feet.

15. *Sign area.* Display spaces on a unified structure excluding supporting members and decorative base or border provided that:
    a. Where two sign faces are placed side by side on a structure, the sign area shall be the total of the areas of the faces.
    b. Where sign faces are erected back to back or in a "V" type, the sign area shall be one-half of the total of the areas of the faces.
16. *Sign face.* The surface area of a sign devoted to a message or advertising display.
17. *Signs, height of.* The vertical distance from the average grade at the base of the sign to the highest point on the top of the sign.
18. *Signs, spacing of.* The distance between signs shall be measured along the centerline of the street or highway adjacent to the signs between the lines intersecting with the centerline which are drawn as perpendicular lines from the center points of the sign faces to the centerline of the street.
19. *Temporary sign.* A sign or advertising display constructed of cloth, canvas, fabric, paper, plywood, or other light material and intended to be displayed for a short period of time. Included in this category are retailers' signs temporarily displayed for the purpose of informing the public of a sale or special offer, and banner signs, beacons, balloons, and mascot signs.
20. *Three-sided signs.* Signs erected with three or more faces oriented in different directions.
21. *"V-type" signs.* Signs erected with faces oriented in different directions which shall be separated by no more than four feet at their nearest point, and with a horizontal angle no greater than 30 degrees.
22. *Wall sign.* A sign located off the ground, directly upon, but no higher than, the building wall, projecting beyond said wall not more than one foot. Wall signs shall include messages carved, inscribed or designed into a face of the building and any sign painted or drawn on a face of the building.

Subsection 3. *Permit required; exemptions; prohibited signs.*

1. *Permits required.*
    a. Unless exempted or prohibited as provided hereinbelow, all signs shall require permits as provided in this section.
    b. Application for a permit shall be made to the department of planning, engineering and permits and shall be accompanied by such drawings, plans, specifications, and engineering designs as may be necessary to fully

advise and acquaint the department personnel with the proposed sign and sign location and be accompanied with the deed, lease or other agreement by which the applicant has the right to erect, use or maintain the proposed sign at that location.

c. Except as may be further restricted hereinafter, no permit for an off-premises sign shall be issued without the applicant first having presented documentation of the removal of an existing sign of equal or greater size due to voluntary sign removal by the permit holder, an accident or act of God. All replacement signs shall be equal to or of a lesser size than the previously existing sign.

d. For the purposes of voluntary sign removal by the permit holder under this subsection:

(1) Signs in areas of special aesthetic concern shall be removed before signs in any other location;

(2) If no signs of applicant are located in areas of special aesthetic concern, signs shall be removed from scenic corridors prior to signs in any other location;

(3) Nonconforming signs shall be removed prior to conforming signs; provided, however, that a permit for a sign shall be issued upon request if a permitted sign is caused to be removed due to an accident, voluntary removal, or act of God. The relocated sign shall be:

(1) No more nonconforming than the site of the sign being replaced;

(2) In close proximity to the same sign location, not to exceed 200 feet from the original sign location; and

(3) The relocation site must be properly zoned for such use.

e. All such documentation will be subject to stringent enforcement. If any misrepresentation is made pertaining to any such documentation, the applicant will be subject to revocation of any permit issued in reliance on such misrepresentation and shall be required to remove any structure built under such permit.

2. *Exempt signs.* Except as otherwise provided in this ordinance, the following signs are exempt from the provisions of this section, subject however, to meeting all other applicable codes and regulations:

a. Bulletin boards and identification signs for public, charitable, educational or religious institutions located on the premises of said institutions and not exceeding 24 square feet in total area.

b. One construction sign per street frontage located on property where building is actually in progress under a valid building permit, which may

include the names of persons and firms performing services, labor, or supplying materials to the premises and not exceeding 24 square feet. Such sign must be removed before a certificate of occupancy is issued.

c. Flags or insignias of a governmental, religious, charitable, or fraternal organization, except when displayed in connection with a commercial promotion.

d. Decorative flags and bunting for celebrations, conventions, and commemorations for a prescribed period of time when authorized by the city council.

e. One occupational sign or one professional name plate for each premises, denoting only the name, street, number and business of an occupant in a commercial building or public institutional building. Each occupational sign or professional name plate shall not exceed six square feet in area.

f. Political signs.

g. Window signs which identify or advertise activities, services, goods, or products available within the building, and which collectively cover 20 percent or less of the window glass surface area.

h. Fuel price informational signs advertising the price of motor vehicle fuel provided that only one fuel price informational sign shall be permitted per fuel pump which sign shall be limited in size to an area of 216 square inches, shall be affixed directly and firmly to the fuel pump and shall be stationary. Nothing herein shall be construed to prohibit the advertisement of fuel prices on any other sign meeting the requirements of this section.

3. *Prohibited signs.* The following signs are prohibited:

a. Lights and signs that resemble any traffic control device, official traffic control signs, or emergency vehicle markings.

b. Signs that produce noise or sounds capable of being heard including nondistinguishable sounds.

c. Signs which emit odor, visible smoke, vapor, or particles.

d. Signs attached to or painted onto a vehicle for a primary purpose of advertising.

e. Abandoned signs.

f. Signs attached to trees, utility poles, streetlight, or placed on any public property except as authorized by ordinance of the city council.

g. Stacked signs that are separate sign displays mounted one above the other whether on unified or separate structures.

h. Signs painted or drawn upon rocks, trees, or other natural features.

4. *Decal.* A permanent decal, bearing the permit number, will be issued by the department of planning, engineering and permits with the permit. It shall be the responsibility of the applicant to ensure that the decal is affixed to the permitted sign and in a manner that the decal is clearly and easily visible and readable.

(Ord. No. 97-21, § 1, 2-18-1997)

Subsection 4. *Sign fees.* Prior to the issuance of a permit, fees for on-premises and off-premises signs shall be payable as specified below. These fees are in addition to, and not in lieu of any other fees or licenses required.

Note—All sign fees are now listed in the City of Birmingham Technical Code (except annual fee for off-premises signs). See excerpt of sign fees from Technical Code at end of Index for current fee amounts.

	Annual Fee
Off-premises sign	$50.00 per structure

Annual fees must be paid by January 31 of each year beginning January 31, 1990. No additional permits will be issued until such annual fee has been paid, including permits that are pending.

Subsection 5. *General requirements for all signs.*

1. Signs shall not be erected or maintained which imitate, resemble, obscure or otherwise physically interfere with any official traffic sign, signal or device, nor obstruct or physically interfere with the driver's view of approaching, merging or intersecting traffic.
2. Signs shall not be erected or maintained which are structurally unsafe or in substantial disrepair.
3. It shall be unlawful to use a vehicle or trailer as a sign in circumvention of this section.
4. Maintenance. Any sign not meeting the following provisions shall be repaired or removed within 60 days after receipt of notification by the department of planning, engineering and permits unless the director of the department of planning, engineering and permits determines that the sign owner is delayed for legitimate reasons and is making a good faith effort to correct any deficiency.
    a. The area around any freestanding sign shall be kept clear of trash and litter and shall present a neat and healthy appearance.
    b. All signs shall be maintained at the level of appearance originally held at the time of sign erection.
    c. Exposed backs of signs must be painted a single, neural color, presenting an attractive and finished appearance.

d. It shall be the responsibility of the off-premises sign owner and the on-premises sign business owner to maintain and ensure conformance to the provisions of this section.

5. No illuminated or highly reflective signs, including their structures, shall be erected or maintained which are not effectively shielded so as to prevent beams or rays of light from being directed at any portion of the street or roadways, or from shining on or into residential buildings or otherwise adversely affecting surrounding or facing premises; or which adversely affect the safe operation of motor vehicles by reason of light intensity or brilliance which cause glare or otherwise impair the vision of the driver of the motor vehicle.

Subsection 6. *Off-premises sign regulations.* In addition to the other requirements of this section and other ordinances of the City of Birmingham, off-premises signs must comply with the following regulations:

1. *Maximum size.*

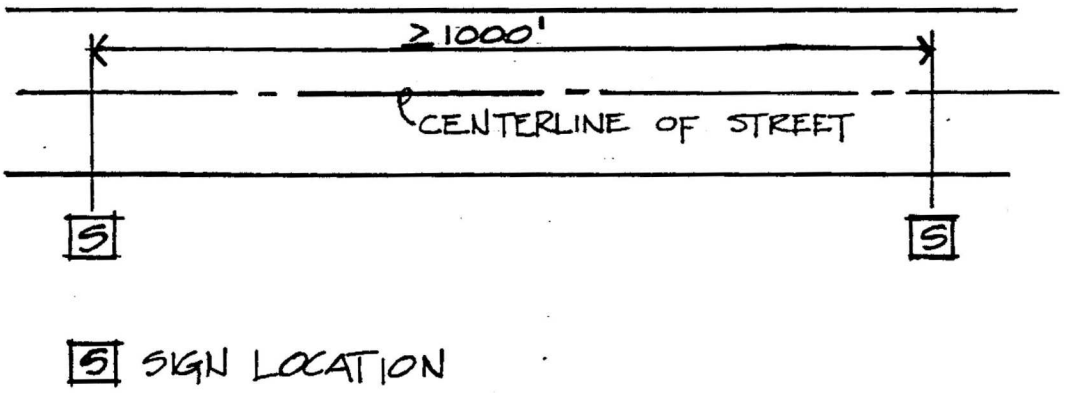
a. The maximum sign area shall be 800 square feet, with a maximum height of 20 feet and a maximum length of 50 feet inclusive of any embellishments, border or trim, but excluding the base or apron, supports and other structural members.

b. An off-premises sign structure may contain two sign faces oriented in the same direction; signs may be placed back-to-back or V-type, provided that the total area of the sign faces oriented in any one direction shall not exceed maximum size provisions.

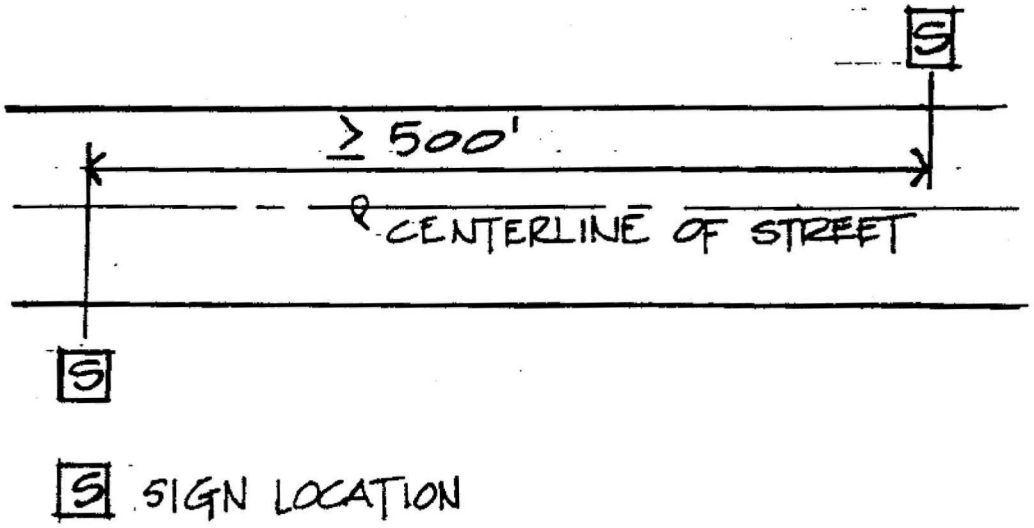
2. *Lighting.* Off-premises signs shall not be erected or maintained which contain, include or are illuminated by intermittent lighting except those giving public service information such as, but not limited to time, date, temperature, weather or news.

3. *Minimum spacing and setback requirements.* Off-premises signs shall not be erected closer to other off-premises signs than the following prescribed distances except as hereinafter restricted:

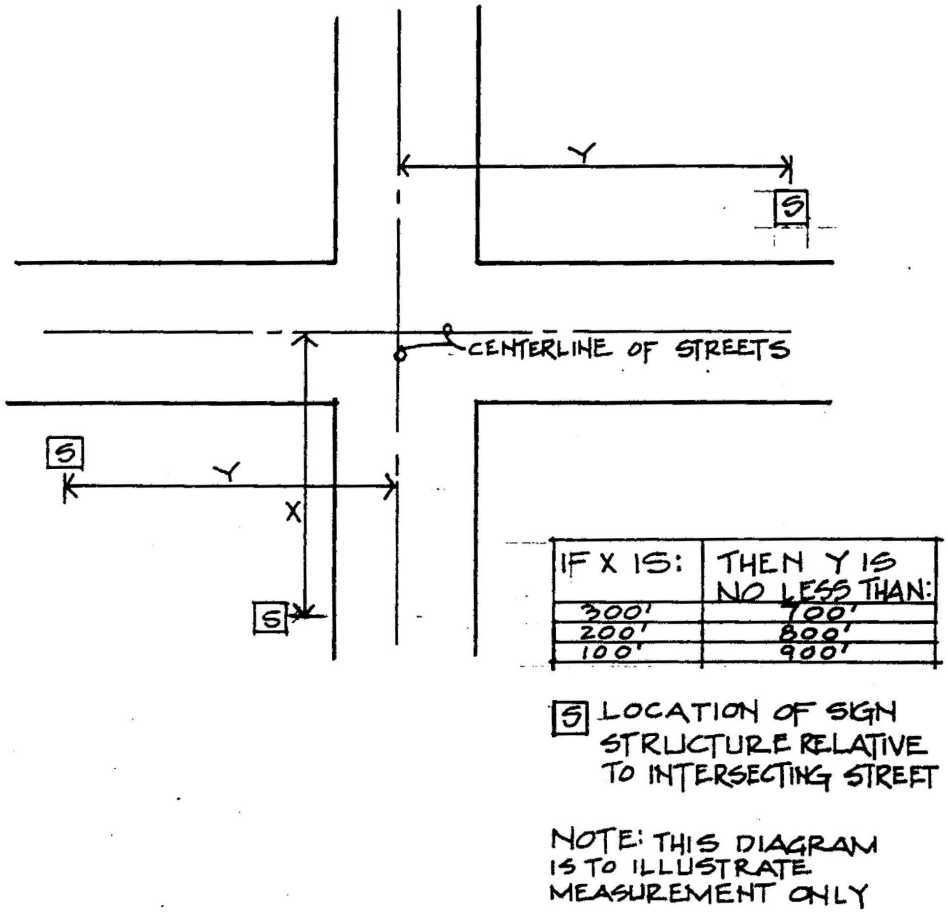
a. The minimum spacing for all off-premises signs, on the same side of the street, shall be 1,000 linear feet measured on the centerline of the street. (See Diagram A.)



b. The minimum spacing for all off-premises signs which are on opposite sides of the street shall be 500 linear feet measured on the centerline of such street. (See Diagram B.)



c. When an existing off-premises sign is located within 300 feet of the right-of-way of any street or highway intersection, including the intersection of streets or highways not at grade, no additional sign shall be spaced less than 1,000 feet apart as measured along the center lines of the streets regardless of the street from which the signs are intended to be viewed. (See Diagram C.)



d. Off-premises erected with 800 feet of and directed toward any Interstate Highway, The Elton B. Stephens Expressway or U.S. Highway 280 shall be located no closer than 300 feet to the paved portion of main-traveled ways and interchange ramps.

e. An off-premises sign erected within ten feet of the right-of-way of intersecting or merging streets, alleys, private drives, bridges, or railroad crossings shall be a minimum of eight feet above the level of the pavement of said streets.

f. Off-premises signs larger than 300 square feet shall be set back at least 400 feet; signs between 85 and 300 square feet shall be set back at least 250 feet; and signs 85 square feet or less shall be set back at least 125 feet from any residentially zoned property, public park or school measured from the nearest edge of the sign.

4. *Maximum height.* The maximum height for any off-premises sign shall be 40 feet above ground level at its base. Where the ground level is lower

than the main-traveled way of the street or highway along which the sign is too constructed, the maximum height as measured to the top of the sign face shall be extended to a point 25 feet above the plane of said main-traveled way.

5. *General off-premises sign requirements.*
   a. No off-premises sign structures shall be located on, or project over, any public property or right-of-way except as provided by ordinance of the city council.
   b. No off-premises sign shall be permitted on top of any building or rooftop.
   c. No three-sided signs shall be permitted.
   d. It shall be unlawful to construct an off-premises sign where such constructions require the removal of any tree 12 inches in diameter or greater.
6. *Scenic corridors.* The scenic corridors herein established consist of the following:
   a. Elton B. Stephens Expressway.
   b. Interstate 65.
   c. Interstate 59.
   d. Interstate 20.
   e. Interstate 459.
   f. U.S. Highway 280.
   g. Montgomery Highway from the city line as it splits into 20th Street South and 21st Street South along the line both of these streets to 12th Avenue North.
   h. Messer-Airport Highway from the air terminal to Interstate 59/20.
   i. Clairmont Avenue/University Boulevard from 38th Street to Elton B. Stephens Expressway.
   j. 7th Avenue South from 32nd Street to the Elton B. Stephens Expressway.
   k. 1st Avenue North/Parkway East from the Elton B. Stephens Expressway to city limits.
   l. 8th Avenue North from Interstate 65 to Avenue Y Ensley.
   m. John Rogers Drive from U.S. 11 to U.S. 78.
   n. State Highway 119.
   o. Grants Mill Road.
   p. Lakeshore Parkway.
   q. Finley Boulevard from Highway 78 to 26th Street North.

r. Lomb Avenue/Martin Luther King Drive from Bessemer Road to West Oxmoor Road.

s. Spaulding-Ishkooda Road from Ishkooda Road to Martin Luther King Drive.

t. Arkadelphia Road from Lomb Avenue to I-59.

7. *Areas of special aesthetic concern.*

a. No additional off-premises signs shall be permitted in ares of special aesthetic concern as herein defined.

b. All off-premises signs shall be removed from all of the named areas of special aesthetic concern as set out herein below within 90 days after written notice to the permittee of such signs:

(1) Community renewal project area;

(2) Commercial revitalization project area;

(3) Neighborhood revitalization and improvement project area;

(4) The downtown master plan project area;

(5) An urban renewal and urban redevelopment project area;

(6) Historic districts; and

(7) B-3 Community Business Districts.

(Ord. No. 97-21, 2-18-1997)

Subsection 7. *On-premises sign regulations.* Unless otherwise provided in this ordinance, on-premises signs must comply with the following regulations:

1. *Maximum size.*

a. Except as provided below, each business establishment shall be limited to a square footage of 672 square feet for on-premises signage.

b. The total square footage of on-premises signs for retail car dealerships may be increased to an amount no greater than 35 percent of the maximum size specified herein which shall be calculated by measuring the actual square footage of the sign face as defined herein.

2. *Maximum number.* No maximum number of on-premises signs is specified in the ordinance. For each business establishment, the maximum number of permitted signs shall be determined based on the maximum square footage allowance as specified herein.

3. *Maximum height.* Except for on-premises signs where the roof is higher than 50 feet, the maximum height of on-premises signs shall be 50 feet above ground level as its base; provided, however, that in areas within 750 feet of the right-of-way or interstate highways, the maximum height shall

be extended to a point of 25 feet above the plane of the main traveled way of the interstate when the ground level of the sign base is lower than said main traveled way.

4. *Placement requirements.*
   a. No on-premises sign shall be placed in such a manner as to block effective visibility of adjacent signs, whether on or off-premises signs in any district.
   b. No on-premises sign shall be placed within 15 feet of any residential zone boundary.
   c. No projecting sign shall project into any public right-of-way by more than five feet.
   d. Wall signs shall not extend more than ten feet across the roof line or across any corner of the wall on which the sign is mounted.
   e. No sign face shall be placed in such a manner that a motorist's visibility is obscured wither at driveways or entrance points to any business or at intersecting streets or alleys.
5. *Illumination.* It shall be unlawful to erect any attraction or sign which contains a beacon of any type and/or contains a spotlight providing direct illumination to the public.
6. *Portable signs.* Only one portable sign shall be permitted for each business establishment; however, such sign shall not be considered a part of the total allowable square footage for signage as provided herein.
7. *Product advertising signs.* Product advertising signs shall not exceed 12 square feet in area for any one premises which area shall be included in the total permitted sign area for that premises.

Subsection 8. *Penalties.* Both the owners or other persons in charge or control of signs, and owners or other persons in charge or control of property on which signs are located shall be responsible for assuring compliance with this section. Any failure or refusal to comply with this section shall be a violation and punished as provided in article VII, section 4 of this ordinance.

Section 10. Floodplain zone districts.

All of the zone districts heretofore established shall be modified and supplemented in the following instances and according to the following rationale:

1. *Rationale; purpose.* Certain lands and flood hazard areas of the City of Birmingham are subject to periodic inundation which results in loss of life, property, health and safety hazards, disruption of commerce and governmental services, extraordinary public expenditures for flood protection and relief, and impairment of the tax base, all of which adversely affect the public health, safety and general welfare. These flood losses are caused by the cumulative

effect of obstructions in the floodplains causing increases in flood heights and velocities, and by the occupancy in flood hazard areas by uses vulnerable to floods or hazards to other lands which are inadequately elevated, floodproofed, or otherwise protected from flood damages. It is the purpose of this section to promote the public health, safety and general welfare and to minimize public and private losses due to flood conditions in specific areas by the following provisions designed to:

a. Restrict or prohibit uses which are dangerous to health, safety and property due to water or erosion hazards, or which result in damaging increases in erosion or in flood heights or velocities;

b. Require that uses vulnerable to floods, including facilities which serve such uses, be protected against flood damage at the time of initial construction;

c. Control the alteration of natural floodplains, stream channels, and natural protective barriers which are involved in the accommodation of floodwaters;

d. Control filling, grading, dredging and other development which may increase erosion or flood damage; and

e. Prevent or regulate the construction of flood barriers which will unnaturally divert floodwaters or which may increase flood hazards to other lands.

The basic underlying objectives that guided the preparation of this section are: the protection of human life and health; the minimizing of public expenditures for costly flood control projects, and rescue and relief efforts associated with flooding, as well as interruption and damage to individual residents, businesses, industry and public facilities and utilities such as water and gas mains, electric, telephone and sewer lines, streets and bridges; and in general the development and maintenance of a stable tax base by providing for the sound use and development of floodprone areas in such a manner to minimize future flood blight and insure that all purchasers of private property subject to flooding are notified that such property is in a flood area.

2. *Definitions.* Any other provision in this section to the contrary notwithstanding for the purposes of this subsection 2, the following words, terms and phrases shall have the meanings ascribed to them in this subsection 2. Unless specifically defined herein, words or phrases used in this section shall be interpreted so as to give them the meaning they have in common usage and give this section its most reasonable application. When not inconsistent with the context, words used in the present tense shall include the future tense, words in the plural number shall include the singular number, and words in the singular number shall include the plural number.

a. *Addition (to an existing building)* means any walled and roofed expansion to the perimeter of a building in which the addition is connected by a

common load-bearing wall other than a fire wall. Any walled and roofed addition which is connected by a fire wall or is separated by independent perimeter load-bearing walls is new construction.

b. *Administrative officer* means the person(s) appointed to administer, interpret and implement the provisions of this section in accordance with the provisions of subsection 4.a and b.

c. *Appeal* means a request for a review of the administrative officers' interpretation of any provision of this section or a request for a variance.

d. *Area of shallow flooding* means a designated AO Zone on a community's flood insurance rate map (FIRM) with a one percent or greater annual chance of flooding to an average depth of one to three feet where a clearly defined channel does not exist, where the path of flooding is unpredictable and where velocity flow may be evident. Such flooding is characterized by ponding or sheet flow.

e. *Area of special flood hazard* means the land in the floodplain within a community subject to a one percent or greater chance of flooding in any given year.

f. *Base flood* means the flood having a one percent chance of being equaled or exceeded in any given year.

g. *Basement* means any area of a building having its floor subgrade (below ground level) on all sides.

h. *Breakaway wall* means a wall that is not part of the structural support of the building and is intended through its design and construction to collapse under specific lateral loading forces without causing damage to the elevated portion of the building or the supporting foundation system.

i. *Building.* See *Structure.*

j. *Development* means any manmade change to improved or unimproved real estate, including, but not limited to, buildings or other structures, mining, dredging, filling, grading, paving, excavating or drilling operations, or storage of materials or equipment.

k. *Elevated building* means a nonbasement building (1) built to have the top of the elevated floor elevated above the ground level by means of pilings, columns (posts and piers), or shear walls parallel to the flow of the water and (2) adequately anchored so as not to impair the structural integrity of the building during a flood of up to the magnitude of the base flood. [The term] "elevated building" also includes a building elevated by means of fill or solid foundation perimeter walls with openings sufficient to facilitate the unimpeded movement of floodwaters.

l. *Existing construction* means structures for which the "start of construction" commenced before May 5, 1981, the effective date of the initial floodplain management ordinance adopted by the city. [The term] "existing construction" may also be referred to as "existing structures."

m *Existing manufactured home park or subdivision* means a manufactured home park or subdivision for which the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including, at a minimum, the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads) is completed before May 5, 1981, the effective date of the initial floodplain management ordinance adopted by the city.

n. *Expansion to an existing manufactured home park or subdivision* means the preparation of additional sites by the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads).

o. *Flood* or *flooding* means a general and temporary condition of partial or complete inundation of normally dry land areas from the overflow of inland or tidal waters or the unusual and rapid accumulation of runoff of surface waters from any source.

p. *Flood insurance rate map (FIRM)* means an official map of a community, on which the Federal Emergency Management Agency has delineated both the areas of special flood hazard and the risk premium zones applicable to the community.

q. *Flood insurance study* means the official report provided by Federal Emergency Management Agency. The report contains profiles along distances of each studied stream with stream bed elevations and corresponding flood elevations, as well as flood maps and the water surface elevation of the base flood.

r. *Floodplain* means the area of special flood hazard covered by a flood having a one percent chance of being equaled or exceeded in any given year and delineated as a Zone A, AO, A1-30, AE, A99 or AH on the community's flood insurance rate map (FIRM).

s. *Floodproofing* means any combination of structural and nonstructural additions, changes, or adjustments to structures which reduce or eliminate flood damage to real estate or improved real property, water and sanitary facilities, structures and their contents.

t. *Floodway* means the channel of a river or other watercourse and the adjacent land areas that must be reserved in order to discharge the base flood without cumulatively increasing the water surface elevation more than one foot.

u. *Functionally dependent facility* means a facility which cannot be used for its intended purpose unless it is located or carried out in close proximity to water, such as a docking or port facility necessary for the loading and unloading of cargo or passengers, shipbuilding, ship repair, or seafood processing facilities. The term does not include long-term storage, manufacture, sales or service facilities.

v. *Highest adjacent grade* means the highest natural elevation of the ground surface, prior to construction, next to the proposed walls of a structure.

w. *Historic structure* means any structure that meets one or more of the following criteria:

(1) Listed individually in the National Register of Historic Places (a listing maintained by the Department of the Interior) or preliminarily determined by the Secretary of the Interior as meeting the requirements for individual listing on the National Register;

(2) Certified or preliminarily determined by the Secretary of the Interior as contributing to the historical significance of a registered historic district or a district preliminarily determined by the Secretary to qualify as a registered historic district;

(3) Individually listed on a state inventory of historic places in states with historic preservation programs which have been approved by the Secretary of the Interior; or

(4) Individually listed on a local inventory of historic places in communities with historic preservation programs that have been certified either:

(i) By an approved state program as determined by the Secretary of the Interior; or

(ii) Directly by the Secretary of the Interior in states without approved programs.

x. *Improvement cost,* for determining "substantial improvement," means the value of all costs for improvements and/or repairs to a structure. Cost shall include all structural costs for labor and materials, as well as all finish materials, built-in appliances, hardware, profit and overhead but excluding plans, surveys, permit fees, debris removal and clean-up, items not considered real property, and accessory structures. The improvement cost shall be determined by the latest edition of "Building Valuation Data" of current average construction value per square foot published by the Southern Building Code Congress International or a written estimate of labor and materials prepared and certified by the contractor.

y. *Lowest floor* means the lowest floor of the lowest enclosed area (including basement). An unfinished or flood-resistant enclosure, usable solely for parking of vehicles, building access or storage in an area other than a

basement area is not considered a building's lowest floor; provided that such enclosure is not built so as to render the structure in violation of the applicable nonelevation design requirement of subsection 5.

z. *Manufactured home* means a structure, transportable in one or more sections, which is built on a permanent chassis and designed to be used with or without a permanent foundation when connected to the required utilities. The term also includes park trailers, travel trailers and similar transportable structures placed on a site for 180 consecutive days or longer and intended to be improved property.

aa. *Manufactured home park or subdivision* means a parcel (or contiguous parcels) of land divided into two or more manufactured home lots for rent or sale.

bb. *Market value of the building,* for determining "substantial improvement," means the market value of the building only, excluding land. Market value shall be determined by the most recent appraisal by the county tax assessor or by a certified appraisal report using the comparable sales method, whichever is the greater value.

cc. *Mean sea level* means the average height of the sea for all stages of the tide. It is used as a reference for establishing various elevations within the floodplain. For purposes of this section, the term is synonymous with National Geodetic Vertical Datum (NGVD).

dd. *National Geodetic Vertical Datum (NGVD),* as corrected in 1929, is a vertical control used as a reference for establishing various elevations within the floodplain.

ee. *New construction* means structures for which the start of construction commenced on or after May 5, 1981, the effective date of the initial floodplain management ordinance adopted by the city. The term also includes any subsequent improvements to such structures.

ff. *New manufactured home park or subdivision* means a manufactured home park or subdivision for which the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including at a minimum, the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads) is completed on or after May 5, 1981, the effective date of the initial floodplain management ordinance adopted by the city.

gg. *Recreational vehicle* means a vehicle which is:

(1) Built on a single chassis;

(2) 400 square feet or less when measured at the largest horizontal projection;

(3) Designed to be self-propelled or permanently towable by a light-duty truck; and

(4) Designed primarily not for use as a permanent dwelling but as temporary living quarters for recreational, camping, travel, or seasonal use.

hh. *Start of construction,* for other than new construction of substantial improvements under the Coastal Barrier Resources Act (P.L. 97-348), includes substantial improvement, and means the date the building permit was issued, provided the actual start of construction, repair, reconstruction, rehabilitation, addition placement, or improvement was within 180 days of the permit date. The actual "start" means either the first placement of permanent construction of a structure (including a manufactured home) on a site, such as the pouring of slabs or footings, installation of piles, construction of columns, or any work beyond the stage of excavation or the placement of a manufactured home on a foundation. Permanent construction does not include land preparation, such as clearing, grading and filling; nor does it include the installation of streets and/or walkways; nor does it include excavation for a basement, footings, piers or foundations or the erection of temporary forms; nor does it include the installation on the property of accessory buildings, such as garages or sheds not occupied as dwelling units or not part of the main structure. For a substantial improvement, the actual start of construction means the first alteration of any wall, ceiling, floor, or other structural part of a structure, whether or not that alteration affects the external dimensions of the structure.

ii. *Structure* means a walled and roofed building that is principally above ground, a manufactured home, a gas or liquid storage tank, and other manmade facilities or infrastructures.

jj. *Substantial damage* means damage of any origin sustained by a structure whereby the cost of restoring the structure to its before-damaged condition would equal or exceed 50 percent of the market value of the structure before the damage occurred.

kk. *Substantial improvement* means any combination of repairs, reconstruction, alteration, addition or improvement to a building, taking place during the life of a building, in which the cumulative "improvement cost" (as defined by this section) equals or exceeds 50 percent of the "market value of the building" (as defined by this section). The market value of the building should be (1) the present appraised value of the building prior to the start of the repair or improvement, or (2) in the case of damage, the value of the building prior to the damage occurring. This term includes structures which have incurred substantial damage, regardless of the

actual repair work performed. For the purposes of this definition substantial improvement is considered to occur when the first alteration of any wall, ceiling, floor, or other structural part of the building commences, whether or not that alteration affects the external dimensions of the structure. The term does not, however, include any project for improvement of a structure to comply with existing state or local health, sanitary, or safety code specifications which have been identified by the code enforcement official and which are solely necessary to ensure safe living conditions.

Example. A substantial improvement occurs when the cumulative improvement costs to a building over a period of time exceed 50 percent of the current market value of the building, as shown in the following example:

In 1988, a $30,000.00 improvement is made to a $100,000.00 building:

$30,000.00 improvement cost divided by $100,000.00 market value of building = 30 percent.

$143,000.00 = 1994 building value before proposed $45,000.00 improvement.

$30,000.00 improvement in 1988 + $45,000.00 proposed 1994 improvement = $75,000.00 cumulative improvement costs.

$75,000.00 cumulative improvement costs divided by $143,000.00 current market value = 52 percent.

50 percent improvement, which is a substantial improvement.

ll. *Substantially improved existing manufactured home parks or subdivisions* means where the repair, reconstruction, rehabilitation or improvement of the streets, utilities and pads equals or exceeds 50 percent of the value of the streets, utilities and pads before the repair, reconstruction or improvement commenced.

mm. *Variance* means a grant of relief by the zoning board of adjustment to a person from the requirements of this section which permits construction in a manner otherwise prohibited by this section where specific enforcement would result in practical difficulty.

nn. *Zone A, AO, A1-30, AE, A99 or AH* means an area of special flood hazard delineated on the community's flood insurance rate map (FIRM).

3. *General provisions.*

a. *Lands to which this section applies.* In addition to the other requirements of this section and other ordinances of the City of Birmingham, this section shall apply to all areas of special flood hazard within the corporate limits of the City of Birmingham.

b. *Basis for establishing the areas of special flood hazard.* The areas of special flood hazard identified by the Federal Emergency Management Agency, Federal Insurance Administration through the scientific engineering report entitled "Flood Insurance Study, City of Birmingham, Alabama, Jefferson County," dated September 16, 1980, with accompanying flood insurance rate maps and flood boundary and floodway maps and any revision thereto are adopted by reference and declared to be a part of this section.

c. *Establishment of development permit.* A permit to develop in a flood hazard area, a floodplain development permit, shall be required in conformance with the provision of this section prior to the commencement of any development activities.

d. *Compliance.* No structure or land shall hereafter be located, extended, converted or structurally altered without full compliance with the terms of this section and other applicable regulations.

e. *Abrogation and greater restrictions.* This section is not intended to repeal, abrogate, or impair any existing easements, covenants, or deed restrictions. However, where this section and another conflict or overlap, whichever imposes the more stringent restrictions shall prevail.

f. *Interpretation.* In the interpretation and application of this section, all provisions shall be:

(1) Considered as minimum requirements;

(2) Liberally construed in favor of the governing body; and

(3) Deemed neither to limit nor repeal any other powers granted under state statutes.

g. *Warning and disclaimer of liability.* The degree of flood protection required by this section is considered reasonable for regulatory purposes and is based on scientific and engineering considerations. Larger floods can and will occur on rare occasions. Flood heights may be increased by manmade or natural causes. This section does not imply that land outside the areas of special flood hazard or uses permitted within such areas will be free from flooding or flood damages. This section shall not create liability on the part of the City of Birmingham or by any officer or employee thereof for any flood damages that results from reliance on this section or any administrative decision lawfully made thereunder.

h. *Penalties for violation.* Violation of the provisions of this section or failure to comply with any of its requirements, including violation of conditions and safeguards established in connection with grants of variance or special exceptions, shall constitute a misdemeanor. Any person who violates this section or fails to comply with any of its requirements shall,

upon conviction thereof, be fined not more than $500.00 or imprisoned for not more than 180 days, or both, and in addition shall pay all costs and expenses involved in the case. Each day such violation continues shall be considered a separate offense. Nothing herein contained shall prevent the City of Birmingham from taking such other lawful action as is necessary to prevent or remedy any violation.

4. *Administration.*

a. Designation of administrative officers. The director of the planning, engineering and permits department is hereby appointed to administer, interpret and implement the provisions of this section jointly with the director of the planning, engineering and permits department (for general application to the zoning ordinance, see article VII, sections 1 and 2).

b. Duties and responsibilities of the administrative officers shall include, but not be limited to the following:

(1) The administrative officers shall review all development permits to assure that the permit requirements of this section have been satisfied.

(2) The director of the department of planning, engineering and permits shall advise permittee that additional federal and state permits may be required, and if specific federal or state permits are known, require that copies of such permits be provided and maintained on file with the development permit.

(3) The director of the department of planning, engineering and permits shall notify adjacent communities and the appropriate authority of the State of Alabama prior to any alteration or relocation of a watercourse, and submit evidence of such notification to the Federal Emergency Management Agency.

(4) The director of the department of planning, engineering and permits shall assure that maintenance is provided within the altered or relocated portion of said watercourse so that the measured capacity of the stream channel to carry floodwaters is not diminished.

(5) The director of the department of planning, engineering and permits shall verify and record the actual elevation (in relation to mean sea level) of the lowest floor (including basement) of all new or substantially improved structures, in accordance with subsection 4, part c(2)(a).

(6) The director of the department of planning, engineering and permits shall verify and record the actual elevation (in relation to mean sea level) to which the new or substantially improved structures have been floodproofed, in accordance with subsection 4, part c(2)(a).

(7) When floodproofing is utilized for a particular structure, the director of the department of planning, engineering and permits shall obtain certification from a registered professional engineer or architect.

(8) Where interpretation is needed as to the exact location of the boundaries of the areas of special flood hazard (for example, where there appears to be a conflict between a mapped boundary and actual field conditions) the director of the department of planning, engineering and permits shall make the necessary interpretation. The person contesting the location of the boundary shall be given a reasonable opportunity to appeal the interpretation as provided in this section.

(9) When base flood elevation data has not been provided in accordance with subsection 3, part b, then the director of the department of planning, engineering and permits shall obtain, review, and reasonably utilize any base flood elevation data available from a federal, state or other source, in order to administer the provisions of subsection 5.

(10) All records pertaining to the provisions of this section shall be maintained in the offices of the administrative officer and shall be open for public inspection.

c. *Permit and certification procedures.*

(1) *Application stage.* Application for a floodplain development permit shall supplement an application for a building permit, subdivision plat or other development approval and shall be made to the director of the department of planning, engineering and permits on forms furnished by him, prior to any development activities, and may include, but not be limited to plans in duplicate drawn to scale showing the nature, location, dimensions, and elevations of the area in question; existing and/or proposed structures, fill, storage of materials; drainage facilities, and the location of the foregoing. Specifically, the following information is required:

(a) Elevation in relation to mean sea level of the proposed lowest floor (including basement) of all buildings;

(b) Elevation in relation to mean sea level to which any nonresidential structure will be floodproofed;

(c) Provide a certificate from a registered professional engineer or architect that the nonresidential floodproofed building meets the floodproofing criteria in subsection 5, part b(2);

(d) Description of the extent to which any watercourse will be altered or relocated as a result of proposed development.

(2) *Construction stage.*

(a) Provide a floor elevation or floodproofing certification after the lowest floor is completed, after placement of the horizontal

structural members of the lowest floor. Upon placement of the horizontal structural members of the lowest floor or floodproofing by whatever means, whichever is applicable, it shall be the duty of the permit holder to submit to the director of the department of planning, engineering and permits a certification for the elevation of the lowest floor, floodproofed elevation, or the elevation of the lowest portion of the horizontal structural members of the lowest floor, whichever is applicable, as built, in relation to mean sea level. Said certification shall be prepared by or under the direct supervision of a registered land surveyor or professional engineer and certified by same. When floodproofing is utilized for a particular building, said certification shall be prepared by or under the direct supervision of a professional engineer or architect and certified by same.

(b) Any work done prior to submission of the certification shall be at the permit holder's risk. The director of the department of planning, engineering and permits shall review the flood elevation survey data submitted. Deficiencies detected by such review shall be corrected by the permit holder immediately and prior to further progressive work being permitted to proceed. Failure to submit the survey or failure to make said corrections required hereby, shall be cause to issue a stop work order for the project.

d. *Variance or modifications.*

(1) The zoning board of adjustment of the City of Birmingham as established in article VIII of this ordinance shall hear and decide on appeals and request for variances from the requirements of this section.

(2) The zoning board of adjustment shall hear and decide appeals when it is alleged there is an error in any requirement, decision or determination made by the administrative officer in the enforcement or administration of this section.

(3) Any person aggrieved by the decision of the zoning board of adjustment may appeal such decision in accordance with article VIII, section 6 of this ordinance.

(4) Variances may be issued for the repair or rehabilitation of historic structures (see definition) upon a determination that the proposed repair or rehabilitation will not preclude the structure's continued designation as a historic structure and the variance is the minimum to preserve the historic character and design of the structure.

(5) In passing upon such applications, the zoning board of adjustment shall consider all technical evaluations, all relevant factors, all standards specified in other parts of this section and the:

(i) Danger that materials may be swept into other lands to the injury of others;

(ii) Danger to life and property due to flooding or erosion damage;

(iii) Susceptibility of the proposed facility and its contents to flood damage and the effect of such damage on the individual owner;

(iv) Importance of the services provided by the proposed facility to the community;

(v) Necessity to the facility of a waterfront location, where applicable;

(vi) Availability of alternative locations, not subject to flooding or erosion damage for the proposed use;

(vii) Compatibility of the proposed use with existing and anticipated development;

(viii) Relationship of the proposed use to the comprehensive plan and floodplain management program for that area;

(ix) Safety of access to the property in times of flood for ordinary and emergency vehicles;

(x) Expected heights, velocity, duration, rate of rise and sediment transport of the floodwaters and the effects of wave action, if applicable, expected at the site; and

(xi) Costs of providing governmental services during and after flood conditions including maintenance and repair of public utilities and facilities such as sewer, gas, electrical, and water systems, and streets and bridges.

(6) Upon consideration of the factors listed above and the purposes of this section, the zoning board of adjustment may attach such conditions to the granting of variances as it deems necessary to further the purposes of this section.

(7) Variances shall not be issued within any designated floodway if any increase in flood level during the base flood discharge would result.

(8) Variances shall only be issued upon a determination that the variance is the minimum necessary considering the flood hazard to afford relief and in the instance of a historical building, a determination that the variance is the minimum necessary so as not to destroy the historic character and design of the building.

(9) Variances shall only be issued upon:

(i) A showing of good and sufficient cause;

(ii) A determination that failure to grant the variance would result in exceptional hardship; and

(iii) A determination that the granting of the variance will not result in increased flood heights, additional threats to public safety, extraordinary public expense, create nuisance, cause fraud on or victimization of the public or conflict with existing laws or ordinances of the city.

(10) Any applicant to whom a variance or modification is granted shall be given written notice specifying the difference between the base flood elevation and the elevation to which the structure is to be built and stating the cost of flood insurance will be commensurable with the increased risk resulting from the reduced lowest floor elevation.

(11) The director of the department of planning, engineering and permits shall maintain the records of all appeal actions and report any variances to the Federal Emergency Management Agency upon request.

5. *Provisions for flood hazard reduction.*

a. *General standards.* In all areas of special flood hazard the following provisions are required:

(1) All new construction and substantial improvements shall be anchored to prevent flotation, collapse, or lateral movement of the structure.

(2) All manufactured homes shall be anchored to prevent flotation, collapse, or lateral movement attributable to water loads associated with the base flood. Methods of anchoring may include, but are not limited to, use of over-the-top or frame ties to ground anchors. This standard shall be in addition to and consistent with applicable state requirements for resisting wind forces.

(3) All new construction and substantial improvements shall be constructed with materials and utility equipment resistant to damage attributable to water loads associated with the base flood.

(4) All new construction or substantial improvements shall be constructed by methods and practices that minimize flood damage.

(5) All electrical, heating, ventilation, plumbing, air conditioning equipment, and other service facilities shall be designed and/or located so as to prevent water from entering or accumulating within the components during conditions of flooding.

(6) All new and replacement water supply systems shall be designed to minimize or eliminate infiltration of floodwaters into the system.

(7) New and replacement sanitary sewage systems shall be designed to minimize or eliminate infiltration of floodwaters into the systems and discharges from the systems into floodwaters.

(8) On-site waste disposal systems shall be located to avoid impairment to them or contamination from them during flooding.

(9) Any alteration, repair, reconstruction, or improvements to a structure which is in compliance with the provisions of this section, shall meet the requirements of "new construction" as contained in this section.

(10) Any alteration, repair, reconstruction or improvement to a building which is not in compliance with the provisions of this section, shall be undertaken only if said nonconformity is not furthered, extended or replaced.

(11) No development in a floodplain shall include locating or storing toxic chemicals, explosives, buoyant materials, pollutants, or other hazardous or toxic materials that could be injurious to human, animal or plant life, unless elevated one foot above the base flood elevation. Underground storage of fuel, toxic or flammable substances is expressly prohibited in the floodplain.

b. *Specific standards.* In all areas of special flood hazard where base flood elevation data has been provided, as set forth in subsection 3, part b. or subsection 4, part b(9), the following provisions are required:

(1) *Residential construction.* New construction or substantial improvement of any residential structure (or manufactured home) shall have the lowest floor, including basement, elevated no lower than one foot above the base flood elevation. Should solid foundation perimeter walls be used to elevate a structure, openings sufficient to facilitate the unimpeded movement of floodwaters shall be provided in accordance with standards of subsection 5, part b(2).

(2) *Nonresidential construction.* New construction or substantial improvement of any commercial, industrial or other nonresidential structure shall either have the lowest floor, including basement, elevated no lower than one foot above the base flood elevation or, together with attendant utility and sanitary facilities, be floodproofed so that below the required elevation the structure is watertight with walls substantially impermeable to the passage of water and use structural components having the capability of resisting hydrostatic and hydrodynamic loads and effects of buoyancy. A registered professional engineer or architect shall certify that the standards of this subsection are satisfied. Such certification shall be provided to the official as set forth in subsection 4, part c(2).

(3) *Elevated buildings.* New construction or substantial improvements of elevated buildings that include fully enclosed areas formed by foundation and other exterior walls below the base flood elevation shall be designed to preclude finished living space and designed to allow for the entry and exit of floodwaters to automatically equalize hydrostatic flood forces on exterior walls.

(a) Designs for complying with this requirement must either be certified by a professional engineer or architect and meet the following minimum criteria:

(i) Provide a minimum of two openings having a total net area of not less than one square inch for every square foot of enclosed area subject to flooding;

(ii) The bottom of all openings shall be no higher than one foot above grade; and

(iii) Openings may be equipped with screens, louvers, valves or other coverings or devices provided they permit the automatic flow of floodwaters in both directions.

(b) Electrical, plumbing, and other utility connections are prohibited below the base flood elevation;

(c) Access to the enclosed area shall be the minimum necessary to allow for parking of vehicles (garage door) or limited storage of maintenance equipment used in connection with the premises (standard exterior door) or entry to the living area (stairways or elevator); and

(d) The interior portion of such enclosed area shall not be partitioned or finished into separate rooms.

(4) *Standards for manufactured homes and recreational vehicles.*

(a) All manufactured homes placed, or substantially improved, on individual lots or parcels, in expansions to existing manufactured home parks or subdivisions, or in substantially improved manufactured home parks or subdivisions, must meet all the requirements for new construction, including elevation and anchoring.

(b) All manufactured homes placed or substantially improved in an existing manufactured home park or subdivision must be elevated so that:

(i) The lowest floor of the manufactured home is elevated no lower than one foot above the base flood elevation;

(ii) The manufactured home chassis is supported by reinforced piers or other foundation elements of at least an equivalent strength, of no less than 36 inches in height above grade;

(iii) The manufactured home must be securely anchored to the adequately anchored foundation system to resist flotation, collapse and lateral movement; or

(iv) In an existing manufactured home park or subdivision on which a manufactured home has incurred "substantial damage" as the result of a flood, any manufactured home placed or substantially improved must meet the standards of subsection 5, parts b(1) and (3) above.

(c) All recreational vehicles placed on sites must either:

(i) Be on the site for fewer than 180 consecutive days and be fully licensed and ready for highway use; or

(ii) The recreational vehicle must meet all the requirements for new construction, including anchoring and elevation requirements of subsection 5, part a(2) and part b(1) above. A recreational vehicle is ready for highway use if it is on its wheels or jacking system, is attached to the site only by quick disconnect type utilities and security devices and has no permanently attached structures.

c. *Standards for floodways.* Located within areas of special flood hazard established in subsection 3, part b, are areas designated as floodways. Since the floodway is an extremely hazardous area due to the velocity of floodwaters which carry debris, potential projectiles and has erosion potential, the following provisions shall apply:

(1) Prohibit encroachments, including fill, new construction, substantial improvements and other developments unless certification by a registered professional engineer is provided demonstrating that encroachments shall not result in any increase in flood levels during occurrence of the base flood discharge.

(2) If subsection 5, part c(1) is satisfied, all new construction and substantial improvements shall comply with all applicable flood hazard reduction provisions of subsection 5.

(3) Prohibit the placement of manufactured homes except in an existing manufactured home park or subdivision. A replacement manufactured home may be placed on a lot in an existing manufactured home park or subdivision provided the anchoring standards of subsection 5, part a(2), and the elevation standards of subsection 5, part b(1) and the encroachment standards of subsection 5, part c(1), are met.

d. *Standards for streams without established base flood elevation and / or floodways.* Located within the areas of special flood hazard established in subsection 3,

part b, where streams exist but where no base flood data has been provided or where base flood data has been provided without floodways, the following provisions apply:

(1) No encroachments, including fill material or structures shall be located within areas of special flood hazard, unless certification by a registered professional engineer is provided demonstrating that the cumulative effect of the proposed development, when combined with all other existing and anticipated development will not increase the water surface elevation of the base flood more than one foot at any point within the community. The engineering certification should be supported by technical data that conforms to standard hydraulic engineering principles.

(2) New construction or substantial improvements of buildings shall be elevated or floodproofed to elevations established in accordance with subsection 4, part b(9).

e. *Standards for subdivision proposals and other new developments.*

(1) All subdivision proposals and other proposed new developments, including manufactured home parks or subdivisions, shall be reviewed by the administrative officer to determine whether such proposals will be reasonably safe from flooding. If a subdivision proposal or other proposed new development is in a floodprone area, any such proposals shall be prepared by a professional engineer and be reviewed for conformance with the following standards:

(a) All such proposals shall be consistent with the need to minimize flood damage within the floodprone area;

(b) All public utilities and facilities, such as sewer, gas, electrical and water systems shall be located and constructed to minimize flood damage;

(c) Adequate drainage shall be provided to reduce exposure to flood hazards; and

(2) All subdivision plat proposals and other proposed site plans for new development in a floodprone area, including manufactured home parks or subdivisions, shall have floodplain zones delineated and base flood elevation data provided by a registered land surveyor or professional engineer.

(Ord. No. 95-56, 3-21-1995)

Section 11. Adult establishments.

1. *General applicability.* The regulations set forth in this section supplement or modify the district regulations appearing elsewhere in this ordinance and shall apply to all property within business districts as established by the council of the City of Birmingham.

2. *Purpose.* The purpose of this section is to amend the zoning ordinance of the City of Birmingham, Alabama, in a manner which:

a. Protects the constitutional rights of those persons and corporations who desire to deal in, purchase or rent "adult" or sex-oriented materials; and

b. Minimizes the public safety problems which the experience with past and current adult establishments in the city has demonstrated are substantial; and

c. Provides for zoning protection of existing residential and commercial real estate values from substantial impairment; and

d. In general to provide for the protection of the health, safety, comfort and general welfare of the citizens of the City of Birmingham.

3. *Findings of fact.* Based upon the evidence and information submitted to the council, the governing body of the City of Birmingham, Alabama, upon statements of citizens submitted to the council, upon receipts submitted by the police department of the city to this council, upon expert opinions submitted to and considered by this council, and upon the knowledge and experience gained by council members, both while serving as members of this council and prior thereof, this council hereby makes the following findings of fact:

a. Adult entertainment or sex-oriented businesses which have existed within the City of Birmingham and which currently exist, have experienced substantial numbers of arrests for sex-related offenses.

b. The number of such arrests are proportionally greater at adult entertainment or sex-oriented businesses than at other businesses in the city.

c. Adult entertainment or sex-oriented businesses have established a "community reputation" of attracting persons who do engage in various sexual practices on the premises of the business.

d. This "community reputation" tends to diminish nearby real estate values.

e. This "community reputation" reduces the perceived quality of life for neighboring residents.

4. *Definitions.* As used in this subsection, the following words and phrases will have the following meanings:

a. *Adult book store.* An establishment having, as a substantial or significant portion of its stock in trade available for purchase or rental, books, magazines, and other periodicals, cassette tapes, videotapes or films which are distinguished or characterized by their emphasis on matter depicting, describing or relating to specified sexual activities or specified anatomical areas, as defined in this subsection, or an establishment with a segment or section devoted to the sale, rental or display of such material.

b. *Adult cabaret or dancing establishment.* A cabaret or dancing establishment which features topless or bottomless dancers, go-go dancers, exotic dancers, strippers, male or female impersonators, or similar entertainers.

c. *Adult establishment.* Any adult book store, adult mini-motion picture theater, adult motion picture theater, adult cabaret or dancing establishment or any combination thereof.

d. *Adult mini-motion picture theater.* An enclosed building with a capacity of less than 50 persons used for presenting material distinguished or characterized by an emphasis on matter depicting, describing or relating to specified sexual activities or specified anatomical areas, as defined in this section, for observation by patrons therein.

e. *Adult motion picture theater.* An enclosed building with a capacity of 50 or more persons used for presenting material distinguished or characterized by an emphasis on matter depicting, describing or relating to specified sexual activities or specified anatomical areas, as defined in this section, for observation by patrons therein.

f. *Specified anatomical areas:*

(1) Less than completely and opaquely covered human genitals, pubic region, buttock, and female breast below a point immediately above the top of the areola; and

(2) Human male genitals in a discernible turgid state, even if completely and opaquely covered.

g. *Specified sexual activities:*

(1) Human genitals in a state of sexual stimulation or arousal;

(2) Acts of human masturbation, sexual intercourse or sodomy; and

(3) Fondling or other erotic touching of human genitals, pubic region, buttocks or female breast.

5. *Permit required.* No adult establishment, as defined by this subsection, shall be constructed, established, or operated by any person without first obtaining a permit from the director of the department of planning, engineering and permits, which permit shall certify that such adult establishment complies with the requirements of subsection (6) of this section.

6. *Locational requirements.* All distance limitations shown below are measured from the closest lot line between items listed. No adult establishment shall be constructed, established, or operated within:

a. 750 feet of any E, R, A or MXD zoning district, or any property, regardless of its zoning classification, that contains a single-family or two-family detached dwelling, or multiple-family dwelling;

b. 750 feet of a child care facility, kindergarten, elementary, middle, or high school, college, university, or similar type of school, whether public or private;

c. 750 feet of a public park;

d. 750 feet of a church or place of worship;

e. 1,500 feet of another adult establishment;

f. Those areas that are considered registered and listed on the National Register of Historic Places as historic districts, or areas within 750 feet of those districts. The boundaries of said historic districts are on file in the department of planning, engineering and permits;

g. A commercial revitalization district, urban renewal and redevelopment project area, or within 750 feet of those districts, as established by the council of the City of Birmingham. The boundaries of such districts are on file in the department of planning, engineering and permits.

7. *Signs.* Signs for adult establishments shall conform to the following:

a. Signs shall pertain to goods, products or services sold or offered on the premises.

b. Signs shall be attached to a vertical surface of the building or extend not more than 18 inches therefrom.

c. Signs shall not exceed in the aggregate 40 square feet of gross surface area for any lot having 40 feet or less of street frontage. On lots having a frontage greater than 40 feet, such sign or signs shall not exceed in the aggregate one square foot in area for each linear foot of principal street frontage, but in no case shall the aggregate area of such sign or signs exceed 100 square feet.

d. Signs or exterior displays of any kind shall be limited to words, phrases and numbers and shall not include live, animated or pictorial displays or any material depicting, describing or relating to specified sexual activities or specified anatomical areas that may permit the observation of such display of materials from any public way. This provision shall apply to any display, decoration, sign, show window or other openings.

(Ord. No. 10-111, 8-24-2010)

Section 12. "Q" Qualified Zone District.

Subsection 1. *Purpose.* The purpose of the "Q" (Qualified District) is to provide for the regulation of commercial, manufacturing or residential uses of land and structures in order that uses and development of said land, buildings and structures will be harmonious and compatible with and not have an undesirable or detrimental impact on surrounding development. The purpose of this section is also to protect the public welfare and the property value of surrounding property by securing an appropriate development that is in harmony with the objectives of the City of

Birmingham Master Plan as adopted by the Birmingham Planning Commission. In order to achieve the above stated purposes provision is hereby made that in consideration of a change of zone the subject property shall be limited in such manner that it may not be utilized for all the uses ordinarily permitted in a particular zone classification and/or that development of said subject property shall conform to specific standards. In such cases, the ordinance changing the zoning classification of the property in question shall place it in a "Q" (Qualified) zoning classification. The "Q" (Qualified) District shall be indicated in the rezoning ordinance passed by the city council and on the official zoning map by the symbol "Q" immediately before the combination of symbols designation, e.g., "Q" B-2 in addition to the case number assigned to the individual rezoning case.

Subsection 2. *Zone districts that may be combined with a "Q" (Qualified) District.* Rezonings for a "Q" (Qualified) District must be combined with another zone district as set forth below. A "Q" (Qualified) District may not be requested which is not so combined with these applicable districts. A "Q" (Qualified) District zoning classification shall only be used in combination with zones R-1, R-2, R-3, R-4, R4A, R-5, R-6, R-7, O&I, B-1, B-2, B-3, B-6, M-1, M-1A, M-2 and M-4 as defined elsewhere in the zoning ordinance of the City of Birmingham.

Subsection 3. *Uses permitted in a "Q" (Qualified) District.* The uses permitted in a "Q" (Qualified) District shall be limited to those set out in the rezoning ordinance passed by the city council.

Subsection 4. *Standards that may be required in a "Q" (Qualified) District.* In addition to permitted uses as set forth in subsection 3 above, the "Q" (Qualified) rezoning ordinance passed by council may impose standards on the subject property with respect to buffers, ingress and egress, development plans, drainage, and environmental plans as well as other considerations that may be necessary to make the proposed development compatible with surrounding development. All applicable limitations and/or standards within the "Q" (Qualified) District shall be considered to apply permanently to the specific uses permitted in said zone.

Subsection 5. *Expiration of development plan (time limit on development).* In the event that construction, in accordance with a development plan (when required) is not begun within two years from the date of approval by the city council of the "Q" (Qualified) District, said development plan shall become null and void.

Subsection 6. *Amendments to "Q" (Qualified) District.*

1. In the event that more permitted uses than those set forth in the "Q" (Qualified) District rezoning ordinance passed by council are desired for the subject property, the city council will, after proper notification, hold a public hearing on the matter to determine its validity.

2. Applicants for amendments pertaining only to standards, which may be required as set forth in subdivision 4 above, need only be presented to and approved by the zoning advisory committee of the Birmingham Planning Commission.

Section 13. Additional height regulations in vicinity of municipal airport.

Subsection 1. *Applicability of sections; approval of certain structures.* The regulations set forth in this section qualify or modify the district regulations appearing elsewhere in this ordinance and shall apply to all property included within the airport height control zones shown on the zoning district maps. No structure or building shall be erected which will be higher than 150 feet above the site ground level or which will be higher than 1,143 feet (500 feet above the established airport elevation) above sea level unless the location of such structure or building shall have been approved by the Federal Aviation Administration or other appropriate federal agency.

Subsection 2. *Height limitations.* No structure or portion thereof shall be erected within the airport approach zones, transitional zones, horizontal zone or conical surface in excess of the elevations described below:

1. *Approach zones.*

   a. *Southwest approach zone.* Runway 5-23, an elevation above the elevation at the end of the runway a distance equal to 1/50 of the horizontal distance beginning 200 feet from the end of the runway measured along the centerline of the runway extended.

   b. *Northeast approach zone.* Runway 5-23, north approach zone; Runway 18-36 and South Approach Zone Runway 18-36, an elevation above the elevation at the end of the runway, a distance equal to 1/40 of the horizontal distance beginning 200 feet from the end of the runway measured along the centerline of the runway extended.

2. *Transitional zones.* An elevation 1/70 of the horizontal distance measured outward at right angles to the centerline of the runway or the centerline of the centerline if extended, beginning at the interior edges of the transitional zone.

3. *Horizontal zones.* An elevation 150 feet above the established airport elevation.

4. *Conical surface.* The maximum height permitted in the horizontal zone plus an elevation 1/40 of the horizontal distance measured outward at right angles to the periphery of the horizontal zone.

Subsection 3. *Overlap of control zones.* Where airport height control zones overlap, the most restrictive height limitation shall prevail. In no case shall the requirement of this section prevent the construction of a structure not exceeding 20 feet in height.

Section 14. Holding Zone District (HZD).

Subsection 1. *Generally.* The regulations set forth in this section or set forth elsewhere in this ordinance, when referred to in this section are the regulations in the Holding Zone District (HZD). The purpose of the Holding Zone District (HZD) is to provide for the regulation of all uses and structures within areas which have been recently annexed and are yet to be developed in order to encourage the orderly timing and phasing of growth in these areas. The Holding Zone District may be applied to any areas which have been recently annexed for which the city finds should be held in a primarily undeveloped state for an interim period of time pending development and/or completion of a comprehensive land use plan for the subject area.

Subsection 2. *Use regulations.* A building or premises shall be used only for the following purposes:

1. Any use existing at the time of rezoning the subject property Holding Zone District.
2. Raising and grazing of animals, except no commercial feed lots.
3. Nurseries, green houses or the growing of crops, except that no wholesale or retail sales shall be conducted on the premises.
4. Forestry.
5. Single-family structures on one acre or more (permitted only by conditional approval of the planning commission).
6. Wireless communications facility, in accordance with article VI, section 18.
7. Accessory structures and uses which are incidental to the main use of the premises (permitted only by conditional approval of the planning commission).

(Ord. No. 97-77, § 1(title 2, art. VI, § 14, subsec. 2), 6-24-1997)

Subsection 3. *Area and dimensional regulations.* Except as provided in articles VI and VIII, the area and dimensional regulations set forth in the following table shall be observed:

Maximum Height of Structure [in] Feet	*Minimum Yards*			*Minimum Lot Area Per Family*	*Minimum Lot Width*
	Front	*Rear*	*Each Side*		
45 feet	Variable with planning commission approval				

Maximum height does not apply to barns or silos provided that additional setbacks are provided in accordance with the requirements set forth in article VI, section 13; no structures for keeping of animals shall be located closer than 150 feet from any lot line.

Subsection 4. *Parking regulations.* Off-street parking spaces shall be provided in accordance with the requirements for specific uses set forth in article V.

Section 15. Additional regulations for attached and semi-attached dwellings.

Subsection 1. *Purpose.* The purpose of these additional regulations is to provide for design flexibility in the construction of attached and semi-attached dwellings; encourage open space; promote infill housing; and encourage ownership. In the event that multiple family units are converted to attached and semi-attached single ownership, the regulations set forth in this section shall apply.

Subsection 2. *Administration.* For the purposes of this section, all new construction shall be constructed on a lot of record, showing separate ownership for each lot.

Subsection 3. *Additional permitted uses.* Recreational facilities and parking facilities shall be permitted when constructed as an accessory use to the entire development.

Subsection 4. *Open space.* Undeveloped open space, and/or outdoor recreation shall account for 35 percent of the total development in R-5, R-6 and R-7 Multiple Dwelling Districts, and 50 percent of the total development in R-4 Two-Family and Semi-Attached Dwelling Districts and R-4A Medium Density Residential Districts. In any case, not less than 25 percent of these total area percentages shall remain as undeveloped and/or landscaped open space.

Subsection 5. *Design regulations.*

[1.] *Front building lines.* Front building lines shall vary a minimum of three feet or more for every two dwelling units.

[2.] *Access and entrances.* The front doors of all dwelling units must be a minimum of ten feet from any paved surface, except walkways. Private walkways, having a destination of a public walkway or street or private drive, or parking lot shall be provided.

[3.] *Utility services.* All dwellings shall be serviced by utilities and other wiring from the rear or side of the dwelling unless underground.

[4.] *Limitations on dwelling units.* No structure shall contain any more than eight attached dwelling units.

Section 16. "C" Contingency Zone District.

Subsection 1. *Purpose.* The purpose of the "C" (Contingency) District is to provide for an orderly arrangement of uses, and to provide residential property that is adjacent to potential commercial or industrial development; and single-family residential property that is adjacent to potential multifamily development, with enough land use protection so as not to adversely affect the health, safety, morals or convenience of the general public. In order to achieve the above stated purpose, provision is hereby made that in consideration of a change in zone district boundaries that is the result of initial zoning, or zoning in accordance with a comprehensive plan,

the department of planning, engineering and permits staff, shall limit the use of the subject property to development plan approval. The "C" (Contingency) District shall be indicated in the rezoning ordinance passed by the city council and on the official zoning map by the symbol "C" immediately before the combination of symbols designation, e.g. "C" R-6.

Subsection 2. *Other zone districts that may be combined with a "C" (Contingency) District.* Rezonings for a "C" (Contingency) District must be combined with another zoned district as set forth below. A "C" (Contingency) District may not be created which is not so combined with these applicable districts. Further a "C" (Contingency) District can only be imposed by the city council or the Birmingham Planning Commission during initial zoning, or zoning in accordance with a comprehensive plan; additionally a "C" (Contingency) District cannot be requested by the property owner. A "C" (Contingency) District classification shall only be used in combination with zones R-4A, R-5, R-6, R-7, O&I, B-1, B-2, B-3, B-6, M-1, M-1A, M-2 and M-4 as defined elsewhere in this zoning ordinance of the City of Birmingham.

Subsection 3. *Uses permitted in a "C" (Contingency) District.* The uses permitted under any zone classification coupled with a "C" (Contingency) District are not affected by such "C" designation. Only the potential development of the subject property is affected.

Subsection 4. *Standards that may be required in a "C" (Contingency) District.* The "C" (Contingency) rezoning ordinance passed by council shall permit the department of planning, engineering and permits staff to impose standards on the subject property in accordance with a development plan. Said development plan shall be submitted by the developer and reviewed in a timely manner, and if necessary, revised by staff. Staff review and possible revisions of the submitted development plan shall include, but shall not be limited to the following criteria:

1. Proposed location and height of all structures and site improvements.
2. Use of all structures and premises.
3. Parking lot location, volume, ingress and egress, and landscaping.
4. Location of streets, driveways and walkways, including points of ingress and egress and access streets.
5. Service and loading spaces.
6. Solid waste container locations, access and screening.
7. Location of all overhead utilities.
8. The amount of manmade impervious surfaces in relation to the total square footage of the parcel.
9. Finished site topographic contours (at not greater than two-foot intervals).
10. Stormwater drainage plan.

11. Buffering and screening of adjacent incompatible or less intensive land uses.
12. Location, size, and number of all exterior signs.
13. Location of all exterior areas to be illuminated; all exterior lighting.
14. Location of all exterior doors.
15. Other factors which may ameliorate incompatible land uses.
16. Compliance with City's Soil Erosion and Sediment Control Code.

All applicable limitations and/or standards within the "C" (Contingency) District shall be considered to apply permanently to the specific uses permitted in said zone.

Subsection 5. *Appeal procedure.* In the event that the developer is aggrieved by the decision of the department of planning, engineering and permits, with regard to the development plan submitted, a timely appeal shall be taken by the developer to the zoning board of adjustment in accordance with the regulations set forth in this zoning ordinance, viz., article VIII, section 3.

Section 17. Child and adult care facilities.

Subsection 1. *Purpose and intent.* The regulations set forth in this section provide for the provision of child and adult care situated in normal residential and nonresidential surroundings so as to provide for an environment that is healthy and safe. It is found that affordable, good-quality, and licensed child and adult care within the city is critical to the well being of the children and adults in the community. At the same time, these standards are intended to preserve the character of the zoning districts in which they may locate.
(Ord. No. 94-66, § I, 4-5-1994)

Subsection 2. *Definitions.* For the purposes of this ordinance the following words, terms, and phrases shall have the meaning ascribed to them as specified herein. When not inconsistent with the context, words used in the present tense shall include the future tense, words in the plural number shall include the singular number and words in the singular number shall include the plural number.

1. *Adult.* A person 19 years of age or older.
2. *Adult care.* The provision of supplemental care and supervision for nonresident adults who, by reason of aging or disability, require services furnished by a facility that provides shelter and protective oversight on a regular basis for less than 24 hours a day. As used in this section, the term is not intended to include sitting services of a casual nonrecurring nature or in the adult's own home, communal living facilities, clinics or rehabilitation facilities, sanitariums or convalescent homes.

3. *Adult care facility.* A building or structure wherein an agency, association, organization, person or group of persons, whether established for financial gain or otherwise, regularly provides adult care for three or more adults.

4. *Child.* A person under 19 years of age.

5. *Child care.* The provision of supplemental parental care and supervision for a related or nonrelated child or children, on a regular basis for less than 24 hours a day. As used in this section, this term is not intended to include baby sitting services of a casual, nonrecurring nature or in a child's own home.

6. *Child care center.* A facility or licensed agency that provides for the care of 13 or more children for periods of less than 24 hours a day.

7. *Child care facility.* A building or structure wherein an agency, association, organization, person, or group of persons, whether established for financial gain or otherwise, regularly provides care for one or more nonresident children, whether related or unrelated to the operator of the facility, for periods of less than 24 hours a day. Child care facilities include family day/night care homes, group family day/night care homes, and child care centers, including centers operating as an accessory use to hospitals, churches or other institutional uses.

8. *Department of human resources (Department of Human Resources, Jefferson County).* State of Alabama or Jefferson County Department of Human Resources.

9. *Family day/night care home.* A child care facility which is the family home in which the operator resides and which receives not more than six children, which number shall be determined by counting all but two of the operator's own children six years of age or younger, for care at any one time during the day or night and is licensed as a family day/night care home by Department of Human Resources, Jefferson County. All family day/night care homes currently licensed by Department of Human Resources, Jefferson County must come into compliance with this provision (definition) no later than the anniversary date of their department of human resources license or December 31, 1994, whichever is later.

10. *Family group day/night care home.* A child care facility which is the family home in which the operator resides and which receives not more than 12 children, which number shall be determined by counting all but two of the operator's own children six years of age or younger, for care at any one time during the day or night and is licensed as a family group day/night care home by Department of Human Resources, Jefferson County. All family group day/night care homes currently licensed by Department of Human Resources,

Jefferson County must come into compliance with this provision (definition) no later than the anniversary date of their department of human resources license or December 31, 1994, whichever is later.

11. *Substitute/alternate.* A person employed by an adult or child care provider on a part-time temporary basis who is available to act as a care giver in the absence of the operator.

12 *Zoning certificate of operation.* A certificate of operation, issued by the City of Birmingham, Department of Planning, Engineering and Permits, authorizing the operation of a child or adult care facility within the corporate limits of the City of Birmingham.

(Ord. No. 94-66, § I, 4-5-1994; Ord. of 4-26-1994)

Subsection 3. *Zoning certificate required.*

1. Each child or adult care operator shall apply for a zoning certificate of operation on a form provided by the department of planning, engineering and permits. A copy of such application shall be forwarded to the appropriate neighborhood association for their information at least four weeks prior to the final determination as to approval of a certificate of operation. Applicant shall comply with all current provisions of this ordinance and receive said zoning certificate of operation from the department of planning, engineering and permits prior to beginning operation. Any child or adult care facility which is currently registered or licensed by Department of Human Resources, Jefferson County as of the effective date of this ordinance, shall apply for said zoning certificate of operation within 45 days as of the effective date of this ordinance.

2. The zoning certificate of operation shall be conspicuously posted inside the entrance or reception area of the facility.

3. The zoning certificate of operation of any child or adult care facility operator whose Department of Human Resources, Jefferson County license becomes inactive or which facility becomes inactive and ceases to operate, will be revoked immediately, and must apply as a new applicant and facility to resume operation. In this case all then current regulations must be met.

4. No changes in operation beyond the scope outlined in the zoning certificate of operation of any child or adult care facility may be made prior to application for a new zoning certificate of operation. Any child or adult care facility found to be operating beyond the terms of their zoning certificate of operation must come into compliance immediately or their zoning certificate of operation will be revoked.

5. All child and adult care facilities must submit to inspection by the department of planning, engineering and permits zoning enforcement personnel during normal hours of operation.

(Ord. No. 94-66, § I, 4-5-1994)

Subsection 4. *General requirements for all child and adult care facilities.*

1. Lot size, setbacks, and all other aspects of the premises must conform to those applicable to the zoning district in which the facility is located.
2. All state, county and city licensing requirements shall be met including business licenses and those pertaining to building, fire safety and health codes.
3. When located in a residential district, no child or adult care facility shall be permitted to be located within 1,000 feet of another child care or adult care facility also located in a residential district. Any child or adult care facility which is currently registered or licensed by Department of Human Resources, Jefferson County as of the effective date of this ordinance is exempt from this spacing requirement.

(Ord. No. 94-66, § I, 4-5-1994)

Subsection 5. *Family day/night care homes and family group day/night care homes.*

1. Family day/night care homes shall be located in a dwelling. Family group day/night care homes shall be located in a single-family detached dwelling. Its use as a family care home or family group care home shall be clearly incidental to the use of the premises for dwelling purposes by the care giver and shall be carried on wholly within the main building, except for the outside play area.
2. Family day/night care home and family group day/night care home operators shall provide the department of planning, engineering and permits with the names, dates of birth and sex of their own children for the purpose of determining the number of children which may be received for care. The zoning certificate of operation obtained from the department of planning, engineering and permits shall specify the number of children which may be cared for.
3. When located in a residential district, employment shall be limited to:
    a. Family day/night care homes: The child care provider who resides at the dwelling, and the substitute/alternate, who is on record at the department of human resources.
    b. Family group day/night care homes: The child care provider who resides at the residence, and no more than one full-time and one part-time employee, and the substitute/alternate, who is on record at the department of human resources.
4. When located in a residential district, no structural or decorative alterations shall be made or permitted that will alter the single-family character of an existing residential structure.
5. When located in a residential district, no identification signs shall be permitted.

6. Off-street drop-off/pick-up area may be determined necessary by the department of traffic engineering. If determined necessary, a site plan must be submitted for approval by the department of traffic engineering and the department of planning, engineering and permits. No pick-up/drop-off or parking shall be permitted in the required front yard except upon a paved surface providing access to a carport or garage.
7. When located in a residential district, hours of operation shall be restricted to 13 hours daily. The zoning certificate of operation obtained from the department of planning, engineering and permits shall specify the approved hours of operation.
8. Playground equipment is restricted to the rear yard only. No equipment may be located closer than ten feet to any lot line when located in a residential district. Outside activities shall be restricted to daylight hours.
9. For all family group day/night care homes off-street parking as required by article V of this ordinance must be met, unless otherwise specified in this ordinance. Spaces must not be located in the required front yard and must be improved with a suitable hard surface permanent type of pavement. A site plan indicating the required parking shall be submitted for approval by the department of planning, engineering and permits.

(Ord. No. 94-66, § I, 4-5-1994)

Subsection 6. *Child care centers.*

1. Off-street parking as required by article V of this ordinance must be met, unless otherwise specified in this ordinance. A site plan indicating the required parking shall be submitted for approval by the department of planning, engineering and permits.
2. When located in a residential district signage shall not exceed 18 square feet in area and no ground sign shall exceed four feet in height. All signage shall be lighted with only indirect, nonintermittent light. All signage shall be subject to approval by the department of planning, engineering and permits.
3. Required off-street pick-up/drop off site plan must be submitted for approval by the department of traffic engineering and the department of planning, engineering and permits.
4. When located in a residential district, playground equipment shall:
   (a) Be restricted to the rear yard;
   (b) Occupy no more than 30 percent of the required rear yard; and
   (c) Not be nearer than ten feet to any lot line.
5. When located in a nonresidential district, playground equipment shall:
   (a) Be in a rear or side yard;

(b) Occupy no more than 30 percent of the required yard; and

(c) Be no closer than three feet to any side or rear lot line, except when adjacent to a residential zone district, in which case playground equipment shall be no closer than ten feet to any lot line.

6. No child care center shall be permitted to be located in a multiple-family dwelling unit.

7. When located in or abutting residential districts or where considered by zoning board of adjustment, hours of operation may be limited by zoning board of adjustment.

(Ord. No. 94-66, § I, 4-5-1994)

Subsection 7. *Child care centers as an accessory use.*

1. No additional off-street parking is required, however primary use parking requirements must be met.

2. No additional signs shall be permitted for the accessory use.

3. Required off-street pick-up/drop-off site plan must be approved by department of traffic engineering and department of planning, engineering and permits.

4. When located in a residential district, the accessory use child care center must be contained within the primary structure or within another structure on the same lot as the primary structure, except as provided herein.

5. An accessory use child care center shall not be permitted in a residential structure.

6. No accessory use child care center shall be used as a residential dwelling.

7. When located in a residential district, playground equipment shall:

(a) Be restricted to the rear yard;

(b) Occupy no more than 30 percent of the required rear yard; and

(c) Not be nearer than ten feet to any lot line.

8. When located in a nonresidential district, playground equipment shall:

(a) Be in a rear or side yard;

(b) Occupy no more than 30 percent of the required yard; and

(c) Be no closer than three feet to any side or rear lot line, except, when adjacent to a residential zone district, in which case playground equipment shall be no closer than ten feet to any lot line.

9. When located in or abutting residential districts or where considered by zoning board of adjustment, hours of operation may be limited by zoning board of adjustment.

(Ord. No. 94-66, § I, 4-5-1994)

Subsection 8. *Adult care center.*

1. Off-street parking as required by article V of this ordinance must be met, unless otherwise specified in this ordinance. A site plan indicating the required parking shall be submitted for approval by the department of planning, engineering and permits.
2. When located in a residential district, no identification signs shall be permitted.
3. Required off-street pick-up/drop-off site plan must be approved by department of traffic engineering and department of planning, engineering and permits.
4. When located in or abutting residential districts or where considered by zoning board of adjustment, hours of operation may be limited by zoning board of adjustment.
5. Each adult care facility shall have 50 square feet of usable space for each adult being kept and cared for in the facility. Areas in the facility not considered in the calculation of usable space are kitchens, bathrooms, isolation rooms, halls or passageways, stairs and stairways, offices, and storage areas.
6. There shall be not less than one caregiver for each six adults under care in each adult care facility.
7. No adult care facility shall be permitted to be located in a multiple-family dwelling unit.

(Ord. No. 94-66, § I, 4-5-1994)

Subsection 9. *Penalties.* Any agency, association, organization, person, or group of persons, whether established for financial gain or otherwise regularly providing care for children or adults within the City of Birmingham shall be responsible for compliance with this section. Any failure or refusal to comply with this section shall be a violation and punished as provided in article VII, section 4 of this ordinance.
(Ord. No. 94-66, § I, 4-5-1994)

Section 18. Wireless communications facilities.

Subsection 1. *Purpose.* The purpose of the regulations contained within this section is to protect the public health, safety, and welfare by establishing minimum locational requirements, siting criteria and development standards for wireless communications facilities, in accordance with section 704(a) of the Federal Telecommunications Act of 1996, as amended. The impact of these regulations is consistent with the objectives of the Federal Telecommunications Act of 1996 (the Act) to accommodate quality telecommunications services for consumers at competitive pricing, encourage the rapid deployment of new technologies, and promote competition within a framework of minimum necessary regulation. As authorized by the Act, the city finds it necessary to enact and enforce these minimum standards. These standards are designed to: assure safety; ensure compatibility with adjacent land uses; preserve the character of

community design; protect revitalization and redevelopment areas, historic districts, and other like areas of considerable city investment; avoid adverse visual impacts to the city landscape; and discourage unnecessary proliferation of wireless facilities. It is the express intent of this section that the construction of new communication towers be an option of last resort. To the extent feasible, collocation of antennas on existing towers and their attachment to building rooftops and other suitable structures should first be sought. However, where new tower construction is found absolutely necessary, compatible design measures, such as monopole towers at reduced heights, camouflaging techniques, and screening should be instituted to minimize detrimental effects to the community aesthetic standards.
(Ord. No. 97-77, § 1(art. VI, § 18, subsec. 1), 6-24-1997)

Subsection 2. *Definitions.* Certain terms used in this ordinance shall have the meanings defined by this subsection. In the event a term is not listed in this subsection or is not defined elsewhere in this zoning ordinance, the conventional meaning of the term shall apply. The director is authorized to make a final determination of the meaning of any term used in this section, and, in case of any dispute, an appeal of the director's determination may be filed with the zoning board of adjustment in accordance with article VIII.

1. *Act.* The Federal Telecommunications Act of 1996, as amended.

2. *Collocation.* The placement of more than one communications antenna by more than one wireless communications service provider on a single communications tower.

3. *Communications antenna.* A device used to transmit and/or receive wireless communications services as authorized by the Federal Communications Commission (FCC), including all mounts and supporting structures other than supporting communications towers. For the purpose of this section, a communications antennae shall be classified by the director into one of the following types:

    a. *Microwave dish antenna.* Parabolic antennas that emit microwave signals.

    b. *Panel antenna.* Vertical and horizontal plane antennas that aim radio signals in specific directions. Also referred to as a sector antenna.

    c. *Whip antenna.* Cylindrical antennas which emit radio signals in a 360-degree horizontal plane and a compressed vertical plane. Also referred to as a stick, omni directional, or pipe antenna.

4. *Communications engineer.* Such registered professional engineer(s) qualified in the design and installation of wireless communications facilities and appointed from time-to-time by the mayor to advise and assist in the technical engineering aspects of the administration and enforcement of this section.

5. *Communications tower.* Any ground-mounted structure that is designed and constructed primarily for the purpose of supporting one or more antennas. For the purpose of this section, a communications tower shall be classified by the director into one of the following structural types:
   a. *Guyed tower.* A communications tower anchored with guy wires.
   b. *Lattice tower.* A self-supporting communications tower with three or more sides of open-framed supports.
   c. *Monopole tower.* A cylindrical self-supporting communications tower constructed as a single spire.
   d. *Camouflaged tower.* A self-supporting communications tower concealed to resemble an object that blends with its surroundings, such as, by way of example but not limitation, a communications tower concealed to resemble a pine tree within a wooded setting, a street lamp, a lookout tower, a clock tower, or a light post on an athletic field.
6. *Communications tower, temporary.* A transportable communications tower operating temporarily to accommodate special circumstances or in conjunction with a special event. Also referred to as a COW, cellular on wheels or communications on wheels.
7. *Compound.* A land parcel or that area of a land parcel set aside by lease agreement or easement and developed for a communications tower or commercial satellite facility and accessory buildings, structures, and equipment. Typically, the compound is demarcated by a fence and may include a landscape screen or wooded preserve surrounding the enclosure, all within the compound.
8. *Design review committee.* A committee established by [section 7-1-385 of this Code], as amended, and charged, among other duties, with the review of the urban design elements of all proposed wireless communications facilities within designated commercial revitalization and redevelopment districts, local historic districts, and other areas and sites where design review committee approval is required by this section.
9. *Director.* The director of the department of planning, engineering and permits or that person(s) charged by the director to administer and enforce the provisions of this section.
10. *Dispatch communications.* Internal private communication services between a fixed base radio station and mobile units not intended for transmission to the general public and not conducted for a profit.
11. *Engineer.* A registered professional engineer qualified in the design and installation of wireless communications facilities.
12. *FAA.* The Federal Aviation Administration.

13. *FCC.* The Federal Communications Commission.
14. *Height.* When referring to a communications tower or ground-mounted commercial satellite facility, the distance measured from the structure's lowest elevation at grade to the highest point of the structure and any projections from the structure; except a lightning rod of six or less feet shall not be included in determining the height of the structure. When referring to a communications antenna or commercial satellite facility mounted to the roof of a building, the distance measured from the top roof line to the top of the antenna.
15. *Multifamily complex.* For the purpose of this section, a tract of five or more acres planned and developed as an integral unit under single ownership or control, consisting of three or more buildings of multiple-family dwellings for individual lease or sale.
16. *Protected residential lot.* A subdivided lot used, planned, or clearly intended for residential use other than a multifamily complex, as defined by this section, regardless of zoning classification, or a vacant lot zoned residential.
17. *Public utilities.* Essential services to the public at-large, including water, sewer, telephone (except wireless), electricity, natural gas, and other services regulated by the Alabama Public Service Commission as a public utility, but excluding cable TV, radio, television, and any public utility operation of a wireless communications facility for a profit.
18. *Roof line, bottom.* A line which joins the vertical plane of a building face with the lowest horizontal member of the roof of a building.
19. *Roof line, top.* A horizontal line above which no roof surface on a building projects, excluding equipment, service penthouses and other structures mounted to a roof.
20. *Stealth concealment.* The creative application of construction techniques designed to minimize the visual impact of communications towers, antennas, commercial satellite facilities, and accessory buildings and structures. Stealth concealment may include, but not be limited to such measures as, architecturally compatible screening shields around a roof top antenna facility, specially finished antenna panels affixed to a building wall, the design of an equipment shelter to resemble a garage or household storage building, or a church steeple, spire, or clock tower enclosing antennas mounted to a building.
21. *Wireless communications facilities.* For the purpose of this section, wireless communications facilities shall be classified by the director into one of the following functional use classifications:
    a. *Broadcast facilities.* Transmission towers, relay towers, and accessory facilities used to transmit AM and FM radio signals, VHF and UHF television (TVBS) signals, wireless cable (MMDS) signals, and similar broadcast services.

b. *Cellular communications facilities.* Low-powered transmitters used to transmit signals in a cell for cellular radiotelephone services (cellular phones), personal communications services (PCS), enhanced specialized mobile radio (ESMR), trunk mobile cellular radio, paging services, and similar cellular-based communications services to the general public.

c. *Commercial satellite facilities.* Satellite earth stations which are greater than two meters in diameter and used to send and/or receive satellite signals and similar communications services.

d. *Microwave relay facilities.* Facilities used to transmit radio signals between two or more fixed points by microwave antennas and similar transmission services.

e. *Two-way radio facilities.* Fixed base stations used to communicate with mobile units or multiple points and similar radio transmission services.

(Ord. No. 97-77, § 1(art. VI, § 18, subsec. 2), 6-24-1997)

Subsection 3. *Exemptions.*

1. *Federally mandated exemptions.* The following wireless communications facilities shall be exempt from the requirements of this section, in accordance with the Federal Telecommunications Act of 1996; provided, however, such facilities may be subject to other provisions of this zoning ordinance, building and technical codes, and related parts of the city Code:

   a. Amateur radio service antennas (HAMS), provided such antennas where accessory to a residential use shall not exceed 25 feet above the established height of the zoning district.

   b. Satellite earth station antennas that are one meter or less in diameter and designed to receive direct broadcast satellite services (DBS), including direct-to-home satellite services.

   c. Antennas which receive signals from television broadcast stations (TVBS) or antennas that are one meter or less in diameter or diagonal measurement and are designed to receive wireless cable services via multi-channel multipoint distribution service providers (MMDS), provided such antennas shall not exceed 25 feet above the established height of the zoning district.

   d. Satellite earth station antennas which are two meters or less in diameter and located in any area zoned to generally permit commercial or industrial uses.

2. *Additional exemptions.* The following wireless communications facilities shall be exempt from the requirements of this section, except as noted. Such facilities shall not be exempt from the requirements of subsection 4, Prohibitions; the height limitations in subsection 6, District Use and Height Regulations; subsection 8, Required Permits and Approvals; and other applicable

provisions of this zoning ordinance, the building and technical codes, and related parts of the city Code. These facilities shall only be permitted by administrative review and approval as an accessory structure that is subordinate and incidental to an approved nonresidential use on the same parcel. An application to develop a wireless communications facility, as provided for in this section, may be required.

a. Accessory facilities used exclusively for dispatch communications by public emergency agencies.

b. Accessory facilities used exclusively for dispatch communications by government agencies.

c. Accessory facilities used exclusively for dispatch communications by private providers, provided such facilities do not exceed 15 feet in height where mounted to a building roof top or 20 feet in height where ground mounted. Further, such facilities shall not bear advertising or be lighted.

d. Facilities, such as supervisory control and data acquisition (SCADA) or distribution automation (DA) facilities, exclusively used by public utilities (as defined by this section) for monitoring and controlling the operation of public utility systems, where accessory to a permitted public utility installation, provided such facilities do not exceed 20 feet in height where mounted to a building roof top or other structure or 60 feet in height where ground mounted.

(Ord. No. 97-77, § 1(art. VI, § 18, subsec. 3), 6-24-1997)

Subsection 4. *Prohibitions.* Except as provided for in subsection 3-1, federally mandated exemptions, all wireless communications facilities shall be subject to the following prohibitions:

1. *Lattice tower prohibition.* Ground-mounted lattice towers exceeding 40 feet in height shall be prohibited throughout the city.

2. *Protected residential lot prohibition.* No communications tower, commercial satellite facility, broadcasting facility, or two-way radio facility shall be permitted on a protected residential lot, as defined by this section.

3. *Dwelling prohibition.* No communications antenna shall be attached to a one- or two-family dwelling or any other dwelling of less than 50 feet in height.

4. *Antenna height prohibition.* No communications antenna exceeding 20 feet in height shall be mounted to the roof of a building.

(Ord. No. 97-77, § 1(art. VI, § 18, subsec. 4), 6-24-1997)

Subsection 5. *Requirements applicable to all wireless communications facilities.*

1. *FCC and FAA approvals.* No permit shall be approved for a wireless communications facility without first obtaining written approvals from the FCC and FAA, if required by federal law. Copies of notices to and responses from the

FCC and FAA shall be submitted with the permit application. Should the FCC or FAA not require approval, the permit applicant shall submit an engineer's certification that no such approval is required.

2. *Birmingham Airport Authority approval.* All wireless communications facilities located within an airport height control zone or all facilities higher than 200 feet above grade (regardless of location within or outside an airport height control zone) shall obtain written approval from the Birmingham Airport Authority stating that the proposed facility is in compliance with article VI, section 13, additional height regulations in vicinity of municipal airport of this zoning ordinance, and does not interfere with the orderly implementation of the long-range airport master plan. All other facilities of less than 200 [feet] above grade shall require an engineer's certification that the proposed facility lies outside of the airport height control zones.

3. *Radio frequency (RF) emissions.* Wireless communications facilities subject to FCC standards governing radio frequency emissions shall require an engineer's certification of compliance with current FCC emission standards, before a permit may be approved.

4. *Environmental effects.* The development of any wireless communications facility shall fully comply with the most current provisions of the National Environmental Policy Act of 1969 (NEPA), as currently implemented by the FCC. The applicant for a permit to develop a facility shall evaluate a proposed site to determine possible significant impact on environmentally-sensitive areas. Should a development have an environmental impact, an environmental assessment (EA) shall be prepared and filed with the FCC for approval. A copy of the EA shall also be submitted to the director for comment to the FCC. No permit to construct a facility shall be approved unless the applicant submits an FCC-approved EA with the permit application. Should an EA not be required, the permit application shall include an engineer's certification that a thorough investigation has determined no possible significant environmental impact.

5. *Historic preservation.* No communications tower or ground-mounted commercial satellite facility shall be located within 200 feet of a locally or nationally-designated historic district or any individual property listed on the National Register of Historic Districts and Places. Permitted communications antennas and commercial satellite facilities mounted to an individually-listed historic building or any building (contributing and noncontributing) within a locally or nationally-designated historic district shall be subject to approval of the proposed design by the design review committee (DRC), in addition to other approvals required by the district use regulations. The DRC may approve, deny, or modify the proposed design to best achieve the historic preservation objectives for the particular location. Stealth concealment of antennas may be required by the design review committee. This provision extends the authority

of the design review committee to apply design review to wireless communications facilities proposed for historic districts and individual property listings on the National Register of Historic Districts and Places.

6. *Construction and safety standards.* All towers and antennas shall comply with wind loading and other structural standards contained in applicable building and technical codes, industry codes, and manufacturer standards so as not to endanger the health and safety of residents, employees or travelers in the event of structural failure due to extreme weather conditions or other acts of God.

7. *Required yards and setbacks.* All ground-mounted facilities shall meet the following yard and setback requirements:

   a. *District yard requirements.* No compound, guy anchor, tower, or commercial satellite facility shall be permitted, except in accordance with the yards required by the zoning district. The following rules shall be followed for measuring setbacks to comply with district yard requirements:

      (1) Setbacks for communications towers shall be measured from the compound fence line to the property line or, in the absence of a compound, from the perimeter of the area dedicated to the tower and equipment to the property line.

      (2) Setbacks for guy anchors shall be measured from the guy anchor to the property line.

      (3) Setbacks for commercial satellite facilities shall be measured from the edge of the satellite dish facility or the compound fence, whichever is greater, to the property line.

   b. *Additional setback requirements.* In addition to the district yard requirements, all ground-mounted facilities shall meet the following additional setback requirements, whichever result in a greater setback:

      (1) Communications towers shall be set back from all property lines to a distance equal to at least one foot of setback for each four feet of tower height, as measured from the center of the tower base to the property line.

      (2) Communications towers shall be set back at least 200 feet from a protected residential lot, as measured from the center of the tower base to the property line.

      (3) No compound, communications tower, or commercial satellite facility shall be permitted between a front building line and a street line.

   c. *Leased lot provisions.* If a facility is proposed to be placed on a leased portion of a larger lot owned by someone other than the facility owner,

setbacks shall be measured from the boundaries of the larger lot. A leased lot shall not be subdivided except in accordance with the yard and setback requirements of this section.

8. *Finish.* Painted communications towers shall be limited to gray-toned colors. For unpainted towers, the finish shall be a hot-dipped, noncorrosive, galvanized steel finish or a gray-toned, weather-resistant, treated concrete finish, except where other markings are required by the FAA for safety purposes. Likewise, communications antennas shall be gray-toned, unless otherwise required. Written evidence of required markings shall be submitted with the permit application. Satellite dishes may be painted white, black, gray, beige, or similar neutral color that most effectively blends the facility within its environs.

9. *Lighting.* Communications towers, antennas, and commercial satellite facilities shall not be artificially lighted unless required by the FAA for safety purposes. Where required, dual lighting (red at night/strobe during day) shall be installed unless restricted by the FAA. Written evidence of required lighting shall be submitted with the permit application.

10. *Security.* Each facility compound shall be fully secured. A minimum six feet high, galvanized steel or vinyl-covered, chain link fence shall be installed to secure the compound. The fence may be topped with barbed or razor wire, provided the overall height does not exceed eight feet total. Other security measures may include locks, alarms, postings, and low-intensity security lighting (maximum equivalent to a 150 watt bulb).

11. *Access.* A driveway of ten feet minimum width shall provide vehicular access to a facility compound for maintenance or emergency services. One parking space shall be provided. Where available, parking and access may be from an adjoining alley, public street, or off-street parking lot. Driveway and parking surfaces shall be stabilized and dust-free but need not be hard-surfaced.

12. *Signs.* No advertising signs shall be permitted on any facility; however, warning signs, emergency contact information signs, and signs announcing space available for collocation may be posted on all compounds. Such permitted signs shall not be illuminated and not exceed six square feet in area per sign and eight feet in height above grade.

13. *Equipment and service structures.*

    a. *Ground-mounted facilities.*

        (1) All ground-mounted utility buildings and structures shall, to the extent possible, maximize use of building materials, colors, and textures that effectively blend within the surrounding natural setting and built environment, as determined by the director.

(2) All equipment and service buildings within the compound shall be unmanned. Location of occupied buildings outside of a compound shall be regulated by the zoning district location. Broadcasting facilities shall be allowed to have studios.

(3) In the case of a camouflaged tower compound, stealth concealment shall be maximized to achieve visual compatibility.

b. *Roof-mounted facilities.*

(1) Where deemed necessary by the director to protect public views, equipment and service structures mounted to a building roof top shall be screened from ground-level views or enclosed within the building.

(2) Where feasible, alternative stealth concealment that achieves architectural compatibility and protects public views may be approved by the director.

14. *Screening.*

a. *Communications antennas.* All communications antennas and commercial satellite facilities attached to a building or structure (other than a communications tower) shall be situated so as to minimize visibility and, to the extent feasible, architecturally blend with the building design, through the use of screening, colors, material finishes, and, as the case may require, stealth concealment, as determined by the director.

b. *Facility compound.* In general, the design of a compound shall, to the extent possible, maximize use of building materials, colors, textures, screening, and landscaping that effectively blend the facility within the surrounding natural setting and built environment. To achieve visual compatibility, all compounds shall be fully screened at ground-level views from adjacent properties and public street rights-of-way, as determined by the director according to the following standards:

(1) *Standard screening method.* Screening shall be installed and maintained within a minimum six feet wide landscaped buffer strip along the perimeter of the compound, except access areas. Security fencing shall be screened to its full height, eight feet or less, by a decay-resistant, solid wood fence; earth berms and brick or masonry walls may be substitute screens. The buffer strip shall be planted with an attractive combination of trees, shrubs, vines, and/or ground covers that enhance the outward appearance of the screening fence. At minimum, the landscaped buffer shall be planted with a row of evergreen:

(a) Trees, eight feet or greater height at planting, spaced 20 feet on center or less;

(b) Shrubs, 24 inches or greater height at planting, spaced three feet on center or less.

Remaining areas of the buffer shall be planted with any combination of ground covers, vines, and mulched beds.

(2) *Preservation of natural screening.* Existing mature tree growth and natural land forms on the site shall be preserved to the maximum extent possible. Towers sited on large, wooded lots, shall preserve substantial natural growth around the property perimeter to form a sufficient screen from surrounding off-site views.

(3) *Reduced or modified screening method.*

(a) In isolated areas of intensive development of heavy commercial and industrial uses, reduced or modified screening methods shall include the use of earth-toned colored, vinyl-coated steel security fencing in combination with evergreen shrubs, trees, vines, and/or other plantings necessary to achieve visual protection from surrounding off-site views, as determined by the director.

(b) In certain remote locations where the facility cannot be seen beyond the property lines, such as remote, agricultural or rural locations, standard screening may be waived by the director, provided a natural screen is preserved, as described above in (2), preservation of natural screening.

(c) Screening may be waived or modified by the director to allow the creative application of stealth concealment that most effectively blends the facility within the surrounding natural setting and built environment and best achieves visual compatibility.

(4) *Installation, maintenance and bonding.*

(a) A required screening fence shall be installed before communications operations begin. Required plantings shall be installed within 30 days of the beginning of the next seasonal planting opportunity or within six months of permit approval, whichever comes first. All required plants shall be xeriscape tolerant. Screening shall be continuously maintained. Any dead, missing, or unhealthy plants shall be replanted at the next seasonal planting opportunity, and broken or decaying fencing shall be replaced.

(b) The director shall require surety bonds in an amount equal to 115 percent of the estimated cost of completion of the required plantings as assurance for installation and maintenance. It shall be the responsibility of the owner to obtain and maintain the bond continuously until released by the director. The bond

shall remain in effect for a period of two years from the date of permit approval and shall then be released by the director to the owner, provided all plantings have been installed and maintained as required. In the case of single ownership of multiple facilities, the owner may obtain a blanket bond to guarantee the installation and maintenance of all facilities under the same ownership and subject to bonding. The bond shall be provided by a bonding company licensed and registered in the State of Alabama. In lieu of a surety bond, the owner may file a cash bond or instrument of credit with the director in an amount equal to that which would be required in the surety bond.

(Ord. No. 97-77, § 1(art. VI, § 18, subsec. 5), 6-24-1997)

Subsection 6. *District use and height regulations.* Unless otherwise provided by other applicable provisions of this section, the regulations of this subsection shall govern the location and height of wireless communications facilities within the various zoning districts.

1. *Cellular communications, microwave relay and two-way radio facilities.*

   A. *Districts use regulations.*

      (1) *Permitted communications towers.*

         (a) Permitted by administrative review and approval in the following districts: B-2, B-3, B-5, PRD, M-1, M-1A, M-2, M-3, M-4, MXD/E, and A-1 districts.

         (b) Permitted by special exception granted by the zoning board of adjustment in the following districts: E-1, R-1, R-2, R-3, R-4, R-4A, R-5, R-6, R-7, R-8, O&I, B-1, B-6, A-2, HZD, and MXD/R districts.

         (c) Cellular communications facilities shall be restricted to monopole and camouflaged towers where communications towers are approved for the district location.

         (d) Microwave relay towers under 120 feet in height shall be restricted to monopole and camouflaged towers where communications towers are approved for the district location. Such towers greater than 120 feet in height may include guyed towers upon an engineer's certification of the structural necessity of a guyed tower (cost shall not be a consideration).

         (e) Two-way radio facilities 40 feet or greater in height shall be restricted to guyed, monopole and camouflaged towers where communications towers are approved for the district location. Towers under 40 feet in height may be lattice towers.

         (f) Communications towers located in the area designated "service commercial" by the city center master plan shall be permitted by

administrative review and approval and shall be prohibited in all other downtown master plan designations, regardless of zoning designation.

(g) The director may, in consultation with the director of communications, approve under special circumstances a permit for a temporary communications tower or COW (cellular on wheels) for a cellular communications facility where permitted in a zoning district by administrative review and approval. When operating during a publicly-recognized special event approved by the director, such tower may be installed up to 72 hours before the event begins and shall be removed within 72 hours after the event ends. If the COW installation is not associated with a special event, the maximum period that may be approved for a location shall be not more than 30 days in any given calendar year. The COW shall be fully transportable, not permanently affixed to the ground or a structure. The temporary tower shall, at minimum, comply with the district use and height regulations and setback and lighting requirements of this section, in addition to applicable building and technical codes and FCC, FAA, and Birmingham Airport Authority approvals.

(2) *Permitted communications antennas.*

(a) Permitted by administrative review and approval in all districts, under the following conditions:

i. Attached to an existing communications tower.

ii. Attached to a building.

iii. Attached to a water tower.

iv. Attached to a permitted billboard.

(b) Permitted by special exception granted by the zoning board of adjustment where attached to a structure other than an existing communications tower, building, water tower, or permitted billboard.

B. *Height limitations.*

(1) *Communications towers.* Communications towers shall be limited in height according to zoning district location, as follows:

(a) 60 feet in height when located in the E-1, R-1, R-2, R-3, R-4, R-4A, R-5, R-6, R-7, R-8, O&I, B-1, B-6, A-2, HZD and MXD/R districts, except camouflaged towers may be granted up to a 20 feet height bonus (80 feet maximum height) upon approval of visual compatibility by the director;

(b) 120 feet in height when located in the B-2, B-3, B-5, PRD, M-1, M-3 and MXD/E districts;

(c) 200 feet in height when located in the M-1A, M-2, M-4 and A-1 districts;

(d) Communications towers located in the area designated "service commercial" by the city center master plan shall be restricted to a 120 feet maximum height, regardless of zoning designation.

(2) *Communications antennas.* The maximum height of all communications antennas shall be determined by the building or structure on which the antennas are attached, as follows:

(a) 20 feet above the top roof line where mounted to the roof top of a building;

(b) The bottom roof line where a panel antenna is attached to a building face;

(c) Ten feet above the top of a sign face where attached to a billboard;

(d) Except as provided in (a), (b) and (c) above, the highest point of any other structure to which an antenna is attached.

2. *Commercial satellite facilities.*

A. *Districts use regulations.*

(1) Permitted by administrative review and approval in the following districts: B-2, B-3, B-4, B-5, B-6, O&I, PRD, M-1, M-1A, M-2, M-3, M-4, MXD/E and A-1 districts.

(2) Permitted by special exception granted by the zoning board of adjustment in the following districts: E-1, R-1, R-2, R-3, R-4, R-4A, R-5, R-6, R-7, R-8, B-1, A-2, HZD and MXD/R districts.

B. *Height limitations.* The maximum height of all commercial satellite facilities within all zoning districts shall be 15 feet if mounted to the roof top of a building and 20 feet if ground mounted.

3. *Requirements for broadcast facilities.*

A. *Districts use regulations.*

(1) *Permitted communications towers.*

(a) Permitted by special exception granted by the zoning board of adjustment in the following districts: B-5, PRD, M-1, M-1A, M-2, M-3, M-4, MXD/E and A-1 districts.

(b) To the furthest possible extent, broadcast facilities shall be restricted to remote, isolated locations not visible at ground view from surrounding properties and rights-of-way, as determined by the zoning board of adjustment.

(c) Communications towers for broadcast facilities shall be restricted to monopole and guyed towers.

(2) *Permitted communications antennas.* Permitted by right granted by administrative review and approval in all districts where attached to an existing communications tower.

(3) *Broadcasting studios permitted.* Broadcasting facilities shall also be permitted to have studios where a broadcasting facility has been approved by the zoning board of adjustment.

B. *Height limitations.* The maximum height of communications towers for broadcast facilities shall be determined on a case-by-case basis by an engineer's certification of necessary height required to achieve the proposed broadcast coverage.

(Ord. No. 97-77, § 1(art. VI, § 18, subsec. 6), 6-24-1997)

Subsection 7. *Collocation requirements.* All communications towers of 60 or more feet in height shall comply with the requirements of this subsection which are intended to encourage collocation.

1. *Shared use design.* Communication towers shall be designed to maximize shared use to the extent possible, given the structural and technical limitations of the type of tower proposed. Each tower of 60 or more feet in height shall, at a minimum, be designed for double its initially-intended use for all transmitting and receiving antennas other than microwave dish antennas. Towers 120 feet or greater in height shall be designed for triple use. Towers must be designed to allow for future rearrangement of antennas upon the tower and to accept antennas mounted at varying heights. The tower compound shall be planned for future expansion to accommodate the maximum number of shared users. An engineer shall certify compliance with these shared use design standards.

2. *Justification for new tower installation.*

   a. No new communications tower shall be installed if space is structurally and technically available for the proposed communication antennas and equipment on an existing tower or alternative site of a building or other structure, and the alternative location would cover the required area without undue signal interference.

   b. A proposal for a new tower shall be accompanied by a study prepared by an engineer that includes, at a minimum, a coverage analysis depicted on a map along with an inventory and evaluation of existing towers and alternative sites considered. The coverage analysis and inventory shall extend to a radius which varies according to the proposed tower height, as shown below:

Tower height less than 80 feet	½-mile radius

Tower height 90 to 120 feet	1-mile radius
Tower height 121 to 160 feet	1½-mile radius
Tower height greater than 160 feet	2-mile radius

c. An engineer shall certify that study results (required by b above) conclude that the system design and engineering requirements of the proposed antennas and equipment cannot be accommodated on any existing tower or alternative site (building or structure) inventoried within the study radius due to one or more of the following justifications:

(1) No existing tower or alternative site would be of sufficient height to meet the proposed coverage requirements, and the placement of multiple antennas at lower heights could not achieve the same level of service.

(2) No existing tower or alternative site is of sufficient structural strength to support the proposed antennas and equipment, and reinforcing or replacing an existing facility is not feasible.

(3) Alternative locations would cause undue radio frequency or other signal interference problems.

(4) An affidavit by the applicant assures that the owner of the alternative tower or site has been contacted but is unwilling to make space available for the proposed antennas and equipment, or such owner has offered available space but the terms of availability are not reasonable due to either of the following reasons, as confirmed by the director:

(i) The available space is not offered at a reasonable market lease rate, as substantiated by analysis of current market data; or

(ii) The terms of availability to build and operate the proposed facility are not commercially reasonable.

3. *Affidavit of collocation availability.* The permit application for a new communications tower installation shall include an affidavit of the provider's good faith intent to allow the collocation of communications antennas and equipment at a reasonable market lease rate and under commercially reasonable terms, provided the costs of modifying the facility for collocation are borne by the collocating provider, and the collocation would not cause undue signal interference with the initial installation.

(Ord. No. 97-77, § 1(art. VI, § 18, subsec. 7), 6-24-1997)

Subsection 8. *Required permits and approvals.*

1. *Special exception approval.*

a. *Approval authority and conditions.* Approval of a special exception by the zoning board of adjustment shall be made in accordance with article VIII.

The board may attach such conditions for approval as it may deem necessary in the particular case to protect the public interest and the purpose of this section.

b. *Board review criteria.* In acting upon an application for special exception approval, the board shall duly consider the purpose of this section and the following applicable review criteria, considering the unique construction and transmission requirements of each facility:

(1) *View protection.* The proposed facility design would not create materially adverse visual impacts to surrounding properties, the public right-of-way and distant vistas.

(2) *Land use compatibility.* The proposed facility would not interfere with the use and enjoyment of surrounding lands, both existing and future, and would fit the character of land use and development at the proposed location.

(3) *Design harmony.* The proposed facility design would not disturb the harmony of natural settings and surrounding development patterns.

(4) *Technical justification.* Sufficient technical evidence justifies the proposed facility location and design as a preferred alternative to achieve the necessary service coverage. If the facility is proposed for a residential zoning location, technical necessity prevents location in a nonresidential zone.

c. *Application requirements.* The following submittals, as the board deems applicable to its review of the proposal, shall supplement a zoning board of adjustment application for special exception approval:

(1) *Statement of consistency.* A statement explaining consistency of the proposal with the purpose of this section and the board review criteria.

(2) *Conceptual site plan.* A conceptual site plan showing the facility layout and location on the proposed site, including location and dimensions of all improvements, setbacks, access, security installations, screening, and such other information necessary to assess general compliance with the development standards required by this section and consistency with the board review criteria.

(3) *Topographic vicinity map.* A current USGS quadrangle sheet (1:24,000), or equivalent, showing the proposed site location and a two-mile radius with areas that the facility is visible and residential areas within the visibility areas highlighted.

(4) *Elevation.* An elevation of the facility, showing type, height, finish, lighting, site improvements, and such other details necessary to convey an image of the facility at the proposed location.

(5) *Visual impact analysis.* Photo simulations or drawings showing the visual impact from distant viewpoints.

(6) *Justification for new tower installation.* Coverage analysis and study by an engineer, as described in this section, certifying that the system design and engineering requirements of the facility cannot be accommodated on any existing tower or alternative site within the required study radius.

(7) *Engineer's certification.* An engineer shall certify that the proposed facility will be designed in full compliance with the structural, environmental, safety, dimensional, design, and all other applicable technical standards required by this section and other applicable local, state, and federal laws. A communications tower for a broadcast facility shall require an engineer's certification of height requirements.

d. *Board action and record.* The zoning board of adjustment may act to approve, modify, or deny an application within a reasonable time period, in accordance with the adopted rules of procedure of the zoning board of adjustment, as amended. In the case of modification or denial, the board shall prepare a written record of its denial or modifications, including reasons for the action. A copy of such record shall be sent by the director to the applicant within a reasonable time period following the board action to modify or deny the application.

e. *Reimbursement of technical review costs incurred by city.* Any reasonable costs incurred not to exceed $1,500.00 for the communications engineer's review and recommendation on an application shall be reimbursed by the applicant to the city. Any special exception application for a new communications tower of 60 or more feet in height may, at the director's discretion, be referred to the communications engineer for review and report of recommendations. All such applications shall include an escrow fee in the amount of $500.00. Within 30 days after the board acts on a special exception, the city shall reimburse the applicant for any excess escrow amount or, where the escrow does not cover the full costs of the communications engineer's review and report, the applicant shall reimburse the city for the shortage before the board conducts a hearing. In no event shall an applicant be obligated to reimburse the city more than $1,500.00 per application despite multiple approvals (i.e., special exception, variance and administrative approvals) that may be required by a single application for the same proposal.

2. *Administrative review and approval.* All building permit applications for new facilities and modifications to existing facilities shall be subject to administra-

tive review and approval in compliance with the requirements of this section. The following submittals, as the director deems applicable to administrative review, shall be required:

a. *Application to develop a wireless communications facility.* The applicant shall complete an application form prepared and made available by the director and submit two copies of such application and required attachments as a supplement to an application for a building permit.

b. *Required attachments.* The applicant shall submit the following attachments to the permit application, as the director deems applicable:

(1) Site plan, prepared by an engineer, fully dimensioned and drawn to scale, showing complete facility installation details, including but not limited to, property lines, lease lot lines, adjoining rights-of-way, easements, layout and location of all existing and proposed improvements, buildings, structures, mechanical and electrical equipment, setbacks, access, parking, security installations, signs, screening, landscape details, and such other detailed information necessary to assess full compliance with the development standards required by this section.

(2) Construction plans, specifications, and details, prepared by an engineer, as required by the building permit, including such additional information necessary to assess full compliance with the design and construction standards of this section, such as but not limited to, details on facility height, finish, and lighting.

(3) Engineer certifications, as required by this section:

(a) FCC and FAA approvals (include copy of notices and responses) or, should FCC or FAA not require approval, certification that no approval is required (see subsection 5-1).

(b) Birmingham Airport Authority approval for facilities located within an airport height control zone or exceeding 200 feet above grade (include copy of approval letter) or, for facilities under 200 feet above grade, an engineer's certification that the facility is not located within an airport height zone (see subsection 5-2).

(c) Compliance with current FCC radio frequency emission standards (see subsection 5-3).

(d) Compliance with FCC environmental assessment requirements (include copy of FCC-approved EA), or if not required, certification that a thorough investigation has determined no possible significant environmental impact (see subsection 5-4).

(e) Compliance with wind loading and other construction and safety standards contained in applicable building codes, technical codes, industry codes, and manufacturer standards (see subsection 5-6).

(f) Compliance with required lighting or markings by the FAA (see subsections 5-9 and 5-10).

(g) Structural necessity of a guyed tower for a microwave relay facility (see subsection 6-1-a(1)(d)).

(h) Shared use design (see subsection 7-1).

(i) Coverage analysis study and certification that the proposed facility cannot be accommodated on any existing tower or alternative site evaluated in the study radius (see subsection 7-2).

(4) Affidavits and other submittals, as required by this section:

(a) Applicant's affidavit that the owner of a feasible tower or site is unwilling to make space available for collocation or attachment (see subsection 7-2c(4)).

(b) Provider's affidavit of good faith intent to allow collocation (see subsection 7-3).

(c) Evidence of liability insurance required by city Code.

c. *Administrative action and record.* The director shall act to approve or deny a permit application within a reasonable time period following submission of a completed application. In the case of denial, the director shall prepare a written record of denial, including reasons for the action. A copy of such record shall be sent by the director to the applicant within a reasonable time period following the administrative action to deny the application.

d. *Reimbursement of technical review costs incurred by city.* Any reasonable costs not to exceed $1,500.00 incurred for the communications engineer's review and recommendation on an application shall be reimbursed by the applicant to the city. Any permit application for a new communications tower of 60 or more feet in height may, at the director's discretion, be referred to the communications engineer for review and report of recommendations. All such applications shall include an escrow fee in the amount of $500.00. Within 30 days after a permit is issued, the city shall reimburse the applicant for any excess escrow amount or, where the escrow does not cover the full costs of the communications engineer's review and report, the applicant shall reimburse the city for the shortage before the director acts on a permit application. In no event shall an applicant be obligated to reimburse the city more than $1,500.00 per application despite multiple approvals (i.e., special exception, variance, and administrative approvals) that may be required by a single application for the same proposal.

3. *Variance justification and procedures.*

a. *Approval authority and conditions.* Approval of a variance by the zoning board of adjustment shall be made in accordance with article VIII and the

additional requirements of this section. The board may attach such conditions for approval as it may deem necessary in the particular case to protect the public interest and the purpose of this section.

b. *Variance justification.* No variance shall be approved that conflicts with the purpose of this section, considering the unique requirements of each facility, and shall only be justified in extraordinary cases where the applicant has demonstrated that owing to exceptional topographic or other unique physical conditions of a particular property, the strict application of the requirement for which a variance is sought would result in exceptional hardship or practical difficulty in the construction of the proposed facility or the transmission of communications services.

c. *Application requirements.* The following submittals, as the board deems necessary to its review of the proposal, shall supplement a zoning board of adjustment application for a variance:

(1) *Variance justification.* The applicant shall fully explain the justification for the variance in accordance with b above. The variance justification statement shall also include the following certifications by an engineer:

(a) Certification of exceptional topographic or other unique physical conditions of a particular property or coverage area.

(b) Certification of exceptional hardship or practical difficulty in the construction of the proposed facility or the transmission of communications services.

(2) *Required attachments.* The applicant shall submit the same attachments required for a special exception application by subsections 8-1.c and 8-2.b, as the board deems applicable to a thorough evaluation of the variance justification, and such other information as the zoning board of adjustment may find necessary to reach a determination on the justification for the variance.

d. *Board action and record.* The zoning board of adjustment may act to approve, modify, or deny an application within a reasonable time period, in accordance with the adopted rules of procedure of the zoning board of adjustment, as amended. In the case of modification or denial, the board shall prepare a written record of its denial or modifications, including reasons for the action. A copy of such record shall be sent by the director to the applicant within a reasonable time period following the board action to modify or deny the application.

e. *Reimbursement of technical review costs incurred by city.* Any reasonable costs not to exceed $1,500.00 incurred for the communications engineer's review and recommendation on an application shall be reimbursed by the applicant to the city. Any variance application for a new communications

tower of 60 or more feet in height may, at the director's discretion, be referred to the communications engineer for review and report of recommendations. All such applications shall include an escrow fee in the amount of $500.00. Within 30 days after the board acts on a variance, the city shall reimburse the applicant for any excess escrow amount or, where the escrow does not cover the full costs of the communications engineer's review and report, the applicant shall reimburse the city for the shortage before the board conducts a hearing. In no event shall an applicant be obligated to reimburse the city more than $1,500.00 per application despite multiple approvals (i.e., special exception, variance, and administrative approvals) that may be required by a single application for the same proposal.

4. *Required approvals; coordination of review procedures.*

   a. *Required approvals.* In addition to the approvals required that may be required by subsections 8-1 through 8-3 above, the following additional approvals may be required:

      (1) *Design review committee.* All proposed facilities located in a design review district or subject to the historic preservation standards of this section shall be subject to review and approval of design by the design review committee.

      (2) *MXD steering committee.* All proposed facilities located in an MXD-Mixed Use District shall be subject to review and approval of a development plan in accordance with article IV.

      (3) *Zoning advisory committee development plan exemption.* All facilities subject to approval of a development plan, as required in the R-8, B-5, B-6, O&I, PRD and M-3 zoning districts shall be exempt from approval of a required development plan by the zoning advisory committee. Development plan approval shall be conducted by administrative review and approval in accordance with this section.

      (4) *Special conditions for review and approval.* Facilities may be subject to special conditions for review and approval set forth by conditional approval actions of the zoning board of adjustment, zoning advisory committee, subdivision committee, or city council.

   b. *Coordination of review procedures.* No permit application for administrative review and approval shall be considered unless all other approvals required by this section have been obtained. Zoning board of adjustment action shall first be obtained prior to consideration by the design review committee or MXD steering committee.

5. *Permit to operate on city-owned property.* A request to operate a wireless communications facility on city-owned property, including city-owned rights-of-way, shall be submitted to the director on an application form approved by

the city attorney. Following review and reporting of recommendations by the director, the head of the agency or department responsible for such property, and the director of communications, the city attorney shall prepare a revocable lease or contract. Such lease or contract shall specify the standards and conditions for constructing and operating the facility using the requirements of this section as a guide. If the lease or contract is approved and executed by the city, thereafter, an application to develop a wireless communications facility may be submitted with a building permit application. The wireless facility shall be exempt from the requirements of this section, other than the prohibitions listed in subsection 4 which shall still apply. Instead, the wireless facility shall be subject to standards and conditions contained in the approved lease or contract. It shall be a violation of this section for the owner or operator of any such facility to refuse or fail to comply with the terms of the approved lease or contract. Any such failure shall subject the permit holder to revocation of any such permit issued, and the owner may be required to remove any structure built under such permit.

6. *Misrepresentation of documentation.* Any affidavit, certification, studies, plans or any other documentation submitted as part of an application for approval of a wireless communications facility shall be subject to strict enforcement. If any misrepresentation is made pertaining to any such documentation, the applicant will be subject to revocation of any permit issued in reliance on such misrepresentation and may be required to remove any structure built under such permit.

(Ord. No. 97-77, § 1(art. VI, § 18, subsec. 8), 6-24-1997)

Subsection 9. *Abandoned and nonconforming facilities.*

1. *Abandoned facilities.* Any wireless communications facility that is no longer in use for its original communications purpose shall be removed at the owner's expense. The owner shall provide the director with a copy of the notice to the FCC of intent to cease operations and shall be given 90 days from the date of ceasing operations to remove the obsolete tower and accessory structures and restore the site to its natural condition. In the case of multiple operators sharing use of a single tower, this provision shall not become effective until all users cease operations. In the event FCC notification of intent to cease operations is not required, notice shall still be given to the director within the 90-day period after ceasing operations.

2. *Nonconforming facilities.* The lawful use, on the effective date of the ordinance enacting this section, of a wireless communications facility that does not conform to the provisions of this section may be lawfully continued as provided for in title 1, nonconforming uses, of this zoning ordinance.

(Ord. No. 97-77, § 1(art. VI, § 18, subsec. 9), 6-24-1997)

Section 19. U.S. Highway 280 Overlay District regulations.

Subsection 1. *Administration.*

1. *Intent and purpose.* Recognizing the special nature of the Highway 280 Corridor and the impact of the appearance of this corridor and its importance to the local economy, the intent of this section is to establish minimum standards and regulations for all building development, including access management, building design and orientation, site development, signage and landscaping, that will help insure that development is aesthetically pleasing and economically viable. To this end, the regulations set forth in this section, or set forth elsewhere in this ordinance, when referred to in this section, are regulations of the U.S. Highway 280 Overlay District. These regulations shall apply to all lands within the U.S. Highway 280 Corridor as identified on the herein attached map entitled "U.S. Highway 280 Overlay District Boundary Map," which is also incorporated into and depicted on the Zone Map of the City of Birmingham. The purposes of these regulations are to ensure creativity and compatibility of the planning and design among land uses in the corridor as well as to encourage a responsible land ethic. Additionally, these regulations have been developed with consideration of the character of the corridor in an attempt to ensure quality development and redevelopment as it occurs, to conserve the valve of property as well as to enhance the investment of all those locating within the corridor. The U.S. Highway 280 Overlay District is designed to work in conjunction with the underlying zoning district(s), present and future, in order to exercise reasonable control over the land and to accomplish the stated purposes. In addition to the development regulations set forth herein, the city has determined that access management is integral to development within the corridor. To this end, all development projects will be encouraged to be designed to minimize congestion on Highway 280, by incorporating one or more of the following principles into the site design as applicable:

   a. Limit the number of conflict points by limiting left turning movements and cross highway through movements.

   b. Separate conflict areas by adequate spacing between driveway and street intersections.

   c. Reduce interference with through traffic by providing turning lanes, designing driveways with large turning radii and restricting turning movements in and out of driveways.

   d. Provide sufficient spacing for at-grade signalized intersections.

   e. Provide adequate on-site and intra-site circulation and parking areas in order to minimize the number of driveways to the highway.

This section is not intended to repeal, abrogate, or impair any existing easements, covenants, or deed restrictions. However, where this section and another section of this ordinance conflict or overlap, whichever imposes the more stringent restrictions shall prevail.

2. *Compliance.* In consideration of an application for a building permit for property located in the Highway 280 Overlay District, the property owner or his or her agent shall submit a site plan and accompanying information to the department of planning, engineering and permits for review and approval. The site plan shall be drawn to a scale no smaller than one inch equals 50 feet and shall show the following information:

   a. All dimensions and distances, property lines, easements, landscaping, buffers and public and private rights-of-way.

   b. Existing and proposed buildings and structures, including signs, trash containers, fences, walls, light poles, power poles, outdoor utility equipment and structures, and roof and ground mounted mechanical appurtenance units.

   c. Location, height, size, materials, color and lighting of all signs.

   d. Bodies of water, water detention areas, drainage structures and sanitary sewer lines and facilities and water distribution lines.

   e. Driveways, accommodations for bicycles and pedestrians, parking areas, existing and proposed parking spaces, access aisles and other vehicle maneuvering areas; along with all required landscaping.

   f. All existing and proposed built improvements, natural features such as rock outcroppings, streams, and other landscape elements; plant materials keyed to a planting schedule with botanical names, common names, cultivar (if any), quantity of materials, size of materials at time of planting and plantscaping.

   g. Sufficient information and detail to clearly demonstrate that all applicable requirements and standards of this section are fully satisfied.

   h. The site plan shall be accompanied by:

      i. A grading plan which shows all areas of cut and fill and the grade of all finished floor elevations in relation to the elevation of the Highway 280 pavement which adjoins the property.

      ii. An access management plan which shows compliance with subsection 2.0. Proposed median access cuts must be approved by the Alabama DOT prior to submission of the site plan and access management plan.

      iii. Certification that building orientation, materials and design comply with the requirements of subsection 3.0.

iv. An exterior lighting plan which shows compliance with subsection 5.0, including the proposed foot candles of artificial light on and off premises.

v. A sign plan which shows compliance with subsection 7.

vi. A landscape plan and an irrigation plan which shows compliance with subsection 8.

vii. An erosion and sedimentation plan which meets or exceeds the requirements of the City of Birmingham Soil and Erosion Control Ordinance.

viii. Other plans or specifications necessary to show compliance with this section.

No structure or land shall hereafter be located, extended, converted, or structurally altered without full compliance with the terms of this section and other applicable regulations.

3. *Uses permitted in the U.S. Highway 280 Overlay District.* The uses permitted under any zone district classification coupled with the U.S. Highway 280 Overlay District are not affected by such overlay district designation. Only the potential development of the subject property is affected.

4. *Interpretation.* In the interpretation and application of this section, all provisions shall be:

(1) Considered as minimum requirements; and

(2) Liberally construed in favor of the governing body.

Subsection 2. *Highway 280 access.* All parcels which front onto Highway 280 and which adjoin private property are encouraged to either share access with adjoining properties or have access to a frontage road.

a. The number and location of access points to Highway 280 shall be determined as part of the site plan review process.

b. The development of each parcel in areas where a frontage road is either available or planned shall incorporate the frontage road into the site design.

c. In areas where a frontage road is not available or planned, each parcel shall be encouraged to share paved highway access drives with adjoining properties.

d. Access to Highway 280 may be prohibited from any tract having access to a street intersecting Highway 280 or any tract with frontage on Highway 280 which has access through an existing joint-use access easement or driveway. Otherwise, access to Highway 280 shall be limited to one driveway unless otherwise permitted.

e. Maximum practical spacing between driveways shall be required. Unless otherwise approved, no driveway accessing Highway 280 shall be located:

1. Closer than 300 feet from the nearest adjacent driveway, unless no other access is available to a parcel of land;

2. Where the number of feet of sight distance is less than ten times the posted speed limit;

3. On the inside radius of a curve; or

4. Where the roadway grade of Highway 280 exceeds 7.5 percent.

f. Minimum spacing between local streets intersecting Highway 280 shall be 600 feet and between collector streets shall be 1,320 feet; and improvements to intersections will be based upon a review of a professional traffic analysis.

g. The number of median breaks on Highway 280 should be minimized. All future connecting streets should align with median breaks to the greatest extent practicable.

Subsection 3. *Building design and orientation.* The following standards shall apply to all development in the corridor, except single-family detached dwellings:

a. Minimum building setback from the Highway 280 right-of-way shall be 50 feet. Minimum front building setback from other public street rights-of-way shall be 40 feet. Minimum side and rear building setbacks from other public street rights-of-way shall be 25 feet.

b. Service and loading areas, outdoor storage areas, trash receptacles, utility equipment, mechanical units, satellite dishes and similar appurtenances shall be located so as to minimize visibility from public property and shall be visually screened from view from off the premises. Trash receptacles shall be located within a four-sided structure which completely conceals the trash receptacle. The color and architecture of the structure shall be compatible with that of the building which it serves.

c. The outdoor display of sales merchandise and outdoor storage when permitted, shall not be visible from public property, except automobiles, live plants, and vending machines.

d. Mechanical units shall be ground mounted whenever possible. However, in all cases, roof-mounted units and ground-mounted units shall be screened from view from public property.

e. Building orientation shall be such that loading and service areas do not face Highway 280, except in the case of double frontage lots, where such areas must be located in a rear or side yard which faces the highway. All loading and service areas shall be screened from view from off the premises.

f. In order to prolong the life of buildings, reduce the need for periodic maintenance and maintain a character which is commensurate with the public interest, the following materials shall be used as primary exterior building wall finishes on portions of the building which are visible from the Highway 280 right-of-way: brick, stone, glass, wood, stucco, imitation stucco, precast concrete, poured concrete, and/or split-face concrete block.

g. Nonstructural awnings, covered with cloth, plastic or other fabric, shall not project more than seven feet from the building wall shall not be lower than eight feet nor higher than 14 feet above grade and shall not be internally illuminated.

Subsection 4. *Fences and walls.*

a. Screening walls and fences shall be compatible in color and materials of the building on the premises.

b. Fences designed to create privacy or separation shall be made of masonry, ornamental metal, durable wood, vinyl that is designed and fabricated to appear as wood, or a combination of these materials. Chain link, plastic or wire fencing is not permitted for fences visible from public property.

c. When visible from public property, solid fences shall have an evergreen-landscaped strip on the Highway 280 side of the fence.

d. Fences and walls shall not restrict traffic intersection sight lines.

Subsection 5. *Exterior lighting.*

a. Lighting shall have underground electric service, except where the lights, service poles and wires are not visible from public property.

b. The intensity, location and design of lighting shall be such that not more than one footcandle of light is cast upon adjacent property or the public right-of-way. Light fixtures shall be designed to cast light downward. Where necessary, cut off devices shall be used to minimize glare off premises.

c. Exterior lights shall not exceed 20 feet in height.

d. Wooden light poles are prohibited on private property.

e. Light poles and fixtures shall be compatible with the architecture of the buildings on the premises.

f. Flashing, blinking or intermittent lights or bare neon tubing, are prohibited.

Subsection 6. *Grading and drainage.*

a. Except for retaining walls, smooth topographic transition shall be provided throughout the site and between properties. Slopes steeper than 1:3 rise to run are prohibited.

b. The exterior surface of retaining walls shall be compatible with the architecture and site design of the property.

c. Retaining walls which exceed eight feet in height and are visible from public property, shall be visually screened with vegetation.

d. In areas which are visible from public property, subsurface drainage structures and grass swales shall be used to manage stormwater. Open ditches are prohibited.

e. The use of crushed granite or limestone for slope stabilization and storm drainage is prohibited in the public right-of-way and areas which are visible from the through and auxiliary lanes of Highway 280.

f. Prior to the issuance of a certificate of occupancy for the premises, all slopes shall be stabilized with grass or other evergreen groundcover or other vegetation.

Subsection 7. *Signs.*

1. *Permits required.* A sign permit shall be obtained from the department of planning, engineering and permits prior to the erection or placement of a sign which is regulated by this section.

2. *Exempt signs.* The following signs are exempt from the requirements of this section, provided they do not create a safety hazard as determined by the appropriate governmental authority.

    a. Directional signs which do not exceed four square feet of copy area nor three feet in height, located in parking or vehicle maneuvering areas, which are intended to direct traffic through the area and do not contain any advertising.

    b. Regulatory, statutory and traffic control signs necessary to promote the public health, safety and welfare; as required by the municipal, county, state or federal government.

    c. Legal notices, memorial and historical markers and other official government signs.

    d. Holiday lights and decorations.

    e. Signs incorporated into vending machines by a manufacturer or distributor, which identify or advertise only the product or service dispensed by the machine, including gasoline pumps, and telephone booths.

    f. Merchandise displayed behind storefront windows so long as no part of the display moves or contains flashing lights.

    g. Advertising and identifying signs located on taxicabs, buses, trailers, trucks or vehicle bumpers.

h. Public warning signs to indicate the dangers of trespassing, swimming, animals or similar hazards.

i. Reserved.

j. Reserved.

k. Works of art that do not constitute advertising.

l. Signs carried by a person.

m. One temporary, construction sign not to exceed 16 square feet in area, nor six feet in height.

n. Projecting (or blade) signs subject to administrative review provided that said sign(s) shall not extend more than four feet from the vertical surface of the building to which it is mounted, shall be a minimum of eight feet above the exterior grade, and the total sign face area (excluding bracket or mounting device) shall not exceed 16 square feet for one sign (total for both faces), 24 square feet for two signs (total four faces), or 30 square feet for three signs (total six faces). The maximum number of projecting signs per building or tenant space shall be based on actual linear feet of frontage. Only one sign is exempted for frontage of less than 50 feet, two signs for frontage of greater than 50 feet but less than 100 feet, and three signs for frontage of greater than 100 feet with a maximum of three signs per building or tenant space.

3. *Prohibited signs.* The following signs are prohibited, unless otherwise exempted or permitted by this article:

a. Signs which do not comply with the adopted building, electrical or fire codes.

b. Any sign which constitutes a safety hazard, as determined by the appropriate governmental authority, including signs which obstruct visibility at intersections.

c. Signs which are not permanently attached to the ground or a building, including, portable signs, inflatable signs, banners and similar devices.

d. Off-premises signs.

e. Signs located in the public right-of-way and signs attached to trees or poles, including signs attached to private property located in the public right-of-way.

f. Animated signs, including signs which move, revolve, rotate, or appear to be animated by mechanical, electronic or other means.

g. Signs with flashing, blinking, moving or intermittent light or with light which varies in intensity or color, except time and temperature signs.

h. Strings of light bulbs, inflatable signs, and signs which emit noise, odor or visible matter such as smoke or steam.

i. Wind driven signs including banners, flags, pennants, ribbons, spinners, streamers, captive balloons and similar devices.

j. Roof signs.

k. Signs that incorporate projected images, emit any sound that is intended to attract attention or involve the use of live animals.

l. Signs or sign structures that interfere, in any way, with the free use of any fire escape, emergency exit or standpipe, or that obstructs any window to such an extent that light or ventilation is reduced to a point below that required by any provision of these regulations.

m. Signs that resemble any official sign or marker erected by any governmental agency, or that by reason of position, shape or color, would conflict with the proper functioning of any traffic sign or signal, or be of a size, location, movement, content, color or illumination that may be reasonably confused with or construed as, or conceal, a traffic-control device; or, nongovernmental signs that use the words "STOP," "LOOK," "DANGER," or any similar word, phrase or symbol.

n. Signs that contain any writing or control mechanism that causes unreasonable interference with radio, television or other communication signals.

4. *General regulations for all signs throughout the corridor.* The following regulations are applicable for signs on private property throughout the corridor:

a. Not more than one flag of governmental, religious, charitable, or fraternal organizations may be displayed on any one parcel of land. The flag shall not exceed 15 square feet in area and shall be flown from a pole, the top of which shall be less than 35 feet in height.

b. No sign shall have more than two faces.

5. *Temporary signs.*

a. Each business, institution or public building may have one temporary banner affixed to the building wall, which advertises a sale or special event. However, each business, institution or public building shall be limited to not more than a total of 30 days each calendar year, during which such a temporary sign may be displayed, except that no such sign may be erected for a period of ten days or more. A temporary sign permit shall be obtained prior to erection of the sign.

b. Each new business may have one illuminated, temporary sign, which may be a banner, which shall not to exceed 32 square feet in sign face area and

shall be attached to the building wall of the premises for a period not to exceed 30 days, or until a permanent sign is installed, whichever time period is shorter. A temporary sign permit shall be obtained prior to erection of the sign.

c. Commercial property may have one, nonilluminated, freestanding, temporary identification sign per facing street, while the property is being developed, which shall not exceed 48 square feet of sign face area nor ten feet in height. For a single tenant project, the sign shall be removed when the project is complete, or the permanent sign has been erected, whichever occurs first. For multi-tenant projects, the sign shall be removed when 75 percent of the tenant spaces have been leased, or the permanent sign has been erected, whichever occurs first.

d. Residential subdivisions with five or more lots may have one freestanding, on-premises, temporary identification sign while the subdivision is being developed, which shall not exceed 32 square feet of sign face area nor ten feet in height. The sign shall not be illuminated and shall be removed within 120 days after construction begins on the first dwelling in the subdivision, or the permanent subdivision identification sign has been erected, whichever occurs first.

e. Each premises may have one on-premises sign, which advertises the sale or lease of the property, which does not exceed six square feet of sign face area when located in a single-family residential zoning district, and 24 square feet in all other zoning districts. The signs shall be removed upon the sale or lease of the premises.

6. *Signs permitted for retail and service establishments which are not located in a shopping center.* Each building may have one freestanding sign and one building wall sign or one canopy sign per facing street. However, in no case can a building have more than two building wall signs. Reader boards with moveable copy may be incorporated into the sign face area of a freestanding sign. Sign face area of a reader board shall be included as part of the maximum freestanding sign face area permitted by this subsection.

a. *Freestanding sign, more than eight feet in height.*

i. Maximum height of the sign shall be 20 feet above the average elevation of the ground at the base of the sign, or ten feet above the center line elevation of the public street or highway which is closest to the sign. Said elevation shall be measured at the point on the centerline which is closest to the sign. Berms shall not be used to increase the height of a freestanding sign.

ii. The maximum sign face area of an internally illuminated sign shall be 55 square feet.

iii. The maximum sign face area of a nonilluminated or indirectly illuminated sign shall be 66 square feet.

iv. Signs shall be set back at least ten feet from any property line.

b. *Freestanding sign, eight feet or less in height.*

i. Maximum height of the sign shall be eight feet above the average elevation of the ground at the base of the sign. Berms shall not be used to increase the height of a freestanding sign.

ii. The maximum sign face area of an internally illuminated sign shall be 66 square feet. Sign face area of the sign may be increased 0.5 square feet for each additional foot of building setback from the property line in excess of 50 feet, up to a maximum sign face area of 100 square feet.

iii. The maximum sign face area of a nonilluminated or indirectly illuminated sign shall be 80 square feet. Sign face area of the sign may be increased 0.5 square feet for each additional foot of building setback from the property line in excess of 50 feet, up to a maximum sign face area of 100 square feet.

iv. Signs shall be set back at least ten feet from any property line.

c. *Building wall and canopy signs.* The maximum sign face area shall be 15 percent of the building wall area to which the sign or canopy is attached, up to a maximum sign face area of 150 square feet. The maximum sign face area may be increased one square foot for every five feet of building setback in excess of 50 feet, up to a maximum of 210 square feet.

7. *Signs permitted for retail and service establishments located in a shopping center.* Each tenant space may have one building wall sign or one canopy sign. A tenant space with more than 50,000 square feet of gross floor area may have one building wall sign or one canopy sign per facing street, if the tenant space is located at the end of the shopping center building which faces a public street intersection.

a. The building wall sign or canopy sign for each business shall be attached to a front or side building wall which encloses that business premises.

b. The maximum sign face area shall be 15 percent of the building wall area to which the sign or canopy is attached, up to a maximum sign face area of 150 square feet. The maximum sign face area may be increased one square foot for every five feet of building setback in excess of 50 feet, up to a maximum sign face area of 210 square feet.

8. *Shopping center identification signs.* Each shopping center may have one freestanding sign which identifies the name of the shopping center. Tenant

signs are permitted, provided that the combined total sign face area for both tenant signs and the shopping center identification sign does not exceed the maximum allowable sign face area shown in subsection 7.08.a.ii and iii.

a. *Freestanding sign.*

i. Maximum height of the sign shall be 20 feet above the average elevation of the ground at the base of the sign, if the average grade is at or lower in elevation than the centerline of the nearest public street; or ten feet above the average elevation of the ground at the base of the sign, if the average grade is higher in elevation than the center line elevation of the nearest public street. Said elevation shall be measured at the point on the centerline which is closest to the sign. Berms shall not be used to increase the height of a freestanding sign. For shopping centers with more than 300 continuous feet of public road frontage, maximum height of the sign shall be 30 feet above the average elevation of the ground at the base of the sign, if the average grade is at or lower in elevation than the centerline of the nearest public street; or 18 feet above the average elevation of the ground at the base of the sign, if the average grade is higher in elevation than the center line of the nearest public street. Said elevation shall be measured at the point on the centerline which is closest to the sign. Berms shall not be used to increase the height of a freestanding sign.

ii. The maximum sign face area of an internally illuminated sign shall be 55 square feet. Sign face area may be increased one square foot for every eight feet of continuous public street frontage in excess of 300 feet, up to a maximum sign face area of 96 square feet.

iii. The maximum sign face area of a nonilluminated or indirectly illuminated sign shall be 66 square feet. Sign face area may be increased one square foot for every five feet of continuous public street frontage in excess of 300 feet, up to a maximum sign face area of 120 square feet.

iv. Signs shall be set back at least ten feet from any property line.

9. *Signs permitted for office, industrial and institutional buildings.* Each office, industrial or institutional building may have one freestanding sign; and one building wall sign per facing street, but in no case more than two wall signs.

a. *Freestanding signs.*

i. Maximum height shall be eight feet above the average elevation of the ground at the base of the sign. Berms shall not be used to increase the height of a freestanding sign.

ii. The maximum sign face area of an internally illuminated sign shall be 32 square feet; 80 square feet for office buildings with gross floor area greater than 100,000 square feet which are not located in an office park.

iii. The maximum sign face area of a nonilluminated or indirectly illuminated sign shall be 48 square feet; 120 square feet for office buildings with gross floor area greater than 100,000 square feet which are not located in an office park.

iv. Signs shall be set back at least ten feet from any property line.

b. *Building wall signs.* The maximum sign face area shall be 15 percent of the building wall area to which the sign is attached, up to a maximum sign face area of 60 square feet. In addition, each retail establishment located in an office or institution building may have one building wall sign which shall not exceed 30 square feet of sign face area and shall be attached to the building wall of the retail tenant space.

10. *Office parks, industrial parks, institutional campuses and mixed use developments.* Each office park, industrial park, institutional campus and mixed use development which contains more than two buildings, other than accessory buildings, may have one freestanding sign per public street entrance, which identifies the name of the park or campus.

a. Maximum height of the sign shall be eight feet above the average elevation of the ground at the base of the sign. Berms shall not be used to increase the height of a freestanding sign.

b. The maximum sign face area of an internally illuminated sign shall be 48 square feet; 100 square feet for developments with buildings which contain a total of more than 500,000 square feet of gross floor area.

c. The maximum sign face area of a nonilluminated or indirectly illuminated sign shall be 60 square feet; 120 square feet for developments with buildings which contain a total of more than 500,000 square feet of gross floor area.

d. Signs shall be set back at least ten feet from any property line. Signs with sign face area of 100 square feet or more shall be set back at least 50 feet from any property line.

11. *Signs permitted for multiple dwellings.* Each complex or community of multiple dwellings is permitted one freestanding sign per public street entrance.

a. Maximum height of the sign shall be six feet above the average elevation of the ground at the base of the sign. Berms shall not be used to increase the height of a freestanding sign.

b. All signs shall be nonilluminated or indirectly illuminated and the maximum sign face area shall not exceed 32 square feet. Signs may not be located in the public right-of-way.

c. Signs shall be set back at least ten feet from any property line.

d. All such signs shall be maintained perpetually by the developer, the owner of the sign, a pertinent homeowner's association or some other person who is legally accountable. Such accountability is required before a permit shall be issued. If, following the issuance of a permit and subsequent erection of such signs, no accountable person accepts legal responsibility to maintain the signs and no other provision has been made for maintenance, the signs shall be removed by the developer or owner.

12. *Signs permitted for single-family dwellings.*

a. Each approved home occupation may have one nonilluminated building wall sign which does not exceed one square foot of sign face area and which identifies the name of the business.

b. Each residential subdivision is permitted a maximum of one nonilluminated or indirectly illuminated freestanding sign per public street entrance to the subdivision. The sign shall only identify the name of the subdivision and shall be incorporated into landscaping which compliments the design of the signs and creates an entrance feature for the subdivision. The sign shall not be located in the public street right-of-way. Maximum height of the sign shall be six feet above the average elevation of the ground at the base of the sign. Berms shall not be used to increase the height of a freestanding sign. The maximum sign face area of the nonilluminated or indirectly illuminated ground sign shall be 32 square feet. Signs shall be set back at least five feet from any property line.

13. *Sign definitions.*

Awning or canopy sign. A sign that is mounted, painted on or attached to an awning or canopy.

Banner. A sign, not otherwise classified as a temporary sign, made of cloth, canvas, plastic sheeting or any other flexible material, not rigidly attached to a building or the ground through a permanent support structure.

Building. A structure having a roof supported by columns or walls.

Building wall sign. A sign attached parallel to, supported by and not more than 14 inches from, the exterior wall of a building. The sign may be painted on the surface of the wall or erected and confined within the limits of said wall.

Construction sign. A sign pertaining only to the construction, alteration, rehabilitation or remodeling of buildings, identifying only those parties involved in construction on the premises and future activity for which the construction is intended.

Freestanding sign. A permanent sign which is not attached to a building.

Indirectly illuminated sign. A sign which is illuminated by a light source which is external to the sign cabinet or structure.

Internally illuminated sign. A sign which is illuminated by a light source which is behind the sign face.

Institution. A nonprofit or quasi-public use such as a church, library, public or private school, hospital or publicly owned or operated building, structure or property used for a public purpose.

Mixed use development. A development which contains any combination of retail, office, institution or multifamily residential uses.

Off-premises sign. A sign which directs attention to a business, commodity, service or entertainment conducted, sold or offered at a location other than the premises on which the sign is located.

Portable sign. Any sign not permanently attached to the ground or another permanent structure; including but not limited to: signs designed to be transported by means of wheels, "A" frame signs, menu and sandwich board signs, balloons used as signs, umbrellas used for advertising and signs attached to or painted on vehicles, parked and visible from the public right-of-way, unless said vehicles are used in the normal day to day operations of the business.

Premises. A lot, parcel or tract of land together with the buildings and structures thereon, having a separate street address.

Projecting (or blade) sign. A sign that is attached to the exterior wall of a building and extends perpendicular more than 14 inches from the wall of the building.

Public property. Property owned by a municipality, a county, the State of Alabama or the United States government, except property used for public utility purposes. All public street rights-of-way are public property.

Real estate sign. A sign indicating that the property on which the sign is located is for sale, lease or development, to announce an open-house event in connection with the sale or lease of a building, or to identity a model home.

Roof sign. A sign which is attached to and supported by a building and extends above the exterior wall of the building to which it is attached.

Shopping center. A building which contains two or more retail establishments.

Sign. A name, identification, image, description, display or illustration which is affixed to, printed or represented directly or indirectly upon a

building, structure or piece of land, and which directs attention to an object, product, place, activity, facility, service, event, attraction, person, institution, organization or business.

Sign face area. The sign face area of any sign with only one sign face shall be computed by means of the smallest geometric figure that encompasses the extreme limits of the writing, representation, emblem, or other display, together with any material or color forming an integral part of the background of the display or used to differentiate the sign from the backdrop or structure against which it is placed. The sign face area for a sign with more than one face shall be computed by adding together the area of all sign faces visible from any one point. When two sign faces are placed back to back, so that both faces cannot be viewed from any point at the same time, and when such sign faces are not more than 42 inches apart, with a horizontal angle no greater than 30 degrees, the sign area shall be computed by the measurement of one of the sign faces.

Sign height. The vertical distance measured from the lowest finished grade elevation directly beneath the center of the sign to the highest elevation of the sign.

Temporary sign. A sign not permanently and rigidly affixed to the ground or a building.

Subsection 8. *Buffers and landscaping.*

1. *Purpose.* The buffers and landscaping standards are provided to enhance the physical appearance of buildings, their designated parking areas, and the positive impact of parking areas on adjacent land uses.

2. *Impervious surfaces.* Except for single-family dwellings, impervious surfaces such as rooftops and pavement areas for each development shall not cover more than 80 percent of a lot or parcel.

3. *Buffers.*

   a. *Applicability.* The following table shows required buffers in the corridor. When the use in Row A is developed adjacent to the use in Column B, the use in Row A shall provide the required buffer. Required buffers shall be located along all property lines that separate property which is currently used for the uses stipulated in the following table.

   b. *Buffers.* Required buffers may be natural areas, planted areas or a combination of both. All required buffers shall meet or exceed the standards of this subsection.

Table I. Buffers					
Width of Required Buffer Expressed in Feet					
Row A					
Column B	*Single-Family Residential*	*Multi-Family Residential*	*Office and Institution*	*Retail Business*	*Industrial*
Single-Family Residential	0	15	15	25	25
Multi-Family Residential	0	0	15	20	25
Office and Institution	0	0	0	15	25
Retail Business	0	0	0	0	25
Industrial	0	0	0	0	0

c. *Maintenance.* The property owner shall be responsible for maintenance, repair and replacement of all landscaping materials and irrigation systems required by this section. All plant material shall be tended and maintained in a healthy growing condition, replaced when dead and kept free of weeds, refuse and debris.

d. *Irrigation.* All required buffers shall be irrigated with a fully automated irrigation system; except for those buffers which are approved as natural buffers. Automatic controllers shall be screened from view, locked and not easily accessible to pedestrian traffic. Required backflow prevention devices connected to the water system shall be screened from view and shall not be set in lawn areas. Shrub and lawn sprinkler heads adjacent to pedestrian walks, parking spaces, driveways and structures shall be high pop-ups installed one-half inch from the edge of curbs and walks and six feet from architectural structures. The owner shall keep the irrigation system in proper working condition as a part of a regular maintenance program.

4. *Landscaping for parking areas.*

a. *General requirements.* The following requirements shall be met concerning improvements to parking lots:

i. Landscape plans for developments that require 100 or more off-street parking spaces shall be prepared by a registered landscape architect or a licensed landscape designer. All submitted plans shall bear the architect's/designer's seal, signature and State of Alabama registration number.

ii. All cuts and fills and/or terraces shall have sufficient vegetative cover installed so as to prevent erosion.

b. *Landscape plan requirements.* The following plan requirements shall be fulfilled:

   i. All landscaping plans shall be drawn at an appropriate scale so as to convey the design intent, to the appropriate planning and zoning authority.

   ii. All submitted plans shall include: the title of development, name and address of owner/developer/agent; name and address of person/firm preparing the plans; date of preparation, scale, north arrow and dates of all revisions; a location map of site to nearest public street intersection; boundaries of property in concern; location and description of all adjacent properties, streets and easements; parcel identification and zoning classification; number of parking spaces; total square footage of impervious areas and landscaping; and the location and dimensions of entrance/exit points.

c. *Applicability.* These regulations apply to all areas, (hereinafter referred to as parking areas), which are open to the general public or visible from public property, and used for off-street parking and loading, vehicle maneuvering and the retail sale of motor fuels. These regulations shall apply to new parking areas and to any enlargement of parking areas by 25 percent or more. The enlargement of any existing parking area by 25 percent or more shall require that the existing and new parking areas conform the requirements of this section. Multilevel parking structures are exempt from the interior planting requirements.

d. *Design standards.* Only large trees may be planted to comply with the requirements of this subsection, except when site visibility at intersections or when overhead utilities prevent the use of large trees, in which case medium or small trees may be used. Interior landscaped islands and perimeter planting areas shall be planted with trees equal to or greater than one tree for each 900 square feet of impervious parking area. Only trees listed in the tree selection list and noted with (*) may be planted within or on the perimeter of a parking area. Large parking areas shall be designed as a series of smaller lots that provide space for not more than 100 cars. The smaller lots shall be separated by internal planting areas that form a perimeter which is at least nine feet wide, planted with large trees and shrubs. These planted areas shall be counted as part of the ten percent internal planting requirement for parking areas.

e. *Perimeter planting.* The width of required perimeter planting areas, which are located within required buffer areas, may be included as part of the minimum buffer width, provided that the plant materials meet the minimum standards for a buffer. Parking areas shall be separated from the Highway 280 right-of-way by a 15-foot-wide perimeter planting area. The perimeter planting area shall contain a double staggered row of

evergreen shrubs which are at least 18 inches in height at the time of planting and which shall be maintained at a height of 36 inches at maturity. Shrubs should be spaced to allow growth of species type. Deciduous trees shall be equal in number to one tree per 25 feet of Highway 280 frontage. Large trees shall be planted on 35 foot centers and small and medium size trees shall be planted on 25 foot centers. Parking areas shall be separated from other public road rights-of-way by a ten-foot-wide perimeter planting area. The perimeter planting area shall contain a double staggered row of evergreen shrubs which are at least 18 inches in height at the time of planting and which shall be maintained at a height of 36 inches at maturity. Shrubs should be spaced to allow growth of species type. Deciduous trees shall be equal in number to one tree per 25 feet of public street frontage. Large trees shall be planted on 35-foot centers and small and medium size trees shall be planted on 25-foot centers. Parking areas shall be separated from other private property by an eight-foot-wide perimeter planting area. The perimeter planting area shall contain a double staggered row of evergreen shrubs which are at least 18 inches in height at the time of planting and which shall be maintained at a height of 36 inches at maturity. Shrubs should be spaced to allow growth of species type. Deciduous trees shall be equal in number to one tree per 50 feet of abutting property line. Large trees shall be planted 35 feet on center and small and medium size trees shall be planted 25 feet on center.

f. *Interior planting.* Notwithstanding the requirements of any other provisions in this section, whenever the impervious surface of a parking area exceeds 8,000 square feet, an area equal to ten percent of the impervious surface area shall be provided for landscaping islands in the interior of the parking area. Plant material located within six feet of a building shall not be included as part of the minimum interior planting requirement. The interior parking area planting requirement is in addition to the required perimeter planting. Gasoline service stations and automobile sales lots are exempt from the interior planting requirements. The interior islands shall be at least nine feet by 20 feet, planted with a combination of large trees and evergreen shrubs. One landscaped island shall be required for each row of 12 contiguous parking spaces. Each landscaped island shall contain at least one large tree which meets the minimum requirements of this section.

g. *Maintenance.* The property owner shall be responsible for the maintenance, repair and replacement of all landscaping materials, barriers and irrigation systems required by this section. All plant material shall be maintained in perpetuity in a healthy growing condition, replaced when dead and kept free of weeds, refuse and debris.

h. *Irrigation.* All required landscaping shall be irrigated by an automatic irrigation system; except required interior landscaping within an existing parking area which is being landscaped to comply with the requirements of this ordinance. Pop-up heads or drip emitters shall be installed for shrub and lawn irrigation of areas next to buildings/structures, driveways, parking spaces and pedestrian walks.

i. *[Conformance.]* All installation, spacing and maintenance of plant materials shall conform to the American Standard for Nursery Stock, latest edition, published by The American Association of Nurserymen and Standardized Plant Names latest edition, by The American Joint Committee on Horticultural Nomenclature.

j. *Trees.* Only trees in the tree selection list may be planted in required landscaping and buffer areas.

   i. Shade trees shall be a minimum of 2½-inch caliper in size at planting.

   ii. Flowering trees shall be at least six feet in height at planting.

   iii. Pines shall be at least five gallon, or five feet in height at planting. Spacing of pine trees in containers shall be a maximum of eight feet on centers.

k. *Tree selection list.* Trees permitted in landscaped buffers are noted with the (#) sign. Trees permitted in parking areas are noted with the (*) sign. All tree heights listed are heights at maturity.

Small Deciduous Trees (trees from 10' - 40' in height)

Acer barbatum	Florida Maple #
Betula nigra	River Birch # *
Cercidiphyllum japonicum	Katsura Tree # *
Cercis canadensis	Redbud # *
Koelreuteria paniculata	Goldenrain Tree # *
Lagerstroemia indica	Crape Myrtle # *
Prunus c. pissardi	Purple Leaf Plum
Prunus serrulata 'Kwanzan'	Kwanzan Cherry *
Prunus x incam 'Okame'	Okame Cherry *
Prunus yedoemsis	Yoshino Cherry *
Pyrus calleryana 'Bradford'	Bradford Pear *

Large Deciduous Trees (trees at least 40' in height)

Acer rubrum	Red Maple # *
Fraxinus americana	White Ash *
Ginkgo biloba	Ginkgo # *
Platanus occidentalis	Sycamore #

Quercus acutissima	Sawtooth Oak *
Quercus alba	White Oak *
Quercus coccinea	Scarlet Oak*
Quercus falcata	Southern Red Oak *
Quercus nigra	Water Oak *
Quercus palustris	Pin Oak *
Quercus phellos	Willow Oak # *
Quercus shumardii	Shumard Oak # *
Ulmus parvifolia	Chinese Elm *
Zelkova serrata	Zelkova # *
Small Evergreen Trees (trees less than 25' in height)	
llex x attenuata 'Fosteri'	Foster's Holly # *
llex opaca	American Holly # *
	East Palatka # *
	Hume No. 2 # *
	Lusterleaf # *
	Nellie R. Stevens # *
	Savannah # *
Ilex vomitoria	Tree Form Yaupon Holly *
Juniperus virginiana	Eastern Red Cedar # *
Myrica cerifera	Wax Myrtle # *
Medium Evergreen Trees (trees from 25' to 50' in height)	
Cupressocyparis leylandii	Leyland Cypress # *
Juniperus virginiana	Eastern Red Cedar # *
Pinus echinata	Shortleaf Pine *
Pinus thunbergiana	Japanese Black Pine#
Large Evergreen Trees (trees at least 50' in height)	
Magnolia grandiflora	Southern Magnolia # *
Pinus caibaea	Slash Pine *
Pinus strobus	Eastern White Pine *
Pinus taeda	Loblolly Pine # *
Pinus Virginiana	Virginia Pine # *

5[l.] *Shrubs.* Shrubs used for screening shall be evergreen and shall obscure the view of the screened item upon installation. Only the following shrubs may be planted in required landscaping and buffer areas, in compliance with the following size/spacing relationships:

Ilex c. compacta	Compacta Holly
Ilex c. burfordi	Burford Holly # *
Ilex. c. burford nana	Dwarf Burford Holly
Ilex c. rotunda	Dwarf Chinese Holly

Ilex c. needlepoint	Needlepoint Holly
Juniperus p. nana	Dwarf Pfitzer Juniper
Ilex vomitoria nana	Dwarf Yaupon Holly
Illicium anisatum	Japanese Anise Shrub
Ligustrum japiconica	Lusterleaf Ligustrum # *
Photinia x fraseri	Photinia Fraseri
Photinia x. fraseri	Red Tip Photinia # *
Ilex c. repandens	Repandens Holly
Prunus l. schipkaensis	Schip Laurel
Eleagnus pungens	Thorny Eleagnus
Myrica cerifera	Wax Myrtle
Prunus l. zabeliana	Zabel Laurel

Table II. Shrub Size and Spacing	
Size in Gallons	*Spacing*
1 (8" pot minimum)	2 feet on center
2	2½ feet on center
3	3 feet on center
5	4 feet on center

m. *Ground covers.* Ground covers shall be of a single species and planted in large masses. Only the following ground covers may be planted in required landscaping areas in compliance with the following size/spacing relationships:

Juniperus h. plumosa	Andorra Juniper
Liriope muscari	Big Blue Liriope
Ophiopogon japonicus	Mondo Grass
Juniperus davuricai parsoni	Parsons's Juniper
Juniperus conferta	Shore Juniper

Table III. Ground Cover Size and Spacing	
Size	*Spacing*
One quart	9 inches on center
One gallon (8" inch pot minimum)	18 inches on center

Section 20. Highland Park Neighborhood Form-Based Overlay District regulations.

Subsection 1. *Intent and purpose.*

A. *Intent.* The intent of this section is to establish minimum standards and regulations for building development, building and frontage category and orientation, site development, signage and landscaping for the Highland Park Neighborhood. Such standards and regulations will help ensure that develop-

ment is aesthetically pleasing and compatible with surrounding streetscape and land uses. This overlay district is designed to encourage new development that will complement the existing historic character of the neighborhood as well as help to create and sustain a pedestrian friendly environment. It is intended that this overlay district will only apply to properties that are bordered by a sidewalk. As its principle focus is on new development, it will not be applied retroactively to existing projects. A unique feature that distinguishes this overlay district from the existing zoning ordinance is that setback requirements are correlated to the buildings frontage category. The frontage category determines the minimum and maximum setback.

B. *Purpose.* This overlay district is a regulatory tool that can be used to guide the future growth and character of Highland Park by means of a specific regulating plan. The regulating plan's purpose is to implement a community's vision as a traditional neighborhood that emphasizes the street and pedestrian travel and access. The result of the plan is the placement of the overlay district "over" the underlying zoning, thereby modifying the underlying zoning's area dimensional and parking regulations. The standards of the overlay district address the buildings in relation to their placement on a lot, the size and height of buildings, and, perhaps most importantly, how they relate to the street and adjacent buildings. The form-based overlay also addresses parking, pedestrian and vehicular access, landscaping and signage. The Highland Park Neighborhood Form-Based Overlay includes the following key components:

[1.] *Regulating plan.* The maps and text delineating the regulated area where the overlay standards apply.

[2.] *Building category standards.* Regulations that specify the placement, size and massing of buildings and frontages.

[3.] *Landscape standards.* Regulations governing landscape design and planting on private property, most commonly parking areas, and the way in which they affect the public realm.

[4.] *Sign standards.* Regulations describing allowable sign sizes, materials, placement, and type of illumination.

Subsection 2. *Definitions.* The following terms shall have the meaning provided herein. Terms not defined herein shall have the meaning provided in the City of Birmingham Zoning Ordinance and/or city subdivision regulations.

Base. The lowest of the three divisions of a building's facade. In multistory buildings the base is generally the ground floor, articulated by entries, porches or stoops.

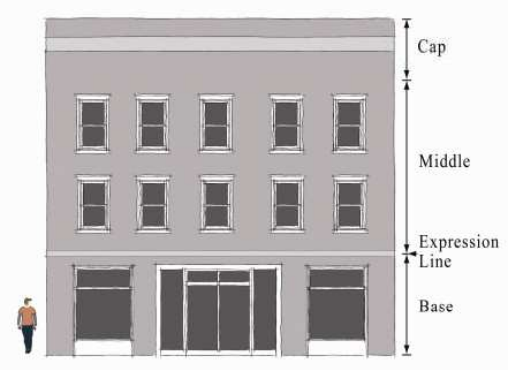
Building form. The placement, shape, size and massing (height, width and depth) of frontage categories.

Building height. The [building height] is the measurement of the vertical distance in feet from the grade to the highest point of the coping of a flat roof or to the deck line of a mansard roof, or to the average height between eaves and ridge for gable, hip and gambrel roofs.

Cap. The uppermost division of a building's facade. For nonresidential buildings, a cornice is often the cap, or is suggested by some other articulation at the top of the wall.

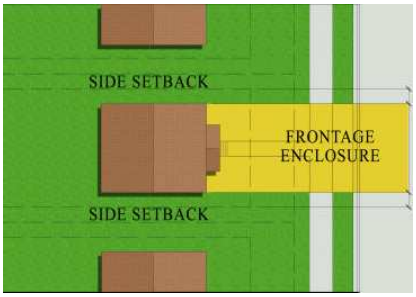
Expression line. A horizontal architectural or decorative feature of the facade that differentiates the building's base from middle and cap elements above.

Facade. The face or exterior wall of a building that is also the primary frontage, almost always containing one or more entrances and characterized by an elaboration of stylistic details. Facades have three divisions that include the base, middle, and cap.



Frontage categories. The collection of building typologies listed in the Highland Park Neighborhood Form-Based Overlay District. These categories include the configurations of building elements within the primary frontage. There are eight frontage categories listed for the Neighborhood Form-Based Overlay District: Civic, Common Yard, Forecourt, Gallery, Porch with Short Lawn, Shopfront, Stoop, Terrace or Lightwell.

Frontage enclosure. The percentage of the lot width that has buildings and/or street walls within the required (minimum and maximum) setback area. If a property has an established front yard setback (as detailed in subsection 4.B) the frontage enclosure area begins at the established front yard setback.



Glazing. Clear or translucent material through which light is transmitted into a building, usually glass, but also including acrylic and other materials.

Landing. The horizontal platform at the end of a stair flight or between two flights of stairs or at an entrance to a building. An entry landing may be covered.

Middle. The division of the facade that is between the base and the cap. This division is generally the largest.

Mixed use developments. Sites developed within the Highland Park Neighborhood Form-Based Overlay District having multiple land uses all on the same legal lot.

Overlay district. A set of regulations that imposes additional area, dimensional and other development standards onto an underlying zoning district.

Porch. An entrance area to a building, covered by a roof and having structural supports that goes to the ground.

Primary frontage. The street or public frontage providing the primary or most important approach to the main entrance of the building.

Public realm. Publicly owned and accessible property such as public rights-of- way, parks and plazas.

Regulating plan. Maps and supporting documentation that delineate the area where the Highland Park Neighborhood Form-Based Overlay development standards apply.

Secondary frontage. The street frontage of a lot other than the primary frontage. Secondary frontages may or may not include an entrance to a building.

Street frontage. All of the property on one side of a street between two intersecting streets; or, if the street is dead-ended, the property abutting on one side between the street's intersection and its dead-end.

Street wall. A masonry wall that extends from the building's side or rear; possibly part of the frontage enclosure requirement. Street walls are often used as a visual screen and help establish an edge that defines the streets. Street walls may not extend forward from the face of the building.

Subsection 3. *Administration.*

A. *Uses permitted in the Highland Park Neighborhood Form-Based Overlay District.* The overlay district does not determine or govern the use of the property. Use is governed by the underlying base zoning.

B. *Procedures for amending the Highland Park Neighborhood Form-Based Overlay District.* A proposed change or amendment to the regulating plan of the overlay district may be initiated by the city council, the full Birmingham Planning Commission or the commission's zoning advisory committee, or by petition of one or more property owners or authorized agents of such owners of property within the overlay district. The petition for change of the overlay district by a property owner shall only apply to that individual owner's property. Any petition for change shall be in accordance with the procedures set up in article VII, section 3, of this ordinance. Procedure for preparation of documentation to amend the overlay district:

1. Review and provide maps and text describing the existing land use plan, zoning and development regulations that apply to the affected properties.
2. Review and provide maps reflecting existing lot lines and building footprints.
3. Provide text describing the change in conditions since the overlay district was established that justifies a change or amendment to the district.
4. Provide maps of the base zoning and zoning overlays.

C. *Compliance.* All building and grading permits will be reviewed to ensure consistency with these regulations. The City of Birmingham's Department of Planning, Engineering and Permits (PEP) will review all proposed projects in the overlay district that require building, grading, sign and other permits that make modifications to existing landscaping and parking.

D. *Construction permit review.* The applicant has the discretion to submit construction documents directly for permits without first getting PEP planning division review comments. The permit's documentation must include the information listed below in subsection F; development plans submittal requirements. An incomplete permit application will be returned for the additional required information. An application not compliant with these regulations will be denied. It is recommended that applicants first contact the City of Birmingham's Department of Planning, Engineering and Permits (PEP). The planning division staff of PEP will provide the published regulations for projects within the various sub-districts (see subsection 4 of this section) of the overlay district. It is recommended that the applicant become familiar with the pertinent regulations prior to planning the project and before the development of any working drawings. In consideration of an application for a permit for property located in the overlay district, the property owner or his or her agent

may submit documents addressing the submittal information listed in the development plan submittal requirements below (in subsection F) to the planning division of PEP for review. These documents will be reviewed for compliance with this section and all sections of the zoning ordinance. After the review, comments pertaining to zoning compliance will be shared with the applicant.

E. *Development plans submittal requirements.* This requirement of the Highland Park Neighborhood Form-Based Overlay District only applies to construction of new buildings, the expansion of an existing building that is within the minimum and maximum front yard setback area, new parking lots or alterations of parking lots over 4,000 square feet. Additionally, the overlay district requirements will only apply to properties that are bordered by a sidewalk. The following requirements replace the existing site or development plan requirements of the underlying (base) zoning. Submitted plans shall be drawn to a scale no smaller than 1" = 30' and shall include (1) the title of the development, (2) name and address of the owner or developer or agent of either, (3) name and address of the person or firm preparing each of the plans, (4) a North arrow, (5) date of preparation, and (6), if applicable, dates of any submitted revisions. Plans shall also include the following applicable information:

1. All dimensions and distances, property lines, easements, and public and private rights-of-way;
2. Existing and proposed building or structure footprints, including location of any trash containers and the method of screening them;
3. Building or structure elevation drawings;
4. Fences, walls, light poles, overhead utility lines, outdoor utility equipment and structures. This includes the location of all roof- and ground-mounted HVAC units or other mechanical appurtenances;
5. Bodies of water, water detention areas and drainage structures;
6. Location and dimensions of driveways and the number, location, and dimensions of parking spaces; dimensions of access aisles, curbs, vehicle maneuvering areas and pedestrian walkways. Bicycle racks or storage facilities must be provided other than for houses, duplexes and townhouses;
7. With the exception of houses and duplexes, a landscape plan showing compliance with the landscape standards (subsection 8) of this section;
8. When signage is proposed, a plan showing compliance with the signage standards (subsection 7) of this section;
9. Any other plans or specifications necessary to show compliance with this section.

F. *If the property is within a hazard area.*

1. *FEMA flood hazard.* All development must comply with requirements of the floodplain zone districts.

2. *Slide zone.* Development is regulated by the engineering division of PEP; projects require affidavits from geotechnical engineers to ensure stability.

G. *Interpretation.* The interpretation and application of this section shall be consistent with article VII, section 2, subsection 1.

Subsection 4. *Highland Park Neighborhood Form-Based Districts.* The regulating plan may consist of five sub-districts (FSD), which are as follows:

[A.] *(FSD-1) Reserved Urban Residential.* This is the most restrictive of the sub-districts a sub-district with common yard and civic frontage categories.

[B.] *(FSD-2) Limited Urban Residential.* A sub-district with common yard, porch with short lawn, terrace or lightwell, stoop forecourt and civic frontage categories.

[C.] *(FSD-3) General Urban Residential.* A sub-district with common yard, porch with short lawn, terrace or lightwell, stoop, forecourt shopfront and civic frontage categories.

[D.] *(FSD-4) Limited Urban.* A sub-district with common yard, porch with short lawn, terrace or lightwell, stoop, forecourt, shopfront and civic frontage categories.

[E.] *(FSD-5) General Urban.* A sub-district with common yard, porch with short lawn, terrace or lightwell, stoop, forecourt, shopfront, gallery and civic frontage categories.

Subsection 5. *Frontage categories.* All proposed projects are routed into one of the eight categories based on criteria set forth in each frontage category. A frontage category is not intended to regulate style but does dictate where on the site a structure may be placed. The frontage categories are:

[A.] *Civic.* This frontage category is developed typically for government, public or semi-public agencies. The frontage's design follows the building's function. Public parks are exempt from this overlay.

[B.] *Common yard.* This frontage category will have a planted deep front yard with the building facade set back substantially from the front lot line. The front yard is visually continuous with adjacent yards. This frontage category will normally be for a single- or two-family dwelling and have a landing attached to the front of the house at the entrance.

[C.] *Forecourt.* A frontage category, usually a larger building, with the central portion or block of the building set back between two flanking sections that are closer to the front property line, creating an open recessed court. This space can be either landscaped or used for vehicle drop-offs.

[D.] *Gallery.* A frontage category wherein the facade is aligned close to the front property line with an attached cantilevered shed or colonnade overlapping the sidewalk. This category conventionally has ground retail and mixed uses above.

[E.] *Porch with short lawn.* This frontage category has a facade that is set back a short distance from the front property line and has a large attached porch across a majority of the front elevation and small planted front yard. This frontage category will normally be used for single and two-family dwellings.

[F.] *Shopfront.* A frontage category wherein the facade is aligned close to the front property line with the building entrance at sidewalk grade. The frontage has substantial glazing on the sidewalk level; typically with an awning extend over the sidewalk. This frontage will normally be associated with a commercial use, such as a restaurant or retail store. Upper floors are frequently in office or residential uses.

[G.] *Stoop.* This frontage category will normally be used for dwellings with a short setback from the front property line. A stoop is a small uncovered landing located at or near surrounding grade.

[H.] *Terrace or lightwell.* This frontage category will normally be used for multi-family dwellings, with frontage close to the street and with a small landing; either terrace elevated above the street level or a lightwell sunk below the street level, or a combination of both.

Subsection 6. *Building form standards.*

A. *Site development standards.* The intent of the sub-district building form standards are to establish development parameters that reinforce the neighborhood's character. Most significant are the standards addressing minimum and maximum setbacks, frontage enclosures, building heights, parking access and parking location. Together, these standards reflect both the neighborhood's traditional urban form and its expressions for future improvements (see Table 1).

B. *Setback modifications.* The required front yards heretofore established shall be modified in the following cases:

1. Where an underlying zoning district on a block face has a minimum required setback and where 40 percent or more of the street frontage on the same side of a street between two intersecting streets is presently developed with buildings that have (with a variation of five feet or less) a

front yard greater or lesser in depth than herein required, new buildings shall not be erected closer to the street than the average front yard so established by the existing buildings.

2. Where an underlying zoning district on a block face has a minimum required setback and where 40 percent or more of the street frontage on one side of a street between two intersecting streets is presently developed with buildings that do not have a front yard as described above, then:
   a. Where a building is to be erected on a parcel of land that is within 100 feet of existing buildings on both sides, the minimum front yard shall be a line drawn between the two closest to the street corners of the adjacent building; or
   b. Where a building is to be erected on a parcel of land that is within 100 feet of an existing building on one side only, such building may be erected as close to the street as the existing adjacent building.
3. When none of the aforementioned modifications are applicable the form based setback standards apply.
4. For lots with established front yard setbacks the minimum front setback will begin at the established front yard and the maximum front yard setback will be the difference between the minimum and maximum setback as listed on Table 1 as measured from the established front yard.

Table 1

Form Sub-Districts / Frontage Categories	*Min. Front Setback 1, 2, 3*	*Max. Front Setback 3*	*Min. Frontage Enclosure 4*	*Min. Side Setback*	*Min. Rear Setback*	*Max. Building Height 5*	*Parking Access 6*	*Parking Location 7*	*Permitted Uses*
FSD-1									
Common Yard	20'	25'	50%	In Accord with Base Zoning	In Accord with Base Zoning	35'	Front, side, rear	Side, rear	In Accord with Base Zoning
Porch with Short Lawn	15'	25'	60%			35'	Front, side, rear	Side, rear	
Civic	15'	25'	60%			35'	Side, rear	Side, rear	
FSD-2									
Common Yard	20'	25'	50%	In Accord with Base Zoning	In Accord with Base Zoning	35'	Front, side, rear	Side, rear	In Accord with Base Zoning
Porch with Short Lawn	15'	25'	60%			35'	Front, side, rear	Side, rear	
Terrace or Lightwell	15'	20'	60%			45'	Side, rear	Side, rear	
Forecourt	15'	20'	60%			45'	Side, rear	Side, rear	
Stoop	15'	20'	60%			45'	Side, rear	Side, rear	
Civic	15'	25'	60%			45'	Side, rear	Side, rear	

Table 1

Form Sub-Districts / Frontage Categories	*Min. Front Setback 1, 2, 3*	*Max. Front Setback 3*	*Min. Frontage Enclosure 4*	*Min. Side Setback*	*Min. Rear Setback*	*Max. Building Height 5*	*Parking Access 6*	*Parking Location 7*	*Permitted Uses*
FSD-3									
Common Yard	15'	25'	60%	In Accord with Base Zoning	In Accord with Base Zoning	35'	Front, side, rear	Side, rear	In Accord with Base Zoning
Porch with Short Lawn	5'	20'	70%			45'	Front, side, rear	Side, rear	
Terrace or Lightwell	5'	20'	70%			45'	Side, rear	Side, rear	
Stoop	5'	20'	70%			60'	Side, rear	Side, rear	
Forecourt	0'	20'	80%			70'	Side, rear	Side, rear	
Shopfront	0'	20'	80%			70'	Side, rear	Side, rear	
Civic	0'	25'	70%			60'	Side, rear	Side, rear	
FSD-4									
Common Yard	15'	20'	60%	In Accord with Base Zoning	In Accord with Base Zoning	35'	Front, side, rear	Side, rear	In Accord with Base Zoning
Porch with Short Lawn	5'	15'	70%			45'	Front, side, rear	Side, rear	
Terrace or Lightwell	5'	15'	70%			45'	Side, rear	Side, rear	
Stoop	5'	15'	80%			60'	Side, rear	Side, rear	
Shopfront	0'	15'	90%			80'	Side, rear	Side, rear	
Forecourt	0'	15'	90%			80'	Side, rear	Side, rear	
Gallery	0'	10'	90%			70'	Side, rear	Side, rear	
Civic	0'	20'	70%			60'	Side, rear	Side, rear	

Table 1									
Form Sub-Districts / Frontage Categories	*Min. Front Setback* 1, 2, 3	*Max. Front Setback* 3	*Min. Frontage Enclosure* 4	*Min. Side Setback*	*Min. Rear Setback*	*Max. Building Height* 5	*Parking Access* 6	*Parking Location* 7	*Permitted Uses*
FSD-5									
Common Yard	15'	25'	70%	In Accord with Base Zoning	In Accord with Base Zoning	35'	Front, side, rear	Side, rear	In Accord with Base Zoning
Porch with Short Lawn	5'	20'	80%			45'	Front, side, rear	Side, rear	
Terrace or Lightwell	5'	15'	80'			60'	Side, rear	Side, rear	
Stoop	5'	15'	80%			60'	Side, rear	Side, rear	
Shopfront	0'	10'	90%			80'	Side, rear	Side, rear	
Forecourt	0'	10'	90%			80'	Side, rear	Side, rear	
Gallery	0'	5'	100%			70'	Side, rear	Side, rear	
Civic	0'	25'	70%			60'	Side, rear	Side, rear	

Footnotes:

1. *Minimum front setback.* Includes porches and other design features.
2. *Minimum front setback.* For corner lots in all sub-districts, the minimum front setback on secondary frontage is five feet and the maximum front setback is 20 feet.
3. *See Subsection 6B.* For required front setback modifications.
4. *Minimum frontage enclosure.* For corner lots, minimum frontage enclosure requirements only apply to primary frontage.
5. *Maximum building height.* For buildings greater than 45 feet, an additional ten feet stepback from the building's front wall is required.
6. *Parking access.* Street access is permitted for mid-block properties that do not have alley access.
7. *Parking location.* See article V, section 3 in the City's Zoning Ordinance regarding joint parking arrangements.

Subsection 7. *Building form requirements.* The following building standards apply to all sub-districts and frontage categories in Highland Park Neighborhood Form-Based Overlay Districts. Requirements in the overlay district only apply to the construction of new buildings, the expansion of an existing building that is within the minimum and maximum front yard setback area, new parking lots or alteration of parking lots over 4,000 square feet. Additionally, the overlay district requirements will only apply to properties that are bordered by a sidewalk. No building existing on the date which these regulations come into effect shall be modified so that it is less in conformance with this ordinance.

A. *Entries.* A principal building shall have its main entrance oriented to a public street and accessible from a public sidewalk or plaza. Secondary entrances are exempt from this requirement. The main entrance shall not be closed while a secondary entrance remains opened. In some frontage categories, building entrances (excluding emergency egress) facing a public street shall be determined by the following thresholds:

1. Galleries must have covered walkways at least ten feet in depth;
2. Terrace must have an elevated entry over three feet above grade and lightwells must have a sunken entry over three feet below grade;
3. Stoops must have landings no more than three feet from grade;
4. The porch with short lawn frontage category has porch size thresholds of a minimum of eight feet in depth across a majority of the front elevation and maintaining at least 40 percent openness of the exterior elevation (as measured in square feet);
5. Forecourt has a qualifying threshold that measures its openness. This threshold includes the width of the courtyard when calculating the enclosure area. The width of the courtyard shall be no less than the width of the largest building wing.

B. *Facades.*

1. Window and door openings should have a vertical orientation and vertical alignment between floors.
2. All forecourt, gallery and shopfront frontage categories may be designed with a discernible base, middle and cap defined by horizontal elements. An expression line should accentuate the base from elements above. Variations in materials and colors can help achieve this standard.
3. For mixed use and nonresidential buildings, ground floor front facades shall be not less than 40 percent or more than 90 percent clear glazing; measured between three and eight feet from finished grade. Additional floors beyond the ground floor shall be not less than 25 percent or more than 75 percent clear glazing.

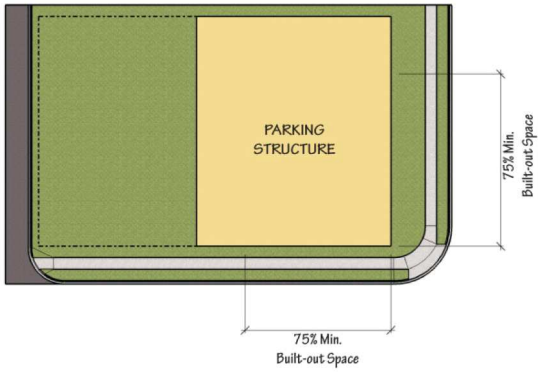
C. *Off-street parking.*

1. Off-street parking shall not be closer to the public street than the principal buildings on the same lot.

2. Dwelling parking garage doors that face public streets shall be set back three feet from the front of the building facade.

D. *Parking structures.*

1. When adjacent to public streets the ground floor of any above ground parking structure should have built-out space suitable for retail, residential, office space. Design shall include said space or provide a facade mimicking said space for a minimum of 75 percent of the public street frontage.



2. Parking structure walls must utilize materials, colors and a pattern of openings consistent with surrounding buildings.

3. Parking structure walls facing public streets or residential areas shall minimize openings to avoid noise and light impacts. This shall be accomplished with a minimum 42-inch high solid wall (measured from the finished floor elevation) on the exterior sides of each level.

4. Pole mounted light fixtures on upper decks of parking structures shall use full cut-off fixtures, have a maximum height of 16 feet, include shields for keeping light onsite and prevent the source of the light from being seen off site. Poles shall be located between internal parking rows rather than at the structure's perimeter.

5. When adjacent to public streets pedestrian circulation elements (stair towers, elevators) shall be located toward and accessible from streets.

6. When on corner lots parking access shall be from secondary streets.

7. Underground parking may be built out to the property lot lines.

E. *Street walls.* Unless otherwise restricted in this ordinance. Street walls from six to eight feet in height and up to 18 feet in length may be built as part of the frontage enclosure requirement and assist in screening. Street walls must have the same external veneer as the principal building's street frontage(s).

F. *Right-of-way.* Any structure or portion thereof which encroaches into the public right-of-way or its airspace will require an approved right-of-way agreement from the city council.

Subsection 8. *Shared parking.* Different uses have different peak parking demand times. These parking peaks may vary for daytime and evening; as well as weekday and weekends. To accommodate those varying peak parking demands, mixed use developments on one lot may use the shared parking table that follows. Parking spaces reserved for any use cannot be used in the shared parking table.

Table 2
Shared Parking Computation For Neighborhood Form Based Development

Land Use Development	*Percent of Spaces Normally Required*	*Percent Adjustment*	*Estimated Weekday Daytime*	*Percent Adjustment*	*Estimated Weekday Evening*	*Percent Adjustment*	*Estimated Weekend Daytime*	*Percent Adjustment*	*Estimated Weekend Evening*
	A	B	AXB	C	AXC	D	AXD	E	AXE
Office		100%		20%		20%		5%	
General retail		75%		80%		100%		70%	
Hotel or motel		75%		100%		75%		100%	
Restaurant or tavern		70%		100%		70%		100%	
Movie theater		45%		85%		70%		100%	
Dwelling		60%		100%		80%		100%	
Place of worship		20%		60%		100%		60%	
School or day care		100%		20%		15%		5%	
Other uses		100%		100%		100%		100%	
Total normally required _____ Required Number of Spaces is the Greatest if Total I, II, IIII or IV		TOTAL I _____		TOTAL II _____		TOTAL III _____		TOTAL IV _____	

Subsection 9. *Sign standards.* The purpose of the sign standards and guidelines is to encourage uniform and aesthetically pleasing neighborhood signage and provide signage that is complementary and well-integrated for pedestrians while also legible to vehicular traffic. All signs will adhere, at minimum, to the standards laid out in the underlying zoning district and/or article VI, section 9, sign regulations, of the City of Birmingham Zoning Ordinance, but are also subject to the following additional guidelines and restrictions.

A. *Prohibited signs.*

1. Animated, flashing, chasing, pulsating, rotating, video display, running or sequential signs are not permitted accept for signs depicting time, temperature and gasoline prices.
2. All portable signs, as defined in the City of Birmingham Zoning Ordinance, are not permitted.
3. Banners and streamers; except decorative flags, banners and bunting for celebrations, conventions and commemorations authorized by the city ordinances, are not permitted.

B. *Construction and materials.*

1. Signs shall be professionally engineered and constructed using high-quality materials.
2. A dull or matte finish is encouraged to reduce glare and enhance legibility.
3. Signs should not obscure key design features, doors or windows.
4. Wall signs for multiple businesses in the same building shall be of similar material and design.

C. *When lit.*

1. Signs may be spotlighted or externally lit with a diffused light source and should be shielded in accordance with article VI, section 9, subsection 5 of the zoning ordinance.
2. Signs may have backlighting to illuminate the background of letters, characters or graphics on the sign.
3. Neon signs are allowed.
4. Signs may be internally lit box signs when they have routed or push-through copy and designed so that only the copy is illuminated at night.

Subsection 10. *Landscape standards.* The purpose of the landscape standards is to enhance the physical appearance of buildings, and their designated parking areas, and the positive impact of parking areas on adjacent land uses. Projects involving single-family detached homes and duplexes are exempt from these requirements. Other projects with less than 4,000 square feet of parking area are not subject to item C, landscaping requirements for surface parking, of this subsection. Requirements in

this subsection only apply to the construction of new buildings, the expansion of an existing building that is within the minimum and maximum front yard setback area, new parking lots or alteration of parking lots over 4,000 square feet. Additionally, the overlay district requirements will only apply to properties that are bordered by a sidewalk.

A. *Landscape plan requirements.*

1. Landscape plans shall include:

   The site's square footage;

   Building footprint's square footage;

   The parking area's square footage;

   The title of development; name and address of owner/developer/agent; name and address of person/firm preparing the plan;

   Date of preparation; scale; north arrow; revision dates;

   Streets and easements; number of parking spaces;

   The location and dimensions of entrance, exits, doors, drives, walkways, paved areas, curbs, fences, drainage; and

   Other improvements affecting the landscaping.

2. The plan shall also illustrate where each plant is to be installed, details for installing plant material and a composite plant material schedule which totals quantities and lists all plants by common name, botanical name, size or specification and spacing.

3. Landscape plans shall be prepared by a registered landscape architect or architect. All submitted plans shall bear the architect's seal, signature and State of Alabama registration number.

B. *Design standards.* The zoning ordinance has landscape requirements for surface parking areas as well as requirements for the overall site. In addition to citywide requirements, the following requirements also apply. In case of conflicts with the citywide regulations and those of the Highland Park Neighborhood Form-Based Overlay District, the more restrictive shall apply. All landscape plans shall be drawn at no greater than 1"=30' in scale so as to convey the design intent.

1. Only trees with a mature height of greater than 40 feet may be planted to comply with the requirements of this subsection, except when site visibility at intersections or when overhead utilities prevent the use of large trees, in which case medium or small trees may be used. Large trees shall be no less than 2½-inch caliper at time of installation. Small trees shall have a minimum eight feet in height at time of installation.

2. One tree per every 2,000 square feet of required landscape area shall be installed.

3. A combination of trees, shrubs, grass and groundcovers shall be used.

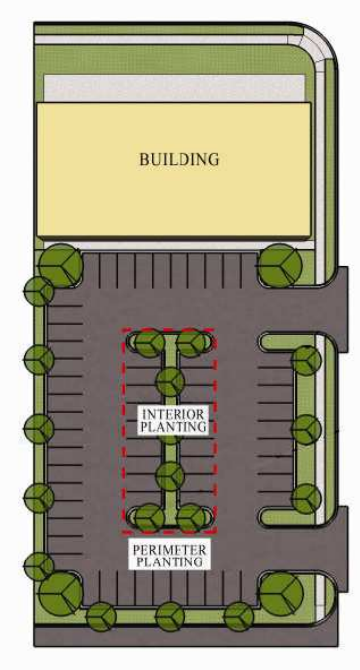
4. Plant material shall conform to the American Standard for Nursery Stock, latest edition, published by The American Association of Nurserymen.

5. All cuts and fills and/or terraces shall have sufficient vegetative cover installed so as to prevent erosion.

C. *Landscape requirements for surface parking.* These requirements apply to all areas used for off-street parking, loading, vehicle maneuvering and are 4,000 square feet or larger. A minimum of five percent of the parking area must be landscaped. The following planting layout must be followed which may exceed the five percent minimum.

1. *Perimeter surface parking planting.*

a. A perimeter planting strip shall be adjacent to any public street. These planting strips shall be a minimum of five feet wide.



b. A perimeter planting strips shall be planted with a combination of trees, shrubs and groundcovers. Shrubs shall be used to screen the right-of-way from views of parked cars and shall be maintained at no less than 36 inches in height.

c. The planting strip shall be covered with groundcover or organic or mineral mulch so as no soil is left exposed. The use of concrete, asphalt or other impervious surfaces is prohibited.

2. *Interior surface parking plantings.* These plantings are required for parking areas over 10,000 square feet: Properties used for the retail sale of automobiles are exempt from this requirement.

    a. In addition to the perimeter surface parking planting requirements, 2.5 percent, one-half of the minimum required five percent of the total square footage of the surface parking area shall be planted with trees, shrubs, grass and ground covers.

    b. Interior parking plantings must be located so that vehicles may maneuver on all sides or project into the parking area at least 18 feet with parking or maneuvering areas on three sides. Interior landscape islands or swales shall have a minimum dimension of five feet at the site where trees are located. The minimum square footage of interior parking islands or swales is 60 square feet.

    c. One landscaped island or swale shall be required for each row of 12 contiguous parking spaces. This island shall be planted with at least one tree each that meets the minimum requirements of this subsection.

D. *Overall site landscape requirements.*

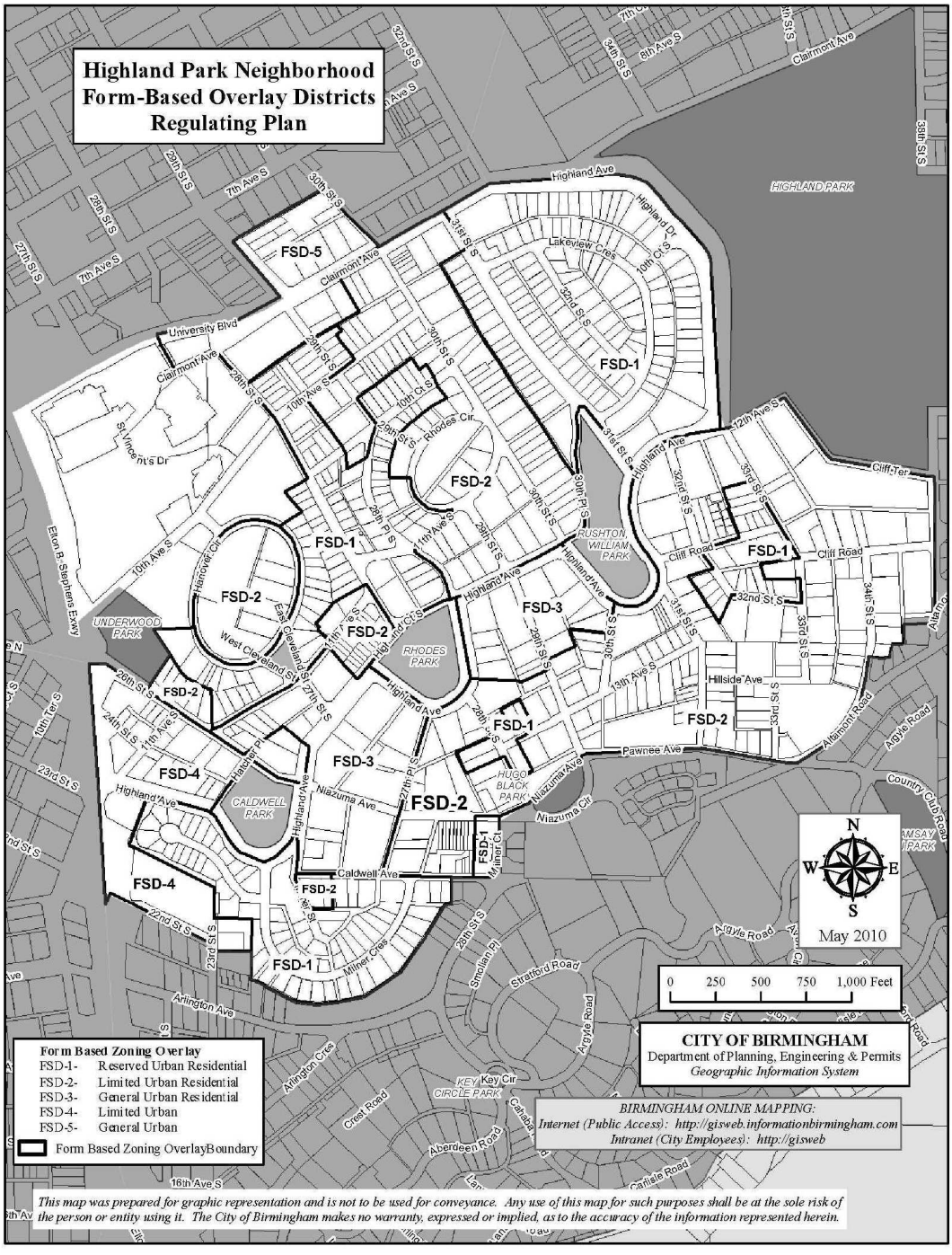
1. Five percent of the site (minus parking area and structures) shall be landscaped.

2. Plantings shall conform to item B, design standards, of this subsection.

E. *Special screening requirements.* Dumpsters and other trash receptacles for all uses other than single-family or two-family residences shall be screened from public streets or properties which are zoned for residential use. Receptacles shall be below grade or shall be placed on a concrete pad and enclosed on three sides by wall at a height taller than the container. Enclosures' fourth side shall have an opaque gate unless the service opening is oriented away from public streets or adjacent residential properties. The enclosure shall be built of permanent materials with a veneer similar to the principal structure's veneer.

F. *Maintenance.* The property owner shall be responsible for the maintenance, repair and replacement of all landscape materials, barriers and irrigation systems required by this subsection. All plant material shall be maintained in perpetuity in a healthy growing condition, replaced when dead and kept free of weeds, refuse and debris.

G. *Irrigation.* Plant material irrigation is encouraged. It is preferable that nonpotable water be used for irrigation.



(Ord. No. 10-68, § 1, 5-11-2010)

Section 21. Payday (deferred presentment) and title loans.

1. *General applicability.* The regulations set forth in this section supplement or modify the district regulations appearing elsewhere in this [appendix]. The regulations shall apply to any business that has been designated by the Council of the City of Birmingham and by the required license schedule as a payday loan (deferred presentment) and title loan operation.

2. *Purpose.* The purpose of this section is to amend the Zoning Ordinance of the City of Birmingham, Alabama, in order to:

a. Reduce traffic congestion that is reported to be associated with these types of businesses;

b. Reduce the concentration of these types of businesses in certain areas in an effort to encourage and enhance economic development within that area by promoting business diversity in the offering of other goods and/or services in the area;

c. Provide for zoning protection of existing residential and commercial real estate values from possible economic impairment by these types of businesses; and

d. In general to provide for the protection of the health, safety, comfort and general welfare of the citizens of the City of Birmingham.

3. *Finding of fact.* Based upon the evidence and information submitted to the Council, the governing body of the city of Birmingham, Alabama, including statements of citizens submitted to the Council, expert opinions submitted to and considered by this Council, and the knowledge and experience gained by Council members both prior to and while serving as members of this Council, this Council hereby makes the following findings of fact:

a. There [is] a disproportionate number of these types of businesses within the corporate limits of the City of Birmingham based upon the number per resident compared to the other cities within Jefferson County and within unincorporated Jefferson County.

b. According to public statements made by real estate developers, real estate agents, community leaders, clergy, and members of the general public, a "negative community reputation" has been created by these businesses because of the extraordinarily high interest rates for these loans. Consumers of the services offered by these businesses have also made statements that terms and conditions associated with these types of loans are confusing and very difficult to understand.

c. Real estate developers and agents have stated that this "negative community reputation" has a detrimental effect on the location of other commercial developments within the area and that these businesses tend to diminish nearby real estate values.

4. *Definitions.* As used in this section, the following words and phrases will have the following meanings:

a. *Payday loan (deferred presentment) business.* A business that, in accordance to [with] the requirements and restrictions listed in Chapter 18A of Title 5 of the Code of Alabama (Alabama Deferred Presentment Services Act), involves a transaction pursuant to a written agreement involving the following combination of activities in exchange for a fee: (1) accepting a check or authorization to debit a checking account and, in connection with that acceptance, advancing funds to the checking account holder; and (2) holding the check or authorization to debit the checking account for a specified period of time.

b. *Title loan business.* Any business that offers a short-term loan that is collateralized by the title of a vehicle in accordance with the requirements and restrictions described and detailed in Chapter 19A of Title 5 of the Code of Alabama (Alabama Pawn Shop Act).

5. *Locational requirements.* In order to provide for more economic opportunities within certain areas of the City of Birmingham, the following spacing requirements are required:

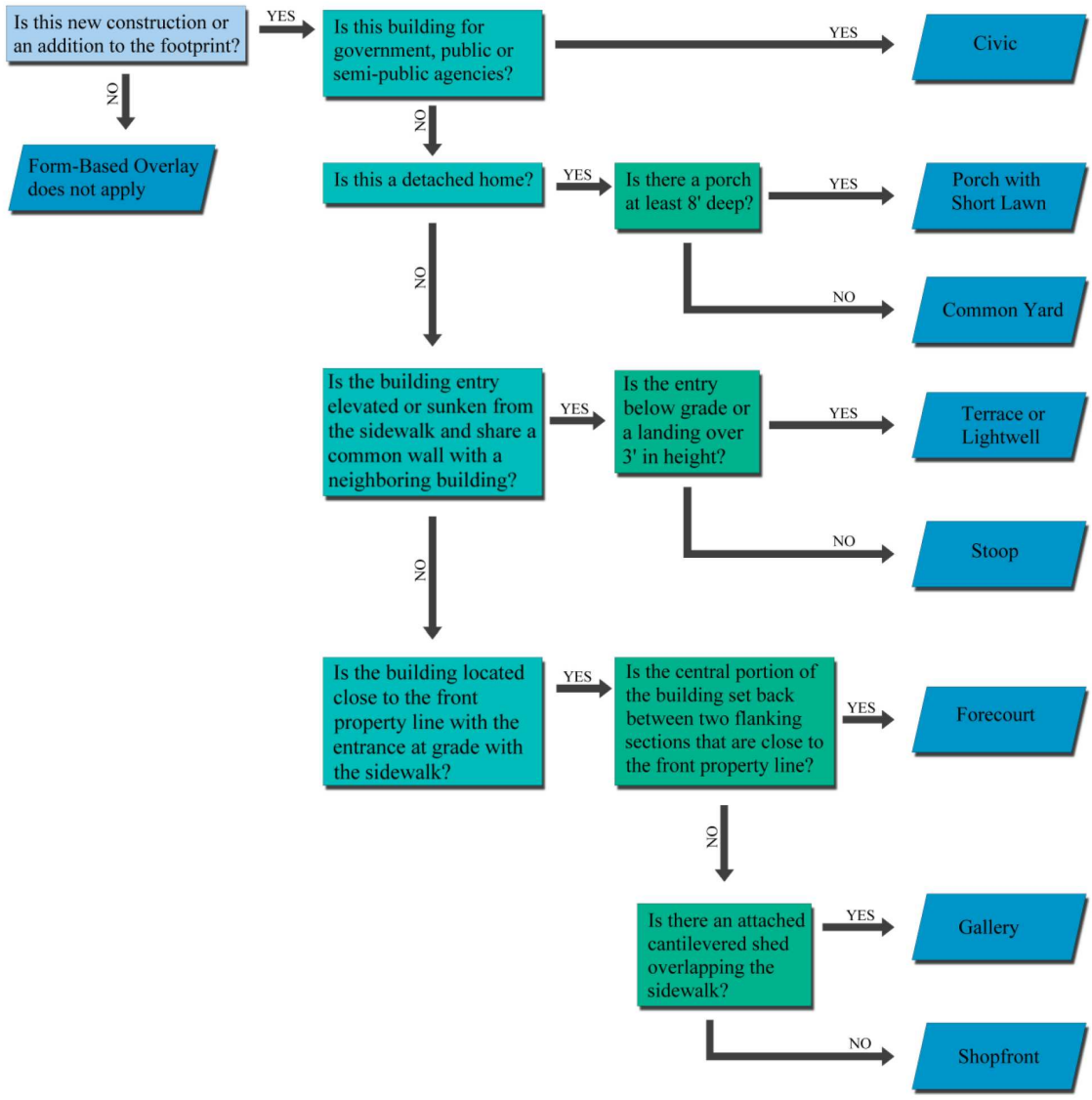
a. No payday loans (deferred presentment) and/or title loan business (as described and detailed within this section) established after the enactment of this ordinance [section] shall be located within 2,000 linear feet of another such business. The method of measurement that shall be used is a straight line measured from the closest portion of a lot or property that is occupied by these businesses.

b. Any properly licensed payday loan (deferred presentment) and/or title loan business (as described and detailed within this section) existing at the time of the enactment of this section that is within 2,000 feet of another such business (as measured as described above) shall be considered to be a legal nonconforming use.

(Ord. No. 13-178, § 4, 12-26-2013)

Appendix A

Form-Based Flow Chart



(Ord. No. 10-68, app. A, 5-11-2010)

Appendix B

FRONTAGE CATEGORY: Civic

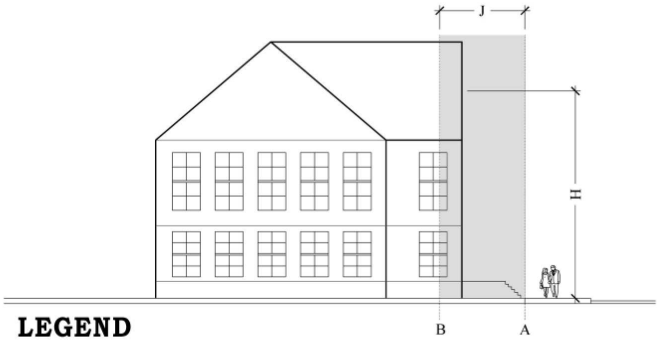
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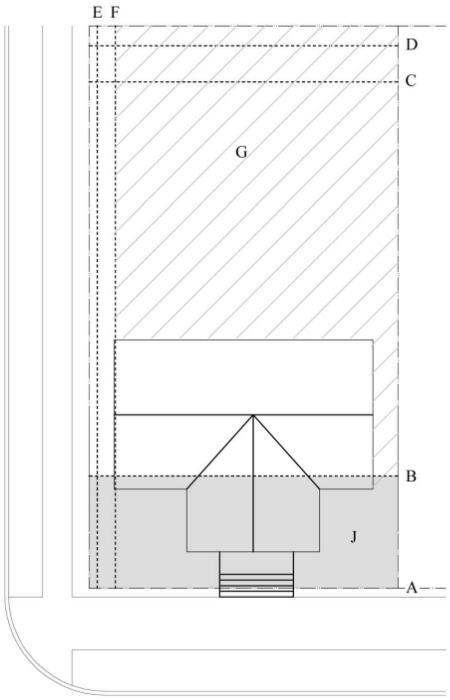


Definition:
This frontage type is developed typically for government, public or semi-public agencies. The frontage's design follows the building's function. Public parks are exempt from this overlay.

Allowed Sub-Districts:
FSD-1, FSD-2, FSD-3, FSD-4, FSD-5

FRONTAGE STANDARDS



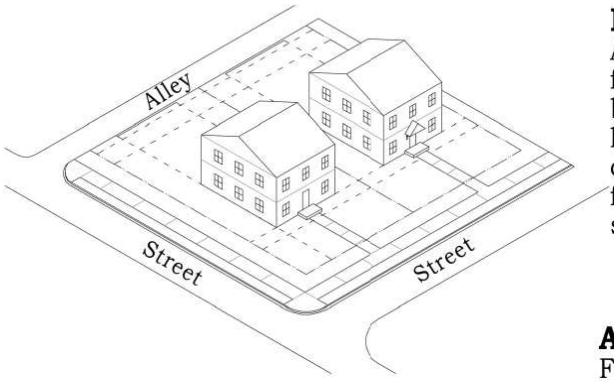


LEGEND
A. Minimum front setback
B. Maximum front setback
C. Minimum rear setback - principal building
D. Minimum rear setback - accessory building
E. Minimum secondary frontage setback - corner lot
F. Maximum secondary frontage setback - corner lot
G. Allowed parking location
H. Maximum building height
J. Enclosure area

BUILDING HEIGHT	MIN. FRONTAGE ENCLOSURE
FSD-1: 35’	FSD-1: 60%
FSD-2: 45’	FSD-2: 60%
FSD-3: 60’	FSD-3: 70%
FSD-4: 60’	FSD-4: 70%
FSD-5: 60’	FSD-5: 70%

FRONTAGE CATEGORY: Common Yard

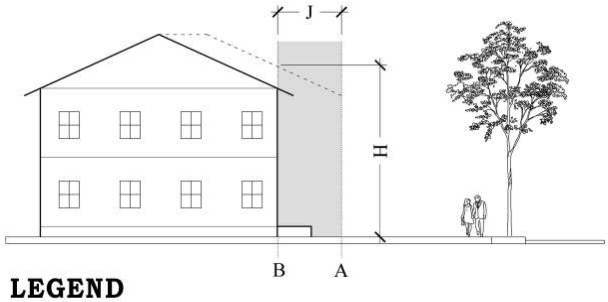
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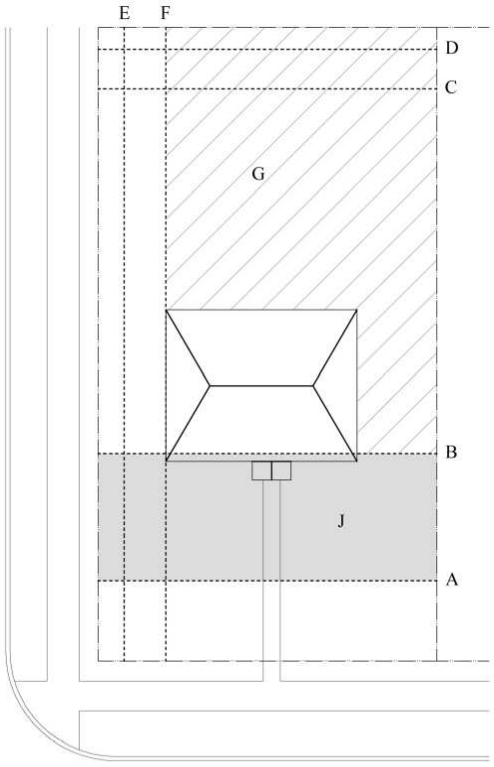
Definition:
A frontage category with a planted deep front yard with the building facade set back substantially from the front lot line. The front yard created is visually continuous with adjacent yards. This frontage type will normally be for a single or two family dwelling.

Allowed Sub-Districts:
FSD-1, FSD-2, FSD-3, FSD-4, FSD-5

FRONTAGE STANDARDS



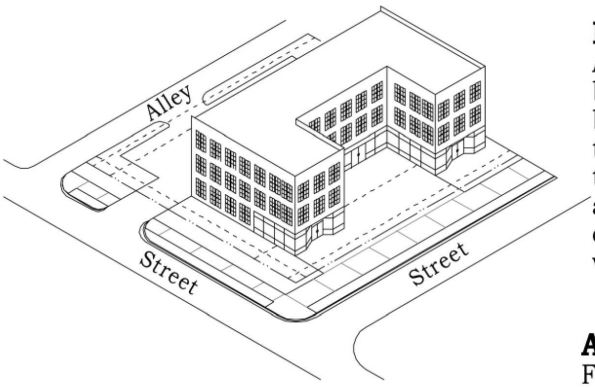
LEGEND
A. Minimum front setback
B. Maximum front setback
C. Minimum rear setback - principal building
D. Minimum rear setback - accessory building
E. Minimum secondary frontage setback - corner lot
F. Maximum secondary frontage setback - corner lot
G. Allowed parking location
H. Maximum building height
J. Enclosure area



BUILDING HEIGHT	MIN. FRONTAGE ENCLOSURE
FSD-1: 35’	FSD-1: 50%
FSD-2: 35’	FSD-2: 50%
FSD-3: 35’	FSD-3: 60%
FSD-4: 35’	FSD-4: 60%
FSD-5: 35’	FSD-5: 70%

FRONTAGE CATEGORY: Forecourt

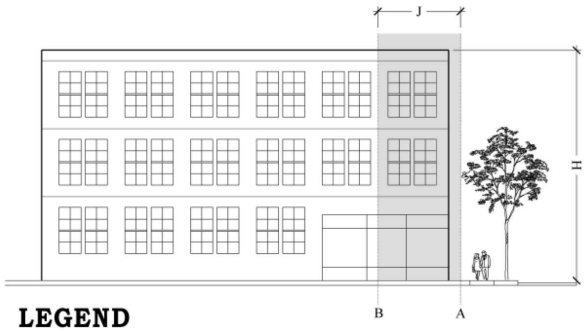
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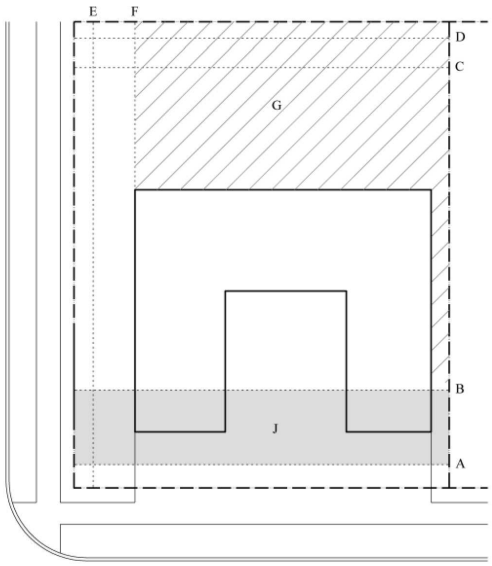
Definition:
A frontage category, usually a larger building, with the central portion or block of the building set back between two flanking sections that are closer to the front property line, creating an open recessed court. This space can be either landscaped or used for vehicle drop-offs.

Allowed Sub-Districts:
FSD-2, FSD-3, FSD-4, FSD-5

FRONTAGE STANDARDS



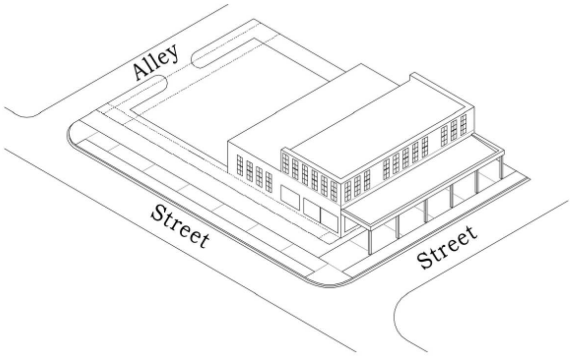
LEGEND
A. Minimum front setback
B. Maximum front setback
C. Minimum rear setback - principal building
D. Minimum rear setback - accessory building
E. Minimum secondary frontage setback - corner lot
F. Maximum secondary frontage setback - corner lot
G. Allowed parking location
H. Maximum building height
J. Enclosure area



BUILDING HEIGHT	MIN. FRONTAGE ENCLOSURE
FSD-2: 45’	FSD-2: 60%
FSD-3: 60’	FSD-3: 70%
FSD-4: 60’	FSD-4: 80%
FSD-5: 60’	FSD-5: 80%

FRONTAGE CATEGORY: Gallery

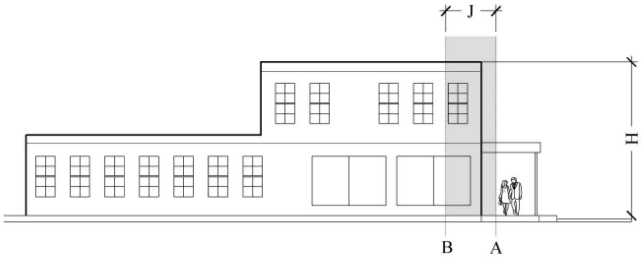
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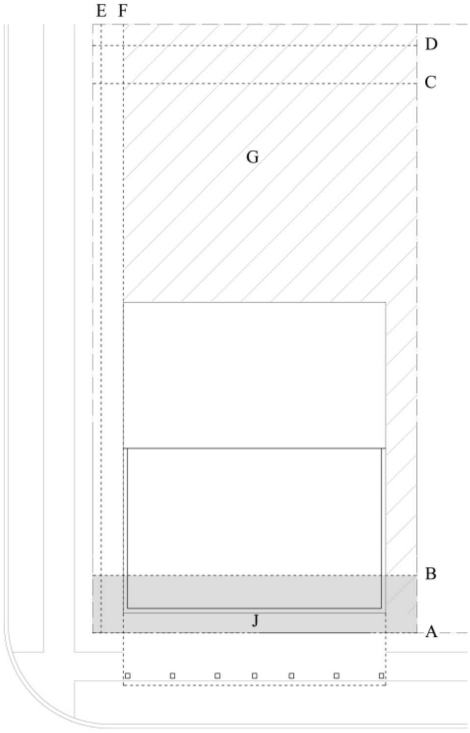


Definition:
A frontage category wherein the facade is aligned close to the front property line with an attached cantilevered shed or colonnade overlapping the sidewalk. This type conventionally has ground retail and mixed uses above.

Allowed Sub-Districts:
FSD-4, FSD-5

FRONTAGE STANDARDS





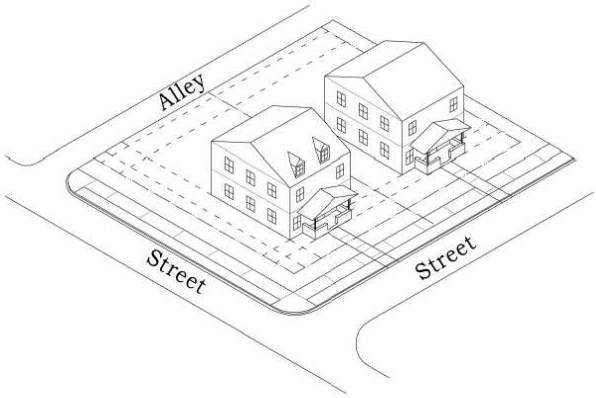
LEGEND
A. Minimum front setback
B. Maximum front setback
C. Minimum rear setback - principal building
D. Minimum rear setback - accessory building
E. Minimum secondary frontage setback - corner lot
F. Maximum secondary frontage setback - corner lot
G. Allowed parking location
H. Maximum building height
J. Enclosure area

BUILDING HEIGHT
FSD-4: 70'
FSD-5: 70'

MIN. FRONTAGE ENCLOSURE
FSD-4: 90%
FSD-5: 100%

FRONTAGE CATEGORY: Porch with Short Lawn

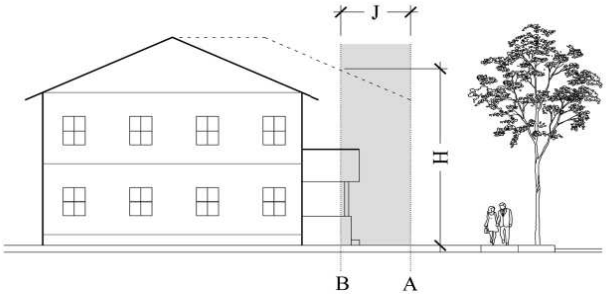
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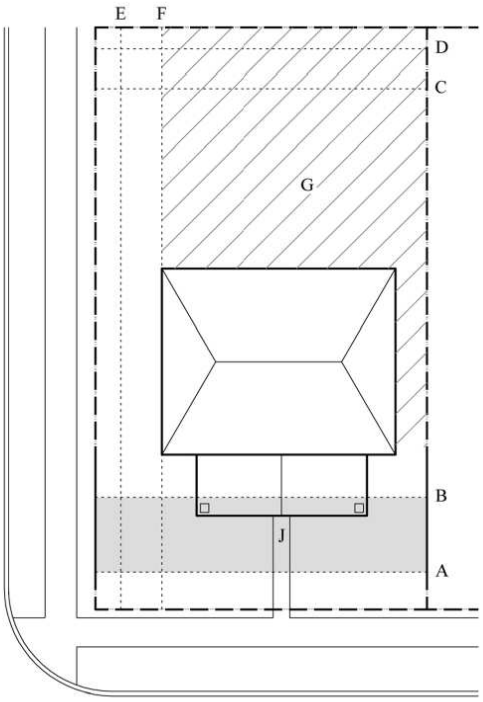
Definition:
This frontage type has a façade that is set back a short distance from the front property line and has a large attached porch across a majority of the front elevation and small planted front yard. This frontage type will normally be used for single and two-family dwellings.

Allowed Sub-Districts:
FSD-1, FSD-2, FSD-3, FSD-4, FSD-5

FRONTAGE STANDARDS



LEGEND
A. Minimum front setback
B. Maximum front setback
C. Minimum rear setback - principal building
D. Minimum rear setback - accessory building
E. Minimum secondary frontage setback - corner lot
F. Maximum secondary frontage setback - corner lot
G. Allowed parking location
H. Maximum building height
J. Enclosure area

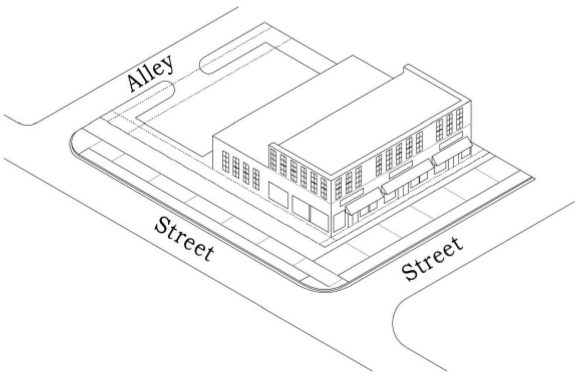


BUILDING HEIGHT
FSD-1: 35'
FSD-2: 35'
FSD-3: 45'
FSD-4: 45'
FSD-5: 45'

MIN. FRONTAGE ENCLOSURE
FSD-1: 60%
FSD-2: 60%
FSD-3: 70%
FSD-4: 70%
FSD-5: 80%

FRONTAGE CATEGORY: Shopfront

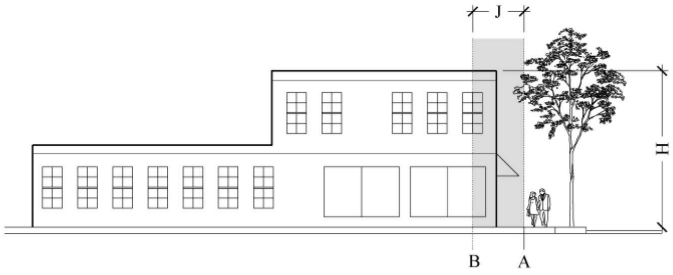
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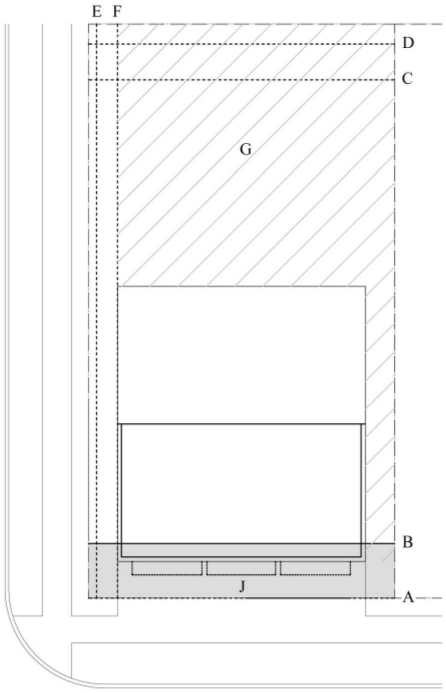


Definition:
A frontage category wherein the facade is aligned close to the front property line with the building entrance at sidewalk grade. The frontage has substantial glazing on the sidewalk level; typically with an awning extend over the sidewalk. This frontage will normally be associated with a commercial use, such as a restaurant or retail store. Upper floors are frequently in office or residential uses.

Allowed Sub-Districts:
FSD-3, FSD-4, FSD-5

FRONTAGE STANDARDS





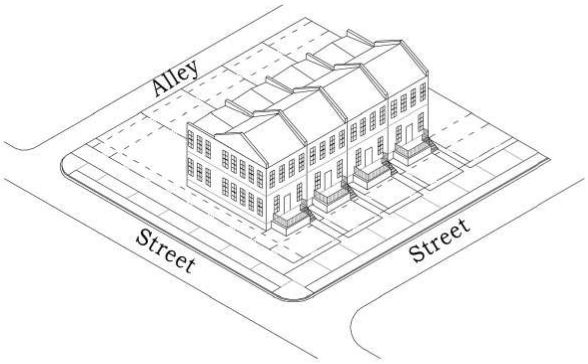
LEGEND
A. Minimum front setback
B. Maximum front setback
C. Minimum rear setback - principal building
D. Minimum rear setback - accessory building
E. Minimum secondary frontage setback - corner lot
F. Maximum secondary frontage setback - corner lot
G. Allowed parking location
H. Maximum building height
J. Enclosure area

BUILDING HEIGHT
FSD-3: 70'
FSD-4: 80'
FSD-5: 80'

MIN. FRONTAGE ENCLOSURE
FSD-3: 80%
FSD-4: 90%
FSD-5: 90%

FRONTAGE CATEGORY: Stoop

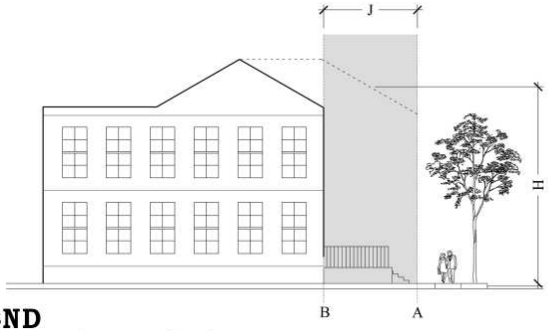
CLASSIFICATION

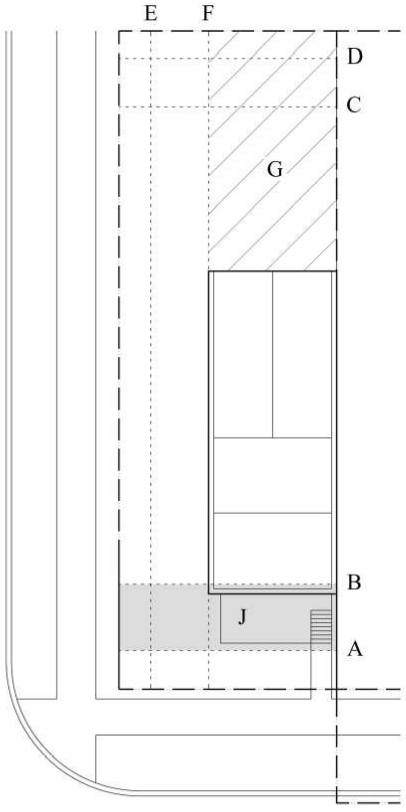


Definition:
This frontage category will normally be used for dwellings with a short setback from the front property line. A stoop is a small uncovered landing located at or near surrounding grade.

Allowed Sub-Districts:
FSD-2, FSD-3, FSD-4, FSD-5

FRONTAGE STANDARDS



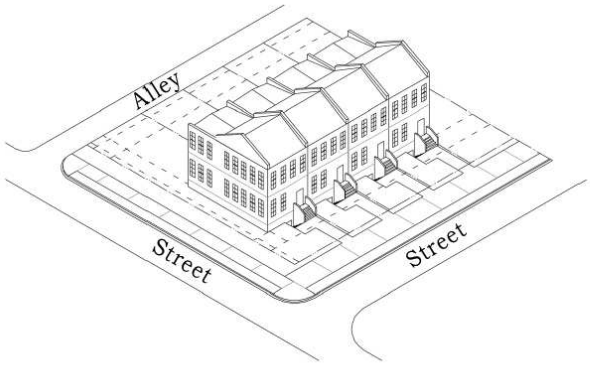


LEGEND
A. Minimum front setback
B. Maximum front setback
C. Minimum rear setback - principal building
D. Minimum rear setback - accessory building
E. Minimum secondary frontage setback - corner lot
F. Maximum secondary frontage setback - corner lot
G. Allowed parking location
H. Maximum building height
J. Enclosure area

BUILDING HEIGHT	MIN. FRONTAGE ENCLOSURE
FSD-2: 45’	FSD-2: 60%
FSD-3: 45’	FSD-3: 70%
FSD-4: 45’	FSD-4: 70%
FSD-5: 60’	FSD-5: 80%

FRONTAGE CATEGORY: Terrace or Lightwell

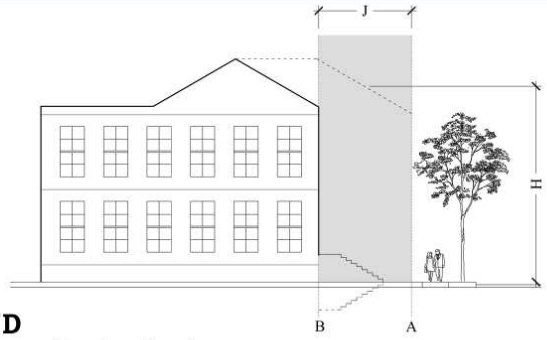
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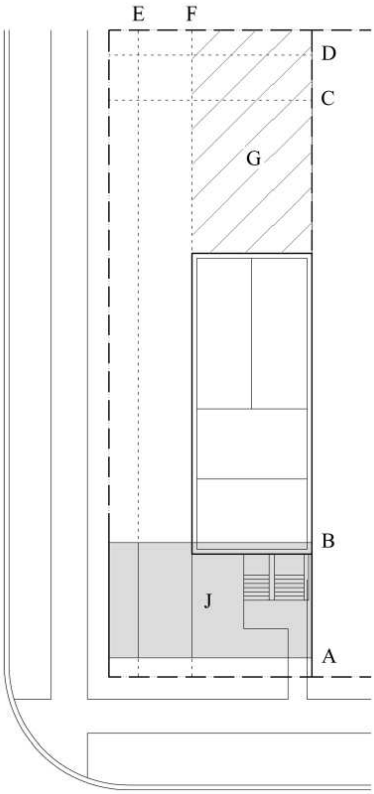


Definition:
This frontage category will normally be used for apartments or condominiums, with frontage close to the street and with a small landing; either terrace elevated above the street level or a lightwell sunk below the street level, or a combination of both.

Allowed Sub-Districts:
FSD-2, FSD-3, FSD-4, FSD-5

FRONTAGE STANDARDS





LEGEND
A. Minimum front setback
B. Maximum front setback
C. Minimum rear setback - principal building
D. Minimum rear setback - accessory building
E. Minimum secondary frontage setback - corner lot
F. Maximum secondary frontage setback - corner lot
G. Allowed parking location
H. Maximum building height
J. Enclosure area

BUILDING HEIGHT	MIN. FRONTAGE ENCLOSURE
FSD-2: 45'	FSD-2: 60%
FSD-3: 45'	FSD-3: 70%
FSD-4: 45'	FSD-4: 70%
FSD-5: 60'	FSD-5: 80%

(Ord. No. 10-68, app. B, 5-11-2010)

Appendix C. Calculating Birmingham's Minimum Landscaping Requirements

The zoning ordinance requires landscaping for parking areas as well as site landscaping for lots located in certain zoned districts. Except for special design areas such as Oxmoor, Highway 280, Form Based Zoning Districts and Commercial Revitalization Districts, the following are the minimum landscaping requirements. Develop plans must show all building doors, drives, walkways, paved areas, curbs, fences, drainage and other improvements affecting landscaping. Grass and other ground cover alone will not satisfy these landscaping requirements; the plan must include trees and/or shrubs. The plan should designate where each plant is to be installed, include details for installing plant materials and a composite schedule which totals quantities and list all plants by common name, botanical name, size or specification, and spacing.

For parking lot landscaping.

1. To determine if this requirement is applicable for parking areas, first calculate the square feet of the paved parking and maneuvering areas. If this area is 4,000 square feet or larger the parking lot landscape requirements apply. If it is under that size, go to number seven.

2. If the parking area is 4,000 square feet or larger, calculate the gross square footage of the lot; or for large acreage parcels, calculate all of the disturbed, cleared and graded areas. For purposes of a formula calculation, the lot or site's gross area may be called A.

3. Next calculate the total square footage of the footprints of all structures. For purposes of a formula calculation, the sum total structural footprint may be called B.

4. For parking areas a minimum of five percent of the gross area (minus structures) must be landscaped. The formula for the minimum landscaped requirement is A minus B time five percent (A-B times 0.05). The purpose of this landscaping requirement is to screen the parking lot from passers-by on adjacent streets or from incompatible or less intensive adjacent land uses. Therefore the location of the landscaping on the site must accomplish that objective.

5. If a parking area is 10,000 square feet or larger, then half the minimum requirement 2.5 percent must be in interior landscaped islands within the parking lot. Gasoline service stations and automobile sales lots are exempt from the interior planting requirements.

6. Qualifying interior islands must be islands within or peninsulas protrude at least 18 feet into the parking or maneuvering areas and must not in any way infringe on the minimum parking space size of 9 x 18 feet.

For site landscaping. There is also an overall general site landscaping requirement of five percent of the site, in addition to the parking lot landscape requirement. To accomplish this requirement's objective the selected plant locations should be around the building or as landscaped buffers between the site and incompatible, less intensive adjacent land uses.

7. In addition to parking lot landscaping there are also overall general landscaping requirements of five percent for sites. To calculate the required site landscaping, determine the lot square footage or for large acreage parcels all disturbed, cleared and graded areas. For purposes of a formula calculation, the lot or site's gross area may be called X.
8. Calculate the total square footage of the footprints of all structures. For purposes of a formula calculation, the sum total structural footprint may be called Y.
9. Calculate the square feet of the paved parking and maneuvering areas and if applicable the minimum parking lot landscaping required in number 4 above. For purposes of a formula calculation, the sum total parking lot areas may be called Z.
10. The general five percent site landscaping requirement shall be determined by using the following formula: X minus the sum of Y plus Z times five percent [X-(Y+Z)] times 0.05.

(Ord. No. 10-68, app C, 5-11-2010)

[ARTICLE VII. ADMINISTRATION, INTERPRETATION, AMENDMENTS AND ANNUAL REVIEW]

Section 1. Administration.

Subsection 1. *Enforcement.* The duty of administering and enforcing the provisions of this ordinance is hereby conferred upon the director of the department of planning, engineering and permits. It shall also be the duty of all officers and employees of the city and especially of all members of the police and fire departments to assist the director of the department of planning, engineering and permits by reporting to him new construction, reconstruction or new land uses and apparent violations of this ordinance.

Subsection 2. *Building permits.* All applications for building permits for the construction of any building or for the alteration of any building where such alterations will cause an increase in the land coverage of such building, shall be accompanied by an acceptable drawing or plat in duplicate drawn to scale showing the lot plan, the location of the building on the lot as constructed or altered, accurate dimensions of the building and lot, and such other information as may be necessary to enable the director of planning, engineering and permits to determine that the

proposed structure and use of land will conform to the provisions of this ordinance. All dimensions shown on these drawings or plats relating to the location and size of the lot to be built upon shall be based on an actual survey and it shall be in a form acceptable to the director of planning, engineering and permits. The original copy of such applications and plats shall be kept in the office of the director of planning, engineering and permits and the duplicate copy shall be kept with the building permit at the building at all times during construction.

Subsection 3. *Certificates of occupancy.* Certificates of occupancy shall be required for any of the following and shall be obtained from the director of planning, engineering and permits:

1. Occupancy and use of a building hereafter erected, except for a single-family dwelling.

2. Change in use of land or an existing building, including an increase in the number of dwelling units.

3. Any change in the use of a nonconforming use.

4. No fee shall be charged for an original and two copies of a certificate of occupancy as required herein, but for each additional copy there shall be a charge of $1.00, which shall be remitted to the director of finance of the City of Birmingham.

Section 2. Interpretation of ordinance.

Subsection 1. *Minimum requirements.* In interpreting and applying the provisions of this ordinance, they shall be held to be the minimum requirements for the promotion of public health, safety, convenience, comfort, morals and the general welfare. Where this ordinance imposes greater restrictions upon the use of a building or land or upon the height, bulk or size of a building or structure, or requires larger open spaces, yard area or lot area, than are imposed or required by other ordinances, rules, regulations or permits, or by easements, covenants or agreements, the provisions of this ordinance shall govern. Where any other ordinances, rules, regulations, or permits or restrictive conditions of the city or city agencies charged with zoning responsibilities impose greater restrictions upon the use of a building or upon the height, bulk or size of a building or structure, or require larger open spaces, yard area or lot area than are required under the regulations of this ordinance, such provisions shall govern.

Subsection 2. *City not subject to ordinance.* Any provision of this ordinance to the contrary notwithstanding, the city, in exercising any governmental function, power or authority, shall not be subject to the provisions of this ordinance or in anyway limited thereby in the exercise of such governmental function, power or authority.

Section 3. Amendments and changes.

Subsection 1. *Requirements for change.* Whenever the public necessity, convenience, general welfare or good zoning practice warrants such action, the city council, by the favorable vote of a majority of the members, may amend, supplement, modify or repeal the regulations of zoning district boundaries herein established.

Subsection 2. *Petition for or initiation of change.* A proposed change of the zone district boundaries or of the regulations may be initiated by the city council, the planning commission, the zoning advisory committee of the Birmingham Planning Commission, or by petition of one or more owners or authorized agents of such owners of property within the area proposed to be changed.

Subsection 3. *Action on petition.* Any proposed amendment, supplement, modification, or repeal shall first be submitted to the zoning advisory committee of the Birmingham Planning Commission for its recommendations and report. After the city council shall have received the recommendation of the zoning advisory committee of the Birmingham Planning Commission on the proposed change, or if no recommendation is received from the zoning advisory committee of the Birmingham Planning Commission within 60 days of the date of application, the city council may proceed to hold a public hearing in relation thereto, giving not less than 15 days notice of the time, place and object thereof by publication in a newspaper of general circulation in the City of Birmingham. The proposed change may be deemed by the applicant to have been denied if the city council takes no final action upon the same within 150 days after the filing of the application, or within 90 days after receipt of the recommendation by the zoning advisory committee of the Birmingham Planning Commission, provided that this sentence shall not be construed to divest the city council of jurisdiction to take final action on such proposed change at any time prior to any litigation instituted thereon against this council or the city by the applicant.

Subsection 4. *Fees.* Before any action shall be taken as provided in this section, the applicant petitioning for a change shall deposit with the City of Birmingham the sum of $500.00 to cover the approximate cost of this procedure, which also includes the placement of two separate notifications in a newspaper of general publication within Jefferson and/or Shelby County. Under no condition shall any part thereof be refunded for failure of such amendment to be enacted into law.
(Ord. No. 10-31, 3-5-2010)

Subsection 5. *Reinitiating or rehearing petitions.* Whenever the city council, following upon a duly scheduled public hearing as hereinabove provided in subsection 3, votes on the merits of an applicant's petition for a zoning change or amendment, and as a result of such vote the council fails to approve such zoning change or amendment, no action shall be initiated for a zoning change or amendment affecting that same parcel of land before the passage of one year following the date of the council vote; provided, however, the city council itself may, by resolution duly adopted, vote to either (a) reinitiate the proposed zoning amendment before the zoning

advisory committee or (b) schedule a rehearing of the petition for the proposed zoning amendment before the council. Any such resolution to rehear a petition as provided for in (b) above must be on a council agenda for the council's consideration at a time no later than 30 days following the meeting of council at which the proposed zoning amendment failed to obtain such council approval. In the event the resolution is one to rehear the petition for a proposed zoning change or amendment before the council, the resolution shall state the date of the council meeting whereat such rehearing will be held, which date shall be sufficiently advanced so as to permit not less than 15 days' notice of the meeting as hereinabove provided in subsection 3 of this section.
(Ord. 09-157, 3-2-2010; Ord. No. 10-31, § 1(3), 3-2-2010)

Section 4. Violation and penalty.

Subsection 1. *Penalty.* In addition to all other means provided by law for the enforcement of the provisions of this ordinance, any person violating any of the provisions hereof shall, upon conviction, be punished within the limits of and as provided by section 1-1-6 of the General Code of the City of Birmingham. (Not more than $500.00 fine or imprisonment not more than six months or by both). Each day that a violation exists shall constitute a separate offense.

Section 5. Validity.

Subsection 1. *Severability of ordinance.* If any section or provision of this ordinance be declared by a court of competent jurisdiction to be invalid, such decision shall not affect the validity of the ordinance as a whole or any part thereof other than the part so declared to be invalid.

Section 6. Annual review.

[Subsection] 1. At the beginning of each calendar year, the zoning administrator shall compile a listing of each rezoning case from the previous year. These cases, along with a written report, shall be submitted to the Birmingham Planning Commission for approval.

[Subsection] 2. The written report shall contain, at a minimum, the following:

a. Case information and comments.

   (1) Prior year case list including case number, location, and basic request information.

   (2) "Q" conditions with criteria for each case.

   (3) Possible adverse or unusual effects of previous cases on surrounding property.

   (4) Recommendations to cure adverse effects or to pursue desirable effects.

b. Text changes.

(1) Prior year text change list including case number and nature of change.

(2) Suggestions and purposes for further text changes.

[Subsection] 3. The written report shall also be submitted to the city council along with any verbal presentation that the appropriate council committee deems necessary.

[Subsection] 4. In the event that any text changes are recommended, the zoning administrator shall forward each, jointly or severally, to the zoning advisory committee for a recommendation, and then to the city council for approval. All notification requirements must be adhered to.

[Subsection] 5. The written report shall be entitled "An Annual Review of Rezonings and Suggested Text Changes," and shall be submitted to the planning commission at its February meeting.

[ARTICLE VIII. ZONING BOARD OF ADJUSTMENT]

Section 1. Creation and membership.

The zoning board of adjustment is hereby established. The word "board," when used in this ordinance, shall be construed to mean the zoning board of adjustment. The board created in accordance with and as authorized by Act No. 326 of the 1969 regular session of the Legislature of Alabama shall consist of seven members, appointed by the city council for overlapping terms of seven years, one of which shall be a person licensed by the State of Alabama to engage in the real estate profession either as a broker or sales person; one of which shall be a person licensed by the State of Alabama as a registered architect; one of which shall be a person licensed by the State of Alabama to engage in building construction; the remaining four members shall represent other diverse segments of the population not principally affiliated with the above professions.

No member of the zoning board of adjustment of the City of Birmingham shall cast any vote or debate on any matter pending before the board which would benefit directly or indirectly any such member or persons in said member's immediate family, or any business with which said member is associated.

All members of the zoning board of adjustment of the City of Birmingham shall be citizens and residents of the City of Birmingham. Any member who ceases to be a citizen and resident of the City of Birmingham shall vacate said position on the zoning board of adjustment immediately.

Section 2. Meetings, procedure and records.

Meetings of the board shall be held at such times as the board may determine, or upon call of the chairman. Such chairman or, in his absence, the vice-chairman, may administer oaths and compel the attendance of witnesses. All meetings of the board shall be open to the public.

The board shall adopt and publish its own rules of procedure and keep minutes of its proceedings, showing the vote of each member upon each question, or if absent or failing to vote, indicating such fact, and shall keep records of its examinations and other official actions, all of which shall be immediately filed in the office of the board and shall be a public record.

Section 3. Appeals to the board.

An appeal from the decision of the director of the department of planning, engineering and permits may be taken to the board by any person aggrieved, or by any officer, department, board or agency of the City of Birmingham affected by such decision.

Such appeal shall be taken within a reasonable time, as provided by the rules of the board, by filing with the director of the department of planning, engineering and permits and with the board a notice of appeal specifying the grounds thereof.

The director of the department of planning, engineering and permits shall forthwith transmit to the board all the papers constituting the record upon which the action appealed was taken. An appeal stays all proceedings in furtherance of the action appealed from, unless the director of the department of planning, engineering and permits certifies to the board, after the notice of appeal shall have been filed with him, that by reason of facts stated in the certificate a stay would, in his opinion, cause imminent peril to life or property. In such case, proceedings shall not be stayed otherwise than by a restraining order which may be granted by the board or by a court of record on application or notice to the director of the department of planning, engineering and permits and on due cause shown.

Section 4. Hearing of appeals.

The board shall fix a reasonable time for the hearing of an appeal taken within the time specified by its rules, given public notice thereof, as well as due notice to all adjacent property owners, and decide the same within a reasonable time. Upon the hearing of such appeal, any party may appear in person, or by agent or attorney.

Section 5. Powers and duties.

The board in appropriate cases and subject to appropriate conditions and safeguards, shall have the following powers:

1. To hear and decide appeals where it is alleged there is error in any order, requirement, decision or determination made by the director of the department of planning, engineering and permits in the enforcement or application of this ordinance.

2. To authorize in specific cases a variance from the terms of this ordinance such as will not be contrary to the public interest, where owing to special conditions a literal enforcement of the provisions of this ordinance will result in unnecessary hardship, but where the spirit of the ordinance shall be observed and substantial justice done. Such special conditions shall be limited to exceptional narrowness, shallowness or shape of a specific piece of property existing at the time of the enactment of this ordinance, or exceptional topographic conditions or other extraordinary and exceptional situations or conditions of such piece of property as would result in peculiar, extraordinary and practical difficulties. However, the granting of the variance shall not allow a structure or use in a district restricted against such structure or use, except as specifically provided for in this article. No variance shall be authorized unless the board finds all of the following conditions exist:

    a. That the special circumstances or conditions applying to the building or land in question are peculiar to such premises and do not apply generally to other land or buildings in the vicinity.

    b. That the granting of the application is necessary for the preservation and enjoyment of a property right and not merely to serve as a convenience to the applicant.

    c. That the condition from which relief for a variance is sought did not result from action by the applicant.

    d. That the authorizing of the variance will not impair an adequate supply of light and air to adjacent property or unreasonably increase the congestion in public streets, or increase the danger of fire, or imperil the public safety, or unreasonably diminish or impair established property values within the surrounding areas, or in any other respect impair the health, safety, comfort, morals, or general welfare of the inhabitants of the City of Birmingham.

3. The board may modify the strict application of the provisions of this ordinance and cause a permit to be issued upon such reasonable condition as it may prescribe in the following cases:

    a. The extension of a district for a distance of not more than 50 feet where the boundary line of a district divides a lot or tract held in single ownership at the time of the passage of this ordinance.

    b. The determination of the proper district applicable to particular land in cases of ambiguity or doubt arising from a difference between the street layout actually on the ground and the street layout as shown on the zone map.

    c. The reconstruction of a building, the use of which is nonconforming, which has been destroyed, or partially destroyed by explosion, fire, act of God or

the public enemy, except for the reconstruction of a nonconforming building located in a floodplain zone district, where 50 percent or more of the building has been damaged by any means, in which case the provisions of article VI, section 10 shall apply.

d. The erection, extension and use of a structure, or the use of premises not otherwise authorized or permitted by this ordinance in any location for a public service corporation for public utility purposes which is deemed reasonably necessary for the public convenience or welfare.

e. Reduction in the parking and loading requirements of this ordinance whenever the character or use of a building or premises is such as to make unnecessary the full provision of parking or loading facilities, or where such regulations would impose an unnecessary hardship, such as extreme financial difficulty, structural difficulty or similar condition upon the use of the property.

f. The erection of a temporary building for commerce or industry in the E or R districts which is incidental to the residential development, such permit to be issued for a period of not more than one year.

g. The location, construction, extension, structural alteration of a permitted use in a floodplain district, provided such variance or modification shall not be issued within any designated floodway if any increase in flood level during the base flood discharge would result and the board determines that:

(1) The variances for modification is the minimum necessary, considering the flood hazard to afford relief;

(2) The applicant has shown good and sufficient cause for the granting of such request;

(3) The failure to grant the requested variance or modification would result in exceptional hardship; and

(4) The granting of the variance or modification will not result in increased flood height, additional threats to public safety, extraordinary public expense, create nuisance, cause fraud on or victimization of the public or conflict with existing laws or ordinances of the city;

and shall through its action show that consideration has been given to all technical evaluations, all relevant factors and all standards specified in article VI, section 10 of this ordinance and the following:

(i) The danger that materials may be swept into other lands to the injury of others;

(ii) The danger to life and property due to flooding or erosion damage;

(iii) The susceptibility of the proposed facility and its contents to flood damage and the effect of such damage on the individual owner;

(iv) The importance of the services provided by the proposed facility to the community;

(v) The necessity to the facility of a waterfront location, where applicable;

(vi) The availability of alternative locations, not subject to flooding or erosion damage, or the proposed use;

(vii) The compatibility of the proposed use with existing and anticipated development;

(viii) The relationship of the proposed use to the comprehensive plan and flood and floodplain management program for that area;

(ix) The safety of access to the property in times of flood for ordinary and emergency vehicles;

(x) The expected heights, velocity, duration, rate of rise and sediment transport of the floodwaters and the effects of wave action, if applicable, expected at the site; and,

(xi) The costs of providing governmental services during and after flood conditioning including maintenance and repair of public utilities and facilities such as sewer, gas, electrical and water systems, and streets and bridges.

4. When any modification or special exception hereinafter in this section authorized will not tend to impair the health, safety, convenience or comfort of the public, including that portion of the public occupying the property immediately contiguous to the parcel of land which the modification concerns, to be determined by the board upon the adduction of competent evidence, including a view of the premises and its surroundings at the discretion of the board, the board may modify the strict application of the provisions of this ordinance and cause a permit to be issued upon such reasonable conditions as it may prescribe for the location, construction, extension, structural alteration and operation of any of the following uses, in any district from which these uses are prohibited or limited by this ordinance:

   a. Airport or landing field.

   b. Cemetery or mausoleum, including a mortuary or funeral home when located within the boundaries of an established cemetery.

   c. Hospital or institution provided that any hospital or institution authorized in any "E" or "R" district shall be located on a site of not less than five acres, and shall be set back from all required yard lines at least two feet for each foot of building height.

d. Commercial, recreational or amusement development for temporary or seasonal periods.

e. Drive-in theater.

f. Practice golf driving range, par three golf course or miniature golf course.

g. Trailer camp, provided such trailer camp shall comply with the provisions of applicable ordinances of the city.

h. Private club.

i. Wireless communications facilities where a special exception is specified in article VI, section 18.

j. Extraction of natural resources.

k. Sanitary landfill operation.

l. Public building owned or operated by governmental agency.

m. Privately operated community buildings, recreation field or amphitheater.

n. Off-street parking area provided the parking area adjoins a commercial or industrial district.

o. Community, common, joint or private fallout shelters.

p. Family day/night care facility in any MXD or HZD Zone District; family group day/night care facility in any R-4A, R-8 or HZD Zone District; child care center in any R-5, R-6, R-7 or R-8 Zone District or any child care center in any district abutting a residential zone district; child care center as an accessory use to a public or private institutional uses permitted in any E-1, R-1, R-2, R-3, R-4, R-4A, R-5, R-6, R-7, R-8, MXD or HZD Zone District or any child care center as an accessory use in any district abutting a residential zone district; adult care facility in any R-5, R-6, R-7, or R-8 Zone District or any adult care facility in any district abutting a residential zone district, provided that the applicant:

(1) Complies with the requirements of article VI, section 17 of this ordinance; and

(2) Provides a certification from the owner and operator that approval under this section shall not be transferable without prior approval by the zoning board of adjustment of the City of Birmingham.

q. Communal living facility in any R-4, R-5, R-6, R-7, B-1, B-2, B-3, B-4 or M-1 Zoning District provided the applicant submits:

(1) A statement from the state department of health or the state department of mental health and/or the Jefferson County Department of Health that the proposed facility meets all requirements for the appropriate license, if applicable.

(2) A statement from the City of Birmingham Housing Code Enforcement Division that the proposed facility meets all provisions of the City of Birmingham Housing Code.

(3) A certification from the owner and operator that approval under this section shall not be transferable without prior approval by the zoning board of adjustment of the City of Birmingham.

r. Wrecker service or insurance company holding yard in a M-1 Light Industrial District.

s. Personal services such as a beauty shop or barbershop when located in an approved communal living facility primarily designated for elderly residents having more than 100 residents, or in a multifamily building or condominium building having more than 100 units, provided that:

(1) No exterior signage is permitted, and

(2) The use of the facility shall be limited to only those persons who reside at the facility.

t. Medical clinic, when located in a public housing community operated by the housing authority, as defined in Title 24-1-22 of the Code of Alabama 1975, provided:

(1) The use of the clinic is limited to residents of the housing community in which the clinic is located; no other persons may receive services at such clinic.

(2) No exterior signage is permitted.

u. Opioid replacement therapy treatment facility only in a B-2, B-3, B-4, O&I, or M-1, M1-A, M-2 zoning district. In order to operate, the following information must be provided:

(1) A letter from the state department of health, state health planning and development agency, or the state department of mental health and/or the Jefferson County Department of Health that the proposed facility meets all requirements for operation and that all applicable and/or appropriate license (or licenses) or certifications have been obtained. If no license (or licenses) or certifications are needed or required for operation from the above listed agencies, a letter stating that fact from these agencies must be provided.

(2) The applicant submits a certification from the owner and operator that approval under this section shall not be transferable without prior approval by the zoning board of adjustment of the City of Birmingham.

v. Amusement (outdoor), when the property abuts a residential zoned property located with the city in a B-2, B-3, B-4, B-5, M-1, and M-5 district.

w. Uses on appeal when specified elsewhere in this article.

x. Chicken coop in only an M-l, M-1A, M-2 or M-3 zoning district provided that roosters are prohibited, it is accessory to an urban farm, no more than 100 hens per property, an enclosed predator-proof coop/run shall be provided that is no more than 2,000 square feet, the minimum setback from adjoining property lines shall be 100 feet and from street right-of-way lines shall be 300 feet. No chicken coop shall be built closer than 500 feet to the nearest adjacent residential zoned lot.

y. Outdoor urban farm in only a B-2 zoning district* provided all compost and organic matter stored on site is screened from adjacent lots and is more than 1,000 feet from any adjacent residential dwelling, which shall not cover more than ten percent of the total area, shall be managed to prevent rodents and pests, prevent odors and drainage from compost onto adjacent sites, all farming equipment shall be screened from view with fencing or landscaping of adjacent lots, accessory structures are limited to storage sheds, greenhouses, hoophouses, cold frames and cisterns built of standard uniform materials that are either new or in sound condition not showing signs of decay, apiaries are set back from property lines by 25 feet and 50 feet from any adjacent residential lots, a continuous water source is available, one hive allowed per 2,500 square feet with maximum of 40 hives.

   If any accessory structure is not maintained in sound condition free from evidence of decay and can be seen from public right-of-way or an adjacent property, they will be considered a nuisance and will be subject to code enforcement.

   It is a requirement that soil testing be conducted prior to gardening activities. Test for both soil condition and possible soil contamination, to determine at minimum constraints to food production, shall be conducted. Information on acquiring soil testing kits and analysis can be found in either the appendix to the [this] City of Birmingham Zoning Ordinance or the Technical Code for the City of Birmingham.

z. Market stand in only E-l, R-l, R-2, R-3, R-4, R-4A, R-5, R-6 or R-7 zoning districts, provided that accessory to a community garden, sales only occur on a temporary basis no more than 78 days per year and between the hours of 7:00 a.m. and 7:00 p.m., market can not operate for more than two consecutive days, market manager demonstrates that adequate parking is available on the lot being used by the market or a parking arrangement has been made for a nonresidential lot that is within 500 feet and is not in use during market hours, items made from kits, used or mass-produced items are prohibited, only agriculture products grown on the community garden property can be sold, within one hour after the closing of the market stand the market stand must be moved to its

permanent storage area in a rear yard and the market area be cleaned of any debris or trash, an affidavit verifying landowners permission and identifying community garden manager is submitted to PEP.

When the zoning board of adjustments considers a special exception to allow a market stand, they must consider the distance of a market stand from allowed market areas. If the proposed market stand is outside of walking distance (one-half mile) of an allowed market area (place of worship, school or park) or the applicant can demonstrate in writing that the owner of an allowed market area will not allow a market to occur on their property, then the board may, after considering other factors such as parking, approve the special exception.

5. The board may modify the strict application of the area and dimensional provisions of this ordinance as they apply to lots 50 feet in width in the R-5 Multiple Dwelling District, R-6 Multiple Dwelling District and R-7 Multiple Dwelling District, if in the discretion of the board, the design of the apartments as shown upon the site plan before the said board will add to the safety, convenience, comfort and general welfare of the public, by allowing the construction of one more dwelling unit than is allowable under the minimum lot area per family regulations in the said R-5, R-6, and R-7 multiple dwelling districts.

6. In the event that a structure or premises occupied by a legal nonconforming use becomes abandoned, discontinued or remains vacant, for a continuous period of two or more years, the board may grant a special exception to reestablish the legal nonconforming use provided that documentation is submitted to the staff of the planning, engineering, and permits department that the previous use was a legal nonconforming use; and there was no intent to abandon the legal nonconforming use since the use was discontinued or stopped, thereby losing its legal nonconforming status. Documentation must also be provided confirming that the use of the subject property has not converted or conformed to its current zoning classification requirements. Said documentation may be in the form of a letter, or similar instrument, from the owner or applicant which is substantiated and/or supplemented by information provided by the City of Birmingham. The applicant must also provide, in writing, documentation stating reasons why the legal nonconforming use will not tend to impair the health, safety, convenience or comfort of the public, including that portion of the public occupying the property immediately contiguous to the parcel of land which the resumption of the legal nonconforming status concerns.

7. In exercising the above mentioned powers the board may, in conformity with the provisions of this ordinance, reverse or affirm, wholly or partly, or may modify the order, requirement, decision or determination appealed from and may make such order, requirement, decision or determination as ought to be

made and to that end shall have all powers of the director of the department of planning, engineering and permits. The concurring vote of two-thirds of the members present shall be necessary to reverse or modify any order, requirement, decision or determination of the director of the department of planning, engineering and permits, or to decide in favor of the appellant or applicant on any matter upon which is required to pass, or to effect any variation from the strict application of the provisions of this ordinance.

8. To defray a portion of the costs occasioned thereby, no appeal from the decision of the director of the department of planning, engineering and permits, and no application for an exception, variance or other matter, shall be entered on the docket of, or heard by, or ruled on by the board until there has been paid to the offices of the board by the appellant or applicant the following fees:

a. Variances, modifications, and special exceptions involving all residential zoning districts	$125.00
b. Variances, modifications, and special exceptions involving all commercial, industrial, agricultural or other zoning districts	$300.00
c. Appeals from the decision of the director of the department of planning, engineering and permits	$300.00

Said fees shall be remitted to the director of finance of the City of Birmingham. If, on appeal from the decision of the director of the department of planning, engineering and permits pertaining to an interpretation of the provisions of this ordinance, the applicant is successful in reversing the decision of the director of the department of planning, engineering and permits, the fee shall be returned to the applicant. No fee shall be required for an interpretation of this ordinance where there is a variance between the street layout on the ground and the street layout as shown on the district zoning map. Neither the City of Birmingham, nor any officer, agent, or employee of the city acting in his official capacity, nor any agency of the city, shall be required to pay a fee under this article.

(Ord. No. 08-237, 12-1-2008; Ord. No. 10-31, § 1(5), 3-2-2010; Ord. No. 11-137, § 2, 11-8-2011; Ord. No. 13-71, 5-7-2013; Ord. No. 13-141, § 6, 11-5-2013)

Section 6. Appeals from action of the board.

Any party aggrieved by any final judgment or decision of the board may, within 15 days thereafter, appeal therefrom to the circuit court or court of like jurisdiction by filing with the board a written notice of appeal, specifying the judgment or decision from which appeal is taken. In case of such appeal, the board shall cause a transcript of the proceedings in the case to be certified to the court to which the appeal is taken and the case shall in such court be tried de novo.

[APPENDIX] ZONING BOARD OF ADJUSTMENT ENABLING LEGISLATION

Act No. 326 H.599- Dill, Kilgore, Holman, Jackson (T), Gloor, Cherner, Gafford, Yeilding, Sessions, Ellis, Watkins, Money, Bowers, Cook (Jefferson), Weeks, Meeks

AN ACT

TO AMEND SECTION 1 OF ACT NO. 528 OF THE 1959 REGULAR SESSION OF THE LEGISLATURE OF ALABAMA (GENERAL ACTS OF ALABAMA OF 1959, P. 1302-1304), PROVIDING FOR THE APPOINTMENT OF A ZONING BOARD OF ADJUSTMENT IN ANY CITY HAVING A POPULATION OF THREE HUNDRED THOUSAND INHABITANTS OR MORE ACCORDING TO THE LAST OR ANY SUBSEQUENT FEDERAL CENSUS.

Be It Enacted by the Legislature of Alabama:

Section 1.

That Section 1 of Act No. 528 of the 1959 Regular Session of the Legislature of Alabama (General Acts of Alabama of 1959, p. 1302-1304) be and the same is hereby amended as follows:

Section 1. The governing body of any city which may now or hereafter have a population of 300,000 inhabitants or more, according to the last or any subsequent federal census and which may now or hereafter have in force and effect a comprehensive zoning ordinance shall provide for the appointment of a Zoning Board of Adjustment and in the zoning regulations and restrictions adopted by such city pursuant of the authority of the laws of this state, provided that such Board of Adjustment shall, in appropriate cases and subject to appropriate conditions and safeguards, make special exceptions to the terms of the zoning ordinance of such city in harmony with its general purpose and intent, and in accordance with general or specific rules therein contained. Such Board of Adjustment shall consist of seven members, and each shall hold office for a term of seven years or until such time as his successor shall be appointed and qualify, except that the respective terms of the seven members first appointed shall be one, two, three, four, five, six and seven years; provided, members may after a public hearing be removed for cause by the governing body of the city. Such Board of Adjustment shall adopt rules in accordance with the provisions of the zoning ordinance adopted by such city. Meetings of the board shall be held at the call of the chairman and at such other times as the board may determine. Such chairman, or in his absence the acting-chairman, may administer oaths and compel the attendance of witnesses. All meetings of the board shall be open to the public. Such board shall keep minutes of its proceedings showing the vote of each member upon each question, or if absent or failing to vote, indicating such fact, and

shall keep records of its examinations and other official actions, all of which shall be immediately filed in the office of the board and shall be a public record. Appeals to the Zoning Board of Adjustment may be taken by any person aggrieved, or by any officer, department, board or bureau of the municipality affected by any decision of the administrative officer or such other officer as is charged with the enforcement of the zoning ordinance of the city. Such appeal shall be taken within a reasonable time as provided by the rules of the board by filing with the officer from whom the appeal is taken and with the Zoning Board of Adjustment of notice of appeal specifying the ground thereof. The officer from whom the appeal is taken shall forthwith transmit to the board all the papers constituting the record upon which the action appealed was taken. An appeal stays all proceedings in furtherance of the action appealed from unless the officer from whom the appeal is taken certifies to the Zoning Board of Adjustment after the notice of appeal shall have been filed with him that by reason of facts stated in the certificate a stay would in his opinion cause imminent peril to life or property. In such cases proceedings shall not be stayed otherwise than by restraining order which may be granted by the Zoning Board of Adjustment or by a court of record on application or notice to the officer from whom the appeal is taken and on due cause shown. The Zoning Board of Adjustment shall fix a reasonable time for the hearing of the appeal, give public notice thereof, as well as due notice to the parties in interest, and decide the same within a reasonable time. Upon the hearing any party may appear in person or by agent or by attorney. The Zoning Board of Adjustment shall have the following powers: to hear and decide appeals where it is alleged there is error in any order, requirement, decision or determination made by an administrative official in the enforcement of the zoning ordinance of the city upon which such board is required to pass under such ordinance. To authorize upon appeal in specific cases such variance from the terms of the zoning ordinance of the city as will not be contrary to the public interest, where owing to special conditions a literal enforcement of the provisions of the ordinance will result in unnecessary hardship, and so that the spirit of the ordinance shall be observed and substantial justice is done, provided, however, that no variance shall be granted under the provisions of this act to allow a structure of use in a district restricted against such structure or use, except as specifically provided for by the zoning ordinance. In exercising the above mentioned powers, such board may, in conformity with the provisions of this act, reverse or affirm wholly or partly or may modify the order, requirement, decision or determination appealed from and make such order, requirement, decision or determination as ought to be made, and to that end shall have all the powers of the office from whom the appeal is taken. The concurring vote of two-thirds of the Board members present shall be necessary to reverse any order, requirement, decision or determination of any such administrative official, or such other officer as is charged with the enforcement of the zoning ordinance of the city, or to decide in favor of the applicant or any matter upon which it is required to pass under any ordinance of the city or to effect any variation in any such ordinance. A quorum at any meeting shall consist of four members. The Zoning Board of Adjustment shall not be required to

return the original papers acted upon it, but it shall be sufficient to return certified or sworn copies thereof or of such portion thereof as may be called for by such writ. The return shall concisely set forth such other facts as may be pertinent and material to show the grounds of the decision appealed from and shall be verified."

Section 2. This act shall become effective immediately upon its passage and approval by the governor or upon its otherwise becoming a law.

Approved August 12, 1969

Time: 5:09 p.m.

I. *Authority.* The Zoning Board of Adjustment is established in accordance with and as authorized by Act No. 326 of the 1969 regular session of the Legislature of Alabama. The Board shall be governed by the Rules of Procedure and the Zoning Ordinance of the City of Birmingham.

II. *Membership.*

Composition. The membership of the Board shall consist of seven members appointed by the City Council. Membership of the Board shall consist of one State of Alabama licensed real estate salesperson or broker, one State of Alabama licensed and registered architect; one State of Alabama licensed building contractor and four nonaffiliated citizens who represent diverse segments of the population, and all seven of which must be residents and citizens of the City of Birmingham.

Terms of Membership. Members appointed by the Council shall serve overlapping terms of seven years.

How Replaced. Members may, after a public hearing, be removed for cause by the City Council. Replacement for any member of the board whose term of office is terminated, either by resignation or removal, shall be by appointment of the City Council.

III. *Officers.*

Chairman. A Chairman shall be elected by the members of the Board. The Chairman shall call all meetings to order and shall declare all adjournments. He shall rule on all points of order and procedure unless he shall be overruled by a majority of the Board present. His term as Chairman shall be for one year, or until such time thereafter, as a successor shall be duly elected. Any chairman may be reelected to succeed himself in the office of the Chairman.

Vice-Chairman. A Vice-Chairman shall be elected in the same manner as the Chairman for a term of one year, or until such time thereafter as his successor shall be elected, and he shall serve in the absence of the Chairman with the same powers and duties herein delegated the Chairman.

IV. *Function.* The Zoning Board of Adjustment shall hear and consider only those applications filed in the Department of Planning, Engineering and Permits which have been approved by the Director or his designated subordinate, which applications shall request the Board to render a decision in one or more of the following instances:

1. To hear an appeal from the decision of the Director of the Department of Planning, Engineering and Permits (Article VIII, Section 5.1).

2. To grant variances in specific cases from the strict application of the terms of the Ordinance under certain conditions (Article VIII, Section 5.2).

3. To modify the application of the terms of the Ordinance in certain cases (Article VIII, Section 5.3).

4. To grant exceptions under reasonable conditions to the terms of the ordinance for the establishment of certain specific uses where they are ordinarily prohibited (Section VIII, Section 5.4).

V. *Procedure for filing.* All applications for hearings before the Board must be filled in the office of the Department of Planning, Engineering and Permits of the City of Birmingham upon forms furnished by the Department for that purpose. Before any action will be taken on any application by the Board, the applicant shall have deposited with the City of Birmingham an amount determined by the following fee schedule:

a. Variances, modifications, and special exceptions involving all residential zoning districts	$125.00
b. Variances, modifications and special exceptions involving all commercial, industrial, agricultural or other zoning districts	$300.00
c. Appeals from the decision of the Director of Urban Planning	$300.00

Such fee is required to cover the approximate cost of processing the application. The Board will not hear any application unless all information called for by the application form shall have been furnished.

The Board will not hear any application unless same had been properly filed at least two weeks prior to the meeting date of the Board on which the application is proposed to [be] heard.

Notices. Notices shall be sent to all immediate adjacent property owners including properties directly across streets or alleys from the subject property at least six days prior to the date of the hearing. Such notices shall state the description of the parcel of land in question, what request has been made concerning it, and the time and place of the hearing.

VI. *Appeals from decisions of enforcing officer.* Persons appealing decisions of the officer charged with enforcement of the Zoning Ordinance shall have 15 days from the date of such decision to submit a letter or other writing to the Department of Planning, Engineering and Permits advising of and indicating the reasons for appealing such decision. During this fifteen day period, the appellant shall file an application with the Planning and Development Regulation Division of the Department of Planning, Engineering and Permits in order to officially enter the appeal case on the docket of the next regularly scheduled Board meeting. The enforcing officer shall make his decision in writing in which he shall indicate the time in which an appeal to the Board shall be filed. A copy of this written decision shall be sent to the person in charge of the Planning and Development Regulation Division of the Department of Planning, Engineering and Permits. A copy of such written decision

shall also be sent to any party or group representative who has made known to the enforcing officer of this or her opposition to the decision. Appeals to the Zoning Board of Adjustment may be taken by any person aggrieved, or by an officer, department, board or bureau of the City of Birmingham affected by a decision of the officer charged with enforcement of the Zoning Ordinance. Appeals from a person who is not an adjoining property owner of the property affected by the decision of the enforcing officer, or who is not a representative of an office, department, board, or bureau of the City of Birmingham shall indicate how he is "aggrieved." In such cases, the Board shall first vote to determine if the person is aggrieved. If the board's vote is in the affirmative, it shall proceed with the hearing of the appeal.

VII. *Hearings.* Any interested party may appear before any hearing of the Board, either in person or by his agent or attorney. Each application will be heard in substantially the following manner:

a. The Chairman, or such member of the Board as he may direct, shall present a preliminary statement of the matters to be considered in the application.

b. The applicant and the parties opposed to the application shall be permitted to present arguments to the Board, and may offer supporting testimony to their position, subject to whatever reasonable limitations the Chairman may wish to impose thereon.

c. The Board will endeavor to consider only such argument and testimony as is pertinent to the application but is not limited to consideration of only such evidence as would be admissible in a court of law.

d. If the Board has not already viewed the premises described in the application, it may continue its hearing on the application until it has viewed the premises.

e. The Board shall render its decision on any application heard by the Board not later than 30 days from the date of the hearing.

f. The Board may grant a continuance of any hearing for a period not in excess of 60 days.

g. The Board may grant more than one continuance of any hearing but shall not continue any hearing for an aggregate of more than 120 days.

f.[h.] The concurring vote of two-thirds of the Board members present shall be necessary to reverse any order, requirement, decision or determination of the Director of the Department of Planning, Engineering and Permits; or to decide in favor of the applicant on any matter concerning a variance, special exception or modification.

VIII. *Application for rehearing.* All applications for a rehearing shall be made in the same manner as are applications for original hearings. Any application for rehearing will be denied by the Board if it appears that there has been no substantial change in facts or physical conditions since the original hearing.

IX. *Meetings.* Regular meetings of the Board will be held at 2:00 p.m. on the second and fourth Thursdays of each calendar month, which meetings will be held in the City Council Chambers of City Hall; provided, however, the Chairman may adjourn the meeting to another room in the City Hall when he deems it expedient and in the best interests of the parties concerned.

Conduct of Meetings. All meetings of the Board will be open to the public. The order of business at each meeting will be substantially as follows:

a. Roll call.

b. Approval of minutes of the previous meeting.

c. New business, including the hearing of pending applications.

d. Unfinished business.

e. Adjournment of meeting.

Any Board member who is financially interested in a decision of the Board on any application before the Board including but not limited to ownership of property in project, partnership in project or representation as client of project will rescue himself during the hearing on said application and will neither question witnesses nor case a vote.

Quorum. A quorum at any meeting of the Board shall consist of four Board members. When Less than a quorum of the Board is present for any meeting, those members present shall, by majority vote, set a new date for the meeting not later than the next regular meeting date of the board, or, by majority vote, may continue all applications before the Board to the next regular meeting of the Board.

X. *Minutes.* The Board shall cause minutes of each of its meetings to be kept in the Planning And Development Regulation Division of the Department of Planning, Engineering and Permits, which minutes shall be available and open to inspection by the public. The minutes shall show the action taken by the Board on each application heard by it, together with the votes of each member of the Board upon each application. The minutes shall further show the names of any absent members of the Board, and the name of any member rescuing himself in any matter before the Board.

XI. *Amendments.* These rules may be amended from time to time by the Zoning Board Adjustment, by resolution duly adopted at any of its regular meetings, when so authorized by the vote of at least four of its members.

The Zoning Ordinance was adopted as part of a program for developing the Birmingham Comprehensive Plan; zoning is one of the tools to carry out this plan. The Zoning Advisory Committee is organized to advise the City Council directly on all applications for changes in the Zoning Ordinance, and its activity shall be confined to considering such changes. The Committee speaks for the Birmingham Planning Commission with full authority - there shall be no appeals from its decision to the full Planning Commission. All map change applications will be compared to all parts of the Birmingham Comprehensive Plan in effect at that time and any other plan, study, or program of improvement in effect or having official status or endorsement. Each application will be investigated by the staff of the Department of Planning, Engineering and Permits and a report submitted thereon including, but not limited to, conclusions as to relation to the Comprehensive Plan and a recommendation.

I. *Authority.* The Zoning Advisory Committee of the Birmingham Planning Commission is established under authority granted by the commission of the City of Birmingham under Ordinance No. 1800-F, as amended by Ordinance No. 1817-F. The Committee shall be governed by these Rules of Procedure and the Zoning Ordinance of the City of Birmingham.

II. *Membership.*

Composition. The membership of the Committee shall be composed of seven members elected by the Birmingham Planning Commission from its appointed membership.

Terms of Membership. Members duly elected to membership on the Zoning Advisory Committee shall continue to serve on the Committee as long as they are legally serving as members of the Birmingham Planning Commission or until replaced by election of the Planning Commission.

How Replaced. Replacement for any member of the Committee whose term of office on the Birmingham Planning Commission is terminated shall be by election from the appointed membership of the Planning Commission.

III. *Officers.*

Chairman. A Chairman shall be elected by the members of the Committee. His term shall be for one year beginning with the date of election, and he shall be eligible for reelection. The Chairman shall decide upon all points of order and procedure, subject to these Rules of Procedure unless directed otherwise by a majority of the Committee in session at the time. The Chairman may appoint any subcommittee deemed necessary to investigate any matter before the Committee.

Vice-Chairman. A Vice-Chairman shall be elected by the Committee from among its regular members in the same manner and for the same term as the Chairman. He shall serve as acting Chairman in the absence of the Chairman, and at such times he shall have the same powers and duties as the Chairman.

Secretary. The Director of Planning, Engineering and Permits or his designated subordinate shall perform the administrative and clerical functions of the Committee. He shall keep all records, and handle all correspondence and notices for the Committee.

IV. *Applications.*

Procedures for Filing. The Committee shall hear all requests for change in the Zoning Ordinance of the City of Birmingham and shall transmit their recommendations to the City Council. The applicant must file his application for a hearing in the offices of the Urban Planning Department of the City of Birmingham. All applications shall be made upon the form furnished for that purpose and all information shall be complete and fees paid before the application shall be considered as having been filed. Before any action shall be taken as provided in these Rules of Procedure, the applicant petitioning for amendment shall deposit with the City of Birmingham the sum of $500.00 to cover the approximate cost of handling his application. Applications must be filed by 4:30 p.m., two weeks prior to the date of hearing. Hearings will be held at 7:00 p.m. on the first and third Tuesday of each month. An application for a rehearing may be made in the same manner as provided for in an original hearing. The application for rehearing shall be denied by the Committee if from the record it shall appear that there has been no substantial change in facts, evidence, or conditions.

Notices. Notices shall be sent to all property owners within a radius of 500 feet from the subject property at least six days prior to the date of the hearing. Such notices shall state the description of the parcel of land in question, what request has been made concerning it, and the time and place of the hearing.

Decisions. Upon agreement of a majority of the membership, decisions of the Committee may be made in executive session not more than 15 days from the time of the hearing or 30 days from the date of receipt of the application. The final decision of the Committee shall be shown in the record of the case as entered in the minutes of the Committee and signed by the Director of Planning, Engineering and Permits or his designated subordinate. Such record shall show the reasons for the determination. The affirmative or concurring vote of the majority of members present shall be necessary to recommended in favor of the applicant or to decide in favor of any matter before the Committee.

V. *Meetings.*

Meeting Place. Regular meetings of the Committee shall be held in the Council Chambers of the City Hall, provided that if the Committee Chairman so directs, meetings may be held at any other place in the City.

Special Meetings. Special meetings of the Committee may be called at any time by the Chairman. At least 48 hour's written or oral notice of the time and place of a special meeting shall be given to each member of the Committee.

Cancellation Meetings. Whenever there are no applications, public hearings, or other business of the Committee, the Chairman may dispense with a regular meeting by giving written or oral notice to all members no less than 48 hours prior to the time set for the meeting.

Conduct of Meetings. All meetings shall be open to the public. The order of business at regular meetings shall be as follows:

a. Roll call.

b. Approval of minutes of previous meeting.

c. Hearing of cases.

d. Unfinished business.

e. New business.

Presentation or Hearings of Proposals. The following shall be the order of procedure for public hearings concerning zoning matters:

a. The Chairman, or such person as he shall direct, shall give a preliminary statement of the case.

b. The applicant shall present the argument in support of his application.

c. Persons opposed to the application shall present the argument against the application.

d. Both sides will be permitted to present rebuttals to opposing testimony.

e. The Chairman shall summarize the evidence which has been presented, giving the parties opportunity to make objections and corrections.

Witnesses may be called and factual evidence may be submitted, but the Committee shall not be limited to consideration of such evidence as would be admissible in a court of law. The Committee may view the premises before arriving at a decision. Disqualification from Voting: No Committee member shall take part in the hearing or decision of any case in which he shall be personally or financially interested. No Committee member shall vote on any matter concerning a public hearing unless he shall have attended the public hearing.

VI. *Quorum.* A quorum shall consist of four members of the Committee. When less than four members are present for any hearing, then those that are present shall agree to and announce the time and place for a continued hearing.

VII. *Minutes.* The minutes of every meeting of the Committee shall be kept in a permanent file in the offices of the Department of Planning, Engineering and Permits and shall be a public record. These shall show the record of every action taken by the Committee and the reason therefore, every resolution or

upon any resolution or upon the final determination of any question, indicating the names of members absent or abstaining from voting and for what reasons.

FILING PROCEDURE AND FEES

I. *Zoning Advisory Committee.*

1. *Documents.*
   A. Rezoning application.
   B. Site Development plan (4 copies).
      1. Location and height of structures.
      2. Use of structures.
      3. Yard dimensions.
      4. Parking layout.
      5. Streets and drives.
      6. Site beautification.
      7. Signage.
2. *Time.* Time required for a rezoning case is approximately eight weeks, including hearings and actions both by the Zoning Advisory Committee and the City Council.
3. *Third parties.* The applicant should meet with the appropriate Neighborhood Association prior to the hearing of the case by the City Council.
4. *Notification.* The City is required to notify owners of property within 500 feet of any rezoning application. Such notice is mailed out for each meeting. The City is also required to advertise rezoning cases in a newspaper of general circulation. In addition, all applicable neighborhood association officers are notified.
5. *Public Hearings.* The Zoning Advisory Committee meets every first and third Tuesday. All rezoning application documents must be filed two weeks before each meeting. After the Zoning Advisory Committee hears a rezoning case and makes a recommendation, the City Council will schedule a public hearing to consider final action on the rezoning. The city Council hearing is normally four to five weeks following Zoning Advisory Committee Action.
6. *Fees.* $500.00 filing fee

II. *Zoning Board of Adjustment.*

1. *Documents.*
   A. Application.
   B. Survey map of the property.

C. Site development plan (if construction is involved).

1. Buildings and structures.
2. Yard dimensions.
3. Parking areas.
4. Driveways and walks.
5. Landscaping.
6. Freestanding signs.
7. Other signage.

2. *Time.* Time required for a Zoning Board of Adjustment case is approximately two weeks.

3. *Third Parties.* All applicants who have projects that may have neighborhood wide impact are urged to meet with the appropriate Neighborhood Association prior to the initial Board hearing.

4. *Notification.* The City is required to notify all adjacent property owners of all ZBA cases. In addition, all applicable neighborhood association officers are notified.

5. *Public Hearings.* The Zoning Board of Adjustment meets every second and fourth Thursday. All documents must be filed two weeks before the meeting.

6. *Fees.*

Variances, modifications, and special exceptions involving all residential zoning districts	$125.00
Variances, modifications, and special exceptions involving all commercial, industrial, agricultural or other zoning districts	$300.00
Appeals from the decision of the Director of Urban Planning	$300.00

III. *Subdivision Committee.*

1. *Documents.*

A. Subdivision application.

B. Maps.

1. Original plat and five copies.
2. Vicinity map (five copies).

2. *Time.* Time required for a Subdivision case is about two weeks.

3. *Third Parties.* The applicant is required to supply, upon filing, a listing of all adjacent property owners; together with the names and addresses of each. Where the case may have significant neighborhood-wide impact, the applicant is encouraged to meet with the affected Neighborhood Association.

4. *Notification.* The City is required to notify owners of adjacent property by certified mail. Such notice is mailed out for each meeting.

5. *Public Hearing.* The Subdivision Committee meets every second and fourth Wednesday. All documents must be filed two weeks before the meeting.

6. *Fees.*

Per subdivision plat	$100.00
Per residential lot	$5.00
Per acre or portion thereof not zoned for residential use or devoted to public purposes	$10.00
Cost of certified mail	[Cost]

IV. *Vacation Procedure.*

1. *Application is filed with the Subdivision Committee of the Birmingham Planning Commission, 5th Floor, City Hall.* Applicant is required to submit a Declaration of Vacation which must be signed by all persons who own land that abuts or borders the alley or street to be vacated. A sample Declaration of Vacation from is available for applicant to follow.

2. *Subdivision Committee Public Hearing.* Application will be heard by the Subdivision Committee which will recommend or not recommend the request to the City Council. It is also important that the applicant contact the Traffic Engineering Department regarding the removal of existing street lights and wooden poles along the right-of-way. If removal is necessary, the applicant is required to pay the cost, which is separate from the cost of the vacation itself.

3. *City Council Public Hearing.* After the Subdivision Committee has heard the case, the Planning, Engineering and Permits Staff will arrange to set it for a Public Hearing before the full City Council. Notice of Vacation must be advertised by the city in the newspaper five days prior to the Council Meeting. The Council will vote to approve or not approve the vacation request at the conclusion of the public hearing. If the vacation is approved, the applicant will be required to pay a right of way fee for the value of the land being vacated, unless said fee is waived by the City Council. (See City Ordinance No. 93-239 for fee Schedule.)

4. *Resurvey of the Vacation of Right-of-Way into Abutting Property.* Once the Council has approved the Vacation, the applicant must then resurvey the vacated area into the abutting property. This requires the applicant to file a case with the Subdivision Committee again. Six copies of a final plat drawn by a Registered Civil Engineer as well as a vicinity map are required in filing the resurvey case. In order to save time, the applicant may wish to complete this step when the vacation is filed (see Step #1). The Subdivision Committee can conditionally approve the resurvey at this time, subject to the Council's approving the vacation.

5. *Recording of Final Plat and Vacation Documents.* Once the resurvey has been approved and the applicant has met all conditions set forth by the Subdivision Committee for the resurvey, including payment of the right-of-way fee, the Final Plat and vacation documents will be recorded by the city in the Office of the Judge of Probate. After recording, the applicant will be able to obtain a building permit to use the vacated right-of-way.

Sign Fees *(From City of Birmingham Technical Code)*	
All signs (except roof and off-premises signs)	$75.00 (application fee)
Roof sign	$100.00 (application fee)
Off-premises sign (billboard)	$200.00 (application fee)
Sign face (all signs)	$0.50 per sq. ft. of sign face (sign face fee)
Reader board, message board, animated or video display*	
Off-premises billboard	$100.00 per sign face (sign face fee)
All other signs	$50.00 per sign face (sign face fee)
Portable signs	$50.00 (annual fee)
*Must receive electrical permit prior to issuance of sign permit.	

CODE COMPARATIVE TABLE

1964 CODE

This table gives the location within this Code of those sections of the 1964 Code which are included herein. Sections of the 1964 Code not listed herein have been omitted as repealed, superseded, obsolete or not of a general and permanent nature.

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2-108—2-111	2-5-51—2-5-54		

1964 Code Section	Section this Code
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13-1—13-6	12-4-1—12-4-6
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This table gives the location within this Code of those sections of the 1980 Code, as updated through October 1, 2013, which are included herein. Sections of the 1980 Code, as updated, not listed herein have been omitted as repealed, superseded, obsolete or not of a general and permanent nature. For the location of ordinances adopted subsequent thereto, see the table immediately following this table.

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This table gives the location within this Code of those ordinances adopted since the 1980 Code, as updated through April 1, 2014, which are included herein. Ordinances adopted prior to such date were incorporated into the 1980 Code, as updated. This table contains some ordinances which precede April 1, 2014, but which were never included in the 1980 Code, as updated, for various reasons. Ordinances adopted since April 1, 2014, and not listed herein, have been omitted as repealed, superseded or not a general and permanent nature.

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